SUPPLEMENT NO. 70
VOLUMES I AND II
July 2026

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Code contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2026-08, enacted April 14, 2026.

See the Code Comparative Table B—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
ix—xix	ix—xix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9, SH:10	SH:9, SH:10
1181, 1182	1181—1182.1
1945, 1946	1945, 1946
1967, 1968	1967, 1968
	VOLUME II
ix—xix	ix—xix
4241—4242.7	4241—4242.7
4861, 4862	4861, 4862
5301, 5302	5301, 5302
5391—5477	5391—5477

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SUPPLEMENT NO. 69
VOLUMES I AND II
March 2026

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Code contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2025-42, enacted November 18, 2025.

See the Code Comparative Table B—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9, SH:10	SH:9, SH:10
187	187
349—350.4	349—350.4
1545—1546.2	1545—1546.2
1571—1574	1571—1574.1
1637—1648	1637—1647
1747, 1748	1747, 1748
	VOLUME II
5301, 5302	5301, 5302

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SUPPLEMENT NO. 68
VOLUMES I AND II
December 2025

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Code contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2025-01, enacted January 14, 2025.

See the Code Comparative Table B—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
iii	iii
ix—xix	ix—xix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9, SH:10	SH:9, SH:10
407, 408	407, 408
413—416	413—421
VOLUME II	
ix—xix	ix—xix
2091	2091
5301, 5302	5301, 5302
5391—5477	5391—5477

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SUPPLEMENT NO. 67
VOLUMES I AND II
January 2025

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Code contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2024-40, enacted September 24, 2024.

See the Code Comparative Table B—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9	SH:9, SH:10
773—780	773—782
1579—1594	1579—1594
1601—1622	1601—1622
1624.3—1624.5	1624.3—1624.5
1659—1668	1659—1668.2
1676.9—1676.12	1676.9—1676.12
1685—1692	1685—1692
1703—1716.1	1703—1716.2
1814.29—1814.34	1814.29—1814.34
1814.59, 1814.60	1814.59, 1814.60
	VOLUME II
5301	5301, 5302
5391—5475	5391—5477

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SUPPLEMENT NO. 66
VOLUMES I AND II
June 2024

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Code contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2024-18, enacted April 9, 2024.

See the Code Comparative Table B—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xix	xix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9	SH:9
340.3—340.7	340.3—340.7
1249, 1250	1249, 1250
	VOLUME II
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4487—4490	4487—4491
4863, 4864	4863, 4864
5075, 5076	5075, 5076
5085—5087	5085—5087
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5301	5301
5391, 5392	5391, 5392
5427, 5428	5427, 5428
5439—5444	5439—5444.2

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SUPPLEMENT NO. 65
VOLUMES I AND II
December 2023

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Code contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2023-49, enacted October 10, 2023.

See the Code Comparative Table B—Volume II for further information.

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ix—xix	ix—xix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9	SH:9
1611—1620	1611—1620
1635—1644	1635—1642
1797—1802	1797—1802.6
1814.15—1814.20.1	1814.15—1814.20.1
1814.51—1814.54.1	1814.51—1814.54.1
1814.59, 1814.60	1814.59, 1814.60
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4241—4242.2	4241—4242.2.1
4247—4250.1	4247—4254
4279, 4280	4279—4280.1
4365	4365
4367—4372	4367—4371
4845, 4846	4845, 4846
4861—4862.1	4861—4862.1
5093—5094.1	5093—5094.1
5301	5301
5391—5394	5391—5394
5397, 5398	5397, 5398
5401—5404	5401—5404
5408.1	5408.1
5415, 5416	5415, 5416

Remove Old Pages	*Insert New Pages*
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5427—5434	5427—5434
5445—5448.1	5445—5448.1
5455—5456.1	5455, 5456

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SUPPLEMENT NO. 64
VOLUMES I AND II
August 2023

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Code contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2023-06, enacted February 21, 2023.

See the Code Comparative Table B—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
iii	iii
ix—xix	ix—xix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9	SH:9
339—340.6	339—340.7
348.2.1—348.2.5	348.2.1—348.2.6
489—491	489—491
1089, 1090	1089, 1090
1091—1098	1091—1098
1119—1122	1119—1121
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3691	3691
3693—3702	3693, 3694
5299, 5300	5299—5301
5379, 5380	5379, 5380
5391—5394	5391—5394
5400.1—5406	5401—5406
5413, 5414	5413, 5414
5417—5420	5417—5420
5431—5434	5431—5434
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5452.1—5456	5453—5456.1
5465, 5466	5465, 5466
5471—5472.1	5471—5472.1

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SUPPLEMENT NO. 63
VOLUMES I AND II
December 2022

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Code contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2022-30, enacted August 23, 2022.

See the Code Comparative Table B—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi, xii	xi, xii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7, SH:8	SH:7—SH:9
1089, 1090	1089, 1090
1091—1128	1091—1127
1539—1546.1	1539—1546.2
1601, 1602	1601, 1602
1605, 1606	1605, 1606
1757, 1758	1757—1758.1
1777, 1778	1777, 1778
	VOLUME II
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5299, 5300	5299, 5300
5397, 5398	5397, 5398
5429—5430.1	5429, 5430
5436.1—5438	5437—5438.2
5459, 5460	5459, 5460

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SUPPLEMENT NO. 62
VOLUMES I AND II
June 2022

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Code contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2021-10, enacted April 12, 2022.

See the Code Comparative Table B—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Title page	Title page
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7, SH:8	SH:7, SH:8
187	187
333—336	333—336
340.3—340.6	340.3—340.6
1541—1546	1541—1546.1
	VOLUME II
Title page	Title page
5299, 5300	5299, 5300

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SUPPLEMENT NO. 61
VOLUMES I AND II
December 2021

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Code contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2021-22, enacted July 27, 2021.

See the Code Comparative Table B—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
iii	iii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7, SH:8	SH:7, SH:8
1759, 1760	1759, 1760
1775—1778	1775—1778.1
1809, 1810	1809—1810.1
1814.15—1814.20	1814.15—1814.20.1
	VOLUME II
5299, 5300	5299, 5300
5466.1—5468	5467—5468.1

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SUPPLEMENT NO. 60
VOLUMES I AND II
July 2021

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Code contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2021-05, enacted January 26, 2021.

See the Code Comparative Table B—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xiii, xiv	xiii, xiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7, SH:8	SH:7, SH:8
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75	75
1599—1606	1599—1606
1611—1620	1611—1620
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1814.52.1—1814.54	1814.53—1814.54.1
1814.59, 1814.60	1814.59, 1814.60
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2041—2047	2041—2048
5299, 5300	5299, 5300
5379—5381	5379—5381
5398.1—5400	5399—5400.1
5420.1—5422.1	5421—5422.1
5429, 5430	5429—5430.1
5433—5436	5433—5436
5445—5448	5445—5448
5460.1, 5460.2	5460.1, 5460.2

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SUPPLEMENT NO. 59
VOLUMES I AND II
December 2020

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Code contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2020-37, enacted August 25, 2020.

See the Code Comparative Table B—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xiii—xix	xiii—xix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7, SH:8	SH:7, SH:8
489, 490	489, 490
1531—1533	1531—1533
1575, 1576	1575, 1576
1581, 1582	1581, 1582
1599—1606	1599—1606
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1617—1620	1617—1620
1624.1—1624.4	1624.1—1624.5
1655—1662	1655—1662.2
1676.1—1676.11	1676.1—1676.12
1705—1716	1705—1716.1
1747—1754.2	1747—1754.3
1814.39—1814.42	1814.39—1814.42.1
1814.59, 1814.60	1814.59, 1814.60
VOLUME II	
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2953—2962	2953—2963
5081—5090	5081—5087
5299	5299, 5300
5379—5381	5379—5381
5391—5398	5391—5398.1
5403, 5404	5403, 5404

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5407—5408.1	5407—5408.1
5415—5418	5415—5418
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5434.1—5436	5435—5436.1
5447, 5448	5447—5448.1
5450.1—5452	5451—5452.1
5459—5460.2	5459—5460.2
5463—5466	5463—5466.1
5469—5472	5469—5472.1

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SUPPLEMENT NO. 58
VOLUMES I AND II
April 2020

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Code contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2020-08, enacted March 17, 2020.

See the Code Comparative Table B—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
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	VOLUME II
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4219—4221	4219—4221
4237—4242.1	4237—4242.7
4309	4309
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4858.1—4862	4859—4862.1
5299	5299
5379, 5380	5379—5381
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5407, 5408	5407—5408.1
5419—5420.1	5419—5420.1
5423—5426	5423—5426
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SUPPLEMENT NO. 57
VOLUMES I AND II
January 2020

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Code contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2019-66, enacted October 8, 2019.

See the Code Comparative Table B—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
ix—xix	ix—xix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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331—340.6	331—340.6
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1559, 1560	1559, 1560
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1695, 1696	1695—1696.1
1705—1708	1705—1708.1
	VOLUME II
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2869—2871	2869—2874
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4845, 4846	4845, 4846

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	5021
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5449—5450.1	5449—5450.1
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SUPPLEMENT NO. 56
VOLUMES I AND II
June 2019

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Code contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2019-16, enacted April 23, 2019.

See the Code Comparative Table B—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
ix—xix	ix—xix
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1579—1624	1579—1624.4
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1749—1754.2	1749—1754.2
1777—1782	1777—1782.2
1814.27, 1814.28	1814.27, 1814.28
1814.41—1814.46	1814.41—1814.46.1
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2113—2118	2113—2118
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4487—4489	4487—4490
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5395, 5396	5395—5396.1
5407, 5408	5407, 5408
5417—5422	5417—5422.1

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5449, 5450	5449—5450.1
5455, 5456	5455, 5456

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SUPPLEMENT NO. 55
VOLUMES I AND II
November 2018

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Code contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2018-51, enacted August 14, 2018.

See the Code Comparative Table B—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
ix—xviii	ix—xix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5, SH:6	SH:5, SH:6
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1531, 1532	1531, 1532
1547—1554	1547—1554
1579—1582	1579—1582
1601—1604.1	1601—1604.1
1621—1624	1621—1624
1631—1636	1631—1636
1657—1660	1657—1660.1
1669—1676	1669—1676.6
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1809—1814.6	1809—1814.6.1
1814.39—1814.42	1814.39—1814.42.1
1814.51, 1814.52	1814.51—1814.52.1
1814.59, 1814.60	1814.59, 1814.60
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ix—xviii	ix—xix
2545	2545
2581—2584	2581—2584
2783	2783
2787	2787

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2897	2897
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3011—3013	3011
3039—3041	3039
3401	3401
3403—3408	3403—3407
4217	4217
4235—4238.2	4235—4238.2.1
4845, 4846	4845, 4846
4861, 4862	4861—4862.1
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	4919
	4921, 4922
4931	4931
5071	5071
5073, 5074	5073, 5074
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SUPPLEMENT NO. 54
VOLUMES I AND II
July 2018

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Code contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2018-06, enacted February 6, 2018.

See the Code Comparative Table B—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
iii	iii
xiii, xiv	xiii, xiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5, SH:6	SH:5, SH:6
412.1—416	413—416
1449, 1450	1449, 1450
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SUPPLEMENT NO. 53
VOLUMES I AND II
April 2018

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Code contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2017-34, enacted June 13, 2017.

See the Code Comparative Table B—Volume II for further information.

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SUPPLEMENT NO. 52
VOLUMES I AND II
May 2017

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Code contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2017-11, enacted February 14, 2017.

See the Code Comparative Table B—Volume II for further information.

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SUPPLEMENT NO. 51
VOLUMES I AND II
October 2016

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Code contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2016-58, enacted August 23, 2016.

See the Code Comparative Table B—Volume II for further information.

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SUPPLEMENT NO. 50
VOLUMES I AND II
June 2016

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Code contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2016-05, adopted February 9, 2016.

See the Code Comparative Table B—Volume II for further information.

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SUPPLEMENT NO. 49
VOLUMES I AND II
October 2015

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Code contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2015-38, enacted July 28, 2015.

See the Code Comparative Table B—Volume II for further information.

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SUPPLEMENT NO. 48
VOLUMES I AND II
May 2015

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Code contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2015-13, enacted February 24, 2015.

See the Code Comparative Table B—Volume II for further information.

Included in the Charter is:

Referendum of November 4, 2014.

See the Charter Comparative Table—Volume I for further information.

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SUPPLEMENT NO. 47
VOLUMES I AND II
December 2014

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Code contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2014-77, enacted November 12, 2014.

See the Code Comparative Table B—Volume II for further information.

Included in the Charter is:

Amendment of January 28, 2014.

See the Charter Comparative Table—Volume I for further information.

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SUPPLEMENT NO. 45
VOLUMES I AND II
December 2013

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Code contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2013-42, enacted August 27, 2013.

See the Code Comparative Table B—Volume II for further information.

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SUPPLEMENT NO. 44, REVISION.
VOLUMES I AND II
June 2013

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement No. 44, Revision, is printed to revise pagges appearing in Supp. No. 44 and should be inserted as directed below.

This Code contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2013-07, enacted February 19, 2013.

See the Code Comparative Table B—Volume II for further information.

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*Please inserted the above listed pages even though the pages carry "Supp. No. 44."

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SUPPLEMENT NO. 44
VOLUMES I AND II
April 2013

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2013-07, enacted February 19, 2013.

See the Code Comparative Table B—Volume II for further information.

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SUPPLEMENT NO. 43
VOLUMES I AND II
January 2013

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2012-47, enacted August 28, 2012.

See the Code Comparative Table B—Volume II for further information.

Included in the Charter is:

Amendment of November 6, 2012.

See the Charter Comparative Table—Volume I for further information.

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SUPPLEMENT NO. 42
VOLUMES I AND II
May 2012

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2012-13, enacted February 21, 2012.

See the Code Comparative Table B—Volume II for further information.

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SUPPLEMENT NO. 41
February 2012

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2011-11, enacted March 22, 2011.

See the Code Comparative Table B—Volume II for further information.

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SUPPLEMENT NO. 40
VOLUMES I AND II
April 2011

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2010-49, enacted August 24, 2010.

See the Code Comparative Table B—Volume II for further information.

Included in the Charter is:

Amendment of May 4, 2010.

See the Charter Comparative Table—Volume I for further information.

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SUPPLEMENT NO. 39
VOLUMES I AND II
January 2011

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2010-08, enacted February 16, 2010.

See the Code Comparative Table B—Volume II for further information.

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SUPPLEMENT NO. 38
VOLUMES I AND II
January 2010

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2009-40, enacted August 11, 2009.

See the Code Comparative Table B—Volume II for further information.

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SUPPLEMENT NO. 37, REVISION
VOLUME I
September 2009

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement No. 37, Revision, is printed to revise pages appearing in Supplement No. 37 and should be inserted as directed below.

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SUPPLEMENT NO. 37
VOLUMES I AND II
June 2009

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2009-06, enacted February 17, 2009.

See the Code Comparative Table B—Volume II for further information.

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SUPPLEMENT NO. 36
VOLUMES I AND II
December 2008

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2008-34, enacted August 26, 2008.

See Code Comparative Table B—Volume II for further information.

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SUPPLEMENT NO. 35
VOLUMES I AND II
June 2008

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2008-06, enacted February 19, 2008.

See the Code Comparative Table B—Volume II for further information.

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SUPPLEMENT NO. 34
VOLUMES I AND II
October 2007

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2007-49, enacted August 28, 2007.

See the Code Comparative Table B—Volume II for further information.

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SUPPLEMENT NO. 33, ADDITION
VOLUMES I AND II
September 2007

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement 33, Addition, is printed to add material inadvertently omitted from Supplement No. 33 and should be inserted as directed below.

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SUPPLEMENT NO. 33
VOLUMES I AND II
April 2007

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2007-14, enacted February 20, 2007.

See the Code Comparative Table B—Volume II for further information.

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SUPPLEMENT NO. 32
VOLUMES I AND II
December 2006

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2006-59, enacted August 15, 2006.

See the Code Comparative Table B—Volume II for further information.

Included in the Charter is:

Amendment of August 8, 2006.

See the Charter Comparative Table for further information.

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SUPPLEMENT NO. 31
VOLUMES I AND II
May 2006

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2006-09, enacted February 21, 2006.

See the Code Comparative Table B—Volume II for further information.

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SUPPLEMENT NO. 30
VOLUMES I AND II
November 2005

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2005-65, enacted August 23, 2005.

See the Code Comparative Table B—Volume II for further information.

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SUPPLEMENT NO. 29
VOLUMES I AND II
April 2005

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2005-11, enacted February 8, 2005.

See the Code Comparative Table B—Volume II for further information.

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SUPPLEMENT NO. 28
VOLUMES I AND II
November 2004

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2004-50, enacted August 24, 2004.

See the Code Comparative Table B—Volume II for further information.

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SUPPLEMENT NO. 27, REVISION
VOLUME I
May 2004

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement No. 27, Revision, is printed to revise pages appearing in Supplement No. 27 and should be inserted as directed below.

Remove old pages	*Insert new pages*
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SUPPLEMENT NO. 27
VOLUMES I AND II
May 2004

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2004-7, enacted February 17, 2004.

See the Code Comparative Table B—Volume II for further information.

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SUPPLEMENT NO. 26
VOLUMES I AND II
November 2003

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2003-29, enacted August 5, 2003.

See the Code Comparative Table B—Volume II for further information.

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SUPPLEMENT NO. 25
VOLUMES I AND II
July 2003

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2003-06, enacted January 28, 2003.

See the Code Comparative Table B—Volume II for further information.

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SUPPLEMENT NO. 24
VOLUMES I AND II
November 2002

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2002-50, enacted August 20, 2002.

See the Code Comparative Table B—Volume II for further information.

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SUPPLEMENT NO. 23
VOLUMES I AND II
May 2002

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2002-12, enacted February 26, 2002.

See the Code Comparative Table B—Volume II for further information.

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SUPPLEMENT NO. 22
VOLUMES I AND II
November 2001

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2001-28, enacted July 31, 2001.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 21
VOLUMES I AND II
June 2001

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2001-07, enacted February 27, 2001.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 20
VOLUMES I AND II
November 2000

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2000-53, enacted September 5, 2000.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 19, REVISION
VOLUMES I AND II
June 2000

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement No. 19, Revision, is printed to revise pages appearing in Supplement No. 19 and should inserted as directed below.

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SUPPLEMENT NO. 19
VOLUMES I AND II
May 2000

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2000-08, enacted February 22, 2000.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 18
VOLUMES I AND II
December 1999

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 99-48, enacted August 24, 1999.

See the Code Comparative Table B for further information.

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SUPPLEMENT NO. 17
VOLUMES I AND II
June 1999

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 99-4, enacted January 19, 1999.

See the Code Comparative Table B for further information.

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SUPPLEMENT NO. 16
VOLUMES I AND II
December 1998

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 98-38, enacted August 18, 1998.

See the Code Comparative Table B for further information.

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SUPPLEMENT NO. 15
VOLUMES I AND II
June 1998

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 97-66, enacted December 30, 1997.

See the Code Comparative Table B for further information.

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SUPPLEMENT NO. 14
VOLUMES I AND II
March 1998

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Charter Supplement contains all amendments deemed advisable to be included at this time through:

Amendment Date of September 9, 1997.

See the Charter Comparative Table for further information.

Remove old pages	*Insert new pages*
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Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

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SUPPLEMENT NO. 13
VOLUMES I AND II
November 1997

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 97-43, enacted September 9, 1997.

See the Code Comparative Table B for further information.

Remove old pages	*Insert new pages*
	VOLUME I
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1734.3—1736	1734.3—1735
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SUPPLEMENT NO. 12
VOLUMES I AND II
April 1997

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 97-11, enacted March 18, 1997.

See the Code Comparative Table B for further information.

Remove old pages	*Insert new pages*
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SUPPLEMENT NO. 11
VOLUMES I AND II
January 1997

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 96-41, enacted October 15, 1996.

See Code Comparative Table B for further information.

Remove old pages	*Insert new pages*
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SUPPLEMENT NO. 10, REVISION
VOLUMES I AND II
July 1996

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement No. 10, Revision, is issued to correct pages appearing in Supplement No. 10 and should be inserted as directed below.

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SUPPLEMENT NO. 10
VOLUMES I AND II
June 1996

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 96-6, enacted February 13, 1996.

See the Code Comparative Table B for further information.

Remove old pages	*Insert new pages*
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SUPPLEMENT NO. 9
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CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 95-53, enacted August 22, 1995.

See the Code Comparative Table B for further information.

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SUPPLEMENT NO. 8
VOLUMES I AND II
June 1995

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 95-16, enacted March 7, 1995.

See the Code Comparative Table B for further information.

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SUPPLEMENT NO. 7
VOLUMES I AND II
December 1994

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 94-33, enacted August 9, 1994.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 6
VOLUMES I AND II
April 1994

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 94-12, enacted March 1, 1994.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 5
VOLUMES I AND II
November 1993

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 93-40, enacted September 7, 1993.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 4
VOLUMES I AND II
May 1993

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 93-14, enacted March 2, 1993.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 3
VOLUMES I AND II
September 1992

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 92-49 enacted July 28, 1992.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 2
VOLUMES I AND II
June 1992

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 92-25, enacted April 28, 1992.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
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SUPPLEMENT NO. 1, Revision
VOLUMES I AND II
March 1992

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement No.1, Revision is issued to correct pages occurring in Supplement No. 1. Please remove and insert pages as directed below.

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SUPPLEMENT NO. 1
VOLUMES I AND II
March 1992

CODE

City of

GRAND RAPIDS, MICHIGAN

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No.91-68, enacted December, 17, 1991.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
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CODE

OF THE

CITY OF

GRAND RAPIDS, MICHIGAN

VOLUME I

GENERAL ORDINANCES OF THE CITY

Published by Order of the City Commission

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of the

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Mayor

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Drew Robbins	First Ward
Milinda Ysasi	Second Ward
Lisa Knight	Second Ward
Kelsey Perdue	Third Ward
Marshall Kilgore	Third Ward

City Commissioners

Mark Washington
City Manager

Anita Hitchcock
City Attorney

Joel H. Hondorp
City Clerk

John Globensky
City Treasurer

Max Frantz
City Comptroller

PREFACE

This volume is a recodification of the 1965 Grand Rapids City Code, as supplemented by Municipal Codification Service through November 1, 1983, and thereafter by Municipal Code Corporation to include legislation through December 3, 1991.

Classification and Numbering System

This Code is arranged by title and chapter designations, with Chapters 1 through 182 classified under ten (10) titles covering various general subject categories, from Administration to Traffic. Many of the chapters are further broken down into articles, and in some cases the articles being further broken down into divisions. Many of the article and division titles have been supplied by the editor, inasmuch as such titles, like the catch-lines introducing each section, are not a substantive part of the Code (see section 1.6 of Chapter 1). The numbering system used in this Code is similar to that of the State Statutes, with each section number consisting of two (2) component parts separated by a period. The figure before the period represents the title number and the figure after the period refers to the position of the section within each title. While the section numbers do not indicate the chapter each such section is associated with, the Code Comparative Tables appearing at the back of this volume, which list the ordinances contained herein, provide both the chapter and section numbers being amended by such ordinances.

Index

The index of the Code has been prepared with the greatest of care. Each particular item has been placed under several headings, some of the headings being couched in lay phraseology, others in legal terminology, and still others in language generally used by municipal officers and employees. There are numerous cross references within the index itself which stand as guideposts to direct the user to the particular item of interest.

Looseleaf Supplements

A special feature of this Code to which the attention of the user is especially directed is the looseleaf system of binding and supplemental servicing for the Code. With this system, the Code will be kept up-to-date periodically. Upon the final passage of amendatory ordinances, they will be properly edited and the page or pages affected will be reprinted. These new pages will be distributed to holders of copies of the Code, with instructions for the manner of inserting the new pages and deleting the obsolete pages.

Successfully keeping this Code up-to-date at all times will depend largely upon the holder of the volume. As revised sheets are received, it will then become the responsibility of the holder to have the amendments inserted according to the attached instructions. It is strongly recommended by the publisher that all such amendments be inserted immediately upon receipt to avoid misplacing them and, in addition, that all deleted pages be saved and filed for historical reference purposes.

Editorial Annotations

Throughout this Code there are editorial annotations which are not a substantive part of the Code. These annotations include Editor's notes, State law references, Charter references, cross references, and history notes which are citations to the original ordinance enacting or amending a Code provision. These annotations have been added by the Editor to make the Code easier to use but, like catch-lines (See Section 1.6 of Chapter 1), they are not authoritative nor are they a substantive part of the Code.

The editor has also added a number of tables for the benefit of users of the Code. These include the Table of Contents, Code Comparative Table A, Code Comparative Table B, and the Statutory Reference Table. These editorial additions are likewise not a part of the Code and should not be construed as such.

MUNICIPAL CODE CORPORATION
Tallahassee, Florida

ADOPTING ORDINANCE

AN ORDINANCE TO RECODIFY THE CODE OF THE CITY OF GRAND RAPIDS

ORDINANCE NO. 91-58

THE PEOPLE OF THE CITY OF GRAND RAPIDS DO ORDAIN:

Section 1. That the attached 1991 recodification of the Code of the City of Grand Rapids as amended by Ordinance 91-54 and 91-55 be and is hereby adopted.

Section 2. That all prosecutions, suits, actions or proceedings commenced under the 1965 Code of the City of Grand Rapids are hereby declared to be preserved and saved in full force and effect and that it is declared to be the intention of the City of Grand Rapids that this recodification shall have no effect on any matter pending as of its effectitve date.

Carried by a roll call vote: Yeas: -7 Nays: -0

I hereby certify that the foregoing is a true transcript of the action of the City Commission of the City of Grand Rapids, Michigan, in public session held December 3, 1991.

/s/ _____

Sandra L. Wright, City Clerk

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(This checklist will be updated with the printing of each Supplement)

From our experience in publishing Looseleaf Supplements on a page-for-page substitution basis, it has become evident that through usage and supplementation many pages can be inserted and removed in error.

The following listing is included in this Code as a ready guide for the user to determine whether the Code volume properly reflects the latest printing of each page.

In the first column all page numbers are listed in sequence. The second column reflects the latest printing of the pages as they should appear in an up-to-date volume. The letters "OC" indicate the pages have not been reprinted in the Supplement Service and appear as published for the original Code. When a page has been reprinted or printed in the Supplement Service, this column reflects the identification number or Supplement Number printed on the bottom of the page.

In addition to assisting existing holders of the Code, this list may be used in compiling an up-to-date copy from the original Code and subsequent Supplements.

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SUPPLEMENT HISTORY TABLE

The table below allows users of this Code to quickly and accurately determine what ordinances have been considered for codification in each supplement. Ordinances that are of a general and permanent nature are codified in the Code and are considered "Included." Ordinances that are not of a general and permanent nature are not codified in the Code and are considered "Omitted."

In addition, by adding to this table with each supplement, users of this City Code will be able to gain a more complete picture of the Code's historical evolution.

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2010-22	5-11-10	Included	40
2010-26	5-25-10	Included	40
2010-28	6-15-10	Included	40
2010-30	6-22-10	Included	40
2010-31	6-22-10	Included	40
2010-32	6-22-10	Included	40
2010-33	6-22-10	Included	40
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2010-73	12-21-10	Included	41
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2012-36	6-19-12	Included	43
2012-47	8-28-12	Included	43
2012-50	9-11-12	Included	44
2012-58	11-13-12	Included	44
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2012-64	12-18-12	Included	44
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2013-34	7-23-13	Included	45
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2017-20	3- 7-17	Included	53
2017-21	3- 7-17	Included	53
2017-22	3- 7-17	Included	53

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
2017-23	3- 7-17	Included	53
2017-27	3-28-17	Included	53
2017-28	3-28-17	Omitted	53
2017-29	4-25-17	Included	53
2017-34	6-13-17	Included	53
2017-38	7-11-17	Omitted	53
2017-39	7-11-17	Omitted	53
2017-40	7-25-17	Omitted	53
2017-46	9-12-17	Included	54
2017-47	9-12-17	Included	54
2017-48	9-12-17	Omitted	54
2017-56	10-24-17	Included	54
2017-61	12-12-17	Included	54
2017-62	12-12-17	Omitted	54
2018-04	1-30-18	Included	54
2018-05	2- 6-18	Included	54
2018-06	2- 6-18	Included	54
2018-08	2-20-18	Omitted	54
2018-09	2-20-18	Omitted	54
2015-74	12-15-15	Included	55
2018-14	4-10-18	Omitted	55
2018-17	4-24-18	Omitted	55
2018-24	6- 5-18	Included	55
2018-25	6- 5-18	Included	55
2018-26	6- 5-18	Included	55
2018-27	6- 5-18	Included	55
2018-28	6- 5-18	Included	55
2018-29	6- 5-18	Included	55
2018-30	6- 5-18	Included	55
2018-31	6- 5-18	Omitted	55
2018-32	6- 5-18	Included	55
2018-33	6-12-18	Included	55
2018-36	7-10-18	Included	55
2018-37	7-10-18	Included	55
2018-38	7-10-18	Omitted	55
2018-39	7-10-18	Included	55
2018-40	7-10-18	Included	55
2018-41	7-10-18	Included	55
2018-44	7-24-18	Included	55
2018-45	7-24-18	Included	55
2018-46	7-24-18	Omitted	55
2018-47	7-24-18	Omitted	55
2018-48	7-24-18	Omitted	55
2018-51	8-14-18	Included	55
2018-16	4-24-18	Included	56
2018-54	9-11-18	Included	56

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2018-55	9-11-18	Omitted	56
2018-57	9-18-18	Included	56
2018-58	9-18-18	Included	56
2018-60	10- 9-18	Included	56
2018-62	10-23-18	Included	56
2018-63	10-23-18	Omitted	56
2018-64	10-23-18	Omitted	56
2018-69	12-18-18	Included	56
2018-70	12-18-18	Included	56
2019-02	1- 8-19	Included	56
2019-04	2-12-19	Omitted	56
2019-05	2-26-19	Omitted	56
2019-06	2-26-19	Omitted	56
2019-08	3-26-19	Omitted	56
2019-09	3-26-19	Included	56
2019-10	3-26-19	Included	56
2019-11	3-26-19	Included	56
2019-12	4- 9-19	Included	56
2019-13	4- 9-19	Omitted	56
2019-14	4- 9-19	Omitted	56
2019-16	4-23-19	Included	56
Amd. of	11- 7-17	Included	57
2019-21	6-11-19	Included	57
2019-22	6-11-19	Included	57
2019-23	6-11-19	Included	57
2019-24	6-11-19	Included	57
2019-25	6-11-19	Included	57
2019-26	6-11-19	Included	57
2019-27	7- 9-19	Included	57
2019-28	7- 9-19	Included	57
2019-29	7-23-19	Omitted	57
2019-30	7-23-19	Included	57
2019-31	7-23-19	Included	57
2019-32	7-23-19	Omitted	57
2019-33	8-13-19	Omitted	57
2019-34	8-13-19	Included	57
2019-35	8-13-19	Included	57
2019-36	8-27-19	Omitted	57
2019-37	8-27-19	Omitted	57
2019-38	8-27-19	Omitted	57
2019-39	8-27-19	Omitted	57
2019-40	8-27-19	Omitted	57
2019-41	8-27-19	Omitted	57
2019-42	8-27-19	Omitted	57
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2019-44	8-27-19	Included	57

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2019-45	8-27-19	Omitted	57
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2019-66	10- 8-19	Included	57
2019-70	11-12-19	Included	58
2019-71	11-19-19	Included	58
2019-72	11-19-19	Included	58
2019-74	12- 3-19	Included	58
2019-75	12- 3-19	Included	58
2020-06	2-25-20	Omitted	58
2020-07	3-17-20	Included	58
2020-08	3-17-20	Included	58
2020-11	4-14-20	Included	59
2020-13	4-28-20	Included	59
2020-18	6-16-20	Included	59
2020-20	7- 7-20	Included	59
2020-21	7- 7-20	Included	59
2020-22	7- 7-20	Omitted	59
2020-23	7- 7-20	Omitted	59
2020-25	7-21-20	Included	59
2020-27	7-21-20	Omitted	59
2020-35	8-25-20	Omitted	59
2020-36	8-25-20	Omitted	59
2020-37	8-25-20	Included	59
2020-43	9-29-20	Included	60
2020-44	9-29-20	Omitted	60
2020-47	10-13-20	Omitted	60
2020-49	10-27-20	Omitted	60
2020-50	10-27-20	Included	60
2021-03	1-26-21	Included	60
2021-04	1-26-21	Omitted	60
2021-05	1-26-21	Omitted	60
2021-08	4-27-21	Omitted	61
2021-09	4-27-21	Omitted	61
2021-10	5-11-21	Omitted	61
2021-15	6- 1-21	Omitted	61
2021-17	6-15-21	Omitted	61
2021-18	7-13-21	Omitted	61
2021-21	7-27-21	Omitted	61
2021-22	7-27-21	Included	61
2022-01	1-25-22	Omitted	62
2022-02	1-25-22	Omitted	62
2022-05	2-22-22	Included	62
2022-06	2-22-22	Omitted	62
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2022-10	4-12-22	Included	62
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2022-18	7-12-22	Omitted	63
2022-19	7-12-22	Omitted	63
2022-20	7-26-22	Included	63
2022-30	8-23-22	Included	63
2022-35	10- 4-22	Included	64
2022-36	10-18-22	Omitted	64
2022-43	11- 1-22	Omitted	64
2022-44	11- 1-22	Omitted	64
2022-51	12- 6-22	Included	64
2023-03	1-24-23	Included	64
2023-04	1-24-23	Included	64
2023-06	2-21-23	Included	64
2023-08	3-14-23	Omitted	64
2023-10	3-28-23	Omitted	64
2023-11	3-28-23	Omitted	64
2023-16	5-23-23	Included	65
2023-17	5-23-23	Omitted	65
2023-21	6-13-23	Omitted	65
2023-22	6-13-23	Included	65
2023-23	7-11-23	Omitted	65
2023-24	7-11-23	Omitted	65
2023-25	7-11-23	Omitted	65
2023-26	7-11-23	Included	65
2023-28	7-25-23	Included	65
2023-29	7-25-23	Included	65
2023-30	7-25-23	Included	65
2023-37	8- 8-23	Included	65
2023-39	8-22-23	Omitted	65
2023-40	8-22-23	Omitted	65
2023-41	8-22-23	Omitted	65
2023-42	9-19-23	Omitted	65
2023-43	9-19-23	Omitted	65
2023-44	9-19-23	Omitted	65
2023-47	10-10-23	Included	65
2023-48	10-10-23	Included	65
2023-49	10-10-23	Included	65
2024-01	1- 9-24	Included	66
2024-02	1- 9-24	Included	66
2024-03	1- 9-24	Omitted	66
2024-04	1- 9-24	Omitted	66
2024-09	2- 6-24	Included	66
2024-14	2-20-24	Omitted	66
2024-16	4- 9-24	Included	66
2024-17	4- 9-24	Included	66
2024-18	4- 9-24	Included	66
2024-21	5-21-24	Omitted	67

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
2024-27	7-16-24	Included	67
2024-20	8-23-24	Included	67
2024-28	7-16-24	Omitted	67
2024-37	9-24-24	Omitted	67
2024-38	9-24-24	Omitted	67
2024-39	9-24-24	Omitted	67
2024-40	9-24-24	Included	67
2024-43	12-17-24	Included	68
2024-44	12-17-24	Omitted	68
2025-01	1-14-25	Included	68
2025-06	3-25-25	Omitted	69
2025-07	3-25-25	Included	69
2025-09	4-29-25	Included	69
2025-14	7-29-25	Included	69
2025-15	7-29-25	Omitted	69
2025-16	7-29-25	Omitted	69
2025-18	8-12-25	Omitted	69
2025-26	8-26-25	Omitted	69
2025-27	8-26-25	Omitted	69
2025-29	8-26-25	Included	69
2025-42	11-18-25	Included	69
2025-43	12- 2-25	Omitted	69
2026-01	1-13-26	Included	70
2026-02	1-13-26	Included	70
2026-04	2-24-26	Omitted	70
2026-05	3-17-26	Included	70
2026-07	3-31-26	Omitted	70
2026-08	4-14-26	Included	70

PART 1

CHARTER*

Preamble	
Title I.	Incorporation—General Corporate Powers—City and Ward Boundaries—Election Precincts
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*Editor's note—The Charter has been included at the request of the City in Supp. No. 14. Codified herein is the Charter Passed by Vote of Electors on August 29, 1916 and amended April 1, 1918; April 7, 1919; March 3, 1920; April 4, 1921; March 1, 1922; September 12, 1922; April 2, 1923; November 6, 1923; November 6, 1928; April 1, 1929; April 7, 1930; April 6, 1931; March 7, 1932; November 8, 1932; March 5, 1934; April 2, 1934; November 6, 1934; September 15, 1936; March 7, 1938; November 8, 1938; April 1, 1940; April 2, 1945; February 21, 1949. Said Charter was compiled by R. Stanton Kilpatrick, City Clerk. See Charter Comparative Table for subsequent amendments.

PREAMBLE

1. We, the people of the City of Grand Rapids, Michigan, in order to perfect a municipal government which shall insure economical and efficient administration of city affairs; provide for the security of persons and property; promote the happiness and welfare of its people; conserve and utilize public values for public uses; encourage municipal co-operation among the cities of the State and preserve, by proper use thereof, the privilege of local self-government, subject to the Constitution and Laws of the State, do ordain and establish this Charter for the City of Grand Rapids, Michigan.

TITLE I. INCORPORATION—GENERAL CORPORATE POWERS—CITY AND WARD BOUNDARIES—ELECTION PRECINCTS

2. **Name—General Powers.** Sec. 1. The inhabitants of the City of Grand Rapids, Michigan, as its limits now are or hereafter may be established, shall continue to be a body corporate to be known as "The City of Grand Rapids", and as such shall have and may exercise all powers which now are or hereafter may be conferred upon or reserved to cities under the Constitution and Laws of the State as fully and completely as though said powers were specifically enumerated herein.

3. **City Boundaries.** Sec. 2. The City of Grand Rapids shall include all that part of the County of Kent, State of Michigan, described as follows:

> Beginning at the northwest corner of section eighteen, town seven north, range eleven west; thence east along the north of said section, one mile to the northeast corner thereof; thence south along the east line of said section eighteen, one mile to the southeast corner thereof; thence east along the north line of section twenty, town seven north, range eleven west, one-half mile to the north quarter post of said section twenty; thence south along the north and south quarter line of said section twenty, to the south line of said section; thence east on line between sections twenty and twenty-nine of said town seven north, range eleven west, one-half mile to the northeast corner of said section twenty-nine; thence south two miles along the east line of said section twenty-nine and section thirty-two of town seven north, range eleven west to the south line of said town seven north, range eleven west; thence south along the east line of section five, town six north, range eleven west, one mile to the southeast corner of said section; thence west, along the south line of section five and six of town six north, range eleven west, two miles, to the west line of said town six north, range eleven west; thence west one mile along the south line of section one, town six north, range twelve west to the southwest corner of said section one; thence north along the west line of said section one, one mile to the northwest corner thereof; thence west along the south line of section thirty-five and thirty-four produced, of town seven north, range twelve west, one and forty-five one-hundredths miles, more or less, to the center of Grand River; thence northeasterly along the center of said river to the west line of section thirty-five produced south; thence north on the west line produced north of said section thirty-five and the west line of section twenty-six, twenty-three and fourteen of town seven north, range twelve west, to the quarter post of said section fourteen; thence east along the east and west quarter line of said section fourteen, one-half mile to the center of said section; thence north along the north and south quarter lines of said section one-half mile to the north quarter post of said section; thence east along the north boundary of said section fourteen and section thirteen, town seven north, range twelve west, to the northeast corner of said section thirteen; thence north ten and fifty-six one-hundredths feet to the place of beginning, and also so much of Grand River as is embraced within the boundaries above described.

4. **Ward Divisions.** Sec. 3. The City of Grand Rapids shall be divided into three wards, as follows:

> First Ward, all that part of the City lying west of the center of Grand River; Second Ward, all that part of the City lying east of the center of Grand River and north of the center line of

Wealthy Street. Third Ward, all that part of the City lying east of the center of Grand River and south of the center line of Wealthy Street.

Within one year after the adoption of this Charter Amendment, and thereafter within one year after the official total population count of each federal census of the City of Grand Rapids is available, the City Commission shall by ordinance district and apportion the three wards of the City of Grand Rapids so the population of such wards shall be as nearly equal as possible. Such wards shall be as compact and contiguous as possible, considering natural and established boundaries and streets.
(2-21-66)

5. **Territory Annexed to Become Part of Contiguous Ward.** Sec. 4. Whenever territory shall be annexed to the City of Grand Rapids the City Commission shall by ordinance or resolution declare the same to be a part of the contiguous ward or wards as the case may be, and shall take all steps necessary to confer upon the inhabitants of such territory, all rights and privileges enjoyed by the inhabitants of said City.

6. **Election Precincts.** Sec. 5. (a). The City Commission shall by ordinance from time to time establish convenient election precincts in each ward. Until otherwise ordered, the precinct boundaries shall continue as now established.

(b) Upon the adoption of this Charter and until otherwise fixed by ordinance, the several precincts shall be known as follows: (See the ordinance adopted pursuant to this section by which the city is divided into 99 precincts.)

TITLE II. CITY OFFICERS AND DEPARTMENTS

7. **Offices and Departments Established; Powers of.** Sec. 1. (a) There is hereby established for the government of the City of Grand Rapids, a City Commission of seven members, one member of which shall be Mayor. There is also hereby established a Library Commission of seven members; an Art and Museum Commission of five members; a Civil Service Board of five members; an Auditing Department of which the City Comptroller shall be the head; a Taxation Department of which the City Assessor shall be the head; a Finance Department of which the City Treasurer shall be the head; a Department of Law of which the City Attorney shall be the head; a Department of Public Service, a Department of Public Safety, a Department of Public Welfare, and a Purchasing Department, of which four last named departments the City Manager shall be the head; a Board of Review of five members who are taxpayers to the City and have been residents of the City for not less than five years; and a body of seven members to be known as the Trustees of the Sinking Fund. The foregoing named Commissioners, boards, departments and trustees, the Board of Education, the Superior Court, the Municipal Court of Grand Rapids, and the Police Court of Grand Rapids, together with their several members, officials, employees, and the persons elected to serve therein, and the persons elected to represent the City upon the Board of Supervisors of this county, and the several constables elected in the said City, shall constitute the entire governing force thereof.

(b) The powers vested in the City by this Charter and the laws of the State, except powers reserved to the people or the electorate are hereby vested in the several commissioners, boards, departments, trustees, courts, and persons above named.
(3-5-34; 4-1-40; 2-21-49; 9-10-91)

8. **Elective Officers.** Sec. 2. The following officers shall be elected by the qualified electors of the City, hold office, possess the qualifications, have the powers and perform the duties as provided in this Charter and in the laws of the State, viz: One City Commissioner to be nominated and elected by the City at large, who shall be Mayor; two City Commissioners from each ward to be nominated and elected by their respective wards; such Judges of the Municipal and Police Courts as shall be provided by law; one City Comptroller; and seven Library Commissioners.

There shall also be four Supervisors nominated and elected from and by each ward, and such other officers as may be required by law. The City Commissioners, Supervisors and City Comptrol-

ler elected in 1965 shall hold office for a term of three years. Thereafter, the City Commissioners, Supervisors, and City Comptroller shall be elected and hold office for the term of four years.
(4-2-23; 9-1-64; 9-10-91)

9. **Officers Elected by City Commission.** Sec. 3. The City Commission shall elect the President of the City Commission, one City Manager, one City Attorney, one City Clerk, and one City Treasurer.
(4-2-23; 2-21-49)

9.1. **Eligibility to Elective City Office.** Sec. 4. A candidate for any elective office of the City shall be a resident of the City for six months or more immediately prior to the last day for filing petitions for office and shall be a registered and qualified elector of the City at the time of filing petitions for office. An appointee to any vacancy in any elective office of the City shall be a resident of the City for six months or more immediately prior to the date of appointment, and shall be a registered and qualified elector of the City at the time of appointment.
(4-4-66)

9.2. **Term Limitations.** Sec. 5. No person shall be eligible for election as a City Commissioner of any Ward if that person has served as a City Commissioner of any Ward for two terms. No person shall be eligible for election as Mayor if that person has served as Mayor for two terms. A person is eligible to be a Ward City Commissioner for two terms and an additional two terms as the Mayor. Serving more than two years of a term to which some other person was elected shall be considered a term. This section only applies to the positions of Ward City Commissioner and of Mayor.
(11-4-14, § 1)

TITLE III. REGISTRATION—NOMINATIONS—ELECTIONS

10. **State Laws to Govern—Party Procedure not to apply—Residence of Electors.** Sec. 1. The registration of voters, nominations and elections held under this Charter, shall be in accordance with the general laws of the state except as herein otherwise provided. Nothing in the laws of the state applying to party registration, enrollment or any other party procedure shall apply to registrations, nominations or elections held hereunder. The residence of an elector shall be in the election precinct in which is located his regular place of lodging.

11. **Board of Registration—Time and place of meeting.** Sec. 2. The City Commission shall appoint two electors from each precinct who shall constitute the Board of Registration in their respective precincts. Such boards shall be in session at the places designated by the City Commission from 6 o'clock in the forenoon until 8 o'clock in the afternoon of each registration day.

12. **General Registration—Notice of Registration.** Sec. 3. There shall be a general registration of the electors in the year 1916, in time for the general fall election. There shall also be a general registration of the electors every fourth year thereafter and at such other times as the city commission may designate.

The City Clerk shall give notice of such registration and provide the necessary books or registers and supplies therefor.

13. **Time of holding Primary Election.** Sec. 4. A non-partisan primary election for the purpose of nominating such officers of the City as this Charter provides, shall be held in each ward on the day fixed by the general laws of the state for the nomination of candidates for county officers to be chosen at the spring election.

14. **Nominating Petition.** Sec. 5. The name of any eligible elector shall be placed upon the primary ballot if, before five o'clock in the afternoon of the thirty-fifth day before the primary election day, there shall be filed in his behalf in the office of the City Clerk, a petition duly verified, as hereinafter provided, and signed with indelible pencil or with ink, by not less than fifty nor more than one hundred duly registered and qualified electors, of the electoral district from which the candidate seeks election, and who were so registered not less than 42 days prior to the date of the primary election.

Such petition shall be in substantially the following form:

We, the undersigned, registered, and qualified electors of the City of Grand Rapids, Kent County, Michigan, respectfully petition and request the name _____ an elector of the City of Grand Rapids, residing at _____ be placed upon the ballot to be prepared for use at the next non-partisan primary election as a candidate for _____ (name office) _____ Name _____ Address _____ Ward _____ Precinct _____ Date _____.

Such petition shall be verified by the person circulating the same, which verification shall state that such signatures were obtained by the person so verifying the petition: that they are the signatures of the persons purporting to sign the same and that each of them signed in his presence and that the person verifying such petition has good reason to believe and does believe that the signers obtained thereto are duly qualified and registered electors of such electoral district, and were so registered forty-two days prior to the primary election day, and are the identical persons their signatures purport them to be.

No person shall subscribe to a verification which is false in any material particular; no person shall take the oath of another to such petition not knowing him to be the identical person he represents himself to be or knowing that the petition is false or fraudulent in any particular; nor shall any person sign another person's name to any such petition.

Said petitions shall be public records and subject to inspection, but only in the presence and upon the authority of the City Clerk or a duly authorized member of his staff.

Such petition shall not be valid unless circulated by a person who is a duly qualified and registered elector of the electoral district from which the candidate on said petition seeks election.

If any elector shall sign more than one petition for the same office, his signature shall be void on all petitions for that office.

Where such petition is filed by a person or persons other than the candidate named therein, it shall be valid only if accompanied by the verified written consent of the candidate authorizing such filing.

Upon receipt of any such petitions, the City Clerk shall check or spot check the signatures on such petitions with the registration record of the City, or in some other proper manner, determine whether such signers are duly qualified and registered electors as herein provided. If, upon examination and investigation, it shall be found that the petition contains spurious signatures or false affidavits, he shall report such fact to the City Commission and no further action upon such petition shall be had.
(3-5-34; 4-1-40; 2-21-66)

15. **Non-Partisan Election.** Sec. 6.

a. All elections held under this Charter shall be non-partisan.

b. All elections held under this Charter shall be in accordance with the general laws of the state, including the Michigan Election Law, MCL 168.1 et seq., as amended from time to time.

c. The City's regular elections shall occur on even-numbered years, as provided for in the Michigan Election Law, MCL 168.642 and MCL 168.642a(4). The City elections under this Charter currently scheduled to occur in 2021 shall occur in 2022, and all elections held thereafter under this Charter shall be held in even-numbered years.

d. Pursuant to this section, the election of members of the Board of Library Commissioners shall occur in even-numbered years, and this section shall override the requirements set forth in Title XIII, Section 3 of this Charter.

e. Special elections shall be held for such purposes as the City Commission may prescribe but may only be held on the dates specifically permitted by the

Michigan Election Law, specifically MCL 168.641(1), as amended from time to time.
(11-20-20)

16. **Notice of Election.** Sec. 7. The City Clerk under the direction of the City Commission shall give notice by publication, at least twice, in a daily newspaper printed and circulated in the City of Grand Rapids; the first notice to be not less than five nor more than ten days immediately preceding any election, of the time and place of holding of said election, the offices to be filled, a list of the names of all candidates therefor, and the measures, if any, to be submitted. The substance of each measure shall be clearly and fairly stated in the notice. Notice may also be published in such additional daily newspaper or newspapers as the City Commission shall, by resolution, determine.
(11-8-38)

17. **Voting Places—Inspectors of Election.** Sec. 8. At least twenty days prior to any election, the City Commission shall designate one place of voting in each precinct and shall appoint and fix the compensation of the inspectors of election. The City Commission shall have the authority to reduce the number of inspectors for any city election.

18. **Opening and Closing of Polls.** Sec. 9. At all elections the polls shall be opened at 7 o'clock in the forenoon and shall be continued open until 8 o'clock in the afternoon and no longer.
(4-1-40)

19. **Ballot—Preparation of.** Sec. 10. It shall be the duty of the City Clerk to cause to be made out ready for delivery forty-eight hours before the time fixed by law for the opening of the polls, all necessary books, blanks and lists required by the general laws of the state or by this Charter for holding elections, and as many ballots as there are registered voters in each election precinct. It shall be the duty of the inspector first named of each election precinct in the city, or other inspector designated by him, to appear in the office of the City Clerk not more than forty-eight hours before the hour of opening the polls and the City Clerk shall deliver to him in a sealed package the ballots and other material provided for his precinct. The necessary number of ballots shall be wrapped and tied in packages and securely sealed with wax and the City Clerk shall certify to the number of ballots in each package and upon delivery of such package and certificate, the said inspector shall receipt for the same. For the safe sealing of such ballots the City Clerk shall provide himself with a seal of such design as he may deem proper. The said package shall not be opened until delivered to the Board of Election Inspectors of the respective election precincts to which they were directed, nor until said board shall be fully organized and ready for the reception of votes.

20. **Ballots—Form of.** Sec. 11. (a). The City Clerk shall cause all election ballots to be printed, but proof thereof shall be open to inspection at his office for at least two full secular days before the ballots are printed. He shall give written notice to every candidate of the time when such proof may be seen and shall correct any errors that may appear. Ballots shall be uniform in each election district except as to number, and shall contain only:

(a) The title of the election,

(b) The words "To vote for a person mark (X) in the square at the left of his name."

(c) The names of the offices in a single column,

(d) Statement of number to be voted for under each office,

(e) The names of all candidates, which shall be printed in type of the same size and style,

(f) A square at the left of each name,

(g) The number of the ballot.

(b). The forms shall be set up with the names of the candidates for each office arranged in alphabetical order according to surnames. In printing each set of ballots for the several election precincts, the positions of the names shall be changed in each office division as many times as there are candidates in the office division where there are most names. As nearly as possible an equal number of ballots shall be

printed after the change. In making the changes of position, the printer shall take the line of type at the head of each office division and place it at the bottom of the division and shove up the column so that the name that before was second shall be first after the change, and so arrange the ballots that every alternate ballot shall have the names in a different position.

21. **Special questions—How Printed.** Sec. 12. All special questions to be voted upon at any election shall be printed upon a single ballot entitled "Special Ballot." The substance of each proposal shall be separately, clearly, and fairly stated under an appropriate title, as the City Commission may determine. Below each proposal in separate lines, shall be the words "yes" and "no" each followed by a square. The elector shall vote by placing (X) in one of the squares.

22. **Instruction Ballots.** Sec. 13. At least five days before any election the City Clerk shall cause to be printed for general distribution such number of instruction ballots as the City Commission may direct, upon paper of different color than the regular ballot and plainly marked "Instruction Ballot."

23. **Votes—Counted and Returned.** Sec. 14. Immediately after the closing of the polls the inspectors of election shall then and there, without removing the ballot box from the voting place, proceed to count the ballots cast, and not more than two hours after the completion thereof shall certify and make return thereof to the City Clerk. The City Commission shall designate two of its members, not candidates for office at such election, who together with the City Clerk shall receive the returns as filed and tabulate them forthwith.

24. **Who Nominated and Elected.** Sec. 15. (a). In all primary elections held to fill a single office, the two candidates for each office receiving the highest number of votes shall be nominated to proceed to the general election. At the general election the candidate for office receiving the highest number of votes shall be thereby elected.

(b). In all primary elections held where several offices designated by the same name are to be filled at the same election, then the candidates receiving the highest number of votes shall be nominated to proceed to the general election. However, only such candidates not to exceed double the number of offices to be filled shall be nominated to proceed to the general election. At the general election the candidates for each office receiving the highest number of votes shall be thereby elected.
(11-20-20)

25. **Board of Canvassers.** Sec. 16. The City Commission shall be the Board of Canvassers for all elections. On the first Thursday after any election, the City Commission shall meet at 7 o'clock P. M. and proceed to canvass the returns of such election and shall thereupon declare the result. In case of a tie vote for any office, the City Commission shall decide by lot which of the persons who are tied, shall be nominated or elected as the case may be. A statement of such canvass shall be made out and signed by the Mayor and filed with the City Clerk, who shall within three days thereafter make out and cause to be delivered to each person so nominated or elected, a certificate of such nomination or election as the case may be.

26. **Contested Elections.** Sec. 17. All cases of contested elections for municipal offices shall be decided by the City Commission as nearly as may be in accordance with the laws of the State regulating proceedings in cases of contested elections for State offices.

27. **Campaign contributions—Persons disqualified from making.** Sec. 18. No corporation and no officer of any corporation interested either directly or indirectly in any license or contract then pending or in contemplation before the City Commission or any department of the City, and no officer or agent of any public service corporation holding franchises in the City shall either directly or indirectly contribute any money or other valuable thing to the campaign fund of any candidate for office at any primary or other election held under this Charter.

28. **Services and expenses—What Prohibited and what allowed.** Sec. 19. No person shall perform or agree to perform any service in the interest of any candidate for any office provided in this Charter in consideration

of any money or other valuable thing; but the bona fide payment by any candidate or other person for the fair and reasonable cost of printing, advertising, office maintenance and the reasonable and bona fide expenses of holding public meetings and of distributing literature shall not be in contravention of this Charter.

29. **Acts to Influence Electors Prohibited.** Sec. 20. No person, firm or corporation shall give, offer to give, or promise any money or other consideration to any elector, or to any person, for the use of any elector, for the purpose of influencing the vote of any elector at any election provided for in this Charter, or to or for any elector for the purpose of securing support for any candidate at such election.

30. **Promise of public office prohibited.** Sec. 21. No person nominated for or holding any office in the government of the City, and no person while seeking a nomination for or appointment to any such office, shall use or promise to use either directly or indirectly any official authority or influence, whether then possessed or merely anticipated, in the way of conferring upon any person or in order to secure or aid any person in securing any office or public employment in any position under this Charter, or any nomination, promotion, increase of salary, or other preferment upon the consideration, condition, or understanding that the vote, influence or action of such person shall be given or used in behalf of any candidate, officer or party or upon any other consideration or condition.

31. **Political activity by public officials and employees prohibited.** Sec. 22. No employee or officer of the City shall be an employee or officer of any partisan campaign committee, nor shall he be an employee or officer of any campaign committee in behalf of any candidate for public office other than himself. No employee or officer of the

City shall circulate or solicit signatures to any petition mentioned in this title except his own, nor shall he solicit endorsement for any candidate for public office other than himself.

32. **Notice To Voters of Election and Measures.** Sec. 23. The City Commission may, not less than seven days before any city election at which any special measure is to be voted upon, direct a notice thereof to be mailed to every registered voter, which notice when so mailed shall include a copy of each such measures to be voted upon.
(4-1-18; 3-5-34)

33. **Place for Public Meetings to be Provided.** Sec. 24. The City Commission shall provide or cause to be provided at public expense convenient places throughout the City where public meetings may be held for at least the last twenty days preceding any City election. As far as possible the public school buildings and other public buildings sustained by taxation shall be used for such purposes. The City Commission shall regulate the use of such places or buildings by ordinance, so that the respective candidates and the persons advocating or opposing any policy or measure shall have equal privilege to the use of such places without expense.

34. **Term "Elections" to Include Primaries.** Sec. 25. The term "elections" and "election" as used in this Charter shall be construed to include primary elections and all provisions of this Charter in regard to elections shall apply to primary elections.

TITLE IV. INITIATIVE—REFERENDUM—RECALL

Initiative

35. **Initiatory Petitions—Requirements of.** Sec. 1. Any proposed ordinance may be submitted to the City Commission by petition or petitions filed with the City Clerk and signed in ink or indelible pencil by not less than twelve per cent of the registered voters of the City entitled to vote for municipal officers, and verified by the person or persons who obtained the signatures thereto. Such verification shall state that the said signatures were obtained by the person or persons verifying the same, that the said signatures are the genuine signatures of the persons purporting to sign same, and that the person or persons verifying such petition verily believes that the signers thereof are duly qualified electors of the City. Said petition shall give the residence of each of said electors signing the same by street and number, ward and precinct.

36. **Initiatory Petitions—How Acted on.** Sec. 2. Said initiatory petition shall contain said proposed ordinance in full and a request that, if such proposed ordinance be not passed by the City Commission, the same shall be submitted to a vote of the people. Upon filing said petition, the City Clerk shall at once ascertain and certify its number of qualified signers. If such certificate shows the required number of qualified signers, the City Commission within twenty days thereafter, shall either:

(a) Pass said proposed ordinance without alteration, subject to the referendum vote provided in this title, or

(b) Call a special election, unless a general or special election is to be held within six months thereafter, and at such general or special election such proposed ordinance shall be submitted without alteration.

Referendum

37. **Petition for—Requirements of.** Sec. 3. If within thirty days after the approval of any ordinance, other than appropriation or emergency measures adopted by the City Commission, a petition shall be filed with the City Clerk protesting against such ordinance taking effect, and signed in ink or indelible pencil by not less than twelve per cent of the registered voters of the City entitled to vote for municipal officers, and verified as required in Section 1 hereof, and certified by the City Clerk as required in this title, the same shall thereupon be suspended from taking effect; and it shall be the duty of the City Commission at its next regular session to reconsider such ordinance and act thereon by yea and nay vote; and if the same be not entirely repealed, the City Commission shall submit such ordinance by the method provided in this title to a vote of the qualified

electors of the City, either at the next regular municipal election or at a special election which may be called for that purpose at the discretion of the City Commission; and such ordinance shall not take effect unless a majority of the qualified electors voting thereon at such election shall vote in favor thereof.

38. **Inconsistent Provisions and Ordinances—which to Prevail.** Sec. 4. If the provisions of two or more ordinances or measures adopted or approved at the same election be inconsistent, then the ordinance or measure receiving the highest affirmative vote shall prevail in so far as it or its provisions are inconsistent with the other ordinance or ordinances adopted or approved.

39. **Repeal or Amendment of Ordinance.** Sec. 5. An ordinance proposed by petition and adopted by vote of the electors as herein provided shall not be repealed or amended except by submission to, and by a majority vote of, the electors voting thereon.
(11-6-34)

Recall

40. **Who Subject to.** Sec. 6. Every officer of the City of Grand Rapids, elected by the people, except judges of courts of record and courts of like jurisdiction, is subject to recall by the legal voters of the City or of the electoral district in which he is elected as hereinafter provided.

41. **Petition for—Where Filed.** Sec. 7. The petition demanding the recall of any elective City official except Mayor, shall be filed with the Mayor. The petition demanding the recall of Mayor shall be filed with the City Clerk.

42. **Signatures on Petition—Percentage.** Sec. 8. The petition shall be signed by at least twenty-five per centum of the number of electors who voted for Governor at the last preceding election in the electoral district of the official sought to be recalled; said petition or part thereof shall be printed or typewritten and shall state clearly the reason or reasons for said demand. The signatures thereto shall be in ink, or indelible pencil and shall state the ward, precinct and street number in which said petitioner lives. The circulator of said petition or his part thereof, shall attach thereto his affidavit that said signatures are the same signatures of qualified electors; that they are genuine and made in good faith for the purpose set forth in said petition.

43. **When not to be Instituted.** Sec. 9. No recall petition shall be circulated against any officer until he has actually performed the duties of his office for a period of forty-five days for a legislative office, and for three months for any other office.

44. **Special Election.** Sec. 10. Whenever a petition signed by twenty-five per cent or more of the electors designated in Section 8 of this title, is filed against any officer, a special election shall within five days thereafter be called, to be held within twenty days in his said electoral district to determine whether the people shall recall said officer, but said officer shall continue to perform the duties of his office until the result of said special election is declared.

45. **Ballot—Form of.** Sec. 11. The recall ballot shall have printed thereon, in not more than two hundred words, the reason or reasons for demanding the recall of said officer as set forth in said petition, and in not more than two hundred words the officer's justification of his course in office. There shall be printed on the recall ballot the following questions:

"Shall (name of the person against whom the recall petition is filed) be called from the office of (title of the office) Yes ( ).

"Shall (name of the person against whom the recall petition is filed) be called from the office of (title of the office) No ( ).

46. **Office—When Deemed Vacant.** Sec. 12. If upon the canvass of the votes cast upon the question of the recall of said officer, a majority of the voters voting shall decide in favor of such recall, said office shall be deemed to be vacant and a special election shall be called within five days to be held within thirty days for the filling of such vacancy: Provided, that the officer so recalled shall continue to perform the duties of his office until his successor shall have been elected and qualified.

47. **Candidate—How to Become.** Sec. 13. Unless he shall voluntarily withdraw, the officer so recalled shall be considered a candidate for re-election to said office. Other candidates for the office may be nominated and voted for at said special election by filing with the officer with whom the recall petition has been filed, a petition within fifteen days after said special election is called, signed by not less than three per centum of the qualified electors of the electoral district.

48. **Candidate Elected—Term of Office.** Sec. 14. The candidate who has received the highest number of votes for the vacancy created by such recall shall be considered duly elected for the remainder of the term.

49. **Second Recall Conditions.** Sec. 15. After such special election no further recall petitions shall be filed against the same incumbent of such office during the term for which he is elected unless such further petitioners shall first pay into the city treasury, the whole amount of election expenses for the preceding special election held for the recall of said incumbent.

50. **General Regulations.** Sec. 16. The City Commission shall make by ordinance such regulations not in conflict herewith as may be necessary to execute the provisions of this title.

TITLE V. CITY COMMISSION

51. **Legislative and Administrative Powers.** Sec. 1 (a). The Legislative and administrative powers of the City are hereby vested in the City Commission, which is authorized to pass all laws and ordinances relating to its municipal concerns, subject to the Constitution and General Laws of the State and this Charter.

(b). The City Commission shall have all the powers, and perform all the duties imposed upon City Councils or Common Councils by the General Laws of the State and the City Commissioners shall have the powers and perform all the duties imposed upon Aldermen or Councilmen by the General Laws of the State.

52. **Ordinances and Regulations.** Sec. 2. Without intending to limit or curtail the power in this Charter otherwise vested in the City Commission, it is hereby vested with the following powers:

(a). To pass all ordinances and regulations of every character to secure the public peace, health, safety, welfare and convenience, to regulate and license trades, occupations, businesses and amusements, and to exclude or restrict heavy traffic, the erection of business houses and the establishment of trades in residence districts within the City.

Violations of Ordinances. (b). To provide for the punishment of those who violate the ordinances, but no punishment shall exceed a fine of $500 or imprisonment for 90 days in the county jail or house of correction, or in any work house authorized by law to receive prisoners from the City, or by both such fine and imprisonment in the discretion of the Court.

53. **Municipal Co-operation.** Sec. 3. The City Commission and City Manager shall seek to bring about co-operation among and between the Cities of Michigan in whatever way may seem best for the purposes:

(a). Of securing a uniform system of accounting among said cities so that intelligent comparison may be made, and so that each city may profit by the experience of all.

(b). Of enabling said cities to work out plans for co-operative buying at wholesale rates.

(c). Of promoting the prosperity, welfare and happiness of the citizens and taxpayers.

54. **Officers—Qualifications—Rules.** Sec. 4. The City Commission shall annually organize by the election of one of its members as President, and shall also choose its officers. It shall be the judge of the election and qualifications of its members and shall determine the rules of its procedure.
(4-2-23; 4-4-66)

55. **Meetings.** Sec. 5. The City Commission shall meet in regular session twice each calendar month at such times as it may prescribe by ordinance; provided, however, that at least one

regular meeting each calendar month shall be held in the evening. Special meetings may be called by any two members upon at least twelve hours notice to each member. Such notice shall either be in writing and served personally, left at the Commissioner's usual place of residence, or transmitted electronically, or such notice shall be telephonically served either personally or via recorded message at the Commissioner's usual residence or mobile phone number. All meetings of the City Commission, and notices thereof, shall comply with the Open Meetings Act, Act 267 P.A. 1976, as amended, MCL 15.261 et seq.
(2-19-62; 8-8-06)

56. **Proceedings—Records.** Sec. 6. The City Commission shall keep a written or printed journal of its proceedings, which shall be a public record and which shall be published in full or in summary form, once in an official newspaper of the City and in pamphlet form to be furnished free to all persons applying therefor. The yeas and nays of the members on any vote or question shall be entered on the journal on the request of one (1) member. All votes on appointments, franchises and on every amendment and section therefor, shall be taken by yeas and nays recorded in the journal.
(6-11-79)

57. **Legislation—How Originated—Style.** Sec. 7. All legislation shall be by ordinance and may originate either in the City Commission or through initiatory petition; provided, that proceedings relative to the initiation and the carrying on of special improvements may be by resolution. The style of all ordinances shall be: "The People of the City of Grand Rapids do ordain."
(4-7-19)

58. **Majority Vote to Pass Ordinance.** Sec. 8. (a). No ordinances, except such as are passed by the electors under the provisions of Title IV shall become effective without the concurrence of a majority of the Commission elected. On the final passage a yea and a nay vote shall be taken and entered in the journal.

Repeal of Ordinance. (b). No ordinance passed by the City Commission shall be repealed, altered or suspended except by an ordinance passed in the same manner as an enacting ordinance.

One Subject—Title. (c). No ordinance shall embrace more than one subject, which shall be expressed in its title, and no ordinance shall be revised or amended by reference to its title only.

59. **When Ordinance in Force.** Sec. 9. No ordinance shall be in force until the expiration of thirty days from the date of its passage; Provided, that earlier effect may be given by a two-thirds vote of the City Commission to appropriation measures, to measures mentioned in Section 16 of this Title, or to acts immediately necessary for the preservation of public health, peace, or safety.

60. **Publication of Ordinances.** Sec. 10. Ordinances not to be in force until the expiration of thirty days from date of passage shall be published at least two weeks before becoming operative. Ordinances given effect within thirty days shall be published once as soon as practicable and at least one day before becoming operative. Such publication shall be by either of the following two methods:

(a). The full text thereof may be published with the journal of the proceedings of the City Commission in the official newspaper; or

(b). In cases of ordinances over 400 words in length, exclusive of title, a digest or summary of the ordinance, approved by the City Commission, may be published in the official paper, including with such newspaper publication, a notice that printed copies of the full text of the ordinance are available for inspection and distribution to the public at the office of the City Clerk. Such printed copies shall be promptly so made available. If method (b) is used, notwithstanding any other provision of this Charter, the full text of the ordinance need not be published in the official paper or printed in the proceedings, but publication of the digest or summary of the ordinance, as approved by the City Commission, shall suffice.
(2-20-61)

61. **Passage of Ordinances.** Sec. 11. No ordinances, unless immediately necessary for the preservation of public health, peace, or safety, shall be passed at the session at which first presented, nor until seven days after the same shall have been published in the official paper.

62. **Private Detective Agencies.** Sec. 12. The City Commission shall, by ordinances, provide for the licensing, bonding and regulating of private detectives and private detective agencies.

63. **Power to Administer Oaths.** Sec. 13. The Mayor, the President, the City Clerk and the Chairman of any general or special committee of the City Commission shall have power to administer oaths to persons testifying in respect to any matter pending before the City Commission or Committee and to persons subscribing affidavits in respect to any such matter.

64. **False Affidavits—Punishment.** Sec. 14. Any person taking any such oath who shall, in any statement or affidavit or otherwise, wilfully swear falsely as to any material fact shall be punished as by ordinance prescribed.

65. **Defective Tax Procedure—Re-assessment.** Sec. 15. In the event of the failure of any tax or special assessment through defective procedure of any assessment, collection or sale, the City Commission may provide for its re-assessment upon the property chargeable therewith in the first instance.

66. **Collection of Specific Taxes—License Fees, Rents, etc.** Sec. 16. The City Commission may provide for the levying and collection of specific taxes, tolls, excises and license fees; Provided, that the same shall be uniform upon the classes upon which they operate, and may also provide for the collection of rents.

67. **Taxing Ordinances.** Sec. 17. Every taxing ordinance shall state the tax and object to which it is to be applied.

68. **Estimate of Expenditures—Submitted by City Manager.** Sec. 18. On or before the first Tuesday in April of each year, and before any monies shall be raised, or taxes levied and collected, for the purposes of the several funds and appropriations authorized by the provisions of this act, or acts amendatory thereof, the City Manager shall submit to the City Commission an estimate of the expenditures of the City for the ensuing fiscal year. Such estimate shall be compiled from and based upon detailed information furnished by the various departments of the city government requiring appropriations, and shall be upon uniform blanks to be prepared by the City Comptroller. They shall give in parallel columns the following information:

(a). A detailed estimate of the expense of conducting each department.

(b). Expenditures for and revenue derived from corresponding items for the last two fiscal years.

(c). Increase or decrease as compared with appropriations for corresponding items for the last fiscal year.

(d). The recommendation of the City Manager as to the amount to be appropriated.

(e). On or before the second Monday in May of each year, the City Commission shall provide by ordinance for a budget and for the levy of taxes sufficient with other resources to pay the estimated expenses of the city government for the ensuing fiscal year, the contingent fund requirements, and the maintenance of all sinking funds and the principal of and interest on all municipal debts, bonded or otherwise. The City Commission is authorized to levy and collect taxes annually in a sum up to and including 1 per centum of the assessed valuation of all real and personal property in the City, subject to the provisions of Section 1a of Chapter VII of Act No. 202 of the Public Acts of 1943, as amended. Provided, that commencing July 1, 1995, said 1 per centum shall become $\frac{84,148}{100,000ths}$ of 1 per centum (8.41 mills) for any year that the Uniform City Income Tax Ordinance, as provided for by Act 284 of the Public Acts of 1964, as amended, is in effect in the City; and, provided further, that from and after July 1, 1989 the millage limitation shall be $\frac{64,100}{100,000ths}$ of 1 per centum (6.41 mills) during any year that the Uniform City Income Tax Ordinance as provided for by Act 284 of the Public Acts of 1964, as amended, is in effect in the City at a rate greater than 1% on corporations and resident individuals and .5% on non-resident individuals. Provided further that the City Commission shall allocate $\frac{215}{1,000ths}$ of 1 per centum (2.15 mills) for the operation and maintenance of the Library and that this alloca-

tion shall be inclusive of the 2/5 mill provided for the maintenance and running of the Library in Title XIII, Section 10 of this Charter.

(1) In addition to any millage levied pursuant to the above Section 18(e), and not limited thereby, the City Commission is authorized to levy and collect taxes annually in a sum up to and including $\frac{39.5}{1{,}000\text{ths}}$ of 1 per centum (.395 mills) of the assessed valuation of all real and personal property in the City, for a period of twenty years, commencing July 1, 1998 through July, 1, 2017, to be allocated to and used for capital improvements for the Grand Rapids Public Library.

(2) In addition to any millage levied pursuant to the above Section 18(e), and not limited thereby, the City Commission is authorized to levy and collect taxes annually in a sum up to and including $\frac{98}{1{,}000\text{ths}}$ of 1 per centum (.98 mills), for a period of seven years, commencing January 1, 2014 through December 31, 2020, to be allocated to and used for parks, pools, and playgrounds.

(3) In addition to any millage levied pursuant to the above Section 18(e), and not limited thereby, the City Commission is authorized to levy 0.3741 mills (one mill equals a levy of $1.00 for each $1,000 of taxable value) for twenty years, 2018 through 2037, to be used for operations, maintenance, repairs and capital improvements of the Public Library which will raise an estimated $1,750,000 in the first year.

(f). Such budget ordinance shall contain the several items for which appropriations are to be made, as follows:

(a) The Sinking Fund,

(b) Departmental Appropriations,

(c) The Contingent Fund,

(d) Not less than 32% of the General Operating Fund shall be appropriated for police services while both a City Income Tax of 1.3% or more is in effect for corporations and resident individuals and a City Income Tax of .65% or more is in effect for non-resident individuals.

Money Used Only for Purposes Designated. (g). The monies so provided by such budget ordinance, except the monies provided for the contingent fund, shall not be used by transfer or otherwise, for any purpose other than that for which such appropriations were designated and raised; Provided, that the City Commission may authorize the transfer of operation and maintenance items, appropriated to the same department, but monies appropriated for permanent improvements or for purposes other than operation and maintenance shall be used only for the purposes designated in the budget ordinance.

Emergency Provisions. (h). The City Commission is authorized to expend, or transfer from the contingent fund such sums as may be necessary for the relief of the inhabitants or the preservation of public property in case of fire, flood, epidemic or other calamity or for other necessary purposes for which no specific appropriation is made in the budget ordinance.

Sec. 19. Repealed April 1, 1918.
(11-6-34; 8-2-60; 6-18-63; 2-20-67; 6-12-89; 11-2-93; 8-2-94; 3-28-95; 9-9-97; 11-5-13; 11-7-17)

69. **Expenditure of Monies—Vote Required.** Sec. 20. No monies shall be paid out of the City Treasury except in pursuance of appropriations made by law and with the affirmative vote of a majority of the members of the City Commission; Provided, that unless a claim for indebtedness incurred by the City shall have been approved by the City Comptroller, the City Commission shall not order its payment except by the affirmative vote of five of its members. No monies shall be transferred from one fund to another except from the contingent fund after being once appropriated or set apart into a definite fund.

70. **Credit of City.** Sec. 21. The credit of the City shall not be granted to nor in aid of any person, association, or private corporation, nor shall the city subscribe to or be financially interested in any company, corporation or associa-

tion, except where the same is by this Charter or General Laws or by any existing special act made one of its municipal departments.

71. **Unanimous Vote to Rescind or Alter Contract.** Sec. 22. The City Commission shall not rescind or alter any contracts with the City, except franchise grants nor release the principals or sureties from the performance of any of the obligations thereof, except by unanimous vote.

72. **Holding Other Offices Prohibited.** Sec. 23. No member of the City Commission shall accept any civil appointment, except that of Notary Public, during the term for which elected nor shall any City official become a candidate for any office other than a City office while holding any other office under the City. No person holding any other office under City or County Government shall be eligible to or have a seat in the City Commission and all votes given for any such person shall be void.

73. **Removal of Officers or Employees.** Sec. 24. (a). Any officer or employee of the City, except judges, justices of the peace or those whose removal is otherwise provided for under this Charter, may be removed by the City Commission for official misconduct or for unfaithful or improper performance of the duties of his office or employment or for ineligibility.

Proceedings for Removal. (b). The proceedings for such removal shall be entered in the record of the City Commission. A copy of the charges against such officer or employee and

notice of the time and place of hearing same shall be served on him at least ten days previous to the date assigned for hearing. If personal service cannot be had, the same shall be left at his place of residence within the City, with some suitable person of proper age, or other substituted service may be had. Opportunity shall be given him to make his defense thereto. A majority vote of the City Commission elected, shall be necessary to remove such officer or employee.

74. **Members Board of Supervisors.** Sec. 25. The entire City Commission, the City Treasury, the City Comptroller, the Senior Assessor, the City Manager, the City Attorney, and twelve Supervisors, four to be elected from and by each Ward, shall be representatives of the City upon the Board of Supervisors of the County of Kent and such representatives shall possess all the powers and be subject to all the duties of individual supervisors under the laws of the State not inconsistent with this Charter and not delegated to other officers.
(2-21-49)

75. **Limitations of Authority to Create Indebtedness.** Sec. 26. Except as herein otherwise provided, it shall not be lawful for the City Commission to borrow money or authorize the creation of any liability or indebtedness against the City in any one year exceeding in the aggregate the amount which by this Charter and laws of the State, may be raised by tax for such year.

Payments from Current Taxes. In case any sum or sums of money are borrowed by the City Commission in any one year, or any officers thereof shall enter into any contract or contracts binding upon said City for the payment of moneys, the same shall be paid out of sums raised by tax for such year, if the payment thereof is not otherwise provided. All sums of money borrowed by the City shall be applied solely for the purpose for which same was borrowed.

Special Improvements. Nothing in this Charter contained shall be construed to prohibit the City Commission from making assessments and levying and collecting taxes for the purpose of special improvements.

76. **Interest on Daily Balances—Temporary Loans—Contracts—Advertising.** Sec. 27. The City Commission shall, within thirty days before the termination of any existing contract therefor, advertise in one of the newspapers of the City for a period of at least one week after the first insertion of such advertisement, for sealed proposals for the highest rate of interest obtainable on daily balances of money belonging to the City, or Board of Education, or in their custody, and the lowest rate of interest to be paid by the City for such temporary loans as it shall desire to make.

77. **City Depositaries—Contracts for Deposits and Withdrawal.** Sec. 28. (a). The City Commission shall contract with any safe and secure banking institution or institutions, and make rules and regulations in regard to the depositing of money therein, for a period of not to exceed three years, as a depositary or depositaries for the safe keeping of public moneys belonging to or in the custody of the City, or any of its departments, including the Board of Education and for the payment of interest at a rate of not exceeding that established by law, upon such moneys so deposited with such banking institution or institutions, to be drawn from the current account by the City through its proper officer or officers, which interest shall belong to the City or to the Board of Education, as the case may be.

(b). Every such contract shall contain an agreement on the part of such banking institution permitting the City Commission to terminate such a contract and to withdraw all moneys deposited with such institution or institutions whenever it shall deem that the interests of the City require it, and in such case the books required to be kept by such depositary shall be by it delivered into the custody of the City Clerk.

(c). **Bond of City Depositary.** The City Commission shall require such depositary or depositaries to give suitable bonds in such penalty as it shall determine, and with such sureties as it shall approve, before any transfer of any monies as aforesaid may be made to such depositary or depositaries.

78. **Accounts and Reports of City Depositary.** Sec. 29. The depositary or depositaries so designated by the City Commission shall keep an accurate account in a set of books to be provided by and belonging to the City, of all moneys belonging to or in the custody of the City, deposited with such depositary or depositaries, said books to constitute a part of the public records of the City. Such books shall at all times during business hours be subject to inspection by any member of the City Commission, Board of Education, City Comptroller, City Treasurer, City Manager, or City Attorney. They shall be delivered by the outgoing depositary or depositaries to those succeeding to the trust. Such depositary or depositaries shall report in writing monthly or on demand to the City Commission the amount belonging to the City then on deposit with such depositary or depositaries and the interest earned thereon.

79. **Additional Bonds or Security.** Sec. 30. The City Commission is hereby authorized to require new or additional bonds or security from the City Treasurer and from the depositaries of money belonging to or in the custody of the City and deposited in such depositaries, at any time or times when it shall deem that the interest of the City require.

80. **City Printing—How Contracts Let.** Sec. 31. The City Commission shall annually contract with the publisher or publishers of one or more daily or weekly newspapers published and circulated within the City to do the printing of the City or some portion thereof, which contract shall be let, if to a weekly newspaper, to the lowest bidder therefor, and if to a daily newspaper, to the lowest bidder therefor. It shall be discretionary with the City Commission to let one part of said printing to a weekly newspaper and other parts to a daily newspaper of the City; Provided, that the regular proceedings of the City Commission shall be published in a daily newspaper. Such newspaper or newspapers during the continuance of such contract shall be known as the official newspaper or newspapers of the City. In letting such contracts the City Commission shall have the right to reject any or all bids therefor, whenever in the judgment of a majority of the City Commission the public interests of the City may require.

81. **Control of Public Streets and Places.** Sec. 32. The City Commission shall not possess the power to give away, surrender or relinquish the control of any street, lane, alley, court, public square or place or create any permanent use thereof for any other purpose than for street or public uses, except by regular vacation proceedings in a proper court of record.

82. **Claim for Damage Against City—Notice Required.** Sec. 33. If any claim for unliquidated damages be made against the City for injuries to persons or property by reason of any defects in sidewalks, streets, highways, crosswalks, bridges, alleys, courts, public grounds or public places in the City, or by reason of any negligence on the part of the City or its officials or employees in any public work in which it or they are engaged, or claim is made against the City in an action of tort, it shall be necessary for such claimant to serve written notice upon the City within sixty days from the time of the happening of such injury. Such notice shall specify the location and nature of the defect, the injury sustained and the names of the witnesses known at the time by said claimant.

Production of Witnesses—Limitation of Time. Such notice may be served upon any member of the City Commission or any other City officer, except a policeman or fireman. If required by the City Commission or any committee thereof said claimant shall produce his witnesses before the City Commission or committee thereof, and said witnesses may be sworn and examined as to the nature of the claim, the amount thereof, the extent of the injury and any other matter pertaining to said claim. The City Commission or a committee thereof having the matter in charge shall have power to subpoena witnesses for such hearing. No other or further notice shall be required. All actions of tort in court for any claim as above set forth must be brought within two years from the time such injury was sustained and not thereafter. And said claimant shall comply with all the requirements of the laws of the State relating to claims against municipalities. All claims against the City of the character herein described shall be void unless strict compliance be made by the claimant with the requirements herein specified.

83. **Bar to Action.** Sec. 34. It shall be a sufficient bar to any action or proceedings brought in any court for the recovery of any such claim against the City that such claim has not been presented to the City Commission or notice thereof given thereto, as provided for in the preceding section, or that such claimant did not produce his witnesses for examination upon request as specified in the preceding section.

84. **Compensation to Officers and Employes—Bonds—Fees.** Sec. 35. The City Commission shall fix by ordinance the salary or rate of compensation of all officers and employes of the City entitled to compensation, other than their own, and may require any officer or employe to give a bond for the faithful performance of his duty, in such amount as it may determine, and it may provide that the premium thereof shall be paid by the City. All fees pertaining to any such office shall be paid into the City Treasury.

85. **Salaries of City Commissioners—Mayor—City Comptroller.** Sec. 36. The salary of each City Commissioner shall be $1,200 per annum. In addition $300 shall be paid to the Commissioner elected Mayor. For each absence of a City Commissioner from a regular meeting of the City Commission, unless authorized by a majority vote of all members thereof, there shall be deducted a sum equal to one per centum of the annual salary of such member. Absence from five consecutive regular meetings shall operate to vacate the seat of a member unless such absence be authorized by the City Commission. The salary of the City Comptroller shall not be less than $2,500 nor more than $3,000 per annum. The salaries of the City Commissioners and City Comptroller shall be paid monthly on the last Wednesday of each month.

86. **Sec. 37.** Whenever there shall be, for any cause, a vacancy in any elective City office under this Charter, the same shall be filled by a majority vote of the City Commission at any regular meeting, and the person chosen to fill such vacancy shall continue in such office during the remainder of the unexpired term and until his successor is elected and qualifies; Provided, That if a regular non-partisan primary election occurs in the interim, 12 months or more after the happening of the vacancy, an officer shall be elected to fill the unexpired term.
(4-1-18; 7-25-61)

86.1. **Sec. 38. City Comptroller—Salary.** Sec. 38. Notwithstanding the salary limitation on the salary of the City Comptroller as found in Section 36 of Title V, the salary of the City Comptroller shall be fixed by the City Commission by ordinance.
(2-20-56)

TITLE VI. APPOINTIVE OFFICERS AND EMPLOYEES

87. **City Manager.** Sec. 1.(a). The City Manager shall have charge of the administration of municipal affairs under the direction and supervision of the City Commission.

Enforcement of Laws. (b). He shall see that all laws and ordinances are enforced.

Heads of Departments.(c). He shall appoint and have the right to remove the following officers, viz:

(1) Director of Public Service, who shall have charge of the Department of Public Service;

(2) Director of Public Welfare, who shall have charge of the Department of Public Welfare;

(3) Purchasing Agent, who shall have charge of the Purchasing Department;

(4) (Amended February 21, 1949.) City Assessor, who shall have charge of the Taxation Department; Provided, however, the appointment and removal of the City Assessor shall be subject to the approval of the City Commission.

Subordinate Officers and Employees. (d). Except as herein otherwise provided, he shall appoint and may remove all subordinate officers and employees of the City. All such appointments shall be upon merit and fitness only, and in compliance with the classified civil service provisions of the Charter.

Enforcement of Franchise Provisions. (e). He shall see that all terms and conditions imposed in favor of the City, or its inhabitants, in any public utility franchise are faithfully kept and performed;

Other Duties. (f). He shall perform all other duties prescribed for him by this Charter, by ordinance, and by the City Commission;

(g). He shall be ex-officio Director of Public Safety and perform all the duties and be vested with all the authority herein by this Charter granted to such office.
(4-1-29; 2-21-49)

88. **Mayor Executive Head.** Sec. 2. (a). Insofar as required by law, and for all ceremonial purposes the Mayor shall be recognized as the executive head of the City. He shall preside at the meetings of the City Commission and shall have a vote in the proceedings but no veto power.

Authentication of Instruments. (b). He shall authenticate, by his signature, all ordinances passed or enacted by the City Commission, and such other instruments as the City Commission, this Charter, or the laws of the State require.

Limitation of Authority. (c). He shall exercise only such powers as the State laws, this Charter, or the City Commission specifically confer upon him.

89. **President of City Commission.** Sec. 3. The President of the City Commission shall perform all the duties of Mayor, whenever the Mayor is absent from the City, or is temporarily unable from any cause to perform the duties of his office.

90. **City Comptroller.** Sec. 4. (a). The City Comptroller shall issue and sign all checks, drafts, or warrants for payment of money from the City Treasury when the expenditure of same shall have been authorized by the City Commission and the correct amount certified by the department or officer by whom the expenditure is made.

Account of Moneys Due. (b). He shall keep an accurate detailed account of all taxes assessed by the City and of all money due the City from any and every source.

Account of Moneys Received. (c). He shall keep an accurate detailed account of moneys received and the several sources from which derived.

Account of Funds and Disbursements. (d). He shall keep an accurate detailed account of all funds of the City and the disbursements made therefrom.

Prescribe Uniform System. (e). He shall prescribe a method of keeping the accounts for all the departments and offices of the City which method shall be uniform as nearly as practicable and conform to the Laws of the State.

Audit—Report. (f). He shall examine and audit all accounts against the City and promptly report to the City Commission in writing any default or delinquency he may discover in the books, records or accounts of any City Department. He shall not issue or sign any draft, check or warrant until he has verified the correctness of the account for which the same is issued, neither shall he allow the payment of any account unless the money has been appropriated therefor, nor shall he issue or sign any check, draft or warrant for any account against the City unless sufficient money to pay the same is in the fund on which it is drawn.

Books Balanced Monthly. (g). The books in all departments of the City shall be balanced each calendar month and a report thereon made by the City Comptroller to the City Commission.

Reports to City Comptroller. (h). He shall have access to all books, records and documents kept by any officer, employe or department of the City. Daily reports of all moneys collected and of the disposition thereof shall be made to the City Comptroller by the department or person receiving the same.

Claims Against City. (i). He shall audit and report, with his recommendations thereon, to the City Commission all claims, accounts and demands for indebtedness incurred by the City which shall have been filed with him and which have been approved by the head of the department in which the same was incurred. He shall not approve any such claim, account or demand

except claims for salaries of City officials and employes unless the correctness of the same shall have been certified to by the claimant.

Financial Statement—Inventory. (j). He shall present to the the City Commission annually and whenever required by the City Commission, a detailed statement of the financial condition of the City which shall include all receipts and disbursements, a detailed itemized statement of the debt of the City, and the purposes for which it was incurred, and an itemized inventory of all the property of the City with both its cost and market value.

Board of Education Included. (k). He shall also have the same powers and perform the same duties for the Board of Education as specified by this section for the City.

Other Duties. (l). He shall perform such other duties as may be required of him by this Charter or by the City Commission.

91. **City Treasurer—Powers and Duties.** Sec. 5. (a). The City Treasurer shall be the head of the Department of finance and shall receive and have the custody of all moneys belonging to and receivable by the City, including school and library moneys and shall disburse the same only in accordance with the provisions of this Charter and the Laws of the State.

Daily Deposits. (b). He shall keep and deposit daily all moneys or funds in such manner and only in such place or places as the City Commission may determine.

How Payments Authorized. (c). He shall pay out money only on checks, drafts or warrants issued and signed by the City Comptroller which have been authorized by the City Commission and countersigned by the City Clerk.

School Moneys—How Treated. (d). The City Treasurer is prohibited from using or paying out school moneys for any other than school purposes, and shall not transfer the same to any other fund.

Collections Reported Daily. (e). He shall report in detail to the City Comptroller each day all moneys collected by him.

General Duties and Obligations. (f). Except as provided in this Charter, the City Treasurer shall perform all duties and be subject to all the obligations and liabilities that now or hereafter may be by law imposed upon the township treasurers of the State in respect to the receiving, keeping and disbursing of moneys collected for school purposes.

Other Duties. (g). The City Treasurer shall perform such other duties as may be prescribed for him by this Charter or by the City Commission.

92. **City Clerk.** Sec. 6. (a). The City Clerk shall keep a permanent record of the proceedings of the City Commission and be responsible for the safe keeping of the same.

Custodian of Seal, Records, etc. (b). He shall be custodian of the City Seal; and shall affix it to all documents and instruments requiring the seal and shall attest the same. He shall also be custodian of all papers, documents and records, the custody of which is not otherwise provided for.

Certify Acts of Commission. (c). He shall certify to the proper person or department all actions of the City Commission under which such person or department is required to act.

Authenticate Ordinances and Resolutions—Other Duties. (d). He shall certify by his signature all ordinances and resolutions enacted or passed and perform any other duties required of him by this Charter or by the City Commission.

93. **City Attorney.** Sec. 7. (a). The City Attorney shall be an attorney admitted to practice in the Courts of the State of Michigan and shall be the head of the Department of Law.

Legal Advisor—For what Offices, etc. (b). He shall be the legal advisor of the City Commission, the City Manager, the City Comptroller, the City Assessors, the Trustees of the Sinking Fund, the Board of Education and the Board of Library Commissioners and of such other bodies and offices as the City Commission may designate.

Trial of Cases. (c). He shall conduct for the City all cases in court whenever any of the above mentioned boards or officials are parties thereto,

and shall perform such other duties as may be prescribed by this Charter or the City Commission.

Examination of Instruments. (d). He shall prepare or officially pass upon all contracts, bonds and other instruments in writing, in which the City is concerned and shall certify as to their legality and correctness as to form before execution.

Written Opinions. (e). He shall give written opinions to any of the above mentioned boards or officials when requested in writing so to do and shall keep a copy of the same on file in his office.

Information Upon Franchises, Contracts, etc. (f). He shall keep in his office copies of all franchises granted by the City and of all contracts and agreements entered into by or in behalf of the City, together with proper data and information concerning the same and shall give to the proper bodies or officials, ample notice of the expiration or termination of any franchises, contracts or agreements.

Assistants. (g). He shall have the right to appoint and remove such number of assistants in his department as may be provided for by the City Commission.

Investigation of Complaints, etc. (h). If any citizen has knowledge of the misapplication of the funds of the City, or the abuse of its corporate powers, or of the nonperformance of any contract made in its behalf or that any contract made with the City has been procured by fraud or corruption, or that an obligation or contract made on behalf of the City granting a right is being improperly or illegally exercised, or that any officer, board or commission fails to perform any duty required by law, he may present evidence of the same to the City Attorney who shall thereupon investigate such evidence and shall take such legal course as the necessities of the case require.

Duties Imposed by State Laws. (i). The City Attorney shall perform such other duties as are imposed upon legal advisors of Cities by the Laws of the State.

94. **Deputy Officers—Appointment—Duties.** Sec. 8. Authorization is hereby given for the appointment by their respective principals of a Deputy City Clerk, Deputy City Treasurer, Deputy City Comptroller, who shall be an experienced accountant, and Deputy City Attorney, who shall perform all the duties of their respective principals in case of disability or absence from his office of such principal. Such deputies shall not be subject to the civil service provisions of this Charter.

95. **Director of Public Service.** Sec. 9. (a). Subject to the supervision and control of the City Manager in all matters, the Director of Public Service shall establish and maintain all grade lines subject to the approval of the City Commission and have charge of the making and preservation of all surveys, maps, plans, drawing and estimates of all public works, except as in this Charter otherwise provided.

Cleaning—Sprinkling—Lighting—Garbage Disposal. (b). He shall have charge of the cleaning, sprinkling, and lighting of streets and public places, the collection and disposal of garbage and refuse and the preservation of contracts, papers, plans, tools and appliances belonging to the City and pertaining to the Department of Public Service.

Street Improvements—Sewers—Flood Protection—Comfort Stations, etc. (c). He shall manage and have charge of the construction, improvements, repair and maintenance of streets, sidewalks, alleys, bridges, viaducts and other public highways; of sewers, drains, ditches, culverts, canals, streams and water courses; of sewage disposal systems and flood protection; of comfort stations and all public buildings and works except as otherwise provided by law or this Charter; of boulevards, squares and other public places and grounds belonging to the City, or dedicated to public use, except parks, cemeteries and playgrounds.

Water Works—Lighting Plant—City Market, etc. (d). He shall have charge of and supervise the construction, improvement, repair and maintenance of water works property and service; the electric lighting property and service; the city market property and service, and any other public

utility which the City may now own or hereafter acquire except as otherwise in this Charter provided.

96. **Director of Public Safety.** Sec. 10. (a). The City Manager by virtue of his office shall have supervision, charge and control of the police and fire service, and act as Director of Public Safety.

Building Permits—Weights and Measures. (b). He shall be charged with the enforcement of all ordinances and laws relating to building permits, the erection, inspection, maintenance, repair and occupancy of buildings and the enforcement of the ordinances and laws relating to weights and measures.

City Pounds. (c). He shall have charge of and manage the City Pounds and enforce all the laws and ordinances relating to animals illegally at large.

Police and Fire Service. (d). He shall prescribe all rules and regulations for the control and management of the police force and the fire protection force of the City, which forces shall be composed of such officers, patrolmen, firemen and other employes as the City Manager may determine. In case of riot, public danger, conflagration or emergency, he may appoint additional patrolmen, firemen or officers for temporary service who need not be in the classified service, provided such patrolmen are citizens of the United States and have had a continuous residence in the City for at least one year.

Public Peace. (e). He shall be charged with the enforcement of all laws and ordinances relating to the preservation of the public peace.

Emergency Measures—Claims for Buildings Destroyed. (f). Whenever any building in the City shall be on fire it shall be lawful for the City employe in charge at such fire, with the consent of the City Manager or the Director of Public Safety to order such building or any part thereof not on fire, but which may be deemed hazardous or likely to communicate fire to other buildings, to be pulled down and destroyed. In such case, no action shall be maintained against the City or any person therefor until after a claim therefor shall have been presented to the City Commission and disallowed in whole or in part by it. The City Commission shall by general ordinance, prescribe the time, manner and form in which claims against the City under this section may be presented and the time thereafter within which suits based thereon shall be instituted against it. Except in those cases where the pulling down or destruction of the building shall deprive the claimant of the right to collect insurance actually in force thereon, the City Commission in considering, and the Court in any suit based upon any such claim, shall take into account the probability of the building having been destroyed or injured by fire if it had not been pulled down or destroyed.

Power and Authority of Police Officers. (g). The Director of Public Safety and all City police officers and detectives shall have and possess the power and authority usually conferred upon metropolitan police. They or any of them shall be authorized to serve any criminal warrant or process issued by the Police Court of the City of Grand Rapids or the Superior Court of said City, including writs of subpoena or other process in criminal or quasi criminal proceedings issued by said courts in the same manner and with like authority as the sheriff of the County of Kent may serve such warrants, process or orders in any part of the State of Michigan. Whenever any crime shall have been committed in said City and the person or persons accused or suspected of being guilty of a felony shall flee from justice, the said officers shall have power, and it shall be their duty to pursue and arrest such accused or suspected person or persons anywhere within the State of Michigan, and return them to the proper court having jurisdiction of the offense, for examination or trial.

Arrests without Process. (h). The City Manager, Director of Public Safety and all officers under him, including police detectives, police constables and special policemen of the City, in addition to the powers, duties and authority possessed by them at common law and the Laws of this State in matters of a criminal nature, shall have the power to arrest without process all persons who in the presence of the arresting officer shall be engaged in the violation of any law or ordinance, and such persons may be detained

in custody until complaint can be made and process issued for their arrest and trial and it shall be the duty of such officer to make such complaint and procure such process in the proper court as speedily as possible after such arrest. (4-1-29)

97. **Director of Public Welfare.** Sec. 11. (a). Subject to the supervision and control of the City Manager in all matters, the Director of Public Welfare shall have general supervision, management and control of all hospitals and all health, recreational, charitable, reformatory and correctional institutions and agencies belonging to or conducted by the City; of all parks belonging to or controlled by the City, of playgrounds and cemeteries; of all trees, plants, shrubbery and lawns in the streets and highways of the City.

Food Inspection—Amusements. (b). He shall have charge of the sanitary inspection and supervision of the production, transportation, storage, and sale of food and food stuffs; of the inspection and supervision of public amusements and of the securing and compiling of vital statistics and statistics bearing upon the question of health and poverty, and statistics upon such other local social problems as the City Manager may direct.

Abatement of Nuisances. (c). He shall have charge of the prevention, abatement, and suppression of nuisances. Whenever any building, structure, furniture, wearing apparel, goods, wares, merchandise, or article or property of any kind, shall become tainted or infected with any contagious, pestilential or infectious matter, in the opinion of the Director of Public Welfare, or is likely to pass into such a state as to generate or propagate disease, said Director of Public Welfare, with the approval of the City Manager may abate such nuisance when they deem the same necessary for the preservation of the public health. In such case, no action shall be maintained against the City or any person therefor until after a claim therefor shall have been presented to the City Commission and disallowed in whole or in part by it. **Claims for Property Destroyed.** The City Commission shall, by general ordinance, prescribe the time, manner and form in which claims against the City under this section may be presented and the time thereafter within which suits based thereon shall be instituted against it.

Epidemic—Quarantine Regulations. (d). In time of epidemic or threatened epidemic, he shall enforce such quarantine and isolation regulations as the emergency may require and as authorized by law, and he shall have power to administer and enforce, on behalf of the City, all laws, Charter provisions, ordinances and regulations, relating to the welfare of the inhabitants of the City with respect to recreation, the preservation and promotion of public health, and the relief and prevention of disease and poverty.

Health Officer—Qualifications—Powers and Duties. (e). The Director of Public Welfare shall have and exercise, within and for the City, all the powers and authority conferred upon local boards of health by the Laws of this State. He shall appoint a full time health officer of recognized ability in public health work, who shall be a graduate of a legally authorized medical school, and a registered physician in good standing, and who shall perform, under the direction of the Director of Public Welfare, the duties imposed and exercise the powers conferred upon local health officers by the laws of this State, and such additional duties as the Director of Public Welfare or the City Commission may prescribe.

Assistants. (f). Subject to the approval of the Director of Public Welfare and to the civil service provisions in this Charter, the health officer may appoint such staff of assistants as may be provided for by the City Commission and as shall be necessary for the proper performance of the duties imposed upon him.

City Physician. (g). The Director of Public Welfare shall appoint and may remove a City Physician who shall be a registered physician in good standing.

Property. (h). The Director of Public Welfare shall have charge of and be responsible for all property belonging to the City designed for use in connection with the work of said department.

Police Power—Health Officers, etc. (i). The Director of Public Welfare, the Health Officer, the City Physician, the Milk and Food Inspector, and

the Plumbing Inspector shall have full police power in matters pertaining or belonging to their respective departments and it shall be their duty to arrest all persons who in their sight violate any of the ordinances or regulations of the City in relation to the health of its citizens.

Care of Poor—Power and Authority. (j). The Director of Public Welfare shall have supervision, management and control of the public charities of the City and the care of poor persons entitled to relief by the City, and shall have in addition to the other powers herein conferred upon him, the same powers and authority as supervisors acting as directors of the poor in townships of the State where the poor are cared for under what is known as the township system of poor relief.

Investigation—Relief. (k). By any means made available pursuant to this section, he shall cause to be made careful, kindly and thorough investigation of the circumstances of all applicants for aid and all poor persons brought to his attention, and of the cause of their distress. If such investigation shall show that a resident of the City is unable through his own efforts or the assistance of those legally liable for his support, or through other natural sources of aid, to procure such sustenance as his well-being and the good of society require, the Director of Public Welfare shall cause to be made such provision for such person as may be necessary, and shall, in each case, attempt through approved methods of social service, to restore the dependent to self-support and to maintain at least the minimum standard of living which will secure physical, mental and moral well being.

Social Service Staff—Qualifications. (l). The City Commission may provide for the creation of a social service staff under the Director of Public Welfare to conduct and perform the investigations and other social service work of his department, and to consist of a supervisor of social service and one or more workers chosen for their special fitness and training; Provided, that such supervisor shall be a person who has attained a standard of training represented by having completed a university course in social economy or the prescribed course of a reputable school of social economy or the equivalent of either in private study and actual social work; Provided further that until such time as the City Commission shall make adequate provision for such staff out of the funds of the City, the Director of Public Welfare may utilize in lieu thereof and under his direction, but without cost to the City, the services of any available trained social workers of good repute in the City.

Social Welfare Work. (m). The Director of Public Welfare may, with the approval of the City Commission, from time to time deal specifically with any particular problem relating to questions of health and poverty such as sanitation, housing, child labor, child hygiene, unemployment, provident loans and legal aid, and carry on such other work as may tend to promote the physical, moral or social welfare of the inhabitants of the City.

(n). The City Commission may by ordinance join or combine any one or more of the functions of the Director of Public Welfare and the Health Officer with the County Health Department, as may be permitted by the state law notwithstanding any provision of this Charter to the contrary. (4-4-66)

98. **City Purchasing Agent.** Sec. 12. (a). The City Purchasing Agent shall make purchase of all supplies needed by the City and shall approve in writing all vouchers for the payment of the same when he is satisfied delivery of such supplies has been made in accordance with the specifications and contract.

Sales Personal Property. (b). He shall conduct all sales of personal property which the City Commission may authorize to be sold.

Requisitions. (c). He shall require annually or oftener from each officer or department a written requisition for the quantity and kind of supplies needed by them, which requisition must be approved by the City Manager.

Competition—Approval of Purchase. (d). Before making any purchase or sale involving more than $500, opportunity shall be given for competition. All proposals shall be upon identical specifications, and under such rules and regulations as the City Commission shall establish. No purchase or sale shall be made unless approved,

in writing, by the City Manager or his deputy. In emergency cases, a purchase may be made at a price and in quantity approved, in writing, by a majority of the City Commission and by the City Manager.

Store Room and Supplies. (e). He shall have charge of and be responsible for any store room or store house provided for by the City Commission and of all supplies and materials stored therein.

Available Funds before Purchase. (f). No purchase of supplies or materials shall be made for any department or office until the City Comptroller has certified that there is money in a proper fund of such department or office available for the payment of such purchase.
(4-1-63)

99. **City Assessor.** Sec. 13. In all cases where the word "Assessors" or the term "City Assessors" or any word or term referring to them may be used in the Charter, the same shall refer to and mean the City Assessor. The City Assessor shall hold office for an indefinite term and until his successor is appointed and has qualified or until a vacancy is created in his office as provided by state law. He shall possess all the powers vested in and shall be charged with all the duties imposed upon assessing officers by state law. He shall make and prepare all regular and special assessment rolls of the City in the manner prescribed by this Charter, the ordinances of the City, or by state law. He shall perform such other duties as may be prescribed for him by state law, this Charter, the ordinances of the City, or by the City Manager. He shall devote his entire time to the duties of his office. The City Commission shall, in its annual budget, appropriate to and for the Taxation Department a sum sufficient to enable that department to properly and adequately carry out all the functions herein delegated to and imposed upon it. The City Assessor shall, under the general supervision and subject to the approval of the City Manager, organize the Taxation Department so as to provide therein such necessary technical assistants and such other personnel as may be required to carry out the functions of his department: Provided, that any person in the classified service of the City who is in the employ of the Department of Taxation at the time this Section takes effect shall be retained as an employee of the City in such Department, subject in all regards to the provisions of Title VII of this Charter.
(2-21-49)

TITLE VII. CIVIL SERVICE

100. **Commissioners—Who to be.** Sec. 1. The Civil Service Board of the City shall be composed of five members, one of whom shall be a member of the City Commission to be appointed on the first Monday in May in each year, by the Mayor. The remaining four members shall be resident taxpayers of the City of Grand Rapids, distributed among the several wards of the City as nearly as is practicable, and shall neither hold nor be a candidate for any other public office or position, and shall not be an officer or employee of any political or party organization. They shall be appointed by the City Commission on the first Monday in May and shall hold office for four years. The first appointments of citizen members however, shall be for terms of one, two, three and four years, and one member shall be appointed annually thereafter. All members shall serve without compensation.

The first Board to act under the provisions hereof shall be appointed on the first Monday in May, 1940, and shall succeed to all the rights and duties and become possessed of all records, files, and matters pending before the present board as soon as acceptances of office are filed and an organization meeting is held.

Three members of the Board shall constitute a quorum for the transaction of business but no rule shall be adopted nor shall an employee be dismissed except by the affirmative vote of a majority of the members-elect.
(3-5-34; 4-1-40)

101. **Classification.** Sec. 2. The Civil Service of the City is hereby divided into the unclassified and classified service.

(a). The unclassified service shall include:

(a) All officers elected by the people,

(b) The City Manager,

(c) The heads of departments and members of appointive boards,

(d) The deputy and secretary of the City Manager and the deputy of each department and the City Clerk.

Classified Service. (b). The classified service shall comprise all positions not specifically included in this Charter in the unclassified service. There shall be in the classified service three classes to be known as the competitive class, noncompetitive class and labor class.

Competitive Class. (c). The competitive class shall include all positions and employment for which it is practicable to determine the merit and fitness of applicants by competitive examination.

Noncompetitive Class. (d). The noncompetitive class shall consist of all positions requiring peculiar and exceptional qualifications of a scientific, managerial, professional or educational character, as may be determined by the rules of the board.

Labor Class. (e). The labor class shall include ordinary unskilled labor.

102. **Civil Service Rules to be Adopted.** Sec. 3. The board shall adopt, amend and enforce a code of rules and regulations providing for appointment and employment in all positions in the classified service, based on merit, efficiency, character, and industry, and the board is empowered to make rules and regulations providing for lay-off and recall, all of which shall have the force and effect of law; shall make investigations concerning the enforcement and effect of this title and of the rules so adopted. The City is not hereby prevented from reducing its work force which shall be entirely within the discretion of the proper administrative officials. Such lay-offs shall be in accordance with the board's rules and subject to the appeal procedure set forth in Section 9 of Title VII of the Charter.
(11-4-58)

103. **Chief Examiner—Filling of Positions.** Sec. 4. The chief examiner shall provide examinations in accordance with the rules and regulations of the board and maintain lists of eligibles of each class of the service of those meeting the requirements of said rules and regulations. Position in the classified service shall be filled by the City Manager from the three persons standing highest on the eligible list. As positions are filled the board shall certify the fact by proper and prescribed form to the City Treasurer and City Comptroller and the head of the department in which the vacancy exists.

104. **No Discrimination.** Sec. 5. No person in the classified service or seeking admission thereto shall be appointed, reduced or removed, or in any way favored or discriminated against because of his or her political or religious opinions or affiliations.

105. **Temporary Appointments.** Sec. 6. To prevent the delay of public business or to meet extraordinary exigencies the City Manager, with the approval of the board, may make temporary appointments to remain in force not exceeding thirty days, and only until regular appointments under the provisions of this title can be made.

106. **Promotions—How Regulated and Made.** Sec. 7. The board shall provide by rule for promotions to all positions in the classified service, based on merit, efficiency, character, conduct and seniority.

107. **Probation Period.** Sec. 8. An appointment or promotion shall not be deemed complete until a period of probation not to exceed six months, has elapsed and a probationer may be discharged or reduced at any time within the said period of probation upon the recommendation of the City Manager and the department director.

108. **Removal—Discharge—Suspension.** Sec. 9. No employe under the classified service shall be discharged or reduced in rank or compensation until he has been presented with the reasons for such discharge or reduction specifically stated in writing, and has been given an opportunity to be heard in his own defense. The reason for such discharge or reduction and any reply in writing thereto by such employe shall be filed with the board. Any employe of any department in the classified service who is suspended, reduced in rank or dismissed, may appeal to the Civil Service Board, which shall define the manner,

time and place by which such appeal shall be heard. The judgment of such board shall be final and not subject to review in the courts.

109. **Certain Acts Prohibited.** Sec. 10. No person shall wilfully or corruptly by himself, or in co-operation with other persons, defeat, deceive, or obstruct any person in respect to his or her rights to examination or promotion or corruptly or falsely mark, grade or report upon the examination promotion or proper standing of any person examined, or aid in so doing, or make any false representation concerning the same or concerning the person examined, or furnish to any person any special or secret information for the purpose of either improving or impairing the prospects of any person examined or to be examined, of being appointed, employed, or promoted.

110. **Commission to Receive no Gifts.** Sec. 11. No member of the Civil Service Board shall receive any money or other valuable consideration or any present of any nature for any purpose whatsoever from any City official or City employe, or from any candidate for appointment or for examination, or from any other person whomsoever, for or on account of the appointment or proposed appointment or promotion or proposed promotion of any other person.

111. **Gifts for Examination or Promotion Prohibited.** Sec. 12. No applicant for examination or appointment in the classified Civil Service shall give or promise to give, either directly or indirectly, any money or other valuable thing to any person whomsoever for or on account of his examination, appointment or proposed appointment. No officer or employe shall give or promise to give, either directly or indirectly, to any person any money or other valuable thing whatsoever for or on account of his promotion.

112. **Appropriations.** Sec. 13. The City Commission shall appropriate each year a sufficient sum to carry out the Civil Service provisions of this Charter.

113. **Employes to Retain Places.** Sec. 14. All persons in the employ of the City holding positions in the classified service, as established by this Charter at the time it takes effect, shall retain the same during good behavior and acceptable service.

TITLE VIII. FRANCHISES AND PUBLIC UTILITIES

114. **Power to Grant Referendum.** Sec. 1. The power to grant original, term public utility franchises and to renew the same shall be exercised by ordinance, which shall become effective only upon receiving the affirmative vote of three-fifths of the electors of the City voting thereon at a regular or special election. On such propositions women taxpayers having the qualifications of male electors shall be entitled to vote: Provided, that no ordinance granting or renewing a franchise shall be adopted by the City Commission within ninety days after application therefor has been filed nor shall a franchise ordinance be submitted to the electors until after the expiration of ninety days after its preparation and adoption by the City Commission and the grantee has filed with the City Commission a declaration in writing stating its unconditional acceptance of the proposed franchise or renewal if granted by the electorate and not until the proposed franchise or renewal shall have been published in full in the official paper of the City at least once a week for five consecutive weeks. The referendum provision of this section shall apply only to original grants or renewals of the franchises of common carriers, gas and electric companies.

115. **Petition for Referendum.** Sec. 2. If at any time within forty-five days after the City Commission has granted and the grantee has accepted a franchise for a public utility, or any renewal or extension of its franchise, a petition signed by twelve per cent of the total number of votes cast at the last preceding municipal election for Commissioner-at-large, be filed with the City Clerk, requesting that any such ordinance be submitted to a vote of the electors, it shall not be operative until adopted by the affirmative vote of three-fifths of the electors of the City voting thereon at a regular or special election. On such propositions women taxpayers having the qualifications of male electors shall be entitled to vote.

116. **Term of Franchises—Amendments.** Sec. 3. No franchise shall be granted for a longer term than thirty years, and every amendment, extension or alteration thereof, and all rights thereunder shall expire at the same time as the original grant, unless a shorter term be limited in the amendment, extension or alteration.

117. **Application for Franchises—Renewals.** Sec. 4. Application for any franchise shall be made not less than one nor more than four years prior to the time when the same shall take effect, and application for renewal of any franchise shall be made not less than one nor more than four years prior to its expiration.

118. **Revocation of Franchises.** Sec. 5. Every franchise shall be subject to revocation by ordinance at the will of the City, unless it shall have first received the affirmative vote of three-fifths of the electors of the City voting thereon at a regular or special municipal election. On such propositions women taxpayers having the qualifications of male electors shall be entitled to vote.

119. **Sale or Assignment of Franchises.** Sec. 6. No grantee of a franchise or privilege shall be entitled to sell, assign or sublet the same, or allow another to use the same without the consent of the City Commission by ordinance duly passed; Provided, that nothing in this section contained shall limit the right of the grantee of any public utility to mortgage its property or franchise, or restrict the rights of the purchaser upon foreclosure sale, his or its successors or assigns to operate the same, except that such mortgagee or purchaser, his or its successors or assigns shall be subject in all things to the terms of the franchise and the provisions of this title.

120. **Rights of Bondholders.** Sec. 7. The rights and equities of the bondholders, mortgagees or purchasers, and of all persons contracting with the owners or operators thereof, shall not, as against the City, be greater or for a longer term than those of the grantee of the franchise.

121. **Rate of Charge.** Sec. 8. Every franchise hereafter granted shall fix a maximum rate of charge to the public for the service furnished, which shall include universal transfer privileges as to common carriers, and may provide either for a franchise fee, a division with the City of the profits, a division with the grantee's employees of the profits on a graded scale, or may provide for rates of charge to the public at cost of the service rendered, including a reasonable return to the grantee, such charges to be subject to re-adjustment as in such franchise provided; or a combination of any of the above. All re-adjustments of rates shall be subject to arbitration as in this title provided. Provided, that when the valuation of a utility is not fixed and determined before the franchise is granted, the City Commission shall re-adjust the rate of charge directly after the valuation shall have been determined. All schedules of charges shall be just and reasonable and such rates shall be so fixed as to pay, all earnings of the grantee being considered, a fair and reasonable return upon the money and property invested in the business of the grantee. In determining schedules of charges the City Commission shall consider and give due weight to all elements proper to be considered to enable it to determine the justness and reasonableness of the rates to be fixed. To enable the City Commission to intelligently exercise its rights to fix rates of charge, it shall have the right to cause the records, books and papers of the grantee to be examined by competent agents qualified to make examination thereof for the purpose of determining the value of the property of the grantee used and useful in serving the public, the cost of such service and other necessary data and information; but in no case shall any value of the franchise be included. The books of the grantee shall at all reasonable business hours be open to the inspection of any City Commissioner or any agent authorized by the City Commission.
(3-1-22)

122. **Accounting and Repayment of Excess.** Sec. 9. (a). In case the grantee of, or operator under, any franchise of any company, individual or corporation, interested in the property of the utility under such franchise, shall in any manner attempt to question, contest or review the action of the City in fixing such reduced rate or rates of charge in such manner as may delay or postpone the putting into effect of the reduced rate or rates of charge so fixed, then the grantee of such franchise or operator of the public utility

thereunder, as the case may be, shall keep strict account, according to such method as shall be prescribed by the City, of any income affected, or that may be affected by such reduced rate or rates of charge, in such manner as clearly, fully and accurately to show the amount, if any, produced by the rates actually charged, over the amount which would have been produced by such reduced rates upon the same volume and character of business in the interim. In case any such question, contest or review of the rate or rates so fixed shall terminate in sustaining the validity of the reduced rate or rates, then the said grantee or operator, as the case may be, shall within thirty days thereafter pay into the City Treasury the amount which has been produced from the date of the taking effect of such ordinances in excess of the amount which would have been produced upon the same volume and character of business had the reduced rate or rates been in effect for that time.

(b). In case the utility be of such a character that accounts for services are kept with the persons served, then and in such case the payment of the excess shall be made within the time above limited and in the proper proportions to the persons from whom such excess was received instead of to the City.

(c). In case of such question, contest or review of any rate or rates, the grantee, operator or other person instituting the same, as a prerequisite to any order or process restraining the putting into effect of the reduced rate or rates, shall be required to give a bond to the City in such adequate amount and with such sufficient sureties as shall be ordered by the Court in which the suit is instituted, conditioned to pay to the City or other proper persons as herein provided the full amount of excess charged, and such bond may be renewed or enlarged from time to time by order of the Court.

123. **Value of Property.** Sec. 10. Not less than six months before the renewal or extension of any franchise to any existing company or utility shall be submitted to the electors for their vote, and within one year after any franchise to a new utility shall be granted, the value of the property of the utility within the City, and of such portion of the property thereof beyond the City Limits as is actually and necessarily used in, belonging to and a part of the local service, and which the City may own and operate under the constitution and general laws of the State, shall be fixed and determined; except that in the case of a new utility, the value shall be the value of the property as first installed, subject, however to the right of the City Commission to supervise and change the accounts as provided in Section 11; Provided, that the value thus fixed or determined in no case shall include any value of the franchise. There shall be added annually to the value so fixed and determined, the value of additions and betterments, and there shall be deducted therefrom all amounts properly charged off for depreciation and obsolescence. If the parties cannot agree on such value of the property of an existing utility, such value shall be determined by arbitration as provided in Section 23 of this title: Provided, that nothing shall be added on account of additions or betterments unless the expenditures therefor shall have been approved by the City Commission subject to the same right to demand arbitration as given in Section 23. Provided, further, that any franchise may provide for revaluations at any time after the first five years of its term; all such revaluations to be in accordance with and subject to the provisions of this section.
(3-1-22)

124. **Annual Reports.** Sec. 11. Every corporation or person exercising any franchise in the City of Grand Rapids shall file annually on the first Monday in April, in the office of the City Clerk, a statement subscribed and sworn to by at least two officers of such corporation or by the individual in control, setting forth in detail for the preceding calendar year, the then actual cost of the plant or business operated by such corporation or persons, the actual encumbrances, debts or obligations thereof, the amount of stock issued and to whom issued and the consideration therefor, the gross earnings, the expenses and nature thereof and the net income after deducting all proper costs and expenses, the names and residences, and the amount of stock of all stockholders, and if any bonds have been redeemed and not cancelled that fact shall also be stated. Every such corporation or person who fails to comply

with the provisions of this section shall be liable to the City in the sum of one hundred dollars for each day of such failure, to be recovered in an action of assumpsit in the Superior Court; and at the end of sixty days, if such default shall continue, it shall constitute cause for forfeiture of such franchises. The City Commission may prescribe in any franchise that the accounts and books of account of the grantee thereof be kept according to some approved standard form of accounting. If the franchise of any utility provides for a division of the profits with the City or the employes of the grantee, or a maximum rate of return to the grantee upon the money and property invested, or any combination thereof, the City Commission in all such reports shall have the right to annually pass upon all items charged to the different accounts and may change items from one account to another, if such items are not properly classified or charged, and may make original entries, reduce any items which may be excessive, and reject or throw out entirely items not properly chargeable to additions, betterments, investments, maintenance, depreciation, or expense, even though the amounts therefor have actually been paid in whole or in part or the liability therefor incurred, and such accounts and the value determined as in this section provided, shall form the basis for fixing the rates, and for purchasing the property, under the provisions of this title: Provided, that all such changes shall be fair and reasonable. If the grantee of any franchise, his successor or assigns, is dissatisfied with the accounts as changed and determined by the City Commission, he shall within thirty days, and not thereafter, have the right to demand arbitration thereon, which arbitration and the right thereto shall be exclusive of any and all other actions or remedies and binding and final as to all parties in interest as provided in Section 23 hereof.

125. **Extensions of Service.** Sec. 12. (a). Every franchise shall provide that the City Commission shall have the right to order all reasonable and necessary extensions of service after the grantee and the public have had an opportunity for public hearing thereon. When requested by the grantee, his successors or assigns, within thirty days from the date of the order of the City Commission, and not thereafter, the reasonableness of such extension and of the order requiring the same shall be determined by arbitrators to be chosen as in this title provided. The arbitrators shall have authority to modify any such order of the City Commission or to change or alter the time therein fixed.

(b). Such order of the City Commission or determination of the arbitrators, as the case may be, shall be exclusive of any and all other actions or remedies and binding upon all persons having or claiming any rights in such utility or franchise, which order or determination shall be subject to appeal as provided in Section 23 hereof. The failure to make and to put into operation such extensions to the extent, in the manner and time ordered by the City Commission, or by such arbitrators, as the case may be, and for one year thereafter, shall constitute cause for forfeiture of the franchise right or privilege.

126. **Safety—Convenience, etc.** Sec. 13. Every ordinance granting a public utility franchise, right or privilege, and any extension or renewal of any franchise heretofore or hereafter granted, shall expressly provide that the City Commission may make all reasonable regulations necessary to secure in the most ample manner the safety, welfare and convenience of the public.

127. **City to Control and Regulate Use of Streets.** Sec. 14. The right is hereby reserved to the City to use, control and regulate the use of its streets, alleys, bridges, and public places and the space above and beneath them. Every franchise for the operation of a public utility occupying the streets, alleys, bridges or public places of the City and the space above or beneath them, shall be subject to the limitation that the City may refuse or may permit the joint use of the property of such public utility located in the streets, alleys, bridges or public places of the City by any other public utility or the City on such reasonable terms as it may impose, and upon payment of a reasonable compensation to the owned thereof. If the owner of such property and the one desiring such use are not able to agree on such compensation, the same shall be determined by arbitration, as provided in Section 23 of this title, except that such other public utility instead of the City shall select one

arbitrator. The use of the streets, alleys, bridges or public places of the City by such other public utility shall be subject to regulation by the City Commission.

128. **Pavement of Streets by Street Railway.** Sec. 15. No franchise shall be granted for street railway purposes except that the same shall contain a condition that grantee, its successors and assigns, shall, as the City Commission may direct, pave and keep in repair the street or streets on which its tracks are located or shall be located, between the outer rails and the track or tracks, and for a space outside of said rails of twelve inches, in such manner and with such materials as the City Commission may order and shall repave any such parts of streets as often as the City shall repave the same, and every such franchise shall contain a requirement that every pavement torn up or damaged by the grantee, its successors or assigns, in the work of constructing or repairing such tracks shall be replaced at the sole expense of such grantee, its successors or assigns, in as good condition and with the same kind of material.

129. **Payment for Public Improvements.** Sec. 16. All other utility grantees, their successors and assigns, using the streets, alleys, or public grounds, or the space over or under the same, shall pay such part of the improvements, repairs, rebuilding and maintenance of the streets, alleys, and public grounds, on, over or under which its wires, pipes, conduits, or poles are located as the City Commission shall by ordinance in each case determine but the amount so fixed shall in each case be just and reasonable.

130. **Right of City to Acquire.** Sec. 17. (a). Every franchise hereafter granted, and every renewal, extension or amendment of any franchise now existing or hereafter granted shall provide that at the termination thereof, and also at fifteen years from the time of the taking effect thereof, and at any five-year period thereafter, or upon forfeiture thereof, the City shall have the right to buy and take over all the property of such utility within the City and such portion of the property of such utility beyond the City Limits as is actually and necessarily used in, belonging to and a part of the local service, and which the City may own and operate under the constitution and general laws of the State, at the actual value thereof as fixed under the franchise as herein provided, or the value as fixed when first installed, as such values may from time to time be re-adjusted, as the case may be, excluding all elements of value except such as are shown by the utility to properly and fairly belong thereto, plus the value of additions and betterments made during the period of operation under the franchise, less the amounts which have been properly charged off for depreciation during such period of operation as provided in Section 10 of this title: Provided, that the amount thus to be paid in no case shall include any value of the franchise.

(b). If said right to purchase shall be exercised by the City at the end of the first fifteen year period, or at any five year period thereafter, then, except in case of forfeiture, there shall be added as part of the purchase price to the value of the property, determined as provided in this section, such per cent of the amount thereof as shall be fixed in the franchise: Provided, that such shall not include any value of the franchise.

(c). If the City does not elect to purchase the property under the provisions therein named then, at the termination of such franchise the City Commission may provide that the grantee of such expired franchise, his successors or assigns, shall sell the same at the price to be ascertained as herein provided, to any party to whom a new franchise may be granted, conditioned on the obligation of the grantee of such new franchise to purchase the same: Provided, that said grantee, his successors, or assigns, shall have the right to continue to operate such public utility under the terms of such reasonable franchise as the City may adopt and give efficient service until such time as the City is ready to acquire, take possession of and operate the same, and in default thereof, the City Commission may at once direct and authorize the taking of possession and operation of the same during such interval on the account of said grantee, his successors or assigns. (3-1-29)

131. **Control by City at Expiration or Forfeiture of.** Sec. 18. In the case of any person or company, operating any public utility after its

franchise has terminated, either by expiration, forfeiture or otherwise, the City Commission shall have authority to exercise reasonable control and government over the same and the operation thereof, including the authority to fix and regulate the rate or rates of charge for the service furnished by such person, company or utility, the division of the earnings and the compensation to the City therefor.

132. **Revocation or Forfeiture.** Sec. 19. Every franchise shall provide for the revocation or forfeiture thereof by the City Commission for violation of its provisions, and in addition thereto shall provide for the judicial forfeiture thereof, either of which methods of procedure shall be optional.

133. **Forfeiture for Non-Commencement of Work.** Sec. 20. Failure on the part of the grantee to commence work in good faith under any franchise hereafter granted for a new utility within six months from the time of the taking effect thereof and failure to complete such work within the time fixed in the ordinance, unless such time is extended by the City Commission on good cause shown, or wilful failure of any utility at any time thereafter for ten days to keep in actual operation, in whole or in part, the utility covered by such franchise, shall be cause for forfeiture.

134. **Work to be Begun Within Fixed Time.** Sec. 21. No franchise shall be granted which shall not by its terms take effect within one year after the adoption of the ordinance granting the same, except in the case of grants to take effect at the end of an existing franchise.

135. **Prevention of Free Transportation.** Sec. 22. Every ordinance granting a franchise shall prohibit the grantee therein named, or his successors or assigns, from giving or granting, either directly or indirectly, any pass, frank, free ticket or free service to any person whomsoever, except to such officers and employees of the utility and of the fire and police departments of the City as shall be fixed in the franchise.

136. **Method of Choosing Arbitrators.** Sec. 23. (a). In all cases in this title where arbitration is provided for or allowed, the arbitrators shall be chosen as follows: The utility within ten days after claiming such arbitration, shall name one arbitrator; the City Commission within ten days after notice thereof shall name one arbitrator and within ten days after their appointment the two arbitrators so chosen shall name a third arbitrator.

(b). Every franchise shall specifically provide the method of choosing the third arbitrator in every case wherein the two arbitrators are unable to choose such arbitrator, as above provided. In case the utility shall fail to name its arbitrator as herein provided, it shall forfeit its right to said arbitration, and the order of the City Commission shall stand and be final; and in case the City shall fail to name its arbitrator as herein provided, the order of the City Commission shall be of no effect. When the arbitrators have been chosen and have qualified, the arbitration shall proceed in accordance with the provisions of Chapter XIV of Act 314 of the Public Acts of Michigan for 1915 regarding arbitrations and the arbitrators and the parties concerned in the arbitration shall be governed and bound by and shall have all the authority, rights and privileges provided for in said chapter. In the event of appeals from the findings of the arbitrators such appeals shall be to the Superior Court of the City of Grand Rapids.

137. **Cost of Submission—How Paid.** Sec. 24. If a special election be called for the purpose, the granting of any public utility franchise or privilege shall pay to the City the cost of its submission to the vote of the people and the actual cost of publication and advertising, the amount thereof to be fixed by the City Commission.

138. **Acceptance of Amendment.** Sec. 25. The acceptance of any amendment to a franchise or grantee now existing shall subject the grantee thereof, his successors or assigns, to all the provisions of this title, unless the same is revocable or unless it be expressly stated therein that its effect shall not be to subject said grantee to such provision.

139. **Utility Records to be Public.** Sec. 26. (a). The City Commission shall provide and cause to be kept in the office of the City Clerk the following books of record and reference, which shall be open to the public:

(b). A franchise record indexed and in proper form, in which shall be transcribed accurate and correct copies of any and all grants by the City of

every franchise, right or privilege and of any and all renewals, extensions, amendments or alterations thereof to any person or company owning or operating any public utility, or which may be acquired or claimed by such persons or company. The index of said record shall give the name of the grantee and thereafter the name of any assignee thereof or successor thereto. Said record shall be a complete history of all franchises heretofore and hereafter granted by the City, and shall include a comprehensive and convenient reference to actions, contests, proceedings at law or arbitrations, if any, and all matters or proceedings affecting the same.

(c). A public utility record for every person or company owning or operating any public utility under any franchise granted by the City, which shall show the original investment or value of the property, to be ascertained as in this title provided, together with the footing and summary of all accounts and statements as furnished by the person or company operating under said franchise, or as ascertained as in this title provided, and such other statements, reports and matters of information and public interest as may be made or furnished or as the City Commission may from time to time require. All footings and summaries of all annual statements may be published once in the official newspaper or printed and distributed in pamphlet form, as the City Commission may deem best.

140. **Power of City To Acquire and Operate Utilities.** Sec. 27. The City of Grand Rapids shall have and it is hereby given the right and power to acquire, construct, own, operate and maintain either within or without its corporate limits, street railways, subways, and any and all transportation facilities, waterworks, electric light works, gas works, power works, heating works, telephone and telegraph lines, conduits, bridges, viaducts, wharfs and docks, garbage collection, garbage disposal and reduction plants, paving plants and appliances, and such other public utility enterprises or service as the City Commission may from time to time determine and designate, and to acquire all property, real or personal, necessary or proper therefor, and to maintain and operate the same, or to lease the same or any part thereof, to other corporations or individuals for the purpose of maintenance and operation. Provided, that said City shall not lease, or renew any lease on, any such city-owned utility property of a value in excess of Two Dollars per capita according to the last preceding United States Census, or any part thereof, unless approved by a three-fifth vote of the electors of said City voting thereon at any general or special election. Said City may also sell and deliver water, heat, power, light, and other service of any such utility as it is now, or may be hereafter authorized to do by the laws of the State.
(4-7-19; 4-2-34)

141. **Authority of City to Purchase or Condemn Utility.** Sec. 28. The City shall have and it is hereby given the power and right to acquire, by purchase or condemnation, existing franchises, if any, and the property used in the operation of any and all companies or individuals now engaged in the street railway, tram railway, electric light, gas, heat, water, or power business in the City: Provided, that the proposition to acquire or to construct any public utility under Section 27 of this title and the proposition to acquire by purchase any existing franchise and property under this section, shall have first received the affirmative vote of not less than three-fifths of the qualified electors of said City voting thereon at a regular or special municipal election, and upon such propositions women taxpayers having the qualifications of male electors shall be entitled to vote: Provided further, that in any such referendum the approximate purchase price or cost of construction, as the case may be, shall be a part of the question submitted to the people, and that the City shall not pay or agree to pay therefor more than ten per cent in excess of such approximate purchase price or cost of construction, as the case may be: Provided further, that the City shall in no case purchase or pay any consideration for any franchise or privilege hereafter granted, renewed, or extended, except as herein otherwise provided: Provided, further, that the qualified electors of the City may initiate the proposition or ordinance to acquire, construct or operate any such public utility and have the same submitted to the vote of the qualified electors for their approval or disapproval in the same manner as provided in this Charter for the initiation and approval of ordinances.

142. **City May Bond for Purchase of.** Sec. 29. To acquire, construct, own, operate or maintain any such public utilities, as authorized in this title, the City may issue its mortgage bonds therefor beyond the general limit of bonded indebtedness prescribed by law and subject only to the conditions and limitations now or hereafter contained in the Constitution and Laws of this State.

143. **Procedure to Acquire or Construct.** Sec. 30. The City Commission, by ordinance may prescribe, or the people by ordinance duly initiated and approved under the provisions of this Charter may prescribe the procedure to acquire or construct any public utility.

144. **How City to Keep Its Books.** Sec. 31. When owning any public utility the City shall keep the books of account for each such utility distinct from other City accounts and in such manner as to show the true and complete financial result of such City ownership, or ownership and operation, as the case may be. Such accounts shall be so kept as to show the actual cost to the City of the public utility owned, all cost of maintenance, extensions, additions and betterments; all operating expenses of every description, in case of such City operation; the amounts set aside for sinking fund purposes. If water or other service shall be furnished for the use of such public utility without charge, the accounts shall show, as nearly as possible, the value of such service and also the value of such similar service rendered by the public utility to the City or any department thereof without charge; such accounts shall also show reasonable allowance for depreciation and obsolescence, also estimates of the amount of taxes that would be chargeable against such property if owned by a private corporation and such other matters as the City Commission shall from time to time prescribe. The City Commission shall cause to be printed annually for public distribution a report showing the financial results, in form as aforesaid, of such city ownership, or ownership and operation. The accounts of such public utility, kept as aforesaid, shall be examined at least once a year by an expert accountant, who shall report to the City Commission the results of his examination. Such expert accountant shall be selected in such manner as the City Commission may direct, and he shall receive for his service such compensation as the City Commission may prescribe, to be paid out of the income or revenue from such public utility.

145. **Civil Service.** Sec. 32. All employees of any public utility owned or operated by the City shall be subject to the Civil Service provisions of this Charter.

146. **Public Utility Defined.** Sec. 33. The words "public utility" as used in this title, shall include all common carriers in the public streets, water works, electric light works, gas works, power works, heating works, telephone and telegraph lines, subways, conduits, viaducts, wharfs and docks, market and market houses, garbage collection, garbage disposal and reduction plants, paving plants and appliances and such other and different enterprises or service as the City Commission may from time to time determine or designate.

147. **Sewage Disposal System.** Sec. 33.5. The city shall have and is hereby given the power and right to acquire, establish, extend, operate and maintain a sewage disposal system, sewers and plants, either within or without the corporate limits of the City, as a utility, including the right to acquire property necessary therefor, by purchase, gift or condemnation, and shall have the right to fix and collect charges for the services rendered on such basis as the City Commission may from time to time determine,—the proceeds thereof to be used exclusively for the purpose of such sewage disposal system, its operation, maintenance, replacement and extension, which charge, in addition to the personal liability, may, in the discretion of the City Commission, be made a lien upon the property served, and if not paid when due, subject to collection in the same manner as other city taxes.
(11-6-28)

147.1. **Civic Auditorium.** Sec. 34. The City shall have and is hereby given the power and right to acquire, establish, operate and maintain a civic auditorium and assembly hall within said City, including the right to acquire the property necessary therefor by purchase, gift or condemnation, and to secure the erection upon the property so acquired, of a civic auditorium and assembly

hall; that said city, in the maintenance and operation thereof, shall have the right to fix and collect charges for the use thereof on such basis as the City Commission may from time to time determine, the proceeds therefrom to be used exclusively for the purpose of maintaining and operating said auditorium and retiring bonds which may have been issued for its construction.
(4-7-30)

TITLE IX. GENERAL TAXATION

Assessment Roll and State and County Taxes

148. **Subjects of Taxation.** Sec. 1. The subjects of taxation for municipal purposes shall be the same as for state, county and school purposes under the general law of the State.

149. **Time for Making Assessment Roll.** Sec. 2. On or before the third Monday preceding the date of the meeting of the Board of Review in each year the Assessor shall make and complete an assessment roll in the manner and form provided in the general tax law.
(2-21-49)

150. **Valuing of Real and Personal Property.** Sec. 3. Said Assessors shall estimate, according to their best information and judgment, the true cash value of every parcel of real property and set the same down opposite such parcel. They shall also estimate the true cash value of all the personal property of each person and set the same down opposite the name of such person.

151. **Change of Location of Personal Property.** Sec. 4. No change of location or sale of any personal property after the first day of March in any year shall affect the assessments made in such year.

152. **Taxable Property and Owner Thereof.** Sec. 5. It shall be the duty of the Assessor to ascertain the taxable property in the City, the persons to whom it should be assessed and their residences, in the manner and form provided by the general tax law. The process of assessment in the City shall be continuous, but all assessments, as the same shall appear on the annual assessment roll of the City, shall be corrected by the Assessor to and shall stand as of the first day of March which, unless an earlier date for the tax day in the State of Michigan shall be set by State Law, which earlier date shall govern, shall be the tax day for the assessment of property in the City in the year for which each City assessment roll is made.
(2-21-49)

153. **General Powers and Duties of Assessors.** Sec. 6. The Assessors shall possess all the powers vested in, and be charged with all the duties imposed upon assessing officers by the general tax laws of the State.

154. **Penalty for Violating Tax Law.** Sec. 7. In every case when any person or member of any firm or officer of any corporation shall wilfully neglect or refuse to comply with any of the requirements of this title or any applicable provision of the general tax law, he shall be subject to the penalties in the general tax law provided.

155. **Statements—Disposition and Use of.** Sec. 8. All statements required by the general tax law shall be filed with the Assessors on or before March 1st of each year and shall be preserved by them in the manner and form provided for by the general tax law. On appeals said statements shall be presented to the Board of Review as hereinafter provided.

156. **Roll Open for Inspection—Complaints.** Sec. 9. The Assessor shall give notice to the taxpayers by publication in two newspapers in the City for ten days prior to the date fixed for the completion of the City's assessment roll in each year, that, on and after that date, the assessment roll will be completed and open for inspection and that the Assessor will sit at his office in the City hall to hear complaints upon the assessments in the roll for ten days beginning on the date above stated; and that any person considering himself aggrieved by reason of any assessment, may complain thereof in writing, which complaint shall be filed with the Assessor during said ten days and not thereafter. Every complaint shall state specifically the grounds thereof and no other matters shall be considered by the Assessor. The date of the receipt and filing of such complaint shall be endorsed thereon and signed by the Assessor and it shall thereupon become a part of the official records of the City. The Assessor shall review the

assessments complained of and may alter or correct the same as to the persons charged thereby, the property described therein, and the estimated value thereof. After completing the review and correction of said assessment roll, the Assessor shall sign the same and add thereto his certificate that the same has been duly completed. On the date and at the time of convening of the Board of Review in each year the Assessor shall deliver said assessment roll to the Board of Review.
(2-21-49)

157. **Board of Review.** Sec. 10. The Board of Review shall be composed of five members who shall be selected by the Mayor, subject to the approval of the City Commission upon the basis of their knowledge of the subject of taxation and of property values. No member of such Board shall hold any other public office or public employment except that of Notary Public or member of the armed forces of the United States of America. In the first instance the full Board shall be appointed by the Mayor, subject to the approval of the City Commission, within forty days after the date of the election at which this provision is adopted as an amendment to this Charter, one member so appointed to serve until the first day of February of the next succeeding year, one member to serve until the first day of February of the second succeeding year, one member to serve until the first day of February of the third succeeding year, one member to serve until the first day of February of the fourth succeeding year, and one member to serve until the first day of February of the fifth succeeding year. The Mayor, with the approval of the City Commission, shall, in the month of January of each year, commencing with the next succeeding year following the said election, appoint one member of the Board of Review to serve for a full term of five years, commencing February first of the year of appointment. The City Commission shall fix the compensation of the members of the Board of Review. The Board of Review shall convene on the fourth Monday in April in each year, or on such earlier date in each year as may be provided by state law for the meeting of Boards of Review in Townships at the City Commission chambers and shall continue in session from day to day for the purpose of examining and reviewing the assessment roll of the City. On the first day of its meeting in each year, the Board of Review shall elect one of its members Chairman. Any person who has complained thereof in writing to the Assessor as hereinbefore provided for and considering himself aggrieved by the assessment of his property and the decision of the Assessor thereon, may appeal therefrom to the Board of Review. Written notice of such appeal shall be filed in the office of the City Assessor within five days after the said fourth Monday in April, and the City Assessor shall endorse thereon the date of the receipt and the filing of the same, and thereupon such appeals shall become a part of the official records of the City. Thereupon the original complaint to the Assessor and all papers and matters pertaining thereto shall be made a part of the record of such appeal. Said Board of Review shall have all powers vested in and be charged with all the duties imposed upon Boards of Review in Townships under the general tax law of this state except as herein otherwise provided. The Assessor shall attend each meeting of the Board of Review and give information relating to the matters under advisement.
(2-21-49)

158. **Notice to be given before Increase or Additional Assessment is Made.** Sec. 11. No assessment shall be increased or property added to said assessment roll by the Board of Review except on written or printed, or partly written and partly printed, notice to the person to be directly affected thereby. Such notice to a resident of the City shall be served either personally upon him or by leaving the same at his place of abode with some suitable person of proper age and discretion, at least three days before such action is taken thereon by the Board of Review: Provided, that in case of a nonresident of the City, or in case service cannot be made upon a resident in the manner above provided, such notice shall be published in two newspapers of the City at least three days before any action is taken by said Board of Review.

159. **Period of Review—Confirmation of Roll.** Sec. 12. The Board of Review may continue the consideration of such assessment roll and the hearing of such appeals from session to session, not exceeding fifteen days from the time when the same are first taken under consideration as herein

provided, and a majority vote of the members of the Board of Review shall be necessary to confirm the roll, or to change any assessment made by the Assessors on which an appeal has been taken. On or before the expiration of said fifteen days the assessment roll, as changed or corrected, shall be finally confirmed by the Board of Review, and shall be the basis of all taxes to be levied and collected in the City of Grand Rapids according to the property valuations therein stated, until another assessment shall have been made and confirmed as herein provided.

160. **City Assessor to Keep Records.** Sec. 13. The City Assessor shall be the Secretary of the Board of Review and shall attend its meetings with the privilege of participating therein, but without the right to vote upon any decision of the Board. It shall be the duty of the Assessor to keep a permanent record of all proceedings of the Board of Review. Such record shall be filed with the City Clerk within 30 days after the adjournment of the Board. After the review of the assessment roll has been completed and the roll endorsed and signed as required by state law, such roll shall be re-delivered by the Board of Review to the Assessor.
(2-21-49)

161. **Public Notice of Meeting of Board of Review to be Given.** Sec. 14. The City Commission shall provide for the giving of notice to the public of the time and place of meeting of the Board of Review and if for any reason the meetings are not held as herein provided, the City Commission shall give further notice of the time and place of such meetings.

162. **Validity of Tax Roll.** Sec. 15. Upon the completion of said roll and its endorsement in manner aforesaid, the same shall be conclusively presumed by all courts to be valid, and shall not be set aside except for causes hereinafter or in the general tax law mentioned. The omission of the endorsement above provided shall not affect the validity of such roll.

163. **Assessors to Spread State and County Tax—City Treasurer to Give Notice When Due.** Sec. 16. After the Board of Review shall have approved such assessment roll, the Assessors shall, within the proper time, spread thereon the amount of state and county taxes in the manner and form provided therefor by the general tax law of the state, and such taxes shall become a debt and a lien, and be levied, collected, accounted for and returned, and the property assessed therefor, sold, held, redeemed and conveyed at the time and in the manner and form provided for by the general tax law of the state, except as herein otherwise provided. The Assessors shall deliver a copy of said roll to the City Treasurer and notify him of the amount of state and county tax apportioned to the City, within the time and in the manner and form provided for in the general tax law of the State. The City Clerk and the City Treasurer shall respectively have all the powers of and be charged with all the duties imposed upon township clerks and township treasurers respectively under the general tax law of the state. The City Treasurer shall publicly publish and post notice of the fact that the state and county taxes are due and payable in the same form and manner as herein provided for publishing and posting notice in regard to city and school taxes, and said notice shall be sufficient demand for the payment of all such taxes.

164. **City Treasurer's Office—When Open.** Sec. 17. The City Treasurer, or his employes, shall be in the City Treasurer's office at all hours between eight o'clock in the forenoon and five o'clock in the afternoon of every week day, not a legal holiday, during the time when taxes are due and payable, for the purpose of receiving the same.

City, School and Library Taxes

165. **City Assessors to Make Roll and Deliver to City Treasurer.** Sec. 18. After the City Commission shall have determined the amount of the annual tax to be raised for city, school, library and other municipal purposes, the City Clerk shall certify the same, under the seal of the City to the Assessors, and it shall be the duty of the Assessors to make manifold or other copies of the assessment roll hereinbefore provided for, and to cause the amount of such city, school, library and other municipal taxes to be proportionately assessed upon the valuation entered upon such roll after the same has come from the Board of Review. Said roll shall be known as the "City and

School Tax Roll" and shall show in separate columns the property assessed, the name of the person to whom assessed, the assessed value and the amount of the city, school, library and other municipal taxes. Said roll or a copy thereof shall be completed, footed, balanced, signed and certified by the Assessors and delivered to the City Treasurer before the first day of July of the year when said roll was made. Before its delivery to the City Treasurer, the Assessors shall annex their signed warrant to said City and School Tax Roll, directed to the City Treasurer, commanding him to collect from the persons named in said roll the taxes therein set forth, in accordance with the mandates of the law in relation thereto and they shall take the receipt of the City Treasurer for said roll or copy. The Assessors shall at the same time, deliver to the City Comptroller a statement showing the amount of the taxes assessed upon said roll and the City Comptroller shall make an entry thereof in the books of his office and charge the gross amount thereof to the City Treasurer.

166. **When Taxes to Become Debt and Lien—To Take Precedence of Certain Acts.** Sec. 19. The taxes thus assessed shall become at once a debt to the City from the persons against whom they are assessed, and the amounts assessed upon any interest in real property shall on the first day in July become a lien upon such real property, and the lien for such amounts and for all interests and charges thereon shall continue until payment thereof. All personal taxes shall also be a lien upon all personal property of such persons so assessed, from and after the first day of March in each year, and shall take precedence of any sale, assignment, chattel mortgage, levy or other lien on such personal property executed or made after said first day of March, except where such property is actually sold in the regular course of trade.
(4-1-18)

167. **Sec. 19.5.** The City Commission is hereby given power to provide by ordinance for the method of payment of City and school taxes, and to provide penalties for non-payment of such taxes which shall not be greater over a period of twelve months than the penalties provided in this Charter.
(11-8-32)

168. **Notice of Collection of Tax by City Treasurer—Time Limit—Additional Percentage.** Sec. 20. Upon receipt of the City and School Tax Roll by the City Treasurer, he shall forthwith give at least six days' notice by publication in two newspapers of the City and also by posting the same in at least 20 public places in each of the wards of the City, which notice shall be sufficient demand for the payment of all taxes assessed in said City and School Tax Roll, that the same has been deposited with him and that payment of the taxes therein specified may be made to him at any time during the business hours as follows:

Said taxes may be paid during the month of July, or one-half may be paid during the month of July and the remaining one-half may be paid during the month of October, without penalties. If one-half of the tax is not paid during the month of July, the entire tax shall be deemed delinquent and an addition of 1% thereof shall be made on August 1st following and a like addition the first day of each month thereafter until payment or sale.

If one-half is paid during July, the remaining tax, if unpaid, shall be delinquent on November 1st following, when an addition of 4% thereof shall be made and 1% thereof shall be added on the first day of each month thereafter until payment or sale.
(3-7-32)

169. **City Treasurer's Power to Collect of Tenants—City Treasurer to Sell.** Sec. 21. Each year the City Treasurer shall proceed to collect the City, School, Library and other municipal taxes in accordance with the terms set forth in such public notice as provided in the foregoing section, and may collect said tax from tenants occupying real property taxed in the manner and to the extent set forth in the general tax law in regard to State and County Taxes.
(3-7-32)

170. **Personal Property for Tax—May Bring Suit to Collect.** Sec. 22. On or before the first day of August or the first day of November in each year, as the case may be, and at any time until said City and School, or other municipal taxes are paid, it shall be the duty of the City Treasurer to collect all unpaid taxes which are assessed against

any property of whatever nature, other than the real estate, and the City Treasurer shall have power to levy upon and sell, at public sale, any property of any person refusing or neglecting to pay such tax. Whenever any such property is levied upon, as aforesaid, three full days' notice of such sale shall be given by the City Treasurer by publication in two newspapers of the City and by posting the same in three public places in the City, and any surplus money remaining after the payment of the tax and all interest and charges thereon and all costs and charges of such sale, shall be paid over to the owner of such property or to the person entitled to receive the same. The City Treasurer shall also have the additional power, in the name of the City of Grand Rapids, to commence an action in assumpsit, or other proper action, in any court of competent jurisdiction against any person neglecting or refusing to pay such tax and against whom the same is legally assessed, and enforce any judgment obtained against such person as the result of such action, by an execution to be issued out of the court in which such judgment shall have been obtained. Executions issued upon judgments rendered for any tax may be levied upon any property without exemption, the same as though seized for sale under warrants issued for the collection of taxes by township supervisors and collected in the same manner in all other respects as provided by law for the collection of judgments. The City Treasurer shall also use and take all lawful ways and means provided by law for the collection of judgments. The City Treasurer shall also use and take all lawful ways and means provided by law for the collection of debts, to enforce the collection of any such tax. The assessment or tax roll in all cases and under all proceedings provided for in this section shall be prima facie evidence of the indebtedness of such person and the regularity of the proceedings by which such tax was assessed. (3-7-32)

171. **Removals of Persons from City—Treasurer to Collect Where Located.** Sec. 23. In case any person against whom any tax shall have been assessed in the City for personal estate shall have removed from the City after such assessment and before said tax ought by law to be collected, it shall be lawful for the City Treasurer to levy and collect such tax of the goods and chattels of the person so assessed in any township of the State of Michigan to which such person shall have removed, or in which he shall reside or have personal property.

172. **Personal Tax May be Reassessed.** Sec. 24. Whenever any tax shall hereafter be assessed on any city assessment roll or be placed upon any tax roll for city, school, library or other municipal purposes, on personal property in the City and cannot be collected, it shall be lawful for the City Commission to authorize the payment of the same from the City funds, and when such tax shall be returned for non-payment it shall be lawful at any time after such return for the City Commission to direct such personal tax so returned to be reassessed by the Assessors upon the personal or real estate of such person or persons against whom the same was originally assessed or upon all personal and real estate in the City. No change in the assessment of personal property shall be allowed unless first allowed by the Board of Assessors.

173. **Assessment Roll as Evidence in Court.** Sec. 25. Any assessment or tax roll produced on the trial of any action brought for the recovery of any state, county, city, highway, school, sewer or other tax, general or special, upon proof that it is the original assessment roll for the City of Grand Rapids for such tax, may be read and used in evidence; and if it shall appear from such roll that there is a tax assessed against the defendant in such suit, it shall be prima facie evidence of the legality and regularity of the assessment of the same, and the court before whom the case shall be pending shall render judgment against the defendant for all taxes appearing upon said roll assessed against said defendant, unless he shall prove that he has paid such tax. No stay of execution shall be allowed on such judgment.

174. **City Treasurer's Duties on Receipt of Payment—Undivided Interests.** Sec. 26. Upon the receipt of any tax, or portion thereof, the City Treasurer shall mark his records accordingly and give receipts which shall clearly indicate the portion of the tax for which it is issued. Any person owning an undivided interest or other part in real estate assessed in one description, may

pay on the part thus owned an amount having the same relation to the whole tax as the part on which payment is made has to the whole parcel. The person making such payment shall correctly describe the portion on which he makes payment and the receipt given and the record of the receiving officer shall show such description and by whom paid. Any person having a lien upon real estate may pay the taxes thereon and the same may be added to his lien and recovered with the rate of interest borne by such lien.
(3-7-32)

175. **Disposition of School Monies.** Sec. 27. The City Treasurer shall credit to the school fund of the City all school monies in any manner received by him.

176. **Powers of Treasurer as to City and School Taxes.** Sec. 28. For the purpose of collecting city, school, library and other municipal taxes, the City Treasurer is hereby vested with all the powers conferred upon township treasurers by the general tax law of the State in regard to the collection of state and county taxes.

177. **City Treasurer to Report Sales of Land—Collections of Redemptions.** Sec. 29. At least two weeks before the date of sale of any real estate upon which the City has any claim or claims, the City Treasurer shall report to the City Commission a list of the parcels of such real estate and the amount of the City's claim with the costs and the City Commission shall determine the course to be pursued in regard to such property. The City Treasurer shall also attend to the collection and payment into the proper fund of the city treasurer of all monies received by the county treasurer on account of the redemption of real estate sold for all previous delinquent taxes due the City.

178. **Sale of Real Property for Unpaid Taxes.** Sec. 30. If the city, school, library and other municipal taxes assessed against any real property on the city and school tax roll shall not be paid on or before the first day of March following the making of such assessment, such real property shall be subject to disposition, sale and redemption for the enforcement and collection of the tax lien against the same, in the method and manner provided by ordinance, duly passed by the City Commission, or as provided in the general tax law of the state in case no such ordinance shall have been passed by the City Commission.

179. **City Commission To Pass Ordinance Providing For Judicial Sale.** Sec. 31. The City Commission is hereby given the right to and it shall pass an ordinance or ordinances providing for the sale of lands for unpaid taxes or assessments. The system of sales prescribed by such ordinance or ordinances shall provide for a judicial sale of such lands, on petition filed in behalf of the City.
(3-5-34)

180. **Disposition of Real Property Held by the City.** Sec. 32. The City Commission shall pass an ordinance providing for the care, custody and disposition of real property, or any interest therein, now held by the City which it has acquired by reason of city or state tax or assessment sales and for such as it may hereafter so acquire: Provided, that the last person holding the title in fee to any such property, or the holder of a mortgage thereon, shall be given the first right in case of the sale of such property by the City, to secure the City's interest therein by payment to the City of not less than the amount of money which the City has invested therein in the form of unpaid taxes or otherwise, plus interest, penalties and costs: Provided, such persons make application therefor within thirty days after the City has acquired title thereof. After such thirty days said property shall not be sold for less than its market value.
(4-1-40; 4-2-45)

181. **State's Interest in Lands to be Paid.** Sec. 33. Whenever any lands are offered at a tax sale provided for by ordinance or ordinances, which lands have been bid to the state at any tax sale made under the provisions of any general tax law, and upon which such bid or bids remain undischarged, any sale made of such lands at any city tax sale shall be conditioned upon the payment of the tax lien held by the state on said land by the purchaser and the city tax sale so made shall be void if the tax lien held by the state shall remain unsatisfied.

182. **How Real Property to be Sold for Taxes if no Ordinance Passed.** Sec. 34. Until the City Commission shall provide by ordinance or ordinances for a judicial sale of lands for delinquent taxes, all unpaid city, school, library and other municipal taxes on real property shall be returned to the treasurer of Kent County in the same manner and with like effect as returned by township treasurers, in which case the time and manner of sale, conveyance, redemption and other procedure in regard to said real property shall be the same as in cases where the state and county tax against said real property has been returned as delinquent.

183. **City Treasurer to Issue Tax Certificates.** Sec. 35. It shall be the duty of the City Treasurer upon request made by any party for a certified tax history of any parcel of land within the City covering all general or special city tax sales, or claims for city general or special taxes, to prepare and certify such a tax history and charge the party requesting the same the sum of twenty-five cents for each parcel, which fee shall be paid into the City Treasury and credited to the contingent fund.

TITLE X. PUBLIC AND SPECIAL IMPROVEMENTS

184. **Powers of City in Regard to Waters and Water Fronts.** Sec. 1. The City shall have and it is hereby given the power to use, control and regulate the streams, waters, and water courses within its corporate limits, and to that end, the City Commission shall, subject to this Charter, the state and national laws, when it deems the same essential for health, safety, utility or beautifying purposes, deepen, widen, bridge, dam, dock, cover, wharf, alter or change the channels thereof, establish and build dock lines therefor, provide flood protection therefrom by means of walls or otherwise; use such streams, waters and water courses, and regulate and control the use thereof by others.

185. **Power of City to Acquire and Dispose of Property.** Sec. 2. The City shall have and it is hereby given the power to purchase or condemn private property, within or without the City, for any public use or purpose within the scope of its powers. To that end the City Commission, subject to this Charter and the general laws of the State, whenever it deems the same essential for the welfare of the inhabitants of the City, shall acquire by gift, purchase, condemnation or otherwise, the necessary property for the purpose in view. The City Commission, subject to this Charter and the general laws of the State, shall have the power to hold and improve such property and to sell and dispose of same.

186. **Sec. 2.5.** The City of Grand Rapids shall have and is hereby given the power to acquire land for hospital purposes by gift, grant, condemnation or otherwise, and to establish, construct, equip, maintain and operate hospitals for the treatment of persons afflicted with disease or wounds of any kind, or of any particular disease or diseases within the City limits or within two miles outside of the same, and to that end may borrow money and issue bonds of the City therefor, pursuant to Title XI of the Charter of said City of Grand Rapids.
(4-7-19)

187. **City May Acquire or Establish Utility.** Sec. 3. The City shall have and it is hereby given, subject to the provisions of this Charter and the general laws of the State, the power to acquire, own, establish, construct and operate, either within or without its corporate limits, public utilities for supplying water, light, heat, power and transportation to the municipality and the inhabitants thereof for domestic, commercial and municipal purposes, and for the sale and delivery of water, heat, power and light without its corporate limits, to an amount not to exceed twenty-five per cent of that furnished by it within its corporate limits for like purposes; and for the operation of transportation lines without the municipality and within ten miles of its corporate limits. The acquirement of any such utility together with all properties, franchise and rights necessary for its establishment, ownership, construction, operation, improvement, extension and maintenance, whether such properties, franchises and rights are situated within or without the corporate limits of the City, may be either by purchase or condemnation, and if by condemnation, then according to the general laws of the State in regard thereto. The City

Commission shall, if it deems the same essential to the welfare of the inhabitants of the City, submit the proposition for the acquirement of any such utility to a vote of the electors of the City, in accordance with the general laws of the state in regard thereto. The City Commission shall, when such utility has been acquired, provide for the establishment, construction, operation, improvement, extension and maintenance of the same.

188. **Sec. 3.5.** The City shall have and is hereby given, subject to the provision of this Charter and the general laws of the State, the power to acquire, own, construct, establish, operate, maintain or lease public markets and market buildings and to that end shall have and is hereby given power to acquire by purchase, gift or condemnation, proper and necessary sites therefor, together with power to build the necessary structures and make needed improvements thereon, and to acquire all personal property necessary and proper in the conduct and maintenance thereof, and to maintain and operate or lease the same to other corporations or individuals for the purpose of maintenance and operation: together with authority to make all necessary and proper rules and regulations in connection with the operation and maintenance or leasing thereof, including the power to establish and collect rentals for the use of the whole or any portion thereof.
(4-7-19)

189. **Plan of Streets and Alleys—City Manager to Approve.** Sec. 4. The City Commission shall have and it is hereby given the power to adopt a plan of streets and alleys within the city limits and for a distance of not more than three miles beyond its limits, or for such other distance beyond the limits as may be hereafter authorized by law; and to that end the City Commission shall provide that all plats showing such streets and alleys shall be submitted to and approved by the City Manager before they are filed for record.

190. **Sewers—Right to Extend Beyond City Limits.** Sec. 5. The City shall have and is hereby given the power to maintain and extend sewers beyond the City limits, and to that end the City Commission shall, when it deems the same essential to the welfare of the inhabitants of the City, provide for the construction and extension of such sewers.

191. **Separation of Grade Crossings.** Sec. 6. The City Commission by ordinance shall provide for a general plan of separation of streets from the railroads and street railways at grade crossings within said City, and for the execution of the same under the direction of the City Manager.

192. **Power and Duty of City Commission as to Public Works, Public and Special Improvements.** Sec. 7. The City Commission shall:

(a). Determine the necessity for and order all public work and public and special improvements, and make the requisite appropriations and provide for securing the necessary funds therefor.

(b). Declare the same to be a necessary public improvement.

(c). Provide a method of petitioning for street improvements and their character; but the determination by the City Commission of the character of improvements shall be final.

(d). Determine the character of the improvement and determine and fix the district over which the assessment to pay the cost of any public or special improvement shall be levied, and the amount, if any, of the cost of such public or special improvement which shall be levied upon the City at large.

(e). Specify at the time of declaring the necessity of any public or special improvement whether the cost of the same in the first instance shall be met by issuing the bonds of the City therefor, in anticipation of the collection of the assessment to defray the expense thereof.

(f). Provide for the issuance of bonds of the City for the purpose of providing the first cost of installation and connection of sewers and water works on and to property used solely for dwelling house purposes, when such installation and connection shall be ordered by proper health authorities and when the City Commission shall determine that it is inadvisable to collect the cost thereof at the time of installation.

(g). Provide by ordinance the manner of payment and collection for the installation and connections above mentioned, and that the City shall have a lien on the property served for the cost of such installation and connections.
(4-1-18)

193. [*Reserved.*]
Editor's note—Amendment of Feb. 19, 1962, repealed § 193 which pertained to Street Intersection Improvements—How Paid. See the Charter Comparative Table.

194. **Advertising Bids—Letting Contracts—Supervising Public Works.** Sec. 9. The estimating of the cost, advertising for bids, the carrying on, supervision and approval of the work upon or for any public work or public or special improvement are vested in the City Manager. The letting and making of such contracts is hereby vested in the City Commission.

195. **Notice of Special Improvements and Assessment Districts.** Sec. 10. Before any special improvement is ordered or declared to be necessary and before any special assessment district is fixed, the City Commission shall give notice and an opportunity to be heard thereon to all persons liable to be assessed therefor. Such notice shall be given in such form and manner as the City Commission by ordinance shall prescribe: Provided, that notice by publication shall be deemed sufficient.

196. **Special Improvement Bonds—Payment of.** Sec. 11. The aggregate amount to be borrowed in any one year for the purpose of special improvements shall not exceed one and one-half per cent of the assessed valuation of the City according to the last preceding City Tax Roll, provided, that the total amount of bonds authorized to be issued for such purpose and outstanding at any one time shall not exceed three per cent of the total assessed valuation of the City according to the last preceding City Tax Roll. Said bonds shall bear interest at a rate not exceeding six per cent per annum and shall be made payable in equal yearly amounts for a period not exceeding ten years from date of issue and made payable at the Office of the City Treasurer or to such fiscal agent as may be appointed for that purpose by the City Commission. The City Commission may borrow such sums of money and at such times as shall be deemed necessary to pay for and carry on such special improvements, and issue bonds therefor as in this section provided. Such bonds shall be sold for not less than par, and the proceeds of the same shall be paid to the City Treasurer and by him be placed to the credit of the improvement or improvements for which issued. Such bonds shall be the general obligation of the City, and any avails thereof shall be used only to defray the expense of the special improvement or improvements for which they are issued: Provided, that any surplus thereof shall become a part of the sinking fund and be credited thereto.

When and as collected, the installments of the special assessment roll for the special improvements together with the accrued interest thereon shall be paid by the City Treasurer into the sinking fund, the same to be credited to the proper special improvements to be used to retire the bonds issued on account of such improvements, to pay the interest thereon and to pay the cost of said special improvements. Any surplus thereof shall become a part of the sinking fund and be credited thereto.
(9-12-22; 2-20-61)

197. **Special Assessments—Rolls—Notice of Completion—Inspection and Appeal—Separation of Assessment Rolls.** Sec. 12. The City Commission shall cause to be transmitted to the Assessors a map of the district fixed by it and a statement of what part of the cost of any improvement is to be spread upon the City at large, and the City Manager shall transmit to the City Assessors such facts as he may have, necessary to make a proper assessment. Thereupon the Assessors shall prepare an assessment roll which shall contain the names of the owners and the description of the several parcels of property in the district fixed by the City Commission to be assessed for such improvement, and upon such roll or against each of such descriptions the City Assessors shall spread and levy the cost of such improvement in whole or in part, as the City Commission may determine, in proportion as near as may be, to the advantages which each parcel shall be deemed to be benefitted by the making of such improvement. After the assessment roll is completed the City Assessors shall give notice to all persons assessed thereon, in such manner as

the City Commission may provide, by publication or otherwise, of the completion of such roll, that the same will be open for ten days for public inspection and for correction by the Assessors and of the time and place of the meeting of the Board of Review on such roll. Immediately after the expiration of said ten days such corrected roll shall be signed by the Assessors, or a majority of them, and returned forthwith to the City Commission. Assessment rolls for sewer purposes, as well as bond issues therefore, shall be kept separate and distinct from street improvement rolls and bonds. The exemption of any property from general taxation shall not amount to an exemption of such property from taxation for special improvements under this title.

198. **Board of Review—Hearing of Appeals.** Sec. 13. At a regular session not less than one week after the receipt of such roll from the Assessors, the City Commission shall act thereon as a Board of Review and shall continue to act at such other times as may be necessary and as it may designate. Any person may appeal in writing to the City Commission acting as such Board of Review at any time prior to the opening of its first session as such Board of Review. The City Commission as such Board of Review shall have the power to correct or change the whole or any part of such roll or to return it to the Assessors for reassessment, in which latter case it shall take the same course as an original roll. The roll as finally corrected and reviewed shall be ratified, confirmed by the City Commission and delivered by the City Clerk to the City Treasurer for collection, with the proper warrant for such purpose attached thereto, signed by the Mayor and attested in due form by the City Clerk.

199. **Liens, Return and Sale of Delinquent Property.** Sec. 14. The City Commission by general ordinance shall make the necessary provisions for carrying this title into effect, including the time within which such rolls shall be prepared by the Assessors, the method of transferring such rolls from one office or department to another, the notice, time, place and manner of payment of assessments and the return of surplus moneys. It shall fix a uniform rate of interest on deferred installments, the time at which any such assessment shall become a lien upon the property assessed and the penalty for nonpayment thereof, and shall make provisions for the return, sale and conveyance of any property delinquent for nonpayment thereof, for the redemption of said property after sale and for the collection of special assessments against common carriers.

200. **Supplemental Roll.** Sec. 15. The City Commission may provide for the spreading of an additional assessment for any public or special improvement in case it determines that the former assessment or assessments will not produce sufficient funds to pay for such improvement. Such additional assessment shall be spread upon a supplemental roll which shall conform so far as possible to the original roll for such improvement, and shall be made, reviewed, delivered, collected, accounted for and returned in the same manner as the original roll, and all sales and redemptions of property therein described shall be made in the same manner as the sales and redemption upon said original roll.

201. **Acquiring Private Property for Public Use—Condemnation.** Sec. 16. The City Commission shall by ordinance provide for acquiring by condemnation proceedings, in a court of competent jurisdiction, or otherwise, such private property and rights as may be required for any public use: Provided, that until the passage of a valid ordinance for that purpose, the right of eminent domain for such purpose may be exercised by the City in the manner provided for in Sections 3392 to 3415 inclusive, of the Compiled Laws of 1897, as amended or supplemented, or in Act 149 of Public Acts of 1911, as amended or any other general law; which acts so far as the same may be applicable, are hereby adopted and made the law of the City for such purposes.

202. **Cost of Condemned Property Added to Special Improvement Cost.** Sec. 17. Whenever any property is acquired by condemnation or otherwise for the purpose of any special improvement, the cost thereof shall be added to the cost of such special improvement, levied upon the property benefited thereby and collected accordingly.

203. **Delinquent Taxes—Sale of Property For—Decree As Basis of Sale—Payment of State and City Tax Liens.** Sec. 18. The sale of any property on account of the non-payment of

any special assessment levied against it, shall be made only upon decree therefor of some court of competent jurisdiction, upon petition praying for such decree filed by the City Treasurer in form and manner advised by the City Attorney, who shall conduct such proceedings to a final hearing. Due notice of the pendency of such petition shall be given to all persons interested in any property to be affected by such decree in like form and manner as is provided for notice of the sale of lands for unpaid taxes. Such sale so decreed may include property which has been assessed for any public or special improvement, and against which property there is any unpaid assessment which has become a lien: Provided, that no sales of any property for any such assessments upon which the State or the City holds a tax lien shall be made to any person without the payment of all such tax liens, nor made to the City without the payment or purchase of the liens held by the State.
(3-5-34)

204. **Assessments Against Railroad Property—Who Liable for—How Levied and Collected.** Sec. 19. All freight houses, roadbeds, rights of way and other premises or property belonging to the owner of any stream, electric or street railway or other common carrier within the corporate limits of the City, which are necessarily used in the operating of the respective franchises of the owners of said railroads, and the person, corporation or company owning the same shall be liable for all valid unpaid assessments for public improvements hereafter made within the City and assessed against such property. Assessments of such property shall be made in the same manner as that of other property for special improvements under this Charter, and the assessment roll therefor shall be prima facie evidence in any court of the regularity of all proceedings up to and including such assessment and the making of said roll.

205. **Cost of Improvement to Include Cost of Estimate, Plans, etc.** Sec. 20. The cost of public and special improvements for which a special assessment roll shall be made shall include the cost and expense of making estimates, plans and assessments incidental thereto.

206. **Persons Contributing Lands for Streets—Assessment Against.** Sec. 21. In any case where the owner of property liable to be assessed to pay the cost of a street opening, has contributed thereto a portion of the street, the City Commission may relieve such person from paying an assessment for the purchase or condemnation price of a like portion opposite that so contributed.

207. **Sewer Extensions Construed.** Sec. 22. The term "sewer extensions" shall be construed to mean the construction of new sewers and the reconstruction or changing in any material way of existing sewers.

208. **Sec. 23.** It shall be the duty of every owner of land situated in the City of Grand Rapids to build, rebuild, maintain and repair all sidewalks upon that part of the street or streets upon which said land abuts, at such times, in such manner, and of such materials as the City Commission may direct. Notice to build, rebuild or repair such sidewalks, shall be given in such manner as the City Commission may by ordinance or resolution provide, and if such owner shall neglect or refuse to comply with such notice, the Director of Public Service may cause the said sidewalks to be built, rebuilt or repaired, as the case may be, at the expense of the City, and an accurate account of the expense thereof shall be certified to by the Director of Public Service and filed with the City Treasurer, and a duplicate thereof with the City Assessors. Said certified account shall contain an accurate description of the land abutting on said sidewalk, the expense of building, rebuilding or repairing such sidewalk, and the name of the owner of the land, if known, and if not such fact shall be stated in such account; the City shall have a lien on such land for such amount, together with the costs, penalties and interests thereon, until paid. A copy of such certified account shall be mailed to the owner, if known, by the Director of Public Service: Provided, however, that nothing in this section shall interfere with building sidewalks in connection with and as a part of necessary street improvements. While both a City Income Tax rate of 1.5% is in effect for corporations and resident individuals and a City Income Tax rate of .75% is

in effect for non-resident individuals, the above provision concerning sidewalks shall be of no force or effect.
(4-1-18; 1-28-14, eff. 5-6-14)

209. **Sec. 24.** The owner of any land situated in the City of Grand Rapids shall abate and remove any nuisance thereon and comply with all orders and demands made by the Director of Public Welfare for the sanitary and healthful management and use of said lands and the buildings and their appurtenances thereon situated. If any owner of such lands shall neglect or refuse to abate or remove any nuisance or to comply with any such order or demand made by the Director of Public Welfare, such Director may, at the expense of the City, cause the same to be done, and an accurate account of the expense thereof shall be certified to by the Director of Public Welfare and filed with the City Treasurer, and a duplicate thereof with the City Assessors, and which said certified account shall contain an accurate description of the land if known, and if not such fact shall be stated in such account; and such account shall be and remain a lien on such land until paid. A copy of such certified account shall be served by mail on the owner, if known, by the Director of Public Welfare.
(4-1-18)

210. **Sec. 25.** On or before the first Monday of January and June of each year the City Treasurer shall report to the City Commission the said accounts, both for sidewalks and nuisances, then remaining unpaid, and thereupon the City Commission may by resolution or ordinance require the City Assessors to make an assessment roll for said accounts; and thereupon it shall become the duty of the City Assessors to place said accounts in an assessment roll, which said assessment roll when made shall be proceeded with in the same manner as is, or may hereafter, be provided for, the assessing and collecting the expense of public and special improvements under this title.
(4-1-18)

210.1. **Sidewalk Funding.** Sec. 26. The City Commission is hereby empowered to pay the cost of building, rebuilding or repairing sidewalks and to secure funds therefore through the use of money which may be or become available through the Federal Government State of Michigan or other grant of funds. This Section shall be in addition to that power specified in Section 23, 24 and 25 of Title X of this Charter.
(8-8-78)

TITLE XI. CITY BONDS—EXCEPT SPECIAL ASSESSMENT STREET AND SEWER BONDS

211. **Sec. 1.** (a). For the purpose of making public improvements, including boulevard lighting or any other public or special improvements, in connection with which a special assessment district is made to pay therefor in whole or in part, or for any other purpose within the scope of its powers, the City Commission may borrow on the faith and credit of the City such sum or sums of money for such term and at such rate of interest as may be permitted by law, and it may issue the bonds of the City therefor. The avails thereof shall be used for the purposes for which the same were issued and for no other purpose.

(b). Any such bonded indebtedness against the City shall be void unless approved by three-fifths of the qualified electors of the City voting thereon; but bonds, including those made a general obligation of the City, may be issued to raise money for the current expenses of the City provided for in this Title, for the cost of boulevard lighting or any other public or special improvements, in connection with which a special assessment district is made to pay therefor in whole or in part, school bonds, refunding bonds and emergency bonds for the purposes and within the limits enumerated in Act 279 of the Public Acts of 1909, as amended, or any amendment thereof, without such approval of the electors.
(4-6-31; 7-25-61)

212. **Bonds for Current Expenses.** Sec. 2. For the purpose of paying that portion of the expenses and liabilities of the City for the current year which the revenues thereof shall not be sufficient to meet, the City Commission may issue the bonds of the City for a period of not longer than one year, in such form and for such sum as it shall direct, not exceeding fifty thousand dollars in any one year, at a rate of interest not exceeding five per cent per annum, to be signed by the Mayor and counter-signed by the City Comptroller and with the seal of the City affixed thereto. Such Bonds shall be disposed of under the direction of the City Commission and upon such terms as it shall deem advisable, but for not less than their par value, and the avails thereof shall be

applied only to the purposes mentioned in this section. The amount so borrowed shall be assessed and collected in the general assessment roll for the ensuing year.

213. **Emergency Bonds.** Sec. 3. In case of fire, flood or other calamity the City Commission may borrow for the relief of the inhabitants of the City or for the preservation of municipal property, a sum not to exceed one-fourth of one per cent of the assessed value of all real and personal property in the City and issue bonds therefor due in not more than three years.

213.1. **Financing Off-Street Parking Facilities.** Sec. 4. Notwithstanding the provisions of Sec. 1 (b) of this title, the City Commission shall have the power in case a special assessment district is made to pay the cost of off-street parking facilities, to borrow on the faith and credit of the City such sum of money as may be necessary to meet the cost of such improvement in anticipation of the collection of the assessments made to pay therefor, which amount to be borrowed shall not exceed the amount so assessed against said district, and to issue the bonds of the City therefor for such term and at such rate of interest as shall be permitted by law, which bonds shall be valid without a vote of the electors of the City.
(2-20-56)

TITLE XII. TRUSTEES OF THE SINKING FUND

214. **Members.** Sec. 1. The Mayor, City Comptroller, City Clerk, City Treasurer and the President of the City Commission, together with two electors who shall be citizens and free holders of the City, to be appointed by the City Commission on the first Monday in May, or as soon thereafter as practicable, each of whom shall hold office for two years, shall act as Trustees of the Sinking Fund without compensation.

215. **Powers and Duties.** Sec. 2. (a). The Trustees of the Sinking Fund, from time to time and upon terms satisfactory to them, shall purchase or pay the bonded indebtedness of the City or such part thereof as it may be able so to do. Whenever said trustees are not able to purchase or pay said debt or any part thereof, they may invest temporarily by the vote of not less than five trustees, to be recorded in the minutes, any moneys in the sinking fund in interest bearing municipal bonds, or in other bonds or securities which constitute a legal investment for savings banks in the state. All bonds and evidences of debt so purchased shall be delivered to the City Treasurer and become and be the property of the City, and be controlled by the Trustees of the Sinking Fund. The interest on such bonds and evidences of debt shall be credited and belong to the Sinking Fund. The City Treasurer shall endorse upon the back of all bonds so purchased by the Trustees of the Sinking Fund the following:

> "Registered bonds, not transferable without the written consent of the Mayor, City Comptroller and City Treasurer endorsed thereon."

(b). Such bonds shall be transferred and sold only under the direction of the Trustees of the Sinking Fund. In making temporary investments of the moneys of the sinking fund, the trustees shall give preference to bonds of this City, but may sell such bonds and add the proceeds thereof to the purchase or to the payment of other bonds of this City whenever such action is deemed advisable. Whenever the City Commission shall transfer funds to the Sinking Fund for temporary investment, the same shall be invested by said trustees by loan or purchase of the bonds of the City, and not otherwise.

216. **Control of Sinking Fund.** Sec. 3. The trustees of the Sinking Fund shall have exclusive control of the moneys of the Sinking Fund and whenever possible and when it may appear to the City's interest, shall faithfully apply the same to the payment of the principal and interest of the bonded indebtedness of this City, and to no other purpose whatsoever, except as herein otherwise provided. The trustees may temporarily invest any portion of the Sinking Fund in so-called special improvement bonds of the City, but only that portion of the Sinking Fund collected from the tax roll for any special improvement, together with the income thereon while in the Sinking Fund, shall be applied to the payment of the

bonds for that improvement. A separate account shall be kept of the funds and income thereon for each improvement.

217. **Meetings—Quorum—Vote—Records—Presiding Officer.** Sec. 4. The Trustees of the Sinking Fund shall meet at such times as they may determine for the transaction of business and may adopt rules of procedure for their meetings. A majority of all the trustees shall be a quorum for the transaction of business. They shall not purchase or pay the outstanding debts of the City, or invest any of the moneys belonging to the Sinking Fund, except under a resolution approved by not less than five trustees, with the yea and nay vote thereon entered on the record at a regular meeting or at a special meeting called for that purpose. The Mayor, or in his absence, some member to be designated by those present, shall preside at the meetings of the trustees. The City Clerk shall be the clerk of the Trustees of the Sinking Fund, and it shall be his duty to keep and preserve on file in his office a true record of all meetings of said Trustees.

218. **City Treasurer Custodian—Moneys Paid Only by Order of Trustees.** Sec. 5. The City Treasurer shall have the custody of all moneys, securities and evidences of debt belonging or appertaining to the Sinking Fund. He shall pay out the moneys of said fund only by order of the Trustees of the Sinking Fund on a vote of not less than five of the Trustees, and upon the warrant of the City Comptroller, countersigned by the Mayor and City Clerk. The official bond of the City Treasurer shall cover any and all funds in his hands or custody belonging to the Sinking Fund.

When not invested the money constituting the Sinking Fund shall be kept in a depository approved by the Trustees, to be withdrawn only upon checks signed by the City Comptroller and countersigned by the Mayor and City Clerk.

219. **Reports—Estimate for Budget.** Sec. 6. The Trustees of the Sinking Fund shall make such reports as shall be required by the City Commission. Said Trustees shall recommend to the City Commission on or before April first in each year the sum of money that in their judgment should be placed in the next annual budget and raised by direct taxation for the benefit of the Sinking Fund.

220. **Bond of Depository.** Sec. 7. The Trustees of the Sinking Fund shall require proper and sufficient bonds from the person or institution in whose actual custody any of the money or property under its control may be.

221. **Tax for the Sinking Fund.** Sec. 8. At least one-fifth of a mill on a dollar upon the assessed valuation of the real and personal property in the City and as much more as may be necessary to provide funds to meet outstanding bonds at maturity, shall be placed annually in the Sinking Fund, to be applied exclusively to the payment of the principal of the bonds of the City other than water, school, sewer and street improvement bonds.

222. **Premiums and Interest to Sinking Fund.** Sec. 9. Whenever the City shall sell any of its bonds for more than the par value thereof, all of the premiums or amounts received in excess of the face value of the bonds so sold, not including interest accrued on such bonds that may be paid by the purchaser, shall be credited and belong to the Sinking Fund. All of the interest paid to the City by the city depository or other depositories, or on account of any securities purchased for the Sinking Fund, shall be credited and belong to the Sinking Fund.

223. **Payment of Water Bonds and Interest Thereon.** Sec. 10. The trustees of the sinking fund shall annually and at the time of the preparation of the City's budget, submit to the City Manager an estimate of the amount of money that will be required during the current fiscal year to meet the current interest on water bonds issued by the City and outstanding, and for the maintenance of the sinking fund for such bonds, in accordance with the requirements of any statute now in force or hereafter enacted. The amount of such estimates shall be paid to the trustees of the sinking fund from the gross receipts of the Water Department. From the moneys so received, the trustees shall pay at maturity the current interest on the water bonds issued by the City, and the remainder of such moneys shall be kept separate from other funds and invested by the trustees

under the limitations of this Title, and the statute of the State of Michigan, for the purpose of creating a special sinking fund, in accordance with the State law. The moneys of such funds shall be applied to the payment, so far as possible, of the principal of the so-called water bonds of the City.
(4-6-31)

224. **Sinking Fund for Payment of School Bonds.** Sec. 11. There shall be placed in the annual budget of the Board of Education of the City an amount sufficient to pay the interest upon the school bonds, and such amount for each year as may be recommended by the Board of Education on approval of the City Commission, or as may be determined by the City Commission to be necessary, to be paid to the Trustees of the Sinking Fund for the creation of a sinking fund to be applied to the payment of the principal of the bonded indebtedness of the Board of Education as the same matures.

225. **Cemetery Bonds.** Sec. 12. There shall be paid to the Trustees of the Sinking Fund fifteen per cent of the gross receipts of the cemeteries of the city, other than the receipts for the perpetual care of lots in such cemeteries, and such further and other sums as may be determined from time to time by a majority vote of the City Commission, which moneys shall be invested by the Trustees of the Sinking Fund under the provisions of this Charter. From the fund so accumulated there may be taken and paid to the City an amount sufficient to pay the principal and interest of any moneys advanced by the City for the purchase or improvement of any cemetery or cemeteries. The interest on all such sums shall be expended for cemetery purposes or added to such funds, in the discretion of the City Commission. Such funds, both principal and interest, may be used in the discretion of the City Commission, for the improvement of existing cemeteries, the meeting of any accrued deficit by reason thereof, or, when needed, for the purpose of purchasing additional cemetery or cemeteries. A separate account shall be kept of moneys paid into the Sinking Fund for the perpetual care of cemetery lots and of the income therefrom. A separate account shall be kept of each trust fund under control of the Trustees.
(11-8-38)

226. **Investment of Other Funds.** Sec. 13. The Trustees of the Sinking Fund shall invest such other funds as shall be entrusted to them from time to time by the City Commission and such funds shall in all respects be subject to the provisions of this Charter.

227. **Expenses of Trustees.** Sec. 14. The necessary expenses of the Trustees of the Sinking Fund, incurred in performing any of the duties imposed upon them by this title, shall be a proper charge against and be paid by the City.

228. **Rules.** Sec. 15. The Trustees of the Sinking Fund may adopt rules not in conflict with this Charter, and are hereby authorized, for the purpose of enforcing the collection of any bonds or securities taken by them, to bring suit in the name of the City of Grand Rapids in any court of competent jurisdiction. The City Attorney shall act for the Trustees.

TITLE XIII. BOARD OF LIBRARY COMMISSIONERS

229. **Sec. 1.** Library Commissioners shall be elected as provided for by law and this Charter for a term of six years and until each Commissioner's successor is elected and qualified. Notice of the election shall be given as provided for by law.
(9-10-91)

230. **Sec. 2.** The Board of Library Commissioners of the City of Grand Rapids shall be composed of seven elected members. The Board shall have the entire management and control of the Public Library of the City and of all property and assets belonging thereto devoted to or intended for library purposes.
(9-10-91)

231. **Sec. 3.** The election of members of the Board of Library Commissioners shall be at the odd year general election except as otherwise provided for in Title III, Section 15 of this Charter. The result of the vote shall be canvassed and declared in the same manner as in the case of other City Officers.
(9-10-91)

232. **Sec. 4.** Any qualified elector meeting the eligibility requirements for elective City office set out in Title II, Section 4 of this Charter shall be eligible for election as a Library Commissioner. Nominations shall be in the same manner as nomination for other City offices and nominating petitions shall be as provided for in Title III, Section 5 of this Charter.
(9-10-91)

233. **Sec. 5.** In case of the death, resignation or removal from the City of any commissioner, his position shall become vacant and the vacancy shall be filled by election by the remainder of the board for a term continuing for the remainder of the unexpired term and until his successor is elected and qualifies; Provided, That if a regular non-partisan primary election occurs in the interim, 12 months or more after the happening of the vacancy, an officer shall be elected to fill the unexpired term.
(7-25-61)

234. **Serve without Compensation—Organization—City Treasurer Custodian.** Sec. 6. No member of the board shall receive any compensation for his services in connection therewith. Annually on the first Monday after their election the board shall organize by electing one of its members president and one of it members secretary. The City Treasurer shall be the custodian of the funds of the Library Commission and all bills incurred by it shall be allowed by the board and certified to the City Comptroller to be audited and paid from the Library Fund.

235. **Librarian—Employment—Salaries.** Sec. 7. The board may employ in its management of the library, a librarian, and such assistants, janitors and other employes as it may determine, and fix their salaries. It may purchase such books, charts, maps, and apparatus for the use of the library as it may find necessary, and may do everything necessary to maintain the library, building and grounds and increase its usefulness. For these purposes it may establish, amend or repeal rules and regulations in any manner not inconsistent with this title.

236. **Fines and Penalties to go to Library.** Sec. 8. All fines and penalties which by law are devoted to library purposes and paid to the Board of Education, shall hereafter be paid into the City Treasury for the purposes of the board created by this title.

237. **Gifts to Board for Library.** Sec. 9. The Board of Library Commissioners is hereby authorized to receive gifts, devises or bequests of real or personal estate, as trustees for the Board of Education, for the library or any matters connected therewith, and the board is hereby authorized to carry out in connection with any such gifts any trust or trust conditions that may be attached thereto in like manner as any other trustee. All gifts, devises or bequests for the benefit of the library, shall be subject to the same control and management by the Board of Library Commissioners as the original library committed to its care: Provided, that trust funds shall be paid to and invested by the Trustees of the Sinking Fund.

238. **Funds for Support of Library.** Sec. 10. There shall be placed in the budget annually for the maintenance and running expenses of the library, two-fifths of a mill of the assessed value of the property of the City, and such further sum as may be determined by the City Commission in making up its budget from year to year. The City Commission may provide from time to time such temporary funds for the purposes of the Board as it deems necessary.

239. **Report to City Commission.** Sec. 11. Annually the Board shall present to the City Commission its report containing a full detailed statement of all monies received and expended and such facts and recommendations regarding the library as the Board shall deem proper.

240. **Enforcement of Rights.** Sec. 12. Whenever necessary for the enforcement of the powers, rights and privileges conferred upon the Board, or for the protection of the property placed in its charge, the Board may, in the name of the City of Grand Rapids, institute in any court of competent jurisdiction, an action at law or in equity. In all suits in behalf of the Board it shall be represented by the City Attorney.

240.1 **Sec. 13.** The five elected Library Commissioner positions heretofore created by this Charter are continued. The ex-officio position of

the Superintendent of Schools as a Library Commissioner is terminated. There are two additional Library Commissioner positions created by the amendment adopted September 10, 1991. The Library Commissioners elected to the two new terms created in 1991 shall serve an initial term of four years ending in 1995. Thereafter, the persons holding the newly created offices shall be elected for a term of six years as provided for in this Charter. Notwithstanding any other provision of this Charter, persons may be nominated for but no person shall be elected to either of the newly-created Library Commissioner positions at the September 10, 1991 odd-year primary election.
(9-10-91)

TITLE XIV. BOARD OF ART AND MUSEUM COMMISSIONERS

241. **Members—How Appointed—Term of.** Sec. 1. There shall be a Board of Art and Museum Commissioners whose number, appointments and terms shall be fixed by ordinance.
(4-5-65)

242. **Control of Property.** Sec. 2. The Board shall have the custody, management and control of the Museum heretofore under the control of the Library Commission and of all property and assets belonging thereto, or intended to be used therewith, both real and personal, and of all property belonging to the City or Board of Education, intended for art or an art collection, museum or other similar purposes, and of all property which shall hereafter be purchased, donated, loaned to or otherwise secured by the City or the Board of Education, intended for and suitable for use in connection with said museum or art collection.

243. **Serve without Compensation—Organization—City Treasurer Custodian.** Sec. 3. No member of the Board shall receive any compensation for his or her services in connection therewith. Annually the Board shall organize by electing one of its members President and one of its members Secretary. The City Treasurer shall be custodian of the funds of the Board and all bills incurred by it shall be allowed by the Board and certified to the City Comptroller to be audited.

244. **Employes.** Sec. 4. It shall be the duty of the Board to appoint and employ such employes as the economical and efficient service of this department shall require and to prescribe and fix their duties and compensation.

245. **Gifts to Board.** Sec. 5. The legal title to all property obtained in the future both real and personal, intended for and suitable for use in connection with an art collection or museum and from whatsoever source the same may be obtained, shall be in the City of Grand Rapids, but the Board shall have the custody, management and control of all such property as trustee for the City: Provided, that no gift, device or real estate shall be accepted without the approval of the City Commission: Provided further, that trust funds shall be paid to and invested by the Trustees of the Sinking Fund.

246. **Funds for Support.** Sec. 6. There may be placed in the budget annually a sufficient sum to defray the expense of maintaining and conducting the art collection and museum and the same may be annually appropriated by the City Commission.

247. **Enforcement of Rights.** Sec. 7. If at any time it shall become necessary to institute proceedings in any court to enforce the rights, powers and privileges of the Board, or to protect the property placed in its charge, it may cause suit therefor to be brought and prosecuted in the name of the City of Grand Rapids, or the Board of Education of the City, or in such other name as may be necessary or appropriate. The Board shall also have the power to defend any suit involving the custody, right or title to any property of which it may be trustee, or of which it has the management and control. The City Attorney shall act for the Board.

248. **Establishment and Maintenance of a Furniture Museum.** Sec. 8. The City Commission may provide by ordinance for the establishment and maintenance of a furniture museum separate from the regular museum now established, and for the creating of a governing body for the same to be known as 'The Board of Furniture Museum Commissioners,' consisting of five commissioners, and the City Commission may annually appropriate such sums as it may see fit to

appropriate. The appointment, compensation and term of office of the Commissioners and the organization of the Board shall be determined as is provided in Section 1 and 3 of this Title.
(9-15-36)

249. **Legal Title To All Property.** Sec. 9. The legal title to all property now owned or to be obtained in the future, both real and personal intended for the Furniture Museum, shall be held in the name of The City of Grand Rapids, but if and when The Board of Furniture Museum Commissioners is organized and maintained, such Board shall appoint the necessary employees, prescribe their duties and fix their compensation; have the custody, management and control of the property of the said museum, as trustee for the City; shall enforce the rights, powers and privileges of the Board to protect the property placed in its charge, and cause suits therefore to be brought in the name of The City of Grand Rapids or in any other name, as may be necessary or appropriate. Provided, that no gift or devise of property shall be accepted without the approval of the City Commission, and provided, further, that the City Treasurer shall be custodian of the funds of the Board, and all bills incurred by it shall be allowed by the Board, and certified to the City Comptroller to be audited. Provided, further, that the trust funds shall be paid to and invested by the trustees of the sinking fund.
(9-15-36)

TITLE XV. HOUSE OF CORRECTION AND WORK FARM

250. **May Establish.** Sec. 1. The City Commission, subject to the provisions of Section 4 of this title, may by ordinance provide for the establishment and maintenance by the City of a house of correction and work farm.

251. **Competition in Open Market Prohibited.** Sec. 2. It shall be illegal for said institution to sell any manufactured products made by its inmates, in the open market, in direct competition with free labor.

252. **How Governed and Maintained.** Sec. 3. Said institution when established shall conform to the general state law and be governed, conducted and maintained in the manner therein provided. The City Commission shall have such authority over the institution and over the appointment of the officers and employes thereto as is or shall be vested in it by Act 278 of Public Acts of 1911, or any amendment thereof. The appointments shall be made from persons certified by the Civil Service Commission as eligible under its rules.

253. **Referendum.** Sec. 4. The question whether such institution shall be provided for and maintained by the City and of raising the necessary funds for installation, shall first be submitted to and approved by three-fifths of the qualified electors of the City voting thereon, and upon such propositions women taxpayers having the qualifications of male electors shall be entitled to vote.

TITLE XVI. LIQUOR TRAFFIC

254. **Powers of City Commission.** Sec. 1. The City Commission shall have all the powers and authority vested in the common council of a village or city under the liquor laws of the State of Michigan, and shall have power to license, regulate and restrain all places where intoxicating, spirituous, vinous, malt, brewed or fermented liquors are sold either at retail or wholesale.

255. **City Commission to Prescribe Districts—Vote to Change.** Sec. 2. The City Commission shall fix and prescribe by ordinance from time to time, the district within which saloons and bars where such liquors sold at retail or given away, may be located; and no such district, after it has once been fixed, shall be extended except by a five-sevenths vote of the entire City Commission.

256. **License Fee.** Sec. 3. The City Commission shall fix by ordinance the city license fee that shall be charged and paid annually for the privilege of manufacture, sale or other disposition of any such liquors.

257. **Granting of License to Person Already Licensed.** Sec. 4. (a). All licenses for the sale of any such liquors, at retail or wholesale, shall be granted by the City Commission. In all cases where the applicant is already licensed to

conduct a liquor business in the City at retail or wholesale, and has been engaged for a year or more immediately preceding the filing of his application for license, and such applicant has not been found guilty of any violation of the liquor laws of this state or the liquor ordinances of this City, on filing his application for such license in the manner prescribed by the laws of this State, the City Commission shall grant the license prayed for.

Procedure for Persons Not Already Licensed. (b). Whenever a license is applied for by a person who has not been engaged in or licensed to conduct a liquor business in the City for a year or more immediately preceding the filing of his application, his application shall first be filed with the Department of Public Safety and be investigated by the Director of said Department and the Superintendent of Police, and be by them transmitted to the City Commission with their recommendation endorsed thereon. In case their recommendation be adverse to granting said license, such license shall not be granted except by a vote of five of the Commissioners elected, not including the Mayor. If the recommendation be favorable, the license may be granted by a majority vote of the City Commission.

258. **Continuation of License in Case of Death.** Sec. 5. In the event of the death of a licensee during the life of his license, the special or general administrator of his estate or executor of his will shall have the right to continue the deceased licensee's business under his license for the remainder of the license year. The representative of the estate of a deceased licensee may sell the license to any purchaser; but before the purchaser shall be permitted to do business as a liquor dealer thereunder, he shall file his application for such authority and comply with all the requirements prescribed by law in like manner as an original applicant for a license.

259. **To Whom License May Be Sold.** Sec. 6. The holder of any liquor license shall have the right to sell the same during the life thereof to any person but the purchaser shall first file his petition with the proper authorities and comply with all the requirements prescribed by law, in like manner as an original applicant.

260. **Transfer of License.** Sec. 7. If during the life of his license, a dealer in any such liquors either at retail or wholesale, is obliged to move from the building in which his license has been granted and if such dealer can obtain a building elsewhere within the district fixed by the City Commission in which liquors may be sold, he shall be permitted to transfer his license to such building in the event that the City Commission determines that such place is not an improper one for the conducting of such liquor business.

261. **Laws to be Complied with before Granting of License.** Sec. 8. No license shall be granted to any person for the manufacture, sale or disposition of any such liquors until he shall have first complied with the State law and all City ordinances nor until he shall have filed his bond and paid the State tax and all license fees as provided by law and said ordinances. The license shall fix the location of such business.

262. **Number of Licenses to be Granted.** Sec. 9. Until the result of the Federal census of 1920 is published the City Commission shall have power to grant not more than one hundred sixty licenses to retail dealers of any such liquors, and after that time not more than one such license shall be granted for each eight hundred of the population of the City, as shall appear to have resided within the limits thereof at the time of said census.

263.**Sale of Liquor by Druggists.** Sec. 10. Druggists who furnish liquors for medicinal, mechanical, scientific or sacramental purposes only and in strict compliance with the law, shall not come within the provisions of the foregoing sections relating to saloons.

TITLE XVII. CEMETERIES

264. **Powers and Duties of City Commission.** Sec. 1. The City Commission is hereby given power to purchase or acquire by deed, gift, condemnation or otherwise, property for cemetery purposes, either within or without the City limits, and to assign names to such cemeteries as it may acquire: Provided, that the right of condemnation shall not apply to existing cemeteries.

265. **Gifts in Trust for Cemetery Use.** Sec. 2. The City Commission is hereby authorized to accept from any person, firm, corporation or association, any conveyance, gifts, bequests or devise in trust, of any cemetery burial lots, monuments, vaults, tombs or graves, and any gift, bequest or devise in trust, for maintaining, repairing, beautifying or improving the same.

266. **Care of Cemetery Trust Funds.** Sec. 3. All funds held in trust for the uses or purposes in the preceding paragraph, shall pass to and be held by the Trustees of the Sinking Fund, and each trust fund shall be kept separate and apart from all other funds and shall be invested by the Trustees of the Sinking Fund. Any portion of the income of a trust so entered upon by the City may be expended as in the trust provided, and shall be accounted for accordingly.

267. **Survey of Cemeteries—Price of Lots.** Sec. 4. The City Commission shall cause to be made surveys and maps of all new cemeteries and shall regulate the sale and fix the prices of lots or graves, and shall fix the prices for interments, care and all other services incident to the use of all cemeteries. The City Commission shall assign and set apart suitable plats of ground for the burial of the deceased poor, and shall creditably care for and beautify the same, and cause interments of the deceased poor to be made therein. The cost of the care of such plats and the interments made therein shall be paid out of the poor fund of the City. The City Commission shall provide a plat of ground and care for the same wherein single interment permits shall be sold at a price of not to exceed ten dollars.

268. **Perpetual Care.** Sec. 5. The City Commission shall provide a plan whereby upon a payment of a certain sum, perpetual care will be given to any cemetery property. Moneys received for such perpetual care shall be placed in separate accounts in the custody of the Trustees of the Sinking Fund and shall be invested by them. The income only therefrom shall be used for the care of the lots or graves for which such moneys have been received, and the City Commission shall see that the trust thus imposed is carried out.

269. **Moneys Received from Cemeteries.** Sec. 6. All money received from any of the cemeteries from any source shall be first paid to the City Treasurer. Such money, or such portion thereof as the City Commission shall determine, not less than fifteen per cent, in addition to the perpetual care money provided for in Section 5, shall be paid to and be invested by the Trustees of the Sinking Fund. A separate account shall be kept of the receipts from each cemetery and the income from such funds in the hands of the Trustees of the Sinking Fund, and such portion of the general receipts of such cemetery as the City Commission may deem necessary, may be expended for the maintenance of the cemetery from which such receipts came. From the surplus funds of any cemetery there shall be paid to the City a sufficient amount to repay the principal or parts thereof with interest thereon of any moneys theretofore advanced by the City from other funds for the purchase or improvement of that cemetery.

270. **Loans for Maintenance of Cemeteries.** Sec. 7. The City Commission shall, from time to time, advance such funds as it may deem necessary to purchase additional cemetery property and to maintain any cemetery belonging to the City. Such advances shall be charged against the cemetery for which it is expended.

TITLE XVIII. MISCELLANEOUS PROVISIONS

271. **Attendance of Witnesses and Production of Books, etc.** Sec. 1. The City Commission shall have the power to compel by subpoena the attendance of witnesses and the production of books, papers and data in any proceeding or hearing pending before it. The form of the subpoena shall be prepared by the City Attorney. The City Commission shall provide by ordinance for the punishment of any person who willfully fails or refuses to obey the command of the subpoena after the same has been personally served. Such subpoena may be served by any person of lawful age. Any witness shall be entitled to receive the same fees for attendance as witnesses in the Superior Court of Grand Rapids, to be paid from the contingent fund of the City.

272. **Interest of Officials in Contracts with City Prohibited.** Sec. 2. No officer or employee of the City shall have a personal interest, direct or indirect, in any contract with the City, or be personally interested, directly or indirectly, in the sale to the City of any supplies, material, service or land, except on behalf of the City as an officer or employe. Any willful violation of this section shall constitute malfeasance in office, and any officer or employe found guilty thereof shall thereby forfeit his office and may be otherwise punished as may be prescribed by ordinance. Any such contract shall be voidable at the option of the City.

273. **Official who Resigns not to Bid on Improvements.** Sec. 3. No official or employe of the City who resigns shall be permitted thereafter to bid upon improvements, construction or other work, the ordering of which or the plans and specifications for which such employe or official has had a part in making. Punishment for such conduct shall be prescribed by ordinance.

274. **Officials Not to Accept Favor.** Sec. 4. Any official or employe of the City who uses his official position or employment directly or indirectly to procure for himself or for another or who accepts for himself or for another, favors, advantages, money, passes, privileges or anything whatever of value other than his regular compensation and expenses, upon terms more favorable than are granted to the public generally, shall upon conviction thereof, be deemed to be guilty of misfeasance in office and shall thereby forfeit his office or employment with the City.

275. **Punishment for Violation of Charter.** Sec. 5. Any person, official or employe upon conviction in a proper court of a violation of any of the terms of this Charter shall be deemed to be guilty of a misdemeanor and shall be punished by imprisonment in the county jail for not to exceed three months or by a fine of not to exceed five hundred dollars, or by both in the discretion of the court.

276. **Provisions Cumulative and not to Supersede State Law.** Sec. 6. All prohibited practices herein shall be construed to be cumulative to the laws of the state, and shall in no case be held to supersede or displace any of the requirements of the state laws.

277. **Annual Reports—Budget.** Sec. 7. The City Manager and every other official, commission, board, or department, shall render annually on the last Tuesday of April, and oftener when required by resolution of the City Commission and in accordance with such resolution, their whole and complete written report of the business of such office, commission, board or department, or any division thereof, covering the period of the fiscal year and the doings of the several subordinates. They shall make such comments and recommendations for the improvement and needs of the work of the office, commission, board or department, as they may deem expedient or necessary. The annual report shall show the amount of money received and expended, the balance on hand, contain an estimate of the probable income for the ensuing year, and a recommendation as to what sum of money in their judgment should be placed in the next annual budget to be raised by direct taxation or in any other manner. Such reports shall be public and be printed and published as the City Commission may direct.

278. **Contracts Limited—Executed in Triplicate.** Sec. 8. All contracts executed by the City shall be in triplicate, one copy thereof to be filed with the City Comptroller and one with the City Clerk.

Except as otherwise provided in this charter, or by law, no contract shall be entered into by the City for a period exceeding three (3) years; provided, however, that said time limitation shall not apply to contracts with other municipal corporations, public corporations, governmental agencies or public authorities or districts, or to contracts for the purchase or sale of real estate or the lease to or from the City thereof. Contracts not subject to the three (3) year limitation shall not be in perpetuity, but shall either be revocable at will of the City, or shall be for a definite term to be stated therein not to exceed forty (40) years; provided, however, that all contracts for the lease of real estate may be for a term not to exceed ninety-nine (99) years. All contracts shall be subject to such limitations as may be provided from time to time by the laws of this state.
(2-18-57; 11-8-60)

279. **Delivery to Successor.** Sec. 9. Whenever any officer shall resign or be removed from office or the term for which he shall have been elected or appointed shall expire, he shall, on demand, deliver to his successor in office or to the City Commission, all books, papers, moneys, and effects in his custody as such officer, or appertaining to his office. Every person violating this provision shall be deemed guilty of a misdemeanor and punished as the City Commission shall by ordinance provide.

280. **Liability of Contractor for Negligence—Subrogation of City.** Sec. 10. If any contractor shall fail to maintain sufficient fence or protection guards to prevent damage or injury to persons or property, or shall be guilty of other negligence in doing work under contract, and injury to persons or property shall occur by reason of such default or negligence, such contractor and his bondsmen shall be liable to the person injured in person or property, for the damage sustained, to be recovered with costs in the proper form of action in any court of competent jurisdiction. If any judgment be recovered against the City as defendant in any suit based upon such default or negligence, the City shall be subrogated to the rights of the plaintiff against such contractor or his bondsmen.

281. **Powers Reserved to City Regarding Fulfillment of Contract.** Sec. 11. Every contract to which the City is a party shall reserve to the City the right to determine finally all questions as to the proper performance of such contract, or any unfinished portion thereof, and in case of the improper, dilatory or imperfect performance thereof to suspend the work at any time and to order the partial or entire reconstruction of the same, and whenever from unreasonable delay in the work or for other just cause it shall declare such contract forfeited to relet the work covered by such contract or any unfinished portion thereof. Power is hereby given the City to determine all such questions arising under any such contract according to the true intent and meaning thereof. Every contract shall also reserve to the City the right, when it shall become satisfied that the work provided for in any contract will not be completed within the time limited, to furnish additional labor and material if necessary, and render such assistance as it may deem advisable for the completion of such contract. The cost and expense thereof shall be charged to the contractor and retained by the City out of the contract price.

282. **Expense of Apprehending Criminals.** Sec. 12. The expenses of apprehending, examining, committing and confining offenders against the laws of this state in the City shall be audited and paid by the supervisors of the County of Kent, in the same manner as if such expenses had been incurred in any township of the County.

283. **Suits to Recover Fines, etc. Residents not Disqualified as Jurors, etc.** Sec. 13. (a). All suits which shall be commenced to recover any fine, penalty, or forfeiture for the violation of any ordinance or regulation of the City, or of any of the provisions of this Charter, shall be brought in the name of the City of Grand Rapids in any court having jurisdiction thereof.

(b). No person who is an inhabitant of the City, and who has the other requisite qualifications therefor, and is not especially exempt therefrom, shall be disqualified from acting as a judge, justice or a juror in the trial or other proceedings in any suit brought to recover any such fine, penalty or forfeiture, nor from serving any process or summoning a jury in such suit, nor from acting in any capacity in any proceeding before or during the trial thereof, or in any proceeding after judgment therein taken to carry such judgment into effect; nor shall any such person be disqualified from being a witness on the trial of any issue or upon the taking of any inquisition or assessment, or any investigation of facts to which issue, inquest or investigation in any suit as aforesaid, the City or any City or ward officer is a party, or in which the City or such officer is interested.

(c). The provisions of this section shall apply to all suits of whatever nature, civil or criminal, brought for or in the name of the City.

284. **Pleadings in Certain Cases.** Sec. 14. In suits commenced before any justice of the peace or in any other court for the recovery of any fine, penalty or forfeiture for violation of any provisions of the statutes of this state or any provisions of this Charter, or of any ordinance or regulation of the City, it shall not be necessary to file any

declaration therein or to recite, or to name any plea in any writ or process, but the plea of the defendant shall be the same as in criminal cases and shall be to the complaint filed in such suit. If upon the trial of any such suit the defendant is acquitted, the judgment entered shall show that fact, and if convicted it shall show the judgment for the fine, penalty or forfeiture for which suit was brought, and costs therein, and the term of imprisonment, if any, in case of nonpayment thereof.

285. **Fines—Costs and Imprisonment—Executions for.** Sec. 15. Every execution for any fine, penalty or forfeiture recovered for the violation of any of the provisions of the statutes of this state, or of this Charter, or of any by-law, ordinance or regulation of the City Commission, may be issued immediately on the rendition of the judgment and shall command the amount thereof to be made of the property of the defendant, if any such can be found, and if not, then to commit the defendant to the Kent County Jail for such time as shall be fixed therein by the court from which such execution was issued. It shall be lawful for the officer receiving such execution to take the body of such defendant therein, unless such defendant shall point out or deliver to such officer sufficient goods and chattels belonging to such defendant, liable to execution and free from encumbrances to satisfy the same. The keeper of said Kent County Jail shall receive the said defendant and keep him safely therein during the time mentioned in said writ unless he shall sooner pay the amount specified in such execution and cost of his detention.

286. **Notice Served in Suits.** Sec. 16. (a). In all suits brought against the City of Grand Rapids process shall be served upon either the Mayor, the City Clerk, or the City Attorney and all notices required by law to be served upon the City shall be served upon one of said officials.

Payment of Judgments and Costs by City. (b). No execution shall issue against the City for any judgment or costs recovered against it, but the City Commission shall allow and pay the amount of any final judgment or costs which may be recovered against the City in the same manner as accounts are audited and paid by the City.

287. **City not Required to File Bond.** Sec. 17. The City shall not be required to give a bond in any suit or proceeding in court or on appeal from any judgment or final order thereof.

288. **Public Records as Evidence.** Sec. 18. All papers, books or other records of any matter required by the general statutes of this State, or any of the provisions of this Charter, or by the provisions of any ordinance or regulation of the City, to be kept in any of the several departments of the municipal government of the City shall be deemed public records of such department, and the same or copies duly certified by the custodian thereof shall be prima facie evidence of their contents in all suits at law or in equity or in other proceedings.

289. **Police Court to Enforce Rules and Regulations.** Sec. 19. The Police Court of the City of Grand Rapids shall have jurisdiction for the enforcement of all the legal provisions of this Charter, and of all ordinances in pursuance thereof, including those relating to cemeteries and property owned by the City whether the same be within or without the City limits, and to that end the City Commission may adopt ordinances and regulations in relation to such enforcement, and may provide for the imposition of penalties or imprisonment, or both, for any violation thereof.

290. **Fiscal Year.** Sec. 20. Commencing with the year 1941, the fiscal year of the City shall begin upon the first day of July and shall end with the last day of June in each year.

(a). For the period from April 1st to June 30, 1941, a special supplemental budget shall be adopted, following the general procedure provided for in the City Charter for the adoption of the annual budget.
(4-1-40)

291. **All Fines, Costs, etc., to Belong to City.** Sec. 21. All fees, costs, charges or income of whatever nature collected by any officer, agent or employe of the City by virtue of his office or employment shall belong to the City, and shall be paid into the City Treasury daily and placed in the proper fund unless otherwise expressly provided.

292. **Restrictions of Marijuana.**

(a) No person shall possess, control, use, or give away marijuana or cannabis, which is defined as all parts of the plant cannabis sativa l., whether growing or not; its seeds or resin; and every compound, manufacture, salt, derivative, mixture, or preparation of the above, unless such possession, control, or use is pursuant to a license or prescription as provided in Public Act 196 of 1971, as amended. This definition does not include the mature stalks of the plant, fiber produced from the stalks, oil or cake made from the seeds of the plant, any other compounds, manufacture, sale, derivative, mixture or preparation of the mature stalks, except the resin extracted therefrom, fiber, oil or cake, or the sterilized seed of the plant which is incapable of germination.

(b) Violations of this section shall be civil infractions. Persons convicted of violating this section shall be fined $25.00 for the first offense, $50.00 for the second offense, $100.00 for the third or subsequent offense and no incarceration, probation, nor any other punitive or rehabilitative measure shall be imposed. Fines and all other costs shall be waived upon proof that the defendant is recommended by a physician, practitioner or other qualified health professional to use or provide the marijuana or cannabis for medical treatment. The court may waive all or part of the fine upon proof that the defendant attended a substance abuse program. It is an affirmative defense to a prosecution under this section that the use or intended use of the marijuana or cannabis relieves, or has the potential to relieve, the pain, disability, discomfort or other adverse symptoms of illness or medical treatment, or restores, maintains or improves, or has the potential to restore, maintain or improve, the health or medical quality of life of the user or intended user or users of the marijuana or cannabis. Requirements of this subsection shall not be construed to exclude the assertion of other defenses.

(c) In all arrests and prosecutions for violations of this section, appearance tickets and the relevant procedures set forth in Michigan Public Act 147 of 1968, as amended, shall be used.

(d) No Grand Rapids police officer, or his or her agent, shall complain of the possession, control, use, or giving away of marijuana or cannabis to any other authority except the Grand Rapids City Attorney; and the City Attorney shall not refer any said complaint to any other authority for prosecution.

(e) No Grand Rapids police officer, or his or her agent, shall complain and the City Attorney shall not refer for prosecution any complaint, of the possession, control, use, giving away, or cultivation of marijuana or cannabis upon proof that the defendant is recommended by a physician, practitioner or other qualified health professional to use or provide the marijuana or cannabis for medical treatment.

(f) Should the State of Michigan enact lesser penalties than that set forth in subsection (b) above, or entirely repeal penalties for the possession, control, use, or giving away of marijuana or cannabis, then this section, or the relevant portions thereof, shall be null and void.
(11-6-12)

Editor's note—Amendment of May 4, 2010, repealed § 292 which pertained to eight hours to constitute a day's work. See the Charter Comparative Table.

293. **Police and Fire Pensions.** Sec. 23. (a). The City Commission of the City of Grand Rapids shall have and is hereby given authority to provide by ordinance for pensioning persons injured by violence, accident or exposure while employed by the City in extra-hazardous employment, when such injuries arise out of or in the course of such employment; also for the dependents of persons killed while so employed and for persons who have been in such employment of the City and shall have reached the age of fifty-five years or more and shall have elected to come under and have qualified for such pension in accordance with the provisions of an ordinance adopted in conformity with the provisions herein contained.

(b). Any person eligible to a pension as authorized herein, who shall also be eligible to Workmen's Compensation or to make claim by way of damages against any person, firm or corporation responsible for the injury, and shall seek by suit or claim such other remedy, such remedy so selected shall be exclusive of any claim for pension; and in

case of acceptance of pension, the City shall be subrogated to all rights of the employee against the party causing the injury and responsible therefor.

(c). The maximum pension for the period of total disability or for dependents upon the death of the breadwinner when death or injury occur by reason of the extra-hazardous employment, shall be one hundred ($100.00) dollars per month, and the minimum shall be fifty ($50.00) dollars per month.

(d). In case of partial disability while in extra-hazardous employment of the City, such employee shall receive, subject to the foregoing provisions, his regular salary for a period of ninety (90) days, and then reduce to half-salary; in addition, reasonable physician's bill during continuance of such disability or until such person is given a disability pension from the service. No person shall receive a disability pension whose incapacity is caused by his own dissipation or immoral conduct.

(e). In case of death by violence, accident or exposure, the City Commission shall designate the dependents to whom the pension shall be paid and such pension shall be paid to the widow only during widowhood, and to the children only until sixteen years of age.

(f). The City Commission shall also have and it is hereby given the power and authority to provide by ordinance for a retiral and pension system for persons employed by the City in extra-hazardous employment when such injury or retirement does not arise out of or in the course of such employment; and to set up a proper Board for the administration thereof, which shall include employee representation and shall further provide for all necessary rules and regulations in regard thereto, including classification, contributions required to qualify, eligible age of retirement, length of service required, conditions under which such benefits shall cease, regulations determining benefits in whole or in part and all matters and things pertaining thereto or required thereby; and said commission shall also have authority to appropriate public funds in support of such pensions and benefits in addition to amounts received from employees, and accept gifts, endowments or legacies for the benefit of such fund.

(g). The pension board set up under authority of Section 25, Title XVIII of this Charter to handle and control pension matters in connection with employees other than those engaged in extra-hazardous service, as presently formed or hereafter amplified, shall have authority to and shall administer the pension and retirement funds provided for herein unless and until another board shall be established for such purposes by the City Commission.

(h). Subject to the foregoing provisions, the City Commission shall have plenary powers over all pension matters set up or authorized in connection herewith.
(4-2-45)

294. **Amendment of this Charter.** Sec. 24. This Charter may be amended at any time in the manner provided in the Home Rule Act so-called, the same being Act 279 of Public Acts of 1909 as amended.

295. **City Employees.** Sec. 25. (Other than those provided for in Section 23, Title XVIII.) The City Commission of the City of Grand Rapids shall have and it is hereby given the power and authority to provide by ordinance for and to establish a retirement and/or pension system for employees of the City of Grand Rapids other than those provided for in Section 23, Title XVIII of this Charter, including the employees of the library and museums; such ordinance to set up the proper Board for administration thereof, which shall include employee representation, and shall further provide for all necessary rules and regulations in regard thereto, including classifications, contributions required to establish eligibility, age of retirement, length of service required, conditions under which benefits shall cease, regulations terminating rights to benefits in whole or in part, and all matters and things properly relating thereto or required thereby, and said Commission shall also have authority to appropriate public funds in support of such pension and benefits in addition to amounts received from employees and to accept gifts, legacies and bequests for the benefit of such fund. The authority

granted in this section shall not be construed to in any way change or affect the provisions of Section 23 of this Title or the persons included therein or the benefits thereby provided.
(3-7-38)

TITLE XIX. SCHEDULE

That no inconvenience may arise from the changes hereby made in the Charter of the City, and in order to carry the same into complete operation it is hereby declared that:

296. **Existing Ordinances and Rules Continued in Force.** Sec. 1. The existing ordinances and special laws of the City, the rules and regulations of the Common Council and of all boards of the City, not inconsistent with this Charter, are hereby reenacted and shall continue in force until they expire by limitation or are superseded or repealed by action of the constituted authority: Provided, that the City Commission for a period not greater than sixty days may, by a separate vote upon each, continue in force any such ordinances, rules or regulations inconsistent with this Charter.

297. **City to Remain Vested with Property Right and Liabilities.** Sec. 2. After the adoption of this Charter, the City shall continue to be vested with all property, moneys, contracts, rights, credits, effects, and the records, files, books and papers belonging to it as formerly incorporated. No right or liability, either in favor of or against the City, existing at the time of the taking effect of this Charter, and no suit or prosecution of any character shall in any manner be affected by such change, but the same shall stand or proceed as if no change had been made. All debts and liabilities of the City shall continue to be its debts and liabilities, and all fines and penalties imposed and all taxes and assessments levied and uncollected at the time of such change shall be collected, and all licenses issued by the City shall be and remain the same as if such change had not been made: Provided, that when a different remedy is given in this Charter, or in any ordinance pursuant thereto, which can be made applicable to any rights existing upon the adoption of this Charter or subject thereto, the same shall be deemed cumulative to the remedies before provided, and may be used accordingly, unless the newly provided remedy shall be expressly declared to be exclusive.

298. **Charter—Method of Publishing Before Submission.** Sec. 3. (a). This Charter, before submission to the electors shall, together with such a statement of its provisions as shall be prepared by or under the direction of the Charter Commission, be published in the following manner:

(b). Within thirty days after the filing of a copy of the Charter with the City Clerk, he shall cause it to be indexed and printed, together with such statement of its provisions, in pamphlet form, on unglazed paper, in not less than ten point type, and shall within sixty days mail a copy thereof to every registered voter in the City.

(c). Said statement shall also be published in each of the daily newspapers of the City not more than fifteen days nor less than ten days before the election for the adoption of this Charter.

299. **Officers to Continue in Office.** Sec. 4. All officers now holding any office or appointment shall continue to hold the same, unless removed by competent authority, until superseded under laws now in force or under this Charter.

300. **Election to Adopt Charter—Time and Manner of.** Sec. 5. This Charter shall be submitted for adoption or rejection to a vote of the qualified electors of the City at a special election to be held on August 29th in the year 1916. Notice of such election shall be given in the same manner and for the same length of time as is provided in the existing Charter for special elections, and the votes shall be counted and canvassed and the returns made and the result determined and declared in the same manner, as near as may be, as provided by general law for counting, canvassing and returning of votes, and the determining of the results thereof.

301. **Charter Election—Who Entitled to Vote—Form of Ballot.** Sec. 6. The ballots used at such election shall contain the instructions

required under the general election laws of the state, and the proposition to be submitted shall be in the language:

Shall the revised Charter be adopted? ( ) Yes.

Shall the revised Charter be adopted? ( ) No.

Every person entitled to vote for City Officers under the existing Charter may vote upon said adoption or rejection.

302. **Council and Clerk—Duty of upon Adoption of Charter.** Sec. 7. At the next regular meeting after such election, the Common Council shall canvass the vote and declare the result thereof, and if a majority of the electors voting thereon shall have voted in favor of the adoption of the Charter, the Common Council, by a resolution entered upon its records, shall declare such result and that a majority of the electors voting thereon voted in favor of the adoption of such Charter, and that the same was thereby adopted. The City Clerk shall within thirty days after the adoption of this Charter, certify to four copies of said resolution and to four printed copies of said Charter, and file two copies of each with the Secretary of State and the County Clerk, respectively.

303. **When Charter to take Effect.** Sec. 8. For the purpose of nominating and electing officers and exercising the powers of the City as provided herein, this Charter shall take effect immediately upon compliance with the provisions of Section 7 of this title. For the purpose of establishing departments, divisions and offices and distributing the functions thereof, and for all other purposes, it shall take effect on the first Monday in May, 1917.

304. **First Election Under this Charter.** Sec. 9. (a). At the first general election held under the provisions of this Charter there shall be elected; seven City Commissioners, one of whom shall be elected by the City at large and two from each ward, to be nominated and elected by the City at large, twelve supervisors, four to be nominated and elected from and by each ward, three constables, one to be nominated and elected from and by each ward; also the other city officials whose offices are not by this Charter abolished or abrogated, and whose terms of office expire May 1, 1917.

(b). The Commissioner at large so elected shall hold his office for one year. The Commissioner from each ward who shall receive the highest number of votes at the election shall hold his office for two years; the other commissioner elected from each ward shall hold his office for one year. The two supervisors from each ward receiving the highest number of votes at said election shall hold their offices for two years; the other two supervisors elected from each ward shall hold their offices for one year. After the first election, the term of all such officials shall be two years and all such officials shall hold their offices unless removed by competent authority, until their successors have been elected and qualified.

305. **Offices Superseded to Terminate.** Sec. 10. The Mayor and the three Commissioners whose office expires on the first Monday of May, 1924, shall be elected (under the amendment adopted on April 2, 1923,) at the general City election to be held on the first Monday of April, 1924, and shall take office on the first Monday in May, 1924; the remaining three Commissioners shall be elected under said amendment at the election held on the first Monday in April, 1925, and shall take office on the first Monday of May, 1925.
(4-2-23)

306. **Present Salaries to Continue.** Sec. 11. Unless otherwise herein or by ordinance provided, the salaries or compensation of all City officers shall continue as under the existing Charter and ordinances.

307. **Special Acts—Powers Conferred by—To be Exercised Until Repealed.** Sec. 12. All power and authority conferred upon any municipal officer, department or board under any special act, so long as such act remains in force, shall continue to be exercised by the board, officer or department exercising like duties under this Charter.

308. **City Commission to Pass Ordinances to Make Charter Effective.** Sec. 13. The City Commission shall as soon as possible and not later than one year from the time it assumes its

duties, pass all ordinances and measures necessary to make the several provisions of this Charter effective, and shall provide proper penalties for the violation of the Charter and ordinances. Failure of the City Commission or any member thereof, to do, observe and perform the several requirements of this Charter shall be deemed to be a violation of the terms hereof, and be punishable accordingly.

309. **Repealing Clause.** Sec. 14. The existing Charter, being Act. No. 593, Local Acts of 1905, and all acts amendatory thereto or forming a part thereof, are hereby repealed, except Title XIV of said Act relating to the Board of Education; Title XVIII relating to the Police Court; Title XIX relating to dock and safety lines; Title XX relating to the Superior Court; Title XXI relating to Jury Commissioners; Title XXIV relating to repeal of the Hydraulic Company's charter; Title XXVI relating to Tax Histories and the Acts amendatory to said Titles XIV, XVIII, XIX, XX, XXI, XXIV, and XXVI which are repealed only so far as inconsistent with this Charter, Title XIV of said Act. No. 593 of the Local Acts of 1905, being the title covering the Board of Education, and the acts amendatory thereto, are hereby continued in full force and effect. All other special acts supplementary to the existing Charter of the City are hereby repealed so far as inconsistent with the provisions of this Charter and so far as consistent therewith are hereby continued in force, until the same are superseded by lawful authority exercised under this Charter or otherwise.

Grand Rapids, Mich., October 7, 1949

I hereby certify that the foregoing is a correct and accurate copy of the Charter of the City of Grand Rapids, Michigan, as adopted by a vote of the electors on August 29, 1916; and amended April 1, 1918; April 7, 1919; March 3, 1920; April 4, 1921; March 1, 1922; September 12, 1922; April 2, 1923; November 6, 1923; November 6, 1928; April 1, 1929; April 7, 1930; April 6, 1931; March 7, 1932; November 8, 1932; March 5, 1934; April 2, 1934; November 6, 1934; September 15, 1936; March 7, 1938; November 8, 1938; April 1, 1940; April 2, 1945; and February 21, 1949.

R. STANTON KILPATRICK,
City Clerk.

Editor's note—See Charter Comparative Table for subsequent amendments.

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Amendment Date	Referendum Date	Section		Compiler's Paragraph this Charter
4- 7-30				147.1
2-20-56				86.1
2-20-56				213.1
2-18-57				278
11- 4-58				102
8- 2-60				68
11- 8-60				278
2-20-61				60
2-20-61				196
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7-25-61				233
2-19-62				55
2-19-62			Rpld	193
4- 1-63				98
6-18-63				68
9- 1-64				8
4- 5-65				241
2-21-66				4
2-21-66				12
4- 4-66				54
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8- 8-78				210.1
6-11-79				56
6-12-89				68
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				8
				229
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8- 2-94				68
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9- 9-97				68
8- 8-06		1		55
5- 4-10		1	Rpld	292
11- 6-12		1	Added	292
11- 5-13		2	Added	68(e)(2)
1-28-14	5- 6-14	1		208
	11- 4-14	1	Added	9.2
	11- 7-17		Added	68(e)(3)
11-20-20				15
				24

*__Editor's note—__The Charter has been published in conjunction with Supplement No. 14. This table reflects legislation incorporated into the Charter at the time of publication of said Supplement No. 14 and will also reflect all subsequent amendments.

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TITLE I—ADMINISTRATION

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Chapter 1

ADOPTION, CONTENTS AND INTERPRETATION

Sec. 1.1. Publication and Distribution of Code.
Sec. 1.2. Amendment Procedure.
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Sec. 1.12. Insurance and Bonds.
Sec. 1.13. General Penalty.
Sec. 1.14. Severability.
Sec. 1.15. Effective Date.
Secs. 1.16–1.20. Reserved.

Sec. 1.1. Publication and Distribution of Code.

Publication of this codification is hereby ordered. This Code shall be made available to the public for examination at no cost to the office of the City Clerk. The Code shall be available for purchase from the City Clerk at a price to be determined by the Clerk. Each City officer noted below shall receive a City Code and be responsible for its maintenance and up-dating:

Mayor

Each City Commissioner

City Manager

Each Deputy and Assistant City Manager

Each Service Group Director

City Clerk

City Attorney

City Treasurer

Assessor

City Comptroller

Additional copies shall be provided at a cost to be determined by the City Clerk to such other City officers and employees as are necessary for the effective and efficient operation of the City. Any officer or employee to whom a City Code is issued shall be responsible for its maintenance and upkeep.

Sec. 1.2. Amendment Procedure.

This Code shall be amended by ordinance. The title of each amendatory ordinance, adapted to the particular circumstances and purposes of the amendment, shall be substantially as follows:

(1) To amend any Section:

AN ORDINANCE TO AMEND SECTION _____ (or SECTIONS _____ AND _____) OF CHAPTER _____ OF TITLE _____ OF THE CODE OF THE CITY OF GRAND RAPIDS.

(2) To insert a new Section, Chapter or Title:

AN ORDINANCE TO AMEND THE CODE OF THE CITY OF GRAND RAPIDS BY ADDING A NEW SECTION _____ (NEW SECTIONS, A NEW CHAPTER, OR A NEW TITLE, AS THE CASE MAY BE) WHICH NEW SECTION (SECTIONS, CHAPTER OR TITLE) SHALL BE DESIGNATED AS SECTION _____ (SECTIONS _____ AND _____) OF CHAPTER _____ OF TITLE _____ (or proper designation if a Chapter or Title is added) OF SAID CODE.

(3) To repeal a Section, Chapter or Title:

AN ORDINANCE TO REPEAL SECTION _____ (SECTIONS _____ AND _____), CHAPTER _____, TITLE _____, (as the case may be) OF THE CODE OF THE CITY OF GRAND RAPIDS.

Sec. 1.3. Publication and Distribution of Amendments.

Amendments to the Code shall be published as required by the Charter of the City of Grand Rapids and not less than fifty (50) copies of each amendment shall be published in looseleaf form suitable for insertion in the looseleaf copies of the Code. The City Clerk shall distribute such copies to the officers of the City having copies of the Code assigned to them. Each officer assigned a copy of the Code shall be responsible for maintaining the same and for the proper insertion of amendatory pages as received. Each copy of said Code shall remain the property of the City and shall be turned over by each officer having custody thereof upon expiration of his or her term of office to his or her successor or to the City Clerk, in case he or she shall have no successor.

Sec. 1.4. Contents of Code.

This Code contains all the ordinances of the City of Grand Rapids of a general and permanent nature. The adoption of this recodification shall be interpreted as an enactment of a new ordinance which is a recompilation or recodification of existing ordinances with only minor editorial changes. All ordinances of a general and perma-

nent nature in effect on the effective date of this Code are hereby repealed except as to such provisions of any such ordinance as are also contained herein, provided, however, that any ordinances, Sections or parts of any ordinances which are not permanent and general in nature as herein provided, are saved from repeal. Ordinances hereafter adopted which are not of a general or permanent nature shall continue to be numbered consecutively, authenticated, published and recorded in the book of ordinances, but shall not be prepared for insertion in this Code, nor be deemed a part hereof.

Sec. 1.5. Short Title.

This Code may be known and cited as the "Grand Rapids City Code."

State law reference—Codification Authority, MCL 117.5b, MSA 5.2084(2).

Sec. 1.6. Elements of the Code—Official and Unofficial.

As adopted this Code is composed of a number of elements, including but not limited to a Preface, a Table of Contents, Comparative Tables, an Index, Editor's notes, Charter references and State law references. As adopted, the only official and authoritative elements of this Code are the Section numbers and the text of the Sections. The boldface wording immediately following the Section number is hereby defined as the catch-line. The catch-lines, although adopted as part of the enacting ordinances underlying this Code, are not substantive parts of this Code and should not be used to construe the substantive portions more broadly or more narrowly than the text indicates. All other elements of the Code whether referred herein or not, are not a substantive part of the Code. These elements are included to assist users of the Code but they should not be considered substantive or authoritative.

Amendments to this Code shall be adopted in the form provided in Section 1.2. Only the Section numbers and the text contained in each Section shall be considered substantive.
(Ord. No. 76-40, 5-4-76)

Sec. 1.7. Responsibility.

Any person who aids, abets, counsels, procures or assists in the Commission of any offense prohibited by this Code, or by any rule or regulation adopted thereunder, shall be punishable as a principal.
(Ord. No. 76-40, 5-4-76)

Sec. 1.8. Definitions.

The following words and phrases, when used in this Code and any amendment thereto, shall, for the purposes of this Code, have the meanings respectively ascribed to them in this Section, except in those instances where the context clearly indicates a different meaning.

(1) *Person* shall include any individual, copartnership, corporation, association, club, joint adventure, estate, trust, and any other group or combination acting as a unit, and the individuals constituting such group or unit.

(2) *Public place* shall mean any place to or upon which the public resorts, or travels, whether such place is owned or controlled by the City or any Agency of the State of Michigan, or is a place to or upon which the public resorts or travels by custom, or by invitation, express or implied.

(3) *Street, highway* and *alley* shall mean the entire width subject to an easement for public right-of-way, or owned in fee by the City, County or State, of every way or place, of whatever nature, whenever any part thereof is open to the use of the public, as a matter of right for purposes of public travel. The word "alley" shall mean any such way or place providing a secondary means of ingress and egress from a property.

(4) *Sidewalk* shall mean that portion of a street between the curb lines or lateral lines and the right-of-way lines which is intended for the use of pedestrians.

(5) *City* shall mean the City of Grand Rapids.

Sec. 1.9. Title of Officer to Include Deputy or Subordinate.

Whenever, by the provisions of this Code, any officer of the City of Grand Rapids is assigned any

duty or empowered to perform any act or duty, the title of said officer shall mean and include such officer or his or her deputy or authorized subordinate.

Sec. 1.10. Tense.

Except as otherwise specifically provided or indicated by the context, all words used in this Code indicating the present tense shall not be limited to the time of adoption of this Code but shall extend to and include the time of the happening of any act, event, or requirement for which provision is made therein, either as a power, immunity, requirement or prohibition.

Sec. 1.11. Notice.

Notice regarding sidewalk repairs, sewer or water connections, dangerous structures, abating nuisances or any other act, the expense of which if performed by the City, may be assessed against the premises under the provisions of this Code shall be served:

(1) By delivering the notice to the owner personally or by leaving the same at his or her residence, office or place of business with some person of suitable age and discretion; or

(2) By mailing said notice by certified or registered mail to such owner at his or her last known address; or

(3) If the owner is unknown, by posting said notice in some conspicuous place on the premises for five (5) days.

No person shall interfere with, obstruct, mutilate, conceal, or tear down any official notice or placard posted by any City officer, unless permission is given by said officer to remove said notice.

Sec. 1.12. Insurance and Bonds.

(1) Whenever any provision of this Code, or any City policy, rule, regulation, or contract requires a person to file proof of insurance or a bond, the City's Risk Manager or designee shall determine whether any certificate, binder, or policy of insurance or bond complies with the City's requirements, except that the City Attorney shall approve the form of any bond before it is accepted by the City.

(2) All proof of insurance filed with the City must provide that the City will be given thirty (30) days prior written notice of cancellation or termination prior to the stated expiration date. Also, if the stated expiration date precedes the ending date for the period of performance for which the insurance is provided (i.e., end of license year, end of contract term, etc.), then the proof of insurance must provide that the City will be given thirty (30) days prior written notice of an intention not to renew upon expiration.

(3) The Risk Manager shall have authority to modify or waive any City insurance or bond requirement or to accept any irregularity in any proof of insurance provided, or to accept a letter of credit or other alternate form of surety in lieu of a bond when, in his or her judgment and discretion, a particular requirement, under all the circumstances, poses an unnecessary hardship or is an unreasonable requirement and the City will be adequately protected in spite of such waiver or modification.

(Ord. No. 90-01, § 1, 1-2-90)

Cross reference—Surety bond required for City Treasurer, City Comptroller and City administrator, etc., § 1.148.

Sec. 1.13. General Penalty.

(1) Unless another penalty is expressly provided for in the City Charter or in this Code for violation of a particular provision, Section or Chapter, every person convicted of a violation of any provision of this Code shall be punished as follows:

(a) By a fine of not more than five hundred dollars ($500.00); or

(b) By imprisonment for not more than ninety (90) days; or

(c) By both a fine of not more than five hundred dollars ($500.00) and by imprisonment for not more than ninety (90) days.

(2) In addition to the punishment specified above, every person convicted of a violation of any provision of this Code shall be required to pay the costs of their prosecution. This subsection does not apply to any municipal civil infraction.

(3) In addition to the provisions of subsection (2) of this section, any person determined to be responsible for a municipal civil infraction shall be liable for the payment of costs of prosecution in an amount of not less than ten dollars ($10.00) and not more than five hundred dollars ($500.00).

(4) For purposes of this Section, the words "violation of any provision of this Code" shall include any violation of the Code, any violation of a provision of the Charter of the City of Grand Rapids, and any violation of a rule or regulation adopted or issued under authority granted by this Code or by the Charter of Grand Rapids.

(5) Each act of violation and every day upon which any violation is permitted or suffered to exist shall constitute a separate violation and shall be punished separately upon conviction. The penalty provided by this Section, unless another penalty is expressly provided, shall apply to any amendment or addition to this Code whether or not such penalty is reenacted in the amendatory ordinance.
(Ord. No. 66-1, 1-11-66; Ord. No. 79-22, 4-10-79; Ord. No. 2014-60, § 1, 7-22-14)

State law reference—Limitation on penalties, MCL 117.4i, MSA 5.2082.

Sec. 1.14. Severability.

It is the legislative intent of the Commission in adopting this Code, that all provisions and Sections of this ordinance be liberally construed to protect and preserve the peace, health, safety and welfare of the inhabitants of the City of Grand Rapids and should any provision or Section of this ordinance be held unconstitutional or invalid, such holding shall not be construed as affecting the validity of any of the remaining provisions or Sections, it being the intent that this ordinance shall stand, notwithstanding the invalidity of any provision or Section thereof.

The provisions of this Section shall apply to the amendment of any Section of this Code whether or not the wording of this Section is set forth in the amendatory ordinance.

Sec. 1.15. Effective Date.

This Code shall take effect thirty (30) days after its adoption.

Secs. 1.16—1.20. Reserved.

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Chapter 2

CITY COMMISSION*

Article 1. Meetings

Sec. 1.21. Meeting Dates.
Sec. 1.22. Hours for Meetings.
Sec. 1.23. Locations for Meetings.
Sec. 1.24. Compliance With the Open Meetings Act.

Article 2. Witnesses Before Commission

Sec. 1.25. Clerk to Issue Subpoenas.
Sec. 1.26. Subpoenas to Be Served.
Sec. 1.27. Penalty.
Sec. 1.28. Aid of Circuit Court.
Sec. 1.29. Reserved.

Article 3. False Swearing Before Commission

Sec. 1.30. Deemed Perjury.
Secs. 1.13—1.40. Reserved.

***Charter references—**Meetings, Title V, Sec. 5; Attendance of Witnesses and Production of Books, etc., Title XVIII, Sec. 1.

Cross references—Elections, Ch. 3; administrative policy and procedure, Ch. 5; pension and retirement benefits, Ch. 7; Boards and Commissions, Ch. 8; City Commission to act as Board of Review at special assessment hearings, § 1.429; purchases, contracts and sales, Ch. 11; emergency management, Ch. 13; ward apportionment, Ch. 15; investments, Ch. 18; City water system, Ch. 26; zoning, Ch. 61; Planning Commission, Ch. 62; subdivision regulations, Ch. 64; historic preservation, Ch. 68; licensing and regulation, Ch. 91; civil emergency, Ch. 161.

State law references—Standards of conduct and ethics, MCL 15.341 et seq., Open Meetings Act, MCL 15.261 et seq.; Freedom of Information Act, MCL 15.231 et seq.; Municipal Finance Act, MCL 131.1 et seq.

ARTICLE 1. MEETINGS*

Sec. 1.21. Meeting Dates.

The City Commission shall meet in regular session twice each calendar month, and such meetings shall be held on Tuesdays. In the event any Tuesday is a legal holiday for the City, the City Commission may meet in regular session the following day.
(Ord. No. 2013-42, § 2, 8-27-13)

Charter reference—Meetings, Title V, Sec. 5.

Sec. 1.22. Hours for Meetings.

At least one regular meeting of the City Commission each month shall be held in the evening at 7:00 p.m. The remaining regular meetings each month that are not held at 7:00 p.m. shall be held in the afternoon at 2:00 p.m.
(Ord. No. 2013-42, § 2, 8-27-13)

Sec. 1.23. Locations for Meetings.

(1) Regular meetings of the City Commission shall be held in the Grand Rapids City Commission Chambers, 9th floor, City Hall, Grand Rapids, Michigan, except as provided in the following subsection.

(2) Up to three times per year, regular meetings of the City Commission may be held at locations in the various wards of the City.
(Ord. No. 2013-42, § 2, 8-27-13)

Sec. 1.24. Compliance With the Open Meetings Act.

In accordance with the Michigan Open Meetings Act, MCL 15.261 et seq., the City Commission shall at least annually, by resolution, adopt a schedule of its regular meetings showing the dates, times and places of such meetings.
(Ord. No. 2013-42, § 2, 8-27-13)

*__Editor's note—__Ord. No. 2013-42, §§ 1, 2, adopted August 27, 2013, repealed the former Art. 1, §§ 1.21, 1.22, and enacted a new Art. 1 as set out herein. The former Art. 1 pertained to similar subject matter. See Code Comparative Table B for complete derivation.

ARTICLE 2. WITNESSES BEFORE COMMISSION

Sec. 1.25. Clerk to Issue Subpoenas.

The City Clerk upon instructions from the Mayor or any Commissioner or the City Attorney, shall issue subpoenas in the name of the Mayor of the City and under the corporate seal of said City, which subpoenas shall be signed by the said City Clerk, directed to any person whom such official ordering the subpoena may deem necessary as a witness in any matter pending before the City Commission or any Committee thereof, ordering said person to appear before said Commission or Committee at a certain time and place to be designated in said subpoena, to testify concerning such matter or thing or to produce before said Commission or Committee at said time and place, such books, records, contracts, papers or other data as shall be designated in said subpoena.

Charter reference—Attendance of Witnesses and Production of Books, etc., Title XVIII, Sec. 1.

Sec. 1.26. Subpoenas to Be Served.

Such subpoenas shall be served by some officer designated by the Director of Public Safety if requested by the official ordering such subpoena, or may be served by any person over the age of twenty-one (21) years, by delivering a copy thereof to such person.

Sec. 1.27. Penalty.

If the person so subpoenaed as herein provided shall fail to appear at said time and place, and due proof by affidavit of personal service upon the person subpoenaed filed with the City Clerk, or if any witness appearing shall refuse to testify or to answer any question relative to the matter under inquiry, or produce any books, records, contracts or other papers required to be produced by the subpoena and under the control of said witness, such person on conviction thereof in the 61st District Court, shall be punished as prescribed in Section 1.13 of this Code.
(Ord. No. 73-39, 6-5-73)

Sec. 1.28. Aid of Circuit Court.

If any person so subpoenaed as herein provided shall fail to appear at said time and place, or appearing shall refuse to testify or answer any question, or to produce any books, records, contracts or papers which he or she has been directed to produce, such official ordering such subpoena may by petition invoke the aid of the Circuit Court for the County of Kent in requiring the affidavits and testimony of witnesses and the production of all books, papers and documents, and have subpoenas issued from said Circuit Court for the County of Kent in the usual manner, requiring the attendance of any witness to testify and the production of any books, papers and documents before said Commission or Committee; and in case of refusal to obey a subpoena or to answer a proper question propounded by said Commission or Committee, said Circuit Court may issue an order requiring such person to appear before said Commission or Committee, and to produce books, papers, documents or data, if required, and give evidence touching matters under investigation.

Sec. 1.29. Reserved.

ARTICLE 3. FALSE SWEARING BEFORE COMMISSION

Sec. 1.30. Deemed Perjury.

Any person who may be required to take any oath or affirmation or subscribe to any affidavit in respect to any matter pending before the City Commission or any of its Committees, and shall in such affidavit swear falsely as to any material fact involved in such matter, or having taken an oath before the Mayor, President, City Clerk or the Chairman of any general or special Committee of the City Commission, shall wilfully swear falsely as to any material fact in respect to such matter, shall be guilty of perjury, and shall be punished as provided by law.

Secs. 1.31—1.40. Reserved.

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Chapter 3

ELECTIONS*

Article 1. Ward Apportionment

Sec. 1.41. Ward Apportionment.
Secs. 1.42.—1.45. Reserved.

Article 2. *Voting Precincts*

Sec. 1.46. Voting Precincts.
Secs. 1.47.—1.70. Reserved.

***Editor's note**—Ord. No. 2014-11, § 1, adopted March 11, 2014, amended chapter 3 in its entirety to read as herein set out. Former chapter 3, §§ 1.41, 1.44, pertained to voting precincts. See Code Comparative Table for complete derivation.

State law references—Political activities by public employees, MCL 15.401 et seq., MSA 4.1702(1) et seq.; Michigan Election Laws, MCL 168.1 et seq., MSA 6.1001 et seq.

ARTICLE 1. WARD APPORTIONMENT

Sec. 1.41. Ward Apportionment.

The City of Grand Rapids shall be divided into three (3) Wards, as follows:

First Ward. All that part of the City lying westerly of a line described as commencing at the centerline of the Grand River at the north City limits, thence south along said centerline to the centerline of the Conrail Railroad (vacated), thence southeasterly along said centerline of the Conrail Railroad (vacated) to the centerline of Fulton Street, thence east along said centerline to the centerline of Jefferson Avenue, thence south along said centerline to the centerline of Burton Street, thence east along said centerline to the centerline of Eastern Avenue, thence south along said centerline to the south City limits.

Second Ward. All that part of the City lying easterly and northerly of a line described as commencing at the centerline of the Grand River at the north City limits near Four Mile Road, thence generally south along said centerline to the centerline of the Conrail Railroad (vacated), thence southeasterly along said centerline of the Conrail Railroad (vacated) to the centerline of Fulton Street, thence east along said centerline to the centerline of Jefferson Avenue, thence south along said centerline to the centerline of Wealthy Street, thence east along said centerline to the centerline of Lake Drive, thence southeast along said centerline to the common boundary with East Grand Rapids.

Third Ward. All that part of the City lying easterly and southerly of a line described as commencing at the centerline of Eastern Avenue at the south City limits, thence north along said centerline and the City limits to the centerline of Burton Street, thence west along said centerline to the centerline of Jefferson Avenue, thence north along said centerline to the centerline of Wealthy Street, thence east along said centerline to the centerline of Lake Drive, thence southeast along said centerline to the common boundary with East Grand Rapids.
(Ord. No. 2014-11, § 1, 3-11-14)

Secs. 1.42.—1.45. Reserved.

ARTICLE 2. VOTING PRECINCTS

Sec. 1.46. Voting Precincts.

That pursuant to Title I, Section 5(a) of the Charter of the City of Grand Rapids, the City Commission hereby establishes fifty-nine (59) election precincts with the boundaries shown on the Election Precinct Map filed with the City Clerk.
(Ord. No. 2014-11, § 1, 3-11-14; Ord. No. 2019-74, § 1, 12-3-19; Ord. No. 2022-05, § 1, 2-22-22; Ord. No. 2025-09, § 1, 4-29-25)

Secs. 1.47.—1.70. Reserved.

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Chapter 4

ADMINISTRATIVE SERVICE*

Article 1. In General

Sec. 1.71. Officers Appointed by City Commission.
Sec. 1.72. Division of Administrative Service.
Sec. 1.73. Department Responsibilities.
Sec. 1.74. City Income Tax Administrator.
Secs. 1.75—1.80. Reserved.

Article 2. Police Department

Sec. 1.81. Department of Police.
Sec. 1.82. Functions of Police Department.
Sec. 1.83. Department Rules.
Sec. 1.84. Acting Superintendent.
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Sec. 1.86. Funding of Community Police Officers.
Secs. 1.87—1.90. Reserved.

Article 3. Fire Department

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Article 4. Reserved

Secs. 1.101—1.110. Reserved.

Article 5. Reserved

Secs. 1.106—1.110. Reserved.

Article 6. Reserved

Secs. 1.111—1.115. Reserved.

Article 7. Reserved

Secs. 1.116—1.120. Reserved.

***Cross references—**City Commission, Ch. 2; administrative policy and procedure, Ch. 5; Unemployment Compensation Plan, Ch. 6; pension and retirement benefits, Ch. 7; Boards and Commissions, Ch. 8; property tax levy and collection, Ch. 9; special assessments, Ch. 10; purchases, contracts and sales, Ch. 11; uniform City income tax, Ch. 14; investments, Ch. 18; tax increment finance authority, Ch. 22; City water system, Ch. 26; City sewage disposal system, Ch. 27; automobile parking system, Ch. 30; parks, Ch. 41; trees, Ch. 42; streets, Ch. 51; sidewalks, Ch. 52; special events, Ch. 53; zoning, Ch. 61; Planning Commission, Ch. 62; subdivision regulations, Ch. 64; urban renewal areas, Ch. 65; historic preservation, Ch. 68; health regulations, Ch. 71; general licensing regulations, Ch. 91; fees and bonds, Ch. 92; Housing Code, Ch. 140; nuisances, Ch. 151; animals, Ch. 155; consumer protection, Ch. 158; civil emergency, Ch. 161.

Article 8. Reserved

Secs. 1.121—1.125. Reserved.

Article 9. Reserved

Secs. 1.126—1.130. Reserved.

Article 10. Reserved

Secs. 1.131—1.133. Reserved.

Article 11. Reserved

Secs. 1.134—1.140. Reserved.

ARTICLE 1. IN GENERAL*

Sec. 1.71. Officers Appointed by City Commission.

In accordance with the City Charter, the following City officers will be appointed by the City Commission:

City Manager

City Attorney

City Clerk

City Treasurer
(Ord. No. 2013-37, § 2, 8-13-13)

Sec. 1.72. Division of Administrative Service.

The Administrative Service of the City shall be under the supervision and direction of the City Manager, except as otherwise provided by the City Charter.
(Ord. No. 2013-37, § 2, 8-13-13)

Sec. 1.73. Department Responsibilities.

The Administrative Departments of the City shall assume the responsibilities and duties assigned to them annually by the City Commission through the adoption of the budget ordinance.
(Ord. No. 2013-37, § 2, 8-13-13)

Sec. 1.74. City Income Tax Administrator.

The City Income Tax Administrator is hereby designated as and shall have all of the powers and duties of "Administrator" of the Grand Rapids Uniform City Income Tax Ordinance as provided for in the Michigan City Income Tax Act, Act No. 284 of the Public Acts of 1964, as amended from time to time, being MCL 141.501 et seq.
(Ord. No. 2013-37, § 2, 8-13-13)

Secs. 1.75—1.80. Reserved.

*__Editor's note—__Ord. No. 2013-37, §§ 1, 2, adopted August 13, 2013, repealed the former Art. 1, §§ 1.71—1.73, and enacted a new Art. 1 as set out herein. The former Art. 1 pertained to similar subject matter. See Code Comparative Table B for complete derivation.

ARTICLE 2. POLICE DEPARTMENT†

Sec. 1.81. Department of Police.

The Department of Police shall be headed by the Superintendent of Police, who shall be the commanding officer of the Police Force. He or she shall direct the police work of the City and be responsible for the enforcement of law and order.

Sec. 1.82. Functions of Police Department.

The police work of the City shall consist of the following functions:

(1) The operation of motor and foot patrol units for routine investigations and the general maintenance of law and order.

(2) The maintenance of the central complaint desk at Police Headquarters, the maintaining and supervising of police records, criminal and noncriminal identification, property identification, and the custody of property.

(3) The investigations of crimes, elimination of illegal liquor traffic and vice, and the preparation of evidence for the prosecution of criminal cases and offenses in violation of this Code.

(4) The prevention and control of juvenile delinquency, the removal of crime hazards and the coordination of community agencies interested in crime prevention.

(5) The enforcement of traffic laws, traffic educational programs, school patrols, coordination of traffic violation prosecutions and the issuance of operator's licenses.

(6) The operation of community policing units in the City's neighborhoods.

(Ord. No. 2010-08, § 1, 2-16-10)

Note—This section shall become effective on July 1, 2010 pursuant to the majority of the electors voting in the May 4, 2010 special election approve an increase in the City income tax rate to 1.5% for corporations and resident individuals, and

†__Cross references—__Police regulations, Title IX; traffic, Title X.

.75% for nonresident individuals. This amendment was approved by a majority of the qualified electors voting on the question at a special election held on May 4, 2010.

Cross references—Issuance of alarm user permits, § 9.402; inspection of alarm systems, § 9.405; general traffic regulations, Ch. 181.

Sec. 1.83. Department Rules.

The Superintendent of Police may prescribe rules for the government of police officers of the City, subject to approval by the City Manager, which shall be entered in a book of Police Department rules and orders and may be amended or revoked by the Superintendent upon written notice to the City Manager. It shall be the duty of all members of the Police Force to comply with such rules and orders while effective.

Sec. 1.84. Acting Superintendent.

In case of the absence from the City of the Superintendent of Police, or his or her disability, or inability from any cause to act as Superintendent, the City Manager shall designate and appoint some other member of the Police Department to act as Superintendent during such absence or disability.

Sec. 1.85. Reserved.

Editor's note—Ord. No. 2013-37, § 3, adopted August 13, 2013, repealed § 1.85, which pertained to Office of Traffic Engineer.

Sec. 1.86. Funding of Community Police Officers.

While both a City Income Tax of 1.5% is in effect for corporations and resident individuals and a City Income Tax of .75% is in effect for non-resident individuals, community police officers within the Department of Police shall continue to be funded.

(Ord. No. 2010-08, § 2, 2-16-10)

Note—This section shall become effective on July 1, 2010 pursuant to the majority of the electors voting in the May 4, 2010 special election approve an increase in the City income tax rate to 1.5% for corporations and resident individuals, and .75% for nonresident individuals. This amendment was approved by a majority of the qualified electors voting on the question at a special election held on May 4, 2010.

Secs. 1.87—1.90. Reserved.

ARTICLE 3. FIRE DEPARTMENT*

Sec. 1.91. Fire Department.

The Fire Department shall be headed by the Fire Chief, who shall be charged with the prevention and extinguishment of fires, the protection of life and property against fire, the removal of fire hazards, the performance of other public services of an emergency nature assigned to him or her, and the conducting of an educational fire prevention program.

Sec. 1.92. Fire Prevention Duties.

The Fire Department shall be responsible for the inspecting of potential fire hazards, and the abatement of existing fire hazards, in accordance with the provisions of Chapter 159 of this Code.

Sec. 1.93. Departmental Rules.

The Fire Chief shall adopt rules and regulations for the government of the Department, subject to the approval of the City Manager, and may change and repeal the same upon notice to and approval by the City Manager. Such rules and regulations shall designate the chain of command for the Department, so that in the absence or disability of the Chief or any officer of the Department, the responsibility for the operation of the Department shall immediately and automatically be vested in the next ranking officer or member of the Department on duty at the time of the fire.

Sec. 1.94. Department Equipment.

The Fire Chief shall be responsible for the maintenance and care of all property and equipment used by the Fire Department.

Sec. 1.95. Funding of a Fire Squad for LaGrave Avenue Station.

While both a City Income Tax of 1.5% is in effect for corporations and resident individuals and a City Income Tax of .75% is in effect for non-resident individuals, a fire squad to be lo-

*__Cross references—__Fire prevention, Ch. 159; alarms, Ch. 163.

cated at the LaGrave Avenue Station, available to provide fire response in any area of the City, shall continue to be funded.
(Ord. No. 2010-08, § 3, 2-16-10)

Note—This section shall become effective on July 1, 2010 pursuant to the majority of the electors voting in the May 4, 2010 special election approve an increase in the City income tax rate to 1.5% for corporations and resident individuals, and .75% for nonresident individuals. This amendment was approved by a majority of the qualified electors voting on the question at a special election held on May 4, 2010.

Secs. 1.96—1.100. Reserved.

ARTICLE 4. RESERVED*

Secs. 1.101—1.110. Reserved.

ARTICLE 5. RESERVED†

Secs. 1.106—1.110. Reserved.

ARTICLE 6. RESERVED‡

Secs. 1.111—1.115. Reserved.

ARTICLE 7. RESERVED**

Secs. 1.116—1.120. Reserved.

ARTICLE 8. RESERVED††

Secs. 1.121—1.125. Reserved.

ARTICLE 9. RESERVED‡‡

Secs. 1.126—1.130. Reserved.

ARTICLE 10. RESERVED***

Secs. 1.131—1.133. Reserved.

ARTICLE 11. RESERVED†††

Secs. 1.134—1.140. Reserved.

*__Editor's note—__Ord. No. 2013-37, § 4, adopted August 13, 2013, repealed Article 4, which pertained to Department of Community Improvement and Inspection Services. See Code Comparative Table B for complete derivation.

†__Editor's note—__Ord. No. 2013-37, § 5, adopted August 13, 2013, repealed Article 5, which pertained to Department of Health. See Code Comparative Table B for complete derivation.

‡__Editor's note—__Ord. No. 2013-37, § 6, adopted August 13, 2013, repealed Article 6, which pertained to Department of Parks and Cemeteries. See Code Comparative Table B for complete derivation.

**__Editor's note—__Ord. No. 2013-37, § 7, adopted August 13, 2013, repealed Article 7, which pertained to Department of Recreation. See Code Comparative Table B for complete derivation.

††__Editor's note—__Ord. No. 2013-37, § 8, adopted August 13, 2013, repealed Article 8, which pertained to Department of Weights and Measures. See Code Comparative Table B for complete derivation.

‡‡__Editor's note—__Ord. No. 2013-37, § 9, adopted August 13, 2013, repealed Article 9, which pertained to Department of Public Service. See Code Comparative Table B for complete derivation.

***__Editor's note—__Ord. No. 2013-37, § 10, adopted August 13, 2013, repealed Article 10, which pertained to Department of Community Relations. See Code Comparative Table B for complete derivation.

†††__Editor's note—__Ord. No. 2013-37, § 11, adopted August 13, 2013, repealed Article 11, which pertained to Department of City Income Tax. See Code Comparative Table B for complete derivation.

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Chapter 5

ADMINISTRATIVE POLICY AND PROCEDURE*

Sec. 1.141. City Manager.
Sec. 1.142. Administrative Officers.
Sec. 1.143. Vacancies.
Sec. 1.144. All Departments.
Sec. 1.145. Administrative Manual.
Sec. 1.146. Payment of Moneys.
Sec. 1.147. Approval of Legal Documents.
Sec. 1.148. Bonds.
Sec. 1.149. Reserved.
Sec. 1.150. Fair Employment Practices.
Sec. 1.151. Travel Expense Regulations.
Sec. 1.152. Appearance Tickets.
Sec. 1.153. Reserved.
Sec. 1.154. Employing Residents.
Sec. 1.155. Reserved.
Secs. 1.156—1.169. Reserved.

*__Cross references__—City Commission, Ch. 2; administrative service, Ch. 4; Boards and Commissions, Ch. 8; property tax levy and collection, Ch. 9; special assessments, Ch. 10; purchases, contracts and sales, Ch. 11; emergency management, Ch. 13; uniform City income tax, Ch. 14; investments, Ch. 18; Planning Commission, Ch. 62; historic preservation, Ch. 68; fees and bonds, Ch. 92; Housing Code, Ch. 135; nuisances, Ch. 151; civil emergency, Ch. 161.

Sec. 1.141. City Manager.

The City Manager shall see that all laws, ordinances, rules, regulations adopted by the Commission, and the provisions of this Code are properly enforced. He or she shall attend all meetings of the Commission, regular and special. He or she shall appoint a qualified person as his or her Administrative Assistant. The Deputy City Manager, or in his or her absence the Administrative Assistant to the Manager, shall temporarily perform the duties of the Manager during his or her absence or disability, unless otherwise ordered by the City Commission.

Sec. 1.142. Administrative Officers.

The administrative officers of the City, except the City Attorney, the City Clerk and City Treasurer shall, in the performance of the duties of their respective offices, be subordinate to and under the direction of the City Manager and shall report and be directly responsible to him or her.

Sec. 1.143. Vacancies.

In case of a vacancy in office or during the absence of any administrative officer, the City Manager may designate an interim acting head or perform personally the functions of the office, until such vacancy is filled in accordance with the Charter.

Sec. 1.144. All Departments.

All Departments of the City shall comply with the following:

(1) All Department Heads shall keep informed as to the latest practices in their particular field and shall inaugurate, with the approval of the City Manager in the case of Departments responsible to him or her or in the case of other Departments, with the approval of the officer or body to whom the Department Head is responsible, such new practices as appear to be of benefit to the service and to the public.

(2) Each Department Head shall establish a system of records and reports in sufficient detail to furnish all information necessary for proper control of Department activities and to form a basis for the periodic reports to the Manager. The City Manager shall keep the Commission fully advised at all times as to the financial condition and needs of the City.

(3) Each Department Head shall be held responsible for the preservation of all public records under his or her jurisdiction and shall provide a system of filing and indexing the same. No public records, reports, correspondence or other data relative to the business of any Department shall be destroyed or removed permanently from the files without the knowledge and approval of the City Commission. Interoffice communications, working memoranda or reference material used by any Department shall not be considered as a public record under this Section.

Sec. 1.145. Administrative Manual.

The City Manager is authorized to adopt such administrative regulations in addition to, but not inconsistent with, the Charter and this Code, as he or she shall deem necessary and proper to provide for the adequate functioning of all Departments. Such regulations shall comprise the administrative manual.

Sec. 1.146. Payment of Moneys.

All moneys belonging to the City shall be paid out upon presentation of a valid warrant issued in accordance with the Charter by warrant checks signed by the City Manager and the Director of Finance.

Sec. 1.147. Approval of Legal Documents.

The Mayor shall sign or cause his or her signature to be affixed to, the City Clerk shall attest to, and the City Attorney shall approve as to form, all contracts, agreements and other documents requiring the assent of the City, unless otherwise provided for by law, the Charter ordinance or the provisions of this Code.
(Ord. No. 85-64, § 1, 10-29-85)

Sec. 1.148. Bonds.

Upon recommendation of the City's Risk Manager or Insurance Agent of Record, the City Commission by resolution shall provide for the purchase and renewal of surety bonds of such types and amounts as it determines will adequately protect the City against officer and employee dishonesty.

(Ord. No. 69-5, 1-21-69; Ord. No. 70-40, 6-23-70; Ord. No. 79-74, 10-30-79; Ord. No. 2003-42, § 1, 10-21-03)

Cross reference—Filing of surety bonds generally, § 1.12.

Sec. 1.149. Reserved.

Editor's note—Ord. No. 2013-68, § 1, adopted October 22, 2013, repealed § 1.149, which pertained to constables' bonds. See Code Comparative Table for complete derivation.

Sec. 1.150. Fair Employment Practices.

No Department of the City of Grand Rapids or any City official, agent or employee of the City for or on behalf of the City shall, because of the race, color, religion, national origin or ancestry of any individual, refuse to hire or otherwise discriminate against a person with respect to hire, tenure, terms, conditions or privileges of employment, or any matter directly or indirectly related to employment, except where based on a bona fide occupational qualification as set forth in the Michigan State Fair Employment Practices Act, being Act 251 of the Public Acts of 1955, as amended.

No Department of the City of Grand Rapids or any City official, agent or employee of the City for or on behalf of the City shall, because any individual is between the ages of eighteen (18) and sixty (60), or because of the sex of any individual, refuse to hire or otherwise to discriminate against him or her with respect to hire, tenure, terms, conditions or privileges of employment. Any such refusal to hire or discrimination shall not be an unfair employment practice as based upon law, regulation, the requirements of any Federal or State training or employment program or on a bona fide occupational qualification.

It shall not be an unfair employment practice to refuse to select an individual over the age of thirty-five (35) because of his or her age for an apprenticeship or an on-the-job training program intended to have a duration of more than four (4) months.

(Ord. No. 68-49, 7-23-68; Ord. No. 73-57, 8-14-73)

Cross reference—Provision against discrimination in contractor, § 1.517.

State law reference—Discrimination in employment, MCL 37.2201 et seq., MSA 3.548(201) et seq.

Sec. 1.151. Travel Expense Regulations.

The regulations and procedures governing reimbursement for travel and other expenses shall be established as follows:

(a) Regulations governing reimbursements for travel and other expenses by elected officials of the City shall be adopted by resolution of the City Commission.

(b) Regulations governing reimbursements for travel and other expenses of appointed officials and employees of the City shall be prepared by the City Manager and approved by the City Commission.

(Ord. No. 69-32, 4-15-69)

Sec. 1.152. Appearance Tickets.

The following public servants are authorized to issue appearance tickets with respect to the indicated classes of violations of the Code of the City of Grand Rapids upon reasonable cause to believe that the person to whom the appearance ticket is issued has committed the violation, or violations, indicated:

(a) *The Director of Housing and Community Development* for violation of:

Chapter 52 —Sidewalks (Sections 4.89 and 4.90 only)

Chapter 61 —Zoning

Chapter 68 —Historic Preservation

Chapter 131—General Building Regulations

Chapter 132—Plumbing Regulations

Chapter 133—Electrical Code

Chapter 134—Mechanical Code

Chapter 135—Housing Regulations

Chapter 138—Sign Location Control

Chapter 140—Flood Plain Construction

Chapter 141—Fences

Chapter 151—Nuisances

Art. 2—Dangerous Structures

Art. 9—Abandoned Refrigerators

Art. 11—Unoccupied Buildings and Structures

Chapter 155—Animals

Chapter 159—Fire Prevention

Art. 27—Fireworks

(b) *The City Clerk* for violation of:

Chapter 52 —Sidewalks

Chapter 91 —Licenses

Chapter 92 —Fees and Bonds Required

Chapter 93 —Gasoline Stations

Chapter 94 —Taxicabs

Chapter 97 —Parking Facilities

Chapter 100—Pawnbrokers

Chapter 101—Secondhand and Junk Dealers

Chapter 102—Public Dance

Chapter 103—Amusements

Chapter 104—Motion Picture Theaters

Chapter 105—Motor Vehicle Rental Business

Chapter 106—Ambulance Service

Chapter 107—Coin Operated Laundries and Dry Cleaning Establishments

Chapter 108—Coin Operated Car Washes

Chapter 151—Nuisances

Art. 6—Sound Trucks

Chapter 159—Fire Prevention

Art. 27—Fireworks

(c) *The Environmental Protection Director* for violation of:

Chapter 25 —Combustible Waste and Solid Waste

Chapter 27 —City Sewage Disposal System

Chapter 158—Consumer Protection

Chapter 159—Fire Prevention

Art. 27—Fireworks

Chapter 151—Nuisances

Art. 4—Air Pollution

Art. 5—Noise Control

(d) *The Fire Chief* for violation of:

Chapter 159—Fire Prevention

(e) *The Police Chief* for violation of any provision of the Code of the City of Grand Rapids or of any of the rules and regulations promulgated pursuant thereto.

(f) *The City Attorney* for violation of any provision of the Code of the City of Grand Rapids or of any of the rules and regulations promulgated pursuant thereto, or for any violation of the Charter of the City of Grand Rapids.

(g) *The Park Director* for violation of:

Chapter 41—Parks

Chapter 42—Trees

Chapter 43—Public Cemeteries

Chapter 44—City Markets

(h) *The City Engineer* for violation of:

Chapter 51—Streets

Chapter 52—Sidewalks

(Ord. No. 71-9, 2-23-71; Ord. No. 74-95, 12-10-74; Ord. No. 76-60, 7-13-76; Ord. No. 78-22, 4-11-78; Ord. No. 79-80, 11-27-79)

Editor's note—Reference to certain Chapters and Articles listed in § 1.152 have been changed or deleted by the editor in accordance with amendments made subsequent to Ord. No. 79-80, adopted Nov. 27, 1979.

Sec. 1.153. Reserved.

Editor's note—Ord. No. 85-45, § 1, adopted July 30, 1985, repealed § 1.153, concerning residency requirement, as derived from Ord. No. 71-75, adopted Nov. 23, 1971.

Sec. 1.154. Employing Residents.

The Civil Service Board shall adopt and implement rules giving preference for initial employment to residents of the City of Grand Rapids. (Ord. No. 71-75, 11-23-71)

Sec. 1.155. Reserved.

Editor's note—Ord. No. 85-45, § 1, adopted July 30, 1985, repealed § 1.155, concerning appeals to City Commission, as derived from Ord. No. 72-63, adopted Aug. 29, 1972.

Secs. 1.156—1.169. Reserved.

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Chapter 6

RESERVED*

*__Editor's note__—Ord. No. 2013-49, § 1, adopted September 24, 2013, repealed §§ 1.170—1.185, which pertained to unemployment compensation plan. See Code Comparative Table for complete derivation.

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Chapter 7

PENSION AND RETIREMENT BENEFITS*

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*__Cross reference—__Administrative policy and procedure, Ch. 5.

Article 2. Police and Fire Retirement System

Sec. 1.231. Retirement System Created.
Sec. 1.232. Effective Date of System and Amendments.
Sec. 1.233. Definitions.
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Sec. 1.236. Board of Trustees—Vacancy, How Filled.
Sec. 1.237. Officers and Employees of System—Executive Director, Actuary, Legal Advisor, Investment Counselor.
Sec. 1.238. Board Meetings—Quorum; Vote; Proceedings.
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Sec. 1.246. Life Allowance.
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Sec. 1.248. Terminal Benefit Covering Retirant.
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Article 3. Officer's Option Plan

Sec. 1.283. Officer's Option.
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Article 4. Supplemental Allowance Benefit

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Article 5. Post Retirement Benefits—Police and Fire Retirement System

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Article 6. Post Retirement Benefits—General Retirement System

Sec. 1.302. Thirteenth Check Pension Supplement.
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Article 7. Medicare Supplement Trust Fund

Sec. 1.320. Establishment and Operation.
Sec. 1.321. Establishment and Operation—Grand Rapids Firefighters, Local 366.
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Sec. 1.323. Establishment and Operation—Association of Public Administrators of Grand Rapids.
Sec. 1.324. Establishment and Operation—Non-union Employees Covered by the Management Compensation and Fringe Benefits Handbook.
Sec. 1.325. Establishment and Operation—Grand Rapids Police Command Officers Bargaining Unit.
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Article 8. City of Grand Rapids Defined Contribution (CGRDC) Plan

Sec. 1.328.1. Defined Contribution Retirement Plan Created.
Sec. 1.328.2. Eligible Employees, Contributions and Vesting.

ARTICLE 1. GENERAL PENSION SYSTEM*

Sec. 1.190. Retirement System Created.

The City of Grand Rapids General Retirement System is hereby created and established. This Article may be cited as the City of Grand Rapids General Retirement System Ordinance.
(Ord. No. 72-50, 6-27-72; Ord. No. 98-48, § 1, 11-3-98)

Sec. 1.191. Effective Date of System and Amendments.

The Pension System set forth in Article 1 of Chapter 7 of Title I of the Code of the City of Grand Rapids, and amended from time to time, was amended by action of the Grand Rapids City Commission on August 20, 2002 to comply with TRA '86, OBRA '87, TAMRA '88, OBRA '89, UCA '92, OBRA '93, USERRA '94, URAA/GATT/RPA '94, SBJPA '96, TRA '97, RRA '98, CRTRA '00 and EGTRRA '01, and is hereby further amended and restated to comply with the Pension Protection Act of 2006.
(Ord. No. 72-50, 6-27-72; Ord. No. 98-48, § 1, 11-3-98; Ord. No. 2002-50, § 1, 8-20-02; Ord. No. 2013-40, § 1, 8-27-13)

Sec. 1.192. Definitions.

The following words and phrases as used in this Article, unless a different meaning is plainly required by the context, shall have the following meanings:

(1) *Accrued Benefit* means the portion of an allowance earned as of the date of the computation. It is a monthly benefit commencing at the minimum service retirement age and computed in accordance with the life allowance formula in Section 1.205 using the member's final average salary and credited service at the time of the computation.

(2) *Accumulated contributions* means the total of all amounts deducted from the compensations of a member and standing to his or her credit in his or her individual account in the members' deposit fund, together with regular interest at the rate of three (3%) percent per annum, compounded annually, from and after October 1, 1964.

(3) *Actuarial equivalent* means a benefit of equal reserve value. Present values will be determined by the actuary based on mortality tables and interest rates established from time to time by the Board. No change in mortality or interest assumptions shall reduce the accrued benefit of any member determined as of the date of the change.

(4) *Allowance* or *Life Allowance* means the total of the annuity and the pension. All allowances shall be paid not later than the last day of each calendar month.

(4a) *Allowance cap* means the agreed upon limit to the product which results when a member's years of credited service are multiplied by the benefit multiplier applicable to the member at the time of retirement, expressed as a percentage.

(5) *Annuity* means a monthly amount derived from the accumulated contributions of a member and payable by the System throughout the life of a person or for a temporary period.

(6) *Assumed interest* means such rate or rates per annum, compounded annually, as the Board shall adopt from time to time.

(7) *Beneficiary* means any person who is receiving or designated by a member to receive a System benefit, except a retirant.

(8) *Benefit program* means a schedule of benefits or benefit formulas from which the amounts of System benefits can be determined.

(9) *Board of Trustees* or *Board* means the Board of Trustees of the System.

*__Editor's note—__Ord. No. 98-48, § 1, adopted Nov. 3, 1998, amended Art. 1, in its entirety, to read as herein set out in §§ 1.190—1.230. Prior to inclusion of said ordinance, Art. 1 pertained to similar subject matter. See Code Comparative Table B.

(10) *Code* means the Internal Revenue Code of 1986 as amended.

(11) *Compensation* means remuneration actually paid or made available to an Employee within the Limitation Year, as defined in accordance with Regulation 1.415(c)—2(a), and means all items of Employer remuneration for services, including:

(a) Wages, salaries, and other amounts received for personal services rendered in the course of employment with Employer, to the extent amounts are includible in gross income or would have been received and includible in gross income but for an election under Internal Revenue Code ("IRC") Section 125(a), 132(f)(4), 402(e)(3), 402(h)(1)(B), 402(k), 414(h)(2), or 457(b), and further include, but are not limited to, base salary, longevity pay, educational allowance, vacation pay, bonuses, fringe benefits, and reimbursements or other expense allowances under a nonaccountable plan, plus the following additional compensation items;

(1) *Members of the Crime Scene Technicians group:* Holiday pay, clothing allowance, overtime pay, shift pay, acting assignment pay, witness fee pay, and compensatory time pay off are also considered compensation for pension computation purposes effective July 1, 2000.

(2) *Emergency Communications Operators I, II and III:* Holiday pay, overtime pay, shift pay, acting assignment pay, compensatory time pay off, and pay as an ECOII trainer are also considered compensation for pension computation purposes effective July 1, 2005.

(b) Amounts described in IRC Sections 104(a)(3), 105(a), or 105(h) but only to the extent includible in gross income;

(c) Amounts paid or reimbursed by the Employer for Employee's moving expenses to the extent it is reasonable to believe, at payment, they are not deductible pursuant to IRC Section 217;

(d) Amounts includible in Employee's gross income upon a IRC Section 83(b) election; and

(e) Amounts includible in gross income pursuant to IRC Section 409A, or because they are constructively received.

Compensation does not include items listed in Regulation 1.415(c)—2(c).

Compensation for a Limitation Year shall not include Compensation in excess of IRC Section 401(a)(17) limits for such Limitation Year.

In order to be taken into account for a Limitation Year, Compensation must be actually paid or made available to employees (or, if earlier, includible in the gross income of the Employee) within the Limitation Year. For this purpose, Compensation is treated as paid on a date if it is actually paid on that date or it would have been paid on that date but for an election under IRC Section 125, 132(f)(4), 401(k), 403(b), 408(k), 408(p)(2)(a)(i), or 457(b); provided, however, Compensation for a Plan Limitation Year includes amounts earned during that Plan Limitation Year but not paid during that Plan Limitation Year solely because of the timing of pay periods and pay dates if (i) these amounts are paid during the first few weeks of the next Plan Limitation Year; (ii) the amounts are included on a uniform and consistent basis with respect to all similarly situated employees and (iii) no Compensation is included in more than one Plan Limitation Year.

In order to be taken into account for a Plan Limitation Year, Compensation must be paid or treated as paid to the Employee prior to the Employee's severance from employment with the Employer; provided

Compensation paid by the later of 2½ months after severance from employment with the Employer or the end of the Limitation Year that includes the date of severance from employment with the Employer, is included if the payment is regular compensation for service during working hours or compensation for services outside regular working hours, commissions, bonuses or similar payments and it would have been paid prior to severance had Employee continued in employment.

Compensation includes salary continuation payments to an individual who does not currently perform services for the Employer by reason of qualified military service (as that term is used in IRC Section 414(u)(1)) to the extent those payments do not exceed the amounts the individual would have received if the individual had continued to perform services for the Company rather than entering qualified military service.

(12) *Credited service* means employment as an employee which employment is creditable as service hereunder, to the extent such service is standing to a member's credit as provided in this Article.

(13) *Employee* means any person regularly employed by the employer in a position other than police officer, police command officer or firefighter, as those positions are defined in the City of Grand Rapids Police and Fire Retirement System. Employees hired on or after the dates provided in the following table are excluded from participation in the General Retirement System:

Covered Employee Group	*Date of Hire, Election or Appointment*
GREIU	On or after May 25, 2011
Non-Represented Members as defined in Section 1.192(18.1)	On or after July 1, 2011
GREIU Public Library Rank & File and Supervisory bargaining units	On or after September 2, 2011
GREIU 61st District Court	On or after September 13, 2011
APAGR 61st District Court	On or after September 13, 2011
Emergency Communication Supervisors	On or after September 13, 2011
Crime Scene Technicians	On or after November 15, 2011*
ECOs I, II and III	On or after January 24, 2012
APAGR	On or after July 1, 2014

*Members of the Crime Scene Technicians bargaining unit who have earned fewer than eight (8) years of credited service as of November 15, 2011 are permitted to voluntarily convert to a defined contribution retirement plan in lieu of continuing participation in the General Retirement System. All rights to any future benefits from the General Retirement System will be forfeited upon such member's election to convert. All member contributions will be refunded from the General Retirement System, per the provisions of Section 1.212(1), following the member's conversion to said defined contribution retirement plan.

(14) Employer means the City of Grand Rapids, Michigan.

(15) *Final Average Salary of a Member* means the average of each of the member's highest annual compensation rates during each of the member's three (3) calendar years of employment while participating in the System when such compensation rates were highest, provided all such compensation occurs before the end of the calendar year in which the member attains forty (40) years of credited service, or provided no such rates of salary occur after the date on which the employee attains the number of years of credited service, which, when multiplied by the applicable benefit multiplier as set forth in Section 1.205, equals the allowance cap as set forth in that section. Should a member have less than three (3) such highest annual compensation rates, "final

average salary" means the average of each of the member's highest annual compensation rates during each of the member's calendar years of employment.

Additionally, effective July 1, 2000, members of the Crime Scene Technicians group shall have an additional sum added to their final average salary or an actuarially determined addition to the final average salary (FAS) calculated by dividing (i) the average of the Section 1.192(11) additional compensation items (ACI) for the group for the previous three (3) calendar years, by (ii) the annualized average of the group's covered payroll from actuarial valuations as of June 30 of each calendar year, excluding ACI, for the five-year period immediately preceding the valuation. The calculation will be completed by June 30 of each year.

Additionally, effective July 1, 2005, Emergency Communications Operators I and II shall have an additional sum added to their final average salary or an actuarially determined addition to the final average salary (FAS) calculated by dividing (i) the average of the Section 1.192(11) additional compensation items (ACI) for the group for the previous five (5) calendar years, by (ii) the annualized average of the group's covered payroll from actuarial valuations as of June 30 of each calendar year, excluding ACI, for the five-year period immediately preceding the valuation. In the first year the average shall be calculated based upon the preceding four (4) years, and thereafter based upon the preceding five (5) years as stated above. The calculation will be completed by June 30 of each year.

(16) *Market Value* means the quoted selling price plus accrued income on assets held in trust for the payment of benefits or, in the event the System acquires non publicly-traded assets, a price established by an independent professional appraiser chosen by the Board who is qualified to appraise assets of the subject property class.

(17) *Member* means any employee defined in Section 1.192(13) who:

(a) Has not elected the Officer's Option provided for in Section 1.283; or

(b) Becomes an Appointed Officer who had previously elected the Officer's Option provided for in Section 1.283 and has elected to resume membership as permitted in Section 1.285(b); or

(c) Does not hold a position of employment with the City which is specifically excluded from coverage by this System.

(18) *Minimum service retirement age and normal retirement age* mean age 62.

(18.1) *Non-Represented Member* means any member as herein defined holding a full-time permanent position who is not represented by any bargaining unit, including supervisors or other employees in administrative, clerical, or executive classifications, or any appointed or elected official with the exception of 61st District Court Judges. Non-Represented Members shall include non-represented employees of the City, the Library, the Pension System, and the 61st District Court.

(19) *Pension* means a monthly amount derived from contributions of the employer and payable by the System throughout the life of a person or for a temporary period.

(20) *Plan Year, Fiscal Year, and Section 415 Limitation Year* of this Retirement System is the 12-month period ending June 30 of each year.

(21) *Regular Interest* means the rate of three (3%) percent per annum, compounded annually.

(22) *Reserve* means the present value of all payments to be made on account of any System benefit based upon such reasonable tables of experience and assumed interest as the Board shall adopt from time to time in good faith.

(23) *Retirant* means a former member receiving a System allowance, by reason of having been a member.

(24) *Retirement System* or *System* means the City of Grand Rapids General Retirement System.

(25) *Valuation Assets* means the value of the current plan assets recognized for the purpose of determining required contributions to the System. For purposes of determining the employer contribution requirement for the fiscal year beginning July 1, 1998 through the fiscal year ending June 30, 2009 (valuation date June 30, 2007), valuation assets shall be determined using a market-related (smoothed) asset value method which recognizes 33⅓% of the capital value change in a fiscal year immediately, 33⅓% of the capital value change in the next subsequent fiscal year and the remaining 33⅓% of the capital value change in the second subsequent fiscal year. For purposes of determining the employer contribution requirement for the fiscal year beginning July 1, 2009 (valuation date June 30, 2008) and all subsequent fiscal years, valuation assets shall be determined using a market-related (smoothed) asset value method which recognizes 20% of the investment return in a fiscal year immediately, and 20% of the investment return in each of the next four subsequent fiscal years. The remaining unrealized investment return from June 30, 2006 shall be recognized equally over the next three fiscal years and the remaining unrealized investment return from June 30, 2007 shall be recognized equally over the next four (4) fiscal years, beginning with the June 30, 2008 valuation.

(26) The masculine gender shall include the feminine gender, and words of the singular number with respect to persons shall include the plural number, and vice-versa.

(Ord. No. 72-50, 6-27-72; Ord. No. 77-61, 11-8-77; Ord. No. 80-10, 2-19-80; Ord. No. 80-12, 2-19-80; Ord. No. 88-31, § 1, 5-17-88; Ord. No. 90-29, § 1, 3-20-90; Ord. No. 91-68, §§ 1, 2, 12-17-91; Ord. No. 97-29, § 1, 6-24-97; Ord. No. 98-48, § 1, 11-3-98; Ord. No. 2000-45, § 1, 7-11-00; Ord. No. 2002-50, § 2, 8-20-02; Ord. No. 2003-29, §§ 1, 2, 8-5-03; Ord. No. 2005-29, §§ 1, 2, 5-17-05; Ord. No. 2008-57, § 1, 12-23-08; Ord. No. 2009-49, § 1, 9-15-09; Ord. No. 2010-46, § 1, 8-24-10; Ord. No. 2010-74, § 1, 12-21-10; Ord. No. 2011-26, § 1, 7-12-11; Ord. No. 2011-62, § 1, 12-20-11; Ord. No. 2012-08, § 1, 1-24-12; Ord. No. 2013-40, §§ 2, 3, 8-27-13; Ord. No. 2014-54, § 1, 7-22-14; Ord. No. 2019-25, § 1, 6-11-19)

Sec. 1.193. Board of Trustees—Appointment and Election.

The general administration and responsibility for the proper operation of the System and for making effective the provisions of this Article are hereby vested in a Board of Trustees of seven (7) persons, as follows:

(1) Three (3) persons to be elected by the members of the System. Such Trustees are called member Trustees in this Article. The member Trustees shall be elected by the members of the Retirement System in accordance with such rules and regulations as the Board shall from time to time adopt to govern such elections.

(2) One (1) member of the City Commission to be appointed by the City Commission and to serve at the pleasure of the City Commission. Such Trustee is called employer Trustee in this Article.

(3) Three (3) persons appointed by the Mayor, subject to the approval of the City Commission. Such appointees, called citizen members, shall be experienced in financial matters and shall not be a member, retirant or beneficiary of the System, nor an employee or official of the employer.

(Ord. No. 72-50, 6-27-72; Ord. No. 76-88, 10-19-76; Ord. No. 85-65, § 1, 10-29-85; Ord. No. 98-48, § 1, 11-3-98)

Sec. 1.194. Board of Trustees—Terms.

The terms of citizen members and member Trustees presently serving are hereby continued

until the expiration of the terms presently provided. All terms of office of member Trustees and citizen Trustees shall be four (4) years. Each Trustee shall continue to serve as Trustee until his or her successor is elected or appointed, as the case may be, and is qualified.
(Ord. No. 72-50, 6-27-72; Ord. No. 74-75, 9-24-74; Ord. No. 76-88, 10-19-76; Ord. No. 98-48, § 1, 11-3-98)

Sec. 1.195. Board of Trustees—Vacancy, How Filled.

In the event any Trustee fails to attend three (3) consecutive meetings of the Board unless in

each case excused for cause by the remaining Trustees attending such meeting or meetings, he or she shall be considered to have resigned from the Board and the Board shall by resolution declare his or her office of Trustee vacated. If a vacancy occurs in the office of Trustee, through death or resignation, the vacancy shall be filled for the unexpired portion of the term so vacated in the same manner as the office was previously filled.
(Ord. No. 72-50, 6-27-72; Ord. No. 98-48, § 1, 11-3-98)

Sec. 1.196. Officers and Employees of System—Executive Director, Actuary, Legal Advisor, Investment Counselor.

(1) The Board shall select from its own number a Chairman and a Vice-Chairman.

(2) Compensation:

(a) Member Trustees (full-time employees of the City) and Elected Officials: The Member Trustees who are full-time employees of the City and Elected Officials of the City serving on the Board shall serve without compensation for their services, as such, as their time is otherwise compensated for by the City. Such Trustees shall be reimbursed from the income-expense fund of the System for their necessary expenses incurred in attending meetings of the Board or in the performance of other duties authorized by the Board. Such reimbursement shall be in a manner and an amount as is reasonably determined by the Board to be appropriate.

(b) Other Trustees: The remaining Trustees of the Board shall be compensated at the rate of seventy-five dollars ($75.00) per meeting, paid from the income-expense fund of the System, for those special and sub-Committee meetings which are actually attended by such Trustee. In addition, such Trustees shall be reimbursed from the income-expense fund of the System for their necessary expenses incurred in attending meetings of the Board or in the performance of other duties authorized by the Board. Such reimbursement shall be in a manner and an amount as is reasonably determined by the Board to be appropriate.

(3) Executive Director and Clerical Staff.

(a) The Board shall have the authority to employ the service of an Executive Director for the System, to serve as the System's Chief Executive Officer. The Board shall adopt, and may amend, a job classification for the Executive Director, which shall define the duties and responsibilities of the position consistent with the provisions of this Article.

(b) The Board shall have the authority to employ the Executive Director upon terms and conditions that the Board determines are in the best interests of the administration of the System, and may enter into an employment agreement with the Executive Director for a period of not to exceed three (3) years, plus-options to extend or renew.

(c) The Executive Director shall have the authority to employ such other professional and clerical services as may be required for the proper administration of the System on such terms and conditions as the Board may determine, and with the approval of the Board.

(d) The Executive Director and any clerical or professional staff employed by the System shall be eligible for participation in the group hospital, medical, dental and vision insurance programs otherwise offered to City employees, the General Pension System of the City, the deferred compensation plan, the retirement insurance provisions afforded to other City employees, Worker's Compensation coverage and the Medicare Supplement Plan of the City. The actual benefits provided to the Executive Director and any clerical employees of the System shall be determined by the Board. The actual cost of any and all such

coverages provided shall be the responsibility of the System and reimbursed to the City on a quarterly basis.

(4) Administrative Costs.

(a) The Board shall have the authority to acquire, through lease or purchase, such office space as may be necessary for the proper administration of the System and may provide for such liability and casualty insurance as may be necessary to protect the property and assets of the System. Such office space shall be located within the corporate limits of the City of Grand Rapids and shall, to the extent required by law, be accessible to handicapped persons.

(b) The Board shall have the authority to acquire, through purchase or lease, such office supplies, equipment, furniture and furnishings as it determines to be reasonably necessary for the proper administration of the System.

(c) All expenses of the Board necessary for the operation of the System, including compensation of the persons engaged by the Board, shall be paid at such rates and in such amounts as the Board shall approve from the income-expense fund of the System.

(5) System Actuary. The Board shall appoint an actuary or a firm of actuaries to be the technical advisor to the Board and the Executive Director on matters regarding the operation of the System on an actuarial basis and who shall perform such other duties as may be required in connection therewith. The appointed actuary shall (i) be a Member of The American Academy of Actuaries, (ii) be either a Fellow or Associate of the Society of Actuaries or a Member of the Conference of Consulting Actuaries, and (iii) have a minimum of five (5) years experience in providing actuarial and consulting service to public employee retirement systems.

(6) Investment Counselors. The Board shall appoint a professional investment counsel or firm or firms of professional investment counselors to be investment advisors to the Board upon such terms and conditions as the Board may direct.

(7) Legal Advisor. The City Attorney shall serve as the legal advisor to the Board and the Executive Director on matters regarding the operation of the System. The Board shall be authorized to retain the services of an attorney or law firm to represent the Board in matters in which the City Attorney has a professional conflict of interest or in other circumstances in which the Board and City Attorney determine such representation would better serve the interests of the System.
(Ord. No. 72-50, 6-27-72; Ord. No. 90-35, § 1, 4-3-90; Ord. No. 91-68, § 3, 12-17-91; Ord. No. 98-48, § 1, 11-3-98)

Sec. 1.197. Board Meetings—Quorum; Vote; Proceedings.

The Board shall hold regular meetings, at least quarterly. Four (4) Trustees, of whom at least one (1) shall be a member Trustee, shall constitute a quorum at any meeting of the Board. Each Trustee shall be entitled to one (1) vote on each question before the Board and at least four (4) concurring votes shall be required for a decision by the Board at any meeting. The Board shall adopt its own rules of procedure, and shall keep a record of its proceedings. All meetings of the Board shall be held in conformance with the Michigan Open Meetings Act described in MCL § 15.261 et. seq., as amended.
(Ord. No. 72-50, 6-27-72; Ord. No. 98-48, § 1, 11-3-98)

Sec. 1.198. Some Specific Board Administrative Duties.

(1) The Board shall from time to time adopt such reasonable mortality and other tables of experience, and a rate or rates of assumed interest, as shall be necessary for the actuarial requirements of the System.

(2) The Executive Director shall keep, or cause to be kept in convenient form, such data as shall be necessary for actuarial investigations of the experience of the System, and such data as shall be necessary for the annual actuarial valuations of the System.

(3) The Board shall annually, but not later than October 31 each year, provide a report to the employer showing the financial condition of the

System as of the preceding June 30. Such report shall contain, but shall not be limited to, a financial balance sheet, a statement of income and disbursements, a detailed statement of investments acquired and disposed of during the year, an actuarial balance sheet prepared by means of the last valuation of the System, and such other data as the Board shall deem necessary or desirable or as requested by the City Commission for a proper understanding of the condition of the System.

(4) All records of the System shall be kept and maintained by the Executive Director in space provided by the System.

(5) The employer shall provide the Executive Director with access to personnel and other records of the employer as may be reasonably required for the proper administration of the System.

(6) The Board shall have the authority to meet with and act in joint concert with the Board of Trustees of the City of Grand Rapids Police and Fire Retirement System on administrative matters of mutual concern to both Systems, including, but not limited to, the employment of an Executive Director, the establishment of administrative policy, the apportionment of administrative costs, the acquisition of office space, and the employment of actuaries or legal counsel. The City Commission shall have the authority to specify matters on which joint agreement of the General Pension System and the Police and Fire Pension System are required to avoid the unnecessary duplication of administrative expenses. These matters shall include, but not be limited to, the selection of the System actuary, the selection of the Executive Director, the selection of the Auditor, and the acquisition of office space.

(7) The Board shall have the discretionary power and authority to determine the benefits payable to members by the System. These powers and authority include the following:

(a) To construe and interpret the terms and provisions of this Article as they relate to benefits payable;

(b) To decide all questions of eligibility for participation in the System; and

(c) To decide all questions of eligibility for benefit payments and determine the amount, manner and time of benefit payments under this System. These determinations must be consistent with the terms of the applicable collective bargaining agreements.

All interpretations of Ordinance provisions, all determinations of facts, and all decisions made in good faith by the Board will be final and binding upon all participants, beneficiaries and all other interested persons.
(Ord. No. 72-50, 6-27-72; Ord. No. 87-5, § 1, 1-20-87; Ord. No. 91-68, § 4, 12-17-91; Ord. No. 98-48, § 1, 11-3-98)

Sec. 1.199. Claims Procedure.

The Board will make all determinations concerning benefits. Any denial of benefits by the Board will be stated in writing by the Board and delivered or mailed by certified mail, return receipt requested, to the member or beneficiary within sixty (60) days after the denial. The notice will set forth the reasons for the denial in language that may be understood by the member or beneficiary and will specify the System provisions upon which the denial was based. If the denial is based on the failure of the member or beneficiary to supply certain materials or information, the notice will so state. The notice will advise that the denial may be appealed to the Board and will include an explanation of the appeal procedure.

The Board will adopt a procedure for reviewing appeals of denials of benefit claims. The procedure will include the following:

(a) The claimant or his duly authorized representative may initiate an appeal by written request for review delivered to the Board not later than sixty (60) days after receipt by the claimant of the notice of denial. The Board has the authority to extend those time limits a maximum of sixty (60) days upon the claimant or claimant's authorized representative showing of good cause or undue hardship.

(b) The claimant or his duly authorized representative may review documents perti-

nent to the appeal and may submit written statements of issues and arguments relevant to the appeal to the Board.

(c) The Board will review the appeal at the next regularly scheduled Board meeting which is at least twenty-one (21) days after the completed application for review is received. The Board will return its decision on the appeal not later than sixty (60) days after review. In circumstances where the Board determines that it needs additional information to make its decision, the Board will notify the claimant of the need for additional information and delay its decision until the next regularly scheduled Board meeting which is at least twenty-one (21) days after the additional information is received.

(d) The claimant will be advised in writing of the decision on the appeal including the reasons for the decision in language that may be understood by the claimant with references to the System provisions upon which the decision is based.

(e) The determination of the Board on all matters under this Section shall be final and binding on all parties.

(Ord. No. 72-50, 6-27-72; Ord. No. 98-48, § 1, 11-3-98)

Sec. 1.200. Membership of System.

(1) The membership of the System shall include all persons who are employees on or after the effective date of the System; provided, however, that persons who are employed in classifications which have been specifically excluded from coverage under the System by ordinance adopted by the City Commission, and persons who have elected coverage under another retirement plan provided by the City shall be excluded from membership in the System.

(2) In any case of question as to the System membership status of any person, the Board shall have final power to decide the question.

(Ord. No. 72-50, 6-27-72; Ord. No. 91-35, § 1, 7-2-91; Ord. No. 98-48, § 1, 11-3-98)

Sec. 1.201. Membership Terminates; Reinstatement of Credited Services.

(1) When a member is no longer employed by the employer in a position covered by the System, he or she shall thereupon cease to be a member of the System.

(a) Except as otherwise provided in this Article, upon termination of membership, the member's credited service shall be forfeited. If such person is not a retirant and becomes reemployed by the employer in a position covered by the System, that person shall again become a member of the System. At any time following such reemployment and reentry into membership of the System, such person's credited service last forfeited by that member shall be restored to the member's credit, provided that the member returns to the System the amount, if any, received therefrom, together with regular interest from the date of withdrawal to the date of repayment.

(b) At any time following reentry into the System upon election by City Commission to a position of Appointed Officer as provided in Section 1.285(b), all credited service accrued from the date of commencement of employment until the date upon which participation in the Officer's Option commenced will be restored, provided contributions to the System were not withdrawn and such credited service was not forfeited by the officer during such officer's participation in the Officers Option retirement program.

(2) Upon a member's retirement he or she shall thereupon cease to be a member and, except as otherwise provided in this Article, he or she shall not again become a member of the System.

(3) Except as provided in subsection (4) below, allowance payments shall be suspended for any retirant who is employed by the employer for more than seven hundred (700) hours in a calendar year. Allowance payments shall be suspended immediately upon attainment of seven hundred (700) hours worked and shall remain suspended for the duration of that calendar year that the

retirant continues to work for the employer. Any such retirant so employed shall not become a member of the system or gain any credited service or other allowance enhancements as a result of time worked after retirement. The employer shall notify the Retirement Systems of the employment of a retirant and upon the completion of seven hundred (700) hours worked by that retirant.

(4) The suspension of retirement allowance payments otherwise required under the provisions of subsection (3), above, may be waived for retired, former non-bargaining unit members of the System if it is determined by the City Manager that the retirant possesses critical skills and, for the good of the City, should be reemployed. In order to request a waiver the City Manager shall certify in writing to the City Commission the reason(s) for the proposed waiver and provide it with a copy of the proposed employment agreement for the retirant. The waiver of the provisions of subsection (3), above shall be effective upon approval by the City Commission. Any such waiver shall not be authorized for a period of more than three (3) calendar years. Any retirant so employed shall not become a member of the System, or gain any credited service or other allowance enhancements as a result of the time worked after retirement. The City Manager shall notify the Retirement Systems of the employment of any such retirant authorized for a waiver under this subsection.
(Ord. No. 72-50, 6-27-72; Ord. No. 81-17, 3-24-81; Ord. No. 88-31, § 2, 5-17-88; Ord. No. 98-48, § 1, 11-3-98; Ord. No. 99-77, § 1, 12-21-99; Ord. No. 2002-12, §§ 1, 2, 2-26-02; Ord. No. 2009-49, § 2, 9-15-09)

Sec. 1.202. Service Credit.

(1) From and after July 1, 1971, a member will be given credited service for the period from the member's employment commencement date to the member's employment termination date. No credit will be given for any month in which the member does not make the required member contributions for service on ten (10) or more days. Service will be computed in whole months with a remaining period of less than thirty (30) days counted as a whole month if member contributions were made for service on ten (10) or more days. If the period of service determined before application of the immediately preceding sentence results in a period of whole years and an additional fractional year of ten (10) months or more (without rounding), the fractional years of ten (10) months or more will be treated as a whole year. The requirement that a member make the required member contributions as a condition of receiving service credit is waived for the first six months of employment. The Board will fix and determine the number of months and years of service to be credited to each member for employment as an employee in accordance with the terms of this Ordinance. No credited service will be given for employment rendered after the end of the calendar year in which the member attains forty (40) years of credited service for those eligible employees who complete forty (40) years of service on or after January 1, 1988. Effective September 20, 2009, for any Officer Elected by City Commission to a position as an Appointed Officer having accrued credited service in the System, who upon City Commission appointment elects to reenter the System as provided in Section 1.285(b), in no event shall credited service be restored for the period during which the member participated in the officer's option as provided in Section 1.283.

(2) In the event a member, who while an employee, entered or enters the armed forces of the United States during any period of compulsory military service, such armed service actually required of him or her shall be credited him or her as service hereunder; provided, that he or she again becomes an employee within a period of ninety (90) days after he or she is relieved from military duty, and he or she returns to the System the amount, if any, he or she may have received therefrom at the time he or she entered or while in such armed service, together with regular interest from the date of withdrawal to the date of repayment, and in no case shall any member be credited with a total of more than six (6) years of such armed service. In any case of doubt as to the period of such armed service to be so credited a member, the Board shall have power to determine such period. To receive service credit for such required armed service, such member shall have the option to continue during his or her term of

military service payments which would have been required of him or her under the System had he or she remained at work, or he or she shall have the option upon reinstatement to make up any such contributions which were not made during the period of his or her military duty.

In addition to the requirements set forth above, the following provisions shall apply for employees returning to employment after December 11, 1994. Service in the armed forces of the United States includes the performance of duty on a voluntary or involuntary basis in the Army National Guard and the Air National Guard when engaged in active duty for training, initial active duty for training, inactive duty for training, full-time National Guard duty and any other service specified in 38 U.S.C. § 4303. To be eligible for these benefits, the employee must advise the City of his or her intent to return to employment:

(a) In the case of service of less than 31 days, on the first full regularly scheduled work period on the first calendar day following the period of service and the expiration of eight (8) hours after a period allowing for safe transportation to the employee's residence;

(b) In the case of service of more than thirty (30) but less than 181 days, by submitting an application for reemployment within 14 days after the completion of the period of service; or

(c) In the case of service of more than one hundred eighty (180) days, by submitting an application for reemployment within ninety (90) days of the completion of the period of service.

An employee shall not receive service credit unless payment of employee contributions for the period of absence is made within the period following reemployment equal to the lesser of five (5) years or the period equal to three (3) times the period of service. For purposes of calculating the repayment, compensation shall be based on the rate of compensation that would have been in effect but for the period of service. If this amount cannot be determined, compensation shall be the average rate of compensation paid in the twelve (12) months immediately preceding the period of service. An employee shall not be credited with a total of more than six (6) years of such armed service.

(3) In any case of question as to the service credit of any person, the Board shall have power to decide the question.

(4) In addition to the contributions deducted from the compensations of a member, as hereinbefore provided, a member may deposit in the System, (a) by a single contribution, (b) by an increased rate of contributions as approved by the Board, or (c) by a Trustee to Trustee transfer to the System from an eligible retirement plan, ("eligible retirement plan" is defined in Section 1.212(6)(b) below), the amount or amounts he or she may have received therefrom and not repaid thereto, together with regular interest from the date of withdrawal to the date of repayment. In no case shall a member be given credit for service rendered prior to the date he or she received payments until he or she returns to the System all amounts due from him or her.

(5) Any employee member of the General Pension System who has attained eight (8) or more years of credited service may purchase a maximum of eight (8) years additional credited service for all retirement purposes for time recognized as honorable military service served prior to employment with the City. Eligible service is defined as active Federal service in excess of six (6) months in the Army, Navy, Air Force, Marines, or Coast Guard of the United States excluding reserve basic and regular training time and Merchant Marine duty. The request for credited service will be reviewed by Trustees at a regular meeting and, if approved, the total cost to the System will be actuarially determined. As the benefit package is borne solely by the member, all costs to the System, including actuarial calculation, shall be paid to the System within sixty (60) days from the date the amount is known in order to gain the credited service requested. The provisions of the Pension Plan at the time of purchase will be used for all calculations.

(6) An employee may purchase up to twenty-four (24) additional months of credited service in increments of one month by contributing a percentage of the member's annual rate of compen-

sation at the time of such purchase. Any such periods of purchased credited service shall be recognized solely for the purpose of computing the member's life allowance as provided in Section 1.205 and not for determining eligibility for a benefit or for any other purpose. The purchase rate, expressed as a percentage of compensation, shall be the age and service cost component of the normal cost as determined by the system actuary.

(7) Payments to purchase service described in Subsection (6) above, and to purchase service attributable to absences while on military service leaves described in Subsections (2) and (5), above, will be made (a) by a single cash deposit, (b) by an increased rate of member contributions, (c) by a Trustee to Trustee transfer to the System from an eligible retirement plan, ("eligible retirement plan" is defined in Section 1.212(6)(b) below), or (d) by a combination of an initial lump sum cash deposit and an increased rate of contributions as approved by the Board. The payments for any of these service purchases must be completed in a period of five years or less. Contributions that are made as a percentage of periodic pay may be considered as "picked-up" by the employer as described in Subsection 1.216(5) or may be made on an after-tax basis, at the election of the member prior to the first such payment. This election is irrevocable. Subsequent to the election to purchase service, the member may not amend or revoke a pickup election and except as described below, may not make any direct payments for any service so purchased. The contribution or portion of the contribution paid in an initial cash deposit will not be considered "picked-up." In the event that a member terminates employment prior to completion of the payments over the period elected, the City will reduce the final payroll amount due the member attributable to reimbursement for unpaid vacation, sick leave or other extraordinary forms of compensation (accrued pay) by the lesser of the accrued pay amount or the amount remaining unpaid. Any amounts thereafter remaining unpaid may be paid to the retirement system on a lump-sum, after-tax basis within thirty (30) days of termination of employment. If any amount remains unpaid thirty (30) days after termination of employment, then the additional service purchase will be reduced to reflect the number of months of additional service for which payments have not been received.

(8) Sick Leave Conversion. Employees who hold positions identified below may, from and after the date specified, use accumulated and unused sick leave standing to the eligible employee's credit at the time of retirement (or resignation, if noted below) for the purpose of purchasing additional credited service which shall be recognized for the sole purpose of computing the member's life allowance as provided in Section 1.205, and not for determining eligibility for a benefit or for any other purpose.

(a) From and after January 1, 2005, Crime Scene Technician members represented by the GRPOA bargaining unit who either resign or retire with ten (10) or more years of continuous service may use up to a maximum of one thousand two hundred sixty-five (1,265) hours of accumulated sick leave to purchase up to one (1) year of such additional credited service, on a pro rata basis.

(b) From and after January 1, 2005, members of the Emergency Communication Operators I, II, and III bargaining unit who either resign or retire with ten (10) or more years of continuous service may use up to a maximum of two thousand eighty (2,080) hours of accumulated sick leave to purchase up to one (1) year of such additional credited service, on a pro rata basis.

(c) From and after January 1, 2005, members of the Emergency Communication Supervisors bargaining unit who either resign or retire with ten (10) or more years of continuous service may use up to a maximum of two thousand eighty (2,080) hours of accumulated sick leave to purchase up to one (1) year of such additional credited service, on a pro rata basis.

(d) From October 21, 2008 through January 25, 2010, members who are 61st District Court Management Non-Represented; and Non-Represented Supervisors, Administrative, Clerical and Executive Classifications; and Appointed Officials who either

resign or retire with ten (10) or more years of continuous service may use up to two thousand eighty (2,080) hours of accumulated sick leave to purchase up to one (1) year of such additional credited service, on a pro rata basis.

(e) From and after October 21, 2008, members of the APAGR or APAGR 61st District Court bargaining units who either resign or retire with ten (10) or more years of continuous service may use up to two thousand eighty (2,080) hours of accumulated sick leave to purchase up to one (1) year of such additional credited service, on a pro rata basis.

(f) From and after March 24, 2009, members of the GREIU bargaining unit who either resign or retire with ten (10) or more years of continuous service may use up to two thousand eighty (2,080) hours of accumulated sick leave to purchase up to one (1) year of such additional credited service, on a pro rata basis.

(g) From and after May 26, 2009, members of the 61st District Court GREIU bargaining unit who either resign or retire with ten (10) or more years of continuous service may use up to two thousand eighty (2,080) hours of accumulated sick leave to purchase up to one (1) year of such additional credited service, on a pro rata basis.

(h) From and after July 9, 2009, members of the Library GREIU Rank & File and Supervisory bargaining units who either resign or retire with ten (10) or more years of continuous service may use up to two thousand eighty (2,080) hours of accumulated sick leave to purchase up to one (1) year of such additional credited service, on a pro rata basis.

(i) From and after January 26, 2010, Non-Represented Members as defined in Section 1.192(18.1) who either resign or retire with ten (10) or more years of continuous service may use up to two thousand eighty (2,080) hours of accumulated sick leave to purchase up to one (1) year of such additional credited service, on a pro rata basis.

Any such additional credited service purchased with accumulated sick leave shall be subject to the overall credited service limitation of Section 1.202(1) herein, or the allowance cap provisions applicable under Section 1.205 herein.
(Ord. No. 72-50, 6-27-72; Ord. No. 80-10, 2-19-80; Ord. No. 88-31, § 3, 5-17-88; Ord. No. 98-48, § 1, 11-3-98; Ord. No. 98-55, § 1, 11-24-98; Ord. No. 99-78, § 1, 12-21-99; Ord. No. 2002-50, § 3, 8-20-02; Ord. No. 2005-29, § 3, 5-17-05; Ord. No. 2009-49, § 3, 9-15-09; Ord. No. 2010-48, § 1, 8-24-10)

Sec. 1.203. Age and Service Retirement Eligibility.

Any member in employer service may retire with a life allowance provided for in Section 1.205 upon written application to the Board setting forth at what time not less than thirty (30) days nor more than ninety (90) days subsequent to the execution and filing thereof the member desires to be retired; provided, that at the time so specified for retirement the member shall have attained the minimum service retirement age, and shall have ten (10) or more years of credited service in force, notwithstanding that during such period of notification the member may have separated from service. The member shall have the right to elect an option provided for in Section 1.206.

Any member in employer service who has not attained the minimum service retirement age and who is not eligible for Section 1.209 Special Early Retirement may retire and receive the allowance provided for in Section 1.205 (no age adjustment factor for early retirement) upon written application to the Board setting forth at what time, not less than thirty (30) days nor more than ninety (90) days subsequent to the execution and filing thereof, retirement is desired; provided, at the time so specified for his or her retirement the member shall have thirty (30) or more years of eligible service with the employer or effective January 1, 2001, for members covered by the Emergency Communications Operators Bargain-

ing Unit, eight (8) years of service and fifty-five (55) years of age. The member retiring under this Section shall have the right to elect an option provided for in Section 1.206. Eligible service shall be defined as credited service and in addition thereto time spent on leave of absence (including time spent on leave of absence for military service which has not been credited as service under Section 1.202(2) of this Article); provided, however, that such leave of absence time shall not exceed two (2) years in total, time in excess of two (2) years will not be included in computing total eligible service; and further provided, that such leave of absence time shall be excluded from the calculation of the allowance provided for in Section 1.205.

For Appointed Officers retiring under this section having elected to reenter the System as permitted by Section 1.285, eligible service shall be defined as all time spent employed by the City, from the date upon which permanent employment commenced. As provided in this Section, eligible service shall include time spent on leave of absence not to exceed two (2) years. No credit shall be given for time during which such appointed officer may have served the City as a seasonal, temporary, contractor or otherwise less than full time employee.

(Ord. No. 72-50, 6-27-72; Ord. No. 81-8, 1-27-81; Ord. No. 88-31, § 4, 5-17-88; Ord. No. 98-48, § 1, 11-3-98; Ord. No. 99-1, § 1, 1-5-99; Ord. No. 2009-49, § 4, 9-15-09)

Sec. 1.204. Compulsory Retirement.

There shall be no compulsory retirement. However, no member shall accrue any benefits to exceed those provided in Sections 1.202(l) and 1.205.

(Ord. No. 72-50, 6-27-72; Ord. No. 88-31, § 5, 5-17-88; Ord. No. 98-48, § 1, 11-3-98)

Sec. 1.205. Life Allowance.

Upon a member's retirement as provided in this Chapter, the member shall receive a life allowance equal to the applicable percent of final average salary multiplied by the member's period of credited service to the nearest one-twelfth (1/12) year up to a maximum of forty (40) years of credited service, or, if applicable, up to the allowance cap as defined in Section 1.192(4)(a) herein. The applicable percent of final average salary (Benefit Multiplier) and the Allowance Cap, if any, are provided in the following table for the applicable member groups:

Covered Employee Group	*Date of Termination*	*Benefit Multiplier*	*Allowance Cap [apply as indicated and remain in effect for subsequent termination dates unless otherwise amended]*
All Employees	July 1, 1978 to June 30, 1982	2.0%	
	July 1, 1982 to December 31, 1987	2.2%	
	January 1, 1988 to December 31, 1996	2.4%	
	On or after January 1, 1997	2.5%	
GRPOA-Crime Scene Tech/Latent Print Examiners	January 1, 1997 to June 30, 1999	2.4%	
GRPOA-Crime Scene Tech/Latent Print Examiners	July 1, 1999 to June 30, 2002	2.5%	
GRPOA-Crime Scene Tech/Latent Print Examiners	July 1, 2002—July 7, 2012	2.7%	100% applicable to CST's hired prior to January 1, 2002 90% applicable to CST's hired from January 1, 2002—November 14, 2011

Covered Employee Group	*Date of Termination*	*Benefit Multiplier*	*Allowance Cap [apply as indicated and remain in effect for subsequent termination dates unless otherwise amended]*
GRPOA-Crime Scene Tech/Latent Print Examiners	July 8, 2012—	2.7%, 2.5%, 2.2%, 2.0% or 1.8% for future service from and after July 8, 2012, depending on the individual election made by the employee as provided in Section 1.229(9)	100% applicable to CST's hired prior to January 1, 2002 90% applicable to CST's hired from January 1, 2002—November 14, 2011
ECOs I, II and III	January 1, 2002—March 31, 2012	2.7%	100% applicable to ECO's I, II and III hired on or before May 6, 2002 90% applicable to ECO's I, II, and III hired on or after May 7, 2002
ECOs I, II and III	April 1, 2012—	2.7%, 2.5%, 2.2%, 2.0% or 1.8% for future service from and after April 1, 2012, depending on the individual election made by the employee as provided in Section 1.229(10)	100% applicable to ECO's I, II and III hired on or before May 6, 2002 90% applicable to ECO's I, II, and III hired from May 7, 2002—January 23, 2012
APAGR	January 1, 2003—December 31, 2004	2.6%	97.5% for employees hired prior to January 1, 2005
APAGR	January 1, 2005—June 11, 2011	2.7%	97.5% for employees hired prior to January 1, 2005 94.5% for employees hired on or after January 1, 2005
APAGR	June 12, 2011—	2.7% or 2.5% or 2.2% for future service from and after June 12, 2011, depending on the individual election made by the employee as provided in Section 1.229(3) 2.0% for members hired or re-entering service on or after June 12, 2011	97.5% for employees hired prior to January 1, 2005 94.5% for employees hired from January 1, 2005—June 30, 2014
APAGR 61st District Court	January 1, 2003—December 31, 2004	2.6%	97.5% for employees hired prior to January 1, 2005
APAGR 61st District Court	January 1, 2005—July 7, 2012	2.7%	97.5% for employees hired prior to January 1, 2005 94.5% for employees hired from January 1, 2005—September 12, 2011
APAGR 61st District Court	July 8, 2012—	2.7%, 2.5%, 2.2%, 2.0% or 1.8% for future service from and after July 8, 2012, depending on the individual election made by the employee as provided in Section 1.229(8)	97.5% for employees hired prior to January 1, 2005 94.5% for employees hired from January 1, 2005—September 12, 2011
Non-Represented Members as defined in Section 1.192(18.1)	January 1, 2005—September 4, 2010	2.7%	97.5% for employees hired prior to January 1, 2005 94.5% for employees hired on or after January 1, 2005
Non-Represented Members as defined in Section 1.192(18.1)	September 5, 2010—	2.7% or 2.5% or 2.2% for future service from and after September 5, 2010, depending on the individual election made by the employee as provided in Section 1.229(1) 2.0% for non-represented members hired or re-entering service from September 5, 2010 through June 30, 2011	97.5% for employees hired prior to January 1, 2005 94.5% for employees hired from January 1, 2005 through June 30, 2011
61st District Court Judges	January 1, 2005—January 8, 2011	2.7%	97.5%
61st District Court Judges	January 9, 2011—	2.7% or 2.5% or 2.2% for future service from and after January 9, 2011, depending on the individual election made by the employee as provided in Section 1.229(2)	97.5%

Covered Employee Group	*Date of Termination*	*Benefit Multiplier*	*Allowance Cap [apply as indicated and remain in effect for subsequent termination dates unless otherwise amended]*
Museum Full-Time Supervisory and Administrative Staff and Museum Non-Supervisory Staff	January 1, 2005—June 30, 2006	2.7%	97.5% for employees hired prior to January 1, 2005 94.5% for employees hired on or after January 1, 2005
Library Management and Confidential Employees	January 1, 2005—September 4, 2010	2.7%	
EC Supervisors	January 1, 2006—January 7, 2012	2.7%	90% applicable for all employees entering this unit after July 1, 2004
EC Supervisors	January 8, 2012—	2.7%, 2.5%, 2.2%, 2.0% or 1.8% for future service from and after January 8, 2012, depending on the individual election made by the employee as provided in Section 1.229(5)	90% applicable for all employees entering this unit after July 1, 2004
GREIU	January 1, 2005—July 7, 2012	2.7%	97.5% for employees hired prior to January 1, 2005 94.5% for employees hired from January 1, 2005—May 24, 2011
GREIU	July 8, 2012—	2.7%, 2.5%, 2.2%, 2.0% or 1.8% for future service from and after July 8, 2012, depending on the individual election made by the employee as provided in Section 1.229(4)	97.5% for employees hired prior to January 1, 2005 94.5% for employees hired from January 1, 2005—May 24, 2011
GREIU-Public Library Rank & File and Supervisory bargaining units	January 1, 2006—July 7, 2012	2.7%	97.5% for employees hired prior to January 1, 2005 94.5% for employees hired from January 1, 2005—September 1, 2011
GREIU-Public Library Rank & File and Supervisory bargaining units	July 8, 2012—	2.7%, 2.5%, 2.2%, 2.0% or 1.8% for future service from and after July 8, 2012, depending on the individual election made by the employee as provided in Section 1.229(6)	97.5% for employees hired prior to January 1, 2005 94.5% for employees hired from January 1, 2005—September 1, 2011
GREIU-61st District Court	January 1, 2005—July 7, 2012	2.7%	97.5% for employees hired prior to January 1, 2005 94.5% for employees hired from January 1, 2005—September 12, 2011
GREIU-61st District Court	July 8, 2012—	2.7%, 2.5%, 2.2%, 2.0% or 1.8% for future service from and after July 8, 2012, depending on the individual election made by the employee as provided in Section 1.229(7)	97.5% for employees hired prior to January 1, 2005 94.5% for employees hired from January 1, 2005—September 12, 2011

(Ord. No. 72-50, 6-27-72; Ord. No. 74-68, 8-20-74; Ord. No. 77-61, 11-8-77; Ord. No. 83-16, 3-15-83; Ord. No. 88-31, § 6, 5-17-88; Ord. No. 98-48, § 1, 11-3-98; Ord. No. 2000-45, § 2, 7-11-00; Ord. No. 2003-29, § 3, 8-5-03; Ord. No. 2005-29, § 4, 5-17-05; Ord. No. 2007-41, § 1, 7-10-07; Ord. No. 2010-46, § 2, 8-24-10; Ord. No. 2010-74, § 2, 12-21-10; Ord. No. 2011-11, § 1, 3-22-11; Ord. No. 2011-26, § 2, 7-12-11; Ord. No. 2011-62, § 2, 12-20-11; Ord. No. 2012-08, § 2, 1-24-12; Ord. No. 2014-54, § 2, 7-22-14)

Sec. 1.206. Allowance Options.

(1) Under such rules and regulations and limitations as the Board shall adopt, before the date the first payment of his or her allowance becomes due but not thereafter, a person about to become a retirant may elect to receive an optional form of allowance in lieu of the allowance otherwise payable to him or her as described in Section 1.205. The value of each such optional form of allowance shall be the actuarial equivalent of the value of the allowance otherwise payable to him or her.

The optional forms of allowance made available by the Board shall be the forms following or such other forms the Board approves:

(a) *Option B-100.* Upon the death of a retirant who elected Option B100, one hundred (100%) percent of the reduced allowance to which the retirant would have been entitled had the retirant lived shall be paid to the retirant's surviving beneficiary for the lifetime of such surviving beneficiary.

(b) *Option B-75.* Upon the death of a retirant who elected Option B75, seventy-five (75%) percent of the reduced allowance to which the retirant would have been entitled had the retirant lived shall be paid to the retirant's surviving beneficiary for the lifetime of such surviving beneficiary.

(c) *Option B-50.* Upon the death of a retirant who elected Option B50, fifty (50%) percent of the reduced allowance to which the retirant would have been entitled had the retirant lived shall be paid to the retirant's surviving beneficiary for the lifetime of such surviving beneficiary.

(d) *Option B-25.* Upon the death of a retirant who elected Option B25, twenty-five (25%) percent of the reduced allowance to which the retirant would have been entitled had the retirant lived shall be paid to the retirant's surviving beneficiary for the lifetime of such surviving beneficiary.

(e) *Option B-100 Pop-up.* Same as Option B-100 with the added provision that if the designated beneficiary predeceases the retirant, the allowance shall be returned to the amount of the life allowance that would have been payable if no optional form of payment had been elected. Such change shall be made effective the month following the month in which the joint beneficiary died.

(f) *Option B-75 Pop-up.* Same as Option B-75 with the added provision that if the designated beneficiary predeceases the retirant, the allowance shall be returned to the amount of the life allowance that would have been payable if no optional form of payment had been elected. Such change shall be made effective the month following the month in which the joint beneficiary died.

(g) *Option B-50 Pop-up.* Same as Option B-50 with the added provision that if the designated beneficiary predeceases the retirant, the allowance shall be returned to the amount of the life allowance that would have been payable if no optional form of payment had been elected. Such change shall be made effective the month following the month in which the joint beneficiary died.

(h) *Option B-25 Pop-up.* Same as Option B-25 with the added provision that if the designated beneficiary predeceases the retirant, the allowance shall be returned to the amount of the life allowance that would have been payable if no optional form of payment had been elected. Such change shall be made effective the month following the month in which the joint beneficiary died.

For employees who retire on or after January 1, 1997, who are not members of the Association of Professional Administrators, the actuarial reduction attributable to the survivor option election will be calculated using the ages of the member and spouse at the earlier of the date the member completes forty (40) years of service or the date of retirement.

(2) Effective July 1, 1989, benefits payable under any provision of this System will commence not later than the later of the following:

(a) April 1 of the calendar year following the calendar year in which the member retires; or

(b) April 1 of the calendar year following the calendar year in which the member attains or would have attained age seventy and one-half (70½).

Payments to beneficiaries other than surviving spouses will commence not later than one year after the death of the member or former member.

If death benefits are payable to anyone other than a surviving spouse or designated beneficiary, the entire death benefit must be paid within five years after the death of the member.

If payments have commenced to the member or former member prior to his death, then the remaining benefits will be paid to his beneficiary at least as rapidly as under the method of payment made to the member or former member as of the date of death.

No distribution shall be made in a form or over a period longer than permitted in Code Section 401(a)(9) and regulations thereunder, including the incidental death benefit requirements contained therein. These limitations override any inconsistent distribution options.
(Ord. No. 72-50, 6-27-72; Ord. No. 84-14, § 1, 3-13-84; Ord. No. 98-48, § 1, 11-3-98)

Sec. 1.207. Terminal Benefit Covering Retirant.

In the event a retirant dies before he or she has received in allowance payments an aggregate amount equal to his or her accumulated contributions standing to his or her credit in the members' deposit fund at the time of his or her retirement, the difference between such accumulated contributions and such aggregate amount of allowance payments received by him or her shall be paid to such person as he or she shall have nominated by written designation duly executed and filed with the Board. If there be no such designated person surviving such retirant, such difference, if any, shall be paid to the retirant's estate. In no case shall any benefits be paid under this Section on account of the death of a retirant if any allowance becomes payable by the System on account of his or her death.
(Ord. No. 72-50, 6-27-72; Ord. No. 98-48, § 1, 11-3-98)

Sec. 1.208. Early Retirement.

(1) Any member in employer service who has not attained his or her minimum service retirement age and who is not eligible for Section 1.209 special early retirement may retire with an early allowance provided for in (2) of this Section upon his or her written application to the Board setting forth at what time not less than thirty (30) days nor more than ninety (90) days subsequent to the execution and filing thereof he or she desires to be retired; provided, that at the time so specified for his or her retirement the member shall either (i) have twenty (20) or more years of credited service in force, or (ii) shall have attained age fifty-five (55) and have ten (10) or more years of credited service in force. He or she shall have the right to elect an option provided for in Section 1.206.

(2) Upon early retirement a member shall receive a percentage of the allowance provided for in Section 1.205, in accordance with the following

table of actuarial equivalent percents:

Age Last Birthday at Time of Retirement	*Percent of Section 1.205 Allowance*	*Age Last Birthday at Time of Retirement*	*Percent of Section 1.205 Allowance*
37	19.94%	50	41.86%
38	21.01	51	44.62
39	22.16	52	47.63
40	23.38	53	50.91
41	24.68	54	54.49
42	26.08	55	58.41
43	27.58	56	62.72
44	29.19	57	67.45
45	30.92	58	72.68
46	32.78	59	78.46
47	34.79	60	84.87
48	36.96	61	92.02
49	39.31	62	100.00

(Ord. No. 72-50, 6-27-72; Ord. No. 98-48, § 1, 11-3-98)

Sec. 1.209. Special Early Retirement.

(1) Any member in employer service who has not attained his or her minimum service retirement age but who has attained the age of sixty (60) years shall receive a special early allowance provided for in (2) of this Section effective the first day of the calendar month following his or her termination of employer service, if the City Manager shall determine that such retirement is in the best interests of the City. Such determination shall be stated in writing and filed with the Board and the Civil Service Board. A copy of such determination shall be served personally or be certified mail upon such member. Within thirty (30) days of service upon him or her such member shall have a right to appeal such determination to the Civil Service Board by filing a written notice of appeal with the Civil Service Board. The Civil Service Board shall set a time and place for hearing such appeal, and such member shall have the right to appear at such hearing, to present evidence and to be represented by counsel. If the Civil Service Board shall determine that the retirement of such members is in the best interest of the City, it shall affirm the determination of the City Manager, and, if not, it shall set the same aside.

(2) Upon special early retirement a member shall receive the allowance provided for in Section 1.205 (no age adjustment factor for early retirement). He or she shall have the right to elect an option provided for in Section 1.206.
(Ord. No. 72-50, 6-27-72; Ord. No. 95-41, § 1, 7-11-95; Ord. No. 95-42, § 1, 7-11-95; Ord. No. 98-48, § 1, 11-3-98)

Sec. 1.209.1. Disability Retirement.

(1) Any member in employer service with ten (10) or more years of credited service who has not attained his or her minimum service retirement age and who becomes totally and permanently physically or mentally incapacitated for his or her duty as an employee, as the result of a personal injury or disease which the Board finds to have arisen other than in the course of his or her actual performance of duty as an employee, may be retired by the Board upon written application filed with the Board by or on behalf of the member; provided, that after a medical examination of such member made by or under the direction of a Medical Committee consisting of three (3) physicians, one (1) of whom shall be selected by the Board, one (1) by or on behalf of such member, and the third by the first two (2) physicians so named, the said Medical Committee reports to the Board, by majority opinion in writing, that such member is physically or mentally totally incapacitated for the further performance of duty, that such incapacity will probably be permanent, and that such member should be retired.

(2) Upon disability retirement as provided in (1) of this Section a member shall receive an allowance provided for in Section 1.205 and shall have the right to elect an option provided for in Section 1.206. His or her disability retirement and allowance shall be subject to the provisions of (5) of this Section and to the provisions of Section 1.209.2.

(3) Any member in employer service who has not attained his or her minimum service retirement age and who becomes totally and permanently physically or mentally incapacitated for

his or her duty as an employee, as the natural and proximate result of a personal injury or disease which the Board finds to have arisen out of and in the course of his or her actual performance of duty as an employee, may be retired by the Board upon written application filed with the Board by or on behalf of the member; provided, that after a medical examination of such member made by or under the direction of a Medical Committee consisting of three (3) physicians, one (1) of whom shall be selected by the Board, one (1) by or on behalf of such member, and the third by the first two (2) physicians so named, the said Medical Committee reports to the Board, by majority opinion in writing, that such member is physically or mentally totally incapacitated for further performance of duty, that such incapacity will probably be permanent, and that such member should be retired.

(4) Upon disability retirement as provided in (3) of this Section a member shall receive an allowance provided for in Section 1.205; provided, that in no event shall such allowance be less than fifty (50) percent of their final average salary. For civilian classifications represented by the Police Bargaining Units: Crime Scene Technicians - Prisoner Security Clerks and Emergency Communications Operators I and II, the allowance shall not be less than sixty-two (62) percent of their final average salary. They shall have the right to elect an option provided for in Section 1.206. Their disability retirement and allowance shall be the subject to the provisions of (5) of this Section and to the provisions of Section 1.209.2.

(5) (a) At least each year during the first five (5) years following a member's retirement on account of disability, and at least once in each three-year period thereafter, the Board may require any disability retirant who has not attained his or her minimum service retirement age to undergo a medical examination to be made by or under the direction of a physician designated by the Board. If such a retirant refuses to submit to such medical examination in any such period his or her disability allowance may be suspended by the Board until his or her withdrawal of such refusal. If such refusal continues for one (1) year all his or her rights in and to a disability allowance may be revoked by the Board. If, upon such medical examination of such retirant, such physician reports to the Board that the said retirant is physically and mentally able and capable of resuming his or her duty as an employee in the position held by him or her at the time of his or her disability retirement, then the Board shall arrange a further medical examination of such member made by or under the direction of a Medical Committee consisting of three (3) physicians, one (1) of whom shall be selected by the Board, one (1) by or on behalf of such member, and the third by the first two (2) physicians so named. Should the Medical Committee concur, by majority opinion in writing to the Board, in the finding that such disability retirant is capable of such resumption of duty, his or her disability retirement shall terminate and he or she shall be returned to duty.

(b) Upon a former disability retirant's return to duty as provided in this subsection, he or she shall immediately again become a member of the System, and his or her credited service at the time of his or her disability retirement shall be restored to his or her credit, and the amount of his or her accumulated contributions at the time of his or her disability retirement shall be restored to his or her credit in the members' deposit fund. If he or she was in receipt of a duty disability allowance provided for in (3) of this Section, he or she shall also be given service credit for the period he or she was in receipt of such duty disability allowance.

(Ord. No. 72-50, 6-27-72; Ord. No. 74-68, 8-20-74; Ord. No. 90-29, § 2, 3-20-90; Ord. No. 98-48, § 1, 11-3-98)

Sec. 1.209.2. Limit on Death or Disability Pensions.

If a death allowance is payable under the provisions of Section 1.211, or if a disability allowance is payable under the provisions of Section 1.209.1, then in no event shall the total amount of such System allowances exceed ninety (90%) percent of the amount of his or her annual rate of compensation at time of death or disability, as the case may be, less the total of the following amounts:

(a) Workmen's compensation, if any, on account of such death or disability. Payment of workmen's compensation on account of a disability or death shall not prohibit payment of any System allowance on account of the same disability or death, but shall reduce the amount of such allowance.

(b) Remuneration, if any, received by such retirant for personal services rendered by him or her in any gainful occupation;

(c) Benefits, if any, from the Federal social security old-age, survivors, and disability insurance program on account of such death or disability.

(Ord. No. 72-50, 6-27-72; Ord. No. 74-68, 8-20-74; Ord. No. 98-48, § 1, 11-3-98)

Sec. 1.209.3. Deferred Retirement.

(1) Should a member with eight (8) or more years of credited service cease to be a member, except by death or retirement, before attaining minimum service retirement age, as defined in Section 1.192 and before being eligible for an early allowance as provided in Sections 1.208 and 1.209, or being eligible, elects against receiving such early allowance, such member shall be entitled to a deferred allowance provided for in this Section; provided that the member does not withdraw his or her accumulated contributions from the members' deposit fund. Such deferred allowance shall commence as of the first day of the calendar month next following the later of:

The attainment of the member's minimum service retirement age, or

The date the member's written application therefore is received by the Board.

The members who, being eligible, elect against receiving an early allowance, may elect commencement of the early allowance on the first day of the month following each anniversary of employment termination following eligibility for early retirement as described in Sec. 1.208(1), above, by filing a written application therefor. The member shall have the right to elect an option provided for in Section 1.206 at the time of filing such written application.

For purposes of determining whether a member has eight (8) years of credited service for purposes of determining eligibility for benefits under this System, prior or subsequent periods of services while a member of the Police and Fire Retirement System of the employer shall be considered if the member has at least three (3) years of credited service in each system. Such service shall not be considered for purposes of determining the amount of life allowance hereunder. Rather, the amount of life allowance under this System shall be determined by the compensation and years of credited service while a member of this System. The Board shall have the authority to agree with the Board of Trustees of the City of Grand Rapids Police and Fire Retirement System to transfer assets from or to the Grand Rapids Police and Fire Retirement System so that all benefits of a member from both systems will be paid by only one such Retirement System in an amount equal to the sum of the values of the benefits earned under both systems.

Members vested with eight (8) or more years of service who cease to be a member by virtue of accepting the officer's option plan provided for in Section 1.283 of Chapter 7, Title I of the Code of the City of Grand Rapids, or who cease active membership in the System for any other reason and elect the deferred option of this Section, are entitled to the provisions outlined above. The deferred benefit will be the life allowance in Section 1.205 calculated using the final average compensation, the benefit percentage, the period of credited service, and other conditions in effect at the time the member ceased being a member of the System. Because the officer's option plan is

entered into in lieu of any and all life allowances under the General Retirement System, the enhancement of any life allowance after the member ceased being a member is prohibited.

(2) A former member, or person designated by that member as beneficiary, otherwise entitled to a deferred allowance shall be entitled to a deferred allowance if written application therefor is received by the Board from the member or beneficiary as described below in accordance with Section 1.209.3(1) above, but not later than the date the member attains or would have attained age seventy-five (75). In the event such former member does not so live, has not designated a beneficiary, or in the event such written application is not received by the Board within the time limits specified, no benefits whatsoever shall be paid except under the provisions of Section 1.212.

(3) In the event of the death of a former member who has deferred pension rights, the designated primary beneficiary shall have the immediate option of electing to receive the deferred benefit subject to the early retirement actuarial equivalent age reduction found in Section 1.208(2), if any, in accordance with Section 1.209.3(1), based upon the age that the former member would have attained at the time application is made, at any time after the death of a former member who has deferred pension rights.

For purposes of this Section, the beneficiary must be on file in the pension records and designated by the member as the primary beneficiary. In such case, it will be presumed that Option B-100 was elected. The distribution of benefits will be effective and prorated at the end of the month of application and in no case will the payment of any benefit in this Section 1.209.3 be retroactive.
(Ord. No. 72-50, 6-27-72; Ord. No. 88-31, § 7, 5-17-88; Ord. No. 90-29, § 3, 3-20-90; Ord. No. 94-42, § 1, 11-1-94; Ord. No. 98-48, § 1, 11-3-98)

Sec. 1.209.4. 2002 Voluntary Retirement Incentive.

(1) On February 26, 2002, a Voluntary Retirement Incentive Plan (the "Plan") was adopted by the Grand Rapids City Commission (the "City") which provided that employees who are members of the System, other than elected and appointed officials, and who, in addition to satisfying the requirements of Section 2(B) of such "Plan" also satisfy all of the following requirements, are eligible to receive the retirement incentive set forth in subsection (2) below:

(a) The employee must be eligible for normal age and service retirement under Section 1.203 utilizing his or her years of credited service and the two (2) years of additional credited service granted to individuals who retire under this Section. For purposes of this subsection, "years of credited service" does not include any months of credited service purchased under Section 1.202(6).

(b) The employee must be employed and actively working for the City or on an approved leave of absence on February 26, 2002. For purposes of this subsection, "actively employed" means that an employee is physically at work performing duties or is on an approved paid leave of absence (e.g. worker's compensation or FMLA leave) and does not include individuals who retired on or before February 26, 2002.

(c) The employee must have at least twenty-eight years of credited service; or be age 62 and have at least six (6) years of credited service; or be a member of the Emergency Communications Operators bargaining unit and be age 55 and have at least six (6) years of credited service. For purposes of this subsection, "years of credited service" does not include any months of credited service purchased under Section 1.202(6).

(d) The employee must sign and deliver the Retirement Election and Release Agreement to the City not later than 4:00 p.m. on April 30, 2002 and shall terminate employment with the City on or before June 30, 2002, with a retirement date the first day of the month following termination. The minimum thirty (30) day notifi-

cation required by Section 1.203 shall be waived if necessary to allow an employee to retire under this Section.

(2) Employees who retire after satisfying all of the requirements of subsection (1) above shall be entitled to a Life Allowance payable under Section 1.205 (no age adjustment factor for early retirement), calculated using their credited service under Section 1.202 and two (2) additional years of credited service provided hereunder, provided, however, that the provisions of Section 1.202(1) to the contrary not withstanding, no employee retiring under this Section shall be eligible to receive a Life Allowance payable under Section 1.205 that is greater than 100% of his or her final average salary. Employees retiring under this Section shall have the right to elect an option provided for in Section 1.206.

(3) The retirement incentive of two (2) additional years of credited service as set forth in subsection (2) above shall not be provided to an eligible employee who, before his or her selected retirement date, quits, becomes eligible for disability retirement under the System, dies or otherwise is unwilling or unable to remain in the active employment of the city, or files for and receives unemployment compensation chargeable to the City's account. All costs associated with the retirement incentive provided for in subsection (2) above shall be funded in accordance with Section 1.221(1), (2), (3), (5) and (6).
(Ord. No. 2002-16, § 1, 3-19-02)

Sec. 1.209.5. 2003 Voluntary Retirement Incentive—G.R. Public Museum.

(1) On March 5, 2003, a Voluntary Retirement Incentive Plan (the "Plan") for employees working for the Board of Art and Museum Commissioners at the Public Museum of Grand Rapids (the "Employees") was adopted by the Board of Art and Museum Commissioners of the City of Grand Rapids (the "Public Museum"), which provided that such employees who are members of the System, and who satisfy the requirements of Section 1 of the Plan and all of the following requirements, are eligible to receive the retirement incentive set forth in Subsection (2) below:

(a) The employee must be actively working for the Public Museum and have between twenty-six (26) and thirty (30) years of credited service as a member of the System as of June 30, 2003. Employees on leave at the time of the application or the time of the last scheduled day of work will not be eligible. Approved vacation leave or other leave approved by the Museum Director, however, will not disqualify an employee from participation. For purposes of this subsection, "years of credited service" does not include any months of credited service purchased under Section 1.202(6).

(b) The employee must be eligible for the thirty-year credited service retirement under Section 1.203 utilizing his or her years of credited service and the years of additional credited service up to a maximum of four (4) years granted to individuals who retire under this Section 1.209.5. For purposes of this subsection, "years of credited service" will include any months of credited service purchased under Subsection (1)(c), below.

(c) An employee with at least twenty-four (24) but less than twenty-six (26) years of credited service without counting any service purchased under Section 1.202(6), may purchase up to twenty-four (24) months of additional credited service, which will be counted as credited service toward the twenty-six-year minimum for eligibility for the Plan, for determining satisfaction of the thirty-year requirement of Section 1.203, and for determining the employee's Life Allowance under Section 1.205. An employee may not purchase months of credited service under this Subsection (1)(c) in excess of the amount needed to reach twenty-six (26) years of service. For purposes of this Subsection (1)(c), any months of service purchased will be in addition to any months of credited service previously purchased under Section 1.202(6). Such service must be purchased prior to June 30, 2003, at the actual cost as determined by the System's actuaries, using the same factors used to determine the cost for the Public Museum

to purchase additional credit for the employee under Subsection (1)(b), above, and must be paid for in full by June 30, 2003, in accordance with Subsection (4), below.

(d) Employees who have signed and delivered the Retirement Election and Release Agreement to the Public Museum not later than 5:00 p.m. on March 14, 2003, will terminate employment with the City of Grand Rapids and the Public Museum on June 30, 2003, with a retirement date of July 1, 2003. The minimum thirty-day notification required by Section 1.203 will be waived if necessary to allow an employee to retire under this Section 1.209.5.

(2) Employees who retire after satisfying all of the requirements of Subsection (1), above, will be entitled to a Life Allowance payable under Section 1.205 (no age adjustment factor for early retirement), calculated using their credited service under Section 1.202 and up to four (4) additional years of credited service provided under Subsection (1)(b), above, and up to two (2) years provided in Subsection (1)(c), above; provided, however, that no employee retiring under this Section will be eligible to receive a Life Allowance payable under Section 1.205 that is greater than that which is based on years of credited service greater than thirty (30) years plus the amount of credited service purchased under Section 1.202(6). Employees retiring under this Section 1.209.5 will have the right to elect an option provided for in Section 1.206.

(3) The retirement incentive of up to four (4) additional years of credited service as set forth in Subsection (2), above, will not be provided to an eligible employee who, before June 30, 2003 date, quits, becomes eligible for disability retirement under the System, dies or otherwise is unwilling or unable to remain in the active employment at the Public Museum, or files for and receives unemployment compensation chargeable to the Public Museum's or the City of Grand Rapids' account. All costs for the present value of future benefits (PVFB) associated with the retirement incentive provided for in this Section 1.209.5 which are not paid by an employee, will be calculated by the System's actuaries and paid by the Public Museum to the General Retirement System, in full, on or before June 30, 2003.

(4) Payment to purchase the up to twenty-four (24) months of credited service provided for in Subsection (1)(c), above, must be made not later than 4:00 p.m. on June 30, 2003. The amount due will be determined under Subsection (1)(b), above, and paid by one (1) of the following methods:

(a) By a single lump sum payment of the total amount to the General Retirement System; or

(b) By a Trustee to Trustee transfer of the total amount to the System from an eligible retirement plan, ("eligible retirement plan") as defined in Section 1.212(6)(b).

Any amount owing under this Subsection (4) that is unpaid at 4:00 p.m. on June 30, 2003 will be disregarded and will not be used in determining the employee's satisfaction of the requirements of Subsection (1), above, or the employee's eligibility to receive the retirement incentive set forth in Subsection (2), above.
(Ord. No. 2003-16, § 1, 4-29-03)

Sec. 1.209.6. 2006 Voluntary Retirement Incentive—Grand Rapids Public Library.

(1) On May 30th, 2006 a Voluntary Retirement Incentive Plan (the "Plan") for employees working for the Board of Library Commissioners at the Grand Rapids Public Library (the "Employees") was adopted by the Board of Library Commissioners of the City of Grand Rapids (the "Public Library"), which provided that such employees who are members of the Retirement system and who satisfy the requirements of Section 2 of the Plan and all of the following requirements, are eligible to receive the retirement incentive set forth in Subsection (2) below:

(a) The employee must be actively working for the Public Library and have at least twenty-eight (28) years of credited service as a member of the Retirement System by September 29, 2006 or be age sixty-two (62) or older as of May 30, 2006, with at least six (6) years of credited service. For

purposes of this subsection, "years of credited service" does not include any months of credited service purchased under Section 1.202(6) of the Retirement Plan.

(b) The employee must be eligible for a normal age and service retirement under Section 1.203 utilizing his or her years of credited service and the two (2) years of additional credited service granted to individuals who retire under this Section 1.209.6.

(c) The employee must sign and deliver the Retirement Election and Release Agreement to the Library's Human Resources Department at the Main Downtown Library not later than 5:00 p.m. on September 29, 2006 and shall terminate employment with the City on or before December 31, 2006, with a retirement date the first day of the month following termination. The minimum thirty (30) day notification required by Section 1.203 shall be waived if necessary to allow an employee to retire under this Section.

(2) Employees who retire after satisfying all of the requirements of Subsection (1) above shall be entitled to a Life Allowance payable under Section 1.205 (no age adjustment factor for early retirement) calculated using their credited service under Section 1.202 and two (2) additional years of credited service provided hereunder; provided, however, that the provisions of Section 1.202(1) to the contrary not withstanding, no employee retiring under this Section shall be eligible to receive a Life Allowance payable under Section 1.205 that is greater than 100% of his or her final average salary. Employees retiring under this Section shall have the right to elect an option provided for in Section 1.206.

(3) The retirement incentive of two (2) additional years of credited service as set forth in Subsection (2) above shall not be provided to an eligible employee who, before his or her selected retirement date, quits, becomes eligible for disability retirement under the System, or dies or otherwise is unwilling or unable to remain in the active employment of the City at the Public Library, or files for and receives unemployment compensation chargeable to the City's account. All costs for the present value of future benefits (PVFB) associated with the retirement incentive provided for in this Section 1.209.6 will be calculated by the systems' actuaries and paid by the Public Library to the General Retirement System, in full, on or before December 31, 2006.
(Ord. No. 2006-44, § 1, 6-27-06)

Sec. 1.209.7. 2006 Voluntary Retirement Incentive—Grand Rapids Public Museum.

(1) Any full-time employee of the G.R. Public Museum who is a member of the Retirement System with at least twenty-six and one-half years (26.5) of credited service without counting any service purchased under Section 1.202(6) herein, may purchase up to forty-two (42) months of additional credited service which will be counted as credited service for determining satisfaction of the thirty-year requirement of Section 1.203, and for determining the employee's Life Allowance under Section 1.205. An employee may not purchase months of credited service under this Subsection 1.209.7(1) in excess of the amount needed to reach thirty (30) years of credited service, not counting any years of credited service purchased under Section 1.202(6).

(2) Any employee who elects to purchase credited service under Section 1.209.7(1) above, must make said election, in writing, to the Office of the Executive Director of the General Retirement System on or before June 30, 2006 at 4:00 p.m. and shall pay for such credited service at the actual cost to the Retirement System as determined by the System's actuaries.

(3) The retirement incentive of up to forty-two (42) months of additional credited service as set forth in Subsection (1) above will not be provided to an eligible employee who, before June 30, 2006, quits, becomes eligible for disability retirement under the System, dies or is otherwise unwilling or unable to remain in the active employment at the Public Museum; or files for and receives unemployment compensation chargeable to the Public Museum's or the City of Grand Rapids' account.

(4) Payment to purchase the up to forty-two (42) months of credited service provided for in Subsection (1) above must be made not later than 4:00 p.m. on July 31, 2006. The amount due will be determined under Subsection (2) above and be paid by one of the following methods:

(a) By a single lump sum payment of the total amount to the General Retirement System; or

(b) By a Trustee to Trustee transfer of the total amount to the System from an eligible retirement plan ("eligible retirement plan") as defined in Section 1.212(6)(b); or

(c) By an increased rate of contribution as approved by the Board of Trustees.

Any amount owing under this Subsection (4) that is unpaid at 4:00 p.m. on July 31, 2006 will be disregarded and will not be used in determination of the employee's eligibility to receive a retirement benefit under Section 1.203.

(Ord. No. 2006-45, § 1, 6-27-06)

Sec. 1.210. Termination Bonus.

(1) A termination bonus as herein provided shall be paid on behalf of a member only as provided in Section 1.211 herein, "Member dying while in employer service."

(2) The member's termination bonus shall be an amount determined in (d) below and based upon (a), (b) and (c) below; provided, the Board may defer payment of the amount for ninety (90) days:

(a) The member's contributions on deposit in the System at time of termination, exclusive of any interest credits thereon.

(b) Twenty-five (25) percent, plus seven and one-half (7½) percent for each whole year of his or her credited service in excess of ten (10) years, to a maximum total of one hundred (100) percent.

(c) A percent from the table following, based on the member's attained age last birthday at time of termination.

TERMINATION BONUS TABLE

Attained Age	*Percent*	*Attained Age*	*Percent*
25	35%	45	123%
26	38	46	130
27	41	47	138
28	44	48	145
29	48	49	153
30	51	50	161
31	54	51	170
32	58	52	179
33	62	53	189
34	66	54	200
35	70	55	211
36	74	56	222
37	78	57	235
38	84	58	249
39	88	59	264
40	94	60	280
41	99	61	296
42	105	62	315
43	111	63	335
44	116	64 & up	356

(d) The result of (a) multiplied by (b) multiplied by (c).

(Ord. No. 72-50, 6-27-72; Ord. No. 75-3, 1-14-75; Ord. No. 89-17, § 1, 2-28-89; Ord. No. 98-48, § 1, 11-3-98)

Sec. 1.211. Member Dying While in Employer Service.

(1) If a member dies while in employer service and before retirement there shall be paid a death benefit computed in the same manner as the termination bonus provided for in Section 1.210(2) to the same party receiving the deceased member's accumulated contributions, subject to the provisions of (2) of this Section.

(2) If a member dies while in employer service and before retirement but after becoming eligible to retire with an immediate allowance, and if the party designated as primary beneficiary to receive the member's accumulated contributions in the event of his or her death is one (1) person within the second-degree relationship, upon election of such person the member shall be presumed to have retired effective the date of his or her

death and to have elected option B-100 provided for in Section 1.206 and to have nominated such person as beneficiary thereunder. If (i) the member's death occurs after December 31, 1996, (ii) the member was not represented by any collective bargaining unit or was represented by the Association of Public Administrators, the Grand Rapids Employees Independent Union or the 61st District Court Employee's Association, and (iii) the primary beneficiary is the surviving spouse, then the B-100 benefit amount will not be subject to an early retirement reduction as provided for in Section 1.208(2). Such allowance shall be in place of all other System benefits, and shall be subject to the provisions of Section 1.212(4). In the event the allowance provided for in this Section terminates before there has been paid an aggregate amount equal to the deceased member's accumulated contributions standing to his or her credit in the members' deposit fund at the time of his or her death, the difference between such accumulated contributions and such aggregate amount of allowance payments shall be paid to such person as the member shall have nominated by written designation duly executed and filed with the Board. If there be no such designated person surviving at termination, such difference shall be paid to the member's estate.

(3) In the event a member has received benefits from the System and has not repaid in full amounts payable by him or her to the System, the benefit amounts otherwise provided by this Section shall be withheld, and used to effect repayment, until the total of such withholdings repays in full all amounts payable by him or her to the System.

(Ord. No. 72-50, 6-27-72; Ord. No. 98-48, § 1, 11-3-98; Ord. No. 2007-41, § 2, 7-10-07)

Editor's note—Section 12 of Ord. No. 2007-41 provides for an effective date of July 1, 2007.

Sec. 1.212. Refund of Member's Accumulated Contributions.

(1) In the event a member ceases to be a member other than by death and he or she will not be paid an allowance or any other benefit by the System, he or she shall be paid, upon his or her written application filed with the Board, his or her accumulated contributions standing to his or her credit in the members' deposit fund.

(2) In the event a member dies, and no allowance becomes or will become payable by the System on account of his or her death, his or her accumulated contributions standing to his or her credit in the members' deposit fund at the time of his or her death shall be paid to such person or persons as he or she shall have nominated by written designation duly executed and filed with the Board. If there be no such designated person or persons surviving such member, such accumulated contributions shall be paid to his or her surviving spouse, or to his or her estate if there is no surviving spouse.

(3) In the event a member's membership in the System terminates, and no allowance becomes or will become payable on his or her account, any accumulated contributions standing to his or her credit in the members' deposit fund unclaimed by such member or his or her legal representative within three (3) years from and after the date his or her membership terminated, shall be transferred to the income-expense fund. If thereafter proper application is made for such accumulated contributions, the Board shall pay them from the income-expense fund but without interest after the date payment was first due.

(4) Any member who terminates employer service resulting in an allowance payable by the System and whose accumulated contributions include contributions in excess of two (2%) percent of compensation for the period from January 1, 1956, through December 31, 1964, shall receive, or shall have paid on his or her behalf to his or her beneficiary, an additional lump sum payment equal to such excess, together with interest at the rate of three and one-half (3.5%) percent per annum, compounded annually.

(5) Effective January 1, 1993, a distributee of a member's accumulated contributions may elect to have any portion of an eligible rollover distribution paid directly to an eligible retirement plan specified by the distributee in a direct rollover.

(6) Definitions relating to payments of member's accumulated contributions effective January 1, 1993:

(a) *Eligible rollover distribution.* An eligible rollover distribution is any distribution of all or any portion of the balance to the credit of the distributee, except that an eligible rollover distribution does not include: any distribution that is one of a series of substantially equal periodic payments (not less than annually) made for the life (or life expectancy) of the distributee or the joint lives (or joint life expectancies) of the distributee and the distributee's designated beneficiary, or for a specified period of ten years or more; any distribution to the extent such distribution is required under Code Section 401(a)(9) of the Code; and the portion of any distribution that is not includable in gross income.

(b) *Eligible retirement plan.* An eligible retirement plan is an individual retirement account described in Code Section 408(a), an individual retirement annuity described in Code Section 408(b), an annuity plan described in Code Section 403(a), a qualified trust described in Code Section 401(a), or a deferred compensation plan described in Code Section 457, that accepts the distributee's eligible rollover distribution. Effective January 1, 2002, in the case of an eligible rollover distribution to the surviving spouse, an eligible retirement plan is defined in the preceding sentence.

(c) *Distributee.* A distributee includes a member or former member. In addition, the member's or former member's surviving spouse and the member's or former member's spouse or former spouse who is the alternate payee under an eligible domestic relations order, as defined in Code Section 414(p) and MCL Section 38.1701, et. seq., are distributees with regard to the interest of the spouse or former spouse. A distributee shall also include a designated beneficiary (other than a surviving spouse) of a deceased member.

(d) *Direct rollover.* A direct rollover is a payment by the System to the eligible retirement plan specified by the distributee.

(7) Rules relating to payments of member's accumulated contributions effective January 1, 1993:

(a) *Notice Requirement.* No less than thirty (30) days and no more than ninety (90) days before a distribution (or as otherwise permitted or required by the Code or regulations promulgated thereunder), the Board shall provide the distributee with a written explanation of:

(i) The rules under which the distribution may be paid in a direct rollover to an eligible retirement plan;

(ii) The rules that require income tax withholding if the distribution is not paid in a direct rollover;

(iii) The rules under which the distributee may rollover the distribution within sixty (60) days of receipt; and

(iv) Any other applicable tax rules.

However, if the distributee affirmatively elects to make or not make a direct rollover, and the distribution is either less than five thousand ($5,000.00) or is paid after the distributee attains age sixty-five (65), an immediate distribution shall not be deemed a violation of the thirty-day notice requirement.

(b) *Limitations on Direct Rollovers.* However, the distributee's right to elect a direct rollover is subject to the following:

(i) A distributee may elect a direct rollover of a portion of the distribution and elect to receive the remaining amount;

(ii) A distributee may not elect direct rollover to more than one eligible retirement plan; and

(iii) The distributee shall supply the Board with any information the Board reasonably requests in connection with the direct rollover.

(c) *Income Tax Withholding*. Mandatory income tax withholding shall apply to the portion of the eligible rollover distribution for which the distributee does not elect direct rollover.

(Ord. No. 72-50, 6-27-72; Ord. No. 97-29, § 2, 6-24-97; Ord. No. 98-48, § 1, 11-3-98; Ord. No. 2002-50, § 4, 8-20-02; Ord. No. 2009-19, § 1, 4-14-09)

Sec. 1.213. Assignments Prohibited.

(1) The right of a person to an allowance, to the return of accumulated contributions, the allowance itself, any allowance option, and any other right accrued or accruing under the provisions of this Article, and all moneys belonging to the System shall not be subject to execution, garnishment, attachment, the operation of bankruptcy or insolvency laws, or any other process of law whatsoever, and shall be unassignable, except as is specifically provided in this Article; provided, that should a member be covered by a group insurance or prepayment plan participated in by the employer, and should he or she be permitted to, and elect to, continue such coverage as a retirant, the Board shall deduct from his or her allowance the payments required of him or her to continue coverage under such group insurance or prepayment plan, and to have deducted dues or membership fees, authorized to be paid to an association of retired municipal or public employees; provided further, that the employer shall have the right of set-off for any claim arising from embezzlement by or fraud of a member, retirant or beneficiary. Effective June 27, 1991 this provision will not apply to any "eligible domestic relations order" as described in (2), below.

(2) A domestic relations order is not an "eligible domestic relations order" unless it meets the requirements of Code Section 414(p)(1)(A)(i) and MCL Section 38.1701, et seq. Such order may award an alternate payee a share of the member's benefit. The order may provide that benefits are payable in any form permitted under the System and permitted by MCL Section 38.1704; provided, however, that the alternate payee may not elect a joint and survivor form of payment contingent on the life of any person except the member. If the alternate payee elects to have benefits commence at any time prior to the member's minimum service retirement date or in a form other than monthly payments for the life of the member, the benefit payable will be actuarially adjusted (based on the actuarial assumptions established pursuant to Section 1.192(3) to reflect payment at a different time and for a different form. The System will allocate to an alternate payee a pro rata share of the member's accumulated contributions as of the date of the award of accrued benefits. Such amount will be segregated for the benefit of the alternate payee and credited with regular interest thereafter. Said amount may be paid to alternate payee pursuant to Section 1.212 as if the alternate payee were the member, if appropriate.

(3) Whenever the System is served with a domestic relations order from a court of competent jurisdiction, the Board will follow the following procedure in determining whether the order constitutes an "eligible domestic relations order" that would be exempt from the general spendthrift protection of this Article:

(a) The Board will notify the member and any "alternate payees" named in the order that the order was served on the System and that objections concerning the order must be submitted in writing within fifteen (15) days;

(b) The Board will determine whether the order is an "eligible domestic relations order" as defined in this section and notify the member and each alternate payee of its determination. If the Board determines that the order is an eligible domestic relations order, the Board will direct the custodian to make payment in accordance with the order except that payment will not be made until the member has attained the age and service requirements for early retirement benefits under Section 1.208;

(c) During the period in which the Board is determining the status of the order, payment of any benefits in dispute will be deferred and the amount of the disputed payments will be segregated in a separate account in the System. If the order is

determined to be an eligible domestic relations order within eighteen (18) months after segregation of the benefits in dispute, the Board will direct the custodian to pay the segregated amount, plus investment credits, to the persons entitled to receive them in accordance with the order;

(d) If the Board determines that the order is not an eligible domestic relations order, or if the eighteen-month period described in (c) has expired and the qualification issue has not been resolved, the Board will direct the custodian to pay the segregated funds to the person or persons who would have received them if the order had not been served on the System. If the Board determines that the order is an eligible domestic relations order after expiration of the eighteen-month period, the order will be applied prospectively only;

(e) If the order is determined not to be an eligible domestic relations order, any amounts segregated pursuant to this procedure will be restored to the account of the member or distributed to the member if eligible for distribution; and

(f) The Board will notify the member and all other alternate payees named in the order of its decision concerning the eligible status of the order. Payments pursuant to the order will be made as soon as practicable after the status of the order has been determined or as soon as the amounts become payable pursuant to this System.

(g) In the event of any dispute as to the amount of benefits payable to the member or alternate payee, such dispute will be resolved in a manner consistent with the terms of MCL § 38.1702(e)(vi) which states that the domestic relations order does not require a plan to provide an increased benefit, determined on the basis of actuarial value.

(4) Benefits payable pursuant to an eligible domestic relations order will be made in accordance with the order and upon proper application by the alternate payee. Payment to the alternate payee may begin any time on or after the member's earliest retirement date regardless of whether the member actually terminates employment at that time if permitted in the Eligible Domestic Relations Order. If the payments begin before the member's termination of employment, the alternate payee will only be entitled to a benefit which is the actuarial equivalent of the alternate payee's share of the member's benefit that would be payable when the member reaches age sixty (60). If the member retires before age sixty (60), the System will recalculate the benefit payable to the alternate payee so that the recalculated benefit payable to the alternate payee plus the benefits previously paid to the alternate payee are the actuarial equivalent of the alternate payee's share of the benefit payable to the member. If the recalculated benefit is more than the benefit the alternate payee is receiving, the System will begin paying the recalculated benefit to the alternate payee effective the first day of the month immediately following the month in which the member retires.

The System will make such actuarial adjustments to the benefits payable hereunder so that the actuarial value of the expected payments to alternate payee and member (assuming normal life expectancies) will be equal to the actuarial value of the member's benefit determined without regard to the eligible domestic relations order.
(Ord. No. 72-50, 6-27-72; Ord. No. 78-29A, 4-25-78; Ord. No. 98-48, § 1, 11-3-98; Ord. No. 2010-47, § 1, 8-24-10)

Sec. 1.214. Benefit Program Before 1971.

Any member terminating employer service before July 1, 1971, shall receive, or shall have paid on his or her behalf, benefits in accordance with the benefit program in effect at time of such termination. Any member terminating employer service after June 30, 1971, and before July 1, 1973, shall choose at time of termination between the benefit program in effect June 30, 1971, or the benefit program in effect July 1, 1971; or, if the termination is the member's death, such choice shall be made by the surviving primary beneficiary designated by him or her.
(Ord. No. 72-50, 6-27-72; Ord. No. 98-48, § 1, 11-3-98)

Sec. 1.215. Accounting Funds of the System.

All the assets of the System shall be held in four (4) funds, namely, the members' deposit fund, the employer accumulation fund, the benefit reserve fund, and the income-expense fund.

Effective July 1, 1971, (i) each member's "refund value," as defined by provisions in force immediately before the July 1, 1971, amendment, shall be credited to his or her individual account in the members' deposit fund, and (ii) all assets of the System not so credited to the members' deposit fund shall be credited to the benefit reserve fund.

(Ord. No. 72-50, 6-27-72; Ord. No. 98-48, § 1, 11-3-98; Ord. No. 2007-41, § 3, 7-10-07)

Editor's note—Section 12 of Ord. No. 2007-41 provides for an effective date of July 1, 2007.

Sec. 1.216. Members' Deposit Fund; Member Contribution Rate.

(1) The members' deposit fund is hereby created. It shall be the fund in which shall be accumulated the contributions made by members to the System for annuities, and from which shall be made transfers and refunds of members' contributions as provided in this Article.

(2) The contributions of a member will be the applicable rate of compensation in the following table. Contributions shall begin following the date the member has completed six (6) months of credited service and shall continue through the end of the calendar year in which the member attains forty (40) years of credited service or until such time as the member has attained the number of years of credited service which, when multiplied by the applicable benefit multiplier as set forth in Section 1.205 equals the allowance cap as set forth in that section. The exception provided for in Section 1.202(1) applies to the aforementioned.

Such contributions shall be made notwithstanding that the minimum salary or wages provided by law for any member shall thereby be changed. Each member shall be deemed to consent and agree to the deductions made and provided for herein. Payment of a member's compensation less such deductions shall be a full and complete discharge and acquittance of all claims and demands whatsoever for services rendered by the member to the employer except as to benefits provided by this system.

Member Contribution Rate
Expressed as a Percent of Compensation

Member Classification	*Period*	*Contribution Rate*
Non-Represented Members, as defined in Section 1.192(18.1), excluding secretarial or clerical members designated as management non-union for payroll purposes, and excluding the Executive Administrative Assistant at the Grand Rapids Public Library	On or before July 1, 1977	3%
	July 2, 1977 to December 31, 1994	4%
	January 1, 1995 to December 31, 1996	3%
	January 1, 1997 to December 31, 2004	3.28%

Member Classification	*Period*	*Contribution Rate*
	January 1, 2005 to September 4, 2010	4.93%
	On or after September 5, 2010	10.20%, or 8.95% or 7.28%, depending on the individual election made by the member as provided in Section 1.229(1)
		6.15% for those non-represented members hired or re-entering service from September 5, 2010 through June 30, 2011
Non-Represented Members, as defined in Section 1.192(18.1), including only secretarial or clerical members designated as management non-union for payroll purposes, and including the Executive Administrative Assistant at the Grand Rapids Public Library	On or before July 1, 1977	3%
	July 2, 1977 to December 31, 1994	4%
	January 1, 1995 to December 31, 1996	3%
	January 1, 1997 to December 31, 2004	3.28%
	January 1, 2005 to September 4, 2010	4.93%
	September 5, 2010 to July 23, 2011	10.20%, or 8.95% or 7.28%, depending on the individual election made by the member as provided in Section 1.229(1)
		6.15% for those non-represented members hired or re-entering service from September 5, 2010 through June 30, 2011
	On or after July 24, 2011	8.10% for members who elected a 2.7% multiplier under Section 1.229(1); 6.85% for members who elected a 2.5% multiplier under Section 1.229(1); 5.18% for members who elected a 2.2% multiplier under Section 1.229(1); 4.05% for members with a 2.0% multiplier who were hired or re-entered service from September 5, 2010 through June 30, 2011

Member Classification	*Period*	*Contribution Rate*
Emergency Communications Operator I, II and III represented by GRPOLC	On or before July 1, 1977	3%
	July 2, 1977 to January 1, 1990	4%
	January 2, 1990 to January 1, 1991	3%
	January 2, 1991 to December 31, 1996	2%
	January 1, 1997 to June 30, 2005	2.28%
	July 1, 2005—March 31, 2012	5.36%
	On or after April 1, 2012	10.63%, or 9.38%, or 7.71%, or 6.58%, or 5.36%, depending on the individual election made by the member as provided in Section 1.229(10)
Emergency Communication Supervisors	On or before December 31, 2005	3.28%
	January 1, 2006—January 7, 2012	6.27%
	On or after January 8, 2012	11.54%, or 10.29%, or 8.62%, or 7.49%, or 6.27%, depending on the individual election made by the member as provided in Section 1.229(5)
Crime Scene Techs/Latent Print Examiners represented by the GRPOA	On or before July 1, 1977	3%
	July 2, 1977—July 1, 1989	4%
	July 2, 1989—July 1, 1990	3%
	July 1, 1990—July 7, 2012	2%
	July 8, 2012—June 30, 2014	7.27%, or 6.02%, or 4.35%, or 3.22%, or 2.0%, depending on the individual election made by the member as provided in Section 1.229(9)
	On or after July 1, 2014	8.27%, or 7.02%, or 5.35%, or 4.22%, or 3.0%, depending on the individual election made by the member as provided in Section 1.229(9); which is 1.0% higher than the rates listed in Section 1.229(9)
GREIU	On or before July 1, 1977	3%
	July 2, 1977—January 1, 1990	4%
	January 2, 1990—December 31, 1996	3%

Member Classification	*Period*	*Contribution Rate*
	January 1, 1997—December 31, 2004	3.28%
	January 1, 2005—July 7, 2012	3.89%
	On or after July 8, 2012	9.16%, or 7.91%, or 6.24%, or 5.11%, or 3.89%, depending on the individual election made by the member as provided in Section 1.229(4)
GREIU-61st District Court	Prior to January 1, 1990	4%
	January 1, 1990 to December 31, 1996	3%
	January 1, 1997 to May 31, 2005	3.28%
	June 1, 2005—July 7, 2012	4%
	On or after July 8, 2012	9.16%, or 7.91%, or 6.24%, or 5.11%, or 3.89%, depending on the individual election made by the member as provided in Section 1.229(7)
GREIU-Public Library Rank & File and Supervisory bargaining units	On or before July 1, 1977	3%
	July 2, 1977 to January 1, 1988	4%
	January 2, 1988 to May 13, 1990	4.91%
	May 14, 1990 to December 31, 1996	4%
	January 1, 1997 to December 31, 2005	3.28%
	January 1, 2006—July 7, 2012	3.63%
	On or after July 8, 2012	8.9%, or 7.65%, or 5.98%, or 4.85%, or 3.63%, depending on the individual election made by the member as provided in Section 1.229(6)
Library Management and Confidential Employees	On or before July 1, 1977	3%
	July 2, 1977 to January 1, 1988	4%
	January 2, 1988 to May 13, 1990	4.91%
	May 14, 1990 to December 31, 1996	4%
	January 1, 1997 to December 31, 2004	3.28%
	January 1, 2005 to September 4, 2010	4.93%
APAGR 61st District Court	Prior to January 1, 1990	4%
	January 1, 1990 to December 31, 1996	3%
	January 1, 1997 to December 31, 2004	3.28%

Member Classification	*Period*	*Contribution Rate*
	January 1, 2005—July 7, 2012	4%
	On or after July 8, 2012	9.27%, or 8.02%, or 6.35%, or 5.22%, or 4.0%, depending on the individual election made by the member as provided in Section 1.229(8)
Non-Represented Members of the 61st District Court	January 1, 2005 to September 4, 2010	4%
61st District Court Judges	January 1, 2005 to January 8, 2011	4%
61st District Court Judges	On or after January 9, 2011	10.20%, or 8.95% or 7.28%, depending on the individual election made by the member as provided in Section 1.229(2)
Association of Public Administrators of GR (APAGR)*	Prior to December 31, 1994	4%
	January 1, 1995 to December 31, 1996	3%
	January 1, 1997 to December 31, 2004	3.28%
	January 1, 2005 to June 11, 2011	3.99%
	On or after June 12, 2011	9.26%, or 8.01% or 6.34%, depending on the individual election made by the member as provided in Section 1.229(3)
		6.15% for those APAGR members hired or re-entering service on or after June 12, 2011

[*No contribution after completing 39 years of service.]

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(3) The officer or officers responsible for making up the payrolls for the employer shall cause the contributions provided for in this Section to be deducted from the compensation of each member in the employ of the employer, on each and every payroll, for each and every payroll period, after the date the member has been an employee as defined in Section 1.192(13) for six (6) months, through the end of the calendar year in which the member attains forty (40) years of credited service, but not thereafter, except as provided in Section 1.202(1). When deducted, each of said amounts shall be paid by the employer to the System; said payments to be made in such manner and form, and in such frequency, and shall be accompanied by such supporting data, as the Board shall from time to time prescribe. When paid to the System, each of said amounts shall be credited to the member's deposit fund account of the member from whose compensation said contributions were deducted.

(4) Upon the retirement of a member, or upon his or her death if an allowance becomes payable on account of his or her death, his or her accumulated contributions shall be transferred to the benefit reserve fund.

(5) The Employer shall pick up the member contributions required by this Section for all compensation earned after the effective date of this subsection. The contributions so picked up

shall be treated as employer contributions in determining tax treatment under the United States Internal Revenue Code. The Employer shall pick up the member contributions from funds established and available in the salaries account, which funds would otherwise have been designated as member contributions and paid to the Retirement System. Member contributions picked up by the Employer pursuant to this subsection shall be treated for all other purposes of this and other laws of the Employer in the same manner and to the same extent as member contributions made prior to the effective date of this subsection. The member does not have the option of receiving the picked-up member contributions in cash instead of having it paid into the Retirement System. The effective date of the employer pick-up is January 1, 1990.

(6) Member contribution rates for the Crime Scene Technicians group shall be reduced by 1% during any period of time in which the employer makes no contribution to the System.

(Ord. No. 72-50, 6-27-72; Ord. No. 77-61, 11-8-77; Ord. No. 88-31, §§ 8, 9, 5-17-88; Ord. No. 90-29, §§ 4—6, 3-20-90; Ord. No. 92-43, § 1, 7-14-92; Ord. No. 98-48, § 1, 11-3-98; Ord. No. 2005-29, §§ 5, 6, 5-17-05; Ord. No. 2007-41, §§ 4, 5, 7-10-07; Ord. No. 2010-46, § 3, 8-24-10; Ord. No. 2010-74, § 3, 12-21-10; Ord. No. 2011-11, § 2, 3-22-11; Ord. No. 2011-26, § 3, 7-12-11; Ord. No. 2011-62, § 3, 12-20-11; Ord. No. 2012-08, § 3, 1-24-12; Ord. No. 2014-54, § 3, 7-22-14)

Sec. 1.217. Employer Accumulation Fund.

(1) The employer accumulation fund is hereby created. It shall be the fund in which shall be accumulated the contributions made by the employer for pensions, and from which shall be made transfers, as provided in this Article.

(2) When paid to the System, the employer contributions provided for in (2) and (3) of Section 1.221 shall be credited to the employer accumulation fund account.

(3) When an allowance other than a special early allowance first becomes due and payable there shall be transferred to the benefit reserve fund from the employer accumulation fund the difference between: the reserve for such allowance; and the accumulated contributions, standing to his or her credit in the members' deposit fund at the time the allowance first becomes due and payable, of the member to whom or former member on whose behalf the allowance is payable.

(Ord. No. 72-50, 6-27-72; Ord. No. 98-48, § 1, 11-3-98; Ord. No. 2007-41, § 6, 7-10-07)

Sec. 1.218. Benefit Reserve Fund.

The benefit reserve fund is hereby created. It shall be the fund into which shall be made transfers as provided in this Article and from which allowances shall be paid to retirants and beneficiaries.

(Ord. No. 72-50, 6-27-72; Ord. No. 98-48, § 1, 11-3-98; Ord. No. 2007-41, § 7, 7-10-07)

Editor's note—Section 12 of Ord. No. 2007-41 provides for an effective date of July 1, 2007.

Sec. 1.219. Reserved.

Editor's note—Ord. No. 2007-41, § 8, adopted July 10, 2007, effective as of July 1, 2007, repealed § 1.219 in its entirety. Formerly, said section pertained to the Casualty Reserve Fund as enacted by Ord. No. 72-50, adopted June 27, 1972; as subsequently amended by Ord. No. 98-48, § 1, adopted Nov. 3, 1998.

Sec. 1.220. Income-Expense Fund.

(1) The income-expense fund is hereby created. It shall be the fund to which shall be credited all investment income from invested assets of the System, and in which shall be accumulated the contributions made by the employer for the administrative expenses of the System, and from which shall be made annual transfers of interest credits to the other funds of the System, and from which shall be paid all the expenses of the Board necessary for the administration and operation of the System.

(2) When paid to the System, the employer contributions provided for in (5) of Section 1.221 shall be credited to the income-expense fund.

(3) The Board may accept gifts and bequests, and they shall be credited to the income-expense fund, along with all other moneys received by the System the disposition of which is not specifically provided for in this Article.

(4) At the end of each System fiscal year the Board shall credit each member's individual account in the members' deposit fund with regular interest on the largest balance remaining in such account for the entire fiscal year (usually the beginning of the year balance). At the end of each System fiscal year, the Board shall credit to the employer accumulation fund assumed interest on the mean balance in such fund for the fiscal year, and similarly shall credit assumed interest to the benefit reserve fund. Such interest credits shall be transferred from the income-expense fund.

(5) Whenever the Board determines that the balance in the Income-expense Fund is more than sufficient to cover the current charges to the fund, the Board may by resolution provide for contin-

gency reserves, or for the transfer of such excess or portions thereof to cover the needs of the other funds of the Retirement System.
(Ord. No. 72-50, 6-27-72; Ord. No. 98-48, § 1, 11-3-98; Ord. No. 2007-41, § 9, 7-10-07)

Editor's note—Section 12 of Ord. No. 2007-41 provides for an effective date of July 1, 2007.

Sec. 1.221. Employer Contributions.

1. The employer's contributions to the System shall be the total of the contribution amounts provided for in (2) through (5) of this Section.

2. An employer's current service contributions shall be determined as follows; upon the basis of mortality and other tables of experience and assumed interest, the actuary shall annually compute the rate of contributions which, if paid annually by the employer during the prospective service of its members, will be sufficient to provide the pension reserves required at the time of their retirements to cover the prospective service portions of the pensions other than special early pensions to which they might be entitled or which might be payable on their behalf. The Board shall annually certify to the City Commission the amount of current service contribution so determined and the employer shall during its next ensuing fiscal year pay such amount to the System. Such payments shall be made in such manner and form and in such frequency and shall be accompanied by such supporting data as the Board shall from time to time determine. When received such payments shall be credited to the employer accumulation fund.

3. An employer's accrued service contributions shall be determined as follows: Upon the basis of mortality and other tables of experience and assumed interest, the actuary shall annually compute for the employer the pension reserves for the accrued service portions of the pensions other than special early pensions to be paid to or on behalf of members upon their retirements. The pension reserves so determined less the applicable balance in the employer accumulation fund shall be amortized over a period of years, as determined by the employer, to determine the employer's accrued service contribution. The Board shall annually certify to the City Commission the amount of accrued service contribution so determined, and the employer shall during its next ensuing fiscal year pay such amount to the System. Such payments shall be made in such manner and form and in such frequency and shall be accompanied by such supporting data as the Board shall from time to time determine. When received such payments shall be credited to the employer accumulation fund.

4. The employer's contributions for special early pensions shall be determined on a one year term basis. The Board shall annually certify to the City Commission the amount of contribution so ascertained for the employer and the employer shall during its next ensuing fiscal year pay such amount to the System. Such payments shall be made in such manner and form and in such frequency and shall be accompanied by such supporting data as the Board shall from time to time determine. When received such payments shall be credited to the benefit reserve fund.

5. The employer shall be responsible for the administrative expenses of the System and shall pay to the System to be credited to the income expense fund unless administrative expenses are paid from the investment income of the System.
(Ord. No. 72-50, 6-27-72; Ord. No. 98-48, § 1, 11-3-98; Ord. No. 2003-48, § 1, 11-18-03; Ord. No. 2007-41, § 10, 7-10-07)

Editor's note—Section 12 of Ord. No. 2007-41 provides for an effective date of July 1, 2007.

Sec. 1.222. Investment of Assets.

The Board shall be the Trustees of the funds of the System. The Board shall have full power to invest and reinvest the moneys of the System, and to hold, purchase, sell, assign, transfer or dispose of any of the securities and investments in which such moneys shall have been invested, as well as the proceeds of such investments and such moneys; provided, that such investment and reinvestment shall be subject to Act No. 314 of the Public Acts of 1965, as amended, and as the same may from time to time be amended.
(Ord. No. 72-50, 6-27-72; Ord. No. 98-48, § 1, 11-3-98)

Sec. 1.223. No Trustee Shall Gain from Investments.

Except as to the rights of a member or retirant or beneficiary, no Trustee and no officer or em-

ployee of the Board shall have any interest direct or indirect in the gains or profits of any investment made by the Board. Nor shall any of them directly or indirectly for himself or herself or as an agent in any manner engage in any sale, exchange or leasing of property with the System, the lending of money or extension of credit to or from the System, the furnishing of goods, services or facilities to or from the System, the transfer to or from or use by or for his or her benefit of the income or assets of the System or receive any consideration for his or her own personal account in connection with a transaction involving the income or assets of the System.
(Ord. No. 72-50, 6-27-72; Ord. No. 98-48, § 1, 11-3-98)

Sec. 1.224. Limitation of Use of Assets.

All assets of the System shall be held for the sole purpose of paying benefits and making disbursements in accordance with the provisions of this ordinance and shall be used for no other purpose whatsoever.
(Ord. No. 72-50, 6-27-72; Ord. No. 98-48, § 1, 11-3-98; Ord. No. 2002-48, § 1, 8-20-02)

Sec. 1.225. Distribution of Assets if System Is Terminated.

(1) The employer hopes and expects to continue the System indefinitely but necessarily reserves the right to amend, modify, suspend or terminate the System in a manner compatible with any applicable collective bargaining agreement.

No such action shall operate to recapture for the employer any contributions previously made under the System prior to the satisfaction of all liabilities for System benefits to members, nor, except to the extent necessary to meet the requirements of any other governmental Authority, to affect adversely the benefits of retirants and beneficiaries or the trust fund or insured fund then securing such benefits.

(2) If the System is terminated, the amount of the trust fund and/or insured fund then held by the System shall be allocated, subject to provisions for expenses of administration or liquidation, in the following manner for the exclusive benefit of the then retired and nonretired members (and their beneficiaries) having an interest in this System. Such assets shall be allocated to such persons in the following order of precedence:

(a) To provide for the payment to each nonretired member of an amount equal to his or her accumulated contributions; and

(b) If any assets remain after complete allocations for the purposes of (a) above, to provide for the continuance of allowances to retirants and beneficiaries, if any;

(c) If any assets remain after complete allocations for the purposes of (a) and (b) above, they shall be allocated toward the potential rights of nonretired members on an equitable and nondiscriminatory basis according to accepted actuarial principles;

(d) If any assets remain after satisfaction of all liabilities provided for in (a) and (b) and (c) above, any excess shall be delivered over and paid to the employer according to determinations made by the actuary. The above allocations shall be distributed by the System in annuities or in such other manner as may be determined by the Board.

(Ord. No. 72-50, 6-27-72; Ord. No. 98-48, § 1, 11-3-98; Ord. No. 2002-48, § 2, 8-20-02)

Sec. 1.226. Correction of Errors.

Should any change or error in records result in any person receiving from the System more or less than he or she would have been entitled to receive had the records been correct, the Board shall correct such error, and as far as is practicable shall adjust the payment of the benefit in such manner that the actuarial equivalent of the benefit to which such person was correctly entitled shall be paid.
(Ord. No. 72-50, 6-27-72; Ord. No. 98-48, § 1, 11-3-98)

Sec. 1.227. Fraud Penalty.

Any person who shall knowingly make any false statement or shall falsify or permit to be falsified any record or records in any attempt to

defraud the System shall be guilty of a misdemeanor and upon conviction thereof shall be punished accordingly.
(Ord. No. 72-50, 6-27-72; Ord. No. 98-48, § 1, 11-3-98)

Sec. 1.228. Section 415 Limits.

(1) Effective July 1, 2001, the maximum annual City funded benefit payable to any member under the System will not exceed the lesser of the following:

(a) $160,000 or, in plan years beginning after 2001, the maximum amount allowable under the adjustment provisions of IRC Section 415 effective July 1 of each year, or

(b) 100% of the member's average compensation for the highest paid three (3) consecutive calendar years during which he was a member.

The limitation of part (b) above, shall not apply in years beginning on or after January 1, 1995.

For purposes of this Section, "compensation" means remuneration actually paid or made available to an Employee within the Limitation Year, as defined in Section 1.192(11) in accordance with Regulation 1.415(c)—2(a).

If the member has less than ten (10) years of participation in the System at the time of termination of employment, the maximum dollar limitation of (1)(a), above, will be reduced by ten percent (10%) for each year of participation less than ten (10) (but the reduced amount will not be less than ten percent (10%) of such limitation). Notwithstanding the foregoing, the maximum benefit will not be reduced below the accrued benefit for the member as of the last day of the plan year beginning in 1986.

The one hundred sixty thousand dollar ($160,000.00) limit will be reduced if benefit payments commence before age 62. The one hundred sixty thousand dollar ($160,000.00) limit will be increased if benefit payments commence after age 65. The reductions or increases in the one hundred sixty thousand dollar ($160,000.00) limit will be calculated so that the benefit payable at retirement will be the actuarial equivalent of the benefit payable at age 62 or 65, respectively. The actuarial adjustments will be based on the requirements of IRC Section 415, the actuarial table specified in Section 1.192(3) of this System, and interest at the rate specified for determining actuarial equivalence in Section 1.192(3). Effective for years beginning after December 31, 1994, the benefit reductions described in this paragraph and the preceding paragraph shall not apply to payments to a member in the form of a pension, annuity or similar allowance as a result of the member becoming disabled by reason of personal injuries or sickness, or to amounts received from this plan by the beneficiaries, survivors, or estate of a member as a result of the death of the member.

If a member's benefit is paid in a form other than a life allowance for the member only, the optional benefit will be adjusted to the actuarially equivalent life allowance for the member only for the purpose of determining whether the City funded benefit exceeds the limitations set forth above. However, no adjustment is required for a benefit payable as a joint and survivor annuity (satisfying the requirements of a qualified joint and survivor annuity as described in IRC Section 417(b)) to the extent that the value of such annuity exceeds the value of a straight life annuity beginning on the same date. If the optional form of payment elected is a joint and survivor annuity (as described in IRC Section 417(b)), the member's City funded benefit will be reduced to reflect the payment in this optional form before the limitations of IRC Section 415 are applied. This paragraph shall apply to benefits commencing on or after January 1, 1996.

(2) For Plan years beginning before July 1, 2000, if any member in this System is also participating in a defined contribution plan maintained by the employer, the maximum annual benefit for the member under this System will be reduced for any plan year so that the sum of the "defined contribution fraction" and the "defined benefit fraction" for the member for the plan year does not exceed 1.0. For these purposes, the

member contributions shall be annual additions used in determining the defined contribution fraction. These terms are defined as follows:

(a) The defined contribution fraction for any plan year means a fraction:

(1) the numerator of which is the sum as of the end of the plan year of the total additions for the member for each year of the member's participation in the defined contribution plan; and

(2) the denominator of which is the sum of the lesser of the following amounts for the year and each prior year of the member's employment with the employer, without regard to whether the System was in existence during the prior years: (i) 1.25 multiplied by thirty thousand dollars ($30,000.00) or the dollar limitation on additions in effect under Code Section 415(d) for each such year; or (ii) 1.40 multiplied by twenty-five (25) percent, or the percentage limitation on total additions under Code Section 415 for each such year, of the member's compensation for each such year.

(b) The defined benefit fraction for any plan year means a fraction:

(1) the numerator of which is the projected annual benefit of the member under this System, determined as of the end of the plan year; and

(2) the denominator of which is the lesser of the following: (i) 1.25 multiplied by ninety thousand dollars ($90,000.00) or the dollar limitation on benefits under Code Section 415 in effect for the plan year; or (ii) 1.40 multiplied by the member's average compensation during the three (3) consecutive calendar years in which the member was both an active member in the System and had the greatest compensation from the employer.

For purposes of this Section, all defined benefit plans maintained by the employer will be considered as a single defined benefit plan and all defined contribution plans maintained by the employer will be considered as a single defined contribution plan.

(3) Effective for years beginning after December 31, 1997, the special rules of Code Section 415(n) regarding the purchase of permissive service credits shall apply to the return of prior payments under Section 1.202(4) and to the purchase of prior military service under Section 1.202(5) and to the purchase of additional service under 1.202(6). Not more than five (5) years of non-qualified service (as defined in Code Section 415(n)(3)(C)) may be taken into account for purposes of this paragraph. For employees who become members of the plan prior to July 1, 1999, the limitations of Code Section 415(c)(1) shall not be applied to reduce the amount of permissive service credit which may be purchased to an amount less than the amount which was allowed to be purchased under the terms of the plan as in effect on August 5, 1997.

(4) This Section, as amended, shall be effective July 1, 1989 unless a later effective date is specified.

(Ord. No. 90-29, § 7, 3-20-90; Ord. No. 98-48, § 1, 11-3-98; Ord. No. 2002-50, § 5, 8-20-02; Ord. No. 2013-40, § 4, 8-27-13)

Sec. 1.229. Pension Benefit Options.

(1) *Non-Represented Members.* Effective September 5, 2010, each Non-Represented Member shall elect one of the following options. Election under this Section shall be irrevocable and must be made no later than September 3, 2010. Failure to elect an option shall result in the automatic election of Option (a) below.

(a) Maintaining a 2.7% multiplier for all credited service by agreeing to an increased contribution rate of 10.20%; or

(b) Selecting a reduced multiplier of 2.5% for all credited service accrued on or after September 5, 2010, by agreeing to an increased contribution rate of 8.95%; or

(c) Selecting a reduced multiplier of 2.2% for all credited service accrued on or after September 5, 2010, by agreeing to an increased contribution rate of 7.28%.

Members that become non-represented members by promotion or appointment from a represented position shall have thirty (30) days from the date of such promotion or appointment to make their election under this Section. Such election shall be effective the first full pay period following the date of election.

(2) *District Court Judges.* Effective January 9, 2011, each Member serving as a District Court Judge in the 61st District Court shall elect one of the following options. Election under this Section shall be irrevocable and must be made in writing, and received by the Retirement System no later than 5:00 p.m. on January 7, 2011. Failure to elect an option shall result in the automatic election of Option (a) below.

(a) Maintaining a 2.7% multiplier for all credited service by agreeing to an increased contribution rate of 10.20%; or

(b) Selecting a reduced multiplier of 2.5% for all credited service accrued on or after January 9, 2011, by agreeing to an increased contribution rate of 8.95%; or

(c) Selecting a reduced multiplier of 2.2% for all credited service accrued on or after January 9, 2011, by agreeing to an increased contribution rate of 7.28%.

(3) *Association of Professional Administrators of Grand Rapids (APAGR).* Effective June 12, 2011, each Member represented by the APAGR shall elect one of the following options. Election under this Section shall be irrevocable and must be made in writing, and received by the Retirement System no later than 5:00 p.m. on June 3, 2011. Failure to elect an option shall result in the automatic election of Option (a) below.

(a) Maintaining a 2.7% multiplier for all credited service by agreeing to an increased contribution rate of 9.26%; or

(b) Selecting a reduced multiplier of 2.5% for all credited service accrued on or after June 12, 2011, by agreeing to an increased contribution rate of 8.01%; or

(c) Selecting a reduced multiplier of 2.2% for all credited service accrued on or after June 12, 2011, by agreeing to an increased contribution rate of 6.34%.

(4) *Grand Rapids Employees Independent Union (GREIU).* Effective July 8, 2012, each Member represented by the GREIU hired on or before May 24, 2011, shall elect one of the following options. Election under this Section shall be irrevocable and must be made in writing, and received by the Retirement System no later than 5:00 p.m. on April 30, 2012. Failure to elect an option shall result in the automatic election of Option (e) below.

(a) Maintaining a 2.7% multiplier for all credited service by agreeing to an increased contribution rate of 9.16%; or

(b) Selecting a reduced multiplier of 2.5% for all credited service accrued on or after July 8, 2012, by agreeing to an increased contribution rate of 7.91%; or

(c) Selecting a reduced multiplier of 2.2% for all credited service accrued on or after July 8, 2012, by agreeing to an increased contribution rate of 6.24%; or

(d) Selecting a reduced multiplier of 2.0% for all credited service accrued on or after July 8, 2012, by agreeing to an increased contribution rate of 5.11%; or

(e) Selecting a reduced multiplier of 1.8% for all credited service accrued on or after July 8, 2012, by maintaining the current contribution rate of 3.89%.

(5) *Emergency Communication Supervisors.* Effective January 8, 2012, each Member represented by the Emergency Communication Supervisors bargaining unit hired prior to September 13, 2011, shall elect one of the following options. Election under this Section shall be irrevocable and must be made in writing, and received by the Retirement System no later than 5:00 p.m. on December 15, 2011. Failure to elect an option shall result in the automatic election of Option (e) below.

(a) Maintaining a 2.7% multiplier for all credited service by agreeing to an increased contribution rate of 11.54%; or

(b) Selecting a reduced multiplier of 2.5% for all credited service accrued on or after January 8, 2012, by agreeing to an increased contribution rate of 10.29%; or

(c) Selecting a reduced multiplier of 2.2% for all credited service accrued on or after January 8, 2012, by agreeing to an increased contribution rate of 8.62%; or

(d) Selecting a reduced multiplier of 2.0% for all credited service accrued on or after January 8, 2012, by agreeing to an increased contribution rate of 7.49%; or

(e) Selecting a reduced multiplier of 1.8% for all credited service accrued on or after January 8, 2012, by maintaining the current contribution rate of 6.27%.

(6) *Grand Rapids Employees Independent Union (GREIU)—Public Library Rank & File and Supervisory bargaining units.* Effective July 8, 2012, each Member represented by the GREIU - Public Library Rank & File and Supervisory bargaining units hired on or before September 1, 2011, shall elect one of the following options. Election under this Section shall be irrevocable and must be made in writing, and received by the Retirement System no later than 5:00 p.m. on April 30, 2012. Failure to elect an option shall result in the automatic election of Option (e) below.

(a) Maintaining a 2.7% multiplier for all credited service by agreeing to an increased contribution rate of 8.9%; or

(b) Selecting a reduced multiplier of 2.5% for all credited service accrued on or after July 8, 2012, by agreeing to an increased contribution rate of 7.65%; or

(c) Selecting a reduced multiplier of 2.2% for all credited service accrued on or after July 8, 2012, by agreeing to an increased contribution rate of 5.98%; or

(d) Selecting a reduced multiplier of 2.0% for all credited service accrued on or after July 8, 2012, by agreeing to an increased contribution rate of 4.85%; or

(e) Selecting a reduced multiplier of 1.8% for all credited service accrued on or after July 8, 2012, by maintaining the current contribution rate of 3.63%.

(7) *Grand Rapids Employees Independent Union (GREIU)—61st District Court.* Effective July 8, 2012, each Member represented by the GREIU - 61st District Court bargaining unit hired prior to September 13, 2011, shall elect one of the following options. Election under this Section shall be irrevocable and must be made in writing, and received by the Retirement System no later than 5:00 p.m. on Monday, April 30, 2012. Failure to elect an option shall result in the automatic election of Option (e) below.

(a) Maintaining a 2.7% multiplier for all credited service by agreeing to an increased contribution rate of 9.16%; or

(b) Selecting a reduced multiplier of 2.5% for all credited service accrued on or after July 8, 2012, by agreeing to an increased contribution rate of 7.91%; or

(c) Selecting a reduced multiplier of 2.2% for all credited service accrued on or after July 8, 2012, by agreeing to an increased contribution rate of 6.24%; or

(d) Selecting a reduced multiplier of 2.0% for all credited service accrued on or after July 8, 2012, by agreeing to an increased contribution rate of 5.11%; or

(e) Selecting a reduced multiplier of 1.8% for all credited service accrued on or after July 8, 2012, by paying a contribution rate of 3.89%.

(8) *Association of Public Administrators of Grand Rapids (APAGR)—61st District Court.* Effective July 8, 2012, each Member represented by the APAGR - 61st District Court bargaining unit hired prior to September 13, 2011, shall elect one of the following options. Election under this Section shall be irrevocable and must be made in writing, and received by the Retirement System no later than 5:00 p.m. on April 30, 2012. Failure to elect an option shall result in the automatic election of Option (e) below.

(a) Maintaining a 2.7% multiplier for all credited service by agreeing to an increased contribution rate of 9.27%; or

(b) Selecting a reduced multiplier of 2.5% for all credited service accrued on or after July 8, 2012, by agreeing to an increased contribution rate of 8.02%; or

(c) Selecting a reduced multiplier of 2.2% for all credited service accrued on or after July 8, 2012, by agreeing to an increased contribution rate of 6.35%; or

(d) Selecting a reduced multiplier of 2.0% for all credited service accrued on or after July 8, 2012, by agreeing to an increased contribution rate of 5.22%; or

(e) Selecting a reduced multiplier of 1.8% for all credited service accrued on or after July 8, 2012, by maintaining the current contribution rate of 4.0%.

(9) *Crime Scene Technicians.* Effective July 8, 2012, each Member represented by the Crime Scene Technicians bargaining unit hired prior to November 15, 2011, shall elect one of the following options. Election under this Section shall be irrevocable and must be made in writing, and received by the Retirement System no later than 5:00 p.m. on April 30, 2012. Failure to elect an option shall result in the automatic election of Option (e) below.

(a) Maintaining a 2.7% multiplier for all credited service by agreeing to an increased contribution rate of 7.27%; or

(b) Selecting a reduced multiplier of 2.5% for all credited service accrued on or after July 8, 2012, by agreeing to an increased contribution rate of 6.02%; or

(c) Selecting a reduced multiplier of 2.2% for all credited service accrued on or after July 8, 2012, by agreeing to an increased contribution rate of 4.35%; or

(d) Selecting a reduced multiplier of 2.0% for all credited service accrued on or after July 8, 2012, by agreeing to an increased contribution rate of 3.22%; or

(e) Selecting a reduced multiplier of 1.8% for all credited service accrued on or after July 8, 2012, by maintaining the current contribution rate of 2.0%.

(10) *Police Officers Labor Council/Emergency Communications Operator I, II & III.* Effective April 1, 2012, each Member represented by the Police Officers Labor Council/Emergency Communications Operator I, II & III bargaining unit hired prior to January 24, 2012, shall elect one of the following options. Election under this Section shall be irrevocable and must be made in writing, and received by the Retirement System no later than 5:00 p.m. on March 15, 2012. Failure to elect an option shall result in the automatic election of Option (e) below.

(a) Maintaining a 2.7% multiplier for all credited service by agreeing to an increased contribution rate of 10.63%; or

(b) Selecting a reduced multiplier of 2.5% for all credited service accrued on or after April 1, 2012, by agreeing to an increased contribution rate of 9.38%; or

(c) Selecting a reduced multiplier of 2.2% for all credited service accrued on or after April 1, 2012, by agreeing to an increased contribution rate of 7.71%; or

(d) Selecting a reduced multiplier of 2.0% for all credited service accrued on or after April 1, 2012, by agreeing to an increased contribution rate of 6.58%; or

(e) Selecting a reduced multiplier of 1.8% for all credited service accrued on or after April 1, 2012, by maintaining the current contribution rate of 5.36%.

(Ord. No. 2010-46, § 4, 8-24-10; Ord. No. 2010-74, § 4, 12-21-10; Ord. No. 2011-11, § 3, 3-22-11; Ord. No. 2011-26, § 4, 7-12-11; Ord. No. 2011-62, § 4, 12-20-11; Ord. No. 2012-08, § 4, 1-24-12)

Editor's note—Ord. No. 2010-46, § 4, adopted August 24, 2010, repealed the former § 1.229, and enacted a new § 1.229 as set out herein. The former § 1.229 pertained to Recreation Board Employee Transition and derived from Ord. No. 91-32, § 1, 6-18-91; Ord. No. 98-48, § 1, 11-3-98; Ord. No. 2005-65, § 1, 8-23-05.

Sec. 1.230. Reserved.

ARTICLE 2. POLICE AND FIRE RETIREMENT SYSTEM

Sec. 1.231. Retirement System Created.

The City of Grand Rapids Police and Fire Retirement System is hereby created and estab-

lished. This Article may be cited as the City of Grand Rapids Police and Fire Retirement System Ordinance.
(Ord. No. 68-34, 5-21-68)

Sec. 1.232. Effective Date of System and Amendments.

The Pension System established by Ordinance 1150, effective June 4, 1945, and amended from time to time, was amended by action of the Grand Rapids City Commission to comply with TRA '86, OBRA '87, TAMRA '88, OBRA '89, UCA '92, OBRA '93, USERRA '94, URAA/GATT/RPA '94, SBJPA '96, TRA '97, RRA '98, CRTRA '00 and EGTRRA '01, and is hereby further amended and restated to comply with the Pension Protection Act of 2006.
(Ord. No. 68-34, 5-21-68; Ord. No. 2013-39, § 1, 8-27-13)

Sec. 1.233. Definitions.

The following words and phrases, as used in this Article, unless a different meaning is plainly required by the context, shall have the following meanings:

(1) *Accrued benefit* means the portion of an allowance earned as of the date of the computation. It is a monthly benefit commencing at the minimum service retirement age and computed in accordance with the life allowance formula in Section 1.246 using the member's final average salary and credited service at the time of the computation.

(2) *Accumulated contributions* means the total of all amounts deducted from the compensations of a member and standing to his or her credit in his or her individual account in the members' deposit fund, together with regular interest at the rate of three (3) percent per annum, compounded annually, from and after October 1, 1964.

(3) *Actuarial equivalence* means a benefit of equal reserve value. Present values will be determined by the actuary based on mortality tables and interest rates established from time to time by the Board. No change in mortality or interest assumptions shall reduce the accrued benefit of any member determined as of the date of the change.

(4) *Allowance* or *life allowance* means the total of the annuity and the pension. All allowances shall be paid not later than the last day of each calendar month.

(a) *Allowance cap* means the agreed upon limit to the product which results when a member's years of credited service are multiplied by the benefit multiplier applicable to the member at the time of retirement, expressed as a percentage.

(5) *Annuity* means a monthly amount derived from the accumulated contributions of a member and payable by the System throughout the life of a person or for a temporary period.

(6) *Assumed interest* means such rate or rates per annum, compounded annually, as the Board shall adopt from time to time.

(7) *Beneficiary* means any person who is receiving or designated by a member to receive a System benefit, except a retirant.

(8) *Benefit program* means a schedule of benefits or benefit formulas from which the amounts of System benefits can be determined.

(9) *Board of Trustees* or *Board* means the Board of Trustees of the System.

(10) *Code* means the Internal Revenue Code of 1986, as amended.

(11) *Compensation* means remuneration actually paid or made available to an Employee within the Limitation Year, as defined in accordance with IRC Regulation 1.415(c)-2(a), and means all items of Employer remuneration for services, including:

(a) Wages, salaries, and other amounts received for personal services rendered in the course of employment with Employer, to the extent amounts are includible in gross income or would have been received and includ-

ible in gross income but for an election under Internal Revenue Code ("IRC") Section 125(a), 132(f)(4), 402(e)(3), 402(h)(1)(B), 402(k), 414(h)(2), or 457(b), and further include, but are not limited to, base salary, longevity pay, educational allowance, vacation pay, bonuses, fringe benefits, and reimbursements or other expense allowances under a nonaccountable plan, plus the additional compensation items as shown in Section 1.233(11)(f) below;

(b) Amounts described in IRC Sections 104(a)(3), 105(a), or 105(h) but only to the extent includible in gross income;

(c) Amounts paid or reimbursed by the Employer for Employee's moving expenses to the extent it is reasonable to believe, at payment, they are not deductible pursuant to IRC Section 217;

(d) Amounts includible in Employee's gross income upon a IRC Section 83(b) election; and

(e) Amounts includible in gross income pursuant to IRC Section 409A, or because they are constructively received.

Compensation does not include items listed in Regulation 1.415(c)-2(c).

Compensation for a Limitation Year shall not include Compensation in excess of IRC Section 401(a)(17) limits for such Limitation Year.

In order to be taken into account for a Limitation Year, Compensation must be actually paid or made available to employees (or, if earlier, includible in the gross income of the Employee) within the Limitation Year. For this purpose, Compensation is treated as paid on a date if it is actually paid on that date or it would have been paid on that date but for an election under IRC Section 125, 132(f)(4), 401(k), 403(b), 408(k), 408(p)(2)(a)(i), or 457(b); provided, however, Compensation for a Plan Limitation Year includes amounts earned during that Plan Limitation Year but not paid during that Plan Limitation Year solely because of the timing of pay periods and pay dates if (i) these amounts are paid during the first few weeks of the next Plan Limitation Year; (ii) the amounts are included on a uniform and consistent basis with respect to all similarly situated employees and (iii) no Compensation is included in more than one Plan Limitation Year.

In order to be taken into account for a Plan Limitation Year, Compensation must be paid or treated as paid to the Employee prior to the Employee's severance from employment with the Employer; provided Compensation paid by the later of 2½ months after severance from employment with the Employer or the end of the Limitation Year that includes the date of severance from employment with the Employer, is included if the payment is regular compensation for service during working hours or compensation for services outside regular working hours, commissions, bonuses or similar payments and it would have been paid prior to severance had Employee continued in employment.

Compensation includes salary continuation payments to an individual who does not currently perform services for the Employer by reason of qualified military service (as that term is used in IRC Section 414(u)(1)) to the extent those payments do not exceed the amounts the individual would have received if the individual had continued to perform services for the Company rather than entering qualified military service.

(f) Police officers and police command officers: Effective July 1, 1992, overtime pay, compensatory time payoff, holiday pay, clothing allowance, acting assignment, witness fees and shift pay are also considered compensation for pension computation purposes.

Firefighters: Effective July 1, 1992, holiday pay, clothing allowance, acting assignment pay, shop pay, and shift pay are considered compensation for pension computation purposes.

In addition to the compensation listed above, overtime compensation for Firefighter members shall be calculated as follows for pension calculation purposes per Section 1.233(15)(b):

Firefighter Retirement Date	Calculation used in Section 1.233(15)(b)
July 1, 1992—June 30, 1994	Actual additional compensation items as noted above
July 1, 1994—December 31, 2011	Actual additional compensation items as noted above, plus 7.3% for overtime
January 1, 2012—June 30, 2012	The average of 4.2% for overtime for calendar years 2006—2009 and actual overtime for 2010
July 1, 2012—June 30, 2013	The average of 4.2% for overtime for calendar years 2007—2009 and actual overtime for 2010 and 2011
July 1, 2013—June 30, 2014	The average of 4.2% for overtime for calendar years 2008—2009 and actual overtime for 2010—2012
July 1, 2014—June 30, 2015	The average of 4.2% for overtime for calendar year 2009 and actual overtime for 2010—2013
July 1, 2015 and after	The average of actual overtime for all five years of the calculation required under Section 1.233(15)(b)

(g) For purposes of this Chapter, the definition of Compensation as applied to unionized Members shall apply to Non-Represented Members, being the Fire Chief, Deputy Fire Chief, Police Chief and Deputy Police Chief.

(12) *Credited service* means employment as an employee which employment is creditable as service hereunder, to the extent such service is standing to a member's credit as provided in this Article.

(13) *Employer* means the City of Grand Rapids, Michigan.

(14) *Employee* means any person regularly employed by the employer as a Police Chief, Deputy Police Chief, Police Officer, Fire Chief, Deputy Fire Chief or Firefighter.

(15) *Final average salary* of an employee means the sum of (a) and (b) below:

(a) The average of the employee's highest rates of salary, including longevity pay and vacation pay, during the three (3) consecutive calendar years of employment when such salary rates were highest, provided no such rates of salary occur in a calendar year after the calendar year in which the employee attains the number of years of credited service which, when multiplied by the applicable benefit multiplier as set forth in Section 1.246, equals the allowance cap as set forth in that section. Should a member have less than three (3) such salary rates, the salary rates during each of the member's calendar years of employment shall be averaged. For Firefighters retiring on or after January 1, 2012, a member

may in their discretion include in the calculation of their final average salary the monetary equivalent of up to six (6) days of accrued vacation time when upon retirement, such cash payment in lieu of unused vacation is made. Effective January 9, 2019, Firefighters assigned to a forty-hour work week may convert additional vacation hours to equate to the same vacation accrual payment amount as fire members assigned to fire suppression at the same rank. The amount paid for such accrued vacation time shall be added to the salary rate earned during the calendar year in which such payment was made, which shall then be averaged as described in this paragraph.

(b) The average salary rate determined in (a) above, multiplied by the member's group FAS Adjustment Factor determined by dividing (i) the calendar year average of the group's Section 1.233(11) additional compensation items by (ACI), by (ii) the annualized average of the group's covered payroll from actuarial valuations as of December 31 of each calendar year, excluding ACI, for the five-year period immediately preceding the valuation.

(c) The calculation of Final Average Salary in this Section shall be applied to Non-Represented Members of the System, being the Fire Chief, Deputy Fire Chief, Police Chief and Deputy Police Chiefs. The calculation of the additional compensation items (ACI) for Non-Represented Members shall be based upon the ratio of the number of years served in a collective bargaining unit during which such ACI was earned, to total years of credited service. The compensation for the Non-Represented Members shall be excluded from the calculation of ACI.

(16) *Firefighter* means any regular or permanent employee of the Fire Department, including a probationary Firefighter. The term "Firefighter" shall not include: any volunteer Firefighter; any civilian employee of a Fire Department; any person temporarily employed as a Firefighter for an emergency; or any person privately employed as a Firefighter.

(17) *Market Value* means the quoted selling price plus accrued income on assets held in trust for the payment of benefits or, in the event the System acquires non-publicly traded assets, a price established by an independent professional appraiser chosen by the Board who is qualified to appraise assets of the subject property class.

(18) *Member* means any employee as defined in Section 1.233(14).

(19) *Minimum Service Retirement Age and Normal Retirement Age* shall mean age fifty-five (55) for Firefighter members of the System as defined in Section 1.233(16) and age fifty (50) for Police Officer members of the System as defined in Section 1.233(23). Provided, however, that from and after July 1, 2001, any Firefighter member of the System who has attained a number of years of credited service which, when multiplied by the applicable benefit multiplier for that member's covered group under Section 1.246, equals or exceeds the allowance cap for the member as set forth in said Section, shall be deemed to have achieved normal retirement age. Provided further, however, that for Firefighter members of the System as defined in Section 1.233(16) retiring between December 18, 2009 and December 31, 2009 inclusive, minimum service retirement age and normal retirement age shall mean age fifty-two (52). Further, any Member having been promoted to the position of Police Chief or Fire Chief and retiring on or after January 1, 2016 and on or before December 31, 2016 shall, upon achieving thirty (30) years of credited service, be

deemed to have reached the minimum service retirement age. Provided however, that the Final Average Salary for any Member so retiring without reaching the minimum retirement age shall not include the overtime calculation provided in Section 1.233(11)(f).

(19.1) *Non-Represented Member* shall mean any member holding the position of Police Chief, Deputy Police Chief, Fire Chief, or Deputy Fire Chief.

(20) *Plan Year, Fiscal Year,* and the Section 415 limitation year of this Retirement System is the twelve-month period ending December 31 of each year; provided, however, that for the time period ending December 31, 2003 the Plan year and Fiscal Year shall be from July 1, 2003 through December 31, 2003.

(21) *Pension* means a monthly amount derived from contributions of the employer and payable by the System throughout the life of a person or for a temporary period.

(22) *Police Command Officer* means any regular or permanent employee of the Police Department holding the rank of police lieutenant or police captain.

(23) *Police Officer* means any regular or permanent employee of the Police Department, including police command officers, probationary police officers and police cadets. The term "police officer" shall not include: any civilian employee of the Police Department; or any person temporarily employed as a police officer for an emergency; or any person privately employed as a police officer.

(24) *Regular Interest* means the rate of three (3) percent per annum, compounded annually.

(25) *Reserve* means the present value of all payments to be made on account of any System benefit based upon such reasonable tables of experience and assumed interest as the Board shall adopt from time to time in good faith.

(26) *Retirant* means a former member receiving a System allowance, by reason of having been a member.

(27) *Retirement System* or *System* means the City of Grand Rapids Police and Fire Retirement System.

(28) *Valuation Assets* means the value of the current plan assets recognized for the purpose of determining required contributions to the System. For purposes of determining the employer's contribution requirement for its fiscal year beginning July 1, 2004, valuation assets shall be equal to the market value of System assets as of December 31, 2003. For purposes of determining the employer contribution requirement for its fiscal year beginning July 1, 2005 through its fiscal year ending June 30, 2009 (valuation date December 31, 2007), valuation assets shall be determined using a market-related (smoothed) asset value method which recognizes projected investment income uniformly over a closed two (2) year period. For purpose of determining the employer's contribution requirements for its fiscal year beginning July 1, 2009 (valuation date December 31, 2008) and all subsequent fiscal years, valuation assets shall be determined using a market-related (smoothed) asset value method which recognizes twenty (20%) percent of the investment return in a fiscal year immediately, and twenty (20%) percent of the investment return in each of the next four (4) subsequent fiscal years. The remaining unrealized investment return from December 31, 2007 shall be recognized equally over the next four (4) fiscal years, beginning with the December 31, 2008 valuation.

(29) The masculine gender shall include the feminine gender, and words of the singular number with respect to persons shall include the plural number, and vice-versa.

(Ord. No. 68-34, 5-21-68; Ord. No. 74-57, 7-16-74; Ord. No. 81-26, 4-7-81; Ord. No. 88-32, § 1, 5-17-88; Ord. No. 90-20, § 1, 2-20-90; Ord. No.

94-12, § 1, 3-1-94; Ord. No. 95-64, §§ 1, 2, 11-7-95; Ord. No. 97-28, §1, 6-24-97; Ord. No. 97-37, § 1, 8-5-97; Ord. No. 2002-49, § 1, 8-20-02; Ord. No. 2002-52, §§ 1—4, 9-10-02; Ord. No. 2004-60, §§ 1—3, 9-7-04; Ord. No. 2009-31, § 1, 5-26-09; Ord. No. 2009-68, § 1, 12-15-09; Ord. No. 2010-49, § 1, 8-24-10; Ord. No. 2013-39, §§ 2—4, 8-27-13; Ord. No. 2015-70, §§ 1—4, 12-8-15; Ord. No. 2019-31, §§ 1—3, 7-23-19; Ord. No. 2019-35, § 1, 8-13-19; Ord. No. 2022-07, § 1, 3-29-22)

Sec. 1.234. Board of Trustees—Appointment and Election.

The general administration and responsibility for the proper operation of the System and for making effective the provisions of this Article are hereby vested in a Board of Trustees of seven (7) persons, as follows:

(1) Two (2) persons to be elected by the members of the System. Such Trustees are called member Trustees in this Article. One (1) member Trustee shall be elected by the Police Officer members and must be either a Police Officer member or a resident of the City of Grand Rapids. One (1) member Trustee shall be elected by the Firefighter members and must be either a Firefighter member or a resident of the City of Grand Rapids. The member Trustees shall be elected by the members of the Retirement System in accordance with such rules and regulations as the Board shall from time to time adopt to govern such elections.

(2) One (1) member of the City Commission to be appointed by the City Commission and to serve at the pleasure of the City Commission. Such Trustee is called "employer Trustee" in this Article.

(3) Four (4) persons, each of whom shall be experienced in financial matters and shall not be a member or retirant or beneficiary of the System, nor an employee or official of the employer. Such Trustees are called "Citizen Trustees" in this Article. One (1) Citizen Trustee shall be appointed by the Mayor. Two (2) Citizen Trustees shall be appointed by the City Commission. One (1) Citizen Trustee shall be appointed by the City Commission from a list of not less than four (4) eligible persons submitted jointly by the Police Officer members and the Firefighter members.

(Ord. No. 68-34, 5-21-68; Ord. No. 85-66, § 1, 10-29-85)

Sec. 1.235. Board of Trustees—Terms.

The terms of Citizen Trustees expiring in 1974, 1975 and 1976 are hereby extended until the succeeding first Monday in January. The Citizen Trustee appointed by the Mayor shall serve for a term expiring the first Monday in January 1978. The terms of Member Trustees due to expire in 1976 and 1977 are hereby extended until the succeeding first Monday in January. All terms of Member Trustees and Citizen Trustees hereafter appointed shall be for terms of four (4) years. Each Trustee shall continue to serve as Trustee until his or her successor is elected or appointed as the case may be and is qualified.

(Ord. No. 68-34, 5-21-68; Ord. No. 74-74, 9-24-74)

Sec. 1.236. Board of Trustees—Vacancy, How Filled.

In the event any Trustee fails to attend three (3) consecutive meetings of the Board unless in each case excused for cause by the remaining Trustees attending such meeting or meetings, he or she shall be considered to have resigned from the Board and the Board shall by resolution declare his or her office of Trustee vacated. If a vacancy occurs in the office of Trustee, the vacancy shall be filled for the unexpired portion of the term so vacated in the same manner as the office was previously filled.

(Ord. No. 68-34, 5-21-68)

Sec. 1.237. Officers and Employees of System—Executive Director, Actuary, Legal Advisor, Investment Counselor.

(1) The Board shall select from its own number a Chairman and a Vice-Chairman.

(2) Compensation.

(a) Member Trustees (Full-Time Employees of City) and Elected Officials: The Member Trustees who are full-time employees of employer and Elected Officials of the City serving on the Board shall serve without compensation for their services, as such, as their time is otherwise compensated for by the City. Such Trustees shall be reimbursed from the income-expense fund of the System for their necessary expenses incurred in attending meetings of the Board or in the performance of other duties authorized by the Board. Such reimbursement shall be in a manner and an amount as is reasonably determined by the Board to be appropriate.

(b) Other Trustees: The remaining Trustees of the Board shall be compensated at the rate of seventy-five dollars ($75.00) per meeting, paid from the income-expense fund of the System, for those special and subcommittee meetings which are actually attended by such Trustee. In addition, such Trustees shall be reimbursed from the income-expense fund of the System for their necessary expenses incurred in attending meetings of the Board or in the performance of other duties authorized by the Board. Such reimbursement shall be in a manner and an amount as is reasonably determined by the Board to be appropriate.

(3) Executive Director and Clerical Staff.

(a) The Board shall have the authority to employ the service of an Executive Director for the System, to serve as the System's Chief Executive Officer. The Board shall adopt, and may amend, a job classification for the Executive Director, which shall define the duties and responsibilities of the position consistent with the provisions of this Article.

(b) The Board shall have the authority to employ the Executive Director upon terms and conditions that the Board determines are in the best interests of the administration of the System, and may enter into an employment agreement with the Executive Director for a period of not to exceed three (3) years, plus options to extend or renew.

(c) The Executive Director shall have the authority to employ such other professional and clerical services as may be required for the proper administration of the System on such terms and conditions as the Board may determine, and with the approval of the Board.

(d) The Executive Director and any clerical or professional staff employed by the System shall be eligible for participation in the group hospital, medical, dental and vision insurance programs otherwise offered to City employees, the General Pension Plan of the City, the deferred compensation plan, the retirement insurance provisions afforded to other City employees, Worker's Compensation coverage and the Medicare Supplement Plan of the City. The actual benefits provided to the Executive Director and any clerical employees of the System shall be determined by the Board. The actual cost of any and all such coverages provided shall be the responsibility of the System and reimbursed to the City on a quarterly basis.

(4) Administrative Costs.

(a) The Board shall have the authority to acquire, through lease or purchase, such office space as may be necessary for the proper administration of the System and may provide for such liability and casualty insurance as may be necessary to protect the property and assets of the System. Such office space shall be located within the corporate limits of the City of Grand Rapids and shall, to the extent required by law, be accessible to handicapped persons.

(b) The Board shall have the authority to acquire, through purchase or lease, such office supplies, equipment, furniture and

furnishings as it determines to be reasonably necessary for the proper administration of the System.

(c) All reasonable expenses of the Board necessary for the operation of the System, including compensation of the persons engaged by the Board, shall be paid at such rates and in such amounts as the Board shall approve from the Income-Expense Fund of the System.

(5) System Actuary. The Board shall appoint an actuary to be the technical advisor to the Board and the Executive Director on matters regarding the operation of the System and who shall perform such other duties as may be required in connection therewith. The appointed actuary shall (i) be a Member of The American Academy of Actuaries, (ii) be either a Fellow or Associate of the Society of Actuaries or a Member of the Conference of Consulting Actuaries, and (iii) have a minimum of 5 years of experience in providing actuarial and consulting service to public employee retirement systems.

(6) Investment Counselors. The Board shall appoint a professional investment counsel or firm or firms of professional investment counselors to be investment advisors to the Board upon such terms and conditions as the Board may direct.

(7) Legal Advisor. The City Attorney shall serve as the legal advisor to the Board and the Executive Director on matters regarding the operation of the System. The Board shall be authorized to retain the services of an attorney or law firm to represent the Board in any matters in which the City Attorney has a professional conflict of interest or in other circumstances in which the Board and City Attorney determine such representation would better serve the interests of the System.
(Ord. No. 68-34, 5-21-68; Ord. No. 90-34, § 1, 4-3-90; Ord. No. 91-67, § 1, 12-17-91; Ord. No. 94-12, § 1, 3-1-94)

Sec. 1.238. Board Meetings—Quorum; Vote; Proceedings.

The Board shall hold regular meetings, at least quarterly. Four (4) Trustees, of whom at least one (1) shall be a Member Trustee, shall constitute a quorum at any meeting of the Board. Each Trustee shall be entitled to one (1) vote on each question before the Board and at least four (4) concurring votes shall be required for a decision by the Board at any meeting. The Board shall adopt its own rules of procedure, and shall keep a record of its proceedings. All meetings of the Board shall be held pursuant to the Open Meetings Act described in MCLA § 15.261 et seq., as amended.
(Ord. No. 68-34, 5-21-68; Ord. No. 94-12, § 1, 3-1-94)

Sec. 1.239. Some Specific Board Administrative Duties.

(1) The Board shall from time to time adopt such reasonable mortality and other tables of experience, and a rate or rates of assumed interest, as shall be necessary for the actuarial requirements of the System.

(2) The Executive Director shall keep, or cause to be kept in convenient form, such data as shall be necessary for actuarial investigations of the experience of the System, and such data as shall be necessary for the annual actuarial valuations of the System.

(3) The Board shall annually, but not later than May 15 of each year, provide a report to the employer showing the financial condition of the System as of the preceding December 31. Such report shall contain, but not be limited to, a financial balance sheet, a statement of income and disbursements, a detailed statement of investments acquired and disposed of during the year, an actuarial balance sheet prepared by means of the last valuation of the System, and such other data as the Board shall deem necessary or desirable or as requested by the City Commission for a proper understanding of the condition of the System.

(4) All records of the System shall be kept and maintained by the Executive Director in space provided by the System.

(5) The employer shall provide the Executive Director with access to personnel and other records of the employer as may be reasonably required for the proper administration of the Retirement System.

(6) The Board shall have the authority to meet with and act in joint concert with the Board of Trustees of the City of Grand Rapids General Pension System on administrative matters of mutual concern to both Systems, including, but not limited to, the employment of an Executive Director, the establishment of administrative policy, the apportionment of administrative costs, the acquisition of office space, and the employment of actuaries or legal counsel. The City Commission shall have the authority to specify matters on which joint agreement of the General Pension System and the Police and Fire Pension System are required to avoid the unnecessary duplication of administrative expenses. These matters shall include, but not be limited to, the selection of the System Actuary, the selection of the Executive Director, the selection of the Auditor, and the acquisition of office space.

(7) The Board shall have the discretionary power and authority to determine the benefits payable to Members by the System. These powers and authority include the following:

(a) To interpret the terms and provisions of this Article as they relate to benefits payable;

(b) To decide all questions of eligibility for participation in the System; and

(c) To decide all questions of eligibility for benefit payments and determine the amount of benefit payments.

(Ord. No. 68-34, 5-21-68; Ord. No. 87-4-1, § 1, 1-20-87; Ord. No. 91-67, § 2, 12-17-91; Ord. No. 94-12, § 1, 3-1-94; Ord. No. 2004-60, § 4, 9-7-04)

Sec. 1.240. Claims Procedure.

The Board will make all determinations concerning benefits. Any denial of benefits by the Board will be stated in writing by the Board and delivered or mailed by certified mail, return receipt requested, to the member or beneficiary within sixty (60) days after the denial. The notice will set forth the reasons for the denial in language that may be understood by the member and will specify the System provisions upon which the denial was based. If the denial is based on the failure of the member or beneficiary to supply certain materials or information, the notice will so state. The notice will advise that the denial may be appealed to the Board and will include an explanation of the appeal procedure.

The Board will adopt a procedure for reviewing appeals of denials of benefit claims. The procedure will include the following:

(a) The claimant or his duly authorized representative may initiate an appeal by written request for review delivered to the Board not later than sixty (60) days after receipt by the claimant of the notice of denial;

(b) The claimant or his duly authorized representative may review documents pertinent to the appeal and may submit written statements of issues and arguments relevant to the appeal to the Board;

(c) The Board will return its decision on the appeal not later than sixty (60) days after receipt of the request for review; and

(d) The claimant will be advised in writing of the decision on the appeal including the reasons for the decision in language that may be understood by the claimant with references to the System provisions upon which the decision is based.

The determination of the Board in all matters under this Section will be final and binding on all parties.

(Ord. No. 68-34, 5-21-68; Ord. No. 94-12, § 1, 3-1-94)

Sec. 1.241. Membership of System.

(1) The membership of the System shall include all persons who are employees on or after the effective date of the System.

(2) In any case of question as to the System membership status of any person, the Board shall have power to decide the question.

(3) Non-Member Hired to Non-Represented Position.

(a) Effective July 1, 2011, for any person hired to serve as the Police Chief or Deputy Police Chief, who upon their date of hire for such position is not a

Member of the Retirement System as herein defined, such person shall be eligible for the Officer's Option Plan as provided in Article 3 of this Chapter, and shall be excluded from participation in the Police and Fire Retirement System.

(b) Effective April 25, 2017, for any person hired to serve as the Fire Chief or Deputy Fire Chief, who upon their date of hire for such position is not a Member of the Retirement System as herein defined, such person shall be eligible for the City of Grand Rapids Defined Contribution (CGRDC) Plan as provided in Article 8 of this Chapter, and shall be excluded from participation in the Police and Fire Retirement System and the Officer's Option Plan as provided in Article 3 of this Chapter.

(Ord. No. 68-34, 5-21-68; Ord. No. 2015-70, § 7, 12-8-15; Ord. No. 2017-29, § 1, 4-25-17; Ord. No. 2019-31, § 4, 7-23-19)

Sec. 1.242. Membership Terminates; Reinstatement of Credited Service.

(1) When a member is no longer employed by the employer in a position covered by the System, he or she shall thereupon cease to be a member of the System. Except as otherwise provided in this Article, upon termination of membership, the member's credited service shall be forfeited. If such person is not a retirant and becomes reemployed by the employer in a position covered by the System, that person shall again become a member of the System. Should such reemployment occur within a period of four (4) years from and after the date that membership last terminated, the member's credited service last forfeited by that member shall be restored to the member's credit; provided, that the member returns to the System the amount, if any, received therefrom, together with regular interest from the date of withdrawal to the date of repayment. A current employee whose participation in the plan was terminated due to attainment of age sixty (60) prior to January 1, 1988, has the option to be credited with service worked after the calendar month in which the employee attained age sixty (60), provided credited service does not exceed forty (40) years. The member shall be required to pay into the System an amount equal to that which would have been required during the time the service was performed, plus regular interest, in order to receive such credited service.

(2) Upon a member's retirement he or she shall thereupon cease to be a member and, except as otherwise provided in this Article, he or she shall not again become a member of the System.

(3) Allowance payments shall be suspended for any retirant who is employed by the employer for more than seven hundred (700) hours in a calendar year. Allowance payments shall be suspended immediately upon attainment of seven hundred (700) hours worked and shall remain suspended for the duration of that calendar year that the retirant continues to work for the employer. Any such retirant so employed shall not become a member of the system or gain any credited service or other allowance enhancements as a result of time worked after retirement. The employer shall notify the Retirement Systems of the employment of a retirant and upon the completion of seven hundred (700) hours worked by that retirant. Effective July 1, 2022, the limit for retirees of the Grand Rapids Police Officers Association Officer and Sergeant Unit shall be one thousand forty (1,040) hours per calendar year.

(Ord. No. 68-34, 5-21-68; Ord. No. 88-32, § 2, 5-17-88; Ord. No. 99-76, § 1, 12-21-99; Ord. No. 2023-03, § 1, 1-24-23)

Sec. 1.243. Service Credit.

(1) A member shall be given credited service for the period from their employment commencement date to their employment termination date. No credit shall be given for any period of thirty (30) days or more in which the member does not make the required member contributions for service for eighty (80) or more hours. Service shall be computed in whole months with a

remaining period of less than thirty (30) days counted as a whole month if member contributions were made for service for eighty (80) or more hours. If the period of service determined before application of the immediately preceding sentence results in a period of whole years and an additional fractional year of ten (10) months or more (without rounding), the fractional years of ten (10) months or more shall be treated as a whole year. The requirement that a member make the required member contributions as a condition of receiving service credit is waived for the first six (6) months of employment. The Board shall fix and determine the number of months and years of service to be credited to each member for employment as an employee in accordance with the terms of this ordinance. No member shall be credited with more than the years of credited service in the following table:

Covered Group	*Date of Hire*	*Credited Service Limit*
Firefighters	Prior to July 1, 1992	40 years if electing a 2.5% benefit multiplier or 37 years if electing a 2.7% benefit multiplier and retiring on or before September 26, 2002 or 35 years if electing a 2.7% benefit multiplier and retiring after September 26, 2002
	July 1, 1992 or after	33 years - 4 months
Police Officers and Sergeants	Prior to March 9, 1995	37 years
	March 9, 1995 through June 30, 2001	32 years - 4 months
	July 1, 2001 and after	29 years - 7 months
Police Command	Prior to July 1, 2001	37 years
	July 1, 2001 and after	29 years - 7 months
Police Chief and Deputy Police Chief	Any	37 years

For Firefighter retirements effective December 18, 2009 through December 31, 2009 and for Firefighter retirements effective on or after July 1, 2012:

Covered Group	*Date of Hire*	*Credited Service Limit*
Firefighters	Prior to July 1, 1992	40 years if electing a 2.5% benefit multiplier or 33 years - 9 months if electing a 2.8% benefit multiplier
	July 1, 1992 through January 9, 2012	32 years - 2 months
	January 10, 2012 and after	33 years - 7 months (for 2.8% multiplier elected after 5 years) to 45 years (for 2.0% multiplier for all years), depending on multiplier selection made by member under Section 1.246

For Police Officers and Sergeants, Police Command, and Non-Represented member retirements on or after June 30, 2010:

Covered Group	*Date of Hire*	*Credited Service Limit*
Police Officers and Sergeants	Prior to March 9, 1995	35 years - 9 months
	March 9, 1995 through June 30, 2001	31 years - 3 months
	July 1, 2001 through December 19, 2011	28 years - 7 months
	December 20, 2011 and after	30 years to 40 years, depending on multiplier selection made by member under Section 1.246
Police Command	Prior to July 1, 2001	35 years - 9 months
	July 1, 2001 through December 19, 2011	28 years - 7 months
	December 20, 2011 and after	30 years to 40 years, depending on multiplier selection made by member under Section 1.246
Police Chief and Deputy Police Chief	Any	35 years - 9 months

Covered Group	*Date of Hire*	*Credited Service Limit*
Fire Chief and Deputy Fire Chief	Any	33 years - 9 months

(2) In the event a member, who while an employee, entered or enters the Armed Forces of the United States during any period of compulsory military service, such armed service actually required of him or her shall be credited him or her as service hereunder; provided, that he or she again becomes an employee within a period of ninety (90) days after he or she is relieved from military duty, and he or she returns to the System the amount, if any, he or she may have received therefrom at the time he or she entered or while in such armed service, together with regular interest from the date of withdrawal to the date of repayment, and in no case shall any member be credited with a total of more than six (6) years of such armed service. In any case of doubt as to the period of such armed service to be so credited a member, the Board shall have power to determine such period. To receive service credit for such required armed service, such member shall have the option to continue during his or her term of military service payments which would have been required of him or her under the System had he or she remained at work, or he or she shall have the option upon reinstatement to make up any such contributions which were not made during the period of his or her military duty.

(3) A member may deposit in the System the amount or amounts he or she may have received therefrom as a result of a prior termination of employment and not repaid thereto, together with regular interest from the date of withdrawal to the date of repayment. In no case shall a member be given credit for service rendered prior to the date he or she received payments until he or she returns to the System all amounts due from him or her. Contributions to purchase service previously excluded under a mandatory retirement age provision shall be paid in the same manner and subject to the same conditions as the payment of amounts received and not repaid.

(4) Purchase of Credited Service. Except as otherwise permitted herein, a member may purchase additional periods of credited service, not exceeding two (2) years, by contributing an amount equal to 17.84 percent (.1784) of the member's annual rate of salary at the time of such purchase, including longevity pay and education allowance, multiplied by the number of years and fraction of a year of credited service being purchased. All purchases shall be in increments of one month. Any such periods of purchased credited service shall be recognized solely for the purpose of computing the member's life allowance as provided in Section 1.246. The purchase rate specified above shall be effective for purchases made between July 1, 1991 and June 30, 1994. For future periods the rate shall be the age and service cost component of the normal cost as determined by the System Actuary. Effective July 1, 1994 the System Actuary shall determine separate normal costs for Firefighters, Police Officers and Sergeants, and Police Command. Provided, however, that from and after December 20, 2011, Police Officers and Sergeants, and Police Command members, may purchase up to a total of four (4) years of credited service, subject to the provisions of this paragraph, and from and after January 10, 2012, Firefighter members may also purchase up to a total of four (4) years of credited service, subject to the provisions of this paragraph. In accordance with the IRS ruling issued to the Retirement System approving such purchase of service, the decision to purchase credited service is irrevocable.

(5) Payments made under Subsections (2), (3) and (4) above, shall be made (a) by a single cash deposit, (b) by an increased rate of member contributions, (c) by a Trustee to Trustee transfer to the System from an eligible retirement plan, ("eligible retirement plan" is defined in Section 1.254(5)(b) below), or (d) by a combination of an initial lump sum cash deposit and an increased rate of contributions as approved by the Board. The payments for any of these service purchases must be completed in a period of five years or less. Contributions which are made as a percentage of periodic pay may be considered as "picked up" by the employer as described in Section

1.258(6) or may be made on an after-tax basis, at the election of the member prior to the first such payment. This election is irrevocable. Subsequent to the election to purchase service, the member may not amend or revoke a pick-up election and may not make any direct payments for any service so purchased. The contribution or portion of the contribution which is paid in an initial cash deposit shall not be considered "picked up." In the event that a member terminates employment prior to completion of the payments over the period elected, the City will reduce the final payroll amount due the member attributable to reimbursement for unpaid vacation, sick leave or other extraordinary forms of compensation (accrued pay) by the lesser of the accrued pay amount or the amount remaining unpaid. Any amounts thereafter remaining unpaid may be paid to the retirement system on a lump-sum, after-tax basis within thirty (30) days of termination of employment. If any amount remains unpaid thirty (30) days after termination of employment, then the additional service purchase shall be reduced to reflect the number of months of additional service for which payments have not been received.

(6) In any case of question as to the service credit of any person, the Board shall have discretion to decide the question.

(7) Sick Leave Conversion. An employee with ten (10) or more years of continuous service may use accumulated and unused sick leave standing to the employee's credit at the time of retirement or resignation for the purpose of purchasing additional credited service which shall be recognized for the sole purpose of computing the members' life allowance as provided in Section 1.246, and not for determining eligibility for a benefit or for any other purpose.

(a) Police Officer members including the Police Chief and Deputy Police Chiefs may use accumulated sick leave to purchase up to a maximum of one (1) year of additional credited service by using one thousand two hundred sixty-five (1,265) hours of such sick leave for such purpose.

(b) Firefighter members including the Fire Chief and Deputy Fire Chief may use accumulated sick leave to purchase up to a maximum of one (1) year of additional credited service by using two thousand eighty (2,080) hours of such sick leave for such purpose.

Any such additional credit service purchased with accumulated sick leave shall be subject to the overall credit service limitation applicable to the member under Section 1.243(1) herein.

(8) If a member of the General Retirement System left or leaves that system and such member later becomes a member of the Police and Fire Retirement System he or she shall be entitled to transfer all General Retirement System credited service, on a prorated basis, into the Police and Fire Retirement System under the provisions of this Section, subject to the following conditions:

(a) All accrued General Retirement System credited service time will be reduced by fifty percent (50%) and converted into Police and Fire Retirement System credited service.

(b) The former General Retirement System member, does not, or has not, withdrawn his or her accumulated contributions from the City of Grand Rapids General Retirement System and formally requests the transfer of such contributions into the Police and Fire Retirement System.

(c) A member who is eligible for transfer of credited service, as specified above, may only elect the transfer of such credited service in writing to the Police and Fire Retirement System Office during the period February 1, 2000 through June 30, 2000.

(d) The transfer of accumulated member contributions and credited service provided for in this Section revokes entitlement to any and all present or future benefits or provisions found in Title I, Chapter 7, Pension and Retirement

Benefits, Article 1, General Pension System, of the Code of the City of Grand Rapids.

(Ord. No. 68-34, 5-21-68; Ord. No. 88-32, 5-17-88; Ord. No. 94-12, § 1, 3-1-94; Ord. No. 95-64, §§ 3, 4, 11-7-95; Ord. No. 98-49, § 1, 11-3-98; Ord. No. 99-20, §§ 1, 4, 4-13-99; Ord. No. 99-79, § 1, 12-21-99; Ord. No. 2000-02, § 1, 1-11-00; Ord. No. 2000-06, § 1, 2-8-00; Ord. No. 2002-49, § 2, 8-20-02; Ord. No. 2002-52, §§ 5, 6, 9-10-02; Ord. No. 2004-60, § 5, 9-7-04; Ord. No. 2009-68, § 2, 12-15-09; Ord. No. 2010-49, §§ 2, 3, 8-24-10; Ord. No. 2011-63, § 1, 12-20-11; Ord. No. 2013-39, §§ 5—7, 8-27-13; Ord. No. 2015-70, § 5, 12-8-15; Ord. No. 2019-31, §§ 5, 6, 7-23-19)

Sec. 1.244. Age and Service Retirement Eligibility.

Any member in employer service may retire with a life allowance provided for in Section 1.246 upon his or her written application to the Board setting forth at what time not less than thirty (30) days nor more than ninety (90) days subsequent to the execution and filing thereof he or she desires to be retired; provided, that at the time so specified for his or her retirement the member shall have attained his or her minimum service retirement age and shall have ten (10) or more years of credited service in force, and notwithstanding that during such period of notification he or she may have separated from service. Provided further, however, that for Firefighter members of the System retiring between December 18, 2009 and December 31, 2009 inclusive, the requirement to provide thirty (30) days' notice prior to retirement shall be waived. He or she shall have the right to elect an option provided for in Section 1.247.

(Ord. No. 68-34, 5-21-68; Ord. No. 2009-68, § 3, 12-15-09)

Sec. 1.245. Compulsory Retirement.

There shall be no compulsory retirement. However, no member shall accrue any benefits exceeding those provided in Section 1.246, nor shall any member accrue benefits after the calendar year in which the member attains the number of years of credited service set forth in Section 1.243(1). Section 1.242(1) applies for restoration of service credit for members who attained age sixty (60) prior to January 1, 1988.

(Ord. No. 68-34, 5-21-68; Ord. No. 88-32, § 4, 5-17-88; Ord. No. 94-12, § 1, 3-1-94)

Sec. 1.246. Life Allowance.

Upon a member's retirement as provided in this Article, the member shall receive a life allowance equal to the applicable percent of final average salary in effect for the member at the time of employment termination (Benefit Multiplier), multiplied by the member's years of credited service to the nearest one-twelfth (1/12) year; provided, however, that no such life allowance shall be based upon a percentage of final average salary which exceeds the allowance cap for that member's covered group at the time of retirement as set forth below:

BENEFIT MULTIPLIERS AND ALLOWANCE CAPS FOR MEMBER GROUPS

COVERED GROUP	*DATE OF HIRE*	*BENEFIT MULTIPLIER*	*ALLOWANCE CAP*
Firefighters	Prior to July 1, 1992	2.5%	100%
	-or-		
	Prior to July 1, 1992 with up to 37 years of credited service if, on or before June 28, 2002 a decision to retire was made, effective on or before September 26, 2002	2.7%	100%
	-or-		

COVERED GROUP	*DATE OF HIRE*	*BENEFIT MULTIPLIER*	*ALLOWANCE CAP*
	Prior to July 1, 1992 with up to 35 years of credited service	2.7%	94.5%
	July 1, 1992 or after	2.7%	90%
Police Officers and Sergeants	Before March 9, 1995	2.7%	100%
	March 9, 1995 through June 30, 2001	2.7%	87.5%
	July 1, 2001 and after	2.7%	80%
Police Command	Prior to July 1, 2001	2.7%	100%
	July 1, 2001 or after	2.7%	80%
Police Chief or Deputy Police Chief	At any time	2.7%	100%

For Firefighter retirements effective December 18, 2009 through December 31, 2009 and for Firefighter retirements effective on or after July 1, 2012:

COVERED GROUP	*DATE OF HIRE*	*BENEFIT MULTIPLIER*	*ALLOWANCE CAP*
Firefighters	Prior to July 1, 1992	2.5%	100%
	-or-		
	Prior to July 1, 1992	2.8%	94.5%
	July 1, 1992 through January 9, 2012	2.8%	90%
	January 10, 2012 and after	2.0%*	90%

* Firefighter members hired on or after January 10, 2012 will have a 2.0% multiplier for the first five (5) years of employment. Such members will have an option, between four and a half (4½) years and five (5) years of employment, to irrevocably elect to increase their own benefit multiplier to 2.2%, 2.4%, 2.6% or 2.8%, for all future credited service after the first five (5) years. The incremental cost for a higher multiplier will be calculated by the System's actuary following each experience study, or at least every five (5) years, and shall be added to the member contributions required under Section 1.258(4)(a) for the remainder of the member's employment. If no election is made by such member prior to his/her five-year employment anniversary date, then all credited service shall be calculated using a 2.0% multiplier. Effective as of July 1, 2019, members may irrevocably elect to increase their own benefit multiplier to 2.2%, 2.4% 2.6% or 2.8%, retroactive to no earlier than the member's six-month anniversary date, or in any six-month increment from that date. If no election is made by such member prior to his/her five-year employment anniversary date, then all credited service shall be calculated using a 2.0% multiplier. Members hired on or after January 1, 2024 must make an irrevocable multiplier election before their six-month anniversary date. If no election is made by such member prior to their six-month anniversary date, then all credited service shall be calculated using a 2.0% multiplier. The increased cost of the member's election shall be calculated by the actuary and paid by the member via an increased member contribution rate.

For Police Officers and Sergeants, Police Command and Non-Represented member retirements on or after June 30, 2010:

COVERED GROUP	*DATE OF HIRE*	*BENEFIT MULTIPLIER*	*ALLOWANCE CAP*
Police Officers and Sergeants	Before March 9, 1995	2.8%	100%

COVERED GROUP	*DATE OF HIRE*	*BENEFIT MULTIPLIER*	*ALLOWANCE CAP*
	March 9, 1995 through June 30, 2001	2.8%	87.5%
	July 1, 2001 through December 19, 2011	2.8%	80%
	December 20, 2011 and after	2.0%*	80%
Police Command	Prior to July 1, 2001	2.8%	100%
	July 1, 2001 through December 19, 2011	2.8%	80%
	December 20, 2011 and after	2.0%**	80%
Police Chief or Deputy Police Chief	Any	2.8%	100%
Fire Chief or Deputy Fire Chief	Any	2.8%	94.5%

* Police Officers and Sergeants hired on or after December 20, 2011 will have a 2.0% multiplier for the first five (5) years of employment. Such members will have an option, between four (4) and five (5) years of employment, to irrevocably elect to increase their own benefit multiplier to 2.2%, 2.4%, 2.6% or 2.8%, for all future credited service after the first five (5) years. The incremental cost for a higher multiplier will be calculated by the System's actuary following each experience study, or at least every five (5) years, and shall be added to the member contributions required under Section 1.258(4)(b) for the remainder of the member's employment. If no election is made by such member prior to their five-year employment anniversary date, then all credited service shall be calculated using a 2.0% multiplier. Effective July 1, 2019, members hired between December 20, 2011 and August 31, 2019 will be afforded a one-time opportunity to irrevocably elect to increase their own benefit multiplier to 2.2%, 2.4%, 2.6% or 2.8%, retroactive to no earlier than the member's six-month anniversary date, or in any six-month increment from that date. Prior elections may not be changed to a different multiplier. Members hired on or after September 1, 2019 must make an irrevocable multiplier election before their six-month anniversary date. If no election is made by such member prior to their six-month anniversary date, then all credited service shall be calculated using a 2.0% multiplier. The increased cost of the member's election shall be calculated by the actuary and paid by the member via an increased member contribution rate.

** Police Command members hired on or after December 20, 2011 will have a 2.0% multiplier for the first five (5) years of employment. Such members will have an option, between four (4) and five (5) years of employment, to irrevocably elect to increase their own benefit multiplier to 2.2%, 2.4%, 2.6% or 2.8%, for all future credited service after the first five (5) years. The incremental cost for a higher multiplier will be calculated by the System's actuary following each experience study, or at least every five (5) years, and shall be added to the member contributions required under Section 1.258(4)(c) for the remainder of the member's employment. If no election is made by such member prior to their five-year employment anniversary date, then all credited service shall be calculated using a 2.0% multiplier. If a Police Command member is promoted into the unit from the Police Officers and Sergeants unit and has already elected a higher multiplier, or defaulted to a 2.0% multiplier for all service, then that election or default shall be applicable for service earned while in the Command unit as well.

Life allowances for those former members who terminated service with the employer prior to July 1, 2001 and elected to take a deferred retirement, are subject to and limited by the provisions of Section 1.250.

(Ord. No. 68-34, 5-21-68; Ord. No. 80-26, 4-8-80; Ord. No. 81-26, 4-7-81; Ord. No. 81-49, 6-30-81; Ord. No. 83-42, 8-2-83; Ord. No. 83-62, 11-1-83; Ord. No. 86-50, §§ 1—3, 8-26-86; Ord. No. 88-32, § 5,

5-17-88; Ord. No. 94-12, § 1, 3-1-94; Ord. No. 95-64, § 5, 11-7-95; Ord. No. 2002-52, § 7, 9-10-02; Ord. No. 2009-68, § 4, 12-15-09; Ord. No. 2010-49, § 4, 8-24-10; Ord. No. 2013-39, § 8, 8-27-13; Ord. No. 2019-31, § 7, 7-23-19; Ord. No. 2022-07, § 2, 3-29-22; Ord. No. 2024-18, § 1, 4-9-24)

Sec. 1.247. Allowance Options.

(1) Under such rules and regulations and limitations as the Board shall adopt, before the date the first payment of his or her allowance becomes due but not thereafter, a person about to become a retirant may elect to receive an optional form of allowance in lieu of the single life annuity allowance otherwise payable to him or her as described in Section 1.246. The value of each such optional form of allowance shall be the actuarial equivalent of the value of the allowance otherwise payable to him or her. The optional forms of allowance made available by the Board shall be the forms following:

(a) *Option B-100.* Upon the death of a retirant who elected Option B-100, one hundred (100) percent of the reduced allowance to which the retirant would have been entitled had the retirant lived shall be paid to the retirant's surviving beneficiary for the lifetime of such surviving beneficiary.

(b) *Option B-75.* Upon the death of a retirant who elected Option B-75, seventy-five (75) percent of the retirant reduced allowance to which the retirant would have been entitled had the retirant lived shall be paid to the retirant's surviving beneficiary for the lifetime of such surviving beneficiary.

(c) *Option B-50.* Upon the death of a retirant who elected Option B-50, fifty (50) percent of the reduced allowance to which the retirant would have been entitled had the retirant lived shall be paid to the retirant's surviving beneficiary for the lifetime of such surviving beneficiary.

(d) *Option B-25.* Upon the death of a retirant who elected Option B-25, twenty-five (25) percent of the reduced allowance to which the retirant would have been entitled had the retirant lived shall be paid to the retirant's surviving beneficiary.

(e) *Option B-100 Pop-Up.* Same as Option B-100 with the added provision that if the designated beneficiary pre-deceases the retirant, the allowance shall be returned to the amount of the life allowance that would have been payable if no optional form of payment had been elected. Such change shall be made effective the month following the month in which the joint beneficiary died.

(f) *Option B-75 Pop-Up.* Same as Option B-75 with the added provision that if the designated beneficiary pre-deceases the retirant, the allowance shall be returned to the amount of the life allowance that would have been payable if no optional form of payment had been elected. Such change shall be made effective the month following the month in which the joint beneficiary died.

(g) *Option B-50 Pop-Up.* Same as Option B-50 with the added provision that if the designated beneficiary pre-deceases the retirant, the allowance shall be returned to the amount of the life allowance that would have been payable if no optional form of payment had been elected. Such change shall be made effective the month following the month in which the joint beneficiary died.

(h) *Option B-25 Pop-Up.* Same as Option B-25 with the added provision that if the designated beneficiary pre-deceases the retirant, the allowance shall be returned to the amount of the life allowance that would have been payable if no optional form of payment had been elected. Such change shall be made effective the month following the month in which the joint beneficiary died.

(2) Benefits payable under any provision of this System will commence not later than the later of the following:

(a) April 1 of the calendar year following the calendar year in which the member retires; or

(b) April 1 of the calendar year following the calendar year in which the member attains or would have attained age seventy and one-half (70½).

Payments to beneficiaries other than surviving spouses will commence not later than one (1) year after the death of the member or former member. If death benefits are payable to anyone other than a surviving spouse or designated beneficiary, the entire death benefit must be paid within five (5) years after the death of the member.

If payments have commenced to the member or former member prior to his death, then the remaining benefits will be paid to his beneficiary at least as rapidly as under the method of payment made to the member or former member as of the date of death.

No distribution shall be made in a form or over a period longer than permitted in Code Section 401(a)(9) and regulations thereunder, including the incidental death benefit requirements contained therein. These limitations override any inconsistent distribution options. This subsection (2) is effective July 1, 1989.
(Ord. No. 68-34, 5-21-68; Ord. No. 83-66, § 1, 11-8-83; Ord. No. 83-71, § 1, 12-6-83; Ord. No. 84-15, § 1, 3-13-84; Ord. No. 94-12, § 1, 3-1-94)

Sec. 1.248. Terminal Benefit Covering Retirant.

In the event a retirant dies before he or she has received in allowance payments an aggregate amount equal to his or her accumulated contributions standing to his or her credit in the members' deposit fund at the time of his or her retirement, the difference between such accumulated contributions and such aggregate amount of allowance payments received by him or her shall be paid to such person as he or she shall have nominated by written designation duly executed and filed with the Board. If there be no such designated person surviving such retirant such difference, if any, shall be paid to the retirant's estate. In no case shall any benefits be paid under this Section on account of the death of a retirant if any allowance becomes payable by the System on account of his or her death.
(Ord. No. 68-34, 5-21-68)

Sec. 1.249. Early Retirement.

(1) Any member in employer service who has not attained his or her minimum service retirement age may retire with an early allowance provided for in (2) of this Section upon his or her written application to the Board setting forth at what time not less than thirty (30) days nor more than ninety (90) days subsequent to the execution and filing thereof he or she desires to be retired; provided, that at the time so specified for his or her retirement the member's age shall be within five (5) years of his or her minimum service retirement age and he or she shall have ten (10) or more years of credited service in force. He or she shall have the right to elect an option provided for in Section 1.247.

(2) Upon early retirement a member shall receive a percent of the allowance provided for in Section 1.246, in accordance with the following table of actuarial equivalent percents:

Age Last Birthday at Time of Retirement	*Percent of Section 1.246 Allowance*
50	73.34%
51	77.80
52	82.65
53	87.93
54	93.70
55	100.00

(3) The above provisions of Section 1.249 shall apply only to Firefighter members of the System as defined in Section 1.233(16) and those Police Officer members similarly defined in Section 1.233(23) who terminated prior to July 1, 1989. Police Officer members terminated prior to that date who otherwise meet eligibility requirements for deferred retirement may elect in lieu thereof to receive early retirement.
(Ord. No. 68-34, 5-21-68; Ord. No. 90-20, § 2, 2-20-90; Ord. No. 94-12, § 1, 3-1-94; Ord. No. 98-49, § 2, 11-3-98; Ord. No. 99-20, § 4, 4-13-99; Ord. No. 2006-84, § 1, 12-19-06)

Sec. 1.250. Deferred Retirement.

(1) Should a member with ten (10) or more years of credited service cease to be a member, except by death or retirement, before attaining

minimum service retirement age as defined in Section 1.233 and before being eligible for an early allowance as provided in Section 1.249, or being eligible, elects against receiving an early allowance, such member shall be entitled to the deferred allowance provided for in this Section; provided, that the member does not withdraw his or her accumulated contributions from the members deposit fund. Such deferred allowance shall commence as of the first day of the calendar month next following the later of the date of the members' attainment of age fifty (50) or the date written application therefor is received by the Board. The member shall have the right to elect an option provided for in Section 1.247 at the time of filing such written application. In the event of a member's death, Section 1.250(3) applies.

For purposes of determining whether a member has ten (10) years of service for purposes of determining eligibility for benefits under this plan, prior or subsequent periods of service while a member of the General Pension System of the employer shall be considered. Such service shall not be considered for purposes of determining the amount of pension benefits hereunder.

Members vested with ten (10) or more years of service who cease to be a member by virtue of accepting the Officers' Option Plan provided for in Section 1.283 of Chapter 7, Title I of the Code of the City of Grand Rapids, or elect the deferred option of this Section, are entitled to the provisions outlined above based only upon the life allowance of Section 1.246, and other conditions in effect at the time the member ceased being a member of the plan. Because the Officers' Option Plan is entered into in lieu of any and all pension benefits under the Police and Fire Retirement System, the enhancement of any pension benefits after the member ceased being a member is prohibited.

(2) The former member's deferred allowance shall be a life allowance provided for in Section 1.246.

(3) A former member, or person designated by that member as beneficiary, otherwise entitled to a deferred allowance shall be entitled to a deferred allowance if written application therefor is received by the Board from the member or beneficiary as described below not earlier than ninety (90) days before the member did or would have attained such age nor later than three (3) years from and after the date of the attainment of such age. In the event such former member does not so live, has not designated a beneficiary, or in the event such written application is not received by the Board within the time limits specified, no benefits whatsoever shall be paid except under the provisions of Section 1.254. For purposes of this Section, the beneficiary must be on file in the pension records and designated by the member as the primary beneficiary. In such case, it will be presumed that Option B-100 was elected.
(Ord. No. 68-34, 5-21-68; Ord. No. 88-32, § 6, 5-17-88; Ord. No. 90-20, § 3, 2-20-90; Ord. No. 94-12, § 1, 3-1-94; Ord. No. 98-49, § 3, 11-3-98; Ord. No. 99-20, § 2, 4-13-99)

Sec. 1.250.1. 2004 Voluntary Retirement Incentive—Police Officer Members.

(1) On March 16, 2004, a Voluntary Retirement Incentive Plan (the "Plan") was adopted by the Grand Rapids City Commission (the "City") which provided that employees who are Police Officer members of the System, other than elected and appointed officials, and who, in addition to satisfying the requirements of Section 2(B) of such "Plan" also satisfy all of the following requirements, are eligible to receive the retirement incentive set forth in subsection (2) below:

(a) The Police Officer member must be at least fifty (50) years of age by his or her selected date of retirement and eligible for normal age and service retirement under Section 1.244 utilizing his or her years of credited service and the up to two (2) years of additional credited service granted to individuals who retire under this Section. For purposes of this subsection, "years of credited service" does not include any months of credited service purchased under Section 1.243(4) or Section 1.243(7).

(b) The employee must be employed and actively working for the City or on an approved leave of absence on March 16, 2004. For purposes of this subsection,

"actively employed" means that an employee is physically at work performing duties or is on an approved paid leave of absence (e.g. worker's compensation or FMLA leave) and does not include individuals who retired on or before March 16, 2004.

(c) The employee must sign and deliver the Retirement Election and Release Agreement to the City not later than 4:00 p.m. on April 30, 2004 and shall terminate employment with the City on or before June 30, 2004, with a retirement date the first day of the month following termination. Provided, however, any employee who, because of age, becomes eligible for this Plan after July 1, 2004 must indicate his or her election to retire under this Plan and must sign the Retirement Election and Release Agreement and deliver it to the City no later than 4:00 p.m. on April 30, 2004, such retirement to become effective the first day of the month after becoming eligible and prior to December 31, 2004. The minimum thirty (30) day notification required by Section 1.244 shall be waived if necessary to allow an employee to retire under this Section.

(2) Employees who retire after satisfying all of the requirements of subsection (1) above shall be entitled to a Life Allowance payable under Section 1.246, calculated using their credited service under Section 1.243 and the up to two (2) additional years of credited service provided hereunder, provided, however, that the provisions of Section 1.243(1) to the contrary not withstanding, no employee retiring under this Section shall be eligible to receive a Life Allowance payable under Section 1.246 that exceeds the allowance cap for that member's covered group at the time of retirement. Employees retiring under this Section shall have the right to elect an option provided for in Section 1.247.

(3) The retirement incentive of up to two (2) additional years of credited service as set forth in subsection (2) above shall not be provided to an eligible employee who, before his or her selected retirement date, quits, becomes eligible for disability retirement under the System, dies or otherwise is unwilling or unable to remain in the active employment of the City, or files for and receives unemployment compensation chargeable to the City's account. All costs associated with the retirement incentive provided for in subsection (2) above shall be funded in accordance with Section 1.263(1), (2), (3), (4) and (5).
(Ord. No. 2004-17, § 1, 4-20-04)

Sec. 1.250.2. Key Employee Incentive Program (KEIP).

(1) *Police officer members.* Effective November 1, 2016, any eligible employee of the City of Grand Rapids Police Department who is a member of the City of Grand Rapids Police and Fire Retirement System may voluntarily elect to participate in the City of Grand Rapids Police and Fire Retirement System Key Employee Incentive Program ("KEIP"). The terms and conditions of the KEIP shall be those provisions adopted by collective bargaining agreement which shall be incorporated into this ordinance by reference.

(2) *Firefighter members.* Effective November 1, 2016, any eligible employee of the City of Grand Rapids Fire Department who is a member of the City of Grand Rapids Police and Fire Retirement System may voluntarily elect to participate in the City of Grand Rapids Police and Fire Retirement System Key Employee Incentive Program ("KEIP"). The terms and conditions of the KEIP shall be those provisions adopted by collective bargaining agreement which shall be incorporated into this ordinance by reference.
(Ord. No. 2016-72, § 1, 11-1-16)

Sec. 1.251. Death of Member.

(1) If a member dies in employer service before retirement, the applicable benefits provided in (2), (3), (4) and (5) of this Section shall be paid, subject to (6) of this Section and to Section 1.253.

(2) His or her widow or widower shall receive an allowance computed in the same manner in all respects as if such member had (a) retired the day preceding the date of his or her death, not withstanding that he or she might not have

attained his or her minimum service retirement age or acquired ten (10) years of credited service, (b) elected Option B-100 provided for in Section 1.247 and (c) nominated such widow or widower as joint beneficiary; provided, in no case shall the allowance payable to the widow or widower be less than twenty (20) percent of such member's final average salary. If the Board finds that the member's death occurred in the course of his or her performance of duty as an employee, the allowance payable to the widow or widower shall not be less than the difference between seventy-two (72) percent of the member's final average salary (sixty (60) percent of final average salary if the member was hired after June 30, 1992; provided, however, that from and after July 1, 2004, such sixty (60) percent limitation shall only apply to Police Command or Firefighter members hired after June 30, 1992) and any amounts payable to dependent children under 1.251(3) below. The preceding sentence of this paragraph will also apply if, in the determination of the City Commission, death occurs as the direct result of the performance of public safety type activities while off duty.

(3) His or her dependent child or dependent children shall each receive an allowance of fifteen (15) percent of such member's final average salary; provided, while there are four (4) or more such dependent children, each dependent child shall receive an allowance of an equal share of fifty (50) percent of such member's final average salary. A child shall be a dependent child until his or her death or his or her marriage or his or her attainment of age eighteen (18), whichever occurs first; provided, the age eighteen (18) maximum shall be extended as long as the child continues uninterruptedly being a full-time student at an accredited secondary school or college or university, but in no event beyond his or her attainment of age twenty-three (23); provided further, the age eighteen (18) maximum shall be extended for any child who has been deemed physically or mentally incompetent by a Michigan court of competent jurisdiction (or by the Board), for as long as such incompetency exists. Upon a child ceasing to be a dependent child, his or her allowance shall terminate, and there shall be a redetermination of the amounts payable to any remaining dependent children under this subsection or to a surviving widow or widower under Section 1.251(2).

(4) If, at the time of such member's death, there is neither a widow or widower nor a dependent child, each dependent parent shall receive an allowance of fifteen (15) percent of such member's final average salary; provided, the Board finds that such parent was dependent for at least fifty (50) percent of his or her financial support upon such member.

(5) In the event all the allowances provided for in this Section, payable on account of the death of a member, terminate before there has been paid an aggregate amount equal to his or her accumulated contributions standing to his or her credit in the members' deposit fund at the time of his or her retirement, the difference between such accumulated contributions and such aggregate amount of allowance payments shall be paid to such person as he or she shall have nominated by written designation duly executed and filed with the Board. If there be no such designated person surviving at termination, such difference shall be paid to the member's estate.

(6) In the event a member has received benefits from the System and has not repaid in full all amounts payable by him or her to the System, the allowance amounts otherwise provided by this Section shall be withheld, and used to effect repayment, until the total of such withholdings repays in full all amounts payable by him or her to the System.
(Ord. No. 68-34, 5-21-68; Ord. No. 94-12, § 1, 3-1-94; Ord. No. 94-28, § 1, 7-12-94; Ord. No. 2004-60, § 6, 9-7-04)

Sec. 1.252. Disability Retirement.

(1) *Non-duty related disability retirement.* Any member in employer service with one (1) or more years of credited service who has not attained his or her minimum service retirement age and who becomes totally and permanently physically or mentally incapacitated for his or her duty as an employee, as the result of a personal injury or disease which the Board finds to have arisen other than in the course of his or her actual

performance of duty as an employee, may be retired by the Board upon written application filed with the Board by or on behalf of the member; provided, that after a medical examination of such member made by or under the direction of a Medical Committee consisting of three (3) physicians, one (1) of whom shall be selected by the Board, one (1) by or on behalf of such member, and the third by the first two (2) physicians so named, the said Medical Committee reports to the Board, by majority opinion in writing, that such member is physically or mentally totally incapacitated for the further performance of duty, that such incapacity will probably be permanent, and that such member should be retired.

(2) (a) *Non-duty related disability allowance:* Upon disability retirement as provided in (1) of this Section, a member shall receive an allowance provided for in Section 1.246, subject to the following minimum benefit provisions, and the vesting schedule provided in 1.252(2)(b):

Covered Group	*Credited Service at Retirement*	*Minimum Allowance*
Police Officers	Less than 20	48% of final average salary
	20 or more	60% of final average salary
Police Command Officers	Less than 20	Based on service projected to the earlier of (i) the date the member would have completed 20 years of service if employment had continued, or (ii) the date the member would have attained 50 years of age.
	20 or more	Based on service projected to the earlier of (i) the date the member would have completed 25 years of service if employment had continued or (ii) the date the member would have attained 50 years of age.
Firefighters	Less than 20	Based upon service projected to the earlier of (i) the date the member would have completed 20 years of service if employment had continued, or (ii) the date the member would have attained 55 years of age.
	20 or more	Based on service projected to the earlier of (i) the date the member would have completed 25 years of service if employment had continued or (ii) the date the member would have attained 55 years of age.

The member shall have the right to elect an option provided for in Section 1.247. His or her disability allowance shall be subject to the provisions of (5) of this Section and to the provisions of Section 1.253.

(b) *Non-duty related disability retirement vesting.* Notwithstanding any provision of this Article to the contrary, any allowance paid to a Fire member hired on or after July 1, 2016 or any Police member of the Police and Fire Retirement System under this Section shall be subject to the following vesting schedule:

*Years of Service**	*Percentage of Allowance Provided in Section 1.252(2)(a)*
Less than 1 year	No allowance
1—5	50% of allowance
6	60% of allowance
7	70% of allowance
8	80% of allowance
9	90% of allowance
10	100% of allowance

*For purposes of this Section, Years of Service shall be based upon employment anniversary date, and shall not be rounded upward.

(3) *Duty disability retirement:* Any member in employer service who becomes totally and permanently physically or mentally incapacitated for his or her duty as an employee, as the natural and proximate result of a personal injury or disease which the Board finds to have arisen out of and in the course of his or her actual performance of duty as an employee, may be retired by the Board upon written application filed with the Board by or on behalf of the member; provided, that after a medical examination of such member made by or under the direction of a Medical Committee consisting of three (3) physicians, one (1) of whom shall be selected by the Board, one (1) by or on behalf of such member, and the third by the first two (2) physicians so named, the said Medical Committee reports to the Board, by majority opinion in writing, that such member is physically or mentally totally incapacitated for the further performance of duty, that such incapacity will probably be permanent, and that such member should be retired.

(4) *Minimum allowance.* Upon disability retirement as provided in (3) of this Section, a member shall receive an allowance provided for in Section 1.246; provided, that for Firefighters retiring after January 29, 2002, police officers and sergeants retiring after January 8, 2002, and police command members retiring after August 6, 2002, in no event shall such allowance be less than seventy-two (72) percent of final average salary. Any member retiring under (3) of this Section shall have the right to elect an option provided for in Section 1.247. The disability retirement and allowance shall be subject to the provisions of (5) of this Section and to the provisions of Section 1.253.

(5) (a) *Medical examination.* At least once each year during the first five (5) years following a member's retirement on account of disability, and at least once in each three-year period thereafter, the Board may require any disability retirant who has not attained his or her minimum service retirement age to undergo a medical examination to be made by or under the direction of a physician designated by the Board. If such a retirant refuses to submit to such medical examination in any such period his or her disability allowance may be suspended by the Board until his or her withdrawal of such refusal. If such refusal continues for one (1) year all his or her rights in and to a disability allowance may be revoked by the Board. If, upon such medical examination of such retirant, such physician reports to the Board that the said retirant is physically and mentally able and capable of resuming his or her duty as an employee in the position held by him or her at the time of his or her disability retirement, then the Board shall arrange a further medical examination of such member made by or under the direction of a Medical Committee consisting of three (3) physicians, one (1) of whom shall be selected by the Board, one (1) by or on behalf of such member, and the third by the first two (2) physicians so named. Should the Medical Committee concur, by majority opinion in writing to the Board, in the finding that such disability retirant is capable of such resumption of duty, his or her disability retirement shall terminate and he or she shall be returned to duty. If the member fails to return to duty, his or her disability allowance may be suspended by the Board. If such refusal continues for one (1) year, all his or her rights to a disability allowance may be revoked by the Board.

(b) *Return to duty.* Upon a former disability retirant's return to duty as provided in this subsection, he or she shall immediately again become a member of the System, and his or her credited service at the time of his or her disability retirement shall be restored to his or her credit, and the amount of his or her accumulated contributions at the time of his or her disability retirement shall be restored to his or her credit in the members' deposit fund. If he or she was in receipt of a duty disability allowance provided for in (3) of this Section, he or

she shall also be given service credit for the period he or she was in receipt of such duty disability allowance.

(Ord. No. 68-34, 5-21-68; Ord. No. 74-57, 7-16-74; Ord. No. 90-20, § 4, 2-20-90; Ord. No. 94-12, § 1, 3-1-94; Ord. No. 2002-52, § 8, 9-10-02; Ord. No. 2016-56, § 1, 8-23-16; Ord. No. 2019-35, § 2, 8-13-19)

Sec. 1.253. Limit on Death Pension or Disability Pension.

If a death allowance is payable under the provisions of Section 1.251, or if a disability allowance is payable under the provisions of Section 1.252, then in no event shall the total amount of such System allowances exceed ninety (90) percent of the amount of his or her annual rate of compensation at time of death or disability, as the case may be, less the total of the following amounts:

(1) Workmen's compensation, if any, on account of such death or disability. Payment of workmen's compensation on account of a disability or death shall not prohibit payment of any System allowance on account of the same disability or death, but shall reduce the amount of such allowance. If the member receives a lump sum settlement with respect to a workmen's compensation claim, the amount of the settlement which is not allocated to medical benefits shall be converted to an equivalent monthly amount on an annuitized basis using the actuarial assumptions described in Section 1.233(3). The resulting monthly amount shall be deducted from the disability benefit described in Section 1.252;

(2) Remuneration, if any, received by such retirant for personal services rendered by him or her in any gainful employment as a law enforcement officer or in any rank or position of Firefighter. Retirants who are employed by law enforcement agencies or fire departments shall provide certification of employment status and a description of duties performed, at least annually, in writing, to the Executive Director. The certification must be signed by the retirant's most senior ranking supervisor (i.e., Police Chief, Public Safety Chief, Fire Chief, etc.);

(3) Benefits, if any, from the Federal social security old age, survivors, and disability insurance program on account of such death or disability.

(Ord. No. 68-34, 5-21-68; Ord. No. 86-49, § 1, 8-26-86; Ord. No. 94-12, § 1, 3-1-94; Ord. No. 2004-60, § 7, 9-7-04)

Sec. 1.254. Refund of Member's Accumulated Contributions.

(1) In the event a member ceases to be a member other than by death before the date he or she becomes entitled to retire with an allowance payable by the System he or she shall be paid, upon his or her written application filed with the Board, his or her accumulated contributions standing to his or her credit in the members' deposit fund.

(2) In the event a member dies, and no allowance becomes or will become payable by the System on account of his or her death, his or her accumulated contributions standing to his or her credit in the members' deposit fund at the time of his or her death shall be paid to such person or persons as he or she shall have nominated by written designation duly executed and filed with the Board. If there be no such designated person or persons surviving such member, such accumulated contributions shall be paid to his or her surviving spouse, or to his or her estate if there is no surviving spouse.

(3) In the event a member's membership in the System terminates, and no allowance becomes or will become payable on his or her account, any accumulated contributions standing to his or her credit in the members' deposit fund unclaimed by such member or his or her legal representative within three (3) years from and after the date his or her membership terminated, shall be transferred to the income-expense fund. If thereafter proper application is made for such accumulated contributions, the Board shall pay them from the income-expense fund but without interest after the date payment was first due.

(4) Effective January 1, 1993, a distributee of a member's accumulated contributions may elect to have any portion of an eligible rollover distribution paid directly to an eligible retirement plan specified by the distributee in a direct rollover.

(5) Definitions relating to payments of member's accumulated contributions:

(a) *Eligible rollover distribution.* An eligible rollover distribution is any distribution of all or any portion of the balance to the credit of the distributee, except that an eligible rollover distribution does not include: any distribution that is one (1) of a series of substantially equal periodic payments (not less than annually) made for the life (or life expectancy) of the distributee or the joint lives (or joint life expectancies) of the distributee and the distributee's designated beneficiary, or for a specified period of ten (10) years or more; any distribution to the extent such distribution is required under section 401(a)(9) of the Code; and the portion of any distribution that is not includable in gross income.

(b) *Eligible retirement plan.* An eligible retirement plan is an individual retirement account described in Code Section 408(a), an individual retirement annuity described in Code Section 408(b), an annuity plan described in Code Section 403(a), a qualified trust described in Code Section 401(a), or a deferred compensation plan described in Code Section 457, that accepts the distributee's eligible rollover distribution. Effective January 1, 2002, in the case of an eligible rollover distribution to the surviving spouse, an eligible retirement plan is defined in the preceding sentence.

(c) *Distributee.* A distributee includes a member or former member. In addition, the member's or former member's surviving spouse and the member's or former member's spouse or former spouse who is the alternate payee under an eligible domestic relations order, as defined in Code Section 414(p) and MCL Section 38.1701, et seq., are distributees with regard to the interest of the spouse or former spouse. A distributee shall also include a designated beneficiary (other than a surviving spouse) of a deceased member.

(d) *Direct rollover.* A direct rollover is a payment by the System to the eligible retirement plan specified by the distributee.

(6) Rules relating to payments of member's accumulated contributions:

(a) *Notice Requirement.* No less than thirty (30) days and no more than ninety (90) days before a distribution (or as otherwise permitted or required by the Code or regulations promulgated thereunder), the Board shall provide the distributee with a written explanation of:

(i) The rules under which the distribution may be paid in a direct rollover to an eligible retirement plan;

(ii) The rules that require income tax withholding if the distribution is not paid in a direct rollover;

(iii) The rules under which the distributee may rollover the distribution within sixty (60) days of receipt; and

(iv) Any other applicable tax rules.

However, if the distributee affirmatively elects to make or not make a direct rollover, and the distribution is either less than five thousand ($5,000.00) or is paid after the distributee attains age sixty-five (65), an immediate distribution shall not be deemed a violation of the thirty-day notice requirement.

(b) *Limitations on Direct Rollovers.* However, the distributee's right to elect a direct rollover is subject to the following:

(i) A distributee may elect a direct rollover of a portion of the distribution and elect to receive the remaining amount;

(ii) A distributee may not elect direct rollover to more than one eligible retirement plan; and

(iii) The distributee shall supply the Board with any information the Board reasonably requests in connection with the direct rollover.

(c) *Income Tax Withholding.* Mandatory income tax withholding shall apply to the portion of the eligible rollover distribution for which the distributee does not elect direct rollover.

(Ord. No. 68-34, 5-21-68; Ord. No. 94-12, § 1, 3-1-94; Ord. No. 2002-49, § 3, 8-20-02; Ord. No. 2009-18, § 1, 4-14-09)

Editor's note—It should be noted that the provisions of Ord. No. 2009-18, adopted April 14, 2009, 2002, provides for an effective date of April 27, 2009.

Sec. 1.255. Assignments Prohibited.

(1) The right of a person to an allowance, to the return of accumulated contributions, the allowance itself, any allowance option, and any other right accrued or accruing under the provisions of this Article, and all moneys belonging to the System shall not be subject to execution, garnishment, attachment, the operation of bankruptcy or insolvency laws, or any other process of law whatsoever, and shall be unassignable, except as is specifically provided in this Article; provided, that should a member be covered by a group insurance or prepayment plan participated in by the employer, and should he or she be permitted to, and elect to, continue such coverage as a retirant, the Board shall deduct from his or her allowance the payments required of him or her to continue coverage under such group insurance or prepayment plan, and to have deducted dues or membership fees, authorized to be paid to an association of retired municipal or public employees; provided, further, that the employer shall have the right of set-off for any claim arising from embezzlement by or fraud of a member, retirant or beneficiary. Effective June 27, 1991 this provision will not apply to any "eligible domestic relations order" as described in paragraph (2), below.

(2) A domestic relations order is not an "eligible domestic relations order" unless it meets the requirements of Code Section 414(p)(1)(A)(i) and MCLA 38.1701, et seq. Such order may award an alternate payee a share of the member's benefit. The order may provide that benefits are payable in any form permitted under the Plan and permitted by MCL 38.1704; provided, however, that the alternate payee may not elect a joint and survivor form of payment contingent on the life of any person except the member. If the alternate payee elects to have benefits commence at any time prior to the member's minimum service retirement date or in a form other than monthly payments for the life of the member, the benefit payable shall be actuarially adjusted (based on the actuarial assumptions established pursuant to Section 1.233(3) to reflect payment at a different time and for a different form. The Plan shall allocate to an alternate payee a prorata share of the member's accumulated contributions as of the date of the award of accrued benefits. Such amount shall be segregated for the benefit of the alternate payee and credited with regular interest thereafter. Said amount may be paid to alternate payee pursuant to Section 1.254 as if the alternate payee were the member, if appropriate.

(3) Whenever the employer is served with a domestic relations order from a court of competent jurisdiction, the employer will follow the following procedure in determining whether the order constitutes an "eligible domestic relations order" that would be exempt from the general spendthrift protection of this Article:

(a) The employer will notify the member and any "alternate payees" named in the order that the order was served on the employer and that objections concerning the order must be submitted in writing within 15 days;

(b) The employer will determine whether the order is an "eligible domestic relations order" as defined in this Section and notify the member and each alternate payee of its determination. If the employer determines that the order is an eligible domestic relations order, the employer will direct the custodian to make pay-

ment in accordance with the order except that payment will not be made until the member has attained the age and service requirements for early retirement benefits under Section 1.249;

(c) During the period in which the employer is determining the status of the order, payment of any benefits in dispute will be deferred and the amount of the disputed payments will be segregated in a separate account in the System. If the order is determined to be an eligible domestic relations order within eighteen (18) months after segregation of the benefits in dispute, the employer will direct the custodian to pay the segregated amount, plus investment credits, to the persons entitled to receive them in accordance with the order;

(d) If the employer determines that the order is not an eligible domestic relations order, or if the eighteen-month period described in (c) has expired and the qualification issue has not been resolved, the employer will direct the custodian to pay the segregated funds to the person or persons who would have received them if the order had not been served on the employer. If the employer determines that the order is an eligible domestic relations order after expiration of the eighteen-month period, the order will be applied prospectively only;

(e) If the order is determined not to be an eligible domestic relations order, any amounts segregated pursuant to this procedure will be restored to the account of the member or distributed to the member if eligible for distribution; and

(f) The employer will notify the member and all other alternate payees named in the order of its decision concerning the eligible status of the order. Payments pursuant to the order will be made as soon as practicable after the status of the order has been determined or as soon as the amounts become payable pursuant to this System.

(4) Benefits payable pursuant to an eligible domestic relations order will be made in accordance with the order and upon proper application by the alternate payee. Payment to the alternate payee may begin anytime on or after the member's earliest retirement date regardless of whether the member actually terminates employment at that time. If the payments begin before the member's termination of employment, the alternate payee shall only be entitled to a benefit which is the actuarial equivalent of the alternate payee's share of the member's benefit that would be payable when the member reaches age sixty (60). If the member retires before age sixty (60), the Plan shall recalculate the benefit payable to the alternate payee so that the recalculated benefit payable to the alternate payee plus the benefits previously paid to the alternate payee are the actuarial equivalent of the alternate payee's share of the benefit payable to the member. If the recalculated benefit is more than the benefit the alternate payee is receiving, the System shall begin paying the recalculated benefit to the alternate payee effective the first day of the month immediately following the month in which the member retires. (Ord. No. 68-34, 5-21-68; Ord. No. 78-29A, 4-25-78; Ord. No. 94-12, § 1, 3-1-94; Ord. No. 2010-47, § 2, 8-24-10)

Sec. 1.256. Benefit Program Before 1967.

Any member terminating employment before November 1, 1967, shall receive, or shall have paid on his or her behalf, benefits in accordance with the benefit program in effect at time of such termination. For a member who retired between January 1, 1965, and November 1, 1967 this means that:

(1) Any supplemental benefit payable to him or her shall be payable to him or her for life but, if and when a primary benefit is payable to him or her, after attaining age sixty-five (65), under the provisions of the Federal social security old age, survivors, and disability insurance program (as amended and as it may be amended from time to time), resulting from any gainful employment by him or her, reduced by the amount of such

primary benefit payable; for the purpose of computations hereunder "primary benefit payable" shall be the primary benefit unreduced for age or on account of earned income; and

(2) Any supplemental benefit payable to his or her widow or widower and/or children upon his or her death shall be payable to his or her widow or widower for life and/or to his or her children to attainment of age eighteen (18) but, if and when a widow's or widower's benefit and/or children's benefits are payable under the provisions of the Federal social security old age, survivors, and disability insurance program (as amended and as it may be amended from time to time), resulting from any gainful employment by him or her, reduced by the amount of any such widow's or widower's and/or children's benefits payable.

(Ord. No. 68-34, 5-21-68)

Sec. 1.257. Accounting Funds of the System.

All the assets of the System shall be held in four (4) funds, namely, the members' deposit fund, the employer accumulation fund, the benefit reserve fund, and the income-expense fund.

Effective November 1, 1967, (i) each member's "refund value," as defined by provisions in force immediately before the November 1, 1967, amendment, shall be credited to his or her individual account in the members' deposit fund, and (ii) all assets of the System not so credited to the members' deposit fund shall be credited to the benefit reserve fund.

(Ord. No. 68-34, 5-21-68; Ord. No. 2006-84, § 2, 12-19-06)

Sec. 1.258. Members' Deposit Fund; Member Contributions Rate.

(1) *Members' Deposit Fund Established.* The members' deposit fund is hereby created. It shall be the fund in which shall be accumulated the contributions made by members to the System for annuities, and from which shall be made transfers and refunds of members' contributions as provided in this Article.

(2) *Contributions; Consent to Deduction.* The contributions of a member shall be the applicable rate of compensation as defined in this Section. Each member shall be deemed to consent and agree to the deductions made and provided for herein.

(3) *Payment of Contributions to the System.* The officer or officers responsible for making up the payrolls for the employer shall cause the contributions provided for in this Section to be deducted from the compensation of each member for each and every payroll period following the date the member has completed six (6) months of credited service, and shall continue until such time as the member has attained the number of years of credited service which, when multiplied by the applicable benefit multiplier as set forth in Section 1.246, equals the allowance cap as set forth in that Section. When deducted, each of said amounts shall be paid by the employer to the System; said payments to be made in such manner and form, and in such frequency, and shall be accompanied by such supporting data, as the Board shall from time to time prescribe. When paid to the System, each of said amounts shall be credited to the members' deposit fund account of the member from whose compensation said contributions were deducted.

(4) *Contribution Rates.*

(a) *Firefighter Members.* Member contribution rates for Firefighters hired prior to January 10, 2012 shall be payable in accordance with the following table. Determination of the rate to be paid shall be based upon the prior December 31 valuation date, and any change in member contribution rates shall be for the next ensuing employer fiscal year following the determination.

System Funding Represented As a Percentage of Valuation Assets to Actuarial Accrued Liabilities	*January 1, 2009—December 31, 2009*	*January 1, 2010—June 30, 2012*	*July 1, 2012—December 31, 2012*	*January 1, 2013—June 30, 2013*	*From and after July 1, 2013*
Below 100%	3.20%	4.20%	5.70%	6.70%	10.70%
100%—104.999%	3.20%	4.20%	5.70%	6.70%	9.70%
105%—109.999%	3.20%	4.20%	5.70%	6.70%	8.70%
110%—114.999%	3.20%	4.20%	5.70%	6.70%	7.70%
115+%	3.20%	4.20%	5.70%	6.70%	6.70%

Member contribution rates for Firefighters hired on or after January 10, 2012 shall be payable in accordance with the following table. Determination of the rate to be paid shall be based upon the prior December 31 valuation date, and any change in member contribution rates shall be for the next ensuing employer fiscal year following the determination.

System Funding Represented As a Percentage of Valuation Assets to Actuarial Accrued Liabilities	*Prior to October 16, 2022*	*From and after October 16, 2022*
Below 100%	10.70%	7.70%
100%—104.999%	9.70%	6.70%
105%—109.999%	8.70%	5.70%
110%—114.999%	7.70%	4.70%
115+%	6.70%	4.70%

(b) *Police Officers and Sergeants.* Member contribution rates for Police Officers and Sergeants shall be payable in accordance with the following table. Determination of the rate to be paid shall be based upon the prior December 31 valuation date, and any change in member contribution rates shall be for the next ensuing employer fiscal year following the determination.

System Funding Represented As a Percentage of Valuation Assets to Actuarial Accrued Liabilities	*January 1, 2009—June 30, 2011*	*July 1, 2011—January 7, 2012*	*January 8, 2012—June 30, 2013*	*From and after June 30, 2013*
Below 100%	8.00%	8.66%	9.86%	9.86%
100%—104.999%	7.00%	7.66%	8.86%	8.86%
105%—109.999%	6.00%	6.66%	7.86%	7.86%
110%—114.999%	5.00%	5.66%	6.86%	6.86%
115%—119.999%	4.00%	4.66%	5.86%	5.86%
120%—124.999%	4.00%	4.66%	5.86%	5.20%
125%—129.999%	4.00%	4.66%	5.86%	4.54%
130%—134.999%	4.00%	4.66%	5.86%	3.88%
135%+	4.00%	4.66%	5.86%	3.22%

During the period of July 1, 2009 through June 30, 2011 the member contribution rate for Police Officers and Sergeants shall be 4.00%, regardless of the annual actuarial valuation results. During the period of July 1, 2011 through January 7, 2012 the member contribution rate for Police Officers & Sergeants shall be 4.66%, regardless of the annual actuarial valuation results. During the period of January 8, 2012 through June 30, 2013 the member contribution rate for Police Officers & Sergeants shall be 5.86%, regardless of the annual actuarial valuation results.

After June 30, 2013, should the System funding level, as determined by the System actuary, be 120% or greater, the member contribution rate for Police Officers & Sergeants shall be 5.86% for one full fiscal year following such determination. Effective the subsequent fiscal year (i.e., after a delay of one [1] fiscal year from the time the funding level is determined to be 120% or

above and the member contribution rate for Police Officers & Sergeants has been 5.86% for that one [1] year period) and each fiscal year thereafter the member contribution percentage for Police Officers & Sergeants shall be determined based on the prior December 31 valuation date and effective for the next ensuing employer fiscal year.

Member contribution rates for Police Officers and Sergeants hired on or after December 20, 2011 shall be payable in accordance with the following table. Determination of the rate to be paid shall be based upon the prior December 31 valuation date, and any change in member contribution rates shall be for the next ensuing employer fiscal year following the determination.

System Funding Represented As a Percentage of Valuation Assets to Actuarial Accrued Liabilities	*Prior to November 27, 2022*	*From and after November 27, 2022*
Below 100%	9.86%	6.86%
100%—104.999%	8.86%	5.86%
105%—109.999%	7.86%	4.86%
110%—114.999%	6.86%	3.86%
115%—119.999%	5.86%	2.86%
120%—124.999%	5.20%	2.20%
125%—129.999%	4.54%	1.54%
130%—134.999%	3.88%	0.88%
135%+	3.22%	0.22%

(c) *Police Command Members.* Member contribution rates for Police Command members shall be payable in accordance with the following table. Determination of the rate to be paid shall be based upon the prior December 31 valuation date, and any change in member contribution rates shall be for the next ensuing employer fiscal year following the determination.

System Funding Represented As a Percentage of Valuation Assets to Actuarial Accrued Liabilities	*January 1, 2009—June 29, 2010*	*June 30, 2010—January 7, 2012*	*January 8, 2012—June 30, 2013*	*From and After July 1, 2013*
Below 100%	8.86%	9.69%	10.89%	10.89%
100%—104.999%	7.86%	8.69%	9.89%	9.89%
105%—109.999%	6.86%	7.69%	8.89%	8.89%
110%—114.999%	5.86%	6.69%	7.89%	7.89%
115%—119.999%	4.86%	5.69%	6.89%	6.89%
120%—124.999%	4.86%	5.69%	6.89%	6.06%
125%—129.999%	4.86%	5.69%	6.89%	5.23%
130%—134.999%	4.86%	5.69%	6.89%	4.40%
135%+	4.86%	5.69%	6.89%	3.57%

During the period of July 1, 2009 through June 30, 2010 the member contribution rate for Police Command members shall be 4.86%, regardless of the annual actuarial valuation results. During the period of July 1, 2010 through January 7, 2012 the member contribution rate for Police Command members shall be 5.69%, regardless of the annual actuarial valuation results. During the period of January 8, 2012 through June 30, 2013 the member contribution rate for Police Command members shall be 6.89%, regardless of the annual actuarial valuation results.

(d) *Non-Represented Members.* Effective January 1, 2013 the contribution rate for the Fire Chief, Police Chief or Deputy Police Chief shall be 10.20%, and shall thereafter reflect the highest rate contributed by non-represented members of the General Retirement System, as set forth in Section 1.216(2) of this Code. Effective October 6, 2016 the contribution rate for Deputy Fire

Chief shall be 10.20%, and shall thereafter reflect the highest rate contributed by non-represented members of the General Retirement System, as set forth in Section 1.216(2) of this Code.

(5) Upon the retirement of a member, or upon his or her death if an allowance becomes payable on account of his or her death, his or her accumulated contributions shall be transferred to the benefit reserve fund.

(6) The employer shall pick up the member contributions required by this Section for all compensation earned after January 1, 1990. The contributions so picked up shall be treated as employer contributions in determining tax treatment under the United States Internal Revenue Code. The employer shall pick up the member contributions from funds established and available in the salaries account, which funds would otherwise have been designated as member contributions and paid to the Retirement System. Member contributions picked up by the employer pursuant to this subsection shall be treated for all other purposes of this and other laws of the employer in the same manner and to the same extent as member contributions made prior to January 1, 1990. The member does not have the option of receiving the picked-up member contributions in cash instead of having it paid into the Retirement System.

(7) Repealed.

(Ord. No. 68-34, 5-21-68; Ord. No. 74-57, 7-16-74; Ord. No. 84-94, § 1, 12-18-84; Ord. No. 88-32, §§ 7, 8, 5-17-88; Ord. No. 90-20, §§ 5, 6, 2-20-90; Ord. No. 94-12, § 1, 3-1-94; Ord. No. 95-64, § 6, 11-7-95; Ord. No. 96-6, § 1, 2-13-96; Ord. No. 2002-52, §§ 9—11, 9-10-02; Ord. No. 2004-60, §§ 8, 9, 9-7-04; Ord. No. 2006-84, § 3, 12-19-06; Ord. No. 2009-31, § 3, 5-26-09; Ord. No. 2009-68, §§ 5, 6, 12-15-09; Ord. No. 2010-49, § 5, 8-24-10; Ord. No. 2011-63, §§ 2, 3, 12-20-11; Ord. No. 2013-39, §§ 9—11, 8-27-13; Ord. No. 2019-31, § 8, 7-23-19; Ord. No. 2023-03, § 2, 1-24-23)

Sec. 1.259. Employer Accumulation Fund.

(1) The employer accumulation fund is hereby created. It shall be the fund in which shall be accumulated the contributions made by the employer for pensions, and from which shall be made transfers, as provided in this Article.

(2) When paid to the System, the employer contributions provided for in (2) and (3) of Section 1.263 shall be credited to the employer accumulation fund account.

(3) When an allowance first becomes due and payable there shall be transferred to the benefit reserve fund from the employer accumulation fund the difference between the reserve for such allowance and the accumulated contributions standing to his or her credit in the members' deposit fund at the time the allowance first becomes due and payable, of the member to whom or former member on whose behalf the allowance is payable.

(Ord. No. 68-34, 5-21-68; Ord. No. 2006-84, §§ 4, 5, 12-19-06)

Sec. 1.260. Benefit Reserve Fund.

The benefit reserve fund is hereby created. It shall be the fund into which shall be made transfers as provided in this Article and from which allowances shall be paid to retirants and beneficiaries.

(Ord. No. 68-34, 5-21-68; Ord. No. 2006-84, § 6, 12-19-06)

Sec. 1.261. Reserved.

Editor's note—Ord. No. 2006-84, § 7, adopted Dec. 19, 2006, repealed § 1.261 in its entirety. Formerly, said section pertained to the Casualty Reserve Fund as enacted by Ord. No. 68-34, adopted May 21, 1968.

Sec. 1.262. Income-Expense Fund.

(1) The income-expense fund is hereby created. It shall be the fund to which shall be credited all investment income from invested assets of the System, and in which shall be accumulated the contributions made by the employer for the administrative expenses of the System, and from which shall be made annual transfers of interest credits to the other funds of the System, and from which shall be paid all the expenses of the Board necessary for the administration and operation of the System.

(2) When paid to the System, the employer contributions provided for in (5) of Section 1.263 shall be credited to the income-expense fund.

(3) The Board may accept gifts and bequests and they shall be credited to the income-expense fund, along with all other moneys received by the System the disposition of which is not specifically provided for in this Article.

(4) At the end of each System fiscal year the Board shall credit each member's individual account in the members' deposit fund with regular interest on the largest balance remaining in such account for the entire fiscal year. For the period from July 1, 2003 through December 31, 2003, the Board shall credit each member's individual account with one-half (½) of the regular interest on the largest balance remaining in such account for that entire time period.

At the end of each System fiscal year, the Board shall credit to the employer accumulation fund assumed interest on the mean balance in such fund for the fiscal year, and similarly shall credit assumed interest to the benefit reserve fund. For the period from July 1, 2003 through December 31, 2003, the Board shall credit such funds at the rate of one-half (½) of the assumed rate of interest. All such interest credits shall be transferred from the income-expense fund.

(5) Whenever the Board determines that the balance in the income-expense fund is more than sufficient to cover the current charges to the fund, the Board may by resolution provide for contingency reserves, or for the transfer of such excess or portions thereof to cover the needs of the other funds of the Retirement System.
(Ord. No. 68-34, 5-21-68; Ord. No. 2004-60, § 10, 9-7-04; Ord. No. 2006-84, § 8, 12-19-06)

Sec. 1.263. Employer Contributions.

(1) The financial objective of the Retirement System shall be to receive contributions each fiscal year which are sufficient to (i) fund the actuarial cost of benefits likely to be paid on account of service earned by members during the fiscal year (the current service contribution), and (ii) amortize the unfunded actuarial cost of benefits likely to be paid on account of service earned by members prior to the fiscal year, if any, over a period of years as established by the City. The rate calculated by the actuary shall be paid during the fiscal year beginning eighteen (18) months after the valuation date. Beginning January 1, 2013 the City's contribution rate shall in no event be lower than 3.0%.

(2) If valuation assets exceed actuarial accrued liabilities, the difference shall be the full funding credit. The contributions determined under Section 1.263(1) shall be reduced by an amount which will amortize the full funding credit, if any, over a period of years as established by the City.

(3) Notwithstanding the offset to current service contributions under Section 1.263(2) the City shall make a contribution in the amount determined in this paragraph. In the event the System has greater valuation assets than actuarial accrued liabilities, the City will pay its current service contribution during its fiscal year beginning eighteen (18) months after the valuation date, reduced by ten (10) percent for each one (1) percent, or portion thereof, that valuation assets exceed the actuarial accrued liabilities.

(4) Contribution requirements under Sections 1.263(1), (2) and (3) shall be determined by annual actuarial valuations using a generally recognized level percent of payroll actuarial cost method.

(5) The Board shall certify to the City Commission the amount of annual contribution needed to meet the financial objective and the City Commission shall appropriate and cause the contribution to be paid to the Retirement System.
(Ord. No. 68-34, 5-21-68; Ord. No. 74-57, 7-16-74; Ord. No. 83-79, § 1, 12-20-83; Ord. No. 84-94, § 2, 12-18-84; Ord. No. 94-12, § 1, 3-1-94; Ord. No. 98-49, § 4, 11-3-98; Ord. No. 99-20, § 4, 4-13-99; Ord. No. 2004-60, § 11, 9-7-04; Ord. No. 2013-39, § 12, 8-27-13; Ord. No. 2019-24, § 1, 6-11-19)

Sec. 1.264. Social Security Provision.

Should police officers or Firefighters of the employer, or both groups, become covered by the Federal social security old age, survivors, and

disability insurance program, the benefit program then in effect shall be amended so that the total of the employer contributions to support the benefit program so amended and the employer contributions to such Federal program will not be more than the employer contributions to support the benefit program in effect immediately before such Federal social security coverage.
(Ord. No. 68-34, 5-21-68)

Sec. 1.265. Investment of Assets.

The Board shall be the Trustees of the funds of the System. The Board shall have full power to invest and reinvest the moneys of the System, and to hold, purchase, sell, assign, transfer or dispose of any of the securities and investments in which such moneys shall have been invested, as well as the proceeds of such investments and such moneys; provided, that such investment and reinvestment shall be subject to Act No. 314 of the Public Acts of 1965, as amended and as the same may from time to time be amended.
(Ord. No. 68-34, 5-21-68)

Sec. 1.266. No Trustee Shall Gain from Investments.

Except as to the rights of a member or retirant or beneficiary, no Trustee and no officer or employee of the Board shall have any interest direct or indirect in the gains or profits of any investment made by the Board. Nor shall any of them directly or indirectly for himself or herself or as

an agent in any manner engage in any sale, exchange or leasing of property with the System, the lending of money or extension of credit to or from the System, the furnishing of goods, services or facilities to or from the System, the transfer to or from or use by or for his or her benefit of the income or assets of the System or receive any consideration for his or her own personal account in connection with a transaction involving the income or assets of the System.
(Ord. No. 68-34, 5-21-68; Ord. No. 94-12, § 1, 3-1-94)

Sec. 1.267. Limitation of Use of Assets.

(1) All assets of the System shall be held for the sole purpose of paying benefits and making disbursements in accordance with the provisions of this Article and shall be used for no other purpose whatsoever.

(2) The Board shall not cause the System to (1) lend any part of its income or corpus to the City without the receipt of adequate security and a reasonable rate of interest, (2) pay any compensation to the City, in excess of a reasonable allowance for salaries or other compensation for personal services actually rendered, to the City, (3) make any part of its services available on a preferential basis to the City, (4) make any substantial purchase of securities or any other property for more than adequate consideration in money or money's worth from the City, (5) sell any substantial part of its securities or other property to the City for less than adequate consideration in money or money's worth or (6) engage in any other transaction with the City which results in a substantial diversion of its income or corpus to the City. Nothing in this Section shall require the Board to loan assets of the System to the City or to engage in any other transaction referred to in this Section.
(Ord. No. 68-34, 5-21-68; Ord. No. 94-12, § 1, 3-1-94)

Sec. 1.268. Distribution of Assets if System is Terminated.

(1) The employer hopes and expects to continue the System indefinitely but necessarily reserves the right to amend, modify, suspend or terminate the System in a manner compatible with any applicable collective bargaining agreement.

No such action shall operate to recapture for the employer any contributions previously made under the System prior to the satisfaction of all liabilities for System benefits to members, nor, except to the extent necessary to meet the requirements of any governmental authority, to affect adversely the benefits of retirants and beneficiaries or the trust fund or insured fund then securing such benefits.

(2) If the System is terminated, the amount of the trust fund and/or insured fund then held by the System shall be allocated, subject to provisions for expenses of administration or liquidation, in the following manner for the exclusive benefit of the then retired and nonretired members (and their beneficiaries) having an interest in this System. Such assets shall be allocated to such persons in the following order of precedence:

(a) To provide for the payment of each nonretired member of an amount equal to his or her accumulated contributions; and

(b) If any assets remain after complete allocations for the purposes of (a) above, to provide for the continuance of allowances to retirants and beneficiaries, if any;

(c) If any assets remain after complete allocations for the purposes of (a) and (b) above, they shall be allocated toward the potential rights of nonretired members on an equitable and nondiscriminatory basis according to accepted actuarial principles;

(d) If any assets remain after satisfaction of all liabilities provided for in (a) and (b) and (c) above, any excess shall be delivered over and paid to the employer according to determinations made by the actuary.

The above allocations to System participants shall be distributed by the System in annuities or in such other manner as may be determined by the Board. Payment of all other assets shall be made as determined by the City Commission.
(Ord. No. 68-34, 5-21-68; Ord. No. 94-12, § 1, 3-1-94)

Sec. 1.269. Correction of Errors.

Should any change or error in records result in any person receiving from the System more or less than he or she would have been entitled to receive had the records been correct, the Board shall correct such error, and as far as is practicable shall adjust the payment of the benefit in such manner that the actuarial equivalent of the benefit to which such person was correctly entitled shall be paid.
(Ord. No. 68-34, 5-21-68; Ord. No. 94-12, § 1, 3-1-94)

Sec. 1.270. Fraud Penalty.

Any person who shall knowingly make any false statement or shall falsify or permit to be falsified any record or records in any attempt to defraud the System shall be guilty of a misdemeanor and upon conviction thereof shall be punished accordingly.
(Ord. No. 68-34, 5-21-68)

Sec. 1.271. Section 415 Limits.

(1) Effective July 1, 2001, the maximum annual City funded benefit payable to any member under the System will not exceed the lesser of the following:

(a) $160,000 or, in plan years beginning after 2001, the maximum amount allowable under the adjustment provisions of IRC Section 415 effective July 1 of each year, or

(b) 100% of the member's average compensation for the highest paid three (3) consecutive calendar years during which he was a member.

The limitation of part (b) above, shall not apply in years beginning on or after January 1, 1995.

For purposes of this Section, "compensation" means remuneration actually paid or made available to an Employee within the Limitation Year, as defined in Section 1.233(11) in accordance with Regulation 1.415(c)-2(a).

If the member has less than ten (10) years of participation in the System at the time of termination of employment, the maximum dollar limitation of (1)(a), above, will be reduced by ten percent (10%) for each year of participation less than ten (10) (but the reduced amount will not be less than ten percent (10%) of such limitation). Notwithstanding the foregoing, the maximum benefit will not be reduced below the accrued benefit for the member as of the last day of the plan year beginning in 1986.

The one hundred sixty thousand dollar ($160,000.00) limit will be reduced if benefit payments commence before age 62. The one hundred sixty thousand dollar ($160,000.00) limit will be increased if benefit payments commence after age 65. The reductions or increases in the one hundred sixty thousand dollar ($160,000.00) limit will be calculated so that the benefit payable at retirement will be the actuarial equivalent of the benefit payable at age 62 or 65, respectively. The actuarial adjustments will be based on the requirements of IRC Section 415, the actuarial table specified in Section 1.233(3) of this System, and interest at the rate specified for determining actuarial equivalence in Section 1.233(3). The reduction under this paragraph shall not reduce the dollar limitation of (1)(a), above, to an amount less than fifty thousand dollars ($50,000.00) for qualified Police Officers and Firefighters. A qualified police officer or firefighter is a member who has earned fifteen (15) or more years of credited service while serving the employer on a full-time basis in the capacity of a Firefighter, Police Officer or Emergency Medical Service employee or as a member of the Armed Forces of the United States. The fifty thousand dollar ($50,000.00) amount shall be adjusted under the provisions of IRC Section 415(d) effective July 1 of each year. The benefit reductions described in this paragraph will not apply to qualified police officers or firefighters in years beginning after December 31, 1996. Effective for years beginning after December 31, 1994, the benefit reductions described in this paragraph and the preceding paragraph shall not apply to payments to a member in the form of a pension, annuity or similar allowance as a result of the member becoming disabled by reason of personal injuries or sickness, or to amounts received from this plan by the beneficiaries, survivors, or estate of a member as a result of the death of the member.

If a member's benefit is paid in a form other than a life allowance for the member only, the optional benefit will be adjusted to the actuarially equivalent life allowance for the member only for the purpose of determining whether the City funded benefit exceeds the limitations set forth above. However, no adjustment is required for a benefit payable as a joint and survivor annuity satisfying the requirements of a qualified joint and survivor annuity as described in IRC Section 417(b) to the extent that the value of such annuity exceeds the value of a straight life annuity beginning on the same date. If the optional form of payment elected is a joint and survivor annuity (as described in IRC Section 417(b)), the member's City funded benefit will be reduced to reflect the payment in this optional form before the limitations of IRC Section 415 are applied. This paragraph shall apply to benefits commencing on or after January 1, 1996.

(2) For Plan years beginning before July 1, 2000, if any member in this System is also participating in a defined contribution plan maintained by the employer, the maximum annual benefit for the member under this System will be reduced for any plan year so that the sum of the "defined contribution fraction" and the "defined benefit fraction" for the member for the plan year does not exceed 1.0. For these purposes, the member contributions will be annual additions used in determining the defined contribution fraction. These terms are defined as follows:

(a) The defined contribution fraction for any plan year means a fraction:

(1) The numerator of which is the sum as of the end of the plan year of the total additions for the member for each year of the member's participation in the defined contribution plan; and

(2) The denominator of which is the sum of the lesser of the following amounts for the year and each prior year of the member's employment with the employer, without regard to whether the System was in existence during the prior years: (i) 1.25 multiplied by thirty thousand dollars ($30,000.00) or the dollar limitation on additions in effect under Code Section 415(d) for each such year; or (ii) 1.40 multiplied by twenty-five (25) percent, or the percentage limitation on total additions under Code Section 415 for each such year, of the member's compensation for each such year.

(b) The defined benefit fraction for any plan year means a fraction:

(1) The numerator of which is the projected annual benefit of the member under this System, determined as of the end of the plan year; and

(2) The denominator of which is the lesser of the following: (i) 1.25 multiplied by ninety thousand dollars ($90,000.00) or the dollar limitation on benefits under Code Section 415 in effect for the plan year; or (ii) 1.40 multiplied by the member's average compensation during the three (3) consecutive calendar years in which the member was both an active member in the System and had the greatest compensation from the employer.

For purposes of this Section, all defined benefit plans maintained by the employer will be considered as a single defined benefit plan and all defined contribution plans maintained by the employer will be considered as a single defined contribution plan.

(3) Effective for years beginning after December 31, 1997, the special rules of Code Section 415(n) regarding the purchase of permissive service credits will apply to the return of prior payments under Section 1.243(3) and to the purchase of additional service under 1.243(4). Not more than five (5) years of non-qualified service (as defined in Code Section 415(n)(3)(C)) may be taken into account for purposes of this paragraph. For employees who become members of the plan

prior to July 1, 1999, the limitations of Code Section 415(c)(1) will not be applied to reduce the amount of permissive service credit which may be purchased to an amount less than the amount which was allowed to be purchased under the terms of the plan as in effect on August 5, 1997.

(4) This Section, as amended, will be effective July 1, 1989 unless a later effective date is specified.

(Ord. No. 90-20, § 7, 2-20-90; Ord. No. 94-12, § 1, 3-1-94; Ord. No. 98-49, § 5, 11-3-98; Ord. No. 99-20, § 3, 4-13-99; Ord. No. 2002-49, § 4, 8-20-02; Ord. No. 2013-39, § 13, 8-27-13)

Secs. 1.272—1.282. Reserved.

ARTICLE 3. OFFICER'S OPTION PLAN

Sec. 1.283. Officer's Option.

(a) At the individual option of a City Officer, as defined in Section 1.284(a), the City, in lieu of any and all benefits under the General Retirement System or the Police and Fire Retirement System, will contribute a percentage of the officer's annual compensation to a retirement program with the International City Management Association Retirement Corporation in the following amounts:

For City Officers hired before July 1, 2011:

Date of Payment	*Employer's Contribution*	*Employee's Contribution*	*Vesting Period*
Before January 1, 1990	10.85%		None
1/1/90 to 12/31/94	12%	6%	None
1/1/95 to 12/31/96	13%	6%	None
01/01/97 to 08/18/2004	14%	6%	None
08/19/04 to 9/27/10	15%	6%	None
After 09/28/10	12%	6-9%	None

Such contribution will be computed from the date of appointment as a qualified officer hereunder; provided, however, that if such officer has been a member of the General Retirement System or the Police and Fire Retirement System, such contribution will be computed from the date of election to participate in this retirement program.

For City Officers hired on or after July 1, 2011:

Date of Payment	*Employer's Contribution*	*Employee's Contribution*	*Vesting Period*
After 07/01/11	6%	6%	None

(b) To elect a retirement program hereunder, such officer shall, within six (6) months of the date of his or her appointment to a position eligible for the election of the officer's option, submit to the City Commission his or her election, in writing, to accept benefits hereunder in lieu of benefits under the General Retirement System or the Police and Fire Retirement System. The City Commission may, in its discretion, waive the six-month requirement. The officer who elects such benefit shall be required to participate in the International City Management Association Retirement Corporation Prototype Money Purchase Plan and Trust. Such officer shall be required to contribute not less than six (6) percent of his or her compensation. In no event shall the total paid into the plan, for and on behalf of the officer, exceed the amount allowed under the terms of the Internal Revenue Code regulating such plan.

(c) Such officer shall submit to the City Commission annual accountings prepared by administrators of the program that he/she has elected. Such annual accounting shall include the following information:

(1) The amount of the contributions of such officer;

(2) The amount of payment or distribution made to such officer or made on his or her behalf, if any;

(3) The amount of any loan made by such insurance or trust company upon the security, or by assignment, of the trust assets or annuity contract or any part thereafter.

(d) The Employer shall pick up the member contributions required by this Section for all compensation earned after the effective date of this subsection. The contributions so picked up shall be treated as employer contributions in determining tax treatment under the United States

Internal Revenue Code. The Employer shall pick up the member contributions from funds established and available in the salaries account, which funds would otherwise have been designated as member contributions and paid to the Retirement System. Member contributions picked up by the Employer pursuant to this subsection shall be treated for all other purposes of this and other laws of the Employer in the same manner and to the same extent as member contributions made prior to the effective date of this subsection. The member does not have the option of receiving the picked-up member contributions in cash instead of having it paid into the Retirement System. The effective date of the employer pick-up is January 1, 1990.

(e) Anything to the contrary notwithstanding, any benefit payable under this System shall not exceed the limits set forth in Internal Revenue Code Section 415 and Regulations thereunder, the terms of which are specifically incorporated herein by reference.

(Ord. No. 68-41, 6-25-68; Ord. No. 68-61, 8-27-68; Ord. No. 75-104, 12-23-75; Ord. No. 77-66, 11-22-77; Ord. No. 82-85, 12-7-82; Ord. No. 83-2, 1-18-83; Ord. No. 83-37, 6-28-83; Ord. No. 86-8, § 1, 2-11-86; Ord. No. 86-43, § 1, 7-1-86; Ord. No. 88-30, § 1, 5-17-88; Ord. No. 90-02, § 1, 1-2-90; Ord. No. 90-30, §§ 1, 2, 3-20-90; Ord. No. 98-49, §§ 6, 7, 11-3-98; Ord. No. 99-20, § 5, 4-13-99; Ord. No. 2015-38, § 1, 7-28-15)

Sec. 1.284. Definitions.

For purposes of this Article 3 only, the following terms are defined as indicated:

(a) *City Officer*. The term "City Officer" shall include officers of the City appointed by the City Commission (herein "Appointed Officers" namely City Manager, City Treasurer, City Attorney or City Clerk) and except for the Fire Chief, persons within the executive classification.

(b) *Appointed Officer* means an officer elected by the City Commission as authorized by City Charter Compiler's Paragraph 9, namely City Manager, City Attorney, City Clerk and City Treasurer.

(c) *Compensation* means remuneration paid an employee by the City for his or her personal services rendered, expressed as the rate of salary including allowance for longevity pay and vacation pay, but excluding overtime pay, holiday pay and other fringe benefits.

(Ord. No. 68-41, 6-25-68; Ord. No. 68-61, 8-27-68; Ord. No. 75-104, 12-23-75; Ord. No. 86-8, § 2, 2-11-86; Ord. No. 2009-49, § 5, 9-15-09; Ord. No. 2017-29, § 2, 4-25-17)

Sec. 1.285. Participation Status.

(a) Should any officer employed by the City who qualifies for and has elected to participate in the retirement program as defined in Section 1.283 herein, lose department head status, or be assigned to another position within the employment of the City which would otherwise not qualify for coverage under Section 1.283, for any reason other than disciplinary action, that officer shall be entitled to continue participation in the retirement program as provided in Section 1.283.

(b) Should any City officer employed by the City who has elected to participate in the retirement program as provided in Section 1.283 herein, become an officer appointed by the City Commission in the capacity of City Manager, City Treasurer, City Attorney or City Clerk ("Appointed Officer") having been a vested member of the System prior to their election by City Commission as an Appointed Officer, then such Appointed Officer may elect to again become a member of the System. Such election to rejoin the System must be made within six (6) months after such officer's appointment by City Commission, and shall be effective on the date upon which such option is exercised by the Appointed Officer. Determinations regarding reinstatement of credited service and eligible service for Appointed Officers who rejoin the System as permitted by this Section shall be made pursuant to Sections 1.201(1)(b), 1.202(1) and 1.203.

(c) Effective November 1, 2016, the Officer's Option shall be closed to any Non-Represented Member of the Police and Fire Retirement System, as defined in Section 1.233(19.1), who was previously a member of the Police and Fire Retire-

ment System as a represented employee. Such Non-Represented Members shall be ineligible to elect the Officer's Option program established in this Article.
(Ord. No. 80-11, 2-19-80; Ord. No. 2009-49, § 6, 9-15-09; Ord. No. 2016-83, § 1, 12-6-16)

Secs. 1.286—1.289. Reserved.

ARTICLE 4. SUPPLEMENTAL ALLOWANCE BENEFIT

Sec. 1.290. Purpose.

The City Commission of the City of Grand Rapids has determined that some of the retired employees of the City of Grand Rapids, or their surviving beneficiaries, are receiving retirement allowances which are disparagingly low, when compared to the ever-increasing cost of living. The City Commission has determined that it is in furtherance of the public interest to supplement these modest retirement allowances pursuant to this Chapter.
(Ord. No. 78-44, 6-20-78; Ord. No. 79-43, 6-26-79; Ord. No. 81-5, 1-13-81)

Sec. 1.291. Definitions.

The following words and phrases, as used in this Article, unless a different meaning is plainly required by the context, shall have the following meanings:

(1) *Annuity* means a monthly amount derived from the accumulated contributions of a member and payable by the System throughout the life of a person or for a temporary period.

(2) *Allowance* means the gross total of the annuity and the pension.

(3) *Beneficiary* means any person who is receiving or designated by a member to receive a System benefit, except a retirant.

(4) *Pension* means a monthly amount derived from contributions of the employer and payable by the System throughout the life of a person or for a temporary period.

(5) *Qualified retirant* means a former member of the General Retirement System or the Police and Fire Retirement System of the City of Grand Rapids receiving a System allowance by reason of having been a member, and having completed at least twenty (20) years of employment with the City prior to retirement.

(6) *Supplemental allowance benefit* means the additional benefit paid to qualified retirants or their beneficiaries, as computed under this Chapter, which supplements the monthly allowance received by the qualified retirant or his or her beneficiary from the System. Supplemental allowance benefits shall be payable from the general fund of the City of Grand Rapids.

(7) *System* means either the City of Grand Rapids General Retirement System or the City of Grand Rapids Police and Fire Retirement System.

(8) *Years retired* means the number of full years of retirement completed by a retirant as of each annual computation date. Beneficiaries shall be entitled to receive credit for the same number of years retired as the qualified retirant through which they receive their System allowance would have been entitled.

(Ord. No. 81-5, 1-13-81; Ord. No. 89-88, § 1, 12-19-89)

Sec. 1.292. Computation of Supplemental Allowance Benefit.

(1) Qualified retirants of the General Retirement System, or their beneficiaries, shall be entitled to receive a monthly supplemental allowance benefit equal to one dollar ($1.00) times the number of years retired; provided, however, that the total of any System allowance and supplemental allowance benefit paid to a qualified retirant or his or her beneficiary under this Section shall not exceed two hundred fifty dollars ($250.00) per month; and provided further, that if any such qualified retirant or his or her beneficiary shall receive a monthly System allowance and monthly supplemental allowance benefit

which totals less than two hundred dollars ($200.00) then the supplemental allowance benefit of such qualified retirant or beneficiary shall be increased in such an amount that the total of such payments equals two hundred dollars ($200.00) per month.

(2) Qualified retirants of the Police and Fire Retirement System, or their beneficiaries, shall be entitled to receive a monthly supplemental allowance benefit equal to one dollar and fifty cents ($1.50) times the number of years retired; provided, however, that the total of any System allowance and supplemental allowance benefit paid to a qualified retirant or his or her beneficiary under this Section shall not exceed three hundred seventy-five dollars ($375.00) per month; and provided further, that if any such qualified retirant or his or her beneficiary shall receive a monthly System allowance and a monthly supplemental allowance benefit which totals less than two hundred fifty dollars ($250.00), then the supplemental allowance benefit of such qualified retirant or beneficiary shall be increased in such an amount that the total of such payments equals two hundred fifty dollars ($250.00) per month.

(3) Supplemental allowance benefits shall be limited to present qualified retirees, or their surviving beneficiaries, who currently receive such benefit. The payment of future benefits will be unaltered from the amount established on July 1, 1989.
(Ord. No. 81-5, 1-13-81; Ord. No. 83-38, 7-12-83; Ord. No. 84-79, § 1, 12-4-84; Ord. No. 88-13, § 1, 3-15-88; Ord. No. 89-88, § 2, 12-19-89)

Sec. 1.293. Effect.

Nothing in this Article shall affect the rights of any member, retirant or beneficiary of either the General Retirement System or the Police and Fire Retirement System to receive any benefits or allowances otherwise afforded to them under the pension ordinances of the City of Grand Rapids.
(Ord. No. 81-5, 1-13-81)

Sec. 1.294. Effective Date.

The supplemental allowances benefit provisions of this Article shall be effective as of July 1, 1980.
(Ord. No. 81-5, 1-13-81)

Sec. 1.295. Reserved.

ARTICLE 5. POST RETIREMENT BENEFITS—POLICE AND FIRE RETIREMENT SYSTEM*

Sec. 1.296. Thirteenth Check Pension Supplement.

(1) *Authorized.* A supplement to the pension benefit currently received by eligible retirants as defined in Section 1.296(2)(a) may occur annually in the form of a thirteenth pension check during the month of January. The issuance of a thirteenth check will be determined by funds available pursuant to Section 1.296(2)(b).

(2) *Definitions.* The following words and phrases interpret the implementation and intent of this Section as an adjunct to Section 1.233.

(a) *Eligibility.* Eligibility is limited to retirants or surviving beneficiaries who receive a monthly benefit from the City of Grand Rapids Police and Fire Retirement System and who have been receiving a System allowance for five (5) or more years by reason of having been a member. The five-year eligibility requirement is based upon the number of calendar years of retirement calculated from the first day of January of the retirement year without regard to the actual retirement date. Upon retirant's death only the surviving designated beneficiary at time of retirement pursuant to Section 1.247, who is otherwise

*__Editor's note—__Ord. No. 2011-32, § 1, adopted August 23, 2011, amended article 5 in its entirety to read as herein set out. Former article 5, §§ 1.296—1.299, pertained to Thirteenth Check Pension Supplement—Police and Fire Pension System, and derived from Ord. No. 89-87, § 1, 12-19-89; Ord. No. 2000-13, § 1, 3-14-00; Ord. No. 200-53, § 1, 9-5-00; Ord. No. 2002-52, § 12, 9-10-02; Ord. No. 2004-60, § 12, 9-7-04; Ord. No. 2006-84, §§ 9, 10, 12-19-06.

eligible to receive a monthly pension benefit shall be eligible to continue receipt of this supplement benefit. Provided, however, that retirants terminating employment as shown in the following table, and their surviving beneficiaries pursuant to Section 1.247, shall be included when computing payment amounts for thirteenth check distributions, and in lieu of a thirteenth check shall be eligible to receive an escalator increase under Section 1.298.

COVERED GROUP	*TERMINATION DATE*
Firefighters	On or after July 1, 2007
Police Officers	On or after December 17, 2008
Police Command	On or after February 19, 2010
Fire Chief	On or after January 1, 2016
Police Chief and Deputy Police Chief	On or after January 1, 2016
Deputy Fire Chief	On or after October 6, 2016

(b) *Fund availability.* Fund availability will be determined by totaling the net annual market value investment rates of return for the preceding five (5) years prior to the year of payment, as determined by the System's investment consultant, and dividing that amount by five (5). Should this result in a figure less than eight percent (8%), no funds would be available for distribution. If the resulting figure is more than eight percent (8%), then fifty percent (50%) of the amount in excess of eight percent (8%) is to be multiplied by the funds available in the benefit reserve fund as determined on the prior June 30th. The resulting sum is the amount available for distribution to the eligible retirees following the deductions required in Section 1.296(2)(e).

(c) *Computation of thirteenth check benefit.* Qualified retirants of the Police and Fire Retirement System or their surviving beneficiaries shall be entitled to receive the available benefit that grants one (1) point for each full year of retirement to a maximum of fifteen (15) years and one (1) point or fraction thereof for each year of service at retirement. Formula for all: The retiree/surviving beneficiary will receive an amount based on his or her total number of points for years and months of service multiplied by number of years of retirement. The individual benefit is then calculated. The total of all retiree points so calculated shall equal one hundred percent (100%) of the net distributable reserve which will be allocated to retirees/beneficiaries in an amount commensurate to their individual point total. Subsequent to the calculations above, the benefit so calculated for the Chief of Police, Deputy Chief, Police Command, Police Officers and Sergeants, Fire Service and beneficiaries having had at least ten (10) years of service under any of the bargaining units shall be increased by twenty percent (20%). The monies for such increase shall be obtained after the initial calculation provided for in Section 1.296(2)(b) by increasing the sum to be distributed by the amount necessary to fund the additional benefits calculated herein. Such amounts shall be paid from the benefit reserve fund as identified in Section 1.296(2)(b). This benefit increase will be effective with the first distribution subsequent to July 1, 2001. Provided, however, that retirants terminating employment as shown in the table in Section 1.296(2)(a), and their surviving beneficiaries, shall be awarded points as provided in this paragraph for computing payment amounts for thirteenth check distributions, but shall not receive a thirteenth check as authorized by this Section.

(d) *Benefit distribution.* The Trustees of the Police and Fire Retirement System will annually ascertain if a reserve excess is available for distribution pursuant to the provisions of this Section and authorize payment of that amount to the retiree members or surviving beneficiaries.

(e) *Payment.* Retirant/surviving beneficiary must be an active retirant at time thirteenth check is issued. The custodial bank will administer the distribution of the amount determined in 1.296(2)(c) to retirees/surviving beneficiaries, with all fees for each service deducted from the net amount available for distribution. Provided however, that no payment shall be made to any retirant who terminates employment as outlined in the table in Section 1.296(2)(a), or to his or her surviving beneficiary.

(3) *Effect.* Nothing in this Section shall affect the rights of any member, retirant or beneficiary of the Police and Fire Retirement System to receive any benefits or allowances otherwise afforded to them under Chapter 7, Article 4, of the police and fire pension ordinance of the City of Grand Rapids. No retirant or surviving beneficiary shall receive payment under both Sections 1.296 and 1.298.

(4) *Effective Date.* The supplemental allowance benefit provisions of this Section shall be effective as of January 1, 1990.
(Ord. No. 2011-32, § 1, 8-23-11; Ord. No. 2013-81, § 1, 12-3-13; Ord. No. 2019-31, § 9, 7-23-19)

Sec. 1.297. Reserved.

Sec. 1.298. Escalator Increase.

(1) An annual increase shall be provided to retirants who terminate employment as shown in the following table, or their surviving beneficiaries:

COVERED GROUP	*TERMINATION DATE*
Fire Chief	On or after January 1, 2016
Deputy Fire Chief	On or after October 6, 2016
Firefighters, except Fire Chief	On or after July 1, 2007
Police Chief or Deputy Police Chief	On or after January 1, 2016
Police Officers, except Police Chief and Deputy Police Chief	On or after December 17, 2008
Police Command	On or after February 19, 2010

(2) Annual escalator increases shall be determined as follows:

COVERED GROUP	*AMOUNT and WAITING PERIOD*
Fire Chief, Deputy Fire Chief, Firefighters	1.5% after two years of retirement
Police Chief, Deputy Police Chief	1.0% after five years of retirement
Police Command, Police Officers terminated prior to July 1, 2025	1.0% after five years of retirement
Police Command, Police Officers terminated on or after July 1, 2025, including participants in the KEIP as of July 1, 2025	1.5% after five years of retirement

Increases shall be granted on the first January or July following the retirant's waiting period, whichever occurs first, and shall be paid annually thereafter. The amount of the monthly escalator increase shall be based on the original retirement benefit computation and shall not be compounded except for Police Command and Police Officers terminated on or after July 1, 2025, including participants in the KEIP as of July 1, 2025, which shall be compounded. For Police Command and Police Officers terminated on or after July 1, 2025, including participants in the KEIP as of July 1, 2025, increases shall be granted on the first full month following the retirant's waiting period, and shall be paid annually thereafter. In the event of a change in monthly benefit amount due to either the death of a retirant or surviving beneficiary, or an automatic adjustment necessitated by the option elected at the time of retirement, the escalator increase shall be determined based on the original corresponding benefit amount and shall be applied based on the original retirement date.

(3) Retirants with termination dates as shown in Section 1.298(1), and their surviving beneficiaries, shall not receive any payment under Section 1.296.

(4) Nothing in this Section shall affect the rights of any member, retirant or beneficiary of the Police and Fire Retirement System to receive any benefits or allowances otherwise afforded to them under Chapter 7, Article 4, of the police and fire pension ordinance of the City of Grand Rapids. No retirant or surviving beneficiary shall receive payment under both Sections 1.296 and 1.298.

(5) The benefit provisions of this Section shall be effective as of July 1, 2007.
(Ord. No. 2011-32, § 1, 8-23-11; Ord. No. 2015-70, § 6, 12-8-15; Ord. No. 2019-31, § 10, 7-23-19; Ord. No. 2025-29, § 1, 8-26-25; Ord. No. 2025-42, § 1, 11-18-25)

Secs. 1.299—1.301. Reserved.

ARTICLE 6. POST RETIREMENT BENEFITS—GENERAL RETIREMENT SYSTEM*

Sec. 1.302. Thirteenth Check Pension Supplement.

(1) *Authorized.* A supplement to the pension benefit currently received by eligible retirants as defined in Section 1.302(2)(a) may occur annually in the form of a thirteenth pension check during the month of January. The issuance of a thirteenth check will be determined by funds available pursuant to Section 1.302(2)(b).

(2) *Definitions.* The following words and phrases interpret the implementation and intent of this Section as an adjunct to Section 1.192.

(a) *Eligibility.* Eligibility is limited to retirees or surviving beneficiaries who receive a monthly benefit from the City of Grand Rapids General Retirement System and who have been receiving a System allowance for five (5) or more years by reason of having been a member. The five-year eligibility requirement is based upon the number of calendar years of retirement calculated from January first of the retirement year without regard to the actual retirement date. Upon retiree's death only the surviving designated beneficiary at time of retirement pursuant to Section 1.206, who is otherwise eligible to receive a monthly pension benefit, shall be eligible to continue receipt of this supplement benefit. Provided, however, that retirants terminating employment as shown in the table shown in Section 1.304(1), and their surviving beneficiaries pursuant to Section 1.206, shall be included when computing payment amounts for thirteenth check distributions, and in lieu of a thirteenth check shall be eligible to receive an escalator increase under Section 1.304.

(b) *Fund availability.* Fund availability will be determined by totaling the net annual market value investment rates of return for the preceding five (5) years prior to the year of payment, as determined by the System's investment consultant, and dividing that amount by five (5). Should this result in a figure less than eight percent (8%), no funds would be available for distribution. If the resulting figure is more than eight percent (8%), then fifty percent (50%) of the amount in excess of eight percent (8%) is to be multiplied by the funds available in the benefit reserve fund as determined by the most recent annual actuarial valuation. The resulting sum is the amount available for distribution to the eligible retirees following the deductions required in Section 1.302(2)(e).

(c) *Computation of thirteenth check benefit.* Qualified retirees of the General Retirement System, or their surviving beneficiary, shall be entitled to receive the available benefit that grants one (1) point for each full year of retirement to a maximum of fifteen (15) years and one (1) point or fraction thereof for each year of service at retirement. Formula: the retiree or surviving beneficiary will receive an amount based on his or her total number of points for years and months of service multiplied by number of years of retirement. The total of all retiree points so calculated shall equal one hundred percent (100%) of the net distributable reserve which will be allocated to retirees or surviving beneficiaries in an amount commensurate to their individual point total. Provided, however, that retirants

*__Editor's note—__Ord. No. 2013-47, § 1, adopted September 10, 2013, amended Article 6 in its entirety to read as herein set out. Former Article 6, §§ 1.302—1.305, pertained to thirteenth check pension supplement—general pension system. See Code Comparative Table for complete derivation.

terminating employment as shown in the table in Section 1.304(1), and their surviving beneficiaries, shall be awarded points as provided in this paragraph for computing payment amounts for thirteenth check distributions, but shall not receive a thirteenth check as authorized by this Section.

(d) *Benefit distribution.* The Trustees of the General Retirement System will annually ascertain if a reserve excess is available for distribution pursuant to the provisions of this Section and authorize payment of that amount to the retiree members or surviving beneficiaries.

(e) *Payment.* Retiree or surviving beneficiary must be an active retiree at time thirteenth check is issued. The custodial bank will administer the distribution of the amount determined in 1.304(2)(c) to retirees or surviving beneficiaries, with all fees for each service deducted from the net amount available for distribution. Provided however, that no payment shall be made to any retiree who terminates employment as outlined in the table in Section 1.304(1), or to his or her surviving beneficiary.

(3) *Effect.* Nothing in this Section shall affect the rights of any member, retiree or beneficiary of the General Retirement System to receive any benefits or allowances otherwise afforded to them under Chapter 7, Article 4, of the general pension ordinance of the City of Grand Rapids. No retiree or surviving beneficiary shall receive payment under both Sections 1.302 and 1.304.

(4) *Effective Date.* The supplemental allowance benefit provisions of this Section shall be effective as of January 1, 1990.
(Ord. No. 2013-47, § 1, 9-10-13; Ord. No. 2013-82, §§ 1—3, 12-3-13)

Sec. 1.303. Reserved.

Sec. 1.304. Escalator Increase.

(1) An annual increase shall be provided to retirees who terminate employment as shown in the following table, or their surviving beneficiaries:

COVERED GROUP	*TERMINATION DATE*
APAGR; APAGR 61st District Court	On or after October 21, 2008
GREIU; GREIU 61st District Court	On or after March 24, 2009
Crime Scene Technicians	On or after May 12, 2009
GREIU Public Library Rank & File and Supervisory bargaining units	On or after July 9, 2009
Emergency Communication Supervisors	On or after September 13, 2011
Non-Represented Members	On or after July 1, 2014

(2) Annual escalator increases shall be determined as follows:

COVERED GROUP	*AMOUNT and WAITING PERIOD*
APAGR; APAGR 61st District Court; GREIU; GREIU 61st District Court; GREIU Public Library Rank & File and Supervisory bargaining units	1.0% after four years of retirement
Crime Scene Technicians	1.0% after six years of retirement
Emergency Communication Supervisors	1.0% after six years of retirement
Non-Represented Members	1.0% after seven years of retirement

Increases shall be granted on the first January or July following the retiree's waiting period, whichever occurs first, and shall be paid annually thereafter. The amount of the monthly escalator increase shall be based on the original retirement benefit computation and shall not be compounded. In the event of a change in monthly benefit amount due to either the death of a retiree or surviving beneficiary, or an automatic adjustment necessitated by the option elected at the time of retirement, the escalator increase shall be determined based on the original corresponding benefit amount and shall be applied based on the original retirement date.

(3) Retirees with termination dates as shown in Section 1.304(1), and their surviving beneficiaries, shall not receive any payment under Section 1.302.

(4) Nothing in this Section shall affect the rights of any member, retiree or beneficiary of the General Retirement System to receive any

benefits or allowances otherwise afforded to them under Chapter 7, Article 4, of the general pension ordinance of the City of Grand Rapids. No retiree or surviving beneficiary shall receive payment under both Sections 1.302 and 1.304.

(5) The benefit provisions of this Section shall be effective as of October 21, 2008.
(Ord. No. 2013-47, § 1, 9-10-13; Ord. No. 2014-53, §§ 1, 2, 7-22-14)

Secs. 1.305—1.319. Reserved.

ARTICLE 7. MEDICARE SUPPLEMENT TRUST FUND

Sec. 1.320. Establishment and Operation.

A Medicare Supplemental Trust Fund is established as set out in this Article. This separate and distinct trust fund is established to provide a financial base for the purpose of funding payment of a portion of each eligible retiree's Medicare Supplemental health insurance Benefit premium from contributions provided by the City of Grand Rapids, the 61st District Court, or the Board of Library Commissioners of the Grand Rapids Public Library pursuant to collective bargaining agreements with the Grand Rapids Employees Independent Union. The intent of this Article is that the payments made will be applied solely to reduce the cost of Medicare Supplemental Benefit coverage and for no other purpose.

(1) As used in this Article, the words and phrases defined below shall have the indicated meanings:

(a) *Trust Fund* means contributions set aside in trust for the benefit of designated retired City, Court and Library employees and the accumulated investment income from the investment of those contributions. "Trust Fund" may also include any voluntary contributions made which are designated to be used for the purpose of this fund. "Trust

Fund" means the total amount in the Trust Account except as otherwise set out in this Article.

(b) *Eligible Participants* means those retirees of the City of Grand Rapids General Retirement System who receive a monthly benefit from the Retirement System as a result of having retired on or after January 1, 1990 and who are receiving a Medicare benefit under federal law as a result of having reached age sixty-five (65), and eligible beneficiaries as determined by the Joint Committee defined herein.

(c) *Contribution* means that amount that the employer contributes in separate quarterly payments to the Trust Fund in an amount equal to one-half of one (0.5) percent of the annual salary rate, including longevity pay, of those employees covered by the General Retirement System and who, upon retirement, will be eligible for Medicare coverage. The quarterly payments provided for in this Section shall be made by the employer in January, April, July, and October of each year.

(d) *Joint Committee* means the seven-member committee of Trustees appointed to administer this Trust. Four (4) members shall be appointed and may be removed by the Grand Rapids Employees Independent Union under a procedure to be established and administered by the Union. Three (3) members shall be appointed and may be removed by the City Manager.

(e) *Investment of Trust Funds* means the placement of trust fund reserves into investments determined by the Joint Committee to be likely to enhance value of the Trust and to provide timely cash flow to meet benefit payment needs as determined by the Joint Committee.

(f) *Annual Benefit Amount* means the total amount of the Trust Fund determined by the Joint Committee to be distributed to insurance companies for Medicare Supplement Benefits for eligible participants.

(g) *Premium* means the monthly fee charged for the Supplement to Medicare Parts A and B then being offered to retirees by the employer, or an equal amount paid to the retiree's designated alternate insurance.

(h) *Alternate Insurance* means an insurance policy for health care benefits that is individually purchased by the retiree and comparable in nature to that provided by the City of Grand Rapids to members of the respective bargaining units represented by the Grand Rapids Employees Independent Union members.

(2) The Joint Committee shall have the following duties:

(a) The Joint Committee shall be responsible for the investment of the Trust Funds in the manner and for the purposes provided for in this Article. The Joint Committee is authorized to enter into an agreement with the Trustees of the General Retirement System to delegate all of the Joint Committee's investment powers to the Trustees of the General Retirement System. Upon execution of such an agreement, the Retirement System Trustees will act as the sole investing body of the Trust with authority to enter into contracts with and discharge investment managers at its sole discretion. The General Retirement System Trustees shall be held harmless by the City from personal liability for the performance of their duties pursuant to this Section. The Joint Committee is also authorized to delegate its invest-

ment authority to other investment managers as is deemed appropriate.

(b) The Joint Committee shall determine how much of the Trust Fund shall be designated for use as an annual benefit amount as provided for in this Article. The maximum amount available for distribution during any fiscal year shall be limited to fifty (50) percent of the value of the Trust Fund. The Joint Committee shall decide and certify to the City how much of the stated maximum shall be authorized for payments during the coming fiscal year. The benefit of any part time employee shall be prorated to reflect a reduction commensurate with the percentage of hours normally worked.

(c) The Joint Committee shall determine what the expenses of the Trust Fund shall be and shall authorize the payment of those expenses deemed to be

appropriate. Such expenses shall include, but not be limited to, supplies, fees for professional services, custodial fees, investment costs and commissions, auditing and performance evaluation fees and reimbursement for other expenditures necessary for the proper and efficient operation of the Trust Fund. Upon approval by the Joint Committee, the expenses shall be promptly paid by the custodian of the Trust Fund.

(3) The amount designated as the Annual Benefit Amount by the Joint Committee shall be paid to the insurance company providing Medicare Supplemental Benefit coverage to each eligible participant. The total annual Benefit Amount shall be prorated so that each eligible retiree's insurance carrier receives the same amount to be credited to each retiree's Medicare Supplemental Benefit coverage premium whether the employee has coverage provided by the City's health insurance carrier or by an alternative carrier. No payment shall be made to any employee directly or to any person or entity other than a bona fide insurance company for Medicare Supplemental Benefit coverage. The payment disbursement will occur on an advance quarterly basis. Payment of benefits will begin on January 1, 1993.

(4) Any employee may transfer any contributions made to the Trust Fund on the employee's behalf into another City of Grand Rapids Supplement to Medicare Trust Fund when the employee ceases to be in a position that is represented by the Grand Rapids Employees Independent Union bargaining unit. The amount to be transferred shall be computed as provided herein based upon the employee's annual salary rate including longevity plus three (3) percent interest. The City Comptroller's Office shall determine the exact dollar amount for transfer subject to review by the Joint Committee prior to the transfer. Should any other Supplement to Medicare Trust Funds be created that do not have a reciprocal transfer provision, no funds will be transferred to said trust and upon retirement the benefit payment will be prorated on a percentage basis according to the number of years served in a position represented by the Grand Rapids Employees Independent Union bargaining unit.

(5) Benefits provided by the plan shall apply only to those who retire or have retired on or after January 1, 1990 and immediately receive regular age and service or disability benefits as described in Chapter 7, Title I of the City Code.

(Ord. No. 93-2, § 1, 1-5-93; Ord. No. 96-6, § 2, 2-13-96

Sec. 1.321. Establishment and Operation—Grand Rapids Firefighters, Local 366.

A Medicare Supplemental Trust Fund is established as set out in this Article. This separate and distinct trust fund is established to provide a financial base for the purpose of funding payment of a portion of each eligible retiree's Medicare Supplemental Health Insurance Benefit premium from contributions provided by the City of Grand Rapids pursuant to the collective bargaining agreement with the Grand Rapids Firefighters, Local 366. The intent of this Article is that the payments made will be applied solely to reduce the cost of Medicare Supplemental Benefit coverage and for no other purpose.

1. As used in this Article, the words and phrases defined below shall have the indicated meanings:

   A. "*Trust Fund*" means contributions set aside in trust for the benefit of designated retired City firefighter employees and the accumulated investment income from the investment of those contributions. "Trust Fund" may also include any voluntary contributions made which are designated to be used for the purpose of this fund. "Trust Fund" means

the total amount in the Trust Account except as otherwise set out in this Article.

B. "*Eligible Participants*" means those retirees of the City of Grand Rapids Police/Fire Retirement System who receive a monthly benefit from the Retirement System as a result of having retired on or after July 1, 1989, and who are receiving a Medicare benefit under federal law as a result of having reached age sixty-five (65), or spouses of those retirees. Spouses are only eligible to receive the unused portion of the Annual Benefit afforded to the retiree. This provision is not intended to provide spouses with a separate or additional benefit than the amount afforded to the retiree.

C. "*Contribution*" means that amount that the employer contributes in separate quarterly payments to the Trust Fund in an amount equal to one-half of one (0.5) percent of the annual salary rate, including longevity pay, of those employees covered by the Police/Fire Retirement System and who will be eligible for Medicare coverage after retirement. The quarterly payments provided for in this Section shall be made by the employer in January, April, July, and October of each year.

D. "*Joint Committee*" means the seven member committee of Trustees appointed to administer this Trust. Four (4) members shall be appointed and may be removed by the Grand Rapids Firefighters, Local 366 under a procedure to be established and administered by the union. Three (3) members shall be appointed and may be removed by the City Manager.

E. "*Investment of Trust Funds*" means the placement of trust fund reserves into investments determined by the Joint Committee to be likely to enhance value of the Trust and to provide timely cash flow to meet benefit payment needs as determined by the Joint Committee.

F. "*Annual Benefit Amount*" means the total amount of the Trust Fund determined by the Joint Committee to be distributed to insurance companies for Medicare Supplement Benefits for eligible participants, or to eligible participants who purchase Alternate Insurance subject to the limitations regarding spouses provided in Section 1.321(1)(B).

G. "*Premium*" means the monthly fee charged for the supplement to Medicare Parts A & B then being offered to eligible participants by the employer or an equal amount paid for the eligible participant's Alternate Insurance.

H. "*Alternate Insurance*" means an insurance policy for health care benefits that is individually purchased by an eligible participant and is comparable in nature to that provided by the City of Grand Rapids to members of the respective bargaining unit represented by the Grand Rapids Firefighters, Local 366.

2. The Joint Committee shall have the following duties:

A. The Joint Committee shall be responsible for the investment of the Trust Funds in the manner and for the purposes provided for in this Article. The Joint Committee is authorized to enter into an agreement with the Trustees of the Police/Fire Retirement System to delegate all of the Joint Committee's investment powers to the Trustees of the Police/Fire Retirement System. Upon execution of such an agreement, the Retirement System Trustees will act as the sole investing body of the Trust with authority to enter into contracts with and discharge investment managers at its sole discretion. The Police/Fire

Retirement System Trustees shall be held harmless by the City from personal liability for the performance of their duties pursuant to this Section. The Joint Committee is also authorized to delegate its investment authority to other investment managers as is deemed appropriate.

B. The Joint Committee shall determine how much of the Trust Fund shall be designated for use as an annual benefit amount as provided for in this Article. The maximum amount available for distribution during any fiscal year shall be limited to fifty (50) percent of the value of the trust fund. The Joint Committee shall decide and certify to the City how much of the stated maximum shall be authorized for payments during the coming fiscal year.

C. The Joint Committee shall determine what the expenses of the Trust Fund shall be and shall authorize the payment of those expenses deemed to be appropriate. Such expenses shall include, but not be limited to, supplies, fees for professional services, custodial fees, investment costs, and commissions, auditing and performance evaluation fees and reimbursement for other expenditures necessary for the proper and efficient operation of the Trust Fund. Upon approval by the Joint Committee, the expenses shall be promptly paid by the custodian of the Trust Fund.

3. The amount designated as the Annual Benefit Amount by the Joint Committee shall be paid to the insurance company providing Medicare Supplemental Benefit coverage to each eligible participant, or to the eligible participant who provides the City's Human Resources Director with proof that, as provided in this Subsection (3), he or she has obtained and paid the most recent premium for Alternate Insurance. The total annual Benefit Amount shall be prorated so that each eligible participant's insurance carrier receives the same amount to be credited to each eligible participant's Medicare Supplemental Benefit coverage premium whether the eligible participant has coverage provided by the City's health insurance carrier or has Alternate Insurance provided by an alternative carrier. This provision is subject to the limitations regarding spouses provided in Section 1.321(1)(B). No payment shall be made to any eligible participant unless he or she provides documents which confirm, to the satisfaction of the Joint Committee, that he or she has Alternate Insurance in force and has paid the most recent premium for that Alternate Insurance. Except as otherwise provided in the preceding sentence, no payment shall be made to any person or entity other than a bona fide insurance company for Medicare Supplemental Benefit coverage. The payment disbursement will occur on an advance quarterly basis. Payment of benefits will begin on January 1, 1994.

4. Benefits provided by the plan shall apply only to those who retire or have retired on or after July 1, 1989, and receive regular age and service or disability benefits as described in Chapter 7, Title I, Article 2 of City Code. This is provided, however, that no benefits will be paid in instances of deferred pension annuity to members with less than twenty (20) years of service.

(Ord. No. 93-55, § 1, 12-7-93; Ord. No. 96-6, § 3, 2-13-96; Ord. No. 2004-38, § 1, 7-13-04)

Sec. 1.322. Establishment and Operation—Grand Rapids Police Officers Labor Council, Officer/Sergeant Unit and the Police Command Officers Bargaining Unit.

1. A Medicare Supplemental Trust Fund is established as set out in this Article. This separate and distinct trust fund is established to provide a financial base for the purpose of funding payment of a portion of each eligible retiree's Medicare Supplemental Health Insurance Bene-

fit premium from contributions provided by the City of Grand Rapids pursuant to the collective bargaining agreement with the Grand Rapids Police Officers Labor Council, Officer/Sergeant Unit and the Police Command Officers Bargaining Unit. The intent of this Article is that the payments made will be applied solely to reduce the cost of Medicare Supplemental Benefit coverage and for no other purpose.

As used in this Article the words and phrases defined below shall have the indicated meanings:

A. "*Trust Fund*" means contributions set aside in trust for the benefit of designated retired City police employees and the accumulated investment income from the investment of those contributions. "Trust Fund" may also include any voluntary contributions made which are designated to be used for the purpose of this fund. "Trust Fund" means the total amount in the Trust Account except as otherwise set out in this Article.

B. "*Eligible Participants*" means those retirees of the City of Grand Rapids Police/Fire Retirement System who receive a monthly benefit from the Retirement System as a result of having retired on or after July 1, 1989, and who are receiving a Medicare benefit under federal law as a result of having reached age 65, and eligible beneficiaries as determined by the Joint Committee defined herein.

C. "*Contribution*" means that amount that the employer contributes in separate quarterly payments to the Trust Fund in an amount equal to one-half of one (0.5) percent of the annual salary rate, including longevity pay of those employees covered by the Police/Fire Retirement System and who will be eligible for Medicare coverage after retirement. The quarterly payments provided for in this Section shall be made by the employer in January, April, July, and October of each year.

D. "*Joint Committee*" means the seven member committee of Trustees appointed to administer this Trust. Three members from the Grand Rapids Police Officers Labor Council, Officer/Sergeant Unit and one member from the Police Command Officers Bargaining Unit shall be appointed and may be removed under a procedure to be established and administered by the respective representative labor organizations. Three members shall be appointed and may be removed by the City Manager.

E. "*Investment of Trust Funds*" means the placement of trust fund reserves into investments determined by the Joint Committee to be likely to enhance value of the Trust and to provide timely cash flow to meet benefit payment needs as determined by the Joint Committee.

F. "*Annual Benefit Amount*" means the total amount of the Trust Fund determined by the Joint Committee to be distributed to insurance companies for Medicare Supplement Benefits for eligible participants.

G. "*Premium*" means the monthly fee charged for the Supplement to Medicare Parts A & B then being offered to retirees by the employer or an equal amount paid to the retiree's designated alternate insurance.

H. "*Alternate Insurance*" means an insurance policy for health care benefits that is individually purchased by the retiree and comparable in nature to that provided by the City of Grand Rapids to members represented by the Grand Rapids Police Officers Labor Council Officer/Sergeant Unit and the Police Command Officers Bargaining Unit.

2. The Joint Committee shall have the following duties:

A. The Joint Committee shall be responsible for the investment of the Trust Funds in the manner and for the purposes provided for in this Article. The Joint Committee is authorized to enter into an agreement with the Trustees of the Police/Fire Retirement System to delegate all of the Joint Committee's investment powers to the Trustees of the Police/Fire Retirement System. Upon execution of such an agree-

ment, the Retirement System Trustees will act as the sole investing body of the Trust with authority to enter into contracts with and discharge investment managers at its sole discretion. The Police/Fire Retirement System Trustees shall be held harmless by the City from personal liability for the performance of their duties pursuant to this Section. The Joint Committee is also authorized to delegate its investment authority to other investment managers as is deemed appropriate.

B. The Joint Committee shall determine how much of the Trust Fund shall be designated for use as an annual benefit amount as provided for in this Article. The maximum amount available for distribution during any fiscal year shall be limited to fifty (50) percent of the value of the trust fund. The Joint Committee shall decide and certify to the City how much of the stated maximum shall be authorized for payments during the coming fiscal year.

C. The Joint Committee shall determine what the expenses of the Trust Fund shall be and shall authorize the payment of those expenses deemed to be appropriate. Such expenses shall include, but not be limited to, supplies, fees for professional services, custodial fees, investment costs, and commissions, auditing and performance evaluation fees and reimbursement for other expenditures necessary for the proper and efficient operation of the Trust Fund. Upon approval by the Joint Committee, the expenses shall be promptly paid by the custodian of the Trust Fund.

3. The amount designated as the Annual Benefit Amount by the Joint Committee shall be paid to the insurance company providing Medicare Supplemental Benefit coverage premium whether the employee has coverage provided by the City's health insurance carrier or by an alternative carrier. No payment shall be made to any employee directly or to any person or entity other than a bona fide insurance company for Medicare

Supplemental Benefit coverage. The payment disbursement will occur on an advance quarterly basis. Payment of benefits will begin on January 1, 1994.

4. Benefits provided by the plan shall apply only to those who retire or have retired on or after July 1, 1989, and receive regular age and service or disability benefits as described in Chapter 7, Title 1, Article 2 of City Code. This is provided, however, that no benefits will be paid in instances of deferred pension annuity to members with less than 20 years of service.
(Ord. No. 93-56, § 1, 12-7-93; Ord. No. 96-6, § 4, 2-13-96)

Sec. 1.323. Establishment and Operation—Association of Public Administrators of Grand Rapids.

A Medicare Supplemental Trust Fund is established as set out in this Article. This separate and distinct trust fund is established to provide a financial base for the purpose of funding payment of a portion of each eligible retiree's Medicare Supplemental health insurance benefit premium from contributions provided by the City of Grand Rapids pursuant to the collective bargaining agreement with the Association of Public Administrators of Grand Rapids. The intent of this Article is that the payments made will be applied solely to reduce the cost of Medicare Supplemental Benefit coverage for these employees and for no other purpose.

1. As used in this Article, the words and phrases defined below shall have the indicated meanings:

A. "Trust Fund" means contributions set aside in trust for the benefit of the designated retired City employees and the accumulated Investment income from the investment of those contributions. "Trust Fund" may also include any voluntary contributions made which are designated to be used for the purpose of this fund. "Trust Fund" means the total amount in the Trust Account except as otherwise set out in this Article.

B. "Eligible Participants" means those retirees of the City of Grand Rapids General Retirement System or retirees under the "officers' option" who receive a monthly benefit as a result of having retired on or after January 1, 1990, and who are receiving a Medicare benefit under federal law as a result of having reached age sixty-five (65), and eligible beneficiaries as determined by the Joint Committee defined herein.

C. "Contribution" means that amount that the employer contributes in separate quarterly payments to the Trust Fund in an amount equal to one-half of one (0.5) percent of the annual salary rate, including longevity pay, of those employees covered by the General Retirement System or officers' option and who will be eligible for Medicare coverage after retirement. The quarterly payments provided for in this Section shall be made by the employer in January, April, July, and October of each year.

D. "Joint Committee" means the seven member committee of Trustees appointed to administer this Trust. Four members shall be appointed and may be removed by the Association of Public Administrators of Grand Rapids under a procedure to be established and administered by the Association. Three members shall be appointed and may be removed by the City Manager.

E. "Investment of Trust Funds" means the placement of trust fund reserves into investments determined by the Joint Committee to be likely to enhance value of the Trust and to provide timely cash flow to meet benefit payment needs as determined by the Joint Committee.

F. "Annual Benefit Amount" means the total amount of the Trust Fund determined by the Joint Committee to be distributed to insurance companies for Medicare Supplement Benefits for eligible participants.

G. "Premium" means the monthly fee charged for the Supplement to Medicare Parts A & B then being offered to retirees by the employer or an equal amount paid to the retiree's designated alternate insurance.

H. "Alternate Insurance" means an insurance policy for health care benefits that is indi-

vidually purchased by the retiree and comparable in nature to that provided by the City of Grand Rapids to members represented by the Association of Public Administrators of Grand Rapids.

2. The Joint Committee shall have the following duties:

A. The Joint Committee shall be responsible for the investment of the Trust Funds in the manner and for the purposes provided for in this Article. The Joint Committee is authorized to enter into an agreement with the Trustees of the General Retirement System to delegate all of the Joint Committee's investment powers to the Trustees of the General Retirement System. Upon execution of such an agreement, the Retirement System Trustees will act as the sole investing body of the Trust with authority to enter into contracts with and discharge investment managers at its sole discretion. The General Retirement System Trustees shall be held harmless by the City from personal liability for the performance of their duties pursuant to this Section. The Joint Committee is also authorized to delegate its investment authority to other investment managers as is deemed appropriate.

B. The Joint Committee shall determine how much of the Trust Fund shall be designated for use as an annual benefit amount as provided for in this Article. The maximum amount available for distribution during any fiscal year shall be limited to fifty (50) percent of the value of the trust fund. The Joint Committee shall decide and certify to the City how much of the stated maximum shall be authorized for payments during the coming fiscal year.

C. The Joint Committee shall determine what the expenses of the Trust Fund shall be and shall authorize the payment of those expenses deemed to be appropriate. Such expenses shall include, but not be limited to, supplies, fees for professional services, custodial fees, investment costs, and commissions, auditing and performance evaluation fees and reimbursement for other expenditures necessary for the proper and efficient operation of the Trust Fund. Upon approval by the Joint Committee, the expenses shall be promptly paid by the custodian of the Trust Fund.

3. The amount designated as the Annual Benefit Amount by the Joint Committee shall be paid to the insurance company providing Medicare Supplemental Benefit coverage premium whether the employee has coverage provided by the City's health insurance carrier or by an alternative carrier. No payment shall be made to any employee directly or to any person or entity other than a bona fide insurance company for Medicare Supplemental Benefit coverage. The payment disbursement will occur on an advance quarterly basis.

4. Any employee may transfer any contributions made to the Trust Fund on the employee's behalf into another City of Grand Rapids Supplement to Medicare Trust Fund when the employee ceases to be in a position that is represented by the Association of Public Administrators of Grand Rapids bargaining unit. The amount to be transferred shall be computed as provided herein based upon the employee's annual salary rate including longevity plus 3% interest. The City Comptroller's Office shall determine the exact dollar amount for transfer subject to review by the Joint Committee prior to the transfer. Should any other Supplement to Medicare Trust Funds be created that do not have a reciprocal transfer provision, no funds will be transferred to said trust and upon retirement the benefit payment will be pro-rated on a percentage basis according to the number of years served in a position represented by the Association of Public Administrators of Grand Rapids.

5. Benefits provided by the plan shall apply only to those who retire or have retired on or after January 1, 1990.

(Ord. No. 94-9, § 1, 2-22-94; Ord. No. 96-6, § 5, 2-13-96)

Sec. 1.324. Establishment and Operation—Non-union Employees Covered by the Management Compensation and Fringe Benefits Handbook.

A Medicare Supplemental Trust Fund is established as set out in this Article. This separate and

distinct trust fund is established to provide a financial base for the purpose of funding payment of a portion of each eligible retiree's Medicare Supplemental health insurance benefit premium from contributions provided by the City of Grand Rapids on behalf of non-union employees covered by the Management Compensation and Fringe Benefits Handbook in effect at the time of the enactment or any subsequent amendment of this ordinance and as otherwise provided for in this Code. The intent of this Article is that the payments made will be applied solely to reduce the cost of Medicare Supplemental Benefit coverage for these employees and for no other purpose.

1. As used in this Article, the words and phrases defined below shall have the indicated meanings:

A. "Trust Fund" means contributions set aside in trust for the benefit of designated retired City employees and the accumulated investment income from the investment of those contributions. "Trust Fund" may also include any voluntary contributions made which are designated to be used for the purpose of this fund. "Trust Fund" means the total amount in the Trust Account except as otherwise set out in this Article.

B. "Eligible Participants" means those retirees of the City of Grand Rapids General Retirement System or retirees under the "officers' option" who receive a monthly benefit as a result of having retired on or after January 1, 1990, and who are receiving a Medicare benefit under federal law as a result of having reached age sixty-five (65), and eligible beneficiaries as determined by the Joint Committee defined herein.

C. "Contribution" means that amount that the employer contributes in separate quarterly payments to the Trust Fund in an amount equal to one-half of one (0.5) percent of the annual salary rate, including longevity pay, of those employees covered by the General Retirement System or officers' option and who will be eligible for Medicare coverage after retirement. The quarterly payments provided for in this Section shall be made by the employer in January, April, July, and October of each year.

D. "Joint Committee" means the five member committee of Trustees appointed to administer this Trust. Members shall be appointed and may be removed by the City Manager.

E. "Investment of Trust Funds" means the placement of trust fund reserves into investments determined by the Joint Committee to be likely to enhance value of the Trust and to provide timely cash flow to meet benefit payment needs as determined by the Joint Committee.

F. "Annual Benefit Amount" means the total amount of the Trust Fund determined by the Joint Committee to be distributed to insurance companies for Medicare Supplement Benefits for eligible participants.

G. "Premium" means the monthly fee charged for the Supplement to Medicare Parts A & B then being offered to retirees by the employer or an equal amount paid to the retiree's designated alternate insurance.

H. "Alternate Insurance" means an insurance policy for health care benefits that is individually purchased by the retiree and comparable in nature to that provided by the City of Grand Rapids to non-union employees.

2. The Joint Committee shall have the following duties:

A. The Joint Committee shall be responsible for the investment of the Trust Funds in the manner and for the purposes provided for in this Article. The Joint Committee is authorized to enter into an agreement with the Trustees of the General Retirement System to delegate all of the Joint Committee's investment powers to the Trustees of the General Retirement System. Upon execution of such an agreement, the Retirement System Trustees will act as the sole investing body of the Trust with authority to enter into contracts with and discharge investment managers at its sole discretion. The General Retirement System Trustees shall be held harmless by the City from personal liability for the performance of

their duties pursuant to this Section. The Joint Committee is also authorized to delegate its investment authority to other investment managers as is deemed appropriate.

B. The Joint Committee shall determine how much of the Trust Fund shall be designated for use as an annual benefit amount as provided for in this Article. The maximum amount available for distribution during any fiscal year shall be limited to fifty (50) percent of the value of the trust fund. The Joint Committee shall decide and certify to the City how much of the stated maximum shall be authorized for payments during the coming fiscal year. The benefit level established shall be uniformly applied on behalf of each eligible participant.

C. The Joint Committee shall determine what the expenses of the Trust Fund shall be and shall authorize the payment of those expenses deemed to be appropriate. Such expenses shall include, but not be limited to, supplies, fees for professional services, custodial fees, investment costs, and commissions, auditing and performance evaluation fees and reimbursement for other expenditures necessary for the proper and efficient operation of the Trust Fund. Upon approval by the Joint Committee, the expenses shall be promptly paid by the custodian of the Trust Fund.

3. The amount designated as the Annual Benefit Amount by the Joint Committee shall be paid to the insurance company providing Medicare Supplemental Benefit coverage premium whether the employee has coverage provided by the City's health insurance carrier or by an alternative carrier. No payment shall be made to any employee directly or to any person or entity other than a bona fide insurance company for Medicare Supplemental Benefit coverage. The payment disbursement will occur on an advance quarterly basis.

4. Any employee may transfer any contributions made to the Trust Fund on the employee's behalf into another City of Grand Rapids Supplement to Medicare Trust Fund when the employee ceases to be in a position that is non-union. The amount to be transferred shall be computed as provided herein based upon the employee's annual salary rate including longevity plus three (3) percent interest. The City Comptroller's Office shall determine the exact dollar amount for transfer subject to review by the Joint Committee prior to the transfer. Should any other Supplement to Medicare Trust Funds be created that do not have a reciprocal transfer provision, no funds will be transferred to said trust and upon retirement the benefit payment will be pro-rated on a percentage basis according to the number of years served in a position not represented by a collective bargaining unit.

5. Benefits provided by the plan shall apply only to those who retire or have retired on or after January 1, 1990.
(Ord. No. 94-9, § 1, 2-22-94; Ord. No. 96-6, § 6, 2-13-96)

Sec. 1.325. Establishment and Operation - Grand Rapids Police Command Officers Bargaining Unit.

1. A Medicare Supplemental Trust Fund is established as set out in this Article. This separate and distinct trust fund is established to provide a financial base for the purpose of funding payment of a portion of each eligible retiree's Medicare Supplemental health insurance benefit premium from contributions provided by the City of Grand Rapids pursuant to the collective bargaining agreement with the Grand Rapids Police Command Officers Bargaining Unit, and is in addition to the fund established under Section 1.322 of this Article. The intent of this Article is that the payments made will be applied solely to reduce the cost of Medicare Supplemental Benefit coverage and for no other purpose.

As used in this Article, the words and phrases defined below shall have the indicated meanings:

A. "Trust Fund" means contributions set aside in trust for the benefit of the designated retired City police employees and the accumulated investment income from the investment of those contributions. "Trust Fund" may also include any voluntary contributions made which are designated to be

used for the purpose of this fund. "Trust Fund" means the total amount in the Trust Account except as otherwise set out in this Article.

B. "Eligible Participants" means those retirees of the City of Grand Rapids Police/Fire Retirement System who receive a monthly benefit from the Retirement System as a result of having retired on or after January 1, 1995, and who are receiving a Medicare benefit under federal law as a result of having reached age 65, and eligible beneficiaries as determined by the Joint Committee defined herein.

C. "Contribution" means that amount that the employer contributes in separate quarterly payments to the Trust Fund in an amount equal to one-half of one (0.5) percent of the annual salary rate, including longevity pay, of those employees covered by the Police/Fire Retirement System and who will be eligible for Medicare coverage after retirement. The quarterly payments provided for in this Section shall be made by the employer in January, April, July, and October of each year, effective January 1, 1995.

D. "Joint Committee" means the five (5) member committee of Trustees appointed to administer this Trust. Three (3) members from the Police Command Officers Bargaining Unit shall be appointed and may be removed under a procedure to be established and administered by the respective labor organizations. Two (2) members shall be appointed and may be removed by the City Manager.

E. "investment of Trust Funds" means the placement of trust fund reserves into investments determined by the Joint Committee to be likely to enhance value of the Trust and to provide timely cash flow to meet benefit payment needs as determined by the Joint Committee.

F. "Annual Benefit Amount" means the total amount of the Trust Fund determined by the Joint Committee to be distributed to insurance companies for Medicare Supplement Benefits for eligible participants.

G. "Premium" means the monthly fee charged for the Supplement to Medicare Parts A & B then being offered to retirees by the employer or an equal amount paid to the retiree's designated alternate insurance.

H. "Alternate Insurance" means an insurance policy for health care benefits that is individually purchased by the retiree and comparable in nature to that provided by the City of Grand Rapids to members represented by the Police Command Officers Bargaining Unit.

2. The Joint Committee shall have the following duties:

A. The Joint Committee shall be responsible for the investment of the Trust Funds in the manner and for the purposes provided for in this Article. The Joint Committee is authorized to enter into an agreement with the Trustees of the Police/Fire Retirement System to delegate all of the Joint Committee's investment powers to the Trustees of the Police/Fire Retirement System. Upon execution of such an agreement, the Retirement System Trustees will act as the sole investing body of the Trust with authority to enter into contracts with and discharge investment managers at its sole discretion. The Police/Fire Retirement System Trustees shall be held harmless by the City from personal liability for the performance of their duties pursuant to this Section. The Joint Committee is also authorized to delegate its investment authority to other investment managers as is deemed appropriate.

B. The Joint Committee shall determine how much of the Trust Fund shall be designated for use as an annual benefit amount as provided for in this Article. The maximum amount available for distribution during any fiscal year shall be limited to fifty (50) percent of the value of the trust fund. The Joint Committee shall decide and certify to the City how much of the stated maximum shall be authorized for payments during the coming fiscal year.

C. The Joint Committee shall determine what the expenses of the Trust Fund shall be and shall authorize the payment of those expenses deemed to be appropriate. Such expenses shall include, but not be limited to, supplies, fees for professional services, custodial fees, investment costs, and commissions, auditing and performance evaluation fees and reimbursement for other expenditures necessary for the proper and efficient operation of the Trust Fund. Upon approval by the Joint Committee, the expenses shall be promptly paid by the custodian of the Trust Fund.

3. The amount designated as the Annual Benefit Amount by the Joint Committee shall be paid to the insurance company providing Medicare Supplemental Benefit coverage premium whether the employee has coverage provided by the City's health insurance carrier or by an alternative carrier. No payment shall be made to any employee directly or to any person or entity other than a bona fide insurance company for Medicare Supplemental Benefit coverage. The payment disbursement will occur on an advance quarterly basis. Payment of benefits will begin on January 1, 1996.

4. Benefits provided by the plan shall apply only to those who retire or have retired on or after January 1, 1995, and receive regular age and service or disability benefits as described in Chapter 7, Title I, Article 2 of City Code. This is provided, however, that no benefits will be paid in instances of deferred pension annuity to members with less than 20 years of service.
(Ord. No. 96-6, § 7, 2-13-96)

Sec. 1.326. Establishment and Operation - Emergency Communications Operators Bargaining Unit.

1. A Medicare Supplemental Trust Fund is established as set out in this Article. This separate and distinct trust fund is established to provide a financial base for the purpose of funding payment of a portion of each eligible retiree's Medicare Supplemental health insurance benefit premium from contributions provided by the City of Grand Rapids pursuant to the collective bargaining agreement with the Emergency Communications Operators Bargaining Unit. The intent of this Article is that the payments made will be applied solely to reduce the cost of Medicare Supplemental Benefit coverage and for no other purpose.

As used in this Article, the words and phrases defined below shall have the indicated meanings:

A. "Trust Fund" means contributions set aside in trust for the benefit of the designated retired City employees and the accumulated investment income from the investment of those contributions. "Trust Fund" may also include any voluntary contributions made which are designated to be used for the purpose of this fund. "Trust Fund" means the total amount in the Trust Account except as otherwise set out in this Article.

B. "Eligible Participants" means those retirees of the City of Grand Rapids General Retirement System who receive a monthly benefit from the Retirement System as a result of having retired on or after January 1, 1999, and who are receiving a Medicare benefit under federal law as a result of having reached age 65, and eligible beneficiaries as determined by the Joint Committee defined herein.

C. "Contribution" means that amount that the employer contributes in separate quarterly payments to the Trust Fund in an amount equal to one quarter (.25) percent effective January 1, 1999 and an additional one quarter (.25) percent effective January 1, 2000, of the annual salary rate, including longevity pay, of those employees covered by the General Retirement System and who will be eligible for Medicare coverage after retirement. The quarterly payments provided for in this Section shall be made by the employer in January, April, July, and October of each year, effective January 1, 1999.

D. "Joint Committee" means the five (5) member committee of Trustees appointed to administer this Trust. Three (3) members

from the Emergency Communications Operators Bargaining Unit shall be appointed and may be removed under a procedure to be established and administered by the respective labor organizations. Two (2) members shall be appointed and may be removed by the City Manager.

E. "Investment of Trust Funds" means the placement of trust fund reserves into investments determined by the Joint Committee to be likely to enhance value of the Trust and to provide timely cash flow to meet benefit payment needs as determined by the Joint Committee.

F. "Annual Benefit Amount" means that total amount of the Trust Fund determined by the Joint Committee to be distributed to insurance companies for Medicare Supplement Benefits for eligible participants.

G. "Premium" means the monthly fee charged for the Supplement to Medicare Parts A & B then being offered to retirees by the employer or an equal amount paid to the retiree's designated alternate insurance.

H. "Alternate Insurance" means an insurance policy for health care benefits that is individually purchased by the retiree and comparable in nature to that provided by the City of Grand Rapids to members represented by the Emergency Communications Operators Bargaining Unit.

2. The Joint Committee shall have the following duties:

A. The Joint Committee shall be responsible for the investment of the Trust Funds in the manner and for the purposes provided for in this Article. The Joint committee is authorized to enter into an agreement with the Trustees of the General Retirement System to delegate all of the Joint Committee's investment powers to the Trustees of the General Retirement System. Upon execution of such an agreement, the Retirement System Trustees will act as the sole investing body of the Trust with authority to enter into contracts with and discharge investment managers at its sole discretion. The General Retirement System Trustees shall be held harmless by the City from personal liability for the performance of their duties pursuant to this Section. The Joint Committee is also authorized to delegate its investment authority to other investment managers as is deemed appropriate.

B. The Joint Committee shall determine how much of the Trust Fund shall be designated for use as an annual benefit amount as provided for in this Article. The maximum amount available for distribution during any fiscal year shall be limited to fifty (50) percent of the value of the trust fund. The Joint Committee shall decide and certify to the City how much of the stated maximum shall be authorized for payments during the coming fiscal year.

C. The Joint Committee shall determine what the expenses of the Trust Fund shall be and shall authorize the payment of those expenses deemed to be appropriate. Such expenses shall include, but not be limited to, supplies, fees for professional services, custodial fees, investment costs, and commissions, auditing and performance evaluation fees and reimbursement for other expenditures necessary for the proper and efficient operation of the Trust Fund. Upon approval by the Joint Committee, the expenses shall be promptly paid by the custodian of the Trust Fund.

3. The amount of designated as the Annual Benefit Amount by the Joint Committee shall be paid to the insurance company providing Medicare Supplemental Benefit coverage premium whether the employee has coverage provided by the City's health insurance carrier or by an alternative carrier. No payment shall be made to any employee directly or to any person or entity other than a bona fide insurance company for Medicare Supplemental Benefit coverage. The payment disbursement will occur on an advance quarterly basis. Payment of benefits will begin January 1, 1999.

4. Benefits provided by the plan shall apply only to those who retire or have retired on or after January 1, 1999, and receive regular age and service or disability benefits as described in Chapter 7, Title I, Article 2 of City Code. This is provided, however, that no benefits will be paid in instances of deferred pension annuity to members with less than 20 years of service.
(Ord. No. 99-1, § 2, 1-5-99)

Secs. 1.327, 1.328. Reserved.

ARTICLE 8. CITY OF GRAND RAPIDS DEFINED CONTRIBUTION (CGRDC) PLAN

Sec. 1.328.1. Defined Contribution Retirement Plan Created.

Effective January 9, 2012, the City of Grand Rapids Defined Contribution (CGRDC) Retirement Plan is established.
(Ord. No. 2015-38, § 2, 7-28-15)

Sec. 1.328.2. Eligible Employees, Contributions and Vesting.

The City of Grand Rapids Defined Contribution (CGRDC) Plan shall be governed by the Administrative Services Agreement between the City of Grand Rapids and the ICMA Retirement Corporation, effective January 9, 2012, as amended from time to time by mutual agreement of the parties, and ratified by members of affected collective bargaining units. For non-represented employees, there shall be no amendment to the plan, except as reflected in this Section, and summarized as follows:

Eligible Employee Group	*Hire Date (on or after)*	*Employer Contribution*	*Employee Contribution*	*Vesting Period*
GREIU	May 25, 2011	6%	6%	5 Years
Non-Represented Employees, Excluding City Officers as defined in Section 1.284.	July 1, 2011	6%	6%	5 Years
GREIU Library Rank and File	September 1, 2011	6%	6%	5 Years
GREIU Library Supervisory	September 1, 2011	6%	6%	5 Years
Crime Scene Techs	November 15, 2011	6%	6%	5 Years
Association of Public Administrators of GR (APAGR)	July 1, 2014	6%	6%	5 Years
GREIU District Court	August 31, 2011	6%	6%	5 Years
APAGR 61st District Court	September 13, 2011	6%	6%	5 Years

(Ord. No. 2015-38, § 2, 7-28-15)

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Chapter 8

BOARDS AND COMMISSIONS*

Article 1. General Provisions

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Article 2. Reserved

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Article 4. Board of Art and Museum Commissioners

Sec. 1.351. Board of Art and Museum Commissioners.
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Article 5. Grand Rapids Housing Commission

Sec. 1.353. Created.
Sec. 1.354. Appointed Members; Term of Office; Compensation.
Sec. 1.355. Powers and Duties.
Sec. 1.356. Selection and Payment of the Employees.
Sec. 1.357. Financial Reporting.

Article 6. Grand Rapids Historical Commission

Sec. 1.358. Grand Rapids Historical Commission.
Sec. 1.359. Duties.

Article 7. Local Officers Compensation Commission

Sec. 1.360. Local Officers Compensation Commission.

***Charter reference**—Board of Art and Museum Commissioners, Title XIV.

Cross references—City Commission, Ch. 2; International Relations Committee, § 1.850 et seq.; Automobile Parking Commission, § 2.135; Board of Zoning Appeals, § 5.251 et seq.; Planning Commission, Ch. 62; Historic Preservation Commission, § 5.405; Cable Television Advisory Forum, § 7.502; Construction Code Board of Appeals, § 8.5(124.0); Plumbing Board, § 8.34(P-122.1) et seq.; Board of Electrical Examiners, § 8.56; Housing Appeal Board, § 8.649 et seq.; Building Maintenance Appeal Board, § 8.236 et seq.

State law references—Standards of conduct and ethics, MCL 15.341 et seq., MSA 4.1700(71) et seq.; Open Meetings Act, MCL 15.261 et seq., MSA 4.1800(11) et seq.; Freedom of Information Act, MCL 15.231 et seq., MSA 4.1801(1) et seq.

ARTICLE 1. GENERAL PROVISIONS*

Sec. 1.331. General Provisions.

All Boards and Commissions existing at the time of the adoption of this provision shall be continued and the members serving thereon shall remain in office for the duration of the term for which they were appointed. Except as otherwise provided as to any particular Board or Commission, all Boards and Commissions shall be subject to the following general provisions:

(1) Any vacancy occurring in the membership of any Board or Commission shall be filled for the remainder of the unexpired term in the manner provided for original appointment.

(2) The appointing Authority may remove any member of any Board or Commission for cause, but any member shall be entitled to a public hearing on such removal, on written demand filed with the appointing Authority within ten (10) days after notice of removal has been given to such member. Such a hearing shall be limited to a statement by the appointing Authority of the reason for removal and any response that the removed member makes regarding the removal. The hearing is not an appeal hearing but shall be held only to provide a removed member an opportunity to publicly respond to the stated reason for the removal. Cause as provided for in this subsection shall include, but not be limited to, a member's failure to file with the City Clerk a sworn acceptance and oath of office or a member's failure to comply with any statement of privileges and duties or other standards of attendance or conduct promulgated by the City.

(3) All members of Boards and Commissions shall serve without compensation as members thereof.

(4) Pursuant to Title VI of Section 7, being compiler's paragraph 93 of the Charter of the City of Grand Rapids, the City Attorney is hereby designated to be the legal advisor and representative of all bodies, offices, agents, Commissions, Boards, Departments and any other agencies of the City of Grand Rapids, unless the City Commission expressly authorizes another Attorney by resolution.

(Ord. No. 95-16, § 1, 3-7-95)

Secs. 1.332—1.340. Reserved.

ARTICLE 2. RESERVED†

ARTICLE 3. COMMUNITY RELATIONS COMMISSION‡

Sec. 1.341. Statement of Public Policy and Finding of Necessity.

It is hereby declared to be contrary to the public policy of the City of Grand Rapids for any person to deny any other person the enjoyment of his or her civil rights or for any persons to discriminate against any other person in the exercise of his or her civil rights because of race, color, creed, religion, national origin, ancestry, age, gender, marital status, disability, height, weight, sexual orientation, or gender identity.

It is hereby found that prejudice and discrimination against any individual or group because of race, color, creed, religion, national origin, ancestry, age, gender, marital status,

*__Editor's note—__Ord. No. 95-16, § 1, adopted March 7, 1995, added § 1.331 to read as herein set out. Section 2 of said ordinance, repealed § 1.321, which pertained to general provisions. Also, at the request of the city, appropriate reserved sections have been included. See the Code Comparative Table.

†__Editor's note—__Ord. No. 84-2, § 1, adopted Jan. 17, 1984, repealed Article 2, concerning Convention-Entertainment Center Board, consisting of §§ 1.331—1.335 and derived from Ord. No. 74-79, adopted Oct. 1, 1974; Ord. No. 75-29, adopted Apr. 1, 1975; and Ord. No. 76-98, adopted Dec. 14, 1976.

‡__Editor's note—__Ord. No. 2015-61, § 1, adopted October 13, 2015, repealed the former Art. 3, §§ 1.341—1.347, and enacted a new Art. 3 as set out herein. The former Art. 3 pertained to similar subject matter. See Code Comparative Table for complete derivation.

disability, height, weight, sexual orientation or gender identity are inimical to democracy, the cornerstone of our American tradition, and menace peace and the general public welfare; that to eliminate such prejudice and discrimination, instrumentalities of government should be established through which the citizens of Grand Rapids may be kept informed of developments in community relations and from which the elected and appointed officials, and the Departments of this City may obtain expert advice and assistance in adopting measures to keep peace, good order and harmony among the citizens of Grand Rapids; and that such instrumentalities will promote harmony, help to avoid intergroup tensions, promote good will, and ensure equality of treatment and opportunity to all regardless of race, color, creed, religion, national origin, ancestry, age, gender, marital status, disability, height, weight, sexual orientation or gender identity.
(Ord. No. 2015-61, § 1, 10-13-15)

Sec. 1.342. Created; Membership.

There is hereby created a Commission to be known as the Community Relations Commission, consisting of nine (9) members to be appointed by the Mayor, with the approval of the City Commission. The members of the Commission should be selected, to the extent possible, so as to be representative of the community at large.

The members shall serve without compensation, but shall be reimbursed for expenses necessarily incurred in connection with their duties as members of the Commission. All terms of members of the Commission shall be for three (3) years. Three (3) members shall be appointed for terms commencing on the first Monday in January each year. In the event of death, resignation, or removal from membership of any member, his or her successor shall be appointed to serve for the unexpired term of the departed member.
(Ord. No. 2015-61, § 1, 10-13-15)

Sec. 1.343. Duties.

The duties of the Community Relations Commission shall be as follows:

(a) It shall foster mutual understanding and respect among all racially, ethnically, religiously and culturally diverse groups in the City of Grand Rapids. It shall discourage and prevent discrimination practices toward any such group.

(b) It may upon its own initiative or upon referral to it by the City Manager's designee, investigate complaints of particular instances or complaints as to general conditions relative to any tensions, practices of discrimination or acts of prejudices against any person or group because of race, color, creed, religion, national origin, ancestry, age, gender, marital status, disability, height, weight, sexual orientation or gender identity and it may conduct public hearings with regard thereto.

(c) It shall carry on research projects and obtain factual data to ascertain the status and treatment racially, ethnically, religiously and culturally diverse groups within the City; and it shall make reports and recommendations to the City Commission and the City Manager as to its findings of fact relative to existing conditions and as to policies, programs and legislation for relief and alleviation of such discriminatory practices and conditions.

(d) It shall cooperate with other public, governmental or private agencies in developing courses of instruction for presentation in public and/or private schools, in public libraries, at public museums or other suitable places, showing and illustrating the contributions of various religious, nationality and ethnic groups to the culture, tradition and progress of our City, State and Nation, and further showing the deplorable effects and menace of prejudice, intolerance and discrimination.

(e) It may assist the City Manager and his or her designee in the performance of their duties as set forth in this Code.

(f) It shall formulate and carry out programs of community education and information

with the object of discouraging and eliminating any such tensions, prejudice and discrimination.

(g) It shall issue such publications and reports of investigations and research as in its judgment will tend to minimize or eliminate prejudice, intolerance, race or area tensions and discrimination or which will promote or tend to promote good will.

(h) It shall cooperate with and seek the cooperation of federal, state and city agencies and departments in carrying out projects within their respective authorities to eliminate intergroup tensions, and to promote intergroup harmony. It shall recommend to the Mayor and to the City Commission measures, including legislation, aimed at improving relations within and among the population, as well as improving the ability of the various City departments and agencies to ensure protection of any and all persons and groups from discrimination because of race, color, creed, religion, national origin, ancestry, age, gender, marital status, disability, height, weight, sexual orientation or gender identity. It shall advise, and may recommend action to any official of competent authority, on any matters involving civil rights or the violation thereof.

(Ord. No. 2015-61, § 1, 10-13-15)

Sec. 1.344. Meetings.

The Community Relations Commission shall meet not less than once a month and shall adopt by majority vote such rules as it shall deem expedient for the conduct of its business. It shall elect such officers as it shall deem necessary. The Chairperson thereof shall appoint such Committees as the rules of the Community Relations Commission shall provide, and other Committees as shall from time to time be found necessary.

(Ord. No. 2015-61, § 1, 10-13-15)

Sec. 1.345. Investigations.

The obtaining of factual information by the Community Relations Commission in the performance of its duties hereunder is hereby declared to be necessary to its functions. In the event any person or persons shall fail to give such necessary information to the Community Relations Commission, or any Committee or authorized representative thereof, the said Commission may in its discretion make its report thereof to the City Commission. Pursuant to the City Charter, Title XVIII, Section 1, such report shall be deemed and it is hereby declared to be a proceeding or hearing pending before the City Commission. Thereafter upon instructions from the Mayor or any Commissioner of the City Commission, or the City Attorney, proceedings may then be initiated and had pursuant to the provisions of Articles 2 and 3 of Chapter 2 of Title I of the City Code of the City of Grand Rapids.

(Ord. No. 2015-61, § 1, 10-13-15)

Sec. 1.346. Self-incrimination.

Nothing contained in this Article shall be so construed as to require any person in any criminal case to be a witness against himself or herself.

(Ord. No. 2015-61, § 1, 10-13-15)

Sec. 1.347. Civil Rights Defined.

EMPLOYMENT - The opportunity to obtain employment without discrimination because of race, color, creed, religion, national origin, ancestry, age, gender, marital status, disability, height, weight, sexual orientation or gender identity is hereby recognized and declared to be a civil right. Further, it shall be contrary to the public policy of the City of Grand Rapids for any employer because of race, color, creed, religion, national origin, ancestry, gender, marital status, disability, height, weight, sexual orientation or gender identity to refuse to hire or otherwise discriminate against him or her with respect to hire, tenure, terms, conditions or privileges of employment unless such refusal to hire or discriminate is based on a bona fide occupational qualification.

HOUSING - The opportunity to purchase, lease, sell, hold, use and convey dwelling housing or dwelling units without discrimination because of race, color, creed, religion, national origin, ancestry, age, gender, marital status, familial status, disability, height, weight, source of lawful income, public assistance recipient status, sexual orientation or gender identity is hereby recognized and declared to be a civil right. It shall not be a violation of this Section for the owner of an owner-occupied one-family or two-family dwelling to restrict occupancy.

PUBLIC ACCOMMODATIONS - The opportunity to enjoy full and equal access to all goods and services, accommodations, advantages and facilities in all places of public accommodation, service, amusement and recreation, including, but not limited to, inns, hotels, motels, government housing, restaurants and eating places, barber shops, billiard parlors, stores, public transportation and conveyances, theaters and motion picture houses and educational institutions without discrimination because of race, color, creed, religion, national origin, ancestry, age, gender, marital status, disability, height, weight, familial status, source of lawful income, public assistance recipient status, sexual orientation or gender identity is hereby recognized and declared to be a civil right.
(Ord. No. 2015-61, § 1, 10-13-15)

Secs. 1.348—1.350. Reserved.

ARTICLE 4. BOARD OF ART AND MUSEUM COMMISSIONERS

Sec. 1.351. Board of Art and Museum Commissioners.

The Board of Art and Museum Commissioners shall consist of five (5) members appointed by the City Commission for a term of four (4) years beginning the first Monday in January. Three (3) terms shall expire January 5, 2009, and the remaining two (2) terms shall expire January 4, 2010. In the event of a vacancy, the City Commission may appoint a successor to fill the unexpired term.
(Ord. No. 65-28, 11-2-65; Ord. No. 74-23, 3-26-74; Ord. No. 2008-47, § 1, 11-12-08)

Charter reference—Board of Art and Museum Commissioners, Title XIV.

Sec. 1.352. Reserved.

Editor's note—Ord. No. 85-13, § 1, adopted Feb. 26, 1985, repealed, § 1.352, concerning Municipal Art Advisory Commission, as derived from Ord. No. 77-41, adopted July 26, 1977.

ARTICLE 5. GRAND RAPIDS HOUSING COMMISSION*

Sec. 1.353. Created.

Pursuant to Public Act. No. 18 of the Extra Session of 1933, as amended, a Commission is hereby created in and for the City of Grand Rapids, Michigan, to be known as the "Grand Rapids Housing Commission."
(Ord. No. 66-12, 3-8-86)

Sec. 1.354. Appointed Members; Term of Office; Compensation.

(1) The Grand Rapids Housing Commission shall consist of five (5) members appointed by the City Manager, and confirmed by the City Commission.

(2) The term of office of members of the Grand Rapids Housing Commission shall be five (5) years. The members currently appointed and serving on the Commission upon the effective date of this ordinance shall continue in the terms for which they have been appointed. Pursuant to MCL § 125.654(2), at least one member of the Commission shall be a tenant of public or subsidized housing, appointed as required by law upon the happening of a vacancy on the Commission. Members may be removed from the Commission in accordance with procedures established in MCL § 125.654.

*__Cross reference—__Property Maintenance Code, Ch. 140.
State law reference—Authority to create, MCL 125.653.

(3) The members of the Grand Rapids Housing Commission shall serve without compensation; provided, however, they may be reimbursed for actual expenses incurred in serving as a member of the Commission in an amount to be determined by the Commission.
(Ord. No. 66-12, 3-8-66; Ord. No. 97-36, § 1, 8-5-97)

Sec. 1.355. Powers and Duties.

(1) The Grand Rapids Housing Commission shall have all of the powers and duties vested or permitted to be vested in the Housing Commission by Act 18 of the Public Acts of 1933, Ex. Sess., as amended heretofore or hereafter, and any laws heretofore or hereafter enacted which are supplemented thereto, it being the intention of this Article to vest in the Grand Rapids Housing Commission all powers and duties permitted by law.

(2) The Grand Rapids Housing Commission is authorized to act as a borrower for purposes of issuing bonds or notes in accordance with the provisions of Act 18 of the Public Acts of 1933, Ex. Sess., as amended.

(3) All deeds, mortgages, contracts, leases, purchases or other agreements regarding real property, including agreements to acquire or dispose of real property, shall be approved and executed in the name of the Grand Rapids Housing Commission.
(Ord. No. 66-12, 3-8-66; Ord. No. 97-36, § 2, 8-5-97)

Sec. 1.356. Selection and Payment of Employees.

The Grand Rapids Housing Commission may appoint a Director who may also serve as Secretary, and other employees or officers as are necessary. The Grand Rapids Housing Commission shall prescribe the duties of its officers and employees and shall have the sole authority to fix their compensation and fringe benefits, and terms and conditions of employment.
(Ord. No. 66-12, 3-8-66; Ord. No. 97-36, § 3, 8-5-97)

Sec. 1.357. Financial Reporting.

The Grand Rapids Housing Commission shall submit to the City Commission and the City Comptroller, in a form and with such detail as is reasonably determined by the City Comptroller to be sufficient, the following information:

(a) On a monthly basis, not later than 30 days after the end of each month, a statement of financial position, a statement of cash flows, and a financial accounting of all operations, contracts and grant activities.

(b) Not later than ninety (90) days after the close of the fiscal year, an annual accounting of financial activity of the Housing Commission shall be submitted to the City Commission along with an unqualified opinion of an independent certified public accountant for the financial statements, including the auditors report on the Schedule of Federal Awards, and any management reports filed with the Housing Commission pursuant to such audit.

The books and records of the Housing Commission shall be available for review and audit by the City Comptroller's staff upon reasonable notice during business hours.
(Ord. No. 66-12, 3-8-66; Ord. No. 97-36, § 4, 8-5-97)

ARTICLE 6. GRAND RAPIDS HISTORICAL COMMISSION*

Sec. 1.358. Grand Rapids Historical Commission.

The Grand Rapids Historical Commission shall consist of thirteen (13) persons to be appointed by the Mayor, subject to confirmation by the City Commission. One (1) member may be the Museum Director of the City of Grand Rapids. All appointments shall be for a term of three (3) years, which term shall expire the first Monday in January the third year after appointment.
(Ord. No. 68-28, 5-6-68; Ord. No. 70-41, 6-23-70; Ord. No. 74-9, 1-9-74; Ord. No. 76-50, 6-29-76)

Sec. 1.359. Duties.

The Grand Rapids Historical Commission shall have the responsibility for the collection of source material and other data for purposes of compiling and keeping current the history of the City of Grand Rapids and such other responsibilities as may be assigned to it from time to time by the City Commission.
(Ord. No. 68-28, 5-6-68)

ARTICLE 7. LOCAL OFFICERS COMPENSATION COMMISSION†

Sec. 1.360. Local Officers Compensation Commission.

(1) A Local Officers Compensation Commission is hereby created which shall determine the salaries of the Mayor, City Commissioners and Comptroller. The Compensation Commission shall consist of seven (7) members who are registered electors of the City, appointed by the Mayor subject to confirmation by a majority of the members elected and serving on the City Commission. The terms of office shall be seven (7) years, except that of the members first appointed, one (1) each shall be appointed for terms of one (1), two (2), three (3), four (4), five (5), six (6) and seven (7) years. All first members shall be appointed within

*Cross reference—Historic preservation Commission, Ch. 68.

†State law reference—Authority to create a Local Officers Compensation Commission, MCL 117.5c, MSA 5.2084(3).

thirty (30) days after the effective date of this Section. Thereafter members shall be appointed before October 1 of the year of appointment. Vacancies shall be filled for the remainder of the unexpired term. No member or employee of the legislative, judicial or executive branch of any level of government or members of the immediate family of such member or employee shall be eligible to be a member of the Compensation Commission.

(2) The Compensation Commission shall determine the salary of each local elected official, which determination shall be the salary unless the City Commission, by resolution adopted by two-thirds (2/3) of the members elected to and serving on the City Commission rejects it. The determination of the Compensation Commission for each local elected official shall be effective thirty (30) days following its filing with the City Clerk unless rejected by the City Commission. In case of rejection, the existing salary shall prevail. Any expense allowance or reimbursement paid to elected officials in addition to salary shall be for expenses incurred in the course of City business and accounted for to the City.

(3) The Compensation Commission shall meet for not more than fifteen (15) session days in 1972 and every odd numbered year thereafter and shall make its determination within forty-five (45) calendar days of its first meeting. A majority of the members of the Compensation Commission shall constitute a quorum for conducting the business of the Compensation Commission. The Compensation Commission shall take no action or make any determination without a concurrence of a majority of the members appointed and serving on the Compensation Commission. The Compensation Commission shall elect a Chairman from among its members.

"Session days" means any calendar day on which the Compensation Commission meets and a quorum is present.

(4) The members of the Compensation Commission shall receive no compensation, but shall be entitled to their actual and necessary expenses incurred in the performance of their duties. The City Commission shall implement this provision by resolution. After one (1) year following the date this Section goes into effect the procedure for establishing the compensation of elected officials may be changed by Charter amendment or revision.

(5) Within sixty (60) days after the effective date of this Section, a petition for a referendum on the ordinance may be filed in accordance with the procedure provided in the City Charter or otherwise by filing a petition with the City Clerk containing the signatures of at least five (5) percent of the registered electors of the City on the effective date of this Section in which case the election shall be conducted in the same manner as an election on a Charter amendment. If a petition for referendum is filed, any determination of the Compensation Commission shall not be effective until this Section has been approved by the electors.

(6) This Section 1.360 of the Code shall be in lieu of Section 36 of Title V of the Grand Rapids City Charter and is adopted in pursuance of Act No. 8 of the Public Acts of Michigan of 1972.
(Ord. No. 72-26, 4-11-72; Ord. No. 83-30, 5-31-33)

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Chapter 9

PROPERTY TAX LEVY AND COLLECTION*

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ARTICLE 1. BOARD OF REVIEW AND TAX CALENDAR

Sec. 1.361. Board of Review.

In accordance with the provisions of Act 206 of the Public Acts of 1893, as amended, and Title II and Title IX of the Charter of the City of Grand Rapids, as amended, a Board of Review is hereby created for the City of Grand Rapids.
(Ord. No. 90-93, § 1, 12-18-90)

Sec. 1.362. Appointed Members; Qualifications.

The Board of Review shall consist of six (6) members who shall be selected by the Mayor, subject to the approval of the City Commission, upon the basis of their knowledge of the subject of taxation and of property values. Members must be taxpayers and residents of the City for five (5) years.
(Ord. No. 90-93, § 1, 12-18-90; Ord. No. 91-16, § 1, 3-19-91)

Sec. 1.363. Terms of Office.

Members of the Board of Review shall be appointed on or before February 1 of each year for staggered five-year terms. Two (2) members of the Board shall have terms expiring on the same year.
(Ord. No. 90-93, § 1, 12-18-90)

Sec. 1.364. Powers and Duties.

The Board of Review shall have the powers and duties as provided in Act 206 of the Public Acts of 1893, as amended and Title IX of the City Charter, as amended.
(Ord. No. 90-93, § 1, 12-18-90)

Sec. 1.365. Procedure.

The Board shall be divided into two (2) Committees consisting of three (3) members each for the purpose of hearing and deciding issues protested pursuant to Section 30 of Act 206 of the Public Acts of 1893, as amended (MCL § 211.30). Two (2) of the three (3) members of a Board of Review Committee shall constitute a quorum for the transaction of the business of the Committee. All meetings of the members of the Board of Review and Committees shall be held the same hours of the same day at the same location.

A majority of the entire Board of Review membership shall endorse the assessment roll as provided in Section 30 of Act 206 of the Public Acts of 1893, as amended (MCL § 211.30). The duties and responsibilities of the Board contained in Section 29 of Act 206 of the Public Acts of 1893, as amended (MCL § 211.29) shall be carried out by the entire membership of the Board of Review and a majority of the membership shall constitute a quorum for such purpose.
(Ord. No. 90-93, § 1, 12-18-90)

Sec. 1.366. Compensation.

Pursuant to Section 10 of Title IX of the City Charter, the City Commission shall, by resolution, fix the compensation rates for members of the Board of Review. For the purpose of calculating such compensation, meetings lasting four (4) hours or less shall constitute a one-half (½) day meeting. Those lasting longer than four (4) hours shall be a full day meeting.
(Ord. No. 90-93, § 1, 12-18-90)

Sec. 1.367. Assessment Roll Completion.

In order to comply with the provisions of Act No. 206 of the Public Acts of 1893, as amended, concerning date for completion of the Assessment Roll and date for completion of the review of the Assessment Roll by the Board of Review in each year, the following dates and periods for preparing, making, completing and reviewing the Assessment Roll in each year are hereby provided for:

December 31—Tax Day;

Fourth Monday in January—Final date for return of personal property statements;

First Monday in February—Commencement of the ten-day period for the Assessor's Review, as provided in Section 9 of Title IX of the Charter of the City of Grand Rapids.

(1) Notice of completion of the assessment roll for the purpose of Assessor's review shall be published for ten (10) days prior to the first Monday in February in the manner

provided for in Section 9 Title IX of the Charter.

(2) The Assessment Rolls shall be completed on this date for the purpose of the Assessor's Review.

The first Monday in March—Completion of the Assessment Rolls;

Tuesday following the first Monday in March—First meeting of Board of Review for purposes of organization;

The fifth day following the first Monday in March—On or before this date written notices of appeal to the Board of Review shall be filed in the office of the City Assessor in the manner provided in Section 10 of Title IX of the Charter;

Second Monday in March—Commencement of Review by the Board of Review;

First Monday in April—Completion of review by the Board of Review.

(Ord. No. 90-93, § 1, 12-18-90)

Sec. 1.368. General Tax Laws.

Except as herein otherwise provided the manner and periods for preparing, making, completing and reviewing the Assessment Roll shall be in accordance with the provisions of the Charter of the City of Grand Rapids and the general tax laws of the State of Michigan. The dates and periods herein provided for shall prevail, any provisions of the Charter to the contrary notwithstanding.
(Ord. No. 90-93, § 1, 12-18-90)

Secs. 1.369, 1.370. Reserved.

ARTICLE 2. INSTALLMENT PAYMENTS, TAX SALES

Sec. 1.371. City and School Taxes.

City and school taxes shall become due and payable on July first of each year hereafter and may be paid or postmarked during the month of July without interest or penalties; provided, however, that in the event the City and school tax rolls shall not be delivered to the City Treasurer in sufficient time to allow the giving of notice as provided in Title IX, Section 20, of the Charter, prior to July first of any year, then the City and school taxes on such tax roll shall become due on the first day of the first month following the month in which the aforesaid notice was given and such City and school taxes may be paid at any time after the delivery of the tax roll to the Treasurer and prior to the due date thereof and during the period from such due date to and including the last day of the first month following the month in which such notice is given, without interest or penalties.
(Ord. No. 94-1, § 1, 1-4-94)

Sec. 1.372. Installment Payment Permitted.

Taxpayers may, at any time prior to sale, pay City and school taxes in installments of not less than one-sixth of the amount of the original tax plus, in any event, penalties due on the portion so paid to the date of payment; provided, no payment shall be less than ten dollars ($10.00).

Sec. 1.373. Penalties.

Penalties on all unpaid taxes or portions thereof shall be paid as follows:

(1) There shall be added to such taxes not paid or postmarked one (1) percent on the first day of the month following the month in which the tax became due and one (1) percent on the first of each succeeding month thereafter until the date of payment, date of the tax sale, or until return of the tax to the County Treasurer.

(2) On the first of March next following there shall be added, in addition to all other amounts, a collection fee which shall be four (4) percent of the total amount not paid or postmarked or such amount as shall be provided for collection fees to be charged by counties under State law for the collection of City and school taxes, whichever amount shall be the greater.

(3) Taxes being collected by the City on behalf of the County of Kent may be paid or postmarked before February 15 of the succeeding year without penalty. On all taxes

paid or postmarked after February 14, the Treasurer shall add to the tax a collection fee equal to four (4) percent of the tax, which collection fee is hereby waived for a senior citizen, paraplegic, quadriplegic, eligible service person, eligible veteran, eligible widow or widower, totally and permanently disabled or blind person as those persons are defined in Chapter 9 of Act No. 281 of the Public Acts of 1967 as amended, being Sections 206.501 to 206.532 of the Michigan Compiled Laws [MSA 7.557(1501) to (1532)]; who makes a claim before February 15 for the credit provided by Chapter 9 of Act No. 281 of the Public Acts of 1967 as amended, being Sections 206.501 to 206.532 of the Michigan Compiled Laws, who presents a copy of the form filed for that credit to the City Treasurer and who has not received the credit before February 15.

(Ord. No. 76-30, 4-20-76; Ord. No. 78-11, 2-14-78; Ord. No. 80-47, 6-24-80; Ord. No. 94-1, § 1, 1-4-94)

Editor's note—Provisions added as subsection 1.373(4) by Ord. No. 82-48, adopted June 15, 1982, were deleted by citizen referendum at the general election of Nov. 2, 1982.

State law reference—Income tax act of 1967, MCL 206.1 et seq., MSA 7.557(101) et seq.

Sec. 1.374. Notices.

The City Treasurer shall cause to be prepared proper proofs of the giving of notice as required by Title IX, Section 20, of the Charter, which proofs shall be by affidavits of the person or persons familiar with the facts relative to the publication of notice in two (2) newspapers and also relative to the posting of notice in at least twenty (20) public places in each of the wards of the City, such affidavits setting forth the facts of publication. Such proofs shall be affixed to the City and school tax roll by the City Treasurer and shall become a part thereof and shall be prima facie evidence of the facts therein set forth.

Sec. 1.375. Public and Special Improvement Assessments, Penalties.

Public and special improvement assessments shall be due and payable when the rolls therefor are placed in the hands of the City Treasurer for collection and the entire tax may be paid or postmarked during the first month thereafter without interest or penalties. If a roll is divided into installments the first installment may be paid or postmarked during the first month without penalties and subsequent installments shall be paid as they fall due. Should any installment not be paid or postmarked during the first month when due, interest shall cease and penalties shall be added at one (1) percent for each month until the tax is paid, until the tax sale, or until return of the tax to the County Treasurer, whichever shall first occur. There shall also be added on the first of March next following a collection fee in addition to such penalties. The collection fee shall be four (4) percent of the total then due or the amount provided by State law for such collection fees for counties making such collection fees, whichever amount shall be the greater.

(Ord. No. 66-40, 8-30-66; Ord. No. 76-30, 4-20-76; Ord. No. 80-47, 6-24-80; Ord. No. 94-1, § 1, 1-4-94)

Cross reference—Special assessments generally, § 1.421 et seq.

Sec. 1.376. Installment Payment Permitted.

Taxpayers may pay any public or special improvement tax, or installment, at any time prior to sale in installments of not less than one-sixth thereof, plus, in any event, penalties due on the portion so paid to the date of payment, but no such payment shall be less than ten dollars ($10.00).

Sec. 1.377. Waiver of Penalties.

The City Commission may, by resolution, provide that penalties assessed under this Article be waived in whole or in part, as equity may require. The City Treasurer may waive penalties assessed under this Article up to two hundred dollars ($200.00) per year per property number as equity may require.

(Ord. No. 80-56, 7-8-80; Ord. No. 94-1, § 1, 1-4-94)

Sec. 1.378. Tax Sales.

Proceedings for sale of real estate for delinquent City and school taxes and public and special improvement assessments shall be instituted each year, commencing with the year 1941, in the manner provided by law.

Cross reference—Tax sales, § 1.391 et seq.

Sec. 1.379. Penalties After Sale.

After sale, a penalty of one (1) percent of the amount of sale shall be added on the first day of each succeeding month during the period of redemption.

Tax sales may be redeemed in installments of not less than one-sixth of the amount of the sale. No payment shall be less than ten dollars ($10.00). The period of redemption shall be one (1) year from the date of sale, but if fifty (50) percent or more of the amount of the sale is paid during such year, the period of redemption shall be extended for one (1) year.
(Ord. No. 80-47, 6-24-80)

Sec. 1.380. Amount Necessary to Redeem.

When the period of redemption has expired, the balance of the tax plus any penalties to date shall be computed, which, in addition to the further sum of five dollars ($5.00) or twenty-five (25) percent of the balance of the tax to date, whichever is greater for each description, shall be collected by the holder of the certificate or tax deed from any purchaser thereof.

Sec. 1.381. Fee for Duplicate Tax Statement Preparation.

After the City Treasurer's computerized summer and winter tax billings have been prepared, any request for a duplicate tax statement which requires the manual preparation of the statement shall be subject to a fee to cover the extra expense involved in such preparation, with the amount of such fee to be established from time to time by resolution of the City Commission. Provided, however, that the City Treasurer shall be authorized to waive such fee when he or she determines that the requesting party either has acted with due diligence or has acted in good faith and has requested the preparation of fewer than ten (10) duplicate statements within any one (1) summer or winter tax billing cycle.
(Ord. No. 86-70, § 2, 12-9-86)

Secs. 1.382—1.390. Reserved.

ARTICLE 3. TAX SALES

Sec. 1.391. Collection and Sale Under Title IX of the Charter of the City of Grand Rapids.

All unpaid or delinquent taxes on the City and school real estate tax roll of the City of Grand Rapids for 1974, 1975, and all years subsequent thereto shall be returned to the County Treasurer for collection and sale under the State law. Unpaid or delinquent taxes on the City and school real estate tax roll for 1974 and 1975 shall be returned on March 3, 1976, and for 1976 and years subsequent thereto shall be returned on March first of the year following the tax levy.
(Ord. No. 76-15, 3-2-76)

Sec. 1.392. Statement of Unpaid Taxes.

If the City Treasurer shall be unable to collect any of the taxes on the City and school tax roll assessed on real property, he or she shall, on or before April first of the second year after such taxes become delinquent, make a statement of same in duplicate, with a full and perfect description of such property as assessed upon said roll, with the several taxes assessed upon each parcel thereof; each of which statements shall be verified by the affidavit of the City Treasurer, or his or her deputy, that such taxes remain unpaid. The City Treasurer shall file one (1) of said statements in his or her office, and the other statement shall be delivered by him or her to the City Attorney, who shall retain the same for the purpose of taking the necessary proceedings for a sale of said lands for the delinquent taxes thereon. The City Commission may, by resolution, extend the time for making and filing such verified statement for twenty (20) days.

Sec. 1.393. City's Lien.

All lands included in the verified statement mentioned in Section 1.392 upon which any taxes shall remain unpaid for a period of one (1) year or more after becoming delinquent, shall be subject to disposition, sale and redemption for the enforcement and collection of such tax liens, in the method and manner as hereinafter provided. In the disposition and sale of such delinquent tax lands, the

City of Grand Rapids shall be deemed to have a valid lien upon such lands with all the rights to endorse the same as a preferred or first claim upon such lands, and the rights and choses to enforce such lien shall be held and construed by all the courts of this State as the prima facie rights of the said City of Grand Rapids and shall not be set aside or annulled except in the manner and for the causes specified by law.

Sec. 1.394. Resolution by Commission.

It shall be the duty of the City Attorney, upon receipt of the statement of the unpaid taxes mentioned in Section 1.392, to notify the City Commission that the same is in his or her possession, and the City Commission may thereupon by resolution, instruct the City Attorney to institute proceedings for the sale of lands listed in said verified statement for unpaid taxes.

Sec. 1.395. Petition for Sale.

The City Attorney shall thereupon file a petition for the sale of said lands, in the Circuit Court of Kent County, and the same proceedings shall be had, the same notices given, the same orders and decree made, the same sale had, as near as may be as provided in Chapter 10 (Special Assessments) and all the provisions of said Chapter 10 in regard to payment of the taxes before sale, the giving of deeds, the period of redemption, the power, authority and jurisdiction of the Circuit Court of Kent County in regard thereto, the issuance of writs of assistance and the notice required prior thereto, together with the right to appeal and the practice thereunder and each and every other provision thereof, shall, as far as applicable, be and become a part of this Article except insofar as the same may be modified or changed by this Article. Provided that said petition and the proceedings thereafter shall include interest to the date of sale, figured the same as the prior interest at one (1) percent per month; provided, further, that where in said Chapter 10 the word "assessment" is used as meaning the tax or amount to be collected, the word "tax" shall be substituted for the purposes of this Article.

Secs. 1.396—1.400. Reserved.

ARTICLE 4. CITY TAX LANDS

Sec. 1.401. Manager to Have Custody.

The City Manager, subject to the supervision and control of the City Commission and the provisions of this Article, shall have the care, custody and disposition of all real estate, or any interest therein, now held or which may be hereafter acquired by the City of Grand Rapids by reason of any City or State tax or assessment sales.

Sec. 1.402. Period of Redemption.

Before offering for sale such real estate or any interest therein which the City shall hereafter acquire, the City Manager shall hold said real estate for a period of thirty (30) days after the acquisition of title, during which time the owner or holder of a mortgage thereon shall have the right to obtain the City's interest therein by the payment to the City of not less than the amount of money which the City has invested therein in the form of unpaid taxes or otherwise, plus interest, penalties and costs.

If no application is made to revest title within the thirty-day period above mentioned, then the right to sell the City's interest in such real estate shall become absolute. In the event that both the owner and holder of the mortgage shall make application to revest title as above provided, the owner thereof shall be given preference.

Sec. 1.403. Lease of Unsold Land.

It shall be the duty of the City Manager as soon as the City of Grand Rapids obtains title to any real estate, whether by City or State tax or assessment sales, if the same cannot be sold as herein provided, to negotiate a lease of the same upon the best terms he or she can procure, and report such lease to the City Commission for its approval, reserving however, in any such lease, the right of said City to sell the real estate embraced therein at any time during the continuance thereof. It shall also be the duty of the City Manager to negotiate terms of sale of such real estate and report same to the City Commission for approval.

Sec. 1.404. Determining Land Value; Sales.

After the lapse of thirty (30) days from the date when the City of Grand Rapids first obtained title to any real estate, or any interest therein, the City Manager shall offer the same for sale, but no sale shall be then made to any person whomsoever for less than the market value thereof, and which valuation shall be determined and established by the City Commission by and with the aid of the City Assessors if it deem it expedient, or the City Commission may appoint appraisers to examine the property and report on the value thereof to the City Commission. The final findings of the City Commission on the value thereof shall be binding and final as to such value.

Sec. 1.405. List of Tax Lands.

The City Manager shall prepare a list of all the lands in which the City holds title through tax sales, and ascertain and list in connection with each parcel, the value thereof, and thereafter from time to time make such additions to or corrections in the same as may be necessary to keep it up to date.

Secs. 1.406—1.409. Reserved.

ARTICLE 5. TAXATION OF ASSISTED LOW-INCOME HOUSING AND WORKFORCE HOUSING*

Sec. 1.410. Definitions.

Terms not defined herein shall have those definitions contained in Chapter 1 of the State Housing Development Authority Act, Public Act 346 of 1966, as amended (Public Act 346).

(1) "Additional amount" means the amount equal to the difference between the following:

a. The millage rate levied for operating purposes by the county multiplied by the current taxable value of that housing project.

b. The amount of the annual service charge paid by the housing project under Section 1.413.A. that is distributed to the county.

(2) "Annual shelter rent" means the total collections during an agreed annual period paid by or on behalf of all occupants of a housing project representing rent or occupancy charges, less charges for utilities furnished to the occupants and paid by the housing project owner.

(3) "Authority" means the Michigan State Housing Development Authority.

(4) "Homebuyer" means the household that will permanently own and occupy the owner-occupied workforce housing project.

(5) "Household" means an individual or family and all occupants residing in the unit.

(6) "Low-income household" means a household with:

a. Income not greater than sixty (60) percent of the Area Median Income (AMI) published by the Authority based on United States Department of Housing and Urban Development (HUD) data; or

b. Income at or below eighty (80) percent of AMI when residing in Low Income Housing Tax Credit (LIHTC) Program units rent restricted at various levels up to eighty (80) percent of AMI where the average rent restriction of all units is sixty (60) percent AMI or less.

(7) "Mortgage Loan" means a loan that is Federally-aided (as defined in Section 11 of Public Act 346) or a loan or grant made or to be made by the Authority, for the construction or rehabilitation and/or permanent financing of a housing project, and then secured by a mortgage on the housing project.

(8) "Rehabilitation" means all or part of those repairs and improvements necessary to make residential real property safe, sanitary, or adequate.

*__Editor's note—__Ord. No. 2024-43, § 2, adopted December 17, 2024, amended Art. 5 to read as herein set out in §§ 1.410—1.414. Prior to inclusion of said ordinance, Art. 5, §§ 1.410—1.413, pertained to taxation of assisted lower income housing and derived from Ord. No. 2018-04, § 1, adopted Jan. 30, 2018 and Ord. No. 91-54, § 1, adopted Oct. 29, 1991.

(9) "Restrictive Covenant" means an agreement between the owner of the housing project and the City recorded with the Kent County Register of Deeds and running with the land that restricts the use of the housing project to workforce housing as defined in the Ordinance, for a period not to exceed fifteen (15) years.

(10) "Workforce housing" means rental or owner-occupied units that are reasonably affordable to, and occupied by, a household whose total household income is not greater than one hundred and one hundred and twenty (120) percent of the Area Median Income (AMI) published by the United States Department of Housing and Urban Development (HUD).

(11) "Utilities" means gas, electric, water and sanitary sewer services provided to a housing unit. Utilities do not include cable, broadband, telephone or similar communications services.

(Ord. No. 2024-43, § 2, 12-17-24)

Sec. 1.411. Eligible Housing Projects.

The tax exemption established in subsection (1) of Section 15a of Public Act 346 (MCL 125.1415a) shall apply to housing projects within the boundaries of the City of Grand Rapids that meet either of the following criteria:

(1) Low-income housing projects.

a. Projects that are financed with a Federally-aided or State Housing Development Authority-aided mortgage or with an advance or grant from such Authority, and

b. Projects that serve low-income households, elderly and/or handicapped, and

c. Projects that are owned by a "consumer housing cooperative," "qualified nonprofit housing corporation," or a "limited dividend housing association" as defined in Public Act 346, as amended.

(2) Workforce housing projects. To qualify as a workforce housing project, a housing project must be either:

a. Rental project:

1. Projects that are being developed or rehabilitated for workforce housing. Rehabilitation work may not occur prior to applying to the City for tax exemption. All projects other than new construction development are to be considered rehabilitation projects, and

2. The rent and utilities paid by or on behalf of the occupants do not exceed the applicable Area Median Income (AMI) rent limit, adjusted by number of bedrooms in the unit, published annually by the Authority based on United States Department of Housing and Urban Development (HUD) data, and

b. A housing unit that is being developed or rehabilitated for owner-occupied workforce housing.

(Ord. No. 2024-43, § 3, 12-17-24)

Sec. 1.412. Authorization and Establishment of Property Tax Exemption.

(a) Owners of eligible housing projects described that qualify under Section 1.411.(1) and (2)a. may apply to the designated City department, and upon satisfaction of all other requirements in the Ordinance from which this section is derived, shall be approved.

(b) Owner-occupants of eligible housing projects that qualify under Section 1.411.(2)b. may apply to the designated City department, and upon satisfaction of all other requirements in the Ordinance from which this section is derived, shall be approved. Homebuyers with an executed purchase agreement to purchase a newly developed or rehabilitated workforce housing project are eligible to apply.

(c) The owner of a workforce housing project that qualifies under Section 1.411.(2) shall enter into a Restrictive Covenant with the City of Grand Rapids, subject to approval by the City Attorney, that is recorded in Kent County and specifies the terms and conditions of the tax exemption as follows:

(1) The Restrictive Covenant shall provide (a) that the Restrictive Covenant may be enforced by the City of Grand Rapids, (b) for the reporting and monitoring of the housing project owner's compliance with the Restrictive Covenant and the Ordinance from which this section is derived, (c) remedies available to the City of Grand Rapids for non-compliance, including termination of the exemption, (d) that ad valorem taxes will be assessed for units with households that have income above one hundred and twenty (120) percent of AMI, as reported on annual compliance reports, and that such units will not revert to being tax exempt until a future annual compliance report evidences household income that does not exceed one hundred and twenty (120) percent of AMI, and (e) that the Restrictive Covenant cannot be modified except in a written instrument executed by the housing project owner and the City of Grand Rapids and recorded with the Register of Deeds.

(2) The Restrictive Covenant for a rental workforce housing project under Section 1.411.(2)a. shall stipulate the number of units to be rented to households within the various income brackets. For all units in the rental workforce housing project, rent and utilities shall not exceed the applicable Area Median Income (AMI) rent limit, adjusted by number of bedrooms in the unit, published annually by the Authority, based on United States Department of Housing and Urban Development (HUD) data and household income shall not exceed one hundred and twenty (120) percent of Area Median Income.

(d) The owner of the housing project shall submit an affidavit to the Authority in the form required by the Authority for certification by the Authority that the project is eligible for the property tax exemption. The owner or Authority must then file the certified notification of exemption with the City of Grand Rapids Assessor before November 1 of the year preceding the tax year in which the exemption is to be effective.

(e) Workforce housing projects under Section 1.411.(2)a., subject to the recording of the Restrictive Covenant, shall be exempt from all ad valorem property taxes as of December 31 of the year in which development or rehabilitation commences. Work must start within one (1) year of the Authority's certification of exemption or such longer period as specified in the Restrictive Covenant.

(f) Workforce housing projects under Section 1.411.(2)b., subject to the recording of the Restrictive Covenant, shall be exempt from all ad valorem property taxes as of December 31 of the year in which work is complete and the homebuyer obtained title to the housing project.

(g) Not later than five (5) business days after receipt of the certified notification of exemption for a workforce housing project, the City Assessor shall provide a copy of the certified notification of exemption to the County Treasurer.

(h) Notwithstanding the provisions of MCL 125.1415a(3)(b) and 125.1415a(7) to the contrary, upon City approval of the tax exemption and receipt of a certified notification of exemption from the Authority, a contract shall be deemed effective between the City of Grand Rapids and the owner of the housing project to provide tax exemption and accept service charge payments in lieu of taxes as described in the ordinance from which this section is derived.

(i) During the exemption period, units in housing projects that qualify under Section 1.411 shall be in compliance with the City's Property Maintenance Code (Chapter 140), including requirements for Registration of Dwellings and Certificates of Compliance.

(j) Housing projects that qualify under Section 1.411.(1) above shall have the tax exemption provided in subsection (1) of Section 15a of Public Act 346, provided the owner of the housing project has complied with Public Act 346, is current with all taxes and assessments on the subject property, and has annually filed before August 1 an audited financial statement for the previous calendar year, as requested, with the City Assessor.

(k) Housing projects that qualify under Section 1.411.(2)a. above shall have the tax exemption provided in subsection (1) of Section 15(a) of Public Act 346, provided the owner of the housing project has complied with Public Act 346, is current with all taxes and assessments on the subject property, and has annually filed before August 1 a financial statement for the previous calendar year, as requested, with the City Assessor and has annually submitted by May 30 an annual compliance report for the previous calendar year, as requested.

(1) An annual audited financial statement shall be required for all housing projects with twenty (20) or more units.

(2) Housing projects with less than twenty (20) units may submit an audited financial statement, or either a third-party prepared or internally-prepared financial statement, certified by the owner, showing the actual annual shelter rent collected for the preceding calendar year.

(3) For housing projects that have units occupied by households at various income brackets, or that have units that are both eligible and not eligible for tax exemption under the Ordinance from which this section is derived, the owner must report the amount of rent collected for the preceding year by unit.

(l) Housing projects that qualify under Section 1.411.(2)b. above shall have the tax exemption provided in subsection (1) of Section 15a of Public Act 346, provided the owner of the housing project has complied with Public Act 346, is current with all taxes and assessments on the subject property, and has annually affirmed to the City continued eligibility for the tax exemption.

(Ord. No. 2024-43, § 4, 12-17-24)

Sec. 1.413. Service Charge in Lieu of Taxes.

(a) The owner of the housing project exempt from taxation under the Ordinance from which this section is derived and Public Act 346 shall pay to the City of Grand Rapids an annual service charge for public services in lieu of all taxes. All of the following apply to the amount that an owner must pay as a service charge. In no case shall the service charge exceed the amount in taxes that an owner would have otherwise paid if the housing project were not tax exempt.

(1) Low-income housing projects approved for tax exemption under Section 1.411.(1) of the Ordinance from which this section is derived on or after January 17, 2025 shall pay a service charge in the amount equal to four (4) percent of annual shelter rent or may choose to pay a service charge in the amount equal to one (1) percent of annual shelter rent in addition to making an annual contribution to the City of Grand Rapids' Affordable Housing Fund in an amount equal to three (3) percent of the annual shelter rent. If the annual contribution to the Housing Fund is not made by the due date specified by the City, the service charge shall revert to four (4) percent of annual shelter rent.

(2) Workforce housing projects approved for tax exemption under Section 1.411.(2)a. of the Ordinance from which this section is derived on or after January 17, 2025 shall pay:

a. For a new construction project:

1. An amount that is the greater of the ad valorem tax on the property on which the project is located for the tax year

proceeding the date on which the construction is commenced, or

2. An amount equal to the percent of annual shelter rent specified under Option 1 in the table below or an amount equal to the total percent of annual shelter rent specified under Option 2 in the table below (Service Charge plus Affordable Housing Fund contribution). Under both options, the annual shelter rent used to determine the service charge and Affordable Housing Fund contribution is based on the number of qualifying units specified in the Restrictive Covenant. If the annual contribution to the Housing Fund is not timely made, the service charge shall revert to an amount equal to the percent of annual shelter rent specified under Option 1.

b. For a rehabilitation project:

1. An amount that is the lesser of the ad valorem tax on the property on which the project is located for the tax year preceding the date on which rehabilitation commenced, or

2. An amount equal to the percent of annual shelter rent specified under Option 1 in the table below or an amount equal to the total percent of annual shelter rent specified under Option 2 in the table below (Service Charge plus Affordable Housing Fund contribution). Under both options, the annual shelter rent used to determine the service charge and Affordable Housing Fund contribution is based on the number of qualifying units specified in the Restrictive Covenant. If the annual contribution to the Housing Fund is not timely made, the service charge shall revert to an amount equal to the percent of annual shelter rent specified under Option 1.

Unit Occupant Household Percent of Area Median Income as published by the United States Department of Housing and Urban Development (HUD)	≤120%	>80% - ≤100%	>60% - ≤80%	≤60% and Low Income Housing Tax Credit (LIHTC) projects with income averaging
Percent of Shelter Rent Collected				
Option 1				
Service Charge	10%	8%	6%	4%
Option 2				
Service Charge	5%	3%	2%	1%
Affordable Housing Fund Contribution	5%	5%	4%	3%

(3) Workforce housing that is owner-occupied and approved for tax exemption under Section 1.411.(2)b. of the Ordinance from which this section is derived on or after January 17, 2025 shall pay a service

charge in an amount equal to ten (10) percent of ad valorem taxes that would be otherwise payable.

(b) Within forty-five (45) days after the Kent County treasurer receives the certified notification of exemption for a workforce housing project from the City Assessor, the county may pass a resolution, by majority vote, that provides that the "additional amount" must be paid to the county. The "additional amount" shall be charged to the workforce housing project in addition to the service charge and the Affordable Housing Fund contribution.

(c) Notwithstanding subsection (a)(1) above, a service charge paid each year in lieu of taxes for that part of a housing project that is tax exempt under Section 1.411.(1) of the Ordinance from which this section is derived and occupied by households other than low-income households must be equal to the full amount of taxes that would be paid on that portion of the housing project if the housing project were not tax exempt. The owner of the housing project must allocate the benefits of any tax exemption granted under the Ordinance from which this section is derived exclusively to low-income households or to the maintenance and preservation of the housing project as safe, decent, and sanitary affordable housing.

(d) Notwithstanding subsection (a)(2) above, a service charge paid each year in lieu of taxes for that part of a housing project that is tax exempt under Section 1.411.(2)a. of the Ordinance from which this section is derived and not used for workforce housing must be equal to the full amount of taxes that would be paid on that portion of the housing project if the housing project were not tax exempt. The owner of the housing project must allocate the benefits of any tax exemption granted under the Ordinance from which this section is derived exclusively to workforce housing or to the maintenance and preservation of the housing project as a safe, decent, and sanitary workforce housing.

(e) Housing projects approved for tax exemption under the Ordinance from which this section is derived on or before December 31, 1990, shall pay a service charge in the amount equal to ten (10) percent of annual shelter rent, except as provided in 1.413.(g) below.

(f) Housing projects approved for tax exemption under the Ordinance from which this section is derived on or after January 1, 1991, but before January 17, 2025 shall pay a service charge in the amount equal to four (4) percent of annual shelter rent or may choose to pay a service charge in the amount equal to one (1) percent of annual shelter rent in addition to making an annual contribution to the City of Grand Rapids' Affordable Housing Fund in an amount equal to two (2) percent of annual shelter rent. If the annual contribution to the Housing Fund is not made, the service charge shall revert to four (4) percent of annual shelter rent.

(g) Housing projects approved for tax exemption under the Ordinance from which this section is derived between January 1, 1990, and December 31, 1990, may request requalification at the four (4) percent rate. The granting of requalification requests shall require the approval of the City Commission and would be effective the subsequent tax year.

(h) Housing projects defined as emergency shelters or transitional housing for the homeless that are not otherwise exempt from ad valorem taxes shall not be assessed a service charge in lieu of property taxes.

(i) Any service charge payment or portion of payment remaining unpaid as of the due date shall bear interest at one (1) percent per month and require payment of a three (3) percent penalty fee. The collection of past due payments shall otherwise be in accordance with the provisions of Chapter 211 of the General Property Tax Act, Act 206 of 1893, as amended; MCL 211.44 et seq.
(Ord. No. 2024-43, § 5, 12-17-24)

Sec. 1.414. Duration of Exemptions and Service Charges in Lieu of Taxes; Severability and Inconsistent Ordinances.

(a) The exemptions and service charges authorized under the Ordinance from which this section is derived for low-income housing projects

that qualify under Section 1.411.(1) above shall be in effect so long as the housing project remains subject to a Mortgage Loan, not to exceed fifty (50) years.

(b) The exemptions and service charges authorized under the Ordinance from which this section is derived for workforce housing projects that qualify under Section 1.411.(2) above shall be in effect for a term not to exceed fifteen (15) years.

(c) The various sections and provisions of the Ordinance from which this section is derived shall be deemed to be severable and should any section or provision of the Ordinance from which this section is derived be declared unconstitutional or invalid by any court of competent jurisdiction, the same shall not affect the validity of the Ordinance from which this section is derived as a whole or any section or provision of the Ordinance from which this section is derived, other than the section or provision declared unconstitutional or invalid.

(d) All ordinances or parts of ordinances inconsistent or in conflict with the provisions of the Ordinance from which this section is derived are repealed to the extent of such inconsistency or conflict.
(Ord. No. 2024-43, § 6, 12-17-24)

ARTICLE 6. COLLECTION OF DELINQUENT PERSONAL PROPERTY TAXES

Sec. 1.415. Purpose and Intent.

The purpose and intent of this Article is to implement specifically some of the authority granted to the City Treasurer by Title IX, Section 22, of the Charter of the City of Grand Rapids, to use all means which are lawful for the collection of debts generally to collect delinquent personal property taxes. Because State law prohibits officials of the political subdivisions of the State from compromising personal property taxes, nothing in this Article should be construed as authorizing the release of property from any lien for unpaid taxes, penalties and collection fees until such taxes, penalties and collection fees have been paid in full.
(Ord. No. 83-4, 2-1-83)

Sec. 1.416. Definitions.

For purposes of this Article only, certain terms shall have the following meanings:

(1) *Base taxes.* The amount of taxes originally due, without the addition of collection fees or accrued delinquency penalties.

(2) *Collection fees.* Those charges imposed for the collection of personal property taxes which are authorized by this Chapter or by State law and which are added to the base amount of taxes.

(3) *Delinquency penalties.* Those charges imposed for nonpayment of taxes by the due date which are authorized by this Chapter or State law and which are added to the base amount of taxes.

(4) *Delinquent personal property taxes.* Taxes levied against personal property pursuant to this Chapter and State law which have not been paid by their due date.

(5) *Personal property tax account.* An account established by the City Treasurer for the levy and collection of personal property taxes for each taxing unit for each year's taxes for each taxpayer.

(6) *Taxing unit.* The local government agency imposing the tax involved and for whose use and benefit the tax is collected; i.e., the City of Grand Rapids; the County of Kent; each public school System with some portion of its district located within the City limits and for which taxes are collected by the City Treasurer.
(Ord. No. 83-4, 2-1-83)

Sec. 1.417. Contracts for Collection Authorized.

The City Commission may award professional services contracts to assist the City Treasurer in the collection of delinquent personal property taxes under the following conditions:

(1) Contracts may be awarded only to collection agencies properly licensed pursuant

to Act 299, Public Acts of Michigan of 1980, as amended, and to duly licensed Michigan Attorneys.

(2) In the collection of delinquent personal property taxes, collection agencies and attorneys must conform to the requirements and standards imposed upon them by State "collection practices" statutes applicable to them in the collection of claims or debts as defined in those statutes. For collection agencies, the relevant statute is Act 299, Public Acts of Michigan of 1980, as amended (Article 9 thereof), being MCLA § 339.901 et seq. For attorneys, the relevant statute is Act 70, Public Acts of Michigan of 1981, being MCLA § 445.251 et seq.

(3) Contracts may be awarded only for the collection of delinquent personal property taxes of those taxing units which have authorized their use either by concurring in the award of specific contracts or by providing the City Treasurer with separate written authorization valid for all contracts awarded for either a time certain or until revoked.

(4) The contract fee paid to a collection agency or attorney shall be calculated on an individual delinquent personal property tax account basis. In no event shall the fee on each individual delinquent account collected exceed the delinquency penalty and collection fee on such account. For purposes of this Article, if less than the full balance in a delinquent account is collected, all amounts collected shall be allocated between base taxes, collection fee, and delinquency penalty on a pro rata basis in the same ratio that each bears to their sum.

(5) The City Commission may require collection agencies and attorneys awarded contracts to provide the City with bonds, insurance, and indemnification assurances as conditions of contract.

(Ord. No. 83-4, 2-1-83)

State law references—Collection practices, MCL 339.901 et seq., MSA 18.425(901) et seq.; regulation of collection practices of certain persons, MCL 445.251 et seq., MSA 19.658(1) et seq.

Secs. 1.418—1.420. Reserved.

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Chapter 10

SPECIAL ASSESSMENTS*

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*Cross reference—Public and special improvement assessments, penalties, § 1.375.
State law references—Power re special assessments, MCL 117.4a, 117.4b, 117.4d, 117.5; MSA 5.2074, 5.2075, 5.2077, 5.2084.

Secs. 1.473—1.500. Reserved.

Sec. 1.421. Declaration of Necessity.

Whenever it shall become necessary to appropriate private property for any public improvement, the City Commission shall first declare by resolution the necessity for such improvement and the necessity for taking such property for such use or improvement. Such property may be acquired by the City of Grand Rapids either by purchase through the City Commission, or by condemnation for public use in the manner provided for by the general laws of the State of Michigan relating to the taking of private property for public use.

Cross reference—Determination of necessity, § 1.427.

Sec. 1.422. Owner May Be Relieved of Cost of Improvement.

Whenever such property has been contributed by the owner, the City Commission may, by a majority vote, relieve the property owner who has so contributed a portion of the improvement from the whole or any part of the assessment for such improvement. Provided, the same shall be done in strict compliance with Section 21 of Title X of the Charter.

Sec. 1.423. Financing by Special Assessment.

The City Commission shall have power to determine that the whole or any part of the cost of any public improvement shall be defrayed by special assessment upon the property especially benefited. The term "public improvement" as used in this Chapter shall be construed to mean any public work or public and special improvement which the City is empowered to undertake under the City Charter or the laws of the State of Michigan, any part of the cost of which may be assessed against property benefited.
(Ord. No. 65-18, 9-14-65)

Sec. 1.424. Advisory Petitions.

The City Commission may, by a majority vote, make a preliminary determination of necessity of any improvement without a petition being filed therefor, except in those cases where the Charter may require a petition. The City Commission, in order to ascertain whether or not a reasonable number of property owners to be assessed desire any particular public improvement to be made, may request and receive a petition therefor, or may receive such a petition voluntarily presented, but in either event, such petition shall be advisory only and shall not be jurisdictional except in those cases where the City Charter requires a petition to confer jurisdiction. In the case of public improvements, part or all of the cost of which may be assessed to the property benefited upon a front-foot basis, such petition may be signed by the owners of a majority of the front footage of the real estate abutting said improvement or proposed to be improved or benefited thereby, as shown by the current tax assessment roll of the City.
(Ord. No. 65-18, 9-14-65)

Sec. 1.425. Maps and Estimates.

Before the City Commission shall take action respecting any public improvement hereunder, the City Manager shall prepare a map of the proposed special assessment district, an estimate of the cost of the proposed improvement and plans and specifications therefor and shall present the same to the City Commission, together with his or her recommendation as to what portion of the cost should be paid by special assessment and the amount, if any, of the cost of such public improvement which shall be levied upon the City at large, the number of installments in which the assessments may be paid, and the lands which should be included in the special assessment district. After the report is presented to the City Commission, it may be filed with the City Engineer and made available to the public for examination.

Sec. 1.426. Hearing on Improvement.

After the material required to be prepared by the City Manager is presented to the City Commission, it may direct by resolution of a majority of the members elect that a public hearing concerning such proposed public improvement shall be held before the City Commission at a time and place to be fixed by it. The City Engineer shall cause notice of the time and place of such hearing to be published once in the official newspaper of the City not less than ten (10) days prior to the date of said hearing. Such notice shall also State that the report, plans and specifications and esti-

mate of cost are on file with the City Engineer for public examination. A like ten-day notice shall also be sent by first class mail to each owner of property subject to assessment in the proposed special assessment district as indicated by the records of the Assessor's Office at the address and to the person shown on the current tax assessment roll of the City. At the time and place specified in such notice of public hearing the City Commission shall meet and hear any person to be affected by the proposed public improvement. The hearing may be adjourned from time to time as shall be determined by the City Commission.

Cross references—Service of notice generally, § 1.11; notice of assessment, § 1.437.

State law reference—Special assessment notices and hearings, MCL 211.741 et seq., MSA 5.3534(1) et seq.

Sec. 1.427. Determination of Necessity.

After completion of the hearing, the City Commission may, by resolution of a majority of the members elect, declare the public improvement to be necessary and order the same to be acquired and constructed, determine to defray the whole or any part of the cost of the improvement by special assessment upon the property especially benefited in proportion to the benefits thereto, approve the plans and specifications for the improvement, determine the estimated cost thereof, approve the map of the special assessment district, determine the character of the improvement, determine and fix the district over which the assessment to pay the cost thereof shall be levied and the amount, if any, of the cost of such improvement which shall be spread and levied upon the City at large and the cost which shall be spread and levied upon the special assessment district, and specify whether the cost of the public improvement in the first instance shall be met by issuing bonds of the City therefor in anticipation of the collection of the assessments to defray the expense thereof. In addition, by said resolution the City Commission shall order to be transmitted to the Assessor a map of the district fixed by it and a certified copy of said resolution. The City Manager shall transmit to the Assessor such facts as he or she may have necessary to make proper assessment.

Sec. 1.428. Preparation of Assessment Roll.

Within one hundred and fifty (150) days after receipt of said resolution specified in Section 1.427, the Assessor shall prepare a special assessment roll which shall contain the names of the owners and the descriptions of the several parcels of property in the special assessment district as fixed by the City Commission to be assessed for such public improvement, and upon such roll and against each of such descriptions of property the Assessor shall spread and levy that part of the cost of such improvement determined by the City Commission to be spread and levied upon the special assessment district, in proportion as near as may be to the advantages which each parcel in such district shall be deemed by the Assessor to be benefited by the making of such improvement. After the assessment roll is completed, the Assessor shall give notice to all persons assessed thereon of the completion of such roll and that the same will be open for ten (10) days for public inspection and for correction by the Assessor and of the time and place of the meeting of the Board of Review on the special assessment roll. Said notice shall be given by publication at least once in the official newspaper of the City not less than ten (10) full days prior to the first day on which such special assessment roll will be open for public inspection. A like ten-day notice shall also be sent by first class mail by the Assessor to each owner of property subject to assessment as chosen on the current tax assessment rolls of the City. Immediately after the expiration of the ten-day period during which the special assessment roll shall be signed by the Assessor and returned forthwith to the City Commission.

Sec. 1.429. Hearing on Roll.

At a regular session not less than one (1) week after the receipt of such special assessment roll from the Assessor and at the time and place specified in the notice given by the Assessor as required by Section 1.428, the City Commission shall act thereon as a Board of Review and shall continue to act at such other times as may be necessary and as it shall from time to time designate. Any person may appeal in writing to the City Commission acting as such Board of Review at any time prior to the opening of its first session as such Board of Review. The City Commission as such Board of Review shall have the power to correct or change the whole or any part of such spe-

cial assessment roll or to return it to the Assessor for reassessment, in which latter case it shall take the same course as an original special assessment roll. At such time as the City Commission sitting as a Board of Review is satisfied with the special assessment roll, and is of the opinion that such special assessment roll results in the assessments being levied in accordance with the benefits, it shall cause such determination to be entered upon it minutes. Thereafter the City Commission shall adopt a resolution ratifying and confirming said special assessment roll and, in addition, by the terms of said resolution shall determine when such special assessments shall be due and paid or, if the same shall be divided into installments, the number thereof, not to exceed ten (10), in which the special assessment roll may be paid, and shall determine the due dates of the first and subsequent installments on said special assessment roll.

Sec. 1.430. Return of Roll.

If it shall be determined by the City Commission, acting as such Board of Review, to return said assessment roll to the City Assessor for reassessment, the reason for so doing and any instructions or recommendations shall be embodied in a resolution and a copy thereof certified to by the City Clerk as correct, shall be at once delivered, with said assessment roll, to the City Assessor.

Sec. 1.431. Plans and Specifications.

It shall be the duty of the City Manager to prepare or cause to be prepared all plans, specifications and drawings, including profiles and blue prints, of such public or special improvement that may be necessary for the proper construction thereof, and which same shall be public records of his or her office and open to inspection.

Sec. 1.432. Bids.

The City Manager shall advertise for bids at least once in a daily newspaper published in the City of Grand Rapids, and not less than one (1) week before the opening of said bids. Bids shall be received, opened and tabulated by the Director of Public Service, who shall report the same together with his or her recommendation thereon to the City Manager, who shall examine the same, together with such report, and report the same with his or her recommendation to the City Commission, together with the reasons upon which said recommendation is based, and thereupon the City Commission shall pass on said proposals and enter into a contract with any responsible bidder; provided, the City Commission shall require security for the performance of the proposals tendered, and if a bid is accepted, security for the performance of any contract entered into, and the statutory bond for the protection of material suppliers, laborers and subcontractors. The City Commission shall have the right to reject any and all bids, and in case all bids are rejected the City Commission may order the City Manager to readvertise the same, or the City Commission may, by resolution, carried by four (4) votes, order the City Manager to perform such work and furnish such material himself or herself, keeping an itemized account of the cost thereof and reporting the same in writing to the City Commission at once after the same shall be completed. The City Commission shall thereupon examine such report and if found correct, order the same paid by resolution duly adopted by at least four (4) votes; provided, that the City Commission may from time to time, by resolution so adopted, order payment of the work and materials as the same progresses upon recommendation by the City Manager.

Sec. 1.433. Bonds.

For the purpose of meeting the expense of any public or special improvement, or in anticipation of the collection of assessments levied for that purpose, the City Commission may by resolution or ordinance, authorize and direct the Mayor, City Comptroller and City Clerk to borrow not to exceed one and one-half (1.5) percent of the assessed valuation of the City, according to the last preceding City tax roll; provided, that the total amount of bonds issued for such purpose and outstanding at any one (1) time, shall not exceed three (3) percent of the total assessed valuation of the City, according to the last preceding City tax roll; and to issue bonds therefor bearing interest at the rate of not exceeding six (6) percent per annum with interest coupons attached, and said bonds shall be made payable in equal yearly amounts for a period of not exceeding ten (10) years from

the date of issue, as the City Commission may direct and which bonds shall be signed by the Mayor and counter-signed by the City Comptroller and attested by the City Clerk of said City. The said bonds, if issued for street or sewer purposes, shall be endorsed "Special Improvement Bonds, year 19 . . . ," and shall be numbered or lettered consecutively. Said bonds may be made registered or unregistered, and shall not be sold for less than par and the accrued interest, if any, and be payable at the office of the City Treasurer and the proceeds of the same shall be paid to the City Treasurer and by him or her placed to the credit of the improvement fund for which said bonds were issued. The said bonds shall be paid at maturity and cancelled and shall not be reissued or refunded.
(Ord. No. 68-67, 11-5-68)

Sec. 1.434. Delivery of Roll to Treasurer.

The special assessment roll as confirmed by the City Commission shall be delivered by the City Clerk to the City Treasurer for collection with the proper warrant for such purpose attached thereto signed by the Mayor and attested in due form by the City Clerk. In the event that the project will not be started immediately, the City Commission may, in the same resolution confirming the assessment roll, establish a date for collection by the City Treasurer.

Sec. 1.435. Lien Established.

All special assessment and nuisance special assessment contained in any special assessment roll, including any part thereof deferred as to payment and such administrative charge as may be applicable thereto, shall from the date and time of receipt thereof by the City Treasurer constitute a lien upon the respective lots or parcels of land assessed, and until paid shall be a charge against the respective owners of the several lots and parcels of land. Such lien shall be of the same character and effect as the lien created for City taxes and shall include accrued interest and penalties. No judgment or decree nor any act of the City Commission vacating a special assessment shall destroy or impair the lien of the City on the premises assessed for such amount of the assessment as may be equitably charged against the same.
(Ord. No. 84-40, § 1, 6-5-84)

Sec. 1.436. Deficiency Assessments.

The City Commission may provide for spreading of an additional assessment for any improvement in case it determines that the former assessment or assessments will not produce sufficient funds to pay for such improvement. Such additional assessment shall be spread upon a supplemental roll, which shall conform so far as may be to the original roll for such improvement, and shall be made, reviewed, delivered, collected, accounted for and returned in the same manner as the original roll, and all sales and redemptions of property therein described shall be made in the same manner as the sales and redemption upon said original roll.

Sec. 1.437. Notice of Assessment.

Upon receipt of a special assessment roll with the proper warrant for such purpose attached thereto as hereinbefore provided for, the City Treasurer shall mail statements of the several assessments to the respective owners, stating the amount of the assessment and the manner in which it may be paid, and, in addition, the City Treasurer shall publish notice of the fact that said special assessments are due in the official newspaper of the City on or prior to the date that said statements are mailed. Where the special assessment roll is divided into more than one (1) installment, published notice of the second and subsequent installments need not be given, but mailed notice to the owner as shown on the current tax assessment rolls of the City, stating the due date and amount of the next installment, shall be deemed sufficient.

State law reference—Special assessment notices and hearings, MCL 211.741 et seq., MSA 5.3534(1) et seq.

Sec. 1.438. Interest on Unpaid Installments.

In addition to the principal amount of each annual installment there shall be added thereto and collected from the special assessment roll by the City Treasurer as part of each annual installment interest at a rate which shall be determined by the City Commission, which shall be adjusted to a rate equal to the rate borne by the bonds or other

evidences of indebtedness issued or authorized to defray the cost plus one (1) percentum per annum on the entire unpaid balance of the special assessment, commencing with the due date of the first installment and computed to the due date of each particular installment. In addition to said annual interest, in the event that any special assessment or installment thereof shall not be paid within one (1) month of the due date thereof, penalties shall thereafter be charged and added to said past due assessment or installment in lieu of further interest on said installment, as provided in Section 1.375 of Chapter 9 of Title I of the Code of the City of Grand Rapids. Such penalties shall be collected at the same time and in the same manner as the special assessments and interest thereon are collected. The entire assessment, or the first installment thereof if divided into installments, may be paid during the first month after the due date thereof without interest.
(Ord. No. 66-40, 8-30-66; Ord. No. 70-23, 4-28-70; Ord. No. 77-68, 11-29-77)

Sec. 1.439. Delinquent Installments.

When any special assessment or any installment thereof, when divided into installments, shall have been due and unpaid for more than ninety (90) days on the first day of April of any year, such fact shall be certified by the City Treasurer to the City Commission, and the lot or parcel of land against which the special assessment has been spread and levied shall thereupon be sold for delinquent and unpaid assessments and other charges in manner provided hereafter.

Sec. 1.440. Reassessments.

Whenever any special assessment shall in the opinion of the City Commission be invalid by reason of irregularity or nonconformity in the proceedings, or if any court of competent jurisdiction shall adjudge said assessment to be illegal, the City Commission may, whether the improvement has been made or not, or whether any part of the assessment has been paid or not, have power to cause a new assessment to be made for the same purpose for which the former assessment was made. All proceedings on such reassessment and for the collection thereof shall be conducted, so far as may be necessary, in the same manner as provided for in the original assessment and, whenever the assessment or any part thereof levied upon any premises has been so set aside after the same has been paid and not refunded, the payment so made shall be applied on the reassessment and the reassessment shall to that extent be deemed satisfied.

Sec. 1.441. Refunds.

Should the assessments levied or the moneys derived through the sale of special assessment bonds issued in anticipation of the collection of said assessments prove to be more than five (5) percent larger than necessary to defray the cost of the public improvement, then all excess over such five (5) percent shall, pursuant to resolution of the City Commission so directing, be applied pro-rata to the unpaid installments of such special assessments against each lot or parcel of land in such proportion as the original assessment against any such lot or parcel bears to the total amount assessed. Any amount which cannot be applied as aforesaid shall be refunded in cash to the person then assessed for taxes on such property, according to the latest tax assessment roll.

Sec. 1.442. Railroads, Assessments.

All freight houses, roadbeds, rights-of-way and other premises or property belonging to the owner of any steam, electric or street railway or other common carrier within the corporate limits of the City, which are necessarily used in the operating of the respective franchises of the owners of said railroads or other common carriers, and the person, corporation or company owning the same shall be liable for all valid assessments for public improvements hereafter made within the City and assessed against such property. Assessments of such property shall be made in the same manner as that of other property for special improvements under this Chapter, and the assessment roll therefor shall be prima facie evidence in any court of the regularity of all proceedings up to and including such assessment and the making of said roll.

Sec. 1.443. Collection from Railway Companies.

When any assessment is made against any railway or street railway company or the same

shall become due by reason of any franchise given to said company, and the same shall not have been paid within the time fixed for the collection of taxes in said warrant, an action of assumpsit may be instituted in behalf of the City in the proper court to recover the amount of said assessment or assessments, or that shall be due the City under the franchise of said company.

Sec. 1.444. Payment of Tax on Part of Whole Parcel.

Any person owning any undivided share or other part or parcel of real estate assessed in one (1) description may pay the tax on the part thus owned by paying an amount having the same relation to the whole tax as the part on which payment is made has to the whole parcel. The person making such payment shall accurately describe the part on which he or she desires to make payment, and the receipt given and the record of the City Treasurer shall so show such description and by whom paid.

Sec. 1.445. Collection by Treasurer.

In proceeding to collect an assessment upon a roll made as aforesaid the City Treasurer shall credit on such roll all sums paid by any person, and shall mark "paid" all the real estate or any distinct parcel thereof, which is separately assessed upon which the assessments have been paid, and shall then proceed to collect the unpaid assessments thereon in the manner directed in his or her warrant.

Sec. 1.446. City May Purchase.

The City of Grand Rapids is hereby authorized and empowered to purchase all parcels of land which shall be advertised and offered for sale under the provisions of this Chapter, which shall not be sold as aforesaid, and in case the same is not redeemed as provided by law, to receive a deed thereof, and to hold, occupy and enjoy, use, possess, lease and convey the same as fully and as completely as a natural person might or could do.

Sec. 1.447. All Moneys to Be Placed in Contingent Fund.

All moneys received on account of real estate owned by said City, the title to which is vested in the City in pursuance of the provisions of this Chapter, shall be paid into the City Treasury, and placed in the contingent fund.

Sec. 1.448. Treasurer to File List of Unpaid Assessments.

Ninety (90) days after any assessment roll has been placed in the hands of the City Treasurer for collection, without further time shall have been granted to him or her to make collections of assessments on such assessment roll by resolution of the City Commission passed to such effect and duly entered upon the minutes, and at the expiration of such further time, if granted, he or she shall file in his or her office a complete list of real estate upon which the assessments have not been paid or collected, and describe such real estate, and give the amount of the assessment, together with the collection fees, interest and penalties as added upon each parcel; and he or she shall annex thereto a certificate substantially in the following form: "I hereby certify that the above list contains a true and accurate statement of each parcel of real estate, and the assessment and collection fees, interest and penalties thereon remaining unpaid," and the improvement or work on account of which such assessment was made shall be named in such certificate.

Sec. 1.449. Disposition, Sale and Redemption to Be Made Under State Law.

All lands which have been or may hereafter be returned as delinquent for assessments for public or special improvements, after their return to the City Manager as provided for in Chapter 9, Article 4, shall be subject to disposition, sale and redemption for the enforcement and collection of such assessment liens, in the manner as near as may be, and subject to the change of procedure provided in this Chapter, provided under the general State law for the enforcement of the collection of State and County taxes.

Sec. 1.450. List of Delinquents to Be Referred to City Attorney.

Whenever the City Commission shall by resolution determine to enforce the collection of an assessment or assessments by sale of the property

subject to lien for such assessments, and the time for the collection of same by the City Treasurer and any extension of same has elapsed, and the City Treasurer has made and certified to the list or lists of delinquents as required herein, the City Commission shall by resolution refer the matter to the City Attorney to take such further proceedings under the State law and this Chapter as may be necessary to enforce such sale or sales, and thereupon the City Treasurer shall prepare the schedules and assessment records hereinafter mentioned in such form and manner as directed and advised by the City Attorney for use in the proceedings to be taken for said sales and in the making of said sales.

Sec. 1.451. Petition for Sale.

The City Attorney shall thereupon file a petition addressed to the Circuit Court of the County of Kent, which shall contain, by reference, the list of property, as required by the foregoing Sections of this Chapter, upon which assessments for public or special improvements have remained delinquent for more than thirty (30) days. Said lists shall show the total amount of delinquent assessments and collection fees, with interest computed thereon to ninety (90) days from the filing of said petition, and there shall be included with and added to said total amount of delinquent assessments upon each description, one dollar ($1.00) for expenses.

Such petition shall pray a decree in favor of the City of Grand Rapids against said land for the payment of the several amounts specified therein, and in default thereof that such lands be sold. It shall be signed by the City Attorney and need not be otherwise verified, and shall seek to enforce the lien for such assessments, interest and charges, averring their validity, and that they have not been paid, and praying for a sale to pay such lien. Lands heretofore or hereafter bid off in the name of the City of Grand Rapids and thus held, and on which assessments have been made subsequent to the tax or assessment for which such lands were sold to the City, may be included in such petition for all such subsequent assessments which have remained unpaid for more than thirty (30) days after they were so returned as delinquent. The petition shall be substantially bound or fastened with the list of lands and assessments annexed following the same therein. It shall be ruled with appropriate columns, one (1) containing a description of the lands with column for the total amount of assessment, interest and charges claimed due on each parcel of land opposite thereto; also with blank columns with the following headings: "Amount Decreed Against Lands"; "Interest in Each Parcel Sold"; "Name of Purchaser"; "Address of Purchaser"; "Number of Certificate"; "Remarks." The City Attorney may add such other columns as he or she may find necessary. The word "petition" shall be construed to include the lists annexed thereto by reference. Said records shall be called "Assessment Record." Parts of descriptions of land upon which assessments are paid before sale, or which are withheld from sale, the amount of assessments, interest and charges decreed against lands, special orders made by the court relating to any parcel of land or any assessment, the interest in each parcel of land sold, the name of each purchaser and his or her address, and the number of certificates of sale shall be entered in said record opposite the description of land affected thereby. The City Attorney is hereby empowered to include in such petition any lands returned as delinquent for assessments for public or special improvements. Wherever the word "assessment" occurs in this Chapter, unless it clearly appears otherwise, it shall be deemed to mean the tax or assessment levied by the City Assessors as the amount of the benefit or advantage accruing to the land by reason of a public or special improvement.

Sec. 1.452. Notice of Sale.

As soon as said petition and lists or schedules annexed shall be filed with the Kent County Clerk, and not less than thirty (30) days before the day of any sale thereunder the City Treasurer shall notify the owner or owners so far as possible, of each piece or parcel of property whose assessments are then delinquent and subject to sale, by mailing to the last known address of such owner or owners a notice in substantially the following form: Sir—You are hereby notified that sale of lands for delinquent assessments for the improvement of (construction of) _____ will be made at the office of the City Treasurer on the

_____ day of 19_____. A list of such lands with the amount of assessment, interest and charges is published in _____ a newspaper published at the City of Grand Rapids, Michigan. Whether you are uncertain of having paid your assessment or not, you should avoid the possibility of sale by procuring a copy of such paper and examining the descriptions to ascertain if your lands are to be sold. Payment or redemption may be made of the City Treasurer at any time prior to the day of the sale.

Yours, etc.,

_____

Provided, that failure to serve or receive such notice shall not invalidate the proceedings taken under the City Attorney's petition and decree of the Kent County Circuit Court, in foreclosure and sale of the lands for said assessment or assessments.

Sec. 1.453. Order for Sale of Lands.

It shall be the duty of the Circuit Court Judge, on the presentation of said petition, to make an order in substantially the form herein described, which order when so made and signed by the said Judge shall be countersigned by the Clerk of said court, and recorded by him or her in the proper books of his or her office. Said order shall be substantially in the following form:

STATE OF MICHIGAN)
ss.
County of Kent)

The Circuit Court of Kent County.

In the matter of the petition of _____, City Attorney of the City of Grand Rapids, for and in behalf of said City of Grand Rapids, for the sale of certain lands for assessments for public or special improvements assessed thereon; on reading and filing the petition of the City Attorney of the City of Grand Rapids, praying for a decree in favor of the City of Grand Rapids, against each parcel of land therein described, for the amounts therein specified, claimed to be due for assessments, interest and charges on each such parcel of land, and that such lands be sold for the amounts so claimed by the City of Grand Rapids. It is ordered that said petition will be brought on for hearing and decree before said court at the Circuit Court rooms in the County building in the City of Grand Rapids, Kent County, Michigan, on the _____ day of _____, A.D., 19___ at the opening of Court on said day, and that all persons interested in such lands or any part thereof, desiring to contest the lien claimed thereon by the City of Grand Rapids, for such assessments, interest and charges, or any part thereof, shall appear in said Court, and file with the Clerk thereof their objections thereto, on or before the day last aforesaid, and that in default thereof the same will be taken as confessed, and a decree will be taken and entered as prayed for in said petition. And it is further ordered that in pursuance of said decree the lands described in said petition for which a decree of sale shall be made, will be sold for the several assessments, interest and charges thereon as determined by such decree, on the _____ day of _____ A.D. 19___, beginning at 10:00 a.m. on the day or days subsequent thereto, as may be necessary to complete the sale of said lands, and of each and every parcel thereof, at the office of the City Treasurer, or at such convenient place as shall be selected by him or her in the City Hall in said City of Grand Rapids; and that the sale then and there made will be a public sale, and each parcel described in the decree shall be separately exposed for sale for the total assessments, interest and charges, and the sale shall be made to the person paying the full amount charged against such parcel, and accepting a conveyance of the smallest undivided fee simple interest therein; or, if no person will pay the assessment, interest and charges and take a conveyance of less than the entire thereof, then the whole parcel shall be offered and sold. If any parcel of land cannot be sold for the assessment, interest and charges, such parcel shall be passed over for the time being, and shall, before the close of the sale, be reoffered, and if, on such second offer, or during such sale, the same cannot be sold for the amount of aforesaid, the City Treasurer shall bid off the same in the name of the City of Grand Rapids.

Witness the Hon. _____ Circuit Judge, Kent County, Michigan, and the Seal of said Court.

Sec. 1.454. Publication of Order and Petition.

The City Attorney shall cause a copy of said order and a copy of said petition to be published at least once in each week for three (3) successive weeks next prior to the time fixed for the hearing thereof, in the official City newspaper published and circulated in the City of Grand Rapids. Provided, in such petition it shall be sufficient to print against each parcel the total amount of assessment, interest and charges due on each. The proprietor of such paper shall furnish the City Attorney with two (2) copies of each issue of said paper, and said City Attorney shall carefully examine the notices published and see that they are correct. Any person familiar with the facts may make an affidavit as to the publication required. The publication of the order and petition aforesaid shall be equivalent to a personal service of notice on all persons who are interested in the lands specified in such petition, of the filing thereof, of all proceedings thereon, and of the sale of the lands under the decree, and shall give the court jurisdiction to hear such petition, determine all questions arising thereon, and to decree the sale of such lands for the payment of all assessments, interest and charges thereon, the same as if personal service of summons was had on each person interested in such lands. Proof of the publication of the order and petition herein required shall be filed in the office of the Clerk of said court before any final order is made. Any person having any interest in the lands or any portion thereof included or referred to in said petition desiring to contest the validity of any assessment shall file in writing his or her objections thereto with the Clerk of said court, and serve a copy thereof on the City Attorney on or before the day fixed in said notice for the hearing of such petition, and shall not be allowed to make any objections not therein specified. If on the day fixed in such notice for the hearing of such petition or on the day following that day, it shall be made to appear to the court that any person has been prevented from filing his or her objection to any tax without any fault on his or her part such further time may be granted for that purpose as may seem proper, not exceeding five (5) days. The court shall give precedence to the hearing of such petition over all other business, shall examine, consider and determine the matters therein stated and objections made, in a summary manner without other pleadings, and make final decree thereon as the right of the case may be. The taxes specified in the petition shall be presumed to be legal and a decree be made thereof unless the contrary is proven. Evidence shall be taken in open court. All oral testimony shall, at the request of any person interested, be taken in shorthand by the court reporter. The court may make such orders from time to time as may be necessary to facilitate the proceedings, and shall decide all questions as to the admissibility of evidence, and the decisions so made shall be final and not subject to review or appeal. If the lands of two (2) or more persons have been assessed together, the court may, if practicable, separate the same and apportion to each parcel its just proportion of the taxes, interest and charges. If any tax shall be found illegal, such part shall be set aside and the remaining tax shall be decreed valid. The total amount of assessments, interest and charges, as fixed by the court, shall be entered by the Clerk of Court opposite each parcel of land in the column of said record under the heading, "Amount decreed against lands." If the court shall make any order setting aside the assessment on any parcel of land, or any part thereof, or any special order relating to any particular parcel of land, or taxes thereon, a brief entry of such order shall be made upon said record opposite such land or tax, which shall be signed by the Judge of the court, either by his or her full name or initials, and such entry shall have the same effect as if made and entered as a part of the final decree. At least ten (10) days prior to the time fixed for the sale of such lands, the court shall make a final decree in favor of the City of Grand Rapids for such assessment, interest and charges as shall be valid, and determine the total amount thereof chargeable against each parcel of land, and shall order and decree that such several parcels of land, or so much of each as may be necessary to satisfy the amount fixed by such decree, shall severally be sold as the law directs. Such decree shall be considered as a several decree in favor of the City of Grand Rapids against each parcel of land for each tax included therein, and to avoid prolixity the decree may refer to the petition and by such reference the same shall be considered a part of such decree. The court may decree such costs against a person contesting any

tax as may be equitable, if the assessment or any part thereof which remains unpaid, be adjudged valid.
(Ord. No. 72-58, 8-1-72)

Sec. 1.455. Form of Decree.

Such final decree shall be entered in the chancery record for recording decrees of such court, have the usual caption for decrees, and shall be substantially in the following form:

STATE OF MICHIGAN

The Circuit Court for the County of Kent

At a session of said court held at the Court Room in the County Building in the City of Grand Rapids, on the _____ day of _____ A.D., 19___ Present: Hon. _____ Circuit Judge.

In the matter of the petition of _____ City Attorney of the City of Grand Rapids, for and in behalf of said City, for the sale of certain lands for assessments for public or special improvements assessed thereon:

The said petition and the matters therein stated, and the objections filed to certain taxes therein claimed (if any such objections are filed) came on to be heard and proof of the due publication of the order of hearing, and of said petition having been made and filed, and after hearing all parties interested therein: It is ordered, adjudged and decreed that the amount of assessments, interest, collection fee, and charges set down in the column headed "Amount decreed against lands" in the Assessment Record of which said petition forms a part, are valid, and decree is made in favor of the City of Grand Rapids therefor against each parcel of said land for the amount set down in said column opposite to such parcel. It is further ordered, adjudged and decreed that said several parcels of land, or such interest therein as may be necessary to satisfy the amount herein decreed against the same, shall be severally sold as the law directs on the _____ day of _____ A.D., 19___, beginning at 10:00 a.m. on said day, or on the day or days subsequent thereto as may be necessary to complete the sale of said lands and of each and every parcel thereof, at the office of the City Treasurer, or at such convenient place in the City Hall of said City as shall be selected by him or her. It is further adjudged and decreed that the petition and attached schedule and the several special orders made by this court, and entered on said Assessment Record, are made a part hereof, with the same effect as if entered herein.

_____
Circuit Judge

(Countersigned)

_____ Clerk.

If costs are adjudged against any person contesting a tax, the decree therefor shall be in proper form and execution awarded. The decree shall be signed by the Judge and countersigned by the Clerk. After the entry of such decree, the Clerk of said court shall make a certified copy thereof, and annex the same to the assessment record. He or she shall thereupon deliver such tax record to the City Treasurer, in whose office the same shall remain. If from any cause the hearing on said petition is not had on the day fixed in the notice therefor, the same shall stand continued from day to day during the term without the entry of any order of continuance, until disposed of, and if it shall for any reason be found impracticable to hear and determine the objections to all of the taxes specified in such petition within the time herein fixed for that purpose, then and in that case the court shall, within the time herein named, make a final decree as to all taxes to which no objections have been filed, and also those to which objections have been filed, which the court has then heard and passed upon. Such decrees shall be signed and recorded as hereinbefore provided. The court shall proceed with the consideration of the remaining assessments embraced in such petition, and objections thereto, and as soon as practicable dispose of the same by one (1) or more decrees and in such form as the court may determine, which shall be entered in the chancery record of decrees of such court, and the same shall describe the lands and specify the total amount of assessments, interest and charges on each parcel thereof. The Clerk shall immediately thereafter deliver to the City Treasurer a certified copy of such decree, to be kept and used as hereinbefore provided. Such copy of decree shall be annexed to the assessment record and shall thereby become a part thereof. If

from any cause no decree shall be made on such petition as to the assessments therein named, or any part thereof, the City Attorney shall, as soon as practicable, file a new petition for decree and sale, and proceedings thereon shall be the same and a decree and sale made as herein provided.

In case a decree is given in favor of the validity of any disputed assessment and the person contesting its validity desires to appeal to an appellate court, he or she shall be allowed to do so on paying the amount of the decree to the City Treasurer, within ten (10) days after the date of such decree, who shall retain the same until the decision of the appellate court, and pay the same to the party interested, if such assessment is held invalid; if held valid, then such money shall be credited to the proper fund. By such payment the land in question shall be discharged from the lien of the assessment. In case the decision is against the validity of any assessment, either the City Treasurer or the City Attorney shall have a right to direct an appeal therefrom on behalf of the City, but there shall be no sale for the assessment held invalid, until such decision has been reversed or modified by the appellate court.

The proceedings where the validity of any assessment is in dispute shall, where no other provision is made herein, follow the ordinary chancery practice and the court may allow amendments as in ordinary cases. Notice shall be given of all appeals and such appeal shall be claimed, entered and bond for costs given, within twenty (20) days after the making and entering of the decree. When the appeal is taken in behalf of the City no bond shall be required. The Judge shall, at the request of either party and on due notice, settle in proper form a case containing so much of the record and proceedings as may be necessary to the due understanding thereof by the appellate court, and if appeal shall be taken, such case shall be transmitted to such court. An appeal as to the assessment on any parcel shall not delay or affect the proceedings for the sale of any land on which there has been no appeal.

Sec. 1.456. Lands Not Included in Decree.

If for any reason the City Treasurer shall fail to offer the lands lying therein and included in the decree for sale for delinquent assessments thereon, then so many of such lands so included in such decree as shall not be so offered for sale, shall be considered and treated as if bid off to the City by the City Treasurer, and shall be subject to redemption and sale in the same manner and within the same time as may be provided by law in the case of lands actually bid off for the City as provided in this Chapter. All lands bid off for the City as provided in this Section, shall continue liable to be taxed and assessed in the same manner as if not held as belonging to the City, and all such assessments shall be a charge and lien upon such lands as in case of other tax lands, except as hereinafter provided.

Sec. 1.457. Procedure to Be Under Act 206 of P.A. 1893.

All proceedings taken in the filing of said petition and the subsequent steps therein up to and including the sale of the lands for the different assessments and the execution and delivery of deeds therefor and the redemption thereof shall conform as far as may be to Act. No. 206 of the Public Acts of 1893 and the amendments thereto for the assessment and collection of taxes and the same, so far as may be necessary and is applicable, is hereby made a part of this Chapter.

Sec. 1.458. Rules of Sale.

At the date specified by the said court in its order for the sale of said lands for delinquent assessments beginning at 10:00 a.m., the City Treasurer shall commence the sale of lands mentioned in the decree upon which the amounts charged shall not have been paid, and shall continue the same from day to day, Sundays and legal holidays excepted, until so much of each parcel shall have been sold as shall be sufficient to pay such amounts. Each parcel described in the decree shall be separately exposed for sale for the total assessments, interest and charges, and the sale shall be made to the person paying the full amount charged against such parcel, and accepting a conveyance of the smallest undivided fee simple interest therein. No greater interest in any parcel shall be sold than is sufficient to pay the amount of the assessments and charges and take a conveyance of less than the entire thereof, then the whole

parcel shall be offered and sold. The sale shall be at the City of Grand Rapids, at the office of, or at such convenient place in the City Hall as shall be selected by the City Treasurer, and shall be subject to the taxes assessed subsequent to assessment included in the decree. The City Treasurer may, in his or her discretion, require immediate payment of any person to whom any parcel of such land may be struck off, and in all cases where payment is not made in twenty-four (24) hours after sale, he or she shall declare the bid cancelled and sell the land again. Any subsequent bid of such person made at the sale may be disregarded by the Treasurer. If any parcel of land cannot be sold for assessments, interest and charges, such parcel shall be passed over for the time being, and shall, on the succeeding day, or before the close of the sale, be reoffered; and if, on such second offer, or during such sale, the same cannot be sold for the amount aforesaid, the City Treasurer shall bid off the same in the name of the City. And in such case the assessments on the lands so bid off to the City, and the interest and charges thereon, shall remain a lien upon said lands, and any person or persons may thereafter purchase such lands of the City. The City Treasurer shall enter in the proper columns of the assessment record the interest in lands sold, the name and post office address of each purchaser opposite each parcel of land sold, and the word "City" opposite each parcel bid off in the name of the City. Certificates shall be given to each purchaser of the lands and interest bid off by him or her, showing the assessment for which he or she has purchased, and also the amount thereof, and of all charges paid by him or her at the time of such purchase, stating that he or she will be entitled to a deed after the period of redemption provided for in this Chapter has expired, and that if the sale is not confirmed the money will be returned. As soon as possible after the conclusion of any sale, and within twenty (20) days after the day named in the notice for the commencement thereof, the City Treasurer shall make and file with the Clerk of the Court a report of such sale, therein referring to the assessment record for the particulars thereof. All sales shall stand confirmed, subject to the right of redemption provided for herein, unless objections thereto are filed within eight (8) days after the time limited for filing such report, without the entry of an order or further notice. The practice with reference to setting aside such sale shall be the same, so far as applicable, as in a sale in equity on the foreclosure of mortgages. Provided, no sale shall be set aside for inadequacy of price, except upon payment of the amount bid upon such sale, with interest and costs. Provided further, that no sale shall be set aside after confirmation, except in cases where the assessments were paid, or the property was exempt from assessment. In such cases the owner of such lands may move the court at any time within one (1) year after he or she shall have notice of such sale, to set the same aside, and the court may so order upon such terms as may be just. All lands bid off in the name of the City shall continue liable to be taxed in the same manner as if they were not the property of the City except as hereinafter provided. If from any cause the lands, or any parcel thereof, decreed for sale shall not be sold as advertised, it shall be the duty of the City Attorney to cause sale to be made at such other time as he or she may fix for that purpose, of which notice shall be published at least four (4) weeks prior to such day, and such notice shall contain a description of the lands and the amount claimed thereon, as hereinbefore provided in the first instance. The sale and all proceedings thereon shall be the same as if made on the first day fixed therefor; provided, that no sales of any property for any such assessments upon which the State of Michigan or City of Grand Rapids holds a tax lien shall be made to any person without the payment of all such tax liens. All sales made in contravention of this requirement shall be void. The City Treasurer shall receive on such sale only such funds as shall be receivable at the State Treasury. All bids made at any sale of real estate as provided for in this Chapter shall be deemed to be made subject to the provisions thereof.

Sec. 1.459. Form of Certificate.

At the sale aforesaid the City Treasurer shall give to the purchasers, on the payment of the bids, a separate certificate in writing for each parcel, describing the lands purchased and the amount paid therefor, the name of the person to whom the same was issued, the number, date and amount of each certificate, and such certificate shall be regularly numbered and entered in the book kept for

that purpose and designated as the assessment record. Such certificate shall be in substantially the following form:

STATE OF MICHIGAN,)

County of Kent.

City of Grand Rapids.

City Treasurer's Office _____ A.D. 19___

I, _____ City Treasurer of the City of Grand Rapids, in said State, do hereby certify that I did, at public auction, pursuant to notice given as by law required, on this _____ day of _____ A.D. 19___ sell to _____ of _____ the lands herein described for the sum of _____ dollars and _____ cents, said sum being the amount due and unpaid for assessment, interest and charges on said lands for the _____ that the said _____ his or her heirs or assigns, will, if said sale stands confirmed, be entitled to a deed of conveyance of said lands, after one (1) year from _____ unless sooner redeemed from such sale according to law. Said lands are described as follows, with the sum for which they were sold set opposite each description, that is to say: (Here insert description, and the amount bid therefor.)

_____
City Treasurer.

Sec. 1.460. Deed.

On presentation of such certificate of sale to the City Comptroller or his or her deputy after the expiration of the time provided by law for the redemption of land sold as aforesaid, the Mayor and City Comptroller shall execute and deliver to the purchaser, his or her heirs or assigns, a deed of the land therein described, unless the sale thereof shall have been redeemed or annulled as by law provided, which deed shall be entitled to record in the office of the Register of Deeds of the proper County, in the same manner and with like effect as other deeds duly witnessed, acknowledged and certified. Such deeds shall convey an absolute title to the land sold, and be conclusive evidence of title, in fee, in the grantee, subject, however, to all taxes assessed and levied on such lands subsequent to the taxes for which the same was bid off. The courts may, on application, put the purchaser in possession of the premises by writs of assistance. In the case of the loss of such certificate of sale, the purchaser or his or her legal representatives or assignee, may file his or her affidavit of such loss, and that he or she was at the time of such loss the bona fide and legal holder thereof; and the Mayor and City Comptroller shall thereupon execute, as aforesaid, a deed for the lands described in such certificate, if the same shall not have been redeemed, in the same manner as though it had been presented and surrendered; and if the same shall have been redeemed on the presentation of such affidavit, the money shall be paid to such person in the same manner as though the certificate of sale had been surrendered. Any person who shall make an affidavit as above required, or concerning any other matter which may be filed in the office of the City Comptroller shall be liable to the penalties of perjury for any false statement made in such affidavit with intent to defraud, upon conviction thereof before a court having jurisdiction of the offense.

Sec. 1.461. Procedure if Sale Is Set Aside.

No sale of any lands or deed made by the Mayor and City Comptroller under the provisions of this Chapter shall be set aside or annulled by any court of this State after the purchaser, his or her heirs or assigns have been in actual and undisputed possession of such lands so sold or conveyed for a period of five (5) years from the date of such purchase or deed. Whenever any sale made under this Chapter is set aside by any court in a time less than five (5) years, the court shall determine and decree the value of improvements made by the purchaser, if he or she has been in possession, and give judgment therefor, and issue execution to collect the same of the claimant before putting him or her in possession. If a sale made under this Chapter is set aside by any court, the City shall refund to the purchaser the amount paid at the time of the sale, with interest thereon at the rate of five (5) percent per annum from the time of the purchase to the time when said sale was set aside or cancelled.

Sec. 1.462. Right to Recover on Failure to Give Notice.

The right to recover possession of any land, or to a refunding of the amount paid, by any person claiming through or under any deed executed by the Mayor and Comptroller or by virtue of a certificate of purchase issued under the provisions of this Chapter shall be forever barred by the actual, open and continuous possession of any person claiming such land adversely to such deed, or certificate of purchase, for the period of five (5) years after the purchaser of such title, his or her heirs or assigns, is entitled to a deed thereof, or by failure of such purchaser, his or her heirs or assigns, to give the notice or notices required by this Chapter for a reconveyance of the premises within the above specified period of five (5) years. In case of such failure to give the required notice for reconveyance within the period of five (5) years from the date such purchaser, his or her heirs or assigns shall become entitled to a deed to be issued by the Mayor and Comptroller, the person or persons claiming title under assessment, deed or certificate of purchase shall be forever barred from asserting such title or claiming a lien on the land by reason of such purchase; and such purchaser, his or her heirs or assigns shall not thereafter be entitled to a refunding of the amount paid as a condition of the purchase of such title by reason of any defect, irregularity, invalidity, or any cause whatever affecting the assessments or the sale of the lands for such lien.

Sec. 1.463. May Redeem in One Year.

Any person owning any of the lands sold as aforesaid, or any interest therein, may, at any time within one (1) year after the date of such sale, redeem any parcel of such lands, or any part or interest in such lands, by showing to the satisfaction of the City Treasurer that he or she owns only that part or interest in the same which he or she proposes to redeem, by paying to the City Treasurer the amount of the sale of the parcel of land, or any portion thereof wished to be redeemed, and interest thereon from the date of such sale. Upon the payment of the redemption money and interest thereon at one (1) percent per month or fraction thereof to the City Treasurer as aforesaid, he or she shall issue a redemption certificate in such form as may be prescribed by the City Attorney, which certificate shall be delivered to the person making such redemption payment. The City Treasurer shall also make a minute of such redemption certificate in the assessment record book kept in his or her office, with the name of the payee, the date and the amount paid. Such certificate or the duplicate, and the entry thereof, shall be evidence of such redemption payment in the courts of this State.

Sec. 1.464. Irregularities in Sale or Assessment.

The City Treasurer shall withhold a conveyance of lands sold on account of nonpayment of assessments thereon, and shall, on demand, cause the money paid therefor to be refunded to the purchaser with interest thereon at five (5) percent per annum if he or she shall discover before a conveyance of said lands is executed and delivered:

(1) That the land so sold was not subject to assessment at the date of the assessment for which it was sold; or

(2) That the assessment had been paid to the proper officer within the time limited by law for the payment or redemption thereof; or

(3) That such sale was in contravention of any of the provisions of this Chapter; or

(4) That a certificate that no assessments were charged against said lands has been given by the proper officer within the time limited by law for the payment or redemption thereof.

Provided, that in the last mentioned case the person in whose behalf such certificate was given shall, at the time of presenting such certificate to the City Treasurer, pay to the City Treasurer all taxes and charges due to the City upon such lands at the time such certificate was issued. If the discovery is not made until after the conveyance has been executed and delivered, a certificate of error may be issued in proper form for record; and the deed, if not recorded, shall be surrendered when the purchase money is refunded. If the deed has been recorded the money shall be refunded on a recorded release from the holder of the tax deed.

Provided, further, that the conveyance of such lands shall not be withheld or a certificate of error issued after a period of five (5) years from the date of sale thereof, except for the reasons, first, that the land described therein was not subject to assessment at the time of the assessment for which it was sold; or, second, that the assessment had been paid to the proper officer within the time limited by law for the payment or redemption thereof.

Sec. 1.465. Correction of Imperfect or Erroneous Descriptions.

Whenever the City Commission shall discover that any real estate on which any tax or assessment remains unpaid has been so imperfectly or erroneously described that the same cannot in its opinion be located with certainty, or that the sale thereof would not convey to the purchaser a valid title to the real estate intended to be charged with such assessment by reason of the imperfect or erroneous description thereof, the City Commission shall by an order entered in its minutes, accurately describe such real estate intended to be charged with such tax or assessment, and shall direct the City Treasurer to correct the assessment roll on file in his or her office containing such imperfect or erroneous description so as to make it correspond with the accurate description contained in said order of the City Commission, and thereupon all copies of such assessment roll required by the provisions of this Chapter to be made to correspond therewith as corrected. Provided, that no such imperfect or erroneous description shall be corrected until the owner of the real estate shall be notified of such intended correction by a printed or written, or partly printed and partly written notice, either served upon him or her personally, or by leaving the same at his or her place of abode with some suitable person of proper age and discretion, at least ten (10) days before such correction shall be made. In case such owner is a nonresident of the City, such notice shall be published in one (1) of the newspapers of the City at least ten (10) days before such correction shall be made.

Sec. 1.466. Errors Shall Not Defeat Collection.

No mistake or error in the proceedings in regard to the opening or improvement of streets, avenues, public ways or alleys or in the construction of sewers, or in the assessment or collection of costs or expenses thereof, or in the proceedings for the assessment or collection of assessments for any special improvements by reason of the proceedings therefor not being had within the time required by law, or the property having been assessed to the wrong owner, or any irregularity, informality or omission or want of any form or substance in the proceedings that does not prejudice the property rights of the person whose property is taxed, shall defeat the City in the collection thereof, but any such errors may be corrected on equitable principles under the direction of the City Commission, if discovered before suit is brought thereon, or by the court after suit is instituted, and the equitable amount due the City may be enforced as though no such error has occurred. All proceedings in assessing and levying taxes for special improvements and the sale and conveyance of land thereunder shall be presumed by all courts of this State to be legal until the contrary is affirmatively shown. The absence of any record of any proceeding or proceedings, or the omission of any mention in any record of any vote or proceeding, or of mention of any matter in any statement or certificate that should appear therein, under the provisions of this Chapter or of any law of this State shall not affect the validity of said proceedings, tax or title depending thereon, provided the fact that such vote or proceedings was had or tax authorized is shown by any other record, statement or certificate made evidence by the terms of this Chapter, or any other law of this State. No special tax or proceedings leading up to such tax or sale of property for said tax shall be rendered or held invalid by showing that any record, statement, certificate, affidavit, paper or return, cannot be found in the proper office; and unless the contrary is affirmatively shown, the presumption shall be that such record was made and such certificate, statement, affidavit, paper or return was duly made and filed.

Sec. 1.467. Possession of Premises.

The Kent County Circuit Court may, on application, put the purchaser of any lands sold under the provisions of this Chapter in possession of the premises by writs of assistance; this provision shall

also include the City of Grand Rapids in all cases where it shall acquire title under this Chapter.

Sec. 1.468. Writ of Assistance.

No writ of assistance or other process for possession of any land, the title of which has been obtained under and in pursuance of any sale made under this Chapter, shall be issued until six (6) months after there shall have been filed with the County Clerk of the County where the land is situated, a return by the Sheriff of said County showing that he or she has made personal service of a notice, or proof of substituted service thereof, as hereinafter provided, upon the person or persons appearing by the records in the office of the Register of Deeds of said County to be the last grantee or grantees in the regular chain of title of such lands, or of any interest therein, at the date of the delivery of such notice to the Sheriff for service, and upon the person or persons, if any there be, in the actual open possession of such lands at the date aforesaid, and upon the grantee or grantees under any tax deed issued for the latest year's taxes then appearing of record in said registry of deeds, and upon the mortgagee of mortgagees named in all undischarged recorded mortgages or any assignee or assignees thereof of record at the date aforesaid, and upon the holder of record of all undischarged recorded liens, which shall be substantially in the following form:

To the owner or owners of any and all interests in, or liens upon the land herein described:

Take Notice, That sale has been lawfully made of the following described land for unpaid assessments thereon, and that the undersigned has title thereto under deed or deeds issued therefor, and that you are entitled to a reconveyance thereof at any time within six (6) months after return of service of this notice, upon payment to the undersigned, or to the County Clerk of the County in which the lands lie, of all sums paid upon such purchase, together with one hundred (100) per centum additional thereto and the fees of the Sheriff for the service or cost of publication of this notice, to be computed as upon personal service of a declaration as commencement of suit, and the further sum of five dollars ($5.00) for each description without other additional costs or charges. If payment as aforesaid is not made, the undersigned will institute proceedings for possession of the land.

Description _____
assessment for _____

Place of business _____

Provided, that if the grantee or grantees, or the person or persons holding the interest in said lands as aforesaid shall be residents of any County of the State other than the County of Kent, then such return as to such person shall be made by the Sheriff of the County where such person or persons reside, or may be found. Provide further, that if the person or persons entitled to such notice, or any of them, shall be nonresidents of this State, if from the said record aforesaid, or from inquiry, the Sheriff can obtain the post office address of such person or persons, or if said addresses be known to him or her, he or she shall either send to such nonresident person or persons a copy of said notice be registered letter, and return the receipt or receipts of the postmaster received for said letter or letters with his or her return to the County Clerk's office; or said Sheriff shall cause to be served personally on such person or persons aforesaid a copy of the said notice, and whenever such notice shall be personally served outside of this State, proof of such service shall be made by the affidavit of the person who shall serve the same, made before a Justice of the Peace or Notary Public, and when such affidavit shall be made outside this State, it shall have attached thereto the certificate of the Clerk of the Court of Record, certifying to the official character of the Justice or Notary and the genuineness of his or her signature to the jurat of the affidavit, and such Sheriff shall return the said proof of personal service with his or her return to the County Clerk's office. Provided further, that if any person entitled to notice as hereinbefore provided is dead, or if his or her estate shall be under control of a trustee or guardian, then, and in such case, notice as hereinbefore provided may be served upon the executor or administrator of said deceased person, or upon his or her heirs, if there be no executor or administrator, or upon the trustee or guardian of any incompetent person, with like effect as if served upon the grantee, mortgagee or assignee.

Provided further, that if the Sheriff of the County where any such lands are located shall make a return that after careful inquiry he or she is unable to ascertain the whereabouts or the post office address of the persons upon whom notice may be served as aforesaid, or any of them, then such notice as herein provided for shall be published for four (4) successive weeks, which shall be construed to mean four (4) publications once each week, in some newspaper published and circulating in the City of Grand Rapids, and due proof of publication, by affidavit of the printer or publisher of such newspaper shall be filed with the County Clerk, and shall be in lieu of personal service upon the person or persons whose whereabouts or post office address cannot be ascertained in aforesaid. Provided further, that such service may be made upon any resident of this State by leaving such notice at his or her usual place of residence with some member of his or her family of mature age, and upon any nonresident of this State by delivering such notice to him or her personally in any County of this State where he or she may be found, and return thereof shall be made by the Sheriff of such County. Service in all cases and return thereof may be made by the Under-Sheriff or any Deputy Sheriff with like effect as if made by the Sheriff. Corporations formed under the laws of this State shall be regarded, for the purposes of this Chapter, as residents of the County in this State where their office for the transaction of business therein is, by their Articles, located and service on such corporations may be made on the President, Secretary, Treasurer or general agent of such corporation, or by leaving such notice at the office of such corporation with some person in charge of such office. If the Sheriff of any County in this State in which the office of any such corporation for the transaction of business is, by its Articles, fixed, shall return that upon careful inquiry he or she has been unable to find any such office or any President, Secretary, Treasurer or general agent of such corporation in such County, service of such notice may be made upon such corporation by publication as hereinbefore provided in case of persons whose whereabouts or post office address cannot be ascertained; and this provision shall apply as well as to corporations whose term of corporate existence has expired as to those whose term of existence has not expired. Foreign corporations doing business in this State and having an agent therein appointed to accept service of process as required or as may be required by the laws of this State, shall be regarded, for the purposes of this Chapter, as residents of the County where such agent resides, and service on such corporations may be made on such agent, or by registered letter addressed to such corporations at their home office. The Sheriff shall, in his or her return, state the time when such notice was delivered to him or her for service, and his or her return shall be prima facie evidence of the facts therein stated.

Sec. 1.469. Quit Claim.

Any person having any estate in such lands or any interest therein, either in fee, for life or for years, or any mortgage thereof or assignee of any undischarged mortgage thereon, or the holder of any lien thereon, or any executor, administrator, trustee or guardian of such persons, or any of them, or any person in the actual possession of such lands at the time of such purchase, shall be entitled to receive from the person so claiming under and by virtue of such deed, his or her heirs or assigns, at any time within six (6) months after the filing of return of service or the filing of proof of publication of such notice, as hereinbefore provided, a release and quit claim of all right and interest in such land acquired under such tax deed or deeds, upon payment to him or her or them, or to the Clerk of the County of Kent, of the amount paid upon, such purchase, together with one hundred (100) per centum in addition thereto, and the lawful fees of such personal or substituted service, which fee shall be the same as provided by law for such service of subpoenas or for orders of publication or the cost of such service by registered mail, and the further sum of five dollars ($5.00) for each description, without additional cost or charge; provided, that any person or persons entitled to a release and quit claim under the foregoing provisions of this Section, at any time after the issue of deeds on such lands, or after the purchaser thereof shall be entitled to such deeds, and before service of notice or return thereof as herein provided, shall have the right to redeem such lands from such sale by paying to the purchaser, or his or her grantee, or the Clerk of the County of Kent,

on the certificate of the City Treasurer, all sums paid as a condition of such purchase, together with one hundred (100) per centum additional thereto, and the further sum of five dollars ($5.00) for each description. By such payment the said title and any and all such certificates of sale shall become void and of no effect against the lands to be redeemed.

The Clerk of the County of Kent shall, whenever payment is made to him or her as provided in this Section, at once notify the owner of the assessment title or of any and all such certificates of sale, of the payment so made, and the owner of such title, or of any such certificates of sale, shall forthwith deliver to said Clerk a release and quit claim of all rights acquired by him or her under said purchase, running to the person making such payment, and shall also deliver to said Clerk the deed, certificates or purchase, assessment and tax receipts, and all other conveyances relating to said assessment title or assessment interest before he or she shall be entitled to receive the money paid to said Clerk as herein provided. Upon delivery of such release and quit claim, and of such certificates of purchase and tax and assessment receipts, the Clerk of the County of Kent shall at once pay over to the owner of the assessment title all sums received by him or her for the redemption of the lands therein described. Provided further, that no quit claim or reconveyance made under the provisions of this Section shall be construed to vest in the grantee any title or interest in such lands beyond that already owned by him or her, but such grantee shall be entitled to a lien on such lands, or on such parts thereof or interests therein as are not owned by him or her, for the amount paid, or such portion thereof as is lawfully chargeable to such parts or interests, in addition to the lien or other interest before held by such grantee, which lien may be enforced in any court of competent jurisdiction as in other cases of liens upon lands, with interest thereon at the rate of six (6) per centum per annum from the date of such payment. The Circuit Court of the County of Kent shall have jurisdiction to enforce the liens herein provided for without regard to the amount of such liens. Provided further, that any such application for a writ of assistance shall show that such applicant had complied with the provisions of this act as to the giving of notice, as herein directed, and he or she shall attach to such application a copy of the notice aforesaid, and the return of the Sheriff serving the same or a copy of the proof of publication, or the registry receipt or receipts from the registry department of the post office showing that such notice has been served by registered mail.

Sec. 1.470. Possession After Six Months.

No purchaser under any assessment sale hereafter made shall enter into possession of the land so purchased until six (6) months after he or she has given notice to the party or parties in interest as provided for in the preceding Sections, unless he or she shall have acquired from said parties their title thereto under conveyance from said party or parties of his or her or their interest in said lands. Where the land is vacant and unoccupied and no writ of assistance is needed to put the purchaser into possession thereof, the time for redemption herein provided shall expire six (6) months after delivery of such notice to said party or parties in interest, or date of mailing such notice by registered letter, or of the County where said lands are situated as herein provided. Provided, that if suit or other proceedings is commenced before the expiration of the said six (6) months by the owner of the land so purchased, or one (1) having a redeemable interest therein, to set aside the sale thereof, the purchaser under tax sale or his or her grantee shall not enter into possession of land until the final determination of such suit or other proceeding.

Sec. 1.471. Evidence of Ownership.

If any such grantee or grantees, mortgagee or mortgagees or person or persons so in possession shall fail and neglect to redeem such land within said six (6) months, as provided in the foregoing Sections, at any time after the expiration thereof, the purchaser under such sale or deed may cause to be recorded in the office of the Register of Deeds of the County in which such land is situate, in a record to be provided for that purpose, a copy of said notice and proof of service thereof, duly certified by the County Clerk in whose office the same is filed, and the record thereof shall be prima facie evidence in all courts and tribunals that such pur-

chaser is the owner of said land under said purchase.

Sec. 1.472. Barred from Questioning Validity.

Every person personally served with the notice provided for by this Chapter, and every person lawfully chargeable with such notice by registered mail, as provided for in said Chapter, together with the heirs, executors, administrators or assigns of such persons, who shall refuse or neglect to pay or tender to the purchaser as aforesaid, the sum provided for in this Chapter within the time therein limited, and who shall have neglected within the said six (6) months to commence suit to set aside the said tax deed, shall thereafter be barred from questioning the validity of such assessment title or assessment deed mentioned therein.

Secs. 1.473–1.500. Reserved.

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Chapter 11

PURCHASES, CONTRACTS AND SALES*

Sec. 1.501. Purchasing Agent, General Authority.
Sec. 1.502. Requisitions.
Sec. 1.503. Standard Specifications.
Sec. 1.504. Purchases Authorized.
Sec. 1.505. Purchases of More Than Ten Thousand Dollars.
Sec. 1.506. Purchases on Competitive Bidding.
Sec. 1.507. Advertisement for Bids.
Sec. 1.508. Bids.
Sec. 1.509. Opening of Bids.
Sec. 1.510. Certification of Bids.
Sec. 1.511. Awarding Contracts.
Sec. 1.512. Requisitions Between Departments.
Sec. 1.513. Municipal Warehouse.
Sec. 1.514. Personal Property Not Needed for Any Municipal Use.
Sec. 1.515. Emergency Purchases and Contracts.
Sec. 1.516. Disqualifications for Bidders.
Sec. 1.517. Provision Against Discrimination in Contracts.
Secs. 1.518—1.530. Reserved.

*__Cross references—__Tax sales, §§ 1.378, 1.391—1.395; payment of moneys, § 1.146; licensing and regulation, Title VII; consumer protection, Ch. 158.

Sec. 1.501. Purchasing Agent, General Authority.

The general authority of the Purchasing Agent shall be pursuant to Title VI, Section 12 of the City Charter of Grand Rapids.

Sec. 1.502. Requisitions.

All requests for purchases shall be by requisition of and approval by the person in charge of any Department, Division, Bureau, Board or Commission for whose benefit the purchase is to be made. The requisition shall designate the Code number of the appropriation authorizing the expenditure for such purchase.

Sec. 1.503. Standard Specifications.

The Purchasing Agent shall have authority to adopt standard specifications from time to time for each class or grade of the various articles, commodities and supplies ordinarily required by the City. The Purchasing Agent shall cause the same to be printed in looseleaf or typewritten form for distribution. Standard specifications shall be drafted so as to procure commodities and supplies of such quality and design as will serve the purpose required and to facilitate the making of bids therefrom. Whenever standard specifications have been adopted for items covered by standard specifications, requisitions shall be made in accordance therewith unless a change therein is necessary. Whenever such change is necessary, the reason therefor shall be stated on the requisition. In advertising for bids, it shall be sufficient to refer to the appropriate standard specification. A bidder may refer to the appropriate item of the standard specifications. The Purchasing Agent may require samples to be furnished with bids.

Sec. 1.504. Purchases Authorized.

(1) Purchases by the City, sales to the City, or authorizations for the purchase of goods by the City involving expenditures of fifty thousand dollars ($50,000.00) or less, the appropriation for which has been approved by the City Commission as part of the annual fiscal process and funds for which are in the City's annual budget, may be made without formal, sealed bidding by the Purchasing Agent, subject to any rules and policies that may be established by the City Commission.

(2) The Purchasing Agent may delegate the authority and responsibility to other City employees to obtain price quotations or bids or to make purchases in an amount of up to ten thousand dollars ($10,000.00) for goods not currently covered by a City contract, as long as the employee complies with all applicable provisions of the City Charter and the City Code and with all applicable City rules and policies. The Purchasing Agent may withdraw a delegation previously granted when, in the sole judgment of the Purchasing Agent, it is advisable to do so. The authority delegated under this subsection may be used only by those employees specifically empowered to do so by the City Manager. This Section shall be implemented by a City Commission Policy.
(Ord. No. 86-62, § 1, 11-4-86; Ord. No. 90-33, § 1, 4-3-90; Ord. No. 99-49, § 1, 9-7-99; Ord. No. 2022-51, § 1, 12-6-22)

Sec. 1.505. Purchases of More Than Ten Thousand Dollars.

No requisition or purchase of more than ten thousand dollars ($10,000.00) and up to one hundred thousand dollars ($100,000.00) shall be made unless approved by the City Commission or City Manager or their designee. No requisition or purchase of more than one hundred thousand dollars ($100,000.00) shall be made unless authorized by the City Manager and approved by the City Commission. In case of an emergency, wherein any delay in purchasing would possibly result in the interruption or detriment to the public service, the City Manager may approve a requisition or purchase up to five hundred thousand dollars ($500,000.00) and shall apprise the City Commission of the situation and purchase at its next regular meeting.
(Ord. No. 86-62, § 2, 11-4-86; Ord. No. 90-33, § 2, 4-3-90; Ord. No. 2020-07, § 1, 3-17-20; Ord. No. 2020-11, § 1, 4-14-20; Ord. No. 2022-51, § 2, 12-6-22)

Sec. 1.506. Purchases on Competitive Bidding.

For any purchases involving an expenditure of more than ten thousand dollars ($10,000.00),

requests for bids shall be advertised, which requests shall establish the time and place for opening any bids received. The time for opening of bids shall be not less than ten (10) days from the date of said publication. This requirement may be expedited in cases of immediate need of the materials or services. Two (2) or more publications may be authorized where such has been the general practice of the City. In such cases where publication is not necessary because letters may be sent to all who are known able to bid, the Purchasing Agent may waive publication and send such letters.
(Ord. No. 86-62, § 3, 11-4-86; Ord. No. 90-33, § 3, 4-3-90; Ord. No. 2022-51, § 3, 12-6-22)

Sec. 1.507. Advertisement for Bids.

The advertisement for bids shall be prepared by the Purchasing Agent and published. Every such advertisement shall specify the place where the bids will be received, the time of opening of same and a brief description of the materials and supplies to be purchased.
(Ord. No. 2022-51, § 4, 12-6-22)

Sec. 1.508. Bids.

Each bid shall be in writing on the form as provided by the Purchasing Agent. Each bid shall be signed by the bidder and shall contain the full name of any person or company interested therein. Each bid shall refer to the proposed purchase in the manner as herein specified.

Sec. 1.509. Opening of Bids.

At the time prescribed in the advertisement of opening bids on purchase contracts, the Purchasing Agent shall, at the place as set forth in said advertisement, open all bids and publicly read each bid. All bids submitted after the time as set forth in the advertisement shall be void.

Sec. 1.510. Certification of Bids.

The Purchasing Agent shall tabulate all such bids and purchases and certify them to the City Manager for approval as to the lowest and best bidder.

Sec. 1.511. Awarding Contracts.

The award of the contract or purchase shall be made by the City Manager to the successful bidder and all such awards shall become public records to be signed by the City Manager and the Purchasing Agent.

Sec. 1.512. Requisitions between Departments.

Whenever any Department, Division or any other branch or agency of the City requires service, equipment, materials or supplies from another Department, Division or any other branch or Agency of the City, requisitions may be made for such purpose with the appropriate credits and debits to appropriations. In such cases, no bids shall be required.

Sec. 1.513. Municipal Warehouse.

The Purchasing Agent shall have charge of all storerooms and any general warehouse of the City which may be hereafter established for the storage of materials and supplies. He or she shall keep records of all stocks. He or she shall issue stock on requisitions, charging the stocks issued to such requisitioning unit at the purchase cost. He or she shall perform such other duties in regard to this function as may be necessary.

Sec. 1.514. Personal Property Not Needed for Any Municipal Use.

If any Department, Division, Agency or Commission has personal property not needed, it shall certify such fact to the Purchasing Agent. Unless such property is needed by another branch or agency of the City, it shall be sold by the Purchasing Agent. Where the property involved has a value of five hundred dollars ($500.00) or less, no bidding shall be necessary, but the Purchasing Agent shall seek to sell the same for the highest price. If the property is worth more than five hundred dollars ($500.00), it shall be sold to the highest and best bidder in the same manner as for a purchase or by public auction.
(Ord. No. 69-62, 7-22-69)

Sec. 1.515. Emergency Purchases and Contracts.

In the case of unexpected emergency wherein any delay in purchasing would possibly result in the interruption or detriment to the public service, the requirement for competitive bidding may, upon consent of the City Manager, be waived. Provided, however, that the City Commission shall be apprised of the situation at its next regular meeting. Competitive bidding shall not be required of any contract involving professional services, where the subject matter is of a noncompetitive character, nor in any case where competitive bidding is dispensed with under the provisions of this Chapter.

Sec. 1.516. Disqualifications for Bidders.

No bid shall be accepted from or contract awarded to any person who is in arrears to the City upon debt or contract, or who is defaulter, as security or otherwise upon an obligation to the City, nor who shall in other respects be disqualified according to the provisions of this Code or the Grand Rapids City Charter.
(Ord. No. 67-65, 12-19-67)

Sec. 1.517. Provision Against Discrimination in Contracts.

(a) Every contract to which the City is a party shall contain a provision requiring the contractor and his or her subcontractors not to discriminate against any employee or applicant for employment, to be employed in the performance of such contract, with respect to his or her hire, tenure, terms, conditions or privileges of employment, or any matter directly or indirectly related to employment, because of his or her race, color, religion, national origin or ancestry. Breach of this covenant may be regarded as a material breach of the contract as provided for in Act 251 of the Public Acts of 1955, as amended, entitled "Michigan State Fair Employment Practices Act."

(b) Every contract to which the City is a party shall contain a provision requiring the contractor and his or her subcontractors not to discriminate against any employee or applicant for employment to be employed in the performance of such contract, with request to his or her hire, tenure, terms, conditions or privileges of employment, or any matter directly or indirectly related to employment, because of his or her age or sex, except where based on a bona fide occupational qualification as provided for in Act 251 of the Public Acts of 1955, as amended, entitled "Michigan State Fair Employment Practices Act."
(Ord. No. 68-50, 7-23-68)

Cross reference—Fair employment practices, § 1.150.

Secs. 1.518—1.530. Reserved.

[The next page is 515]

Chapter 12

RESERVED*

Secs. 1.531–1.560. Reserved.

*Editor's note–Ord. No. 73-38, adopted June 5, 1973, repealed Ch. 12, relative to courts and judicial administration, as derived from Ord. No. 67-36, adopted June 13, 1967; Ord. No. 67-56, adopted Oct. 24, 1967; and Ord. No. 68-31, adopted May 14, 1968.

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Chapter 13

EMERGENCY MANAGEMENT*

Article 1. Intent and Purpose

Sec. 1.561. Intent and Purpose.
Sec. 1.562. Coordinating Agency.
Sec. 1.563. Other Agencies; Etc., Not Affected by Chapter.

Article 2. Definitions

Sec. 1.564. Definitions.

Article 3. Organization for Emergency Management

Sec. 1.565. Authorized; Responsible Official.
Sec. 1.566. Composition; Disaster Contingency Fund.
Sec. 1.567. Cooperation and Assistance of Emergency Management Forces.

Article 4. Emergency Management Coordinator; Deputies; Assistants

Sec. 1.568. Appointment of Coordinator; Qualifications.
Sec. 1.569. Appointment of Deputy Coordinators.
Sec. 1.570. Assistants.

Article 5. Responsibilities of the Mayor

Sec. 1.571. Declaring State of Emergency.
Sec. 1.572. Declaring State of Disaster.
Sec. 1.573. Emergency Interim Successors.
Sec. 1.574. Reserved.

Article 6. Responsibilities of the City Commission and City Manager

Sec. 1.575. Powers and Authority.
Sec. 1.576. Waiver of Legal Requirements Authorized in Event of Attack.
Secs. 1.577–1.580. Reserved.

Article 7. Powers and Duties of the Emergency Management Coordinator

Sec. 1.581. General Responsibilities.
Sec. 1.582. Duties.

Article 8. Volunteers; Appointments; Records

Sec. 1.583. Volunteers Authorized.
Sec. 1.584. Appointment by Coordinator; Records.

Article 9. Rights of City Employees

Sec. 1.585. Retention of Rights; Privileges; Compensation.

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*Editor's note—Ord. No. 84-34, § 1, adopted and effective May 22, 1984, repealed former Chapter 13, Civil Defense, §§ 1.561–1.583, as amended by Ord. No. 74-31, adopted April 30, 1974. Section 2 of Ord. No. 84-34 added a new Ch. 13 as herein set out.

Cross reference—Civil emergency, Ch. 161.

State law reference—Emergency Preparedness Act, MCL 30.401 et seq., MSA 4.824(11) et seq.

Article 10. No Governmental or Private Liability

Sec. 1.586. Indemnification of City and Its Agents.
Sec. 1.587. Persons in Control of Real Estate Used by City Not to Be Liable.

Article 11. Severability

Sec. 1.588. Severability.
Sec. 1.589. Reserved.

ARTICLE 1. INTENT AND PURPOSE

Sec. 1.561. Intent and Purpose.

It is the intent and purpose of this Chapter to establish an organization that will ensure the complete and efficient utilization of all City resources during periods of emergency and disaster.
(Ord. No. 84-34, § 2, 5-22-84)

Sec. 1.562. Coordinating Agency.

The City of Grand Rapids Office of Emergency Management will be the coordinating agency responsible for City-wide emergency preparedness; it will provide the means through which the City Manager, Mayor and City Commission may exercise the authority and discharge the responsibilities vested in them by this Chapter and MCL 30.401 (1990 P.A.5O).
(Ord. No. 84-34, § 2, 5-22-84)

Sec. 1.563. Other Agencies; Etc., Not Affected by Chapter.

This Chapter will not relieve any elected officials or City Departments of the normal responsibilities or authority given by general law or local ordinance, nor will it affect the work of the American Red Cross or other volunteer agencies organized for relief in a natural disaster.
(Ord. No. 84-34, § 2, 5-22-84)

ARTICLE 2. DEFINITIONS

Sec. 1.564. Definitions.

For the purpose of this Chapter, certain words used herein are defined as follows:

1. *Disaster* means an occurrence or imminent threat of widespread or severe damage, injury, or loss of life or property resulting from any natural or man-made cause, including, but not limited to, fire, flood, snow, ice or wind storm, wave action, oil spills, water contamination requiring emergency action to avert danger or damage, utility failure, hazardous peacetime radiological incident, major transportation accident, epidemic, air contamination, blight, drought, infestation, explosion, riot, or hostile military or paramilitary action. Riots and other civil disorders are not within the meaning of this term unless they directly result from and are an aggravating element of the disaster.
2. *District Coordinator* means the State Police District Emergency Services Coordinator or his or her authorized representative.
3. *Emergency Management* shall have a broad meaning to include preparations for, and relief from, the affects of natural and man-made disasters as defined herein, and to include civil defense.
4. *Emergency Management Coordinator* shall mean the person appointed to coordinate emergency management within the City of Grand Rapids as prescribed in this Chapter.
5. *Emergency Management Forces* means all disaster relief forces; all agencies of the City government, private and volunteer personnel, public officers and employees; and all other persons or groups of persons having duties or responsibilities under this Chapter, or pursuant to a lawful order or directive authorized by this Chapter.
6. *Emergency Management Volunteer* shall mean any person duly registered and appointed by the Director and assigned to participate in the emergency management activity.
7. *Emergency Operations Plan* means the City of Grand Rapids' Emergency Operations Plan which has been prepared under Section 1.582 of this Chapter to coordinate disaster response and recovery within the City of Grand Rapids.
8. *State of disaster* means a declaration by executive order or proclamation by the Governor under the provisions of MCL 30.401 (1990 P.A. 50), which activities the disaster response and recovery aspects of State, County, local, and interjurisdictional disaster emergency plans, and authorizes the deployment and use of any forces to which the plan or plans apply.

9. *State of emergency* means a declaration by the Mayor pursuant to this Chapter which activates the disaster response and recovery aspects of the City of Grand Rapids' Emergency Operations Plan, and authorizes the deployment and use of any Emergency Management Forces to which the plan applies.

(Ord. No. 84-34, § 2, 5-22-84)

ARTICLE 3. ORGANIZATION FOR EMERGENCY MANAGEMENT

Sec. 1.565. Authorized; Responsible Official.

The City Manager is hereby authorized and directed to create an organization to prepare for community disasters utilizing to the fullest extent existing agencies within the City. The City Manager, as administrative head of City government, shall be responsible for the direction of the Emergency Management Forces of the City working with the Emergency Management Coordinator.

(Ord. No. 84-34, § 2, 5-22-84)

Sec. 1.566. Composition; Disaster Contingency Fund.

The organization for providing emergency management shall consist of the following:

(1) The City of Grand Rapids Office of Emergency Management shall be administered by the Emergency Management Coordinator. Such assistants and other employees as are deemed necessary for the proper functioning of the organization will be assigned as needed.

(2) The employees, equipment and facilities of all City Departments, Boards, Institutions and Commissions suitable for, or adaptable to emergency management activities, may be designated as part of the Total Emergency Management Forces. Such designations shall be by the City Manager.

(3) A disaster contingency fund in a separate account within the Fire Department budget, set up to cover disaster expenses, and upon exhaustion of the fund, to make the City eligible for State assistance.

(Ord. No. 84-34, § 2, 5-22-84)

Sec. 1.567. Cooperation and Assistance of Emergency Management Forces.

All officers and employees of Departments, Commissions, Boards, Institutions and other Agencies of City government designated by the City Manager as Emergency Management Forces shall cooperate with the Emergency Management Coordinator in the formulation of the Emergency Operations Plan, and they shall assist the Coordinator in all matters pursuant to the provisions of this Chapter.

(Ord. No. 84-34, § 2, 5-22-84)

ARTICLE 4. EMERGENCY MANAGEMENT COORDINATOR; DEPUTIES; ASSISTANTS

Sec. 1.568. Appointment of Coordinator; Qualifications.

The City Manager shall appoint an Emergency Management Coordinator who shall be a person with the personal attributes, experience and training needed to coordinate the activities of the Agencies, Departments and individuals within the City to protect the public health, safety and welfare during emergency situations and disasters.

(Ord. No. 84-34, § 2, 5-22-84)

Sec. 1.569. Appointment of Deputy Coordinators.

Deputy Emergency Management Coordinators shall be appointed by the City Manager to work with the Coordinator on emergency planning matters. Deputy Coordinators shall be selected and shall serve as follows:

(1) There shall be one such Deputy Coordinator appointed from each key unit of the emergency management organizational structure, as contained in the Emergency Operations Plan.

(2) Deputy Coordinators shall assume the duties of the Coordinator whenever he or she is unavailable during disaster or emergency

situations in the order designated by the City Manager.
(Ord. No. 84-34, § 2, 5-22-84)

Sec. 1.570. Assistants.

Assistants shall be designated by the Coordinator and each Deputy Coordinator to assist them with their emergency management responsibilities, as contained in this Chapter and in the Emergency Operations Plan.
(Ord. No. 84-34, § 2, 5-22-84)

ARTICLE 5. RESPONSIBILITIES OF THE MAYOR

Sec. 1.571. Declaring State of Emergency.

Under the following circumstances, the Mayor may declare a state of emergency exists in the City of Grand Rapids, thereby authorizing the utilization of Emergency Management Forces in accordance with the City of Grand Rapids' Emergency Operations Plan:

(1) Whenever, on the basis of information received from authoritative sources, he or she feels that a large-scale disaster or emergency situation in the City is imminent.

(2) During any period of disaster in the City, and thereafter as long as he or she shall deem it necessary.

(Ord. No. 84-34, § 2, 5-22-84)
Cross reference—Civil emergency proclamation, § 9.377.

Sec. 1.572. Declaring State of Disaster.

In the event a disaster occurs which has not yet been declared a state of disaster by the Governor, and the Mayor determines that the situation is beyond the control of the City, the Mayor may request the Governor to declare a state of disaster by instructing the Emergency Services Coordinator to notify the District Coordinator in accordance with the procedures outlined in MCL 30.401 (1990 P.A. 50).

The Mayor shall comply with the orders of the Director of the Department of State Police on matters of emergency preparedness.
(Ord. No. 84-34, § 2, 5-22-84)
State law reference—Notification procedures, MCL 30.414, MSA 4.824(24).

Sec. 1.573. Emergency Interim Successors.

Consistent with the requirements of Act 203 of the Public Acts of 1959, the City Commission shall adopt procedures for designating emergency interim successors during disasters when public officers are unavailable for exercising the powers and discharging the duties of their respective offices.
(Ord. No. 84-34, § 2, 5-22-84)

Sec. 1.574. Reserved.

ARTICLE 6. RESPONSIBILITIES OF THE CITY COMMISSION AND CITY MANAGER

Sec. 1.575. Powers and Authority.

During a period of declared disaster or local emergency, the City Manager, with the advise and consent of the City Commission, shall have the authority:

(1) To assemble and utilize the Emergency Management Forces in accordance with the City of Grand Rapids' Emergency Operations Plan, and prescribe the manner and conditions of the use of such Emergency Management Forces;

(2) To appropriate and expend funds, make contracts, obtain and distribute equipment, materials and supplies for disaster purposes;

(3) To provide for the health and safety of persons and property, including emergency assistance to the victims of a disaster;

(4) To direct and coordinate the development of disaster plans and programs in accordance with the policies and plans established by the appropriate Federal and State agencies and this Chapter;

(5) To appoint, employ, remove or provide, with or without compensation, rescue teams, aux-

iliary fire and police personnel, and other disaster workers;

(6) To assign and make available for duty the employees, property or equipment of the City relating to fire fighting; engineering; rescue; health, medical and related services; police; transportation; construction; and similar items or service for disaster relief purposes within or without the physical limits of the City, as ordered by the Governor or the Director of the State Police.

(Ord. No. 84-34, § 2, 5-22-84)

Sec. 1.576. Waiver of Legal Requirements Authorized in Event of Attack.

In the event of foreign attack upon the State of Michigan, the City Commission shall have the Authority to waive the procedures and formalities otherwise required by law pertaining to the performance of public work, entering into contracts, the incurring of obligations, the employment of permanent and temporary workers, the utilization of volunteer workers, the rental of equipment, the purchase and distribution with or without compensation of supplies, materials and facilities, and the appropriation and expenditure of public funds.

(Ord. No. 84-34, § 2, 5-22-84)

Secs. 1.577-1.580. Reserved.

ARTICLE 7. POWERS AND DUTIES OF THE EMERGENCY MANAGEMENT COORDINATOR

Sec. 1.581. General Responsibilities.

The Emergency Management Coordinator shall be responsible, at the direction of the City Manager, for the administration, planning, coordination, and operation of all emergency preparedness activities in the City. He or she shall maintain liaison with the County, State, and Federal authorities, and the authorities of adjacent and nearby political subdivisions so as to ensure the most effective emergency operations.

(Ord. No. 84-34, § 2, 5-22-84)

Sec. 1.582. Duties.

The Emergency Management Coordinator's duties shall include, but not be limited to, the following:

(1) Development of the City of Grand Rapids' Emergency Operations Plan, and any other appropriate disaster plans, for the immediate use of all of the facilities, equipment, manpower, and other resources of the City for the purpose of minimizing or preventing damage to persons or property; and protecting and restoring to usefulness governmental services and public utilities necessary for the public health, safety and general welfare;

(2) Coordinating the recruitment and training of volunteer personnel and agencies to augment the personnel and facilities of the City for emergency purposes;

(3) Through public information programs, educating the population as to actions necessary and required for the protection of persons and property in case of a disaster;

(4) Conducting practice alerts and exercises to ensure the efficient operation of the City's emergency organization, and to familiarize residents of the City with emergency regulations, procedures and operations;

(5) Coordinating the activity of all other public and private agencies engaged in any emergency or disaster relief programs;

(6) Negotiating with owners or persons in control of buildings or other property for the use of such buildings or property for emergency or disaster relief purposes, and designating suitable buildings as public shelters;

(7) Establishing and maintaining administrative control over a local radiological defense program, to include emergency preparations for both peacetime radiation incidents and international wartime disasters;

(8) Coordinating City emergency preparedness activities with the County of Kent, other municipalities located therein, and adja-

cent counties, and to develop mutual aid arrangements with such other jurisdictions.
(Ord. No. 84-34, § 2, 5-22-84)

ARTICLE 8. VOLUNTEERS; APPOINTMENTS; RECORDS

Sec. 1.583. Volunteers Authorized.

Each Department, Commission, Board, or other Agency of City government may at any time appoint or authorize the appointment of volunteer citizens to augment the personnel of such City Department, Commission, Board, or Agency in time of emergency. Such individuals shall be enrolled as Emergency Management Volunteers, and shall be subject to the rules and regulations set forth by the respective Department, Commission, Board, or Agency head for such volunteers.
(Ord. No. 84-34, § 2, 5-22-84)

Sec. 1.584. Appointment by Coordinator; Records.

The Emergency Management Coordinator may enlist volunteer citizens to form the personnel of an emergency service for which the City has no counterpart, or to temporarily augment personnel of the City engaged in emergency activities, and shall maintain formal records of all such volunteers.
(Ord. No. 84-34, § 2, 5-22-84)

ARTICLE 9. RIGHTS OF CITY EMPLOYEES

Sec. 1.585. Retention of Rights; Privileges; Compensation.

City employees assigned to duty as part of the Emergency Management Forces pursuant to the provisions of this Chapter shall retain all of the rights, privileges and immunities of City employees, and shall receive the compensation incident to their employment.
(Ord. No. 84-34, § 2, 5-22-84)

ARTICLE 10. NO GOVERNMENTAL OR PRIVATE LIABILITY

Sec. 1.586. Indemnification of City and Its Agents.

This Chapter is an exercise by the City of its governmental functions for the protection of the public health, safety and general welfare. As such, neither the City nor agents and representatives of the City, nor any individual, receiver, firm, partnership, corporation, association, nor Trustee, nor any of the agents thereof acting in good faith carrying out, complying with, or attempting to comply with this Chapter shall be liable for any damage sustained to persons or property as a result of said activity, except as may be provided pursuant to State law.
(Ord. No. 84-34, § 2, 5-22-84)

Sec. 1.587. Persons in Control of Real Estate Used by City Not to Be Liable.

Any person owning or controlling real estate or other premises who voluntarily and without compensation grants the City the right to inspect, designate and use the whole or any part of such real estate or premises for the purpose of sheltering persons during a disaster or during an authorized practice disaster exercise, shall not be civilly liable for the death of, or injury to, any person on or about such real estate or about such real estate or premises under such license, privilege or other permission, or for loss of, or damage to, the property of such person.
(Ord. No. 84-34, § 2, 5-22-84)

ARTICLE 11. SEVERABILITY

Sec. 1.588. Severability.

Should any Section, clause, or provision of this Chapter be declared by the courts invalid for any reason, such declaration shall not affect the validity of this Chapter as a whole or any part thereof, other than the Section, clause or provision so declared to be invalid.
(Ord. No. 84-34, § 2, 5-22-84)

Sec. 1.589. Reserved.

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Chapter 14

UNIFORM CITY INCOME TAX*

Sec. 1.590. Adoption.
Sec. 1.591. Rate of Taxation
Secs. 1.592—1.599. Reserved.

*__Cross references—__City tax lands, § 1.401 et seq.; special assessments, § 1.421 et seq.; purchases, contracts and sales, § 1.501 et seq.

__State law references—__Municipal Finance Act, MCL 131.1 et seq.; Uniform Budgeting and Accounting Act, MCL 141.421 et seq.; City Income Tax Act, MCL 141.501 et seq.

Sec. 1.590. Adoption.

The Uniform City Income Tax Ordinance as prescribed by Act 284 of the Michigan Public Acts of 1964, as amended, is hereby adopted as the Grand Rapids Uniform City Income Tax Ordinance and all the terms, provisions and conditions as found therein are hereby incorporated by reference.

*Note: Ord. 89-20, adopted 3-21-89, amended Section 11 of Ord. 66-28 but did not become effective because it was not approved by a majority of the qualified electors voting on the question at an election held prior to July 1, 1989.

Section 31 of said ordinance is amended to read as follows:

Sec. 31.(1) An individual taxpayer, in computing his or her taxable income, is allowed a deduction of $750 for tax years 2005 through 2009, $375 for the first half of tax year 2010, $300 for the second half of tax year 2010, for a total of $675 for tax year 2010, and $600 for tax year 2011 and all tax years thereafter, for each personal and dependency exemption under the rules for determining exemptions and dependents as provided in the federal internal revenue code. The taxpayer may claim his or her spouse and dependents as exemptions, but if the taxpayer and the spouse are both subject to the tax imposed by this ordinance, the number of exemptions claimed by each of them when added together shall not exceed the total number of exemptions allowed under this ordinance.

(2) An additional exemption is allowed under subsection (1) for a taxpayer who is sixty-five (65) years of age or older, or who is blind as defined in Section 504 of the Income Tax Act of 1967, Act 281 of the Public Acts of 1967, being Section 206.504 of the Michigan Compiled Laws, or if the taxpayer is both sixty-five (65) years of age or older and blind, two (2) additional exemptions are allowed under subsection (1).

(3) An exemption is allowed under subsection (1) for a person with respect to whom a deduction under Section 151 of the Internal Revenue Code is allowable to another Federal taxpayer during the tax year and is therefore not considered to have a Federal personal exemption under subsection (1).

Section 60. of said ordinance is amended to read as follows:

Section 60. An employer shall file a return, furnished by or obtainable on request from the City, and pay to the City the full amount of the tax withheld on or before the last day of the month following the close of each calendar quarter except that if during any calendar month other than the last month of a calendar quarter, the amount withheld exceeds one hundred dollars ($100.00), the employer shall deposit the amount withheld with the City Treasurer before the end of the next calendar month.

(Ord. No. 66-28, 6-28-66; Ord. No. 70-62, 8-25-70; Ord. No. 73-48, 7-3-73; Ord. No. 76-8, 2-3-76; Ord. No. 80-82, 11-25-80; Ord. No. 88-51, § 1, 7-26-88; Ord. No. 89-20, § 1, 3-21-89; Ord. No. 2000-21, § 1, 5-2-00; Ord. No. 2004-12, § 1, 3-23-04; Ord. No. 2010-22, § 1, 5-11-10/eff. 7-1-10)

State law reference—"Blind" defined, MCL 206.504.

Sec. 1.591. Rate of Taxation.

Section 11 of the Uniform City Income Tax Ordinance of the City of Grand Rapids, as adopted by Ordinance 66-28, pursuant to the authority of Section 3c of Chapter 1 of Act 284 of the Public Acts of 1964, as amended (the City Income Tax Act, MCL 141.501 et seq.), is amended to read as follows:

Section 11. Subject to the exclusions, adjustments, exemptions and deductions herein provided, an annual tax of 1.5% on corporations and resident individuals and of .75% on nonresident individuals for general revenue purposes is hereby imposed as an excise on income earned and received on and after the effective date of this ordinance.

(Ord. No. 94-47, § 1, 12-13-94; Ord. No. 2010-07, § 1, 2-16-10; Ord. No. 2014-02, §§ 1—3, 1-28-14, eff. 7-1-15)

Note—This Section shall become effective on July 1, 2015, pursuant to the authority of Section 3 of Chapter 1 of Act 284 of the Public Acts of 1964, as amended (the City Income Tax Act, MCL 141.503); provided, however, that this Ordinance

shall not be effective unless the amendment is approved by a majority of the qualified electors voting on the question at a special election held on May 6, 2014.

The income tax rates authorized by this Ordinance shall expire on June 30, 2030. On July 1, 2030, the annual income tax rates shall automatically revert to 1.3% on corporations and resident individuals and .65% on non-resident individuals.

Secs. 1.592—1.599. Reserved.

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Chapter 15

RESERVED*

*__Editor's note__—Ord. No. 2014-10, § 1, adopted March 11, 2014, repealed § 1.600, which pertained to ward apportionment. See Code Comparative Table for complete derivation.

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Chapter 16

PARKING VIOLATIONS BUREAU*

Sec. 1.610. Bureau Transferred.
Sec. 1.611. Location of Bureau.
Sec. 1.612. Unscheduled Violations.
Sec. 1.613. Disposition of Violation.
Sec. 1.614. Information Concerning Bureau on Ticket.
Sec. 1.615. Fines.
Secs. 1.616.—1.700. Reserved.

*__Cross references—__Automobile parking system, Ch. 30; parking and loading spaces, § 5.51 et seq.; parking violations by motor vehicle rentals, responsibility therefor, § 7.367; parking facilities, Ch. 97; parking regulations, § 10.40 et seq.; parking violations, § 10.64; parking violations declared civil infractions, § 10.68.

Sec. 1.610. Bureau Transferred.

Supervision and control of the Parking Violations Bureau, which was established pursuant to Section 8391 of the Revised Judicature Act, State of Michigan, as added by Public Act 154 of 1968, for the purpose of handling alleged parking violations within the City, shall be transferred from the 61st District Court to the City Treasurer. The administrative authority of the 61st District Court over the Parking Violations Bureau shall also be transferred to the City Treasurer, and any parking violations tags or notices which were issued prior to adoption of Ordinance 81-57 shall be disposed of by the City Treasurer by means set forth in this Chapter.
(Ord. No. 68-79, 12-23-68; Ord. No. 73-34, 5-22-73; Ord. No. 81-57, 7-14-81)

Sec. 1.611. Location of Bureau.

The City Treasurer shall establish a convenient location for the Parking Violations Bureau and adopt rules and regulations for the operation thereof.
(Ord. No. 68-79, 12-23-68; Ord. No. 73-34, 5-22-73)

Sec. 1.612. Unscheduled Violations.

No violation not scheduled in Section 1.615 of this Chapter shall be disposed of by the Parking Violations Bureau. The fact that a particular violation is scheduled shall not entitle the alleged violator to disposition of the violation at the Bureau and in any case the person in charge of such Bureau may refuse to dispose of such violation in which case any person having knowledge of the facts may make a sworn complaint before any court having jurisdiction of the offense as provided by law.
(Ord. No. 68-79, 5-22-73)

Sec. 1.613. Disposition of Violation.

No violation may be settled at the Parking Violations Bureau except at the specific request of the alleged violator. No penalty for any violation shall be accepted from any person who denies having committed the offense. The City Treasurer or Deputy City Treasurer may void a parking notice or tag issued upon proven justifiable reason. The City Treasurer or Deputy City Treasurer must attach or note on the violation the result of the investigation of the Parking Violations Bureau, the Police Department, or the Transportation Department justifying the voiding of the violation. All persons shall be entitled to have any such violation processed before a court having jurisdiction thereof, if they so desire. The unwillingness of any person to dispose of any violation at the Parking Violations Bureau shall not prejudice that person or in any way diminish the rights, privileges and protection accorded to that person by law.
(Ord. No. 68-79, 12-23-68; Ord. No. 77-67, 11-29-77; Ord. No. 81-57, 7-14-81)

Sec. 1.614. Information Concerning Bureau on Ticket.

The issuance of a parking ticket or notice of violation by a police officer or any authorized employee of the City shall be deemed an allegation of a parking violation. Such traffic ticket or notice of violation shall indicate the length of time in which the person to whom the same was issued must respond before the Parking Violations Bureau. It shall also indicate the address of the Bureau, the hours during which the Bureau is open, and the amount of the penalty scheduled for the offense (or means for obtaining the same) for which the ticket was issued.
(Ord. No. 68-79, 12-23-68)

Sec. 1.615. Fines.

Fines for parking violations issued under this Code shall be established from time to time by resolution of the City Commission. Fines not paid within ten (10) days from the date of the violation notice will double. If the fine is not paid within ninety (90) days, the fine will triple.
(Ord. No. 68-79, 12-23-68; Ord. No. 72-95, 12-12-72; Ord. No. 74-3, 1-15-74; Ord. No. 75-12, 2-11-75; Ord. No. 80-63, 8-12-80; Ord. No. 81-57, 7-14-81; Ord. No. 82-55, 7-6-82; Ord. No. 85-34, § 1, 5-28-85; Ord. No. 88-50, § 1, 7-26-88; Ord. No. 92-54, § 1, 8-25-92; Ord. No. 93-36, § 1, 8-24-93; Ord. No. 2000-17, § 1, 4-11-00; Ord. No. 2001-45, § 1, 11-13-01; Ord. No. 2007-01, § 1, 1-9-07)

Secs. 1.616—1.700. Reserved.

[The next page is 661]

Chapter 17

RESERVED

Secs. 1.701–1.800. Reserved.

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Chapter 18

INVESTMENTS

Sec. 1.801. Legal Requirements as to City Treasurer.
Sec. 1.802. Investment.
Sec. 1.803. Redemptions.
Sec. 1.804. Reports.
Sec. 1.805. Investment Deposits.
Sec. 1.806. Bidding Procedures.
Sec. 1.807. Financial Stability of Depositories.
Sec. 1.808. Revisions.
Sec. 1.809. Depositories.
Sec. 1.810. Bad Check Fee.
Secs. 1.811–1.819. Reserved.

Sec. 1.801. Legal Requirements as to City Treasurer.

The City Treasurer shall invest or reinvest money in strict compliance with the City Charter of the City of Grand Rapids and specifically Sections 28, 29 and 30 of Title V, and Section 5 of Title VI thereof, and the laws of the State of Michigan and the Investment Program and Policy of the City of Grand Rapids as it may be amended from time to time.

The City Treasurer is authorized to invest funds belonging to the City and its Boards, Commissions and authorities as provided in Act 66 of 1977 as amended (MCL 129.91 et seq., MSA 3.843(1) et seq.).
(Ord. No. 77-73, 12-13-77)

State law reference—Investment of surplus funds by political subdivisions, MCL 129.91, MSA 3.843(1).

Sec. 1.802. Investment.

The City Treasurer is hereby authorized to purchase, at their original issue or after they have been issued, securities which are permissible under the Sections of State law as outlined in Section 1.801, above, as they now read or may be amended, from money in his or her custody which is not required for the immediate necessities of the City and as he or she may deem wise and expedient, and to sell or exchange for other eligible securities and reinvest the proceeds of the securities so purchased. Investments shall be made in accordance with the City of Grand Rapids Investment Program and Policy.
(Ord. No. 77-73, 12-13-77)

Sec. 1.803. Redemptions.

From time to time the City Treasurer shall redeem the securities in which City money has been invested pursuant to Section 1.802 of this Chapter so that the proceeds may be applied to the purposes for which the original purchase money was designated or placed in the City Treasury.
(Ord. No. 77-73, 12-13-77)

Sec. 1.804. Reports.

The City Treasurer shall make a monthly report of all investments to the City Commission detailing, at minimum, conformance to the provisions of Section 1.801 of this Chapter.
(Ord. No. 77-73, 12-13-77)

Sec. 1.805. Investment Deposits.

The City Treasurer is hereby authorized to deposit for safekeeping with a State or national bank located within this State or with any Federal Reserve Bank or with a State or National bank located in any City designated as a reserve City by the Board of Governors of the Federal Reserve System, the securities in which City money has been invested pursuant to Section 1.802 of this Chapter; provided, however, that the City Treasurer shall take from such bank a receipt for the securities so deposited and shall not be responsible for such securities delivered to and receipted for by such bank until they are withdrawn therefrom by the City Treasurer.
(Ord. No. 77-73, 12-13-77)

Sec. 1.806. Bidding Procedures.

Competitive bidding procedures as outlined in the Investment Program and Policy shall be implemented by the City Treasurer and results of bidding shall be shown monthly pursuant to Section 1.804.
(Ord. No. 77-73, 12-13-77)

Sec. 1.807. Financial Stability of Depositories.

Pre-qualification of financial institutions to bid on City of Grand Rapids investments shall be implemented by the City Treasurer according to provision of the City of Grand Rapids Investment Program and Policy. Reporting to the City Commission shall be pursuant to Section 1.804.
(Ord. No. 77-73, 12-13-77)

Sec. 1.808. Revisions.

Any changes to the Investment Program and Policy must be approved by the City Commission by resolution.
(Ord. No. 77-73, 12-13-77)

Sec. 1.809. Depositories.

The establishment of funds and the depository for such funds shall be by City Commission resolution.

Sec. 1.810. Bad Check Fee.

The City Treasurer shall assess a charge to any person who issues a check payable to the City of Grand Rapids which is, for any reason, returned without payment. The amount of the fee so charged shall be as determined by the City Commission, by resolution, upon the recommendation of the City Treasurer.
(Ord. No. 85-77, § 1, 11-26-85)

Secs. 1.811—1.819. Reserved.

[The next page is 715]

Chapter 19

RESERVED*

*__Editor's note__—Ord. No. 2013-57, § 1, adopted October 8, 2013, repealed § 1.820, which pertained to fees for processing industrial and commercial facilities exemption certificates. See Code Comparative Table for complete derivation.

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Chapter 20

RESERVED*

*__Editor's note__—Ord. No. 2013-50, § 1, adopted September 24, 2013, repealed §§ 1.850—1.860, which pertained to International Relations Committee. See Code Comparative Table for complete derivation.

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Chapter 21

DOWNTOWN DEVELOPMENT AUTHORITY*

Sec. 1.901. Title.
Sec. 1.902. Purpose.
Sec. 1.903. Definitions.
Sec. 1.904. Creation of Authority.
Sec. 1.905. Description of Downtown District.
Sec. 1.906. Board.
Sec. 1.907. Powers of the Authority.
Sec. 1.908. Termination.
Sec. 1.909. Amendment.
Sec. 1.910. Downtown Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1.
Sec. 1.911. Ordinance Approving Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1 as Amended.
Sec. 1.912. Ordinance Approving Amendments to the Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1 as Amended.
Secs. 1.913–1.924. Reserved.

*State law reference–Downtown Development Authority, MCL 125.1651 et seq., MSA 5.3010(1) et seq.

Sec. 1.901. Title.

This Chapter shall be known as the "Downtown Development Authority Ordinance" of the City of Grand Rapids.
(Ord. No. 79-69, 10-16-79)

Sec. 1.902. Purpose.

The purpose of this Chapter is to create a public body corporate to act in the best interests of the City to halt property value deterioration, increase property tax valuation where possible in the business district of the City, eliminate the causes of that deterioration and to promote economic growth pursuant to Act 197 of the Public Acts of 1975 [MCL 125.1651 et seq., MSA 5.3010(1) et seq.].
(Ord. No. 79-69, 10-16-79)

Sec. 1.903. Definitions.

The terms used herein shall have the same meaning as given them in Act 197 or as hereinafter in this Section provided, unless the context clearly indicates to the contrary, and shall be in addition to the terms provided in Act 197.

(1) *Authority* means the Downtown Development Authority of the City of Grand Rapids.

(2) *Act 197* means Act No. 197 of the Public Acts of Michigan of 1975 as now in effect or hereafter amended.

(3) *City* means the City of Grand Rapids.

(4) *Commission* means the Grand Rapids City Commission.

(5) *Downtown District* means the downtown district designated herein.

(Ord. No. 79-69, 10-16-79)

Sec. 1.904. Creation of Authority.

There is hereby created pursuant to Act 197 a Downtown Development Authority for the City of Grand Rapids, Michigan. The Authority shall be a public body corporate and shall be known and exercise its powers under title of "Downtown Development Authority of the City of Grand Rapids." The Authority may adopt a seal, may sue and be sued in any court of this State, and shall possess all of the powers necessary to carry out the purpose of its incorporation as provided herein and in Act 197. The enumeration of a power herein or in Act 197 shall not be construed as a limitation upon the general powers of the Authority.
(Ord. No. 79-69, 10-16-79)

Sec. 1.905. Description of Downtown District.

The Downtown District, also known as Downtown Development Area No. 1, in which the Downtown Development Authority (the "Authority") shall exercise its powers as provided in Act 57 of 2018, as amended, shall consist of the following described territory in the City of Grand Rapids:

1. District A includes a 46-acre, 10-block section of the east riverbank area. This district is generally bounded by the north line of the original Grand Center on the north, the rear lot lines of properties along the east side of Monroe Avenue (north of Pearl Street) and Ottawa Avenue on the east, Fulton Street on the south, and the Grand River on the west.

2. District B includes a 10-acre, 6-block section of Monroe Center and is generally bounded by rear lot lines of properties on the north side of Monroe Center between Pearl Street and Division Avenue, on the north, Division Avenue on the east, Fulton Street on the south, and Ottawa Avenue and Monroe Center on the west.

3. District C includes an 86-acre, 14-block section of the Heartside District and is generally bounded by Fulton Street on the north, Division Avenue and Ionia Avenue on the east, Wealthy Street on the south, and Grandville Avenue and the Grand River on the west.

4. District D includes a 34-acre section of the west riverbank development area and adjoining river surface, located south of Pearl Street.

5. District E includes a 46-acre section of the west river bank development area and adjoining river, located north of Pearl and extending to the I-196 expressway.

6. District F includes a 36-acre, 10-block area, west of US 131, which passes in a north-south direction through the western edge of downtown. District F is generally bounded by Pearl Street and Lake Michigan Drive on the south, Seward Avenue on the west, Bridge Street on the north between Seward Avenue and Winter Avenue, Winter Avenue on the east between Bridge Street and Douglas Street, and then Douglas Street on the north between Winter Avenue and Scribner Avenue.

7. District G includes a 14-acre area of 4 blocks plus portions of 3 other blocks bounded by Lyon Street on the north, Division Avenue on the east, and the boundary of District B on the south and west. This boundary generally follows the rear of properties located on the north side of Monroe Center and the east side of Monroe Avenue.

8. District H includes a 34 acre, 5-block area bounded by Michigan Street on the north, Division Avenue on the east, Lyon Street on the south, and the existing boundaries of District A and District E on the west. This area includes the governmental buildings located in the Calder Square and it includes the portion of the DeVos Place Convention Center site that is not included within other Districts. This area is also within the City of Grand Rapids SmartZone Authority district which also captures tax increment revenues.

9. District I is comprised of 279 acres and includes: (a) a 38-block area, including the Grand Rapids Community College Campus, St. Mary's Health campus, Mary Free Bed facilities and the remainder of area commonly known as the Heartside Neighborhood; (b) a one-block area bounded by Ionia Avenue, Logan Street, Century Avenue, and Wealthy Street; (c) a five-block area located west of Grandville Avenue, between Wealthy Street and US-131; and (d) a five-block area bounded by Lake Michigan Drive, US-131, Watson Street and Lexington/Seward Avenues.

10. District J is comprised of 55 acres and includes: (a) a six-block area located north and south of Bridge Street, NW; (b) a two-block area bounded by Scribner Avenue, Sixth Street, the east bank of the Grand River and I-196; and (c) a one-block area bounded by Monroe Avenue, Trowbridge Street, Bond Avenue, and I-196.

11. District K is comprised of 37 acres and includes a four-block area located east of the Grand River, between Newberry Street and I-196. This area is also within the City of Grand Rapids SmartZone Local Development Finance Authority district, which also captures tax increment revenues.

12. District L is comprised of 35 acres and includes a three-block area west of US-131 and south of Second Street between Turner Avenue and Seward Avenue. It includes portions of US-131 and I-196, between Seward Avenue and the Grand River, and south of Fourth Street. This area is within the Westside Corridor Improvement District, which also captures tax increment revenues. There is also a City of Grand Rapids Brownfield Redevelopment Authority plan amendment for the Bridge and Turner, LLC Project within this District.

13. District M is comprised of 17 acres and includes a two-block area west of the Grand River and east of Front Street between Leonard Street and Sixth Street. This District is within the Westside Corridor Improvement District, which captures tax increment revenues.

14. District N consists of 100 acres and includes a 12-block area bounded by Leonard Street to the north, Division

Avenue on the east, Sixth Street on the south, and the Grand River on the west. This District includes the hillside east of Division Avenue bordering the Belknap Neighborhood between Mason Street and I-196. The Grand Rapids Tax Increment Financing Authority, City of Grand Rapids SmartZone Local Development Finance Authority, and the North Quarter Corridor Improvement District are all within this area and capture tax increment revenues.

15. District O consists of 4 acres and includes a 3-block area at the southeast and southwest corners of Division Avenue and Wealthy Street. The southwestern portion borders District I between Wealthy Street and Logan Street. The southeast corner includes the entire block east of Division Avenue, west to Sheldon Avenue, and south to Logan Street.

16. District P consists of 41 acres and includes a 12-block area south of Wealthy Street, east of the Grand River, west of US-131, and bounded by the existing railroad tracks to the south from Century Avenue to the pedestrian bridge at 700 Chestnut Street that extends over Market Avenue and the Grand River. This District is within the City of Grand Rapids SmartZone Local Development Finance Authority district, which captures tax increment revenues.

17. District Q consists of the property north of Wealthy Street, east of the Grand River south of Cherry Street, and west of Finney Street. To the west of the Grand River, it includes the properties along Front Avenue to Watson Street and the area bounded by Butterworth Street, Lexington Avenue, Watson Street, and Front Avenue. It also includes the area south of Wealthy Street to the Oxford Trails Bridge.

18. District R consists of the property at the northwest corner of Michigan Street and Monroe Avenue where the United States Post Office and The Rowe commercial building are located.

19. A map of Downtown Development Area No. 1 is included as Map 5 in the Authority's Development and Tax Increment Financing Plan, as amended from time to time. The entirety of Downtown Development Area No. 1, including all districts described above, is ratified and confirmed currently as follows:

Part of Sections 19, 30, 31, Town 7 North, Range 11 West, and Sections 24, 25, 36, Town 7 North, Range 12 West, Kent County, Michigan, described as: Commencing at the Northwest Corner of Section 30, Town 7 North, Range 11 West; thence North along the West line of said Section 30 to the South line of Highway I-196 and the Point of Beginning; thence East along the South line of said Highway I-196 to the extensions of the East line of Parcel 41-14-19-382-048; thence South along said East line to the centerline of Michigan Street NE; thence West along said centerline of Michigan Street NE to the extension of the East line of Lot 2, Kendall's Second Edition, recorded in Kent County Records; thence along said East line of Lot 2 to the centerline of Michigan Alley NE; thence West along said centerline of Michigan Alley NE to the East line of Amended Plat of Lots 5—10 inclusive, Block 16 and adjacent vacated Michigan Street Alley (Victory Place) and adjacent vacated Lafayette Avenue Alley (Claremont Place), Kendall's 2nd Addition, recorded in Liber 1 of Plats, Page 79, and Lots 4 and 5 of the Amended Plat of Lots 1, 2, 3, 4, and 20 and adjacent vacated Michigan Street Alley, Block 16, Kendall's 2nd Addition; thence South along said East line to the North line of Lot 27, said Amended Plat; thence West, South, Southeasterly, and Southwesterly along said Lots 27 and 28, said Amended Plat to the centerline of Claremont Place NE; thence Southerly along said centerline of Claremont Place NE to the extensions of a South line of Lot 23, Block 8, Amended Plat of Lots 1, 2, 3, and 15 thru 22 inclusive, Blocks 8 and Lots 1 thru 5 inclusive, Block 9, and Vacated Adjacent Barclay Avenue and Vacated Adjacent Willow Court of Kendall's Addition, recorded in Liber 2276, Pages

775—780, Kent County Records; thence West along said South line of Lot 23 to the West line of Lot 24, Block 8, said Amended Plat of Kendall's Addition; thence South along said West line of Lot 24 and extension thereof to the centerline of Fountain Street NE; thence East along said centerline of Fountain Street NE to the extension of the East line of Lot 1, Block 3, Kendall's Addition to the City of Grand Rapids, recorded in Liber O of Plats, Pages 312—315, Kent County Records; thence South along the extension of said East line of Lot 1, Block 3, Kendall's Addition to the SE corner of said Lot 1, Block 3 and the South line Lots 3 and 4, Block 3, Kendall's Addition; thence East along said South line of Lots 3 and 4, Block 3 to the SE corner of said Lot 4, Block 3, Kendall's Addition; thence Southeasterly to a point on the North line of Block 2, Kendall's Addition, which is 149 feet West of the NE corner of Lot 1, Block 2, Kendall's Addition; thence South along the West line of the East 149 feet of said Lot 1 and Lot 2, Block 2, Kendall's Addition to the North line of Lot 3, Block 2, of said Kendall's Addition; thence West along said North line of Lot 3 to the East line of said Lot 4; thence South along said East line of Lot 4 & Lot 5, Block 2, Kendall's Addition to the South line of North 23 feet of Lot A, Block 2, of said Kendall's Addition; thence East along said South line of North 23 feet of Lot A, Block 2, of said Kendall's Addition to the centerline of Lafayette Avenue SE; thence South along said centerline of Lafayette Avenue SE to the centerline of East Fulton Street; thence West along said centerline of East Fulton Street to extension of the East line of Lot 1410, Steinmann's Accessor's Plat No. 48, recorded in Liber 42 of Plats, Page 18, Kent County Records; thence South along said East line of Lot 1410 to the SE corner of said Lot 1410 and the North line of Lot 1414, said Steinmann's Accessor's Plat No. 48; thence East along said North line of Lot 1414 to the East line of the West 1.0 feet of said Lot 1414; thence South along said East line of the West 1.0 foot of Lot 1414 to the South line of said Lot 1414; thence East along said South line of Lot 1414 to the NW corner of Lot 1415 and West line of Lot 1415, said Steinmann's Accessor's Plat No. 48; thence South along said West line of Lot 1415 to the SW corner of said Lot 1415 and the South line of said Lot 1415; thence East along said South line of Lot 1415 to the centerline of Lafayette Avenue SE; thence South along said centerline of Lafayette Avenue SE to the centerline of Cherry Street SE; thence East along said centerline of Cherry Street SE to the extension of the East line of Lot 1, Chas B Smith's Addition, recorded in Liber 2, Page 27, Kent County Records; thence South along said East line of Lot 1 and extension thereof to the North line of the Amended Plat of Lots 5 through 8 Inclusive and Adjacent Vacated Alley, Plat of Chas B Smith's Addition, recorded in Liber 112, Pages 10—11, Kent County Records; thence East along said North line to the centerline of Prospect Avenue SE; thence South along said centerline of Prospect Avenue SE to the centerline of Wealthy Street SE; thence West along said centerline of Wealthy Street SE to the centerline of Sheldon Avenue SE; thence South along said centerline of Sheldon Avenue SE to the centerline of Logan Street SE; thence West along said centerline of Logan Street SE to the centerline of South Division Avenue; thence South along said centerline of South Division Avenue to the centerline of Logan Street SE; thence West along said centerline of Logan Street SE to the West line of U.S. 131 Freeway; thence South along said West line of U.S. 131 Freeway to the extension of the centerline of Buckley Street SW; thence West along said extension of the centerline of Buckley Street SW to the centerline of the CSX Transportation Railroad; thence Northwesterly, Westerly, and Southwesterly along said centerline of the CSX Transportation Railroad to the extension of the West line of Parcel 41-13-36-103-001; thence Northwesterly along said West line and extension thereof to the centerline of Market Avenue SW; thence Northeasterly along said centerline of Market Avenue SW to the extension of the West line of Parcel 41-13-36-102-019; thence Northwesterly along said West line to the South line of the Grand River; thence Northeasterly along said South line of the Grand River and extension thereof to the centerline of Wealthy Street SW; thence West along said centerline of Wealthy Street SW to the extension of the North line of the Grand River; thence Southwesterly along said North line of the Grand River to the Northwesterly Line of MC Railroad Co. right-of-

way (100 feet wide); thence Northwesterly along said Northwest line of MC Railroad Co. right-of-way to the East lines of Lots 15—18, Luce & Hunts Addition to the City of Grand Rapids, recorded in Liber 12 of Plats, Page 19, Kent County Records; thence North along said East line of Lots 15—18 and extension thereof to the centerline of Wealthy Street SW; thence East along said centerline of Wealthy Street SW to the centerline of Front Avenue SW; thence Northeasterly along said centerline of Front Avenue SW to the centerline of Emperor Street SW; thence West along said centerline of Emperor Street SW to the centerline of Tolford Avenue SW; thence North along said centerline of Tolford Avenue SW to the centerline of Butterworth Avenue SW; thence West along said centerline of Butterworth Avenue SW to the centerline of Lexington Avenue SW; thence North along said centerline of Lexington Avenue SW to the centerline of Seward Avenue SW; thence North along said centerline of Seward Avenue SW to the centerline of Bridge Street NW; thence East along said centerline of Bridge Street NW to extension of the West line of Parcel 41-13-24-383-020; thence North along said extension of Parcel 41-13-24-383-020 to the Northwest corner of said Parcel 41-13-24-383-020; thence East along the North line of said 41-13-24-383-020 to the SW corner of Lot 545, Panfil's Accessor's Plat No. 27, recorded in Liber 40, Page 9, Kent County Records; thence North along the West line of said Panfil's Accessor's Plat No. 27 to the centerline of 1st Street NW; thence West along said centerline of 1st Street NW to the centerline of Alabama Avenue NW; thence North along said centerline of Alabama Avenue NW to the centerline of 2nd Street NW; thence East along said centerline of 2nd Street NW to the centerline of Broadway Avenue NW; thence North along said centerline of Broadway Avenue NW to the centerline of 3rd Street NW; thence East along said centerline of 3rd Street NW and extension thereof to the centerline of Turner Avenue NW; thence North along said centerline of Turner Avenue NW to the centerline of 4th Street NW; thence East along said centerline of 4th Street NW and extension thereof to the centerline of Scribner Avenue NW; thence North along said centerline of Scribner Avenue NW to the centerline of 6th Street NW; thence East along said centerline of 6th Street NW to the centerline of Front Avenue NW; thence North along said centerline of Front Avenue NW to the centerline of Leonard Street NW; thence East along said centerline of Leonard Street NW to the centerline of Plainfield Avenue NE; thence Southwesterly along said centerline of Plainfield Avenue NE to the extension of the North line of Lot 10, Block 7, Tanner Taylor's Addition to the City of Grand Rapids, recorded in Liber 6, Page 17, Kent County Records; thence West along said Northerly extension of Lot 10 to the West line of Section 19, Town 7 North, Range 11 West; thence South along said West line to the South line of said Highway I-196 and the Point of Beginning.

(Ord. No. 79-69, 10-16-79; Ord. No. 83-76, § 2, 12-20-83; Ord. No. 2007-73, § 1, 12-18-07; Ord. No. 2016-86, § 1, 12-6-16; Ord. No. 2024-27, § 1, 7-16-24)

Sec. 1.906. Board.

The Authority shall be under the supervision and control of a Board consisting of the Mayor of the City and eight (8) members. The members shall be appointed by the Mayor subject to approval by the Commission. Eligibility for membership on the Board and terms of office shall be as provided in Act 197. All members shall hold office until the member's successor is appointed.

(Ord. No. 79-69, 10-16-79)

Sec. 1.907. Powers of the Authority.

The Authority shall possess all of the powers necessary to carry out the purposes of its incorporation and shall have all powers provided by Act 197 of the Public Acts of 1975 with the following exceptions:

(1) The power to levy ad valorem taxes on the real and tangible personal property not exempt by law and as finally equalized in the downtown district at the rate of not more than two (2) mills as set forth in Section 12 of Act 197 shall be limited to one (1) mill.

(Ord. No. 79-69, 10-16-79)

Sec. 1.908. Termination.

Upon completion of its purposes the Authority may be dissolved by the Commission. The property and assets of the Authority, after dissolution and satisfaction of its obligations, shall revert to the City.
(Ord. No. 79-69, 10-16-79)

Sec. 1.909. Amendment.

This Chapter may be amended pursuant to Section 1.2 of Chapter 1 of the City Code.
(Ord. No. 79-69, 10-16-79)

Sec. 1.910. Downtown Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1.

(1) *Preliminary findings:*

(a) That a public hearing was held on the proposed Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1, following the giving of notice thereof, all in accordance with Act 197 of the Public Acts of 1975, as amended.

(b) That there are no findings or recommendations of a development area citizens' council, there having been no statutory requirement to form a development area citizens' council.

(c) That the proposed Development Plan and Tax Increment Financing Plan meet the requirements set forth in Act 197 of the Public Acts of 1975, as amended.

(d) That the proposed method of financing the proposed development is feasible and the Downtown Development Authority of the City of Grand Rapids has the ability to arrange the financing.

(e) That the proposed development is reasonable and necessary to carry out the purposes of Act 197 of the Public Acts of 1975, as amended.

(f) That any land included within the proposed development area which is to be acquired is reasonably necessary to carry out the purposes of the Plan and of Act 197 of the Public Acts of 1975, as amended, in an efficient and economically satisfactory manner.

(g) That the proposed Development Plan is in reasonable accord with the Master Plan of the City of Grand Rapids.

(h) That public services, such as fire and police protection and utilities, are or will be adequate to service the proposed project area.

(i) That changes in zoning, streets, street levels, intersections and utilities are reasonably necessary for the proposed project and for the City of Grand Rapids.

(2) *Findings and determination:*

(a) That based upon the foregoing findings, it is hereby held and determined that the Development Plan and Tax Increment Financing Plan for Downtown Area No. 1 constitutes a public purpose.

(b) That the Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1 is hereby approved.

(3) *Immediate effect.* This Section approving Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1 is hereby determined to be immediately necessary for the preservation of public health, peace and safety and is hereby given immediate effect.
(Ord. No. 80-86, 12-16-80)

Sec. 1.911. Ordinance Approving Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1 as Amended.

(1) *Preliminary findings:*

(a) That the Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1 was adopted and approved by the Grand Rapids City Commission on the sixteenth day of December, 1980, in accordance with Act 197 of the Public Acts of 1975, as amended.

(b) That prior to holding public hearings on the proposed amendments to the Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1 as adopted by the Grand Rapids Downtown Development Authority on June 17, 1981, and October 21, 1981, the governing body of the City of Grand Rapids provided a reasonable opportunity to the members of the Kent County Board of Commissioners and to the members of the School Boards of any school district in which any portion of the development area as amended is located to meet with the governing body of the City of Grand Rapids; and the Grand Rapids Downtown Development Authority fully informed the members of the Kent County Board of Commissioners and of the School Boards of the fiscal and economic implications of the proposed development area as amended, and the members of the Kent County Board of Commissioners and of the School Boards had an opportunity to present their recommendations at the public hearings subsequently held on the proposed amendments to the Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1 which were adopted by the Grand Rapids Downtown Development Authority on June 17, 1981, and October 21, 1981.

(c) That public hearings were held, following the giving of notice thereof in accordance with Act 197 of the Public Acts of 1975, as amended, on proposed amendments to the Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1, which amendments were adopted by the Grand Rapids Downtown Development Authority on June 17, 1981, and October 21, 1981, respectively.

(d) That there are no findings or recommendations of a development area citizens' council, there having been no statutory requirement to form such a development area citizens' council.

(e) That the Development Plan and Tax Increment Financing Plan for downtown Development Area No. 1 and said amendments thereto as adopted by the Grand Rapids Downtown Development Authority on June 17, 1981, and October 21, 1981, satisfy and comply with the requirements set forth in Act 197 of the Public Acts of 1975, as amended.

(f) That the proposed method of financing the proposed development as set forth in said Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1 and said amendments thereto is feasible and the Downtown Development Authority of the City of Grand Rapids has the ability to arrange said financing.

(g) That the proposed development as set forth in the Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1 and said amendments thereto is reasonable and necessary to carry out the purposes of Act 197 of the Public Acts of 1975, as amended.

(h) That any land included within the development area as amended which is to be acquired is reasonably necessary to carry out the purposes of the Plan and of Act 197 of the Public Acts of 1975, as amended, in an efficient and economically satisfactory manner.

(i) That said Development Plan as amended is in reasonable accord with the Master Plan of the City of Grand Rapids.

(j) That public services, such as fire and police protection and utilities, are or will be adequate to service the proposed project area as amended.

(k) That changes in zoning, streets, street levels, intersections, and utilities are reasonably necessary for the proposed project as amended and for the City of Grand Rapids.

(2) *Findings and determination:*

(a) That based upon the foregoing findings, it is hereby held and determined that the

Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1, including the amendments thereto adopted by the Grand Rapids Downtown Development Authority on June 17, 1981, and October 21, 1981, constitute a public purpose.

(b) That the Development Plan and Tax Increment Financing Plan for Downtown Development Area No.1, and the amendments thereto adopted by the Grand Rapids Downtown Development Authority on June 17, 1981, and October 21, 1981, are hereby approved.

(3) *Immediate effect.* This Section approving Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1 as amended is hereby determined to be immediately necessary for the preservation of public health, peace and safety and is hereby given immediate effect.
(Ord. No. 81-86, 12-15-81)

Sec. 1.912. The Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1, as Amended.

(1) Preliminary Findings.

(a) That the Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1 were adopted and approved by the Commission on December 16, 1980, in accordance with Act 197, since recodified in Part 2 of Act 57 of 2018, as amended.

(b) That on December 15, 1981, the Commission approved certain amendments to the Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1, as amended, as approved and recommended by the Authority on June 17, 1981, and October 21, 1981.

(c) That on November 23, 1982, the Commission approved certain amendments to the Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1, as amended, as approved and recommended by the Authority on October 20, 1982.

(d) That on October 4, 1983, the Commission approved certain amendments to the Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1, as amended, as approved and recommended by the Authority on August 17, 1983.

(e) That on December 20, 1983, the Commission approved certain amendments to the Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1, as amended, as approved and recommended by the Authority on November 16, 1983.

(f) That on October 16, 1984, the Commission approved certain amendments to the Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1, as amended, as approved and recommended by the Authority on August 22, 1984.

(g) That on April 6, 1987, and June 23, 1987, the Commission approved certain amendments to the Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1, as amended, as approved and recommended by the Authority on January 14, 1987.

(h) That on May 24, 1988, the Commission approved certain amendments to the Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1, as amended, as approved and recommended by the Authority on March 30, 1988.

(i) That on August 29, 1989, the Commission approved certain amendments to the Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1, as amended, as approved and recommended by the Authority on May 10, 1989.

(j) That on November 27, 1990, the Commission approved certain amendments to

the Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1, as amended, as approved and recommended by the Authority on October 10, 1990.

(k) That on December 29, 1992, the Commission approved certain amendments to the Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1, as amended, as approved and recommended by the Authority on November 18, 1992.

(l) That on December 14, 1993, the Commission approved certain amendments to the Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1, as amended, as approved and recommended by the Authority on October 13, 1993.

(m) That on December 19, 1995, the Commission approved certain amendments to the Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1, as amended, as approved and recommended by the Grand Rapids Authority on September 13, 1995.

(n) That on May 7, 2002, the Commission approved certain amendments to the Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1, as amended, as approved and recommended by the Authority on February 13, 2002.

(o) That on April 19, 2005, the Commission approved certain amendments to the Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1, as amended, as approved and recommended by the Authority on February 9, 2005.

(p) That on December 18, 2007, the Commission approved certain amendments to the Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1, as amended, as approved and recommended by the Authority on November 14, 2007.

(q) That on December 6, 2016, the Commission approved certain amendments to the Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1, as amended, as approved and recommended by the Authority on October 12, 2016.

(r) That prior to holding a public hearing on the proposed amendments to the Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1, as amended, the Commission provided a reasonable opportunity to meet with representatives of taxing jurisdictions levying taxes subject to capture by the Authority to discuss the fiscal and economic implications of the proposed amendments, and such taxing jurisdictions had an opportunity to present their recommendations at the public hearing subsequently held relating to the proposed amendments.

(s) That a public hearing was held, following the giving of notice thereof, in accordance with Act 57, on the proposed amendments to the Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1, as amended, which amendments were approved and recommended by the Grand Rapids Downtown Development Authority (the Authority) on February 14, 2024.

(t) That there are no findings or recommendations of a development area citizens' council, no development area citizens' council having been formed.

(u) That the Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1, as amended, and the amendments thereto, as approved and recommended by the Authority on February 14, 2024, meet the requirements of Act 57, including specifically Section 217(2).

(v) That the proposed methods of financing the proposed improvements and projects set forth in Development Plan and Tax Increment Financing Plan for Downtown

Development Area No. 1, as amended, and the amendments thereto, are feasible and the Authority has the ability to arrange the financing.

(w) That the proposed improvements and projects as set forth in Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1, as amended, and the amendments thereto, are reasonable and necessary to carry out the purposes of Act 57.

(x) That any land included in Downtown Development Area No. 1, as amended, which is to be acquired, is reasonably necessary to carry out the purposes of the Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1, as amended, and the amendments thereto, and of Act 57, in an efficient and economically satisfactory manner.

(y) That Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1, as amended, and the amendments thereto, are in reasonable accord with the master plan of the City.

(z) That necessary public services including fire and police protection and utilities are, or will be, adequate to service Downtown Development Area No. 1, as amended.

(aa) That any changes in zoning, streets, street levels, intersections and utilities are reasonably necessary for the proposed improvements and projects set forth in Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1, as amended, and the amendments thereto, and for the City.

(2) Findings and Determination.

(a) That based on the foregoing findings, it is hereby held and determined that the Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1, as amended, and the amendments thereto approved and recommended by the Authority on February 14, 2024, constitute a public purpose.

(b) That the amendments to Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1, as amended, approved and recommended by the Authority on February 14, 2024, are hereby approved.

(Ord. No. 82-82, 11-30-82; Ord. No. 83-57, 10-4-83; Ord. No. 83-77, §§ 1—3, 12-20-83; Ord. No. 84-73, §§ 1—3, 10-16-84; Ord. No. 87-28, §§ 1—3, 4-7-87; Ord. No. 87-39, §§ 1—3, 6-30-87; Ord. No. 88-35, §§ 1—3, 5-24-88; Ord. No. 89-46, §§ 1—3, 8-29-89; Ord. No. 90-88, §§ 1—3, 11-27-90; Ord. No. 93-3, 1-5-93; Ord. No. 93-58, § 1, 12-14-93; Ord. No. 95-76, § 1, 12-19-95; Ord. No. 2002-24, § 1, 5-7-02; Ord. No. 2005-19, § 1, 4-19-05; Ord. No. 2007-73, § 2, 12-18-07; Ord. No. 2016-86, § 2, 12-6-16; Ord. No. 2024-27, § 2, 7-16-24)

Secs. 1.913—1.924. Reserved.

Editor's note—Section 1.913, "Ordinance approving amendments to the Development Plan and Tax Increment Financing Plan for Downtown Development Area No. 1, as amended," as derived from Ord. No. 83-57, adopted Oct. 4, 1983, has been deleted by the editor as being superseded by Ord. No. 83-77, adopted Dec. 20, 1983, amendatory of § 1.912 hereof.

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Chapter 22

TAX INCREMENT FINANCE AUTHORITY*

Sec. 1.925. Title.
Sec. 1.926. Purpose.
Sec. 1.927. Definitions.
Sec. 1.928. Creation of Authority.
Sec. 1.929. Description of Authority District.
Sec. 1.930. Board.
Sec. 1.931. Powers of the Authority.
Sec. 1.932. Termination.
Sec. 1.933. Amendment.
Sec. 1.934. Tax Increment Financing Plan and Development Plan for Monroe North Development Area.
Sec. 1.935. The Development Plan and Tax Increment Financing Plan for Monroe North Development Area.
Secs. 1.936—1.949. Reserved.

*Cross reference—Tax Increment Financing Plan for Downtown Development Area No. 1, §§ 1.911, 1.912.

Sec. 1.925. Title.

This Chapter shall be known as the "Tax Increment Finance Authority Ordinance" of the City of Grand Rapids.
(Ord. No. 85-67, § 2, 10-29-85)

Sec. 1.926. Purpose.

The purpose of this Chapter is to create a public body corporate to act in the best interest of the City to halt a decline in property values, increase property tax valuation, eliminate the causes of the decline in property values, to promote growth, and to exercise all powers as provided in Act 450 of the Public Acts of 1980, as presently or hereafter amended.
(Ord. No. 85-67, § 2, 10-29-85)

Sec. 1.927. Definitions.

The terms used herein shall have the same meaning as given them in Act 450 of the Public Acts of 1980, as amended, or as hereinafter in this Section provided, unless the context clearly indicates to the contrary and shall be in addition to the terms provided in Act 450.

(1) *Authority* means the Tax Increment Finance Authority of the City of Grand Rapids.

(2) *Act 450* means Act No. 450 of the Public Acts of Michigan of 1980 as now in effect or hereafter amended.

(3) *City* means the City of Grand Rapids.

(4) *Commission* means the Grand Rapids City Commission.

(5) *Authority District* means the Authority District designated herein.

(Ord. No. 85-67, § 2, 10-29-85)

Sec. 1.928. Creation of Authority.

There is hereby created pursuant to Act 450 a Tax Increment Finance Authority for the City of Grand Rapids, Michigan. The Authority shall be a public body corporate and shall be known and exercise its powers under title of "Tax Increment Finance Authority of the City of Grand Rapids." The Authority may adopt a seal, may sue and be sued in any court of this State, and shall possess all of the powers necessary to carry out the purpose of its incorporation as provided herein and in Act 450. The enumeration of a power herein or in Act 450 shall not be construed as a limitation upon the general powers of the Authority.
(Ord. No. 85-67, § 2, 10-29-85)

Sec. 1.929. Description of Authority District.

The Authority District in which the Authority shall exercise its powers as provided by Act 450 shall consist of that property located in the City of Grand Rapids, Kent County, Michigan, bounded on the North by the North line of Coldbrook Street, on the East by the East line of Ionia Avenue, on the South by the South line of Newberry Street, and on the West by the East line of the Grand River.
(Ord. No. 85-67, § 2, 10-29-85)

Sec. 1.930. Board.

The Authority shall be under the supervision and control of a Board consisting of eleven (11) persons appointed by the Mayor of the City of Grand Rapids subject to the approval of the City Commission. Eligibility for membership on the Board and terms of office shall be as provided in Act 450. All members shall hold office until the member's successor is appointed.
(Ord. No. 85-67, § 2, 10-29-85)

Sec. 1.931. Powers of the Authority.

The Authority shall possess all of the powers necessary to carry out the purposes of its incorporation and shall have all powers provided by Act 450 as presently amended or as it may be amended hereafter.
(Ord. No. 85-67, § 2, 10-29-85)

Sec. 1.932. Termination.

Upon completion of its purposes the Authority may be dissolved by the Commission. The property and assets of the Authority, after dissolution and satisfaction of its obligations, shall revert to the City.
(Ord. No. 85-67, § 2, 10-29-85)

Sec. 1.933. Amendment.

This Chapter may be amended pursuant to Section 1.2 of Chapter 1 of the City Code and pursuant to the provisions of Act 450.
(Ord. No. 85-67, § 2, 10-29-85)

Sec. 1.934. Tax Increment Financing Plan and Development Plan for Monroe North Development Area.

(1) *Preliminary findings:*

(a) That a public hearing was held on the proposed Tax Increment Financing Plan and Development Plan for Monroe North Development Area, following the giving of notice thereof, all in accordance with Act 450 of the Public Acts of 1980 as amended.

(b) That there are no findings or recommendations of a development area citizens' council, there having been no statutory requirement to form a development area citizens' council.

(c) That the proposed Tax Increment Financing Plan and Development Plan meet the requirements set forth in Act 450 of the Public Acts 1980, as amended.

(d) That the proposed method of financing the proposed development is feasible and the Tax Increment Finance Authority of the City of Grand Rapids has the ability to arrange the financing.

(e) That the proposed development is reasonable and necessary to carry out the purposes of Act 450 of the Public Acts of 1980, as amended.

(f) That the amount of captured assessed value estimated to result from adoption of the Tax Increment Financing Plan and Development Plan is reasonable.

(g) That any land included within the proposed development area which is to be acquired is reasonably necessary to carry out the purposes of the Plan and of Act 450 of the Public Acts of 1980, as amended, in an efficient and economically satisfactory manner.

(h) That the proposed Development Plan is in reasonable accord with the Master Plan of the City of Grand Rapids.

(i) That public services, such as fire and police protection and utilities, are or will be adequate to service the proposed project area.

(j) That changes in zoning, streets, street levels, intersections and utilities are reasonably necessary for the proposed project and for the City of Grand Rapids.

(2) *Findings and determination:*

(a) That based upon the foregoing findings, it is hereby held and determined that the Tax Increment Financing Plan and Development Plan for Monroe North Development Area constitutes a public purpose.

(b) That the Tax Increment Financing Plan and Development Plan for Monroe North Development Area is hereby approved.

(3) *Immediate effect.* This Section approving the Tax Increment Financing Plan and Development Plan for Monroe North Development Area is hereby determined to be immediately necessary for the preservation of public health, peace and safety, and is hereby given immediate effect.
(Ord. No. 85-85, § 1, 12-17-85)

Sec. 1.935. The Development Plan and Tax Increment Financing Plan for Monroe North Development Area.

(1) *Preliminary findings:*

(a) That the Development Plan and Tax Increment Financing Plan for Monroe North Development Area was adopted and approved by the Grand Rapids City Commission on the 17th day of December 1985 in accordance with Act 450 of the Public Acts of 1980, as amended.

(b) That on August 29, 1989, the Grand Rapids City Commission approved certain amendments to the Development Plan and Tax Increment Financing Plan for Monroe North Development Area, as adopted by the Grand Rapids Tax Increment Finance Authority on April 12, 1989.

(c) That on July 23, 1996, the Grand Rapids City Commission approved certain amendments to the Development Plan and Tax Increment Financing Plan for Monroe North Development Area, as adopted by the Grand Rapids Tax Increment Finance Authority on May 8, 1996.

(d) That prior to holding public hearings on the proposed amendments to the Development Plan and Tax Increment Financing Plan for Monroe North Development Area, as adopted by the Grand Rapids Tax Increment Finance Authority on May 12, 1999, the governing body of the City of Grand Rapids provided a reasonable opportunity to the members of the Kent County Board of Commissioners and to the members of the school boards of any school district in which any portion of the development area is located, to meet with the governing body of the City of Grand Rapids; and the Grand Rapids Tax Increment Finance Authority fully informed the members of the Kent County Board of Commissioners and of the school boards, of the fiscal and economic implications of the proposed development and amendments, and the members of the Kent County Board of Commissioners and of the school boards, had an opportunity to present their recommendations at the public hearings subsequently held on the proposed amendments to the Development Plan and Tax Increment Financing Plan for Monroe North Development Area, which were adopted by the Grand Rapids Tax Increment Finance Authority on May 12, 1999.

(e) That public hearings were held, following the giving of notice thereof in accordance with Act 450 of the Public Acts of 1980, as amended, on proposed amendments to the Monroe North Development Plan and Tax Increment Financing Plan, which amendments were adopted by the Grand Rapids Tax Increment Finance Authority on May 12, 1999.

(f) That there are no findings or recommendations of a development area citizens' council, there having been no statutory requirement to form such a development area citizens' council.

(g) That the Monroe North Development Plan and Tax Increment Financing Plan, and the amendments thereto as adopted by the Grand Rapids Tax Increment Finance Authority on May 12, 1999, satisfy and comply with the requirements set forth in Act 450 of the Public Acts of 1980, as amended.

(h) That the proposed method of financing the proposed development as set forth in the Development Plan and Tax Increment Financing Plan for Monroe North Development Area, and the amendments thereto, are feasible and the Tax Increment Finance Authority of the City of Grand Rapids has the ability to arrange financing.

(i) That the proposed development as set forth in the Development Plan and Tax Increment Financing Plan for Monroe North Development Area, and the amendments thereto are reasonable and necessary to carry out the purposes of Act 450 of the Public Acts of 1980, as amended.

(j) That the amount of captured assessed value estimated to result from adoption of the Tax Increment Financing Plan and Development Plan is reasonable.

(k) That the Development Plan as amended is in reasonable accord with the master plan of the City of Grand Rapids.

(l) That public services, such as fire and police protection and utilities, are or will be adequate to service the proposed project area.

(m) That changes in streets, street levels, intersections, and utilities are reasonably necessary for the proposed project, as amended, and for the City of Grand Rapids.

(2) *Findings and determination:*

(a) That based upon the foregoing findings, it is hereby held and determined that the

Development Plan and Tax Increment Financing Plan for Monroe North Development Area, including the amendments thereto, adopted by the Grand Rapids Tax Increment Finance Authority on May 12, 1999, constitute a public purpose.

(b) That the Development Plan and Tax Increment Financing Plan for Monroe North Development Area, and the amendments adopted thereto by the Grand Rapids Tax Increment Finance Authority on May 12, 1999, are hereby approved.

(Ord. No. 89-47, §§ 1—3, 8-29-89; Ord. No. 96-30, § 1, 7-23-96; Ord. No. 99-54, § 1, 10-12-99)

Editor's note—Ordinance No. 89-47, §§ 1—3, adopted Aug. 29, 1989, was nonamendatory of the Code; hence, inclusion as § 1.935 was at the discretion of the editor.

Secs. 1.936—1.949. Reserved.

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Chapter 23

DOWNTOWN IMPROVEMENT DISTRICT BOARD*

Sec. 1.950. Title.
Sec. 1.951. Purpose.
Sec. 1.952. Creation of Board.
Sec. 1.953. Board.
Sec. 1.954. Terms of Office.
Sec. 1.955. Powers of Board.
Sec. 1.956. Financing.
Sec. 1.957. Budget.
Sec. 1.958. Rules of Procedure.
Sec. 1.959. Termination.
Sec. 1.960. Downtown Improvement District Defined.
Sec. 1.961. Financing by Special Assessment.
Sec. 1.962. Report Containing Maps and Estimates.
Sec. 1.963. Hearing on Necessity.
Sec. 1.964. Determination of Necessity.
Sec. 1.965. Preparation of Assessment Roll.
Sec. 1.966. Hearing on Roll.
Sec. 1.967. Return of Roll.
Sec. 1.968. Delivery of Roll to Treasurer.
Sec. 1.969. Lien Established.
Sec. 1.970. Deficiency Assessments.
Sec. 1.971. Notice of Assessment.
Sec. 1.972. Interest on Unpaid Installments.
Sec. 1.973. Delinquent Installments.
Sec. 1.974. Reserved.

*__Editor's note—__Ordinance No. 86-29, § 1, adopted Apr. 22, 1986, added a new Chapter 22, §§ 1.950—1.961, to the Code. Said provisions have been redesignated as Chapter 23 by the editor in order to avoid duplication of Chapter numbers with previously enacted material. Subsequently, Ord. No. 2009-21, § 1, adopted May 12, 2009, repealed Ch. 23, in its entirety, which pertained to the Downtown Management Board. Section 2 of said ordinance enacted provisions designated as a new Ch. 23 to read as herein set out. See also the Code Comparative Table for a detailed analysis.

__Cross reference—__Downtown Development Authority, Ch. 21.

Sec. 1.950. Title.

This Chapter shall be known as the "Downtown Improvement District Ordinance" of the City of Grand Rapids.
(Ord. No. 2009-21, § 2, 5-12-09)

Sec. 1.951. Purpose.

The purpose of this Chapter is to create a Board for the management of the ongoing maintenance, security, promotion and continued operation of the Downtown District, as defined in this Chapter and as it may be amended and expanded from time to time, and related improvements and programs pursuant to the provisions of Chapter 1 of Act 120 of the Public Acts of 1961, as amended [MCL 125.981 to 125.987] (the "Act").
(Ord. No. 2009-21, § 2, 5-12-09)

Sec. 1.952. Creation of Board.

Pursuant to Act 120 of the Public Acts of Michigan of 1961, as amended (the "Act"), the Downtown Improvement District Board, originally created on August 22, 2000, by resolution of the City Commission (Proceeding No. 67692) is hereby continued and other provisions of said resolution are superseded by the provisions of this Chapter. The Downtown District is established as a Business Improvement District Board (the "Board") and shall, in a fiduciary capacity, oversee and manage the ongoing activities of the Downtown District pursuant to the Act.
(Ord. No. 2009-21, § 2, 5-12-09; Ord. No. 2013-48, § 1, 9-24-13)

Sec. 1.953. Board.

The Board shall be composed of not less than ten (10) nor more than sixteen (16) members as determined and appointed by the Mayor with the concurrence of the City Commission. One (1) member of the Board shall be a representative of the City. The other members of the Board shall be appointed from a list of nominees solicited by the Mayor from businesses and property owners located in the Downtown District. A majority of the Board members shall be business or property owners or employees of businesses located on property or property owners in the Downtown District, which property is subject to special assessment pursuant to Section 1.961 hereof. In addition, Board membership shall include representation from non-profit and governmental entities that voluntarily pay said special assessment and the residential community living in the Downtown District. If the list of nominees is not acceptable to the Mayor, the Mayor shall request that the Downtown District businesses and property owners provide additional nominees which are acceptable to the Mayor for appointment. A member shall hold office until the member's successor is appointed.

No Board member shall receive additional compensation from the City or the Board for serving on the Board. Board members may be reimbursed from Board funds for out-of-pocket expenses reasonably incurred in the performance of their duties on the Board."
(Ord. No. 2009-21, § 2, 5-12-09; Ord. No. 2013-48, § 2, 9-24-13)

Sec. 1.954. Terms of Office.

The members of the Board shall serve terms of three (3) years, however, in order to provide for staggered Board member terms where approximately one-third of the terms of Board members expire each year, some Board members may initially be appointed to serve terms of one (1) or two (2) years. All members appointed and confirmed as authorized by Proceeding No. 78258 shall continue to serve for terms established under said resolution.
(Ord. No. 2009-21, § 2, 5-12-09; Ord. No. 2013-48, § 3, 9-24-13)

Sec. 1.955. Powers of Board.

The Board shall manage the ongoing maintenance, security, promotion, and continued operation of the Downtown District, as amended and expanded from time to time, and related improvements and programs. In furtherance of these objectives, the Board shall have all powers set forth in the Act, as it may be amended from time to time. The Board may recommend to the City Commission that the City undertake one (1) or more of the following in the district:

(1) Open, widen, extend, realign, pave, maintain or otherwise improve highways and construct, reconstruct, maintain or relocate pedestrian walkways.

(2) Prohibit or regulate vehicular traffic where necessary to carry out the purposes of a development or redevelopment project.

(3) Regulate or prohibit vehicular parking on highways.

(4) Acquire, own, maintain or operate off-street parking lots or structures.

(5) Contract for the operation or maintenance by others of City off-street parking lots or structures, or appoint agents for the operation or maintenance of those lots or structures.

(6) Construct, maintain and operate malls with bus stops, information centers and other buildings that will serve the public interest.

(7) Acquire by purchase, gift or condemnation, and own, maintain, or operate real or personal property necessary to implement the goals of the Board.

(8) Provide for the maintenance, security and operation of a district.

(9) Promote economic activity in the District by undertakings including, but not limited to, conducting market research and public relations campaigns, developing, coordinating and conducting retail and institutional promotions, and sponsoring special events and related activities.

(10) Provide for or contract with other public or private entities for the administration, maintenance, security, operation and provision of services that the Board determines are a benefit to the district.

The Board may expend funds it determines reasonably necessary to achieve its goal, within the limits of those monies made available to it by the City Commission from the financing methods specified in this Chapter.
(Ord. No. 2009-21, § 2, 5-12-09)

Sec. 1.956. Financing.

The activities of the Board or any corporation created by the Board may be financed from one (1) or more of the following sources:

(1) Donations, grants and gifts to the City or the Board, for use by the Board for the performance of its functions.

(2) From City funds or other sources approved by the City.

(3) From the issuance of general obligation bonds by the City, subject to the revised municipal finance act (PA 34 of 2001 [MCL 141.2101 to 141.2821]).

(4) From the issuance of revenue bonds by the City under the revenue bond act of 1933 (PA 94 of 1933, as amended [MCL 141.101 to 141.140]), or under any other applicable revenue bond act.

(5) From the levying of special assessments against land or interests in land, or both, for redevelopment and to defray the cost of administration, maintenance, security, promotion and continued operation of the Downtown District.

The proceeds of a bond, note, or other obligation issued to finance a project authorized under this Chapter shall be used for capital expenditures, costs of a reserve fund securing the bonds, notes, or other obligations, and costs of issuing the bonds, notes, or other obligations. The proceeds of the bonds, notes, or other obligations shall not be used for operational expenses of a district.
(Ord. No. 2009-21, § 2, 5-12-09)

Sec. 1.957. Budget.

The Board shall operate on a fiscal basis which coincides with the City's fiscal year. The Board shall, after soliciting and receiving input from the business and property owners in the Downtown District, prepare or cause to be prepared a proposed annual budget which shall be provided to the City Manager in a format acceptable to the City Manager. The City Commission reserves the right to determine what, if any, special assessment and the amount and the apportionment thereof that shall be levied on benefited property for use in the Downtown District, as amended and expanded from time to time, or to fund any portion of the Board's activities.

Funds appropriated to the Board from the City's funds or the proceeds available from any Special Assessment levy shall be held by the City and disbursed to the Board from time to time for

payment of expenses incurred net of any and all other monies otherwise available to the Board at the time of the request.

The bookkeeping for the Board shall be performed in a manner consistent with the accounting policies and procedures followed by the City Comptroller and, consistent with the guidelines of the Government Accounting Standards Board, the Board shall be included in the general purpose financial statements of the City of Grand Rapids. The City Comptroller or his or her designee shall have the right at any time to examine the financial records of the Board or any corporation established by it.
(Ord. No. 2009-21, § 2, 5-12-09; Ord. No. 2013-48, § 4, 9-24-13)

Sec. 1.958. Rules of Procedure.

The Board shall adopt such rules of procedure as it deems appropriate. All meetings of the Board shall be subject to the Michigan Open Meetings Act (Public Act 267 of 1976, as amended [MCL 15.261 to 15.275]). Public records of the Board shall be subject to disclosure in accordance with the Michigan Freedom of Information Act (Public Act 442 of 1976, as amended) [MCL 15.231 to 15.246].
(Ord. No. 2009-21, § 2, 5-12-09)

Sec. 1.959. Termination.

The Board may be dissolved in the sole discretion of the City Commission upon the completion of any fiscal year, provided that whenever the City Commission determines the necessity and duration of Ongoing Activity extends beyond a fiscal year, the Board shall exist to conduct its affairs for the duration specified in the resolution of necessity. Upon dissolution of the Board, all assets of the Board, and all assets of any nonprofit corporation established by the Board, shall become the sole property of the City of Grand Rapids.
(Ord. No. 2009-21, § 2, 5-12-09)

Sec. 1.960. Downtown Improvement District Defined.

As used in this Chapter, the Board may exercise its powers within the Downtown District, described as follows:

That property located in the City of Grand Rapids, Kent County, Michigan; within a boundary beginning at the south right-of-way line of I-196 at the Division Avenue underpass and running easterly along the south right-of-way line of I-196 to Lafayette Avenue, then south along Lafayette Avenue to a point 128 feet south of Michigan Street, then west to Claremont Place; then south along Claremont Place to the centerline of Willow Court; then west along the centerline of Willow Court extended west approximately 90 feet to a point 130 feet east of the east r.o.w. line of Barclay Avenue; then southerly to a point 130 feet south of the south r.o.w. line of John Street; then east approximately 90 feet; then south approximately 65 feet; then east approximately 250 feet to the centerline of Lafayette Avenue; then south along Lafayette to Cherry Street; then east along Cherry 84 feet, then southerly approximately 153 feet to Cherry Street Alley, then east along Cherry Street Alley to Prospect Avenue, then south along Prospect Avenue to Logan Street, then west along Logan Street SE to Division Avenue S, then south along Division Avenue S to Logan Street SW, then west along Logan Street SW extended to Century Avenue, then north along Century Avenue to Wealthy Street, then west along Wealthy Street to Front Avenue, then northeasterly along Front Avenue to Emperor Street, then west along Emperor Street to Tolford Avenue, then north along Tolford Avenue to Butterworth Avenue, then west along Butterworth Avenue to Lexington Avenue, then north along Lexington Avenue to a point approximately 350 feet south of Fulton Street, then northeasterly along the east line of the proposed extension to Seward Avenue to Fulton Street, then north along Seward Avenue to Second Street, then east along Second Street to Alabama Avenue, then south along Alabama Avenue to First Street, then east along the south r.o.w. of First Street 200 feet, then south 248 feet, then easterly to Scribner Avenue, then northerly along Scribner to Sixth Street, then east along Sixth Street to the east bank of the Grand River, then north along the east bank of the Grand River to a westerly extension of Coldbrook Street, then east along Coldbrook Street to Division Avenue, then south along Division Avenue to the point of beginning.

Boundaries described as following streets or alleys shall follow the centerline of such streets, unless described otherwise. The Board may recommend that the boundaries of the Downtown District be amended and expanded, subject to the approval of the City Commission by adoption of an Ordinance amending this Section.
(Ord. No. 2009-21, § 2, 5-12-09)

Sec. 1.961. Financing by Special Assessment.

The City Commission shall have power to determine that the whole or any part of the cost of any Public Improvement or Ongoing Activity of the Board shall be defrayed by special assessment

upon the properties especially benefited. In the event of a conflict between provisions of this Chapter and Chapter 10, "Special Assessments", the provisions of this Chapter shall prevail. The term "Public Improvement" as used in this Chapter shall be construed to mean any public work or public and special improvement which the City is empowered to undertake under the Act. The term "Ongoing Activity" shall refer to any of the following: the maintenance or operation of a Public Improvement, the maintenance or operation of off-street parking lots or facilities, programs to promote economic activity in the district, and provision of services or the administration of contracts related to the maintenance, security, operation of the district, as authorized by the Act.

A special assessment shall be levied against assessable property on the basis of special benefits to that parcel from the total project. There is a rebuttable presumption that a district project specially benefits all assessable property located within the district.

The Board may recommend to the City Commission that the special assessment district be divided in special assessment rate zones reflecting varying levels of special benefits or services. The Board may also recommend to the City Commission that the various businesses or properties be divided into distinct classes reflecting varying levels of special benefits.
(Ord. No. 2009-21, § 2, 5-12-09)

Sec. 1.962. Report Containing Maps and Estimates.

Before the City Commission shall take action respecting any special assessment hereunder, the City Manager shall prepare a report containing: 1) a map of the proposed special assessment district; 2) an estimate of the cost of the proposed Public Improvement or Ongoing Operations; 3) the number of Board members in the district; 4) the proposed classes of property owners in the district; 5) the number and percentage of each class of business or property owner who are projected to pay an assessment and an estimate of the amount to be assessed to each such class; 6) the scope, nature, and duration of the Public Improvement or Ongoing Activity. After the report is presented to the City Commission, it shall be filed with the City Clerk and made available to the public for examination. The City Manager or City staff acting on behalf of the City Manager may enlist the aid of the Board in preparing the report and in doing other things that are part of the special assessment process. However, in all such matters, the Board's involvement shall be advisory only and final responsibility for conducting such activities shall rest with the City Manager.
(Ord. No. 2009-21, § 2, 5-12-09)

Sec. 1.963. Hearing on Necessity.

After the material required to be prepared by the City Manager is presented to the City Commission, the Commission may direct by resolution of a majority of the members elect that a public hearing concerning necessity for such proposed special assessment shall be held before the City Commission at a time and place to be fixed by it. The City Manager shall cause notice of the time and place of such hearing to be published once in the official newspaper of the City not less than ten (10) days prior to the date of said hearing. Such notice shall also state that the report is on file with the City Clerk for public examination. A like ten-day notice shall also be sent by first class mail to each owner of property subject to assessment in the proposed special assessment district as indicated by the records of the Assessor's Office at the address and to the person shown on the current tax assessment roll of the City.

At the time and place specified in such notice of public hearing the City Commission shall meet and hear any person to be affected by the proposed special assessment. The hearing may be adjourned from time to time as shall be determined by the City Commission.
(Ord. No. 2009-21, § 2, 5-12-09)

Sec. 1.964. Determination of Necessity.

After completion of the hearing, the City Commission may, by resolution of a majority of the members elect, declare the scope, nature and duration of the Public Improvement or Ongoing Activity to be necessary and determine to defray the whole or any part of the cost of the Public

Improvement or Ongoing Activity by special assessment upon the properties especially benefited in proportion to the benefits thereto. In addition, by said resolution the City Commission shall order to be transmitted to the Assessor a map of the district fixed by it and a certified copy of said resolution. The City Manager shall transmit to the Assessor such facts as it may have necessary to make proper assessment.

The total amount assessed for a Public Improvement may be made payable in not more than twenty (20) annual installments. A determination of necessity for Ongoing Activity shall be valid for a period specified in the resolution up to five (5) years in duration.

The City Manager may recommend and the City Commission may approve one (1) or more special assessment districts covering all or any portion of the Downtown District related to a Public Improvement or Ongoing Activity benefiting properties in that district.

The City Manager may recommend expansion of a special assessment district for the provision of Ongoing Activity to areas not originally receiving special benefit. A public hearing on the necessity of the proposed expansion shall be held, as provided in Section 1.963, and the City Commission may declare that the scope, nature and duration of the Ongoing Activity to be a necessity in the expanded area and may determine to defray the cost by special assessment, as provided in this Section 1.964.
(Ord. No. 2009-21, § 2, 5-12-09)

Sec. 1.965. Preparation of Assessment Roll.

Within ninety (90) days after the adoption of a resolution making a determination of necessity for a Public Improvement, as specified in Section 1.964, the Assessor shall prepare a special assessment roll which shall contain the names of the owners and the descriptions of the several parcels of property in the special assessment district to be assessed for such Public Improvement, as fixed by the City Commission.

Within thirty (30) days after the adoption of resolution making a determination of necessity for Ongoing Activity, as specified in Section 1.964, the Assessor shall prepare an initial special assessment roll which shall contain the names of the owners and the descriptions of the several parcels of property in the special assessment district to be assessed for such Ongoing Activity, as fixed by the City Commission. If the duration of the Ongoing Activity exceeds one (1) year, the special assessment roll shall be divided into annual installments, not exceeding five (5), with a separate installment for each fiscal year specified by the resolution determining the necessity of the special assessment. The annual installments may be either in equal amounts or in unequal amounts as the City Commission may determine is the need for each of the fiscal years covered by the resolution of necessity.

Each special assessment roll shall spread and levy that part of the cost of the proposed Public Improvement or proposed Ongoing Activity against each of such property in the special assessment district as determined by the City Commission, in proportion as near as may be to the advantages which each parcel in such district shall be deemed by the Assessor to be benefited by the making of such improvement or conducting said activity.

After the assessment roll is completed, the Assessor shall give notice to all persons assessed thereon of the completion of such roll and that the same will be open for ten (10) days for public inspection and for correction by the Assessor and of the time and place of the meeting of the Board of Review on the special assessment roll. Said notice shall be given by publication at least once in the official newspaper of the City not less than five (5) full days prior to the first day on which such special assessment roll will be open for public inspection. A like five-day notice shall also be sent by first class mail by the Assessor to each owner of property subject to assessment as shown on the current tax assessment rolls of the City.

Immediately after the expiration of the ten-day period for public inspection and correction, the special assessment roll shall be signed by the Assessor and returned forthwith to the City Commission.
(Ord. No. 2009-21, § 2, 5-12-09)

Sec. 1.966. Hearing on Roll.

At a regular session not less than one (1) week after the receipt of such special assessment roll from the Assessor and at the time and place specified in the notice given by the Assessor as required by Section 1.965, the City Commission shall act thereon as a Board of Review and shall continue to act at such other times as may be necessary and as it shall from time to time designate. Any person may appeal in writing to the City Commission acting as such Board of Review at any time prior to the opening of its first session as such Board of Review. The City Commission as such Board of Review shall have the power to correct or change the whole or any part of such special assessment roll or to return it to the Assessor for reassessment, in which latter case it shall take the same course as an original special assessment roll. At such time as the City Commission sitting as a Board of Review is satisfied with the special assessment roll, and is of the opinion that such special assessment roll results in the assessments being levied in accordance with the benefits, it shall cause such determination to be entered upon its minutes. Thereafter the City Commission shall adopt a resolution ratifying and confirming said special assessment roll and, in addition, by the terms of said resolution shall determine when such special assessments shall be due and paid or, if the same shall be paid in installments, it shall determine the due dates of the first and subsequent installments on said special assessment roll.
(Ord. No. 2009-21, § 2, 5-12-09)

Sec. 1.967. Return of Roll.

If it shall be determined by the City Commission, acting as such Board of Review, to return said assessment roll to the City Assessor for reassessment, the reason for so doing and any instructions or recommendations shall be embodied in a resolution and a copy thereof certified to by the City Clerk as correct, shall be at once delivered, with said assessment roll, to the City Assessor.
(Ord. No. 2009-21, § 2, 5-12-09)

Sec. 1.968. Delivery of Roll to Treasurer.

The special assessment roll as confirmed by the City Commission shall be delivered by the City Clerk to the City Treasurer for collection with the proper warrant for such purpose attached thereto signed by the Mayor and attested in due form by the City Clerk. In the event that the project will not be started immediately, the City Commission may, in the same resolution confirming the assessment roll, establish a date for collection by the City Treasurer.
(Ord. No. 2009-21, § 2, 5-12-09)

Sec. 1.969. Lien Established.

Except as otherwise stated in this Section, all special assessments contained in any special assessment roll, including any part thereof deferred as to payment and such administrative charge as may be applicable thereto, shall from the date and time of receipt thereof by the City Treasurer constitute a lien upon the respective parcels of land or interest in land assessed, and until paid shall be a charge against the respective owners of the several parcels of land or interest in land. Such lien shall be of the same character and effect as the lien created for City taxes and shall include accrued interest and penalties. No judgment or decree nor any act of the City Commission vacating a special assessment shall destroy or impair the lien of the City on the premises assessed for such amount of the assessment as may be equitably charged against the same. For a special assessment to provide Ongoing Activity exceeding one (1) year in duration, a separate lien shall be established for each annual installment. For the first annual installment, the lien shall be established as of the date and time of the receipt of the special assessment roll by the City Treasurer. For the second annual installment, the lien shall be established on the first anniversary of receipt of the roll by the City Treasurer; for the third installment, it shall be the second anniversary date; for the fourth installment, it shall be the third anniversary date; for the fifth installment, it shall be the fourth anniversary of receipt of the roll by the City Treasurer.
(Ord. No. 2009-21, § 2, 5-12-09)

Sec. 1.970. Deficiency Assessments.

The City Commission may provide for spreading of an additional assessment for any improvement in case it determines that the former assess-

ment or assessments will not produce sufficient funds to pay for a Public Improvement or Ongoing Activity. Such additional assessment shall be spread upon a supplemental roll, which shall conform so far as may be practical to the original roll for such improvement, and shall be made, reviewed, delivered, collected, accounted for and returned in the same manner as the original roll, and all sales and redemptions of property therein described shall be made in the same manner as the sales and redemption upon said original roll.
(Ord. No. 2009-21, § 2, 5-12-09)

Sec. 1.971. Notice of Assessment.

Upon receipt of a special assessment roll with the proper warrant for such purpose attached thereto as hereinbefore provided for, the City Treasurer shall mail statements of the several assessments to the respective owners, stating the amount of the assessment and the manner in which it may be paid, and, in addition, the City Treasurer shall publish notice of the fact that said special assessments are due in the official newspaper of the City on or prior to the date that said statements are mailed. Where the special assessment roll is divided into more than one (1) installment, published notice of the second and subsequent installments need not be given, but mailed notice to the owner as shown on the current tax assessment rolls of the City, stating the due date and amount of the next installment, shall be deemed sufficient.
(Ord. No. 2009-21, § 2, 5-12-09)

Sec. 1.972. Interest on Unpaid Installments.

In addition to the principal amount of each annual installment there shall be added thereto and collected from the special assessment roll by the City Treasurer as part of each annual installment interest at a rate which shall be determined by the City Commission, which shall be adjusted to a rate equal to the rate borne by the bonds or other evidences of indebtedness issued or authorized to defray the cost plus one (1) percentum per annum on the entire unpaid balance of the special assessment, commencing with the due date of the first installment and computed to the due date of each particular installment. In addition to said annual interest, in the event that any special assessment or installment thereof shall not be paid within one (1) month of the due date thereof, penalties shall thereafter be charged and added to said past due assessment or installment in lieu of further interest on said installment, as provided in Section 1.375 of Chapter 9 of Title I of the Code of the City of Grand Rapids. Such penalties shall be collected at the same time and in the same manner as the special assessments and interest thereon are collected. The entire assessment, or the first installment thereof if divided into installments, may be paid during the first month after the due date thereof without interest.
(Ord. No. 2009-21, § 2, 5-12-09)

Sec. 1.973. Delinquent Installments.

When any special assessment or any installment thereof, when divided into installments, shall have been due and unpaid for more than thirty (30) days, such fact shall be certified to by the City Treasurer and filed with the City Assessor. Said certified account shall contain an accurate description of the lot or parcel of land and such account shall be included by the City Assessor on a tax roll and tax warrant. The Assessor shall deliver a copy of said roll and warrant to the City Treasurer and notify him of the amount of special assessment within the time and in the manner and form provided for in the general tax law of the State. The special assessment shall become due and collected when other property taxes fall due and shall be returned for nonpayment in the same manner as other property taxes. Delinquent installments shall be collected as part of the tax roll in the manner and to the extent set forth in the Michigan general property tax law.
(Ord. No. 2009-21, § 2, 5-12-09)

Sec. 1.974. Reserved.

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Chapter 24

RESERVED*

*__Editor's note__—Ord. No. 2013-51, § 1, adopted September 24, 2013, repealed §§ 1.975—1.981, which pertained to supervising agency for the Madison Square Redevelopment Corporation. See Code Comparative Table for complete derivation.

[The next page is 891]

TITLE II—UTILITIES AND SERVICES

Chapter

25. Solid Waste Management
26. City Water System
27. City Sewage Disposal System
28. Reserved
29. Reserved
30. Automobile Parking System
31. Parking Facilities Account
32. City Stormwater Drainage System
33. Pole Line and Duct System
34. Thermal Energy (Steam) Franchise
35.—40. Reserved

Chapter 25

SOLID WASTE MANAGEMENT*

Sec. 2.1.	Definitions.
Sec. 2.2.	Solid Waste Regulations.
Sec. 2.3.	Authority to Discontinue Solid Waste Collection Service.
Sec. 2.4.	Outdoor Storage of Solid Waste and Cart Requirements.
Sec. 2.5.	Place of Collection.
Sec. 2.6.	Litter and Accumulation.
Sec. 2.7.	Disposal of Combustible Waste and Solid Waste.
Sec. 2.8.	Sale of City Refuse Bags and Carts.
Sec. 2.9.	Fees.
Sec. 2.10.	Solid Waste Haulers.
Sec. 2.11.	Solid Waste Transportation Unit and Identification of Solid Waste Carts.
Sec. 2.12.	Insurance Requirements.
Sec. 2.13.	Reserved.
Sec. 2.14.	Delivery of Combustible Waste.
Sec. 2.15.	Compliance with Laws, Rules and Regulations.
Sec. 2.16.	Penalties.

*__Editor's note—__Ord. No. 2012-47, § 1, adopted August 28, 2012, effective September 4, 2012, amended chapter 25 in its entirety to read as herein set out. Former chapter 25, §§ 2.1—2.20, pertained to combustible waste and solid waste, and derived from Ord. No. 85-69, § 1, 11-12-85; Ord. No. 91-08, §§ 1, 2, 1-29-91; Ord. No. 91-33, § 1, 6-18-91; Ord. No. 91-66, §§ 1—4, 12-17-91; Ord. No. 92-38, § 1, 6-16-92; Ord. No. 97-43, § 1, 9-9-97; Ord. No. 97-66, § 1, 12-30-97; Ord. No. 98-38, § 1, 8-18-98; Ord. No. 99-44, § 1, 8-10-99; Ord. No. 2000-08, § 1, 2-22-00; Ord. No. 2001-06, § 1, 2-20-01; Ord. No. 2002-23, § 1, 5-7-02.

__Cross references—__General health regulations, Ch. 71; secondhand dealers, Ch. 101; Housing Code, Ch. 140; litter, § 9.91 et seq.; property maintenance nuisances, § 9.107 et seq.

__State law reference—__Authority to regulate disposal of garbage and rubbish, MCL 123.241 et seq., 123.361 et seq.

Sec. 2.1. Definitions.

In the interpretation of this Chapter, the following definitions shall apply:

1. *Act 451 Plan* means the Kent County Solid Waste Management Plan approved by the City of Grand Rapids, the Kent County Board of Commissioners and by the Director of the Department of Natural Resources, pursuant to the requirements and provisions of Act No. 451 of the Public Acts of Michigan, 1994, as amended, and any amendments thereto adopted in accordance with said Act.

2. *Appliance* is intended to include the following household major appliances that will not fit within a cart: refrigerators and freezers with doors removed, stoves, dishwashers, microwaves, air conditioners, washers, dryers, humidifiers, dehumidifiers, garbage disposals, trash compactors, furnaces and water heaters.

3. *Ashes* means the residue from the burning of wood, coal, coke, refuse, waste water sludge, or other combustible materials.

4. *Board of Public Works* means the Kent County Board of Public Works established pursuant to the provisions of Act No. 185 of the Public Acts of 1957, as amended.

5. *Bulk Item* means any item that does not fit within a cart such as sofas, chairs, mattresses, lawnmowers, and other household items.

6. *City Refuse Bags* shall mean those polyethylene plastic bags sold by the City clearly distinguishable by their color, by the City Seal, and other markings, as intended for City collection.

7. *City Refuse Carts* shall mean rigid construction containers provided by the City clearly distinguishable by their color and markings as intended to be used for City collection.

8. *Combustible Waste* means Solid Waste that is combustible in the WTE as shall be determined solely by the Board of Public Works. "Combustible Waste" shall include: (a) Garbage; (b) combustible rubbish, such as paper, cardboard, cartons, wood, boxes, rags, cloth, bedding, leather, grass, leaves and brush, yard trimmings, tree limbs, timber, logs, and stumps six (6) inches in diameter or less, carpeting, and combustible construction and demolition debris; and (c) any other Solid Waste that is combustible in the WTE as shall be determined solely by the Board of Public Works. "Combustible Waste" shall exclude: (a) noncombustible Solid Waste, such as Ashes, noncombustible Rubbish, incinerator ash, incinerator residue, municipal and industrial sludge, animal waste, pathological and biological waste, asbestos and asbestos waste products, explosives, radioactive materials, appliances, concrete rubble, noncombustible construction and demolition debris, rock, gravel and earth materials, automobiles, trailers, equipment wire and cable; (b) all waste other than Solid Waste (such as Hazardous Waste, Site-Separated Materials, and Source-Separated Materials); and (c) any other type of waste that is noncombustible in the WTE as shall be determined solely by the Board of Public Works.

9. *County* means the County of Kent, Michigan, acting by and through its Board of Commissioners or its Department of Public Works.

10. *Disposal Site* means any of the following: (1) a Solid Waste transfer facility; (2) a single incinerator having an average daily design capacity exceeding fifty (50) tons of Solid Waste per day or two (2) or more incinerators located at one (1) site under the control of one (1) person and having an aggregate average daily design capacity exceeding one hundred fifty (150) tons of Solid Waste per day; (3) a sanitary landfill; (4) a Solid Waste Processing Plant; or (5) any other Solid Waste handling or disposal facility utilized in the disposal of Solid Waste.

11. *Garbage* means rejected food wastes, including waste accumulation of animal,

fruit or vegetable matter, used or intended for food or that attends the preparation, use, cooking, dealing in, or storing of meat, fish, fowl, fruit or vegetable.

12. *Hazardous Waste* means hazardous waste as defined in Act No. 64 of the Public Acts of Michigan, 1979, as amended from time to time, and as identified in administrative rules promulgated from time to time pursuant to said Act by the Director of the Michigan Department of Natural Resources.

13. *Manager* shall mean the person holding the position or acting in the capacity of the City Manager, appointed by the City Commission, or his or her duly authorized representative.

14. *Person* means any individual, firm, public or private corporation, partnership, trust, public or private agency or any other entity, or any group of such persons.

15. *Premises* means any enclosed area used for residential, commercial or industrial purposes, separately or in combination, to which a separate street address, postal address or box, tax roll description, or other similar identification has been assigned to or is in use by a Person having control of the area.

16. *Regulations* shall mean the City's Solid Waste Regulations governing the collection and disposal of recycling, refuse, and yard waste which are promulgated by the Manager under the authority of this Chapter.

17. *Residential Unit* shall mean a dwelling occupied by one (1) or more persons in the City, and so designated and arranged as to provide cooking, kitchen and sanitary accommodations for one (1) group of persons only.

18. *Rubbish* means nonputrescible Solid Waste, excluding Ashes, consisting of combustible and noncombustible waste, including paper, cardboard, metal containers, yard clippings, wood, glass, bedding, crockery, demolished building materials, or litter of any kind that may be a detriment to the public health and safety.

19. *Site of Generation* means any Premises in or on which Solid Waste is generated by any Person.

20. *Recyclable Materials* means materials including but not limited to bottles, cans, newspapers, corrugated containers, metals, and plastics that are eligible for pickup as part of the City's Single Stream Recycling Program, as determined by the City's Solid Waste Regulations.

21. *Solid Waste* means garbage, rubbish, ashes, incinerator ash, incinerator residue, street cleanings, municipal and industrial sludges, solid commercial and solid industrial waste, and animal waste provided, however, that this definition shall not include hazardous waste, site separated materials, source separated materials, human body waste, liquid or other waste regulated by statute, ferrous or non-ferrous scrap directed to a scrap metal processor or to a reuser of ferrous or non-ferrous products, and slag or slag products directed to a slag processor or to a reuser of slag or slag products.

22. *Solid Waste Container* means a container or receptacle designed or used for depositing, storing, or accumulating Solid Waste for collection or transportation by a Waste Hauler. Without limitation, this definition shall include dumpsters, packer boxes, and roll-offs or other receptacles designed or used to store Solid Waste or to transport Solid Waste from a Site of Generation.

23. *Source-Separated Materials* means recyclable materials as defined in this Chapter that are separated from Solid Waste prior to the collection of Solid Waste from a Site of Generation.

24. *Tipping Fee* means the fee established by the Board of Public Works to be charged upon delivery of Combustible Waste to the WTE.

25. *Waste Hauler* means any Person engaged, in whole or in part, in the business of collecting, transporting, delivering, or disposing of Combustible Waste generated within the City.

26. *Waste to Energy Facility (WTE)* means the mass-burn energy-generating incinerator constructed by or on behalf of, or available by contract or lease with, the County within the City of Grand Rapids in accordance with the Act 451 Plan.

(Ord. No. 2012-47, § 1, 8-28-12, eff. 9-4-12)

Sec. 2.2. Solid Waste Regulations.

The Manager is hereby authorized to promulgate Regulations governing the collection and disposal of recycling, refuse, and yard waste; and establishing a schedule for the collection of the same. Such Regulations shall also provide for the type of containers acceptable for collection by the City. Solid Waste collection services shall be offered by the City to all Premises within the City in accordance with the Regulations.
(Ord. No. 2012-47, § 1, 8-28-12, eff. 9-4-12)

Sec. 2.3. Authority to Discontinue Solid Waste Collection Service.

Upon order of the Manager, the City may discontinue solid waste collection service to any Premises where the owner or occupant fails or refuses to comply with the provisions of this Chapter or any rule or regulation adopted pursuant to this Chapter, and such service need not thereafter be reinstated until such violation is remedied to the satisfaction of the Manager, or his or her designee.
(Ord. No. 2012-47, § 1, 8-28-12, eff. 9-4-12)

Sec. 2.4. Outdoor Storage of Solid Waste and Cart Requirements.

(1) The owner or occupant of any residential unit within the City in which any Solid Waste shall be accumulated, shall maintain on said Premises one (1) or more refuse carts, each having a capacity of not more than one hundred (100) gallons. The number of carts kept on each Premises shall be sufficient to conveniently store the normal accumulation of Solid Waste on said Premises over a period of not less than seven (7) days; and for Recyclable Materials, not less than 14 days. Such carts shall be constructed of rigid metal or plastic with tightly fitting covers which are rodent-proof. Rigid refuse carts must be kept tightly covered except when opened for deposit or removal of Solid Waste. All Solid Waste being stored on any Premises between collections must be stored in a rigid container with a tightly fitting cover.

(2) Rigid carts for storage of Solid Waste shall be placed at the rear or side of buildings at a place which is reasonably inconspicuous and away from streets and places occupied by other persons.
(Ord. No. 2012-47, § 1, 8-28-12, eff. 9-4-12)

Sec. 2.5. Place of Collection.

All Solid Waste intended for City collection shall be contained in one (1) or more City refuse bags or City refuse carts and shall be placed in the parkway near the curb adjacent to the property, unless otherwise specifically permitted at an alternate location by the Regulations. Such carts shall be placed at that location prior to 7:00 a.m. on the day scheduled for collection from that property. In no event shall any Solid Waste be placed at the curb for collection before 7:00 p.m. of the day preceding the scheduled collection day, whether collected by the City or by a private Waste Hauler.
(Ord. No. 2012-47, § 1, 8-28-12, eff. 9-4-12)

Sec. 2.6. Litter and Accumulation.

No person shall throw or deposit any Garbage or Rubbish upon or into any street, alley or other property, public or private. It shall be the duty of every occupant of property and of every owner of unoccupied property at all times to maintain the Premises occupied or owned by him or her, in a clean and orderly condition, permitting no deposit or accumulation of Garbage or Rubbish upon such Premises.
(Ord. No. 2012-47, § 1, 8-28-12, eff. 9-4-12)

Cross reference—Littering generally, § 9.91 et seq.

State law reference—Littering, MCL 752.901 et seq., MSA 28.603(1) et seq.

Sec. 2.7. Disposal of Combustible Waste and Solid Waste.

(1) *Transportation and Disposal by Persons.* No person shall dispose of any Solid Waste within the City other than by means of the City's Solid Waste collection service or by means of a Waste Hauler duly licensed by the City for such purpose.

(2) *Transportation and Disposal by Waste Haulers.* All Combustible Waste collected or transported by Waste Haulers shall be disposed of only in accordance with Section 2.14. All Solid Waste other than Combustible Waste collected or transported by Waste Haulers shall be disposed of only at disposal areas consistent with the Act 451 Plan.
(Ord. No. 2012-47, § 1, 8-28-12, eff. 9-4-12)

Sec. 2.8. Sale of City Refuse Bags and Carts.

Pursuant to the Solid Waste Regulations promulgated under the authority of this Chapter, the City shall provide a means for the sale and distribution of City refuse bags and carts. No person shall possess for sale, sell, or offer for sale, any plastic bags, carts, or any other material or substance which shall imitate City refuse bags or carts.
(Ord. No. 2012-47, § 1, 8-28-12, eff. 9-4-12)

Sec. 2.9. Fees.

Fees for Solid Waste services provided by the City in accordance with this Chapter shall be established from time to time by resolution of the City Commission.
(Ord. No. 2012-47, § 1, 8-28-12, eff. 9-4-12)

Sec. 2.10. Solid Waste Haulers.

(1) No person shall engage in the business of collecting, transporting, delivering, or disposing of Solid Waste in the City of Grand Rapids without first obtaining a Solid Waste Hauler License. Solid Waste Hauler Licenses shall be issued upon application to the City Clerk on forms provided by the Clerk upon payment of such fees as shall be required by Chapter 92. It shall be an express condition of each License that the Waste Hauler shall comply with all provisions of this Chapter.

(2) Except as provided herein, no person shall collect Solid Waste or Source-Separated Materials anywhere within the City between the following hours:

a. 11:00 p.m. Saturday to 9:00 a.m. Sunday.

b. 11:00 p.m. Sunday to 7:00 a.m. Monday.

c. 11:00 p.m. Monday to 7:00 a.m. Tuesday.

d. 11:00 p.m. Tuesday to 7:00 a.m. Wednesday.

e. 11:00 p.m. Wednesday to 7:00 a.m. Thursday.

f. 11:00 p.m. Thursday to 7:00 a.m. Friday.

g. 11:00 p.m. Friday to 9:00 a.m. Saturday.

h. Federal holidays—11:00 p.m. the previous evening to 9:00 a.m.

i. Saturdays following a federal holiday observed on a weekday—11:00 p.m. the previous evening to 7:00 a.m.

(3) Subsection (2) shall not apply to the following:

a. The collection of Solid Waste and Source-Separated Materials within all that portion of the City's Downtown area, specifically the area lying west of a line with its northerly beginning at the intersection of Michigan Street and Barclay Avenue, thence south along Barclay Avenue to the intersection of Lyon Street, thence west along Lyon Street to Bostwick Avenue, thence south along Bostwick Avenue to Fulton Street, thence east along Fulton Street to Jefferson Avenue, thence south along Jefferson Avenue to State Street, thence southeasterly along State Street to Lafayette Avenue, thence south along Lafayette Avenue to the southerly point of ending of said line at the intersection of Lafayette Avenue and Wealthy Street.

b. The collection of Solid Waste and Source-Separated Materials within any industrially-zoned district (IT and IC) as identified in Chapter 61, so long as the carts being emptied are located at least one hundred (100) feet from any dwelling unit.

c. If the City receives verified complaints of three (3) or more separate incidents within any calendar year of either excessive noise of waste hauler activities at any one location by any one waste hauler or of a waste hauler operating during prohibited hours, then the Manager may order the responsible waste hauler to permanently comply with Subsection (2) at the location from which the excessive noise emanated or where operations were conducted during prohibited hours. Failure on the part of the hauler to comply with such directive may result in revocation of the hauler's license by the City Clerk as permitted under authority of Chapter 91 of this Code.

d. The collection of Solid Waste and Source-Separated Materials within a completely enclosed building.

e. The collection of Solid Waste and Source-Separated Materials anywhere within the City during the period of any disaster or emergency as determined and declared by the Mayor.

f. The collection of Solid Waste and Source-Separated Materials from any collection site anywhere within the City whenever a waiver permit has been validly issued for such collection pursuant to Regulations promulgated by the City Manager.

(4) Nothing in this Section is intended, nor shall it be construed, as authorizing the violation of the City's Noise Ordinance or waiving the application of its provisions to Waste Hauler operations.

(Ord. No. 2012-47, § 1, 8-28-12, eff. 9-4-12)

Cross reference—License fee for waste haulers, § 7.48.

Sec. 2.11. Solid Waste Transportation Unit and Identification of Solid Waste Carts.

(1) *Solid Waste Transportation Unit.*

a. Any Solid Waste transportation unit operated in the City of Grand Rapids shall have the name of the duly licensed Waste Hauler, the address and telephone number plainly marked upon both sides of the vehicle in a place and color plainly visible, in letters and figures of three (3) inches or more.

b. A Solid Waste transporting unit shall not be parked in a residential area longer than necessary to collect Solid Waste unless within a completely enclosed garage or building. A Solid Waste transporting unit shall not be parked, stored or established at any location so as to cause a nuisance or hazard to health.

(2) *Identification of Solid Waste Containers.*

a. Solid Waste Containers having a capacity of at least one-half (½) cubic yard shall be plainly marked with the name and current street address or the name and current telephone number of the Waste Hauler which collects Solid Waste from or transports Solid Waste within the Solid Waste Container. The name and current street address or the name and current telephone number of the Waste Hauler shall be plainly marked on at least three (3) sides of the Solid Waste Container in letters and figures not less than three (3) inches in height.

b. The Waste Hauler collecting Solid Waste from or transporting the Solid Waste Container having a capacity of at least one-half (½) cubic yard shall be responsible for complying with this Section. It shall be a violation of this Section for any Waste Hauler to collect Solid Waste from or to transport such a Solid Waste Container unless the Solid Waste Container has been marked in compliance with this Section.

(Ord. No. 2012-47, § 1, 8-28-12, eff. 9-4-12)

Cross references—Nuisances, Ch. 151; general traffic regulations, Ch. 181.

Sec. 2.12. Insurance Requirements.

An applicant for a Solid Waste Hauler License shall furnish to the City Clerk evidence of Contractor's Motor Vehicle, Bodily Injury and Property Damage Insurance in an amount not less than one million dollars ($1,000,000.00) combined

single limit, one million dollars ($1,000,000.00) per occurrence, with the City of Grand Rapids named as an additional insured on the Policy. In the event of cancellation or non-renewal of any policy required under this Section, the Solid Waste Hauler shall immediately notify the City Clerk of such cancellation or non-renewal.
(Ord. No. 2012-47, § 1, 8-28-12, eff. 9-4-12)

Sec. 2.13. Reserved.

Sec. 2.14. Delivery of Combustible Waste.

(1) Waste Haulers shall (a) deliver to the WTE all Combustible Waste collected or transported from a Site of Generation within the City and (b) pay the Tipping Fee for delivery of such Waste at the WTE (unless otherwise provided by contract between the City and the Waste Hauler). No Waste Hauler shall deliver Combustible Waste collected or transported from a Site of Generation within the City to any Disposal Site other than the WTE.

(2) Waste Haulers shall deliver to the WTE all Combustible Waste regardless of whether the Combustible Waste is transported in the same load or vehicle as Solid Waste which is not Combustible Waste. This requirement shall be absolute and unconditional unless the Board of Public Works, acting through its designated representatives, has made a prior written determination that a specific load of waste consists primarily of waste which would not be accepted for delivery at the WTE. Such a written determination of the Board of Public Works shall not be applicable to waste collected from any Site of Generation, any load or vehicle, any Waste Hauler or any facts or circumstances, other than those expressly identified in the written determination.

(3) Waste Haulers shall not deliver Combustible Waste to a site for site separation of recyclable materials unless the Board of Public Works, acting through its designated representatives, after request of the Waste Hauler, has made a prior written determination that such delivery does not violate this Ordinance. Such a written determination shall not be applicable to waste collected from any Site of Generation, any load or vehicle, any Waste Hauler, or any facts or circumstances other than those expressly identified in the written determination. A written determination pursuant to this Section shall not relieve the Waste Hauler from the obligation to deliver to the WTE all Combustible Waste remaining in a load after site separation of recyclable materials.

(4) Waste Haulers shall not deliver Hazardous Waste to the WTE.

(5) Notwithstanding any other provision of this Chapter, Waste Haulers shall not be prohibited from transporting Combustible Waste collected from a Site of Generation within the City for disposal at any Disposal Site located outside the State of Michigan.
(Ord. No. 2012-47, § 1, 8-28-12, eff. 9-4-12)

Sec. 2.15. Compliance with Laws, Rules and Regulations.

Waste Haulers shall comply with the Act 451 Plan and all applicable Federal and State laws, statutes, rules and regulations (including, but not limited to, Act 451 and administrative rules promulgated pursuant to Act 451) in the collection, transportation, delivery, and disposal of Combustible Waste. Waste Haulers shall also comply with all rules and regulations of the Board of Public Works for the administration and operation of the WTE (including, without limitation, rules and regulations prohibiting delivery of loads consisting primarily of unacceptable waste as solely determined by the Board of Public Works acting through its designated representatives) and other Disposal Sites of the Kent County Refuse Disposal System.
(Ord. No. 2012-47, § 1, 8-28-12, eff. 9-4-12)

Sec. 2.16. Penalties.

(1) Any violation of this Chapter or the Regulations promulgated under the authority of this Chapter may result in termination or suspension of Solid Waste collection service, according to the procedures set forth in the Regulations for such termination or suspension of collection service.

(2) Any violation of this Chapter or the Regulations promulgated under the authority of this Chapter committed by any Waste Hauler may

result in suspension or revocation of such Waste Hauler's license in accordance with Chapter 91 of the City Code.

(3) Notwithstanding any other provision of this Chapter, any violation of either this Chapter or the Regulations promulgated under the authority of this Chapter that is deemed to be a Nuisance under Chapter 151 of this Code shall be subject to abatement and all other remedies available under Chapter 151.
(Ord. No. 2012-47, § 1, 8-28-12, eff. 9-4-12)

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Chapter 26

CITY WATER SYSTEM*

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***Charter references—**Director of Public Service, Title VI, Sec. 9; power and duty of City Commission as to Public Works, Public and Special Improvements, Title X, Sec. 7.

Cross references—Department of Water, § 1.128; streets, Ch. 51; sewer and water connections, §§ 4.11, 4.12; sidewalks, Ch. 52; interference with natural or artificial drains § 5.366; general health regulations, Ch. 71; general building regulations, Ch. 131; plumbing regulations, Ch. 132; Mechanical Code, Ch. 134; floodplain construction, Ch. 144; waterways, Ch. 154; fire prevention, Ch. 159.

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ARTICLE 1. IN GENERAL

Sec. 2.21. Purpose.

The purpose of this Chapter is to establish standards, rules and regulations with respect to the use of the Grand Rapids Water System; to provide for the rates and charges for the connection to and use of the System.
(Ord. No. 77-57, 11-1-77)

Sec. 2.22. Definitions.

For the purposes of this Chapter, the following words and phrases shall have the meanings respectively ascribed to them by this Section unless the context in which they are used specifically indicates otherwise:

1. *Commercial user* shall mean a person whose premises are used to offer services and/or products such as retail and wholesale stores, gasoline stations, restaurants, schools, churches, hotels, motels, nursing homes, private clubs, theaters and governmental buildings.
2. *Commodity charge* shall mean a variable unit charge payable by a user based on the actual water consumption as determined in this Chapter.
3. *Customer class* shall mean a governmental entity whose citizens receive the service of the System.
4. *Director* shall mean the Director of the Grand Rapids Water System.
5. *Domestic user* shall mean a person whose premises are domiciles for single or multiple family use.
6. *Industrial user* shall mean a person who operates a manufacturing or process facility which is engaged in producing a product.
7. *Intermediate transmission lines* shall mean those pipes which not only transport water to one (1) or more local service areas but also provide local service.
8. *Local distribution lines* shall mean those pipes which serve only the abutting property within only one (1) local service area.
9. *Person* shall mean any individual, firm, partnership, association, public or private corporation or public agency or instrumentality or any other entity receiving water service.
10. *Premises* shall mean each lot or parcel of land or building having any connection to the Water System.
11. *Primary transmission lines* shall mean those pipes whose only function is to transport water to and through one (1) or more local service areas, and to which water connection pipes are not attached.
12. *Service charge* shall mean a fixed charge payable by a user based on the size of his or her water meter.
13. *Water connection pipe* shall mean that pipe connecting the watermain with the premises served. This includes the connection to the watermain or the corporation cock, the shutoff valve, and the valves on the inlet and outlet sides of the meter.
14. *Watermain* shall mean the primary and intermediate transmission and local distribution lines of the System.
15. *Water System* or *System* shall mean the Grand Rapids Water System consisting of all plants, works, instrumentalities, lines and properties now or hereafter existing, used or useful in connection with the obtaining of a water supply, its treatment, distribution and all other necessary functions.
16. *User class* shall mean either a domestic, commercial or industrial group of users.

(Ord. No. 77-57, 11-1-77)

ARTICLE 2. WATER SYSTEM USE

Sec. 2.23. Management of the Water System.

The Grand Rapids Water System shall be and remain under the management, supervision and control of the City Manager who may employ or designate such person or persons in such capacity or capacities as he or she deems advisable to carry out the efficient management and operation of the

System. The City Manager or his or her designee may make such rules, orders or regulations as he or she deems advisable and necessary to assure the efficient management and operation of the System; subject, however, to the rights, powers and duties with respect thereto which are reserved by law to the City Commission of Grand Rapids.
(Ord. No. 77-57, 11-1-77)

Sec. 2.23.1 Public water connection required.

The owner of each house, building or other structure equipped with plumbing fixtures and used for human occupancy, employment, recreation or other potable use, e.g., domestic use, situated within or outside the City and abutting any street, alley, right-of-way or public utility easement in which there is located, or may in the future be located, a public watermain served by the City Water System, shall, at her, his or its expense, install suitable plumbing facilities therein and to connect such facilities directly to the public watermain, provided said public watermain is within a two hundred (200) foot radius of the house, building or other structure where connection will occur and, provided further, such connection shall not be required to a house, building or other structure where on the effective date of this Section it was served by a private water well until such time as such private water well fails and the local health agency governing private water wells has determined that such failure exists and that it is unable to issue a permit for repair or replacement of such failed well within the parcel of property where the failed well is located. Well failure shall be as determined and defined by the local health agency governing private water wells within the areas served by the Water System. Except as provided in the immediately preceding sentences, all domestic water usage at such connected house, building or structure shall be through the Water System; private wells shall not be permitted to provide domestic water service to such house, building or structure; and once connected to the public Water System disconnection shall be prohibited. It shall be the owner's responsibility to plug or cap the abandoned domestic water well and contact the local health agency that governs private water wells for proper procedures for plugging and capping such abandoned domestic water wells. Notwithstanding any current or future agreement between the City and another municipality being served by the City Water System, said municipality shall have the option of adopting the provisions of this section.
(Ord. No. 2010-64, § 1, 11-30-10)

Sec. 2.24. Standards and Regulations.

Standards and regulations established in this Chapter or pursuant hereto are deemed to be the absolute minimum consistent with the preservation of the public health, safety and welfare and to fulfill the obligations of the City with respect to State and Federal Law and all rules and regulations adopted pursuant thereto.
(Ord. No. 77-57, 11-1-77)

Sec. 2.25. Use of the Water System.

Any person conforming to the standards, rules and regulations established in or pursuant to this Chapter shall be permitted to receive water provided there exists adequate water lines to which he or she can connect.
(Ord. No. 77-57, 11-1-77)

Sec. 2.26. Service Connection.

(1) Application for water connection shall be made to the System on forms prescribed and furnished by it. Water connections and water meters shall be installed in accordance with the rules and regulations of this System and upon the payment of the required charges and fees.

(2) The City Commission of the City of Grand Rapids finds that the elimination of lead pipe water service connections from within the City is in the best interests of its citizens and will promote the public health, safety and welfare. Therefore, it is the public policy of the City Commission to encourage and facilitate the elimination of such lead pipes through the provisions of sub-section (3) hereof, and it is further the intent of the City Commission that such provisions be liberally construed to further this public policy.

(3) The City will assist residential property owners to eliminate lead pipe water service connections in the following situations, under the following terms and conditions:

(a) Category A. Whenever the City undertakes a street, watermain, or sewer main construction or improvement project and the City Engineer deems that the nature of the project lends itself to the elimination and replacement of lead pipe water service connections with a minimum of additional cost and disruption of sidewalks and other improvements, the City Engineer will notify the owners of all residential properties abutting the project for which the lead pipe water service connections could be replaced during project construction with such minimum cost and disruption that they can have such connections replaced at their cost at the then current standard Category A rates established by resolution of the City Commission pursuant to this sub-section. Such notice shall be by such means as shall be reasonably calculated to provide actual notice and understanding of the options available. The City Engineer shall keep an appropriate record of all such notices and the responses received. Notices given under this Category A must specify a date by which an affirmative response must be received in order to receive the advantages of minimum disruption and the rates established for Category A.

(b) Category B. For those residential properties which abutted a City project described in (a) above completed not more than three (3) years previously and whose then current owners had received notice of the opportunity to eliminate and replace their lead pipe water service connections at Category A rates but declined to do so, the current owners may apply for replacement of such service connections at their cost at the then current standard Category B rates established by resolution of the City Commission pursuant to this subsection.

(c) Category C. For those residential properties which do not abut a current project described in (1) above and have not abutted such a project which has been completed less than three (3) years previously, the owners may apply for replacement of their lead pipe water service connections at their cost at the then current standard Category C rates established by resolution of the City Commission pursuant to this sub-section.

(d) The City Commission by resolution from time to time shall establish standard rates for each of the three (3) separate categories of properties stated above. In the establishment of such rates, the City Commission shall consider the actual cost differences and the differing degree of disruption of sidewalks and other facilities caused by elimination and replacement of lead pipe water service connections under the three (3) categories of properties, as well as any other factors it deems relevant. For the first year, the rates may be established after some replacement has already occurred and, thus, in setting these initial rates, the City Commission should consider, among other factors, any estimates of costs the City Engineer may have made regarding such replacement.

(e) The City Engineer shall establish, and pre-qualify as he or she deems appropriate, a list of licensed plumbing contractors who are willing to eliminate and replace lead pipe water service connections at the rates established by the City Commission. This list shall be provided to all property owners who wish to have their lead pipe water service connections eliminated and replaced, who can then arrange to have such work performed by any contractor on this approved list.

(f) All property owners electing to replace their lead pipe water service connections pursuant to this sub-section shall have the option of either paying off the full cost of the replacement at the established rates within thirty (30) days after comple-

tion of the work or of paying for the work at the established rates in a maximum of ten (10) annual installments of not less than one hundred dollars ($100.00) each, with interest at a rate as shall be established or adjusted from time to time by resolution of the City Commission. They shall elect their option by executing a written agreement in recordable form with the City Engineer prior to the performance of the work on their water service connection. This agreement shall state the language of (g) below. If the property owner elects to pay in installments, the City Engineer shall promptly record the agreement with the Kent County Register of Deeds and promptly provide the City Treasurer with a copy thereof. If the property owner elects to pay off the full cost within thirty (30) days, the City Engineer shall promptly provide the City Treasurer with a copy of the agreement; in such case, the City Engineer shall record the agreement with the Kent County Register of Deeds only if full payment is not received within thirty (30) days from the completion of the work.

(g) The cost of the work shall immediately and automatically become a lien against the premises for which the work is done as soon as such work is completed. Such lien shall be of the same character, and any late payments for the cost of such work, shall be subject to the same methods of collection, including penalties, interest, and late charges, as prescribed for special assessments in Chapter 10 of this Code.

(Ord. No. 77-57, 11-1-77; Ord. No. 92-40, §§ 1, 2, 7-14-92; Ord. No. 2016-13, § 1, 3-29-16)

Sec. 2.27. Meters.

All premises using water shall be metered except as otherwise may be provided in this Chapter. All meters shall be the property of the System. No person except an authorized City employee shall break or injure the seal or change the location of, or alter or interfere in any way with, any water meter.
(Ord. No. 77-57, 11-1-77)

Sec. 2.28. Inspection.

The Director and other duly authorized employees of the City bearing proper credentials and identification shall be permitted to enter upon all properties at reasonable times for the purpose of inspection, observation, measurement, sampling and testing in accordance with the provisions of this Chapter. Any person who applies for and/or receives water from the Water System under this Chapter shall be deemed to have consented to inspections pursuant to this Section, including entrance upon that person's property at reasonable times to make inspections.
(Ord. No. 77-57, 11-1-77)

Sec. 2.29. Hydrant Use.

No person, except an authorized employee of the City in the performance of his or her duties, shall open or use any fire hydrant except in case of emergency, without first securing permission from the Director and paying such charges as may be prescribed in the rules and regulations.
(Ord. No. 77-57, 11-1-77)

Sec. 2.30. Restricting Water Use.

The City Manager, or his or her designee, may regulate, limit or prohibit the use of water for any purpose. Such regulations shall restrict less essential water uses to the extent deemed necessary to assure an adequate supply for essential needs and for fire fighting.
(Ord. No. 77-57, 11-1-77)

Sec. 2.31. Protection from Damage.

No unauthorized person shall maliciously, willfully or negligently break, damage, destroy, uncover, deface or tamper with or alter, any structure, property, appurtenance, equipment or any other item which is part of the Water System.
(Ord. No. 77-57, 11-1-77)

Sec. 2.32. Enforcement.

Any person found to be violating any of the provisions of this Chapter shall be guilty of a violation of this Code. The Director is hereby authorized to bring any appropriate action in the name of the City of Grand Rapids as may be

necessary or desirable to restrain or enjoin any public nuisance, to enforce any of the provisions of this Chapter, to initiate criminal prosecution, and in general to carry out the intent and purpose of this Chapter.
(Ord. No. 77-57, 11-1-77)

Cross reference—General penalty, § 1.13.

ARTICLE 3. USE CHARGES

Sec. 2.33. Purpose and Establishment of Rates and Charges.

Rates and charges for the installation of, connection to (including meter installation and setting charges), and use of the Water System are hereby established for the purpose of recovering the costs of construction, reconstruction, maintenance, operation, and replacement of the System. Such rates and charges along with fees, penalties and miscellaneous charges shall be established from time to time by resolution of the City Commission in accordance with the provisions hereinafter set forth. Rates and charges shall be made against all premises which use the System. The annual rate study conducted by the City and proposed changes in rates and charges and related fees, penalties and other miscellaneous charges along with explanatory materials shall be filed with the City Clerk at least twenty (20) days prior to the City Commission's consideration of an approval resolution for public review and comment. Notice of such filing and opportunity for review and comment shall be published in a newspaper of general circulation in the City and posted on the City's website at least twenty (20) days prior to consideration of the resolution by the City Commission.
(Ord. No. 77-57, 11-1-77; Ord. No. 2015-63, § 1, 10-27-15)

Sec. 2.34. Local Distribution Charges.

(1) Whenever a watermain used for local distribution is constructed either through a special assessment project or as may be ordered or required by law, the property owners for whom the line is designed shall each pay their share of the cost of installation. Similarly, any property owner requesting service who has not previously paid his or her share of the cost of constructing the watermain used for local distribution shall pay those costs before service is permitted.

(2) The charge shall be established as provided in Section 2.33 and shall be known as the front foot rate and be determined by multiplying the rate per foot by the number of feet the property owner has fronting on the watermain used for local distribution. This charge will be annually reviewed and may change to reflect the current average cost of installation of local distribution lines.

(3) If the City Commission shall determine that it is not advisable to collect the front foot rate at the time of construction or connection (if not previously paid at the time of construction), it may direct that the cost be borne initially by the System and subsequently be collected from the property owner in accordance with this Section.

(4) Upon completion of construction or at the time connection is requested (if this cost has not been paid at the time of construction), the City Engineer shall certify to the City Comptroller the cost to be charged to the property owner. The Comptroller shall in turn certify the amount thereof to the City Treasurer. The City Treasurer shall bill the owner of the premises affected advising him or her that unless the amount so billed is paid within thirty (30) days from the date of mailing that the same shall be presented to the City Commission at the first meeting thereof after the expiration of thirty (30) days for assessment against said premises as a special assessment. In the event the bill for such installation and connection is not paid within thirty (30) days from the date said notice is mailed, the City Treasurer shall report the same to the City Commission which shall examine the same and if found by it to be correct shall confirm it as a special assessment against the premises affected, at which time the City Commission shall also direct the number of installments into which the same shall be divided, and shall direct the City Assessor to extend the same upon the tax roll as a special assessment in the manner provided in Chapter 10 of this Code. All collection procedures

for special assessments established in Chapter 10 of this Code shall be applicable to assessments made hereunder.

(5) In lieu of the procedure above described, such installations and connections may be made at the expense of the System when the owner of the premises signs a written agreement agreeing to pay the expense of such installation and connections upon terms agreeable to the City Manager and that the unpaid balance shall constitute a lien upon his or her property of the same character and subject to the same methods of collection as prescribed for special assessments in Chapter 10 of this Code.
(Ord. No. 77-57, 11-1-77; Ord. No. 78-2, 1-10-78; Ord. No. 78-92, 12-19-78; Ord. No. 79-90, 12-18-79; Ord. No. 81-6, 1-20-81; Ord. No. 81-77, 9-22-81; Ord. No. 81-88, 12-15-81; Ord. No. 82-87, 12-21-82; Ord. No. 83-75, § 1, 12-20-83; Ord. No. 84-84, § 1, 12-11-84; Ord. No. 85-81, § 1, 12-17-85; Ord. No. 86-73, § 1, 12-16-86; Ord. No. 87-88, § 1, 12-29-87; Ord. No. 88-76, § 1, 12-20-88; Ord. No. 89-84, § 1, 12-19-89; Ord. No. 91-4, § 1, 1-15-91; Ord. No. 91-61, § 1, 12-10-91; Ord. No. 92-76, § 1, 12-15-92; Ord. No. 93-57, § 1, 12-14-93; Ord. No. 94-45, § 1, 12-13-94; Ord. No. 95-72, § 1, 12-12-95; Ord. No. 96-48, § 1, 12-17-96; Ord. No. 97-62, § 1, 12-16-97; Ord. No. 98-59, § 1, 12-15-98; Ord. No. 99-71, § 1, 12-14-99; Ord. No. 2000-71, § 1, 12-12-00; Ord. No. 2001-51, § 1, 12-11-01; Ord. No. 2002-69, § 1, 12-10-02; Ord. No. 2003-53, § 1, 12-23-03; Ord. No. 2004-81, § 1, 12-21-04; Ord. No. 2005-98, § 1, 12-20-05; Ord. No. 2006-81, § 1, 12-19-06; Ord. No. 2007-69, § 1, 12-18-07; Ord. No. 2008-54, § 1, 12-23-08; Ord. No. 2009-66, 12-15-09; Ord. No. 2010-72, § 1, 12-21-10; Ord. No. 2011-58, § 1, 12-20-11; Ord. No. 2012-63, § 1, 12-18-12; Ord. No. 2013-86, § 1, 12-17-13; Ord. No. 2014-87, § 1, 12-16-14; Ord. No. 2015-63, § 2, 10-27-15)

Sec. 2.35. Integrated Water Connection Fee Schedule.

(1) When a property owner or user is requested or required to connect to the System and has not previously paid or been assessed a connection fee, a connection fee in accordance with a connection fee schedule established as provided in Section 2.33 shall apply.

(2) Except as otherwise provided in the immediately succeeding paragraph, the foregoing integrated water connection base fee schedule for single-family and multi-family residential dwelling units shall be adjusted upward and downward as follows: A single-family residential dwelling unit located on a parcel containing twenty thousand (20,000) square feet shall pay the applicable integrated connection fee in accordance with the foregoing schedule. When determining the square footage of a residential parcel for the purposes of determining the appropriate integrated connection fee, parcel size may be adjusted downward to take into consideration such things as wetlands, lakes, streams and other unusual characteristics of the parcel in accordance with policies approved from time to time by the Utility Advisory Board. To the extent the size of a parcel, as adjusted, is greater than or less than twenty thousand (20,000) square feet, one-half (½) the applicable integrated connection fee will increase or decrease by the same percentage increase or decrease in the parcel above or below twenty thousand (20,000) square feet. In the case of multi-family residential dwellings, in order to determine the size of the parcel assigned to each dwelling unit for purposes of calculating the integrated connection fee to be paid by each multi-family residential dwelling unit, the total square footage of the parcel, as adjusted, on which the multi-family residential dwelling is located shall be divided by the total number of residential units. Notwithstanding any other provision in this subsection, the integrated connection fee for a single-family residential dwelling unit or multi-family residential dwelling unit shall not exceed four and one-half (4½) times the applicable base integrated connection fee set forth in the foregoing schedule.

There shall be no upward adjustment in the integrated water service connection fee payable for a single-family residential dwelling unit connecting to the Water System if (a) each of the following conditions are met (1) a building permit shall have been obtained, (2) the dwelling unit shall have been constructed, and (3) a certificate of occupancy shall have been issued prior to January 1, 2000 or (b) local building permit fees

have been paid to the local governmental unit prior to January 1, 2000 for a single-family residential dwelling unit to be constructed on or after January 1, 2000. When connecting to the Water System, Users living in or owning such single-family residential dwelling units shall pay the applicable base integrated connection fee set forth in the Integrated Water Connection Base Fee Schedule adjusted downward, if applicable, in accordance with the immediate preceding paragraph.

Effective January 1, 2005 and January 1st of every year thereafter, the Integrated Water Connection Base Fees shall be adjusted by a percentage, which is determined by the annual change in the Consumer Price Index (the "Index") calculated as follows:

(a) The Consumer Price Index shall be that Index referred to as the Consumer Price Index, US City Average, All Urban Consumers, published by the U.S. Department of Labor-Bureau of Statistics ((1982-84)=100). In the event the method of determining the Index is substantially altered, the basis for determining the annual change thereafter shall be the Index which is most comparable to the Index described above.

(b) For the purpose of computing the percentage change each calendar year, the Index for the month of August for the prior calendar year shall be subtracted from the Index for the immediately preceding August. The result so obtained (if positive) shall be divided by the Index for the month of August for the prior calendar year to obtain the percentage increase which shall be applied to the then current Integrated Water Connection Base Fee Schedule to determine the new calendar year schedule.

The foregoing Integrated Connection Fee is due and payable at the time a User receives a permit to connect to the Water System. A permit issued by the City to connect to the Water System shall expire one hundred eighty (180) days from the date the permit was issued.

The user receiving services who applies for a larger water meter than the one presently in service shall pay an Integrated Connection Fee which is the difference in cost between the meter size in service and the one applied for in accordance with the Integrated Connection Fee in effect at the time of application. No credit or rebate shall be made in the case of application for a smaller meter size.

Existing commercial and industrial customers may request the installation of an additional meter to measure water used solely for irrigation purposes. There shall be no Integrated Connection Fee for the additional meter provided combined maximum capacity as defined by the American Water Works Association Standards C700-90 and C702-92, as amended, does not exceed the maximum capacity of the original meter. If the original maximum capacity is exceeded, the customer shall pay as an Integrated Connection Fee the difference between the fee for the original meter and what the fee would be if the maximum capacities of all meters were totaled. The additional Integrated Connection Fee shall be based upon the fees in effect at the time of installation of the additional meter.
(Ord. No. 77-57, 11-1-77; Ord. No. 82-87, 12-21-82; Ord. No. 88-43, § 1, 6-28-88; Ord. No. 91-47, § 1, 9-24-91; Ord. No. 95-72, § 2, 12-12-95; Ord. No. 96-48, § 2, 12-17-96; Ord. No. 97-62, § 2, 12-16-97; Ord. No. 98-59, § 2, 12-15-98; Ord. No. 99-28, § 1, 6-8-99; Ord. No. 2000-31, § 1, 6-27-00; Ord. No. 2002-57, § 1, 10-1-02; Ord. No. 2004-81, § 2, 12-21-04; Ord. No. 2005-98, § 2, 12-20-05; Ord. No. 2006-81, § 2, 12-19-06; Ord. No. 2007-69, § 2, 12-18-07; Ord. No. 2008-54, § 2, 12-23-08; Ord. No. 2010-72, § 2, 12-21-10; Ord. No. 2011-58, § 2, 12-20-11; Ord. No. 2012-63, § 2, 12-18-12; Ord. No. 2013-86, § 2, 12-17-13; Ord. No. 2014-87, § 2, 12-16-14; Ord. No. 2015-63, § 3, 10-27-15)

Cross reference—Sewer and water connections, determination of necessity, §§ 4.11, 4.12.

Sec. 2.36. Water Use Charges.

The rates and charges for water service furnished by the System shall be charged to all persons within or without the City Limits using or benefiting from the System. Such rates and/or

charges shall reflect the proportionate cost actually incurred to provide service to the users within the governmental unit in which they reside. For those users of the System outside the City Limits, charges shall be based on the proportionate cost actually incurred to provide service to the users within the governmental entity in which they reside.
(Ord. No. 77-57, 11-1-77)

Sec. 2.37. User Classes.

For the purpose of determining retail user charges, the following user classes are established:

(1) Domestic.

(2) Commercial.

(3) Industrial.
(Ord. No. 77-57, 11-1-77)

Sec. 2.38. Determination of User Charges.

There shall be a two-part rate for users consisting of a commodity charge and a monthly service charge. The commodity charge shall be based on the actual water consumption as determined by this Chapter and the rules and regulations of the System. The monthly service charge shall be based on the size of the water meter as determined by this Chapter.
(Ord. No. 77-57, 11-1-77)

ARTICLE 4. WATER RATES AND CHARGES

Sec. 2.39. Applicability.

The users of the System complying with the provisions of this Chapter and rules and regulations duly adopted pursuant to this Chapter shall pay rates and charges established as provided in Section 2.33. Such rates and charges shall be designed to produce revenues which are proportionate to the cost of providing service to each user class of such customer class. Such cost shall include, but not be limited to, the cost of operation, maintenance, replacement, depreciation and a rate of return on the System's investment.
(Ord. No. 77-57, 11-1-77; Ord. No. 2015-63, § 4, 10-27-15)

Sec. 2.40. Rates and Charges for Retail Customers Within the City of Grand Rapids.

The rates and charges for water service provided retail users within the City shall be as established pursuant to Section 2.33.

(Ord. No. 77-57, 11-1-77; Ord. No. 78-92, 12-19-78; Ord. No. 79-90, 12-18-79; Ord. No. 81-6, 1-20-81; Ord. No. 81-88, 12-15-81; Ord. No. 82-87, 12-21-82; Ord. No. 83-75, § 2, 12-20-83; Ord. No. 84-84, § 2, 12-11-84; Ord. No. 85-81, § 2, 1-17-85; Ord. No. 86-73, § 2, 12-16-86; Ord. No. 87-88, § 2, 12-29-87; Ord. No. 88-76, § 2, 12-20-88; Ord. No. 89-84, § 2, 12-19-89; Ord. No. 91-4, § 2, 1-15-91; Ord. No. 91-61, § 2, 12-10-91; Ord. No. 92-76, § 2, 12-15-92; Ord. No. 93-57, § 2, 12-14-93; Ord. No. 94-45, § 2, 12-13-94; Ord. No. 95-72, § 3, 12-12-95; Ord. No. 96-48, § 3, 12-17-96; Ord. No. 97-62, § 3, 12-16-97; Ord. No. 98-59, § 3, 12-15-98; Ord. No. 99-71, § 2, 12-14-99; Ord. No. 2000-71, § 2, 12-12-00; Ord. No. 2001-51, § 2, 12-11-01; Ord. No. 2002-69, § 2, 12-10-02; Ord. No. 2003-53, § 1, 12-23-03; Ord. No. 2004-81, § 3, 12-21-04; Ord. No. 2005-98, § 3, 12-20-05; Ord. No. 2006-81, § 3, 12-19-06; Ord. No. 2007-69, § 3, 12-18-07; Ord. No. 2008-54, § 3, 12-23-08; Ord. No. 2009-66, 12-15-09; Ord. No. 2010-72, § 3, 12-21-10; Ord. No. 2011-58, § 3, 12-20-11; Ord. No. 2012-63, § 3, 12-18-12; Ord. No. 2013-86, § 3, 12-17-13; Ord. No. 2014-87, § 3, 12-16-14; Ord. No. 2015-63, § 5, 10-27-15)

Sec. 2.41. Fire Protection Charge.

The fire protection charge is a flat fee for fire protection based on the size of the fire protection connection pipe. The charge is payable in advance and shall be as established pursuant to Section 2.33.
(Ord. No. 88-76, § 4, 12-20-88; Ord. No. 89-84, § 3, 12-19-89; Ord. No. 2009-66, § 2, 12-15-09; Ord. No. 2010-72, § 4, 12-21-10; Ord. No. 2015-63, § 6, 10-27-15)

Sec. 2.41.1. Miscellaneous charges.

(1) Water Service Pipe Costs shall be established pursuant to Section 2.33.

(2) Miscellaneous Charges for hydrant use, tapping permits, meter installation and seasonal turn off/on, frozen/damaged/missing meter, meter reading, security deposit, miscellaneous permit and inspection fees, service charges and penalties shall be as established pursuant to Section 2.33.

(3) Watermain Oversizing Rates shall be as established pursuant to Section 2.33.
(Ord. No. 2012-63, § 4, 12-18-12; Ord. No. 2013-86, § 4, 12-17-13; Ord. No. 2014-87, § 4, 12-16-14; Ord. No. 2015-63, § 7, 10-27-15)

Sec. 2.41.2. Circuit Breaker.

As agreed among the customer communities per the Uniform Water and Sewer Service Agreement, the Individual Circuit Breaker (ICB) and City and Customer Community Circuit Breaker programs have been established in order to relieve hardship. The former program serves to assist eligible water customers, and the latter program serves to normalize rates among customer communities to the extent that funds are available for such purpose. These programs shall be administered according to the terms of the Uniform Water and Sewer Service Agreement. The amount allocated for this purpose shall be established pursuant to Section 2.33.
(Ord. No. 2012-63, § 5, 12-18-12; Ord. No. 2013-86, § 5, 12-17-13; Ord. No. 2014-87, § 5, 12-16-14; Ord. No. 2015-63, § 8, 10-27-15)

Sec. 2.42. Review of Rates and Charges.

Annually, after the close of the fiscal year and prior to the adoption of the System's budget, there shall be a review of the rates and charges. Upon completion of the review, a report shall be prepared and presented to the City Commission summarizing the review and recommending rates and charges which assure that all the costs of the System will be recovered from customer and user classes proportionately to the cost of providing service to them.
(Ord. No. 77-57, 11-1-77)

Sec. 2.43. Billing.

Bills for water service shall be rendered in accordance with the established rules and regulations of the System.
(Ord. No. 77-57, 11-1-77)

Sec. 2.44. Enforcement.

Delinquent bills shall be collected as provided in the rules and regulations. The water service may be turned off to any premises to enforce the payment of water service charges in accordance with the rules and regulations. Water service shall not be reinstated until all the requirements of the rules and regulations are complied with.
(Ord. No. 77-57, 11-1-77)

Sec. 2.45. Effective Date.

This Ordinance shall take immediate effect, however, the rates, charges, fees, penalties, and miscellaneous charges and other established amounts set forth in Sections 2.34(2), 2.35(1), 2.40, 2.41, 2.41.1(1), (2) and (3) and 2.41.2 effective prior to the effective date of this Ordinance shall remain in effect through December 31, 2015.
(Ord. No. 77-57, 11-1-77; Ord. No. 78-92, 12-19-78; Ord. No. 79-90, 12-18-79; Ord. No. 81-6, 1-20-81; Ord. No. 81-88, 12-15-81; Ord. No. 82-87, 12-21-82; Ord. No. 83-75, § 4, 12-20-83; Ord. No. 84-84, § 3, 12-11-84; Ord. No. 85-81, § 3, 12-17-85; Ord. No. 86-73, § 3, 12-16-86; Ord. No. 87-88, § 3, 12-29-87; Ord. No. 88-76, § 3, 12-20-88; Ord. No. 89-84, § 3, 12-19-89; Ord. No. 91-4, § 3, 1-15-91; Ord. No. 91-61, § 3, 12-10-91; Ord. No. 92-76, § 3, 12-15-92; Ord. No. 93-57, § 3, 12-14-93; Ord. No. 94-45, § 3, 12-13-94; Ord. No. 95-72, § 4, 12-12-95; Ord. No. 96-48, § 4, 12-17-96; Ord. No. 97-62, § 4, 12-16-97; Ord. No. 98-59, § 4, 12-15-98; Ord. No. 99-71, § 3, 12-14-99; Ord. No. 2000-31, § 2, 6-27-00; Ord. No. 2000-71, § 3, 12-12-00; Ord. No. 2001-51, § 3, 12-11-01; Ord. No. 2002-57, § 2, 10-1-02; Ord. No. 2002-69, § 3, 12-10-02; Ord. No. 2003-53, § 1, 12-23-03; Ord. No. 2004-81, § 4, 12-21-04; Ord. No. 2005-98, § 4, 12-20-05; Ord. No. 2006-81, § 4, 12-19-06; Ord. No. 2007-69, § 4, 12-18-07; Ord. No. 2008-54, § 4, 12-23-08; Ord. No. 2009-66, § 4, 12-15-09; Ord. No. 2010-72, § 5, 12-21-10; Ord.

No. 2011-58, § 4, 12-20-11; Ord. No. 2012-63, § 6, 12-18-12; Ord. No. 2013-86, § 6, 12-17-13; Ord. No. 2014-87, § 6, 12-16-14; Ord. No. 2015-63, § 9, 10-27-15)

ARTICLE 5. WATER COOLED AIR CONDITIONING*

Sec. 2.46. Purpose.

The City Commission hereby declares that the health, welfare and safety of the people of this City requires water conservation on the part of the users of water cooled air-conditioning Systems so that the normal use of water for residential and industrial purposes will not be jeopardized.
(Ord. No. 80-53, 7-1-80)

Sec. 2.47. Definitions.

For purposes of this Article, the following words and phrases shall have the following meanings:

(1) *Water cooled air-conditioning system* shall mean any combination of equipment, whether compressor type, or other type, by which heat is removed from the air or refrigerant by the use of water for the purpose of space cooling.

(2) *Approved type* is a water cooled air-conditioning system:

a. Which is equipped with cooling tower, atmospheric condenser, spray pond, or other equipment which shall directly or directly cool refrigerant, and

b. Which uses water from the Water System only for make-up water to replace water lost by evaporation or by flushing of the equipment, and

c. Which uses an average of less than eight (8) gallons of water from the Water System per hour per ton of cooling capacity when the unit is operating.

(3) *Nonapproved type* is a water cooled air-conditioning system which uses water as a cooling medium and not conforming to the requirements defined in Section 2.47(2).

(4) *Rated capacity.* The rated capacity of a water cooled air-conditioning system in tons shall be the twenty-four-hour heat removal capacity in BTUs divided by 288,000.
(Ord. No. 80-53, 7-1-80)

Sec. 2.48. Prohibited Installations and Operations.

No person shall install any water cooled air-conditioning equipment that is of the nonapproved type and which uses a supply of water from the City's Public Water System. Nor shall any person modify any existing approved type to a nonapproved type which is prohibited by this Section. Nor shall any person use or operate any water cooled air-conditioning equipment which has been installed or modified in violation of this Section.
(Ord. No. 80-53, 7-1-80)

Sec. 2.49. Penalty.

Any person who shall be found guilty of violating Section 2.48 shall be subject to penalty as provided by Chapter 1, Section 1.13 of this Code.
(Ord. No. 80-53, 7-1-80)

Secs. 2.50—2.60. Reserved.

*__Cross reference—__Mechanical Code, Ch. 134.

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Chapter 27

CITY SEWAGE DISPOSAL SYSTEM*

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*__Editor's note—__Ord. No. 2010-38, § 1, adopted July 13, 2010, repealed the former Ch. 27, §§ 2.60—2.111, and enacted a new Ch. 27. The former Ch. 27 pertained to similar subject matter and derived from Ord. No. 2003-54, §§ 1—3, 12-23-03; Ord. No. 2004-06, § 1, 2-17-04; Ord. No. 2004-82, §§ 1—5, 12-21-04; Ord. No. 2005-99, §§ 1—5, 12-20-05; Ord. No. 2006-82, §§ 1—5, 12-19-06; Ord. No. 2007-70, §§ 1—5, 12-18-07; Ord. No. 2008-55, §§ 1—5, 12-23-08; Ord. No. 2009-67, §§ 1—4, 12-15-09.

__Charter references—__Director of Public Service, Title VI, Sec. 9; Sewage Disposal System, Title VIII, Sec. 33½; Sewers—Right to Extend Beyond City Limits, Title X, Sec. 5; Sewer Extensions Construed, Title X, Sec. 22.

__Cross references—__Streets, Ch. 51; sewer and water connections and determination of necessity, §§ 4.11, 4.12; general health regulations, Ch. 71; plumbing regulations, Ch. 132; Property Maintenance Code, Ch. 140.

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Sec. 2.124. Rules, Regulations and Policies.
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ARTICLE 1. IN GENERAL

Sec. 2.60. Findings.

The City Commission hereby finds the following:

(1) That there is a need to assure the quality of the wastewater discharged by the Publicly Owned Treatment Works (POTW) to prevent the degradation of the Grand River;

(2) That there is a need to protect the biological systems, operation and infrastructure through the regulation of discharge into the POTW;

(3) That there is a need for the City to enhance its ability to regulate the discharge of wastewater to the POTW consistent with local, State and Federal laws.

(Ord. No. 2010-38, § 1, 7-13-10)

Sec. 2.61. Purposes and Objectives.

The purpose of this Chapter is to establish standards, rules and regulations, with respect to the use of the POTW, to provide for rates and charges for connection to and use of the System, to establish limits for the discharge of pollutants into the System and to prevent the pollution of the environment.

(1) This Chapter sets forth requirements for dischargers into the Grand Rapids wastewater collection and treatment systems, and enables the Grand Rapids system to protect the public health and environment in conformity with all applicable State and Federal laws relating thereto.

(2) The objectives of this Chapter are:

(a) To prevent the introduction of pollutants into the POTW which interfere with the normal operation of the System or contaminate the resulting sludge.

(b) To prevent the introduction of pollutants into the POTW which do not receive adequate treatment in the POTW and which will pass through the System into receiving waters or the atmosphere or otherwise be incompatible with the System.

(c) To improve the opportunity to recycle and reclaim wastewater and sludge from the System.

(3) This Chapter provides for the issuance of permits, and discharge authorizations, for the regulation of discharges into the POTW.

(Ord. No. 2010-38, § 1, 7-13-10)

Sec. 2.62. Definitions.

For the purposes of this Chapter, the following words and phrases shall have the meanings respectively ascribed to them by this Section unless the context in which they are used specifically indicates otherwise:

(1) *Authorized Representative* - In general, as described in 40 CFR 403.12 (l)(1), (2), (3), and (4). See below for details in regard to specific situations.

(a) In the case of a corporation, a president, secretary, treasurer or vice president of the corporation in charge of a principal business function, or any other person who performs similar policy or decision-making functions for the corporation; or

(b) In the case of a limited liability company a principal managing member or the member in charge of the principal business functions;

(c) In the case of a partnership or proprietorship, a general partner or proprietor; and

(d) An authorized representative of the individual designated above if: (i) such a representative is responsible for the overall operation of the facilities from which the discharge into the POTW originates; (ii) the authorization is in writing; and (iii) the written authorization is submitted to the POTW.

(2) *BOD - Biochemical Oxygen Demand* is an empirical test in which standardized laboratory procedures are used to determine

the relative oxygen requirements of wastewaters, effluents and polluted water. The approved laboratory procedures are listed in Title 40 Part 136 of the Code of Federal Regulations, specifically in the method for the "Five (5) Day BOD Test".

(3) *Best Management Practices* or *BMPs* - Schedules of activities, prohibitions of practices, maintenance procedures, and other management practices to implement the prohibitions listed in Section 2.66. BMPs include treatment requirements, operating procedures, and practices to control plant site runoff, spillage or leaks, sludge or waste disposal, or drainage from raw materials storage.

(4) *Building Inspections* - The Building Inspections Division of the Grand Rapids Department of Neighborhood Improvement.

(5) *Bypass* - The intentional diversion of waste streams from any portion of an Industrial User's treatment facility.

(6) *Categorical Pretreatment Standards* - National Pretreatment Standards specifying quantities or concentrations of pollutants or pollutant properties which may be discharged or introduced into a POTW by specific Industrial Dischargers.

(7) *City* - The City of Grand Rapids.

(8) *City Manager* - The City Manager of the City of Grand Rapids and any persons designated to act on behalf of the City Manager in the administration or enforcement of this Chapter.

(9) *Clean Water Act* - The Federal Water Pollution Control Act, 33 USC Sec. 1251 et seq., as amended and applicable regulations promulgated thereunder.

(10) *Combined Sewer* - Any sewer designed or intended to receive both stormwater and sewage.

(11) *Combined Waste Stream Formula* - The waste stream at industrial facilities where regulated process effluent is mixed prior to treatment with wastewaters other than those generated by the regulated process. Where required by Federal or State law, and only to the extent required by Federal or State law, the combined waste stream formula provided in 40 CFR 403.6(e) and Rule 323.2311(7) MAC will apply to the limits applicable to a combined waste stream.

(12) *Commercial User* - A person or entity whose premises are used to offer services and/or products such as retail and wholesale stores, gasoline stations, restaurants, schools, churches, hotels, motels, nursing homes, hospitals, warehouses, private clubs, theaters and governmental buildings. However, some Commercial Users may also be designated as Significant Industrial Users (SIU) should they meet the criteria established in 40 CFR 403.3(t), Rule 323.2302(cc) of the MAC and Section 2.62(45) of this Chapter.

(13) *Commodity Rate* - Means a variable unit charge payable by a User based on metered water consumption.

(14) *Compliance Schedule* - A schedule consisting of one (1) or more milestone dates required for corrections, additions or modifications of treatment systems or related pollution prevention or control activities as a result of enforcement actions, expansions or changes in operations or changes in local or categorical treatment standards. Compliance schedules do not preclude additional enforcement actions due to violations of requirements of this Chapter.

(15) *Confined Space, Permit Required* - Space defined by reference to Part 90 of Act No. 154 of the Public Acts of 1974, as amended, § 408.1001 of the Michigan Compiled Laws.

(16) *Cross-Media Electronic Reporting Regulation (CROMERR)* - An Environmental Protection Agency approved system allowing states, tribes, and local governments that receive or plan to begin receiving electronic documents in lieu of paper documents to satisfy regulations under an authorized program.

(17) *Discharge Authorization* - Written authorization provided by the City Manager specifying the conditions for discharge of a one time or short term duration discharge, or other discharges not meeting the definition of Significant Industrial User, including, but not limited to cooling tower water and silver recovery unit discharges.

(18) *Discharger* - Any person or entity owning, controlling or operating any real property which directly or indirectly utilizes the POTW. Discharger also means any employee, officer, director, partner, member, contractor or other person who participates in, or is legally or factually responsible for, any act or omission which is a violation of this Chapter or which results in a violation of this Chapter. This definition shall be interpreted broadly to include any person or entity who participates in an act or omission that results in a violation of this Chapter.

(19) *Domestic User* - A person or entity whose premises are domiciles for single or multiple family use.

(20) *Effluent* - Waste material (as smoke, liquid, industrial refuse or sewage) discharged into the POTW.

(21) *Enforcement Action* - Action taken by the City to return a User into a state of compliance with the standards established in this Chapter of this Code. This may include, but is not limited to, fines, penalties and compliance schedules.

(22) *Garbage* - Animal and plant waste resulting from the handling, preparation and cooking of foods.

(23) *Industrial Effluent* - Waste matter or material discharged into the POTW from any non-domestic source subject to regulation under Section 307(b), (c), or (d) of the Clean Water Act.

(24) *Industrial User* - Any person or entity that discharges into the POTW from any non-domestic source subject to regulation under Section 307(b), (c), or (d) of the Clean Water Act.

(25) *Industrial Waste* - Solid, liquid or gaseous waste resulting from any industrial, manufacturing, trade or business process or from the development, recovery or processing of natural resources.

(26) *Infiltration* - The water entering a sewer system, including sewer service connections, from the ground, through such manner as, but not limited to, defective pipes, pipe joints, connections or manhole walls. Infiltration does not include, and is distinguished from, inflow.

(27) *Inflow* - The water discharged into a sewer system, including service connections from such sources as, but not limited to, roof leaders, cellar, yard and area drains, foundation drains, cooling water discharges, drains from springs and swampy areas, manhole covers, cross connections from storm drains and combined sewers, catch basins, stormwater, surface run-off, street wash waters or drainage. Inflow does not include, and is distinguished from, infiltration.

(28) *Interceptor Sewer Lines* - Those lines whose basic function is to collect wastewater from two (2) or more separate trunk sewer lines and to transport such wastewater to the sewage treatment plant.

(29) *Interference* - A discharge, which, alone or in conjunction with a discharge or discharges from other sources, inhibits or disrupts the POTW collection, treatment processes or operations, or its sludge processes or operations, use, disposal, and causes a violation of any requirement of the POTW's NPDES Permit (including an increase in the magnitude or duration of the violation) or of the prevention of sewage sludge use or disposal in compliance with the following statutory provisions and regulations or permits issued thereunder, or any more stringent State or Local regulations: Section 405 of the Clean Water Act, the Solid Waste Disposal Act (SWDA) (including Title II, more commonly referred to as the Resource Conservation and Recovery Act (RCRA)), and

including State regulations contained in any State sludge management plan prepared pursuant to Subtitle D of the Solid Waste Disposal Act, the Clean Air Act, the Toxic Substances Control Act and the Marine Protection, Research and Sanctuaries Act.

(30) *Lateral Sewer Line* - A sewer pipe beginning at the local collector sewer or other connection point and extending to the premises actually served. The lateral sewer includes the stub to which a User connects.

(31) *MAHL* - The Maximum Allowable Headworks Loading expressed in pounds per day that the POTW can accept without experiencing: fire or explosion hazards, fume toxicity, pass through, sludge quality impairment, treatment inhibition or cause a violation of State Water Quality Standards.

(32) *Medical Waste* - Isolation wastes, infectious agents, human blood and blood products, pathological wastes, sharps, body parts, contaminated bedding, surgical wastes, potentially contaminated laboratory wastes, and dialysis wastes.

(33) *Monthly Service Charge* - Means a fixed monthly charge payable by a User based on the size of the water meter servicing the User.

(34) *New Source* - Any building, structure, facility or installation of which the construction commenced after the publication of the proposed Pretreatment Standards under Section 307(c) (33 USC) which will be applicable to such source if such standards are thereafter promulgated in accordance with that Section provided that: (i) the construction is a site at which no other source is located; or (ii) the process or production equipment that causes the discharge of pollutants at an existing source is totally replaced; or (iii) the production or wastewater generating processes are substantially independent of an existing source at the same site. Reference 40 CFR 403.3(k) (2-3) or Rule 323.2302(r) of the Michigan Administrative Code for further information.

(35) *North American Industry Classification System (NAICS)* - A six digit code used by business and government to classify and measure economic activity.

(36) *NPDES* - National Pollution Discharge Elimination System, a permit issued pursuant to Section 402 of the Act (33 USC 1342), as amended.

(37) *Pass Through* - A discharge which exits the POTW into waters of the United States in quantities or concentrations which, alone or in conjunction with a discharge or discharges from other sources, is a cause of a violation of any requirement of the POTW's NPDES permit (including an increase of the magnitude or duration of a violation).

(38) *Person or Entity* - An individual, firm, partnership, association, public or private corporation, limited liability company or public agency or instrumentality.

(39) *pH* - The logarithm (base 10) of the reciprocal of the concentration of hydrogen ions expressed in moles per liter of solution.

(40) *Pollutant* - The term includes, but is not limited to: any dredged spoil, solid waste, incinerator residue, sewage, garbage, sewage sludge, munitions, chemical wastes, biological materials, radioactive materials, heat, wrecked or discharged equipment, rock, sand, cellar dirt and industrial, municipal, commercial and agricultural waste or any other contaminant or other substance defined as a pollutant under the Clean Water Act.

(41) *POTW (Publicly Owned Treatment Works)* - A treatment works as defined by Section 212 of the Clean Water Act, including any devices and systems used in the storage, treatment, recycling and reclamation of municipal sewage and industrial waste. The systems include sewers, pipes and equipment used to convey wastewater to

the treatment facility. The term also includes the municipality as defined in Section 502(4) of the Clean Water Act which has jurisdiction over the indirect discharges to and the discharges from such treatment works.

(42) *Premises* - Each lot or parcel of land or building having any connection to the POTW of the City.

(43) *Pretreatment* - The reduction in the amount of pollutants, the elimination of pollutants, or the alteration of the nature of pollutant properties in wastewater to a less harmful state prior to, or in lieu of, discharging or otherwise introducing such pollutants into a POTW. The reduction or alteration can be physical, chemical or biological processes, process changes or by other means. Dilution is not considered pretreatment unless expressly authorized by an applicable National Pretreatment Standard for a particular industrial category.

(44) *Pretreatment Requirements* - Any substantive or procedural requirement related to pretreatment, other than a National Pretreatment Standard, imposed on an Industrial User.

(45) *Property Owner* - Any person having legal or equitable title to real property or any person having or exercising care, custody or control over any real property.

(46) *Public Sewer* - Local collector, trunk and interceptor sewer lines including lift stations and all appurtenances that are owned or controlled by the POTW.

(47) *Severe Property Damage* - Substantial physical damage to property, damage to the treatment facilities of a User which causes them to become all or partially inoperable or substantial and permanent loss of natural resources which can reasonably be expected to occur in the absence of a bypass. Severe property damage does not mean economic loss caused by delays in production.

(48) *Sewage* - Any liquid or water carried waste received from domestic, commercial and industrial customers, including any infiltration or inflow as may be present.

(49) *Sewage Treatment Plant* - Any arrangement of devices and structures used for treating sewage.

(50) *Sewer* - Any pipe or conduit for the conveyance of sewage.

(51) *Significant Change* - Any change in a discharger's effluent which causes the constituents of the discharge to be different and/or increases in the concentration or flow by twenty (20) percent over those reported on the discharger's permit application.

(52) *Significant Industrial User (SIU)* - Any discharger to the POTW who: (a) has an average discharge flow of twenty-five thousand (25,000) gallons or more of process wastewater per day (excluding sanitary, non-contact cooling and boiler blow down wastewater) or contributes a process waste stream which makes up five (5) percent or more of the average dry weather hydraulic or organic capacity of the POTW, or as determined by the City Manager under authority of 40 CFR 403.12(a) and in Rule 323.2302 of the Michigan Administrative Code on the basis that the Industrial User has a reasonable potential for adversely affecting the POTW's operation or for violating any pretreatment standard or requirement (in accordance with 40 CFR 403.8(f)(6) and Rule 323.2306(h) of the Michigan Administrative Code); (b) is found by the City Manager, the Michigan Department of Environmental Quality (MDEQ) or the U.S. Environmental Protection Agency (EPA) to have significant impact, either singly or in combination with other contributing Users, on the wastewater treatment system the quality of sludge, the system's effluent quality or air emissions generated by the system, or; (c) is subject to Federal Categorical Pretreatment Standards under 40 CFR 403.6 and Rule 323.2311 of the Michigan Admin-

istrative Code and 40 CFR Chapter I, Subchapter N. Upon a finding that an Industrial User meeting criteria (a) of this definition has no reasonable potential for adversely affecting the POTW's operation or for violating any pretreatment standard or requirement, the City Manager may at anytime, on his/her own initiative, or in response to a petition received from an Industrial User or the POTW, and in accordance with 403.8(f)(6) and Rule 323.2306(h) of the Michigan Administrative Code, determine that such Industrial User is not a Significant Industrial User.

(53) *Significant Noncompliance* - Any Industrial User with a violation that meets one (1) or more of the following criteria:

(a) Chronic violations of wastewater discharge limits, defined here as those in which sixty-six (66) percent or more of all of the measurements taken during a six (6) month period exceed (by any magnitude) the daily maximum limit, instantaneous limit, or the average limit for the same pollutant parameter;

(b) Technical Review Criteria (TRC) violations, defined here as those in which thirty-three (33) percent or more of all of the measurements for each pollutant parameter taken during a six (6) month period equal or exceed the product of the daily maximum limit, instantaneous limit, or the average limit multiplied by the applicable TRC (TRC=1.4 for BOD, TSS, fats, oil and grease and 1.2 for all other pollutants except pH);

(c) Any other violation of a pretreatment effluent limit (daily maximum or longer term average) that the City Manager determines has caused, alone or in combination with other discharges, interference or pass through (including endangering the health of POTW personnel or the general public);

(d) Any discharge of a pollutant that has caused imminent endangerment to human health, welfare or to the environment or has resulted in the POTW's exercise of its emergency authority under Section 2.83 of this Chapter to halt or prevent such a discharge;

(e) Failure to meet, within ninety (90) days after the schedule date, a compliance schedule milestone contained in a local control mechanism or enforcement order for starting construction, completing construction or attaining final compliance;

(f) Failure to provide, within thirty (30) days after the due date, required reports, ninety (90) day compliance reports, periodic self-monitoring reports and reports on compliance with compliance schedules;

(g) Failure to accurately report noncompliance;

(h) Any violation or group of violations, which the City Manager determines will adversely affect the operation or implementation of the local pretreatment program. As required by Federal Regulations, the City shall at least annually publish a list of Industrial Users which during the previous twelve (12) months were in significant noncompliance with applicable standards or pretreatment requirements; or

(i) Failure to meet BMP requirements.

(54) *Slug Discharge* - A slug discharge is any discharge of a non-routine, episodic nature, including, but not limited to, an accidental spill or non-customary batch discharge, which has a reasonable potential to cause Interference or Pass Through, or in any other way violate the POTW's regulations, Local Limits, or Permit conditions.

(55) *Storm Drain* - Any underground pipe or any facility intended to convey only

stormwater runoff, street wash waters, groundwater and drainage. This term also includes discharges allowed by State or Federal discharge permits.

(56) *Suspended Solids* - All matter existing in non-liquid state which is removable by filtration in accordance with 40 CFR 136 referenced as "Residue, Non-filterable", or an alternative method approved by the EPA Administrator in accordance with 40 CFR 403.12(b)(5)(vi) and Rule 323.2310(e)(vi) of the Michigan Administrative Code.

(57) *System* - Refers to the POTW.

(58) *Toxic Pollutant* - Any pollutant identified pursuant to Section 307 of the Clean Water Act, or pursuant to Part 31 of the Natural Resources and Environmental Protection Act, 1994 PA 451, as amended, or pursuant to any other applicable laws or regulations.

(59) *Uncontaminated Industrial Effluents* - Water which has not come into contact with any substance used in, or incidental to, industrial processing operations, such as non-contact cooling water and to which no deleterious or toxic substance has been added.

(60) *Upset* - An exceptional incident in which there is unintentional and temporary noncompliance with categorical pretreatment standards (or other limits of this Chapter) because of factors beyond the reasonable control of the Industrial User. An upset does not include noncompliance to the extent caused by operational error, improperly designed treatment facilities, inadequate treatment facilities, and lack of preventive maintenance or careless or improper operation.

(61) *User Class* - Either a domestic, commercial or industrial group of Users.

(62) *Wastewater* - Water, or any liquid, whether or not containing pollutants, which is discharged or permitted to be discharged into the sanitary sewer system.

(63) *Water Business Office* - The Division of the Grand Rapids City Water Department System that is responsible for the reading of meters, submitting bills for water and/or sewer service, collection of payment for bills and the preparation and maintenance of the customer accounts including applications for service.

(Ord. No. 2010-38, § 1, 7-13-10; Ord. No. 2013-18, § 1, 4-30-13; Ord. No. 2013-31, § 1, 7-23-13)

Sec. 2.62.1. Abbreviations.

The following abbreviations shall have the designated meanings:

BTEX	Benzene, Toluene, Ethylbenzene and Xylene
CFR	Code of Federal Regulations
EPA	United States Environmental Protection Agency
MTBE	Methyl Tertiary Butyl Ether
MAC	Michigan Administrative Code
mg/L	Milligrams per liter
TSS	Total Suspended Solids
MAHL	Maximum Allowable Headworks Loading

(Ord. No. 2010-38, § 1, 7-13-10)

ARTICLE 2. SEWER USE

Sec. 2.63. Management of the POTW.

The POTW shall be and remain under the management, supervision and control of the City Manager. The City Manager may make such rules, orders or regulations as are deemed advisable and necessary to assure the efficient management and operation of the System, subject, however, to the rights, powers and duties with respect thereto which are reserved by law to the City Commission.

(Ord. No. 2010-38, § 1, 7-13-10)

Sec. 2.63.1. City Manager's Emergency Authority.

When a necessary or advisable emergency protective measure or action is required, the City Manager is authorized to cause such measures and actions to be taken as authorized by law. The

cost of such protective measures or actions shall be at the expense of the property owner responsible for such measure or action. Failure to pay such cost will constitute a lien upon the property as provided for by law or in the City Charter.
(Ord. No. 2010-38, § 1, 7-13-10)

Sec. 2.63.2. Inspection.

Under current Federal and State laws, rules and regulations, the City is held responsible for the discharge of wastewater into the POTW; therefore, the City has the right and obligation to inspect connections and discharges to its System in order to confirm compliance with State and Federal laws and provisions of this Chapter.

The City Manager and other duly authorized employees of the City bearing proper credentials and identification shall be permitted to enter upon all properties at reasonable times for the purpose of inspection, observation, measurement, sampling and testing in accordance with the provisions of this Chapter. Any person who uses, applies for use and/or is connected to the POTW under this Chapter shall be deemed to have consented to inspections pursuant to this Section, including entrance upon that person's property at reasonable times to make inspections. In the event that a violation of this Chapter is identified the property owner shall be responsible for all costs of inspection and remediation if necessary.
(Ord. No. 2010-38, § 1, 7-13-10)

Sec. 2.64. Standards, Rules, Regulations and Administrative Reference Guide.

The standards, rules and regulations established in, or pursuant to, this Chapter are deemed to be the absolute minimum consistent with the preservation of the public health, safety and welfare, to prevent pollution of the environment and to fulfill the obligations of the City with respect to State and Federal law, including all rules and regulations adopted in conformance thereto. All such additional standards, rules and regulations not contained in this Chapter shall be approved by the City Commission. The discharge into the POTW of any substance which exceeds the pretreatment requirements contained herein, or in any manner fails to conform hereto, is hereby declared to be a public nuisance and a violation of the Code.
(Ord. No. 2010-38, § 1, 7-13-10)

Sec. 2.65. Use of the POTW.

Any person or entity conforming to the standards, rules and regulations established in, or pursuant to, this Chapter shall be permitted to discharge effluent into the POTW provided adequate sewer service is available to which he/she can connect.
(Ord. No. 2010-38, § 1, 7-13-10)

Sec. 2.65.1. Sewer Use of Plainfield Charter Township Sanitary Sewer System.

In addition to complying with the provision of this Chapter, any user or potential user located within the jurisdictional boundaries of the City who uses or desires to use the Plainfield Charter Township sanitary sewer system for the transport of sewage for treatment and disposal by the North Kent Sewer Authority POTW pursuant to a Sewer Service Agreement effective October 28, 2008, between the City, Plainfield Charter Township and the North Kent Sewer Authority, as may from time to time be amended, shall comply with the provisions of the North Kent Sewer Authority Rules and Regulations and with the provisions of Chapter 38, Article III, Division 2 of the Code of Ordinances of Plainfield Charter Township, both as may be amended from time, all of which are incorporated in this Chapter by reference. In the case of a conflict between any other provision of this Chapter and any provision of the North Kent Sewer Authority Rules and Regulations and/or the Code of Ordinances of Plainfield Charter Township adopted by reference pursuant to this Section 2.65.1, the North Kent Sewer Authority Rules and Regulations and/or the Code of Ordinances of Plainfield Charter Township shall control.
(Ord. No. 2010-38, § 1, 7-13-10)

Sec. 2.65.2. Enforcement of Sewer Use Requirements and Limitations of Plainfield Charter Township Sanitary Sewer System.

The City Manager or his/her designee shall be responsible for the administration and enforce-

ment of the rules and regulations and ordinance provisions adopted by reference to Section 2.65.1 of this Chapter. As contemplated in the Sewer Service Agreement effective October 28, 2008, between the City, Plainfield Charter Township and the North Kent Sewer Authority, as may be amended from time to time, the City may designate the Director of the North Kent Sewer Authority POTW and/or the Public Utilities Director of Plainfield Charter Township as his/her representative(s) for purposes of administration and enforcement of the rules and regulations and ordinance provisions adopted by reference in Section 2.65.1.
(Ord. No. 2010-38, § 1, 7-13-10)

Sec. 2.65.3. Public Sanitary Sewage Connection Required.

The owner of each house, building or other structure equipped with plumbing fixtures and used for human occupancy, employment, recreation or other purposes situated within or outside the City and abutting any street, alley, right-of-way or public utility easement in which there is located, or may in the future be located, a public sanitary sewer collector main served by the City Sewage Disposal System, shall, at her, his or its expense, install suitable plumbing facilities therein and connect such facilities directly to the public sanitary sewer collector main, provided said public sanitary sewer collector main is within a two hundred (200) foot radius of the house, building or other structure where connection will occur and, provided, further, such connection shall not be required to a house, building or structure where on the effective date of this Section it was served by a private sanitary sewer septic system until such time as such private sanitary sewer septic system fails and the local health agency governing private sanitary sewer septic systems has determined that such failure exists and that it is unable to issue a permit for repair or replacement of such failed system within the parcel of property where the failed system is located. Septic system failure shall be as determined and defined by the local health agency governing private sanitary sewer septic systems. Except as provided in the immediately preceding sentences, all sanitary sewage usage at such connected house, building or structure shall be through the Sewage Disposal System; private sanitary sewer septic systems shall not be permitted; and once connected to the public Sewage Disposal System disconnection shall be prohibited. It shall be the owner's responsibility to plug and fill the abandoned septic system and contact the local health agency that governs private septic systems for proper procedures. Notwithstanding any current or future agreement between the City and another municipality being served by the City Sewage Disposal System, said municipality shall have the option of adopting the provisions of this section.
(Ord. No. 2010-65, § 1, 11-30-10)

ARTICLE 3. REGULATIONS

Sec. 2.66. General Discharge Conditions and Prohibitions.

(1) All premises connected to the POTW shall meet the following requirements:

(a) Minimum size of the building drain/sewer, including required cleanouts, shall be four (4) inches or greater in diameter;

(b) A grease interceptor, with a maintenance cleaning schedule appropriate for its intended use, shall be required to receive the drainage from fixtures and equipment having grease-laden waste, located in food preparation areas such as in restaurants, commercial kitchens, bars, clubs or similar facilities. The grease interceptor shall not be less than a three (3) compartment, one thousand (1,000) gallon system, or equivalent, unless the City Manager approves an alternative system. Food waste grinders shall not discharge to the building drainage system through the grease interceptor, unless the interceptor is appropriately sized to handle the solids loading and approved per the Plumbing Code. Grease interceptors shall be cleaned and maintained in accordance with BMP. At no time shall the level of grease and sludge in any compartment of the trap be greater than twenty-five (25) percent of

the tank liquid level. Proof of maintenance and cleaning shall be available for review upon request.

(c) Sand traps and similar interceptors for removal of heavy solids by Commercial Users, as determined by the City Manager, shall be designed and installed, according to the City Sand Trap for Garages design specifications. They shall be located as to be readily accessible for cleaning and shall have a water seal of not less than six (6) inches. Sand traps and similar interceptors shall be cleaned and maintained in accordance with BMP. Proof of maintenance and cleaning shall be available for review upon request.

(d) Oil/Water separators are required at repair garages, gasoline stations with grease racks, grease pits or work racks and at factories, or other facilities, where oily and flammable liquid wastes are produced. Separators shall be installed into which all oil-bearing, grease-bearing or flammable wastes shall be discharged before emptying in the building drainage system or other point of disposal. Oil separators shall have a depth of not less than two (2) feet below the invert of the discharge drain. The outlet opening of the separator shall not have less than an eighteen (18) inch water seal. An alternative design may be approved by the Plumbing Inspector, as provided for by the Plumbing Code. Oil/Water separators shall be cleaned and maintained in accordance with BMP. Proof of maintenance and cleaning shall be available for review upon request.

(2) No discharger shall introduce into the POTW any pollutant(s) which cause pass through or interference. The following general and specific prohibitions of this Section apply to each discharger introducing pollutants into the POTW whether or not the discharger is subject to any National, State or local pretreatment standards or requirements.

Pollutants, substances, or wastewater prohibited by this Section shall not be processed or stored in such a manner that they could be discharged to the POTW.

(a) Pollutants which create a fire or explosion hazard in the POTW, including, but not limited to, waste streams with a closed cup flashpoint of less than one hundred forty (140) degrees Fahrenheit or sixty (60) degrees Centigrade using the test methods specified in 40 CFR 261.21.

(b) Solid or viscous pollutants in amounts that will cause obstruction to the flow in the POTW or results in interference.

(c) Pollutants which cause corrosive structural damage to the POTW, but in no case discharges with a pH lower than 5.0 or a pH greater than 10.5. These pH limits will be evaluated annually as part of the rate study and the limits set forth in this Section will be revised as deemed necessary.

(d) Any wastewater containing toxic pollutants in sufficient quantity, either singly or by interaction, to injure or interfere with any wastewater treatment process, constitute a hazard to humans or animals or exceed the limitations set forth in a Categorical Pretreatment Standard.

(e) Any noxious or malodorous liquids, gases or solids which either singly, or by interaction, are capable of creating a public nuisance or hazard to life or are sufficient to prevent entry into the sewers for maintenance and repair.

(f) Any substance which, alone or in conjunction with a discharge or discharges from other sources, may cause a violation of the POTW's NPDES permit or any applicable State or Federal water quality standards or interferes with any treatment process, or causes treatment residues, sludges or scums, to be unsuitable for reclamation or reuse or to interfere with the reclamation process. In no case shall a substance discharged to the POTW cause the POTW to be in noncompliance with sludge use or

disposal criteria, guidelines or regulations developed under Section 405 of the Clean Water Act, any criteria, guidelines, or regulations affecting sludge use or disposal developed pursuant to the Solid Waste Disposal Act, the Clean Air Act, the Toxic Substances Control Act or State standards applicable to the sludge management method being used.

(g) Any substance with objectionable color not removed in the treatment process, such as, but not limited to, dye wastes and vegetable tanning solutions.

(h) Heat in amounts that will inhibit biological activity in the POTW resulting in interference, but, in no case heat in such quantities that the temperature at the headworks of the POTW exceeds forty (40) degrees Centigrade (one hundred four (104) degrees Fahrenheit) unless the Michigan Department of Environmental Quality (MDEQ), upon the request of the POTW, approves the alternative temperature limits.

(i) Any pollutant, including oxygen demanding pollutants (BOD, etc.), released in a discharge at a flow rate and/or pollutant concentration which will cause interference with the POTW.

(j) Any unpolluted water including, but not limited to, noncontact cooling water, unless a discharge authorization is approved by the City Manager.

(k) Any wastewater containing any radioactive wastes or isotopes of such half-life or concentration except as set forth in 10 CFR Part 20. Introduction of radioactive wastes that interfere with the operation of the POTW including, but not limited to, the use and disposal of sludge, the recycling of any and all waste products, or if the discharge causes the POTW to violate any local, State or Federal laws.

(l) Pollutants which result in the presence of toxic gases, vapors or fumes within the POTW in a quantity that may cause acute worker health and safety problems.

(m) Any discharge of petroleum oil, nonbiodegradable cutting oil, animal fat, vegetable fat, oil, grease, products of mineral oil or any combination thereof at a concentration of greater than one hundred (100) milligrams per liter, unless it can be demonstrated that matrix interference is responsible for levels greater than this amount, but, in no case in amounts that will cause an obstruction, interference or pass through in the POTW.

(n) Any substances not identified in (m) above, that will become solid or viscous after entering the POTW.

(o) Any effluent having an average daily flow greater than two (2) percent of the POTW's average daily flow. The City Manager, upon review, may approve greater discharges subject to conditions as authorized by this Chapter or special conditions he/she deems necessary in order to preserve and protect public health, safety and welfare, subject to conformance with the applicable State and Federal law.

(p) Any trucked or hauled pollutants, except at discharge points designated by the City Manager.

(q) Any detectable level of mercury using EPA Method 245.1 or 245.2 with a detection limit not to exceed 0.2 µg/l unless the User can demonstrate that matrix interference prevents the attainment of this level. Mercury sampling procedures, preservation and handling, and analytical protocol for compliance monitoring shall be in accordance with U.S. EPA Method 245.1 or 245.2. In the event that mercury is detected, the User shall develop and implement a mercury elimination plan including elements deemed necessary by the City Manager to progress toward the goal of no detectable discharge of mercury. For Users whose operation and discharge characteristics are substantially similar a group mercury elimination plan may be acceptable. Dental facilities shall comply with Public Act 503 of 2008, MCL 333.16631, and all Best Management Prac-

tices promulgated by the Michigan Department of Community Health in conjunction with the Michigan Department of Environmental Quality.

(r) There shall be no discharge to the POTW of groundwater that has been contaminated with gasoline and related petroleum products that would qualify for a State of Michigan general discharge permit for gasoline and related petroleum products in accordance with Rule 2191 promulgated pursuant to Act 451 of the Public Acts of Michigan of 1994, as amended, Part 31, except where no other discharge option exists. If discharge to the POTW is desired under these conditions, the discharger must submit a wastewater discharge permit application as specified in Section 2.68 which may be approved by the City Manager. Upon approval a permit will be issued with appropriate conditions as set forth in Section 2.72. The total BTEX concentration shall not exceed twenty (20) micrograms per liter and the MTBE concentration shall not exceed twenty (20) micrograms per liter.

(s) Disposal of septage waste into the POTW is prohibited, except as in accordance with the septage waste receiving plan, the City Manager may authorize disposal of portable containers of domestic waste, including waste from recreational vehicles. Septage wastes are to be discharged only at designated locations in accordance with the septage waste receiving plan.

(t) Sludge from an industrial or commercial pretreatment system shall not be placed into the POTW. Such sludge shall be disposed of by a licensed hauler in a site approved by the Michigan Department of Environmental Quality (MDEQ).

(u) Any substance that causes excessive foaming in the POTW.

(v) Medical Wastes, except as specifically authorized according to Part 138, Medical Waste Regulatory Act of the Michigan Public Health Code 1978 PA 368, as amended.

(w) Any detectable level of PCB using EPA Method 608 with a detection limit not to exceed 0.1 µg/l unless the User can demonstrate that matrix interference prevents the attainment of this level. PCB sampling procedures, preservation and handling, and analytical protocol for compliance monitoring shall be in accordance with U.S. EPA Method 608.

(x) Bacteriological, chemical or enzymatic products shall not be added to facility discharge or be used to maintain or clean grease interceptors or grease traps, unless approved by the City Manager.

(3) Bypass is prohibited, except in cases where the bypass was unavoidable to prevent a loss of life, personal injury, or severe property damage, and where there are no feasible alternatives to the bypass, such as the use of auxiliary treatment facilities, retention of untreated wastes or maintenance during normal periods of equipment downtime. This condition is not satisfied if adequate backup equipment should have been installed in the exercise of reasonable engineering judgment to prevent a bypass that occurred during normal periods of equipment downtime or preventive maintenance. In cases where a bypass may occur it would be subject to the following conditions:

(a) *Anticipated bypass* - If an Industrial User knows in advance of the need for a bypass, the User shall submit prior notice to the POTW, if possible, at least ten (10) days before the date of the bypass. Upon notification, the City Manager shall make a determination whether to allow the discharge.

(b) *Unanticipated bypass* - An Industrial User shall immediately notify the City Manager of the occurrence of any unanticipated bypass. The City Manager shall make a determination whether to allow the discharge to continue. A written submission shall also be provided within five (5) days of becoming aware of the bypass. The written submission shall contain a description of the bypass and its cause, the dates and, if the bypass has not been corrected, the anticipated time it is ex-

pected to continue, and steps taken or planned to reduce, eliminate and prevent recurrence of the bypass.

(4) Any discharger shall have an affirmative defense in any action brought against it alleging a violation of the general and specific prohibitions established in Section 2.66(2), (b), (h), (i), and (m), where the discharger can demonstrate that:

(a) It did not know or have reason to know that its discharge, alone or in conjunction with a discharge or discharges from other sources, would cause pass through or interference and;

(b) Either:

1. A local limit designed to prevent pass through or interference was developed for each pollutant in the User's discharge that caused pass through or interference and the User was in compliance with each such local limit immediately before and during the pass through or interference; or

2. A local limit was not applicable and immediately before and during the pass through or interference the User's discharge did not substantially change in volume or constituents from the User's previous discharges when the POTW was regularly in compliance with its NPDES permit and, in the case of interference, all applicable requirements for sludge use or disposal.

(Ord. No. 2010-38, § 1, 7-13-10; Ord. No. 2013-18, § 2, 4-30-13; Ord. No. 2013-31, §§ 2, 3, 7-23-13)

Sec. 2.67. Limitations on Wastewater Strength.

(1) Upon the promulgation of the Federal Categorical Pretreatment Standards for a particular industrial subcategory, the Federal Standard, if more stringent than limitations imposed under this Chapter for sources in that subcategory shall immediately supersede the limitations imposed under this Chapter. Compliance by existing sources with Categorical Pretreatment Standards shall be within three (3) years of the date the standard is effective unless a shorter compliance time is specified in the appropriate subpart of 40 CFR Chapter I, Subpart N. A new source shall install, and have in operation at start-up, all pollution control equipment required to meet applicable Categorical Pretreatment Standards before beginning discharge. When the applicable Categorical Pretreatment Standards are expressed in terms of mass of pollutant per unit of production, the City Manager may convert these limits to equivalent limitations expressed either as a mass of pollutant discharged per day or effluent concentration for purposes of calculating effluent limitations applicable to individual Industrial Users as set forth in 40 CFR 403.6(c) (2-7) and Rule 323.2311(5) of the MAC. In situations in which non-regulated waste streams are intermixed with the regulated waste stream, the City Manager may use the combined waste stream formula to develop equivalent discharge limits. Whenever equivalent limits are used, they shall be deemed pretreatment standards in determining compliance with the standards. The City Manager shall notify all affected Users of the applicable reporting requirements under 40 CFR 403.12 and Rule 323.2310 of the MAC. An application for modification of the Categorical Pretreatment Standards may be considered for submittal to the Regional Administrator of EPA by the City Manager when the System achieves consistent removal of the pollutants as defined by 40 CFR Section 403.7 and Rule 323.2313 of the MAC.

(2) No Industrial User shall increase the use of water or dilute a discharge as a substitute for adequate treatment to achieve compliance with a pretreatment standard or requirement.

(3) Supplementary Limitations.

(a) Supplementary limits were established in accordance with EPA guidance and Michigan Department of Environmental Quality (MDEQ) approval criteria. Specific permit limits for BOD, Total Suspended Solids, Total Phosphorous, and Ammonia as NH_3-N, are specified by individual discharge permits and were derived from the industrial allocable portion of the MAHLs listed in Table 1.

Table 1: MAXIMUM ALLOWABLE HEADWORKS LOADINGS	
MATERIALS	*LOADING (pounds/day)*
Biochemical Oxygen Demand (BOD)	160,800
Total Suspended Solids (TSS)	141,300
Total Phosphorous (TP)	6,990
Ammonia Nitrogen (NH_3-N)	15,100

(b) Table 2 contains a list of technically based local limits derived from the industrial allocable portion of the non-compatible pollutant MAHLs shown above as well as limits for toxic pollutants. For Users subject to Categorical Pretreatment Standards, which include the following parameters, the following limits, if more restrictive, shall apply, both to the categorically regulated process flow as well as any other flows not specifically regulated by Categorical Pretreatment Standards. For all other dischargers these limits shall apply to the total flow from each connection to the POTW, except silver which is a process discharge limit as noted. All measurements to determine compliance with these limits shall be performed in accordance with EPA approved methods found in 40 CFR 136. The monthly average shall be the average of all samples analyzed by EPA approved methods during a calendar month.

Table 2: LOCAL LIMITS		
Inorganic	*Daily Maximum (mg/L)*	*Monthly Average (mg/L)*
Total Arsenic	1.46	NA
Total Cadmium	0.817	NA
Total Chromium	4.0	NA
Hexavalent Chromium	0.72	NA
Total Copper	1.5	NA
Total Cyanide	1.0	NA
Total Lead	1.5	NA
Total Mercury	ND[1]	NA
Total Molybdenum	3.4	NA
Total Nickel	1.5	1.1
Total Selenium	2.3	1.67
Total Silver	620[2]	NA
Total Zinc	2.6	2.0

Organic	*Daily Maximum (mg/L)*	*Monthly Average (mg/L)*
Total Phenols	3.26	NA
Polychlorinated Biphenyls	ND[3]	NA
Tetrachloroethylene	0.25	NA
Trichloroethylene	0.16	NA
MTBE	0.02	NA

NA Not applicable

(1) Non-detectable or as specified in Section 2.66(2)(q).

(2) Process discharge limit for photo processors and x-ray machines sampled for discharge of silver recovery unit. The analysis of these sample matrixes, photo processing and x-ray machine wastes for silver shall be performed on an unpreserved and undigested sample or an alternative preservation and analytical method that does not interfere with the measurement of silver.

(3) Non-detectable per EPA Method 608 with a detection limit not to exceed 0.1 µg/l unless higher levels are appropriate due to matrix interference.

(c) For compatible pollutants, the City Manager shall establish specific concentration limits, when necessary, that are adequate to insure that the industrial allocable portion of the MAHL listed herein is not exceeded. Any requests for specific limits must be made at the time of permit application or renewal and such a determination will be made solely by the City Manager. The establishment of any such limits shall not create any vested right or property rights for the User. Accordingly, no right of appeal from such a determination will exist and the approval may be terminated, modified or subjected to special condition either at time of approval or thereafter, at the discretion of the City Manager.

(d) The City Manager may implement a system for setting special alternative specific limits for batch discharges. Special alternative specific limits may be approved when all of the following conditions are met:

1. The User requests a special alternative specific limit through the special alternative limit process.

2. The City Manager makes a determination that adequate treatment capacity exists to allow this special alternative specific limit consistent with the MAHL for those pollutants present.

In no event shall a special discharge permit be granted or effective which authorizes a discharge in excess of the limitations imposed by any applicable final Federal or State pretreatment standard or discharge limit. In addition the City Manager shall not consider any request for an increase above any limits that were calculated based on health or safety criteria.

(e) The City Manager may develop BMPs by ordinance or in individual wastewater discharge permits to implement Local Limits and the requirements of Section 2.66.

(4) Accidental Discharges.

(a) Prevention plan.

1. Industrial and Commercial Users shall provide protection from accidental discharge of materials which may interfere with the POTW by developing spill prevention plans. If the materials of concern are listed in Table 1 of Rule 324.2009 of the MAC, as amended, a Pollution Incident Prevention Plan (PIPP) pursuant to Part 31 of the Natural Resources and Environmental Protection Act, Act 451 of the Public Acts of Michigan of 1994, as amended [MCL § 324.3101 et. seq.], and Rule 324.2006 of the MAC, as amended, shall be developed and maintained. A copy of the PIPP must be made available upon request of the City Manager. Facilities necessary to implement these plans shall be provided and maintained at the owner's or Industrial or Commercial User's expense.

Industrial and Commercial Users who store hazardous substances shall not discharge to the POTW after the effective date of this Ordinance until a State of Michigan required PIPP has been submitted. Receipt of such plan shall not relieve the Industrial or Commercial User from

complying with all other laws and regulations governing the use, storage and transportation of hazardous substances.

(b) The City Manager shall evaluate each Significant Industrial User at least once every two (2) years, and other Industrial Users as necessary, to determine whether such User needs a plan to control slug discharges. If the City Manager decides that a slug control plan is needed, the plan shall contain at a minimum the following elements:

1. Description of discharge practices, including non-routine batch discharges;
2. Description of stored chemicals;
3. Procedures for immediately notifying the POTW of slug discharges, including any discharge that would violate a prohibition under Sections 2.66 and 2.67, with procedures for follow-up written notification within five (5) days;
4. When deemed necessary, procedures to prevent adverse impact from accidental spills, including inspection and maintenance of storage areas, handling and transfer of materials, loading and unloading operations, control of plant site run-off, worker training, building containment structures or equipment, measures for containing toxic organic pollutants and/or measures and equipment for emergency response.

(c) Any upset or accidental discharge shall be reported to the City Manager immediately upon occurrence. A detailed report shall be filed within five (5) days. The report shall include location of the upset or discharge, date and time thereof, type of waste, concentration, volume and corrective actions. Failure to file a report shall be a separate violation of this Chapter.

(d) Signs shall be permanently posted in conspicuous places on discharger's premises, advising employees whom to call in the event of a slug, upset or accidental discharge. Employers shall instruct all employees who may cause, or discover such upset or discharge, with respect to emergency notification procedure.

(e) Significant Industrial Users are required to notify the City Manager prior to any changes at its facility affecting the potential for a Slug Discharge.

(Ord. No. 2010-38, § 1, 7-13-10; Ord. No. 2013-18, § 3, 4-30-13)

Sec. 2.68. Permit Application.

(1) All new non-domestic Users connecting to, or discharging to, the POTW, and all existing non-domestic Users connected to, or discharging to, the POTW, shall complete a Wastewater Discharge Survey to establish whether a non-domestic User should be classified as a Significant Industrial User or require a Discharge Authorization as defined in Section 2.62 and require a discharge permit. New water service will not be initiated until a complete survey is submitted. In the case of a transfer account, water service will be disconnected if a complete survey is not submitted within ten (10) days of the transfer. If, upon review, the City Manager determines a permit may be required, the non-domestic User shall file a permit application which may include, but not be limited to, the following information:

(a) Name, address and location of the discharger;

(b) North American Industry Classification System (NAICS) number(s) according to the North American Industry Classification System manual, Office of Management and Budget, 1997, as amended;

(c) Wastewater constituents and characteristics including, but not limited to, toxic pollutants as determined by bona fide chemical and biological analyses. Sampling and analyses shall be performed in accordance with procedures established by the EPA and contained in 40 CFR, Part 136, as amended;

(d) Time and duration of discharges;

(e) Average daily and maximum daily wastewater flow rates in gallons per day, including daily, monthly and seasonal variations, if any. All flows shall be measured, unless other verifiable techniques are approved by the City Manager;

(f) Site plans, floor plans, mechanical and plumbing plans and details to show all sanitary and storm drain systems, sewer connections, inspection manholes, sampling chambers and appurtenances by size, location and elevation;

(g) Description of activities, facilities and plant processes on the premises including all materials which are, or may be, discharged to the POTW;

(h) The nature and concentration of any pollutants or materials prohibited by this Chapter in the discharge, together with a statement regarding whether or not compliance is being achieved with this Chapter on a consistent basis and, if not, whether additional operation and maintenance activities and/or additional pretreatment is required for the discharger to comply with this Chapter;

(i) Where additional pretreatment and/or operation and maintenance activities will be required to comply with this Chapter by an existing source, the discharger shall enter into a consent agreement consistent with the law, and approved by the City Manager, of the shortest schedule by which the discharger will provide such additional pretreatment and/or implementation of additional operational and maintenance activities. The compliance date for such a schedule shall not be later than the compliance date for any applicable standard. A new source (40 CFR 403.3(k) and Rule 323.2302(r) of the Michigan Administrative Code)), or an expansion of an existing source, must have in place all necessary equipment to abate pollution. For a new source this will be prior to the commencement of the discharge. For an expansion of an existing source this shall be before any additional wastewater is introduced to the System.

1. The schedule shall contain milestone dates for the commencement and completion of major events leading to the construction and operation of additional pretreatment required for the discharger to comply with the requirements of this Chapter including, but not limited to, dates related to hiring a Michigan licensed professional engineer, completing preliminary plans, completing final plans, executing contract for major components, commencing construction, completing construction and all other acts necessary to achieve compliance with this Chapter.

2. Under no circumstance shall the City Manager permit a time increment for any single step directed toward compliance which exceeds six (6) months.

3. Not later than fourteen (14) days following each milestone date in the schedule and the final date for compliance, the discharger shall submit a progress report to the City Manager, including a statement as to whether or not they complied with the increment of progress represented by that milestone date and, if not, the date on which they expect to comply with this increment of progress, the reason for delay and the steps being taken by the discharger to return the construction to the approved schedule.

(j) Each product produced by type, amount, process or processes and rate of production;

(k) The type and amount of raw materials utilized;

(l) All permit applications shall be signed by an authorized representative of the dis-

charger, and a Michigan licensed professional engineer, where pretreatment facilities are required;

(m) When required by the City Manager, the discharger shall provide an inspection and sampling manhole(s) or structure(s), non-permitted confined space where feasible, with an opening of no less than twenty-four (24) inches diameter and an internal diameter of no less than thirty-six (36) inches containing flow measuring, recording and sampling equipment as required by the City Manager to assure compliance with this Chapter.

(2) Non-domestic Users who have previously submitted a survey, as prescribed in this Section, are also required to complete a wastewater discharge survey periodically, at a frequency to be determined by the City Manager.
(Ord. No. 2010-38, § 1, 7-13-10; Ord. No. 2013-18, § 4, 4-30-13)

Sec. 2.69. Significant changes.

All Industrial Users shall promptly notify the Control Authority (and the POTW if the POTW is not the Control Authority) in advance of any substantial change in the volume or character of pollutants in their discharge, including the listed or characteristic hazardous wastes for which the Industrial User has submitted initial notification under 40 CFR 403.12(p) and Chapter 27, Section 2.75(4) of the City of Grand Rapids Code.
(Ord. No. 2010-38, § 1, 7-13-10; Ord. No. 2013-18, § 5, 4-30-13)

Sec. 2.70. Permit Issuance (Significant Industrial Users).

The City Manager will evaluate the completed application and data furnished by the discharger and may require additional information. Within thirty (30) days after full evaluation and acceptance of the data furnished, the City Manager shall make a determination as to whether the applicant is a Significant Industrial User or will need a discharge authorization. For every applicant, the City Manager shall issue or deny a Discharge Permit subject to terms and conditions provided herein.
(Ord. No. 2010-38, § 1, 7-13-10)

Sec. 2.71. Permit Modifications.

The City Manager shall have the right to amend any Discharge Permit issued hereunder in order to assure compliance by the POTW with applicable laws and regulations and prevent a violation of any NPDES limit, water quality standards or interference with residuals management as specified in Section 2.66(2)(f). Upon the promulgation of a Federal Categorical Pretreatment Standard, the Significant Industrial User Discharge Permit of each discharger subject to such standards will be revised to comply with such standards. Where a discharger, subject to a Federal Categorical Pretreatment Standard, has not previously submitted an application for a Significant Industrial User Discharge Permit as required by 2.68, the discharger shall apply for a Significant Industrial User Discharge Permit from the City Manager within thirty (30) days after the promulgation of the applicable Federal Categorical Pretreatment Standard and provide the information required. The discharger shall be informed of any proposed changes in the discharger's permit at least thirty (30) days prior to the effective date of change. Any changes or new conditions in the permit may include a reasonable time schedule for compliance, which does not exceed any compliance dates set by 40 CFR 403.6(b) and Rule 323.2311(3) of the Michigan Administrative Code.
(Ord. No. 2010-38, § 1, 7-13-10)

Sec. 2.72. Permit Conditions.

Significant Industrial User Discharge Permits shall specify the following:

(1) Statement of duration (not more than five (5) years) including issuance and expiration dates;

(2) Effluent limitations based on the more stringent of Categorical Pretreatment Standards, BMPs, or local limits as established by this Chapter and State law;

(3) General and specific discharge prohibitions as established by Sections 2.66 and 2.67 of this Ordinance;

(4) Requirements and specifications for monitoring programs including sampling locations, frequency of sampling, number, types and standards for tests and reporting schedule;

(5) Requirements for collecting, retaining and providing access to plant records relating to the User's discharge and for providing entry for sampling and inspection;

(6) Requirements for notification of spills, bypass or potential problems to the POTW including slug loadings, upsets or violations;

(7) Requirements to develop and implement spill and slug control plans;

(8) Requirements for notification and approval of changes prior to discharge. The POTW shall be notified of any proposed substantial change in the volume or character of pollutants in their discharge, including the listed or characteristic hazardous wastes for which the Industrial User has submitted initial notification under 40 CFR 403.12(p) and Rule 323.2310(15) of the Michigan Administrative Code and operational shift changes of greater than four (4) hours;

(9) Special conditions as the City Manager may reasonably require under particular circumstances of a given discharge to ensure compliance with this Chapter and State and Federal pretreatment standards and requirements;

(10) Statement of applicable civil and criminal penalties for violation of pretreatment standards and requirements;

(11) Statement of non-transferability;

(12) Conditions for modification or revocation of permit;

(13) Schedule of fees and charges;

(14) Limits on the average and maximum wastewater constituents and characteristics, including BMP: based on applicable pretreatment standards or local limits;

(15) Limits on average and maximum rate and time of discharge and/or requirements for flow regulations and equalization;

(16) Requirements for installation and maintenance of inspection and sampling facilities;

(17) Compliance schedules;

(18) Requirements for submission of special technical reports, discharge reports or certification statements. These include any reporting requirements contained in a Federal Categorical Standard or Pretreatment Requirements.

(Ord. No. 2010-38, § 1, 7-13-10)

Sec. 2.73. Permits Duration.

All Discharge Permits shall be issued for up to five (5) years, subject to amendment or revocation as provided in this Chapter.

(Ord. No. 2010-38, § 1, 7-13-10)

Sec. 2.74. Permit Changes.

(1) Permit Transfer. Individual discharge permits may be transferred to a new owner or operator only if the permitee gives at least thirty (30) days advance notice to the City Manager and the City Manager approves the individual discharge permit transfer. The notice to the City Manager must include a written certification by the new owner or operator which:

(a) States that the new owner and/or operator have no immediate intent to change the facility's operations and processes;

(b) Identifies the specific date on which the transfer is to occur;

(c) Acknowledges full responsibility for complying with the existing individual wastewater discharge permit; and

(d) Includes all modifications.

Failure to provide advance notice of a transfer renders the individual wastewater discharge permit void as of the date of facility transfer.

(2) Permit Renewal/Reissuance. SIUs with an expiring wastewater discharge permit shall apply for a wastewater discharge permit reissuance by submitting a complete permit application, in accordance with Section 2.68 of this ordinance, a minimum of sixty (60) days prior to the expiration of the SIU's existing wastewater discharge permit.
(Ord. No. 2010-38, § 1, 7-13-10)

Sec. 2.75. Baseline Monitoring Report.

(1) Within one hundred eighty (180) days after the effective date of a Categorical Pretreatment Standard, or one hundred eighty (180) days after the final administrative decision made upon a category determination request, or ninety (90) days prior to the commencement of discharge in the case of a new source, the Industrial User shall submit a baseline monitoring report, in accordance with 40 CFR 403.12(b) and Rule 323.2310(2) MAC, for any discharge subject to Federal Categorical Pretreatment Standards and requirements signed by an authorized representative.

(2) Ninety (90) Day Report on Compliance with Federal Categorical Standards. Within ninety (90) days following the date for final compliance with applicable Federal Categorical Pretreatment Standards, or in the case of a new source following the commencement of the introduction of wastewater into the POTW, any discharger subject to Federal Categorical Pretreatment Standards and requirements shall submit a report in accordance with 40 CFR 403.12(d) and Rule 323.2310(3) MAC signed by an authorized representative.

(3) Significant Non-Categorical User Compliance Report. For dischargers who are not subject to Categorical Pretreatment Standards, but discharge or have the potential to discharge substances which could adversely affect the POTW's operation, or for violating any pretreatment standard or requirement, a report is to be submitted thirty (30) days following the commencement of discharge and every six (6) months thereafter to the City Manager. The report shall specify the nature and concentration of all prohibited or regulated substances contained in their discharge as set forth in 40 CFR 403.12(h) and Rule 323.2310(7) MAC and the average and maximum daily flow in gallons. The report shall state whether the requirements are being met on a consistent basis and, if additional pretreatment is necessary, to bring the discharge into compliance with the requirements. This statement shall be signed by an authorized representative, as set forth in 40 CFR 403.12(l) and Rule 323.2310(11) MAC, of the discharger and certified to by a Michigan licensed professional engineer.

(4) Hazardous Waste Notification.

(a) Any Industrial or Commercial User, except as specified in Part (e) below, who discharges any substance to the POTW which, if otherwise disposed of, would be a listed or characteristic hazardous waste under 40 CFR Part 261, shall notify the POTW, the EPA Regional Waste Management Division Director and the State hazardous waste authorities as set forth in 40 CFR 403.12(p) and Rule 323.2310(15) of the Michigan Administrative Code in writing of such discharge.

(b) All hazardous waste notifications shall include:

1. The name of the hazardous waste as set forth in 40 CFR, Part 261;
2. The EPA hazardous waste number;
3. The type of discharge (continuous, batch or other); and
4. A certification that the User has a program in place to reduce the volume and toxicity of hazardous wastes generated to the degree it has determined to be economically practical.

(c) In addition to the information submitted in Section 2.75(4)(b), the reports from Industrial and Commercial Users discharging more than one hundred (100) kilograms of hazardous waste per calendar month to the POTW shall contain the following information:

1. An identification of the hazardous constituents contained in the waste;

2. An estimation of the mass and concentration of such constituents in the waste stream discharged during that calendar month;

3. An estimation of the mass of constituents in the waste stream expected to be discharged during the following twelve (12) months.

(d) Hazardous waste notifications shall be submitted no later than thirty (30) days after the effective date of this Chapter or prior to the discharge of listed or characteristic hazardous waste for discharges commencing after the effective date of this Chapter, as required in Section 2.69. Any notification under this provision need be submitted only once for each hazardous waste discharged, although notifications of changed discharge must be submitted under Section 2.69 of this Chapter. This Section does not apply to pollutants already reported as part of a Significant Industrial User Discharge Permit self-monitoring requirement.

(e) Industrial and Commercial Users are exempt from the hazardous waste notification requirement when they discharge fifteen (15) kilograms or less of non-acute hazardous wastes per calendar month. Discharge of any quantity of acutely hazardous waste as specified in 40 CFR 261.30(d) and 261.33(e) requires a one (1) time notification.

(f) In the case of any new regulations under Section 3001 of Resource Conservation and Recovery Act identifying additional characteristics of hazardous waste, the Industrial User must notify the POTW, the EPA regional waste management division Director, and the State hazardous waste authorities of the discharge of such substance within ninety (90) days of the effective date of the regulations.

(Ord. No. 2010-38, § 1, 7-13-10)

Sec. 2.76. Periodic Compliance Reports.

(1) Reporting Requirements.

(a) Significant Industrial Users subject to Categorical Pretreatment Standards shall submit to the City Manager a report, as required in 40 CFR 403.12(e), indicating the nature and concentration of prohibited or regulated substances in the effluent. The reports shall be submitted for the six (6) month periods of January through June and July through December. Reports are due within thirty (30) days of the end of the reporting period. If the sampling performed indicates a violation, the User shall notify the City Manager immediately upon becoming aware of the violation. At a minimum, the SIU shall also repeat the sampling and analysis and submit the results of the repeat analysis to the City Manager within thirty (30) days after becoming aware of the violation. In cases where the Pretreatment Standard requires compliance with a best management practice or pollution prevention alternative, the User must submit documentation required by the City Manager or the Pretreatment Standard necessary to determine the compliance status of the SIU. In addition, this report shall include a record of all measured or estimated average and maximum daily flows which during the reporting period exceeded the average daily flow reported in Section 2.68(1)(e) hereof. Flows shall be reported on the basis of actual measurement provided, however, where cost or feasibility considerations justify, the City Manager may accept reports of average and maximum flows estimated by verifiable techniques. The City Manager, for good cause shown, considering such factors as local high or low flow rates, holidays, budget cycles, or other extenuating factors, may authorize the submission of said reports on months other than those specified above.

(b) SIU with discharges that are not subject to Federal Categorical Pretreatment Standards but are subject to local limits shall follow the same sampling and reporting requirements as in (a) above.

(2) Reports of permittees shall contain all results of sampling and analysis of the discharge, including the flow, nature, concentration, produc-

tion and/or mass, where required by the City Manager. Reports required by discharge permits will be accepted in an electronically submitted format only through an Environmental Protection Agency (EPA) approved Cross Media Electronic Reporting Regulation (CROMERR) system compliant with the Code of Federal Regulations Title 40, Part 3. CROMERR is an Environmental Protection Agency approved system allowing states, tribes, and local governments that receive or plan to begin receiving electronic documents in lieu of paper documents to satisfy regulations under an authorized program.
(Ord. No. 2010-38, § 1, 7-13-10; Ord. No. 2013-18, § 6, 4-30-13)

Sec. 2.77. Inspection, Sampling and Analysis.

(1) The City Manager may inspect the monitoring facilities of any discharger to determine compliance with the requirements of this Chapter. The discharger shall allow the City Manager to enter upon the premises of the discharger at all hours, for the purposes of inspection, sampling or records examination. The City Manager shall have the right to set up on the discharger's property such devices as are necessary to conduct sampling, inspection, compliance monitoring and/or metering operations and have access to examine and copy any records. All costs associated with this monitoring requirement shall be borne by the discharger.

(2) The reports required by Sections 2.75 and 2.76 of this Chapter shall be based on sampling and analysis performed in the period covered by the report and performed in accordance with the techniques described in 40 CFR Part 136 and amendments thereto or as specified in the applicable Categorical Pretreatment Standard.

(3) The frequency of monitoring shall be specified by the City Manager to assess compliance by Industrial and Commercial Users with applicable pretreatment standards and requirements in accordance with 40 CFR 403.12(g)(3) and Rule 323.2310(6)(d) MAC. Where EPA 40 CFR, Part 136 does not include a sampling or analytical technique for the pollutant in question, sampling and analysis shall be performed in accordance with the procedure set forth in the EPA publication, Sampling and Analysis Procedures for Screening of Industrial Effluents for Priority Pollutants, April, 1977, and amendments thereto or with any other sampling and analytical procedures approved by the Administrator of the EPA. Where the POTW performs all the required sampling and analyses and collects all the information required for the reports required in Sections 2.75 and 2.76 of this Chapter, the SIU will not be required to submit the report.

(4) If sampling performed by an SIU indicates a violation, the User shall notify the City Manager within twenty-four (24) hours of becoming aware of the violation. At a minimum, the User is required to resample and analyze within thirty (30) days of becoming aware of the violation. The City Manager may, with the issuance of a modified permit, require more frequent sampling and analysis. Re-sampling by the SIU is not required if the City performs sampling at the User's facility between the time when the initial sampling was conducted and the time when the SIU or City receives the results of this sampling, or if the City has performed the sampling and analysis in lieu of the SIU.

(5) If an SIU, subject to the reporting requirement in Sections 2.75 and 2.76, monitors any pollutant more frequently than required by the POTW, using the procedures prescribed in this Section, the results of this monitoring shall be included in the report.

(6) The reports required by Sections 2.75 and 2.76 of this Chapter shall include the following certification statement:

> "I certify under penalty of the law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information submitted, it is, to the best of my knowledge and belief, true, accurate and complete. I am aware that there are significant penalties for submitting false

information, including the possibility of penalty and imprisonment for knowing violations."

(a) Signatory requirements for Industrial User reports - The reports required by Section 2.75 and 2.76 of this Chapter shall include the certification statement as set forth in Section 2.77(6), and shall be signed as follows:

1. By a responsible corporate officer, if the Industrial User submitting the reports required by Section 2.75 and 2.76 of this Chapter is a corporation. For the purpose of this paragraph, a responsible corporate officer means:
   (i) A president, secretary, treasurer, or vice-president of the corporation in charge of a principal business function, or any other person who performs similar policy- or decision-making functions for the corporation, or
   (ii) The manager of one or more manufacturing, production, or operating facilities, provided, the manager is authorized to make management decisions which govern the operation of the regulated facility including having the explicit or implicit duty of making major capital investment recommendations, and initiate and direct other comprehensive measures to assure long-term environmental compliance with environmental laws and regulations; can ensure that the necessary systems are established or actions taken to gather complete and accurate information for control mechanism requirements; and where authority to sign documents has been assigned or delegated to the manager in accordance with corporate procedures.
2. By a general partner or proprietor if the Industrial User submitting the reports required by Section 2.75 and 2.76 of this Chapter is a partnership, or sole proprietorship respectively.
3. By a duly authorized representative of the individual designated in paragraph (a)1. or (a)2. of this section if:
   (i) The authorization is made in writing by the individual described in paragraph (a)1. or (a)2.;
   (ii) The authorization specifies either an individual or a position having responsibility for the overall operation of the facility from which the Industrial Discharge originates, such as the position of plant manager, operator of a well, or well field superintendent, or a position of equivalent responsibility, or having overall responsibility for environmental matters for the company; and
   (iii) The written authorization is submitted to the City Manager.
4. If an authorization under paragraph (a)3. of this section is no longer accurate because a different individual or position has responsibility for the overall operation of the facility, or overall responsibility for environmental matters for the company, a new authorization satisfying the requirements of paragraph (a)3. of this section must be submitted to the City Manager prior to or together with any reports to be signed by an authorized representative.

(Ord. No. 2010-38, § 1, 7-13-10)

Sec. 2.78. Monitoring Facilities.

(1) When deemed necessary by the City Manager, each discharger shall provide and operate, at the discharger's own expense, a monitoring facility to allow inspection, representative sampling and flow measurement of each discharge to the POTW. Sampling requirement shall be flow proportional unless time proportional composite

sampling is authorized by the Control Authority. Each monitoring facility shall be situated on the discharger's premises, except where such a location would be impractical or cause undue hardship on the discharger, the City Manager may concur with the facility being constructed in the public right-of-way providing that the facility is located so that it will not be obstructed by landscaping or parked vehicles. Upon appropriate notice by the City Manager for monitoring facilities, a compliance schedule may be issued as a permit condition.

(2) There shall be ample room in or near such sampling facilities to allow accurate sampling and preparation of samples for analysis. The facility, sampling and measuring equipment shall be maintained at all times in a safe and proper operating condition, at the expense of the discharger.

(3) All required monitoring facilities shall be constructed and maintained in accordance with all applicable local construction standards and specifications (non-permitted confined space structure where feasible).
(Ord. No. 2010-38, § 1, 7-13-10; Ord. No. 2013-18, § 7, 4-30-13)

Sec. 2.79. Confidential Information.

(1) Information and data furnished to the City Manager with respect to the nature and frequency of discharge shall be available to the public or other governmental agencies without restriction. Wastewater constituents and characteristics will not be recognized as confidential information. When requested by a discharger furnishing a report, the portions of a report which may disclose trade secrets or secret processes shall not be made available for inspection by the public unless required by law, but shall be made available upon written request to governmental agencies for uses related to this Chapter, the NPDES Permit, and/or the pretreatment programs; provided, however, that such portions of a report shall be available for use by the State or any State agency in judicial review or enforcement proceedings involving the discharger furnishing the report.

(2) Where a discharger has mass based limits as allowed by Federal Categorical Pretreatment Standards on a production basis, the production data necessary to determine compliance shall also be available to the public. Where application of the combined waste stream formula is necessary to apply Federal Categorical Pretreatment Standards to a discharger, the flow measurements and other data used in the calculation shall be available to the public.
(Ord. No. 2010-38, § 1, 7-13-10; Ord. No. 2013-18, § 8, 4-30-13)

ARTICLE 5. ENFORCEMENT, VIOLATIONS, PENALTIES AND LIABILITIES

Sec. 2.80. Enforcement.

Any discharger who is found to have violated an order of the City Manager, or who has failed to comply with any provision of this Chapter (or permits issued hereunder), and the regulations or rules of the City, promulgated pursuant to this Chapter, shall be guilty of a violation of the City Code. Whenever the City Manager finds that any User has violated, or is violating, this Chapter, a Significant Industrial User Discharge Permit or order issued hereunder, or any other pretreatment requirement, the City Manager may serve upon said User a written Notice of Violation. Within ten (10) days of the receipt of this notice, an explanation of the violation and a plan for satisfactory correction and prevention thereof, to include specific required actions, shall be submitted by the User to the City Manager. Submission of this plan in no way relieves the User of liability for any violation occurring before or after receipt of the Notice of Violation. Nothing in this Section shall limit the authority of the City to take any action, including emergency actions or any other enforcement action, without first issuing a Notice of Violation.
(Ord. No. 2010-38, § 1, 7-13-10)

Sec. 2.81. Recovery of Costs Incurred by the City.

Any discharger violating any of the provisions of this Chapter, or who discharges or causes a

discharge producing a deposit or obstruction, or causes damage to or impairs the City's POTW, shall be liable to the City for any expense, loss or damage caused by such violation or discharge. This shall include, but not be limited to, penalties levied upon the City by the EPA or the Michigan Department of Environmental Quality (MDEQ) for violation of its NPDES Permit caused by any violation by a discharger, including all actual costs, court, attorney and other related legal fees plus an additional charge of one hundred (100) percent of the total costs and/or penalties.
(Ord. No. 2010-38, § 1, 7-13-10; Ord. No. 2013-31, § 4, 7-23-13)

Sec. 2.82. Falsifying Information.

Any person or entity who knowingly makes any false statement, representation or certification in any application, record, report, plan or other document filed or required to be maintained pursuant to this Chapter, or who falsifies, tampers with, or knowingly renders inaccurate any monitoring device or method required under this Chapter, shall, upon conviction, be punished as provided for in Section 2.90 of this Chapter.
(Ord. No. 2010-38, § 1, 7-13-10)

Sec. 2.83. Emergency Suspension of Service and Discharge Permits.

The City Manager may for good cause shown, suspend the sewage disposal system service and/or the Discharge Permit of a discharger when it appears that an actual or impending discharge presents or threatens an imminent or substantial danger to the health or welfare of persons or the environment, interferes with the operation of the POTW, violates any pretreatment limits or conditions imposed by this Chapter or any Discharge Permit issued pursuant to this Chapter. Any discharger notified of the suspension of sewage disposal system service and/or the discharger's Discharge Permit, shall cease all discharges immediately upon notification or as directed by the City Manager. In the event of failure of the discharger to comply voluntarily with the suspension order within the specified time, the City Manager may take whatever steps are deemed necessary to eliminate the discharge, including cessation of City water service and/or shall commence judicial proceedings for injunctive relief immediately thereafter to compel the discharger's compliance with such order. The City Manager may reinstate the Discharge Permit and/or sewage disposal system service and terminate judicial proceeding upon presentation of proof by the discharger of the elimination of the non-complying discharge or conditions creating the threat of imminent or substantial danger as set forth above.
(Ord. No. 2010-38, § 1, 7-13-10; Ord. No. 2013-18, § 9, 4-30-13)

Sec. 2.84. City Manager's Authority to Issue Administrative Orders.

Whenever the City Manager determines that any discharger has violated this Chapter, or any other applicable laws or regulations which the City is authorized to enforce, the City Manager may issue administrative orders of the type listed below, as deemed appropriate under the circumstances. Multiple orders may be issued simultaneously or in combination as a single order with respect to a single discharger.

(1) *Cease and Desist Order.* A cease and desist order directs the non-complying User to cease illegal or unauthorized discharges immediately or to terminate its discharge altogether. Any person who uses, applied for use and/or is connected to the POTW under this Chapter shall be deemed to have consented to inspection pursuant to this Section, including entrance upon that person's property by the City Manager to take such steps as are necessary to eliminate the discharge should the discharger fail to comply with such order. Such order shall be final and in effect until a hearing, if requested by the User, is conducted and a final decision is made by the City Manager. A written request for such hearing shall be made within ten (10) calendar days after receiving the order.

(2) *Consent Order.* An agreement between the City Manager and the User which may contain compliance schedules, requirements for reimbursement of the City for damages and costs incurred or remedial actions, fines and administrative penalties and signatures of the City Manager

and the authorized representative. A consent order shall address every identified and potential deficiency in the User's compliance status at the time of the order.

(3) *Show Cause Order.* Where the violation is not corrected by timely compliance, the City Manager may order any discharger who causes or allows prohibited conduct, to show cause before the City Manager why a proposed permit revocation action should not be taken. A written notice shall be served on the discharger by personal service, or by certified mail, return receipt requested, specifying the time and place of a hearing to be held by the City Manager regarding the violations, the reasons why the enforcement action is to be taken, the proposed enforcement action and directing the discharger to show cause before the City Manager why the proposed enforcement action should not be taken. The notice of the hearing shall be served no less than ten (10) days before the hearing. Service may be made on any agent, officer or authorized representative of the discharger. The proceedings at the hearing shall be considered by the City Manager who shall then enter appropriate orders with respect to the alleged improper activities of the discharger. Appeal of such order may be taken by the discharger in accordance with applicable State law.

(4) *Compliance Order.* A compliance order directs the discharger to achieve compliance by a date specified in the order. Compliance orders require Industrial Users to develop management practices, spill prevention programs and related POTW industrial pretreatment program requirements.

(5) *Stop Work Order.* Where there is work in progress that constitutes causes or is causing a violation of any provision of this Chapter, the City Manager may issue a Stop Work Order to prevent further violations or damage.

(6) *Administrative Fines,* as specified in Section 2.90 of this Chapter.

(Ord. No. 2010-38, § 1, 7-13-10)

Sec. 2.85. Publishing Non-Compliance List.

A list of all dischargers in significant noncompliance for the NPDES Industrial Pretreatment Program annual reporting period shall be published by the City in *The Grand Rapids Press* by the date specified in the City's NPDES permit.

(Ord. No. 2010-38, § 1, 7-13-10)

Sec. 2.86. City Manager's Authority to Require Financial Assurances.

Pursuant to the City Manager's authority to issue administrative orders, the City Manager may require a non-complying Industrial or Commercial User to post a performance bond sufficient to cover expenses which might reasonably be incurred as a result of future violations. Industrial or Commercial Users who have, in the prior two (2) years, been responsible for causing an upset at the POTW, may be required to obtain liability insurance sufficient to cover the reasonable costs of restoring the POTW in the event of another such incident. These requirements may be made conditions of the Significant Industrial User Discharge Permit.

(Ord. No. 2010-38, § 1, 7-13-10)

Sec. 2.87. Judicial Proceedings.

Following the entry of any order by the City Manager with respect to the conduct of a discharger contrary to the provision of this Chapter, the attorney for the City or his/her designee may, following the authorization of such actions by the City Manager, commence a civil infraction or criminal action for appropriate legal and/or equitable relief in the court of competent jurisdiction. Such relief may include, but is not limited to, the following: injunctive relief against an Industrial User for failure to comply with pretreatment standards and requirements; suit for damages and costs to the City including legal expense; municipal civil infraction actions and criminal prosecution seeking fines and imprisonment as permitted by Section 2.90 of this Chapter and State law.

(Ord. No. 2010-38, § 1, 7-13-10)

Sec. 2.88. Right of Appeal.

Any discharger shall have the right to request, in writing, an interpretation or ruling by the City Manager on any matter covered by this Chapter and shall be entitled to a prompt written reply. (Ord. No. 2010-38, § 1, 7-13-10)

Sec. 2.89. Operating Upsets.

(1) Any discharger experiencing an upset in operations which places the discharger in a temporary state of noncompliance with this Chapter, or a Discharge Permit issued pursuant hereto, shall inform the City Manager immediately upon becoming aware of the upset. The City Manager shall make a determination whether this discharge can continue. Upon the City Manager allowing the discharge to continue, a written follow-up report thereof shall be filed by the discharger with the City Manager within five (5) days. The report shall include:

(a) A description of the upset, the cause thereof and the upset's impact on a discharger's compliance status;

(b) The duration of noncompliance, including exact dates and time of noncompliance, and if noncompliance continues, the time by which compliance is reasonably expected to occur; and

(c) All steps taken, or to be taken, to reduce, eliminate and prevent recurrence of such upset or other conditions of noncompliance.

(2) A documented and verified operating upset shall be an affirmative defense to any enforcement action brought by the City Manager against a discharger for any noncompliance with this Chapter or any Discharge Permit issued pursuant hereto, which arises out of violations alleged to have occurred during the period of the upset. It will not, however, be a defense to an action for damages to the POTW or to persons, property or natural resources caused by the upset. An upset will be considered "documented and bona fide" only if the discharger complies with Section 2.89(1) and with 40 CFR 403.16(c) and Rule 323.2315 of the MAC. In any enforcement proceeding the User seeking to establish the occurrence of an upset shall have the burden of proof.

(3) The User shall have controlled production of all discharges to the extent necessary to maintain compliance with pretreatment standards upon reduction, loss or failure of its treatment facility, until the facility is restored or an alternative method of treatment is provided. This requirement applies in the situation where, among other things, the primary source of power of the treatment facility is reduced, lost or fails.

(4) Conditions necessary for the demonstration of a bona fide upset - A User who wishes to establish the affirmative defense of an operating upset shall demonstrate through properly signed, contemporaneous operating logs or other relevant evidence that:

(a) An upset occurred and the User can identify the cause of the upset;

(b) The facility was, at the time, being operated in a prudent and appropriate manner and in compliance with applicable operation and maintenance procedures;

(c) The User notified the City Manager immediately upon becoming aware of the upset; and

(d) A written submission, containing the following information, was provided within five (5) days of commencement of the upset:

1. A description of the discharge and cause of noncompliance;

2. The period of noncompliance, including exact dates and times or, if not corrected, the anticipated time the noncompliance was expected to continue; and

3. Steps taken to reduce, eliminate and prevent recurrence of the noncompliance.

(Ord. No. 2010-38, § 1, 7-13-10)

ARTICLE 6. PENALTIES

Sec. 2.90. Criminal and Civil Liability.

(1) Any person in violation of this Chapter, or of any permit issued pursuant hereto, or standards, rules and regulations, any order of the City Manager issued pursuant to those rules and regulations or this Chapter, shall be: (a) subject to the municipal civil infractions provisions of Chapter 170 of the City Code, which the City Manager is authorized to enforce citations pursuant thereto; and (b) for such violations not covered by the civil infractions provisions of Chapter 170 of the City Code, shall, if convicted, be subject to a criminal penalty of up to five hundred (500) dollars per day or imprisonment for ninety (90) days or both such penalty and imprisonment. Each act of violation and every day upon which any violation is permitted or suffered to exist, shall constitute a separate violation and shall be subject to a separate penalty. The City Manager may issue a notice of violation calling for corrective action prior to issuing a citation pursuant to Chapter 170 of the Code. In the case of a conviction pursuant to this Section of a discharger who is not a natural person, any officer or director of a corporation, any officer or partner of a partnership, or any member of a limited liability company, or any officer or owner of a proprietorship is hereby deemed to be a proper person to serve any term of imprisonment imposed by the court as a result of the conviction.

(2) In addition to, and expressly not in lieu of the foregoing, any discharger who violates this Chapter, or any permit issued pursuant hereto, or the standards, rules and regulations adopted pursuant to this Chapter, or any order of the City Manager issued pursuant to this Chapter, shall be subject to civil penalties, and to the payment of any damages and costs which may be awarded, by any court of competent jurisdiction.

(3) In addition to any applicable State and Federal penalties, any person who:

(a) At the time of a violation knew or should have known that a pollutant or substance was discharged contrary to any provision of this Chapter, or contrary to any notice, order, permit, decision or determination promulgated, issued or made by the City Manager under this Chapter; or

(b) Intentionally makes a false statement, representation, or certification in an application for, or form pertaining to, a permit, or in a notice, report, or record required by this Chapter, or in any other correspondence or communication, written or oral, with the POTW regarding matters regulated by this Chapter; or

(c) Intentionally falsifies, tampers with, or renders inaccurate any sampling or monitoring device or record required to be maintained by this Chapter; or

(d) Commits any other act that is punishable under state law by imprisonment for more than ninety (90) days: shall, upon conviction, be guilty of a misdemeanor punishable by a fine of five hundred (500) dollars per violation, per day, or imprisonment for up to ninety (90) days, or both at the discretion of the court.

(Ord. No. 2010-38, § 1, 7-13-10)

ARTICLE 7. RECORD RETENTION

Sec. 2.91. Record Retention Requirement.

(1) Users subject to the reporting requirements of this ordinance shall retain, and make available for inspection and copying, all records of information obtained pursuant to any monitoring activities required by this ordinance, any additional records of information obtained pursuant to monitoring activities undertaken by the User independent of such requirements, and documentation associated with BMP established under Section 2.67(3e). Records shall include the date, exact place, method, and time of sampling, and the name of the person(s) taking the samples; the dates analyses were performed; who performed the analyses; the analytical techniques or methods used; and the results of such analyses. These records shall remain available for a period of at least three (3) years.

(2) Any and all records which pertain to matters which are the subject of a Notice of Violation, Administrative Order, Show Cause Hearing, or any other enforcement or litigation activities brought by the City pursuant to this Chapter, shall be retained and preserved for five (5) years, or until all enforcement activities have concluded and all periods of limitation with respect to any and all appeals have expired, whichever is later.
(Ord. No. 2010-38, § 1, 7-13-10)

ARTICLE 8. MISCELLANEOUS

Sec. 2.92. Removal Credits.

Where applicable, the City Manager may elect to initiate a program of removal credits as part of this Chapter to reflect the POTW's ability to remove pollutants in accordance with 40 CFR 403.7 and Rule 323.2313(a) of the MAC.
(Ord. No. 2010-38, § 1, 7-13-10)

Sec. 2.93. Net/Gross Calculations.

The City Manager may elect to adjust Categorical Pretreatment Standards to reflect the presence of pollutants in the discharger's intake water, in accordance with 40 CFR 403.15 and Rule 323.2313(c) of the MAC.
(Ord. No. 2010-38, § 1, 7-13-10)

ARTICLE 9. USER CHARGES

Sec. 2.94. Purpose and Establishment of Rates and Charges.

Rates and charges for the installation of, connection to and use of the POTW are hereby established for the purpose of recovering the cost of construction, reconstruction, maintenance, repair, operation and replacement of the System. Such rates and charges along with surcharges, permit fees and miscellaneous charges shall be established from time to time by resolution of the City Commission in accordance with the provisions hereinafter set forth. Rates and charges shall be made against all users of the System. The annual rate study conducted by the City and proposed changes in rates and charges and related fees, penalties and other miscellaneous charges along with explanatory materials shall be filed with the City Clerk at least twenty (20) days prior to the City Commission's consideration of an approval resolution for public review and comment. Notice of such filing and opportunity for review and comment shall be published in a newspaper of general circulation in the City and posted on the City's website at least twenty (20) days prior to consideration of the resolution by the City Commission.
(Ord. No. 2010-38, § 1, 7-13-10; Ord. No. 2015-64, § 1, 10-27-15)

Sec. 2.95. Local Collector Sewer Line Installation Charges.

(1) Whenever a local collector sewer line is constructed either through a special assessment project or as may be ordered or required by law, the property owners for whom the line is designed to serve shall each pay their share of the cost of installation. Similarly, any property owner requesting service who has not previously paid his or her share of the cost of constructing the local collector sewer shall pay those costs before service is permitted.

(2) The charge shall be established as provided in Section 2.94 and shall be known as the front foot rate and be determined by multiplying the rate per foot by the number of feet the property owner has fronting on the local collector sewer line from which the user will receive service. This charge will be annually reviewed and may change to reflect the current average cost of installation of local collector sewer lines.

(3) If the City Commission shall determine that it is not advisable to collect the front foot rate at the time of construction or connection (if not previously paid at the time of construction), it may direct that the cost be borne initially by the System and subsequently be collected from the property owner in accordance with this Section.

(4) Upon completion of construction or at the time connection is requested (if this cost has not been paid at the time of construction), the City Engineer shall certify to the City Comptroller the cost to be charged to the property owner. The

Comptroller shall in turn certify the amount thereof to the City Treasurer. The City Treasurer shall bill the owner of the premises affected advising him or her that unless the amount so billed is paid within thirty (30) days from the date of mailing that the same shall be presented to the City Commission at the first meeting thereof after the expiration of thirty (30) days for assessment against said premises as a special assessment. In the event the bill for such installation and connection is not paid within thirty (30) days from the date said notice is mailed, the City Treasurer shall report the same to the City Commission which shall examine the same and if found by it to be correct shall confirm it as a special assessment against the premises affected, at which time the City Commission shall also direct the number of installments into which the same shall be divided, and shall direct the City Assessor to extend the same upon the tax roll as a special assessment in the manner provided in Chapter 10 of this Code. All collection procedures for special assessments established in Chapter 10 of this Code shall be applicable to assessments made hereunder.

(5) In lieu of the procedure above described, such costs may be made at the expense of the System when the owner of the premises signs a written agreement agreeing to pay the cost upon terms agreeable to the City Manager and that the unpaid balance shall constitute a lien upon his or her property of the same character and subject to the same methods of collection as prescribed for special assessments in Chapter 10 of this Code.

(Ord. No. 2010-38, § 1, 7-13-10; Ord. No. 2010-73, § 1, 12-21-10; Ord. No. 2011-59, § 1, 12-20-11; Ord. No. 2012-64, § 1, 12-18-12; Ord. No. 2013-87, § 1, 12-17-13; Ord. No. 2014-88, § 1, 12-16-14; Ord. No. 2015-64, § 2, 10-27-15)

Sec. 2.96. Integrated Sewer Connection Fee Schedule.

(1) When a property owner or user is requested or required to connect to the System and has not previously paid or been assessed a connection fee, a connection fee in accordance with a connection fee schedule established as provided in Section 2.94 shall apply.

(2) Except as otherwise provided in the immediately succeeding paragraph, the foregoing integrated sewer connection base fee schedule for single-family and multi-family residential dwelling units shall be adjusted upward and downward as follows: A single-family residential dwelling unit located on a parcel containing twenty thousand (20,000) square feet shall pay the applicable integrated connection fee in accordance with the foregoing schedule. When determining the square footage of a residential parcel for the purposes of determining the appropriate integrated connection fee, parcel size may be adjusted downward to take into consideration such things as wetlands, lakes, streams and other unusual characteristics of the parcel in accordance with policies approved from time to time by the Utility Advisory Board. To the extent the size of a parcel, as adjusted, is greater than or less than twenty thousand (20,000) square feet, one-half (½) the applicable integrated connection fee will increase or decrease by the same percentage increase or decrease in the parcel above or below twenty thousand (20,000) square feet. In the case of multi-family residential dwellings, in order to determine the size of the parcel assigned to each dwelling unit for purposes of calculating the integrated connection fee to be paid by each multi-family residential dwelling unit, the total square footage of the parcel, as adjusted, on which the multi-family residential dwelling is located shall be divided by the total number of residential units. Notwithstanding any other provision in this subsection, the integrated connection fee for a single-family residential dwelling unit or multi-family residential dwelling unit shall not exceed four and one-half (4½) times the applicable base integrated connection fee set forth in foregoing schedule.

There shall be no upward adjustment in the integrated sewer service connection fee payable for a single-family residential dwelling unit connecting to the Sewer System if (a) each of the following conditions are met (1) a building permit shall have been obtained, (2) the dwelling unit shall have been constructed, and (3) a certificate of occupancy shall have been issued prior to January 1, 2000 or (b) local building permit fees

have been paid to the local governmental unit prior to January 1, 2000 for a single-family residential dwelling unit to be constructed on or after January 1, 2000. When connecting to the Sewer System, Users living in or owning such single-family residential dwelling units shall pay the applicable base integrated connection fee set forth in the Integrated Sewer Connection Base Fee Schedule adjusted downward, if applicable, in accordance with the immediate preceding paragraph.

Effective January 1, 2005 and January 1st of every year thereafter, the Integrated Sewer Connection Base Fees shall be adjusted by a percentage, which is determined by the annual change in the Consumer Price Index (the "Index") calculated as follows:

(a) The Consumer Price Index shall be that Index referred to as the Consumer Price Index, US City Average, All Urban Consumers, published by the U.S. Department of Labor-Bureau of Statistics ((1982-84)=100). In the event the method of determining the Index is substantially altered, the basis for determining the annual change thereafter shall be the Index which is most comparable to the Index described above.

(b) For the purpose of computing the percentage change each calendar year, the Index for the month of August for the prior calendar year shall be subtracted from the Index for the immediately preceding August. The result so obtained (if positive) shall be divided by the Index for the month of August for the prior calendar year to obtain the percentage increase which shall be applied to the then current Integrated Sewer Connection Base Fee Schedule to determine the new calendar year schedule.

The foregoing Integrated Connection Fee is due and payable at the time a User receives a permit to connect to the Sewer System. A permit issued by the City to connect to the Sewer System shall expire one hundred eighty (180) days from the date the permit was issued.

The user receiving services who applies for a larger water meter than the one presently in service shall pay an Integrated Connection Fee which is the difference in cost between the meter size in service and the one applied for in accordance with the Integrated Connection Fee in effect at the time of application. No credit or rebate shall be made in the case of application for a smaller meter size.
(Ord. No. 2010-38, § 1, 7-13-10; Ord. No. 2010-73, § 2, 12-21-10; Ord. No. 2011-59, § 2, 12-20-11; Ord. No. 2012-64, § 2, 12-18-12; Ord. No. 2013-87, § 2, 12-17-13; Ord. No. 2014-88, § 2, 12-16-14; Ord. No. 2015-64, § 3, 10-27-15)

Sec. 2.97. Use Charges.

Rates and charges for sewage disposal service furnished by the System shall be charged to all persons or entities within or without the City limits using the System. Such charges shall reflect the proportionate costs of providing the service within the City limits. For those Users of the System outside the City limits, charges shall be based on the proportionate actually incurred costs to provide service to the Users within the governmental unit in which they reside. Each unit of government customer class in which Users receive treatment services from the System shall adopt a system of User charges in accordance with the EPA regulations and shall incorporate such User charge system in their appropriate Ordinances or resolutions.
(Ord. No. 2010-38, § 1, 7-13-10)

Sec. 2.98. User Classes.

For the purposes of determining User charges, three User classes are established: Domestic, Commercial and Industrial.
(Ord. No. 2010-38, § 1, 7-13-10)

Sec. 2.99. Determination of User Charges.

The charges herein established shall be based upon the water consumption of the User's premises, including water from public and private supplies, as determined by this Chapter and the standards, rules and regulations promulgated pursuant hereto, or at the election of the User upon the actual amount of sewage discharge into

the System. However, a monthly service charge shall be based upon the size of the water meter and as determined by this Chapter.
(Ord. No. 2010-38, § 1, 7-13-10)

ARTICLE 10. RATES AND CHARGES

Sec. 2.100. Applicability.

(1) Users of the System complying with the provisions of this Chapter shall pay rates and charges established as provided in Section 2.94. Such rates and charges shall be designed to produce revenues which are proportionate to the cost of providing service to each User class of each customer class. Such cost shall include, but not be limited to, operation, maintenance, replacement, depreciation and a reasonable rate of return of the System's investment. Any bulk User of the System must establish a similar schedule of rates and charges to assure that its individual Users are paying proportionate share of the cost of providing service in conformance with EPA regulations.

(2) A surcharge shall also be imposed on those Users who exceed normal BOD, TSS, phosphorus and ammonia concentrations established as provided herein.
(Ord. No. 2010-38, § 1, 7-13-10; Ord. No. 2013-31, § 5, 7-23-13; Ord. No. 2015-64, § 4, 10-27-15)

Sec. 2.101. Rates and Charges for Retail Users Within the City of Grand Rapids.

The rates and charges for sewage disposal service shall apply for users within the City and shall be established pursuant to Section 2.94.
(Ord. No. 2010-38, § 1, 7-13-10; Ord. No. 2010-73, § 3, 12-21-10; Ord. No. 2011-59, § 3, 12-20-11; Ord. No. 2012-64, § 3, 12-18-12; Ord. No. 2013-87, § 3, 12-17-13; Ord. No. 2014-88, § 3, 12-16-14; Ord. No. 2015-4, § 5, 10-27-15)

Sec. 2.102. Surcharges and Permit Fees.

(1) If the City Manager determines that a discharge will not cause pass through or interference as defined in this Chapter, industrial or commercial users whether they are located within a retail service area or a bulk service area shall be charged a surcharge if the concentration of their discharge exceeds a five-day BOD of two hundred fifty (250) mg/l, and/or TSS of two hundred fifty (250) mg/l, or any phosphorus of fifteen (15) mg/l. That charge shall be as established pursuant to Section 2.94. In addition, all industrial or commercial users shall be charged a surcharge for ammonia concentrations exceeding thirty-eight (38) mg/l. The charge shall be as established pursuant to Section 2.94. Discharge concentrations of these substances and the resulting surcharge shall be based on at least three (3) composite samples per quarter. This sampling shall be performed by either the City or the industrial user as determined by the City Manager.

(2) The fee for a Significant Industrial User Discharge Permit as provided for in Section 2.70 of this Chapter whether they are located within a retail service area or a bulk service area shall be as established pursuant to Section 2.94 and an analytical fee based upon Section 2.102(3).

(3) A schedule of charges as established pursuant to Section 2.94 shall apply to any analysis which may be required as a part of a Significant Industrial User Discharge Permit.

(4) These charges will be reviewed annually and may change to reflect the current cost of providing these services.
(Ord. No. 2010-38, § 1, 7-13-10; Ord. No. 2010-73, § 4, 12-21-10; Ord. No. 2011-59, § 4, 12-20-11; Ord. No. 2012-64, § 4, 12-18-12; Ord. No. 2013-18, § 10, 4-30-13; Ord. No. 2013-31, § 6, 7-23-13; Ord. No. 2013-87, § 4, 12-17-13; Ord. No. 2014-88, § 4, 12-16-14; Ord. No. 2015-4, § 6, 10-27-15)

Sec. 2.102.1. Miscellaneous Charges.

(1) Sewer Lateral Charges shall be as established pursuant to Section 2.94.

(2) Sewer Oversizing Rates shall be as established pursuant to Section 2.94.

(3) Footing Drain Disconnect Opt Out Charge shall be as established pursuant to Section 2.94.
(Ord. No. 2012-64, § 5, 12-18-12; Ord. No. 2013-87, § 5, 12-17-13; Ord. No. 2014-88, § 5, 12-16-14; Ord. No. 2015-64, § 7, 10-27-15)

Sec. 2.103. Review of Rates and Charges.

Annually, after the close of the fiscal year and prior to the adoption of the System's budget, there shall be a review of rates and charges. Upon completion of the review, a report shall be prepared and presented to the City Commission summarizing the review and recommending rates and charges which assure that all the costs of the System will be recovered from customer and User classes proportionately to the cost of providing service to them.
(Ord. No. 2010-38, § 1, 7-13-10)

Sec. 2.104. Enforcement.

Delinquent bills shall be collected as provided for in Section 2.107 of this Chapter.
(Ord. No. 2010-38, § 1, 7-13-10)

Sec. 2.105. Effective Date.

This Ordinance shall take immediate effect, however, the rates, charges, fees, penalties, and miscellaneous charges and other established amounts set forth in Sections 2.95(2), 2.96(1), 2.101, 2.102(1), (2) and (3), and 2.102.1(1), (2) and (3) effective prior to the effective date of this Ordinance shall remain in effect through December 31, 2015.
(Ord. No. 2010-38, § 1, 7-13-10; Ord. No. 2010-73, § 5, 12-21-10; Ord. No. 2011-59, § 5, 12-20-11; Ord. No. 2012-64, § 6, 12-18-12; Ord. No. 2013-87, § 6, 12-17-13; Ord. No. 2014-88, § 6, 12-16-14; Ord. No. 2015-4, § 8, 10-27-15)

ARTICLE 11. SEWER USE STANDARDS

Sec. 2.106. Sewer Service Applications and Notification.

(1) A User desiring to obtain sewer service shall make application on forms prescribed by the City. In the event that sewer service at premises is continuous through a change of ownership, the new owner must file a notification of change of ownership within ten (10) days. Failure to complete an application or notification may result in discontinuance of service.

(2) Whenever a condominium has a single sewer connection servicing the premises, the account shall be made in the name of the condominium association. Sewer service shall not be provided until the condominium association has filed with the Water Business Office written proof that it has the authority to enter into such an arrangement.
(Ord. No. 2010-38, § 1, 7-13-10)

Sec. 2.107. Billing Practice.

(1) The current Water System Rules and Regulations shall be utilized for billing practices.

(2) If any meter shall fail to register properly, or if a meter reader cannot obtain a meter reading at a premises on the regular reading date, a billing shall be sent based upon an estimate of former consumption of comparable quarters in preceding three (3) years.

(3) The total amount of the sewer charges shall be the amount of the bill. The Water Business Office shall assign due dates to be no less than fifteen (15) days from the date of mailing of the bill. There shall be no discount for early payment. In the event that the bill is not paid by the due date, a ten (10) percent penalty is added to the net amount and both become due and payable. All remittances by mail must be postmarked on or before the due date to entitle the User to pay only the net amount. When the due date falls on a legal holiday, Saturday or Sunday, the net amount will be accepted on the first business day following. Failure to receive a bill shall not entitle a customer to pay the net amount unless it can be shown from City records that the bill was not sent.

(4) If payment is not received within seven (7) days of the due date on the bill, a reminder notice shall be sent by first class mail to inform the User that the account is overdue.

(5) If payment is not received or satisfactory arrangements have not been made within thirty (30) days of the due date on the bill, a shut-off notice will be sent by first class mail to inform the User that failure to respond can result in termination of water service. This notice will also inform the User that if he/she has a question

regarding the bill he/she should contact the Water Business Office. If payment is not received or satisfactory arrangements have not been made within seven (7) days after the shut-off notice is sent to the User, the water/sewer service shall be shut off. No service that has been disconnected, due to non-payment, shall be restored until all past-due bills are paid or satisfactory arrangements for such payment are made at the Water Business Office.

(6) Whenever sewer service has been furnished to a premises and it is determined that: i) the Water Business Office has not rendered a bill for the service; and ii) the User has done everything normally required of him/her, a back-bill covering the period shall be sent to the User. However, the period covered by the back-bill shall not exceed three (3) years. If it is determined that the User has not done everything normally required of him/her, a back-bill shall be sent to the owner of the premises covering the period that service was rendered, but not to exceed six (6) years. The back-bill will include the monthly service charge at the rate in effect for the period covered plus the commodity rate times the estimated volume of sewage used based upon the best available data. In the absence of a City water meter, the sewer volume for domestic customers shall be the average usage per quarter for Domestic Users as determined by the annual rate study. In the absence of a City water meter, commercial and industrial customers shall be required to install metering devices pursuant to Section 2.111(5) of this Chapter, to accurately record waste discharge into the System. The amount of the back-bill will be computed by using the current meter readings for the comparable quarters.

(7) When a tenant is responsible for payment of bills and a lease has been executed containing a provision that the lessor is not liable for sewer charges, then it shall be the responsibility of the lessor to so notify the Water Business Office with an affidavit signed by both parties and thereby request a waiver of the lien privilege. The affidavit must state the pertinent provision of the lease and the expiration thereof. Upon receipt of such notification, the POTW will waive its lien privilege and sewer bills to the lessee within the term of the affidavit shall not be a lien against the

property. Upon expiration, a new affidavit must be submitted to retain the lien waiver. Without such notification, sewer bills will be a lien against the property served regardless of any lease provisions between the parties.

(8) Charges for sewage disposal service furnished to any premise within the City shall be made pursuant to City Code and/or statute. The lien remedy does not preclude any other remedy provided in law. Those premises outside the City that are served by the System that have delinquent bills will be certified to their governmental unit for collection as provided in the contract between the City and the governmental unit.

(9) When the Water Business Office has received and approved a request from the property owner for waiver of the lien privilege, then a cash deposit will be required of the lessee as security for payment of all sewer charges. Said cash deposit shall be equal to three (3) times the quarterly bill for sewer charges, but, in no case, less than the minimum deposit schedule as referred to in Appendix I of the Water Department Rules and Regulations.

(10) The Water Business Office shall refund a deposit and the accrued interest thereon upon satisfactory payment by the User on or before the due date of all proper charges for sewer service for a period of twelve (12) successive billing quarters. For these purposes a payment will be considered satisfactory if made prior to the issuance of any notice of discontinuation of service for non-payment. Users who have established credit by the satisfactory payment of sewer charges at one (1) premises shall not be required to make deposits at a subsequent premises unless the deposit at the subsequent premises would exceed the previous one by greater than one hundred (100) percent. A User who has been refunded his/her deposit shall be required to remake a security deposit in the event that his/her service is discontinued for non-payment. Upon termination of service, the deposit, with accrued interest, shall be credited to the final bill and the balance, if any, shall be promptly returned to the User.

(11) The Water Business Office will apply interest to the deposit accounts of all Users with security deposits. This interest shall be at the rate of six (6) percent per annum. Interest will be credited to the deposit account annually as of June 30 and said interest will be compounded annually. Accrued interest shall be paid at the time that the deposit is refunded. Accrued interest shall include all annual interest credits plus interest for the time period from the previous June 30 to the date of refund.
(Ord. No. 2010-38, § 1, 7-13-10; Ord. No. 2013-18, § 11, 4-30-13; Ord. No. 2013-31, § 7, 7-23-13)

Sec. 2.108. Sewer Lines.

(1) Over sizing shall mean the enlargement of a local collector sewer so that the enlargement will serve as a trunk or interceptor sewer. When the System requires a local collector sewer line to be oversized, it will pay the cost of such over sizing as computed in the following manner:

(a) In a residential assessment district or a new residential plot, the over sizing share is the material difference in cost of the oversized sewer;

(b) In a commercial, industrial or high density residential development assessment district, the over sizing share is the material difference in the cost of the oversized sewer;

(c) In cases where the larger than normal size sewer line is required solely to provide adequate service to a local service area and is not used as part of the larger network, then the entire cost of the enlargement will be treated in the same manner as a normal sized local collector line and the System will not participate in the over sizing cost.

(2) All extensions of the local collector sewer line are normally paid for by the affected Users through special assessment or front footage charges. However, the City Commission may authorize the extension of a local collector sewer line to serve an existing structure when the owner of the property requests sewer service because of failure of his/her present system causing an emergency situation and constituting a public health hazard. The

POTW, at its own expense, may extend the sewer line to serve said properties under the following conditions:

(a) The requesting property is within five hundred (500) feet of an existing local collector sewer line;

(b) As shown by a poll of the other properties affected by the proposed extension, a majority of the owners having front footage are opposed to the project;

(c) There is a reasonable expectation, as determined by the City Commission, that newly constructed or existing properties not presently desiring service will request such service in the foreseeable future.

(3) When an extension specified in Section 2.108(2) is made in the instances cited, the requesting property owner shall agree to pay the prevailing front footage rate and other applicable charges in the City Code at such time that the extension is made. When property owners connect who have not shared in the expense of the sewer line extension, they shall then pay the front footage and other applicable charges as provided in Section 2.95 of this Chapter.

(4) All new sewer lines shall conform to the City of Grand Rapids Standard Construction Specifications and shall be a minimum of eight (8) inches in diameter in most residential areas and a minimum of twelve (12) inches in diameter in commercial, industrial or high-density residential areas. The City Manager reserves the right to determine the minimum acceptable sewer lateral size in those cases where drainage problems exist. (Ord. No. 2010-38, § 1, 7-13-10)

Sec. 2.109. Sewer Laterals and Appurtenances.

(1) The property owner shall maintain, at his/her expense, the sewer lateral to insure continuous flow of sewage from the structure to the local collector, trunk or interceptor sewer, and shall be responsible for replacement of lateral sections existing between the structure and the property line or public easement boundary. The City shall be responsible only for the replacement of lateral sewers existing within the street right-of-way or public easement.

(2) Whenever a sewer lateral is to be extended into the premises, the plumber or contractor may obtain location measurements from the City. However, the City does not assume responsibility for the accuracy of such location measurements.

(3) Every structure with plumbing fixtures shall have an independent, owner-maintained building sewer lateral to the local collector sewer line when the System is available. There shall not be more than one (1) structure served by a single sewer lateral connection, except with approval of the City Manager.

(4) When a structure is to be demolished, satisfactory arrangements shall be made with the City to disconnect and seal the sewer lateral at the property line or at the point designated by the City. The lateral disconnection shall be inspected by the City prior to sealing. Failure to make arrangements for inspection and the proper termination of the connection shall cause the City Manager to order excavation of the lateral for the required inspection with all associated costs to be assessed against the bond required by the demolition permit as provided for in the City Code.

(5) Roof drains shall not be connected to the System. The City Manager shall order the immediate disconnection of all such connections. The owner of the premises shall be responsible for any and all costs associated with these disconnections and all costs including, but not limited to, legal and inspection service required to enforce provisions of this Chapter. Each day the owner fails to comply with such order shall constitute a separate violation of this Section. Roof drains not disconnected shall be subject to the same monthly charge as footing drains except the Dry Weather Flow (DWF) and Wet Weather Flows (WWF) shall be calculated on an individual basis. The calculation shall be the roof area in square feet multiplied by the normal rainfall (3.2 ft) multiplied by 7.48 gals/cu ft to determine the gallons per year.

(6) Footing drains shall not be connected to the System on any structure built after 1968. The City Manager shall order the immediate discon-

nection of such connections. The owner of the premises shall be responsible for any and all costs associated with these disconnections and all costs including, but not limited to, legal and inspection service required to enforce provisions of this Chapter. Each day the owner fails to comply with such order shall constitute a separate violation of this Section.

(7) Basement waterproofing systems shall not be connected into the System or discharged in such a manner as to cause a public or private nuisance. Prior to installation of a basement waterproofing system the property owner, or the owner's contractor, must obtain a permit from the City. The waterproofing system must be inspected and approved by the City prior to putting the system into operation. Given due cause, the City Manager may order the owner to discontinue the discharge of water from a basement waterproofing system. Each day the owner fails to comply with such order shall constitute a separate violation of this Section.

(8) Disposal of garbage into the POTW shall be permitted only after it has been pulverized by an installed food-waste-grinder unit. Such units shall be installed in accordance with the current Plumbing Code, adopted by the City and enforced by the City.

(9) Storm Drains shall not be connected into the System or discharged in such a manner as to cause a public or private nuisance.
(Ord. No. 2010-38, § 1, 7-13-10; Ord. No. 2013-18, § 12, 4-30-13)

Sec. 2.110. Connection Permits.

Persons authorized shall obtain a permit for sewer lateral connection from the City in accordance with the Plumbing Code. Said permits shall be obtained before any such work may begin.
(Ord. No. 2010-38, § 1, 7-13-10)

Sec. 2.111. Sewer Connections.

(1) If at any time it is found that any sewer lateral connection has been installed contrary to or in violation of the City Code or rules or regulations governing such installation, the City Manager shall issue an order requiring compliance within thirty (30) days after notification. If compliance has not been obtained, including payment of all fees and charges, within thirty (30) days of the notice, the City Manager may authorize termination of City water/sewer service until the corrections are made. The owner or User will not have redress for any such charges occurring because of shut-off or termination. In addition, the violator may be subject to a municipal civil infraction action.

(2) Each new sewer lateral installation, or repair of an existing sewer lateral, shall be inspected and approved by the City prior to backfilling.

(3) If a piece of property that has an existing sewer lateral serving more than one (1) building is subdivided into separate lots or parcels, then the owner of the building that does not have direct sewer service must install his/her own sewer service across his/her property or on an easement and the original sewer lateral to the adjoining subdivided property must be disconnected. Any required easements shall be recorded by the Kent County Clerk.

(4) Whenever a new sewer lateral is installed or repaired by a contractor or plumber, it shall be guaranteed to be free from any defective material or poor workmanship, in the public right-of-way, for a period of one (1) year from the date of installation.

(5) Wastewater metering facilities may be installed by a User or as required by the City Manager to measure sewage discharge from the User's premises to the sanitary sewer. All such arrangements shall be made subject to acceptance by the City Manager and the expense thereof, including the installation, maintenance and operation, shall be borne by the User. Plans and specifications for the installation of any wastewater meter must be sealed by a Michigan licensed professional engineer and submitted to the City before actual installation begins. Such metering facilities shall meet the following criteria:

(a) A Michigan licensed professional engineer must develop installation plans. Drawings of the location of the primary measuring device and the meter, the location of the meter's data output(s) and specifi-

cations for the meter, including its manufacturer, model and logging frequency, must be included with the plans.

(b) A plan location map, which accurately shows where the primary measuring device, flow meter and flow meter totalizer are located in relation to the facility building and shall be submitted as part of the drawings.

(c) Meter reading provisions shall be convenient meter installation sites or any existing water meter reading location.

(d) Underground structure, and all associated piping, which contains the primary measuring device and the meter shall be installed in accordance with the Plumbing Code.

(e) If possible, the primary measuring device must be located in an open or non-permitted confined space. The recording device may not be located in a confined space.

(f) The meter must include a data logger capable of recording and displaying continuous flow data. The data must be inspected each business day, by the User, with documentation of the inspection in the form of the inspector's initials, date and time. All data records must be maintained for a minimum of three (3) years and be available for inspection by the City.

(g) The meter installation must be inspected and found to be acceptable by the City Manager before any data from the meter will be used for billing purposes.

(h) The User must maintain a meter service contract provided by the manufacturer or the manufacturer's approved representative. The meter shall be checked and calibrated quarterly, or as per manufacturer's recommendation, by the service provider. All calibration records must be maintained for a minimum of three (3) years and be available for inspection by the City.

(i) If failure of the meter occurs, the User must notify the City Manager within three (3) business days. Repairs to the meter, which are the responsibility of the owner, must be completed within five (5) business days. If repairs cannot be completed within five (5) business days, a timetable for completion of repairs must be submitted to the City Manager. If, as a result of failure, or suspected failure, the sewer meter readings are in dispute, the volume of water indicated by the City's water meter during the disputed time will be used as the wastewater volume.

(j) The City, at its discretion, must be allowed to inspect the meter and all records pertaining to the meter. At the City Manager's discretion, the acceptance of any wastewater metering device and/or data may be revoked.

(Ord. No. 2010-38, § 1, 7-13-10; Ord. No. 2013-18, § 13, 4-30-13)

ARTICLE 12. FOOTING DRAIN DISCONNECTION PROGRAM

Sec. 2.112. Purpose.

The purpose of the Footing Drain Disconnection (FDD) Program is to promote the public health, safety and welfare by (i) reducing improper stormwater inflow connections in a cost effective manner, (ii) reducing or eliminating instances of surcharged sanitary sewers caused by improper stormwater inflows, (iii) reducing the occurrence of sanitary sewer backups into occupied structures, and (iv) maximizing the efficient operation of the POTW. It is the further purpose of the FDD Program to assist the City in its compliance with its NPDES permit and related applicable laws, rules and regulations.

(Ord. No. 2010-51, § 1, 9-14-10)

Sec. 2.113. Definitions.

In addition to the definition of words and phrases in Section 2.62 of this Chapter which shall apply to this Article, for the purposes of this Article the following words and phrases shall

have the meanings ascribed to them by this Section unless the context in which they are used specifically indicates otherwise:

(1) *FDD (Footing Drain Disconnection)* - The elimination of the connection between a structure's foundation drains intended to collect groundwater and stormwater

around the structure's basement and which connects to the structure's sanitary sewer lead which discharges to the System. The disconnection requires an alternative means of discharging the collected groundwater and stormwater by (a) a sump, sump pump and discharge or (b) a surface discharge where such discharge can be accomplished by gravity without the potential for backup from surface flooding.

(2) *FDD Funding Cap* - The FDD Program reimbursement limitation established pursuant to Section 2.117 of this Article from time to time by resolution of the City Commission.

(3) *FDD Program* - The effort within the City to eliminate improper stormwater inflow connections from the System.

(4) *FDD Project Area* - The area or areas of the City designated from time to time for implementation of the FDD Program.

(5) *FDD Reimbursement* - The amount reimbursed to, or for the benefit of, a participating owner for the cost of removing improper stormwater inflow connections and related appurtenant work.

(6) *Improper Stormwater Inflow Connection* - A direct connection to the System of sump pumps, exterior floor drains, downspouts, foundation drains and other sources of stormwater inflow and groundwater, including, but not limited to, visible evidence of ground or surface water entering drains through structure doors or cracks in structure floors and walls.

(7) *Participating Property Owner* - A property owner within an FDD Project Area who has notified the City that it will participate in the FDD Program.

(Ord. No. 2010-51, § 1, 9-14-10)

Sec. 2.114. Determination of FDD Project Areas; Notification of Property Owners.

The City Manager, as defined in Section 2.62 of this Code, shall from time to time prioritize the areas in the City for implementation of the FDD Program based on the severity of System groundwater and stormwater inflow surcharge problems. Based on such prioritization, one or more FDD Project Areas shall be established from time to time by the City Manager for inclusion in the FDD Program. Each property owner within an FDD Project Area shall be (i) ordered by the City Manager to disconnect all improper stormwater inflow connections and (ii) notified of the ability to participate in the FDD Program. Participation in the FDD Program is voluntary, however, a property owner electing not to participate shall be subject to the charge provided for in Section 2.115 of this Article until the improper stormwater inflow connection(s) are disconnected.

(Ord. No. 2010-51, § 1, 9-14-10)

Sec. 2.115. Participation; Non-Participation; Charge.

After receiving an order from the City Manager to disconnect all improper stormwater inflow connections on its property, a property owner shall notify the City Manager whether it will be a participating property owner in the FDD Program. Whether or not the property owner elects to be a participating property owner, it shall have ninety (90) days to complete the disconnection of all improper stormwater inflow connections on its property. If the property owner fails to do so within such ninety (90) day period, the property owner or other person responsible for paying regular System rates and charges established pursuant to Article 10 of this Chapter shall be charged an additional amount determined by the City Manager to reasonably reflect the additional costs the System incurs or will incur as a result of the property continuing to have an improper stormwater inflow connection(s). Such costs shall be determined on an annualized basis and billed proportionally monthly for each month or partial month after the end of such ninety (90) day period that such improper stormwater inflow connection(s) continue to exist with respect to the property. Such charge shall be in the amount established from time to time by resolution of the City Commission and shall be billed and collected in the same manner as regular System rates and charges are billed and collected pursuant to Section 2.107 of this Chapter.

(Ord. No. 2010-51, § 1, 9-14-10)

Sec. 2.116. Scope of Work.

The City Manager shall determine, for each structure of a participating property owner in an FDD Project Area, the scope of work required for disconnection of improper stormwater inflow connections using the most cost efficient and timely methods. Subject to this Article, all or a portion of such costs shall be eligible for FDD reimbursement. If the scope of the work for a structure does not totally eliminate improper stormwater inflow, the City Manager may issue supplemental orders for additional work, the cost of which may, subject to the FDD funding cap, be eligible for FDD reimbursement.
(Ord. No. 2010-51, § 1, 9-14-10)

Sec. 2.117. FDD Reimbursement; FDD Funding Cap.

Subject to the limitations of the FDD funding cap, a participating property owner shall be entitled to reimbursement of the cost of qualifying work within the scope of work up to the FDD funding cap which amount may be paid to the participating property owner, to such owner's contractor or the participating property owner and contractor jointly. The FDD funding cap shall be established from time to time by resolution of the City Commission. Except as otherwise provided in Section 2.118 of this Article, all costs of qualifying work above the FDD funding cap shall be the responsibility of the participating property owner.
(Ord. No. 2010-51, § 1, 9-14-10)

Sec. 2.118. FDD Funding Cap Increase.

The City Manager may, upon submission of a request by a participating property owner or its contractor, increase the FDD funding cap for that participating property owner's cost of qualifying work where the City Manager determines that extraordinary conditions exist which will result in the incurrence of additional extraordinary costs. In order to have such request considered, it must be submitted prior to commencement of the qualifying work.
(Ord. No. 2010-51, § 1, 9-14-10)

Sec. 2.119. Approved Contractors.

The City Manager will establish and maintain a list of contractors or contractor teams approved for performance of work under the FDD Program based on such contractors' qualifications including similar experience, quality of work and the provision of insurance coverage. The City may require, in accordance with procedures promulgated by the City Manager, the licensing of contractors approved for performing work under the FDD Program.
(Ord. No. 2010-51, § 1, 9-14-10)

Sec. 2.120. Performance of Work by Contractor or Participating Property Owner.

(1) A participating property owner may (i) select a contractor from the City's approved list to perform the work or (ii) perform the work. If a participating property owner selects an approved contractor, the approved contractor shall submit the scope of the work and the estimated contract price to the City Manager for review. Upon completion of the review of the scope of work and approval of the estimated contract price, the contractor shall undertake the work pursuant to a contract with the participating property owner. The City shall not be a party to such contract and the contractor, prior to commencement of the work, shall obtain all required governmental approvals.

(2) If a participating property owner elects to perform the work, it shall submit the scope of the work and the estimated cost to the City Manager for review, provided, however, labor performed by the participating property owner shall not be reimbursable. Upon completion of such review, the participating property owner shall undertake the work in accordance with the submitted and reviewed scope of the work. Provided, however, prior to commencement of the work, the property owner shall obtain all required governmental approvals.
(Ord. No. 2010-51, § 1, 9-14-10)

Sec. 2.121. FDD Reimbursement Payments.

After the work for the benefit of, or by, a participating property owner is completed and

has been inspected by the City and approved by the participating property owner (in the event a contractor performs the work), which approval shall not be unreasonably withheld, the City Manager shall authorize the payment of eligible costs up to the FDD funding cap (as may be modified pursuant to Section 2.118 of this Article). While ordinarily payment will not be made until the work has been completed and inspected, the City Manager may approve partial payment under unusual circumstances such as the time of the year when work is performed. In the case where the work is contracted, payment may be made to the participating property owner, the contractor or the participating property owner and contractor jointly in the City Manager's sole discretion. Payment shall be made to the participating property owner of the eligible cost of equipment and materials if it has performed the work.
(Ord. No. 2010-51, § 1, 9-14-10)

Sec. 2.122. Release.

Prior to commencement of the work included in the FDD Program for the benefit of a participating property owner, the participating property owner shall release and hold harmless the City and its officers, employees and agents from all liability related to performance of such work.
(Ord. No. 2010-51, § 1, 9-14-10)

Sec. 2.123. Maintenance of Work.

A participating property owner under the FDD Program shall be the owner of all equipment and will be responsible for the maintenance, repair and replacement of all equipment, facilities and systems constructed or installed on its property as a part of the scope of the work related to its property. The City shall have no obligation to maintain, repair or replace such equipment, facilities and systems.
(Ord. No. 2010-51, § 1, 9-14-10)

Sec. 2.124. Rules, Regulations and Policies.

The City Manager may from time to time establish rules, regulations and policies related to the implementation of the FDD Program not inconsistent with the provisions of this Article.
(Ord. No. 2010-51, § 1, 9-14-10)

Sec. 2.125. Conflict.

This Article shall not void the provisions of Section 2.109(6)(a) of this Chapter, but shall implement additional provisions applicable to footing drain disconnections.
(Ord. No. 2010-51, § 1, 9-14-10)

[The next page is 1007]

Chapter 28

RESERVED*

Secs. 2.111—2.120. Reserved.

*Editor's note—Chapter 28, "Water and Sewer Rates," was repealed by Ordinance No. 77-59, adopted Nov. 1, 1977.

[The next page is 1033]

Chapter 29

RESERVED*

Secs. 2.121–2.134. Reserved.

*Editor's note–Chapter 29, "Individual Sewage Disposal Systems," was repealed by Ordinance No. 79-27, adopted May 1, 1979.

[The next page is 1059]

Chapter 30

AUTOMOBILE PARKING SYSTEM*

Sec. 2.135. Mobile GR Commission.
Sec. 2.136. Rates.
Sec. 2.137. Public Parking Facility, Definition.
Sec. 2.138. Compliance with Regulations.
Sec. 2.139. Access Control Devices.
Sec. 2.140. Parking for Handicappers.
Sec. 2.141. Pay and Display.
Sec. 2.142. Use of Substitute Coins; Tampering with Meters.
Sec. 2.143. Method of Parking.
Sec. 2.144. Reserved Parking.
Sec. 2.145. Enforcement and Fines.
Sec. 2.146. Fines.
Sec. 2.147. Ninety-Minute Free Parking Program.
Secs. 2.148—2.160. Reserved.

*__Cross references—__Parking Violations Bureau, Ch. 16; parking and loading spaces, § 5.51 et seq.; parking facilities, Ch. 97; parking regulations generally, § 10.40 et seq., Authority to issue civil infraction citations, § 10.69.

Sec. 2.135. Mobile GR Commission.

The Mobile GR Commission shall consist of thirteen (13) members, whose terms shall be staggered three-year terms. Initial appointments will consist of one (1) person to serve a one-year term, one (1) person to serve a two-year term, and five (5) persons to serve three-year terms. The members shall be appointed by the Mayor, with the approval of the City Commission, and shall serve without compensation. The total membership should reflect diverse user interests including retailing, building ownership, convention, housing, consumer, public transportation, educational institutions, seniors and people with disabilities, the bicycling and pedestrian community, and neighborhood groups. Membership may also include a member of the City Commission. In the event of death or resignation of any member, his or her successor shall be appointed to serve for the remainder of the unexpired term. All terms shall extend until a successor is appointed and approved. Three (3) consecutive absences or less than seventy-five (75) percent attendance during any twelve-month period shall constitute a resignation.

(1) The Commission shall elect its Chairperson and other officers it deems necessary.

(2) The Commission shall meet not less than monthly and more often if requested by its Chairperson. All meetings of the Commission shall be in accordance with the Michigan Open Meetings Act, as amended.

(3) The Commission shall advise and provide recommendations to the City Commission, including but not limited to, the following:

a. Guidance of on- and off-street parking system

i. User fee schedules and recommendations for other funding sources necessary to fund current parking programs and future capital improvements.

ii. Recommendations for the allocation of spaces among different types of facility users.

iii. Five-year capital improvement plans to improve existing facilities and services and to provide additional facilities and services.

b. Guidance of the DASH service.

c. Input and plans related to biking and walking initiatives.

d. Reviewing transportation demand management (TDM) plans, and incorporation of mobility options.

e. Supporting new mobility services.

f. Monitoring and marketing of mobility information.

g. Employer outreach/solutions.

h. Marketing programs to complement special events, private advertising efforts and methods of informing the public of public parking and public transit availability, features and benefits.

i. Ensuring equitable access to transportation options.

(4) Matters pertaining to City public parking that concern major overall policy considerations dealing with the categories listed below shall be referred to the Commission for study, deliberation and recommendation:

a. The supply and location of public parking, including capital improvements to the System.

b. Service objectives toward user groups and user fees.

c. Zoning changes as they relate to the parking requirements within the Central Business District.

d. Public relations issues that relate to methods of informing the public of the availability, features and benefits of public parking and public transit related to public parking.

(Ord. No. 2017-20, § 1, 3-7-17)

Editor's note—Ord. No. 2017-20, § 1, adopted March 7, 2017, amended § 2.135 in its entirety to read as herein set

out. Former § 2.135, pertained to Automobile Parking Commission, and derived from Ord. No. 80-38, 5-27-80; Ord. No. 81-35, 6-9-81; Ord. No. 87-40, § 1, 6-30-87.

Sec. 2.136. Rates.

The rates for parking and off-street parking lots and structures, operated as a part of the Automobile Parking System, shall be established by resolution of the City Commission from time to time. Such rates need not be uniform throughout the System, but shall be based upon demand for parking in the area which the lot or structure serves and such other considerations as the City Commission shall deem pertinent. All rates and charges so established shall conform to the requirements of the various revenue bond ordinances heretofore adopted in connection with the financing of the Automobile Parking System, so long as any bonds issued for such purposes under such ordinances are still outstanding and not called for payment. The rates and charges in effect upon the date of the adoption of this Code shall remain in effect until thereafter changed as provided in this Section.
(Ord. No. 81-35, 6-9-81)

Sec. 2.137. Public Parking Facility, Definition.

"Public Parking Facility" is defined as any vehicle parking lot, structure or facility which is owned and/or operated by the City of Grand Rapids for the parking of vehicles. All such structures shall be designated as public parking facilities at each vehicular entrance.
(Ord. No. 81-35, 6-9-81; Ord. No. 81-58, 7-14-81)

Sec. 2.138. Compliance with Regulations.

The use of parking spaces in any public parking facility may be regulated by markings or signs painted or displayed at the entrances, in the interior, or at the exit of each public parking facility for the purpose of regulating the type or size of vehicle which may be lawfully parked within spaces so identified or the time during which a vehicle may not be lawfully parked within an off-street parking station. It shall be unlawful for any person to cause, allow, permit or suffer any vehicle owned or operated by him or her to be parked in or upon any part of a public parking facility, as herein defined, without complying with the regulations relating to the use of that facility. All persons shall obey the parking instructions of any person uniformed, badged, or otherwise identified as a municipal parking facility employee.
(Ord. No. 81-35, 6-9-81; Ord. No. 81-58, 7-14-81)

Sec. 2.139. Access Control Devices.

When it is deemed appropriate for operating efficiency, patrons of public parking facilities may be assigned and granted a temporary possession of a control card or other access control device. Any person to whom an access control device is assigned may employ the device to gain access to a public parking facility only if he or she is an occupant of the entering vehicle, and further provided that no person shall permit more than one vehicle, admitted by the same access control device, to be parked in a public parking facility at the same time.
(Ord. No. 81-35, 6-9-81; Ord. No. 81-58, 7-14-81)

Sec. 2.140. Parking for Handicappers.

Signs or markings shall be placed or painted upon the floor or wall surfaces of public parking facilities for the purpose of reserving the parking spaces so designated for use by handicappers possessing a valid permit from the State of Michigan. No person owning or operating a motor vehicle shall park or permit the same to be parked within a space so designated for handicappers without possessing and displaying a valid permit. For purposes of this Section, a valid permit shall include handicapper vehicle registration plates.
(Ord. No. 81-35, 6-9-81; Ord. No. 81-58, 7-14-81)

Cross reference—Handicapped parking, § 10.63.1.

Sec. 2.141. Pay and Display.

When it is deemed appropriate for operating efficiency, public parking facilities shall be controlled by a coin-activated device which will issue a receipt showing the date and time during which a motor vehicle shall be lawfully parked. Whenever a vehicle is parked within a public parking facility controlled by such a device, the owner or operator thereof shall immediately purchase a receipt by depositing or causing to be

deposited a coin or coins of the United States in the required amount and display said receipt in the front windshield of the motor vehicle so parked. The operator must purchase an additional receipt where extended time is desired. Where such a coin operated device controls a public parking facility, signs indicating that fact shall be prominently displayed and instructions for use of that facility shall be readily available.
(Ord. No. 81-35, 6-9-81; Ord. No. 81-58, 7-14-81)

Sec. 2.142. Use of Substitute Coins; Tampering with Meters.

It shall be unlawful for any person to deposit or cause to be deposited in any parking meter or other coin-activated device in or upon any public parking facility any slug, device or substitute for any coin required for the operation thereof.
(Ord. No. 81-35, 6-9-81; Ord. No. 81-58, 7-14-81)

Cross reference—Similar provisions, § 10.59.

Sec. 2.143. Method of Parking.

Lines or markings shall be painted or placed upon the floor or wall of surfaces of each public parking facility for the purpose of designating lawful parking spaces. Each vehicle parked within public parking facilities shall be parked within the immediately adjacent lines or markings so established.
(Ord. No. 81-35, 6-9-81; Ord. No. 81-58, 7-14-81)

Sec. 2.144. Reserved Parking.

The use of public parking facilities may be reserved for monthly renters, City officials, City employees, or City vehicles. No person shall park a vehicle within a parking space, section of parking spaces or parking facility which is designated as reserved, except in compliance with posted reservation.
(Ord. No. 81-35, 6-9-81; Ord. No. 81-58, 7-14-81)

Sec. 2.145. Enforcement and Fines.

The provisions of this Chapter may be enforced by any Police Officer, Police Cadet, C.L.I.P. (College Level Intern Paraprofessional), or authorized City employee. The fines for violation of any regulation regarding public parking facilities shall be as defined in Section 2.146. The penalty identified in Section 2.146 shall be applicable for all payments which are received or postmarked within ten (10) days from the date of the violation notice. After ten (10) days, the penalty shall be increased to an amount which is twice the initial value. If the penalty has not been paid within ninety (90) days from the date of violation notice, the total amount of the penalty shall increase to an amount three (3) times the original penalty. Any violation of this Chapter shall be disposed of by means set forth in Chapter 181 of this Code.
(Ord. No. 81-35, 6-9-81; Ord. No. 81-58, 7-14-81; Ord. No. 93-36, § 2, 8-24-93)

Cross reference—Parking violations, enforcement, § 10.64.

Sec. 2.146. Fines.

Fines for parking violations issued under this Code shall be established from time to time by resolution of the City Commission. Fines not paid within ten (10) days from the date of the violation notice will double. If the fine is not paid within ninety (90) days, the fine will triple.
(Ord. No. 81-58, 7-14-81; Ord. No. 93-36, § 3, 8-24-93; Ord. No. 2000-18, § 1, 4-11-00; Ord. No. 2007-02, § 1, 1-1-07)

Sec. 2.147. Ninety-Minute Free Parking Program.

(1) To encourage shopping downtown, a Ninety (90) Minute Free Parking Program is hereby established at the City Centre ramp, the Lyon/Ionia ramp, the Monroe Center #1 lot, and the Monroe Center #2 lot. Each vehicle entering any of those four facilities shall be entitled to a maximum of ninety (90) minutes of free parking, upon the terms and conditions stated in this section.

(2) Free parking shall be provided at the foregoing four (4) facilities subject to the following limitations:

(a) The program shall be available only to vehicles entering a facility no earlier than 9:00 a.m. each day;

(b) Each vehicle shall be entitled to one period of a maximum of 90 minutes of free parking system-wide for an a.m.

entry and another period of a maximum of 90 minutes of free parking system-wide for a p.m. entry;

(c) Any vehicle granted free parking in the a.m. shall not re-enter any of the four (4) listed facilities that same a.m., and any vehicle which has been granted free parking for a period commencing in the p.m. shall not re-enter any of the four (4) listed facilities that same day.

(3) Notwithstanding sections 2.145 and 2.146, any vehicle violating the prohibitions on re-entry contained in 2(c) above shall be in violation of this section of the City Code and the person responsible for such violation, or if that is disputed or cannot otherwise be determined, the registered owner of the vehicle violating the prohibition, shall be subject to a fine equal to that imposed for a meter infraction under Chapter 16 of the City Code. In lieu of such fine, the driver exiting the facility at the conclusion of the stay which began with the prohibited re-entry, may pay the cash charge for such stay.
(Ord. No. 93-46, § 1, 10-26-93)

Secs. 2.148—2.160. Reserved.

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Chapter 31

PARKING FACILITIES ACCOUNT

Sec. 2.161. Purpose.
Sec. 2.162. Administration.
Sec. 2.163. Payments of Fee-In-Lieu.
Sec. 2.164. Written Agreement.
Sec. 2.165. Recording of Payments.

Sec. 2.161. Purpose.

The Parking Facilities Account is hereby created. It shall be the fund in which shall be deposited all in-lieu payments referenced in Chapter 61, Section 5.163(1)(b)(iii). Payments to the account may be invested and reinvested in funds legally qualified as trust investments as provided by State law. The account shall be used principally for the purpose of paying all reasonable expenses and charges incident to planning, designing, acquiring, building, financing, and developing, but not for maintaining, off-street parking facilities which shall be designated by the City Commission as serving the C-3 Central Business District and for reimbursing advances that may have been made to the account. The Parking Facilities Account may also be used for managing other alternatives to parking in the central business district, including Transportation Demand Management measures, subject to the approval of the City Manager. Parties making payments to the account shall obtain no rights or benefits thereby other than those rights and benefits specifically set forth in Chapter 61, Section 5.163, and the City shall not be responsible to such parties in any manner whatsoever for the application or use of the account. The use of the account as directed by the City Commission in accordance with the exclusive uses thereof as herein provided shall constitute full and complete satisfaction of the City's obligation in the administration of the account. The City may accumulate amounts in the account for the purposes set forth above or hypothecate and pledge the assets of the account all in accordance with the purposes and uses thereof.
(Ord. No. 92-78, § 1, 12-22-92)

Sec. 2.162. Administration.

The general administration of the Parking Facilities Account shall be the responsibility of the City Manager who shall report annually to the City Commission on the status of the account, on his recommendations for the use of the Parking Facilities Account, and specifically on his recommendations for the use of these funds for needed public parking facilities.
(Ord. No. 92-78, § 2, 12-22-92)

Sec. 2.163. Payments of Fee-In-Lieu.

Payment of a sum to the Parking Facilities Account, to be determined by the Automobile Parking Commission and certified to the City Commission, shall be deemed to reduce by one (1) parking space the off-street parking requirement for any building or structure currently or thereafter located on the property on which is located the building or structure for which such in-lieu payment is made. The level of such sum shall be determined in conjunction with the annual determination of public parking fees.

(1) In-lieu payment(s) to the Parking Facilities Account normally shall be non-refundable. However, if after making an in-lieu payment, an applicant thereafter provides parking space at a level that satisfies Section 5.163 of Chapter 61, such payment shall be refunded in full for spaces provided, but with no interest.

(2) The benefit of in-lieu payment shall run with the land on which the building or structure for which the in-lieu payment is made is located and shall be assignable to and binding upon a successor in interest in such land.

(3) In-lieu payments may, if a written agreement exists between the City and landowner, be paid as follows:

   (a) Payments shall be made corresponding to the proportion of structure approved for occupancy, less the parking provided pursuant to Chapter 61, Section 5.163(1) and (2).
   (b) The first payment shall be due upon signing such written agreement; subsequent payments are due prior to and in proportion to any intended additional occupancy of the structure.

(Ord. No. 92-78, § 3, 12-22-92)

Sec. 2.164. Written Agreement.

Signing of a written agreement to pay in-lieu payment(s) shall be deemed to constitute provision of the number of parking spaces that will be provided upon payment in full of the in-lieu payment for purposes of issuing building and other

permits necessary to allow construction or renovation of a structure. Actual payment made in full in accordance with an executed agreement shall be provided prior to the issuance of any occupancy permit.
(Ord. No. 92-78, § 4, 12-22-92)

Sec. 2.165. Recording of payments.

Upon receipt of the in-lieu payment, the City Manager shall cause a notice to be recorded with the Kent County Register of Deeds setting forth:

(1) The legal description of the property on which is located the building or structure for which such in-lieu payment was made.

(2) The number of parking spaces deemed to have been provided for the property on which is located the building or structure for which such in-lieu payment was made.

(3) The amount of the in-lieu payment.

(4) The name of the party making the in-lieu payment. In the event that subsequent in-lieu payment is to be made in accordance with a written agreement signed in accordance with the terms of Section 2.163(3) above:

(1) The City Manager shall cause a notice to be recorded with the Kent County Register of Deeds setting forth:

(a) The legal description of the property on which is located the building or structure for which such in-lieu payment was made.
(b) The number of parking spaces which shall be deemed to have been provided for the property on which is located the building or structure for which such in-lieu payment was made, at such time as the in-lieu payment is paid in full.
(c) The amount of the in-lieu payment and the terms and conditions under which the in-lieu payment is to be made.
(d) The name of the party signing the written agreement.
(e) A statement that at such time as the in-lieu payment is paid in full in accordance with the terms of the written agreement, the City Manager shall cause a notice to be recorded with the Kent County Register of deeds setting forth the liber and page at which the original notice is recorded and stating that the in-lieu payment described in that notice has been paid in full.

(2) At such time as the in-lieu payment is paid in full in accordance with the terms of the written agreement, the City Manager shall cause a notice to be recorded with the Kent County Register of Deeds setting forth the liber and page at which the original notice is recorded and stating that the in-lieu payment described in that notice has been paid in full.

(Ord. No. 92-78, § 5, 12-22-92)

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Chapter 32

CITY STORMWATER DRAINAGE SYSTEM*

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*__Editor's note—__Ord. No. 2022-20, § 1, adopted July 26, 2022, amended chapter 32 in its entirety to read as herein set out. Former chapter 32, §§ 2.201—2.203, 2.211—2.225, 2.231—2.237, 2.241—2.245, 2.250—2.259, 2.261—2.265, 2.271—2.275, 2.281—2.283, 2.291—2.295, 2.301, 2.311—2.315, pertained to similar subject matter, and derived from Ord. No. 2001-26, § 1, 7-31-01; Ord. No. 2005-94, § 1, 12-6-05; Ord. No. 2007-13, § 1, 2-20-07; Ord. No. 2012-50, § 1, 9-11-12, eff. 9-16-12; Ord. No. 2013-21, § 1, 5-28-13.

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ARTICLE 1. GENERAL

Sec. 2.201. Findings.

The Grand Rapids City Commission hereby finds the following:

(1) That there is a need to improve the water quality of the stormwater currently discharged by the City Stormwater Drainage System (CSDS) to prevent the degradation of the Grand River and its tributaries;

(2) That there is a need for the City to enhance its ability to regulate the discharge of stormwater into the CSDS to reduce pollutant levels and comply with Federal and State laws regarding pervasively regulated stormwater discharges from the CSDS;

(3) That there is a need to reduce the frequency and severity of flooding, and limit the uses and activities within flood prone areas, thereby promoting the public health, safety and welfare;

(4) That soil erosion results in sedimentation that obstructs storm drains and road ditches, muddies streams, silts-in lakes and reservoirs and is a water pollutant;

(5) That there is a need for the City to more effectively manage the CSDS through the use of Best Management Practices, enhanced operation and maintenance and physical improvements;

(6) That the Clean Water Act of 1987, and the subsequent EPA regulations require those cities which must obtain an NPDES permit for the discharge of stormwater, to have adequate authority to regulate discharges into their stormwater drainage systems in order to prevent the discharge of harmful pollutants into the waters of the State;

(7) That the City of Grand Rapids is a participant in the National Flood Insurance Program, and that program requires the City to have adequate authority to regulate the development of land located in the floodplain;

(8) That Part 91, Michigan Soil Erosion and Sedimentation Control, of the Natural Resources and Environmental Protection Act, 1994, P.A. 451, as amended (Act 451) requires the regulation of construction activities. The State of Michigan has authorized the City as a Municipal Enforcement Agency (MEA) and an Authorized Public Agency to enforce and administer soil erosion control programs which are intended to avoid, reduce or mitigate the erosion and resultant sedimentation of soils from construction sites located within the City or under the control of the City;

(9) That the Michigan Subdivision Control Act (MCL 560.101 et seq.) regulates the development and construction of platted subdivisions and condo plats, and under this Act the City is charged with assuring proper drainage of such plats;

(10) That the Michigan Drain Code (MCL 280.1 et seq.) regulates the establishment and maintenance of county drains, except those legally established drains constituting mainstream portions of certain natural watercourses identified in rules promulgated by the Michigan Department of Environmental Quality.

(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.202. Purposes and Objectives.

(1) The purposes of this Chapter are to establish standards with respect to use and operation of the CSDS, to mitigate flooding, reduce pollution and sedimentation of the CSDS, adjacent properties and the environment and to improve the water quality of our rivers, lakes and streams.

(2) The standards established in or pursuant to this Chapter are determined to be necessary to preserve the public health, safety and welfare; reduce pollution and sedimentation; mitigate the hazards of flooding; and to fulfill the obligations of the City with respect to State and Federal law, rules and regulations applicable to these matters.

(3) The objectives of this Chapter are:

(a) To improve the quality of stormwater and to prevent or reduce the introduction of pollutants and sediments into the CSDS which cause a degradation of the environment and interfere with the normal use of the CSDS and the water resources of the City;

(b) To mitigate the frequency and severity of flooding from stormwater from within the CSDS service area through proper planning and management.

(c) To provide for appropriate use and development of flood-prone areas, allowing beneficial use without increasing flood hazard potential.

(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.203. Definitions.

For the purposes of this Chapter, the following words and phrases shall have the meanings respectively ascribed to them by this Section unless the context in which they are used specifically indicates otherwise:

(1) *Base Flood.* A flood having a one (1) percent chance of being equaled or exceeded in any given year, which is also called the "100-year flood."

(2) *Base Flood Elevation.* The high water elevation of the Base Flood and is commonly referred to as the "100-year flood elevation."

(3) *Best Management Practices (BMPs).* A schedule of activities, prohibition of practices, general good housekeeping practices, pollution prevention and educational practices, maintenance procedures, and other management practices to prevent or reduce to the Maximum Extent Practicable (MEP) the discharge of pollutants directly or indirectly into the receiving waters of the State or City Stormwater Drainage System (CSDS). BMPs also include treatment practices, operating procedures, and practices to control site runoff, spillage or leaks, sludge or water disposal, or drainage from raw materials storage.

(4) *City.* The municipal corporation that is the City of Grand Rapids, Michigan and includes all authorized agents of the City of Grand Rapids when acting within the scope of their authority.

(5) *City Manager.* The City Manager of the City of Grand Rapids and any persons designated to act on behalf of the City Manager in the administration or enforcement of this Chapter.

(6) *City Stormwater Drainage System (CSDS).* Includes all wetlands, surface water bodies, and all public storm drainage structures used in connection with the collection, control, transportation, treatment, or discharge of stormwater runoff and exempted discharges within the City of Grand Rapids. The CSDS does not include sewers or other facilities connected to the Grand Rapids Sanitary Sewage Disposal System, nor does the CSDS include private stormwater drainage facilities, which receive or convey stormwater runoff exclusively from privately owned property.

(7) *Clean Water Act.* The Federal Water Pollution Control Act, 33 USC Sec. 1251 et seq., as amended and applicable regulations promulgated thereunder.

(8) *Design Engineer.* Registered and licensed professional engineer responsible for engineering approval of the site plan design.

(9) *Detention Basin or Facility.* A drainage facility designed and constructed to temporarily store stormwater runoff for a period of time, between twenty-four (24) and seventy-two (72) hours.

(10) *Drainage.* The collection, conveyance or discharge of surface water and/or groundwater.

(11) *Drainage Area.* The land area above a given point that contributes stormwater at that point.

(12) *Drainage way.* The route and surface area by which surface water or groundwater is carried overland from one (1) part of a lot, parcel, right-of-way or adjacent property to another lot, parcel, right-of-way or adjacent property.

(13) *Driveway Approach.* Any area in which, because of topography, elevation, position or location, it is necessary to enclose the gutter or road ditch in a driveway culvert in order to have a proper and suitable entrance to any property abutting on any public right-of-way.

(14) *Driveway Culvert.* A drain pipe or other structure of concrete, masonry, metal, vitrified tile or other materials or combination thereof used to convey or carry surface water across, under or through any driveway or road ditch and/or to connect two (2) or more sections of a gutter or road ditch.

(15) *Dwelling Unit, Multiple-Family, or Multi-Family.* A building or lot containing three (3) or more dwelling units, each of which is totally separated from the other units, any two (2) or more of which may be provided with a common entrance or hall. Includes dwelling units on upper stories of a structure with non-residential uses on other stories.

(16) *Earth Change.* Any human activity that removes ground cover, changes the slope or contours of the land, or exposes the soil surface to the actions of wind and rain. Earth change includes, but is not limited to, any excavating, surface grading, filling, landscaping or removal of vegetative roots.

(17) *Michigan Department of Environment, Great Lakes, and Energy (EGLE).* A department of the State of Michigan, formerly Michigan Department of Environmental Quality (MDEQ). In addition to other responsibilities, EGLE is responsible for NPDES permitting.

(18) *Environmental Services Department (ESD).* A Department of the City of Grand Rapids responsible for the administration, compliance and enforcement activities associated with its NPDES permit(s).

(19) *Erosion.* The process by which the ground surface is worn away by action of wind, water, gravity or a combination of those forces.

(20) *Excavation or Cut.* Any act by which soil or rock is cut into, dug, quarried, uncovered, removed, displaced or relocated and the conditions resulting from such acts.

(21) *Exempted Discharges.* Those discharges into the CSDS other than stormwater as specified in Article 3 of this Chapter.

(22) *Federal Emergency Management Agency (FEMA).* The federal agency of the executive branch of the federal government charged with federal emergency management and associated regulations.

(23) *Flood* or *Flooding.* A general and temporary condition of partial or complete inundation of normally dry land areas resulting from the overflow of water bodies or the unusual and rapid accumulation of surface water runoff from any source.

(24) *Flood Insurance Rate Map (FIRM).* An official map of a community, issued by FEMA, which delineates both the special hazard areas and the risk premium zones applicable to the community.

(25) *Floodplain* or *Flood-prone Area.* Any land area susceptible to water inundation from any source as defined by Flooding. It would mean the Base Flood Elevation, unless otherwise specified.

(26) *Flood Protection Elevation (FPE).* The Base Flood Elevation plus one (1) foot at any given location.

(27) *Flood-proofing.* Any combination of structural and non-structural additions, changes or adjustments to structures or property which reduce or eliminate flood

damage to real estate or improved real property, public and private utilities, structures and their contents.

(28) *Floodway.* The channel of a river, or other watercourse, and the adjacent land areas that must be reserved to carry and discharge a Base Flood without cumulatively increasing the water surface elevation more than one-tenth (1/10) of a foot due to the loss of flood conveyance or storage.

(29) *Flood Fringe Area.* The area between the Floodway and the Floodplain limits.

(30) *Grading.* Any stripping, excavating, filling, stockpiling of soil or any combination of such acts and the land in its excavated or filled condition.

(31) *Gutter.* A shallow paved channel integrated into a pavement section for the purpose of conveying runoff. A gutter is typically provided along the edge of pavement as part of a curb. Gutters may also be located down the center of alleys and parking lots.

(32) *Illicit Connection.* Any method or means for conveying an illicit discharge into the CSDS or water bodies of the State.

(33) *Illicit Discharge.* Any discharge to the CSDS, or water bodies of the State, that is not composed entirely of stormwater, discharges pursuant to the terms of an NPDES permit or exempted discharges as defined in this Chapter.

(34) *Impervious Surface.* Surface that does not allow runoff to percolate into the ground such as roads, parking lots, sidewalks and rooftops.

(35) *Land Owner* or *Landowner.* Any person who owns real property, or who holds a recorded easement on the property, or who is engaged in construction in a public right-of-way in accordance with sections 13, 14, 15, and 16 of Act No. 368 of the Public Acts of 1925, as amended, (MCL 247.183, 247.184, 247.185, and 247.186) as defined in Administrative Rules, Part 17 of the Natural Resources and Environmental Protection Act, 1994, PA 451, as amended (Act 451).

(36) *Lowest Floor.* The lowest floor or the lowest enclosed area (including basement). An unfinished or flood resistant enclosure, which is usable solely for parking of vehicles; building access; or storage in an area other than a basement area is not considered the building's lowest floor.

(37) *Maximum Extent Practicable (MEP).* This phrase refers to the effective implementation of BMPs. Effective BMPs remove pollutants identified at a site for reduction; comply with all applicable stormwater regulations; are compatible with the area's land use, character, facilities and activities; implementation costs should not normally exceed the benefits obtained from pollution reduction; and must be technically feasible (considering area soil, geography, water resources and other resources available).

(38) *Municipal Enforcing Agency (MEA).* Cities (including Grand Rapids), villages, charter townships, and some general law townships that have elected to enforce Part 91 through adoption of a soil erosion and sedimentation control ordinance. After approval of the ordinance by the Department of Environment, Great Lakes, and Energy (EGLE), the MEA assumes responsibility for administering and enforcing Part 91 within their jurisdictions, independent of the County Enforcement Agency.

(39) *Non-conforming Structure.* Any structure that does not comply with the standards established in Article 6, Section 2.262, Standards for Flood-Resistant Construction, of this Chapter. These are usually structures built prior to the determination of the Floodplains by FEMA and the enactment of the associated Floodplain regulations, but could include structures for which a variance had been granted.

(40) *NPDES Permit.* A National Pollution Discharge Elimination System permit issued pursuant to Section 402 of the Federal Water Pollution Control Act or Clean Water Act, as amended or successor legislation.

(41) *One Hundred-Year Floodplain.* That area which would be inundated by storm runoff or flood water of one hundred (100) year recurrence frequency as determined by a flood insurance study or other more scientifically precise analysis accepted by the City Manager.

(42) *Overland Flow-Way.* The surface area that conveys a concentrated flow of stormwater runoff.

(43) *Person or Entity.* An individual, association of individuals, a public, private or not for profit corporation, a firm, partnership or instrumentality.

(44) *Plan.* Written narratives, specifications, drawings, sketches, written standards, operating procedures or any combination of these, which contain information pursuant to this Chapter.

(45) *Pollutant.* A substance discharged which includes, but is not limited to the following: any dredged spoil, solid waste, vehicle fluids, yard wastes, animal wastes, agricultural waste products, sediment, incinerator residue, sewage, garbage, sewage sludge, munitions, chemical wastes, biological wastes, radioactive materials, heat, wrecked or discharged equipment, rock, sand, cellar dirt, and industrial, municipal, commercial and agricultural waste, or any other contaminant or other substance defined as a pollutant under the Clean Water Act.

(46) *Pre-Development.* The last land use and condition prior to the proposed development or redevelopment.

(47) *Property Owner.* Any person having legal or equitable title to property or any person having or exercising care, custody, or control over any property. (See also Responsible Party.) Property owner shall also mean:

(a) Any person who is a Land Owner as defined, or

(b) Any person who in fact has been empowered to act on behalf of or as agent of the owner, or

(c) Any person who has or exercises care, custody, dominion or control over any property, or

(d) Any person who has received a Tax Deed from the State of Michigan for the property and the person has served a notice by persons claiming title under Tax Deed, and the six (6) month redemption period has expired or nine (9) months has lapsed since the person received the Tax Deed to the property.

(48) *Riparian Property Owner.* A person or entity owning land bordering on a stream, river or lake.

(49) *Repetitive Loss Structure.* A building covered by a contract for flood insurance that has incurred flood-related damages on two (2) occasions during a ten (10) year period ending on the date of the event for which a second claim is made, in which the cost of repairing the flood damage, on the average, equaled or exceeded twenty-five (25) percent of the market value of the building at the time of each such flood event.

(50) *Responsible Party.* Any discharger, property owner, tenant, employee, officer, director, partner, contractor or other person who participates in, or is legally or factually responsible for, any act or omission which is a violation of this Chapter or which results in a violation of this Chapter. It is intended that this definition be interpreted broadly to include anyone who participates in an act or omission that results in a violation of this Chapter.

(51) *Retention Basin or Facility.* A drainage facility designed and constructed to permanently store stormwater runoff for an indefinite period of time.

(52) *Road Ditch.* A channel located along roads and within the right-of-way to provide drainage. Typically used for along rural roads. Typically vegetated.

(53) *Sediment.* Any solid particulate matter that has been deposited in water, is in suspension in water, is being transported, and has been removed from its site of origin by the process of erosion.

(54) *Show Cause Hearing.* A formal meeting with ESD staff occasioned by a Show Cause Order requiring a responsible party(s) to appear and demonstrate why a proposed enforcement action should not be taken against them.

(55) *Soil Erosion and Sedimentation Control Plan (SESCP).* A plan to guide construction, maintenance or repair activities designed to prevent the discharge of sediments from the work site. The SESCP is a document that describes and specifies the soil erosion and sedimentation control measures that are to be used during and after the construction, maintenance, or repair operations. The SESCP may consist of one (1) or more of the following types of documents:

(a) Scaled drawing of the site and the proposed soil erosion and sedimentation control measures.

(b) Specifications (Standard and Special).

(c) Narrative descriptions of the scope and type of soil erosion and sedimentation control measures to be employed.

(d) Standard Operating Procedures for soil erosion and sedimentation control.

(56) *Special Flood Hazard Area (SFHA).* An area subject to flooding identified on the Flood Insurance Rate Map published by FEMA.

(57) *State of Michigan Water Quality Standards.* All applicable State rules, regulations and laws related to water quality.

(58) *Storm Drain.* A system of structures such as constructed flood control channels, ditches, aqueducts, storm drains, pipes, street gutters or catch basins intended to convey only stormwater runoff, street wash waters, groundwater drainage, and discharges allowed by State or Federal discharge permits.

(59) *Stormwater.* The runoff and drainage of precipitation resulting from rainfall or snowmelt or other natural precipitation event and includes naturally occurring sediment, silt and substances present in undeveloped watersheds.

(60) *Stormwater Pollution Prevention Plan.* Refers to a document which describes the Best Management Practices (BMPs) to be implemented as a condition for the issuance of an NPDES permit to reduce or eliminate the discharge of pollutants to the Maximum Extent Practicable (MEP).

(61) *Stormwater Standards Manual.* "Stormwater Standards Manual: Procedures & Design Criteria for Stormwater Management", City of Grand Rapids, latest edition.

(62) *Stormwater System Manager (SSM).* The ESD Director or designated contact person in accordance with Article 3, Section B.3 of the NPDES Municipal Stormwater System permits.

(63) *Streams.* A river, creek, or other surface watercourse which may or may not be serving as a drain as defined in Act No. 40 of the Public Acts of 1956, as amended, (MCL 280.1) and which has definite banks, a bed, and visible evidence of the continued flow or continued occurrence of water, including the connecting waters of the Great Lakes.

(64) *Stripping.* Any activity which removes or significantly disturbs the vegetative surface cover of a property including, but not limited to, clearing and grubbing operations.

(65) *Stormwater Drainage Facilities Easement Agreement.* An easement granted to the City of Grand Rapids by the developer of a parcel of land which enumerates the maintenance and liability responsibility of the developer and any successors and assigns for the stormwater drainage facilities located with the proposed development which have been constructed to mitigate the adverse impact of stormwater runoff from the site and to facilitate that development.

(66) *Structure.* Any man-made thing, edifice or construction in or upon the ground and any man-made change to the land. Structure includes, but is not limited to, buildings, manufactured homes, and recreational vehicles installed or left on a site for more than one hundred eighty (180) days.

(67) *Substantial Damage.* "Damage of any origin is sustained by a structure whereby the cost of restoring the structure to its before damaged condition would equal or exceed fifty (50) percent of the market value of the structure before the damage occurred", as defined in the NFIP Floodplain Management Regulations 44 CFR 59.1.

(68) *Substantial Improvement.* The cost of any repair, reconstruction or improvement of an existing structure that equals or exceeds fifty (50) percent of the true cash value of the structure, either:

(a) Before the improvement is started.

(b) Before the damage occurred if the structure has been damaged and is being restored.

1. Such improvements include structures which have incurred "repetitive loss" or "substantial damage", regardless of the actual repair work performed. Substantial Improvement is started when the first alteration of any structural part of the building commences.

(69) *Violations.*

(a) *Isolated.* A Chapter 32 violation which occurs when a person or entity has failed to adequately comply with not more than two (2) specific requirements of the CSDS Ordinance or permit but otherwise would be considered to be in compliance, provided such failure is not a recurring or significant incident.

(b) *Recurring.* A Chapter 32 violation which occurs when a person or entity exhibits a recurring pattern of compliance failures.

(c) *Significant.* A Chapter 32 violation occurs when a person or entity has failed to adequately comply with the requirements of the CSDS Ordinance, State or Federal regulations, or the conditions of a permit, and the compliance failure has caused damage to the CSDS, other properties or the environment, or has caused the City's CSDS to violate its stormwater NPDES permit.

(70) *Water Body.* Defined under State Law; Public Act 451 of 1994, as amended (MCL 324.101 et seq.), Natural Resources and Environmental Protection Act.

(71) *Watershed.* All the land area which contributes runoff to a particular point along a waterway.

(72) *Wetlands.* Defined under State Law, Public Act 451 of 1994, as amended (MCL 324.101 et seq.), Natural Resources and Environmental Protection Act."

(Ord. No. 2022-20, § 1, 7-26-22; Ord. No. 2023-04, § 1, 1-24-23)

Secs. 2.204—2.210. Reserved.

ARTICLE 2. STORMWATER SYSTEM USE

Sec. 2.211. The Stormwater System Extent, Limits and Description.

The CSDS is provided for the drainage of publicly owned properties and rights-of-way within the City limits. All natural and constructed open drainage channels, which receive, convey or store stormwater runoff from publicly owned properties and rights-of-way shall be considered to be part of the CSDS.

The CSDS is also intended to accommodate the discharge of surface water runoff and other approved discharges from adjacent privately owned properties, provided:

(1) The surface water runoff from that property has historically discharged onto public property or rights-of-way.

(2) The characteristics of the discharge are equivalent to the runoff generated by that property prior to any development.

(3) The discharge does not contain pollutants or sediments harmful to the CSDS, the public health and safety or the environment.

(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.212. Riparian Properties.

Riparian property owners may not interfere with beneficial public interests such as navigation, fishing, hunting, swimming or other lawful purposes inherently belonging to the people of the State of Michigan including the receiving, transporting and storage of upstream drainage or runoff.

Except in cases where there is an easement or agreement with the City of Grand Rapids or other governmental entity specifically for the maintenance of the stream, creek or lake, it shall be the riparian owner's responsibility to maintain the stream, creek or lake along their property such that the beneficial public interests are preserved. This maintenance responsibility shall include the removal of accumulated debris, fallen trees from their property that hinders the stream or creeks' proper drainage function as well as providing for erosion protection.

Riparian property owners must obtain all necessary Federal, State and local permits prior to initiating maintenance activities. Failure to comply with this Section shall be considered a nuisance and a violation of this Chapter.

(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.213. Property Drainage.

(1) *Building Openings.*

(a) Any new construction or building undergoing substantial improvement in the base flood area of a swale, drainageway, floodway, ditch, culvert, or any other drainage facility or device shall strictly control the lowest building opening elevation so as to substantially limit flood damage to the building and its contents.

(b) Except as provided herein, no building opening shall be constructed below the following elevations:

1. Flood Protection Elevation.
2. The lowest building opening elevation established at the time of the plat or development approval.
3. One (1) foot above the top of any downstream culvert.

(c) Minimum elevation requirements described in Subsection (b) shall not apply to building openings that are outside the

One Hundred-Year Floodplain, are not otherwise prohibited by any other federal, state, local regulation or law, and are:

Located in an area east of the Grand River and bounded by South City limits (Hall Street extended); to Hall Street/ Freeman Avenue intersection; to CSX railroad at Freeman Avenue; to Hayden Street/Woolsey Drive intersection; to Godfrey Avenue/B Street intersection; to Oakland Avenue/Rumsey Street intersection; to Oakland Avenue/CSX railroad crossing; to Wealthy Street/Ney Avenue; to Oakes Street/Grandville Avenue intersection; to Ionia Avenue/Cherry Street intersection; to Oakes Street/ Commerce Avenue intersection; to Fulton Street/Ionia Avenue intersection; to Ottawa Avenue/Pearl Street intersection; to Newberry Street/Ionia Avenue intersection; to N. Division Avenue/ Taylor Avenue/Coldbrook Street intersection; to Graceland Street/Riverside Drive intersection; to Guild Street/Coit Avenue intersection; to Briggs Boulevard/Monroe Avenue/North Park Street intersection; to Briggs Boulevard/4 Mile Road intersection; to the Grand River along the North City limit; or located in an area west of the Grand River and bounded by the south City limit near Veterans Memorial Drive; to Butterworth Street/West City Limit; to Butterworth Street/I-196 intersection; to Lake Michigan Drive/ Fulton Street intersection; to Bridge Street/I-196 intersection; to Valley Avenue/ 6th Street intersection; to Van Buren Avenue/11th Street intersection; to Leonard Street/Lincoln Avenue intersection; to Webster Street/Powers Avenue intersection; to Tamarack Avenue/ Richmond Street intersection; to Widdicomb Avenue/Thornapple Court intersection; to Ann Street/ Alpine Avenue intersection; to Nason Street/Turner Avenue along the North City Limit; to the Grand River along the North City limit.

These provisions do not exempt such building from any other applicable local, state, or federal regulation, law or requirement. Any substantial improvement or construction permitted does not create a liability on the part of the City or any officer or employee thereof for any flood damage that results from compliance with or reliance upon the provisions of this ordinance. Any substantial improvement or construction is at the applicant's sole risk and the applicant shall defend, indemnify, protect, and hold harmless the City, its officers, agents, elected and appointed officials, departments, boards, and commissions from any and all claims, losses, liabilities, causes of action, demands, judgments, decrees, proceedings, and expenses of any nature (including, without limitation, attorneys' fees) arising out of or resulting from such substantial improvement or construction. Floods may occur at any time, and excessive flood water levels may be experienced due to manmade and natural causes, such as ice jams and accumulated debris in bridge openings. This provision does not imply that areas outside the One Hundred-Year Floodplain, or uses permitted within such areas, shall remain free from flooding or flood damages.

(d) A waiver from complying with the lowest building opening elevation requirement in Section 2.213(1)(b) may be granted by the City Manager following receipt of a letter from a registered engineer, licensed with the State of Michigan, attesting that the proposed building opening elevation will not subject the building to a possible flood hazard from a base flood event.

(e) Upon completion of construction of the structure's foundation and/or slab on grade, a registered land surveyor must certify any minimum building opening elevation specified by this ordinance. The certificate shall attest that the building opening elevation complies with the standards of this ordinance. The permit-

tee for the building permit shall submit the certificate to the Building Inspections Supervisor prior to the commencement of framing and/or structural steel placement. If the surveyor should find that the minimum building opening elevation is below the elevation specified in Section 2.213(1)(b) and (d), that opening must be raised by using a method that meets with the approval of the City Manager. After reconstruction, a registered land surveyor or engineer must re-certify the minimum building opening elevation is compliant with the standards of this ordinance prior to the commencement of framing and/or structural steel placement.

(2) *Property Drainage.*

(a) Any drainage situation not involving water from public property or right-of-way is the responsibility of the property owner.

(b) Lot grading and private property drainage is a civil matter among the property owners affected.

(c) The City will provide technical advice to the property owner on drainage matters limited to advice only.

(d) The drainage review of plats and site plans by the City is for the purpose of assuring that the property can be drained in accordance with the standards of this Code. Regardless of City approvals, the owner remains responsible for the drainage of their property and any impacts it may have on neighboring properties or the environment.

(3) *Post-Construction Stormwater Management Permit Requirement.* This ordinance shall apply to all new development and redevelopment projects, including private and public projects that exceed the thresholds below or projects that are part of a larger common plan of development or sale that would cumulatively exceed the thresholds.

(a) A property owner shall apply for and obtain a Stormwater Discharge Permit prior to the start of any construction, earth change, or other work on the project site for any of the following proposed land uses, development or redevelopment activities, property situations, or special circumstances:

1. A non-residential or Multi-family dwelling unit residential development or redevelopment project with an earth change involving an area of two thousand five hundred (2,500) square feet or more.

2. A plat, subdivision, Planned Unit Development, Planned Redevelopment District, Planned Industrial Development, Site Condominiums, Permitted with Approval Developments, Site Plan Review Development, Planned Redevelopment District, multi-family residential developments, or when otherwise required by the Planning Director, Planning Commission, or Board of Zoning Appeals.

3. A new or redeveloped parking area of one thousand (1,000) square feet or more.

4. When a permit is required by an Administrative Order: Notice of Violation (NOV), Corrective Action Notice or Order (CAO), or Consent Order.

5. Any work or obstruction within the City's right-of-way relating to development or redevelopment of property.

6. An earth change within five hundred (500) feet of a wetland, creek, stream, lake, water body or flood plain.

7. Any earth change regardless of development type involving an area of one (1) acre or more.

8. Individual single- and two-family residential lots are exempt from stormwater management permitting except where thresholds 6. and 7. above apply.

(b) An application fee, as set forth by resolution of the City Commission, shall be paid for the review and processing of design plans and documents for the proposed drainage facilities that are submitted for obtaining a stormwater permit.

(c) A permit fee, as set forth by resolution of the City Commission, shall be paid for administering and inspecting the proposed drainage facilities.

(d) This permit shall be administered and enforced as a component of a consolidated application and permit called the Land Use and Development Permit required by Chapter 67 of the Code.

(e) The City of Grand Rapids shall meet all standards of this ordinance and obtain an authorization to proceed with earth change for City projects exceeding the thresholds of this Section.

(4) *Industrial Stormwater Discharge Permit Requirement.*

(a) The property owner of existing and proposed development, redevelopment or transfer of an industrial property in the City that involves the drainage of surface runoff shall complete an Industrial Stormwater User Survey to determine if a City-issued industrial stormwater discharge permit is required for the site. New water service will not be initiated until a complete survey is submitted. In the case of a transfer account, water service will be disconnected if a complete survey is not submitted within ten (10) days of the transfer. If, upon review, the City Manager determines an initial site inspection may be required, the City will contact the property owner to schedule a site visit. The initial site visit will include assessment of the property for its potential to discharge pollutants into the CSDS.

(b) The City Manager will evaluate the Industrial Stormwater User Survey and may schedule an initial site visit to determine the site's priority level within the Industrial Stormwater Program.

(c) Stormwater dischargers who have previously submitted a survey, as prescribed in this Section, are also required to complete an Industrial Stormwater Survey periodically, at a frequency to be determined by the City Manager.

(d) Within thirty (30) days after full evaluation and acceptance of the data furnished, the City Manager shall decide the site's priority level within the Industrial Stormwater Program and notify the property owner accordingly.

(e) Permits will be effective for up five (5) years from the date of issuance as determined by their priority level.

(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.214. Driveway Culverts.

(1) *Responsibility for Driveway Culverts.* The property owner is responsible for the initial installation of a driveway culvert in accordance with ESD specifications.

(2) *Permit Requirement.*

(a) Prior to the installation of a new culvert the owner, owner's contractor or authorized agent must submit an application and a plan for the new culvert to the City Manager for review and approval. It shall be unlawful for anyone to construct any driveway approach over, in or through any gutter or road ditch or to install or construct a driveway culvert through any road, street or public right-of-way without first having obtained a permit from the City Manager.

(b) Surety Required. A Building Permit shall not be issued for any construction in or on any property, where there is no driveway approach, or where a new driveway approach is deemed necessary because of the existing conditions. The applicant for a building permit shall provide surety in such amount as is

reasonably necessary, based upon the current construction costs, as established by the City Manager.

(c) A fee shall be charged for the issuance of the permit in such sum as the City Commission may require, by resolution.

(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.215. Roadside Ditch Maintenance and Improvements.

(1) It shall be the adjacent property owner's responsibility to perform routine maintenance of the roadside ditch. Such maintenance shall include the grass cutting, the removal of leaves, litter, and grass clippings and other loose debris and obstructions.

(2) The dredging or re-grading of a roadside ditch shall be done by the City as determined necessary by the City Manager.

(3) The re-establishment of a roadside ditch that has been filled by past or present adjacent property owners shall be completed by the City in a manner as determined by the City Manager.

(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.216. Private Stormwater Facilities.

The City is not responsible for providing stormwater drainage facilities on private property. It shall be the responsibility of the property owner to install, maintain, repair or replace private stormwater facilities serving the owner's property. Where stormwater facilities serve more than one (1) privately owned parcel of property, it shall be considered each property owner's joint and several responsibility to install, maintain, repair or replace the facilities serving all such properties. Any changes made to the existing private stormwater facilities that change its discharge characteristics into the CSDS need to be approved by the City Manager.

(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.217. Easements for Drainage.

(1) Easements recorded as part of a subdivision plat that are not specifically granted to or held by the City, and are created for the purpose of managing surface water runoff from private property, are deemed to be private stormwater facilities. The maintenance obligations of these easements belong, jointly and severally, to each of the owners of the lots within the plat that utilize the easement for the discharge and management of surface water runoff from their lots.

(2) Proposed developments that have common private drainage facilities serving multiple users such as, but not limited to, subdivision plats and site condominiums shall establish county drains, under authority of the Michigan Drain Code (MCL 280.1 et seq.).

(3) Proposed developments that include the construction of private drainage facilities necessary for the proposed development and to mitigate the adverse impacts of stormwater runoff and which also receive, convey, store, treat and discharge stormwater from other public and private properties, shall enter into a "Stormwater Drainage Facilities Easement Agreement" with the City of Grand Rapids before final approval of the proposed development. The Stormwater Drainage Facilities Easement Agreement must be in a form that is acceptable to the City Attorney.

(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.218. Management of the City Stormwater Drainage System.

The CSDS shall be under the management, supervision and control of the City Manager.

(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.219. Inspection.

(1) Since the discharge of Stormwater runoff is a pervasively regulated activity under Federal and State Law and by this Chapter, the City has the right and obligation to inspect connections and discharges to the CSDS in order to ensure compliance with State and Federal Law.

(2) The City Manager and other duly authorized employees of the City bearing proper credentials and identification shall be permitted to enter upon all properties at reasonable times for the purpose of inspection, observation, measurement, sampling and testing in accordance

with the provisions of this Chapter. Any person who uses, applies to use or is connected to, or who discharges into the City's Stormwater Drainage System is hereby put on notice that inspections may be made in accordance with this Chapter and the Michigan and United States Constitutions.

(3) A person who uses, applies to use, is connected to or who discharges into the CSDS does so with the knowledge that inspections provided for in this Chapter will be made to ensure compliance with the law, ordinances and regulations in effect controlling the use of the CSDS. Users of the CSDS shall have no reasonable expectation of privacy with respect to discharges or potential discharges into the CSDS and that announced and unannounced inspections may be conducted to the full extent provided for by Federal and Michigan Law. Inspections pursuant to this Chapter will be conducted only for observation, sampling, monitoring and measuring in order to determine compliance with this Chapter.
(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.220. Authority to Issue Administrative Orders.

Whenever the City Manager determines that any discharger has violated this Chapter, or any other related laws or regulations which the City is authorized to enforce, the City Manager may issue administrative orders of the type listed below. Multiple orders may be issued simultaneously or in combination as a single order with respect to a single discharger.

(1) *Notice of Violation.* The Notice of Violation is an official communication from the City Manager to the responsible party(s), which informs them that a violation of this Chapter has occurred. The Notice of Violation is issued for relatively minor or infrequent violations of stormwater management standards and requirements. The Notice of Violation is an initial disciplinary action taken for a violation which is neither significant nor poses an immediate hazard to the health and welfare of the public, damage to the environment or the CSDS.

(2) *Corrective Action Order.* The Corrective Action Order is an enforcement document that directs Responsible Party(s) to undertake or to cease specified activities. The first formal disciplinary level to a significant violation is a Corrective Action Order and may incorporate compliance schedules, cost recovery and corrective action directives. If the Responsible Party(s) fails to correct a violation within the time frame specified in a Notice of Violation, the City Manager shall issue a Corrective Action Order for correction of this violation. The Responsible Party(s) is not relieved of the responsibility for unauthorized discharges that occur any time before or after receiving a Notice of Violation or Corrective Action Order.

(3) *Cease and Desist Order.* The Cease and Desist Order is an order that directs the discharger to cease illegal or unauthorized discharges immediately. The City Manager shall have the authority to enter the discharger's property and take such steps as necessary to eliminate the discharge should the discharger fail to comply with such order. Such order shall be final and remain in effect until a hearing, if requested by the discharger, is conducted and a final decision is made by the City Manager. A written request for such hearing shall be made within ten (10) calendar days after receiving the order.

(4) *Consent Order.* The Consent Order is an order issued as a result of an agreement between the City Manager and the discharger containing three (3) elements; compliance schedules, reimbursement of the City for damages and costs incurred or remedial actions, signatures of the City Manager and the discharger. A consent order shall address every identified and potential deficiency in the discharger's compliance status at the time of the order.

(5) *Show Cause Order.* The Show Cause Order is an order issued by the City Manager when there is a failure to comply

with either a Cease and Desist Order or a Consent Order, or where the violation is not corrected by timely compliance. The City Manager may order any discharger who causes or allows prohibited conduct, to show why further enforcement action should not be taken.

(6) *Compliance Order.* The Compliance Order is an order that directs the discharger to achieve compliance by a date specified in the order. Compliance orders require discharger to develop management practices, spill prevention programs and related stormwater BMPs, or obtain appropriate permits.

(7) *Stop Work Order.* The Stop Work Order is an order that directs a discharger to stop work where there is work in progress that constitutes, causes or is causing a violation of any provision of this Chapter. The City Manager may issue a Stop Work Order to prevent further violations or damage.

(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.221. Authority to Issue Appearance Tickets.

The City Manager is authorized to issue a court appearance ticket for any violation of this Chapter.

(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.222. Emergency Authority.

When a necessary or advisable emergency protective measure or action is required to abate a nuisance, to prevent loss of human life, injury, damage to property, or environmental impacts, or to otherwise protect the public health, safety or welfare, the City Manager is authorized to cause such measures and actions to be taken. The costs of such protective measures or actions shall be the property owner's and shall constitute a lien upon the property as provided for by law or in the City Charter. The costs shall also be a personal debt of the property owner that may be collected as other debts.

(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.223. Responsibility or Liability.

The City, its officers, employees, agents and contractors shall have only that responsibility or liability provided for by Federal or State law for any action or inaction in connection with the activities covered by this Chapter. No additional responsibility or liability is, or shall be, created or assumed.

(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.224. Appeal of Permit Denials.

Any denial of a permit based upon the review provided for in this Chapter may be appealed as provided for in Article 7 of this Chapter.

(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.225. Plan Reviews and Document Submittals.

(1) *General Review Requirements.* Plans submitted for review shall provide adequate detail of the hydrology and hydraulics of the existing site and proposed development. Plans and specifications shall be of sufficient scale and detail to facilitate the evaluation of the potential impact of the proposed development upon the City's Stormwater Drainage System, adjacent properties, water bodies, rivers, streams, creeks and drainage ways.

(2) *Minimum Information Required.* Plans submitted to the ESD for review must have sufficient information to enable a complete and thorough evaluation of site grading and drainage. A list of minimum information required for proper plan review can be obtained from the ESD prior to submitting documents for review. Any project submitted for review by ESD which does not contain the minimum information specified by the ESD shall be considered incomplete and returned without a complete design review.

(3) *Supplemental Requirements.* The ESD may require additional information or design effort to address site specific conditions before issuing a permit or recommending approval by the Planning Commission, or the City Commission. The

following site-specific conditions may require additional information and design effort beyond the minimums listed in the checklist:

(a) *Existing Site Conditions.* Additional site design considerations may be needed where there are steep slopes, floodplains, wetlands, or waterways associated with or adjacent to the site.

(b) *Proposed Development Intensity.* Additional site design considerations may be needed with higher intensity developments, which have limited remaining areas for managing the site's stormwater runoff.

(c) *Public Drainage System Capabilities.* Additional site design considerations may be needed where the public drainage system into which the site discharges has special limitations (e.g. a combined sewer, a history of downstream flooding or existence of downstream erosion problems).

(d) *Local Neighborhood Concerns.* Additional site design considerations may be needed to address neighborhood concerns concerning drainage and related impacts caused by the proposed project.

(Ord. No. 2022-20, § 1, 7-26-22)

Secs. 2.226—2.230. Reserved.

ARTICLE 3. PROHIBITIONS AND EXEMPTIONS

Sec. 2.231. Prohibited Discharges.

No person shall discharge or in any way contribute to or cause to be introduced, directly or indirectly, into the CSDS any substance or pollutant other than stormwater or an exempted discharge. Any person discharging stormwater into the CSDS shall effectively prohibit pollutants from being discharged with the stormwater to the Maximum Extent Practicable.

(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.232. Exempted Discharges.

(1) The following discharges may enter the CSDS provided the discharges do not result in a violation of State of Michigan Water Quality Standards:

(a) Water supply line flushing and discharges from potable water sources.

(b) Landscape irrigation runoff, lawn watering runoff and irrigations waters.

(c) Diverted stream flows and flows from riparian habitats and wetlands.

(d) Rising groundwaters and springs.

(e) Uncontaminated groundwater infiltration and seepage.

(f) Uncontaminated pumped groundwater, except from groundwater cleanups specifically authorized by NPDES permits.

(g) Foundation drains, water from crawl space pumps, footing drains and basement sump pumps.

(h) Air conditioning condensation.

(i) Waters from non-commercial car washing.

(j) Flows from riparian habitats and wetlands.

(k) Dechlorinated swimming pool water from single-, two-, or three-family residences or if specifically authorized under an NPDES permit.

(l) Street wash water.

(m) Discharges or flows from emergency firefighting activities.

(n) Discharges for which a specific Federal or State permit has been issued.

(2) None of the above exemptions eliminates the need to provide appropriate pollution control or pollution prevention measures required under this Chapter or under any other Federal or State Law, rule or regulation.

(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.233. Interference with Natural or Artificial Drains.

(1) It shall be unlawful for any person to stop, fill, dam, confine, pave, alter the course of, or otherwise interfere with any natural or constructed drain, ditch, watercourse or drainage facility that is a part of the CSDS without first submitting a suitable plan and receiving a permit from the City Manager.

(2) Nothing in this Section shall preclude emergency action taken to prevent or mitigate conditions that would be injurious to the environment, the public health, safety or welfare. Any emergency action taken, which interferes or modifies any natural or artificial drain, shall be reported to the City Manager upon occurrence and a detailed report of the actions taken shall be filed within five (5) days. The report shall include location, date and time thereof, type of action and corrective actions taken. Failure to notify the City Manager immediately and the failure to file a report shall be considered a separate violation of this Chapter.
(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.234. Material Storage.

It shall be unlawful for any person to store, stockpile or dispose of any hazardous, toxic or non-toxic material including but not limited to chemicals, explosives, buoyant materials, yard wastes, log and brush piles, unsecured landscaping materials, play or work sheds, animal wastes, fertilizers, flammable liquids and pollutants unless adequate protection and/or containment has been provided to prevent such materials from entering, diverting or blocking the CSDS, except as specifically permitted by State and Federal Law.
(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.235. Basement Waterproofing.

(1) Prior to the installation of a basement waterproofing system that discharges groundwater, the property owner, or the owner's contractor, must obtain a Plumbing Permit from the Building Inspections Division of the City's Neighborhood Improvement Department. Basement waterproofing systems shall not be connected into the sanitary sewer system or discharged in such a manner as to cause a public or private nuisance. The waterproofing system must be inspected and approved by the City's Plumbing Inspector prior to putting the system into operation. The City Manager may order the owner to take corrective actions or discontinue the discharge of water from a basement waterproofing system. Each day the owner fails to comply with such order shall constitute a separate violation of this Chapter.

(2) Sump Pump Discharge.

(a) Structures requiring footing drains because of a high water table (within two (2) feet of footing drains) or impervious soils shall discharge to the CSDS only by direct connection through a sump pump equipped with a check valve system. Gravity drainage from footing drains to the CSDS is prohibited to preclude the possibility of stormwater backups into the footing drains.

(b) If a connection to the CSDS is not possible or is impractical, alternative discharge in a manner which does not create a public or private nuisance shall be allowed.

(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.236. Stormwater Discharges to Public Streets or Rights-of-Way.

Discharge from roof drains, footing drains, sump pumps and surface drains, shall not cause a public or private nuisance, nor shall the discharge be conducted to the sanitary sewer system as prohibited in Chapter 27 of the Code. The City Manager may order the owner to discontinue the discharge. Each day the owner fails to comply with such order shall constitute a separate violation of this Code.
(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.237. Catch Basin Connections.

Discharges from private property may not be connected into a public stormwater catch basin unless approved by the City Manager.
(Ord. No. 2022-20, § 1, 7-26-22)

Secs. 2.238—2.240. Reserved.

ARTICLE 4. POST-CONSTRUCTION STORMWATER MANAGEMENT STANDARDS

Sec. 2.241. NPDES Permit Holders.

Any person required by State or Federal law to obtain an NPDES permit for a discharge into the CSDS, shall provide the City with a copy of all current or proposed NPDES permits and applications, including any changes, addenda or amendments.
(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.242. Limiting Pollutants in Stormwater Discharges.

The City Manager is authorized to require dischargers to implement pollution prevention measures, Best Management Practices, or other methods necessary to prevent or reduce the discharge of pollutants into the CSDS.

(1) *Water Quality Treatment:* Treat the calculated site runoff for the entire project site from a one (1) inch rainfall event, which is approximately equal to the ninety (90) percent annual non-exceedance storm.

(2) *Total Suspended Solids (TSS):* The methods selected to treat the volume of water calculated for the water quality treatment performance standard shall be designed on a site-specific basis to achieve either a minimum of eighty (80) percent removal of TSS, as compared with uncontrolled runoff, or discharge concentration of TSS that does not exceed eighty (80) milligrams per liter (mg/l).

(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.243. Discharge Rates and Volume Control Applicability.

The City Manager is authorized to establish minimum design standards for stormwater discharge release rates and require dischargers to implement on-site retention, detention or other methods necessary to control the rate and volume of surface water runoff discharged into the CSDS when:

(1) An activity is subject to a stormwater discharge permit per Section 2.213(3)(a); or

(2) The discharge exceeds the City-calculated pre-development discharge characteristics for the subject property and the City Manager determines that the discharge contributes to an identified drainage, flooding or soil erosion problem.

(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.244. Public Safety.

Protection of the public health, safety and welfare shall be a primary consideration in the design of all stormwater facilities.
(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.245. Stormwater Drainage System Design Criteria.

(1) *Design Storms.* The following design storm standards require that the design engineer confirm the adequacy of the downstream system capacity and the existence of an acceptable emergency overland flow-way.

Type of Facility	**Design Storm**
Open Channel	
Roadside swales, ditches	10 year
Temporary construction channel	5 year
Emergency overland flow-way	100 year
Enclosed Channels (Storm drain pipes and culverts)	
Collector systems	10 year
Trunk systems	25—100 year
Detention/Retention Facilities	
Emergency overflow spillway capacity	10 year
Flood Control Design Storm	
Outside sensitive sewer sheds listed in Stormwater Standards Manual, Appendix 2	25 year
Inside sensitive sewer sheds listed in Stormwater Standards Manual, Appendix 2	100 year
Water Quality Volume (WQV)	Runoff from 1.0 inch rainfall event*
Channel protection	2 year

* Per MDEQ memo dated March 24, 2006, ninety (90) percent non-exceedance rainfall event for Grand Rapids is approximately one (1) inch.

(2) *Standard Design Storm Data.*

(a) Standard rainfall intensities for design storms used in the Rational Method, the Modified Chicago Method or similar methods are contained in Stormwater Standards Manual.

(b) A Detention Storage Graph is provided in Stormwater Standards Manual.

(c) The Natural Resources Conservation Service formerly known as Soil Conservation Service (SCS) Type II Rainfall Distribution for the total volume for a twenty-four-hour duration rain event shall be used as the standard hydrograph in modeling a stormwater drainage system's performance. Stormwater Standards Manual provides the standard data to be used for various return frequency rain events.

(3) *Guidelines for Management Practices.* The design and construction of: drainage; soil erosion and sediment control; and post-construction stormwater management facilities shall be based upon the standards contained in the MDEQ-SWQ Guidebook of Best Management Practices for Michigan Watersheds (GBMP), October 1998, as revised, the Kent County Drain Commissioner's Subdivision Drainage Rules, as revised, The City of Grand Rapids City Code, The City of Grand Rapids Standard Construction Specifications, City of Grand Rapids Stormwater Standards Manual (latest edition), this Ordinance, and/or project contract documents.

(4) *Site Specific Requirements.*

(a) *Pretreatment:* Pretreatment of site runoff is required on a site-specific basis prior to discharging to certain stormwater BMPs. Pretreatment provides for the removal of fine sediment, trash and debris, and preserves the longevity and function of the BMP.

(b) *Hot Spots and Groundwater Contamination:* Some land use activities have a potentially greater risk of polluted runoff than others. Project sites with these types of activities are referred to as "hot spots" as defined in Table 2 - Stormwater Hotspots in Stormwater Standards Manual. Hot spots also include areas with the potential for contaminating public water supply intakes and wells. Pretreatment of stormwater runoff to address pollutants associated with hot spots is required for the site. Stormwater management strategies and BMPs that reduce the potential to mobilize existing soil and groundwater contaminants, or that capture and treat stormwater runoff and/or accidental spills to protect groundwater or nearby surface waters are required per Part 3, Section E, Stormwater Standards Manual.

(c) *Coldwater Streams:* Stormwater management strategies and BMPs that minimize thermal impacts from site runoff and maximize groundwater recharge are required for sites with a surface water discharge to a coldwater stream listed in Appendix 2 of Stormwater Standards Manual.

(5) *Runoff Reduction.* Site plans shall be designed to minimize increased runoff from the proposed development by preserving floodplains and wetland areas, minimizing impervious surfaces, conveying flows in open vegetated swales, infiltrating runoff into the ground and on-site storage for irrigation purposes.

(6) *Discharge Volume and Rate Limits:*

(a) *Channel Protection:*

1. For all sites: Maintain the post-development project site runoff volume and peak flow rate at or below pre-development levels for all storms up to the two (2) year, twenty-four (24) hour event. Onsite retention of the runoff volume increase is required.

2. Where documentation meeting the requirements of the Stormwater Standards Manual indicate infiltra-

tion and site constraints, an alternative approach may be allowed after maximizing on-site design and retention options.

a. The alternative approach shall consist of extended detention of the two-year, twenty-four-hour storm for a period of twenty-four (24) hours resulting in a drawdown time no greater than seventy-two (72) hours. The resulting peak discharge shall be no greater than the existing one-year peak discharge.

b. At the sole discretion of the City, off-site mitigation; payment-in-lieu; the Alternative approach in subsection (1), above; or a combination may be considered.

3. For sites discharging stormwater runoff into a drainage system, which includes sensitive downstream open channels as listed in Appendix 2 of the Stormwater Standards Manual that are susceptible to stream bank erosion: the peak flow rate shall be the lesser of pre-development levels or 0.05 cubic feet per second per acre up to the two (2) year rain event.

(b) *Flood Control:*

1. Two (2) Acres or Larger. Developments and redevelopments, two (2) acres or larger shall have a maximum discharge rate of 0.13 cubic feet per second per acre for the event specified in Section 2.245(1).

2. Less Than Two (2) Acres. Developments and redevelopments, less than two (2) acres shall restrict discharge to the greatest extent feasible by using filtration basins or similar devices or means, provided the discharge rate does not exceed 0.26 cubic feet per second for the event specified in Section 2.245(1).

(7) *Access to Drainage Structures.* Surface drainage structures must be accessible for maintenance. An access route must be provided which shall be at least twelve (12) foot wide, no steeper than a five (5) percent grade and capable of supporting a five (5) ton truck.

(8) *Pipe / Culvert Inlet and Outlet Bar Screens.* The inlet or outlet to any pipe or culvert, which is greater than twelve (12) inches in diameter, shall be equipped with a bar screen or "critter grate". All inlet bar screens shall be designed to avoid trapping a person against the screen. Driveway culverts less than fifteen (15) feet in length are exempt from this requirement.

(9) *Leaching or Infiltration Basins and Systems.*

(a) *Basic Soil Requirements.*

1. Leaching basins may be used only in pervious soils with design infiltration rates exceeding 0.24 inches per hour per Table 5, Stormwater Standards Manual.

2. A test pit or soil boring per Stormwater Standards Manual shall be the basis for determining acceptability of soil type.

3. Where field permeability testing is conducted, the measured rate shall be divided by a factor of 2 to calculate the design infiltration capacity. The design infiltration capacity shall not exceed 3.6 inches per hour.

(b) *Determination of Number—Application of Basic Method.*

1. Soil type is suitable as determined by soil boring or test pit per Stormwater Standards Manual.

2. A minimum three (3) foot separation shall be provided between the bottom of the practice and the high groundwater table.

3. Without further calculation, one (1) standard leaching basin accom-

modates five thousand (5,000) square feet of impervious area (parking lot, building roof).

(c) *Standard Detail of Construction.*

1. Standard leaching basin detail may be obtained from the ESD.

(d) *Location.*

1. The filter fabric/sand interface of a leaching basin must be a minimum of ten (10) feet from the nearest property line.

2. Minimum distance between basins shall be fifteen (15) feet, measured from the filter fabric/sand interface.

(e) *Interconnections.*

1. All basins must interconnect by means of a storm drainpipe.

2. A connection can be made to the CSDS provided the invert is above the side well leaching area.

(10) *Stormwater Detention/Retention Facilities.*

(a) *Outfalls.* Stormwater outfalls from detention or retention facilities shall discharge to a defined downstream system with adequate capacity to handle the flow. When discharging to an open channel, an energy dissipater and/or other soil erosion protection must be provided.

(b) *Freeboard.* A minimum freeboard of one (1) foot above the design high water elevation shall be provided.

(c) *Minimum Pipe Size.* Single pipe outlets shall have a minimum inside pipe diameter of three (3) inches. When the design release rates call for more restrictive flows than can be achieved by a three (3) inch pipe, an alternate design must be provided to achieve the desired restriction. Alternate designs may include structures such as perforated risers, restrictive orifices with debris control baffles, or some other facility such as a filtration basin.

(d) *Buffer Zones.* Residential structures shall be constructed at least fifty (50) feet away from the design high water elevation of a detention basin, or twenty (20) feet from a floodway or areas subject to a base flood.

(e) *Sediment and Debris Removal.* Drainage facilities designed for the settling of suspended materials and the skimming of floating materials shall be provided with adequate vehicular access to permit normal maintenance activities. The access shall be designed and constructed in accordance with Section 2.245(6) "Access To Drainage Structures." Appropriate easements shall be granted over the access route.

(f) *Dewatering of Detention Facilities.* The bottom of a detention basin shall have at least a two (2) percent slope toward the outlet or be equipped with an adequate underdrain system to dewater the basin within twenty-four (24) hours after a rain event has ended.

(g) *Safety.* Consideration shall be given to the protection of the general public in the design of stormwater detention or retention facility. The design shall identify public safety concerns relevant to the proposed facility. Slope conditions, enclosures, screening or other measures shall be incorporated into the design of such facilities to reasonably minimize potential hazards to the public. Enclosures shall be provided and maintained in accordance with Section 421.0 "Swimming Pools" and particularly Subsections 421.1 "General", 421.9 "Enclosures for Public Swimming Pools", and 421.10 "Enclosures for Private Swimming Pools, Spas and Hot Tubs" of the National BOCA Code, as revised.

1. Detention or retention facilities that exceed two (2) feet in depth shall be constructed with side slopes not to exceed twenty-five (25) percent in grade unless the slope is existing.

2. Detention facilities shall be provided with a permanent enclosure (fence) when its side slopes exceed seventeen (17) percent grade, or the average depth exceeds three (3) feet. The average depth is determined by the maximum design volume divided by the water surface area of the basin at the design high water elevation.

3. Retention facilities which have maximum depths exceeding two (2) feet shall either be enclosed or shall be surrounded by a dense wetland type vegetative barrier which is a minimum of twenty (20) feet wide and the water depth within the barrier does not exceed two (2) feet.

4. The above slope parameters apply strictly to slopes that are created with the construction of the detention or retention facility. Proposed facilities with existing slopes with a well established vegetative cover shall be evaluated for the need of an enclosure or barrier on a site specific basis.

(11) *Emergency Overflow Flow-Way.* Whenever a stormwater facility, including all storage and conveyance features, is constructed for a design storm less than the one hundred (100) year storm, an emergency overland flow-way and easements shall be provided to convey or store that portion of the one hundred (100) year runoff which the facility does not manage. Any easements are to be on a form approved by the City Attorney and recorded with the Kent County Register of Deeds.

(12) *Stormwater Conveyance Systems.*

(a) *Connections.*

1. Stormwater discharges shall not be directed into a sanitary sewer. Exceptions may be granted by the ESD for developments located within a combined sewer area, once all other alternatives for managing the stormwater have been exhausted.

2. Where stormwater will be discharged to the City Combined Sewer System, storm and sanitary shall remain separate within the project boundary and be combined at the last structure prior to connection to the City main, where feasible as determined by the City Manager.

3. Roof drains, which are to be connected to the public underground drainage system, shall pass through a pressure relief structure or catch basin before connecting to the public drainage system.

(13) *Storm Drain Pipes.*

(a) *Pipe Size.* A minimum pipe diameter of twelve (12) inches is standard for public systems and three (3) inches for private systems.

(b) *Slopes and Hydraulic Gradient.* The standard recommended minimum slope for storm drains shall produce a velocity of two and one-half (2.5) feet per second when the storm drain is flowing full. For pipe less than eighteen (18) inches in diameter, the minimum grade shall be one-half (0.5) of one (1) percent.

(c) *Spacing of Manhole Structures.* Manhole spacing shall not exceed three hundred fifty (350) feet for pipes less than or equal to seventy-two (72) inches in diameter and shall not exceed seven hundred (700) feet for those greater than seventy-two (72) inches.

(d) *Minimum Clearances for Storm Sewer Pipe Shall Comply With the Following Criteria:*

1. *Road Base.* A minimum of one (1) foot is required between the bottom of the road base material and the outside crown of the storm drain.

2. *Utility Conflicts.* For utility conflicts that involve crossing a storm drain, the minimum design clearance between the outside of the pipe and the outside of any conflicting utility shall be 0.5 foot.

3. *Utility Placement.* Storm drain systems shall not be placed parallel to and below existing utilities, which could cause utility support problems. The recommended clearance is two (2) feet extending from each side of the storm drain and one (1) on one (1) side slopes from the trench bottom.

4. *Manholes.* Utility lines shall not, as a rule, pass through any manhole or pipe. The utility line (e.g., gas, water, electrical conduit, etc.) shall be offset in such a way as to provide adequate clearance between the crossing. When a sanitary line or other utility must pass through a manhole, the greatest possible clearance from the bottom of the flow channel shall be provided with a minimum of one (1) foot clearance. When utilities are run through a manhole, they shall be installed in such manner as to avoid impeding maintenance access.

(14) *Open Channels.*

(a) Natural stream and channel systems shall be preserved.

(b) Streams and channels shall be designed and constructed to avoid streambank erosion in accordance with the guidance provided in the GBMP.

(c) Manning's "n" Values For Constructed Open Channels can be found in Stormwater Standards Manual.

(d) Channel side slopes shall be stable throughout the length.

(e) "V" or Triangular shaped channels are not allowed.

(f) The design of artificial open channels shall be consistent with the velocity limitations found in the GBMP for various "Runoff Conveyance and Outlets".

(g) Channel slopes shall be stabilized against erosion by either adequate vegetation or protective armoring.

(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.246. Offsite Mitigation and Payment-in-lieu.

(1) The water quality treatment and channel protection performance standards focus on maintaining or restoring stable hydrology. However, potential physical constraints may limit the ability to fully meet the post-construction requirement at the project site. When physical constraints limit the feasibility of maintaining or restoring hydrology, offsite mitigation and/or payment-in-lieu may be approved by the City. Offsite mitigation will only be considered if there is a planned or constructed private mitigation bank or project immediately downstream. the City will only consider payment-in-lieu if the City has a planned or constructed water quality improvement project immediately downstream. The cost of payment-in-lieu will be considered on a case to case basis and will represent the actual cost of implementing public downstream water quality enhancements. Any request for payment-in-lieu shall be accompanied by a development agreement that clearly states a public/private partnership has been formed for the site development. Payment-in-lieu will be considered, at the discretion of the City, when reviewing a project of regional significance.

(2) Consideration of either off-site mitigation or payment-in-lieu will be entirely the discretion of the City.

(3) Offsite mitigation refers to BMPs implemented at a location different from the original project site.

(4) Payment-in-lieu refers to the developer paying a fee to the City that is applied to a public stormwater management project. The stormwater management project may be either a new BMP or a retrofit to an existing BMP and developed in accordance with the Stormwater Standards Manual.

(5) The location for offsite mitigation and payment-in-lieu projects shall be within the same watershed and Sewershed as the original project,

and within the City's jurisdictional boundaries. The watershed is the area represented by the State of Michigan, EGLE, ten (10) digit Hydrologic Unit Code (HUC). The Sewershed is the area where stormwater is conveyed by an MS4 to a common outfall or point of discharge.

(6) The determination to approve offsite mitigation or payment-in-lieu will be based on multiple criteria and not solely on the difficulty of cost of implanting BMPs on site. Conditions under which the option to move offsite would become available may include:

(a) Limited size of the lot outside of the building footprint to create the necessary infiltration capacity even with amended soils.

(b) Soil instability as documents by a thorough geotechnical analysis.

(c) A site use that is inconsistent with capture and reuse of stormwater.

(d) Too much shade or other physical conditions that preclude adequate use of plants.

(e) The potential water quality impact from the original project site and the benefits realized at the offsite location.

(7) The City may approve offsite mitigation or payment-in-lieu if the developer demonstrates that site constraints preclude sufficient treatment and restoration of hydrology onsite. At a minimum the City requires:

(a) *Offsite ratio.* The offset ratio for the amount of stormwater not managed onsite in relation to the amount of stormwater required to be mitigated at another site, or for which in-lieu payments will be made as follows:

1. *First Tier:* Manage a minimum of zero point four (0.4) inches of stormwater runoff onsite and provide a one (1) to one point five (1.5) offset ratio for the remaining amount of stormwater managed offsite.

2. *Second Tier:* If it completely infeasible to manage the minimum onsite, provide a one to two (1:2) offset ratio for the amount of stormwater managed onsite.

(b) *Schedule.* Offsite mitigation and payment-in-lieu projects shall be completed within twenty-four (24) months after the start of the original site construction.

(c) *Assurances.* Offset and in-lieu projects shall be preserved and maintained in perpetuity through the procedures and tracking system administered by the City.

(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.247. Alternative Approach.

(1) In many cases, infiltration will likely be used as the primary means of retention. It is not, however, the sole means of providing onsite retention, and the developer must include consideration of stormwater reuse, interception, evapotranspiration, and other vegetative (non-structural) BMPs at the project site. Site constraints that limit the use of infiltration may include:

(a) Poorly draining soils (<0.24 inches per hour; typically, hydrologic soil groups C and D).

(b) Bedrock.

(c) High groundwater, or the potential of mounded groundwater to impair other uses.

(d) Wellhead protection areas.

(e) Stormwater hot spots.

(f) Parts 201 and 213 sites, and areas of soil or groundwater contamination.

(2) The City may grant a waiver of the onsite retention criteria for channel protection described in Section 8.02 and allow an alternative approach to meet the channel protection performance standard if the developer demonstrates that site constraints preclude sufficient retention onsite. If a waiver is granted, the developer must meet the following extended detention criteria:

(a) Extended Detention: Detain the portion of the channel protection volume unable to be retained onsite for a minimum of

twenty-four (24) hours with a maximum release rate no greater than the existing one (1) year peak discharge, and a draw-down time no greater than seventy-two (72) hours. A waiver from the City must be granted to use this alternative approach.

(Ord. No. 2022-20, § 1, 7-26-22)

Secs. 2.248, 2.249. Reserved.

ARTICLE 5. SOIL EROSION AND SEDIMENTATION CONTROL

Sec. 2.250. Enforcement Authority.

The City of Grand Rapids is designated as the Municipal Enforcement Agency for this Article to enforce these provisions as well as those of Part 91, Soil Erosion and Sedimentation Control (SESC), of the Natural Resources and Environmental Protection Act, 1994 PA 451 as amended (Part 91) and the administrative (rules) promulgated under Part 91.

(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.251. Responsibility to Prevent Soil Erosion and Discharge of Sediments.

(1) It shall be the responsibility of the property owner and all other persons participating in, causing or being factually or legally responsible for any earth change to provide soil erosion and sedimentation control to adequately prevent soil from being eroded and discharged onto adjacent properties, or into a CSDS, a public street or right-of-way, wetland, creek, stream, water body or floodplain.

(2) During any earth change that exposes soil to an increased risk of erosion, the property owner and any other person participating in such an earth change shall, at a minimum:

(a) Prevent damage to or impairment of any wetland, creek, stream or water body on or near the site,

(b) Prevent damage to any public utilities or services within the limits of grading and along any routes of travel of the equipment,

(c) Prevent damage to adjacent property,

(d) Determine, apply for and receive, all applicable approvals or permits prior to the commencement of work,

(e) Implement the proposed work in accordance with the approved plans and in compliance with all the requirements of this Chapter and any permits issued pursuant to this Code,

(f) Maintain all necessary or required soil erosion and sediment control measures including, but not limited to, measures required to comply with the provisions of this Chapter,

(g) Prevent entry of soil, sediment, miscellaneous debris or other materials and promptly remove any material applied, dumped or otherwise deposited on any other properties, public streets, highways, sidewalks, or other public thoroughfares including catch basins, storm pipes, ditches, drainage swales, creeks or other bodies of water. Removal within twenty-four (24) hours shall be required, unless such materials present an immediate hazard to public health and safety or the environment. In which case immediate removal may be required,

(h) Refrain from grading on land so close to the property line as to endanger any adjoining public street, sidewalk, alley or any public or private property without supporting and protecting such property or structures from settling, cracking or other damage which might result,

(i) The owner shall have the soil erosion and sediment control measures inspected weekly and within twenty-four (24) hours of a rain event of sufficient quantity to cause runoff. The inspection for sites one (1) acre or greater shall be conducted by a EGLE certified Construction Site Storm-

water Operator who shall maintain written inspection logs on forms approved by the City Manager.

(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.252. Permit or Authorization Requirement.

(1) A Soil Erosion and Sedimentation Control (SESC) Permit must be obtained by the Land Owner, or any other person participating in any earth change, prior to beginning the earth change, or any other work which could cause soil to be exposed to potential erosion. An Authorization to Proceed with Earth Change must be obtained by any entity or contractor performing work on behalf of the City. Failure to obtain an SESC Permit, or Authorization to Proceed with Earth Change as applicable, prior to beginning any earth change requiring a permit or authorization is a violation of this Chapter.

(2) The SESC permit application and permit, or Authorization to Proceed with Earth Change as applicable, shall be administered and enforced as a component of a consolidated application and permit called the Land Use and Development Permit required by Chapter 67 of the Code.

(3) The Land Owner shall obtain an SESC Permit, or the entity performing work on behalf of the City shall obtain an Authorization to Proceed with Earth Change as applicable, when the earth change activity is associated with any of the following conditions unless exempted in Section 2.253.

(a) Earth change involving areas greater than two thousand five hundred (2,500) square feet,

(b) A plat, subdivision, Planned Unit Development, Planned Redevelopment District, Planned Industrial Development, Site Condominiums, Permitted with Approval Developments, Site Plan Review Development, Planned Redevelopment District, multi-family residential developments, or when otherwise required by the Planning Director, Planning Commission, or Board of Zoning Appeals,

(c) A parking area greater than one thousand (1,000) square feet,

(d) Any earth change within five hundred (500) feet of a wetland, creek, stream, lake, water body or floodplain,

(e) A requirement of a Corrective Action Notice, Consent Order, or Compliance Order,

(f) A condition of a building permit to assure that the proposed earth change will have adequate soil erosion and sedimentation controls to protect the neighborhood, the CSDS and the environment.

(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.253. Exemptions From Obtaining an SESC Permit.

(1) Earth changes undertaken by Authorized Public Agencies designated under the Natural Resources and Environmental Protection Act, MCL 324.101 et seq., Part 91, Soil Erosion and Sedimentation Control are exempted from obtaining soil erosion control permits. However, such entities performing work on behalf of the Authorized Public Agency, must obtain an Authorization to Proceed with Earth Change and comply with all control design requirements found in Section 2.259.

(2) Exemptions provided for in Sections 9115 and 9115a of Part 91 and Rule 323.1705.

(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.254. Permit or Authorization Application.

(1) A permit or authorization application along with the SESC Plan and a non-refundable application fee as established by the City Commission shall be submitted to the City Manager by the Land Owner or designated agent for the earth change for each SESC Permit or Authorization to Proceed with Earth Change. The SESC plans shall be prepared and signed by a Michigan licensed professional engineer or a Michigan licensed architect.

(2) In addition to issues that are directly related to the viability of a proposed project for which the application is being made, an applicant

may be denied a permit or authorization when the applicant has a documented history of non-compliance with this Chapter or previously issued permits or authorizations.

(3) A permit holder or authorization holder may request in writing, from the City Manager, an extension of time for the completion of the project no later than ten (10) days prior to the expiration of the permit or authorization. Such requests shall state the reason for the extension and new completion date. The City Manager may grant additional time for the completion of the project. The terms and conditions of bonding remain in effect.
(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.255. Application Review Fee.

(1) A non-refundable application review fee shall be paid by the property owner for the review and processing of the SESC permit or by the Authorization to Proceed with Earth Change application, plans, and pertinent documents.

(2) The application review fee shall be established by City Commission resolution.
(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.256. Permit or Authorization Fee.

(1) A non-refundable permit or authorization fee shall be paid by the property owner for the permit, or the entity performing work on behalf of the City for the authorization, administration and site inspection.

(2) If the site work at the applicant's site is not completed and the site stabilized by the time the permit or authorization expires, the applicant shall request a permit or authorization extension and pay an additional permit or authorization fee for the extension period.

(3) Failure to request a permit or authorization extension shall be a violation of this Section, and may result in forfeiture of the applicant's surety and other possible enforcement action against the applicant.

(4) The permit or authorization fee and permit or authorization extension fee shall be established by City Commission resolution.
(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.257. Surety Requirements.

(1) The property owner or the owner's agent shall post an acceptable surety bond, without an expiration date, with the City Manager, payable to the City. In lieu of a surety bond, an acceptable, irrevocable letter of credit or cash deposit, of equal value, shall be filed with the City Manager. The termination date on a letter of credit shall be at least one (1) year beyond the permit's or authorization's expiration date. A new letter of credit shall be required with an Applicant's permit or authorization extension request unless the existing letter of credit has a termination date that is at least one (1) year past the permit or authorization extension's expiration date. The bond or letter of credit shall be in a form acceptable to the City's Risk Manager.

(2) The bond, letter of credit or cash deposit is for the purpose of:

(a) Undertaking work to protect all areas subject to accelerated soil erosion should development discontinue; and

(b) Implementing and maintaining soil erosion and sedimentation control measures necessary to protect the work specified in the approved SESC Plan as authorized by the permit or authorization. The bond shall provide for compliance with all applicable laws, rules, regulations, ordinance and permit or authorization requirements. The bond shall include penalty provisions for failure to properly complete the work on schedule or comply with the requirements, conditions and terms specified in the SESC Plan and associated permit or authorization requirements.

(3) Upon completion of the permitted or authorized project, the Applicant may request the return of the surety. However, the City Manager may retain such surety for up to one (1) year past the completion of the project to assure

that the site remains stabilized and all permanent drainage control measures are maintained and functioning properly.

(4) The surety shall be in the amount of:

(a) Five thousand dollars ($5,000.00) for the first acre of disturbed area.

(b) Two thousand dollars ($2,000.00) for each additional acre of disturbed area rounded up to the next whole acre.

(5) This surety requirement may be waived at the sole discretion of the City Manager, only after the review of sound scientific or engineering data by the City Manager that has determined that the potential risk of soil eroding from the site and causing damage to the environment, adjacent properties or the CSDS is negligible.
(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.258. Modifications to Approved Plan, Permit, or Authorization.

(1) All modifications to, or deviations from, the permit, authorization, or the proposed earth change as shown on the approved SESC Plan must be submitted to and approved by the City Manager. Failure to obtain approval by the City Manager prior to beginning such work is a violation of this Chapter.

(2) Nothing in this Section shall preclude emergency action being taken to prevent or mitigate conditions that would be injurious to the environment, the public health, safety or welfare. Any emergency action taken, which interferes or modifies any natural or artificial drain, shall be reported by the property owner or the applicant on behalf of the property owner to the City Manager upon occurrence. The owner or applicant shall prepare a detailed report including appropriate drawings and shall file these with the City Manager within five (5) days. The report shall include location, date, and time thereof, type of emergency action and follow-up corrective actions taken. Failure to notify the City Manager at the time of the occurrence and failure to file a detailed report shall be separate violations of this Chapter. Every day the permittee or authorization holder fails to comply with this Section shall constitute a separate violation of this Chapter.
(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.259. Soil Erosion and Sedimentation Control Design.

(1) *Soil Erosion and Sedimentation Control Plan Requirements.* The plan shall include, but not be limited to, all of the following:

(a) A map or maps at a scale of not more than one hundred (100) feet to the inch or as otherwise determined by the City. A map shall include a legal description and site location sketch that includes the proximity of any proposed earth change to lakes or streams, or both; predominant land features; and contour intervals or slope description.

(b) A soils survey or a written description of the soil types of the exposed land area contemplated for the earth change.

(c) Details for proposed earth changes, including all of the following:

1. A description and the location of the physical limits of each proposed earth change.
2. A description and the location of all existing and proposed.
3. The timing and sequence of each proposed earth change.
4. The location and description for installing and removing all proposed temporary soil erosion and sediment control measures.
5. A description and the location of all proposed permanent soil erosion and sediment control measures.
6. A program proposal for the continued maintenance of all permanent soil erosion and sediment control measures that remain after project completion, including the designation of the person responsible for the maintenance. Maintenance responsibilities shall become a part

of any sales or exchange agreement for the land on which the permanent soil erosion control measures are located.

(2) *Basic Design Principles and Construction Methods.*

(a) The design of soil erosion and sedimentation control systems involve the application of planning, scheduling and control actions that will minimize the adverse impacts of erosion, transport and deposition of soil. The following five (5) basic principles are essential elements that must be incorporated in a sound soil erosion and sedimentation control plan prior to the disturbance of the site.

1. The project shall be, to the greatest extent possible, planned to harmonize with the natural topography, soil types, waterways and existing vegetation found at the site.

2. On-site erosion control measures shall be utilized to prevent erosion from the site to the greatest extent possible.

3. Sedimentation control measures shall be utilized to prevent soils from being washed off the site.

4. An ongoing inspection and maintenance program shall be developed and approved by the ESD prior to any disturbance of soil on the site.

(b) In practice, these principles shall be used together in the planning process. The planning process shall identify potential soil erosion and sedimentation control problems before soils on the site are disturbed. Vegetative control measures are required for all disturbed areas and generally shall include filter strips, temporary or permanent seeding, sodding, mulching and erosion-control blankets. Structural control measures are required when runoff leaves a disturbed site and generally include sediment traps, diversions, sediment basins and permanent drainage facilities.

(c) The soil erosion and sedimentation control plan shall include appropriate construction specifications for all control measures. These specifications shall be developed by the design engineer as required to address site-specific conditions. Typical specifications may be obtained from the Guidebook of Best Management Practices for Michigan Watersheds, available from the Michigan Department of Environmental Quality.

(d) Construction Sequencing (TREATMENT TRAIN). Soil erosion and sedimentation control measures shall start with erosion protection where soil is disturbed and follow with proper conveyance and filtering measures and placing sediment basins/traps at low points before runoff leaves the site.

(e) Removal. All temporary soil erosion and sedimentation control measures shall be removed after the final site stabilization is achieved or after the temporary measures are no longer needed.

(3) *Soil Stabilization.*

(a) *Soil Erosion Protection.* The surface of stripped areas shall be protected from soil erosion immediately after the final grade is reached. Temporary erosion protection shall be provided over stripped areas that are not at final grade. Temporary protection shall be maintained until permanent protective cover is established and the site is stabilized.

(b) *Vegetative Measures.* For vegetative soil stabilization measures, plants shall be selected which are appropriate to the season and site conditions. Adequate seedbed preparation shall be provided for plants to germinate and grow.

(c) *Earth Structures.* Stabilization measures shall be applied to earthen structures such as dams, dikes and diversions immediately after installation.

(d) *Watercourses.* The bed and banks of a watercourse shall be continuously stabilized as work progresses along the watercourse.

(e) *Stockpiles.* If a stockpile of soil is to remain in place more than three (3) days, soil erosion and sedimentation control measures shall be provided such as a tarp cover, sediment trap around the stockpile or seed and mulch.

(f) *Area Limitation.*

1. Disturbed areas draining one (1) acre or less are to be protected by a flow barrier such as silt fences or check dams to control runoff. Vegetated filter strips shall not be used as a primary device but can be used as a backup in conjunction with other control measures.
2. Disturbed areas larger than one (1) acre shall have sediment controls, such as a sediment basin, in addition to flow barriers.

(g) *Concentrated Flows.* Concentrated runoff shall not be allowed to flow down cut or filled slopes. Runoff shall be contained within an adequate temporary or permanent channel, flume or slope drain structure.

(h) *Velocity Control.* Stormwater conveyance facilities that are either temporary or permanent in nature shall be designed to prevent erosive velocities.

(i) *Storm Drain Protections.* Storm drain inlets shall be protected with sediment trapping and filter control devices during construction.

(j) *Construction Site Ingress and Egress.* A stabilized mat of aggregate, underlain with filter fabric material, shall be located at any point where vehicular traffic will be entering and leaving a construction site. When the tracking of soil offsite becomes a particular problem, a wash station(s) and/or street sweeping shall be required to reduce soil tracked offsite.

(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.260. Reserved.

ARTICLE 6. FLOODPLAIN STANDARDS*

Sec. 2.261. Designation of Regulated Flood Prone Hazard Areas.

(1) This Article is to regulate the development of land located in the Floodplain and protect the public and the environment from flood losses or damage consistent with requirements of the National Flood Insurance Program.

(2) The Federal Emergency Management Agency (FEMA) Flood Insurance Study (FIS) Entitled "Flood Insurance Study for Kent County, All Jurisdictions" and dated February 23, 2023 and the Flood Insurance Rate Map (FIRM) panel numbers shown on the index panels: 26081CIND1A and 26081CIND2A, effective February 23, 2023, are adopted by reference for the purposes of administration of the Michigan Construction Code, and declared to be a part of Section 1612.3 of the Michigan Building Code, and to provide the content of the "Flood Hazards" section of Table R301.2(1) of the Michigan Residential Code.

(3) The City Clerk shall maintain a master copy of the above study and associated maps for public inspection. The FEMA maps shall take precedence over any other source of Floodplain information.

(Ord. No. 2023-04, § 2, 1-24-23)

Sec. 2.262. Standards for Flood-Resistant Construction.

(1) Pursuant to the provisions of the state construction code, in accordance with Section 8b(6) of Act 230, of the Public Acts of 1972, as amended, Appendix G of the Michigan Building Code, "Flood-Resistant Construction," shall be enforced by the enforcing agency within the jurisdiction.

***Editor's note—**Ord. No. 2023-04, § 2, adopted January 24, 2023, amended Article 6 in its entirety to read as herein set out. Former Article 6, §§ 2.261—2.265, pertained to similar subject matter, and derived from Ord. No. 2022-20, § 1, 7-26-22.

(2) If there is a conflict between the provisions and restrictions of this Chapter and other provisions of the building regulations of Title V and Title VIII of the Code, the more restrictive shall apply.

(3) The City shall maintain permanent records of all permit reviews within the One Hundred-Year Floodplain.
(Ord. No. 2023-04, § 2, 1-24-23)

Sec. 2.263. Special Conditions.

Upon reviewing all data and materials and before issuing any permit, the City Manager may attach conditions to the issuance of said permit which relate to Floodplain management and Flood-proofing, which are reasonably necessary to further the intent and spirit of this Chapter and protect the general public health, safety, and welfare.
(Ord. No. 2023-04, § 2, 1-24-23)

Sec. 2.264. Advisability of Additional Flood Protection.

The degree of flood protection required by this Chapter is hereby found to be the minimum necessary and reasonable for regulatory purposes. Larger floods may occur and higher floodwater heights may occur than will be mitigated or controlled by compliance with these requirements. This Chapter shall not be interpreted to imply or guarantee that areas outside the Floodplain, or uses permitted within such area, shall remain free from flooding or flood damage. Compliance with the terms of this Chapter will not guarantee freedom from damage, injury or loss of life. This Chapter shall not create liability for the City of Grand Rapids or any officer, agent or employee of the City for any flood or flood related damage.
(Ord. No. 2023-04, § 2, 1-24-23)

Secs. 2.265—2.270. Reserved.

ARTICLE 7. ADMINISTRATIVE APPEALS AND PROCEDURES

Sec. 2.271. Right of Appeal.

The City Manager shall conduct hearings or may appoint an impartial Hearing Officer to conduct hearings related to orders provided for in this Chapter and to hear appeals of decisions to deny a permit, plan approval or request for variance related to stormwater issues. The appeal to the City Manager should be an appeal of right.
(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.272. Appeal Procedures for Administrative Orders.

(1) Any person, receiving a Cease and Desist Order, Compliance Order or Stop Work Order may request a hearing regarding such order. A written request for such a hearing shall be made to the designated person and address indicated on the order within ten (10) business days after receiving the order. A hearing date, time and place shall be set as soon as is practical but not later than thirty (30) business days after receipt of the request for a hearing.

(2) Once the requested hearing has been conducted, a person shall have the right to appeal the results of that hearing except for any matter disposed of by a consent order, stipulation, agreement or mutual waiver. A written notice of appeal shall be filed with the City Clerk within ten (10) business days from the closing of the hearing. The Clerk shall refer a copy of this notice to the City Manager or the designated Hearing Officer. The City Clerk shall also confer with the City Manager or the designated Hearing Officer to set a hearing time as soon as is practical but not later than thirty (30) business days after the filing of the notice of appeal with the City Clerk. The hearing shall be conducted by the designated Hearing Officer. The issue to be determined is whether the denial of the permit, plan approval or variance was consistent with provisions of this Chapter. The designated Hearing Officer shall render a written decision within a reasonable time stating the factual basis for the decision and the reasons for the decision.
(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.273. Appeal Procedures for Permit or Variance Denials.

Where proper application is made for a permit, plan approval or a variance, and such permit,

plan approval or variance is denied by the City for stormwater related reasons, the applicant shall have the right to appeal such a denial as elsewhere provided for by law or in this Chapter. For purposes of this Article, denial of a permit, plan approval or variance shall include refusal to issue an original permit or variance, the refusal to renew or reissue an existing permit or variance, or the refusal to approve an original or modified plan. Within ten (10) business days of notification of denial, applicant shall file with the City Clerk a written notice of appeal. The Clerk shall refer a copy of this notice to the City Manager or the designated Hearing Officer. The City Clerk shall also confer with the City Manager or the designated Hearing Officer to set a hearing time as soon as is practical but not later than thirty (30) business days after the filing of the notice of appeal with the City Clerk. The hearing shall be conducted by the designated Hearing Officer. The issue to be determined is whether the denial of the permit, plan approval or variance was consistent with provisions of this Chapter. The designated Hearing Officer shall render a written decision within a reasonable time stating the factual basis for the decision and the reasons for the decision.
(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.274. Hearing Procedure.

Any hearing conducted pursuant to the provisions of this Chapter shall be conducted in substantial compliance with the following provisions:

(1) The appellant to an administrative order or an applicant of a denied permit or variance shall be notified of the time, date and place of the hearing;

(2) The appellant to an administrative order or an applicant of a denied permit or variance shall be entitled to be represented by legal counsel, to submit evidence, to cross-examine testifying witnesses, and to make arguments concerning the factual and legal issues;

(3) The City Manager or Hearing Officer may direct the City or another party to disclose relevant information, state-

ments, reports or data to the other party or to the City Manager or Hearing Officer;

(4) If the party requesting a hearing or appeal fails to appear or to present evidence or arguments, the City Manager or Hearing Officer may enter a decision in favor of the City or another party by virtue of this default. The City Manager or Hearing Officer may also, in his or her discretion, proceed with the matter at hand and make a decision in the absence of the party;

(5) In any hearing, the rules of evidence shall be followed as far as practicable, however, the Hearing Officer may admit and give probative effect to evidence of a type commonly relied upon by reasonably prudent people in the conduct of their affairs. Notice may be taken of facts within the general knowledge of the community;

(6) The City Manager or Hearing Officer may limit the presentation of evidence, arguments or other material to those matters relevant, material and pertinent to the issue or issues at hand. The City Manager or Hearing Officer may accept an agreement or stipulation by the parties as to facts, conclusions or other matters, which agreement or stipulation, once accepted shall be binding;

(7) The Hearing Officer shall review the City's decision to determine whether the permit denial or administrative order is in violation of the law, has been procured by fraud, is an abuse of discretion, and whether the decision is supported by competent, substantial and material evidence on the record as a whole or should otherwise be reversed or modified to accomplish the goals of this Chapter. The City shall have the responsibility for demonstrating the City's basis for the original action or order, or the denial of the permit, plan approval or variance. It is the responsibility of the appealing party to demonstrate that the administrative order should be reversed or modified, or the permit or variance should be issued.

(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.275. Right to Further Appeal.

An appeal of the City Manager's decision shall be to the Kent County Circuit Court.
(Ord. No. 2022-20, § 1, 7-26-22)

Secs. 2.276—2.280. Reserved.

ARTICLE 8. INSPECTION, MONITORING AND MANDATORY REPORTING

Sec. 2.281. Inspection and Sampling.

The City Manager or designee may inspect and/or obtain stormwater samples from the stormwater facilities of any discharger to determine compliance with the requirements of this Chapter, or other State and Federal regulations. Upon request, the discharger shall allow the City Manager to enter upon the premises of the discharger at all hours necessary for the purposes of such inspection or sampling. The City Manager shall provide the discharger reasonable advance notice of such inspection and/or sampling. The City Manager shall have the right to set up on the discharger's property devices to conduct such sampling or inspection.
(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.282. Stormwater Monitoring Facilities.

(1) When deemed necessary by the City Manager, each industrial or commercial entity discharging stormwater runoff to the CSDS shall provide and operate at the entity's expense, a stormwater monitoring and sampling facility for each discharge. Monitoring facilities shall be situated on the discharger's premises, except where such a location would be impractical or cause undue hardship on the discharger. The City Manager may concur with the facility being constructed in the public right-of-way providing that the facility is located so that landscaping or parked vehicles will not obstruct it.

(2) There shall be ample room in or near such sampling facilities to allow accurate sampling and preparation of samples for analysis. The facility, sampling and measuring equipment shall be maintained at all times in a safe and proper operating condition, at the expense of the discharger.

(3) All required monitoring facilities shall be constructed and maintained in accordance with all applicable local construction standards and specifications (non-permitted confined space structure where feasible).
(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.283. Accidental Discharges.

(1) Any accidental discharge into the CSDS, of a substance other than an exempted discharge, shall be reported to the City Manager immediately upon occurrence. A detailed report shall be filed within five (5) days. The report shall include location of discharge, date and time thereof, type of substance, concentration, volume and corrective actions. Failure to file a report shall be a violation of this Chapter. Every day the discharger fails to comply with this Section shall constitute a separate violation of this Code.

(2) Any discharger who wishes to establish the affirmative defense of accidental discharge shall demonstrate, through properly signed, contemporaneous operating logs or other relevant evidence that:

(a) An accidental discharge occurred and the discharger can identify the cause,

(b) If applicable, the facility was, at the time, being operated in a prudent and appropriate manner and in compliance with applicable operation and maintenance procedures,

(c) The discharger notified the City Manager immediately upon becoming aware of the accidental discharge,

(d) A written submission, containing the following information, was provided within five (5) days of commencement of the accidental discharge:

1. A description of the discharge and cause of noncompliance with this Chapter;
2. The period of noncompliance, including exact dates and times or, if not corrected, the anticipated time the noncompliance was expected to continue;
3. Steps taken to reduce, eliminate and prevent recurrence of the noncompliance.

(Ord. No. 2022-20, § 1, 7-26-22)

Secs. 2.284—2.290. Reserved.

ARTICLE 9. VIOLATIONS, PENALTIES AND LIABILITIES

Sec. 2.291. Violations.

(1) Any of the following shall, in addition to violations already defined in this Chapter, constitute a violation of this Code:

(a) Failure to comply with any provision of this Chapter or any applicable State or Federal law relating to the collection, conveyance or discharge of stormwater;

(b) Failure to comply with the specifications, limitations, conditions or time limits of a permit or variance issued pursuant to one (1) of the provisions of this Chapter;

(c) Failure to comply with an Administrative Order issued pursuant to the provisions of this Chapter.

(2) Any person or entity found to be in violation of any provision of this Chapter including any condition, restriction or limitation of any permit, specification, order, directive, regulation or rule promulgated pursuant to the authority granted in this Chapter shall be subject to the penalties provided for in Section 1.13 of this Code. Each day that a violation occurs or continues shall be deemed a separate violation, as provided for in this Code.
(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.292. Recovery of Costs Incurred by the City.

Any discharger violating any of the provisions of this Chapter, or who discharges or causes a

discharge producing a deposit or obstruction, or causes damage to or impairs the City's CSDS shall be liable to the City for any expense, loss or damage caused by such violation or discharge. This shall include, but not be limited to, penalties levied upon the City by the EPA or EGLE for violation of its NPDES permit caused by any violation by a discharger.
(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.293. Falsifying Information.

No person shall knowingly make any false statement, representation or certification in any application, record, report, plan or other document filed or required to be maintained pursuant to this Chapter, nor shall any person falsify, tamper with, interfere with, or knowingly render inaccurate any monitoring device or method used pursuant to this Chapter.
(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.294. Criminal and Civil Liability.

(1) Any discharger in violation of this Chapter, or of any permit issued pursuant to it, or the rules and regulations of the CSDS adopted pursuant to this Chapter, or any order of the City Manager issued pursuant to those rules and regulations or this Chapter, may be subject to a penalty of not less than five hundred dollars ($500.00) per day, or not to exceed penalties imposed by the Home Rule Cities Act, or if convicted of violating this Chapter, by imprisonment for not more than ninety (90) days or both such penalty and imprisonment. Each act of violation and every day upon which any violation is permitted or suffered to exist, shall constitute a separate violation and shall be punished separately. In the case of a conviction pursuant to this Section of a discharger who is not a natural person, any officer or director of a corporation, any officer or partner of a Partnership, or any officer or owner of a Proprietorship is hereby deemed to be a proper person to serve any term of imprisonment imposed by the court as a result of the conviction.

(2) In addition to, and expressly not in lieu of, the foregoing criminal penalties which may be imposed, any discharger who violates this Chapter, or any permit issued pursuant to it, or the rules and regulations of the CSDS adopted pursuant to this Chapter, or any order of the City Manager issued pursuant to those rules and regulations of this Chapter, shall be subject to civil penalties, and to the payment of any damages and costs which may be awarded, by any court of competent jurisdiction.
(Ord. No. 2022-20, § 1, 7-26-22)

Sec. 2.295. Enforcement Procedures.

(1) *Nature of the Violation.* Once an investigation finds that a violation has occurred and the suspected responsible parties have been identified, enforcement action is to be initiated. A progressive approach to enforcement will be used to achieve compliance with the CSDS ordinance. The specific enforcement action(s) taken will consider the nature of the violation using the following criteria:

(a) *Magnitude of the Violation.*

1. Generally, an isolated instance of noncompliance can be addressed with a response such as a NOV. Violations, which meet one (1) or more of the following criteria, may subject the responsible party to escalated enforcement actions.
2. Any person or organization that receives three (3) or more NOV within a one (1) year period shall be considered a chronic violator.
3. Any discharge of a pollutant or sediment that has caused or is likely to cause imminent endangerment to human health and welfare or the environment and has resulted in the ESD exercising emergency authority to halt or prevent such a discharge.
4. Violations of any Administrative Orders for starting construction, completing construction, or attaining final compliance.
5. Failure to report or accurately report an accidental illicit discharge into

the Stormwater System, nearby properties, wetlands or natural watercourses or water bodies.

(b) *Duration of the Violation.* Violations, regardless of the severity, which continue over prolonged periods of time shall subject the responsible party to escalated enforcement actions. Escalated actions shall include monitoring and assessment of penalties. The additional costs incurred by the City for inspections and compliance enforcement will be assessed against the responsible party.

(c) *Effect of the Violation on the Receiving Waters.* One (1) of the primary objectives of the Federal Clean Water Act and associated stormwater regulations is to keep pollutants from "passing through" the CSDS and entering the receiving waters of the State. Consequently, any violation that results in environmental harm shall be met with a more severe disciplinary action. Environmental harm will be presumed whenever there is a discharge of a harmful pollutant or sediment into the Stormwater Drainage System which:

1. Passes through the Grand Rapids CSDS.
2. Causes a violation of the City's NPDES Municipal Stormwater System permit.
3. Has a toxic effect on the receiving waters (i.e., fish kill).

(d) *Violation History of the Responsible Party(s).*

1. Progressively more severe enforcement actions shall be utilized against responsible parties exhibiting recurring violation problems until consistent compliance is achieved. Compliance history is an important factor for deciding which of the remedies to apply to a particular violator.
2. Consistent with the general principle of layered and progressive disciplinary action, first time violators that are acting in good faith to comply with the ordinance and regulations, should be dealt with on a more cooperative level than violators that are not complying in a good faith effort.

(2) *Levels and Types of Enforcement Actions.*

(a) The City may initiate various levels and types of enforcement action, which have different degrees of severity. The following descriptions of various enforcement actions are intended to guide City staff in selecting the most appropriate enforcement action, given the nature and circumstances of a particular violation.

(b) These levels of progressive enforcement action can be taken to achieve compliance with the City's stormwater regulations or any associated approved plans. An overview is provided in this Section. The level of enforcement action initiated depends on the violation's severity, its duration; its effect on the environment, the City's CSDS and the responsible party(s) violation history, as well as the good faith used in taking corrective action.

(c) It is the intent of the City to clearly inform the responsible party of its expectations for compliance.

(Ord. No. 2022-20, § 1, 7-26-22)

Secs. 2.296—2.300. Reserved.

ARTICLE 10. RECORD RETENTION

Sec. 2.301. Record Keeping Requirement.

(1) *Submission of Construction Record Drawings ("As-Builts").*

(a) The Land Owner shall provide one (1) electronic file meeting digital submittal requirements of the construction record drawings reflecting the as-constructed conditions of the permitted project.

(b) The provided documents shall be certified (signed and sealed) by the professional engineer responsible for the design and construction of the project.

(c) Construction Record Drawings shall be submitted prior to the closing of the LUDS permit.

(d) Detailed requirements of the Construction Record Drawings can be found within the Current Version of the Stormwater Standards Manual.

(2) *Maintenance Plan and Agreement.*

(a) A legally binding maintenance plan and agreement shall be provided to the City and be recorded with the County register of deeds.

(b) The maintenance agreement shall include a detailed drawing illustrating where key stormwater maintenance will need to occur.

(c) The agreement shall provide a detailed schedule of when key maintenance is to take place, and who the responsible party is for completing the maintenance.

(d) Performed Maintenance will need to be certified by a qualified professional (Professional Engineer, Landscape Architect, Certified National Green Infrastructure Professional, or other certification as reviewed and approved by ESD) and documentation shall be provided to the City.

(e) Maintenance Certification will need to be provided on a yearly basis to the City.

(f) Detailed Maintenance plan and agreement requirements can be found in the Stormwater Standards Manual.

(3) Any person or entity subject to this Chapter shall retain and preserve, for no less than three (3) years, any and all books, drawings, plans, prints, documents, memoranda, reports, correspondence and records. This includes, but is not limited to, records on magnetic or electronic media and any and all summaries of such records, relating to monitoring, sampling and chemical analysis of any discharge, stormwater, runoff, or other liquids leaving the confines of a property upon which work is being or has been done, whether made by or on behalf of a discharger.

(4) Any and all records which pertain to matters which are the subject of a Notice of Violation, Administrative Order, Show Cause Hearing, or any other enforcement or litigation activities brought by the City pursuant to this Chapter, shall be retained and preserved for five (5) years, or until all enforcement activities have concluded and all periods of limitation with respect to any and all appeals have expired, whichever is later.

(Ord. No. 2022-20, § 1, 7-26-22)

Secs. 2.302—2.310. Reserved.

ARTICLE 11. RESOURCE DOCUMENTS

See "Stormwater Standards Manual: Procedures & Design Criteria for Stormwater Management", City of Grand Rapids, latest edition.

(Ord. No. 2022-20, § 1, 7-26-22)

Secs. 2.311—2.400. Reserved.

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Chapter 33

POLE LINE AND DUCT SYSTEM

Sec. 2.401. Intent.
Sec. 2.402. Definitions.
Sec. 2.403. System Created.
Sec. 2.404. System Standards.
Sec. 2.405. User Charges.
Sec. 2.406. Billing and Enforcement.
Sec. 2.407. Use of System Conditional.
Sec. 2.408. Violations, Penalties and Remedies.

Sec. 2.401. Intent.

This chapter is adopted pursuant to the Revenue Bond Act to establish a system to allow the use of street lighting poles and ducts by others to install, use and operate telecommunications and other lines, fiber, and related equipment and instrumentalities, and to provide for establishing and collecting rates, fees, and charges for use of that system. Revenue bonds may, at some time, be necessary in order to acquire, construct, improve, enlarge, extend, maintain or repair that system. (Ord. No. 2011-29, § 1, 8-9-11)

Sec. 2.402. Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section unless the context in which they are used specifically indicates otherwise:

Duct means a conduit owned by the City placed under or above the surface of the ground for the purpose of providing space for the placement of power or communications cables or wires.

Managing Director means the Managing Director of the Department to which the System has been assigned who is appointed to that position by the City Manager or the designee of such appointed person.

Person means any individual, firm, partnership, association, public or private corporation or public agency or instrumentality or any other entity.

Pole means a City-owned utility or street lighting pole.

Pole attachment means the physical attachment of power or communications cables or wires to a pole which may be part of a pole line or a single pole.

Pole line means two (2) or more poles in a row or otherwise in proximity to one another such that power or communications cables or wires could be strung from one of the poles to one (1) or more other poles.

Rate means the rate applicable for particular Use of the System.

Revenue Bond Act means 1933 PA 94, as amended, MCL 141.101 *et seq*.

System means the Grand Rapids Pole Line and Duct System consisting of all poles, pole attachments, ducts, conduit, works, instrumentalities, copper communications cable innerducts, lines, fiber cable, traffic signals, electric power lines and equipment, contract rights, and properties now or hereafter existing, used or useful in connection with such facilities and equipment.

Use means the use of pole lines, ducts, conduit, equipment or other parts of the System by attaching or installing wire, fiber cable, channels, antennas or other lines or equipment on or within such parts of the System and includes even such wire, fiber, channels, antennas or other lines or equipment that is not operated until such time as it has been removed or is permitted by the City to stay in place even though it is not operated.

User charge means a fee or charge payable by a User for Use of any part of the System or for costs related to that Use.

User means the person who owns the wires, fiber, antennas, or other lines or equipment placed on or within any portion of the System or a person other than the owner of the premises who, according to the provisions of the *Revenue Bond Act*, has the responsibility to pay rates, fees and charges for the Use of any portion of the System. (Ord. No. 2011-29, § 1, 8-9-11)

Sec. 2.403. System Created.

(a) There is established a City Pole Line and Duct System to be assigned to a department by the City Manager.

(b) All rights, title, interest, control and possession of all existing City street lighting poles, ducts, conduits, channels, fiber cable, wires, and lines, and related equipment, materials, spare parts, and other personal property used to construct, install, operate, maintain, repair, improve or replace street lighting poles, ducts, conduits, channels, wires and fiber, or other Services within or without the corporate limits of the City; all outstanding invoices and receivables in connection therewith; all equipment and tools used exclusively for repairing and maintaining such

property used for operating, repairing, and maintaining poles, pole lines, and ducts within or without the corporate limits of the City; all drawings and plans used in connection with poles, pole lines, and ducts within or without the corporate limits of the City; all easements, permits, contract rights, and other rights and approvals needed to construct, acquire, install, operate, maintain or repair any portion of any property used in connection with pole lines and ducts within or without the corporate limits of the City; and all other rights, interests and property of any kind that are related to pole lines and ducts within or without the corporate limits of the City shall be part of the System segregated and separate from other City assets so that the System is operated as an enterprise fund.

(c) The City Manager shall appoint a Managing Director and shall assign to the System such City personnel as the City Manager shall choose. Such transferred personnel shall be transferred in accordance with applicable collective bargaining agreements and applicable City policies.

(d) After July 1, 2011, costs for acquiring, constructing, installing, operating, maintaining, repairing, extending, enlarging, replacing, or improving any portion of the System shall be paid at least partially from revenues paid by Users of Services of the System though other City funds shall be paid to the System in amounts reasonably related to the benefits of street lighting and other uses of the System. Borrowing may from time to time occur which shall be repaid from revenues paid by Users of the System and gifts, grants or other amounts as may be received from time to time for the benefit of the System.

(e) The System shall permit Use of pole lines and ducts by Users within or without the corporate limits of the City subject to applicable constitutional provisions, laws, rules, regulations, permit requirements, contracts, and conditions of any other needed governmental approvals.
(Ord. No. 2011-29, § 1, 8-9-11)

Sec. 2.404. System Standards.

The Managing Director shall, with the City Manager's approval, adopt such standards for the System and Use of the System, standards for discontinuing service, and policies and procedures regarding the System and its use, construction, installation, operation, maintenance, repair, extension, replacement, improvement, and enlargement as are reasonable; as comply with applicable constitutional provisions, laws, rules, regulations, permit requirements, contracts, and conditions of any other needed governmental approvals; and as are substantially consistent with reasonable practices for such facilities.

(a) Without limiting the generality of this provision, such standards shall include:

(1) An application procedure for Use of any portion of the System.

(2) A requirement for an over-lashing agreement and payment of an over-lashing User charge for any over-lashing of a User's lines by any person other than that User. The User charge shall be the responsibility of the first-party User.

(3) A requirement that System Users provide accurate "as built" drawings showing what wire, fiber cable, antenna or other equipment is placed on or within the System with the details specified in the System standards.

(4) Requirements for Users to comply with the National Electrical Code, National Electrical Safety Code, standards of the American Association of State Highway and Transportation Officials, or other applicable codes in the construction, installation, repair, maintenance, removal, replacement or improvement of their wires, fiber cable, antenna or other equipment on or within the System.

(5) A requirement that any wire, fiber cable, line or other equipment placed on or within any part of the System that is no longer used shall be removed at the User's expense within thirty (30) days after its Use is discontinued or within thirty (30) days

after any agreement or other permission for its Use of the System terminates.

(6) A requirement for a User or prospective User to pay any costs incurred to make the System ready for the User's or prospective User's Use.

(7) A requirement that User's relocate their wires, fiber, cable, antenna and any other equipment if such relocation is needed due to work on or affecting any portion of the System.

(8) A requirement and procedure for prior notification to and permission from the Managing Director for any access to any part of any duct that is part of the System in order to ensure the security of any power or communication lines and equipment within the System. This may include a requirement for observation by System personnel of those working on certain parts of the System.

(b) Such standards may also include:

(1) A requirement to use best available technology and best available practices to Use all or designated parts of the System.

(2) A requirement to periodically upgrade or replace wires, fiber, or other equipment in order:

(i) To prevent or reduce repeated needs to access the System for repair and maintenance of wires, fiber cable or other equipment that is approaching the end of its reasonably expected useful life;

(ii) To provide for additional space within ducts or other parts of the System where newer technology takes less space than the originally installed technology;

(iii) To enhance System security;

(iv) To enhance public health or safety or the health and safety of persons working on or within any parts of the System; or

(v) To protect System components or the property of any persons using or working on or within any parts of the System.

(3) Prioritization of Use of the System or any part of the System and, where reasonably necessary to protect the public health and safety, ordering some Users to discontinue Use of the System in order that other persons whose Use is a higher priority may make Use of the System.

(4) Such other requirements or matters that should be addressed in accordance with generally accepted and best practices for operating the System.

(Ord. No. 2011-29, § 1, 8-9-11)

Sec. 2.405. User Charges.

(a) The Users of the System shall pay User charges established as set forth below. User charges shall be charged to all System Users within or without the corporate limits of the City. User charges shall reflect the proportionate cost of constructing, installing, operating, repairing, maintaining, replacing, and improving the System. It is desirable that User rates, fees and charges provide sufficient revenues to cover the costs relating to the System including, but not limited to: (i) debt service on any debt of the System; (ii) costs of acquiring, constructing, installing, operating, maintaining, repairing, replacing, extending or enlarging the System or any portion thereof; (iii) depreciation of any portion or all of the System; (iv) a reasonable rate of return on the System's investment; (v) debt service or operational coverage that is required under the terms of any System debt, is required by other applicable law, or as is reasonable practice for such systems; and (vi) all costs relating to billing and collecting any User charges. The User charges shall include fees for application to Use the System, inspection and verification fees for ensuring compliance with System standards, and the pass-

through of "make ready costs" as explained in subsection 2-404(a)(6). However, User charges may be established with consideration to the rates, fees and charges of other providers of poles, pole lines, and duct facilities and with consideration to any regulations that, while not applicable to the System, are applicable to other poles, pole lines, and duct facilities.

(b) The City Commission shall, on an annual basis, by resolution establish User charges for use of the System based on the recommendations of the Managing Director in consultation with the City's Chief Financial Officer, City Manager, and City Attorney or any of their respective designees.

(c) Annually, following the receipt of the annual audit for the immediately preceding fiscal year, there shall be a review of User charges. Based on the actual experience during the immediately preceding fiscal year and known or reasonably projected cost increases and decreases, System staff in coordination with the City's Chief Financial Officer and City Manager, or their designees, shall complete an annual rate study using a multi-step methodology that addresses System costs as provided in subsection (a) and that also includes what rates, fees and charges may be in effect for pole line and duct facilities owned and operated by others. Upon completion of the annual review and rate study, a report shall be presented to the City Commission summarizing the review and recommending User charges for the ensuing fiscal year. Accordingly, using audited data after the end of a fiscal year in June, a rate study will be completed and a report presented to the City Commission in such a time that rate and fee adjustments can be made to go into effect on the immediately following July 1. The City Commission may, by resolution adopted after a recommendation by the City Manager, make interim User charge adjustments as needed to address the System's revenue needs.

(d) The City Commission shall adopt initial User charges for System Use based on a report prepared by System staff in coordination with the City's Chief Financial Officer and City Manager, or their designees that reasonably projects System costs until after the end of the fiscal year ending June 30, 2013, so that audited data is available for one full year of System operation to use in establishing User charges as provided in subsections (b) and (c). The City Commission may, by resolution adopted after a recommendation by the City Manager, make interim User charge adjustments as may be needed to address the System's revenue needs.

(e) For any year in which the System collects more funds than needed to pay the costs detailed in subsection (a), User charges shall either be adjusted in the subsequent year so such excess funds are fully used to pay costs in the subsequent year or User accounts shall be credited with their proportional share of the excess collections.

(f) The User charges provided for in this Section shall not affect any existing contracts for Services of the System that are in effect on the effective date of this Chapter. Upon the expiration or other termination of such contracts, the User charges provided for in this Section shall take effect with respect to such Users currently subject to such a contract. However, the City Commission may approve three-year contracts for significant Users that establish User charges for that User for up to three (3) years where the City Commission determines that doing so is in the best interests of the general public.

(g) User charges may, pursuant to a contract with a User, be offset by the reasonable value the System accrues due to capital improvements, expansions, replacements or other facilities, materials, or services any User may, with prior written approval of the Managing Director, construct or install and convey to the System.
(Ord. No. 2011-29, § 1, 8-9-11)

Sec. 2.406. Billing and Enforcement.

(a) Billing and payments shall be provided for as follows:

(1) Bills for Use shall be issued at such times and in such manner as the Managing Director, with the consent of the City Manager, may reasonably determine. If annual billing is used, Users may be provided an option to pay quarterly with the payment of an additional fee to fully cover the costs incurred by the System to bill

and collect the smaller, more frequent bills. A minimum bill amount may be set.

(2) Billing may be done in conjunction with, may be due at the same time as, and may be collected in the same manner as billing for other City utility services such as water and sanitary sewer services, including late payment charges as may be set pursuant to Section 2.405 of this Chapter.

(3) Payments shall be made according to the schedule provided in the annual rate study prepared pursuant to subsection 2.405(c) or, for the initial rates, by the report submitted pursuant to subsection 2.405(d), and late payments shall be subject to the late fees, rebilling fees, interest and other requirements established by the annual rate study prepared pursuant to subsection 2.405(c) or, for the initial User charges, by the report submitted pursuant to subsection 2.405(d).

(4) Where the User's Use of the System is related to connecting particular, identified premises, User charges shall be a lien on the specific premises served and may be collected in the manner provided in the Revenue Bond Act. Those bills that are delinquent for 6 months or more shall be added to the property tax roll and collected in the same manner; the lien shall be enforced in the same manner as *ad valorem* property taxes levied by the City. The lien remedy does not preclude any other remedy provided in law. Those premises outside the City that are served by the System that have delinquent bills will be certified to their governmental unit for collection as provided in the contract between the City and the governmental unit. However, no lien shall attach against any premises for which a lien is impermissible under the Revenue Bond Act.

(b) When a tenant is responsible for payment of bills and a lease has been executed containing a provision that the lessor not be liable for charges for Service:

(1) It shall be the responsibility of the lessor to so notify the System Business Office with an affidavit signed by both parties. The affidavit must state the pertinent provision of the lease and its expiration date. If such notification is provided, no lien shall attach to the premises subject to that notification. Upon expiration of the lease, a new affidavit must be submitted to retain exemption from the lien.

(2) The tenant shall then pay a deposit in the amount of the estimated annual bill for service charges for the premises. If the tenant is also required to make such deposits for City water or sanitary sewer services, then water and sanitary sewer services shall not be provided to the premises until the deposit required for Services of the System is made as provided in this subsection.

(c) Regardless of whether there is a lien remedy under this Section, the Managing Director may seek any remedy for non-payment available at law or in equity. Provided that written notice and an opportunity for a hearing by the City Manager or the City Manager's designee as provided in subsection (c) below is first given, remedies may include termination of Use of the System including the disconnection and even the removal of wiring, fiber cable, or other items using System pole lines, ducts or other facilities.

(d) A person responsible for payment of bills for Use of the System may request an administrative hearing to show why that person's bills are incorrect or other reason why that responsible person should not be obligated to pay the amounts billed if System staff and that responsible person have not reached a mutually satisfactory agreement. Hearing requests must be made in writing to the System's customer service office on or before the date the bill is due for payment without interest, extra fees, or penalties or such date as may be specifically provided in a notice of hearing given pursuant to subsection (c) above. Hearings will be held by the City Manager or the City Manager's designee. That hearing officer shall establish the rules for such hearings, and shall have the authority to settle all disputes and provide for credits to accounts or refunds. Decisions of the hearing officer shall be final.
(Ord. No. 2011-29, § 1, 8-9-11)

Sec. 2.407. Use of System Conditional.

(a) No person shall Use the System or any part of the System without having an application for such use approved pursuant to this Chapter.

(b) Use of any part of the System is also conditional upon compliance with this Chapter and with the System standards established pursuant to this Chapter.

(c) Use of any part of the System is also conditional upon the timely payment of User charges and other amounts required to be paid under this Chapter.

(d) No alterations, modifications, additions, or other changes may be made to any portion of the System, including, without limitation, any guys, extensions, or bends, without the prior written approval of the Managing Director.

(e) Use of any part of the System is also conditional upon the User consenting that the City shall not be liable to User or to its affiliates or customers for any damage to User's property, disruption in the operation of User's services, equitable relief, or for any damages arising out of a User's use of the Public Rights-of-Way, whether or not caused by City's action or inaction regarding PA 174 of 2013 commonly known as MISS DIG underground facility damage prevention and safety act (unless specifically ordered by the Michigan Public Service Commission pursuant to the act), Act of God, or any other reason whatsoever.

(f) Use of any part of the System is also conditional upon the User consenting to defend, indemnify, protect, and hold harmless the City, its officers, agents, employees, elected and appointed officials, departments, boards, and commissions from any and all claims, losses, liabilities, causes of action, demands, judgments, decrees, proceedings, and expenses of any nature (including, without limitation, attorneys' fees) arising out of or resulting from the acts or omissions of the User, its officers, agents, employees, contractors, successors, or assigns or the User's equipment failure.
(Ord. No. 2011-29, § 1, 8-9-11; Ord. No. 2019-34, § 1, 8-13-19)

Sec. 2.408. Violations, Penalties and Remedies.

(a) Violations of this Chapter or System standards established pursuant to this Chapter shall be a municipal civil infraction and those responsible shall be subject to fines, costs, court orders and other remedies and penalties as provided by state law and this Code of Ordinances.

(b) Any violation of this Chapter or the System standards established pursuant to this Section is a public nuisance per se, subject to abatement as provided at law or in equity.

(c) Because compliance with this Chapter and the System standards established pursuant to this Chapter is a condition for initial or continued Use of the System, violations may, after notice and opportunity for a hearing as provided in subsections 2.406(c) and (d), result in termination of any Use of the System.
(Ord. No. 2011-29, § 1, 8-9-11)

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Chapter 34

THERMAL ENERGY (STEAM) FRANCHISE

Sec. 2.501. Grant of Non-Exclusive Rights.
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Sec. 2.504. No City Liability; Indemnification.
Sec. 2.505. Insurance.
Sec. 2.506. Franchise Not Exclusive.
Sec. 2.507. Rates, Rules and Regulations.
Sec. 2.508. Temporary Service Rate Increase.
Sec. 2.509. Revocation.
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Sec. 2.511. Annual Reports.
Sec. 2.512. Right to Acquire.
Sec. 2.513. City Jurisdiction.
Sec. 2.514. Effective Date.

Sec. 2.501. Grant of Non-Exclusive Rights.

A. *Term.* The City of Grand Rapids (City) grants to VEOLIA ENERGY GRAND RAPIDS, LLC, its successors and assigns (Grantee), subject to the terms and conditions set forth below, the non-exclusive right, power and authority to construct, lay, extend, operate and maintain, repair and replace, plants, mains, pipes, and other appurtenances (Thermal Energy System) under the highways, streets, alleys and bridges of the City (hereinafter "Public Ways"), for the purpose of generating, transmitting, distributing and selling heat, steam, hot, chilled or condensed water ("Thermal Energy"), and to do local Thermal Energy business in the City of Grand Rapids, Kent County, Michigan, for a term of thirty (30) years (the "Term"). Not later than 18 months prior to the end of the Term, the Grantee and the City shall meet to discuss in good faith whether and under what terms and conditions the City would grant a new franchise ordinance in favor of the Grantee.

B. *Home Rule.* It is the intent of the Grantee and the City that the franchise granted by this Ordinance and all rates for service relating to the Thermal Energy System be subject to the "Home Rule", in accordance with 1919 PA 419, MCL 460.54. Home Rule, as applicable to the franchise granted by this Ordinance, shall mean that the rates and charges are fixed in, and regulated by, this Ordinance and the franchise issued hereunder.

C. *Expansion of System.* After first obtaining approval from City of the route and placement of the Thermal Energy System components, which approval shall not be unreasonably withheld, Grantee may expand its use of the Public Ways by constructing and maintaining its own plants, mains, pipes, and other appurtenances. Any expansion of the Thermal Energy System by the Grantee as approved by the City shall be subject to all terms and conditions of this Ordinance. In addition, City shall have the right to order all reasonable and necessary extensions of service after Grantee and the public have had an opportunity for public hearing thereon. Grantee shall have the right to request to recover in its rates the just and reasonable costs associated with constructing, operating, maintaining, repairing and replacing such extensions, over the specified lifetime of such extensions, through the procedures and criteria set forth in Section 2.507.A.(7) or 2.507.A.(8) of this Ordinance. When requested by Grantee, its successors or assigns, within thirty (30) days from the date of the order of the City Commission, and not thereafter, the reasonableness of such extension and of the order requiring the same shall be determined by arbitrators to be chosen as provided in Title VIII of the City Charter (Title VIII). The arbitrators shall have authority to modify any such order of City or to change or alter the time therein fixed. Such order of the City or determination of the arbitrators, as the case may be, shall be exclusive of any and all other actions or remedies and binding upon all persons having or claiming any rights in the Thermal Energy System or the franchise granted by this Ordinance, which order or determination shall be subject to appeal as provided in Section 23 of Title VIII. The failure to make and to put into operation such extensions to the extent, in the manner and time ordered by City, or by such arbitrators, as the case may be, and for one year thereafter, shall constitute cause for forfeiture of the franchise granted by this Ordinance.

In addition, the right and franchise granted by this Ordinance shall extend throughout the entire City. Upon application of a prospective customer or customers in an area of the City not served by Grantee's initial distribution system, Grantee shall make the requested main extension at Grantee's expense if, in the reasonable judgment of Grantee, the Thermal Energy requirements of the prospective customer or customers will not disturb or impair service to existing customers and the estimated annual revenues therefrom reasonably warrant the capital expenditure required. If Grantee determines that the Thermal Energy requirements of the prospective customer or customers will not disturb or impair service to existing customers, but that the estimated annual revenues therefrom do not reasonably warrant the capital expenditure required, Grantee shall make the main extension if the prospective customer or customers make such contribution in aid of construction and other payments as may be provided for in the Rules and Regulations of Grantee.

D. *Location in Public Ways.* To the maximum extent possible, Grantee shall place its Thermal Energy System on, within, under and along existing utility facilities in the Public Ways. In addition, all placement of the Thermal Energy System shall be in areas approved by the City Engineer.

E. *Transfer.* Grantee shall not sell, assign, lease or sublease the franchise granted by this Ordinance, or allow another to use the same without the consent of the City Commission by ordinance duly passed, subject to Grantee's right to mortgage provided in Title VIII. Grantee shall not lease or sublease any portion of its Thermal Energy System within the City to a person who by law is required to obtain the City's permission or consent to transaction of business in the City and who lacks such permission or consent.

F. *Connection by a Third Party.* Grantee shall not allow the property of a third party or non-Thermal Energy System pipes or any other facilities to be connected or affixed or attached to any portion of its Thermal Energy System or allow other actions with a similar result without the written consent of the City Manager or that person's designee; provided that the foregoing provisions of this Section 2.501.F. shall not prevent the Grantee from maintaining the current connections to the facilities of the existing customers of the existing Thermal Energy System; provided further that the Grantee shall be permitted to modify said current connections and to connect prospective customers to the Thermal Energy System within the service area described on Exhibit A (the "Service Area"), subject to all of the other terms of this Ordinance, without obtaining the consent of the City Manager described above.

(Ord. No. 2008-38, § 1, 10-7-08)

Sec. 2.502. Consideration; Costs; Right-of-Way Fees.

A. In consideration of the rights, power and authority granted by the City, Grantee shall faithfully perform all duties required by the terms of this Ordinance.

B. In further consideration of the rights, power and authority granted by the City, Grantee agrees: 1) to pay to the City a non-refundable application fee in the amount of Ten Thousand Dollars ($10,000.00) (for purposes of Section 1 of Title VIII, the application by Grantee for the franchise granted by this Ordinance shall be deemed to have been made as of October 15, 2007); 2) to pay to the City an annual franchise fee in the amount of Fifty Thousand Dollars ($50,000.00), said amount to be increased (but not decreased) each year the franchise granted by this Ordinance is in effect by a factor that is 100% of the change in the CPI during the prior calendar year ("CPI" means the Midwest Region All Urban Consumers (CPI-U) Consumers Price Index (1982-1984=100 - CUUR0200SA0) as published by the Bureau of Labor Statistics, U.S. Dept. of Labor. If this index is discontinued a comparable successor index reasonably acceptable to the parties shall be utilized. If publication of the CPI is discontinued, the parties will use a revised or replacement index that is similar to the discontinued CPI.); and 3) to compensate the City: (a) for the amount of its actual expenses incurred by the City in the drafting and preparation of this Ordinance, including reasonable actual attorney fees, and (b) for the amount of its actual expenses resulting from the process of adopting this Ordinance, including the costs of publication required by Section 1 of Title VIII. Grantee's total obligation to compensate the City for its actual expenses under this subparagraph B.3) shall not exceed Ten Thousand Dollars ($10,000.00).

C. In the event that (i) Grantee, or any company which is a subsidiary, affiliate or other related company to Grantee under common ownership of Veolia Energy North America Holdings, Inc., pays a fee, charge or other payment of any kind on a periodic basis (such as monthly, quarterly, annually) (collectively "Charges") to any municipality in the State of Michigan as a condition, or in consideration for the right to transact a local Thermal Energy utility business in that municipality, and (ii) said Charges, when considered in the context of the totality of the circumstances of that business, including without limitation the costs incurred by the utility to acquire the business, the size of the business and the revenues expected to be generated by the business, are disproportionately greater than the fees set forth in Section 2.502.B., Grantee shall notify

the City, in writing, of the details of the fee or periodic charge within sixty (60) days of the effective date of the fee or periodic charge, at which time the franchise granted by this Ordinance shall be subject to revocation by the City, which revocation shall not be deemed "at will" for any purposes under this Ordinance. If within thirty (30) days of such notice Grantee agrees to pay to the City (in lieu of the annual franchise fees set forth in the above Section 2.502.B.) a fee or periodic charge proportionately equivalent to the Charges under terms agreeable to the City, the franchise granted by this Ordinance shall continue subject to such modification. Any modified or new franchise granted by the City to Grantee shall require payment of an equivalent fee or periodic charge as a condition of the new franchise. Grantee shall be permitted to request recovery of all fees paid in accordance with this Section 2.502.C. through its rates in accordance with the procedures and criteria set forth in Section 2.507.A.(7) or 2.507.A.(8) of this Ordinance.

D. Grantee agrees to abide by any current or future ordinance(s) of the City, if and when formally adopted, which may require the payment by Grantee of a fee, charge or other payment on a periodic basis (such as monthly, quarterly, annually), provided that any such future ordinance(s) apply equally to all Thermal Energy franchise holders. The City shall notify Grantee within sixty (60) days of the formal adoption of such an ordinance by the City pursuant to Section 1 of Title VIII, at which time the franchise granted by this Ordinance shall be subject to revocation by the City, which revocation shall not be deemed "at will" for any purposes under this Ordinance. If within thirty (30) days of such notice Grantee agrees to pay to the City a proportionately equivalent fee or periodic charge under terms agreeable to the City, the franchise granted by this Ordinance shall continue subject to such modification. Any modified or new franchise granted by the City to Grantee shall be subject to the provisions of such future ordinance(s), and shall require payment of a similar fee or periodic charge as a condition of the new franchise. Grantee shall be permitted to request recovery of all fees paid in accordance with this Section 2.502.D. through its rates in accordance with the procedures and criteria set forth in Section 2.507.A.(7) or 2.507.A.(8) of this Ordinance.
(Ord. No. 2008-38, § 2, 10-7-08)

Sec. 2.503. Use of Public Rights-of-Way by Grantee.

A. *No Burden on Public Ways.* Grantee and its contractors, subcontractors and the Thermal Energy System shall not unduly burden or interfere with the present or future use of any of the Public Ways within the City. Grantee shall construct and maintain its Thermal Energy System so as to cause minimum interference with the use of the Public Ways and with the rights or reasonable convenience of property owners. No Public Way shall be obstructed longer than necessary during the work of construction or repair to the Thermal Energy System. Grantee's mains, pipes, structures and equipment shall be buried so as to not endanger or injure persons or property in the Public Ways as approved by the City Engineer. If the City in its reasonable judgment determines that any portion of the Thermal Energy System becomes an undue burden or interference with the use of any of the Public Ways within the City, Grantee at its expense shall modify its Thermal Energy System or take such other actions as the City may reasonably determine is in the public interest to remove or alleviate the burden, and the Grantee shall do so within the time period established by the City. The Grantee shall have the right to arbitrate this determination pursuant to the arbitration procedures set forth in Title VIII in the event that it disagrees; provided, however, that the Grantee shall comply with the determination of the City until and unless such determination is revised by the arbitrators. Grantee may request recovery in its rates for the just and reasonable costs of complying with any such determination in accordance with the procedures and criteria set forth in Section 2.507.A.(7) or 2.507.A.(8) of this Ordinance.

B. *Restoration of Public Ways.* Grantee and its contractors and subcontractors shall immediately restore, at Grantee's sole cost and expense and in a manner approved by the City, any portion of the Public Ways that is in any way disturbed, damaged, or injured by the construction, operation,

maintenance or removal of the Thermal Energy System to as good or better condition than that which existed prior to the disturbance. This obligation of Grantee shall include restoration including, but not limited to, full width restoration of the affected area as determined by the City (through permit requirements or otherwise). In the event that Grantee, its contractors or subcontractors fail to make such repair within the time reasonably specified by the City, the City shall be entitled to complete the repair and Grantee shall pay to the City an amount equal to 125% of the total costs of the City related to such repair, including the City's internal overhead amounts. The City and Grantee understand that the additional 25% included above is included so as to cover the necessity of the City having to perform Grantee's duty to repair and amounts relating to such action by the City that are difficult or impossible to quantify.

C. *Easements.* Any easement over or under private property necessary for the construction or operation of the Thermal Energy System shall be arranged and paid for by Grantee. It shall be the responsibility of the Grantee to ensure that permission for any use or intrusion on private property has been obtained, whether through an easement or otherwise. The Grantee shall be required to obtain an easement from the City to cross over or under any property owned by the City other than the Public Ways.

D. *Pavement Cut Coordination.* Grantee and the City shall coordinate Grantee's construction program and all other work in the Public Ways with the City's program for street construction, rebuilding, reconstruction, resurfacing and repair (collectively, "Street Resurfacing"). Grantee shall meet with the official of the City primarily responsible for the Public Ways (currently the City Engineer) at least quarterly to this end.

The goals of such coordination shall be to require Grantee to conduct all known work in the Public Ways in conjunction with or immediately prior to any Street Resurfacing planned by the City, and to prevent the Public Ways from being disturbed by Grantee for a period of years after such Street Resurfacing. All construction, excavation and pavement cuts by Grantee must be approved in advance by the City Engineer.

E. *Marking.* Grantee shall mark its Thermal Energy System as follows: A. Direct buried underground portions of the Thermal Energy System not containing any cable or wire shall have (1) for all new construction or for existing underground portions of the Thermal Energy System that are hereafter exposed (for repair or otherwise), several inches above Grantee's pipes, mains or other facilities, a continuous colored tape with Grantee's name and a toll-free number and a statement to the effect that there are buried Thermal Energy facilities (specifically identified) beneath, or such other marking as is required by the City Engineer, and (2) stakes or other appropriate above-ground markers with Grantee's name and a toll-free number and indicating that there are buried Thermal Energy facilities (specifically identified) below; and B. Direct buried underground portions of the Thermal Energy System containing any cable or wire shall have (1) for all new construction or for existing underground portions of the Thermal Energy System that are hereafter exposed (for repair or otherwise), a conducting wire placed in the ground at least several inches above the Grantee's cable or wire (if such cable or wire is non-conductive), or such other marking as is required by the City Engineer, (2) at least several inches above that a continuous colored tape with Grantee's name and a toll-free number and a statement to the effect that there is buried cable beneath, and (3) stakes or other appropriate above-ground markers with Grantee's name and a toll-free number and indicating that there is buried cable below.

F. *Compliance with Laws.* Grantee shall comply with all laws, statutes, ordinances, rules and regulations regarding the installation, construction, maintenance, ownership or use of its Thermal Energy System, whether federal, state or local, now in force or which hereafter may be promulgated. The City Commission may make all reasonable regulations necessary to secure in the most ample manner the safety, welfare and convenience of the public. Before any installation is commenced, Grantee shall secure all necessary permits, licenses and approvals from all appropri-

ate departments, agencies, boards or commissions of the City or other governmental entity as may be required by law, including, without limitation, the City's Temporary Occupancy Permits, and all utility permits and highway permits. Grantee shall comply in all respects with applicable codes, including, but not limited to, the City's then-standard construction specifications and permit requirements, horizontal and vertical separation requirements, and industry standards. Grantee shall comply with all zoning and land use ordinances and historic preservation ordinances as may exist or may hereafter be amended.

G. *Street Vacation.* If City vacates or consents to the vacation of a street or alley within its jurisdiction, and such vacation necessitates the removal and relocation of Grantee's facilities in the vacated Public Way, Grantee agrees, as a condition of this Ordinance, to consent to the vacation and to move its facilities when asked to do so by the City or a court of competent jurisdiction. Grantee shall relocate its facilities to such alternative route as the City, acting reasonably and in good faith, shall designate. Grantee may apply, in the same manner as any other private utilities, for a portion of any funds that are made available to private utilities relating to any public works improvement projects that include the requirement that the Grantee relocate a portion of its facilities. Grantee may request recovery in its rates of the just and reasonable costs of complying with any such relocation requirement in accordance with the procedures and criteria set forth in Section 2.507.A.(7) or 2.507.A.(8) of this Ordinance.

H. *Relocation.* If the City requests Grantee to relocate, protect, support, disconnect, or remove its facilities because of street or utility work, Grantee shall relocate, protect, support, disconnect, or move its facilities, to such alternate route as City, acting reasonably and in good faith, shall designate. Grantee may request recovery in its rates of the just and reasonable costs of complying with any such relocation requirement in accordance with the procedures and criteria set forth in Section 2.507.A.(7) or 2.507.A.(8) of this Ordinance.

I. *Public Emergency.* The City shall have the right to demand that all or parts of the distribution system be de-energized and made safe, without prior notice, and to sever, disrupt, dig up or otherwise destroy facilities of Grantee, if such action is deemed necessary by the City Manager or his/her designee, Police Chief or Fire Chief because of a public emergency. Public emergency shall be any condition which, in the opinion of any of the officials named, poses an immediate threat to the lives or property of the citizens of the City, caused by any natural or man-made disaster, including, but not limited to, storms, floods, fire, accidents, explosions, major water main breaks, hazardous material spills, etc. Notwithstanding the foregoing, the City agrees to include representatives of the Grantee in its emergency joint response planning teams and the City and the Grantee agree to work closely together in coordinating and implementing all emergency response activities involving the Grantee's facilities. Grantee may request recovery in its rates of the just and reasonable costs of repairing any of its facilities damaged pursuant to any such action taken by the City or the Grantee in response to a public emergency in accordance with the procedures and criteria set forth in Section 2.507.A.(7) or 2.507.A.(8) of this Ordinance.

J. *MISS DIG.* If eligible to join, Grantee shall subscribe to and be a member of "MISS DIG", the association of utilities formed pursuant to Act 53 of the Public Acts of 1974, as amended, MCL 460.701. et seq., and shall conduct its business in conformance with the statutory provisions and regulations promulgated thereunder.

K. *Use of Existing Facilities.* Grantee shall utilize existing plants, mains, pipes, conduits, and other facilities wherever practicable, and shall not construct or install any new, different, or additional plants, mains, pipes, conduits or other facilities unless expressly authorized by the City, provided that the Grantee shall be permitted to modify current customer connections and to connect prospective customers to the Thermal Energy System within the Service Area, subject to all of the other terms of this Ordinance, without obtaining the separate express authorization by the City described above.

To the extent that Grantee chooses to construct additional facilities and, as a result, the City incurs incremental costs beyond the fees and charges otherwise required to be paid by the Grantee pursuant to this Ordinance, Grantee agrees to compensate the City for such incremental costs as reasonably determined by the City.

L. *As-Built Drawings.* Subject to any applicable Homeland Security restrictions, Grantee shall provide the City with As-Built drawings and specifications in form and substance including, but not limited to CAD and other digital format, acceptable to the City within thirty (30) days of the completion of any new construction by Grantee.

M. *Employee Identification.* All personnel of Grantee or its contractors or subcontractors who have as part of their normal duties contact with the general public shall wear on their clothing a clearly visible identification card bearing their name and photograph. Grantee shall account for all identification cards at all times. Every service vehicle of Grantee, its contractors or subcontractors shall be clearly identified as such to the public.
(Ord. No. 2008-38, § 3, 10-7-08)

Sec. 2.504. No City Liability; Indemnification.

A. *City Not Liable.* The City, and its agents, employees, and contractors, shall not be liable to Grantee or Grantee's customers for any interference with or disruption in the operation of Grantee's Thermal Energy System, or the provision of service over or through the Thermal Energy System, or for any damages arising out of Grantee's use of the Public Ways.

B. *Indemnification.* As part of the consideration for this Ordinance, Grantee shall defend, indemnify, protect and hold harmless City, its officers, agents, employees, departments, boards, and commissions from any and all claims, losses, liabilities, causes of action, demands, judgments, decrees, proceedings, and reasonable expenses of any nature (including, without limitation, actual fees and expenses of attorneys, expert witnesses and consultants), arising out of or resulting from the acts, errors or omissions of Grantee, its officers, agents, employees, contractors, successors, or assigns, but only to the extent of the fault of the Grantee, its officers, agents, employees, contractors, consultants, successors, or assigns.

C. *Assumption of Risk.* Grantee undertakes and assumes for its officers, agents, contractors, consultants, and subcontractors and employees, all risk of dangerous conditions, if any, on or about any City-owned or controlled property, including Public Ways, and Grantee hereby agrees to indemnify and hold harmless the City against and from any claim asserted or liability imposed upon the City for personal injury or property damage to any person arising out of the installation, operation, maintenance or condition of the Thermal Energy System or Grantee's failure to comply with any federal, state or local statute, ordinance or regulation.

D. *Notice, Cooperation and Expense.* City shall give Grantee prompt notice of the making of any claim or the commencement of any action, suit or other proceeding covered by the provisions of this Section.

Nothing herein shall be deemed to prevent City from cooperating with Grantee and participating in the defense of any litigation by City's own counsel.

Grantee shall pay all expenses incurred by City in defending itself with regard to any such actions, suits or proceedings to the extent that they are related to the actions or inactions of Grantee. These expenses shall include all out-of-pocket expenses such as attorney fees and shall also include the reasonable value of any services rendered by or on behalf of the City Attorney, and the actual expenses of City's agents, employees or expert witnesses, and disbursements and liability assumed by City in connection with such suits, actions or proceedings.
(Ord. No. 2008-38, § 4, 10-7-08)

Sec. 2.505. Insurance.

Grantee shall, at the time of ownership or construction of any systems, equipment, mains, pipes or other facilities obtain and maintain in full force and effect, for the entire effective period

of this Ordinance, the following insurance covering all insurable risks associated with its ownership and use of its Thermal Energy System:

(a) A comprehensive general liability insurance policy, including Completed Operations Liability, Independent Contractors Liability, Contractual Liability coverage and coverage for property damage from perils of explosion, collapse or damage to underground utilities, commonly known as XCU coverage, in an amount not less than Five Million Dollars ($5,000,000.00).

(b) An Automobile Liability Insurance Policy to cover any vehicles used in connection with its activities under this Ordinance, in an amount not less than Two Million Dollars ($2,000,000.00).

(c) Worker's Compensation and Employer's Liability Insurance with statutory limits.

The City shall be named as an additional insured in all applicable policies. All insurance policies shall provide that they shall not be canceled or modified unless thirty (30) days' prior written notice is given to the City. Grantee shall provide the City with a certificate of insurance evidencing such coverage as a condition of this Ordinance and shall maintain on file with the City a current certificate. All insurance shall be issued by insurance carriers licensed to do business by the State of Michigan or by surplus line carriers on the Michigan Insurance Commission approved list of companies qualified to do business in Michigan. All insurance and surplus line carriers shall be rated A+ or better by A.M. Best Company.

Each policy which is to be endorsed to add the City as an additional insured hereunder shall contain cross-liability wording, as follows:

In the event of a claim being made hereunder by one insured for which another insured is or may be liable, then this policy shall cover such insured against whom a claim is or may be made in the same manner as if separate policies had been issued to each insured hereunder.

If the insurance policies required by this Section are written with deductibles, the deductibles shall be approved in advance by the City. Grantee agrees to indemnify and hold harmless the City from and against the payment of any deductible and from the payment of any premium on any insurance policy required to be furnished by this Ordinance.

Grantee shall require that its contractors and subcontractors working in Public Ways carry, in full force and effect, workers' compensation, comprehensive public liability and automobile liability insurance coverage of the type which Grantee is required to obtain under the terms of this Section with appropriate limits of insurance.
(Ord. No. 2008-38, § 5, 10-7-08)

Sec. 2.506. Franchise Not Exclusive.

The rights, power and authority granted herein are not exclusive, provided that Grantee's customers shall be prohibited from directly or indirectly reselling or otherwise re-transmitting for the use of others any of the Thermal Energy sold by Grantee under this Ordinance. Notwithstanding the foregoing, the actions of any of Grantee's customers in redistributing or re-transmitting Thermal Energy within any facility of said customer, or in charging tenants, licensees or other similarly situated individuals within such facility for a portion of such Thermal Energy, shall not be prohibited by the terms of this Section 2.506.
(Ord. No. 2008-38, § 6, 10-7-08)

Sec. 2.507. Rates, Rules and Regulations.

A. *Service Rates.* Subject to the provisions of Title VIII, Grantee shall be entitled to charge the inhabitants of the City for Thermal Energy furnished at the rates set forth below:

The monthly Service Rate charges to customers of the Thermal Energy System for Thermal Energy service shall be equal to the sum of the following three components: (1) Service Charge, (2) Variable Charge, and (3) Government Mandated Costs.

(1) *Service Charge.* The Service Charge is Seven Dollars and Forty Cents ($7.40) per pound per hour of peak annual Thermal Energy billing demand ("Peak Demand"), such Peak Demand to be reasonably determined by the Grantee from time to time, based upon each customer's con-

nected load and historic and projected maximum requirements for Thermal Energy, and paid in twelve equal monthly installments. If the franchise granted by this Ordinance becomes effective on any date other than January 1, the Service Charge described above shall be prorated so to cover only the number of days then remaining in the first calendar year under said franchise and shall remain the same (without proration) for the next full calendar year. Beginning January 1, 2010, and effective as of the first day of January during each year the franchise granted by this Ordinance is in effect, the Service Charge shall be increased or decreased, as applicable, by a factor that is 100% of the change in the CPI during the prior calendar year. "CPI" means the Midwest Region All Urban Consumers (CPI-U) Consumers Price Index (1982-1984=100 - CUUR0200SA0) as published by the Bureau of Labor Statistics, U.S. Dept. of Labor. If this index is discontinued a comparable successor index reasonably acceptable to the parties shall be utilized. If publication of the CPI is discontinued, the parties will use a revised or replacement index that is similar to the discontinued CPI.

(2) *Variable Charge.* The Variable Charge is calculated monthly by the following formula:

VC = CC + EC

CC = the Consumables Charge, expressed in $, and calculated per the following formula:

CC = CCosts × (MU/TU)

CCosts = the costs actually incurred by Grantee's Thermal Energy System during the billing period for those non-fuel consumable costs that typically vary with production, including, without limitation, chemicals, water and sewer charges and purchased electricity.

MU = Metered usage during the billing period for each customer expressed in Mlbs.

TU = Total metered usage for all customers during the billing period expressed in Mlbs.

EC = the Energy Charge, expressed in $, and calculated per the following formula:

EC = {K × FC} × {MU + (MU/TU × LL)}

K = 1.4 mmBtu per Mlb.

FC = Fuel Cost is the weighted average burner tip cost of natural gas and fuel oil consumed by Grantee's Thermal Energy System during the billing period, including, without limitation, all wholesale, transportation, pipeline charges, balancing and imbalancing fees, brokers fees, lost and unaccounted for fuel, distribution and storage charges and taxes, fees and surcharges related thereto, expressed in units of $/mmBtu (determined by dividing total Fuel Costs incurred by total mmBtus of fuel consumed).

LL = Line Loss = 13,000 Mlbs. per month

(3) *Government Mandated Costs.* Government Mandated Costs are calculated by multiplying (x) the ratio of (i) the Peak Demand of each customer to the (ii) total Peak Demand of all Thermal Energy System customers in good standing times (y) the cumulative total of all Government Mandated Costs. Government Mandated Costs shall mean any costs resulting from any new law or regulation, or any new governmental or court interpretation of an existing law or regulation ("Change in Law") that requires Grantee to expend (i) more than $10,000 of additional capital for plant or equipment or (ii) any incremental amount exceeding $10,000 for additional labor, fuel, operating costs, taxes, fees or other charges payable to a governmental unit. Grantee shall notify the City in writing of any Change in Law that Grantee believes will require Grantee to expend more than $10,000 so as to trigger an increase in the Service Rate as described above, and the City shall have ninety (90) days to take action to reduce such expenses. If the City reduces its

Government Mandated Costs to an amount below $10,000 within said ninety (90) day period, no increase in the Service Rate shall occur as a result of the Change in Law. Capital investments resulting from a Change in Law will be amortized over ten (10) years at an interest rate of 300 basis points over the U.S. Prime Rate that is in effect when the capital investment is placed in service, as published in the Wall Street Journal. Labor, fuel and operating costs resulting from a Change in Law will be implemented as of the next January 1st.

(4) *Purchased Steam.* In the event Grantee is able to supplement steam it generates at the Fulton Street Plant by purchasing steam from one or more third-party suppliers, Fuel Cost in the above Variable Charge formula will be subject to modification to include the cost of purchased steam.

(5) *Rate Discounting.* Notwithstanding anything herein to the contrary, the Grantee is authorized, in its sole discretion, and during such period or periods of time as the Grantee may deem advisable, to charge any customer or class or classes of customers rates for Thermal Energy which are lower than those otherwise specifically authorized herein.

(6) *State Sales Tax.* The rates provided for herein are exclusive of Michigan State Sales tax, use tax, utility tax or any other similar tax, which taxes shall be added to bills issued by Grantee, as required by law.

(7) *Changes to Service Rates; Methodology.* From time to time, but not more than once every two (2) years, the Grantee may seek the approval of the City for changes in rates and/or rate methodology by filing an application therefor. Such application shall include an explanation of the requested changes and the supporting evidence for such changes. Upon such application, the City shall set rates pursuant to the procedures described in Section 2.507.A.(8) (opportunity for the City to request information, opportunity for an evidentiary hearing, rates approved on a going forward basis). The criteria for changes in rates and rate methodology shall be as follows:

(a) The rates for Thermal Energy shall be just and reasonable to the Grantee's customers in light of the prevailing costs of energy available from other suppliers for the same purpose and in the same quantities;

(b) The rates for Thermal Energy shall be just and reasonable to the Grantee in light of Grantee's fully loaded costs to produce, transmit and distribute such Thermal Energy, including overhead, general and administrative costs and costs of capital improvements, together with a fair and reasonable return on Grantee's investment such that Grantee can secure financing on a stand-alone basis from independent third parties for its capital needs.

(8) *Review of Rates by City.* Effective with the billing cycle following June 30, 2013, and every fourth anniversary thereafter ("Rate Review Dates"), the rates then in effect shall be subject to review and adjustment at the request of the City pursuant to the following procedure: Not later than 12 months prior to each Rate Review Date, the City shall have the option of serving Grantee with a notice for a review of Grantee's rates. Such notice may request that changes be made to the Service Rates in the form of decreases or increases in any component, method of adjustment to any component or changes to the rate methodology. Grantee shall respond to said notice with such data and other information as the City shall determine to be appropriate, including Grantee's costs and revenues for the four year period immediately preceding the date of the notice, or such shorter period as shall have elapsed since the date upon which the Ordinance

becomes operative per Section 2.514 hereof. The City shall then, following opportunity for an evidentiary hearing conducted by the City Manager or his designee, approve such rates on a going forward basis as are just and reasonable according to the standards set forth above in Section 2.507.A.(7)(a) and (b).

(9) *General Provisions.* The Grantee and the City shall have the right to appeal to arbitration pursuant to Section 23 of Title VIII, any Thermal Energy Service Rate set by the City with which the appealing party disagrees. The City shall reach its final rate determination within 120 days following the close of any evidentiary hearing held after it provides notice to the Grantee under Section 2.507.A.(8) or the Grantee petitions the City for a change in rates pursuant to Section 2.507.A.(7).

(10) *Thermal Energy Electrification and Decarbonization.* The City provides that the Grantee may develop and market additional options that allow for the electrification and decarbonization of their Thermal Energy products. Grantee customers may, at their election, participate in such programs based upon special contractual arrangements mutually agreed to by both the Grantee and its Thermal Energy customer. Any such agreement will be reported to the City upon execution, and all agreements shall be included in the Grantee's reporting to the City as defined in Section 2.511 — Annual Reports.

B. *Rules and Regulations; Filing Obligations.* Grantee shall have the right from time to time to make reasonable Rules and Regulations for the conduct of its business and the rendering of Thermal Energy service in accordance with applicable law, subject to reasonable City approval. A copy of the initial Rules and Regulations to be implemented by Grantee relating to the franchise granted by this Ordinance are attached hereto as Exhibit A. Any proposed modification(s) to Grantee's Rules and Regulations shall be filed with the City Clerk of the City. If the City does not act within sixty (60) days to approve or disapprove said modification(s), they shall be deemed approved. Grantee shall keep a copy of its then-current Rates, Rules and Regulations on file with the City Clerk of the City.
(Ord. No. 2008-38, § 7, 10-7-08; Ord. No. 2026-05, § 1, 3-17-26)

Sec. 2.508. Temporary Service Rate Increase.

In months of December 2013 through June 2015, the monthly Service Rate shall be increased by $0.10 per Mlb to enable Grantee to recover exceptional costs incurred in conjunction with the City's Weston Street reconstruction project.
(Ord. No. 2013-85, § 1(7a), 12-17-13)

Sec. 2.509. Revocation.

The franchise granted by this Ordinance is subject to revocation at the will of the City Commission upon sixty (60) days' written notice to the Grantee. If this franchise is terminated at the will of the City (and without any material violation of this Ordinance or the franchise by Grantee, its successors or assigns), the City shall pay to Grantee the sum of Three Hundred Thousand Dollars ($300,000.00) for each full year of the thirty (30) year franchise Term then remaining; provided, however, that no such payment shall be required if the City has terminated this Ordinance at the end of its Term or if the City has exercised its Right to Acquire as set forth herein, and provided further that this payment amount may be increased by mutual agreement of the Grantee and the City as necessary to account for future capital investments made by the Grantee from time to time. In addition, in the event of a material violation of the franchise granted hereby, this Ordinance may be revoked or forfeited either by the City Commission, or by a court of competent jurisdiction, at the choice of the City, without payment by the City of the amount described above in this Section 2.509.
(Ord. No. 2008-38, § 8, 10-7-08)

Sec. 2.510. Valuation.

Within one year after the effective date of this Ordinance, the value, defined as fair market

value, of the Thermal Energy system, including the property that is part of or used in connection with the Thermal Energy System within the City, and of such portion of such property beyond the City Limits as is actually and necessarily used in, belonging to and is a part of the local Thermal Energy service, and which the City is authorized to own and operate under the constitution and general laws of the State, shall be fixed and determined by mutual agreement of the City and Grantee; provided, that the value thus fixed or determined in no case shall include any value of the franchise. There shall be added annually to the value so fixed and determined, the value of additions and betterments, and there shall be deducted therefrom all amounts properly charged off under the Generally Accepted Accounting Principles of the United States for depreciation and

obsolescence. If the parties cannot agree on such value of the property of the Thermal Energy System, such value shall be determined by arbitration as provided in Section 23 of Title VIII: Provided, that nothing shall be added on account of additions or betterments unless the expenditures therefor shall have been approved by the City Commission as reasonably necessary to the Thermal Energy System or economically prudent, provided further that the Grantee shall also have the right to appeal any decision regarding such additions or betterments to arbitration pursuant to said Section 23.
(Ord. No. 2008-38, § 9, 10-7-08)

Sec. 2.511. Annual Reports.

Grantee or any corporation or person exercising the franchise granted by this Ordinance shall file annually on the first Monday in April, in the office of the City Clerk, a statement subscribed and sworn to by at least two officers of such corporation or by the individual in control of the Thermal Energy System, setting forth in detail for the preceding calendar year, the then actual cost of the plant or business operated by such corporation or persons, the actual encumbrances, debts or obligations thereof, the amount of stock issued and to whom issued and the consideration therefore, the gross earning, the expenses and nature thereof and the net income after deducting all proper costs and expenses, the names and residences, and the amount of stock of all stockholders, and if any bonds have been redeemed and not cancelled that fact shall also be stated. Every such corporation or person who fails to comply with the provisions of this section shall be liable to the City in the sum of one hundred dollars for each day of such failure, to be recovered in an action of assumpsit in the Superior Court; and at the end of sixty (60) days, if such default shall continue, it shall constitute case for forfeiture of such franchise.
(Ord. No. 2008-38, § 10, 10-7-08)

Sec. 2.512. Right to Acquire.

At the end of the Term or upon any permitted termination of the franchise granted by this Ordinance, and also at fifteen years from the time of the taking effect thereof, and upon any five-year anniversary thereafter, or upon forfeiture thereof, City shall have the right to buy and take over all the property that is part of or used in connection with the Thermal Energy System within the City, and of such portion of such property beyond the City Limits as is actually and necessarily used in, belong to and a part of the local service, and which the City may own and operate under the constitution and general laws of the State, at the actual value thereof as fixed under Section 2.510 of the franchise as herein provided, and in the manner set forth in Title VIII. If said right to purchase shall be exercised by City at the end of the first fifteen year period, or at any five year period thereafter, then, except in case of forfeiture or violation of this Ordinance or franchise by Grantee, its successors or assigns, there shall be added as part of the purchase price to the value of the property, determined as provided in this section, four percent (4%) of the amount thereof for each full year of the thirty (30) year franchise Term then remaining: Provided, that such shall not include any value of the franchise; provided further, that this amount shall be in lieu of any amount described in Section 2.509; and provided further that this percentage amount may be increased by mutual agreement of the Grantee and the City as necessary to account for future capital investments made by the Grantee from time to time. If City does not elect to so purchase the property then, at the termination of the franchise granted by this Ordinance, the City Commission may provide that Grantee, its successors or assigns, shall sell the same at the price equal to the value, defined as fair market value, as ascertained as provided in Section 2.510 hereof, to any party to whom a new franchise may be granted, conditioned on the obligation of the grantee of such new franchise to purchase the same: Provided, that said grantee, his successors, or assigns, shall have the right to continue to operate such public utility under the terms of such reasonable franchise as the City may adopt and give efficient service until such time as the City is ready to acquire, take possession of and operate the same, and in default thereof, the City Commission may at once direct and authorize the taking of possession and operation of the same during such interval on the account of said grantee, its successors or assigns.

If City does not exercise any of its rights as set forth in this Section 2.512 above, then, at any time within twenty-four (24) months after the franchise granted by this Ordinance expires, or is revoked, surrendered or otherwise terminated, Grantee shall have the option of either abandoning in place or removing at its own expense, its personal property from the Public Ways. In the event that Grantee decides to remove its property and such removal is not effected within said twenty-four (24) month period, the City may, within a further period of three (3) months, require that all or any part of the remainder of such personal property be removed promptly by Grantee, at the sole expense of Grantee. In the event of removal, Grantee shall restore the Public Ways and other public places so as to conform with the then current condition of same at the date of such restoration. Any such personal property not removed or required to be removed within twenty-seven (27) months after the expiration, revocation, surrendered or other termination of the franchise granted by this Ordinance shall be deemed to have been abandoned in place, and Grantee shall, upon request, provide the City with an instrument transferring ownership or such personal property to the City.
(Ord. No. 2008-38, § 11, 10-7-08)

Sec. 2.513. City Jurisdiction.

Grantee shall be and remain subject to all Ordinances, rules and regulations of the City now in effect or which might subsequently be adopted for the regulation of land uses or for the protection of the health, safety and general welfare of the public; provided, however, that nothing herein shall be construed as a waiver by Grantee of any of its existing or future rights under Michigan or Federal law or a limitation upon the existing or future powers of the City pursuant to its Charter or Michigan or Federal law. For purposes of Title VIII, if the two arbitrators selected for any arbitration thereunder are unable to choose the third arbitrator, the City and Grantee shall take the names of all those approved as commercial mediators or commercial arbitrators for the Federal District Court for the Western District of Michigan and a name shall be drawn at random for the third arbitrator.
(Ord. No. 2008-38, § 12, 10-7-08)

Sec. 2.514. Effective Date.

This Ordinance, being immediately necessary for the preservation of public health, peace, and safety, shall be given immediate effect; however, it shall not become operative until the 46th day after the later of: (1) its effective date, or (2) the date the Grantee has unconditionally accepted the franchise in writing. The Ordinance shall continue in effect for a period of thirty (30) years thereafter, subject to revocation at the will of the City pursuant to Section 2.509 hereof at any time during said thirty (30) year period; provided, however, it shall cease and be of no effect unless and until within fifteen (15) days after adoption the Grantee shall file its written acceptance of the same with the City Clerk, and pay to the City the sum required by Section 2.502 hereof.
(Ord. No. 2008-38, § 13, 10-7-08)

Secs. 2.515—2.600. Reserved.

[The next page is 1191]

Chapters 35—40

RESERVED

Secs. 2.601—2.999. Reserved.

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TITLE III—PARKS AND PUBLIC GROUNDS

Chapter

41. Parks—General Regulations
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Chapter 41

PARKS AND RECREATION*

Sec. 3.1. Purpose, Interpretation and Application.
Sec. 3.2. Enforcement.
Sec. 3.3. Jurisdiction and Definitions.
Sec. 3.4. Rules and Regulations.
Sec. 3.5. Modification or Waiver of Strict Enforcement.
Sec. 3.6. Appeal from Order.
Sec. 3.7. Conflict with Specific Ordinances for Special Areas.
Sec. 3.8. Park, Pool and Facility Hours.
Sec. 3.9. Exclude and Expel.
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Sec. 3.11. Permits Required.
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Sec. 3.13. Boating.
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Sec. 3.15. Domestic Animals.
Sec. 3.16. Golf.
Sec. 3.17. Metal Detectors.
Sec. 3.18. Skateboards, Bicycles In-Line Skates, Other Recreational Conveyances.
Sec. 3.19. Sound Amplification.
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Sec. 3.21. Swimming in or Pollution of Pools and Aquatic Areas.
Sec. 3.22. Balloon Releases and Hot Air Balloons.
Sec. 3.23. Snowmobiling.
Sec. 3.24. Alcohol Restrictions/Permits.
Sec. 3.25. Camping or Overnight Use of Parks.
Sec. 3.26. Gambling and Raffles.
Sec. 3.27. Signs and Notices.
Secs. 3.28—3.30. Reserved.

*__Editor's note—__Ord. No. 95-39, § 1, adopted July 11, 1995, amended Ch. 42, in its entirety, to read as herein set out in §§ 3.1—3.27. Prior to inclusion of said ordinance, Ch. 42 pertained to general park regulations. See Code Comparative Table B.

__Charter reference—__Director of Public Welfare, Title VI, Sec. 11.

__Cross references—__Parks to be open for campaign meetings, § 1.45; application for use therefor to be made to Parks Supervisor, § 1.48; litter in parks, § 9.98; litter in lakes, streams and fountains, § 9.99; waterways generally, Ch. 154; bathing and swimming in public waters, § 9.186; fishing prohibited in certain areas, § 9.187.

__State law reference—__Authority to operate system of public recreation, MCL 123.51 et seq.

Sec. 3.1. Purpose, Interpretation and Application.

The provisions of this Chapter shall be held to be the minimum requirements adopted for the promotion of the public health, safety and general welfare of the people of Grand Rapids. Among other purposes, these provisions are intended to authorize the Director of Parks and Recreation, under the supervision and control of the City Manager, to promulgate rules and regulations relative to the use of areas and facilities which are declared recreational areas in the Parks and Recreation Master Plan and other areas or facilities as may be designated by the City Commission to be under the jurisdiction of the Department of Parks and Recreation, subject to the approval of the City Commission
(Ord. No. 95-39, § 1, 7-11-95)

Sec. 3.2. Enforcement.

The responsibility for the enforcement of the provisions of this Chapter, including the rules and regulations promulgated pursuant to the authority granted in this Chapter, shall be vested in the City Manager and, subject to the direction and control of the City Manager, to the Director of Parks and Recreation, and their duly authorized subordinates, assistants or agents. Should the title of the position of Director of Parks and Recreation be changed, the authority and duties provided for in this Chapter shall, without further action, be granted to the person whose duties and responsibilities include the management of the City's parks and recreation areas.
(Ord. No. 95-39, § 1, 7-11-95)

Sec. 3.3. Jurisdiction and Definitions.

The Department of Parks and Recreation and, as provided for herein, the Director of Parks and Recreation shall have jurisdiction over all areas and their facilities which are declared recreational areas in the Parks and Recreation Master Plan as adopted by the Planning Commission and certified to the City Commission, and such other areas and/or facilities as may be designated by the City Commission. Wherever the title of a City officer, official or employee is used in this Chapter, that title shall include not only the person holding the position named but also the authorized subordinates and representatives of the person in the position named.
(Ord. No. 95-39, § 1, 7-11-95)

Sec. 3.4. Rules and Regulations.

The Director of Parks and Recreation is hereby authorized and directed, under the supervision and control of the City Manager, to adopt rules and regulations to carry out the purpose of this Chapter, to protect the public health, safety and welfare and to improve the fair, safe and efficient use of park and recreation facilities by the public. Copies of the rules and regulations adopted shall be kept on file at the office of the City Clerk and the office of the Director of Parks and Recreation for distribution to the public. Any change or alteration in the existing rules and regulations and any new rule or regulation shall be submitted to the City Commission for approval. No such rule or regulation shall become effective until approved by the City Commission.
(Ord. No. 95-39, § 1, 7-11-95)

Sec. 3.5. Modification or Waiver of Strict Enforcement.

The Director of Parks and Recreation is authorized to waive or modify enforcement of the strict letter of any rule or regulation promulgated by the Director where practical difficulties in carrying out the strict letter of such rule or regulation would result in hardship to a particular person or persons, or to the public. Such waiver or modification, however, must be of a character which will not impair the purposes and intent of this Chapter. Any such modification or waiver shall be at the discretion of the Director, subject to the supervision and control of the City Manager.
(Ord. No. 95-39, § 1, 7-11-95)

Sec. 3.6. Appeal from Order.

If any person is aggrieved by any order or decision by the Director of Parks and Recreation, that person may, within ten (10) days after receipt of such order or decision, appeal in writing to the City Manager. The City Manager may make such decision as the City Manager deems in the public interest within the scope and intent of this Chap-

ter and such rules and regulations, and such decision shall be final unless an appeal in writing is filed within ten (10) days thereafter with the City Commission at the office of the City Clerk. The City Commission may take such action on such appeal as it deems just, and may vary the terms of such rules and regulations as it determines is in the public interest.
(Ord. No. 95-39, § 1, 7-11-95)

Sec. 3.7. Conflict with Specific Ordinances for Special Areas.

In the case of any conflict between this Chapter or any of the rules and regulations adopted pursuant to it and the provisions of any ordinance or rule adopted to apply to a specific area, the provisions of the specific ordinance or rule shall apply.
(Ord. No. 95-39, § 1, 7-11-95)

Sec. 3.8. Park, Pool and Facility Hours.

The public parks of the City of Grand Rapids shall generally be open to the public between sunrise and sunset of each and every day except as to those parks designated by the Director of Parks and Recreation to be open during other hours to be determined by the Director. It shall be unlawful for any person, except those persons authorized by the Director of Parks and Recreation, to enter, be in or remain within the public parks after sunset on one day or before sunrise on the following day except where other hours are authorized by the Director of Parks and Recreation. Notwithstanding the open hours provided for in this Section, the Director may, to carry out the purposes of this Chapter, to protect the public health, safety and welfare and to improve the fair, safe and efficient use of park and recreation facilities by the public, close parks or portions of parks to public use. The Parks and Recreation Director shall establish hours during which the swimming pools and other specialized recreational facilities and areas are open and such facilities shall not be used except during those open hours.
(Ord. No. 95-39, § 1, 7-11-95)

Sec. 3.9. Exclude and Expel.

The City Manager, the Director of Parks and Recreation, and, as provided in this Chapter, all of their authorized subordinates and representatives, are granted the authority and power to exclude and expel any person or persons from any public park, playground, boulevard, pool or recreation area when such person or persons violate any of the provisions or requirements of the City Code of the City of Grand Rapids, the laws of the State of Michigan or the Rules and Regulations promulgated pursuant to the authority granted in this Chapter. Any such order of exclusion or expulsion that extends for a period of ten (10) days or less may be given verbally. In the event that such order of exclusion or expulsion extends for any period exceeding ten (10) days, the person authorized to issue the order shall issue the order in writing stating the reasons therefor and notifying the violator that he or she has the opportunity of a hearing before the Director of Parks and Recreation or a neutral hearing officer designated by the Director if a written request therefor is filed with the Director of Parks and Recreation within seven (7) days of the date of issuance of the order of exclusion or expulsion Any hearing held pursuant to such a request shall be held promptly after receipt of the request. Based upon the findings made as a result of the hearing, the Director of Parks and Recreation or the designated neutral hearing officer may sustain, overrule or modify the order of exclusion or expulsion and shall state the reasons for such holding in writing. Any person to whom an order of expulsion or exclusion is given for a period of ten (10) days or less may also request such a hearing whether the order is verbal or written. Any order of expulsion or exclusion remains in full force and effect during the period that it is being appealed unless suspended by the Director of Parks and Recreation.
(Ord. No. 95-39, § 1, 7-11-95)

Sec. 3.10. Violation of Orders of Exclusion or Expulsion.

No person shall fail, neglect or refuse to comply with such an order of expulsion or exclusion.
(Ord. No. 95-39, § 1, 7-11-95)

Sec. 3.11. Permits Required.

No person shall conduct or participate in any business activity, bazaar, sale, swap meet, barter activity or other activity of a commercial nature except pursuant to a permit issued by the Director of Parks and Recreation. No group political meetings or functions, religious meetings, public speeches, concerts, or other similar activities shall be held within a public park except pursuant to a permit issued by the Director of Parks and Recreation. A permit for such activities shall be issued by the Director of Parks and Recreation or his/her designee with reasonable restrictions only with regard to the time, place and manner of activity to be conducted.
(Ord. No. 95-39, § 1, 7-11-95)

Sec. 3.12. Hunting and Trapping.

No person shall hunt or trap or attempt to hunt or trap any animal or bird in any City Park or other area under the jurisdiction of the Parks and Recreation Department. This provision shall not apply to City employees or to other persons authorized in writing by the Director of Parks and Recreation to hunt or trap animals or birds in the interest of public safety.
(Ord. No. 95-39, § 1, 7-11-95)

Sec. 3.13. Boating.

Boating is permitted in the lagoons at Riverside Park, but no person may operate, control or occupy a power boat in these lagoons. No person shall launch a power boat from park property except at designated launching sites for such use on the Grand River. No person shall fail to comply with federal, state and local laws, ordinances, rules and regulations pertaining to the use of boats in inland waters. Model boats, jet skis, wave runners and similar personal watercraft are prohibited on park ponds, lakes and lagoons, except by permit issued by the Director of Parks and Recreation or his or her designee
(Ord. No. 95-39, § 1, 7-11-95)

Sec. 3.14. Fires.

No person shall start, accelerate, furnish fuel to or approach an open fire in any public park. The burning of wood, charcoal, coke or other accepted fuels for the preparing of food in a grill shall not be a violation of this Section as long as the food preparation is conducted in a safe and sanitary manner.
(Ord. No. 95-39, § 1, 7-11-95)

Sec. 3.15. Domestic Animals.

No person shall permit or allow any domestic animal to be at large or unrestrained or to run at large within any public park or other grounds under the jurisdiction of the Department of Parks and Recreation. No dog shall be permitted in any City Park or playground unless on a leash not over 8 feet long. Owners of domestic animals shall remove their animal's fecal discharges from park property.
(Ord. No. 95-39, § 1, 7-11-95)

Sec. 3.16. Golf.

No person shall golf on park grounds or other grounds under the jurisdiction of the Department of Parks and Recreation not established for that purpose except in conjunction with a Parks and Recreation Department-sponsored or approved program.
(Ord. No. 95-39, § 1, 7-11-95)

Sec. 3.17. Metal Detectors.

No person shall operate a metal detector in any park or area of a park except by permit issued by the Director of Parks and Recreation or his or her designee.
(Ord. No. 95-39, § 1, 7-11-95)

Sec. 3.18. Skateboards, Bicycles, In-Line Skates, Other Recreational Conveyances.

The Director of Parks and Recreation or his or her representative have the authority to close parks, areas of parks or other areas under control of the Director of Parks and Recreation to skateboards, bicycles, in-line skates or other wheeled or unwheeled conveyances when visitor safety or the protection of natural or man-made features are at conflict with possession or use of such skateboards, bicycles, in-line skates or other conveyances. No person shall operate any skateboard, bicycle, in-line skates or other wheeled or

unwheeled conveyance on any unpaved surface, in any area in which such use is prohibited by signs or after having been directed by the Director of Parks and Recreation or his or her representative not to operate such conveyances in a specified area.
(Ord. No. 95-39, § 1, 7-11-95)

Sec. 3.19. Sound Amplification.

No person shall use sound amplification devices or equipment in any park, areas of parks or other areas under control of the Director of Parks and Recreation in such a manner as to disturb the quiet enjoyment of the park or other area by other users, except with a permit issued by the Director of Parks and Recreation or his or her representative. Any sound amplification which exceeds the limits provided for in the City Code is prohibited.
(Ord. No. 95-39, § 1, 7-11-95)

Sec. 3.20. Park Roads, Grounds and Parking Lots.

No person shall ride or drive any animal or vehicle in any public park or playground except upon the proper roadways, avenues and drives set aside for such use. No person shall ride or drive any animal or vehicle at a speed exceeding ten miles an hour, or, where posted, such speed as may be designated. No person shall use any park parking lot for any activity other than the operation or parking of a vehicle or to cross the parking lot on foot. Permits allowing exceptions to the requirements of this Section may be issued for special events by permit issued by the Director of Parks and Recreation or his or her representative.
(Ord. No. 95-39, § 1, 7-11-95)

Sec. 3.21. Swimming in or Pollution of Pools and Aquatic Areas.

No person shall throw, deposit or convey any substance into any basin, pool, lake, lagoon, watercourse or fountain in any park or other area under the jurisdiction of the Director of Parks and Recreation. No person shall enter, swim in or wade in any basin, pool, lake, lagoon, watercourse or fountain in any park or other area under the jurisdiction of the Director of Parks and Recreation except in facilities specifically set apart for that purpose.
(Ord. No. 95-39, § 1, 7-11-95)

Sec. 3.22. Balloon Releases and Hot Air Balloons.

No person shall release any helium filled balloon in any public park or area under the jurisdiction of the Parks and Recreation Department. The Director of Parks and Recreation may designate locations and conditions relating to occupied hot air balloon launches in the parks. Hot air balloons may be launched in these approved areas in compliance with the Director's specified conditions without a permit. No person shall launch a hot air balloon in any other area or under conditions other than those specified by the Director except pursuant to a written permit issued by the Director. The Director of Parks and Recreation shall make available to the public, at the offices of the Department, the Director's specified locations and conditions relating to occupied hot air balloon launches in the parks without a permit.
(Ord. No. 95-39, § 1, 7-11-95)

Sec. 3.23. Snowmobiling.

No person shall operate or permit the operation of a snowmobile in any City Park or area under the jurisdiction of the Parks and Recreation Department except that the Department of Parks and Recreation may use snowmobiles for maintenance and security purposes.
(Ord. No. 95-39, § 1, 7-11-95)

Sec. 3.24. Alcohol Restrictions/Permits.

No person shall consume, possess, or bring into any City Park or other area under the jurisdiction of the Parks and Recreation Department any beer, wine, liquor, malt or any other alcoholic beverage whatsoever. The Director of Parks and Recreation may designate locations where beer and wine may be allowed by permit with terms and conditions. No person shall consume, possess, or bring into any City Park or other area under the jurisdiction of the Parks and Recreation Department where a permit is required any beer, wine, liquor, malt or any other alcoholic beverage

unless a permit has been issued by the Director. The Director of Parks and Recreation may refuse to issue a beer and wine permit if, in the reasonable exercise of her or his discretion and judgment, when it would be inappropriate or inadvisable to permit the consumption of alcohol as requested because of concurrent events, or past problems under similar circumstances or for under such other circumstances as will, in the Director's judgment, present an immediate or imminent threat to the public health, safety or welfare.
(Ord. No. 95-39, § 1, 7-11-95)

Sec. 3.25. Camping or Overnight Use of Parks.

No person shall camp, conduct or participate in an overnight outing or any similar activities in a City Park or other area under the jurisdiction of the Parks and Recreation Department. The use of tents, trailers, motor homes is not permitted in City Parks. Activities otherwise prohibited by this Section may be conducted pursuant to a permit issued by the Director of Parks and Recreation.
(Ord. No. 95-39, § 1, 7-11-95)

Sec. 3.26. Gambling and Raffles.

No person shall participate in, conduct or be present at any gambling or game of chance of any kind in a City Park or other area under the jurisdiction of the Parks and Recreation Department except as provided for in this Section. This Section does not preclude any raffle or other gambling activity for which a license or permit has been issued by the State of Michigan which is conducted by an organization permitted by state law to conduct such an activity. In order for this exclusion to apply, the following conditions must be met:

1. Any necessary licenses must be obtained from the State of Michigan.
2. The organization conducting the activity must comply with all federal, state and local laws, ordinances, rules and regulations as they pertain to the activity.
3. Written permission must be obtained from the Parks and Recreation Department.
4. The activity must be held in conjunction with an event which has been authorized by the City.
5. It must not be necessary to purchase a ticket in order to gain entrance to the event.

(Ord. No. 95-39, § 1, 7-11-95)

Sec. 3.27. Signs and Notices.

The Director of Parks and Recreation is authorized to place or erect, and the public is required to obey, any and all signs or notices which are designed to regulate and supervise activities in parks or other areas under the jurisdiction of the Parks and Recreation Department.
(Ord. No. 95-39, § 1, 7-11-95)

Secs. 3.28—3.30. Reserved.

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Chapter 42

TREES*

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Sec. 3.59. Nuisance Abatement Costs on Private Property.

***Editor's note—**Ord. No. 2018-40, § 1, adopted July 10, 2018, repealed the former Ch. 42, §§ 3.31—3.41, 3.45—3.49, 3.53—3.60, and § 2 of such ordinance enacted a new Ch. 42 as set out herein. The former Ch. 42 pertained to similar subject matter. See the Code Comparative Table for complete derivation.

Charter reference—Director of Public Welfare, Title VI, Sec. 11.

Cross references—Vision clearance at intersections, § 4.61 et seq.; trimming or removal of trees and shrubs damaging dwellings, § 8.569.

Sec. 3.59.1. Remedies Severable.

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Sec. 3.68. Prohibited Acts.
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ARTICLE 1. IN GENERAL

Sec. 3.31. Title.

This Chapter shall be known as the "Grand Rapids Tree Ordinance".
(Ord. No. 2018-40, § 2, 7-10-18)

Sec. 3.32. Purpose and Intent.

The City of Grand Rapids' urban forest and tree canopy represent a significant public infrastructure asset that warrants protection for the benefit of the entire community. The provisions of this Chapter are deemed to be the minimum requirements necessary for the promotion of the public health, safety and general welfare of the people of Grand Rapids. The intent of this ordinance is to preserve, maintain, enhance, and increase the urban tree canopy in the City of Grand Rapids as well as to:

(a) Protect public investments in city infrastructure assets such as the tree canopy, stormwater systems, public utilities, and streets;

(b) Conserve energy, reduce urban heat islands, mitigate and adapt for climate change;

(c) Create a healthy, resilient, and sustainable environment that ensures a livable habitat for people and wildlife;

(d) Improve psychological health through the aesthetic, restorative qualities of natural and scenic settings that provide visual relief to the built environment;

(e) Guard community residents from personal injury and protect the City's urban forest and other property from damage caused or threatened by improper planting, pruning or removal of trees located within the City;

(f) Protect and enhance property values, quality of life, and the character of residential neighborhoods;

(g) Maintain and enhance the attractiveness and economic vitality of business and commercial areas;

(h) Reduce erosion, flooding, extreme temperatures, surface and groundwater impairment, air pollution, and light pollution;

(i) Allow for and promote innovation in urban forest preservation and expansion;

(j) Implement the themes, policies and goals contained in officially adopted plans, including the City of Grand Rapids Master Plan, Sustainability Plan, Transformation Plan, Green Grand Rapids Plan, Parks and Recreation Master Plan and Urban Forest Plan; and

(k) Establish clear, fair, and efficient standards for review, approval, and administration of the Grand Rapids Tree Ordinance.

(Ord. No. 2018-40, § 2, 7-10-2018)

Sec. 3.33. Jurisdiction and Management Control.

Subject to the provisions of the City Charter and this Code, the Parks Department shall have general management and control over all tree operations conducted in any public place or right-of-way, as defined herein.
(Ord. No. 2018-40, § 2, 7-10-2018)

Sec. 3.34. Definitions.

The following definitions shall apply for purposes of this Chapter:

Abutting Property Owner means the owner of real property abutting the public right-of-way where a Public Tree is located or his or her lessees or assigns.

City Manager means the City Manager of the City and any persons designated to act on behalf of the City Manager in the administration or enforcement of this Chapter.

Designated Forestry Official means a qualified forestry professional, or his or her designee, appointed by the City Manager to carry out the enforcement of this ordinance related to trees on public and private property. The individual will, at a minimum, be an International Society of Arboriculture Certified Arborist.

Forestry Division means the city division, office, or department responsible for coordinating or performing work on Public Trees.

Public Place means any publicly owned area used or reserved for park, pool, playground or recreational purposes, and the grounds of any public building.

Public Tree means any tree located within the Right-of-way or in any Public Place as defined herein.

Right-of-Way means any public street or other public place used for street or sidewalk purposes, including the area between the sidewalk and curb line.

Shrub means a woody perennial plant, usually with several stems that may be erect or close to the ground, generally smaller than a tree. In any case, a designated forestry official shall have the right to determine whether any specific woody plant shall be considered a tree or a shrub. Such determination shall be final and not subject to appeal.

Storm Damage means broken, cracked, or otherwise damaged or injured stems, trunk, bark, roots, or any other portion of a tree caused by high winds, lightning, snow, ice, storms, or any other acts of extreme weather.

Tree means a woody perennial plant with a singular or multiple trunks which typically develop a mature size of over several inches diameter and ten or more feet in height. In any case, a designated forestry official shall have the right to determine whether any specific woody plant shall be considered a tree or a shrub. Such determination shall be final and not subject to appeal.

Tree Canopy Coverage means the area of ground covered when measuring the branch spread of a tree from branch tip to branch tip, or the area covered by a group or cluster of trees with contiguous (or nearly contiguous) canopies. Tree canopy is the layer of leaves, branches, and stems of trees that cover the ground when viewed from above.

Tree Operations means any and all planting, care, spraying, treating, fertilizing, pruning above or below ground, excavation near, removal or destruction of trees and shrubs performed in or on any public place or right-of-way; or any excavation within the tree canopy coverage or root-cutting performed in furtherance of such activities.

Utility means any entity, public or private, that provides essential services, including but not limited to: water, sewer, electric power, heating systems, natural gas and wireless communications.

Vegetation Management means the practice of integrated and systematic maintenance of trees, brush, or other plants for a stated and specific purpose or goal.
(Ord. No. 2018-40, § 2, 7-10-2018)

Sec. 3.35. Severability.

If any provision of this Chapter or application thereof to any person or circumstance is held invalid by any court, other provisions or applications of the Ordinance which can be given effect without the invalid provision or applications shall not be affected, and to this end the provisions of the Ordinance.
(Ord. No. 2018-40, § 2, 7-10-2018)

ARTICLE 2. RULES AND REGULATIONS

Sec. 3.36. Creation, Approval and Filing of Rules.

The City Manager is authorized to make the necessary rules and regulations to carry out the purpose of this Chapter. The rules shall be effective upon approval by the City Commission. The rules shall be known as the Tree Manual and Standards of Practice. The Tree Manual and Standards of Practice shall be published on the City's website. Copies of the Tree Manual and Standards of Practice shall be kept on file at the office of the City Clerk and the Parks Department for distribution to interested parties.
(Ord. No. 2018-40, § 2, 7-10-2018)

Sec. 3.37. Modification.

The City Manager is authorized to exercise discretion in the application of any rules or

regulations promulgated hereunder, where practical difficulties in carrying out the strict letter of such rule or regulation would result in a personal hardship to someone affected thereby. Such applications, however, must be those of a character which will not impair the overall purposes and intent of this Chapter.
(Ord. No. 2018-40, § 2, 7-10-18)

Sec. 3.38. Fees.

Fees associated with the administration of this Chapter shall be set from time to time by resolution of the City Commission.
(Ord. No. 2018-40, § 2, 7-10-18)

ARTICLE 3. URBAN FORESTRY COMMITTEE

Sec. 3.39. Urban Forestry Committee.

The Urban Forestry Committee is hereby reenacted and shall continue to be vested with authority consistent with this Chapter and the rules and regulations created hereunder. A Committee member currently holding an appointment shall continue to hold his or her appointment for the duration of the existing term.
(Ord. No. 2018-40, § 2, 7-10-18)

Sec. 3.40. Membership.

The Urban Forestry Committee shall be comprised of eleven (11) voting members as follows:

(1) The Mayor shall appoint four (4) members, who shall be persons with a demonstrated interest or expertise in trees. Of those four (4) members: one (1) shall be a member of the Parks and Recreation Advisory Board and one (1) shall be a certified arborist.

(2) The City Manager shall appoint four (4) members, who shall be persons with a demonstrated interest or expertise in trees. Of those four (4) members: One (1) shall be a designated forestry official; and two (2) shall be City employees.

(3) Electric Power Utility and Natural Gas Utility shall nominate one (1) affiliated representative each to serve as a member.

(4) A nonprofit organization with a demonstrated interest in the City's urban forest and tree canopy, as determined by the Director of the Parks and Recreation Department, shall nominate one (1) affiliated representative to serve as a member.

All appointments to the Committee shall be subject to confirmation by the City Commission. The designated forestry official shall be a permanent member of the Committee. All other members of the Committee shall serve terms of three (3) years.
(Ord. No. 2018-40, § 2, 7-10-18; Ord. No. 2024-02, § 1, 1-9-24)

Sec. 3.41. Governance.

The Committee shall select a chairperson, adopt by-laws, and establish such rules of procedure for its meetings as it may deem appropriate.
(Ord. No. 2018-40, § 2, 7-10-18)

Sec. 3.42. Meetings.

The Committee shall meet at least quarterly, and such meetings shall be open to the public. The activities of the Committee shall be conducted in compliance with the Michigan Open Meetings Act, as amended.
(Ord. No. 2018-40, § 2, 7-10-18)

Sec. 3.43. Duties and Responsibilities.

(1) The Urban Forestry Committee shall be an advisory committee with the following duties and responsibilities:

(1) Develop recommendations for a comprehensive urban forest management program within the City.

(2) Make recommendations on changes or additions to the Tree Manual and Standards of Practice.

(3) Develop recommendations for activities and initiatives that promote the proper planting or proper care of trees.

(4) Conduct studies or projects as requested by city officials or staff. By a majority vote of its members, the Committee may also undertake projects as deemed necessary or appropriate for the protection of the tree canopy within the City.

(5) The Committee may designate certain trees to be Landmark Trees, and is authorized to promulgate guidelines for such Landmark designation.

(Ord. No. 2018-40, § 2, 7-10-18)

ARTICLE 4. PROTECTION, PLANTING, PRUNING AND FELLING OF PUBLIC TREES

Sec. 3.44. Work on Public Trees.

All work on public trees shall be performed in accordance with the standards of this Chapter and the standards set forth in the Tree Manual and Standards of Practice.

(Ord. No. 2018-40, § 2, 7-10-18)

Sec. 3.45. Permit required for Work on Public Trees.

Except as otherwise provided in this Chapter, no person shall perform tree operations or otherwise disturb any public tree without first obtaining the proper permit as provided in this Chapter.

(Ord. No. 2018-40, § 2, 7-10-18)

Sec. 3.46. Routine Maintenance—Permit Not Required.

A permit is not required for routine maintenance performed on any Public Tree when such maintenance is performed by an abutting property owner. "Routine maintenance" means the clearance pruning of small woody limbs from trees or shrubs less than one (1) inch in diameter, which work is performed from the ground by means of hand-held, non-motorized equipment.

(Ord. No. 2018-40, § 2, 7-10-18)

Sec. 3.47. Storm Damage—Permit Not Required.

A permit is not required to perform work on any public tree to abate Storm Damage when such work is performed by an abutting property owner, contractor for the abutting property owner, utility, or the city.

(Ord. No. 2018-40, § 2, 7-10-18)

Sec. 3.48. Permit Waiver.

Permit requirements may be waived by the City Manager in cases of emergency, storm damage, disease outbreak, insect infestations, and any situation where immediate abatement of a hazard is necessary to protect the public health, safety and welfare.

(Ord. No. 2018-40, § 2, 7-10-18)

Sec. 3.49. Not to Apply to Public Improvements.

The permitting requirements set forth in this chapter shall not apply to the following:

(1) Work performed, coordinated or supervised by the forestry division.

(2) Work performed on any public tree, shrub, plant, or any part thereof, when the same shall be necessary for the construction of new sidewalk projects, roadways, streets, avenues, alleys, pavements, sewers, watermains, or other public improvements where such public improvement is authorized by any governmental agency.

(Ord. No. 2018-40, § 2, 7-10-18)

Sec. 3.50. Permit—Application and Issuance.

(1) No permit shall be issued under this Chapter until the application is submitted and the appropriate fee is paid not less than two (2) weeks in advance of the time the work is to be done unless otherwise permitted by the City Manager or to abate an immediate hazard.

(2) The City Manager shall issue the appropriate permit as provided for herein if, in his or her judgment, the proposed work adheres to specifications contained in this Chapter and in the Tree Manual and Standards of Practice.

(3) The person receiving the permit shall abide by all conditions stated on the permit and by the standards outlined in the Tree Manual and Standards of Practice.

(4) Any Tree Permit granted shall contain a definite date of expiration and the work shall be completed in the time allowed on the permit and only in the manner as therein described.

(5) Notice of completion shall be given within five (5) days to the City Manager for inspection.
(Ord. No. 2018-40, § 2, 7-10-2018)

Sec. 3.51. Street or Lane Closure Associated With Tree Operations.

No person shall partially or completely close any street, alley, sidewalk, roadway, or traveled way in the City without first obtaining a permit.

(1) The person to whom the permit is issued shall be responsible for placing such signs, flags, flares, and barricades as are needed to warn persons of the danger of using the street, sidewalk, or alley.

(2) No trees shall be felled onto any street without having persons stationed in the streets to stop traffic from both directions at the time the tree is being dropped.

(3) Trees or branches which are felled or trimmed into the street or any other public property must be removed immediately unless an extension of time is granted by the City Manager.

(4) Stump removal cavities shall be cleared and refilled with soil in the same operation. At no time shall a cavity remain unfilled overnight without adequate pedestrian and vehicular protection.

(5) Insurance. Before any tree or branch is felled onto public property, road, or into, across, or onto any public infrastructure, the applicant must provide to the City Manager a Certificate of Insurance which shall have a minimum combined single limit of liability for bodily injury and property damage of three hundred thousand dollars ($300,000.00) for each occurrence. The insurance certificate shall also name the City of Grand Rapids as an Additional Insured and Certificate Holder in all liability insurance.
(Ord. No. 2018-40, § 2, 7-10-2018)

Sec. 3.52. Operations in Public Places and Right-of-Way—Department Authority.

The City Forestry Division shall have the following duties:

(1) To plant, prune, maintain, and remove trees, plants, and shrubs within the limits of all streets, alleys, avenues, lanes, squares, and public grounds, as may be necessary to ensure public safety or to preserve or enhance the symmetry and beauty of such public grounds.

(2) To remove or cause or order to be removed, any tree, plant, shrub, or part thereof, which is in an unsafe condition or which by reason of its nature is in conflict with sewers, electric power lines, gas lines, water lines, curbs, sidewalks, or other existing or proposed public improvements, or constitutes a public nuisance as defined by this Code.

(3) To consult with other City departments, staff, or contractors prior to actions resulting in damaging, removing, planting, or otherwise injuring any tree or shrub within the lines of all streets, alleys, avenues, lanes squares, and other public grounds.
(Ord. No. 2018-40, § 2, 7-10-2018)

Sec. 3.53. Grand Rapids Tree Bank Established.

The City hereby establishes a dedicated budget category called the Grand Rapids Tree Bank for the maintenance and disbursement of funds paid for tree canopy preservation or replacement costs as required in this Code. Tree Bank funds may be used to plant appropriate sized and species of trees in the right-of-way or public areas identified by the City.
(Ord. No. 2018-40, § 2, 7-10-2018)

ARTICLE 5. UTILITY VEGETATION MANAGEMENT

Sec. 3.54. Annual Vegetation Management Permit Required.

Any utility that performs tree operations or otherwise impacts public trees as part of regularly

scheduled utility or infrastructure vegetation management operations is required to obtain a permit each calendar year that will apply to the entirety of the utility's vegetation management operations for the year.
(Ord. No. 2018-40, § 2, 7-10-2018)

Sec. 3.55. Annual Permit Requirements.

(1) The vegetation management permit will include a timeline and extent of proposed vegetation management activities for one calendar year.

(2) Under the conditions of the permit, the City and the utility shall hold a review meeting to discuss the permit application and proposed vegetation management operations. One meeting shall occur prior to the approval of the permit. Additional field meetings shall occur prior to any vegetation management activities once particular work-sites or areas have been planned for work. These field meetings may be waived by the mutual agreement of the City and the utility.

(3) The permit will be issued contingent upon the utility's adherence to industry standards and best practices, the Tree Manual and Standards of Practice, and current administrative rules of the Michigan Public Service Commission and the Federal Energy Regulatory Commission.

(4) The City may elect to, through discussion with the utility, establish additional specifications or standards that promote the purpose and intent of this Chapter.

(5) The Utility shall provide fifteen (15) days' notice to the City prior to work planning activities or individual vegetation management activities at each individual work site that involves work on trees covered by this permit.
(Ord. No. 2018-40, § 2, 7-10-2018)

Sec. 3.56. Emergency Operations or Storm Response.

A utility is not required to obtain a permit, prior approval, or provide advance notice to abatement of storm damage or conduct emergency operations necessary for the public health, safety, or welfare, or where necessary for the immediate restoration of disrupted utility service. The utility shall notify the City Manager as soon as possible following any emergency operations or storm response work. The utility shall notify the City as soon as practical if debris from such work was left on any right-of-way or public place.
(Ord. No. 2018-40, § 2, 7-10-2018)

ARTICLE 6. PUBLIC NUISANCES

Sec. 3.57. Nuisance Prohibited on Public and Private Property.

The following conditions, whether on private or public property, are declared a public nuisance:

(1) Any tree, plant or shrub infected with any lethal communicable disease, fungus, noxious insect, or other pest that is likely to infect other trees or become epidemic unless otherwise controlled under emergency conditions.

(2) Any tree, plant or shrub as listed in the Tree Manual and Standards of Practice as an exotic invasive species due to its invasive nature.

(Ord. No. 2018-40, § 2, 7-10-2018)

Sec. 3.58. Abatement of Nuisances.

The City Manager shall have authority to abate any condition declared to be a public nuisance on public or private property in accordance with the following procedures:

(1) The City Manager shall first take such legal action as may be necessary to enter onto any lot or premises within the City of Grand Rapids for the purpose of examining trees, plants and shrubs for the existence of an alleged public nuisance. In the case of suspected infestation, a designated forestry official may remove such specimens or samples as may be necessary or desirable for diagnosis.

(2) The City Manager shall then give written notice to the person responsible for the creation, commission, permitting or maintenance of such public nuisance, specifying in particular the nature of the public nuisance, the corrective action to

be taken to abate the public nuisance, and the time limit for the abatement of the public nuisance, which shall be a reasonable time, but not to exceed thirty (30) days from the time the notice is served. The notice shall be served in accordance with Section 1.11 of the City Code.

(3) If, at the expiration of the time limit in the notice, the person responsible for the public nuisance shall not have complied with the requirements of the notice, the City Manager shall carry out the requirements of the notice, take other action as permitted by this Code or state law, or otherwise abate the public nuisance.

(Ord. No. 2018-40, § 2, 7-10-2018)

Sec. 3.59. Nuisance Abatement Costs on Private Property.

(1) The owner of the property shall be liable for all costs incurred by the City in connection with the abatement of a public nuisance on private property, whether the City performs the work, a City contractor or vendor performs the work, or the person or persons with ownership of the property perform the work or otherwise bring the property into compliance with the applicable provisions of the City Code.

(2) All of the costs of enforcement activities provided for in this Chapter and incurred by the City shall be billed to the owner of the property, or other clearly responsible party, and shall be paid within thirty (30) days of mailing. All costs of such abatement-related and enforcement activities shall be a personal debt owed to the City by the person billed for the public nuisance and, if unpaid, may be assessed as a lien on the property.
(Ord. No. 2018-40, § 2, 7-10-2018)

Sec. 3.59.1. Remedies Severable.

Any action taken by the City to abate any public nuisance under the provisions of this Chapter, or any other provision of the City Code, shall not affect the right of the City to institute other legal or administrative proceedings against the person committing, creating, permitting or maintaining the public nuisance or to impose the penalty or remedy prescribed for such violation. Upon application by the City to any court of competent jurisdiction, the court may order the public nuisance abated and/or the violation or threatened violation restrained and enjoined.
(Ord. No. 2018-40, § 2, 7-10-2018)

ARTICLE 7. APPEAL PROCEDURES

Sec. 3.60. Permit—Denial, Suspension or Revocation.

In addition to the grounds set forth elsewhere in this Code, any of the following shall be grounds for denial, suspension, or revocation of a permit issued pursuant to this Chapter and the rules or regulations promulgated herein:

(1) Any violation of a provision of this Chapter or any rule or standard outlined in the Tree Manual and Standards of Practice.

(2) Any violation of or refusal to adhere to the terms set forth on the permit.

(3) Permittee fails to pay any fines due for violations of this Chapter.

In the case of a permit suspension or revocation, the City Manager shall follow the procedures set forth in Chapter 91, Section 7.14.
(Ord. No. 2018-40, § 2, 7-10-2018)

Sec. 3.61. Right of Appeal.

The City Manager shall conduct hearings or may appoint an impartial Hearing Officer to conduct hearings related to orders provided for in this Chapter and to hear appeals of decisions to deny, suspend, or revoke a permit. The appeal to the City Manager is an appeal of right.
(Ord. No. 2018-40, § 2, 7-10-2018)

Sec. 3.62. Appeal Procedures for Permit Denials.

Where proper application is made for a permit and such permit is denied by the City, the applicant shall have the right to appeal such a denial as elsewhere provided for by law or in this Chapter. For purposes of this Article, denial of a permit shall include refusal to issue an original permit. Within ten (10) business days of notifica-

tion of denial, applicant shall file with the City Clerk a written notice of appeal. The Clerk shall refer a copy of this notice to the City Manager or the designated Hearing Officer. The City Clerk shall also confer with the City Manager or the designated Hearing Officer to set a hearing time as soon as is practical but not later than thirty (30) days after the filing of the notice of appeal with the City Clerk. The hearing shall be conducted in substantial compliance with City Code Chapter 32, Art 7, Section 2.274. The issue to be determined is whether the denial, suspension, or revocation of the permit was consistent with provisions of this Chapter and the Tree Manual and Standards of Practice. The designated Hearing Officer shall render a written decision within a reasonable time stating the factual basis for the decision and the reasons for the decision.
(Ord. No. 2018-40, § 2, 7-10-2018)

Sec. 3.63. Appeal Procedures for Administrative Orders.

(1) Any person, receiving an order to pursuant to this Chapter may request a hearing regarding such order. A written request for such a hearing shall be made to the designated person and address indicated on the order within ten (10) business days after receiving the order. A hearing date, time and place shall be set as soon as is practical but not later than thirty (30) business days after receipt of the request for a hearing.

(2) Once the requested hearing has been conducted, a person shall have the right to appeal the results of that hearing except for any matter disposed of by a consent order, stipulation, agreement or mutual waiver. A written notice of appeal shall be filed with the City Clerk within ten (10) business days from the closing of the hearing. The Clerk shall refer a copy of this notice to the City Manager or the designated Hearing Officer. The City Clerk shall also confer with the City Manager or the designated Hearing Officer to set a hearing time as soon as is practical but not later than thirty (30) business days after the filing of the notice of appeal with the City Clerk. The hearing shall be conducted by the designated Hearing Officer. The issue to be determined is whether the denial of the permit, plan approval or variance was consistent with provisions of this Chapter. The designated Hearing Officer shall render a written decision within a reasonable time stating the factual basis for the decision and the reasons for the decision.
(Ord. No. 2018-40, § 2, 7-10-2018)

ARTICLE 8. LANDMARK TREES

Sec. 3.64. Landmark Tree Program.

The City Commission hereby establishes a Landmark Tree program to recognize certain trees of historic, cultural or ecological value within the City of Grand Rapids.
(Ord. No. 2018-40, § 2, 7-10-2018)

Sec. 3.65. Public Landmark Tree.

(1) A public tree, in fair or better condition, that is determined to be of unique and intrinsic value to the City and residents because of its size, age, historic significance, or ecological value can be designated by the City Commission as a Public Landmark Tree after recommendation by the Urban Forestry Committee.

(2) The Urban Forestry Committee shall review the nominations and recommend that the City Commission approve or deny such applications in accordance with the guidelines set forth in the Tree Manual and Standards of Practice. A Public Landmark Tree designation is for the life of the tree.

(3) The Forestry Division will keep a record of all Public Landmark trees and make reasonable efforts to preserve such trees from injury or destruction.
(Ord. No. 2018-40, § 2, 7-10-2018)

Sec. 3.66. Private Landmark Tree.

Any private tree, in fair or better condition, that is determined to be of unique and intrinsic value to the City and residents because of its size, age, historic significance, or ecological value can be designated as a Private Landmark Tree. Any persons or entity can nominate a tree for Private Landmark Tree designation by submit-

ting a Landmark Tree Nomination Form to the Urban Forestry Committee. To achieve Landmark Tree designation, property owner approval is necessary. The Urban Forestry Committee shall review the nominations and approve or deny such applications in accordance with the guidelines set forth in the Tree Manual and Standards of Practice. A Private Landmark Tree designation is for the life of the tree.
(Ord. No. 2018-40, § 2, 7-10-2018)

Sec. 3.67. Resubmission of Applications.

A tree submitted for consideration as a landmark tree that fails to be so designated shall not be resubmitted to the Urban Forestry Committee for consideration for three years from the date of the denial. There is no appeal.
(Ord. No. 2018-40, § 2, 7-10-2018)

ARTICLE 9. PROHIBITED ACTS, VIOLATIONS, AND ENFORCEMENT

Sec. 3.68. Prohibited Acts.

No person shall:

(1) Plant, prune, remove, damage, cut, carve, or otherwise harm any tree or shrub on public property without a proper permit or as provided in this Chapter.

(2) Prune trees by "Topping", for hire, on City-owned property or public right-of-way, within the corporate limits of the City of Grand Rapids. "Topping" means an unacceptable pruning practice capable of injuring trees through the reduction of a tree's size by pruning live branches and leaders to stubs, without regard to long-term tree health or structural integrity.

(3) Attach any rope, wire, nails, posters, hammock, or other contrivance to any tree on City-owned property or public right-of-way unless protective measures are taken as described in the Tree Manual and Standards of Practice or approved by the City Manager after consultation with the designated forestry official.

(4) Attach any electrical lines or devices to any public tree or shrub, unless otherwise permitted as outlined in the Tree Manual and Standards of Practice, or approved by the City Manager.

(5) Except for removal of a tree in its entirety, use tree spurs or climbing spikes on trees located on City-owned property or public right-of-way except with specific written permission of the City Manager after consultation with the designated forestry official.

(6) Deposit, store, or maintain on City-owned property or public right-of-way any stone, brick, sand, concrete, lumber, tile, pipe, equipment, or other material that reasonably may be expected to impede the free passage of water, air, or fertilizer to the roots of any tree or shrub.

(7) Cause any gaseous, liquid, or solid substance that because of the nature or amount reasonably may be expected to be toxic or otherwise harmful to trees, shrubs, or other plants to be located on city-owned property or public right-of-way.

(8) Cause any fire to burn on City-owned property or public right-of-way or private property if such fire, or the heat, smoke, or ash therefrom reasonably may be expected to injure any portion of any tree or shrub located on City-owned property or public right-of-way, provided, however, this subsection shall not be construed to exempt any person from complying with State laws or Ordinances of the City of Grand Rapids respecting burning.

(9) Engage in any other prohibited acts as listed in the Tree Manual and Standards of Practice.

(10) Fail, neglect or refuse to comply with an order issued pursuant to the provisions of this Chapter unless an appeal challenging the order is lawfully filed as provided for in this Chapter.

(Ord. No. 2018-40, § 2, 7-10-2018)

Sec. 3.69. Violations.

A violation of this Chapter or of the Rules and Regulations promulgated hereunder shall constitute a municipal civil infraction punishable by a fine as established in Chapter 170 of the City Code.
(Ord. No. 2018-40, § 2, 7-10-2018)

Sec. 3.70. Continuing Violations.

Each day during which any violation of this provision of this Chapter shall occur or continue to occur shall be a separate offense.
(Ord. No. 2018-40, § 2, 7-10-2018)

Sec. 3.71. Repair or Replacement Costs of Public Trees.

If a violation of any provision of this Chapter causes the injury, mutilation or death of a public tree, the cost of repair or replacement of such tree shall be borne by the party in violation. The cost shall be set using calculations set forth in the Tree Manual and Standards of Practice. The City shall deposit such funds in the Tree Bank.
(Ord. No. 2018-40, § 2, 7-10-2018)

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Chapter 43

PUBLIC CEMETERIES*

Sec. 3.81. Enforcement.
Sec. 3.82. Jurisdiction.
Sec. 3.83. Rules.
Sec. 3.84. Waiver.
Sec. 3.85. Appeal from Order.
Secs. 3.86—3.89. Reserved.

*__Editor's note—__Ord. No. 92-14, § 1, adopted Feb. 4, 1992, amended Ch. 43 to read as herein set out in §§ 3.81—3.85. Prior to inclusion of said ordinance, Ch. 43, §§ 3.81—3.86, pertained to similar subject matter and carried no history note.

__State law reference—__Authority to acquire and maintain, MCL 128.1.

Sec. 3.81. Enforcement.

The responsibility for the enforcement of this Chapter including the rules shall be vested in the City Manager.
(Ord. No. 92-14, § 1, 2-4-92)

Sec. 3.82. Jurisdiction.

The City Manager shall have jurisdiction over all areas and their facilities, which are designated as public cemeteries in the Parks and Recreation Master Plan as adopted by the Planning Commission and certified to the City Commission and the design construction, maintenance and operation of public cemeteries and the facilities therein.
(Ord. No. 92-14, § 1, 2-4-92)

Sec. 3.83. Rules.

The City Manager is hereby authorized and directed to make the necessary rules to carry out the purpose of this Chapter to protect the public health, safety and welfare. Copies of the rules promulgated hereunder shall be kept on file at the Office of the City Clerk and the rules shall be effective upon approval by the City Commission and publication in the official proceedings of the City Commission. Such rules shall have the force and effect of law and a violation of the rules shall be considered a violation of this Code.
(Ord. No. 92-14, § 1, 2-4-92)

Sec. 3.84. Waiver.

The City Manager or the City Manager's designee is authorized to waive application of the strict letter of any rules promulgated hereunder, where practical difficulties in carrying out the strict letter of such rules would result in hardship to a particular person or persons or the public. A waiver, however, must be those of such character as will not impair the purposes and intent of this Chapter.
(Ord. No. 92-14, § 1, 2-4-92)

Sec. 3.85. Appeal from Order.

If any person shall feel aggrieved by any order or decision by the City Manager's designee or authorized subordinate, that person may, within ten (10) days after receipt of such order or decision, appeal in writing to the City Manager. The City Manager may make such decisions as the City Manager deems in the public interest within the scope and intent of this Chapter and such rules, and such decision shall be final.
(Ord. No. 92-14, § 1, 2-4-92)

Secs. 3.86—3.89. Reserved.

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Chapter 44

CITY MARKETS

Sec. 3.90. City Wholesale Markets.
Sec. 3.91. Leases and Fees.
Sec. 3.92. City Retail Market.
Sec. 3.93. Permit Fees, Rules and Regulations.
Sec. 3.94. Conduct on Market Property.

Sec. 3.90. City Wholesale Markets.

A City Wholesale Market shall be and is hereby established south of Hall S.W. and east of Freeman S.W.
(Ord. No. 74-40, 5-21-74)

Sec. 3.91. Leases and Fees.

The amount of fees for permits to buy or sell on, to park within or to enter the wholesale market and other fees shall be collected by the Superintendent of the Market. Such fees shall be established by the City Manager, subject to the approval of the City Commission. The City Manager shall make such rules and regulations for the conduct of the wholesale market as he or she finds necessary and proper for the operation of the same. Such rules and regulations and schedule of fees shall be effective upon approval of the City Commission.
(Ord. No. 74-40, 5-21-74)

Sec. 3.92. City Retail Market.

A City Retail Market is hereby established north of Fulton St. within the block west of Fuller Ave. N.E.
(Ord. No. 74-40, 5-21-74)

Sec. 3.93. Permit Fees, Rules and Regulations.

The City Manager is hereby authorized to promulgate such rules as are necessary for the maintenance and good order and the furtherance of the business conducted within the City Retail Market and to fix the permit fees to be paid by persons exhibiting and selling on said market, provided, that such fees so fixed by the City Manager shall not be effective until approved by the City Commission.
(Ord. No. 74-40, 5-21-74)

Sec. 3.94. Conduct on Market Property.

Sales shall be made upon any City Market property on such days and during such hours as shall be established by the City Manager and shall be made only at stalls or places designated by the Superintendent of the Market. Any person who buys or sells or attempts to buy or sell before the hour of opening or who violates the Rules and Regulations shall be suspended from the Market for not less than thirty (30) days by the Superintendent of the Market. Any person passing worthless checks or making false representations as to the quality or quantity of his or her merchandise shall be suspended permanently from the Market. No person shall remain upon the premises of the City Market who shall have been ordered from the premises by the Superintendent of the Market. No products of any kind shall be stored upon the sidewalks within or around the Market, nor shall any vehicle obstruct the free passage along the sidewalk or any walk between stalls. No vehicle shall be parked, loaded or unloaded except within places designated for such purpose.
(Ord. No. 74-40, 5-21-74)

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Chapter 45

ALLOTMENT GARDENS

Sec. 3.95. Statement of Policy.
Sec. 3.96. *City Property, Use of For Garden Plots.*
Secs. 3.97–3.99. Reserved.

Sec. 3.95. Statement of Policy.

It is the policy of the City of Grand Rapids to promote gardening and to provide garden plots for occupants of property in the vicinity of areas where garden plots may be available for use during the growing season for the growing of flowers and vegetables, minimizing noxious weeds and debris, to beautify and enhance the City and its neighborhood, to promote health, welfare and recreation and to utilize public property not presently needed for public purposes and such private property as may be available and under the control and direction of the City.
(Ord. No. 75-26, 3-25-75)

Sec. 3.96. City Property, Use of For Garden Plots.

Those properties not being used by the City, which it may own, shall be annually catalogued as to their availability and utility for garden plots and the City Manager, by suitable means, shall make such plots available to the public on a first-come-first-served basis by the issuance of a One Dollar ($1.00) permit for a gardening plot.
(Ord. No. 75-26, 3-25-75)

Secs. 3.97—3.99. Reserved.

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Chapter 46

DOWNTOWN VENDING*

Sec. 3.100. Reserved.
Sec. 3.101. Purpose and Policy.
Sec. 3.102. Definitions.
Sec. 3.103. Licenses Established.
Sec. 3.104. License Required.
Sec. 3.105. License Application.
Sec. 3.106. Reserved.
Sec. 3.107. Performance Requirements.
Sec. 3.108. License Required for Sidewalk and Public Right-of-way Vending in the Downtown Vending District.
Sec. 3.109. Restrictions on Sidewalk Vending in the Downtown Vending District.
Sec. 3.110. Travel Routes.
Sec. 3.111. Restaurant Vendors.
Sec. 3.112. Listing of Goods and Services.
Sec. 3.113. Vending Zone Description Adopted and Incorporated.
Sec. 3.114. Downtown Vendors Limited to Public Right-of-way.
Sec. 3.115. Exceptions.

*__Editor's note—__Ordinance No. 2009-05, § 1, adopted February 17, 2009, repealed Ch. 46 in its entirety. Section 2 of said ordinance adopted a new Ch. 46 to read as herein set out. Former Ch. 46 pertained to Monroe Center and derived from Ord. No. 89-25, 4-11-89; Ord. No. 82-52, 6-22-82; Ord. No. 82-63, 8-10-82; Ord. No. 83-11, 2-22-83; Ord. No. 83-47, 8-30-83; Ord. No. 85-38, 6-18-85; Ord. No. 88-14, 3-29-88; Ord. No. 95-48, § 1, 7-25-95. See Code Comparative Table B.

Sec. 3.100. Reserved.

Sec. 3.101. Purpose and Policy.

The purpose of this Chapter is the encouragement and preservation of a part of Downtown culture by permitting and regulating the use of the sidewalks and public rights-of-way in Downtown Grand Rapids for limited commercial vending. The goals of the Chapter are the preservation and enhancement of the ambience of the Downtown District, as defined in this Chapter, the additional availability of certain defined merchandise and services to the public, and an increase in the number of visitors to the Downtown District. The goals of this Chapter will be implemented by permitting and regulating outdoor vendors and sidewalk cafés as provided for in this Chapter, in City Commission and Administrative Policies and elsewhere in the City Code.

Since sidewalks are designed primarily for the movement of pedestrian traffic, limited encroachments for Licensed Downtown Vendors, sidewalk cafés and public amenities shall be allowed only temporarily, as provided in this Chapter, elsewhere in the City Code and in City Commission and Administrative Policies, provided that, in the judgment of the City, sufficient space is reserved for pedestrian traffic and other lawful uses of the sidewalks and public rights-of-way. Emergency access to buildings shall be maintained. Any temporary encroachment allowed shall comply with all applicable requirements of the City Code and applicable provisions of City Commission and Administrative Policies.

The Policy of the City of Grand Rapids is that Downtown sidewalk or public right-of-way vending shall be permitted as set out in this Chapter and elsewhere in the Grand Rapids City Code and only at the locations and during the times provided for.
(Ord. No. 2009-05, § 2, 2-17-09)

Sec. 3.102. Definitions.

As used in this Chapter, the words and terms set out below shall have the meanings prescribed in this Section.

1. *City:* The City of Grand Rapids and any of its employees. Wherever the title of a City officer, official or employee is used in this Chapter, the title of the officer, official or employee shall mean and include such person and his or her deputy or other authorized subordinates.

2. *Downtown* or *Downtown District:* For the application of this Chapter, these terms shall mean the following: All that area lying south of the right-of-way center line of U.S. Interstate Highway I-196, west of the right-of-way center line of Coit Avenue, south of the right-of-way center line of Michigan Street, west of the right-of-way center line of Barclay Avenue, north of the right-of-way center line of Lyon Street, west of the right-of-way center line of Ransom Avenue, south of the right-of-way center line of Fulton Street, west of the right-of-way center line of Jefferson Avenue, north of the right-of-way center line of Cherry Street, and east of the western most line of U.S. Highway 131. Also, that area bounded by the center line of First Street on the north, the center line of Seward Avenue on the west, the center line of Blumrich Street extended east to Mt. Vernon on the south and Mt. Vernon Avenue on the east.

3. *License:* The Licensed Downtown Vendor License provided for in this Chapter is hereby established to temporarily allow a licensee to lawfully sell or offer for sale specified Merchandise or Services in a Vending Zone designated by the City. A license shall not confer a right upon the licensee but shall permit the licensee to engage in activities specified in the City Code and applicable City Commission and Administrative Policies which Code provisions and Policies may be changed or amended by the City. The license shall confer no vested right upon the license holder.

4. *Licensed Downtown Vendor:* The holder of a valid Licensed Downtown Vendor license which allows a person to own or operate a Vending Cart as provided for in this Chapter.

5. *Merchandise:* Those items offered for sale by a Licensed Downtown Vendor and limited to foodstuffs, cut or potted plants and flowers, one of a kind handcrafted articles, portraits or caricatures.

6. *Restaurant Vendor:* The owner and operator of an established prepared food and beverage sales establishment in a building in the Downtown District operating a Vending Cart on the sidewalk adjacent to that business.

7. *Service or Services:* Services permitted by this Chapter are limited to unique pedestrian-focused personal services performed by a Licensed Downtown Vendor and which can and will be performed immediately on-site.

8. *Vending Cart:* A non-motorized cart, as further defined in this Chapter, with at least two (2) operational wheels which is easily moved and which is used for the display and sale of Merchandise or for providing Services as defined in this Chapter and any applicable City Commission or Administrative Policy.

9. *Vending Zone and Approved Vending Zone:* The operational areas designated by the City within which a Licensed Downtown Vendor may operate. The size and dimensions of each Vending Zone for Vending Carts shall be as shown and/or described in the attachment described in Section 3.112 of this Chapter.

(Ord. No. 2009-05, § 2, 2-17-09; Ord. No. 2014-85, § 1, 12-16-14; Ord. No. 2016-78, § 1, 11-15-16)

Sec. 3.103. License Established.

The following license is hereby established:

Licensed Downtown Vendor: This License shall be applied for and may be issued to the person owning or owning and operating a Vending Cart operating in the Downtown District.

(Ord. No. 2009-05, § 2, 2-17-09; Ord. No. 2016-78, § 1, 11-15-16)

Sec. 3.104. License Required.

No person shall engage in the business of being a Licensed Downtown Vendor without first having obtained a License as provided for in this Chapter. Only one License is required per Vending Cart. Licenses shall be applied for and may be issued as provided for in Chapter 91 of this Code. The provisions of Chapter 91 of this Code shall apply to Licenses applied for or issued pursuant to this Chapter. Any established prepared food and beverage sales establishment in a building in the Downtown District not operating a Sidewalk Café may operate a Vending Cart as a Restaurant Vendor without obtaining a license as provided for in this Chapter.

(Ord. No. 2009-05, § 2, 2-17-09; Ord. No. 2016-78, § 1, 11-15-16)

Sec. 3.105. License Application.

Persons desiring a License as provided for in this Chapter shall file a completed application in a form provided by the City Clerk. Included in the application shall be a listing of all Merchandise and all Services to be provided by the licensee. This original listing may be amended by providing an amended listing to the City Clerk.

(Ord. No. 2009-05, § 2, 2-17-09; Ord. No. 2016-78, § 1, 11-15-16)

Sec. 3.106. Reserved.

Editor's note—Ord. No. 2016-78, § 1, adopted November 15, 2016, repealed § 3.106, which pertained to compliance responsibility. See Code Comparative Table for complete derivation.

Sec. 3.107. Performance Requirements.

1. Licensed Downtown Vendors are allowed to operate only within an Approved Vending Zone. No Licensed Downtown Vendor may operate at any location other than an Approved Vending Zone. Licensed Downtown Vendors may travel with a Vending Cart through other parts of the City and the Downtown District but may not conduct any Licensed Downtown Vendor business except in an Approved Vending Zone. Licensed Downtown Vendors may conduct Vending Cart operations in parts of the City outside the Downtown District if properly licensed to do so as provided for in this Code.

2. Licensed Downtown Vendors are responsible for collecting and removing all litter, as defined in Chapter 151 of this Code, at or within fifty (50) feet of the Approved Vending Zone in which the Licensed Downtown Vendor is operating prior to leaving the Vending Zone, whether originating from their Vending or not. Litter so collected and litter deposited in the receptacle attached to the Vending Cart may not be placed in City receptacles but shall be privately disposed of by the Licensed Downtown Vendor.

3. Changes in Merchandise or Service, including, but not limited to, food or beverage items, from those listed in the Licensed Downtown Vendor License application must be approved by the City.

4. When serving the public, all Licensed Downtown Vendors and the employees of Licensed Downtown Vendors shall wear neat and clean clothing. Shoes and shirts are required.

5. The name of the Licensed Downtown Vendor owning a Vending Cart shall be professionally displayed on the Vending Cart.

6. Licensed Downtown Vendors shall comply with all applicable laws, ordinances, rules and regulations. Licensed Downtown Vendors shall provide City, state or federally-issued photo identification, upon request, to any law enforcement officer and to any other properly identified governmental officer or employee.

7. No Licensed Downtown Vendor shall block, obstruct or interfere with the free flow of pedestrian or vehicular traffic in the lawful use of sidewalks or highways or ingress or egress to or from any property nor shall any Licensed Downtown Vendor locate a Vending Cart so as to interfere with clear and unobstructed vision at a corner.

8. No Merchandise or Service shall be displayed, sold or provided by a Licensed Downtown Vendor to an occupant of any vehicle on City streets.

9. No Licensed Downtown Vendor shall shout, hawk, cry out or make any noise, or use any sound amplifying device, including a radio or other sound-amplifying system audible to others, nor shall a Licensed Downtown Vendor use flashing or moving lights. Lights solely illuminating the Vending Cart are permitted during nighttime Vending operations.

10. No Downtown Vendor License may be sold, leased, transferred or reassigned in any fashion, except as provided for in this Chapter.

11. Vending Carts shall be lawfully stored off the public right-of-way at times other than when in operation and daily between the hours of 2:30 a.m. and 6:00 a.m. local time.

12. Licensed Downtown Vendors operating from a Vending Cart within a special event area as provided for in this Code will suspend operations during City-approved special events as provided for in this Code. Licensed Downtown Vendors may attempt to arrange a use permit with the sponsor of the special event for permission to operate in the Downtown District during the special event. Operation in the special event area during a special event is contingent upon approval by the event sponsor.

13. Each Licensed Downtown Vendor shall protect the public right-of-way from damage due to the Licensed Downtown Vendor's operation. Licensed Downtown Vendors shall remove all grease, water, food or food scraps, cooking wastes and litter from each of their operational areas at least daily. As a condition of licensing and operation, a Licensed Downtown Vendor shall reimburse the City for all costs incurred in cleaning the Licensed Downtown Vendor's Vending location.

14. All Vending Carts shall, if needed, be inspected and approved for compliance with applicable Codes and laws by the Fire Department, Inspection Services, the Health Department and any other governmental agency, department or entity having jurisdiction prior to the Licensed Downtown Vendor beginning operations and, as needed, thereafter. Certification of License applicants and Vending Carts shall be conducted, if needed, as provided for in Chapter 91 of this Code.

15. Each Licensed Downtown Vendor shall obtain and maintain insurance as required by this Code and applicable provisions of City Com-

mission and Administrative Policies. Unless additional insurance is required by law, ordinance or City Policy, each Licensed Downtown Vendor License holder shall at all times maintain a policy of liability insurance in the minimum amount of one million dollars ($1,000,000.00) for personal injuries and property damage arising out of the Licensed operation including operation by an employee, agent or independent contractor. Proof of insurance coverage must be provided to the City and any policy or certificate of insurance must be approved by the City before any License is issued. The insurance policy shall directly protect the City of Grand Rapids, its officers and employees and agents as named insureds, and shall provide that the insurance be primary insurance and that no other insurance coverage obtained by the City will be called upon to contribute to a loss covered by the insurance policy required by this provision. The policy shall provide thirty (30) days prior written notice of cancellation, revocation, amendment or change to the City. Each licensee shall also agree, as a condition of the License, to hold harmless and protect the City of Grand Rapids, its officers and employees and agents from any liability, claim, costs or attorney fees arising out of the licensed operation that is not covered by the required insurance.

16. Each Licensed Downtown Vendor conducting business on a sidewalk or public right-of-way shall display in a prominent and visible manner the License issued by the City of Grand Rapids under the provisions of this Chapter and the License number, tag or insignia issued by the City.

17. Each Licensed Downtown Vendor conducting business on a sidewalk or public right-of-way shall conspicuously post the price of all Merchandise offered for sale and all Services offered or provided. No item may be sold and no service may be provided at a price greater than that posted.

18. All Merchandise or Services to be sold from a Vending Cart shall:

a) Be stored, prepared, sold and vended from within a regulation size Vending Cart and all supplies and Merchandise not immediately for sale shall be contained within the Vending Cart and shall be screened from sight. Notwithstanding this provision, items lawfully prepared at a remote location and lawfully transported in or to the Vending Cart may be stored in or on a Vending Cart until sold from the cart.

b) Involve a transaction period of less than five (5) minutes to complete a sale or fifteen (15) minutes to render a Service.

c) Not cause undue noise or offensive odors.

19. A Licensed Downtown Vendor, including a restaurant vendor, shall not operate a Vending Cart unless it complies with the standards set out in this subsection. The height of the Vending Cart, including canopies, umbrellas or transparent enclosures, shall not exceed ten (10) feet. The maximum length of the Vending Cart shall be ten (10) feet and maximum width shall be five (5) feet. Each Vending Cart shall have a minimum of two wheels and no more than four wheels. Wheels shall be functional and decorative. Each Vending Cart shall be equipped with an attached litter receptacle the opening of which shall be not less than one foot by one foot and which shall be not less than three feet in depth. Vending Carts shall be built of durable materials that are easy to keep clean and are appropriate for exterior use and which will withstand strong winds. If wood is used it shall be painted or otherwise coated to create a glossy finish. No bare or pressure treated wood without an additional glossy finish coating is permitted. Each Vending Cart shall have stability features such as brakes or chocks to firmly fix its location. Cart tongues (including, but not limited to, hitches or handles) must detach and store out of the way while the Vending Cart is stationary and in use. It is the intent of this Chapter that Vending carts be open and that the vendor not stand in, be partially or fully enclosed by, or operate within the Vending cart. No enclosed vehicle or trailer shall be permitted, but Vending carts may have a canvas or vinyl umbrella or canopy over an open cart. If otherwise lawfully licensed and operated pursuant to federal, state and local laws, ordinances, rules and regulations, Vending carts may be moved from place to

place by towing by a motor vehicle, but Vending trailers, Vending trucks or other Vending vehicles are prohibited and shall not be used except as specifically defined and permitted by this Chapter. Motor vehicles shall not be driven over curbs, onto sidewalks or otherwise into Vending zones to situate Vending carts within Vending zones.
(Ord. No. 2009-05, § 2, 2-17-09; Ord. No. 2016-78, § 1, 11-15-16)

Sec. 3.108. License Required for Sidewalk and Public Right-of-way Vending in the Downtown Vending District.

1. No person shall sell or offer for sale any Merchandise, goods, services or other thing, or engage in, or attempt to engage in, street, sidewalk or public right-of-way Vending within the Downtown District without a valid License as provided for in this Chapter except as otherwise authorized by this Code, law, ordinance, rule or regulation. Notwithstanding the prohibitions contained in Sections 7.24 and 7.25 of this Code, a Licensed Downtown Vendor or Restaurant Vendor may conduct business from a Vending Cart in accordance with the provisions of this Chapter at an Approved Vending Zone.

2. No person shall use a vehicle, cart, table, stand, temporary contrivance or other encroachment while engaged in public right-of-way Vending within the Downtown Vending District unless in full compliance with the requirements of this Code.

3. The requirements of subsections 1. and 2. of this section shall not apply to the display, exhibition, distribution or sale of any non-commercial handbill as provided for by Code or law or for other activities otherwise permitted by the Constitutions of the United States and the State of Michigan at the time and place and in the manner protected by the Constitutions.
(Ord. No. 2009-05, § 2, 2-17-09; Ord. No. 2016-78, § 1, 11-15-16)

Sec. 3.109. Restrictions on Sidewalk Vending in the Downtown Vending District.

Sidewalk or public right-of-way Vending within the Downtown District is subject to the following restrictions:

1. Sidewalk or public right-of-way Vending shall be limited to persons who have been issued a License or encroachment permit by the City, and for any Licensed Downtown Vendor issued a License, Vending shall be limited to the Vending zones approved by the City.
2. Vending Carts shall not be:
   a. Left unattended at any time.
   b. Parked or placed so as to occupy more space than provided for in this Code.
   c. Parked or placed on any sidewalk, highway, street or alley between the hours of 2:30 a.m. and 6:00 a.m. local time.
   d. No person, whether licensed pursuant to this Chapter or not, shall park at the curb for the purpose of conducting business, nor shall any person establish a table, stand, booth or other place of business on any street, curb, sidewalk, public right-of-way or thoroughfare except as provided for in this Chapter or in another provision of this Code. This subsection shall not be interpreted to prohibit parking for the purpose of making deliveries in connection with orders previously placed.

(Ord. No. 2009-05, § 2, 2-17-09; Ord. No. 2016-78, § 1, 11-15-16)

Sec. 3.110. Travel Routes.

When a Vending cart vendor is traveling from one approved zone to another, the travel shall be by the most direct route. No sales may be conducted except in an approved zone.
(Ord. No. 2009-05, § 2, 2-17-09; Ord. No. 2016-78, § 1, 11-15-16)

Sec. 3.111. Restaurant Vendors.

Notwithstanding any other provision of this Chapter, a Restaurant Vendor may operate a Vending Cart on the sidewalk adjacent to the restaurant without obtaining a license pursuant to Section 3.104 provided that all operations of the Vending Cart comply with the substantive provisions of this Chapter and provided that the Vending Cart is positioned so as to minimally interfere with pedestrian traffic on the sidewalk. (Ord. No. 2009-05, § 2, 2-17-09; Ord. No. 2016-78, § 1, 11-15-16)

Sec. 3.112. Listing of Goods and Services.

No person shall operate a Vending Cart in the downtown district unless a full and complete listing of the merchandise and services to be offered from the Vending Cart shall have been submitted to and approved by the city as a part of the licensing of that person.
(Ord. No. 2009-05, § 2, 2-17-09; Ord. No. 2016-78, § 1, 11-15-16)

Sec. 3.113. Vending Zone Description Adopted and Incorporated.

The descriptions of the Vending zones are as follows:

Vending Zone		
No.	*Name*	*Description*
1	Calder Plaza	West side of Ottawa Avenue, east of steps to Calder Plaza, between the two parking garage stair towers.
2	County Courthouse	West side of Ottawa Avenue, north of Lyon Street and south of the Kent County Courthouse service drive.
3	Monroe-Lyon	East side of Monroe Avenue, west of 5/3 Plaza, south of the northern-most planter box. North side of Lyon Street, south of 5/3 Plaza, and west of the 5/3 Bank Building.
4	Campau Promenade	West side of Monroe Avenue, North of Campau Avenue except driveways and curb cuts and south of the BRT Station.
5	Sears Parking Lot	A 12' × 60' area along the south side of Pearl Street, adjacent to the Ellis surface parking lot.
6	Ottawa-Monroe Center	A 20' × 75' area on the south side of Monroe Center Avenue, west of Ottawa Avenue, adjacent to the GRAM Building.
7	Weston-Ottawa	A 50' × 70' area on the south side of Weston Street, west of Ottawa Avenue.
8	Ottawa-Fulton Parking Ramp	The entire northern street frontage of West Fulton Street between Ionia Avenue and Ottawa Avenue excluding all corners, building entrances, curb cuts and driveways.
9	Monroe Center - Sheldon	A 10' × 7' area on Monroe Center on the west side of Sheldon Avenue.
10	Ionia & Weston	A 46' × 125' area on the south side of Weston Street east of Ionia Avenue, adjacent to the 9 metered on-street parking spaces, excluding street corners.
11	DASH Lot Area 7	A 12' × 90' area along the south side of Douglas Street and east of Summer Avenue adjacent to DASH Lot Area 7 parking lot.
12	DeVos Place	A 6' × 60' area along the west side of Monroe Avenue beginning 65' south of the glass stair tower.
13	100 Block of Grandville SW	A 20' × 20' area along the west side of Grandville Avenue just south of Oakes Street and a 6' × 40' area on the west side of Grandville Avenue under U.S. Highway 131.
14	Front Street under U.S. Highway 131	An 8' × 40' area along the south side of Front Street under southbound U.S. Highway 131.
15	Fulton Street under U.S. Highway 131	A 10' × 30' area along the south side of Fulton Street under southbound U.S. Highway 131.
16	Market - Fulton	A 5' × 10' area on the southwest corner of Fulton Street and Market Street.
17	Monroe - Louis	A 7' × 10' area on the southeast corner of Louis Street and Monroe Avenue.
18	Bostwick - Fountain	A 6' × 20' area along the north side of Fountain Street east of Bostwick Street.
19	City-County Building	An area along the east side of Monroe Avenue north of the north Government Center Parking ramp entrance.

(Ord. No. 2009-05, § 2, 2-17-09; Ord. No. 2014-85, § 2, 12-16-14; Ord. No. 2016-78, § 1, 11-15-16)

Sec. 3.114. Downtown Vendors Limited to Public Right-of-way.

No person shall operate a Vending Cart in the Downtown District except upon the public sidewalk or public right-of-way, except that a Vending Cart may be operated on private property with the permission of the owner and the occupant of that property and in compliance with the Zoning ordinance and all other applicable federal, state and local laws, ordinances, rules and regulations.

(Ord. No. 2009-05, § 2, 2-17-09; Ord. No. 2016-78, § 1, 11-15-16)

Sec. 3.115. Exceptions.

The provisions of this Chapter shall not apply to Vending in connection with Special Events as provided for in this Code in which case the Special Events provisions of this Code and any resolution adopted in connection with the special event shall apply; nor shall the provisions of this Chapter apply to motorized mobile Vending vehicles operated solely in connection with construction sites in the Downtown District provided that such mobile Vending operations are operated on private property with the consent of the owner or occupant of that property.

(Ord. No. 2009-05, § 2, 2-17-09; Ord. No. 2016-78, § 1, 11-15-16)

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Chapter 47

LYON SQUARE

Sec. 3.201. Purpose.
Sec. 3.202. Designation as Lyon Square.
Sec. 3.203. Definition of Area.
Sec. 3.204. Use Zones.
Sec. 3.205. Permits.
Sec. 3.206. Conditions for Use.
Sec. 3.207. Sales.
Sec. 3.208. Prohibition of Motor Vehicles and Other Wheeled Devices.
Sec. 3.209. Prohibition of Structures, Statues and Displays.
Secs. 3.210–3.220. Reserved.

Sec. 3.201. Purpose.

The purposes of this Chapter are to ensure that the unique improvements made to the portion of the public street, heretofore designated as Lyon Street, are preserved and made available for the use and enjoyment of the general public and abutting properties on an equitable basis and to regulate the competing vehicular and pedestrian traffic uses on a street not generally open to all vehicular use. The City Commission hereby determines that, to achieve this purpose, it is necessary to rename that portion of the street, to define its boundaries, to designate zones within those boundaries, to specify permissible and prohibited activities within those zones, and to limit motor vehicle use to emergency and authorized vehicles, and to vehicles used in providing delivery and maintenance services to buildings adjacent to its boundaries.
(Ord. No. 86-4, § 1, 2-4-86)

Sec. 3.202. Designation as Lyon Square.

That portion of the public street heretofore designated as Lyon Street, between Monroe Avenue and the Grand River, is hereby designated Lyon Square.
(Ord. No. 86-4, § 1, 2-4-86)

Sec. 3.203. Definition of Area.

The legal description of the area designated Lyon Square is on file with the City Clerk. The area includes all that property which has the following general boundaries:

(1) The George W. Welsh Auditorium, the Grand Center, and the Metro Bank Building on the north;

(2) The Amway Grand Plaza Hotel and the Exhibitor's Building on the south;

(3) Monroe Avenue on the east;

(4) The Grand River on the west.

(Ord. No. 86-4, § 1, 2-4-86)

Sec. 3.204. Use Zones.

Lyon Square is hereby divided into use zones the locations of which shall be identified on maps which the Office of Special Events shall prepare and make available to the public. Uses permitted in each zone shall be only those which are listed in this Chapter. The zones and the uses permitted in each are as follows:

(1) *Zone 1.* Right-of-way for pedestrians and for vehicles which this Chapter authorizes to be operated on Lyon Square, except that the owners and lessees of property abutting Lyon Square may, pursuant to permit, conduct in this zone activities described in the last sentence of Section 3.206(3).

(2) *Zone 2.* Public use zone open to use by the general public except that sub-zones may be reserved by permit for particular programs or events. This zone shall be comprised of the following sub-zones with the indicated restrictions on vehicle use:

a. *Zone 2A.* The general location of this sub-zone is the amphitheater area adjacent to the Grand River. Vehicle use for loading/unloading and similar activities is allowed only by permit.

b. *Zone 2B.* The general location of this sub-zone is the area adjacent to the Welsh Auditorium. Vehicle use is prohibited.

c. *Zone 2C.* The general location of this sub-zone is the area adjacent to the Exhibitor's Building/Amway Grand Plaza Hotel. Vehicle use is prohibited.

(Ord. No. 86-4, § 1, 2-4-86; Ord. No. 2011-31, § 1, 8-23-11)

Sec. 3.205. Permits.

All requests for permits required by this Chapter shall be made to the Office of Special Events, except as otherwise provided for herein. If the request is to reserve a sub-zone for a particular program or event, it must be made at least ten (10) days prior to the time the requested use is to start. Such ten-day deadline may be waived by the Office of Special Events, provided that the City Manager or his or her authorized designee determines there is adequate time to properly process the request and issue the permit. A re-

quested permit may be issued upon compliance with all the requirements for such permits, and upon such reasonable terms and conditions, including public liability insurance, a security deposit against damage to City property, and a permit fee, as the Office of Special Events deems reasonably necessary or appropriate to adequately protect the public health, safety and welfare. Permits will be issued on a first-come, first-served basis, except that if competing requests for permits for the same area and time are made more than thirty (30) days in advance, the Office of Special Events or authorized designee may issue the permit for that use which in his or her judgment will benefit the greatest number of people and/or best meet the spirit and purpose of this Chapter. A permit may be revoked by the Office of Special Events upon violation by the permit holder or anyone engaging in the activities allowed by the permit of any of the provisions of this Chapter or of any of the conditions upon which the permit was issued.
(Ord. No. 86-4, § 1, 2-4-86; Ord. No. 2011-31, § 1, 8-23-11)

Sec. 3.206. Conditions for Use.

Use of Lyon Square for other than general public use shall be subject to the following conditions:

(1) Such use may occur only between the hours of 8:00 a.m. and 11:00 p.m.; provided, however, that for community-wide special events the time may be extended to not later than 1:00 a.m. with the express written permission of the City and the adjoining property owners.

(2) The kinds of programs, activities and uses for which sub-zones may be reserved by the general public are those of the same nature as for which a Park Permit is generally required if conducted in a City Park.

(3) The owners and lessees of property adjacent to sub-zones 2B and 2C may, pursuant to permit, conduct activities in those sub-zones that are related to simultaneous activities being conducted on their properties, generally without restriction as to the type of activity, so long as otherwise lawful, other than as such restrictions may be necessary to avoid conflicts involving the uses and scheduling of other zones. Such owners and lessees may also, pursuant to permit, conduct activities in all zones of Lyon Square approved by the Office of Special Events, which traditionally have been conducted in those areas prior to the enactment of this Chapter.

(4) Any use or activity involving the sale and use of alcoholic beverages shall be subject to State law and the City's Alcohol Policy and permit procedures administered by the Office of Special Events.

(5) The person or organization to whom a permit is issued shall be responsible for controlling the conduct of persons and activities attending and/or participating in the program for which the permit was issued. No conduct otherwise unlawful will be permitted. If illegal conduct or activity occurs at any such program, the Office of Special Events or authorized designee may, in his or her discretion, deny future requests for permits for the same or similar programs or future requests for other programs made by the permit holder, or any person directly affiliated with the permit holder.

(6) Any other reasonable conditions deemed necessary by the City Manager or his or her designee to preserve the spirit and purposes of this Chapter which are set forth in written rules and regulations promulgated by the Office of Special Events.

(Ord. No. 86-4, § 1, 2-4-86; Ord. No. 88-59, § 1, 8-23-88; Ord. No. 2011-31, § 1, 8-23-11)

Sec. 3.207. Sales.

Sales and vending activities are prohibited in Lyon Square, except for those sales activities which are specifically authorized by permit in connection with an activity authorized by the last sentence of Section 3.206(3) or which are an

approved part of a City co-sponsored event as defined in the City's Co-sponsored Event Policy administered by the Office of Special Events.
(Ord. No. 86-4, § 1, 2-4-86; Ord. No. 2011-31, § 1, 8-23-11)

Sec. 3.208. Prohibition of Motor Vehicles and Other Wheeled Devices.

It is unlawful to use or operate a motor vehicle, including a motorcycle or moped, bicycles, or any other wheeled devices including rollerskates, skateboards, or similar devices on any portion of Lyon Square, with the following exceptions:

(1) Emergency vehicles responding to emergencies may be operated and parked anywhere necessary.

(2) City-owned vehicles, official vehicles, and other vehicles which are specifically authorized by special permit may be operated and parked as necessary within those zones in which vehicle use is permitted.

(3) Vehicles used in connection with loading/unloading and maintenance activities at buildings abutting on Lyon Square may be operated and parked within those zones in which vehicle use is permitted, but only as necessary and only for as long as necessary.

(4) Vehicles used in connection with construction or similar activities at buildings abutting on Lyon Square may be operated and parked within those zones in which vehicle use is permitted, but only pursuant to and upon conditions contained in a written permit issued by the City Engineer.

(5) Vehicles may be accepted for valet parking and vehicles may be returned to valet customers while stopped in a traffic lane within Lyon Square, if the valet drop-off and pick-up site is otherwise approved pursuant to a City issued valet parking license.

(6) Wheelchairs transporting physically disabled persons and baby carriages, strollers, and wagons transporting young children may be operated and used anywhere necessary or convenient.

(Ord. No. 86-4, § 1, 2-4-86; Ord. No. 2011-31, § 1, 8-23-11)

Sec. 3.209. Prohibition of Structures, Statues and Displays.

It shall be unlawful to erect a structure, statue or display of any kind anywhere within Lyon Square except by permit either in connection with and related to a simultaneous activity being conducted in one of the buildings abutting on Lyon Square or to provide protection from the weather for an activity otherwise permitted. It shall also be unlawful to maintain any such structure, statue or display for a continuous period in excess of seven (7) days.
(Ord. No. 86-4, § 1, 2-4-86)

Secs. 3.210—3.220. Reserved.

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RESERVED

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TITLE IV—STREETS AND SIDEWALKS

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ARTICLE 1. IN GENERAL

Sec. 4.1. Definitions.

Unless the context specifically indicates otherwise, the meanings of terms used in this Chapter shall be as follows:

(1) *Street* shall mean all of the land lying between property lines on either side of all streets, alleys and boulevards in the City, and includes lawn extensions and sidewalks and the area reserved therefor where the same are not yet constructed.

(2) *Department* shall be deemed to refer to the Department of Public Service of the City.

(3) *Director* shall mean the Director of Public Service of the City.

Sec. 4.2. Damage and Obstruction Prohibited.

No person shall make any excavation in, or cause any damage to any street in the City, except under the conditions and in the manner permitted in this Chapter. No person shall place any article, thing or obstruction in any street, except under the conditions and in the manner permitted in this Chapter or as expressly permitted elsewhere in this Code, but this provision shall not be deemed to prohibit temporary obstructions incidental to the expeditious movement of articles and things to and from abutting premises, nor to the lawful parking of vehicles within the part of the street reserved for vehicular traffic. The City Commission may, by resolution, authorize the City Manager to grant permits for certain uses in any street within the City which the Commission deems to be for the benefit of the general public.
(Ord. No. 65-12, 9-7-65)

Sec. 4.3. Permits and Bonds.

Where permits are required by this Chapter, a complete application shall be submitted to the Director upon such forms as prescribed with any required accompanying materials. Application fees shall be set from time-to-time by resolution of the City Commission. Permits shall be revocable by the Director for failure to comply with this Chapter, any rules and regulations adopted pursuant hereto, and any lawful orders of the Director or his or her duly authorized representative, and shall be valid only for the period of time endorsed thereon. Application for a permit under the provisions of this Chapter shall be deemed an agreement by the applicant to promptly complete the work permitted, observe all pertinent laws and regulations of the City in connection therewith, repair all damage done to the street surface and installations on, over or within such street, including trees, and protect and save harmless the City from all damages or actions at law that may arise or may be brought on account of injury to persons or property resulting from the work done under the permit or in connection therewith. Except as otherwise specified in this Chapter, where liability insurance policies are required to be filed in making application for a permit, they shall have a minimum combined single limit of liability for bodily injury and property damage for each occurrence in an amount as determined necessary by the Director. A duplicate executed copy of the original of the insurance policy, approved as to form by the City Attorney, shall be filed with the City Clerk. A deposit shall be required and used to defray all expenses to the City arising out of the granting of the permit and work done under the permit or in connection therewith.
(Ord. No. 71-31, 5-25-71; Ord. No. 80-2, 1-2-80; Ord. No. 2018-06, § 1, 2-6-18)

Sec. 4.4. Street Openings.

No person shall make any excavation or opening in or under any street without first obtaining a written permit from the Director. No permit shall be granted until the applicant shall post a cash deposit and file a liability insurance policy as required by Section 4.3.

Sec. 4.5. Emergency Openings.

The Director may, if the public safety requires immediate action, grant permission to make a necessary street opening in an emergency, provided that a permit shall be obtained on the following business day and the provisions of this Chapter shall be complied with.

Sec. 4.6. Backfilling.

All trenches in a public street or other public place, except by special permission, shall be backfilled in accordance with regulations adopted pursuant to this Chapter. Any settlement shall be corrected within eight (8) hours after notification to do so.

Sec. 4.7. Sidewalk Vaults.

Openings through the sidewalk for the delivery of fuel or any other purpose when lawfully in existence, shall not be greater than thirty (30) inches in diameter, shall be circular in form, and shall be effectually closed when not in actual use by an iron cover set flush within the surface of the sidewalk, level with the sidewalk, and securely locked in place. All openings in the sidewalk for the admission of light and air shall be closed and protected whether by substantial iron grating or illuminating pavement of a design and so placed as to be satisfactory to the Director.

No person shall open and leave open and unguarded any manhole or other opening in any sidewalk or public street. Such guard shall consist of a railing or fence at least three (3) feet high and made of iron piping at least one and one-half (1½) inches in diameter of such substantial material sufficient to withstand pressure from pedestrians and by stationing thereat while so open a person whose duty it shall be to warn persons traveling upon said sidewalk or highway of the opening therein.

Sec. 4.8. Utility Poles.

Utility poles may be placed in such streets as the Director shall prescribe and shall be located thereon in accordance with the directions of the Director. Such poles shall be removed or relocated as the Director shall from time to time direct.

Sec. 4.9. Maintenance of Installations in Street.

Every owner of, and every person in control of, any estate hereafter maintaining a sidewalk vault, coal hole, manhole, or any other excavation, or any post, pole, sign, awning, wire, pipe, conduit or other structure in, under, over or upon, any street which is adjacent to or a part of his or her estate, shall do so only on condition that such maintenance shall be considered as an agreement on his or her part with the City to keep the same and the covers thereof, and any gas and electric boxes and tubes thereon, in good repair and condition at all times during his or her ownership or control thereof, and to indemnify and save harmless the City against all damages or actions at law that may arise or be brought by reason of such excavation or structure being under, over, in or upon the street, or being unfastened, out of repair or defective during such ownership or control.

Sec. 4.10. New Paving.

Whenever the City Commission shall determine to pave or resurface any street, the Director shall, not less than thirty (30) days prior to commencement of construction, serve notice upon all public utilities, requiring them to install all necessary underground work in advance of the paving or resurfacing.

Sec. 4.11. Sewer and Water Connections.

When such paving or resurfacing shall have been ordered or declared necessary by the City Commission, such sewer and water connections as are necessary shall be installed in advance of such paving or resurfacing, and the cost thereof shall be charged against the premises adjacent thereto, or to be served thereby, and against the owner of such premises. Where such paving or resurfacing is financed in whole or in part by special assessment, the cost of such sewer and water connections may be made chargeable against the premises served or adjacent thereto, as a part of the special assessment for such paving or resurfacing. Where such paving or resurfacing is financed otherwise than by special assessment, the cost of the sewer and water connections so installed, shall be a lien on said premises adjacent thereto, or to be served thereby, and shall be collected as provided for assessments on single lots pursuant to the provisions of this Code.

Sec. 4.12. Determination of Necessity.

The necessity for such sewer and water connections shall be determined by the Director, which determination shall be based upon the size, shape and area of each abutting lot or parcel of land, the lawful use of such land under the zoning regulations of the City, the character of the locality and the probable future development of each abutting lot or parcel of land. The Director shall give written notice of the intention to install such sewer and water connections, and to charge the cost of the same to the premises, to each owner of land abutting the street to be furnished with such connections, as shown by the records of the City Assessor in accordance with Chapter 1 of this Code. Any owner objecting to the installation of any such sewer or water connection shall file his or her objections in writing within seven (7) days after service of such notice with the Director who shall, after considering each such objection made in writing, make a final determination of the sewer and water connections to be installed.

Sec. 4.13. Prohibited Openings.

No permit to make any opening or excavation in or under a paved street shall be granted to any person within a period of two (2) years after the completion of any paving or resurfacing thereof. If a street opening is necessary as a public safety measure, the Director may suspend the operation of this Section as to such street opening.

Secs. 4.14—4.17. Reserved.

ARTICLE 2. CURB CUTS

Sec. 4.18. Permit; General Requirements.

No opening in or through any curb or any street shall be made without first obtaining a written permit from the Director. Curb cuts and sidewalk driveway crossings to provide access to private property shall comply with the following:

(1) No single curb cut shall be less than ten (10) feet, nor more than thirty (30) feet.

(2) The minimum distance between any curb cut and a public crosswalk shall be five (5) feet.

(3) The minimum distance between curb cuts, except those serving residential property, shall be twenty-five (25) feet.

(4) The maximum number of lineal feet of sidewalk driveway crossings permitted for any lot, parcel of land, business or enterprise, shall be forty-five (45) percent of the total abutting street frontage up to and including two hundred (200) lineal feet of street frontage plus twenty (20) percent of the lineal feet of street frontage in excess of two hundred (200) feet.

(5) The necessary adjustments to utility poles, light standards, fire hydrants, catch basins, street or railway signs, signals, or other public improvements or installations shall be accomplished without cost to the City.

(6) All construction shall be in accordance with plans and specifications approved by the Director.

Sec. 4.19. Reserved.

ARTICLE 3. SIDEWALK OBSTRUCTIONS

Sec. 4.20. Sidewalk Obstructions.

No person shall occupy any street with any materials or machinery incidental to the construction, demolition or repair of any building adjacent to said street, or for any other purpose, unless as permitted in Section 4.21.
(Ord. No. 2018-06, § 2, 2-6-18)

Sec. 4.21. Pedestrian and bicyclist passage.

(1) *Permit.* A Temporary Occupancy Permit shall be obtained for any work that is conducted in or on a sidewalk or bicycle facility, including trails. A description of the purpose for any obstructions shall be provided, including a project schedule that describes duration, dates, and times of day. Any permit issued pursuant to the terms of this section may be revoked by the City Engineer for permit violations.

(2) *Site plan.* A site plan shall be submitted for review. The Plan shall show any and all sidewalks, bicycle facilities, trails, bus stops, and traffic lanes, as well as all trees, lane striping, hydrants and traffic signs which will be affected.

(3) *Traffic Control Plan.* A detailed routing and traffic control plan shall be submitted as part of the permit application where a sidewalk, bicycle facility or trail will be obstructed. The Plan shall demonstrate how pedestrian and bicyclist access will be maintained, and ADA Compliance satisfied.

a. At least six (6) feet of space shall be kept clean and clear for the free passage of pedestrians in mixed-use commercial zone districts, as defined in Article 6 of Chapter 61 of the City of Grand Rapids Zoning Ordinance;

b. At least four (4) feet of space shall be kept clean and clear in residential zone districts, as defined in Article 5 of Chapter 61 of the City of Grand Rapids Zoning Ordinance; and

c. At least five (5) feet of space shall be kept for the passage of bicyclists where bicycle facilities are present.

(4) *Safety.* Sidewalks or paths shall be defined on both sides by fencing, barricades, cones, construction tape or other devices for the purposes of delineating construction zones. If the construction area is prone to falling objects or debris a covered path shall be required which is covered by a hard roof and contains lighting. Sidewalks and paths shall be ADA compliant and kept free of equipment, materials, snow and ice, and debris.

(5) *Materials.* Paths shall be made of dense (hard), non-porous, non-skid material that is resistant to settlement and penetration by narrow wheels, cane/walkers/crutches and small-heeled shoes in all weather conditions.

(6) *Signs.* Detailed drawings of all signs, to include dimensions, intended to be placed for the purposes of directing pedestrian and bicycle traffic shall be submitted as part of the permit application.

(7) *Administrative Departures.* If building operations or construction activities causing the sidewalk, bicycle facility, or trail obstruction would impair the safety of the public or substantially affect the constructability of a project, an Administrative Departure may be requested. A permit application shall be submitted with sufficient detail to indicate the nature and necessity of the request, as well as proposed mitigation measures. The Director may waive some or all of the requirements of this section. In making a departure decision, the Director shall consider:

a. Street Type and Mode Emphasis from the Vital Streets Plan.

b. Context and surrounding land uses, including topography.

c. Vehicular, pedestrian, bicycle, and transit volumes.

d. Nature of users (i.e. vulnerable populations, ADA accessibility, etc.).

e. Proximity of traffic control devices and other safety elements (i.e. street lighting, sight lines, etc.).

f. Availability and practicality of alternative routes (i.e. convenience, distance, level of service, continuity, logical terminus).

g. Availability and practicality of alternative safety methods (i.e. flagmen provided by construction contractor, etc.).

h. Time of day, time of week, time of year, duration.

i. Nature of construction activities and their potential dangers to the public.

(8) *Approval.* Permit approvals shall be limited to the time required for the essential needs of a project to be satisfied whereby occupancy of the sidewalk, bicycle facility or trail can be re-opened, or an alternative access plan can be instituted which more fully complies with this Chapter.

(Ord. No. 87-24, § 1, 3-31-87; Ord. No. 2018-06, § 3, 2-6-18)

Sec. 4.22. Reserved.

ARTICLE 4. SAFETY REQUIREMENTS

Sec. 4.23. Safeguards.

All openings, excavations and obstructions shall be properly and substantially barricaded and railed off, and at night shall be provided with prescribed warning lights. Warning lights perpendicular to the flow of traffic shall not be more than three (3) feet apart, and parallel to the flow of traffic not over fifteen (15) feet apart.

Sec. 4.24. Shoring Excavations.

All openings and excavations shall, where necessary, be properly and substantially sheeted and braced as a safeguard to workmen and to prevent cave-ins or washouts which would tend to injure the thoroughfare or subsurface structure of the street.

ARTICLE 5. VACATING, NAMING STREETS; HOUSE NUMBERS

Sec. 4.25. Street Names.

Street names, whether public or private, shall be established either by the City Commission, adjacent County jurisdictions or the State of Michigan by approval of a final subdivision plat, a condominium plat, a site development plan or similar public document and shall not be changed except by official governmental amendment. All street names approved after adoption of this subsection shall conform to the following rules:

(1) No new street name shall duplicate an existing street name located within the County of Kent unless it is an extension or continuation of an existing street.

(2) The same principal part of a new street name shall not be used more than once by varying suffixes such as Street, Drive, Way or Lane nor by varying prefixes such as North or East or N. or E.

(3) No new street name shall contain punctuation such as hyphens, periods or apostrophes.

(4) No new principal street name shall contain more than nineteen (19) letters or spaces in its principal part, exclusive of suffix designations such as Street, Avenue, Drive, Way or Lane.

(5) No new street name shall contain numbers.

(6) No new street name shall have a prefix nor include either the words or the abbreviations for the words North, South, East or West.

(7) For ease of mapping, short streets shall have short names.

(8) All street names shall be followed by a suffix designating the type of street, such as Street, Drive, Way or Lane.

(9) The suffix "Avenue" shall be restricted to streets on a north-south alignment and the suffix "Street" shall be restricted to east-west alignments. The direction of extensions or likely extensions shall determine the proper suffix for curved or diagonal streets.

(10) All street names shall be followed by a directional abbreviation such as NW, SW, NE or SE as established by the intersection of Division Avenue and Fulton Street.

(Ord. No. 91-28, § 1, 6-4-91)

Sec. 4.26. Reserved.

Editor's note—Ord. No. 2015-74, § 2, adopted December 15, 2015, repealed § 4.26, which pertained to vacating streets. See Code Comparative Table for complete derivation.

Sec. 4.27. Street Addresses.

Street addresses for all property and buildings within the City of Grand Rapids shall be designated and assigned by the City. Street address numbers shall conform to the following regulations unless assigned differently prior to adoption of this Section:

(1) Street address numbering shall either begin with the number one (1) progressing east or west from Division Avenue or begin with the number one (1) and progressing north or south from Fulton Street.

(2) Street addresses shall be even numbers on the East or South sides of a street and odd numbers on the West or North sides of a street.

(3) Street address numbers shall increase by eight hundred (800) each mile from Division Avenue or Fulton Street (two (2) digits for each thirteen and two tenths (13.2) feet on one side of a street).

(4) Street addresses located on curving streets shall be continuously and consecutively numbered from the lowest number through to the end.

(5) No street address shall contain more than four (4) numbers.

(6) Street address suffixes such as F(front), R(rear), S(side), H(half) or $\frac{1}{2}$ shall be used only where such identification is needed for public safety or for numbering consistency.

(7) One (1) street address, only, shall be assigned to each principal building located upon a parcel of property except that:

(a) Buildings legally subdivided into separate sub-parcels by condominium or similar legal separations may be provided with a separate street address for each such sub-parcel, to the extent possible while conforming to subsections (1) through (4) above.

(b) A building entrance serving only one (1) distinctive internal use or one (1) rental unit may be given a separate street address.

(c) Principal entries located on separate streets may have street addresses on each street provided there is no public internal connection between them.

(8) Rental sub-units within a building shall be identified by alphabetical and/or numerical unit numbers established by the owner, unless permitted to have a separate street address by subsection (7) above.

(Ord. No. 91-28, § 1, 6-4-91)

Sec. 4.28. Address Identification.

Street address identification of a building or its principal entry is deemed to be essential to the public safety and welfare. The owner of a principal building shall cause the street address to be placed thereon next to the entrance and in such other locations as to be in clear view of the street, as well as in such additional locations to be in clear view of any adjacent public alleyway used to provide public services. The street address numbers shall be well maintained, located at least twenty-four (24) inches above ground level, be at least three (3) inches in height or such larger size to be legible from the street or public alleyway and of contrasting color to the background to which they are attached. Any freestanding building identification sign shall also display the principal street address of the building. Upon observing a building not so identified:

(1) The City shall notify the owner of these requirements and request compliance within a reasonable period of time. Upon failure of the owner to comply with this request, the City shall order compliance within an additional reasonable period of time. Upon failure of the owner to comply with the order, the administrator of the Code shall either refer the matter to the City Attorney for prosecution or take other appropriate action that will arrange to so identify the building.

(2) An administrative fee of twenty dollars ($20.00) shall be paid by the owner for a reinspection to determine compliance with any order issued after the first notice of the requirements of this Article. The cost and fee shall be considered a personal debt of the owner to the City and may be placed as a lien upon the property until paid.

(Ord. No. 91-28, § 1, 6-4-91; Ord. No. 93-31, § 1, 7-13-93)

Secs. 4.29, 4.30. Reserved.

ARTICLE 6. DRAINS AND DRIVEWAY APPROACHES

Sec. 4.31. Definitions.

In the interpretation of this Article, the following definitions shall apply:

(1) The term "gutter" or "road ditch" shall be deemed to mean that part of the right-of-way which is shaped, crowned, sloped or graded for drainage purposes.

(2) The term "driveway culvert" shall be deemed to mean a drainpipe or other structure of concrete, masonry, metal, vitrified tile or other materials or combination thereof approved by the Public Service Director and used to convey or carry surface water across, under or through any driveway or road ditch and/or to connect two (2) or more sections of a gutter or road ditch.

(3) The term "driveway approach" shall mean any area in which, because of topography, elevation, position or location, it is necessary to enclose the gutter or road ditch in a driveway culvert in order to have a proper and suitable entrance to any property abutting on any public right-of-way.

Sec. 4.32. Permit Required.

It shall be unlawful for anyone to construct any driveway approach over, in or through any gutter or road ditch or to install or construct a driveway culvert through any road, street or public right-of-way without first having obtained a permit from the Public Service Director as hereinafter provided.

Sec. 4.33. Application.

Applications for permits shall be made to the Inspection Department and shall state the name of the applicant, the location of the platted property upon which any driveway approach or culvert is sought to be constructed and the size and type of construction needed. Upon approval by the Public Service Director, a permit shall be granted. Within thirty (30) days thereafter, the Public Service Director shall cause the driveway culvert to be installed in accordance with the terms of the permit.

Sec. 4.34. Fee.

A fee shall be charged for the issuance of the permit in such sum as the City Commission may require, by resolution.

Sec. 4.35. Obstructing Drain.

It shall be unlawful for anyone to retard or obstruct the flow of storm or surface water in or through any driveway culvert, gutter or road ditch in or through any road, street or public right-of-way.

Sec. 4.36. Notice to Remove Obstruction.

The owner of platted property in front of which there is an obstructed gutter or roadway ditch shall, within twenty (20) days after notification in writing from the Public Service Director, remove such obstruction or interference or apply for permit to cause a new driveway culvert to be installed so that the flow of the surface or storm water is not obstructed or retarded. If the owner does not reside or maintain a mailing address on the property, notice shall be posted in a conspicuous place on the property and shall be delivered by certified mail to the owner's last known address.

Sec. 4.37. Surety Required.

No permit shall be issued by the Inspection Department for any construction in or on any platted property, where there is no driveway approach, or a new driveway approach is deemed necessary because of the existing conditions, unless the applicant shall provide surety in such amount as is reasonably necessary, based upon the current construction costs, as established by the Public Service Director.

Cross references—Insurance and bonds generally, § 1.12; permits and bonds for work under this Chapter, § 4.3.

Sec. 4.38. Removal by City.

If the property owner does not remove the obstruction or apply for a permit as stated herein within twenty (20) days after notification, the City may do the necessary work, and the cost thereof shall be charged or assessed against the property in the same manner as provided by statute for a lien.

Secs. 4.39—4.46. Reserved.

ARTICLE 7. STREET POLE DECORATIONS

Sec. 4.47. Permit Required.

No person shall use any street lighting standard or any other pole or fixture within any street or public place for any decoration purpose without first obtaining a written permit from the Director. No permit shall be granted until the applicant shall post a cash deposit and file a liability insurance policy as required by Section 4.3.

Before any permit shall be issued, samples or drawings of any proposed decoration shall first be submitted to the Chief Engineer of the Street Lighting Division or one (1) of his or her designated assistants, and said Engineer or assistant shall approve the proposed decoration before a permit may be issued. If electricity is to be used in the proposed decorations, the application for the permit will so indicate.

Sec. 4.48. Wind Load.

No decoration shall be permitted which will create an unsafe wind load on the lighting standard or which, because of the material of the decoration, impose any damage or discoloration to the lighting standard or will in any manner scratch the lighting standard.

Sec. 4.49. Installation.

All decorations must be affixed, attached and installed in a workmanlike manner and shall conform to the decorations as approved by the Street Lighting Division. All decorations are subject to inspection by the Street Lighting Division and if upon inspection it is determined that the decorations do not conform to the decorations as approved or such decorations have been affixed, attached or installed in an unworkmanlike manner or for any reason should the decorations be considered as unsafe or harmful to the lighting standard, then such decorations may be removed summarily by the Street Lighting Division and the costs of removing same shall be borne by the person or business who authorized such installation.

Sec. 4.50. Electrical Installations.

All electrical installations shall be done so as not to overload the circuit, transformers or any other part of the City's street lighting system.

Secs. 4.51—4.60. Reserved.

ARTICLE 8. CORNER CLEARANCE

Sec. 4.61 Clearance Required.

It shall be unlawful for any person to keep, maintain, place, store, erect, plant or allow to grow any object, wall, sign, billboard, vehicle, bush, tree, shrubbery, fence (other than the chainlink type) or anything which might be hazardous or dangerous for vehicular or pedestrian traffic, any of which, separately or together, is more than thirty (30) inches in height above the level of the nearest public sidewalk, or the street if there is no sidewalk, and which is within twenty (20) feet of the nearest point of the intersection of any two (2) of the following: street, alley, roadway, railroad bridge, viaduct, overpass or driveway (public or private). Provided, however, that said twenty (20) feet shall be ten (10) feet whenever the point of intersection involves a driveway (public or private).

Sec. 4.62. Exceptions.

The following shall be considered excepted from the provisions of Section 4.61:

(1) Any wall, embankment or permanent structure existing lawfully prior to the passing of Ordinance 1485;

(2) Any permanent structure for which approval or permit has been obtained from the proper authorities;

(3) Any building or structure which is permitted, under Chapter 61 of this Code (Zoning) to be nearer the intersection than as provided herein; and,

(4) Any building or structure for which the Board of Zoning Appeals has granted a variance.

Sec. 4.63. Enforcement.

The Traffic Engineer or his or her duly authorized representative and any member of the Grand Rapids Police Department shall have the Authority to enforce Section 4.61 and order the owner, lessee, officer of a corporation and any person in charge of any property where there is a violation of any provision thereof, to correct any situation or condition. Failure to comply with such order shall constitute, in addition to the violation itself, a separate and distinct offense.

Secs. 4.64—4.67. Reserved.

ARTICLE 9. ADDITIONAL REGULATIONS

Sec. 4.68. Additional Regulations Authorized.

The City Manager may make additional regulations pertaining to openings and excavations in the streets, curb cuts, or street obstructions, which regulations shall be subject to the approval of the City Commission. No person shall fail to comply with any such regulations.

Sec. 4.69. Removal of Encroachment.

Encroachments and obstructions in the street may be removed and excavations refilled and the expense of such removal or refilling charged to the abutting landowner when made or permitted by him or her or suffered to remain by him or her, otherwise than in accordance with the terms and conditions of this Chapter. The procedure for collection of such expenses shall be prescribed in Article 1, Chapter 151 of the City Code.

Sec. 4.70. Temporary Street Closings.

The Director shall have authority to temporarily close any street, or portion thereof, when he or she shall deem such street to be unsafe or temporarily unsuitable for use for any reason. He or she shall cause suitable barriers and signs to be erected on said street, indicating that the same is closed to public travel. When any street or portion thereof shall have been closed to public travel, no person shall drive any vehicle upon or over said street except as the same may be necessary incidentally to any street repair or construction work being done in the area closed to public travel. No person shall move or interfere with any sign or barrier erected pursuant to this Section without authority from the Director.

Sec. 4.71. Louis Campau Promenade.

(1) The public street designated the Louis Campau Promenade is hereby reserved for the exclusive use of pedestrian traffic, except as otherwise provided in this Section. It shall be unlawful for anyone to operate or park a vehicle, except for motorized assistive devices for individuals with mobility impairments, upon the Promenade except as permitted in this Section.

(2) Operators of emergency vehicles responding to an emergency on or adjacent to the Promenade and City of Grand Rapids employees operating City-owned vehicles on official business on or adjacent to the Promenade may operate and park such vehicles upon the Promenade as necessary.

(3) Deliveries to, and maintenance operations at, buildings abutting the Promenade which require that a vehicle be operated upon the Promenade may only be made before 10:00 a.m. or after 10:00 p.m., unless special permission is obtained from the Traffic Safety Director.

(4) The City Engineer may grant written permission to operate and park on the Promenade vehicles which will be directly involved in construction activities immediately adjacent to the Promenade but only to the extent that he or she determines that such use of the Promenade is necessary to the proper conduct of such construction activities. Such a permit shall be in addition

to, and not in lieu of, any other permits which may be required by the City for the use of public right-of-way during construction activities.
(Ord. No. 83-26, 4-26-83; Ord. No. 95-4, § 1, 2-7-95)

ARTICLE 10. VACATING RIGHTS-OF-WAY*

Sec. 4.72. Definitions.

(1) For the purposes of this article, the following words and phrases shall have the meanings respectively ascribed to them by this section unless the context in which they are used specifically indicates otherwise:

Encroachment means an intrusion or invasion by any building, fence, pipe, pole, wire, wall or other structure or object in, on, under or over any portion of any right-of-way.

Major vacation means the vacation of the entire width or significant portion of any developed right-of-way so that it is no longer reasonably usable for public vehicular or pedestrian travel and any vacation where any portion of the part to be vacated lies within twenty-five (25) meters of a lake or the general course of a stream.

Minor vacation means the vacation of a platted, dedicated or otherwise designated but undeveloped right-of-way or the vacation of a portion of the width of a developed public right-of-way leaving the remainder in a condition that it is still reasonably usable by the public for vehicular or pedestrian travel.

Reasonably usable means the right-of-way provides for unimpeded passage with height clearance of at least 15 feet and complies with all other minimum clearance, setback, and build-to lines as prescribed by the City Zoning Ordinance.

Right-of-way means any strip of land within the City platted, dedicated or otherwise designated for vehicular or pedestrian travel by the public and any strip of publicly-owned land within the City designated on official City documents and actually used by the public for pedestrian or vehicular travel, including, without limitation, streets, roads, alleys, boulevards, sidewalks, bicycle lanes, curb-lawns and lawn extensions.

Vacate means to abandon, discontinue, surrender and relinquish the public rights in and the public ownership, use, maintenance and control of any right-of-way.

Vacation means the abandonment, discontinuance, surrender and relinquishment of the public rights in and the public ownership, use, maintenance and control of any right-of-way.

(2) Whenever a City official is designated in this article by reference to the officer's title, it shall include that official, any designee of that official, and that official's successor or staff member assuming that official's duties in the event of absence, vacancy, or reorganization.
(Ord. No. 2015-74, § 1, 12-15-15)

Sec. 4.73. City Commission Action Required; Encroachment Agreement.

(1) Except as otherwise provided by applicable state law, the vacation of any portion of any right-of-way in the City may only occur by action of the City Commission in accordance with this article and with the concurrence of the Kent County Circuit Court.

(2) However, the City Commission may approve license agreements allowing non-permanent encroachments upon rights-of-way in the City. Among any other terms imposed by the City Commission, such agreements shall be only three (3) years in duration in accordance with the requirements of the City Charter, though they may be renewable, and shall provide that any encroachment be completely removed upon the expiration, non-renewal or other termination of the agreement. Such agreements shall also be recorded with the Kent County Register of Deeds against the property from which the encroachment extends and shall constitute a lien against that property unless and until the encroachment is removed. The City Engineer shall prepare and

*__Editor's note—__Ord. No. 2015-74, § 1, adopted December 15, 2015, amended the Code by adding provisions designated as §§ 4.81—4.88. Inasmuch as there were already provisions so designated, the provisions have been redesignated as §§ 4.72—4.79, at the discretion of the editor.

propose for the City Commission's approval, guidelines to be applied in considering requests for encroachment agreements and requirements to be included in encroachment agreements.

(3) The City Engineer may approve a licensing agreement for encroachment to be in effect during the pendency of a circuit court action for vacation of a right-of-way that has received City Commission approval.

(4) The City Engineer may approve temporary encroachment agreements allowing the installation of temporary foundation support systems in rights-of-way provided these systems are decommissioned no later than the earlier of completion of construction or within three (3) years. After decommissioning, such temporary construction components may be abandoned in place in accordance with the terms of the agreement, the form of which and fees for which shall be approved from time to time by resolution of the City Commission.

(5) Any other provision of this chapter notwithstanding, the City Engineer, in consultation with other City staff the City Engineer deems appropriate, may review and approve encroachments for City special events where the encroachment will be for six (6) or fewer weeks. (Ord. No. 2015-74, § 1, 12-15-15)

Sec. 4.74. Request for Vacation.

(1) The consideration of the vacation of all or any portion of a right-of-way may be initiated by any person owning property abutting the portion of the right-of-way proposed for vacation or by the City Manager or City Engineer.

(2) A property owner may initiate consideration of the proposed vacation by filing a formal written request for the proposed vacation with the City Engineer. That written request, in addition to any other information or items reasonably required by the City Engineer, shall include at least the following:

(a) The requesting property owner's name, address, telephone number(s), and e-mail address.

(b) The legal description of the portion of the right-of-way proposed for vacation, which shall, if requested by the City Engineer, be supported by a survey.

(c) The address, permanent parcel number and legal description of the property owner's property that abuts the portion of right-of-way proposed for vacation.

(d) An explanation of the reasons for proposing the vacation.

(e) A promise to undertake and complete the required Circuit Court action to complete the proposed vacation, if it is approved by the City Commission, and to escrow with the City Treasurer an amount the City Attorney deems necessary to undertake and complete the required Circuit Court action.

(f) The signature of the property owner below a statement attesting the information in the request to be true, accurate and complete.

(g) (i) A sealed drawing showing the area proposed for vacation which shall include existing property lines and dimensions where extensions into the public right-of-way are requested, including existing structures, landscaping, outdoor seating, and requisite appurtenances, and (ii) a map illustrating the property owned by the property owner, and all affected property as defined below.

(h) A list of addresses and permanent parcel numbers of all affected property:

(i) For a major vacation, the list must include all parcels lying within three hundred (300) feet of any part of the portion of right-of-way proposed for vacation.

(ii) For a minor vacation, the list must include all parcels abutting any part of the portion of right-of-way proposed for vacation and any parcels the access to any portion of which may be affected by the proposed vacation.

(iii) For any vacation, the list must include the owners of any non-City utility lines or facilities within the right-of-way proposed for vacation.

(i) A fee to process the request in an amount established from time-to-time by City Commission resolution.

(Ord. No. 2015-74, § 1, 12-15-15)

Sec. 4.75. Staff Review and Recommendation.

(1) Within seven (7) days after receiving a request for vacation or encroachment completed as required by Section 4.83, the City Engineer shall send a copy of the request and supporting documents to the Planning Director, City Attorney, Enterprise Services Managing Director, Fire Chief, Police Chief, and any other City staff the City Engineer believes should review the request given the location and features of the area around the requested vacation or encroachment. Those receiving copies, in addition to the City Engineer, shall review and make a recommendation regarding the request for vacation or encroachment in accordance with this Section.

(2) The City Engineer shall also send a copy of the request to the owners of any utilities or easements in the portion of right-of-way proposed for vacation or access to which utilities may be affected by the proposed vacation or encroachment with a letter providing twenty-one (21) days for comment on the proposed vacation or encroachment.

(3) The following criteria shall be used in reviewing and making a recommendation regarding the request for vacation and any action on a request for an encroachment agreement under Subsection 4.82(2).

(a) After considering any proposed improvements, will the proposed vacation inhibit or impede safe and efficient access to any parcel, building or structure by emergency personnel or equipment, by residents, employees or patrons, including those with mobility limitations, by vendors or suppliers serving building occupants, or by others needing access to the parcel or premises?

(b) After considering any proposed improvements, will the proposed vacation inhibit or impede safe and efficient travel of vehicles or pedestrians using the right-of-way?

(c) After considering any proposed improvements or retained easements addressing them, will the proposed vacation inhibit or impede access to, maintenance on, or replacement of, any existing or reasonably foreseeable above or underground infrastructure, utility lines, facilities, or appurtenances within the portion of right-of-way proposed for vacation?

(d) Is the proposed vacation reasonably needed to use or continue to use an existing building or structure in a financially viable way?

(e) Will the proposed vacation allow for desired renovation, improvement, change in use, or other economic development objective on the property owned by the property owner requesting the vacation?

(f) Will the proposed vacation adversely affect other parcels, area residents or occupants, or the general public?

(g) What, if any, other impacts, effects, benefits, and disadvantages will result from the proposed vacation? Can they be addressed to minimize or preclude adverse effects of the proposed vacation?

(h) What, if any, precedent will be set by the proposed vacation that may be applicable to other sites in the City?

(i) Is a variance needed for the encroachment due to setbacks?

(4) Within twenty-one (21) days after receiving the request for vacation or encroachment, each City official getting a copy of the request for vacation shall address the criteria in Subsection (2) in a written response to the City Engineer which includes that official's recommendation to approve, approve with conditions, or deny the proposed right-of-way vacation.

(5) Within fourteen (14) days after receiving the written reviews and recommendations of the other City officials and from the owner of any affected utility, the City Engineer shall make a written report and recommendation to the City Commission along with a proposed resolution to approve the proposed vacation, deny the proposed vacation, or approve vacating a portion of the right-of-way that is less than that proposed, and, if appropriate, to add conditions to any approval to address the interests of the general public, affected utilities, or affected property owners, residents or occupants. A resolution approving a vacation of all or any portion of a right-of-way may also preserve easements for existing or future infrastructure, utility lines, poles and appurtenances.
(Ord. No. 2015-74, § 1, 12-15-15)

Sec. 4.76. City Commission Action.

(1) The City Commission, by resolution, may approve the proposed vacation, deny the proposed vacation, or approve vacating a portion of the right-of-way that is less than that proposed, and may add conditions to any approval to address the interests of the general public, affected utilities, or affected property owners, residents or occupants. A resolution approving a vacation of all or any portion of a right-of-way may also preserve easements for existing or future infrastructure, utility lines, poles and appurtenances.

(2) Unless otherwise waived by the City Commission for good cause stated in the resolution, a resolution approving a vacation shall require that the requesting property owner bear the costs of initiating and completing the required Circuit Court lawsuit to confirm the vacation and, in the case of a major vacation, to undertake and complete any required plat amendment. The resolution shall further specify (i) whether the City's legal counsel (either the City Attorney or special legal counsel) will undertake and complete the Circuit Court action or whether the requesting party's legal counsel will do so, (ii) who will be performing any surveying and other work related to any required plat amendment, (iii) the estimated costs to be incurred by the City or the party requesting the vacation to undertake and complete the Circuit Court action and any required plat amendment, and (iv) the amount required to be escrowed with the City pursuant to an escrow agreement in a form and substance acceptable to the City Attorney to ensure the Circuit Court action and any required plat amendment are properly undertaken and completed.

(3) If the City Commission's action is to approve the vacation of a street, title to that portion of the land vacated by the City Commission's resolution shall vest in the abutting property owners by operation of law. If the City owns the right-of-way in fee, unless otherwise so determined by the City Commission, the party requesting the vacation shall pay to the City the fair market value of the area that is vacated and the City shall provide a quit claim deed for such property. The fair market value shall be established by an appraisal or by an estimate prepared by the City Assessor or the City's right-of-way agent.

(4) A certified copy of the resolution shall be recorded with the Kent County Register of Deeds and a copy shall also be sent to the Michigan Department of Licensing and Regulatory Affairs, or its successor agency.
(Ord. No. 2015-74, § 1, 12-15-15)

Sec. 4.77. Circuit Court Action.

If the City Commission approves a vacation, an action shall be initiated in the Kent County Circuit Court and the following requirements shall apply:

(1) For a major vacation, proceedings shall be initiated and completed in the Kent County Circuit Court in accordance with the requirements of the Land Division Act, 1967 PA 288, as amended, for amending or revising a plat, MCL 560.221 et seq.

(2) For a minor vacation, (i) anyone having an interest in any parcel abutting any part of the portion of right-of-way proposed for vacation and any parcels the access to any portion of which may be affected by the proposed vacation, (ii) the owners of any non-City utility lines or facilities within the right-of-way proposed for vacation, and (iii), unless the City is initiat-

ing the Circuit Court action, the City shall be joined as parties defendant. Unless specifically required by applicable state law, no plat amendment shall be required. The Circuit Court shall confirm the proposed vacation as approved by the City Commission unless a party to the proceedings objects and the objection is for a reason that is not adequately addressed by a requirement or condition provided in the City Commission resolution approving the vacation.

(Ord. No. 2015-74, § 1, 12-15-15)

Sec. 4.78. Vesting of Title.

(1) For a major vacation, title shall vest as provided in Section 227a of the Land Division Act, MCL 560.227a.

(2) For a minor vacation, title shall vest as follows:

(a) Title to a right-of-way the full width of which is vacated by the court's judgment shall vest in the rightful owners of the lots, within the subdivision covered by the plat, abutting the right-of-way.

(b) If the lots abutting the vacated right-of-way on both sides belong to the same owner, title to the vacated right-of-way shall vest in that owner. If the lots on opposite sides of the vacated right-of-way belong to different owners, title up to the center line of the vacated right-of-way shall vest in the respective owners of the abutting lots on each side.

(c) If only part of the width of a street or alley, not extending beyond the center line, is vacated, title to the vacated part of the street or alley shall vest in the owner of the lots abutting the same.

(3) When title to any part of a vacated right-of-way vests in an abutting owner, any future legal description of the abutting lot or lots shall include that part of the vacated right-of-way.

(Ord. No. 2015-74, § 1, 12-15-15)

Sec. 4.79. Compliance with City Code of Ordinances and State Law.

Nothing within this article, or within any approval or agreement issued by the City, shall relieve a person of the duties and obligations imposed under other applicable provisions of the City's Code of Ordinances or State Law. To the extent of any conflict between any provision of this article and any provision of State Law, the provision of State Law shall control.

(Ord. No. 2015-74, § 1, 12-15-15)

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Chapter 52

SIDEWALKS*

Article 1. In General

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*__Cross references—__Sidewalk vaults, § 4.7; sidewalk obstructions, § 4.20; zoning, Ch. 61; subdivision regulations, Ch. 64; Housing Code, Ch. 140; sweeping litter into gutters, § 9.94; merchants to keep sidewalks free of litter, § 9.95; parking prohibited on sidewalk, § 10.45(1); sidewalks and bicycle trails, § 10.132.

ARTICLE 1. IN GENERAL

Sec. 4.81. Definitions, Sidewalk Builders' Licenses, Revocation and Penalties.

(1) *Definitions.* In interpreting the provisions of this Chapter, the following definitions shall apply:

(a) "*Director*" shall mean the Director of Public Service or his or her authorized representative. The City Engineer is hereby designated as the Director's authorized representative.

(b) "*Engineer*" shall mean the City Engineer or his or her duly authorized representative.

(c) "*Sidewalk*" shall mean that portion of the street right-of-way designated for pedestrian travel.

(d) "*Areaway*" shall mean an extended basement of a building within the street right-of-way.

(e) "*Areaway Sidewalk*" shall mean a sidewalk constructed over an areaway.

(f) "*Driveway Approach*" shall mean that portion of a driveway which lies within the public right-of-way and extends from the inner edge of the sidewalk to the street pavement or edge of a graded roadway.

(g) "*Parkway*" shall mean the area between the sidewalk and the street curb line.

(h) "*Retaining Wall*" shall mean a wall built on the outer edge of the sidewalk line for the purpose of confining earth.

(i) "*Improvements*" shall mean sidewalks, driveway approaches, retaining walls and areaways located within public rights-of-way.

(2) *Sidewalk Builder's License Required.* No person shall build, rebuild or repair sidewalks, driveway approaches, retaining walls, curbs, curbs and gutters or areaways in the street right-of-way without first obtaining a Sidewalk Builder's License. An application for such license shall be filed with the City Engineer and shall set forth the full name of the applicant, residence, and number of years experience in concrete construction work. Prior to the issuance of a license by the City Engineer, the applicant shall meet all of the following requirements.

(a) *Examination Required.* Each applicant shall pass a written examination, prepared and administered by the City Engineer, testing the applicant's qualifications and knowledge of sidewalk and driveway approach construction work.

(b) *Payment of Annual License Fee Required.* Each applicant shall remit payment of the annual license fee.

(i) Setting of Fees. The amount of the Sidewalk Builder's License Fee shall be established from time to time by resolution of the City Commission. Such fees are to become effective for the subsequent year beginning January 1.

(ii) First Issuance and Renewal Fees Distinguished. There shall be three (3) fees established for the Sidewalk Builder's License.

(1) A first issuance fee shall be charged when an applicant for a license does not have an existing valid and current license. This shall include, but not be limited to, first-time applicants or applicants whose license has expired without being properly renewed.

(2) A renewal fee shall be charged to those applicants who have an existing valid and current license and file a renewal application prior to the expiration of such valid and current license on or before December 31 of the current license year.

(3) A grace period renewal fee shall be charged for those applicants who file a renewal application on or after January 1 and prior to February 1 of each year. Applicants making renewal during this renewal period shall

pay one hundred twenty-five (125) percent of the established renewal fee for the license. Licenses not renewed during the January renewal grace period shall be deemed expired. Applications to renew filed on or after February 1 shall be assessed a fee equal to a first issuance fee.

(c) *Bond Required.* Each applicant shall furnish to the City Engineer a surety bond in the amount of Ten Thousand Dollars ($10,000.00). Such bond shall provide that the licensee shall fully perform and comply with the Grand Rapids Standard Construction Specifications, Sidewalk Rules and Regulations and provisions of the City Code with regard to the construction of sidewalks, driveway approaches, retaining walls, curbs, curbs and gutters and areaways; and shall promptly repair, replace, restore, or rebuild any finished work in which defects of materials or workmanship may appear or to which damage may occur because of such defects during the one-year period subsequent to the date of final inspection of such work, and shall comply in every respect with the provisions of Section 1.12.

(d) *Insurance Required.* Each applicant shall acquire the following insurance coverage, and shall continuously maintain such coverage during the period in which the Contractor is performing services. Each applicant shall provide the City with acceptable proof of the following types and amounts of insurance coverage:

(i) Workers Compensation Insurance as required by Michigan Statute.

(ii) Comprehensive General Liability Insurance on an "Occurrence Basis" with limits of liability not less than $1,000,000 per occurrence and/or aggregate combined single limit, Personal Injury, Bodily Injury, and Property Damage.

(iii) Comprehensive Owned and Non-Owned Automobile Liability Insurance with limits of liability not less than $1,000,000 per occurrence combined single limit, Bodily Injury and Property Damage. Coverage shall include all owned vehicles, all non-owned vehicles, and all hired vehicles.

(iv) The City of Grand Rapids shall be named as an additional insured by endorsement to the Comprehensive General Liability policy.

(v) Certificates of insurance evidencing that the Contractor has secured all of the foregoing insurance must be provided to the City. A minimum of thirty (30) days notice to the City prior to the cancellation of, or change in, any such insurance shall be endorsed on each policy and noted on each certificate.

(vi) Such insurance shall comply with the provisions of Section 1.12.

(e) *License Expiration.* Sidewalk Builder's Licenses issued under this Chapter shall be subject to annual renewal, and shall expire on the 31st day of December of each year. Notwithstanding any other provision of this Article, any Sidewalk Builder's License issued in the year 2007 shall expire on December 31, 2007. The fee for such Sidewalk Builder's License issued in 2007 shall be established on a pro-rated basis from May to December 2007.

(3) *Revocation of License.* The City Manager or his or her designee shall have the power to revoke any license issued hereunder upon the satisfactory proof that the licensee has:

(a) Violated any of the provisions of this Chapter, or

(b) Violated any of the provisions of the Grand Rapids Standard Construction Specifications or Sidewalk Rules and Regulations.

Should a license holder wish to appeal the City Manager's action, he or she may request in writing to the City Engineer, a hearing by the City

Commission's Community Development Committee to be held within fourteen (14) days of receipt of said request. The license holder shall be given written notice of the reasons for the license revocation, and the date, time and place of such hearing, at least seven (7) days prior to the hearing. At the hearing, the Committee shall consider the written and/or oral presentations by both the license holder and the City Manager and within ten (10) days thereafter, either confirm the original license revocation or reinstate said license.

(4) *Violations and Penalty.*

(a) Any person who shall build, rebuild or repair any sidewalk, driveway approach, retaining wall, curb, curb and gutter or areaway without first obtaining a license shall be guilty of a violation of this Chapter.

(b) Penalty for violations shall be as provided in Chapter 1, Section 1.13.

(c) In addition to any fine and/or imprisonment, any person convicted of a violation of this Chapter shall be required to make restitution to the property owner in a manner as shall be satisfactory to the Director.

(Ord. No. 70-52, 7-28-70; Ord. No. 84-63, § 1, 9-11-84; Ord. No. 97-59, § 1, 12-2-97; Ord. No. 2007-20, §§ 1, 2, 3-27-07)

Sec. 4.82. Permits and Specifications.

(1) No permit to build, rebuild or repair any sidewalk, driveway approach, retaining wall, curb, curb and gutter or areaway in the street right-of-way shall be issued to any person except a licensed Sidewalk Builder.

(2) Before starting any work in the street right-of-way, the Sidewalk Builder shall take out a permit. Application for such permit shall:

(a) Be accompanied by the permit fee as specified in the City Code or in the Sidewalk Rules and Regulations Permit Fee Schedule.

(b) Be accompanied by a plan or sketch showing that the existing ground surfaces adjacent to and within limits of the public right-of-way shall be graded and/or excavated to conform to the established sidewalk grade on completion of the construction pursuant to the permit. Said plan or sketch shall show that a sloping grade beginning at the established sidewalk grade and sloping toward the curb or proposed curb line shall be maintained in order that surface waters shall run toward the street gutter or drainage ditch. The Engineer shall furnish line and grade stakes as may be necessary for proper location of the established sidewalk grade. The necessity for said plan or sketch may be waived by the Engineer.

(c) No Building Permit for the construction or alteration of any building or structure shall be issued by the Inspection Services Department until the property owner has filed said plan or sketch.

(3) All construction work in the public right-of-way requires a permit unless such work is covered by a City contract.

(4) If any job or construction covered by this Chapter is started before a permit is obtained, an amount equivalent to Two Hundred (200) percent of the fee shall be paid before a permit is issued.

(5) Permits shall be effective for a period of sixty (60) days. If the work is not completed within this time, the permit shall be null and void. Refunds or credits of permit fees will not be allowed.

(6) Every sidewalk, driveway approach, curb, curb and gutter or areaway shall be built, rebuilt or repaired in accordance with the Grand Rapids Standard Construction Specifications and Sidewalk Rules and Regulations as approved by the City Commission.

(7) A copy of the Sidewalk Rules and Regulations will be furnished to each licensee. Additional copies are available at One Dollar ($1.00) each. The Director is hereby authorized and directed to make and promulgate all necessary rules, regulations, plans and specifications for carrying

out the design of this Chapter and to direct the proper construction of such work. Any neglect or refusal on the part of any person so building such structures to conform with such rules and regulations shall be deemed in violation of this Chapter and subject to the penalties provided.

(8) *Line and Grade Stakes.* After a permit is issued, the Engineer shall, upon request of the Sidewalk Builder, furnish line and grade stakes as may be necessary for proper control of the work; but this shall not relieve the contractor of the responsibility of making careful and accurate measurements in constructing the work to the lines furnished by the Engineer. Stakes will normally be set within forty-eight (48) hours. When it is necessary to replace stakes disturbed or destroyed without fault of the City or its employees, a charge of Ten Dollars ($10.00) per stake shall be paid.

(9) *Valve Boxes and Cleanouts.* When valve boxes, sewer cleanouts, hand-hole covers, gas valves, hydrants or other utility installations occur in sidewalks or driveway approaches, proper allowances must be made for these structures. Metal castings or frames shall be adjusted to the finished grade of the sidewalk surface. Concrete shall be kept far enough away from the covers so that they can easily be removed and replaced after the concrete has set. When a box is not perpendicular to the slab surface, the major portion of the box cover shall be set below the surface. When larger openings exist leading to underground chambers, the covers for these shall be set about one-half (½) inch higher than the average for drainage. In case of frames larger than six (6) inches across, standard sidewalk expansion joint material shall be placed on two (2) adjacent sides of square or rectangular frames and completely around circular frames. This material may be one-quarter (¼) inch thick, but not over one-half (½) inch thick.

(10) *Areaway Sidewalk.* No person shall build any areaway or areaway sidewalk in any public right-of-way in the City until plans for same have been approved by the Engineer and permission has been granted by the City Commission.

(a) Areaway walks must be constructed in accordance with the specifications for reinforced concrete sidewalks in the Grand Rapids Standard Construction Specifications and in the Sidewalk Rules and Regulations.

(b) When an areaway is to be abandoned or the adjacent building demolished, the sidewalk shall be removed, the areaway backfilled and a new sidewalk constructed according to the Grand Rapids Standard Construction Specifications.

(11) The City Manager or his or her designee shall establish the Sidewalk Rules and Regulations to carry out the purpose of this Chapter.
(Ord. No. 70-52, 7-28-70; Ord. No. 84-63, § 2, 9-11-84; Ord. No. 2016-80, § 1, 11-15-16)

Cross reference—Sidewalk builder's permit fee, § 7.48(52).

Sec. 4.83. Permit Suspension or Revocation.

The Director may suspend or revoke any permit issued pursuant to this Chapter for failure to comply with the terms of this Chapter, the Grand Rapids Standard Construction Specifications or the Sidewalk Rules and Regulations. The Director may suspend or revoke such permit and order any work thereunder to cease by serving notice of such action and the reasons therefor.
(Ord. No. 70-52, 7-28-70; Ord. No. 84-63, § 3, 9-11-84)

Sec. 4.84. Responsibility for Driveway Approaches, Retaining Walls and Areaways.

All driveway approaches, retaining walls and areaways, hereinafter called improvements, within the City shall be maintained by the owner of land adjacent to or abutting upon the improvement. This maintenance shall include building, rebuilding and removing all obstacles, including snow and ice as required by Section 4.89.
(Ord. No. 70-52, 7-28-70; Ord. No. 84-63, § 4, 9-11-84; Ord. No. 97-59, § 2, 12-2-97; Ord. No. 2014-30, § 1, 6-3-14)

Sec. 4.85. Driveway Approaches, Retaining Walls and Areaways Not in Good Repair.

The City Engineer is hereby authorized and directed to order any person who owns property

abutting to any driveway approach, retaining wall or areaway that is not in good repair, to build, rebuild or repair such improvements in accordance with the Grand Rapids Standard Construction Specifications as applicable. As used in this section, property owner means the owner of land upon which there is a driveway approach, retaining wall or areaway or the owner of the property abutting or adjacent to any of these improvements.

(1) *Service of Notice to Repair.* The City Engineer shall serve a Notice to Repair on any property owner by first-class mail to the property owner's address. The City Engineer's responsibility for communicating to the property owner is limited to notifying the taxpayer of record in the City Assessor's Office at the time of the first Notice to Repair.

(2) *Content of Notice to Repair.* The Notice to Repair will specify the location of the improvements, detail the work or repair required and specify that such work must be completed within sixty (60) days after service of such notice, unless otherwise specified on the Notice to Repair. The Notice to Repair shall also set forth an appeal process whereby the property owner may contest the Notice to Repair requirements.

(3) *Appeals.* Any property owner, upon service of a Notice to Repair, may file an appeal of said notice if requested within fourteen (14) days after the date of the Notice to Repair. The property owner will then be contacted and given at least seven (7) days' notice of the date, time and place of an administrative hearing to hear the property owner's appeal. The administrative hearings officer may uphold the orders, modify the orders, invalidate the orders or make such other determinations or judgments. The determination of the administrative hearings officer shall be final.

(4) *Failure to Comply.* If the property owner fails to comply with the Notice to Repair within 60 days of the time specified on the Notice, or file a timely appeal under Section 4.85(3), the City Engineer may cause the improvements to be repaired or rebuilt and will assess the expense of such work to the property owner in the manner set forth in Compiler's Paragraph 208 of the City Charter.

(5) *Emergency Clause.* Whenever the City Engineer determines that any improvement is in such a damaged or deteriorated condition so as to be an immediate danger to the health, safety and welfare of the public, the City Engineer may cause such improvement to be temporarily repaired, repaired, or rebuilt by the City without notice or hearing and may assess the expense of such work to the property owner in the manner set forth in the City Charter, Title X, Paragraph 208.

(Ord. No. 70-52, 7-28-70; Ord. No. 84-63, § 5, 9-11-84; Ord. No. 97-59, § 3, 12-2-97; Ord. No. 99-57, § 1, 11-2-99; Ord. No. 2014-30, § 2, 6-3-14)

Sec. 4.86. Sidewalks Necessary.

In any street where concrete sidewalks, surfaced driveway approaches or retaining walls do not exist, and in the judgement of the Director, such sidewalks, driveway approaches or retaining walls are a public necessity, the City Commission may order the abutting property owners to install such structures, as required.
(Ord. No. 70-52, 7-28-70; Ord. No. 84-63, § 6, 9-11-84)

Sec. 4.87. Reserved.

Editor's note—Ord. No. 2016-80, § 2, adopted November 15, 2016, repealed § 4.87, which pertained to Storm Water. See Code Comparative Table for complete derivation.

Sec. 4.88. Vehicles on Walk.

(1) No person shall drive any vehicle over or upon any sidewalk, curb or parkway within the City except by normal routes of passage, without having first thoroughly protected the sidewalk, curb, parkway, trees and/or curb boxes from damage.

(2) Responsibility for any vehicular damage shall be that of the owner of such vehicle.

(3) If any snowplower defaces, breaks, destroys or otherwise damages any sidewalk, driveway approach, curb or retaining walls, he or she shall be held responsible for replacement or repair of such damaged structure.
(Ord. No. 70-52, 7-28-70)

Sec. 4.89. Sidewalks to Be Cleared.

(1) The occupant or occupants of every property within the City, or the owner or owners of the property, shall clear any accumulation of ice or snow from the public sidewalks adjoining such property within twenty-four (24) hours of the accumulation or placement of snow or ice on said sidewalks.

(2) If the occupant or occupants or the owner or owners fail to remove said ice and snow from said sidewalks within forty-eight (48) hours of being notified by the City of such violation, the City may cause such ice and snow to be removed.

(3) In any action to enforce the provisions of subsection (2) of this Section, the City shall be required to show that the occupant or occupants, or owner of owners, were given notice of the requirement of this Section by any one (1) of the following means: in person, by telephone, by mail, or by written notice left at the property. If notice is by mail it shall be deemed received two (2) mail delivery days after deposit in the United States Mail.

(4) If the City shall cause the removal of any snow and/or ice pursuant to the provisions of subsection (2) of this Section, the cost of such removal plus an administrative fee shall be assessed against the occupant(s) or owner(s) of the property. Such administrative fee shall be established from time to time by resolution of the City Commission. The cost of snow and/or ice removal shall be determined based upon the bids received for said removal by the City. All costs and fees assessed pursuant to this subsection shall be a personal debt owed to the City by the occupant(s) or owner(s) of the property and may be assessed as a lien against the property until paid.
(Ord. No. 79-79, 11-27-79; Ord. No. 85-80, § 1, 12-17-85; Ord. No. 2005-62, § 1, 8-9-05; Ord. No. 2016-80, § 3, 11-15-16)

Sec. 4.90. Reserved.

Editor's note—Ord. No. 2014-30, § 3, adopted June 3, 2014, repealed § 4.90, which pertained to inspection of sidewalks, driveway approaches and areaways at time of sale or transfer of abutting or adjacent property; issuance of certificate and derived from Ord. No. 97-59, § 4, 12-2-97; Ord. No. 2003-01, § 1, 1-7-03.

ARTICLE 2. SNOWPLOW OPERATORS*

Sec. 4.91. License Required.

No person shall operate any vehicle or cause any vehicle to be operated within, over or upon any street, sidewalk, highway or right-of-way of the City of Grand Rapids for the purpose of plowing, moving or removing any snow or ice without having first obtained a license as herein provided. No license, however, shall be required for any snowplow operated solely in or upon property owned solely by the person, firm or corporation doing the plowing or upon the right-of-way immediately adjacent thereto.
(Ord. No. 82-21, 5-4-82; Ord. No. 2011-40, § 1, 9-27-11)

Cross reference—Snowplow services license fee, § 7.48(54).

Sec. 4.92. Application and Insurance.

Any person desiring a license as required by Section 4.91 shall file an application with the City Clerk on a form prescribed or provided by the Clerk. Each applicant shall file with the application one (1) or more certificates of insurance for public liability and property damage co-insuring the applicant and the City of Grand Rapids in amounts to be established by the City Commission by resolution. The insurance shall be approved as to form by the City Attorney.
(Ord. No. 82-21, 5-4-82)

Sec. 4.93. Investigation and Issuance.

The City Clerk may conduct such an investigation as he or she deems necessary to determine the ability and fitness of the applicant to serve the public in a fair, honest, safe and competent

*__Cross reference—__Damage to sidewalk, driveway approach, curb or retaining wall by snowplow operator, § 4.88(3).

manner and to comply with the requirements of this Code and the rules and regulations promulgated pursuant hereto.

Upon a determination that the applicant is fit and able to serve the public as required herein, a license shall be issued upon payment of the fee provided for in Chapter 92. A separate tag, insignia, license, or number shall be issued for each vehicle operated by a licensee.
(Ord. No. 82-21, 5-4-82)

Sec. 4.94. Vehicle Identification Requirements.

Any snowplowing vehicle licensed pursuant to the provisions of this Article shall be identified as follows:

(1) The name of the licensee shall be plainly displayed on both sides of the vehicle in a place and color clearly visible in figures of at least three (3) inches in height; and

(2) The tag, insignia, license plate or number issued by the City Clerk shall be prominently displayed on the vehicle in a place that can be readily seen and read at all times when the vehicle is being used for snowplowing.
(Ord. No. 82-21, 5-4-82)

Sec. 4.95. Operation.

A licensed snowplow operator may operate a snowplow over any public sidewalk for purposes of snowplowing or reaching a segment of public sidewalk for which a person, firm or corporation has requested snowplowing.
(Ord. No. 82-21, 5-4-82)

Sec. 4.96. Damage to Property.

All snowplow operators shall be responsible for repairing any damage to the public right-of-way as a result of snowplowing operations. If a snowplow operator shall fail to make repairs sufficient to place the property in the same condition as it existed prior to the damage, the City may cause the same to be repaired and the cost thereof shall become a debt to the City for the snowplow operator, and shall be collected as any other debt to the City.
(Ord. No. 82-21, 5-4-82)

Sec. 4.97. Grounds for Denial, Suspension or Revocation.

In addition to the grounds set forth elsewhere in this Code, any of the following shall be grounds for denial of a license or for suspension or revocation of a license once issued:

(1) Any violation of a provision of this Article or any of the rules or regulations promulgated pursuant to the authority granted by this Article.

(2) Failure to repair damage to either public or private property resulting from snowplow operations or the use of equipment involved in snowplow operations.
(Ord. No. 82-21, 5-4-82)

Sec. 4.98. Snowplow Rules and Regulations.

The City Manager may establish rules and regulations, subject to the approval of the City Commission, establishing equipment requirements and operational limitation for licensed snowplowing vehicles and licensees. All such rules and regulations shall be furnished to each licensee and shall be available for inspection and copying at the City Clerk's Office. The rules and regulations established by the City Manager and approved by the City Commission shall have the force and effect of law.
(Ord. No. 82-21, 5-4-82)

Sec. 4.99. Snow Removal.

All persons removing snow from private property, whether by use of a shovel, snowblower, or any other method, shall comply with the following regulations:

(1) Snow shall not be deposited and spread into sidewalks, alleys or streets.

(2) Snow shall not be deposited so as to obstruct fire hydrants or mailboxes.

(3) Snow shall not be deposited so as to create any visual obstruction which would impair the safe use of sidewalks, alleys or streets.

Any person failing to comply with these regulations shall be guilty of a violation of this Code.
(Ord. No. 86-9, § 1, 2-18-86)

Sec. 4.100. Violations; Enforcement.

Violation of any provision of this Chapter 52 or of the Rules and Regulations promulgated hereunder, shall constitute a Municipal Civil Infraction as provided for in Chapter 170 of this Code.
(Ord. No. 2011-40, § 2, 9-27-11)

Sec. 4.101. Definitions.

(1) *Person* includes an individual, corporation, partnership, unincorporated association or any other legal entity.
(Ord. No. 2011-40, § 3, 9-27-11)

Secs. 4.102—4.200. Reserved.

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Chapter 53

SPECIAL EVENTS*

Sec. 4.201. Title.
Sec. 4.202. Purpose and Intent.
Sec. 4.203. Definitions.
Sec. 4.204. Special Events Subject to Chapter.
Sec. 4.205. Rules and Regulations; Publication.
Sec. 4.206. Special Event Permit Required; Nuisance and Disturbance Prohibited.
Sec. 4.207. Conduct Prohibited.
Sec. 4.208. Noise Ordinance Suspended.
Sec. 4.209. Fees.
Sec. 4.210. Chapter to Control, Penalties.
Secs. 4.211—4.230. Reserved.

*__Editor's note—__Ord. No. 2014-56, § 1, adopted July 22, 2014, amended chapter 53 in its entirety to read as herein set out. Former chapter 53, §§ 4.201—4.207, pertained to similar subject matter, and derived from Ord. No. 85-32, § 1, 5-14-85; Ord. No. 2005-44, § 1, 6-28-05; Ord. No. 2009-40, § 1, 8-11-09.

__Cross references—__Special event license, § 7.262; noise control, § 9.61 et seq.

Sec. 4.201. Title.

This Chapter shall be known as the "Special Events Ordinance" of the City of Grand Rapids.
(Ord. No. 2014-56, § 1, 7-22-14)

Sec. 4.202. Purpose and Intent.

The City Commission, in the exercise of the City's Constitutional right of control over public streets, sidewalks, plaza areas and parks, must provide periodically for the regulation of conduct and activities associated with Special Events held on and adjacent to such public places. The purpose of such regulation is to ensure, to the greatest extent possible, that, consistent with the protection of the public health, safety and welfare, the objectives of certain special events either sponsored by the City or specifically authorized by the City are achieved. It is the intent of this Chapter to provide the City Commission with the general framework to authorize and regulate the activities associated with certain special events and to authorize the City Manager to promulgate Rules and Regulations reasonably necessary to regulate such special events.
(Ord. No. 2014-56, § 1, 7-22-14)

Sec. 4.203. Definitions.

A "Special Event" is any activity or series of events or activities, specific to an identifiable time and place, which is authorized by resolution of the City Commission pursuant to this Chapter.
(Ord. No. 2014-56, § 1, 7-22-14)

Sec. 4.204. Special Events Subject to Chapter.

Special events subject to this Chapter including but not limited to festivals, parades, races, concerts, neighborhood fairs and other similar events established by resolution of the City Commission, with such resolution to include the dates and times during which the event is to occur. Such resolution is subject to amendment, revision, or repeal from time to time as the City Commission may deem necessary or appropriate. All special events shall be subject to the provisions of this Chapter, unless specifically exempted from any or all provisions of this Chapter by resolution of the City Commission.
(Ord. No. 2014-56, § 1, 7-22-14)

Sec. 4.205. Rules and Regulations; Publication.

In addition to the provisions of this Chapter, the City Commission hereby authorizes the City Manager to promulgate Rules and Regulations he or she may deem necessary in order to protect public health, safety and welfare; and to achieve the successful accomplishment of special events within the City of Grand Rapids for the enjoyment and enrichment of the public. Such Rules and Regulations shall be published on the City's website prior to the start of the special event, and shall do one (1) or more of the following:

(1) Define the boundaries within which the activities of the special event are to be held.

(2) Establish criteria for the sponsorship and co-sponsorship of events by the City.

(3) Specify such other rules and/or regulations which the City Manager determines are reasonably necessary to ensure, to the greatest extent possible, consistent with the public health, safety and welfare, that the objectives of the special event are achieved.

(Ord. No. 2014-56, § 1, 7-22-14)

Sec. 4.206. Special Event Permit Required; Nuisance and Disturbance Prohibited.

It shall be a violation of this Chapter for an applicant, his/her employee or agent to knowingly:

(1) Conduct a special event without first making application and obtaining permit(s) as required by this Chapter.

(2) Conduct a special event in such a manner as to create a public or private nuisance.

(3) Allow any person to cause or create a disturbance within the special event boundaries.

(4) Conduct a special event contrary to the terms and conditions of any special event permit, or resolution approved by the City Commission in conjunction with the event authorized.

(Ord. No. 2014-56, § 1, 7-22-14)

Sec. 4.207. Conduct Prohibited.

Unless specifically allowed by resolution of the City Commission, the following activities are prohibited within the boundaries of any special event during the dates and times that the special event is scheduled to occur:

(1) *Unauthorized Vending Prohibited.* No vendors or transient merchants, including commercial and promotional advertising activity, shall be allowed within the event boundaries other than those specifically authorized by the event sponsor(s), as evidenced by a special event permit issued by the City.

(2) *No Sound Amplification Devices.* No person shall operate any sound amplification devices, equipment or systems within the event boundaries other than those systems specifically authorized by the event sponsor(s).

(3) *No Food Preparation or Sale, Except by Authorized Vendors.* No food preparation grills or other food dispensing apparatus are allowed within the event boundaries except those operated by vendors as authorized by the event sponsor(s) and City.

(4) *No Motor Vehicles.* No motor vehicles, except emergency vehicles, authorized news media vehicles, or those authorized by the sponsor(s) as necessary for deliveries shall be permitted within the barricaded portions of the streets within the event boundaries.

(5) *No Animals.* Except for service animals trained for the purpose of assisting persons with disabilities, no dogs or other animals shall be permitted within event boundaries.

(6) *No Bicycles, Skateboards, etc.* No person shall ride or operate within the event boundaries, including the barricaded portions of streets, any bicycle, unicycle, tricycle, moped, pedicab, roller skates or skateboard. Nothing herein shall prevent the use of strollers or carriages for infants, or manual or electric wheelchairs for persons needing such appliance for mobility.

(7) *No Hot Air Balloons, etc.* No person shall land a hot air balloon, parachute from an airplane, or drop items from an airplane into any event boundary while an event is underway.

(8) *Alcohol Consumption Prohibited.* Unless specifically authorized by resolution of the City Commission, it shall be unlawful for any person to consume alcoholic liquor within any special event boundary while the special event is being conducted, except those places which are properly licensed therefore by the Liquor Control Commission, and then only the particular kind or style of alcoholic liquor which is licensed for sale on said premises.

(Ord. No. 2014-56, § 1, 7-22-14)

Sec. 4.208. Noise Ordinance Suspended.

Unless this Section is specifically superseded by resolution of the City Commission, the noise control provisions of this Code, being Article 5 of Chapter 151, shall be suspended within the special event boundaries while the event is being conducted.

(Ord. No. 2014-56, § 1, 7-22-14)

Sec. 4.209. Fees.

The following fees required for the administration of this Chapter are hereby authorized, and shall be established from time to time by resolution of the City Commission:

1. Special Event Permit.
   Permit Application.
   Security Deposit.
   Filming/Photography Location Rate.
   Amplified Sound Extension Rate.

2. Overtime.
   Special Event Labor Rate.

Police Lieutenant Rate.
Police Sergeant Rate.
Police Officer Rate.

3. Venue Rental Rate.
4. Equipment Rental Rate.
5. Street Closing Permit.
6. Any other fee deemed necessary or appropriate by the City Manager pursuant to the Special Events Rules and Regulations.

(Ord. No. 2014-56, § 1, 7-22-14)

Sec. 4.210. Chapter to Control, Penalties.

The provisions of this Chapter and any Rules and Regulations duly adopted and published pursuant to its terms shall have the force of law and shall control and supersede any other general ordinances, licenses or regulations for the duration of the particular special event for which they are adopted. A violation of this Chapter, or of any Rule or Regulation duly adopted and published pursuant to this Chapter shall be a violation of this Code and shall be punishable as a misdemeanor.

(Ord. No. 2014-56, § 1, 7-22-14)

Secs. 4.211—4.230. Reserved.

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RESERVED

Secs. 4.231—4.999. Reserved.

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TITLE V—ZONING AND PLANNING

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Chapter 61

ZONING ORDINANCE*

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***Editor's note—**Ord. No. 2017-27, adopted March 38, 2017, effective April 27, 2017 repealed Chapter 61 in its entirety and adopted a new Chapter 61 to read as herein set out. Former Chapter 61 pertained to similar subject matter. See Code Comparative Table for complete derivation. Amendments to the ordinance are indicated by parenthetical history notes following amended provisions. The absence of a history note indicates that the provision remains unchanged from the original ordinance.

Cross references—Department of Community Improvement and Inspection Services, § 1.101; special assessments, Ch. 10; utilities and services, Title II; trees, Ch. 42; streets, Ch. 51; sidewalks, Ch. 52; Planning Commission, Ch. 62; subdivision regulations, Ch. 64; urban renewal areas, Ch. 65; natural and artificial drains, Ch. 66; historic preservation, Ch. 68; amusements, Ch. 103; general building regulations, Ch. 131; Property Maintenance Code, Ch. 140; Building Maintenance Code, Ch. 135; sign location control, Ch. 142; grading and soil erosion control, Ch. 143; flood plain construction, Ch. 144; fences, Ch. 141; dangerous structures, § 9.11 *et seq.*; noise control, § 9.61 *et seq.*; property maintenance nuisances, § 9.107 *et seq.*; unoccupied structure nuisances, § 9.115 *et seq.*; motor vehicle nuisances, § 9.124 *et seq.*; waterways, Ch. 154; fire prevention, Ch. 159; parking or storage of motor vehicles in front yard within residential district, Ch. 164.

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ARTICLE 1. TITLE, PURPOSE AND SCOPE

Sec. 5.1.01. Title.

This Chapter shall be known as the "Zoning Ordinance" of the City of Grand Rapids, Michigan.

Sec. 5.1.02. Authority.

This Chapter is enacted pursuant to the authority granted by the Michigan Zoning Enabling Act 110 of the Public Acts of 2006, as amended.

Sec. 5.1.03. Purpose and Intent.

A. In addition to promoting the purposes provided in the Zoning Enabling Act, this Chapter is necessary to promote the public health, safety, and general welfare of the City of Grand Rapids as well as to implement the themes, policies and goals contained in officially adopted plans, including the following purposes related to the City of Grand Rapids Master Plan.

B. *Great Neighborhoods.*

1. Protect the character and quality of established residential neighborhoods;
2. Allow for and advance innovation in new residential development and redevelopment that meets the demand for housing with a greater variety in the type and design of dwellings and to provide for a range of incomes for their residents;
3. Promote active and vibrant mixed use environments in appropriate locations and intensity; and
4. Preserve the quality of life for residents and visitors.

C. *Vital Business Districts and a Strong Economy.*

1. Maintain and enhance economically vibrant as well as attractive business and commercial areas;
2. Provide reasonable accommodation for growth and development;
3. Promote a balanced supply of commercial, industrial, institutional and transportation land uses that are compatible with adjacent land uses and have sufficient access to public infrastructure;
4. Promote rehabilitation and reuse of older buildings; and
5. Provide places for residence, recreation, industry, trade, services, and other uses of land.

D. *Balance with Nature and Enrich Lives.*

1. Ensure uses of land are situated in appropriate locations;
2. Ensure adequate light, air, privacy, and access to property;
3. Encourage environmentally responsible development practices;
4. Facilitate adequate and efficient public infrastructure and systems for transportation, sanitary and storm sewage collection and disposal, potable water, recreation and other public services and amenities; and
5. Meet the needs of the city's citizens for food, fiber, energy and other natural resources.

E. *Balanced Transportation Systems.*

1. Promote alternate means of transportation to the automobile, such as pedestrian, bicycle and public transit use; and
2. Limit inappropriate overcrowding of land and congestion of population, transportation systems and networks, and other public facilities.

F. Provide for partnerships that establish clear, fair and efficient development review and approval procedures for applicants and residents alike.

Sec. 5.1.04. Effective Date.

This Chapter shall take effect and be in force on and after April 27, 2017.

Sec. 5.1.05. Applicability.

A. This Chapter is applicable to all land located within the city. Zoning affects every building, structure and use and extends vertically. All lands, buildings, and uses in a Zone District shall be subject to the applicable provisions of this Chapter.

B. No building or structure, or part thereof, shall hereafter be erected, constructed, altered, maintained or used, and no new use or change shall be made to any building, structure or land, or part thereof, except in conformity with this Chapter.

Sec. 5.1.06. Vested Rights.

Nothing in this Chapter shall be interpreted or construed to give rise to permanent vested rights in the continuation of any particular use, density, Zone District, Neighborhood Classification or permissible activity therein. All land, buildings, structures, uses and designations are hereby declared to be subject to any subsequent amendment, change or modification as may be necessary to meet the purposes and intent of this Chapter.

Sec. 5.1.07. Relationship to Adopted Plans.

The administration, enforcement and amendment of this Chapter shall be consistent with the City Master Plan, Parks and Recreation Plan and any adopted Area Specific Plans, and other plans that may be adopted by the City Commission related to the future development of the city. In the event this Chapter becomes inconsistent with those plans, then this Chapter shall be amended within a reasonable time to become or remain consistent.

Sec. 5.1.08. Relationship to Other Laws and Agreements.

A. *Other Public Laws, Ordinances, Regulations or Permits.* This Chapter is intended to complement other municipal, state and federal regulations that affect land use. Unless otherwise noted in this Chapter, where conditions, standards or requirements imposed by any provision of this Chapter are more restrictive than comparable provisions imposed by other regulations, the provisions of this Chapter shall govern.

B. *Private Agreements.* This Chapter is not intended to revoke or repeal any easement, covenant or other private agreement; provided, however, that where this Chapter imposes a greater restriction or requirement, the provisions of this Chapter shall control. Nothing in this Chapter shall modify or repeal any private covenant or deed restriction, but any covenant or restriction shall not be used to justify a lack of compliance with this Chapter. The City shall not be obligated to enforce the provisions of any easements, covenants, or agreements between private parties.

Sec. 5.1.09. Conflicts Between Requirements.

A. In cases where two (2) or more requirements in this Chapter conflict with one another, the more restrictive requirement shall not necessarily control (e.g. if an Overlay District conflicts with the base Zone District).

B. The Planning Director shall determine which requirement controls based on the degree to which one (1) or more requirements results in:

1. Greater consistency with the goals and objectives contained within the Master Plan;
2. Better support for the purposes of this Chapter as described in Section 5.1.03. Purpose and Intent, and in the applicable purposes of the conflicting provisions;
3. Increased compatibility with adjacent development and surrounding community character;
4. Enhanced environmental quality and protection of natural resources;
5. Greater protection and preservation of historic and cultural resources; or
6. Higher quality of building form, design and/or architecture.

Sec. 5.1.10. Headings and Illustrations.

Headings and illustrations are provided for convenience and reference only and shall not be used to restrict or limit the scope of any provision of this Chapter. Where any difference of meaning or implication between the text of this Chapter and any heading, drawing, table, figure, or illustration, the text shall govern.

Sec. 5.1.11. Severability.

A. If any court of competent jurisdiction invalidates any provision of this Chapter, that judgment shall not affect the validity and continued enforcement of any other provision of this Chapter.

B. If any court of competent jurisdiction invalidates the application of any provision of this Chapter to a particular property, structure, or situation, that judgment shall not affect the application of that provision to any other building, structure, or situation not specifically included in that judgment.

C. If any court of competent jurisdiction invalidates any condition attached to the approval of a development review application, that judgment shall not affect any other conditions or requirements attached to the same approval that are not specifically included in that judgment.

D. Whenever a condition or limitation is included in an administrative action authorizing regulatory activity, then it shall be conclusively presumed that the authorizing officer, commission, or board considered that condition or limitation necessary to carry out the requirements, standards, purposes, or spirit and intent of this Chapter, and that the officer, commission, or board would not have granted the authorization to which the condition or limitation pertained except in belief that the condition or limitation was lawful.

Sec. 5.1.12. Transitional Provisions.

A. The purpose of transitional provisions is to resolve the status of properties with pending applications or recent approvals and properties with outstanding violations prior to the effective date of this Chapter.

B. *Processing of Applications.* Applications, re-applications or requests that were submitted in complete form with all required materials and fees before the effective date of this ordinance shall be governed exclusively by the previous Chapter originally enacted on September 16, 2008 (known as

"previous chapter") until and on that date and thereafter exclusively by this Chapter. All development applications, re-applications or requests accepted on or after the effective date of this ordinance shall be subject to and reviewed wholly under the terms of this Chapter.

C. *Approved Project.* Any building, development or structure for which a final building permit was issued before the effective date of this Chapter may be completed in conformance with the issued building permit and other applicable permits and conditions, even if the building, development or structure does not fully comply with provisions of this Chapter. If construction is not commenced and diligently pursued within the time allowed under the original permit or any extension granted, then the building, development or structure must be constructed, completed and occupied in full compliance with the standards and requirements of this Chapter.

D. *Violation Continues.*

1. Any violation in existence prior to the effective date of this Chapter shall continue to be a violation under this Chapter and be subject to penalties and enforcement.
2. If the use, development, construction or other activity that was a violation prior to the effective date of this Chapter complies with the express terms of this Chapter, enforcement action shall cease, except that penalties for violations that occurred before the effective date of this Chapter shall be collected.
3. The adoption of this Chapter does not affect nor prevent any pending or future prosecution of, or action to abate, violations that occurred before the effective date of this Chapter.

E. *Nonconformity.* Any nonconformity in existence prior to the effective date on this Chapter shall also be a nonconformity under this Chapter and shall be regulated by the provisions of Article 3.

F. *Existing Use.*

1. When a use classified as a Special Land Use under this Chapter existed as a Permitted With Approval use or Permitted Use prior to the effective date of this Chapter, that use shall be considered as a legal Special Land Use except as otherwise expressly provided in this Section.
2. When any amendment to this Chapter changed a Permitted Use to a Special Land Use, any use legally established before that amendment shall be considered a legal Special Land Use on and after the effective date of the amendment unless additional development occurs that was not permitted by the previous Chapter or this Chapter, in which case a new Special Land Use approval shall be required.
3. A lawfully established, existing use that is not allowed as a Special Land Use or a Permitted Use in the Zone District in which the use is now located shall be considered a nonconforming use and shall be subject to all applicable regulations of Article 3, including Section 5.12.09. B.2. Use Intensity.

G. *Zone District Conversions.* The Zone District classifications in the 1969 Zoning Ordinance are converted as follows:

Table 5.1.12.G. Zone District Conversions

1969 Zoning Ordinance	District in This Chapter
R-1, R-1A, R-2	LDR, OS, IC
R-3, R-4, R-5	MDR
SR, C-1	NOS
C-2, UBD, TBD, PSC	TBA, C, TOD
C-3	CC, TCC
C-4, I-1, I-2, PID	IT

Table 5.1.12.G. Zone District Conversions	
1969 Zoning Ordinance	**District in This Chapter**
PUD, PRD	PRD
FP	FP

ARTICLE 2. GENERAL PROVISIONS

Sec. 5.2.01. Applicability.

All Zone Districts. The provisions of this Article apply to all Zone Districts unless indicated otherwise. If there is a conflict between this Article and the individual requirements of the Zone District, the Planning Director shall determine which requirements controls, in accordance with Section 5.1.09.

Sec. 5.2.02. General Requirements.

A. *Standards and Requirements.* Standards and requirements for site layout and building placement, building elements, compatible uses, signs, lighting, landscaping and other related measures are considered necessary to promote and strengthen the defined character of city neighborhoods. It has been determined by the Master Plan that neighborhood character contributes to the unique and desirable identity of the city and therefore the measures set forth in this Chapter are necessary and appropriate to promote and strengthen those characteristics.

B. *Main Building and Principal Use.* Except as otherwise specifically provided in this Chapter, no lot may contain more than one (1) main building or principal use, except for groups of multiple-family, retail, office, or other groups of buildings erected under a single approved plan, or developed in a coordinated fashion under multiple approved plans, as an integrated complex, as defined by this Chapter.

Sec. 5.2.03. Alterations, Enlargements and Demolitions.

A. *Alterations and Enlargements.* Existing buildings or structures shall not be modified, converted, enlarged, reconstructed, demolished, moved or structurally altered, except as permitted by this Chapter.

B. *Demolition.*

1. To assure a legal replacement use, existing buildings or structures shall not be demolished in any Zone District unless the request satisfies one (1) of the following:

    a. *Site Plan and Reuse of a Lot.* When a site plan for the redevelopment of a property in any Zone District has been approved pursuant to this Chapter or is permitted by this Chapter, and a Land Use and Development Services (LUDS) or building permit for the redevelopment of the property has been requested.

    b. *Building or Housing Code.* When the demolition in any Zone District has been authorized by Chapter 131 General Building Regulations or Chapter 140 Housing of the City Code, or required by a court or governmental agency or official of competent jurisdiction. Obtaining a building, demolition or other permit does not ensure compliance with this provision.

2. Any requested demolition not meeting the requirements of B.1. above shall require Director Review or approval as a Special Land Use, under the following conditions.

   a. *Nonconforming Lot.* Demolition of structures on a parcel that is nonconforming due to lot width or lot area, and is to be used for an approved accessory use for a Permitted Use on an adjacent property, may be approved by the Director.

   b. *Conforming Lots.* A Special Land Use approval for demolition is required on lots that meet the lot width or lot area of the District unless the property is to be used for an approved accessory use for an adjacent property or use.

   c. If the property is to be used for an approved accessory use for an adjacent property or use, any additional required zoning approval shall be obtained prior to demolition approval.

Sec. 5.2.04. Historic Landmark or Historic District.

A designated historic landmark or a property in a historic district as provided in Chapter 68 Historic Preservation Commission of the City Code, shall comply with the requirements for approval of a Certificate of Appropriateness from the Historic Preservation Commission in lieu of the Site Layout and Building Placement requirements and the Building Elements requirements contained in Article 5, Residential Zone Districts and Article 6, Mixed-Use Commercial Zone Districts.

Sec. 5.2.05. Lot and Yard Requirements.

A. *Measurements.* Unless otherwise expressly stated, distances specified in this Chapter are to be measured as the length of an imaginary straight line joining two (2) described points.

B. *Lot Requirements.*

1. *Minimum Lot and Street Frontage.* Every lot created shall have the minimum lot area, and lot width and lot frontage upon an approved public or private street, as required by this Chapter. Flag lots are prohibited.

2. *Reduction.* No lot, or lots of common ownership, yards, parking areas, or other spaces required by this Chapter shall be reduced below the area or dimensional requirements of this Chapter. If already less than the minimum required under this Chapter, that area or dimension shall not be further divided or reduced. Actions by governmental agencies, such as street widening, shall not be considered reductions.

3. No lot or portion of a lot shall be used to meet the requirements of yard, lot area per unit, residential density, percentage of lot occupancy, or other site requirement for any other existing building or structure of this Chapter, for any other lot.

4. Two (2) or more lots may be combined into a single lot, provided that all lots are within the same Neighborhood Classification and Zoning District and all requirements of Chapter 64, Subdivision Regulations are met. See also Section 5.3.02.B. Contiguous Nonconforming Lots of Common Ownership.

5. *Established Areas.* See Section 5.5.06. for site layout and building placement requirements for lots in established areas.

6. *Administrative Departures.*

   a. New Lots. This Departure applies to lots that contain a Single-Family or Two-Family use in an existing principal structure. A reduction to the required lot area and/or lot width may be granted for all newly created lots, provided the application meets the requirements of Section 5.2.05.B.6.c.

b. Existing vacant lots. This Departure applies to existing lots that do not contain a principal structure. A reduction to the required lot area and/or lot width may be granted to allow for (a) the creation of new lots to be used for Single- or Two-Family use, or (b) the use of an existing vacant lot for Single- or Two-Family use, provided the application meets the requirements of Section 5.2.05.B.6.c.

c. All Administrative Departures will be reviewed by the standards outlined in Section 5.12.16. in addition to the following standards and requirements below:

i. The Administrative Departure may not result in the demolition of any principal household building or structure; and

ii. The lot shall be no less than the minimum lot area and lot width required in Table 5.5.06.A. for a detached Single-Family interior lot, unless accessible from a usable alley, in which case the lot area and lot width may be less than the minimum, but no less than as originally platted; and

iii. Tandem parking may be permitted for detached Single-Family and Two-Family uses on lots thirty-six (36) feet or less; and

iv. A property survey shall be provided to ensure that all site layout and building placement standards can be met. If applicable, the survey shall also show the lot lines of the original plat.

d. An Administrative Departure of not more than three (3) percent of the required lot area of the Zone District may be granted where unusual lot configurations, topography or natural features exist, or where the Departure would be in keeping with the character of the neighborhood.

C. *Building Setbacks and Required Building Lines (RBL).*

1. *Building Setbacks.*

a. Except as noted in C.2, below, when this Chapter provides for a building setback, it is considered to be permissive, in that any portion of the main building may be placed anywhere at or behind the setback line. All setbacks extend for the full width of the lot.

b. *Rear Setback.* Where any lot line exceeds forty-five (45) degrees from being parallel to the front lot line, a line ten (10) feet in length within the lot, parallel to and at the maximum possible distance from the front lot line shall be deemed the rear lot line for the purpose of measuring rear yard setbacks.

c. *Side Setback.* The side setback shall extend from the side lot line between the front setback line and the rear lot line.

2. *Required Building Lines (RBL).*

a. When this Chapter provides for a Required Building Line it is considered as a mandatory placement of the building façade, where the building must be "built to" the required line, except as permitted in Article 5 Residential Zone Districts and Article 6 Mixed-Use Commercial Zone Districts.

b. *RBL Measurement.* RBLs shall be measured from the back of the curb along a public street to the building façade, irrespective of the lot line. RBLs are dependent upon the location of the street curb to avoid discrepancies in varying lot lines and to provide sufficient pedestrian circulation, access, and to maintain a consistent streetscape and street wall.

c. Where a lot line abuts more than two (2) streets, the RBL provisions shall only apply for two (2) streets, as determined by the Director. To designate RBLs, the Director may consider all relevant factors and information, including but not limited to:

i. The existing or the intended character of existing or proposed streets on which the lot has, or is proposed to have, frontage;

ii. The locations of front and corner side property lines on adjacent lots or lots on the opposite side of the street; or

iii. Adjacency to the same or similar land uses.

D. *Lot Widths.*

1. Established Areas. See Section 5.5.06.B. for site placement and building layout requirements for lots in established areas.

2. Lot widths are measured at the front setback line or RBL, as applicable, and the minimum lot width shall be maintained throughout the depth of the lot. Lot width for a corner lot is measured at the horizontal distance between the shorter of the two (2) dimensions of the front lot line.

3. There shall be no less than thirty-six (36) feet between the two (2) side lot lines measured at the required front setback line or required building line of the district in which it is located and the requirements of Sections 5.2.05.B.6 and 5.12.16. are satisfied upon approval by the Director.

4. Minimum Lot Widths for Irregular Lots.

a. There shall be not less than thirty-six (36) feet between the two (2) side lot lines measured at the public or private rights-of-way, except as permitted in Tables 5.5.06.A. and 5.6.07.A. of this Chapter and the requirements of Sections 5.2.05.B.6. and 5.12.16. are satisfied upon approval by the Director.

b. For cul-de-sac lots or other irregular lots, if the minimum lot width at the front setback line or RBL cannot be met, the minimum setback line or RBL shall be moved farther into the lot to the point at which the minimum lot width is met.

5. *Administrative Departures.*

a. *New Lots.* This Departure applies to lots that contain a Single-Family or Two-Family use in an existing principal structure. A reduction to the required lot width may be granted for all newly created lots, provided the application meets the requirements of Section 5.2.05.D.5.c.

b. *Existing vacant lots.* This Departure applies to existing lots that do not contain a principal structure. A reduction to the required lot width may be granted to allow for (a) the creation of new lots to be used for Single- or Two-Family use, or (b) the use of an existing vacant lot for Single- or Two-Family use, provided the application meets the requirements of Section 5.2.05.D.5.c.

c. All Administrative Departures will be reviewed by the standards outlined in Section 5.12.16. in addition to the following standards and requirements below:

i. The Administrative Departure may not result in the demolition of any principal household building or structure; and

ii. The proposed lot shall be no less than the minimum lot width required in Table 5.5.06.A. for a detached Single-Family interior lot; and

iii. If the lot is accessible from a usable alley the lot width may be less than the minimum, but no less than the originally platted lot width, which shall be identified on the survey; and

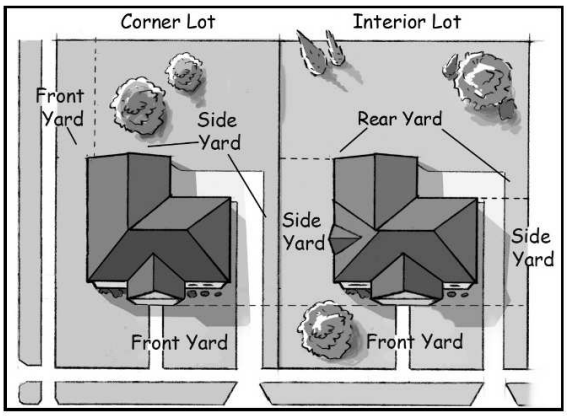
iv. Tandem parking may be permitted for detached Single-Family and Two-Family uses on lots thirty-six (36) feet or less; and

v. A property survey shall be provided to ensure that all site layout and building placement standards can be met.

E. *Yards - Corner, Through, and Waterfront Lots.*

1. *Corner and Through Lots.* Corner and through lots shall have two (2) front lot lines, two (2) front yards, two (2) side yards, and no rear yard. For through lots, the main building or structure shall be oriented toward the predominant frontage based on the established or planned pattern of development, as determined by the Director.

2. Waterfront lots shall have front yards on both the street and waterfront sides, and two (2) side yards.



5.2.05.E. Yards.

F. *Permitted Encroachments into Setbacks and Yards.*

1. *General.* Encroachments permitted by this Section following may be within setbacks or yards. All permitted encroachments are subject to meeting the minimum greenspace requirements for the lot. Other encroachments are permitted under the applicable Sections of this Chapter as noted below, provided the minimum greenspace requirements for the lot are met.

   a. Garages and other accessory structures - see Section 5.2.08.

   b. Driveways - see Section 5.10.03.F.

   c. Fences and walls - see Section 5.2.11.

   d. Landscaping, except as required for clear vision areas of Section 5.2.15.C.

   e. Private sidewalks.

   f. Swimming pools - see Section 5.2.09.

2. *Architectural Elements, Porches and Stoops.*

   a. *Front Yard.*

      i. *Architectural Elements.* Architectural elements may project into the front yard by not more than three (3) feet.

      ii. *Unenclosed Porches and Stoops.* Unenclosed porches and stoops (not including steps) may project into the front yard by no more than ten (10) feet, but shall be no closer than five (5) feet from the front sidewalk. For porches and stoops in Traditional Neighborhoods - See Section 5.5.07.E.3.

      iii. *Balconies.* Upper level balconies may project into a front yard by no more than six (6) feet.

b. *Side Yard.*

i. *Architectural Elements.* Architectural elements may project into the side yard by not more than two (2) inches for each one (1) foot of width of the side yard, except that a chimney may be permitted where the Director determines it will not obstruct light or ventilation. In no case shall an architectural element be permitted within five (5) feet of a lot line.

ii. *Unenclosed Porches and Stoops.* An unenclosed porch or stoop (including steps) may project into the side yard, provided it is at least five (5) feet from the side lot line.

3. *Decks and Patios.*

a. *Interior Lot.*

i. A ground-level deck or patio may be in the side yard, provided it meets the minimum side setback for the Zone District, is set back at least ten (10) feet from the front building façade, and is screened from view of the public right-of-way by landscaping or permitted fencing.

ii. A ground-level deck or patio may be located in the rear yard, provided it is at least five (5) feet from all lot lines.

iii. A deck with a platform over four (4) feet in height may be in the rear yard, subject to rear and side yard building setbacks.

iv. A deck or patio is not permitted within the front yard.

b. *Corner Lot.*

i. A ground-level deck or patio may be in the side yard, provided it is at least five (5) feet from the yard lot lines, and is not in a front yard.

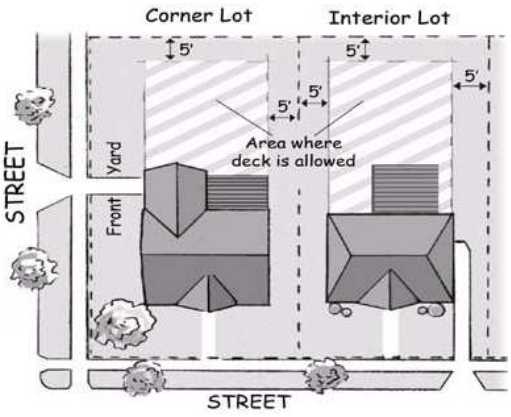
ii. A deck with a platform over four (4) feet high shall meet required side yard setbacks.

c. *Administrative Departure.* An Administrative Departure may be approved to reduce the minimum side or rear setback of a ground-level deck or patio to not less than three (3) feet where there are no detrimental effects on adjacent properties, and where applicable fire safety provisions of the City's building codes are met.

4. *Wheelchair Ramps.*

a. The Director may permit wheelchair ramps used for persons with mobility impairments in a front or rear yard, provided the location does not create a hazard, or impede access for operations related to safety, such as access for fire personnel or equipment. In no case shall a ramp be placed nearer than three (3) feet from any side lot line.

b. *Administrative Departure.* An Administrative Departure may be approved to permit a ramp, or any additional modifications needed, nearer than three (3) feet to the side lot line, where it is demonstrated that no other feasible location is practical.



5.2.05.F.4 Decks and Patios.

5. *Basement Egress Window Wells.* Basement egress window wells are permitted in all yards, provided the following conditions are met:
   a. *Setback.* A window well shall be set back at least three (3) feet from the side or rear lot line, and at least ten (10) feet from the front lot line.
   b. *Front Yard Screening.* When in a front yard, a three (3) foot high landscape or building material screen shall be provided in front of the window well. If screened with a building material, the material shall be compatible with the materials and colors used for the main building.
   c. *Building Code.* The requirements of Chapter 131 of the City Code shall be met.
   d. *Administrative Departure.* An Administrative Departure may be approved to reduce the minimum setback of a window well from a side or rear lot line where the following conditions are met:
      i. The window well is set back a minimum of one (1) foot from any side or rear lot line.
      ii. A clear path to the public way is provided.
      iii. Adequate fall protection to adjacent walking surfaces is provided.
      iv. Adjacent properties will be protected during excavation.
6. *Athletic Courts - Residential Lots.*
   a. *Interior Lot.* An athletic court shall only be in a rear yard and at least seven (7) feet from the rear and side lot lines.
   b. *Corner Lot.* An athletic court may be in a side yard, at least seven (7) feet from the side lot line, but not in a front yard.

G. *Below Grade Features.* Below-grade or underground features shall not extend into any yard, unless otherwise allowed in this Chapter.

H. *Projections into the Public Right-of-Way.* The following projections are permitted, subject to approval of an encroachment permit from the City Engineer.

1. *Balconies.* A balcony with a minimum ground clearance of sixteen (16) feet above finished grade may extend up to five (5) feet over a public sidewalk.
2. *Awnings.* An awning with a minimum ground clearance of eight (8) feet may extend over a public right-of-way.
3. *Canopies.* Canopy support posts shall not be permitted in a public right-of-way unless specifically permitted by Traffic Engineering. See also Section 5.2.18.
4. *Arcades.* An arcade shall be permitted only in the TN-TOD, CC, TCC, and TBA Zone Districts.
   a. An arcade shall be open accessible to the public at all times for its entire length to the street line or publicly accessible open area except for building columns, and unobstructed to a height of not less than twelve (12) feet.
   b. Except for corner lots, an arcade shall have a depth not less than ten (10) feet nor more than thirty (30) feet measured perpendicular to the street line or boundary of the publicly accessible open area on which it fronts, and extend for at least fifty (50) feet, or the full length of the street line or boundary of the publicly accessible open area on which it fronts, whichever is the lesser distance.
   c. On a corner lot, an arcade shall have an area of not less than five hundred (500) square feet and a minimum horizontal dimension of ten (10) feet.

d. No part of the arcade shall be above the traveled portion of the street or publicly accessible open area that it adjoins.

e. No off-street parking spaces, passenger drop-offs, driveways, or off-street loading berths are permitted anywhere within an arcade.

I. *Roof-Mounted and Ground-Mounted Mechanical Equipment* (e.g. air conditioning condensers; swimming pool and spa heaters; pumps and filters; transformers and generators; and similar equipment).

1. *Residential Zone Districts.*

a. All ground mounted mechanical equipment shall be incorporated within the footprint of a main or accessory structure, or placed in a side or rear yard at least three (3) feet from any side or rear lot line, and be fully screened from view from a public street and adjacent properties using one (1) of the following options:

i. Landscape material which provides a minimum of fifty (50) percent year round opacity;

ii. A living wall or vertical garden which is covered by vegetation to provide a minimum of fifty (50) percent year round opacity; or

iii. A decorative wall or fence that incorporates at least one (1) of the primary materials and colors of the nearest wall of the main building and that provides eighty (80) percent year round opacity.

b. A wall or screen shall be at least one (1) foot taller than the height of the mechanical equipment being screened, provided the screen need not exceed a height of twelve (12) feet.

c. The screening requirements shall not apply if it is demonstrated that the only feasible location for screening would impede the functioning of solar, wind or geothermal energy equipment or other similar systems.

d. To the maximum extent practicable utility boxes shall be oriented with access doors facing away from the street right-of-way or adjacent property.

2. *All Other Zone Districts.* All mechanical equipment shall be incorporated within the footprint of a principal or accessory structure or mounted on the roof structure.

a. All roof-mounted mechanical equipment (including, but not limited to, HVAC equipment, exhaust fans, cooling towers, and related guard rails or safety equipment) shall be fully screened from view from a public street at ground level and, to the extent practicable, from adjacent buildings of similar height. Screening shall be provided by one (1) or more of the following options.

i. A parapet wall or similar feature that is an integral part of the building's architectural design;

ii. A screening structure erected around the equipment that incorporates at least one (1) of the primary materials and colors on a street-facing façade of the main building and designed to assist in buffering noise;

iii. A living wall or vertical garden which is covered by vegetation to provide a minimum of fifty (50) percent year round opacity.

b. The parapet wall or screening structure shall be fully opaque year round and shall be at least as tall as the height of the mechanical equipment being screened provided the screen need not exceed a height of twelve (12) feet.

3. *Administrative Departures.*

   a. Mechanical equipment may be placed in an alternate area, including ground mounted equipment, in any Zone District where it is demonstrated that the required location is not feasible, and provided the unit is properly enclosed or screened with vegetation from view of a public street.

   b. Alternate locations for solar, wind or geothermal energy equipment or systems may be permitted if it is demonstrated that the required location or screening would impede their proper functioning.

(Ord. No. 2022-10, 4-12-22; Ord. No. 2022-17, 6-21-22; Ord. No. 2022-30, §§ 1, 2, 8-23-22; Ord. No. 2025-14, § 1, 7-29-25)

Sec. 5.2.06. Building Height Measurements and Exceptions.

A. *Measurement.*

1. *Stories.* Where specified in stories, building height shall be measured in the number of stories entirely above the finished grade for any elevation fronting on a public street, including habitable attics, half-stories, and at-grade structured parking.

   a. Unless otherwise specified, story height is measured in feet between the floors of a story to the floor of the story above it.

   b. For the uppermost story, story height shall be measured from the floor of the story to the eave line on pitched roofs and to the tallest point of the roof deck on parapet and flat roofs.

   c. A mezzanine level counts as a story.

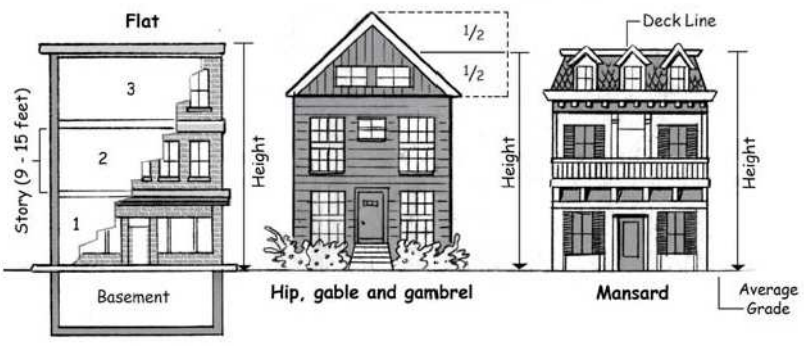
   d. For the purposes of this Chapter, the usable floor area of a half story is only that area having at least four (4) feet clear height between floor and ceiling.

   e. Unless otherwise specified, one (1) story shall be measured as not less than nine (9) feet nor more than fifteen (15) feet. The following shall be excluded:

      i. Spaces completely below the finished grade, such as basements, cellars, crawl spaces, sub-basements, and underground parking structures; and

      ii. A story shall not be counted as a story when more than fifty (50) percent of its cubic content is below the finished grade of the adjoining ground.

2. *Height.* When measured in feet, building height shall be measured as the vertical distance from the finished grade adjacent to the structure to the highest point of a flat roof; to the deck line of a mansard roof; and to the average height between the eave and ridge of the highest roof section for a gable, hip or gambrel roof.



5.2.07. Building Height (Measurement).

3. *Average Grade.* See Section 5.16.02.G. for definitions of

grade. When the terrain is sloping, the finished grade shall be the average of the elevation of the ground for each side of the structure, as measured six (6) feet from the exterior walls of the structure.

B. *Exceptions.* The height requirements of all Zone Districts shall be subject to the following exceptions: parapet walls not exceeding four (4) feet in height, chimneys, cooling towers, elevator bulkheads, fire towers, gas tanks, utility penthouses, stacks, stage towers or scenery lofts, monuments, cupolas, domes and spires and necessary mechanical appurtenances.

C. *Airport Zoning Act.* Proposed buildings or structures or modification to existing buildings or structures with a height greater than one hundred (100) feet require a permit from the Kent County Department of Aeronautics, pursuant to the Airport Zoning Act, Public Act No. 23 of 1950.

Sec. 5.2.07. Single-Family Dwellings, Detached.

A. A Detached single-family dwelling and any additions or alterations thereto, other than manufactured housing in a licensed manufactured housing community, shall meet the requirements of this Section in addition to all other regulations of this Chapter.

B. *Conversion.*

1. An existing detached single-family dwelling exceeding five thousand (5,000) square feet in gross floor area may be converted to permit additional dwelling units, provided the Director first determines that the size of the structure is substantially out of character with other houses within a three (3) block radius and a Special Land Use application is approved.

2. In considering the Special Land Use, the Planning Commission shall:
   a. Determine the appropriate number of units to be permitted; and
   b. Ensure that adequate parking as required by Article 10 can be provided in a location that does not create an adverse effect on adjacent properties.
3. *Exception.* Notwithstanding Section 5.2.07.B.1. Single-Family dwellings on corner lots may be converted to two-family dwellings as a Permitted Use, subject to applicable Site and Building Placement Standards and Building Element Requirements of Article 5.

C. *Minimum Dimension.* Each dwelling shall have a minimum of fourteen (14) feet in any horizontal dimension.

D. *Minimum Floor Area.* Each dwelling shall have a minimum gross floor area of seven hundred fifty (750) square feet.

E. *Neighborhood Classification.* The dwelling shall comply with the requirements of this Section and shall be generally compatible in character, design and appearance to other residential dwellings within the same Neighborhood Classification.

F. *Primary Entrance.*

1. The primary entrance for the main building shall have a step, stoop, or porch which is attached to the building foundation, or provided with a separate four (4)-inch deep masonry foundation. A stoop or landing shall project at least three (3) feet from the building (not including steps). A porch shall project at least six (6) feet from the building (not including steps).
2. Section 5.2.05.F.4 provides regulations related to handicap ramps and other modifications to a dwelling's primary entrance for housing intended to accommodate persons with mobility impairments.

G. *Manufactured House.* If the dwelling is a manufactured house, it shall:

1. Be installed pursuant to the manufacturer's setup instructions and shall be secured to the premises by an anchoring system or device complying with the rules and regulations of the Michigan Manufactured Home Commission and shall have a foundation wall as required in this Section.
2. Be installed with the wheels removed and not have any exposed towing mechanism, undercarriage or chassis.
3. Have all construction and plumbing, electrical apparatus and insulation within and connected to the manufactured house be of a type and quality conforming to the Manufactured Home Construction and Safety Standards as promulgated by the United States Department of Housing and Urban Development, 24 CFR 3280, as amended, and comply with all applicable building and fire codes.

(Ord. No. 2018-69, § 1, 12-18-18; Ord. No. 2019-09, § 1, 3-26-19)

Sec. 5.2.08. Accessory Structures.

A. *Permits.* All accessory structures shall require a Zoning Permit prior to construction.

B. *Mixed-Use Commercial Zone Districts, Neighborhood Office Service District, and Special Districts.*

1. Accessory structures shall comply with applicable setback and height restrictions specified for the Zone District in which the accessory use or structure is located.

2. Not more than one (1) detached accessory building is permitted per lot. The area of the permitted accessory building shall not exceed twenty-five (25) percent of the ground level gross floor area of the main building.

C. *Principal Use Required.*

1. Unless otherwise expressly allowed in this Chapter, accessory structures shall be permitted and maintained only in conjunction with a principal use and a main building or structure on the same lot.

2. Accessory structures may only be constructed at the same time as or after the construction of the main building or structure on the same lot.

3. If the main building or structure is destroyed, demolished or removed, any accessory buildings or structures on the same lot shall be removed within sixty (60) days, unless a permit for construction of a new main building has been approved.

D. *Public Right-of-Way or Easement.* In no instance shall an accessory structure be within a public right-of-way or easement, unless otherwise permitted in an easement agreement.

E. *Architectural Compatibility.*

1. Any accessory structure that is one hundred twenty (120) square feet or larger shall be similar in architecture to the main building in its form and slope of roof. Exterior finish materials shall be those materials customarily used for residential construction, and shall be similar in placement and orientation to the main building.

2. No accessory structure shall be constructed with a tubular frame construction or with canvas, plastic film, or similar exterior material that does not provide long-term durability.

F. *Carport.* A carport shall comply with the location requirements applicable to either an attached or detached accessory structure.

G. *Attached Structures.* An accessory structure which is structurally attached to a main building shall be subject to all setback regulations applicable to the main buildings. In addition, attached garages within the Traditional Neighborhood (TN) and Mid-20th Century Neighborhood (MCN) Zone Districts shall be at least five (5) feet behind the façade of the main building.

H. *Residential Accessory Buildings.*

1. *Single-Family and Two-Family Dwellings.*

   a. One (1) detached and one (1) attached accessory structure is permitted.

   b. Except as permitted in Section 5.9.03, and as noted below, the height and combined gross floor area for all attached and detached accessory structures shall not exceed the dimensions based on the requirements of Table 5.2.08.G.1.

Table 5.2.08.G.1. Residential Accessory Structures for Single- and Two-Family and Non-Residential Uses

Lot Area (sq. ft.)	GFA (sq. ft.) Total	Height (ft.)
Traditional Neighborhood (TN)		
Less than 5,000	624	14
5,000—7,499	832	14
7,500—10,999	936	14
11,000—21,999	1,000	16
22,000 or more	1,200	16
Mid-Century Neighborhood (MCN)		

Table 5.2.08.G.1. Residential Accessory Structures for Single- and Two-Family and Non-Residential Uses		
Lot Area (sq. ft.)	**GFA (sq. ft.) Total**	**Height (ft.)**
Less than 5,000	624	14
5,000—7,499	832	14
7,500—10,999	936	14

Table 5.2.08.G.1. Residential Accessory Structures for Single- and Two-Family and Non-Residential Uses		
Lot Area (sq. ft.)	**GFA (sq. ft.) Total**	**Height (ft.)**
11,000—21,999	1,000	16
22,000 or more	1,200	16
Modern Neighborhood (MON)		
Less than 5,000	832	14
5,000—7,499	936	14
7,500—10,999	1,000	16
11,000—21,999	1,200	16
22,000 or more	1,500	16
All Neighborhoods		
Lots of 1 acre or more	1,200 (each structure) by Administrative Departure (see Section 5.2.08.G.3.)	16

2. *Multiple-Family Uses.*

   a. Accessory structures may exceed the gross floor area of Table 5.2.08.G.1. for total garage or carport space up to the necessary GFA to meet the required number of parking spaces in Article 10. All other requirements of this Chapter shall be met.

   b. Administrative Departures. An Administrative Departure may be approved to permit additional GFA for garage or carport space for multiple-family uses above the minimum requirements of Article 10 for up to two (2) spaces per dwelling unit, provided the applicant can demonstrate a need for the space and all other requirements of this Chapter are met.

I. *Residential Detached Structures.*

1. The structure shall be placed at or behind the front wall of the main building, and at least six (6) feet from the main building, excluding decks and patios. The structure shall be at least three (3) feet from a side lot line or another accessory structure, excluding decks and patios.

2. Interior lots.

   a. If less than sixty (60) feet from the front lot line, a detached accessory structure shall not encroach into the required front yard and side yard setbacks.

   b. If sixty (60) feet or more from the front lot line and no nearer the front lot line than the main building, the wall(s) of a detached accessory structure shall be a minimum of three (3) feet from the side and rear lot lines.

   c. City building codes require fire safety measures if less than five (5) feet from the lot line.

3. Corner, Through and Waterfront Lots.

   a. Corner Lots. Detached accessory buildings shall not be within a front yard and shall be set back a minimum of three (3) feet from a side lot line.

   b. Through and Waterfront Lots.

      i. Side yard setback requirements shall be met.

      ii. For through lots, front yard setbacks shall be met on the frontage deemed by the Director to be the less predominant frontage as provided Section 5.2.05.E.2.

      iii. For waterfront lots, all front yard setbacks shall be met.

4. Alley. An accessory structure shall be at least three (3) feet from an alley right-of-way. See also Section 5.10.03.F. regarding driveways.

5. The following shall not be counted toward the number or area of permitted detached accessory structures:

   a. Trellises, pergolas arbors or other similar structures;

   b. Gazebos that are two hundred and fifty (250) square feet in area or smaller;

   c. Landscape features, such as small ponds, outdoor kitchens, spas, and fire pits;

   d. Sport courts;

   e. Swimming pools or hot tubs and changing rooms that are two hundred and fifty (250) square feet in area or smaller;

   f. Solar panels;

   g. Decks, patios; and

   h. Other similar structures as determined by the Director.

6. Administrative Departure. An Administrative Departure may be approved to allow the wall(s) of a detached accessory structure to within one (1) foot of the side or rear lot line, where topography, natural features, or other site constraints exist, where there are no detrimental effects on adjacent properties, and where applicable fire safety provisions of the City's building codes are met. A property survey and scaled site plan shall be submitted.

J. *Additional Accessory Structures.*

1. In addition to the accessory structure(s) provided for in this Section, one (1) accessory structure, such as an enclosed play structure or storage structure, of one hundred twenty (120) square feet or less and up to fourteen (14) feet high may be permitted in the rear yard on a lot with a residential use. A setback of at least three (3) feet from any lot line shall be provided.

2. For community gardens and other similar uses, one (1) accessory structure of one hundred twenty (120) square feet or less and up to fourteen (14) feet high may be erected for storage of supplies and materials related to the use. An additional structure of the same size and height may be added for properties exceeding three (3) acres. The structure(s) shall meet all setback requirements of the Zone District.

K. *Prohibited Structures.*

1. No mobile home, trailer, vehicle, tank, boat, container, railroad car, dumpster, barrels, crate, furniture, tent, junk object or salvage materials or similar items shall be used as an accessory structure or storage structure.

2. Living or sleeping quarters, temporary or permanent, in an accessory structure or other building (except as an Accessory Dwelling Unit as provided in Section 5.9.03), travel trailer, motor home or other recreation vehicle, auto chassis, boat or portable building, are prohibited.

L. *Minimum Greenspace.* Accessory structures are subject to minimum greenspace calculations as established within each Zone District."
(Ord. No. 2018-32, § 1, 6-5-18)

Sec. 5.2.09. Swimming Pool Placement.

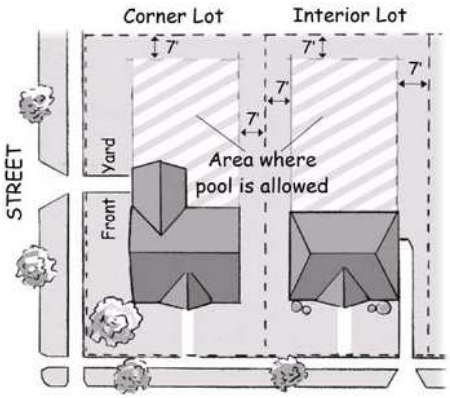
A. In addition to the provisions of this Section, all applicable requirements of Chapter 131 General Building Regulations shall apply.

B. *Residential Lots.*

1. *Interior Lots.* A swimming pool shall only be in the rear yard, and the pool wall/edge set back at least seven (7) feet from the rear and side lot lines.

2. *Corner Lots.* A swimming pool may only be in the side yard, with a setback of at least seven (7) feet from the pool wall/edge to a side lot line, and no nearer to a street than the main building.

C. Patios, decks, concrete surrounds, or the like shall comply with the setback requirements of Section 5.2.05.F.3.



5.2.09.B. Swimming Pool Placement

Sec. 5.2.10. Arbors and Trellises.

A. Arbors, trellises, pergolas and similar structures may be in any yard provided they comply with clear vision requirements and are at least three (3) feet from front and side lot lines.

B. Arbors, trellises and pergolas may not be higher than six (6) feet in the front yard or fourteen (14) feet in other yards, and set back at least five (5) feet from the side or rear lot lines.

Sec. 5.2.11. Fences and Walls.

A. *Permits.* All fences and walls higher than thirty (30) inches shall require a Zoning Permit.

B. *Requirements.*

1. *Workmanship, Materials, and Maintenance.*

   a. Walls and fences shall be constructed using quality workmanship.

   b. Walls shall be made of masonry, decorative block, poured concrete, brick, stone or other high-quality, appropriate material. The material used shall be compatible with material used in construction of the main building.

   c. No fence or wall shall be left in an unfinished state, such as openings on top of walls, uncapped fence posts (unless so designed), or other similar condition.

   d. The finished side of a fence shall face outward toward abutting lots and rights-of-way.

   e. Wrought iron or decorative aluminum fences shall not have exposed pointed ends, but may have finials with flat ends.

   f. Fences shall be made of ornamental metal, rot-resistant wood, chain link or other high-quality, durable materials.

   g. Densely landscaped areas, such as hedges and closely spaced bushes or other plant materials, may be considered a fence when they have the effect or accomplish the purposes normally associated with fences, such as creating privacy or separation. See Section 5.11.12. Landscape Buffers.

h. Maintenance. Walls and fences shall be maintained in good repair and in safe and attractive condition, including but not limited to replacement of missing, decayed or broken structural and decorative elements with the same materials and removal of graffiti.

i. Prohibited Material.

i. Chain link fence material is not permitted in a front yard unless otherwise permitted in this Section.

ii. Chain link fences with slats are not permitted unless approved by the Planning Director and only where the fence location will not be generally visible from the public right-of-way.

iii. Unless otherwise required by a public entity or utility to protect power, food or water supplies, barbed, razor, concertina, electrified, or other similar wire is not permitted.

iv. In the SD-IT District an additional two (2) additional feet of height to accommodate barbed and similar wire fencing is permitted, not to exceed a maximum or overall height of ten (10) feet and only in the side and rear yard.

2. *Front Yard Fences.*

a. *Residential Zone Districts.* The first five (5) feet of the side yards of a lot shall comply with the fence and wall requirements for a front yard in Table 5.2.11.C. where the front setback is ten (10) feet or less.

b. *Non-Residential Uses.* Any fence in a front yard of a non-residential use shall consist of a decorative aluminum or wrought iron picket fence.

c. *Waterfront Lots.* The area of a waterfront lot between the main building and the natural body of water is a front yard per Section 5.2.05.E. and shall follow the requirements for front yard fences, except that a solid fence, wall or screening of any kind shall not be permitted in this yard area.

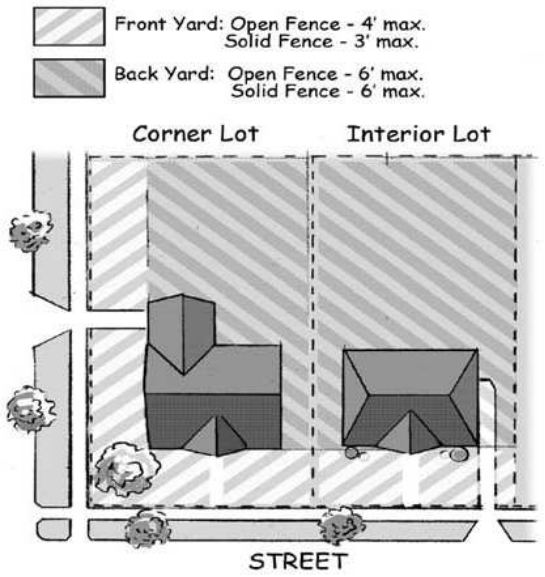
3. *Clear Vision Areas.* No fence, wall, screen or planting material shall be erected or maintained in any location that shall obstruct the vision of motorists at street intersections or driveways, per Section 5.2.15. of this Chapter.

4. *Setbacks and Right-of-Way.* Fences shall be outside of the public right-of-way and set back at least one (1) foot from the right-of-way line. Fences may otherwise be on the property line.

5. *Vacant Lot.* The placement of a fence or wall on a vacant lot shall be permitted. The requirements for walls and open fences shall apply. The requirements of Table 5.2.11.C shall be met when a fence or wall is erected between the lot line and the required setbacks of the District.

6. *Buried Electronic Fences.* Electronic fences buried beneath the ground are permitted in all Zone Districts outside of public rights-of-way.

C. *Maximum Height.* Height shall be measured from grade at the lowest point within three (3) feet of the fence or wall, perpendicular from its plane. Height shall be measured from the established grade line to the highest point, including posts and finials. The use of a berm or other feature to artificially increase height is prohibited.



5.2.11.C. Maximum Fence Height.

Table 5.2.11.C. Maximum Fence and Wall Height

Maximum Height by Type (ft.)		Residential Uses[6]		Non-Residential and Other Uses[5]	
		Yards			
		Front	Side/Rear	Front	Side/Rear
Open fences[1]		4	6	4	6
Solid fences and walls[2]		3	6	3	6
Retaining wall[3]		3	8	6[3]	10
Parking lot screen along ROW[4]	Minimum	3		3	
	Maximum	4		4	

[1]Open fences shall be considered chain link (side/rear yard only), aluminum or wrought iron or other decorative metal fence, as well as picket or board fence with spacing between boards equivalent to the board width of that fence.

[2]Solid fences and walls are constructed of opaque materials and block the passage of light. An Administrative Departure is required to permit chain link fences with slats.

[3]Retaining walls may be tiered with separate spacing equivalent to the height of each installed wall section (e.g. wall height is three (3) feet, spacing to next wall shall be three (3) feet) to allow for the planting of vegetation. A single row of shrubs with a maximum on-center spacing of five (5) feet shall be located at the base of a retaining wall that is greater than three (3) feet tall within the front yard. Shrubs shall be a minimum of thirty (30) inches at the time of planting and at least four (4) feet high within four (4) years. Climbing plants, such as ivy may be permitted as an alternative with Director approval.

[4]See Section 5.11.11. for parking lot screening requirements.

[5]See Section 5.7.04.E. for required screening of outdoor storage in the SD-IT District, as well as Section 5.2.11.B.1. Prohibited Materials.

[6]See Section 5.2.11.B.2. for waterfront lots.

D. *Administrative Departures.*

1. The height, opacity and retaining wall requirements of this Section may be modified where an adequate clear vision area is present, no detriment to neighboring properties would be created and it is clearly demonstrated that due to topography, natural features, lot configuration or other site-related issue that the requirements of this Section cannot be satisfied.
2. In Mixed-Use Commercial Zone Districts, two (2) feet may be added to the maximum fence height in side or rear yards where it is demonstrated topography, natural features, lot configuration or security makes the additional height necessary and would not be detrimental to neighboring properties.
3. Vinyl coated chain link fencing may be permitted in the front yard of a property in a SD-IT or other non-residential Zone District where the fence would not be visible from a public right-of-way or materially affect the character of a neighborhood.

(Ord. No. 2018-32, § 2, 6-5-18)

Sec. 5.2.12. Repair and Storage of Vehicles in Residential Zone Districts.

A. *Repair.* In all residential Zone Districts, mechanical work and repair of motor vehicles, boats, travel trailers, snowmobiles, recreational vehicles or any other similar vehicles, licensed to, registered in the name of, and solely for the personal use of the dwelling occupant is permitted with the following conditions:

1. Not more than one (1) vehicle shall be under repair at any given time.
2. There shall be no outside storage of vehicle parts or equipment.
3. Repair activities shall not create excessive noise, vibration, odor or other nuisances to neighboring properties.

B. *Outdoor Recreational Vehicle Storage.*

1. *Number Permitted.*
   a. Outdoor storage or use of one (1) operable recreational vehicle, not exceeding a length of twenty-five (25) feet (excluding the hitch, bumper and other towing attachments), is permitted within a Residential Zone District in accordance with this Section.
   b. One (1) additional operable vehicle shall be permitted on any lot over twenty-two thousand (22,000) square feet.
2. Recreational vehicle storage shall only be permitted on a lot on which a principal use is present.
3. *Location.*
   a. Except as expressly provided in this Section, vehicle storage shall only be in the rear yard. The vehicle may be stored in the side yard if storage in the rear yard is not possible on an interior lot because of specific conditions related to the lot, such as lot size, topography, or other natural features. Vehicles shall not be closer than four (4) feet from the side lot line and shall be screened from the adjacent property by a six (6) foot high solid fence or hedge.
   b. On corner lots, the recreational vehicle may be parked or stored in a side yard no closer than four (4) feet from the side lot line, provided it is not closer to a street than the main building, is not in a front yard, and is screened from the adjacent property by a solid fence or hedge six (6) feet in height.
4. One (1) recreational vehicle may be parked on a driveway from May 1 through October 31, provided the vehicle is maintained in good condition, is parked a minimum of six (6) feet from

any structure on an adjacent property, is at least fifteen (15) feet from the front lot line and clear vision for pedestrians and vehicles is otherwise maintained, and is not being occupied or repaired.

C. *Commercial Vehicles.* No commercial vehicle shall be parked or stored on any property in a Residential Zone District unless within a completely enclosed building, except that one (1) commercial vehicle of three-quarter (¾) ton size or smaller may be parked in a residential driveway. Commercial vehicles are permitted to park temporarily while engaged in the delivery, pickup or service to the subject property.

Sec. 5.2.13. Commercial Waste Receptacles and Enclosures.

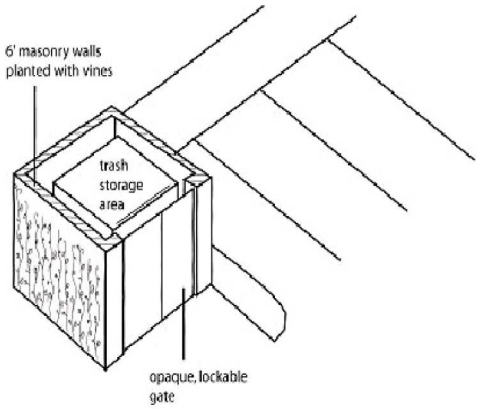
A. *Applicability.* The requirements of this Section shall apply to all properties using a receptacle, other than a residential waste container, that is used for the purpose of waste removal, recycling, or reuse of household waste, household goods, clothing, or similar materials.

B. *Enclosure.*

1. All outdoor waste, recycling and compost receptacles, including grease barrels, shall be enclosed on three (3) sides and screened. The fourth side of the enclosure shall consist of a gate, made of wood, vinyl, or other high quality material, as determined by the Director. If the waste receptacle is a dumpster, it shall have an enclosing lid or cover which shall remain closed when not in use.
2. Residential compost receptacles shall be subject to the provisions of Section 9.108 of the City Code.

C. *Materials.* The enclosure shall be constructed of brick or decorative textured block wall to recognize the permanence of the structure, reduce maintenance requirements and lessen the opportunity for graffiti or vandalism. The enclosure shall be consistent with the building materials of the main building. Steel or concrete bollards shall be installed to assist in the positioning of dumpsters and to protect the enclosure.

D. *Size.* The waste receptacle base shall be at least nine (9) feet by six (6) feet in area, constructed on six (6) inches of reinforced concrete pavement. The base shall extend six (6) feet beyond the waste receptacle pad or gate to support the front axle of a refuse vehicle. The enclosure shall have a minimum height of six (6) feet or one (1) foot above the height of the waste receptacle, whichever is greater. The enclosure shall have at least three (3) feet of space on each side of the waste receptacle.



5.2.13. Waste Receptacles & Enclosures

E. *Placement.*

1. *Preferred placement.* When possible, the back side of the waste receptacle enclosure should be placed against the building, which may act as one (1) side of the enclosure.
2. *Front yard.* Waste receptacles and enclosures shall not be placed in the front yard.
3. *Rear and side yards.* Waste receptacles and enclosures shall be in the rear or side yard and not closer than three (3) feet from the rear or side lot line, unless otherwise approved by the Director where no other practical location is present.

4. *Residential use adjacent.* Waste receptacles and enclosures shall be placed a minimum of twenty (20) feet from an adjacent residential use.

5. *Landscape Buffer.* A waste receptacle enclosure shall not be placed within a required landscape buffer area, as described in Section 5.11.12.

F. *Access.* Waste receptacles shall be easily accessed by refuse vehicles without the potential to damage vehicles parked in designated parking spaces or interfering with the normal movement of vehicles on or off the site.

G. *Administrative Departure.* An Administrative Departure for enclosure materials and the placement of an enclosure may be granted. In granting a waiver from the placement requirements, the Director shall take into consideration the proximity of adjacent residential structures, topography, natural features, existing screening or other barriers, and operational requirements for trash removal that would mitigate potentially adverse effects.

Sec. 5.2.14. Building Transparency.

A. *Clear Glass.* Glass in windows, doors, and display windows shall be transparent to insure a safe, pedestrian-oriented environment. Glass shall be clear or lightly tinted and have a measurement of seventy (70) percent or greater VLT. A glass sample must be provided with the performance values listed on the sample as needed for project review.

B. *Measurement.* Transparency requirements shall apply as follows:

1. For non-residential ground-floor uses, the area of the front and sides of a building between two (2) and eight (8) feet above the sidewalk (or ground level adjacent to the building if a sidewalk is not present) shall be used to measure transparency.

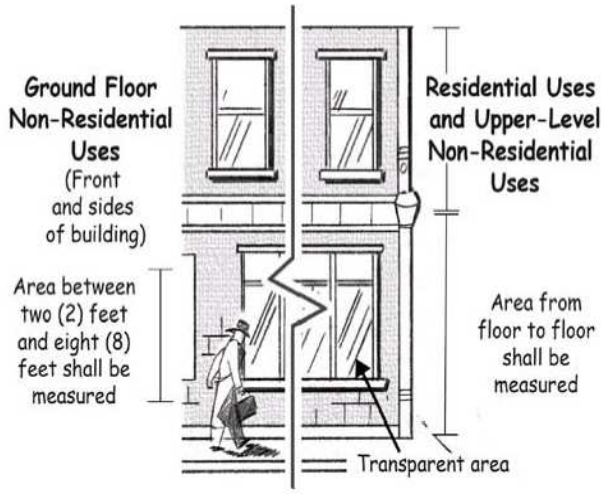
2. For residential uses and for upper level non-residential uses, the area from floor to floor shall be used to measure transparency. For single-family and two-family dwellings, main entrance doors (not including storm doors) which contain a window shall be counted toward the minimum transparency requirement for the building wall facing the street.

3. Only those windows and door areas arranged so that active uses within the building are visible from or accessible to the street shall be counted toward meeting transparency requirements. Enclosed product display windows and other similar elements that do not permit clear visibility into the interior of the building shall be omitted from transparency calculations.

C. *Reflective Surfaces.* The use of highly reflective surfaces, including reflective glass and mirrors, is prohibited on the ground floor.

D. *Security Shutters.* Exterior steel barriers, hurricane curtains and other security devices are not permitted on the exterior of the building. If located inside a building, they may not be visible from the sidewalk or public right-of-way during business hours.

E. *Parking Areas.* A minimum of six (6) square feet of clear window area for every forty (40) linear feet or portion thereof of the wall(s) of a building that faces a parking area shall be required. The window shall be placed so that the parking area may be readily viewed from inside the building.



5.2.14.B. Transparency Measurement

F. *Stairwells.* Where stairwells are introduced to the outer building wall of a development, the exterior of the stairwell and exit door shall be at least seventy (70) percent transparent.

G. *Cash Register Viewing Window.* The cash register for a convenience/package goods store use shall be clearly visible from the street. The viewing window shall be at least twenty (20) square feet in size and consist of clear glass. No signs shall be posted on the viewing window.

H. *Exceptions.* Transparency requirements do not apply to portions of structures in assembly area of theaters, auditoriums, religious institutions, and similar uses, provided that the building wall is enhanced by architectural detailing, artwork, landscaping or similar features. Façade variation requirements contained elsewhere in this Chapter shall be met.

I. *Administrative Departures.*

1. Administrative Departures may be granted for any requirement of this Section.

2. Approved Administrative Departures may be required to provide mitigation measures such as the addition of architectural elements, display windows with a minimum 12-inch depth, a green wall or landscaping.

3. Administrative Departures may be granted where:

    a. It is demonstrated by the applicant that transparency would be significantly detrimental to the operation or security of the proposed use;

    b. Sloping grades would make the introduction of windows impractical;

    c. All sides of a building are adjacent to the public right-of-way and/or an urban open space;

    d. Any side of a building abuts an outdoor service area, such as loading spaces, trash removal operations, ground level mechanical facilities, or similar use; or

    e. A building that has a side yard setback less than five (5) feet which abuts an interior lot and transparency requirements are in conflict with the City's building codes.

Sec. 5.2.15. Clear Vision Areas.

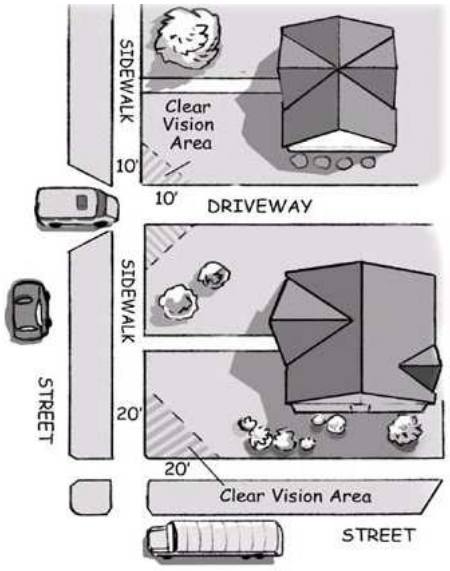
A. *Requirement.* Clear vision areas are required in locations where an unobstructed view of approaching traffic is necessary for the safety of pedestrians, bicyclists and drivers. A clear vision area is typically, but not exclusively, a triangular area at the intersection of two (2) streets, or a street and a driveway; however, clear vision areas may be required at other locations identified in this Chapter and in Chapter 51 Streets, Article 8 of the City Code.

B. *Measurement.* At the intersection of two (2) streets or the intersection of a street and a driveway, the required clear vision area shall be established as follows:

1. *Street Corners.* For streets, twenty (20) feet along each lot line starting at the intersection of the lot lines, and connected by a straight line to form a triangular area. In the case of a rounded corner, the measurement shall be taken from the intersection of the front lot lines extended.
2. *Driveways.* For driveways, ten (10) feet along the lot line and the driveway starting at the intersection of the lot line and the closest edge of the driveway, and connected by a straight line to form a triangular area.
3. *Other Required Areas.* For other required clear vision areas, refer to the standards established in Chapter 51, Article 8 of the City Code.

C. *Landscaping or Structures.*

1. No plantings, signs, fences, walls or other structures exceeding thirty (30) inches in height shall be established or maintained in clear vision areas, except as otherwise allowed in this Chapter or in Chapter 51, Article 8 of the City Code.
2. The Traffic Engineering Department may require a reduction in the height of any screening improvement or a different location of a new building or structure otherwise required in this Chapter to ensure an adequate clear vision area for driveways and streets. These limitations shall be required only for that portion of the building, structure or screening improvement necessary to provide an adequate clear vision area.



5.2.15. Clear Vision Areas.

D. *Administrative Departure.* A new building or structure may be located within a clear vision area, provided the Traffic Engineering Department concurs with the findings of an independent engineering study provided by the applicant that demonstrates that the siting of the new building or structure allows proper stopping sight distance as defined in A Policy on Geometric Design of Highways and Streets, as amended, by the American Association of State Highway and Transportation Officials (AASHTO).

Sec. 5.2.16. Street and Intersection Widening.

Any project that would widen a street or intersection within a Street Conservation Area shall be submitted to the Planning Commission for review and recommendation prior to final authorization by the City Commission in accordance with Administrative Policy 97-01 Street and Intersection Widening - Planning Commission Review Procedures.

Sec. 5.2.17. Essential Services.

A. *Applicability.* Essential services shall be permitted in all Zone Districts subject to Director Review to determine that the yard, parking, landscaping and screening and other requirements are met, and are designed to be compatible with surrounding uses.

B. *Authority.* Accessory facilities, which are determined by the Director, Public Works Director and City Engineer to be necessary in support of essential services, may be permitted in any Zone District.

C. *Concealed Enclosure.* The outdoor enclosure of above-ground essential service utilities shall be screened using a permanent brick or decorative textured block wall to recognize the permanence of the new infrastructure, reduce maintenance requirements and lessen the opportunity for graffiti or vandalism.

D. *Administrative Departure.* An Administrative Departure may be granted and alternative enclosure or screening materials used in the operation of the utility would be adversely affected by this requirement.

Sec. 5.2.18. Outdoor Canopies.

A. *Design.*

1. A canopy may be either attached or detached from the main building.
2. A canopy shall have an architectural and design treatment, including materials and colors, which is substantially similar to the main building. A canopy shall use a similar roof form, pitch, and materials in order to resemble the roof covering of the main building. Any supporting columns shall be coordinated with the design of the main building.
3. Except as permitted in Section 5.9.24., Outdoor Seating Areas, a canopy shall not cover architectural details, transparency or the expression line of the main building.
4. Except as otherwise permitted in Section 5.9.24., Outdoor Seating Areas, a canopy structure shall not be enclosed.
5. If any part of the canopy is illuminated, highly reflective material shall not be installed on the underside of the canopy.

B. *Height.* A canopy shall have a minimum ground clearance of eight (8) feet over public sidewalks and a minimum ground clearance of fourteen (14) feet over any vehicular driveway or parking area. A canopy shall not exceed the height of the main building.

C. *Setback/RBL Requirement.* A canopy structure shall comply with all minimum building setback requirements or Required Building Line applicable to the main building.

D. *Sides.* Each side of a pump canopy shall be considered a separate façade.

E. *Lighting.* See also Section 5.2.19. Outdoor Lighting.

1. All lighting on the underside of a canopy shall be fully recessed.
2. No portion of any canopy may be externally illuminated.
3. Fuel station canopy. A maximum of twenty-five (25) percent of a fuel station canopy visible from a public street may be internally illuminated.

F. *Signs.* Signs on canopies are subject to the requirements of Article 15.
(Ord. No. 2019-30, § 1, 7-23-19)

Sec. 5.2.19. Outdoor Lighting.

A. *Purpose.* The purpose of this Section is to provide reasonable regulations to direct the location, design, illumination level and use of outdoor lighting to minimize its undesirable effects. Specifically, this Section is intended to promote the public health, safety and general welfare of the City of Grand Rapids by:

1. Maintaining safe night-time driver performance on public streets by minimizing both brightly lit surfaces and lighting glare;
2. Promoting lighting that provides security but protects the privacy of adjacent properties;
3. Allowing lighting that is not unduly intrusive or a nuisance to nearby residents, property occupants, and drivers; and
4. Eliminating intrusive artificial light and lighting that unnecessarily contributes to sky glow and energy consumption.

B. *Lighting Plan.* The following information shall be included for all Director Reviews and Site Plan Reviews. Where neither type of approval is required, any of the following items may be required by the Director prior to lighting installation.

1. A site plan drawn to a scale of no more than one (1) inch to thirty (30) feet showing the buildings, landscaping, parking and service areas, and location and type of all proposed outdoor lighting, including the building lighting.
2. A photometric grid overlaid on the proposed site plan. A photometric plan shall indicate lighting levels at ground level based on no greater than a twenty-five (25) foot on-center grid and shall project twenty-five (25) feet onto adjacent properties or to the setback limit line, whichever is greater. Illumination levels shall also be measured for all surrounding streets at the public right-of-way.
3. An analysis showing that the proposed installation conforms to the lighting level standards in this Chapter. All lighting shall have the intensities and uniformity ratio consistent with the *Lighting Handbook* of the Illuminations Engineering Society of North America (IESNA).
4. Specifications for all proposed lighting fixtures including mounting heights, photometric data, designation as sharp cut-off fixtures by IESNA, Color Rendering Index (CRI) of all lamps (bulbs), and other descriptive information on the fixtures.

C. *Outdoor Lighting.*

1. *Type.* All outdoor lighting, including freestanding, canopy, pole, and building mounted, shall be fully shielded and directed downward to prevent off-site glare and illumination. No portion of the lamp, reflector, lens, or refracting system may extend beyond the housing or shield, with the exception of pedestrian lighting.
2. *Intensity - General.* The intensity of light within a site shall not exceed ten (10) footcandles within any part of the site and one (1) footcandle at any lot line, except where it abuts or faces a Residential Zone District or residential use, a maximum of 0.5 footcandles is permitted.
3. *Intensity - Vehicle Fuel or Outdoor Sales Areas.*
   a. In areas where lighting levels from existing, similar vehicle fuel stations or outdoor vehicle sales areas or other illuminated areas are on both sides of the lot and across the street, up to eighty (80) percent of the existing light levels may be used.

b. For vehicle fuel station canopies and outdoor vehicle sales areas that do not meet the location requirement in Subsection C.3.a. above, an Administrative Departure may be granted for a maximum of twenty (20) footcandles within the site, provided the requirements of Subsection C.2. above apply at the lot line.

4. *Uniformity Ratios.* To maintain uniformity in light levels across a development and prevent or minimize dark areas, the ratio of maximum to minimum lighting levels on a given lot is measured in footcandles at ground level, and shall not exceed a ratio of fifteen-to-one (15:1). Parking lots shall maintain the same uniformity ratios as the main building or principal use served.

5. *Height.* Height shall be measured from the ground to the top of the light fixture. Except as otherwise required, the height of fixtures in a Residential Zone District or within two hundred (200) feet of that district shall not exceed the following light source to ground level height limits, except as may be permitted by the Planning Commission.

   a. Twenty-two and one-half (22½) feet for parking lots.

   b. Twenty (20) feet for sidewalks and pathways.

6. *Fixtures.*

   a. All outdoor fixtures, including building mounted fixtures, shall be full cut-off, shielded fixtures as defined by IESNA.

   b. Poles for lighting fixtures shall be of a fixed height. Adjustable poles are prohibited.

   c. High Intensity Discharge (HID) fixtures shall be used in an effort to maintain a unified lighting standard throughout the city and prevent "sky glow." High pressure sodium fixtures shall be prohibited.

   d. The Director may approve decorative light fixtures as an alternative to shielded fixtures when it can be demonstrated that there shall be no off-site glare or illumination and the proposed fixtures will improve the appearance of the site.

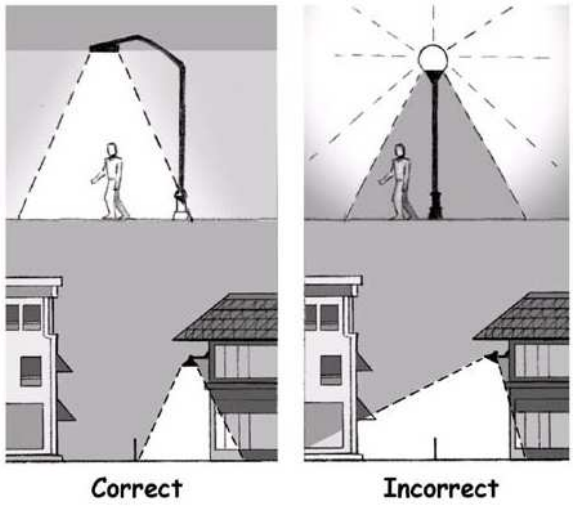
7. *Light Poles.* The base of light poles in parking areas shall be either flush with grade or mounted on a concrete foundation projecting no more than thirty-six (36) inches above grade. The base of light poles in non-parking areas shall be either flush with grade or mounted on a concrete foundation projecting no more than six (6) inches above grade.

D. *Lighting Reduction.*

1. *Hours.*

   a. On all non-residentially developed lots which contain a minimum of four (4) parking lot light poles, parking lot lighting levels for ground surface parking lots and the top levels of parking decks or structures must be reduced by at least fifty (50) percent of full operational levels within thirty (30) minutes after the close of business.

   b. Lighting levels may be reduced by turning off fifty (50) percent of the parking lot lights or by dimming parking lot lighting levels to no more than fifty (50) percent of the levels used during business or activity hours within thirty (30) minutes of the close of business, or by some combination thereof.



5.2.19.C Outdoor Lighting.

2. *Security.*

   a. Given that a certain minimum lighting level is recommended for safety and security purposes, this provision does not require parking lot lighting levels to be reduced to less than 0.2 footcandles as measured horizontally at the surface on which the light pole is mounted.

   b. The need for security lighting (e.g. the lighting for safety of persons and property) shall be demonstrated. To the extent that an area is illuminated for other purposes, independent security lighting is not allowed.

   c. All security fixtures shall be shielded and aimed so that illumination is directed only to designated areas. In no case shall lighting be directed above a horizontal plane through the top of the lighting fixture, and the fixture shall include full cut-off shields that prevent the light source or lens from being visible on adjacent lots and streets. The use of general floodlighting fixtures is not allowed.

E. *Architectural Lighting.* When buildings and structures are to be illuminated, the Director shall approve a design for the illumination using the following requirements.

1. *Direction of Lights.* Lighting fixtures shall be carefully sited, aimed and shielded so that light is directed only onto the building façade. Lighting fixtures shall not be directed toward adjacent streets, streets or properties, and light shall not trespass onto surrounding properties.

2. *Façade Lighting.* Lighting fixtures mounted on the building and designed to wash the façade with light are permitted. Ground or pole-mounted floodlights are not permitted for façade lighting.

3. *Accent Lighting.* Luminous tube (neon), string lighting, LED or fluorescent lighting may be allowed as an architectural detail on the exterior of any structure, provided that such lighting shall not completely outline or define property lines, sales areas, roofs, doors, windows or similar areas in a manner that is not primarily for safety purposes. Accent lighting may be

approved by a Director Review upon determining that the accents would not cause off-site glare or light pollution and that lighting is not intended to be used as the equivalent of a sign. Notwithstanding, seasonal lighting displays, including string lighting, may be allowed without Director Review in conjunction with a nationally recognized holiday provided such displays are strung no sooner than sixty (60) days before the holiday and shall be removed within twenty (20) days following the holiday.

4. *Landscape Lighting.* The illumination of landscaping shall not generate excessive light levels, cause glare, or direct light beyond the landscaping.

F. *Temporary Light Display in TN-CC Zone District.*

1. Temporary light displays are permitted in connection with planned events at the following uses only.
   a. An arena with a seating capacity of ten thousand (10,000) persons or more; and
   b. A convention center having one hundred thousand (100,000) square feet or more of floor area.
2. These displays shall only be permitted on the premises in which the event is held.
3. For each qualifying use, these displays shall be permitted for up to ten (10) events each year and may be displayed for a maximum of eight (8) days for each event. The location, number, size and general character of these displays shall be approved by the Director.
4. Sign Permit. A sign permit is required for all temporary light displays allowed in this Section.

G. *Other Lighting Requirements.*

1. Indirect illumination of signs, canopies, bollards and buildings is permitted provided a maximum one hundred twenty-five (125) watt bulb is used and placed or shielded to prevent glare.
2. Electrical feeds to lighting standards shall only run underground.
3. The use of a laser light source, search lights or any similar high intensity light for outdoor advertisement or entertainment is prohibited, except as permitted in the TN-CC Zone District under Section 5.2.19.F.
4. Lighting shall not consist of or have the appearance of movement or flashing components, except as otherwise permitted in this Chapter.

H. *Public Street Lighting.* The cost of installing and operating approved street lighting on any public street shall be through a financial method approved by the City or by the Michigan Department of Transportation. The costs of all other lighting systems shall be borne by the developer/property owner.

I. *Exemptions.* The following outdoor light fixtures are exempt from the provisions of this Section.

1. Outdoor light fixtures installed prior to the effective date of this Chapter. Fixture replacements shall comply with the requirements of this Section in accordance with the provisions of Section 5.3.06.C. to the extent that the overall appearance of the site is not adversely affected. The Director may require that existing light fixtures be redirected in conditions where excessive glare onto adjacent properties and roadways creates a nuisance or safety concern.
2. Streetlights within a public right-of-way.
3. Pedestrian walkway ground lighting.

4. Outdoor light fixtures which use an incandescent light bulb of one hundred fifty (150) watts or less, except where they create a hazard or nuisance from glare or spillover light.
5. Lighting necessary for street or utility construction or emergencies.
6. Lighting necessary for designated recreational fields or similar uses that cannot reasonably comply with the standards and provide sufficient illumination of the recreational field for safe use, following IESNA standards. The fixtures shall be aimed so that their beams are directed and fall within the primary playing or performance area. Lights shall be turned off within one-half (½) hour of the completion of the event.
7. Government facilities, parks and open areas, public utility facilities, and other uses where sensitive or dangerous materials are located may submit a Site Security Plan to the Director requesting deviations from the requirements of this Section. The Plan may be approved, or approved with conditions, upon finding that:
   a. The lighting is necessary for adequate protection of the public;
   b. The condition, location, or use of the land, or history of activity in the area, indicates the land or any materials stored or used on it are in greater danger of theft or damage, or members of the public are at greater risk for harm than on other property; and
   c. The deviations do not have a significant adverse effect on neighboring areas.

J. *Administrative Departure.* An Administrative Departure from the requirements this Section may be granted if it is determined that proposed lighting otherwise meets the purposes of this Section and does not adversely affect the health, safety and welfare of the public.

Sec. 5.2.20. Infrastructure and Service Needs.

A. *Purpose and Intent.*

1. The purpose of this Section is to permit development projects the ability to proceed at a faster pace than current City resources are capable of constructing, installing, modifying, or improving existing infrastructure and/or service capacities to accommodate the development project. The project may itself be the sole reason for the infrastructure and service needs, or it may contribute to a heightened demand for infrastructure and services which are nearing or already at capacity. Inadequately sized infrastructure or insufficient service to the development project would result in one (1) or more declining levels of traffic safety, roadway capacity, reduced Level of Service (LOS) or water, sewer, energy, communications or other utility service reductions in the system. It is the intent of this Section to allow for development while ensuring that the project site and all customers that use and rely upon sufficient infrastructure and services within the community are properly accommodated.
2. The inability of the City to provide or enhance the available level of infrastructure or services to accommodate the development project may serve as the basis to deny a project request due to insufficient or increasingly insufficient infrastructure capacity if the project were to be constructed. Project denial due to insufficient infrastructure or services is not a desired outcome as development and redevelopment projects often improve neighborhoods and, over the long-term, improve the economic capacity of the neighborhood and the community by raising property values and employment opportunities. Alternatives to improve infrastructure and/or service insufficiency are preferable to project denial. In these cases, the City may offer an alternative to project denial by accepting the offer of voluntary support by the project's owners to undertake or contribute towards the cost of providing the needed infrastructure or service changes for future conditions created or contributed to as a result of the development project.

3. In general, infrastructure or service changes are quantifiable in terms of capacity and cost. Needed changes may require study, planning, design, phasing or other efforts before being undertaken. In these situations, the City Commission could, by contract with the project's owners, accept contributions to fund the work. The City would set aside the funds for use only to address the particular infrastructure and/or service changes associated with the development project. For example, in the situation where area streets and intersections are or will be functioning at low levels, undertaking or funding street and intersection improvements may be appropriate. Sometimes, however, street and intersection improvements may not be practical or may be insufficient to address the concerns. Due to topography, the impracticality of acquiring needed additional right-of-way, area-wide traffic patterns, jurisdictional issues or other limitations, different approaches such as additional transit services, remote parking lots, pedestrian overpasses, shared parking structures, reversible traffic flows at peak times, or other, less common, and more cooperative approaches may be the only feasible and reasonable alternatives to ameliorate anticipated infrastructure and service burdens imposed by the development upon customers and citizens within the service area. A particular project may provide the necessary impetus for these alternative approaches, particularly in relation to public health and safety, while itself providing insufficient support or justification. However, together with reasonably foreseeable additional projects, it may form the basis for addressing the need by these approaches.

B. *Existing and Future Conditions Evaluation.* The applicant or property owner shall be informed of any inadequately sized infrastructure or insufficient services within the proposed project area that currently exists or that will be created or contributed to by the proposed development project. The Director, Traffic Engineering Director, Planning Commission or City Commission will provide a basis for the determination that a development project, either by itself or in conjunction with other reasonably foreseeable projects, will:

1. Overload infrastructure or municipal services;

2. Measurably degrade the level of infrastructure or public services to levels that adversely affect public health, safety or quality of life; or

3. Place additional strains on infrastructure or public services that already are at levels that adversely affect public health, safety or quality of life.

C. *Alternatives Evaluation.* The Director may encourage the applicant to propose particular designs or improvements, cost estimates and other related information to recommend or identify changes on the project site, in the immediate project area or in locations which would assist in supporting the necessary infrastructure or services to sustain the development. Where the Director does not have specific information about needed changes readily available because they are not easily ascertainable given the characteristics of the situation, the Director may identify possible ways and anticipated costs of addressing the conditions.

D. *Determination.* Upon review of the alternatives to support the needed infrastructure and/or services to support the development project, the applicant may:

1. Appeal a determination made by the Director to the Planning Commission.

2. Discontinue the project.

3. Redesign the project to address the concerns.

4. If it is acceptable to all City and other governmental officials of competent jurisdiction, agree to:
   a. Undertake and construct the needed infrastructure improvements according to plans and specifications approved and overseen by the City;
   b. Fund the needed infrastructure or service improvements pursuant to a written agreement approved by the City Commission with the amount of the payment determined based on the actual costs of the improvements;
   c. Contribute to a fund to be used by the City to address the infrastructure or service concerns pursuant to a written agreement approved by the City Commission with the amount of that contribution determined based on what the City Commission reasonably determines to be the applicant's proportionate share of the reasonably anticipated costs of the improvements.

Sec. 5.2.21. Satellite Dish Antennas.

A. *Roof-Mounted Satellite Dish Antennas.* The following roof-mounted satellite dish antennas and similar devices shall not be subject to the requirements of this Article.

1. In Residential Zone Districts, a device that is two (2) meters (or 6.7 feet) or less in diameter.
2. In all other Zone Districts, a device that is two (2) meters (or 6.7 feet) or more in diameter, provided the device complies with the height requirements of the Zone District.

B. *Ground-Mounted Satellite Dish Antennas.* Ground-mounted satellite dish antennas and similar devices shall be permitted in all Zone Districts, subject to the following conditions:

1. The maximum height shall be fifteen (15) feet.
2. The devices shall not be permitted in front and side yards and shall comply with all setback requirements of the Zone District.
3. All electrical and antenna wiring shall be placed underground.
4. Evergreen screening shall be provided in sufficient concentration to reasonably conceal the device. Alternative screening that achieves the same effect may be approved by the Director.
5. The devices shall be sited and designed to withstand a wind force of ninety (90) miles per hour. The device shall be securely mounted and anchored in accordance with manufacturer specifications and the Building Code.
6. The surface of the device shall be painted or treated so that it does not reflect glare from sunlight, and shall use to the extent practicable, materials and colors that blend with the surroundings.
7. The surface of the device shall not be used as a sign or message board.

C. *Administrative Departure.* An Administrative Departure may be approved to vary any provision of this Section if its application inhibits or prevents the reasonable operation of the satellite dish antenna or similar device. If so approved, the Director may require additional screening or other reasonable conditions to reduce the visibility of the device from adjacent properties.

Sec. 5.2.22. Backyard Chickens.

A. The regulations of this Section shall be met, in addition to the regulatory provisions of Article 4, Chapter 155 of the City Code.

B. One (1) covered enclosure for the keeping of chickens is permitted, not to exceed six (6) square feet in area per chicken, and not higher than eight (8) feet. This square footage shall not count against the allowable square footage or number of accessory structures permitted by Section 5.2.08.

C. The area of the permitted enclosure may be treated as Greenspace for the purposes of meeting the requirements of Section 5.5.06.H., and is exempt from the vegetation requirements of Section 5.11.07.A. of the General Standards for Landscaping.

D. Fencing used to enclose chickens is exempt from the approved fence material requirements of Section 5.2.11.B.1.

Sec. 5.2.23. State Universities.

A. *Purpose.*

1. State universities created pursuant to the constitution and laws of the state of Michigan are unique entities the boards of which are charged with operating the universities to carry out their respective educational missions for the benefit of the people of this state. It is the policy of the City to collaborate with and support state universities in the development of state university owned property.

2. The City also recognizes development of state university owned property can affect residential or other neighborhoods in its vicinity. Accordingly, this Section is intended to enable a collaborative process that provides appropriate deference to the state university while ensuring neighborhood concerns and effects are appropriately considered in the development of a state university's property.

B. *Applicability and Process.*

1. In addition to, or in lieu of, other ways a state university and the City have collaborated in the development of state university owned property in the City a state university may elect to pursue the approach provided in this Section.

2. If requested by a state university, the City may, with City Commission approval, enter into a written memorandum of understanding or other written document with a state university that provides for:

   a. Submission of a written plan for the development of one (1) or more parcels of state university owned property in furtherance of the university's mission in any Zone District;

   b. Engagement of the neighborhood association or others in the residential or other neighborhood in the vicinity of the university-owned property for purposes of hearing and considering their comments;

   c. A public meeting conducted by the Director, notice of which is provided in the same manner as a public hearing under this Chapter; and

   d. Director's approval. The Director's approval of the plan(s) pursuant to a memorandum of understanding or other written document, the approval of which shall constitute an approval of the state university's development of the state university owned property addressed by that memorandum of understanding or other written document.

3. A memorandum of understanding or other written document entered into pursuant to this provision may provide a process for appeal of the Director's denial of a plan proposed by the state university by other City officials as provided by the memorandum of understanding or other written document.

ARTICLE 3. NONCONFORMING LOTS, BUILDINGS, STRUCTURES AND USES

Sec. 5.3.01. Purpose and Intent.

A. *Nonconformities Permitted.* It is recognized that there exists within Zone Districts certain lots, buildings, structures, site improvements, and uses which were lawful before this Chapter was passed or amended, which would be prohibited, regulated, or restricted under the terms of this Chapter. It is the intent of this Chapter to permit these nonconforming lots, buildings, structures, and uses to continue until they are altered, abandoned, removed, or brought into conformance, but not to encourage their continued use or survival.

B. *No Expansion of Nonconformities.* Nonconforming lots, buildings, structures, and uses are hereby declared to be incompatible with the Zone Districts in which they are located. It is the intent of this Chapter that these nonconformities shall not be enlarged upon, expanded, or extended, nor be used as grounds for adding other buildings, structures or uses prohibited elsewhere in the Zone District, except as may be provided for in this Chapter.

C. *Construction Prior to Effective Date of this Chapter.* Nothing in this Chapter shall be deemed to require a change in the plans, construction, or designated use of any building on which actual construction was lawfully begun prior to the effective date of this Chapter, or an amendment thereto, and upon which actual building construction has been diligently conducted.

D. *Acquisition of Nonconformities.* The City may acquire, through purchase or condemnation, private nonconforming lots, buildings, structures, and uses. The City Commission may take actions related to acquisition in the manner provided for by law.

E. If a nonconformity existing prior to the effective date on this Chapter becomes conforming because of the adoption of this Chapter, or any subsequent amendment, then it shall no longer have a nonconforming status. A condition that was not a nonconformity prior to the effective date of this Chapter does not achieve any nonconforming status under this Chapter by repeal of the previous Chapter.

Sec. 5.3.02. Nonconforming Lots of Record.

A. *Use Permitted.*

1. A nonconforming lot may be used for any use permitted in the Zone District, subject to any approvals required by this Chapter, provided that all placement, height and other applicable regulations related to the building are met, except as noted in 2. below.
2. A side yard requirement for a building or structure on a nonconforming lot may be reduced by the same percentage the area of the lot bears to the Zone District requirements. For example, a lot that is twenty (20) percent less than the minimum lot area may reduce the required side yard by twenty (20) percent, provided that no side yard shall be less than five (5) feet.

B. *Contiguous Nonconforming Lots in Common Ownership.*

1. Any two (2) or more nonconforming lots of record or combination of lots and portions of lots of record, existing prior to the effective date of this Chapter, or an amendment thereto, shall be considered to be an undivided parcel for the purposes of this Chapter if they:
   a. Are in common ownership; and
   b. Have continuous frontage; and
   c. Individually do not meet the lot width or lot area requirements of this Chapter.

2. Parcels meeting these requirements shall be combined into a lot or lots complying as nearly as possible with the lot width and lot size requirements of this Chapter. No portion of that parcel shall be used or divided in a manner that further diminishes compliance with lot width and area requirements of this Chapter.

Sec. 5.3.03. Nonconforming Buildings or Structures.

A. *Continuation.* A nonconforming building or structure may be continued so long as it remains otherwise lawful, subject to the provisions of this Section.

B. *Extensions and Expansion.*

1. No nonconforming building or structure may be enlarged or altered in a way that increases its nonconformity, except as noted in subsection B.2. below.

2. A nonconforming building or structure may be extended along the portion of the building that is nonconforming provided the following conditions are met:

   a. The existing building or structure must meet at least one-half (½) of the required setback or Required Building Line (RBL) of the Zone District.

   b. The extension of the nonconforming setback or RBL of a building or structure shall not be greater than fifty (50) percent of the total length of the existing building side that is to be extended.

   c. Additions to an existing building which is nonconforming by reason of the building height shall be permitted, provided the addition is no higher than the existing building and has a setback from all property lines that is equal to the height of the new addition.

   d. All parking requirements are met related to the expanded area.

C. *Reconstruction or Movement.*

1. *Reconstruction.*

   a. Should a nonconforming building or structure be destroyed to an extent of more than seventy-five (75) percent of its replacement cost, exclusive of the foundation, it shall be reconstructed only in conformance with the provisions of this Chapter.

   b. Should a nonconforming building or structure be destroyed to an amount equal to or less than seventy-five (75) percent of its estimated replacement cost, exclusive of the foundation, it may be reconstructed in its previously nonconforming location.

   c. Replacement costs shall be provided by the owner using estimates from at least two (2) contractors in the business of undertaking this work.

2. *Movement.*

   a. Should a nonconforming building or structure be moved to a different lot, it shall be moved to a location that complies with the requirements of this Chapter.

   b. If moved on the same lot, the location shall comply with the requirements of this Chapter unless an Administrative Departure is approved for a location that brings it closer to conformity with the Zone District.

Sec. 5.3.04. Nonconforming Building Elements.

A. *Alterations or Replacements.*

1. Where alterations or replacements to the exterior of a building involve fifty (50) percent or more of the exterior wall area, the entire building shall meet the façade variation, transparency, and building material requirements of the Zone District.
2. Alterations or replacements that involve less than fifty (50) percent of the exterior wall shall equal those that exist, or shall be as close to conformity as feasible without materially affecting the architectural character of the building.

B. *Exterior Renovations.* Exterior renovations shall not destroy or cover original architectural details on a building that are vital to the proper proportion of the façade or the overall architectural character of the building. Brick and stone exteriors shall not be covered with artificial siding or panels.

C. *Building Elements.*

1. *Window and Door Openings.* Existing window and door openings shall be maintained. New window and door openings should maintain a similar horizontal and vertical relationship as the original.
2. *Vertical and Horizontal Elements.* The vertical lines of columns and piers, and the horizontal definition of spandrels and cornices, and other primary structural elements shall be maintained.

D. *Administrative Departure.* An Administrative Departure may permit alternative materials or design elements to replace nonconforming elements where the applicant can demonstrate that the original building elements have been removed or substantially damaged, or that the building lacks a significant architectural character as related to its surroundings and the general neighborhood.

Sec. 5.3.05. Nonconforming Uses.

A. *Enlargement or Increase.*

1. No nonconforming use shall be enlarged or increased, nor extended to occupy a greater area of land than was occupied when the use became nonconforming, except as may be permitted by the Board of Zoning Appeals.
2. In determining if the proposed enlargement, increase, or greater area shall be permitted, the Board shall find that if approved, the use shall:
    a. Not have a substantial detrimental effect on the use and enjoyment of adjacent uses or lots;
    b. Comply with all parking, sign, or other applicable regulations for accessory uses for the area affected by the proposed enlargement, increase, or greater area;
    c. Not occupy an area larger than twenty-five (25) percent of the original nonconforming area.
3. The Board of Zoning Appeals may impose reasonable conditions that are necessary to ensure that the proposed enlargement, increase, or greater area shall not prove detrimental to adjacent properties, the neighborhood, or the community.

B. *Extension Within a Building.* Any nonconforming use may be extended throughout any parts of a building which were manifestly arranged or designed for that use at the time of adoption or amendment of this Chapter and would have been permitted by right, but the use shall not be extended to occupy any land outside the building.

C. *Reduction in Nonconforming Use.* If any part of a nonconforming use is moved or reduced in size by action of the owner, the part of the nonconforming use that is moved or reduced in size shall be considered to be abandoned and any subsequent use shall conform to the requirements of this Chapter.

D. *Abandonment.*

1. If a nonconforming use is abandoned for any reason for a period of more than twelve (12) calendar months, any subsequent use shall conform to the requirements of this Chapter.

2. A nonconforming use shall be determined to be abandoned if the City is in receipt of a written declaration by the property owner that the use will not be continued, or that two (2) or more of the following conditions exist that demonstrate intent on the part of the property owner to abandon the nonconforming use:

   a. One (1) or more utility meters, such as water, gas and electricity to the property, have been removed;

   b. The property, buildings and/or grounds are unsafe or unsanitary, as described in Chapter 140 Housing Code or Chapter 135 Building Maintenance Code;

   c. Cessation of business operations during the abandonment period;

   d. Removal of signs or other indications of the existence of the nonconforming use;

   e. Removal of equipment or fixtures necessary for the operation of the nonconforming use;

   f. Failure to maintain current licenses, certificates, permits, registrations or other appropriate documentation; or

   g. Other actions, which in the opinion of the Director, constitute an intention by the property owner or lessee to abandon the nonconforming use.

3. Abandonment Period Extensions.

   a. Upon written request received prior to the end of the abandonment period, the Director may approve an extension of the abandonment period up to an additional six (6) months.

   b. One (1) additional six (6) month extension may be granted if approved by the Board of Zoning Appeals.

   c. Extensions by the Director or Board of Zoning Appeals shall be considered only where a property owner can demonstrate a good faith effort to sell or lease the premises to another, similar use that is at least as conforming as the previous use.

E. *Change to Other Nonconforming Use.* Prior to a determination of abandonment, a nonconforming use may be changed to another nonconforming use provided the Board of Zoning Appeals makes all of the following determinations.

1. The proposed use is equally compatible, or more compatible, with the surrounding neighborhood, and that the use is equal to or more conforming to the uses allowed in the Zone District than the previous nonconforming use.

2. The proposed nonconforming use is not enlarged or increased, nor extended to occupy a greater area of land than the previous nonconforming use, except as may otherwise be permitted by this the Board of Zoning Appeals.

3. That buildings and area encompassing the expansion of the nonconforming use complies with all parking, landscaping, or other site development regulations applicable to the area affected by the proposed enlargement, increase or extension of use area as required by this Chapter.

F. *Existing Uses.* Certain uses identified with an "E" in Table 5.5.05.B. Uses: Residential Zone Districts, and Table 5.6.06.B. Mixed-use Commercial Zone Districts may continue to exist as permitted uses in their respective Zone Districts, subject to the restrictions contained therein, and shall be exempt from the abandonment criteria of Section 5.3.05.D. above, provided:

1. There is no increase in size, alteration or change to the building or structure, external or internal, other than general maintenance; and
2. All equipment or fixtures that are necessary for the operation of the use(s) remain in place; and
3. Any residential property is registered in conformance with the Chapter 140 Housing of the City Code.

Sec. 5.3.06. Nonconforming Site Elements.

A. *Purpose.* This Section permits reviews of applications for improvements and minor modifications to a nonconforming lot, building, structure or use that does not require a site to meet all of the site improvement regulations of this Chapter. Where appropriate, the intent is to allow gradual compliance with site-related requirements for sites that pre-date requirements for landscaping, paving, and other non-safety site-related items.

B. *Compliance Required.* Site elements shall be brought into full compliance with this Chapter for any of the following:

1. A parking or landscape area is expanded or reconstructed (existing pavement and/or landscape materials and ground cover removed and replaced) by twenty-five (25) percent or more of the original nonconforming area.
2. The size of the nonconforming site covered by existing lighting is expanded by an area that is fifty (50) percent or more of the original nonconforming area; and/or seventy (70) percent or more of the existing light poles and/or fixtures are replaced by new poles, bases, or fixtures.

C. *Planning Commission Review.* Improvements or modifications to nonconforming site elements may be permitted by the Planning Commission during a Special Land Use or Site Plan Review process when required by this Chapter without a complete upgrade of all site elements under the following conditions:

1. The applicant provides reasonable site improvements to the site in relation to the scale and construction cost of the building improvements or expansion.
2. The applicant addresses any safety-related site issues for the site.
3. The improvements or minor expansion do not increase the nonconforming site elements.
4. The applicant upgrades the site landscaping consistent with Article 11, to the degree deemed appropriate by the Planning Commission.
5. Driveways that do not conform to the access management requirements of this Chapter are eliminated, provided that minimum reasonable access is maintained.

D. *Administrative Departures.*

1. Improvements or modifications to nonconforming site elements may be permitted as an Administrative Departure for site improvements that require a Director Review without a complete upgrade of all site elements where topography, natural features or other site constraints exist, and where there are no detrimental effects on adjacent properties, and provided that any nonconforming setbacks are not further reduced.

2. The replacement of a nonconforming off-street parking lot in a front yard may be permitted where the following conditions exist:
   a. The existing parking lot is nonconforming due to its location in the front yard.
   b. A primary structure is located on the lot and is not proposed for demolition or replacement.
   c. There is no other practicable alternative for the location of the required parking spaces.
   d. The parking lot is not expanded and does not result in an increase of any nonconformities.
   e. Landscaping is brought closer to conformance with the requirements of Article 11.
   f. The number of spaces provided does not exceed either twenty (20) spaces or the required number of parking spaces by more than twenty (20) percent, whichever is greater, unless demonstrated by a Parking Demand Study consistent with the requirements of Section 5.10.04.A.

E. Nothing in this Section shall be construed to require the removal of vegetation preserved as part of the original construction of the landscaped area.

F. In all instances, required screening walls for waste receptacles, fencing of outdoor storage or screening from adjacent residential uses shall be provided.

G. The City may require a performance guarantee under the provisions of Section 5.14.04. to insure that all improvements required in this Section are made in accordance with the approved plan.
(Ord. No. 2025-14, § 2, 7-29-25)

Sec. 5.3.07. Nonconforming Signs.

See Section 5.15.03. for regulations pertaining to nonconforming signs.

Sec. 5.3.08. Nonconforming Wireless Communication Towers.

See Section 5.9.41. for regulations pertaining to nonconforming wireless communication towers.

ARTICLE 4. MAPPED ZONE DISTRICTS

Sec. 5.4.01. Purpose and Intent.

A. *Neighborhood Classifications.* This Article establishes three (3) Neighborhood Classifications and a number of Zone Districts within each Neighborhood Classification that represent a broad range of development eras and existing built conditions throughout the city. Through the Master Plan process, residents identified the diversity of existing residential and commercial areas as key to maintaining the attractive and economic vitality of the city.

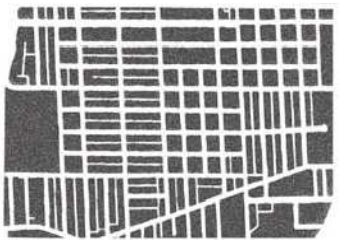
B. *Development Characters.* This Article describes the distinctive characteristics of neighborhoods and other areas, as defined in the City of Grand Rapids Neighborhood Pattern Work Book, and provides the framework for development standards to guide future development. The city is divided into the following Neighborhood Classifications and Zone Districts, as described below.

Sec. 5.4.02. Neighborhood Classifications.

A. *Neighborhood Classifications.* Residential and Mixed-Use Commercial Zone Districts have been assigned a Neighborhood Classification based on similar development characteristics within the City of Grand Rapids, as established by the Master Plan and Pattern Work Book. These Neighborhood

Classifications are Traditional Neighborhood; Mid-20th Century Neighborhood; and Modern Neighborhood. Within each Neighborhood Classification are individual Zone Districts, each with its own uses and development requirements.

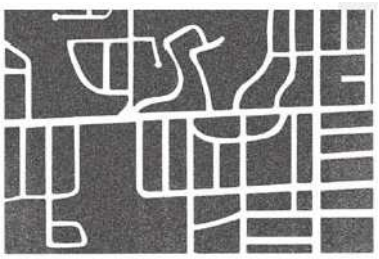
B. *Traditional Neighborhoods (TN).*



5.4.02.B Traditional Neighborhoods (TN).

1. *Background.* Developed prior to society's dependence on the automobile, these neighborhoods were designed to provide residents with a variety of commercial, institutional and residential options within a short walking distance. Residents find housing options such as single-family homes and apartments above storefronts, as well as commercial and institutional uses integrated into a central neighborhood design. Diversity in building size and use enhances the vitality of these neighborhoods.
2. *Characteristics.* The valued characteristics of the built environment of a Traditional Neighborhood include:
    a. A pattern of small blocks, alleys and a connected street grid system;
    b. Smaller building footprints on small sites with variable lot sizes;
    c. Human-scaled buildings with high quality exterior materials;
    d. Front façade oriented parallel to the street;
    e. Pedestrian and transit orientation, with widespread provision of on-street parking and off-street surface parking areas that are located to the rear of the lot;
    f. Integrated residential and nonresidential land uses located in the same building or in proximity to one another without extensive buffering;
    g. Well-defined building entries and windows constituting at least fifty (50) percent of the front façade, and
    h. Other building elements and architectural patterns.

C. *Mid-20th Century Neighborhoods (MCN).*



5.4.02.C. Mid-20th Century Neighborhoods (MCN).

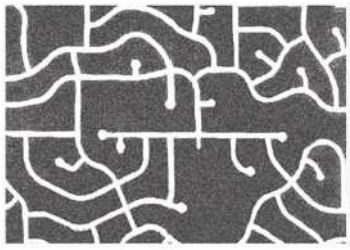
1. *Background.* These neighborhoods reflect American society's change after World War II towards an automobile-dependent development pattern. Residential neighborhoods have a more spacious feel with larger lots and buildings located further from the street. Streets and neighborhoods are less connected; and land uses are segregated from one another, including separation of apartment buildings from single-family housing. More intense commercial and institutional uses are found on highly visible corners and along heavily traveled traffic corridors in strip developments.
2. *Characteristics.* The valued characteristics of the built environment of a Mid-20th Century Neighborhood include:
    a. Curvilinear streets with sporadic cul-de-sacs or alleys;
    b. Larger uniform lot sizes with generous building setbacks;
    c. Some mixed uses integrated within a neighborhood, but uses generally segregated;

d. Pedestrian and automobile-oriented streetscapes that include sidewalks and limited parking in the front of buildings;

e. Building entries predominately oriented to the street; and

f. Simplified building articulation and massing.

D. *Modern Era Neighborhoods (MON).*



5.4.02.D. Modern Era Neighborhoods (MON).

1. *Background.* Land patterns within these neighborhoods have been developed to serve individual uses. Major roadways connect these uses to each other. Street and neighborhood connectivity is less evident and the presence of sidewalks is often limited.
2. *Characteristics.* The valued characteristics of the built environment of a Modern Era Neighborhood include:
   a. Larger lots and deeper setbacks in residential areas.
   b. Single-family homes, apartments, office complexes and shopping centers are segregated.
   c. There is a dependence on the automobile or public transit to live, work and/or shop; and
   d. Large greenspace opportunities.
3. The existing development pattern of segregated land uses, cul-de-sacs and a strong automobile orientation are intended to be minimized over time. Alternative high quality design approaches shall promote multi-family developments within walking distance of transit and the restructuring of existing commercial concentrations as walkable mixed-use centers.

Sec. 5.4.03. Zone Districts.

A. *Zone Districts.* Zone Districts are found under the following Neighborhood Classifications, with the exception of the NOS Neighborhood Office Service District which may be found in Section 5.6.05.

Table 5.4.03.A. Zone Districts

Abbreviation	Zone District	Section
TN—Traditional Neighborhoods		
TN—LDR	Low-Density Residential	5.5.02.A.
TN—MDR	Mixed-Density Residential	5.5.02.B.
TN—CC	City Center	5.6.02.A.
TN—TCC	Transitional City Center	5.6.02.B.
TN—TBA	Traditional Business Area	5.6.02.C.
TN—TOD	Transit-Oriented Development	5.6.02.D.
MCN—Mid-20th Century Neighborhoods		
MCN—LDR	Low-Density Residential	5.5.03.A.
MCN—MDR	Mixed-Density Residential	5.5.03.B.
MCN—C	Commercial	5.6.03.A.
MCN—TOD	Transit-Oriented Development	5.6.03.B.
MON—Modern Era Neighborhoods		
MON—LDR	Low-Density Residential	5.5.04.A.
MON—MDR	Mixed-Density Residential	5.5.04.B.
MON—C	Commercial	5.6.04.A.
MON—TOD	Transit-Oriented Development	5.6.04.B.

B. *Special Districts.* The following Special Districts are in addition to the individual Zone Districts located within each Neighborhood Classification. Special Districts are not required to comply with all design requirements of the Neighborhood Classification. A Special District is intended to accommodate unique land uses and activities that do not readily fall under the intent and purpose of any other Zone District.

Table 5.4.03.B. Special Districts (SD)		
Abbreviation	**Zone District**	**Section**
SD—AP	Airport	5.7.02.
SD—OS	Open Space	5.7.03.
SD—IT	Industrial Transportation	5.7.04.
SD—IC	Institutional Campus	5.7.05.
SD—PRD	Planned Redevelopment	5.7.06.

C. *Overlay Districts.* The following Overlay Districts are in addition to the individual Zone Districts located within each Neighborhood Classification or Special District. Overlay Districts are designed to complement the base Zone District and to achieve a unique set of established goals for a corridor or geographic area.

Table 5.4.03.C. Overlay Districts (OD)		
Abbreviation	**Zone District**	**Section**
OD—DH	Downtown Height	5.8.02.
OD—GR	Grand River	5.8.03.
OD—EBL	East Beltline	5.8.04.
OD—FP	Floodplain	5.8.05.
OD—WS	Wayfinding Signs	5.8.06.
OD—SC	Special Conditions	5.8.07.

D. *Neighborhood Office Service District (NOS).* The NOS District serves as either a stand-alone district or as a transitional district between areas of high and low intensity development and is not intended to be included in a Neighborhood Classification. It is intended to provide a limited service area within neighborhoods with daily goods and services. See Section 5.6.05.
(Ord. No. 2020-13, § 1, 4-28-20)

Sec. 5.4.04. Use Determination for Similar Uses or Uses Not Addressed.

A. *Purpose.* Since every type of potential use cannot be anticipated in this Chapter, this Section provides a process for addressing uses not specifically listed or those that cannot be reasonably interpreted as substantially the same as those listed. Similarly, there are various uses that include the phrase "and similar uses." These procedures are also intended to interpret the phrase "and similar uses" found in this Chapter.

B. *Decision.* The Director may determine that the use is similar to allowed uses in the Zone District, as either a Permitted Use or a Special Land Use. The Director may request that the BZA make this determination. The Director or BZA determination shall be in writing and shall be sent to the applicant.

C. *Review Standards.* The Planning Director or BZA shall base the decision on a finding that the proposed use satisfies all of the following.

1. Is not specifically listed in any other Zone District;
2. Is generally consistent with the purpose of the Zone District and this Chapter;
3. Does not materially impair the present or potential use of other properties within the same Zone District or the neighboring area;
4. Has no greater potential impact on surrounding properties than those listed in the Zone District in terms of aesthetics, traffic generated, noise, potential nuisances, and other impacts related to health, safety and general welfare; and
5. Is substantially consistent with the Master Plan or other relevant adopted plans of the City.

D. *Text Amendments.* Uses determined to be similar to a Permitted Use or a Special Land Use shall be recorded by the Planning Department, and periodically presented to the Planning Commission to consider incorporation into the text of this Chapter.

E. Should the Director or BZA determine that the use is not similar to a use addressed by this Chapter, an applicant or the City may seek to amend the text of this Chapter to permit the use either as a Permitted Use or Special Land Use in accordance with the text amendment process described in Section 5.12.10. Alternatively, an applicant may seek a use variance from the Board of Zoning Appeals in accordance with the provisions of Section 5.13.04.

Sec. 5.4.05. Zoning Map.

A. *Zoning Groups.* The Zoning Map depicts four (4) levels of zoning groups: Neighborhood Classification, Zone Districts, Special Districts, and Overlay Districts.

B. *Boundaries.* The boundaries of these classifications are hereby established as shown on a map entitled "The Zoning Map of the City of Grand Rapids, Michigan," which is incorporated into and made a part of this Chapter and which is maintained by the Planning Department.

C. *Interpretation of Boundaries.* Where uncertainty exists regarding the boundaries of a Zone district as shown on the official Zoning Map, the following rules shall apply:

1. Boundaries.
    a. Boundaries indicated as approximately following the centerlines of streets, highways or alleys shall be construed to follow those centerlines;
    b. Boundaries indicated as approximately following platted lot lines shall be construed as following the lot lines;
    c. Boundaries indicated as approximately following City limits shall be construed as following City limits; and
    d. Boundaries indicated as following shorelines shall be construed as following the shoreline, and in the event of change in shoreline shall be construed as moving with the shoreline.
2. In circumstances not covered by C.1. above, the Director shall interpret a Zone District boundary after review of the following.
    a. Lot line and Zone District placement;
    b. Existing land uses;
    c. Staff memos, minutes and other information when the designation was made; or
    d. Historical context in the understanding and treatment of district lines.

D. Where changes are made in a Neighborhood Classification, Zone District, Special District or Overlay District boundaries, other districts or any other matter portrayed on the official Zoning Map, those changes shall be entered on the official Zoning Map promptly after the amendment to this Chapter has been approved by the City Commission.

E. In any case where a property has not been specifically included within a Zone District, it is hereby declared to be in the Low Density Residential District applicable to the Neighborhood Classification in which it is located. Provided, however, that where property annexed to the City has been restricted by previous zoning regulations of the former municipality, those provisions shall apply pending the adoption of City zoning regulations for the property.

Sec. 5.4.06. Street Classification Map.

The Street Classification Map and related text within the Street Classification Policy that identifies regional, major, city collector and neighborhood collector streets shall be considered a part of the Zoning Ordinance.

ARTICLE 5. RESIDENTIAL ZONE DISTRICTS

Sec. 5.5.01. Residential Zone Districts: Purpose and Intent.

A. Residential Zone Districts are divided into Low-Density Residential (LDR) Districts and Mixed-Density Residential (MDR) Districts within the framework of the three (3) Neighborhood Classifications of Traditional Neighborhoods (TN), Mid-20th Century Neighborhoods (MCN), and Modern Era Neighborhoods (MON).

B. *LDR, Low-Density Residential District.* The Low-Density Residential District is intended to create, maintain and promote a variety of housing opportunities for individual households and to maintain the desired physical characteristics of the city's existing neighborhoods.

1. The density ranges for each Low-Density Residential Zone District varies based upon the Neighborhood Classification in which it is located.
2. Site and building placement regulations, as well as requirements for building elements, take the built environment into consideration as many of the areas that include this Zone District are in existing developed areas.

C. *MDR, Mixed-Density Residential District.* The Mixed-Density Residential District is intended to create, maintain and promote a variety of housing types in areas where development already exists or where it is desired in the future.

1. The density ranges for each mixed-density Zone District varies based upon the Neighborhood Classification in which it is located, but generally accommodates moderate- to high-density housing, including detached single-family houses, attached single-family dwellings, two-family dwellings, and multiple-family residential buildings.
2. Site and building placement regulations, as well as requirements for building elements, have taken the built environment into consideration. The Master Plan recommendations in Section 10.0 Development Character and Section 10.9 Higher Quality Medium and High-Density Residential Design shall be used in site design, except where it is impractical or inconsistent with the neighborhood.

Sec. 5.5.02. Traditional Neighborhood Residential Zone Districts: Purpose and Intent.

A. *TN-LDR, Traditional Neighborhood—Low-Density Residential Zone District.* The TN-LDR District is intended to protect established development patterns, consisting predominantly of medium-low density residential development in the form of detached single-family houses and two-family dwellings sited on individual lots. Pockets of medium- to high-density residential development are generally found along transit routes, near to business districts and along major streets. The redevelopment of sites shall remain consistent with this pattern of development.

B. *TN-MDR, Traditional Neighborhood—Mixed-Density Residential Zone District.* The TN-MDR District is intended to provide a variety of housing choices in a spatially diverse manner while protecting established development patterns. Mixed-density neighborhoods are generally found along transit routes, near to business districts and along major streets. They often act as a transition between lower density residential development and non-residential uses. Redevelopment shall remain

consistent with this pattern of development. The redevelopment of former commercial sites is a significant objective through context sensitive architectural designs and features common to the area.

Sec. 5.5.03. Mid-20th Century Neighborhood Residential Zone Districts: Purpose and Intent.

A. *MCN-LDR, Mid-20th Century Neighborhood - Low-Density Residential Zone District.* The MCN-LDR District is intended to protect the established development pattern, consisting predominantly of low-density residential development characterized by single-family detached houses on individual lots with garages located to the side or rear of the main building. New development and building renovation shall be compatible with the valued characteristics of the existing built environment. To that end, a coordinated variety in design is encouraged. The repeated use of identical façade designs shall be avoided.

B. *MCN-MDR, Mid-20th Century Neighborhood - Mixed-Density Residential District.* The MCN-MDR District is intended to provide a variety of housing choices in a spatially diverse manner. The established development pattern, consisting predominantly of low-density residential development characterized by two-family dwellings and small multiple family buildings, shall act as a transition between lower density residential development and non-residential uses. Context-sensitive architectural designs and features common to the area shall be used in the redevelopment of former commercial sites.

Sec. 5.5.04. Modern Era Neighborhood Residential Zone Districts: Purpose and Intent.

A. *MON-LDR, Modern Era Neighborhood - Low-Density Residential Zone District.* The MON-LDR District is intended to reflect the low-density development pattern of single-family detached houses on large lots. The repeated use of identical façade designs shall be avoided. The preservation of natural features such as wetlands, woods and steep slopes are important components and shall be included in development plans for a site.

B. *MON-MDR, Modern Era Neighborhood - Mixed-Density Residential Zone District.* The MON-MDR District is intended to permit the moderate- to high-density single-use development pattern that presently exists; however, it strongly encourages the redevelopment of these properties into a mixed-density format where a variety of housing densities and styles are provided. The preservation of natural features such as wetlands, woods and steep slopes are important components and shall be included in development plans for a site.

Sec. 5.5.05. Uses of Land.

A. *Land Uses.* Uses are allowed in residential Zone Districts in accordance with Table 5.5.05.B. Uses: Residential Zone Districts. Article 16 Definitions shall be referred to for clarity on the uses as listed. The following key is to be used in conjunction with the Use Table.

1. *Permitted Uses.* Uses permitted by right in the Zone District, subject to compliance with all other applicable requirements of this Chapter. These uses are identified with a "P."
2. *Qualified Review.* Uses which may be allowed subject to Director Review unless public hearing before the Planning Commission is requested in accordance with Section 5.12.16., and all other applicable requirements of this Chapter. These uses are identified with a "QR."
3. *Special Land Uses.* Uses which may be allowed subject to review and approval by the Planning Commission in accordance with Section 5.12.09., and all other applicable requirements of this Chapter. These uses are identified with an "S."

4. *Existing Uses.* Uses that were in existence prior to November 5, 2007 may continue to exist as nonconforming uses. These uses are identified with an "E." See Section 5.3.05.F.

5. *Uses Not Allowed.* Uses are prohibited in that Zone District. These uses are identified with an "X".

6. *Use Regulations.* Certain allowed uses, whether Permitted Uses or Special Land Uses, are subject to compliance with Article 9 or other provisions of this Chapter or other City Code. These uses are identified under "Use or Other Regulations." A cell marked with "—" under this heading indicates that there are no additional use requirements. However, there may be other applicable regulations in this Chapter or other City Code for the uses listed that are not noted in the Use Table.

7. *Unlisted Uses.* Uses not listed in the Table 5.6.06.B. are also prohibited unless the Director determines that the use is similar to other uses listed either as a Permitted Use or Special Land Use in accordance with Section 5.4.04.

8. *Site Development.* Vehicle and bicycle parking requirements and pedestrian circulation requirements are in Article 10 Transportation and Mobility. Landscaping requirements are in Article 11 Landscaping and Green Infrastructure. Sign requirements are in Article 15 Signs.

B. *Allowed Uses Table.*

Table 5.5.05.B. Uses: Residential Zone Districts

Use Category	Specific Use		TN, MCN, MON		Use or Other Regulations
			LDR	MDR	
RESIDENTIAL					
Household Living	Single-family dwelling, detached		P	P	5.2.07.
	Single-family dwelling, attached		S/P	P	5.5.05.C, 5.9.06.
	Two-family dwelling - existing		E	P	5.3.05.F.
	Two-family dwelling - new construction		P/S	P	5.5.05.D., 5.5.06.
	Multiple family dwelling		S/X	P	5.5.05.C., 5.9.20.
	Manufactured housing community		X	P	5.9.17.
	Adult foster care	Family home (1—6 residents)	P	P	5.9.04.
		Small group home (7—12 residents)	S	S	
		Large group home (13—20 residents)	S	S	
	Assisted living center		S	S	—
	Nursing/convalescent home		S	S	—
	Residential rehabilitation facility		S	S	5.9.29.
	Rooming or boarding house		S	S	5.9.30., Chapter 116
	Single room occupancy (SRO)	6 or fewer units	P	P	5.9.32.
		7—12 units	S	S	
		13 or more units	X	S	
Transitional or emergency shelter		S	S	S	5.9.36.
Accessory Uses	Accessory dwelling unit		P	P	5.9.03.
	Accessory structure		P	P	5.2.08.
	Child care home (family or group)		P	P	—
	Group home (7—12 children)		S	S	—
	Home occupation (Class A and Class B)		P	P	5.9.14., Chapter 116
EDUCATIONAL, GOVERNMENT AND INSTITUTIONAL					
Educational	All educational uses		S	S	—
	Technical, vocational, and trade school		S	S	—

Table 5.5.05.B. Uses: Residential Zone Districts					
Use Category	Specific Use		TN, MCN, MON LDR	TN, MCN, MON MDR	Use or Other Regulations
Government and Institutional	Adult day care center		S	S	5.9.04.
	Cemetery		P	P	—
	Child care center		S	S	5.9.09.
	Community center		S	S	—
	Community garden		P	P	—
	Hospital		S	S	—
	Library		P	P	—
	Park, playground, plaza, square, urban open space, walkway		P	P	5.11.14.
	Police and fire station		S	P	—
	Religious institution		S	S	—
	Social service facility (w/o residential care)		S	S	5.9.34.
COMMERCIAL, INDUSTRIAL AND UTILITIES					
Commercial	Bed and breakfast		S	P	5.9.08., Chapter 116
	Golf course, country club		P	P	—
	Live-work unit		S	S	5.9.16.
Industrial or Transportation	Mineral extraction		S	S	5.9.21.
	Off-street parking, non-residential		S/X	S	5.5.05.D.
Utilities	Electrical substations and private utilities		P	P	5.9.11.
	Wireless communication facilities	Co-located antenna	P	P	5.9.41.
		Freestanding/tower	X	X	—
P = Permitted; QR = Qualified Review; S = Special Land Use; E = Existing; X = Not Permitted; "—-" = Not Applicable					

C. *Attached Single-Family Residential Use.* For development of Attached Single-Family dwellings on a single lot.

1. Permitted Use within LDR zone districts where the following conditions apply:

   a. Where four (4) or fewer units are constructed in a row on a vacant lot and no demolition is required; and

   b. The parcel is located within five hundred (500) linear feet of a TBA, TOD, TCC or C Zone District, as measured from the closest point of the parcels along the public right-of-way.

2. Special Land Use within LDR zone districts where the following conditions apply:

   a. Where demolition of an existing structure is required; or

   b. More than five (5) units are constructed in a row.

D. *Two-Family Residential Use.* A two-family residential dwelling is a Permitted Use within LDR zone districts when located on a corner lot.

E. *Multiple-Family Residential Use.* A multiple-family residential development of six (6) or fewer units is a permitted use on Link Residential and Network Residential Streets in the TN-LDR Zone District.

(Ord. No. 2017-56, §§ 1—3, 10-24-17; Ord. No. 2018-39, §§ 1, 2, 7-10-18; Ord. No. 2018-44, § 1, 7-24-18; Ord. No. 2018-69, § 3, 12-18-18; Ord. No. 2019-09, § 3, 3-26-19; Ord. No. 2019-11, § 1, 3-26-19; Ord. No. 2020-13, § 2, 4-28-20; Ord. No. 2024-20, §§ 1—4, 4-23-24)

Sec. 5.5.06. Site Layout and Building Placement Requirements.

A. *Site Layout and Building Placement Table.* All development in Residential Zone Districts must comply with the requirements in Table 5.5.06.A. unless otherwise expressly stated, or unless a different requirement is contained in an applicable Overlay District. Lot area and lot width requirements listed in Table 5.5.06.A. shall be used where there is not an established lot size.

Table 5.5.06.A. Site Layout and Building Placement: Residential Zone Districts

Neighborhood Classification		TN		MCN		MON		Use or Other Regulations
Zone District		**LDR**	**MDR**	**LDR**	**MDR**	**LDR**	**MDR**	
Minimum Lot Area (sq. ft./unit - except as noted)								
Detached single-family, interior		3,800	2,500	5,000[1]	3,000[1]	7,000[1]	3,500[1]	5.5.06.B.
Detached single-family, corner		5,000	3,000	6,000	4,000	8,000	4,500	
Attached single-family		1,500	1,250	3,500	3,000	4,500	4,000	5.5.06.B, 5.5.08
Two-family (total)		3,800	2,500	5,000[1]	3,000[1]	7,000[1]	3,500[1]	5.5.06.B.
Multiple family/ group living:	Minimum (sq. ft./ unit)	2,000	1,250	2,500	1,500	2,750	1,750	5.5.09.
	Minimum lot area (total sq. ft.)	—	—	20,000	20,000	25,000	25,000	5.9.20.
Non-residential uses		6,000	6,000	6,000	6,000	6,000	6,000	5.6.07.B.
Minimum Lot Width (ft.)								
Detached single-family, interior		36	36	42[1]	42[1]	60[1]	60[1]	5.5.06.C.
Detached single-family, corner		50	50	70	60	70	70	
Attached single-family (per unit)		—	—	35	30	45	40	
Two-family		36	36	70[1]	60[1]	90[1]	80[1]	
Multiple family/ group living	3—6 units	36	36	100	90	100	100	5.5.06.C.
	7 or more units	90	80					
Non-residential uses		80	80	80	80	100	100	—
Minimum Setbacks and Yards for Residential Uses (ft.)								
Required Building Line (RBL)		27[1]	22[1]	35[1]	30[1]	—	—	5.5.06.D.
Front setback		—	—	—	—	30	20	
Interior Side Setback	One side	5	5	7	5	7	7	5.5.06.E.
	Total both sides	14	14	18	14	18	20	
Corner Side Setback	One side	5	5	7	5	10	7	5.5.06.E.
	Total both sides	20	20	20	20	25	20	
Rear Setback		25	20	25	30	40	30	5.5.06.F.
Minimum Setbacks and Yards for Non-Residential Uses (ft.)								
Front setback		20	20	25	25	25	25	5.5.06.D.
Side setback		10	10	10	10	20	20	5.5.06.E.
Rear setback		25	25	30	30	30	30	5.5.06.F.
See Section 5.11.11.C. for minimum buffer widths where non-residential uses abutting residential uses.								
Building Façade Along RBL (%)		60	60	50	50	—	—	5.5.06.G.
Minimum Green Space at Grade (% of lot area)								
Detached single-family		40	30	50	40	60	50	5.5.06.H.
Attached single-family		40	20	50	30	60	40	
Two-family		35	20	40	25	50	30	
Multiple family		30	20	30	25	30	30	
Non-residential uses		30	30	30	30	30	30	
Minimum Tree Canopy (% of lot area)								
Multiple-family/group living		37	34	48	41	51	35	5.11.09.
Non-residential uses		37	34	48	41	51	35	

[1]This dimension shall apply in areas not established, per Sections 5.2.05.C. and 5.5.06.B-D.

[2]See Section 5.5.06.B.4.

"—" = Not Applicable

B. *Lot Area.*

1. The minimum lot area requirement may not permit allowed densities on every lot. Other factors, such as off-street parking, height limits, dwelling unit sizes and lot configuration may limit the built density.

2. *Lot Areas Not Established.* On blocks where lot areas are not established, Table 5.5.06.A. Site Layout and Building Placement shall apply.

3. *Established Lot Areas.* On blocks where lot areas are established, the following shall apply:

   a. *Detached Single Family Dwellings.*

      i. For detached single-family dwellings on interior lots, the lot area shall be at least the median lot area of interior single-family lots on the same block and for the purposes of this calculation, the same block is defined as both block faces, in the same Zone District, not to exceed five (5) lots on each side of the subject parcel and five (5) lots directly across the street on which there is at least one (1) conforming main structure.

      ii. For detached single-family dwellings on corner lots, the minimum lot area in Table 5.5.06.A. shall apply.

   b. *Two Family Dwellings.*

      i. For two-family dwellings on interior lots, the minimum lot area shall be thirty (30) percent larger than the median lot area of single-family lots on the same block. For the purposes of this calculation, the same block is defined as both block faces, in the same Zone District, not to exceed five (5) lots on each side of the subject parcel and five (5) lots directly across the street.

      ii. For two-family dwellings on corner lots, the minimum lot area may be equal to the median lot area of a single-family lot on the same block and is not eligible for any lot area reductions as provided in Section 5.5.06.B.3.b.iii and 5.5.06.B.3.b.iv.

      iii. Reduction (up to one [1]). The minimum lot area may be reduced by an additional ten (10) percent beyond that required in b.i. above where all of the following conditions apply:

         1. Both units are priced at or below thirty (30) percent of the area median household income (as determined by the American Community Survey of the U.S. Census Bureau), as adjusted for family size, for the census tract in which the development is located, with affordability maintained for at least fifteen (15) years.

         2. The units are comparable in size, amenities and location with other similar units in the same block.

         3. The property owner agrees to the submission of annual reports to the City regarding certification of eligible tenants and purchasers, annual certification of rental property and monitoring of affordable rental housing requirements.

      iv. Reduction (up to two [2]). The minimum lot area may be reduced by an additional ten (10) percent for each dwelling unit that is designed and constructed to meet the Type B Unit accessibility requirements of the ANSI A117.1. standard.

      v. Reductions may be combined for a cumulative reduction of up to thirty (30) percent.

Table 5.5.06.B.3. Use of Minimum Lot Area Reductions Two Family Dwellings - LDR and MDR Zone Districts	
Reductions Used	**Required % of Lot Area Above Median Single-Family Lot Requirements**
None	30%
1	20%
2	10%
3	None

4. *Multiple Family Developments and Group Living.* The minimum lot area in Table 5.5.06.A. shall apply to multiple-family developments and group living, except for adult foster care family homes, which shall comply with the requirements for detached single family dwellings.

C. *Lot Width.*

1. *Lot Widths Not Established.* On blocks where lot widths are not established, Table 5.5.06.A. Site Layout and Building Placement shall apply.

2. *Established Areas.* On blocks where lot widths are established, the following shall apply.

   a. *Detached Single-Family Dwellings.*

      i. For detached single-family dwellings on interior lots, the lot width shall be at least the median lot width of interior single-family lots on the same block. For the purposes of this calculation, the same block is defined as both block faces, and in the same Zone District, not to exceed five (5) lots on each side of the subject parcel and five (5) lots directly across the street.

      ii. For detached single-family dwellings on corner lots, the minimum lot width in Table 5.5.06.A. shall apply.

   b. *Two-Family Dwellings.*

      i. For two-family dwellings on interior lots, the minimum lot width shall be thirty (30) percent larger than the median lot width of single-family lots on the same block. For the purposes of this calculation, the same block is defined as both block faces, in the same Zone District, not to exceed five (5) lots on each side of the subject parcel and five (5) lots directly across the street. In no case shall the lot width be less than the minimum established in Table 5.5.06.A. except as provided in Sections 5.5.06.B.3.b.iii.

      ii. For two-family dwellings on corner lots, the minimum lot width may be equal to the median lot width of a single-family lot on the same block and is not eligible for any lot width reductions as provided in sections 5.5.06.C.2.b.iii and 5.5.06.C.2.b.iv.

      iii. Reduction (up to one [1]). The minimum lot width may be reduced by an additional ten (10) percent beyond that required in b.i. above where all of the following conditions apply:

         (a) Both units are priced at or below thirty (30) percent of the area median household income (as determined by the American Community Survey of the U.S. Census Bureau), as adjusted for family size, for the census tract in which the development is located, with affordability maintained for at least fifteen (15) years.

         (b) The units are comparable in size, amenities and location with other similar units in the same block.

(c) The property owner agrees to the submission of annual reports to the City regarding certification of eligible tenants and purchasers, annual certification of rental property and monitoring of affordable rental housing requirements.

iv. Reduction (up to two [2]). The minimum lot width may be reduced by an additional ten (10) percent for each dwelling unit that is designed and constructed to meet the Type B Unit accessibility requirements of the ANSI A117.1. standard.

v. Reductions may be combined for a cumulative reduction of up to thirty (30) percent.

Table 5.5.06.C.2. Use of Minimum Lot Width Reductions Two Family Dwellings - LDR and MDR Zone Districts

Reductions Used	Required % of Lot Width Above Median Single-Family Lot Requirements
None	30%
1	20%
2	10%
3	None

c. *Multiple Family and Group Living.* The minimum lot width in Table 5.5.06.A. shall apply except for adult foster care family homes which shall comply with the regulations applicable to detached single family dwellings.

d. *Administrative Departure.* An Administrative Departure of two (2) feet may be approved. In no case shall the lot width be smaller than the minimum established in Table 5.5.06.A.

D. *Front Setbacks and Required Building Line (RBL).*

1. *Front Setbacks Not Established - TN Traditional Neighborhood and MCN Mid-20th Century Neighborhoods.* On blocks where the front setback or RBL is not established, the RBL in Table 5.5.06.A. Site Layout and Building Placement shall apply.

2. *Established Areas.* On blocks where the front setback or building line is established, the following shall apply:

a. For all residential dwellings on all lots, the Required Building Line (RBL) shall be equal to, or the median of, the front setbacks of existing main buildings on the same block. For the purposes of this calculation, the same block is defined as both block faces, in same Zone District, not to exceed five (5) lots on each side of the subject parcel and five (5) lots directly across the street. In no case shall the RBL be less than the minimum established in Table 5.5.06.A.

b. Where an established RBL is not present, the minimum setback defined in Table 5.5.06.A. shall apply.

c. An Administrative Departure up to ten (10) feet of the established RBL may be permitted to accommodate individual site conditions, such as mature trees, topography, or other similar physical condition or where the setbacks of existing buildings on the subject block are inconsistent. The Required Building Line may be determined by referencing the front setbacks of the adjacent properties.

E. *Side Yard Setback.*

1. *Side Yard Setbacks.* Table 5.5.06.A. Site Layout and Building Placement shall apply to side yard setbacks.

2. *Side Yard Setbacks Between Districts.*

   a. *Residential.* In no case shall side yard setbacks be less than five (5) feet on each lot between two (2) residential Zone Districts or uses, unless specified otherwise.

   b. *Residential and Non-Residential.* A minimum distance of ten (10) feet shall be maintained on each lot between residential and non-residential Zone Districts or uses.

3. *Exceptions for Attached Single-Family Dwellings.* Exceptions to the side yard requirements for attached single-family dwellings are provided in Section 5.9.06.

4. *Corner Lots.* Corner lots shall have two (2) front yards, two (2) side yards, and no rear yard.

5. *Administrative Departure.* An Administrative Departure up to two (2) feet in a side yard setback may be permitted to accommodate individual site conditions, such as healthy mature trees, topography, or other similar physical condition.

F. *Rear Yard Setback.*

1. *Rear Yard Setbacks.* Table 5.5.06.A. Site Layout and Building Placement shall apply to rear yard setbacks.

2. *Administrative Departure.* An Administrative Departure up to five (5) feet in a rear yard setback may be permitted to accommodate individual site conditions, such as mature trees, topography, or other similar physical condition.

G. *Building Façade Along Required Building Line.* The building façade along the RBL shall meet the requirements of Table 5.5.06.A.

H. *Minimum Required Greenspace at Grade.*

1. *Purpose.* The minimum greenspace requirements are designed to ensure a sufficient amount of area of greenspace for recreation and nature, as well as to provide pervious surface to assist in stormwater management.

2. *Applicability.* The minimum required greenspace, as defined by Article 16, shall apply to each lot in its entirety, including driveways.

3. *Stormwater Credit.* No more than twenty-five (25) percent of pervious surfaces, such as grass pavers, uncovered decks, brick pavers with a sand base, pervious concrete and asphalt, may be applied toward the greenspace requirements of this Section.

4. *Front Yards.* Front yards shall consist of greenspace, and impervious surfaces shall be limited to driveways and private sidewalks.

5. *Multiple-Family Exception.* A reduction of not more than twenty-five (25) percent of the required greenspace listed in Table 5.5.06.A. for a multiple-family property is permitted for development projects with the submission of a stormwater mitigation plan that retains one hundred (100) percent of all stormwater on site, as approved by the City's Environmental Protection Services Department (EPSD); and submittal of a LEED checklist and proof of registration that demonstrates the intent to apply for LEED building certification, or other generally recognized sustainable building certification.

6. *Multiple-Family Administrative Departure.* An Administrative Departure for a multiple-family property may be approved to permit permanent planters, vegetated walls and green roofs that are readily accessible and safe for residential occupants to be included in greenspace calculations. These items shall be measured in square feet of surface area.

I. *Residential Bonuses.*

1. *Purpose.* The Master Plan calls for a range of housing types and price points within neighborhoods to accommodate all residents regardless of income, special need or place in life cycle. Developments can receive bonuses as outlined in this Section by providing additional accessibility and housing that is affordable to a wide range of residents.

2. *Housing Bonuses.* Bonuses are available for two-family and multiple family developments in accordance with the provisions of Table 5.5.06.I.2.

Table 5.5.06.I.2. Summary of Available Residential Bonuses

Condition		Districts	Incentive/ Bonus	Bonus
Accessible Housing	Two-family residential	LDR, MDR	5.5.06.I.3.a	Reduced minimum lot area/width
	Multiple-family residential		5.5.06.I.3.b	Reduced lot area per dwelling
Affordable Housing	Multiple-family residential	LDR, MDR	5.5.06.I.4	Reduced lot area per dwelling
Mixed-Income Residential	Two-family residential	LDR	5.5.06.I.5.a	Reduced minimum lot area/width
Mixed-Income Residential	Multiple-family residential	LDR, MDR	5.5.06.I.5.b	Reduced lot area per dwelling

3. *Accessible Housing.* Bonuses are available for two-family and multiple family developments when units are designed and constructed to meet the ANSI A117.1 standards for Type B accessible units when the following conditions are met.

   a. *Two-Family Developments.* The minimum lot area for two-family residential developments may be reduced where the conditions of Section 5.5.06.B.3.b.iii. are met.

   b. *Multiple-Family Developments.* The minimum lot area for a multiple family development may be reduced by up to five hundred (500) square feet per dwelling unit when at least twenty-five (25) percent of the units are accessible.

4. *Affordable Housing Bonuses.* Density bonuses are available for Multiple-Family developments in accordance with the provisions of Table 5.5.06.I.2.

   a. The minimum lot area per dwelling unit may be reduced by up to five-hundred (500) square feet per dwelling unit where at least twenty (20) percent of the total number of dwelling units are priced between sixty (60) percent and seventy-nine (79) percent of Area Median Income, as adjusted for family size, with rates remaining affordable for at least thirty (30) years.

   b. The minimum lot area per dwelling unit may be reduced by up to one thousand (1,000) square feet per dwelling unit where at least twenty (20) percent of the total number of dwelling units are priced at or below thirty (30) percent of Area Median Income, as adjusted for family size, with rates remaining affordable for at least thirty (30) years.

   c. The Affordable Housing Bonus, as permitted in subsections a and b above, are available only when the following conditions are met:

      i. The affordable units shall be comparable in unit sizes, amenities and location with the market rate units.

ii. The property owner agrees to the submission of annual reports to the City regarding certification of eligible tenants and purchasers, annual certification of rental property and monitoring of affordable rental housing requirements.

iii. That the property owner agrees in a writing and recorded with the Kent County Register of Deeds and in a form approved by the City Attorney, that continual compliance with all conditions contained herein are necessary to maintain compliance with this Chapter. A violation of any condition is a violation of the Zoning Ordinance and is a nuisance per se for which the City of Grand Rapids may in addition to other remedies, institute any court or enforcement action provided for by law, including but not limited to, seeking injunctive relief or abatement after a notice and hearing before the Board of Zoning Appeals.

5. *Mixed-Income Housing.* Bonuses are available in accordance with the provisions of Table 5.5.06.I.2. when the following conditions are met.

a. *Two-Family Developments.* The minimum lot area for two-family residential developments may be reduced where the conditions of Section 5.5.06.B.3.b.iii. and b.iv are met.

b. *Multiple-Family Developments.* The minimum lot area for a multiple family development may be reduced by up to five hundred (500) square feet per dwelling unit for a project that satisfies the following criteria:

i. Project is located within three hundred (300) feet of a transit line;

ii. At least twenty (20) dwelling units are developed as part of the project;

iii. If rental units, not less than fifteen (15) percent nor more than thirty (30) percent of the total number of units are priced for households at or below sixty (60) percent of Area Median Income, as adjusted for family size, with rental charges remaining affordable for at least fifteen (15) years.

iv. If owner units, not less than fifteen (15) percent nor more than thirty (30) percent of the total number of units are priced for households at or below eighty (80) percent of Area Median Income, as adjusted for family size.

v. The remaining units are priced at market rate.

vi. The affordable units shall be comparable in unit sizes, amenities and location with the market rate units.

vii. The property owner agrees to the submission of annual reports to the City regarding certification of eligible tenants and purchasers, annual certification of rental property and monitoring of affordable rental housing requirements.

(Ord. No. 2018-69, §§ 4, 5, 12-18-18; Ord. No. 2019-09, § 4, 3-26-19; Ord. No. 2019-10, § 1, 3-26-19; Ord. No. 2024-20, §§ 5—9, 4-23-24)

Sec. 5.5.07. Building Element Requirements.

A. *Building Elements Table.* All development in the Residential Zone Districts shall comply with the requirements in Table 5.5.07.A. Building Elements unless otherwise expressly stated, or unless a different requirement is contained in an applicable Overlay District.

Table 5.5.07.A. Building Elements: Residential Zone Districts

Neighborhood Classification		TN		MCN		MON		Use or Other Regulations
Zone District		LDR	MDR	LDR	MDR	LDR	MDR	
Maximum Height								
Residential Permitted Use	Stories	2 ½	3	2 ½	3	2 ½	3 ½	5.5.07.B.1.
	Feet	35	45	35	45	35	52	

Table 5.5.07.A. Building Elements: Residential Zone Districts								
Neighborhood Classification		TN		MCN		MON		Use or Other Regulations
	Zone District	LDR	MDR	LDR	MDR	LDR	MDR	
Residential SLU	Stories	3	4	3	6	3	8	5.5.07.B.2
	Feet	45	60	45	90	45	120	
Non-Residential	Stories	3	3	3	3	3	3 ½	5.5.07.B.1.
	Feet	45	45	45	45	45	52	
Materials								
Residential		R	R	R	R	R	R	5.5.07.C.
Non-residential		R	R	R	R	R	R	
Façade Variation								
Multiple-Family and Non-residential		R	R	R	R	—	—	5.5.07.D.
Building Orientation		R	R	R	R	—	—	5.5.07.E.
Entrance		R	R	R	R	—	—	5.5.07.E.
Transparency (% of building wall area)								
Front	All residential	20	20	15	15	15	15	5.5.07.F.
Side	Detached, attached single-family	3 windows minimum at 6 sq. ft. each						—
	Two-family, multiple-family	10	10	10	10	10	10	—
Non-Residential	Front	40	40	40	40	40	40	—
	Side	20	20	20	20	10	10	—
Transitional Features		R	R	R	R	R	R	5.5.07.G.
Streetscape Design		R	R	R	R	R	R	5.11.13.
S = Special Land Use; R = Rules Apply; "-" = Not Applicable.								

B. *Building Height.*

1. See Section 5.2.06. Building Height for additional information and exceptions.

   In keeping with the character of the TN Neighborhood Classification the entire height of the first floor or ground floor shall be at or above grade.

2. Residential building heights may be increased from the requirements of Table 5.5.07.A. by Special Land Use approval. The Planning Commission shall take into consideration the neighborhood context, scale, massing and compatibility of the proposed structure in making its decision.

C. *Materials.*

1. *Permitted Materials.*

   a. Durable building materials, simple configurations and solid craftsmanship are required.

   b. Walls visible from public streets, exclusive of wall areas devoted to meeting transparency requirements, shall be constructed of: high quality, durable materials, including: brick; fiber cement siding, high-quality finished metal; wood lap, aluminum or vinyl siding; and split-faced block, stucco or stone.

   c. EIFS is permitted for accents only.

   d. To provide visual depth and strong shadow lines, clapboard siding must have a minimum butt thickness of a quarter (¼) of an inch.

2. Where more than one (1) façade material is proposed vertically, the 'heavier' material in appearance shall be incorporated below the 'lighter' material (e.g. masonry below siding).

3. *Roofing Materials.*

   a. Roofing materials shall be those used and installed in a manner customary for residential construction, shall be compatible in character and scale with the residential structure on which it is being installed, shall be installed according to the manufacturer's specifications, shall have no visible fasteners, and shall be uniform in type and appearance within each uninterrupted roof plane.

   b. Acceptable roof materials include three hundred (300) pound or better, dimensional asphalt composite shingles, wood shingles and shakes, metal tiles or standing seam, slate, and ceramic tile. The approving authority may permit "engineered" wood or slate with an approved sample and examples of successful, high quality local installations.

   c. Corrugated roofing materials are not permitted.

4. Repairs and replacements shall be completed with materials similar in color and appearance to the existing materials.

5. Orientation. Building materials in TN Zone Districts shall have a traditional, horizontal orientation.

6. Administrative Departure. Other materials of equivalent or better quality, including high quality synthetic materials, may be approved, if determined appropriate for the building, site, and area with an approved sample and examples of successful, high quality local installations.

D. *Façade Variation.* The following requirements shall apply to multiple-family dwellings and non-residential buildings in Zone Districts within TN and MCN Neighborhood Classifications.

1. Uninterrupted Façade. The maximum linear length of an uninterrupted building façade facing a public street and/or park shall be thirty (30) feet. Building wall offsets (projections and recesses), cornices, plinths, quoins, varying building materials or pilasters shall be used to break up the mass of a single building.

2. Vents, air conditioners and other utility elements shall not be part of any street-facing building façade. Where these elements are part of other façades, particular care must be taken to render these elements less visible to public view through architectural integration or other means of screening.

3. Administrative Departures. Administrative Departures may be granted for:

   a. A reduction of up to five (5) feet of the thirty (30) foot requirement may be approved, depending on actual building design, entrance placement, and other factors that make the requirement impractical.

   b. Other methods to provide adequate articulation, provided that the visual effect of articulation is maintained. Examples of acceptable variations may include architectural or artistic details or features, a variation in color or materials and enhanced ornamentation around building entranceways.

   c. Locations of vents, air conditioners, and other utility elements where physical conditions of the site dictate a location on the street-facing façade.

E. *Entrances.*

1. *Orientation.*

   a. *Interior Lots.* For interior lots, the primary building entrance shall be located in the front façade parallel to the street or urban open space.

b. *Corner Lots.* For corner lots, the primary entrance shall face the street from which the structure derives its street address. However, two-family dwellings shall have a separate primary entrance per dwelling unit, with only one primary entrance per street.

c. *Administrative Departure.* Alternative orientations may be considered where consistent with existing adjacent development or practical considerations based on existing structure layout.

2. *Primary Entrances.* Primary entrances for all residential structures shall be clearly defined by at least one (1) of the following:

a. A projecting or recessed entrance. A recessed entrance is required if the entrance is within five (5) feet of the lot line; the entrance recess shall not be less than the width of the door(s) when opened outward.

b. Stoop or enclosed or covered porch, provided that an enclosed porch shall comply with required setbacks, except as provided in E.3. below.

c. Transom and/or side light window panels framing the door opening.

d. Architectural trim framing the door opening.

e. Administrative Departure. Other methods, such as unique color treatments, additional moldings with expression lines, or bays of unique width, may be approved with an Administrative Departure provided the same effect is achieved.

3. *TN Neighborhood Classification - Porches and Stoops.* In addition to the above, residential dwellings located in Zone Districts within the TN Neighborhood Classification shall be subject to Section 5.2.07.F. and the following requirements:

a. The primary entrance facing the street shall include a stoop or a front porch.

b. Projections into RBLs and Front Yards.

i. For lots with an RBL, a stoop may be built up to six (6) feet (not including steps) forward of the RBL, and shall be at least three (3) feet wide. An unenclosed front porch may be built up to six (6) feet (not including steps) forward of the RBL.

ii. For lots with a setback, an unenclosed porch or stoop (not including steps) may project into the front yard by no more than ten (10) feet, but shall be no closer than five (5) feet to the front sidewalk.

c. Porches, not including steps, shall be at least six (6) feet deep to provide for usable seating and circulation, and be at least one-third (⅓) the width of the front façade of the residential structure (not including the garage), but in no case shall be less than eight (8) feet wide.

d. Building materials shall be compatible with the main building.

e. Porch fixtures such as columns, pillars, posts and railings shall be coated with stain or paint if materials made of wood are used.

f. Administrative Departures may be granted for the following.

i. A decrease in the required porch projection up to two (2) feet if, due to required building setbacks, the required projection cannot be satisfied.

ii. Porch or entrance enclosures may be permitted where individual site conditions dictate the need for enclosure or where the enclosure and its placement is consistent with others on the same block face, for the same use and in the same Zone District. In all cases, at least eighty (80) percent transparency shall be maintained.

iii. Entrances to dwellings to accommodate persons with mobility impairments.

4. *Non-Residential Structures.* Non-residential structures in Residential Zone Districts shall comply with the requirements of Section 5.6.08.F. for entrances.

F. *Transparency.*

1. *General Requirements.* The General Provision requirements of Section 5.2.14. Building Transparency shall apply.

2. *Residential Buildings.* Residential buildings shall have windows on all exterior walls of the structure. The size and placement of windows on the façade shall be generally uniform.

   a. *TN Residential Dwellings.* For all residential dwellings in Zone Districts within the TN Neighborhood Classification, at least twenty (20) percent of the area of the front façade shall consist of windows or primary entrance doors which permit a view from the dwelling to the street.

   b. *MCN and MON Residential Dwellings.* For all residential dwellings in Zone Districts within MCN and MON Neighborhood Classifications, at least fifteen (15) percent of the area of the front façade shall consist of windows or primary entrance doors which permit a view from the dwelling to the street.

   c. *Single-Family Detached and Attached Dwellings (e.g. row houses and townhouses).*

      i. At least three (3) windows with a minimum of six (6) square feet each are required on the building's side walls (those adjoining the front façade).

      ii. Administrative Departure. An Administrative Departure may be granted for side wall transparency for single-story dwellings where it is determined that the requirement cannot be met due to the interior design of the dwelling.

   d. *Two-Family and Multiple-Family Dwellings.* For two-family dwellings and multiple-family dwellings, at least ten (10) percent of the area of the building's side walls (those adjoining the front façade) shall consist of windows.

3. *Non-Residential Buildings.*

   a. For non-residential building façades facing public streets, parks and through block walkways, at least forty (40) percent of the façade area shall consist of window and door openings.

   b. In the TN and MCN Neighborhood Classifications, at least twenty (20) percent of the area of a building's side walls (those adjoining the front façade) must consist of windows.

   c. In the MON Neighborhood Classification, at least ten (10) percent of the area of a building's side walls (those adjoining the front façade) must consist of windows.

G. *Transitional Features.*

1. *Purpose.* Transitional features are architectural elements, site features and alterations to building massing that are used to provide a transition between higher intensity uses and low- or moderate-density residential uses. These features assist in mitigating potential conflicts between those uses in lieu of conventional landscape buffers or large setbacks. It is the intent of these standards to:

   a. Reduce land consumption;

   b. Create a compatible mixed-use environment;

   c. Limit interruptions in vehicular and pedestrian connections created by efforts to segregate densities and uses; and

d. Establish or maintain vibrant pedestrian- and transit-oriented areas where differing uses and densities can operate in close proximity to one another.

2. *Applicability.* Transitional features shall be required in the following circumstances.

a. Where buildings or structures would be one (1) or more stories higher than adjacent residential buildings or structures.

b. Where non-residential uses are situated adjacent to residential buildings or structures.

c. Where higher-intensity land uses that would adversely affect the livability of an area.

d. As a condition of any zoning approval required by Article 12 when necessary to ensure that the appropriate review standards are satisfied.

3. *Transitional Features.* The following transitional features may be required either singly or in combination.

a. *Landscape Buffer.* The Director or approving body for a required zoning approval, as applicable, may require the use of a landscape buffer (Section 5.11.12.) in lieu of, or in addition to, a transitional feature where such landscape buffer would be sufficient to reduce potentially adverse impacts between incompatible uses, densities or different building types.

b. *Uses.* A continuum of use intensity, where moderate intensity uses are sited between high-intensity uses and low-intensity uses, may be required for multi-building developments on one (1) or more lots. An example would be a duplex between a single-family home and an apartment building.

c. *Height and Massing.* Building height and massing shall be reduced in the form of building step-backs, recess lines or other techniques so that large structures are compatible in scale with smaller, adjacent structures.

d. *Architectural Features.* Similarly sized and patterned architectural features such as windows, doors, arcades, pilasters, cornices, wall offsets, building materials, and other building articulations included on the lower-intensity use shall be incorporated as transitional features.

4. *Parking and Loading.* Where possible, off-street parking, loading, service and utility areas shall be located away from a lower-intensity use.

(Ord. No. 2018-62, § 1, 10-23-18; Ord. No. 2019-09, § 5, 3-26-19)

ARTICLE 6. MIXED-USE COMMERCIAL ZONE DISTRICTS

Sec. 5.6.01. Purpose and Intent.

A. Mixed-Use Commercial Districts are intended to accommodate commercial and high-density residential uses that are compatible with the character of existing neighborhoods as defined through the Development Character of the Master Plan. The preservation and reuse of existing buildings, construction of new buildings on underutilized sites and the continuation of a compact development pattern as reflected in the Master Plan are key objectives for these Zone Districts.

B. There are three types of Mixed-Use Commercial Districts: City Center, Linear and Core.

1. *City Center.* City Center acknowledges downtown Grand Rapids as the business and cultural heart of the metropolitan region. A dense development pattern focused on the close proximity

of services, a diversity of uses and dynamic building styles characterize this Zone District. The compatibility of more intense development with surrounding neighborhoods is emphasized through the use of a transitional Zone District.

2. *Linear Commercial Areas.* Linear commercial areas may pass through multiple Neighborhood Classifications and front on a Major Street, as defined by the City of Grand Rapids Street Classification Policy. The scale of new development and the transportation orientation of these Zone Districts are important factors in establishing the use and building element requirements of this Article.

3. *Core Commercial Areas.* Core commercial areas are primarily focused around particular intersections, with defined edges that abut less intense uses. Transit-Oriented Development Zone Districts are focused on creating viable areas for transit and transit stations. The scale and intensity of those core areas, however, varies depending upon the Neighborhood Classification, the available land area, proximity of established residential neighborhoods and street capacity. Rezoning requests to a Transit-Oriented Development require the installation of a qualifying transit station, as described in Section 5.6.08.B.2.c.

C. Placemaking.

1. Placemaking is the practice of creating conditions where people can live, socialize, play, and shop in well-designed, comfortable places. Important placemaking elements in each of the Zone Districts are provided to inform zoning requirements and guide development decisions to achieve specific placemaking objectives. These elements are intended to work in concert to ensure the creation of attractive and affordable residential areas, protect existing neighborhood and historic character and resources, allow an appropriate mix of uses that improves economic vitality, and improve the health and well-being of Grand Rapids' residents.

2. To promote placemaking buildings and places should have a range of high-quality residential, commercial, mixed-use and civic architectural styles to reinforce the unique identities of each part Neighborhood and Zone District. In general, buildings should contribute to placemaking by:

   a. Being easily convertible spaces that allow for uses to change over time;

   b. Having residential uses with a variety of housing types, sizes, and price levels;

   c. Creating the potential for a broad mix of shops, offices, and housing integrated within and among a variety of building types; and

   d. Ensuring that architecture reflects the City's commitment to high quality and enduring character.

(Ord. No. 2024-40, § 1, 9-24-24)

Sec. 5.6.02. Traditional Neighborhood Mixed-Use Commercial Zone Districts: Purpose and Intent.

A. *TN-CC, Traditional Neighborhood—City Center Zone District (City Center).*

1. The intent of this District is to maintain and enhance the vitality of downtown, reinforce its intense development pattern, provide compatible services near one another, allow diverse uses, and keep older, often historic, buildings in viable use. The compact development pattern of

downtown establishes a pedestrian-oriented and transit-friendly environment. The City Center Zone District stresses pedestrian circulation, urban and civic design, protection of natural features, and encourages the reuse of existing buildings.

2. Placemaking Elements.

   a. Attractive, affordable residential areas that contribute to the achieving a critical mass of commercial services, workplaces within walking distance, and reduced reliance on private vehicle travel.

   b. Interesting and fun places to eat and socialize with a mixture of ages, social peers, co-workers, and families.

   c. Well placed, functional, attractive, and sustainable open spaces, including outdoor cafes, seating areas, and public and private art installations, and other elements to create areas of recreation, rest, and refuge.

   d. Improved mobility options downtown, and to reduce the need for on-site parking by encouraging alternative means of transportation, including use of mass transit, bicycle use and other traffic demand management options through the creation of appropriate density of development.

   e. A comfortable and safe walking environment, with a high degree of transparency along pedestrian pathways that connect areas of interest.

   f. Targeted Commercial Corridors to promote a concentration of retail and entertainment uses that will provide a more consistent shopping experience and enhance the ability of these uses to be financially successful.

   g. Other elements related to the downtown that create healthy, attractive, safe, and fun areas that will attract new visitors, residents, and shoppers to the downtown.

B. *TN-TCC, Traditional Neighborhood—Transitional City Center Zone District (City Center).*

1. The Transitional City Center (TCC) District is the buffer district between the dense City Center Zone District and surrounding near-downtown neighborhoods. This District provides a transition in the intensity of the downtown development pattern for adjacent areas, however, it allows for more development than would ordinarily be allowed in general neighborhood commercial locations.

2. Placemaking Elements.

   a. Sensitivity in the redevelopment of these structures and in new development is necessary to reinforce the unique physical characteristics of downtown and surrounding neighborhoods, ensure compatibility with adjacent land uses and structures, and maintain neighborhood stability.

   b. The presence of older, often historic, large warehouse buildings in these transition areas requires dense development to ensure proper reuse of these structures.

   c. Development and redevelopment in this Zone District combines these elements to create and maintain a compact, transit-friendly, walkable, mixed-use environment.

   d. Targeted Commercial Corridors promote a concentration of retail and entertainment uses that will provide a more consistent shopping experience and enhance the ability of these uses to be financially successful.

C. *TN-TBA, Traditional Neighborhood—Traditional Business Area Zone District (Linear).*

1. The TN-TBA Zone District is designed to reinforce a pedestrian and transit friendly environment in a compact area characterized by a mix of uses. New development on primary and secondary street frontages shall be compatible in use and scale with surrounding, existing uses and structures.

2. Placemaking Elements.

   a. A mix of small-scale retail, service, entertainment, civic, office and residential uses in appropriate locations are encouraged to enhance the vitality of the areas.

   b. Retail service uses should be properly located to create a complementary concentration of uses, rather than a series of scattered uses throughout the Linear development character areas. These core areas should be linked by residential, civic, and institutional uses that also complement neighborhood character.

   c. High quality architectural design and materials are important components of all structures to reinforce existing neighborhood character.

   d. Small lot sizes, storefront windows, observable building entrances, structures that abut the sidewalk and on-street or hidden off-street parking all contribute towards the establishment of a pedestrian-oriented environment.

   e. Buildings should have enough developable density to allow for the planned mix of uses, including enough residential and non-retail uses on upper floors to ensure a successful, economically sustainable project.

   f. While some suburban style development, such as auto-oriented uses, may be developed, they should not be so predominant that a suburban, strip development character is allowed.

3. The recommendations for Traditional Business Area in a Pre-World War II Neighborhood Context, Chapter 10, Section 10.4. of the Master Plan applies to these areas.

D. *TN-TOD, Traditional Neighborhood—Transit-Oriented Development Zone District (Core).*

1. The intent of the TN-TOD District is to preserve and create, compact, walkable, transit-oriented, mixed-use centers in existing commercial areas by encouraging the clustering of ground floor retail uses as a shopping destination and focus of neighborhood activity.

2. Transit-Oriented Development Zone Districts shall be located on a transit route and may contain public spaces for shared activities. Building height, density and parking incentives are provided to encourage transit ridership.

3. Placemaking Elements.

   a. Appropriate densities of development are important to ensure sustained, well-used transit service.

   b. Street-level retail and services, with upper-story residential and office use is desired.

   c. Parking shall be provided both on-street and in screened, off-street business district lots.

   d. Uses are compatible and in scale with surrounding, existing uses and structures located at the edge of the Zone District, particularly residential uses.

   e. High quality architectural design and materials are important components of all structures to support a sense of place.

Sec. 5.6.03. Mid-20th Century Neighborhood Mixed-Use Commercial Zone Districts: Purpose and Intent.

A. *MCN-C, Mid-20th Century Neighborhood—Commercial Zone District (Linear).*

1. The MCN-C Zone District is intended to accommodate vehicles at an appropriate level, while still emphasizing the importance of pedestrians and public transportation in the built environment.
2. Placemaking Elements.
    a. Small and medium-scale businesses, service and commercial uses that serve the immediate neighborhood and surrounding area are desired.
    b. Mixed-use commercial areas that include a residential component are encouraged, including the redevelopment of older commercial sites for moderate to high-density residential uses.
    c. Moderate lot sizes and setbacks, building orientation to the street, and transparency along pedestrian pathways are important characteristics of this Zone District.
    d. New development on primary and secondary street frontages should be compatible in use and scale with surrounding, existing uses and structures.

B. *MCN-TOD, Mid-20th Century Neighborhood—Transit-Oriented Development Zone District (Core).*

1. The MCN-TOD Zone District is intended to allow uses and densities that are more intense than that permitted in the TN-TOD Zone District. The reconfiguration of existing shopping centers into mixed-use developments that are pedestrian and transit friendly, and which still reasonably accommodate vehicles, is desired.
2. Placemaking Elements.
    a. Building height, density and parking incentives are provided to encourage transit-oriented development and increased transit ridership.
    b. Larger lot sizes, available parking and parcels generally under single ownership provide for an assortment of redevelopment opportunities for commercial, office and residential uses.
    c. Individual store footprints are limited in size to ensure a diversity of shops and to maintain a pedestrian-scale environment.
    d. New residential development above storefronts and/or provided as a buffer to existing residential uses is desired.
    e. Edge areas in the Zone District shall be sensitive to surrounding neighborhoods to limit adverse effects.

Sec. 5.6.04. Modern Era Neighborhood Mixed-Use Commercial Zone Districts: Purpose and Intent.

A. *MON-C, Modern Era Neighborhood—Commercial Zone District (Linear).*

1. The purpose of the MON-C Zone District is to accommodate a broad range of business, service and commercial uses. Development in this District is generally more destination-oriented; with a greater dependence upon vehicles.
2. Placemaking Elements.
    a. High-intensity business, service and commercial uses take place on larger sites that have primary access to major streets.

b. Medium and high density residential development is encouraged on underutilized commercial sites, and particularly in areas adjacent to a Transit-Oriented Development Zone District.

c. Pedestrian and public transportation accommodations shall remain important considerations in site design. However, off-street parking, drive-through and auto-oriented uses are more prominent.

B. *MON-TOD, Modern Era Neighborhood—Transit-Oriented Development Zone District (Core).*

1. The MON-TOD Zone District supports compact sub-regional mixed-use centers that consist of intense, multi-level commercial, office and residential uses on major streets.

2. Placemaking Elements.

a. Large parcels, generally under single ownership, provide for an assortment of redevelopment opportunities in commercial strip and shopping center locations.

b. A Transit-Oriented Development Zone District may be located on a transit route and may contain public spaces for shared activities.

c. Building height, density and parking incentives are provided to encourage transit ridership.

d. Individual store footprints are limited in size to ensure a diversity of shops and to maintain a pedestrian-scale environment.

e. Particular emphasis is placed on pedestrian, bike and transit accommodations; the presence of private vehicles is discouraged.

f. At important intersections buildings shall anchor and define street corners as well as conceal surface parking lots.

g. The consolidation of driveways, increased pedestrian connections and additional landscaping to buffer parking areas shall promote a safe and attractive environment.

h. New residential development above storefronts and/or provided as mid-rise structures integrated into a mixed-use environment are desired.

Sec. 5.6.05. NOS, Neighborhood Office Service Purpose and Intent.

A. The NOS, Neighborhood Office Service Zone District is provided as a Zone District in addition to the Mixed-Use Commercial District of this Article. The purpose of the NOS Zone District is to allow for small-scale office and service uses that serve the immediate neighborhood and which, by their nature, have minimal effects upon surrounding land uses and public infrastructure. Accordingly, this District may appear in any of the Neighborhoods provided for in this Chapter.

B. Placemaking Elements.

1. This District may be used on major streets to accommodate uses that allow a smoother transition from a more intense commercial area to residential uses. In this regard, they may also be used to buffer the effects of heavier traveled streets from residential areas.

2. Development style is residential in character and complements the features of nearby structures.

3. Areas in this Zone District may be relatively compact and used to assist in creating additional land use compatibility through the use of smaller scale buildings.

4. The NOS District is specifically not intended to be applied as a precursor for commercial development or used to systematically eliminate residential properties.

Sec. 5.6.06. Uses of Land.

A. *Land Uses.* Uses are allowed in Mixed-Use Commercial Zone Districts in accordance with Table 5.6.06.B. Uses: Mixed-Use Commercial Zone Districts. Article 16 Definitions shall be referred to for clarity on the uses as listed. The following key is to be used in conjunction with the Uses Table.

1. *Permitted Uses.* Uses permitted by right in the Zone District, subject to compliance with all other applicable requirements of this Chapter. These uses are identified with a "P."
2. *Special Land Uses.* Uses which may be allowed subject to review and approval by the Planning Commission in accordance with Section 5.12.09., and with all other applicable requirements of this Chapter. These uses are identified with an "S."
3. *Existing Uses.* Uses that were in existence prior to November 5, 2007 may continue to exist as nonconforming uses but are not permitted to be established as new uses. These uses are identified with an "E." See Section 5.3.05.F.
4. *Uses Not Allowed.* Uses are prohibited in that Zone District. These uses are identified with an "X."
5. *Unlisted Uses.* Uses not listed in the Table 5.6.06.B. are also prohibited unless the Director determines that the use is similar to other uses listed either as a Permitted Use or Special Land Use in accordance with Section 5.4.04.
6. *Use Regulations.* Certain allowed uses, whether Permitted Use or Special Land Use, are subject to compliance with Article 9 or other provisions of this Chapter or other City Code. These uses are identified in the Table 5.6.06.B. under "Use or other Regulations." A cell marked with "-" under this heading indicates that there are no additional use requirements. However, there may be other applicable regulations in this Chapter or other City Code for the uses listed that are not noted in the Use Table.
7. *Exception.* "Exceptions" as noted in Table 5.6.06.B. permit non-retail uses within the ground floor of a commercial building if the building was constructed for purposes or uses other than retail sales. For example, a building constructed for offices may be used for ground floor offices or a dance studio.
8. *Outdoor Activities.* All uses and activities shall be conducted wholly within an enclosed building, unless otherwise expressly permitted by this Chapter.
9. *Site Development.* Vehicles and bicycle parking requirements and pedestrian circulation requirements are in Article 10 Transportation and Mobility. Landscaping requirements are in Article 11 Landscaping and Green Infrastructure. Sign requirements are in Article 15 Signs.

B. *Uses Table.*

Table 5.6.06.B. Uses: Mixed-Use Commercial Zone Districts									
			TN			TN MCN MON	MCN MON		
Use Category	**Specific Use**		**CC***	**TCC**	**TBA*****	**TOD****	**C**	**NOS**	**Use or Other Regulations**
RESIDENTIAL									
Household Living	Dwellings	Ground floor	S	P	P	P/S/E	P	P	-
		Upper floors	P	P	P	P	P	P	-
	Household living		P	P	P	P	P	P	5.6.06.E. 5.9.03. 5.9.20.
	Lodging, extended stay		P	P	S	S	S	X	5.6.06.E.
	Manufactured housing community		X	X	X	X	X	X	5.6.06.E. 5.9.17.
	Live-work unit		P	P	P	P	P	P	5.8.07.C., 5.9.16
Group Living (including residential care)	Group living		P	P	S	S	S	S	5.8.07.C., 5.9.04., 5.9.29., 5.9.30., 5.9.32.
Accessory Uses	Accessory dwelling unit		P	P	P	P	P	S	5.9.03.
	Accessory structure		X	X	S	X	S	P	5.2.08.
	Home occupation		P	P	P	P	P	P	5.9.14.
EDUCATIONAL, GOVERNMENT AND INSTITUTIONAL									
Educational	Educational use, including residential & accessory facilities		P	S	S	S	S	S	-
Government and Institutional	Adult day care center		P	S	S	S	S	S	5.9.04.
	Amphitheater, outdoor		S	S	X	X	X	X	-
	Cemetery		X	X	X	X	X	X	-
	Child care center		P	S	S	S	S	S	5.9.09.
	Community center		P	S	S	S	P	S	-
	Community garden		P	P	P	P	P	P	-
	Government & institutional uses	Ground floor	P	P	S	S	P	P	-
		Above ground floor	P	P	P	P	P	P	-
	Hospital, clinic, medical center, rehabilitation center, related administrative offices		P	P	S	S	P	X	5.9.29.
	Library		P	P	P	P	P	S	-
	Public, private and urban open spaces		P	P	P	P	P	P	5.11.14.
	Religious institution		P	S	S	S	S	S	-
	Social service facility	Ground floor	P	P	S	S	P	P	5.9.34.
		Upper floors	P	P	P	P	P	P	
	Youth center		P	S	S	S	S	S	
COMMERCIAL, OFFICE, RETAIL									

Table 5.6.06.B. Uses: Mixed-Use Commercial Zone Districts									
			TN			TN MCN MON	MCN MON		
Use Category	Specific Use		CC*	TCC	TBA***	TOD**	C	NOS	Use or Other Regulations
Auto-Oriented	Automobile rental, short-term		S	S	S	S	P	X	5.9.39.
	Auto supply/accessory sales (new)		X	P	P	X	P	X	5.9.39.G.
	Auto supply/accessory sales (used)		X	X	P	X	S	X	5.9.39.G.
	Car wash		X	X	S	X	S	X	-
	Drive-in or drive-through facility		S	S	S	S	S	X/S	5.9.02. 5.9.10.
	Vehicle service or repair		S	S	S	X	P	X	5.9.40.
	Vehicle fuel station (without vehicle repair, may include 1,000 sq. ft. convenience store)		S	S	S	X	S	X	5.9.38.
	Vehicle towing and storage (including auto, RV, boat) - indoor and outdoor		S	S	S	X	S	X	5.9.18.
	Vehicle sale/lease (including auto, RV, boat) indoor showroom	See Section 5.9.39.G. State Licenses							5.9.39.
		Outdoor display	X	X	X	X	S	X	

Table 5.6.06.B. Uses: Mixed-Use Commercial Zone Districts									
			TN			TN MCN MON	MCN MON		
Use Category	Specific Use		CC*	TCC	TBA***	TOD**	C	NOS	Use or Other Regulations
Entertainment, Hospitality and Recreation	Alcohol sales for on-site consumption (LCC permit)		See Section 5.9.05. Alcohol Sales					X	5.9.05.
	Alcohol sales for off-site consumption (including package good store - LCC Permit)	24,999 sq. ft. GFA or less	See Section 5.9.05. Alcohol Sales					X	5.9.05.
	Arcade, amusement devices, gaming, pool hall		P	S	S	S	P	X	-
	Auditorium, cinema, concert hall, theater, banquet hall		P	S	S	S	S	X	5.9.05. 5.9.07. 5.9.12.
	Bar, tavern, taproom, tasting room		See Section 5.9.05. Alcohol Sales					X	5.9.05.
	Boat house, marina, boat launch		P	S	X	X	X	X	-
	Bowling alley, skating rink		P	S	S	S	P	X	-
	Casino		S	X	X	X	X	X	—
	Catering business		P	S	S	S	P	X	Exception
	Convention center		P	X	X	X	X	X	-
	Dance club, night club		S	S	X	X	S	X	5.9.05. 5.9.12.
	Dance, entertainment (LCC permit), including after hours (LCC permit)		S	S	S	S	S	X	5.9.05. 5.9.12.
	Entertainment, live (not including regulated uses)		P	S	S	S	S	X	5.9.12.
	Golf course, country club		X	P	P	P	P	P	-
	Health or athletic club, sports complex (e.g. tennis, swimming, golf, soccer)		P	P	S	S	P	X	Exception
	Hookah lounge, cigar lounge		S	S	S	S	S	X	5.9.05. 5.9.12.
	Lodging, short-term (hotel, motel, bed & breakfast)		P	P	P	P	P	X	5.9.08.
	Mobile Food Vending		QR	QR	QR	QR	QR	P	5.9.15
	Outdoor food preparation and cooking		S	S	S	S	S	X	5.9.22.
	Restaurant (not including regulated uses)	With alcohol (beer, wine and/or liquor	P/S	S	S	S	S	X	5.9.05. 5.9.12.
		Without alcohol	P	P	P	P	P	X	-
	24-hour/after-hours operations		P/S	S	S	S	S	X	5.9.05. 5.9.12.
	Outdoor seating	Ground level, abutting front façade and public row	P	P	P	P	P	X	5.9.24.
		Other ground level, or above ground level	S	S	S	S	S	X	5.9.24.
	Social or service club		P	S	S	S	S	X	5.9.05. 5.9.07. 5.9.33.
	Sports and entertainment arena		S	X	X	X	X	X	-
	Studio for aerobics, dance, yoga, martial arts, music instruction		P	P	P	P	P	S	-

Table 5.6.06.B. Uses: Mixed-Use Commercial Zone Districts									
			TN			TN MCN MON	MCN MON		
Use Category	Specific Use		CC*	TCC	TBA***	TOD**	C	NOS	Use or Other Regulations
Office	Bank, credit union	Ground floor	P	P	P/S	S	P	P	5.6.06.D.
		Upper floors	P	P	P	P	P	P	-
		2,000 sq. ft. or more GFA at ground level	P	P	P/S	S	P	P	5.6.06.D.
	Entertainment/ news media	Ground floor	P	P	P/S	X	P	X	Exception 5.6.06.D.
		Upper floors	P	P	P	P	P	X	-
	General or professional uses	Ground floor	P	P	P/S	S	P	P	Exception 5.6.06.D.
		Upper floors	P	P	P	P	P	P	-
	Marihuana safety compliance facility		See Section 5.9.19. Marihuana Facilities						
	Medical or dental	Ground floor	P	P	P/S	S	P	P	Exception 5.6.06.D.
		Upper floors	P	P	P	P	P	P	-
	Medical laboratory	Collection	P	P	P	S	P	P	-
		Processing	P	P	S	X	P	P	
	Copying, mailing, courier services, parcel receiving, shipping station		P	P	P	P	P	X	-
	Research uses		P	P	P/S	X	P	P	5.6.06.D.
Personal Services	Animal sales, services, day care (w/o boarding)		P	P	P	P	P	S	-
	ATM - walk-up		P	P	P	P	P	P	
	Beauty and spa services		P	P	P	P	P	P	-
	Funeral home, mortuary		P	P	S	X	P	P	Exception
	Kennel (w/ boarding and/or grooming)		X	X	X	X	S	X	-
	Massage, licensed therapeutic		P	P	P	P	P	P	-
	Photo finishing service		P	P	P	P	P	X	-
	Shoe repair, shoeshine parlor		P	P	P	P	P	X	-
	Tailor, dry cleaning drop/pick up station, coin operated laundry		P	P	P	P	P	X	-
	Tattoo shop, piercing service		P	P	P	P	P	X	-
	Veterinary clinic or hospital (including boarding)		S	S	S	S	S	S	Exception

Table 5.6.06.B. Uses: Mixed-Use Commercial Zone Districts									
			TN			TN MCN MON	MCN MON		
Use Category	**Specific Use**		**CC***	**TCC**	**TBA*****	**TOD****	**C**	**NOS**	**Use or Other Regulations**
Retail Sales	Retail sales, single tenant on ground floor (except as noted below)	14,999 sq. ft. or less GFA	P	P	P	P	P	X	-
		15,000—24,999 sq. ft. GFA	P	P	P	S	P	X	-
		25,000 sq. ft. or more GFA	S	S	S	S	P	X	
	Retail Sales, upper level, any size (except as noted below)		P	P	P	P	P	X	-
	Alcohol sales for off-site consumption (including package good store - LCC Permit)	See Section 5.9.05. Alcohol Sales							
		More than 25,000 sq. ft. GFA	P	P	P	P	P	X	5.9.05.
	Antique, second-hand store		P	P	P	P	P	X	-
	Art studio, gallery		P	P	P	P	P	X	-
	Cash advance		X	S	S	S	S	X	-
	Contractor, building (e.g. plumbing, heating, electrical)		S	P	S	X	P	X	-
	Firearms sales	25,000 sq. ft. or less GFA	S	S	S	S	S	X	-
		25,000 sq. ft. or more GFA	P	P	P	P	P	X	-
	Landscaping, nursery services		X	S	X	X	S	X	-
	Marihuana provisioning center (medical) or retailer (recreational)	See Section 5.9.19. Marihuana Facilities							
	Outdoor activities (display/sales of products, not including vehicles or food)		P	P	P	P	P	X	5.9.22.
	Pawn broker, pawnshop		S	S	S	S	S	X	-
	24-hour operations		P	S	S	S	S	X	-
INDUSTRIAL, TRANSPORTATION, UTILITIES									

Table 5.6.06.B. Uses: Mixed-Use Commercial Zone Districts									
			TN			TN MCN MON	MCN MON		
Use Category	Specific Use		CC*	TCC	TBA***	TOD**	C	NOS	Use or Other Regulations
Industrial	Assembly, manufacturing, or production of textile products, technology, wood products, furniture and fixtures, paper, clay, glass or fabricated metal		S	S	E	X	X	X	5.3.05.F
	Artisanal and creative industry	5,000 sq. ft. or less GFA	P	P	P	P	P	-	
		5,000 sq. ft. or more GFA	S	S	S	P	S	-	
	Commercial laundry, dry cleaning processing		X	S	X	X	X	X	-
	Flex-office		X	X	X	P	P	P	
	Commercial production of alcohol, baked goods or similar consumable products	15,000 sq. ft. or less GFA	P	P	S	S	S	X	5.9.05.
		15,000—30,000 sq. ft. GFA	P	P	S	S	P	X	5.9.05.
		More than 30,000 sq. ft. GFA	S	S	S	S	S	X	5.9.05.
	Marihuana grower or processor		See Section 5.9.19. Marihuana Facilities						
	Marihuana processor, commercial production of infused products only	15,000 sq. ft. or less GFA	X	S	S	S	S	X	5.9.91
		15,000 sq. ft. or more GFA	X	S	X	X	S	X	5.9.19
	Materials recovery and recycling		X	S	X	X	X	X	5.9.18.
	Printing, publishing and allied industries		X	S	E	X	X	X	-
	Self-storage facility		X	S	X	X	S	X	5.9.31.
	Stone monument		X	S	S	X	S	X	-
	Warehousing, storage		X	S	E	X	X	X	-
Wholesaling activities		X	S	E	X	X	X	-	
Transportation	Bike-share facilities		P	P	P	P	P	P	5.10.10.B-C.
	Helistop (not to include heliport)		S	S	X	X	X	X	5.9.13.
	Car-share lots		P	S	S	P	P	X	-
	Inter-modal transportation facility		P	S	S	P	S	X	-
	Marihuana secure transporter		See Section 5.9.19. Marihuana Facilities						
	Off-street surface parking (accessory use on same lot)		P	P	P	P	P	P	5.11.11.
	Off-street surface parking (principal use)		S	S	S	S	P	S	5.11.11.
	Overhead walkway		S	S	X	S	S	X	5.9.25.
	Parking structure		S	P	S	P	S	X	5.9.26.
	Transit center or station		P	S	S	P	S	X	-
	Transit stop		P	P	P	P	P	P	-
Utilities	Electrical substations and private utilities		S	P	P	P	P	P	5.9.11.
	Wireless communication facilities	Co-located antenna	P	P	P	P	P	P	5.9.41.
		Freestanding tower	X	X	X	X	S	X	5.9.41.
P = Permitted Use; S = Special Land Use; E = Existing; X = Not Permitted; "-" = Not Applicable; GFA = Gross Floor Area									
*Parcels in the TN-CC Zone District are subject to Section 5.8.07.D.									
**Parcels located in the TOD Zone Districts are subject to Section 5.6.06.C.									
***Parcels located in the TBA Zone District are subject to Sections 5.8.07.C and 5.6.06.D.									

C. *Targeted Commercial Corridors.*

1. *Purpose.* One of the traditional key measures of success of a downtown is its ability to provide continuous mixed-use street frontages with retail uses and eating and drinking facilities occupying the ground floor of buildings on streets that have a well-defined and detailed pedestrian realm. Buildings with frontage on a Targeted Commercial Corridor are intended to accommodate a mix of outdoor activities, such as patios, seating areas, pocket plazas and spacious walkways provide an interesting experiences for the downtown visitor, resident, and worker alike.
2. *Affected Streets.* In accordance with the recommendations of the GR Forward Downtown & River Action Plan, a "Targeted Commercial Corridor" is established as shown on the Zone Districts Maps. The Targeted Commercial Corridor includes the following streets. However, the Zone District Maps shall be the principal source for the Corridor locations.
    a. Pearl Street, between Division Avenue and Monroe Avenue.
    b. Monroe Center, between Monroe Avenue and Division Avenue.
    c. Ionia Avenue, between Monroe Center and Cherry Street.
    d. South Division Avenue, between Fulton Street and Wealthy Street.
    e. Bridge Street, between Seward Avenue and Turner Avenue.
3. *Use Requirements.* Parcels located on affected streets referenced in Section 5.6.06.C.2 shall be subject to the land use regulations applicable to the TN-TBA Zone District.
4. A minimum of thirty (30) feet of commercial space depth is required for eligible ground floor uses.

D. For parcels located within the TBA Zone District, a ground floor office use is permitted, unless the use is located within twenty (20) feet of a front lot line abutting a Neighborhood Business or Urban Center Street. Special Land Use approval is required when ground floor office uses are located within twenty (20) feet of a front lot line abutting a Neighborhood Business or Urban Center Street.

(Ord. No. 2017-56, §§ 4, 5, 10-24-17; Ord. No. 2018-32, §§ 3—5, 6-5-18; Ord. No. 2018-39, § 3, 7-10-18; Ord. No. 2018-45, §§ 1—3, 7-24-18; Ord. No. 2018-62, § 2, 10-23-18; Ord. No. 2018-69, § 6, 12-18-18; Ord. No. 2018-70, § 1, 12-18-18; Ord. No. 2019-10, §§ 2, 3,3-26-19; Ord. No. 2019-16, § 1, 4-23-19; Ord. No. 2020-13, §§ 3, 5, 6, 4-28-20; Ord. No. 2020-21, §§ 1—4, 7-7-20; Ord. No. 2021-03, §§ 1—3, 1-26-21; Ord. No. 2022-30, § 3, 8-23-22; Ord. No. 2024-40, §§ 2, 3, 9-24-24)

Sec. 5.6.07. Site Layout and Building Placement Requirements.

A. *Site Layout and Building Placement Table.* All development in Mixed-Use Commercial Zone Districts shall comply with the requirements in the Table 5.6.07.A. unless otherwise expressly stated, or unless a different requirement is contained in an applicable Overlay District. Lot area and lot width requirements in Table 5.6.07.A. shall be used for any newly created lot. The intent of these requirements is to promote mixed-use development and rehabilitation that:

1. Encourages the location of new buildings to anchor corners and screen parking at important street intersections;
2. Meets the intent of the placemaking elements of the Zone District.
3. Ensures that new buildings relate well to each other, existing buildings and the abutting street;
4. Maintains or creates a continuous street wall that contributes to the unique character of the Zone District;

5. Organizes outlot development on larger parcels to improve visual and functional coherence;

6. Encourages parking to the side and rear of main buildings;

7. Consolidates driveways on primary streets and encourages vehicular access from secondary streets; and

8. Provides adequate sidewalk space for pedestrian access and comfort.

Table 5.6.07.A. Site Layout and Building Placement: Mixed-Use Commercial Zone Districts

Neighborhood Classification	**TN**				**MCN**		**MON**			**Other Regulations**
Zone District	**CC**	**TCC**	**TBA**	**TOD**	**C**	**TOD**	**C**	**TOD**	**NOS**	
Minimum Lot Area	-	-	3,000[2]	-	4,000[2]	-	4,000[2]	-	5,000	5.6.07.B. 5.2.05.B.
Residential (sq. ft./unit)	-	750	750	-	1,750	-	2,000	1,000	1,250	5.6.07.B.
Urban Open Space	✓	✓	✓	✓	-	✓	-	✓	-	5.11.14.
Minimum Lot Width (feet)										
Ground floor residential	25	25	36	36	40	36	60	40	60	5.2.05.C.
Mixed-use and non-residential	25	25	25	25	40	25	60	25	60	
Setbacks (feet)										
Required Building Line, as measured from back of curb										5.6.07.C.
Ground floor residential	14[1]	19	19	19	-	19	-	19	-	
Regional or Major Street with on-street parking	14[1]	14[1]	12[1]	14[1]	-	14[1]	-	14[1]	-	
Regional or Major Street without on-street parking	19[1]	19[1]	17[1]	19[1]	-	19[1]	-	19[1]	-	
All other streets	14[1]	14[1]	12[1]	14[1]	-	14[1]	-	14[1]	-	
Minimum Setback, as measured from property line										
Front setback	-	-	-	-	20	-	25	-	25[1]	5.6.07.D.
Side setback, Commercial use abutting ground-floor residential use[3]	-	10	10	10	15	10	15	10	15	5.6.07.E.
Side setback, all others[4]	-	0 or 5	0 or 5	0 or 5	10	0 or 5	10	0 or 5	10	
Rear setback[3]	-	10	18	18	25	18	25	18	25	5.6.07.F.
Building Façade Along RBL	90%	80%	70%	70%	-	70%	-	70%	-	5.6.07.G.
Minimum Greenspace (% of lot area)										
Residential	5%	10%	15%	5%	20%	5%	20%	5%	30%	5.6.07.H.
Mixed-use and non-residential	5%	10%	10%	5%	15%	5%	15%	5%	20%	
Minimum Tree Canopy (% of land area measured from above)										
Residential	5%	10%	12%	5%	18%	10%	20%	12%	26%	
Mixed-use and non-residential	5%	10%	12%	5%	18%	10%	20%	12%	26%	

[1]This dimension shall apply in areas not established, per Section 5.6.07.C.

[2]The minimum residential lot area requirement allows for 2 residential units. The residential sq. ft./unit requirement shall be used in lieu of the minimum lot area requirement for developments which include 3 or more residential units.

[3]See Section 5.11.12.D. for minimum landscape buffer widths where non-residential uses abut residential uses.

[4]A side yard setback of 0 (zero) shall mean as close to the lot line as practicable.

B. *Lot Density.*

1. *Maximum Density.* The minimum lot area requirements may not permit the maximum permitted density. Other factors, such as off-street parking, height limits, and lot configuration may limit the overall density.

2. *Bonus Allowances.* Buildings may qualify for a density bonus based upon the Gross Floor Area (GFA) of the development devoted to the features established in Table 5.6.07.B.2. Density Bonus Table.

Table 5.6.07.B.2. Density Bonus Table			
Feature Type	**District**	**Bonus**	
Mixed-Income Housing (5.6.07.B.2.a.)	TCC, TBA, TOD, C	Minimum lot area per dwelling unit may be reduced by up to 500 sq. ft. per unit for providing a mix of affordable and market rate dwelling units	
Micro-Unit (5.6.07.B.2.b.)	TCC, TBA, TOD, C	Minimum lot area per dwelling unit waived	
Affordable Housing (5.6.07.B.2.c.)	TCC, TBA, TOD, C	Minimum lot area per dwelling unit may be reduced with provision of affordable units	Up to 500 sq. ft. per unit with units priced between 60% and 70% AMI
			Up to 1,000 sq. ft. per unit with units priced at or below 30% AMI

a. *Mixed-Income Housing Bonus.* The minimum lot area per dwelling unit in a multiple family development may be reduced by up to five hundred (500) square feet per unit for development projects that satisfy the criteria below:

i. The development is located within a half mile of a Bus Rapid Transit (BRT) station or one-quarter of a mile of a transit stop, as measured from the nearest lot line to the right-of-way of the street along which the transit line runs;

ii. The development includes at least twenty (20) dwelling units;

iii. Not less than fifteen (15) percent nor more than thirty (30) percent of the total number of rental units are priced for households at or below sixty (60) percent of Area Median Income, as adjusted for family size, with rental charges priced by the same method for at least fifteen (15) years;

iv. Not less than fifteen (15) percent nor more than thirty (30) percent of the total number of ownership units are priced for households at or below eighty (80) percent of Area Median Income, as adjusted for family size;

v. The remaining units are priced at market rate;

vi. The affordable units shall be comparable in unit sizes and amenities to the market rate units and shall be evenly distributed throughout the development;

vii. Provisions shall be made for the annual certification of eligible tenants and purchasers, certification of rental property and monitoring of affordable housing requirements. A density agreement shall be approved by the City Commission.

b. *Micro-Unit Density Bonus.* The minimum lot area per dwelling unit in a multiple family development may be waived when all of the following conditions are met:

i. The unit has a GFA of no more than four hundred seventy-five (475) square feet;

ii. The primary entrance of the building containing the unit(s) is located within a half mile of a Bus Rapid Transit (BRT) station or one-quarter of a mile of a transit stop;

iii. In addition to required vehicle parking per Section 5.10.04.C., two (2) bicycle spaces per unit are provided; and

iv. The unit shall be subject to the occupancy limitations of the International Property Maintenance Code, as amended.

c. *Affordable Housing Bonus.* There are two (2) bonus alternatives available for Multiple-Family developments in accordance with the provisions of Table 5.6.07.B.2.

i. *Alternative 1:* The minimum lot area per dwelling unit may be reduced by up to five hundred (500) square feet per dwelling unit where at least twenty (20) percent of the

total number of dwelling units are priced between sixty (60) percent and seventy-nine (79) percent of Area Median Income, as adjusted for family size, with rates remaining affordable for at least thirty (30) years.

ii. *Alternative 2:* The minimum lot area per dwelling unit may be reduced by up to one thousand (1,000) square feet per dwelling unit where at least twenty (20) percent of the total number of dwelling units are priced at or below thirty (30) percent of Area Median Income, as adjusted for family size, with rates remaining affordable for at least thirty (30) years. Within the TOD and C Zone Districts, this bonus may be used in conjunction with Section 5.6.08.B.2.d. for one (1) additional story.

iii. The Affordable Housing Bonus, as permitted in subsections i. and ii. above, are available only when the following conditions are met:

(a) The affordable units shall be comparable in unit sizes, amenities and location with the market rate units.

(b) The property owner agrees to the submission of annual reports to the City regarding certification of eligible tenants and purchasers, annual certification of rental property and monitoring of affordable rental housing requirements.

(c) That the property owner agrees in writing and recorded with the Kent County Register of Deeds and in a form approved by the City Attorney, that continual compliance with all conditions contained herein are necessary to maintain compliance with this Chapter. A violation of any condition is a violation of the Zoning Ordinance and is a nuisance per se for which the City of Grand Rapids may in addition to other remedies, institute any court or enforcement action provided for by law, including but not limited to, seeking injunctive relief or abatement after a notice and hearing before the Board of Zoning Appeals.

C. *Required Building Line (RBL).* The following RBL requirements shall be used to ensure consistent building placement from public streets, reinforce the purpose of the Neighborhood Classification designations, recognize the appropriate positioning of varying land uses within a Zone District, permit access from the public right-of-way, and provide property owners with the maximum use of a constrained site than would otherwise be possible with a minimum setback requirement. The requirements for RBLs do not apply to the MCN-C, MON-C or NOS Districts.

1. *Established RBL.*

a. The RBL shall be consistent with the established dimension of existing main buildings fronting on the same block and in the same Zone District, except where existing buildings are set back more than twenty (20) feet from the public right-of-way, in which case the provisions of C.3 below shall apply.

b. As established RBL shall not be used to permit the encroachment into public or private right-of-way.

2. *New Development.*

a. If no uniform RBL has been established, the RBL defined in Table 5.6.07.A. shall be met for all new structures, measured from the back of the street curb without regard to the location of the lot line.

b. RBL requirements apply only to the first twenty (20) feet of building height. Above twenty (20) feet, buildings may be built out to the front lot line.

c. Columns shall not be placed in the sidewalk area to support the building above the twenty (20) foot height.

3. *Maximum RBL.*

   a. New structures shall be located within three (3) feet of either side of the established minimum uniform RBL.

   b. If no uniform RBL has been established, the building line for all new structures shall be no farther back than ten (10) feet from the RBL.

   c. This provision shall not apply to residential structures, to the residential portion of multi-use structures, nor to any level of the building above the second story.

4. *Exceptions.*

   a. Where a lot line abuts three (3) or more streets, the RBL provisions shall apply to only two (2) streets, as determined by the Director. To designate RBLs, the Director may consider all relevant factors and information, including, but not limited to:

      i. The existing or the intended character of existing or proposed streets on which the lot has, or is proposed to have, frontage; and

      ii. The locations of front and corner side property lines on adjacent lots or lots located on the opposite side of the street; and

      iii. Adjacency to the same or similar land uses.

   b. Additions to existing structures and portions of new structures in residential use shall be exempt from the RBL provisions.

5. *Administrative Departures.* An Administrative Departure from RBL requirements may be approved to allow:

   a. An adjustment in the established RBL up to ten (10) feet to accommodate individual site conditions, such as healthy mature trees, significant grade change, or other similar physical conditions that make meeting the RBL impractical.

   b. An adjustment in the RBL of up to thirty (30) feet for buildings constructed for the exclusive purpose of ground-floor residential use.

D. *Minimum Front Yard Setback.* The minimum front yard setback in Table 5.6.07.A applies in the MCN-C, MON-C and NOS Zone Districts. Buildings and structures in these districts shall be located at or behind the required front setback so long as all other setback requirements are met.

E. *Side Yard Setback.*

1. A landscape buffer, per Section 5.11.12., shall be provided in the side yard when adjacent to a residential use. Landscape buffer requirements may increase the side yard setback.

2. Side yard setbacks shall be zero or at a setback sufficient to permit building maintenance.

F. *Rear Yard Setback.*

1. Encroachments into the rear yard may be permitted to accommodate parallel parking, waste receptacles, or other similar activities, provided that alleys or other vehicular or pedestrian access ways are not blocked or impeded.

2. A landscape buffer, per Section 5.11.12., shall be provided in the rear yard when abutting a residential use. Landscape buffer requirements may increase the required rear yard setback. Encroachments are not permitted in the landscape buffer.

G. *Building Façades Along RBLs.*

1. *RBL Requirements.* Building façades along RBLs shall meet the requirements of Table 5.6.08.A. Building Elements.

2. *RBL Reduction.* For buildings with more than seventy-five (75) feet of street frontage, up to thirty (30) percent of the façade along the RBL may be exempt from the RBL requirements contained in Table 5.6.08.A., provided the area is used for a building entrance or urban open space complying with the standards of Section 5.11.14.

3. *Accessory Use.* In the Traditional Neighborhood districts at least one (1) of any provided accessory use to hospital and institutional campuses, such as a coffee shop or gift shop, shall be placed on the public right-of-way or sidewalk to contribute to the creation of an active streetscape. Storefront windows, door entrances and façade treatments shall comply with the TN-TBA Zone District requirements of Table 5.6.08.A.

4. *Multiple Main Buildings.* Where multiple main buildings are placed on a lot and one (1) or more are not placed at the RBL, the building frontage of any main building located along the RBL shall be at least as long as the building frontage of the largest main building located on the same lot.

H. *Minimum Lot Greenspace.*

1. *Purpose.* The minimum greenspace requirements are designed to ensure a sufficient amount of area for recreation, nature, and greenspace as well as to provide a pervious surface to assist in stormwater management.

2. *Applicability.* The minimum required greenspace provision shall apply to each lot in its entirety. Greenspace includes all natural pervious land surfaces that are covered with soil (and usually with lawns, landscaping, or other plant materials) or water bodies; and does not include permanent structures, sidewalks, patios, decks, or pavement of any type including gravel except as permitted for a stormwater credit.

3. *Stormwater Credit.* Up to twenty-five (25) percent of the minimum calculated greenspace requirements may consist of pervious hardscape surfaces, such as grass pavers, uncovered decks, brick pavers with a sand base, pervious concrete and asphalt, if used to account for the stormwater requirements of Chapter 32 of the City Code.

4. *Front Yards.* Front yards shall consist of greenspace, and impervious surfaces shall be limited to driveways and private sidewalks, except in the MON-C Zone District where hard surfacing for parking areas is allowed.

5. *Greenspace Credits.* Landscape buffers, permanent planters, landscape islands, rain gardens, vegetated walls and green roofs that are readily accessible and usable by building tenants may be included in greenspace calculations.

6. *Exception.* A reduction of not more than fifty (50) percent of the required greenspace listed in Table 5.6.07.A. is permitted for development projects that satisfy at least one (1) of the following criteria:

   a. A stormwater mitigation plan that retains one hundred (100) percent of all stormwater on site, as approved by the City's Environmental Protection Services Department (EPSD).

   b. Submittal of a LEED checklist and proof of registration that demonstrates the intent to apply for LEED building certification, or other generally recognized sustainable building certification.

(Ord. No. 2018-62, § 3, 10-23-18; Ord. No. 2024-40, § 4, 9-24-24)

Sec. 5.6.08. Building Element Requirements.

A. *Building Elements Table.*

1. *Purpose.* The intent of these requirements is to promote mixed-use development and renovation that:

   a. Establishes a development pattern in which new buildings and building modifications enhance the character of the existing built environment;

   b. Increases transparency (windows) to add visual interest, increase pedestrian traffic and to reduce crime through increased surveillance; and

   c. Enhances a sense of place and contributes to the sustainability of the City; and

   d. Orients building entrances and storefronts to the street; and

   e. Articulates longer building façades into more human-scale increments; and

   f. Distinguishes commercial uses based on scale and auto-orientation; and

   g. Provides for height and other bonuses as incentives to encourage uses and amenities that implement the Master Plan; and

   h. Encourages transportation alternatives (walking, biking and transit) to reduce automobile dependence and fuel consumption.

2. *Applicability.* All development in the Mixed-Use Commercial Zone Districts shall comply with the requirements in Table 5.6.08.A. unless otherwise expressly stated, or unless a different requirement is contained in an applicable Overlay District. Residential uses are subject to the building element requirements in Section 5.5.07.A.

3. All buildings shall comply with all necessary building code requirements to ensure proper fire protection.

Table 5.6.08.A. Building Elements: Mixed-Use Commercial Zone Districts

Neighborhood Classification	TN				MCN		MON			Other
Zone District	CC	TCC	TBA	TOD	C	TOD	C	TOD	NOS	Regulations
Height (stories)										
Minimum required	3	2	2	2	-	-	-	-	-	5.6.08.B. 5.2.06.
Maximum, permitted	See text	5	4	3	3	4	3	4	2.5	5.6.08.B. 5.8.02.D.
Maximum, with bonuses	See text	See text	-	7	6	7	6	8	-	5.6.08.B. 5.8.03.E.
Materials	✓	✓	✓	✓	✓	✓	-	✓	-	5.6.08.C.
Façade, preservation and variation	✓	✓	✓	✓	-	✓	-	✓	-	5.6.08.D.
Building orientation	✓	✓	✓	✓	✓	✓	-	✓	-	5.6.08.E.
Entrance	✓	✓	✓	✓	✓	✓	-	✓	✓	5.6.08.F.
Expression line	✓	✓	✓	✓	-	✓	-	✓	-	5.6.08.G.
Minimum transparency (% of building wall area)										
Ground-floor, non-residential building façade	60%	60%	60%	60%	40%	60%	30%	60%	30%	5.6.08.H. 5.2.14.
Upper floors, building sides and residential uses	30%	30%	30%	30%	20%	30%	15%	30%	30%	
Building step-back feature	✓	✓	-	✓	-	✓	-	✓	-	5.6.08.I. 5.8.02.D. 5.8.03.E. 5.8.07.D.

Table 5.6.08.A. Building Elements: Mixed-Use Commercial Zone Districts										
Neighborhood Classification	TN				MCN		MON		NOS	Other Regulations
Zone District	CC	TCC	TBA	TOD	C	TOD	C	TOD		
Streetscape design	✓	✓	✓	✓	✓	✓	✓	✓	✓	5.6.08.J. 5.11.13.
P = Permitted; S = Special Land Use; ✓ = Rules Apply; "-" = Not Applicable.										

B. *Building Height.*

1. *Height Limitations.*

   a. Height requirements, including bonus height provisions, are subject to the provisions of Section 5.8.02. OD-DH Downtown Height Overlay District and Section 5.8.03. OD-GR Grand River Overlay District, where applicable.

   b. Building heights in all other Mixed-Use Commercial Districts shall not exceed the maximum number of stories as listed in Table 5.6.08.A Building Elements.

2. *Bonus Allowances.* Buildings may qualify for a bonus height allowance based upon the Gross Floor Area (GFA) of the development devoted to the features established in Table 5.6.08.B.2 Bonus Table. Bonus height allowances may be used in combination provided that building heights shall not exceed the maximum number of stories in Table 5.6.08.A. Building Elements.

Table 5.6.08.B.2. Bonus Table				
Feature Type	**District**	**Provision**		**Bonus**
Urban Open Space (5.6.08.B.2.a.)	TOD, C	Minimum site area	25%	1 story
			50%	2 stories
Mixed-Income Housing (5.6.08.B.2.b.)	TOD, C	Mix of affordable and market rate dwelling units		1 story
Transit Station (5.6.08.B.2.c.)	TOD, PRD	Transit station along the assigned Bus Rapid Transit (BRT) route as approved by The Rapid		3 stories
Affordable Housing (5.6.08.B.2.d)	TOD, C	At least 20% of the total dwelling units are priced at or below 30% of AMI		1 story
Bonus heights for the TN-CC and TN-TCC Zone Districts are described in Sections 5.8.02. and 5.8.03.				

   a. *Urban Open Space Bonus.* To qualify for this bonus provision, at least the minimum noted urban open space shall be provided on the site, with public access directly from the sidewalk at ground level. The façade along the RBL requirement of Section 5.6.08.D. may be reduced by twenty (20) percent (e.g. a 90% requirement may be reduced to 70%) by the Director if deemed necessary to accommodate the installation of qualifying urban open space. The Director shall grant only that reduction necessary to accommodate the urban open space.

   b. *Mixed-Income Housing Bonus.* May be used in conjunction with Section 5.6.07.B.2.a. for additional density one (1) additional story may be permitted above the maximum permitted by the Zone District for development projects that satisfy all the criteria below:

      i. The development is located within a half mile of a Bus Rapid Transit (BRT) station or one-quarter of a mile of a transit stop, as measured from the nearest lot line to the right-of-way of the street along which the transit line runs;

      ii. The development includes at least twenty (20) dwelling units;

iii. Not less than fifteen (15) percent nor more than thirty (30) percent of the total number of rental units are priced for households at or below sixty (60) percent of Area Median Income, as adjusted for family size, with rental charges priced by the same method for at least fifteen (15) years;

iv. Not less than fifteen (15) percent nor more than thirty (30) percent of the total number of ownership units are priced for households at or below eighty (80) percent of Area Median Income, as adjusted for family size;

v. The remaining units are priced at market rate;

vi. The affordable units shall be comparable in unit sizes and amenities to the market rate units and shall be evenly distributed throughout the development;

vii. Provisions shall be made for the annual certification of eligible tenants and purchasers, certification of rental property and monitoring of affordable housing requirements. A density agreement shall be approved by the City Commission.

c. *Transit Station Bonus.* The transit station bonus shall only be approved as part of a submittal for a large development project at a location recognized by The Rapid as a desirable transit station for bus rapid transit (BRT) or trolley. A notarized statement from The Rapid verifying that the proposed transit station location and design is acceptable is required. The minimum dollar amount dedicated for this purpose shall be commensurate with the median cost of land per buildable square foot in the general vicinity. Transit station development shall reflect the intent of urban open space requirements in Section 5.11.14. Development of the station shall be accomplished using one (1) of the following methods:

i. Construction by the developer shall require the submittal of appropriate drawings, detailed construction commitments, a construction schedule, and a performance guarantee meeting the requirements of Section 5.14.04 for completion of the improvements, to be approved by the City Engineer and the transit authority.

ii. Cash contribution for transit station improvements that are to be undertaken by agencies such as The Rapid, shall enter into an agreement with the City of Grand Rapids and the agency undertaking the improvement. All agreements shall be in a form approved by the City Attorney.

d. *Affordable Housing Bonus.* May be used in conjunction with Section 5.6.07.B.2.c.ii. for additional density. Within the TOD and C Zone Districts, one (1) additional story above the maximum permitted by the Zone District may be permitted, where at least twenty (20) percent of the total number of dwelling units are priced at or below thirty (30) percent of Area Median Income, as adjusted for family size, with rates remaining affordable for at least thirty (30) years, when all of the following conditions are met:

i. The affordable units shall be comparable in unit sizes, amenities and location with the market rate units.

ii. The property owner agrees to the submission of annual reports to the City regarding certification of eligible tenants and purchasers, annual certification of rental property and monitoring of affordable rental housing requirements.

iii. That the property owner agrees in writing and recorded with the Kent County Register of Deeds and in a form approved by the City Attorney, that continual compliance with all conditions contained herein are necessary to maintain compliance with this Chapter. A violation of any condition is a violation of the Zoning Ordinance and is a nuisance per se for which the City of Grand Rapids may in

addition to other remedies, institute any court or enforcement action provided for by law, including but not limited to, seeking injunctive relief or abatement after a notice and hearing before the Board of Zoning Appeals.

3. *Administrative Departures.* An Administrative Departure from building height requirements may be permitted for:

   a. A reduction in the minimum height requirement for auto-oriented uses and for buildings in those Zone Districts where seventy (70) percent or more of existing buildings and structures located on the same block are single story.

   b. Reconstruction to the former building height (that exceeds the maximum permitted height in Table 5.6.08.A.) where a building is partially destroyed by an act of God. The determination shall consider factors such as the extent of destruction, character of the building and its surroundings and cost of reconstruction.

C. *Materials.*

1. *Permitted Materials.*

   a. Durable building materials, simple configurations and solid craftsmanship are required.

   b. *Primary Materials.*

      i. Fifty (50) percent of walls visible from public streets, exclusive of wall areas devoted to meeting transparency requirements shall be constructed of brick, glass, fiber cement siding, wood lap, stucco, split-faced block, or stone. Metal siding or paneling may only be allowed as a primary material upon Director Review, and where combined with a masonry foundation which extends a minimum two feet above adjacent grade.

      ii. To provide visual depth and strong shadow lines, clapboard siding must have a minimum butt thickness of a quarter (¼) inch.

      iii. To ensure durability and visual character, metal siding or paneling shall be minimum 24-gauge with no visible fasteners. Any change in profile shall be non-corrugated and have rib depth of a minimum 1-inch. Departure from these requirements may be approved by the Planning Commission with a Special Land Use approval.

   c. *Secondary Materials.*

      i. EIFS and vinyl or aluminum siding shall only be used for accents.

      ii. Metal shall be limited to beams, lintels, trim elements and ornamentation only. Architectural metal siding or paneling may be used as a secondary building material by Director Review or Special Land Use approval, subject to the limitations above for primary material.

2. Where more than one (1) façade material is proposed vertically, the heavier material in appearance shall be incorporated below the lighter material (e.g. masonry below siding).

3. *Roofing Materials.*

   a. Roofing materials shall be those used and installed in a manner customary for the materials used in construction of the main building, shall be compatible in character and scale with the structure on which it is being installed, shall be installed according to the manufacturer's specifications, shall have no visible fasteners, and shall be uniform in type and appearance within each uninterrupted roof plane.

b. Acceptable roof materials include three hundred (300) pounds or better, dimensional asphalt composite shingles, wood shingles and shakes, metal tiles or standing seam, slate, and ceramic tile. The Director may permit "engineered" wood or slate with an approved sample and examples of successful, high quality local installations.

c. Corrugated roofing materials are not permitted.

4. *Administrative Departure.* Other materials of equivalent or better quality, including high quality synthetic material, may be approved, if determined appropriate for the building, site, and area with an approved sample and examples of successful, high quality local installations.

D. *Façade Preservation and Variation.*

1. *Exterior Alterations.* Exterior changes and façade renovations shall not destroy or cover original details on a building, wherever practicable. Brick and stone façades shall not be covered with artificial siding or panels.

2. *Window and Door Openings.* Existing window and door openings shall be maintained wherever practicable. New window and door openings shall maintain a similar horizontal and vertical relationship as the originals.

3. *Vertical and Horizontal Lines.* The vertical lines of columns and piers, and the horizontal definition of spandrels and cornices, and other primary structural elements shall be maintained wherever practicable.

4. *Articulation and Variation.*

a. Façade articulation or architectural design variations for building walls facing the street are required to ensure that the building is not monotonous in appearance. Building wall offsets (projections and recesses), cornices, plinths, quoins, varying building materials or pilasters shall be used to break up the mass of a single building.

b. Façade Interruptions. The maximum linear length of an uninterrupted building façade facing a public street and/or park shall be thirty (30) feet.

c. Blank or windowless walls shall not make up more than thirty (30) percent of each building façade per story (as measured from floor to floor), and have no horizontal distance greater than fifteen (15) feet per story. Blank, windowless walls facing public streets and/or parks are prohibited.

d. An Administrative Departure may be approved to allow the following:

i. An increase of up to five (5) feet to the thirty (30) foot uninterrupted building façade facing public streets requirements may be approved.

ii. Permitted of other methods to provide adequate articulation, provided that the visual effect of articulation is maintained. Examples of acceptable variations may include architectural or artistic details or features, a variation in color or materials and enhanced ornamentation around building entranceways.

5. *Large Developments.* Developments planned for retail or wholesale sales composed of one (1) or more main buildings each of which exceeds thirty thousand (30,000) square feet GFA; or developments with a single large commercial establishment with a main building exceeding thirty thousand (30,000) square feet GFA, shall:

a. Create a series of smaller "liner buildings" that are positioned along the primary façade of the main building to break up the building mass; or

b. Design the primary façade of the main building so that it appears to have a series of multiple small storefronts without individual doorways.

E. *Building Orientation.*

1. *Primary Entrance.* The primary building entrance shall be located in the front façade parallel to the street. Main building entrances and exits shall be located on the primary street.

2. *Administrative Departure.* Alternative orientations may be permitted where they are consistent with existing adjacent development.

F. *Entrances.*

1. *Primary Entrance.* The primary building entrance shall be located in the front façade parallel to the street. At least one (1) main building entrance shall be located on the primary street. A clearly identifiable and usable building entrance is required for every sixty (60) feet of a building's frontage on a primary street.

2. *Recessed Doorways.* Where the building entrance is located on or within five (5) feet of a lot line or public sidewalk easement, whichever is closest to the face of the building. Doorways shall be recessed into the face of the building to provide a sense of entrance, to add variety to the streetscape, and provide pedestrian protection from a swinging door.

    a. The entrance recess shall not be less than the width of the door(s) when opened outward;

    b. The entrance recess may not exceed the entrance width;

    c. The entrance may not exceed two (2) stories in height; and

    d. Doors for nonresidential uses along all street frontages shall be consistent with the design of principal entrances and include glass and full operating hardware in the design of the door.

3. *Residential Dwellings.* Entrances for all residential dwellings shall be clearly defined by at least two (2) of the following:

    a. Projecting or recessed entrance.

    b. Stoop or enclosed or covered porch.

    c. Transom and/or side light window panels framing the door opening.

    d. Architectural trim framing the door opening.

4. *Administrative Departure.*

    a. Non-recessed entrance doors may be permitted where no safety hazard may be created.

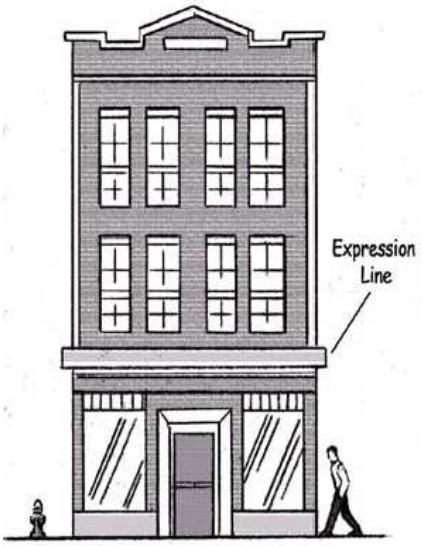
    b. Alternative entrance locations shall be permitted where consistent with existing adjacent development.

    c. Other entrance definitions for residential dwellings, such as unique color treatments, sidelight windows, transom window or other adjacent windows, additional moldings with expression lines, or bays of unique width may be permitted provided the same effect is achieved.

    d. A greater spacing for primary entrances may be allowed where the use makes the required entrance spacing impractical, provided that at least one (1) primary entrance is provided on the primary street.

G. *Expression Line.*

1. A horizontal line on the façade known as the Expression Line (EL) shall distinguish the base of the building from the remainder to enhance the pedestrian environment. The EL shall be set so that the bottom of the line is no higher than sixteen (16) feet above grade. The EL shall be created by a change in material, a change in design, or by a continuous setback, recess, or projection above or below the EL. Elements such as cornices, belt courses, corbelling, molding, stringcourses, ornamentation, and changes in material or color or other sculpturing of the base, are appropriate design elements to include with an EL.
2. If applicable, the height of the EL shall be related to the prevailing scale of development in the area. A change of scale may require a transitional design element between existing and proposed features.



5.6.08.F. Expression Lines (EL).

H. *Transparency.*

1. *Purpose.* The first floors of all buildings shall be designed to encourage and complement pedestrian-scale activity and crime prevention techniques using CPTED (Crime Prevention Through Environmental Design). It is intended that this be accomplished principally by the use of windows and doors arranged so that active uses within the building are visible from or accessible to the street, and parking areas are visible to occupants of the building.
2. Upper floor transparency is provided to ensure that access to adequate light and air is provided and that excessive areas of blank walls are avoided.
3. *Applicability.*
   a. The minimum transparency requirement shall apply to all sides of a building that abut an urban open space or public right-of-way. Transparency requirements shall not apply to sides which abut an alley.
   b. Windows for building sides (non-front) shall be concentrated toward the front edge of the building, in locations most visible from an urban open space or public right-of-way.
4. *General Requirements.* The General Provision requirements of Section 5.2.14. Building Transparency shall apply.
5. *Windows and Displays.*
   a. Ground level storefront windows shall be horizontal, divided into vertical segments. Heavily tinted or reflective glass, and glass block on street façades shall not be counted toward transparency requirements.
   b. Product display windows shall be internally lit.
   c. Interior displays shall be set back a minimum of one (1) foot from the window and shall not cover more than fifty (50) percent of the window opening. Displays nearer than one (1) foot from the window shall be considered a window sign.
   d. No window covering or screening shall cover more than twenty-five (25) percent of windows or doors that are used to meet transparency requirements.

I. *Building Step-Backs.*

1. *Purpose.* A step-back is a portion of a building or structure that is recessed from the base of the structure at a defined story. Step-backs are required where necessary to provide a more gradual transition between heights of adjacent buildings and less intensive uses; provide greater access to sunlight for public areas, trees, and lower buildings; provide a comfortable pedestrian experience; and integrate with existing street wall buildings. It is also intended to inform the relationship between the proposed development and the heights of other buildings in the surrounding area. The requirements for building step-backs is to coordinate the proposed development with the location, height, scale, and spacing of existing or approved buildings, and in particular other buildings on the same or adjacent blocks.

2. *Applicability.* A step-back is required when one (1) of the following conditions is met:

   a. Any building side in the TN-TCC Zone District that abuts a residential zone district.

   b. Buildings fronting a public street in the TOD Zone Districts.

3. *Requirements.*

   a. Where there are existing street wall buildings, the placement of the required step-back shall be no lower than the height of the existing context of the street wall buildings.

   b. Determination of Existing Context.

      i. An existing context of street wall buildings shall be determined by the average number of stories of buildings in the same block and on the block across the street.

      ii. To establish an existing context, the block used in the calculation shall be occupied by existing buildings for a minimum of fifty (50) percent of the linear frontage of the block.

      iii. Existing buildings that do not meet the minimum story requirement of the Zone District shall be excluded from the calculation of the average stories.

   c. Where an existing context is not able to be determined, the fifth story shall be subject to the step-back requirement.

   d. Where required, the step-back shall be at least ten (10) feet.

   e. Building step-backs shall span a minimum horizontal width of at least seventy-five (75) percent of any affected side of a building.

4. *Administrative Departure.* The Director may approve a modification to the requirements of subsection 3., above where they are demonstrated to be impractical due to existing building locations, location of adjacent uses, or other physical conditions related to the site or existing buildings.

(Ord. No. 2019-10, § 4, 3-26-19; Ord. No. 2020-13, §§ 4, 7, 4-28-20; Ord. No. 2021-03, §§ 4—8, 1-26-21; Ord. No. 2023-26, §§ 1—3, 7-11-23; Ord. No. 2024-40, § 5, 9-24-24)

ARTICLE 7. SPECIAL DISTRICTS

Sec. 5.7.01. Purpose and Intent.

A. *Purpose.*

1. There are certain unique areas within the city that cannot easily be treated in the same manner as other Zone Districts. Accordingly, a "Special District" classification has been created to permit proper regulation of these areas. The Special District combines the major elements of

traditional zoning with particular neighborhood elements that can help to preserve the vitality and character of each Special District. The Special Districts are intended to be developed in a manner that shall be sensitive to the Zone Districts they border.

2. Special Districts have also been created to accommodate particular development concerns, such as accommodating larger institutions.

3. Special Districts retain many of the characteristics of a traditional, use-based zoning classification system. Uses are regulated by type, size, location, coverage, design, among other particulars, within each Special District.

B. *Special District Designation.* Table 5.7.01. lists the Special Districts.

Table 5.7.01. Special Districts (SD)		
Abbreviation	**Zone District**	**Section**
SD-AP	Airport	5.7.02.
SD-OS	Open Space	5.7.03.
SD-IT	Industrial Transportation	5.7.04.
SD-IC	Institutional Campus	5.7.05.
SD-PRD	Planned Redevelopment District	5.7.06.

Sec. 5.7.02. Special District - Airport (SD-AP).

A. *Purpose and Intent.*

1. The Gerald R. Ford International Airport is an important asset to the Grand Rapids metropolitan region and all of western Michigan. The Airport serves as a focal point of development as growth in general aviation, commercial cargo carriers and passenger airlines continues.

2. The SD-AP District as depicted on Special District-Airport Map E is designed to permit those uses, activities, facilities, and structures necessary for the safe and efficient operation of aircraft and for providing the services and facilities required to accommodate airport patrons and employees.

3. This district is intended to accommodate and promote aeronautical progress for the public good, while protecting the health and welfare of the public. This Special District permits both aeronautical and non-aeronautical uses and facilities that complement airport operations.

4. It is recognized that certain aeronautical facilities are exempt from local zoning under the Zoning Act. This District governs only the land surrounding the terminal within the jurisdictional boundaries of the City.

B. *Uses Table.* Table 5.7.02.B. lists uses allowed within the SD-AP, subject to compliance with all other applicable requirements of this Chapter.

1. No use within the SD-AP District shall create electrical or electronic interference with navigational signals or radio or radar communication between the airport and aircraft. No structure or use of land that causes the emission of smoke that may be a pilot navigation hazard or otherwise be detrimental or injurious to the health, safety and welfare of the public using the airport is allowed unless specifically required and authorized by the Federal Aviation Administration (FAA), or other governmental entity with statutory authority.

2. No use within the SD-AP District shall be designed or operated in a manner that is intended to or has the effect of attracting birds or other wildlife.

3. *Permitted Uses.* Uses permitted by right in the Zone District, subject to compliance with all other applicable requirements of this Chapter, are identified with a "P."

4. *Some Permitted Uses are subject to compliance with Article 9.* These uses are identified in the Table 5.7.02.B. under "Use or Other Regulations." A cell marked with a dash "—" under this heading indicates that there are no additional use requirements in Article 9.

5. *Unlisted Uses.* Uses not listed in the Table 5.7.02.B. are prohibited, unless the Director determines that the use is similar to other uses listed either as a Permitted Use or Special Land Use in accordance with Section 5.4.04.

Table 5.7.02.B. Uses: Airport District

Use Category	Specific Use		Approval	Use or Other Regulations
AERONAUTICAL				
Aeronautical	Any aeronautical facility as defined in the Michigan Aeronautics Code, Act 327 of 1945, as amended. Operation, use, fueling, servicing, and storage of aircraft		P	—
	Accessory or complementary aeronautical uses, such as: Aircraft cleaning, janitorial service; charter service, flight training, flying club; refueling, fuel storage facility; aircraft service, repair, painting, restoration facility; aircraft sales		P	—
	Airport terminal, and all uses within the terminal building, including but not limited to restaurants, retail and service uses, cocktail lounges, etc.		P	—
	Any facility required by federal, state, or local government		P	—
	Inter-modal transportation facility		P	—
	Warehousing, storage, freight handling facility		P	—
EDUCATIONAL, GOVERNMENT AND INSTITUTIONAL				
Government and Institutional	Government services or offices		P	—
	Museum		P	—
COMMERCIAL, INDUSTRIAL, TRANSPORTATION AND UTILITIES				
Commercial	Vehicle rental, short term		P	—
	Business/office service center		P	—
	Financial institution, including drive-through and ATMs		P	5.9.10.
	Retail sales		P	—
	Lodging, short-term stay		P	—
	Personal service establishment		P	—
	Restaurant (except with regulated uses)	With alcohol	S	5.9.05.
		Without alcohol	P	—
Utilities	Parking structure, off-street surface parking lot		P	5.9.26.
	Wireless communication facilities and related structures and uses		P	5.9.41.

C. *Site Layout and Building Placement Requirements.*

Table 5.7.02.C. Site Layout and Building Placement: Airport District	
Height	No structure, tree or growth shall be erected, altered, allowed to grow to or be maintained at a height that exceeds the limitations established by the FAA.
Area, Bulk and Setbacks	All requirements for height, lot area, coverage, setbacks, building design, etc. shall be determined in consultation with the Kent County Department of Aeronautics.

D. *Airport Zoning Act.* Proposed buildings or modifications to existing buildings with a height greater than one hundred (100) feet require a permit from the Kent County Department of Aeronautics, pursuant to the Airport Zoning Act, Public Act No. 23 of 1950.

Sec. 5.7.03. Special District - Open Space (SD-OS).

A. *Purpose and Intent.* The Open Space District (SD-OS) is intended to accommodate natural or park-like settings and preserve selected open space land and uses from development pressures. This Special District is intended for public or private purposes, and may include parks, playgrounds, athletic fields, wetlands, floodplains and natural areas.

B. *Allowed Uses Table.* Table 5.7.03.B. lists uses allowed within the SD-OS District, subject to compliance with all other applicable requirements of this Chapter.

1. *Permitted Uses.* Uses permitted by right in the applicable Zone District, subject to Director Review and compliance with all other applicable requirements of this Chapter, are identified with a "P."
2. *Special Land Uses.* Uses which may be allowed subject to review and approval by the Planning Commission in accordance with Section 5.12.09., and with all other applicable requirements of this Chapter. These uses are identified with an "S."
3. *Other Regulations.* Many allowed uses, whether a Permitted Use or a Special Land Use, are subject to compliance with other requirements of this Chapter. These uses are identified in the Table 5.7.03.B. under "Use and Other Regulations." A cell marked with "—" under this heading indicates that there are no additional use requirements in Article 9.
4. *Uses Not Allowed.* A cell marked with an "X" indicates that the listed use under a Zone District heading is not allowed. Uses not listed in the Table 5.7.03.B. are prohibited unless the Director determines that the use is similar to other uses listed either as a Permitted Use or Special Land Use in accordance with Section 5.4.04.
5. *Unlisted Uses.* If an application is submitted for a use not listed, the Director shall make a determination as to the proper Zone District and use classification for the new or unlisted use in accordance with Section 5.4.04.
6. *Site Development.* Vehicle and bicycle parking requirements and pedestrian circulation requirements are in Article 10 Transportation and Mobility. Landscaping requirements are in Article 11 Landscaping and Green Infrastructure. Sign requirements are in Article 15 Signs.

Table 5.7.03.B. Uses: Open Space District

Use Category	Specific Use	Approval	Use and Other Regulations
ALL PERMITTED USES			
Buildings and Structures	Building with under 2,000 sq. ft. GFA	P	—
	Building with 2,000 sq. ft. or over GFA	S	—
EDUCATIONAL, GOVERNMENT AND INSTITUTIONAL			
Educational	Educational uses	P	—
Government and Institutional	Amphitheatre, outdoor	S	5.9.12.
	Cemetery	P	—
	Community center	S	—
	Community garden	P	—
	Outdoor athletic/recreational field for baseball, basketball, tennis or similar sports	P	—
	Park, playground, plaza, square, urban open space, walkway	P	5.11.14.
	Zoo	P/S	5.7.05.F. 5.9.42.

Table 5.7.03.B. Uses: Open Space District				
Use Category	**Specific Use**		**Approval**	**Use and Other Regulations**
COMMERCIAL				
Commercial, Entertainment, and Recreation	Boat house, marina		S	—
	Golf course, country club		S	—
	Skating rink, outdoor		P	—
	Swimming pool, outdoor		P	—
INDUSTRIAL, TRANSPORTATION AND UTILITIES				
Industrial and Transportation	Greenhouse		P	—
	Materials recovery and recycling, not including processing		S	5.9.18.
	Mineral extraction		S	5.9.21.
Utilities	Electrical substations and private utilities		P	5.9.11.
	Wireless communication facilities	Co-located antenna	P	5.9.41.
		Freestanding/tower	X	5.9.41.
P = Permitted Use; S = Special Land Use; "-" = Not Applicable; GFA = Gross Floor Area				

C. *Site Layout and Building Placement Requirements.*

1. Lots may contain more than one (1) main building or principal use.
2. No parking is permitted in the required front yard.
3. All buildings shall meet the requirements of Table 5.7.03.C.

Table 5.7.03.C. Site Layout and Building Placement: Open Space		
Maximum building height		Lesser of 3 stories or 45 feet
Minimum lot area and width		None
Minimum setbacks (ft.)	Front	25
	Side	12
	Rear	25
Minimum greenspace (% of lot area)		70
Minimum tree canopy (% of lot area)		50

D. *Building Element Requirements.*

1. *Building Materials.*
   a. Durable building materials, simple configurations and solid craftsmanship are required.
   b. Walls visible from public streets, exclusive of wall areas devoted to meeting transparency requirements shall be constructed of brick; fiber cement siding, wood lap, aluminum or vinyl siding; and split-faced block, stucco or stone. Metal may only be used for beams, lintels, trim elements and ornamentation.
   c. Building materials in TN-Traditional Neighborhood Zone Districts shall have a traditional, horizontal orientation.
2. *Façade Variation.* The maximum linear length of an uninterrupted building façade facing a public street and/or public park shall be between twenty-five (25) and thirty-five (35) feet. Building wall offsets (projections and recesses), cornices, varying building materials or pilasters shall be used to break up the mass of a single building.
3. *Building Orientation.* In the TN-Traditional Neighborhood and MCN-Mid-Century Neighborhood Districts, buildings shall be oriented towards a public street.
4. *Transparency.* The General Provision requirements of Section 5.2.14. shall apply. The front of a non-residential building shall have forty (40) percent transparency. Transparency on building sides of a non-residential structure shall be twenty (20) percent.

Sec. 5.7.04. Special District - Industrial-Transportation (SD-IT).

A. *Purpose and Intent.* The Industrial-Transportation Districts (IT) are established to reflect the goals and objectives of the Master Plan for a wide range of light industrial and manufacturing uses, heavy manufacturing and processing of raw materials. Regulated adult uses are included within this Zone District to preserve the character and integrity of residential neighborhoods and family-oriented institutions, such as places of worship and recreation. Reasonable protection of adjacent land uses is also an important component of this Special District. Typical light industrial uses are permitted within this Zone District, while typical heavy industrial uses shall be considered as Special Land Uses.

B. *Uses Table.* Table 5.7.04.B. lists uses allowed in the Industrial-Transportation Districts (SD-IT), subject to compliance with all other applicable requirements of this Chapter.

1. *Permitted Uses.* Uses permitted by right in the applicable Zone District, subject to Director Review where in compliance with all other applicable requirements of this Chapter. Such uses are identified with a "P."
2. *Special Land Uses.* Uses which may be allowed subject to review and approval by the Planning Commission in accordance with Section 5.12.09., and with all other applicable requirements of this Chapter. These uses are identified with an "S."
3. *Uses Not Permitted.* Uses which are not permitted either by Permitted Use or Special Land Use are identified with an "X."
4. *Other Regulations.* Certain allowed uses, whether Permitted Uses or Special Land Uses, are subject to compliance with other requirements of this Chapter. These uses are identified in the Table 5.7.04.B. under "Use or Other Regulations." A cell marked with a dash "—" under this heading indicates that there are no additional use requirements in Article 9.
5. *Unlisted Uses.* If an application is submitted for a use not listed, the Director shall make a determination as to the proper Zone District and use classification for the new or unlisted use in accordance with Section 5.4.04.
6. *Site Development.* Vehicle and bicycle parking requirements and pedestrian circulation requirements are in Article 10 Transportation and Mobility. Landscaping requirements are in Article 11 Landscaping and Green Infrastructure. Sign requirements are in Article 15 Signs.
7. *Accessory Sales.* Accessory retail sales are permitted provided that they:
    a. Are conducted within the same structure housing the principal manufacturing or warehouse use, with no outdoor sales allowed; and
    b. Are limited to hours of operation to between 8 a.m. and 9 p.m., or to the operating hours of the principal use, whichever is shorter; and
    c. Only sell items manufactured by the principal use or are part of the principal use's warehouse stock; and
    d. Provide sufficient parking separate from the principal use of the property.
8. *Enclosed Structure.* All uses permitted by right shall be conducted within a completely enclosed structure, except vehicular storage or other uses that require outdoor storage as regulated in Table 5.7.04.B.
9. *Noxious Emissions.* No noise, smoke, dust, vibration or any other like nuisance shall adversely affect adjacent residential uses. Those uses which may be noxious or offensive by the reason of emission of odor, dust, smoke, gas, noise, vibration and the like, and not allowed in any other district shall be set back at least three hundred (300) feet from any other Zone District line.

Table 5.7.04.B. Uses: Industrial-Transportation District				
Use Category	**Specific Use**		**Approval**	**Use or Other Regulations**
EDUCATIONAL, AUTO-ORIENTED, OFFICE, RETAIL				
Educational Uses	Driver training school		P	—
	Technical, vocational, and trade and schools		P	—
Auto-Oriented	Body shop		P	5.9.40.
	Car wash		P	—
	Taxi service		P	—
	Vehicle fuel station (without vehicle repair)		P	5.9.38.
	Vehicle rental		P	5.9.39.
	Vehicle service, repair		P	5.9.40.
	Vehicle supply/accessory sales (new or used)		P	5.9.39.
	Vehicle wrecking, salvage, storage of inoperable vehicles		S	5.9.18. 5.9.40.
	Vehicle, recreational vehicle or boat storage and towing	Indoor storage	P	—
		Outdoor storage	S	5.9.31.G.
Office and Retail	Accessory and professional office, retail, and commercial uses that serve a principal industrial use and do not exceed 25% of the GFA		P	—
	Flex-office		P	—
	Mobile Food Vending		P	5.9.15.
INDUSTRIAL, TRANSPORTATION AND UTILITIES				
Industrial	Artisan and creative industry		P	—
	Assembly, manufacturing, or production of food, textile products, technology, wood products, furniture and fixtures, paper, clay, glass or fabricated metal		P	—
	Commercial laundry, dry cleaning processing		P	—
	Commercial production of alcohol, baked goods or similar products		P	—
	Crematory		S	—
	Fuel storage		S	—
	Greenhouse		P	—
	Heavy construction contractors, contractor's yards, equipment and materials storage		S	5.9.18.
	Hemp processor-handler		P	—
	Iron, steel or aluminum foundry or fabricating plant and heavyweight casting		S	—
	Landscaping, nursery services		P	—
	Manufacturing of alcohol; ammonia; bleaching powder or chlorine; asphalt, including refining; brick, tile or terra cotta; chemicals; concrete or cement products; lampblack; oil cloth or linoleum; paint, oil, shellac, turpentine, lacquer or varnish; petroleum products; plastics; soap; sodium compounds; tar distillation or tar products		S	—
	Manufacturing, compounding, processing, packing or treatment of such products as candy, cosmetics, drugs, perfumes, pharmaceuticals, toiletries, and food products, except the rendering or refining of fats and oils		P	—

Table 5.7.04.B. Uses: Industrial-Transportation District				
Use Category	**Specific Use**		**Approval**	**Use or Other Regulations**
Transportation	Marihuana grower (Class A, B, and C); a provisioning center or retailer may be co-located as an office or retail accessory use (not to exceed 25% of GFA)		See Section 5.9.19. Marihuana Facilities	
	Marihuana processor; a provisioning center or retailer may be co-located as an office or retail accessory use (not to exceed 25% of GFA)			
	Marihuana safety compliance facility			
	Marihuana secure transporter			
	Materials recovery or recycling		S	5.9.18.
	Mineral extraction		S	5.9.21.
	Printing, publishing, allied industries		P	—
	Processing junk, waste, discarded or salvaged materials, machinery or equipment		S	5.9.18.
	Self-storage facility		P	5.9.31.
	Special trade contractors (including plumbing, heating and cooling, electrical, masonry, concrete work, etc., but excluding water well drilling, structural steel erection, excavation work, and wrecking and demolition)		P	—
	Stone monument works		P	—
	Truck transportation and distribution facilities		S	5.11.10.
	Truck wash		S	—
	Warehousing, storage		P	—
	Wholesaling activities		P	—
	Heliport, helistop		S	5.9.13.
	Off-street surface parking (principal use)		P	5.11.10.
	Parking structure or deck		P	5.9.26.
	Transit center, station or transit stop		P	—
Utilities	Electrical substations and private utilities		P	5.2.17. 5.9.11.
	Wireless communication facilities	Co-located antenna	P	5.9.41.
		Freestanding/tower	S	5.9.41.
OTHER				
Regulated Uses	Regulated uses		P	5.9.28.
P=Permitted Use; S=Special Land Use; X=Not Permitted; — = Not Applicable; GFA=Gross Floor Area				

C. *Site Layout and Building Placement Requirements.*

1. All development in the SD-IT Zone District shall comply with the requirements in Table 5.7.04.C. unless otherwise expressly stated, or unless a stricter requirement is in an applicable Overlay District.

Table 5.7.04.C. Site Layout and Building Placement: Industrial-Transportation District	
Minimum Lot Area	10,000 sq. ft.
Minimum Lot Width	100 ft.
Required Building Line (RBL)	RBL shall be consistent with the established setback of existing main buildings.
	RBL for a new structure shall be equal to, or the average of the front setbacks/RBLs of existing main buildings within 250 ft. on either side of the lot on the same side of the street.
Minimum Front Setback	25 ft. where there is no established setback and the entire frontage is located in a SD-IT District.

Table 5.7.04.C. Site Layout and Building Placement: Industrial-Transportation District	
Minimum Side Setback	25 ft. or equal to the height of the building where the side of a lot is adjacent to a lot in residential use, a Residential Zone District or the SD-OS Zone District; a minimum 15 ft. landscape buffer shall be provided.
	5 ft. where the building is not placed on the lot line. A common wall may be utilized for adjacent lots.
	Not required in all other cases.
Minimum Rear Setback	25 ft. where the rear is adjacent to a lot in residential use, a Residential Zone District, or the SD-OS Zone District. The full width of the alley may contribute towards the rear setback requirement.
	Not required in all other cases.
Accessory Buildings	No accessory building shall be allowed in the required yard area of any lot.
Minimum Green Space	15% of lot area
Minimum Tree Canopy	15% of lot area

2. *Administrative Departure.* An Administrative Departure may allow adjustments up to five (5) feet in the established dimensions to accommodate individual site conditions, such as healthy mature trees, topography, or other similar physical conditions.

D. *Building Elements.*

Table 5.7.04.D. Building Elements: Industrial Transportation District	
Maximum Height	3 stories or 45 ft., whichever is less. Height may be increased by the Planning Commission in accordance with the Special Land Use standards and procedures of Section 5.12.09.
Materials	The use of highly reflective surfaces, including reflective glass and reflective metal roofs, is prohibited; not applicable to the installation and use of solar panels.
	All walls exposed to public view from the street or an adjacent residential area shall be constructed of not less than 25% brick, face brick, stone or cast stone. High quality materials on other exposed exterior surfaces such as brick, stone, wood, or stucco are encouraged. Metal siding or paneling may be used, providing the following standards are met: 1. The siding shall be a gauge of no higher than 24. 2. Any change in profile shall be non-corrugated and have a minimum rib depth of 1-inch. 3. A masonry base with a minimum height of 18 inches is provided. 4. Transparency requirements are met. These requirements may be reduced or waived by the Planning Commission in accordance with the Special Land Use standards and procedures of Section 5.12.09.

Table 5.7.04.D. Building Elements: Industrial Transportation District		
Façade Variation	Blank walls shall not face a public street.	
	No more than 50 ft. of horizontal distance of wall shall be provided without articulation or architectural design variations for building walls facing the street to assure that the building is not monotonous in appearance.	
	Acceptable variations include, but are not limited to:	Recess and projections along the building façade. Variations in recesses and projections shall be a minimum of 18 inches.
		Architectural details or features.
		Enhanced ornamentation around building entranceways.
		Streetscape elements
		Variations in building height.
Entrance	The main customer/visitor entrance shall be clearly identified using an awning, paving treatments, change in roofline or other features, such as canopies, porticos, arcades, arches, wing walls, or integral planters.	
	Main building entrances and exits shall be located on the primary street. Doorways that open to the sidewalk shall be recessed.	
Transparency	A minimum 20% transparency shall apply to all sides of a building façade that abut a public street, excluding alleys.	
Transitional Features	See Section 5.05.07.G.	
Streetscape Plan	Standards used by the City Engineer to determine appropriate street tree plantings, walking surfaces and parkway landscaping shall be used where a City-recognized streetscape plan for a defined area has not been adopted, see Section 5.11.13.C.	

E. *Storage and Screening.*

1. Materials and equipment storage areas shall be located in the side or rear yards.
2. All outdoor storage shall be completely screened from any adjacent parcel or public right-of-way as required by Section 5.9.18.C.
3. All machinery, equipment and materials shall be at least twenty-five (25) feet from any lot line. No portion of the storage area shall be within seventy-five (75) feet of any Residential Zone District or residential use.
4. Any hazardous materials proposed to be stored, used or handled on site shall be conducted in accordance with all applicable State and Federal laws. These materials shall be disclosed by the applicant or property owner for Special Land Use requests.
5. Administrative Departure. Materials and equipment storage may be permitted in the front yard if it is demonstrated that there would be no substantial detriment to surrounding properties, that adequate screening shall be provided; that a minimum setback of fifteen (15) feet from the property line is maintained.

(Ord. No. 2018-45, § 4, 7-24-18; Ord. No. 2018-70, § 2, 12-18-18; Ord. No. 2019-16, § 2, 4-23-19; Ord. No. 2020-21, §§ 5, 6, 7-7-20; Ord. No. 2024-20, § 10, 4-23-24)

Sec. 5.7.05. Special District - Institutional Campus (SD-IC).

A. *Purpose and Intent.*

1. *Large, Campus-Like Settings.* The Institutional Campus District is established to account for larger, campus-like settings including colleges and universities, hospital campuses, senior

living facilities and similar institutional arrangements. Mixed land uses may occur in the same building (e.g., retail on ground floor, office space above) or in different buildings sited on the same lot or parcel (e.g., freestanding child day care center located on the same parcel as an office building). Active uses such as retail, restaurants, cultural and public spaces are encouraged on the ground floor abutting a public street. In certain circumstances, less intensely developed areas that are characterized by single uses rather than a mix of uses may be developed.

2. *Mixed-Use Environment.* The following requirements are intended to deal with the complexities inherent in campus settings and the establishment of a mixed-use environment that services the institutional use as well as the broader community. The Master Plan promotes the restructuring of many of the city's existing institutional areas into compact, walkable, mixed-use centers. The Master Plan advocates incorporating housing, shopping, jobs and services, and providing attractive alternatives to travel by car. It is understood that institutional settings involve density and character of living, education, working, visiting and other arrangements that present unique challenges especially given that in some settings there are special physical, mobility and equipment needs, as well as unique situations in dealing with persons in various life stages, sometimes dealing with particular health and emotional issues.

3. *Design Issues.* These regulations guide the physical form of the development project to resolve concerns and address design issues that might occur with the mixture of different uses in the same project. These concerns and design issues may occur within a project or along its boundaries with surrounding residential neighborhoods or commercial areas.

B. *Eligibility Requirements.*

1. *Unified Control of Property.* The proposed development shall be under single ownership or control to ensure there is a single entity with responsibility for completing and managing the campus.

2. *Minimum Size.* The site shall be a minimum of two (2) acres. The Planning Commission may approve submission of an application for a smaller site provided that the proposal substantially achieves the Purpose and Intent of the Special District and meets the other eligibility requirements.

3. *Compatibility.* The proposed plan and uses shall not adversely affect adjacent neighborhoods or other development in terms of traffic disruption or congestion or impediments to development or redevelopment of nearby properties.

4. *Master Plan.* The proposed use shall be consistent with the Visions, Objectives and Policies, and Development Characters of the Master Plan for the area in which the use is proposed.

C. *Allowed Uses Table.* Table 5.7.05.C. lists uses allowed in the Institutional Campus District (SD-IC), subject to compliance with all other applicable requirements of this Chapter.

1. *Permitted Uses.* Uses permitted by right in the Zone District, subject to compliance with all other applicable requirements of this Chapter. These uses are identified with a "P."

2. *Special Land Uses.* Uses which may be allowed subject to review and approval by the Planning Commission in accordance with Section 5.12.09., and with all other applicable requirements of this Chapter. These uses are identified with an "S."

3. *Use Regulations.* Certain allowed uses, whether a Permitted Use or a Special Land Use, are subject to compliance with other requirements of this Chapter. These uses are identified in the Table 5.7.05.C. under "Use or Other Regulations." A cell marked with a dash "—-" under this heading indicates that there are no additional use requirements in Article 9.

4. *Unlisted Uses.* Uses not listed in the Table 5.7.05.C. are also prohibited unless the Director determines that the use is similar to other uses listed either as a Permitted Use or Special Land Use in accordance with Section 5.4.04.

5. *Site Development.* Vehicle and bicycle parking requirements and pedestrian circulation requirements are located in Article 10 Transportation and Mobility. Landscaping requirements are in Article 11 Landscaping and Green Infrastructure. Sign requirements are in Article 15 Signs.

6. *Accessory Uses.* Accessory uses that provide goods or services primarily to employees, students or other immediate stakeholders and operate with low intensity activities such as a coffee shop, pharmacy, gift shop or book store or other similar use shall be permitted as approved by the Director.

7. *Excessive Noise.* Activities that may generate a great deal of sound, such as a power house, loading docks or amplified sporting event shall be subject to Special Land Use approval if located within four hundred (400) feet of a residential use.

Table 5.7.05.C. Uses: Institutional Campus District			
Use Category	**Specific Use**	**Approval**	**Use or Other Regulations**
RESIDENTIAL			
Household Living	Single-family dwelling, detached	P	—
	Single-family dwelling, attached	P	5.9.06.
	Two-family dwelling	P	
	Multiple family dwelling	P	5.9.20.
Group Living	All group living (including residential care)	P	—
Accessory Uses	Accessory structure	P	5.2.08.
COMMERCIAL			
Commercial	Commercial uses intended for the general public that may also serve the primary use (e.g. restaurant or gas station)	S	—
EDUCATIONAL, GOVERNMENT AND INSTITUTIONAL			
Educational Uses	All educational uses, including residential & accessory facilities	P	—
Accessory Structures	Building under 2,000 sq. ft. GFA within the 250 ft. perimeter area	P	—
	Building 2,000 sq. ft. GFA or over within the 250 ft. perimeter area	S	—
Accessory Uses	Uses directly related to the principal use (e.g. school book store or cafeteria)	P	—
Government and Institutional	Amphitheatre, outdoor	S	5.9.12.
	Child care center	P	5.9.09.
	Community center	P	—
	Community garden	P	—
	Hospital, clinic, medical center, rehabilitation center, administrative offices	P	5.9.29.
	Library	P	—
	Museum	P	—
	Outdoor recreation field	S	5.9.23.
	Park, playground, plaza, square, urban open space, walkway	P	5.11.13.
	Religious institution	P	—
	Social service facility	P	5.9.34.
P = Permitted; S = Special Land Use; "—-" = Not Applicable; GFA = Gross Floor Area.			

D. *Site Layout and Building Placement Requirements.*

1. All development in the SD-IC District shall comply with the requirements in Table 5.7.05.D. unless otherwise expressly stated, or unless a different requirement is contained in an applicable Overlay District.

Table 5.7.05.D. Site Layout and Building Placement: Institutional Campus District	
Minimum lot area	2 acres. See Section 5.7.05.B.2.
Minimum lot width and depth	250 ft.
Setbacks - front, rear and side	25 ft.
	The Planning Commission may waive the required setback to 10 ft. where adjacent lots are in the same ownership, to account for unusual site conditions, or where adjacent uses will not be adversely affected.
Minimum green space (% of lot area)	30%
Minimum tree canopy (% of lot area)	35%

2. Accessory uses shall be sited to face the public right-of-way or contribute to the creation of a Traditional Neighborhood streetscape. Where located adjacent to a public right-of-way, storefront windows, door entrances and façade treatments shall comply with the TN-TBA Zone District requirements of Table 5.6.08.A.

E. *Building Elements.*

1. All development in the SD-IC shall comply with the requirements in Table 5.7.05.E. unless otherwise expressly stated, or unless a different requirement is contained in an applicable Overlay District.

Table 5.7.05.E. Building Elements: Institutional Campus District		
Height	No building shall exceed 55 ft. in height or 4 stories, whichever is lower, except that the Planning Commission may approve greater heights under Optional Plan Review where the nature of the use requires a higher building.	
	New buildings shall generally respect surrounding development patterns. Height may be restricted to less than 55 ft. within the 250 ft. perimeter area when the Planning Commission finds that a lesser height would be more compatible.	
Materials	The use of highly reflective surfaces, including reflective glass and reflective metal roofs, is prohibited. This prohibition shall not apply to solar panels.	
	All walls exposed to public view from the street or an adjacent residential area shall be constructed of not less than 75% brick, face brick, stone or cast stone. High quality materials on other exposed exterior surfaces such as brick, stone, wood, architectural metal (24 gauge or better) or stucco are encouraged.	
Façade Variation	Blank walls shall not face a public street.	
	Where building walls for new main buildings are 100 ft. or greater in length, design variations shall be applied to ensure that the building is not monotonous in appearance.	
	Acceptable variations include, but are not limited to, the following:	Recesses and projections along the building façade for a minimum of 18 in.
		Architectural details or features.
		Enhanced ornamentation around building entranceways.
		Landscaping.
		Streetscape elements.
		Variations in building height.
Entrance	The primary entrance of a new main building shall be clearly identified using an awning, paving treatments, change in roofline or other architectural feature and shall relate to locations of pedestrian activity.	

Table 5.7.05.E. Building Elements: Institutional Campus District	
Transparency	A minimum 40% of the ground level façade on the front of a building shall be transparent.
	For new buildings located at the corner of 2 streets, a minimum of 50% of the ground level façade on both frontages of the building shall be transparent.
	The Planning Commission may approve a lower transparency percentage for the reuse of an existing building, residential buildings, or other buildings where it is demonstrated by the applicant that transparency would be detrimental to the operation or security of the proposed use.
	A main building with retail uses as a principal or ancillary use shall incorporate pedestrian oriented elements such as, but not limited to:
	Transparent windows or display cases (see Transparency requirements above).
	Outdoor dining areas on private property.
	Public art.
	Canopies/awnings/trellises.
	Landscaping, shade trees and benches.
	Blank walls shall not face a public street.
Transitional Features	See Section 5.5.07.G.
Streetscape Plan	Standards used by the City Engineer to determine appropriate street tree plantings, walking surfaces and parkway landscaping shall be used where a City-recognized streetscape plan for a defined area has not been adopted, see Section 5.11.13.
Roof Type	Additional roofline treatments may be recommended by the Planning Commission in order to minimize the mass of the roof or enhance the design of the building. These treatments include, but are not limited to cornices, dormer windows, cupolas, additional accent gables, and covered entranceways.

2. New window and door openings shall be compatible with existing horizontal and vertical architectural features, such as columns, piers and cornices.

F. *Review and Approval.* Except as provided in G., below, the following process shall be used in the SD-IC District.

1. *Perimeter Area.* A two hundred fifty (250) foot wide perimeter area shall be established along the outer edge of the SD-IC District as measured from the campus property lines, including any individual lots under common ownership. All improvement to land or structures within the two hundred fifty (250) foot perimeter shall be approved as a Special Land Use by the Planning Commission. The Planning Commission shall review appropriate transitions in landscaping, use, building height and massing, and density related to these improvements.

2. *Interior of Site.* Improvements to land or structures outside of the two hundred fifty (250) foot perimeter area shall be subject to Director Review; unless the Director determines that a hearing before the Planning Commission is warranted due to proposed site changes that have the potential to adversely affect neighboring properties.

3. *Facility Master Plan.* The institution shall submit a facility master plan to the Director as part of a regular project submittal. The area under development shall be identified.

4. *Optional Plan Review.* The Planning Commission may modify any of the design requirements of this Special District under Section 5.12.14. Optional Plan Review at the request of the applicant where one (1) or more of the following conditions exist.

   a. Existing site conditions, including but not limited to: surrounding land uses, topography, soils, and/or other significant natural features, physically preclude or prevent compliance with the requirements of the District without a substantial adverse effect on those features. These features shall be clearly identified and described in the application for any requested modification.

   b. The applicant demonstrates by clear and compelling evidence that site or occupant security requires their modifications.

   c. The justification of any modification shall not be justified solely for financial considerations. However, this does not preclude the Planning Commission from modifying requirements where the applicant demonstrates that the project would be rendered financially unsound or that the requirement is unnecessarily burdensome in relation to the benefit gained.

   d. That no other reasonable design alternatives are available that would comply with the requirements of the District.

   e. That the request for modification was reviewed by the Director, City Engineer, Fire Chief, and Police Chief.

Sec. 5.7.06. Special District - Planned Redevelopment District (SD-PRD).

A. *Purpose and Intent.*

1. *Flexible Development Standards.* The Planned Redevelopment District may be appropriate when it may be necessary or desirable to deviate from the standards in another Zone District to ensure that desirable and compatible development occurs. These flexible development standards are necessary to address special conditions with regard to setbacks, yards, building height and special traffic, policing, or landscaping issues. It is not the intent of this District to permit development applications that simply wish to avoid compliance with the other regulations of this Chapter.

2. *Mixed Use Development.* The SD-PRD encourages mixed land uses that may occur in the same building (e.g., retail on ground floor, office space above) or in different buildings sited on the same lot (e.g., free-standing child day care center located on the same parcel as an office building). Active uses such as retail, restaurants, cultural and public spaces are encouraged on the ground floor. In certain circumstances, less intensely developed areas characterized by single uses rather than a mix of uses may be developed using the SD-PRD classification.

3. *Project Review Process.* The SD-PRD is designed to accomplish the objectives of this Chapter through a land development project review process to achieve integration of the proposed land development project with the characteristics of the area, as authorized by the Zoning Act.

4. *Former PUDs and PRDs.* Planned Unit Development (PUD) and Planned Redevelopment Districts (PRD) of a former zoning ordinance have been transferred into this SD-PRD where continued control of new development or redevelopment efforts is desired. All conditions and requirements of the previous project approval, and amendments thereto, shall remain in effect unless otherwise waived by the Planning Commission or City Commission or if the approval has expired pursuant to Section 5.12.12.I., in which case the development shall only be completed in accordance with the provisions of this Chapter.

5. *Master Plan.* This Special District permits and controls the development of sites and buildings in a manner that satisfies the Visions, Objectives and Policies, Plan Recommendations, and Development Characters of the Master Plan; particularly as it relates to environmental quality and sustainable design.

B. *Eligibility Requirements.*

1. To apply for SD-PRD approval, the applicant shall demonstrate that each of the eligibility criteria shall be met.

   a. *Unified Control of Property.* The proposed development shall be under single ownership or control to ensure there is a single entity responsible for completing the project. A responsible party shall be named for the project and included in the application.

   b. *Area Specific Plan and Master Plan.* An area specific plan shall be prepared as part of the development request, in compliance with the criteria established in Chapter 11 of the Master Plan. The proposed project uses will be consistent with the Master Plan for the area in which the use is proposed.

2. *Exceptions.* The Planning Commission may approve submission of an application for a SD-PRD outside of the Eligibility Requirements noted above, provided that the proposed project is generally consistent with the Purpose and Intent of the SD-PRD and is consistent with the Vision, Objectives and Policies, Plan Recommendations, and Development Characters of the Master Plan.

C. *Use Table.* Table 5.7.06.C. lists uses allowed within the Planned Redevelopment District (SD-PRD), subject to compliance with all other applicable requirements of this Chapter and any conditions of the City Commission's approval of the SD-PRD.

1. *Permitted Uses.* Uses permitted by right in the Zone District, subject to compliance with all other applicable requirements of this Chapter. These uses are identified with a "P."

2. *Special Land Uses.* Uses which may be allowed subject to review and approval by the Planning Commission in accordance with Section 5.12.09., and with all other applicable requirements of this Chapter. These uses are identified with an "S."

3. *Use Regulations.* Certain allowed uses, whether Permitted Uses or a Special Land Uses, are subject to compliance with Article 9 or other provisions of this Chapter. These uses are identified in the Table 5.7.06.C. under "Use or Other Regulations." A cell marked with a dash "—-" under this heading indicates that there are no additional use requirements. However, there may be other applicable regulations in this Chapter for the uses listed that are not noted in the Use Table.

4. *Unlisted Uses.* Uses not listed in the Table 5.7.06.C. are prohibited unless the Director determines that the use is similar to other uses listed either as a Permitted Use or Special Land Use in accordance with Section 5.4.04.

5. *Exception.* An Exception, as noted in Table 5.7.06.C. may be given to permit non-retail uses within the ground floor of a commercial building if the building was constructed for purposes or uses other than retail sales. For example, a building constructed for offices may be used for ground floor offices or a dance studio.

6. *Site Development.* Vehicle and bicycle parking requirements and pedestrian circulation requirements are located in Article 10 Transportation and Mobility. Landscaping requirements are in Article 11 Landscaping and Green Infrastructure. Sign requirements are in Article 15 Signs.

Table 5.7.06.C. Uses: Planned Redevelopment District			
Use Category	**Specific Use**	**Approval**	**Other Regulations**
RESIDENTIAL			
Household Living	Same as MDR Zone District	See Table 5.5.05.B.	5.2.07. 5.9.06. 5.9.20.
Group Living			5.9.04. 5.9.17. 5.9.29. 5.9.30. 5.9.32. 5.9.36.
Live-Work Units	All	P	5.9.16.
Accessory Uses	Accessory structure	P	5.2.08.
	Accessory dwelling unit	P	5.9.03.
	Home occupation	P	5.9.14.
	Family child care home	P	—
EDUCATIONAL, GOVERNMENT AND INSTITUTIONAL			
Educational Uses	As in TOD Zone District	See Table 5.6.06.B.	5.9.23.
Governmental & Institutional Uses			5.9.09. 5.9.23. 5.9.29. 5.9.34. 5.11.13.
COMMERCIAL & INDUSTRIAL			
Auto-Oriented	All	S	5.9.10. 5.9.38. 5.9.39. 5.9.40.
Entertainment and Recreation	All	S	5.9.05. 5.9.12. 5.9.23.
Hospitality	As in TOD Zone District	See Table 5.6.06.B.	5.9.05. 5.9.08. 5.9.12. 5.9.24.
Office	Same as TOD Zone District	See Table 5.6.06.B.	Exception
Personal Services			Exception
Retail Sales			5.9.05.
Outdoor Activities			5.9.22. 5.9.23. 5.9.24.
Industrial and Manufacturing	Same as TCC Zone District	See Table 5.6.06.B.	Exception
			5.9.18. 5.9.21. 5.9.27. 5.9.31.

Table 5.7.06.C. Uses: Planned Redevelopment District			
Use Category	**Specific Use**	**Approval**	**Other Regulations**
Transportation	Same as TOD Zone District, except transit centers	See Table 5.6.06.B.	5.9.25. 5.9.26. 5.11.07.
	Transit centers	S	—
Utilities	Same as TOD Zone District	See Table 5.6.06.B.	5.9.11. 5.9.41.
P = Permitted; S = Special Land Use; "-" = Not Applicable.			

7. *Dwelling Units.*

a. The total number of dwelling units allowed in a project shall be determined by multiplying the gross acreage of a project area, not including the acreage dedicated to non-residential uses, by the dwelling unit density permitted within the applicable Future Land Use category of the Master Plan, and as shown in Table 5.7.06.C.7., unless an Area Specific Plan has specified a different density.

Table 5.7.06.C.6. Dwelling Units per Gross Acre	
Master Plan: Future Land Use Designation	**DU per Acre**
Low Density	1.0 to 4.9
Medium Low Density	5.0 to 9.9
Medium Density	10.0 to 14.9
High Density	15.0+
*Not including acreage devoted to non-residential uses.	

b. Additional residential units above those permitted in Table 5.7.06.C.7. may be permitted if determined appropriate by the Planning Commission where the following conditions are present.

i. Excessive costs incurred in the redevelopment of deteriorating or blighted areas, including costs for land assembly, demolition, and other related costs.

ii. Costs for the following amenities and activities that would not otherwise be incurred for projects in Zone Districts outside of a PRD.

(a) Landscaping, such as streetscape, open space and plazas, use of existing landscape, pedestrian ways, or bicycle paths.

(b) Difficulties related to the property in siting of building or other site improvements, such as topography, view, sun orientation, circulation pattern, physical environment, variation in building setbacks, or building groups (clustering).

(c) Design features beyond those required by this Chapter, such as street sections, harmonious use of materials, parking areas broken by landscape features, or other enhancements.

c. *City Commission.* The City Commission, after receipt of the recommendation of the Planning Commission, shall determine the total number of dwelling units. The City Commission may consider a different number of dwelling units than recommended by the Planning Commission.

D. *Site Layout and Building Placement Requirements.* All development in the SD-PRD District shall comply with the requirements in Table 5.7.06.D. unless otherwise expressly stated, or unless a different requirement is contained in an applicable Overlay District.

Table 5.7.06.D. Site Layout and Building Placement: Planned Redevelopment District	
Setbacks	Front, rear and side setbacks - 20 ft.
	The Planning Commission may reduce the required setback to 5 ft. where adjacent lots are in the same ownership, to account for unusual site conditions, or where adjacent uses will not be adversely affected. The setback may be further reduced to 0 ft. in TN Zone Districts where consistency with the established Required Building Line (RBL) would ensure uniform building placement from public streets, reinforce the purpose of the TN Neighborhood Classification, recognize the appropriate positioning of varying land uses within a Zone District, permit access from the public right-of-way, and provide maximum use of a constrained site than would otherwise be possible with a minimum setback requirement.
Green Space	15% of lot area. Section 5.6.07.H. shall apply.
Tree Canopy	12% of lot area.

E. *Building Elements.* All development in the SD-PRD shall comply with the requirements in Table 5.7.06.E. unless otherwise expressly stated, or unless a different requirement is contained in an applicable Overlay District.

Table 5.7.06.E. Building Elements: Planned Redevelopment District		
Height	New buildings shall generally respect existing building heights within the area in which they are constructed. No building shall be higher than 55 ft. or 4 stories, whichever is lower.	
	Planning Commission modifications	Greater heights may be permitted when the SD-PRD District is adjacent to a Zone District which allows a greater height or where the nature of the use warrants a higher building.
		Lower heights may be required where the Commission finds that a lesser height would be more compatible with existing development patterns and building heights in the immediate vicinity.
Materials	The use of highly reflective surfaces, including reflective glass and reflective metal roofs, is prohibited. This prohibition shall not apply to solar panels.	
	All walls exposed to public view from the street or an adjacent residential area shall be constructed of not less than 75% percent brick, face brick, stone or cast stone. High quality materials on other exposed exterior surfaces such as brick, stone, wood, or stucco are encouraged.	
Façade Variation	Blank walls shall not face a public street.	
	When building walls for new main buildings are 100 ft. or greater in length, design variations shall be applied every 30 ft. to assure that the building is not monotonous in appearance.	
	Acceptable variations include, but are not limited to, the following:	Recesses and projections along the building façade. Variations in recesses and projections shall be a minimum of 18 inches.
		Architectural details or features.
		Enhanced ornamentation around building entranceways.
		Landscaping.
		Streetscape elements.
		Variations in building height.

Table 5.7.06.E. Building Elements: Planned Redevelopment District		
Pedestrian Orientation	A main building with retail uses as a principal or accessory use shall incorporate pedestrian oriented elements such as, but not limited to:	Transparent windows (see Transparency requirements).
		Outdoor dining areas on private property.
		Public art.
		Canopies/awnings/trellises.
		Landscaping, shade trees and benches.
Entrance	The primary building entrance shall be located in the front façade parallel to the street. Main building entrances and exits shall be located on the primary street.	
	The primary entrance of a new main building shall be clearly identified using an awning, paving treatments, change in roofline or other architectural feature and shall relate to locations of pedestrian activity.	
	The front façade of a new main building shall face a primary or major public street.	
Expression Line (EL)	A horizontal line on the façade shall distinguish the base of the building from the remainder to enhance the pedestrian environment. The EL shall be created by a change in material, a change in design, or by a continuous setback, recess, or projection above or below the EL. Elements such as cornices, belt courses, corbelling, molding, stringcourses, ornamentation, and changes in material or color or other sculpturing of the base, are appropriate design elements for ELs.	
	If applicable, the height of the EL shall be related to the prevailing scale of development in the area. A change of scale may require a transitional design element between existing and proposed features.	
Transparency	A minimum of 60% of the street level façade on the front of a building shall be transparent.	
	For new buildings located at on a corner lot, a minimum of 60% transparency shall be provided on the street level façade on the primary street frontage; the secondary street façade shall have a minimum of 40% transparency.	
	The Planning Commission may approve a lower transparency percentage for the reuse of an existing building, residential buildings, or other buildings where it is demonstrated by the applicant that transparency would be detrimental to the operation or security of the proposed use.	
Transitional Features	Section 5.6.08.I. shall apply.	
Streetscape Plan	Standards used by the City Engineer to determine appropriate street tree plantings, walking surfaces and parkway landscaping shall be used where a City-recognized streetscape plan for a defined area has not been adopted. See Section 5.11.13.C.	
Roof Type	Roofline treatments may be recommended by the Planning Commission to minimize the mass of the roof or enhance the design of the building. These treatments include, but are not limited to, cornices, dormer windows, cupolas, additional accent gables, and covered entranceways.	

F. *Additional Requirements.*

1. Any development of a commercial area under these provisions shall be designed in a manner to be pedestrian-friendly, discourage freestanding uses, and eliminate the appearance of a strip

commercial development style. The development shall be architecturally pleasing and generally consistent with surrounding development, and shall be consistent with Purpose of a mixed use development in Section 5.7.06.A.

2. New Buildings. For new main buildings, the main floor of a single retail use shall not be greater than thirty thousand (30,000) square feet of gross floor area.

3. Commercial areas shall provide a landscape buffer from adjacent uses of a less intense nature, per Section 5.11.12.

4. Compatibility. The proposed plan and uses shall not adversely affect adjacent neighborhoods or other development in terms of traffic disruption or congestion or impediments to development or redevelopment of nearby properties.

5. Reflective Surfaces. The use of highly reflective surfaces, including reflective glass and reflective metal roofs, is prohibited. This prohibition shall not apply to solar panels.

6. Outside Display or Storage. No development or use shall store products outside. Any outside display shall be recommended by the Planning Commission and specifically approved by the City Commission as part of the SD-PRD zone change.

7. Residential development in a SD-PRD shall be subject to the requirements of Sections 5.9.06 and 5.9.20.

G. *Application, Review and Amendments.* See Article 12.

(Ord. No. 2018-32, § 6, 6-5-18)

ARTICLE 8. OVERLAY DISTRICTS

Sec. 5.8.01. Purpose and Intent.

A. *Purpose.*

1. It is recognized by this Chapter that there are unique areas within existing Zone Districts of the city that require special consideration to provide certain design, placement, or other regulations in addition to those imposed by the current zoning designation.

2. Accordingly, this Article provides for certain Overlay Districts that are intended to permit the proper regulation of these areas by adding special considerations in addition to those of the base Zone District. In all cases, applicants for building permits in an Overlay District shall meet both the requirements of the base Zone District and the additional provisions, requirements and restrictions of the Overlay District.

3. Where there is conflict between other provisions of this Chapter, those specifically applied in the Overlay District shall control. Where there is conflict between other provisions of this Chapter, those specifically applied in the Overlay District shall control, except as may be provided in Section 5.1.09.

4. The Overlay Districts of this Article allow regulations such as height bonuses in the Downtown area; establishment of particular development characters along the Grand River and East Beltline, protections for the public interest within designated floodplain areas, and provisions for ensuring adequate wayfinding throughout the city.

B. *Overlay District Designation.* Table 5.8.01.B denotes the Overlay Districts.

Table 5.8.01.B. Overlay Districts (OD)		
Abbreviation	**Zone District**	**Ordinance Section**
OD - DH	Downtown Height	5.8.02.
OD - GR	Grand River	5.8.03.
OD - EBL	East Beltline	5.8.04.
OD - FP	Floodplain	5.8.05.
OD-WS	Wayfinding Signs	5.8.06.

Sec. 5.8.02. Downtown Height Overlay District (OD-DH).

A. *Purpose.*

1. The purpose of the Downtown Height Overlay District (OD-DH) is to allow a variety of building heights in the areas within and surrounding what is generally recognized as Grand Rapids' Downtown. In addition, certain qualifying development incentives are provided in recognition of the need to provide for a suitable mix of residential, retail, employment centers, and urban open space that is essential for the creation of an attractive, pedestrian-friendly, vibrant, and economically sustainable central business district.
2. In addition, these incentives promote an environment that enhances property values, contributes to quality of life and sustains the Downtown as a regional asset. To this end, the Downtown Height Overlay District provides for certain incentives that permit building heights above the permitted base building heights to encourage certain development characteristics the City has deemed of value in creating highly livable, walkable, and vibrant environments.
3. The District is further intended to recognize the need to have varying intensities of development from the densest levels of development in the city core to the edges of commercial area that begin to transition into less intensely developed areas and residential neighborhoods. To this end, the District establishes certain subareas to account for height and incentive differences.

B. *Applicability.* Map A of the Zoning Map depicts the boundaries of the area covered by the Downtown Height Overlay District and its subareas. The height requirements of the Height Overlay District are in addition to the requirements of the Zone District in which an individual property is located. All other applicable requirements of each district remain in effect.

C. *Downtown Height Overlay Subareas.*

1. As noted in Table 5.8.02.D., the Height Overlay District establishes two (2) subareas, each of which has height regulations applied. Additional bonus height provisions are available for properties that fall within the Grand River Overlay District of Section 5.08.03.
2. *Purposes.* A series of density incentives, provided through variations in building height, are provided to help describe a smooth transition from the most intensively developed core of the downtown to the residential neighborhoods with a transition that steps down building heights from the core to these neighborhoods.
    a. *DH-1.* The purpose of this subarea is to permit the greatest intensity of land use to create a core of development density for a wide variety of uses that are mutually supportive and serve regional needs, including hotels, restaurants, employment centers, medical centers, entertainment venues, and others. These uses are also intended to create an active, vibrant core.
    b. *DH-2.* This subarea largely surrounds the core and near-core downtown areas, including areas on the west side of the Grand River, with a number of cultural and institutional uses important to the city and region. It is intended as a transitional area between the more

intense development of DH-1 and the edges of downtown and nearby neighborhoods. While still relatively intensively developed, the lower building heights provide transition from the core. The subarea is divided into two zones, DH-2(a) and DH-2(b), to help reinforce the transition of building heights.

D. *Permitted Height.* Table 5.8.02.D. describes the minimum and maximum permitted heights for buildings within each Height Overlay Subarea, including potential bonuses as described in Section 5.8.02.G. Heights are measured in stories as provided in Section 5.8.02.E., below.

Table 5.8.02.D. Building Heights			
		Permitted Height (stories)	
Subarea		**Minimum**	**Maximum**
DH-1		3	None
DH-2	zone (a)	3	20
	zone (b)	3	10

E. *Story Heights.* (See also Section 5.2.06.)

1. Table 5.8.02.E.1 provides for the height of each story of the main building. Unless otherwise specified, story height is measured in feet from the floor of a story to the floor of the story above it.

Table 5.8.02.E.1. Building and Story Heights				
	Permitted Story Height (ft.)			
	Ground Floor		**Upper Floors**	
Subarea	**Minimum**	**Maximum**	**Minimum**	**Maximum**
CC, TCC	12	24	-	14
All others	12	18	-	14

2. For the uppermost story, story height shall be measured from the floor of the story to the eave line on pitched roofs and to the tallest point of the roof deck on parapet and flat roofs.

3. Story height requirements apply only to street facing façades, however, no portion of a story of the building shall exceed the maximum permitted story height.

4. A building incorporating both a half story within the roof and a visible basement shall count the height of the two and one-half (2½) stories as one (1) full story.

(Ord. No. 2023-26, §§ 4, 5, 7-11-23)

Sec. 5.8.03. Grand River Overlay District (OD-GR).

A. *Purpose.* As Grand Rapids' most significant natural asset, the Grand River plays an important role in enhancing the quality of life of its residents. The Grand River Overlay District is intended to capitalize on the value of the Grand River as an essential economic, recreational and environmental resource by encouraging land use changes from industrial to open space and mixed-use development. The Grand River Overlay District seeks to introduce new development practices and land use patterns that enhances the extent to which people can view, access and enjoy the riverfront by providing opportunities for viewsheds, easements and recreational opportunities. It is intended that:

1. Visibility of the Grand River is increased and enhanced by requiring building setbacks that will provide for improved views of the River.

2. Existing river walk segments be extended along the entire length of the Grand River to allow for a continuous connection alongside the River for recreational and environmental quality purposes through donation, acquisition and easements.

3. Wildlife corridors along the River's edges be supported through a continuous network of greenspaces.

4. Water quality be improved with the introduction of less-intense, mixed land uses that are setback from the River's edge as opposed to present, directly abutting industrial uses and paved surfaces.

5. Building heights generally conform to nearby buildings along the river corridor to provide a sense of visual continuity. Building heights should be configured to provide views to the Grand River and other significant landmarks while allowing an appropriate development intensity.

6. A variety of people-oriented destinations be created along the river walk to provide visual interest, activity and vibrancy. Mixed-use development and high-density residential construction are essential components for encouraging pedestrian activity and public safety.

B. *Applicability.* The requirements of this Overlay District shall apply to any lot or parcel shown on the Grand River Overlay Maps B1-B3, from the ordinary high water mark, floodwall or dock line, whichever is applicable as determined by the Planning Director, on each side of and paralleling the Grand River.

C. *Uses.* Any lot or parcel within the OD-GR District shall be subject to the use regulations of the base Zone District.

D. *Site Layout and Building Placement Requirements.*

1. Where a property directly abuts the Grand River, buildings shall be sited to encourage pedestrian activity on both the street side and river side of the property.

2. All development in the OD-GR District shall comply with the requirements in Table 5.8.03.D. unless otherwise expressly stated. Where specified, these requirements supersede the site layout and building placement requirements of the base Zone District.

Table 5.8.03.D. Site Layout and Building Placement: Grand River Overlay District

Lot Area and Width		As required in the base Zone District
Front Setback	Street side	As required in the base Zone District.
	River side	All buildings shall maintain a minimum setback of 30% of the lot depth, but in no case shall the required setback exceed 50 ft. or be less than 30 ft. from the river walk, floodwall, shore or dock line of the Grand River, whichever is applicable. A setback may be reduced through an Optional Plan Review by the Planning Commission.
Side Yard Setback		20 ft. minimum setback on one side; other side yard may be developed at the property line or at a minimum distance of 5 ft.
		A side yard setback may be reduced to 5 ft. on a side lot line that borders a permanent public open space. The remaining side yard may be developed at the property line or at a minimum distance of 5 ft.
Permitted Yard Encroachment		Uncovered, outdoor seating areas may extend into a front yard, provided that a minimum of 14 ft. is maintained between the river walk, floodwall, shore or dock line of the Grand River, whichever is applicable.
Greenspace		30% of lot area.

E. *Building Elements.* All development in the OD-GR District shall comply with the requirements in Table 5.8.03.E. Where specified in this Section, these requirements supersede the building element requirements of the Zone District. Where not specified, the requirements of the underlying Zone District requirements shall prevail.

Table 5.8.03.E. Building Height and Step-backs: Grand River Overlay District						
	Permitted height (stories)			*Step-backs*		
Subarea	*Min.*	*Max.*	*Max. height with bonuses*	*Option A (40% linear frontage along all bldg. faces)*	*Option B (30% linear frontage along all bldg. faces)*	*Notes*
DH-1	3	None	None	None		
DH-2(a)	3	10	20	2^{nd}-11^{th} floor - 15 ft 17-19^{th} floor - 15 ft	2^{nd}-11^{th} floor - 20 ft 17^{th}-19^{th} floor - 20 ft	See 5.8.03.E.1.e
TCC	3	5	7	2^{nd}-4^{th} floor - 15 ft	2^{nd}-4^{th} floor - 20 ft	See 5.8.03.E.1.e

1. *Step-backs.*

   a. *Purpose and intent.* A step-back is a portion of a building or structure that is recessed from the base of the structure at a defined story. The requirements for building step-backs are intended to ensure compatibility of the proposed development with the location, height, scale, and spacing of existing or approved buildings, and in particular other buildings on the same or adjacent blocks. To encourage public access to the river, some of the step-back requirements may be waived if said access is provided.

   b. *Applicability.*

      i. A step-back is required per the regulations of Table 5.8.03.E.

      ii. In the Grand River Overlay District, step-backs are required on all building faces (river, street, and two sides).

   c. *DH-2(a) requirements.*

      i. For buildings 11 stories or taller, one (1) step-back is required somewhere between the 2^{nd} and 11^{th} floors.

      ii. For buildings 17 stories or taller, one (1) additional step-back is required somewhere between the 17^{th} and 19^{th} floors.

      iii. The step-back can either be 15 feet for 40 percent of the linear building frontage (Option A), or 20 feet for 30 percent of the linear building frontage (Option B).

      iv. Administrative Departure. For buildings 17 stories or taller, an Administrative Departure may be approved to allow one (1) step-back of 30 feet for 40 percent of the linear building frontage or one (1) step-back of 40 feet for 30 percent of the linear building frontage.

   d. *TN-TCC requirements.*

      i. For buildings six (6) stories or taller, one (1) step-back is required somewhere between the 2nd and 4th floors.

      ii. The step-back can either be 15 feet for 40 percent of the linear building frontage (Option A), or 20 feet for 30 percent of the linear building frontage (Option B).

   e. *Public access easement.*

      i. If a public access easement of a minimum of 15 feet is provided from the public right-of-way to the river, the step-back requirement of Table 5.8.03.E. shall only apply to the river and street faces of the building.

      ii. Administrative Departure. Where public access to the river already exists within 100 feet, the side façade step-back requirement can be waived without providing public access as described in Section 5.8.03.E.1.

2. *Materials.* As required in the base Zone District, except that at least sixty (60) percent of the building wall facing the river, exclusive of wall areas devoted to meeting transparency requirements, shall be constructed of brick, glass, fiber cement siding, wood lap, stucco, split-faced block, or stone.

3. *Façade Variation.* As required in the base Zone District, except that the requirements for building walls facing a street shall also apply to the building wall facing the river.

4. *Entrance.*

   a. All office buildings, retail sales and service establishments shall have a visible and usable building entrance for customers on both the building wall facing the street and the building wall facing the river.

   b. Primary building entrances, including those entrances facing the river, shall be clearly identified using an awning, paving treatments, change in roofline or other features, such as canopies, porticos, arcades, arches, wing walls, and integral planters.

   c. Primary building entrances and exits shall be located on the primary street. Doorways that open to the sidewalk or multi-use trail shall be recessed.

5. *Expression Line.*

   a. An expression line shall be provided to distinguish the base from the remainder of the building to provide a design element that enhances the pedestrian environment. If applicable, the height of the expression line shall meet the prevailing scale of development in the area.

   b. The expression line may be created by a change in material, a change in design, or by a continuous setback, recess, or projection above or below the expression line. Elements such as cornices, belt courses, corbelling, molding, stringcourses, ornamentation, awnings or canopies, and changes in material or color or other sculpturing of the base, are appropriate design elements to include with an expression line.

6. *Transparency.* As required in the base Zone District, except that the requirements for building walls facing a street shall also apply to the building wall facing the river.

7. *Streetscape Plan.* Standards used by the City Engineer to determine appropriate street tree plantings, walking surfaces and parkway landscaping shall be used where a City-recognized streetscape plan for a defined area has not been adopted (see Section 5.11.13.C.).

8. *Parking.* Parking areas and parking structures shall be separated from the river by intervening buildings, except:

   a. Where retail space is provided on the ground floor of the parking structure, and at least fifty (50) percent of its façade facing the river is used as display windows; or

   b. Where a mural or other public art approved by the Planning Commission is provided on the parking structure on the river side of the structure, or in a landscaped area along the river.

   c. Where a. or b. above, apply, the parking area or structure shall have a minimum required front setback of thirty (30) feet from the Grand River.

9. *Landscaping and Access.*

   a. Land between the building and the river shall be landscaped and designed as an urban open space for pedestrian use meeting the requirements of Section 5.11.14. Parking areas shall meet the minimum screening requirements of Section 5.11.11.C.

b. Pedestrian walkways that connect to the river's edge shall be provided between buildings, parking areas or structures, and other built features such as outdoor plazas and courtyards.

c. Service areas and mechanical equipment shall be visually unobtrusive and shall be integrated with the design of the site and building.

i. Utility boxes shall be positioned so they cannot be seen from the river or Primary Street by locating them on the sides of buildings and away from pedestrian and vehicular routes.

ii. Air intake and exhaust systems, or other mechanical equipment that generates noise, smoke or odors shall not be located on the river side of buildings.

F. *Grand River Overlay District Bonus Height Criteria.* Development projects in the DH-2(a) Overlay District and TN-TCC Zone District that fall within the Grand River Overlay District may qualify for height bonuses in accordance with Table 5.8.03.F. using the criteria described below.

Table 5.8.03.F. Bonus Heights: Properties within Grand River Overlay District

Underlying Zone District	Incentive/Bonus		Bonus Stories
DH-2(a)	Public access easement with trail	Parallel to river (30 ft wide)	9
	Public art		1
TCC	Public access easement with trail	Parallel to the river (30 ft wide)	2
	Public art		1

1. *Public Access Easement.*

a. To qualify for the bonus height, a public access easement at least thirty (30) feet wide, extending across the entirety of the lot on the river side of the main building shall be provided.

b. Access shall be through permanent easements and shall conform to the provisions of urban open space of Section 5.11.14.B.3. Configuration and Section 5.11.14.B.4. Availability.

c. A multi-use trail shall also be provided that conforms to the requirements of the City Parks and Recreation Department.

2. *Public Art.*

a. A development that elects this bonus may use any of the following methods:

i. Allocate one (1) percent of the estimated construction cost for a permanent, on-site public art project(s). The artwork created must be where the public can access the artwork during normal business hours or continually view the artwork from off the site; or

ii. Contribute one (1) percent of the project's estimated construction cost to the Arts Advisory Committee.

b. Regardless of the above method selected, the minimum required expenditure shall be ten thousand dollars ($10,000.00).

c. Public art installations on private property shall be maintained by the property owner.

(Ord. No. 2023-26, §§ 6—8, 7-11-23; Ord. No. 2025-07, §§ 1, 2, 3-25-25)

Sec. 5.8.04. East Beltline Overlay District (OD-EBL).

A. *Purpose.* The purpose of the East Beltline Overlay District is to implement the North East Beltline Joint Development Plan; to provide a consistent development framework; to specify practical development standards; to preserve the natural road edge, scenic views and steep slopes; and to protect the transportation capacity of this important transportation corridor.

B. *Applicability.*

1. The requirements of OD-EBL shall apply to all property abutting or gaining access from the East Beltline, including any lot or parcel shown on the East Beltline Overlay Maps C1 and C2.
2. This Overlay District shall not be construed to be separate from the base Zone District. In all cases, applicants for building permits in the EBO District shall meet all requirements of the base Zone District and the additional provisions, requirements and restrictions of the OD-EBL. Where there is conflict between other provisions of this Chapter and those specifically applied in the OD-EBL, the latter shall control.
3. Approvals Prior to 2002. The OD-EBL standards shall not apply to existing developments (including PUDs) approved prior to January 1, 2002.
4. Town Center Properties. It is recognized that the Town Center is developing as a commercial node at the intersection of the East Beltline and Knapp. Accordingly, certain exceptions are taken in this Article for properties along the East Beltline and located near the intersection of Knapp and the East Beltline as more fully shown on the map entitled the "Town Center Properties."

C. *Modifications and Amendments.*

1. Notwithstanding the provisions, including specific waiver provisions of the Overlay District, the Planning Commission may approve a modification from the requirements of the Overlay District under the procedures and standards of Optional Plan Review.
2. Project and PUD Amendments. Subsequent amendments or modifications to an approved project or PUD shall be subject to the requirements of this Chapter and shall be brought into compliance with the new requirements, including but not limited to: building and parking lot setbacks, landscaping, parking, lighting, signs, grading, stormwater management, motor vehicle and pedestrian access, and architectural façades and building design.

D. *Setbacks.*

1. *Purpose.* One of the goals of the North East Beltline Joint Development Plan is to maintain "a natural edge along the East Beltline through gracious development setbacks, preserving natural vegetation and utilizing innovative and low maintenance landscapes along the corridor and the highway right-of-way."
2. *Setbacks of Buildings and Parking Lots from the East Beltline.* Buildings and parking lots shall be set back from the East Beltline according to the following schedule.
    a. Parking lot setbacks shall be ninety (90) feet, which is measured from the outside edge of the existing through lane, as of January 1, 2002, to the edge of a parking lot. Within the setback, a minimum twenty-five (25) foot landscape buffer is required, as measured from the right-of-way to the edge of a parking lot.
    b. Setbacks buildings equal to or less than thirty-five (35) feet in height shall be one hundred forty (140) feet, as measured from the outside edge of the through lane existing as of January 1, 2002, with a minimum twenty-five (25) foot setback between buildings and the right-of-way line.

c. For buildings higher than thirty-five (35) feet, there shall be two (2) additional feet of setback for every additional foot in building height above thirty-five (35) feet.

3. *Setback Modifications.* Upon request, the Planning Commission may recommend to the City Commission a reduction in building and parking setbacks to the minimum required setback in the base Zone District. The recommendation shall be based on meeting any of the following circumstances:

a. The property cannot feasibly be developed if the minimum building setback is applied.

b. If applied, the minimum building setback creates an adverse effect on environmental features such as steep slopes, wetlands, or vegetation.

c. Application of the minimum building setback does not further the goals of the North East Beltline Joint Development Plan, Master Plan or this Overlay District.

d. The property is part of the Town Center Properties.

4. *Exemption South of Lake Drive.* Properties south of Lake Drive SE shall be exempt from the Overlay District setback requirements. For these properties the base district setbacks shall be used.

E. *Landscaping.*

1. *East Beltline Landscaping.* Within the required minimum twenty-five (25) foot landscape buffer that fronts on the East Beltline, landscaping shall be installed according to the following standards for office, institutional, multifamily or mixed-use areas; commercial-use areas; or parking areas. Plants may be clustered into groups or planted in rows. Trees and shrubs should be clustered in locations that are most effective in screening undesirable views.

a. *Office, Institutional, Multi-Family Residential or Mixed-Use Areas.* Plantings shall include a minimum of three (3) evergreen trees, two (2) shade trees and eight (8) shrubs for every one hundred (100) linear feet of lot frontage, with fractions rounded up. The Planning Commission may allow a reduction in the number of trees or a variation in the mixture of the tree types to ensure the ability of the landscape materials to grow in a healthy condition and not conflict with one another, and to permit a variety of plant materials.

b. *Commercial-Use Areas.* Plantings shall include a mixture of five (5) trees for every one hundred (100) linear feet of lot frontage, with fractions rounded up. A mixture of evergreen, ornamental and shade trees is encouraged. The Planning Commission may allow a reduction in the number of trees or a variation in the mixture of the tree types to ensure the ability of the landscape materials to grow in a healthy condition and not conflict with one another, and to permit a variety of plant materials.

c. *Parking Areas.* Continuous plantings, berms or walls shall be a minimum of four (4) feet in height along the East Beltline (plantings measured after three (3) years). The requirement for plantings, berms, or walls for parking areas that abut the East Beltline may be waived if, in the judgment of the Planning Commission, the vehicles in the parking lot will be substantially screened from the road by the finished grade or existing vegetation.

2. *Town Center Properties.* A landscape plan that meets the intent of the standards in Subsection E.1. above and Article 11 shall be submitted as part of the Site Plan Review or PRD application. The Planning Commission may reduce or waive front yard landscaping provisions for Town Center properties if deemed impractical or other amenities are provided that achieve the same purposes.

3. *Parking Area Landscaping.* For all parking areas that accommodate ten (10) cars or more, the following shall apply.
   a. One (1) landscaped island shall be provided for every ten (10) parking spaces. Landscape islands may be aggregated. Landscape corners count towards the required number of islands.
   b. Landscape islands shall be a minimum of one hundred sixty (160) square feet and a minimum of nine (9) feet wide. Each island should be planted with at least one (1) canopy tree that is at least three (3) feet from the edge of the island.
   c. The Planning Commission may reduce the number of required landscape islands if it finds that adequate relief and shade is provided by other plantings in and around the parking area.

F. *Lighting.* The provisions of Section 5.2.19. Outdoor Lighting shall be met, with the following exceptions.

1. Non "cut-off" light fixtures as defined by IESNA, may be installed, however the maximum initial lumens by each fixture shall not exceed two thousand (2,000) (equivalent to a one hundred fifty-watt incandescent bulb). Mounting heights of alternative fixtures shall not exceed fifteen (15) feet.
2. Average horizontal illumination levels shall be no greater than two and four tenths (2.4) foot-candles with a maximum to minimum ratio no greater than ten to one (10:1) and an average to minimum uniformity ratio not to exceed four to one (4:1).
3. Average horizontal illumination levels may be increased near building entrances where pedestrian activity is substantial. In these locations, average horizontal illumination levels shall be no greater than four (4.0) foot-candles with a maximum to minimum ratio no greater than ten to one (10:1) and an average to minimum uniformity ratio not to exceed four to one (4:1).

G. *Access to the East Beltline.* The purpose of this subsection is to control and limit motor vehicle access ways and the distance between them on the East Beltline. Access ways or driveways shall be correctly spaced so as to protect the safety of motorists and bicyclists as well as the capacity of this highway to accommodate traffic.

1. *Definition of Access.* For the purposes of this Section, an "access" is an entrance and/or exit for motor vehicles to or from the East Beltline or a public street.
2. *Non-Signalized Access Spacing.* Accesses shall be spaced as far apart as on-site circulation allows, and on-site circulation shall be designed to limit the number of accesses and to reasonably maximize the distances between them. The distances in Table 5.8.04.G. are based on average acceleration and deceleration considered adequate to maintain safe traffic operations. A greater spacing may be required if sight distances are limited at the proposed access location.

Table 5.8.04.G. Minimum Non-Signalized Access Spacing

Posted Speed (Miles Per Hour/MPH)	Center-to-Center of Access (ft.)
25	130
30	185
35	245
40	300
45	350
50 & above	455

3. *Lack of Sufficient Lot Frontage to Maintain Adjacent Spacing.*

   a. In the event that a lot lacks sufficient frontage to maintain adequate spacing, the Planning Commission may require one (1) or more of the following:

      i. An access point to a secondary street.

      ii. Access to service drives where they exist or can be constructed.

      iii. A shared driveway with the adjacent owners. In this case the driveway midpoint should be located at the lot line between the two (2) parcels. All parties shall agree in writing to the joint driveway, including, at a minimum, access rights and maintenance provisions, and submit evidence of the agreement to the Planning Commission.

      iv. If options listed above are not reasonably feasible, the Planning Commission may allow the next lowest spacing from Table 5.8.04.G. For example, on fifty (50) MPH roadway requiring four hundred fifty-five (455) foot spacing, the distance may be reduced to no less than three hundred fifty (350) feet, which is the spacing for forty-five (45) MPH speed.

      v. If all the above options are impossible, an access point may be allowed within the property limits.

   b. In the event that two (2) or more adjacent parcels each do not have sufficient frontage to maintain adequate spacing for access, the Planning Commission may require the dedication of joint access easements or cross access easements for shared access to the public street.

   c. If the property is one of the Town Center Properties, and compliance with the table is not reasonably feasible, then the Planning Commission may reduce or waive the requirements of this subsection.

4. *Access Design.* All access points shall be designed to meet Michigan Department of Transportation (MDOT) guidelines and standards in addition to all offsets from intersections and indirect left turn crossovers at signalized and stop-sign intersections. Compliance with clear vision areas in this Chapter and in Chapter 51 Streets, Article 8 of the City Code is required.

Sec. 5.8.05. Floodplain Overlay District (OD-FP).

A. *Delineation of Floodplain Overlay District.*

1. *Purpose.* It is the purpose of this Article to protect the general public and all lands in the city subject to flood losses by restricting or prohibiting uses which are dangerous to health, safety, and property in times of flood or which cause excessive increases in flood flow levels or velocities.

2. *Public Hazards.* Periodic inundation of certain portions of the city produce flood hazards which result in loss of life and property; health and safety dangers; disruption of commerce and governmental services; extraordinary public expenditures for flood protection and relief; and impairment of the tax base, all of which adversely affect the public health, safety and general welfare of the city. These flood losses are caused by:

   a. The cumulative effect of obstructions in floodplains causing increased flood flow height and velocity; and

   b. The occupancy of flood prone areas by uses vulnerable to floods or hazardous to other uses inadequately elevated or otherwise protected from flood damages.

3. *Applicability.* This Article shall apply to all lands within the city shown as a regulatory floodway on the "Flood Insurance Study for Kent County, All Jurisdictions" and dated February 23, 2023 and the Flood Insurance Rate Map (FIRM) panel numbers shown on the index panels: 26081CIND1A and 26081CIND2A, effective February 23, 2023. The provisions and restrictions of this Article shall be considered to apply in addition to, and where applicable instead of, the provisions of Zone Districts.

4. *Flood Areas.* Uses and regulations otherwise applicable in existing Zone Districts shall not be allowed unless also permitted in, and developed in accordance with, the provisions of the OD-FP.

B. *Definitions.*

1. *Base Flood.* The flood having a one percent chance of being equaled or exceeded in any given year.

2. *Flood or Flooding.* A general and temporary condition of partial or complete inundation of normally dry land areas from the overflow of water bodies, the unusual and rapid accumulation or runoff of surface waters from any source, or mudslides proximately caused by flooding and akin to a river of liquid and flowing mud on the surfaces of normally dry land areas, as when earth is carried by a current of water and deposited along the path of the current. Flood or flooding may also mean the collapse or subsidence of land along the shore of a lake or other body of water as a result of erosion or undermining caused by waves or currents of water exceeding anticipated cyclical levels or suddenly caused by an unusually high water level in a natural body of water, accompanied by a severe storm, or by an unanticipated force of nature, such as flash flood or an abnormal tidal surge, or by some similarly unusual and unforeseeable event which results in flooding.

3. *Flood Insurance Rate Map (FIRM).* An official map of the city on which the Federal Emergency Management Agency (FEMA) has delineated both the special flood hazard areas and the risk premium zones applicable to the city.

4. *Regulatory Floodway.* The channel of a river or other watercourse and the adjacent land areas that must be reserved in order to discharge the base flood without cumulatively increasing the water surface elevation more than a designated height.

5. *Special Flood Hazard Area (SFHA).* An area having special flood, mudflow, or flood-related erosion hazards and shown on a FIRM as Zone A, AO, A1-A30, AE, A99, AH, AR, AR/A, AR/AE, AR/AH, AR/AO, AR/A1-A30, V1-V30, VE or V. The SFHA is the area where the National Flood Insurance Program's floodplain management regulations must be enforced.

C. *Land Uses.* Uses are allowed in the OD-FP in accordance with Table 5.8.05.C. Uses in the Floodplain Overlay District. The following key is to be used in conjunction with the Use Table.

1. *Permitted Uses.* Uses permitted by right in the OD-FP, subject to compliance with all other applicable requirements of this Chapter. These uses have a low flood damage potential because of their open space nature and shall be allowed to the extent they are Permitted Uses in the base Zone District, are in compliance with construction requirements of Chapter 32 of the City Code, and have obtained any necessary state and federal permits. These uses are identified with a "P."

2. *Special Land Uses.* Uses which may be allowed subject to the review and approval by the Planning Commission in accordance with Section 5.12.09. and all other applicable requirements of this Chapter. The Special Land Use shall be included in Table 5.8.05.C. or Special

Land Use in the base Zone District, comply with construction requirements of Chapter 32 of the City Code, and obtain any necessary state and federal permits. These uses are identified with an "S."

3. *Uses Not Allowed.* Certain uses are prohibited within the OD-FP. A cell marked with an "X" indicates that the listed use is not allowed in the OD-FP.

4. *Unlisted Uses.* Uses not listed in the Table 5.8.05.C. are also prohibited unless the Director determines that the use is similar to other uses listed either as a Permitted Use or Special Land Use in accordance with Section 5.4.04.

5. *Use Regulations.* Many allowed uses, whether a Permitted Use or a Special Land Use in the OD-FP, are subject to compliance with Article 9 or other provisions of this Chapter. These uses are identified in the Table 5.8.05.C. under "Use or Other Regulations." A cell marked with a dash "—" under this heading indicates that there are no additional use requirements in Article 9."

Table 5.8.05.C. Uses in the Floodplain Overlay District			
Use Category	**Specific Use**	**Approval**	**Use or Other Regulations**
Accessory Structures			
Accessory Structures	Accessory uses or structures to any of the permitted uses outlined in this Section which would not result in any increase in the flood hazard height within the city during a 100-year flood.	P	5.2.08.
	Enlargement of an existing accessory use or structure after the effective date of this Chapter to more than 25% of its gross floor area.	S	5.2.08.
Residential			
Residential	Any structure intended for human occupancy.	X	—
	Residential support uses such as lawns, gardens, parking areas and play areas.	P	—
Educational, Government and Institutional			
Government and Institutional	Outdoor recreational fields, community gardens, outdoor amphitheaters.	P	5.9.23.
Commercial, Industrial, Transportation and Utilities			
Entertainment and Recreation	Campgrounds	S	—
	Drive-In theaters, race tracks	S	—
	Entertainment or recreational uses not requiring permanent structures, such as parks, swimming areas, golf courses, driving ranges, hunting, fishing and hiking areas.	P	—
	Transient amusement such as circuses, carnivals and fairs.	S	—
Commercial, Industrial and Transportation	Industrial-commercial uses such as loading areas, open parking areas, airport landing strip, and storage yards for equipment or machinery easily moved or not subject to flood damage.	P	—
	Kennels, stables.	S	—
	Landfill, dump or junkyard.	X	—
	Mineral extraction.	S	5.9.21.
	Roadside stands.	S	—
	Storage yards for heavy equipment, materials or machinery.	S	—
	Storage or processing of materials, which in time of flooding become buoyant, flammable, explosive or otherwise injurious to public health.	X	—
Utilities	On-site sewage disposal system.	X	—
	Railroads, streets and other rights-of-way.	P	—
	Utility facilities such as dams, power plants, transmission lines, pipelines and water monitoring devices.	P	—
Agricultural/Natural Resources			

Table 5.8.05.C. Uses in the Floodplain Overlay District			
Use Category	**Specific Use**	**Approval**	**Use or Other Regulations**
Agricultural, Natural Resources	Open agricultural uses such as general farming, grazing, pasture, outdoor plant nurseries, horticulture, viticulture, truck farming, forestry, sod farming and wild crop harvesting.	P	—
	Navigational and drainage aids such as channels, channel markers, buoys and other such devices.	P	—
	Other water related uses such as: docks, piers, wharves, bridges, culverts and river crossings of transmission lines, subject to review and permit requirements under Chapters 32 and 67 of the City Codes.	P	—
Other			
Other	Any encroachment that would cause any increase in the base flood level.	X	—
P = Permitted; S = Special Land Use; X = Not Permitted; — = Not Applicable.			

D. *General Site Layout and Building Placement Requirements for All Uses.*

1. Structures shall be constructed and arranged on the building site to minimize obstruction to the flow of floodwaters.

   a. Structures shall be constructed with the longest element arranged parallel to the direction of the flood flow.

   b. Structures shall be placed approximately on the same flood flow lines as adjacent structures.

2. Any excavation, fill extraction, grading, or scraping shall require a soil erosion review and permit requirements under Chapters 32 and 67 of the City Code.

E. *Special Land Use Applications.*

1. *Additional Site Plan Requirements.* In addition to the requirements of Section 5.12.08, site plans shall include the nature, location, dimensions and elevation of the lot, existing or proposed structures, fill, storage of materials, and the relationship of the above to the location of the regulatory floodway and regulatory flood protection level, and location and elevations of streets; photographs or maps showing existing land uses and vegetation upstream and downstream soil types; and other pertinent information which may be required by the Planning Commission.

2. *Review Standards.* The following standards shall apply in addition to the standards for Special Land Uses of Section 5.12.09:

   a. No structure, fill, excavation, or storage shall be permitted which, acting alone or in combination with existing or future uses, significantly and unduly affects the capacity of the regulatory floodway and thereby increases the level of the floodwaters.

   b. Filling in the regulatory floodway may be permitted only after full compliance has been achieved, to the satisfaction of the City Engineer, or designee, with the applicable provisions of Act 451 of the Michigan Public Acts of 1994, as amended, and all other applicable federal, state and local acts, regulations, codes, and ordinances, including but

not limited to the flood plain management criteria for flood-prone areas set forth in 44 CFR 60.3, as amended. Fill shall be protected from erosion by rip-rap, vegetative cover, bulkheading or other approved means.

c. Prior to any alteration or relocation of a water body, notification shall be given to adjacent communities and the Michigan Department of Environment, Great Lakes, and Energy and evidence of that notification submitted to FEMA. The City Engineer or City ESD shall require proper maintenance be provided within the altered or relocated watercourse so that the flood carrying capacity is not diminished.

3. In reviewing an application, the Planning Commission shall consider the following points before rendering a decision.

a. Any possible danger to life and property due to increased flood levels or velocities caused by encroachments on the floodplain.

b. The danger that materials may be swept onto other lands or downstream to the injury of others.

c. The susceptibility of the proposed development and its contents to flood damage and the effect of such damage on the individual owner.

d. The importance of the services provided by the development to the city.

e. The requirement of the proposed development for a waterfront location.

f. The availability of alternative locations for the proposed use which are not subject to flooding.

g. The compatibility of the proposed use with existing development and development anticipated in the future.

h. The relationship of the proposed use to the Master Plan and floodplain management program for the area.

i. Safe access to the property in times of flood for ordinary and emergency vehicles.

j. The expected levels, velocity, duration, rate of rise and sediment transport of the floodwaters expected at the site.

k. The location, elevation and construction of all public facilities for sewer, gas, electrical, and water systems, designed relative to minimize or eliminate flood damage.

l. The measures taken to ensure adequate drainage to reduce exposure to flood hazards.

m. Other factors which are, in the opinion of the Planning Commission, relevant to the purposes of this District.

4. Where, in the opinion of the Planning Commission, topographic data, engineering studies, or other studies are needed to determine the effects of flooding on a proposed use and/or the effects of the use on the regulatory floodway, the Planning Commission may require the applicant to submit this data and/or studies prepared by competent engineers.

5. *Conditions of Approval.* Upon reviewing all data and materials, and before granting approval, the Planning Commission may attach conditions to the granting of approvals, which may include but not be limited to the following:

a. Limitations on period of use, operation, and operational controls.

b. Submission of performance guarantees, deed restrictions, and covenants.

c. Requirements for construction of channel modifications, dikes, levees, and other protective measures.

F. *Disclaimer of Liability.* The degree of flood protection required by this Article is considered the minimum necessary and reasonable for regulatory purposes. Larger floods may occur at any time, and excessive flood water levels may be experienced due to manmade and natural causes, such as ice jams and accumulated debris in bridge openings. This Article does not imply that areas outside the OD-FP, or uses permitted within such areas, will remain free from flooding or flood damages. This Article shall not create a liability on the part of the City or any officer or employee thereof for any flood damage that results from compliance with or reliance upon this Article or any administrative decision lawfully made under the provisions of this Chapter.
(Ord. No. 2023-06, § 1, 2-21-23)

Sec. 5.8.06. Wayfinding Signs Overlay District (OD-WS).

A. *Purpose.* The purpose of the Wayfinding Signs Overlay District is to provide opportunities to install a comprehensive sign program in appropriate locations where the dense, urban environment of the city can create confusion for visitors who must interpret street signs, traffic control devices, addresses and other information rapidly while attempting to locate a major destination. It is intended that wayfinding signs shall:

1. *Enhance Streetscape.* Promote a unified and enhanced visual aesthetic that is consistent with streetscape design elements along a transportation corridor.
2. *Coordinate Information.* Convey essential information to pedestrian and vehicular traffic in a clear, consistent, understandable format for multiple destinations.
3. *Reduce Visual Clutter.* Minimize the need for multiple signs and provide reasonably sized signs that are in scale with surrounding structures.
4. *Promote Partnerships.* Promote partnerships and collaboration to coordinate sign programs, identify multiple users or buildings and convey information in a manner that benefits institutions and attractions within the Overlay District.

B. *Eligibility Requirements.* The requirements of this Overlay District shall apply to any land shown on the Wayfinding Signs Overlay Map D, including public rights-of-way. To be eligible for inclusion on the Overlay map all of the following requirements shall be satisfied.

1. *District Plan and Standards.* A detailed District Plan developed by stakeholders in a collaborative process that determines sign design, materials, colors, precise placement, destination identification, maintenance and other specifications.
2. *Road Classification.* A focus of the District Plan on a primary transportation corridor, being either a Regional Street or City Collector Street as denoted on the Street Classification Map.
3. *Traffic Volumes.* Minimum traffic volumes along the primary transportation corridor of not less than eighteen thousand (18,000) vehicles per day.
4. *Travel Lanes.* Four (4) or more travel lanes are present.
5. *Zoning.* Seventy (70) percent or more of Wayfinding Overlay District is located in the CC City Center or TCC Transitional City Center zone districts.
6. *Property.* A minimum of twenty (20) parcels are included.
7. *Public Parking.* A minimum of one thousand (1,000) parking spaces intended for visitors, patients or patrons are provided.
8. *Destination.* A minimum annual attraction of one (1) or more of the following.
    a. One hundred thousand (100,000) visitors for hospitals, educational facilities, museums and other public attractions;

b. Three hundred fifty (350) students enrolled (for college and universities);

c. Twenty-five thousand (25,000) guests/attendees for hotel conference and convention facilities; or

d. Twenty-five thousand (25,000) attendees for theaters, arenas and other entertainment venues.

C. *General Wayfinding Sign Requirements.*

1. *Applicability.* Only the sign types listed in Table 5.8.06.C shall be permitted as wayfinding signs in the Overlay District. All other types of signs as permitted by the underlying Zone District shall be permitted, except in no case shall a property have both a private sign and a wayfinding sign of the same sign type.

2. *Base Zoning District.* This Overlay District shall not be construed to be separate from the requirements of the base Zone District. The sign requirements in the base Zone District shall apply to electronic signs and non-wayfinding signs on private property. Where there is conflict between other provisions of this Article and those specifically applied in Article 15, Signs, this Article shall control.

3. *Visibility.* Signs shall not be placed where they will obstruct traffic or pedestrian visibility, or create a traffic or pedestrian safety hazard.

4. *Sign Width and Parkway.* When located within the public right-of-way, the width of a wayfinding sign shall not exceed the width of the streetscape amenity zone or parkway, in which it is to be located.

5. *Utility Lines and Poles.* A minimum ten (10) foot horizontal separation between any sign and any overhead utility shall be maintained at all times. Any part of a sign, including cables, guys, etc. shall maintain a minimum clearance of four (4) feet from any electrical conductor, electric light pole, road lamp, traffic light, or other public utility pole or standard.

6. *Pedestrian Kiosks.* Pedestrian kiosk signs are required as part of all wayfinding programs. Kiosks shall be located at major transit stops, pedestrian exits from major visitor parking areas or other high-traffic pedestrian locations and crossings.

7. *Sign Hierarchy.* The following sign hierarchy shall determine sign size, placement and identified destinations.

   a. *District Directional Sign.* Sign with general destination information that highlights the most frequented attractions.

   b. *Local Directional Sign.* Sign which directs visitors to eligible destinations and parking areas.

   c. *Local Pedestrian Kiosk.* Sign for pedestrians; containing a map, building directory or other information.

   d. *Private Building Identification.* Sign for identifying an individual building or facility which is designed in the same style as other local wayfinding signs.

8. Rules that are in place that pertain to the operation or use of signs are identified with an "R." A dash "—"is used to note where sign requirements do not apply. A "P" indicates that the sign type is permitted. An "X" indicates that the sign type is prohibited.

Table 5.8.06.C. Wayfinding Signs				
	District	Local		Private
Permitted Signs	Directional Sign Guide	Directional Sign Guide	Pedestrian Kiosk	Building Identification
Ground Sign	P	P	P	P
Area, Maximum	72 sq. ft.	72 sq. ft.	32 sq. ft.	32 sq. ft.
Height, Maximum	12 ft.	12 ft.	6 ft.	9 ft.
Width, Maximum	6 ft.	6 ft.	—	4 ft.
Setback, Minimum	5 ft.	5 ft.	2 ft.	5 ft.
Letter Height	4 - 6 in.	4 - 6 in.	—	4 - 6 in.
Internally illuminated	—	R	R	R
Externally illuminated	R	R	R	R
Administrative Departure	An Administrative Departure may be granted by the Director for ground signs located less than 5 ft. from the property line or in the public right-of-way.			
Other	Ground signs shall be within a landscape area of at least 200 sq. ft. or within an urban open space. A minimum 24 in. clearance area shall be maintained at the base of the sign.			
Projecting Sign	P	P	X	P
Area, Maximum	50 sq. ft.	50 sq. ft.	—	32 sq. ft.
Height, Minimum clearance	10 ft.	10 ft.	—	10 ft.
Width, Maximum	5 ft.	5 ft.	—	5 ft.
Letter Height	4 - 6 in.	4 - 6 in.	—	4 in.
Internally illuminated	—	R	—	R
Externally illuminated	R	R	—	R
Other	No more than 1 sign per building.			
	The sign shall project horizontally from the wall at an angle of 90° and shall be attached to the wall with a 6 in. space between the building and the sign.			
	An encroachment permit is required if over a public right-of-way.			
Pylon/Pole Sign	P	P	X	X
Area, Maximum	32 sq. ft.	32 sq. ft.	—	—
Height, Maximum	18 ft.	18 ft.	—	—
Height, Minimum clearance	8 ft.	8 ft.	—	—
Width, Maximum	5 ft.	5ft.	—	—
Letter Height	4 - 6 in.	4 - 6 in.	—	—
Internally illuminated	—	R	—	—
Externally illuminated	R	R	—	—
Other	Individual building identification pole signs are not permitted. Pole signs shall not extend over a vehicular driveway, parking area or public right-of-way.			
Wall Sign	P	P	P	P

Table 5.8.06.C. Wayfinding Signs				
	District	Local		Private
Permitted Signs	Directional Sign Guide	Directional Sign Guide	Pedestrian Kiosk	Building Identification
Area, Maximum	72 sq. ft.	72 sq. ft.	32 sq. ft.	50 sq. ft.
Letter Height	4 - 6 in.	4 - 6 in.	—	4 - 6 in.
Internally illuminated	R	R	R	R
Externally illuminated	R	R	R	R
Other	No more than 1 sign per building. Sign shall be uniform in size, material and location to other signs in the district. Sign shall not cover architectural details.			
P = Permitted Sign; R = Rules Apply; X = Prohibited Sign; — = Not Applicable;				

D. *District Plan Requirements.*

1. *Identified Destinations.*

   a. *Approved Destinations.* Destinations identified under Eligibility Requirements, Section 5.8.06.B.8. shall be permitted on District or Local Directional Signs.

   b. *Additional Destinations.* Locations with fewer visitors or attendees may be identified on Local Directional Signs if there is space available on an existing sign. To qualify for placement on a sign, information must be provided that establishes the annual attraction rate of the facility. The rate of attraction should be proportionate to the attraction rate of other eligible facilities within the same District. Sites designating public parking locations shall take priority over other requests.

   c. *Ineligible Destinations.* Seasonal attractions, commercial activities that do not qualify as a destination, parks and any facility located within an already identified facility shall not qualify as an eligible destination for placement on wayfinding signs.

   d. *Identification.* Destinations on wayfinding signs shall correspond to the name of the complex or building.

2. *Placement.*

   a. *Placement.* District Welcome Signs and Pedestrian Kiosks may be within the public right-of-way, whether publicly or privately owned. Privately owned Wayfinding District Directional Signs and Local Directional Signs shall be on private property, except as specified in Section 5.8.06.E.4.

   b. *Locations.* Wayfinding signs shall be permitted along Regional, Major and City Collector streets, as denoted on the Street Classification Map, and within three hundred (300) feet of the primary transportation corridor on intersecting streets.

   c. *Survey.* A property survey shall be required for each proposed sign site to determine appropriate placement, except for wall-mounted signs and banners.

   d. *Administrative Departures.*

      i. *ROW Locations.* Sign placement of privately owned District and Local Directional Signs may be permitted within the public right-of-way if at least (2) of the following circumstances exist.

         (a) *Obstructed View.* A sign could not be reasonably seen by passing motorists due to the configuration of existing buildings, trees or other obstructions.

(b) *Sight Distance.* A sign could not be reasonably seen by passing motorists in sufficient time to allow safe deceleration and destination identification due to traffic volumes, travel speed, travel lanes or vehicle movements.

(c) *Physical Characteristics.* The physical shape, topography or placement of buildings on the site prevents the placement of a sign in a visible location.

ii. *Alternate Locations.* Private wayfinding signs may be located on large campuses farther than three hundred (300) feet away from the primary transportation corridor where an alternate public entrance into the District is provided.

iii. *Setback.* Wayfinding ground signs may be less than five (5) feet from the property line as regulated in 5.8.06.C. if at least two (2) of the following circumstances exist and the Traffic Engineering Department approves the proposed location.

(a) *Obstructed View.* A sign could not be reasonably seen by passing motorists due to the configuration of existing buildings, trees or other obstructions.

(b) *Sight Distance.* A sign could not be reasonably seen by passing motorists in sufficient time to allow safe deceleration and destination identification due to traffic volumes, travel speed, travel lanes or vehicle movements.

(c) *Physical Characteristics.* The physical shape, topography or placement of buildings on the site prevents the placement of a sign in a visible location.

3. *Approval.* All sign locations and destinations shall be approved by the funding authority for the wayfinding sign program as well as the Directors of Planning, Traffic Engineering, Public Works, and Engineering, and the Downtown Development Authority (where applicable).

E. *Application Requirements.*

1. *Responsible Party.* Wayfinding signs within a designated district shall have an assigned "responsible party" or "person" who shall be charged with the installation, maintenance, updating and removal of all signs. The responsible party/person shall be identified on all materials submitted for approval.

2. *District Plan.* A detailed District Plan shall be submitted for review, as well as a brief narrative describing the process used to engage stakeholders in the decision-making process.

3. *Destinations.* Sign requests shall include the destinations to be identified, as well as written justification for each destination's placement on a District Directional Sign or Local Directional Sign.

4. *Permits.* Sign permits shall be obtained for all private wayfinding signs pursuant to Section 5.15.14. An encroachment permit is also required if a sign is located within the public right-of-way.

F. *Fabrication, Installation and Maintenance.*

1. *Fabrication and Installation.* All signs shall conform to the rules and regulations of the *Michigan Manual of Uniform Traffic Control Devices* shall be consistent with the approved District Plan and Standards and shall be approved by the Public Works Director. Signs shall not be designed so as to simulate or be confused with traffic signs.

2. *Maintenance.* All signs shall be maintained consistent with the requirements of Section 5.15.04.F.

3. *Performance Guarantee.* A performance guarantee in accordance with the provisions of Section 5.14.04. may be required for the maintenance, replacement, updating and removal of signs in an amount acceptable to the Director of Public Works.

Sec. 5.8.07. Special Conditions Overlay District (OD-SC).

A. *Purpose.* Within the city there are certain areas that possess unique land uses and physical characteristics that require special attention. These special areas may include treatment of land uses, safety considerations, building and site conditions, and other purposes as described in each area. Since the characteristics that created the need for this District are often in limited areas the regulations applicable to those areas are necessarily unique and specific.

B. *Applicability.*

1. *ASP Background.* The OD-SC is applied to certain areas, sites, and buildings throughout the City that require individual treatment, primarily as identified through the Area Specific Plan (ASP) process. As such, the underlying zoning will normally remain intact, with only certain aspects of development and use applied.
2. *Locations.* Unlike other Overlay Districts, the OD-SC is applied in diverse locations, similar to the OD-WS District (Wayfinding Signs Overlay District). Accordingly, the locations will not be identified separately on the Zoning Map but will be described individually through the Overlay District to ensure adequate identification.
3. *Approvals.* Unless otherwise specified, the Application and Review Procedures of Article 12 apply, using the requirements and approvals of the underlying zoning district.
4. *Conflicts.* Conflicts between the regulations of the underlying district and the OD-SC shall be resolved in accordance with Section 5.1.09., unless otherwise stated.

C. *Grandville Avenue Area Specific Plan: Viva La Avenida—Long Live the Avenue.*

1. *Purpose.*
    a. Within the Roosevelt Park neighborhood, Grandville Avenue provides a unique cadence of commercial and residential experiences along the corridor represented by pockets of Traditional Business Areas (primarily at corner properties) and longer stretches of detached single-family residential dwellings. The neighborhood desires to maintain this character.
    b. Along Grandville Avenue, the intent is to maintain the single family detached residential housing, with adjacent Traditional Business Areas at specific nodes as designated on the Future Land Use map.
    c. Commercial buildings and supportive parking in the Traditional Business Areas should be scaled to match the existing development pattern, and encroachments beyond the designated boundaries of the Traditional Business Areas should be prohibited.
2. *Affected Area.* This portion of the OD-SC covers the area described in the Grandville Avenue Area Specific Plan (ASP) adopted April 25, 2017.
3. *Residential Development.*
    a. Multiple-family dwellings are not permitted in the TN-LDR Zone District.
    b. Ground floor dwellings are permitted on parcels with frontage on Grandville Avenue or Clyde Park Avenue.
4. *Office Use.* Ground floor office use is permitted on parcels with frontage on Grandville Avenue or Clyde Park Avenue.
5. *Off-Street Parking.* Off-street parking facilities as a principal use of a lot are not permitted within the TN-LDR Zone District.

D. *GR Forward Downtown and River Action Plan Area Specific Plan.*

1. *Targeted Commercial Corridors.*

   a. *Purpose.* One of the traditional key measures of success of a downtown is its ability to provide continuous mixed-use street frontages with retail uses and eating and drinking facilities occupying the ground floor of buildings on streets that have a well-defined and detailed pedestrian realm. Buildings with frontage on a Targeted Commercial Corridor are intended to accommodate a mix of outdoor activities, such as patios, seating areas, pocket plazas and spacious walkways provide an interesting experience for the downtown visitor, resident, and worker alike.

   b. *Affected Streets.* In accordance with the recommendations of the GR Forward Downtown & River Action Plan ASP, a "Targeted Commercial Corridor" is established as part of the OD-SC Zone District. The Targeted Commercial Corridor includes the following streets.

      i. Pearl Street, between Division Avenue and Monroe Avenue.

      ii. Monroe Center Street, between Monroe Avenue and Division Avenue.

      iii. Ionia Avenue, between Monroe Center Street and Cherry Street.

      iv. South Division Avenue, between Fulton Street and Wealthy Street.

      v. Bridge Street, between Seward Avenue and Turner Avenue.

   c. *Use and Development Requirements.*

      i. Parcels located on affected streets referenced in Section 5.8.06.D.1.b. shall be subject to the land use regulations applicable to the TN-TBA Zone District.

      ii. A minimum of thirty (30) feet of commercial space depth is required for eligible ground floor uses.

      iii. Building Step-Backs. Section 5.6.08.I. shall apply to the following locations:

         (a) Buildings fronting Bridge Street and Monroe Center Street in the TN-CC Zone District.

         (b) Buildings fronting on Ionia Street, between Fulton Street and Cherry Street.

2. *Parking Access.* Vehicular access from surface or structured parking areas to or from Monroe Center Street is prohibited.

E. *Southtown Business Area Specific Plan—Industrial Flex Area.*

1. *Purpose.* The Southtown Industrial Flex Area was created to provide locations where business growth, entrepreneurship, workforce training, and economic activity is desired to flourish. This portion of the OD-SC recognizes that Industrial Flex Areas are changing and need to allow a greater mix of commercial uses.

2. *Affected Area.* This portion of the OD-SC includes the areas with the underlying SD-IT Zone District that are within the established boundaries of the Southtown Business Area Specific Plan adopted December 3, 2019.

3. *Use Requirements.* Except for residential uses, parcels located in affected area shall be subject to the land use regulations applicable to the TN-TCC Zone District, in addition to the land use regulations applicable to the SD-IT Zone District, with the least restrictive use controlling.

4. *Site Layout and Building Elements.*

   a. Uses permitted by the TN-TCC Zone District shall be subject to the Site Layout and Building Placement regulations of Section 5.6.07. applicable to the TN-TCC Zone District.

b. With the exception of height, uses permitted by the TN-TCC Zone District shall be subject to the Building Elements regulations of Section 5.6.08. applicable to the TN-TCC Zone District.

F. *Residential as Permitted Uses.* For parcels located within the MCN-C or MON-C Zone District and that have frontage on Lake Michigan Drive, 28th Street or Plainfield Avenue, any Residential use designated as a Special Land Use in Table 5.6.06.B. may be reviewed as a Permitted Use.
(Ord. No. 2020-13, § 8, 4-28-20)

ARTICLE 9. USE REGULATIONS

Sec. 5.9.01. Purpose and Intent.

A. It is recognized by this Chapter that certain unique uses cannot easily be evaluated in the same manner as other uses because of their potential to adversely affect public health, safety and welfare; establish a public nuisance; conflict with the character of a neighborhood; impair the social and economic well-being of neighboring properties; impair the general development of an area; or operate in a manner contrary to the purpose and intent of this Chapter.

B. However, when properly regulated, these uses can make a positive contribution to the economic vitality of the city. Therefore, it is the purpose of this Article to impose reasonable regulations upon certain uses to provide an adequate approval process while moderating their potential adverse effects on surrounding and neighboring properties.

Sec. 5.9.02. Applicability.

A. *Use Regulations and Approval Process of Table 5.9.02.*

1. *Director Review.* All uses shall be in accordance with the provisions of Section 5.12.16.
2. *Counter Reviews.* All uses listed shall be in accordance with the provisions of Section 5.12.16.
3. *Qualified Review.* All uses listed shall be in accordance with the provisions of Section 5.12.16.D.
4. *Special Land Use.* All uses listed shall be in accordance with the provisions of Section 5.12.09. The Planning Commission shall have the authority to waive or alter the Use Regulations contained in this Article provided the standards of Section 5.12.09 are substantially met.

B. *Summary of Use Regulations.*

1. Table 5.9.02. shows the principal and accessory uses subject to regulations of this Article in addition to those listed in the Use Tables of the applicable Zone District, and the approval process for those uses within each Zone District.
2. Districts. The following Zone Districts and abbreviations shall apply for Table 5.9.02.
   a. LDR - Low-Density Residential
   b. MDR - Mixed-Density Residential
   c. NOS - Neighborhood Office Service
   d. CC - City Center
   e. TCC - Transitional City Center
   f. TBA - Traditional Business Area
   g. TOD - Transit-Oriented Development
   h. C - Commercial

i. OS - Open Space

j. IT - Industrial Transportation

k. — Not applicable

Table 5.9.02. Use Regulations and Approval Process

Use		Section	Counter Review	Director Review	Qualified Review	Special Land Use
Accessory dwelling units		5.9.03.	LDR, MDR	CC, TCC, TBA, TOD, C, NOS	—	—
Adult day care center		5.9.04.	—	CC, TCC	—	LDR, MDR, TBA, TOD, C, NOS
Adult foster care	Adult foster care family home	5.9.04.	LDR, MDR, CC, TCC, TBA, TOD, C, NOS	—	—	—
	Adult foster care small group	5.9.04.	—	CC, TCC	—	LDR, MDR, TBA, TOD, C, NOS
	Adult foster care large group	5.9.04.	—	CC, TCC	—	LDR, MDR, TBA, TOD, C, NOS
Alcohol sales, consumption, and production		5.9.05.	—	Table 5.9.05.B.	—	Table 5.9.05.B.
Auditorium, theatre and banquet hall		5.9.07.	—	CC	—	TCC, TBA, TOD, C, NOS, IC
Bed and breakfast		5.9.08.	—	CC, TCC, TBA, TOD, C, NOS, MDR	—	LDR
Child care centers		5.9.09.	—	CC, TCC, TBA, C	—	LDR, MDR, TOD, NOS
Drive-in or drive-through facilities		5.9.10.	—	—	—	All Uses: CC, TCC, TBA, TOD, C, PRD NOS: Banks, Credit Unions, and Financial Services Offices
Electrical substations and private utilities		5.9.11.	—	CC, TCC, TBA, TOD, C, NOS, IT, LDR, MDR	—	—
Entertainment, live		5.9.12.	—	CC	—	TCC, TBA, TOD, C, OS

Table 5.9.02. Use Regulations and Approval Process						
Use		**Section**	**Counter Review**	**Director Review**	**Qualified Review**	**Special Land Use**
Helistops and heliports		5.9.13.	—	—	—	Helistops Only: CC, TCC. Both: IT.
Home occupations		5.9.14. Chapter 116	LDR, MDR, CC, TCC, TBA, TOD, C, NOS	—	—	—
Live-work units		5.9.16.	CC, TCC	TBA, TOD, C, NOS	—	LDR, MDR
Manufactured housing community		5.9.17.	—	LDR, MDR	—	IT
Marihuana Facilities		5.9.19.	—	Table 5.9.19.D.	—	Table 5.9.19.D.
Materials recovery, recycling, wrecking and salvage		5.9.18.	—	—	—	OS, IT, TCC
Multiple-family dwellings		5.9.20.	MDR	CC, TCC, TBA, TOD, C, NOS, IC	—	LDR
Mineral extraction		5.9.21.	—	IT	—	LDR, MDR, OS
Mobile Food Vending		5.9.15.	—	NOS, IT	CC, TCC, TBA, TOD, C	—
Outdoor activities (excluding vehicle sales)		5.9.22.	—	CC, TCC, TBA, TOD, C	—	
Outdoor recreational fields		5.9.23.	—	CC, OS	—	TCC, TBA, TOD, C, NOS, IC
Outdoor seating areas	On or adjacent to public sidewalk	5.9.24.	—	CC, TCC, TBA, TOD, C	—	—
	Rooftop, side and rear yard	5.9.24.	—	—	—	CC, TCC, TBA, TOD, C
Overhead walkways or other connections		5.9.25.	—		—	CC, TCC, TOD
Parking structures		5.9.26.	—	CC, TCC, TOD, IT	—	TBA, C
Recycling collection stations		5.9.27.	—	CC, TCC, TBA, TOD, C	—	LDR, MDR, NOS
Regulated uses		5.9.28.	—	IT	—	
Residential rehabilitation facility		5.9.29.	—	CC, TCC	—	LDR, MDR, TBA, TOD, C, NOS

Table 5.9.02. Use Regulations and Approval Process						
Use		**Section**	**Counter Review**	**Director Review**	**Qualified Review**	**Special Land Use**
Rooming and boarding house		5.9.30.	—	CC, TCC	—	LDR, MDR, TBA, TOD, C, NOS
Self-storage facilities		5.9.31.	—	IT	—	CC, TCC, C
Single room occupancy		5.9.32.	—	CC, TCC, TBA, TOD, C, NOS	—	LDR, MDR
Social or service clubs, motorcycle clubs		5.9.33.	—	CC	—	TCC, TBA, TOD, C, NOS
Social service facilities		5.9.34.	—	CC, TCC, TBA, C	—	LDR, MDR, TOD, NOS
Temporary structures and uses		5.9.35.	LDR, MDR, CC, TCC, TBA, TOD, C, NOS	—	—	—
Transitional or emergency shelter		5.9.36.	—	CC, TCC	—	MDR, TBA, TOD, C, NOS
Vehicle fuel stations (without vehicle repair)		5.9.38.	—	C, IT	—	CC, TCC, TBA
Vehicle sales or rental	New vehicles	5.9.39.	—	C	—	—
	Used vehicles		—	—	—	C
Vehicle service or repair		5.9.40.	—	C, IT	—	CC, TCC, TBA
Wireless communications facilities	Co-located antennas	5.9.41.	—	LDR, MDR, CC, TCC, TBA, TOD, C, NOS, IT, IC, OS	—	—
	Freestanding towers		—	—	—	C, IC, IT
Zoo		5.9.42.	See Section 5.7.05.F of Special District - Institutional Campus.			

(Ord. No. 2018-32, § 7, 6-5-18; Ord. No. 2018-39, §§ 4—6, 7-10-18; Ord. No. 2018-45, § 5, 7-24-18; Ord. No. 2018-70, § 3, 12-18-18; Ord. No. 2019-11, § 3, 3-26-19; Ord. No. 2019-16, § 3, 4-23-19; Ord. No. 2020-21, §§ 7, 8, 7-7-20; Ord. No. 2024-20, §§ 11—13, 4-23-24)

Sec. 5.9.03. Accessory Dwelling Units (ADU).

A. Not more than one (1) Accessory Dwelling Unit (ADU) may be permitted per lot.

B. An ADU may be permitted only in association with a single-family or two-family dwelling.

C. *Minimum Lot Area.* An ADU may be developed on a lot meeting the minimum lot size for the applicable zone district.

D. *Residential Density.* An ADU shall be excluded from maximum residential density requirements.

E. *Setbacks.*

1. An attached ADU shall be subject to the zone district setback requirements for a primary structure.
2. A detached ADU shall be subject to the zone district setback requirements for an accessory structure.

F. *Floor Area.*

1. The maximum permitted floor area for an accessory structure that contains a second floor ADU may be increased by one hundred (100) percent solely for the construction of a second-floor unit.
2. *Maximum ADU Size.* The ADU shall not exceed forty (40) percent of the gross floor area of the primary structure or four hundred (400) square feet, whichever is larger. In no case shall the ADU exceed eight hundred fifty (850) square feet in gross floor area.

G. *Building Height.* The maximum permitted height of a detached ADU is twenty-five (25) feet.

H. *Bedroom Maximum.* A maximum of two (2) bedrooms are permitted within an ADU.

I. *Rental.* No ADU shall be rented for fewer than thirty (30) days and shall not be used as a short-term rental. If the ADU is not occupied as a residence by the owner, it shall be registered and certified as required in Chapter 140 of the City Code.

J. *Alterations or New Construction.* Any alterations to existing buildings or structures or the construction of a new structure to accommodate an ADU shall be designed to maintain the architectural design, style, appearance and character of the main building, including but not limited to entrances, roof pitch, siding and windows.

K. *Deed Restriction.* A deed restriction enforceable by the City shall be recorded prior to the issuance of a building permit stipulating that the ADU will not be conveyed separately from the primary dwelling unit(s). An alternative form of security may be substituted if it meets the intent of this provision and is approved by the City Attorney.
(Ord. No. 2018-69, § 7, 12-18-18; Ord. No. 2019-11, § 4, 3-26-19; Ord. No. 2024-20, § 14, 4-23-24)

Sec. 5.9.04. Adult Foster Care and Adult Day Care.

A. *Adult Foster Care Family Home.* The adult foster care home licensee, whether one (1) person or two (2), shall be a member of the household and an occupant of the residence, and is not counted among total adults permitted as part of the care facility.

B. *Adult Foster Care Small and Large Group Homes.* The adult foster care group homes shall be registered and licensed as required for adult foster care under the Adult Foster Care Facility Licensing Act, Act 218 of the Public Acts of 1979, MCL 400.701 et seq., as amended.

C. *Adult Day Care Homes.* An adult day care home shall be registered and licensed as required for group day care homes under the Child Care Organizations Act, Act 116 of the Public Acts of 1973, MCL 722.11 et seq., as amended.

Sec. 5.9.05. Alcohol Sales and Consumption.

A. *Purpose.* A concentration of alcohol-related uses within a geographic area tend to have particularly detrimental effects on neighborhood character. Accordingly, the use type and type of activities, hours of operation, police resources and the secondary effects resulting from these uses must be taken into consideration during the approval process.

B. *Applicability.* Any land use that requires a license from the Michigan Liquor Control Commission (LCC) for the sale or consumption of beer, wine or alcoholic beverages (on- or off-premises, whether packaged, by the bottle, by the glass or otherwise) and any expansion or other changes in that land use, shall require review and approval as specified in Table 5.9.05.B. The Director may submit any Director Review application to the Planning Commission for approval review.

C. *Approval Procedures for the Sales or Service of Alcohol.*

Table 5.9.05.B. Approval Procedures for the Sales or Service of Alcohol

License	Description	Criteria		Review Procedure
On-Premise Consumption				
Class C, Club, Hotel, Resort, Tavern	New license for a new bar			SLU
	Expansion of an existing bar	Less than 20% increase in seating capacity and/or sq. ft. of dedicated area		Director Review: meeting criteria
				SLU: not meeting criteria
	New license for a new or existing restaurant; or expansion of an existing restaurant with alcohol	Closing time at or before midnight		Director Review: meeting criteria
				SLU: not meeting criteria
Brewpub, Micro Brewer	New license or expansion	For expansion of production (see Table 5.6.06.B., Alcohol Sale for On-Site Consumption)		SLU
Entertainment, Dance, After Hours	New license or expansion			SLU
Outdoor Service (see 5.9.24.)	New outdoor license for a new or existing bar or restaurant	Within public ROW or on private property abutting public ROW, at ground level		Director Review
		Private property		SLU
	Expansion of an existing outdoor service area	Within public ROW at ground level or on private property abutting public ROW, at ground level		Director Review
		Private property	Less than 20% increase in seating capacity and/or sq. ft. of dedicated area	Director Review: meeting criteria
				SLU: not meeting criteria
Off-Premise Consumption				
SDM	New retail license	In conjunction with a restaurant or brewpub and there is no assigned floor area or display dedicated to packaged alcohol sales.		Director Review: meeting criteria
				SLU: not meeting criteria
	Expansion of existing sales area			SLU
SDD	New or expanded license			SLU
SDM/SDD	25,000 sq. ft. GFA or less			SLU
	More than 25,000 sq. ft. GFA			Director Review: meeting criteria
SLU = Special Land Use				

D. *Application Requirements.* Each application shall be accompanied by a detailed site plan and any information necessary to demonstrate the proposed use or change in use meets the review standards of D. below. The following shall be submitted as part of an application in addition to the requirements of Section 5.12.09.

1. *License Application.* A copy of the license application submitted to the LCC; or in the case of a development district license pursuant to City Commission Policy 300-08 Requirements for Approval of Liquor License Requests in City Development Districts, a copy of the license application submitted to the City Clerk.
2. *Site Plan.* A site plan illustrating the proposed location where the alcohol sales would occur, as well as all other existing locations of sales within a one thousand (1,000) foot radius measured from the lot lines of the subject site, including, but not limited to restaurants, bars, convenience stores, other alcohol retail outlets, social or service clubs, second hand sales and Regulated Uses.

3. *Operations Management Plan.* An Operations Management Plan must be submitted for the review of the Grand Rapids Police Department Vice Unit. The Plan must detail how the operator will manage the facility during events, ensure the security of the patrons both inside and outside the facility, and ensure the appropriate management of the liquor license(s). A Crime Prevention Through Environmental Design (CPTED) analysis may be required by the Police Department part of the Plan.

E. *Review Standards.* The following review standards shall be used in the consideration of an alcohol request in addition to those of Section 5.12.09., where applicable. The applicant shall provide a written statement that demonstrates how these standards are satisfied.

1. Given the character, location, development trends and other aspects of the neighborhood in which the proposed LLC licensed use or change in an LCC licensed use is requested, it is demonstrated that the neighborhood is underserved by the use and that the addition of the LLC licensed use or proposed change in use will be a demonstrable asset to the neighborhood.

2. In the case of a development area license pursuant to City Commission Policy 300-08, the Planning Commission or Director shall also consider the recommendations of the development area board and may consider how the issuance of a license would promote economic growth in a manner consistent with adopted goals, plans or policies of the area.

3. The use or change in use as constructed and operated by the applicant is compatible with the neighborhood.

4. Adjacent or nearby parks (e.g., public parks or recreation centers), playgrounds (e.g., public or private), religious institutions, or schools will not be adversely affected.

5. That the applicant has considered and has procedures prepared so that the use will be constructed and operated by the applicant in a manner that has the potential to minimize or eliminate negative secondary effects on the neighborhood. Negative secondary effects can include the following factors:

    a. Vehicular and pedestrian traffic, particularly during late night or early morning hours that might disturb area residents.

    b. Noise, odors, or lights that spill over to any property with residential dwellings.

    c. Excessive numbers of persons gathering outside the establishment.

    d. Peak hours of use that materially adds to congestion or other negative traffic related effects in the neighborhood.

    e. Fighting, brawling, public urination or other behavior that can accompany intoxication.

    f. Robberies, shoplifting and other crimes that have a tendency to affect party stores, convenience stores and other retail establishments open late.

6. Evaluation Considerations. The Planning Commission or Director shall take the following into consideration.

    a. For a use involving sales of beer and wine, or sales of alcoholic beverages by the glass, an application related to a full service restaurant offering full meals for consumption on the premises (and not generally for take-out) at all times it is open for business and that closes prior to midnight shall be presumed to have minimal negative secondary impacts.

    b. For a use involving retail sales of beer, of wine and/or of alcoholic beverages for off-premises consumption, an application related to a full service supermarket or an

establishment that features imported or ethnic food items not commonly available in party, convenience or grocery stores, and that closes by 11:00 p.m. shall be presumed to have minimal negative secondary impacts.

c. The minimal negative secondary impacts, the presumptions in a. and b. above will not apply if the current or proposed location has had instances of negative secondary impacts within a one (1) year period prior to the date of the application; or if the applicant has owned, operated or otherwise been affiliated with an establishment that has had instances of negative secondary impacts such as those described in Subsection D.5.a. The applicant may submit documentation indicating how the previous negative secondary impacts may differ from the current application, or what steps have been taken to minimize future negative secondary impacts.

F. *Terms.*

1. For purposes of this Section, "neighborhood" means a neighborhood served by an organized neighborhood association recognized by the City, or an area within a one thousand (1,000) foot radius of the applicant's site, whichever is greater.

2. For the purposes of this Section, "restaurant" shall refer to a full service restaurant offering full meals for consumption on the premises during all business hours (and not generally for take-out) with beer and wine, or sales of alcoholic beverages by the glass and where the average daily receipts from the sale of food exceeds fifty (50) percent of the establishment's total average daily receipts, not including sales of novelty items, income from vending machines, cover charges, or other receipts not derived from the sale of food or beverages, and the establishment closes at or before midnight.

G. *Other Requirements.*

1. *Cash Register Viewing Window.* The cash register for a convenience/package goods store shall be clearly visible from the street. The viewing window shall have a contiguous area of at least twenty (20) square feet of clear glass and have an unobstructed view into the store.

2. *Entertainment.* The requirements of Section 5.9.12. Live Entertainment shall also apply if a Dance or Entertainment permit has been requested from the State or City.

3. Applications for Dance, Entertainment or After Hours permits shall be considered a change in land use and shall be subject to the requirements of this Section.

(Ord. No. 2019-16, § 4, 4-23-19)

Sec. 5.9.06. Attached Single-Family and Two-Family Dwellings.

A. Attached dwellings must comply with the dimensional and design standards of Sections 5.5.06. and 5.5.07., except where these standards are expressly modified by this Section.

B. *Minimum Lot Area.* The minimum lot area per dwelling unit is as required in the Zone District.

C. *Minimum Setbacks.*

1. *Interior Lots.* The minimum required interior side setback on the side of the dwelling unit containing the common wall is reduced to zero. The (interior) side and rear setback standards of the Zone District apply around the perimeter of the project.

2. *Corner Lots.*

a. The interior side setback may be reduced to zero. However, the remaining side setback must comply with the standards of the Zone District.

b. The required building setback from one (1) front lot line may be reduced to fifteen (15) feet. This setback may be further reduced to match the predominant setbacks of adjoining structures on the same side of the street between the nearest intersecting streets or alleys, provided that a minimum setback of three (3) feet is provided in all cases.

D. *Minimum Building Width.* Each dwelling shall have a minimum dimension of fourteen (14) feet in any horizontal dimension.

E. *Separation Between Walls.*

1. When the end wall of a row of attached single-family dwellings faces the front wall or rear wall of another row of attached dwellings, there shall be at least twenty (20) feet between the main buildings (excluding minor building projections allowed under Section 5.2.05.).

2. Driveways, walkways, and open parking areas may be located within this separation area, provided that landscaped planting areas with a minimum separation of four (4) feet from one (1) building wall are provided.

F. *Building Façades on Public Streets.*

1. *Building Façades.* Building façades that face public streets shall include elements typical of a front façade, including doors and/or windows.

2. *Attached Single-Family Dwelling Façade Treatment.* The front of each dwelling must be distinct through either the use of different façade materials; staggered building lines of at least two (2) feet; an identifiable permanent architectural design element such as a chimney; pilaster or column (excluding gutter spouts or siding trim); or a combination of these methods.

G. *Attached Single-Family Roof Line.* The roof line of each dwelling must be distinct through either a separation of roof pitches (minimum difference at least five (5) degrees), a difference in roof direction, a difference in roof height (minimum of two [2] vertical feet), or a combination of both methods.

H. *Garage Doors.*

1. *Attached Single-Family Garage Door Entrances.*

a. Garage door entrances for individual dwellings shall not face a public street. Alleys or interior driveways shall be used for access. This provision is not intended to prohibit garage doors that serve common parking areas.

b. Administrative Departure. Garages for individual dwellings may be approved to face a public street where site conditions warrant. If approved, garage doors shall be set back at least twenty (20) feet from the front lot line. Garage doors shall be subject to the same transparency requirements as the building façade.

2. *Maximum Width.* Garage doors facing the street may not occupy more than forty (40) percent of the width of the street-facing façade of the main building. The maximum continuous, uninterrupted width of a garage door (or combination of smaller, single-car garage doors) along the street-facing façade may not exceed twenty-five (25) feet. A minimum separation of two (2) feet is required between garage doors.

3. *Recess.* All garage doors must be recessed at least five (5) feet from the front building wall nearest the front lot line.

I. *Private Yards.*

1. *Minimum Area.* Each attached single-family dwelling shall have at least two hundred (200) square feet of private yard with a minimum dimension of five (5) feet.

2. *Location.* For attached single-family dwellings, the private yard shall be contiguous to individual units, immediately adjacent to a wall of the dwelling it serves.

3. *At Grade.* Required private yards may be at grade, or within four (4) feet of grade if a terrace or patio. An Administrative Departure may be approved for a deck that is more than four (4) feet above grade.

4. *Contiguous to Common Open Space.* Required private yards for attached single-family dwellings may be within a common open space area provided that the common area is contiguous and directly accessible to the dwelling and the private yard area exceeds the minimum required common open space.

5. *Driveways and Parking.* No driveways or off-street parking spaces (open or enclosed) may be located within required private yards.

J. *Attached Single Family Dwellings - Common Open Space.*

1. *Minimum Required Open Space.* In addition to required private yards in Section 5.5.08.K., an attached single-family dwelling development of forty (40) or more units must provide a minimum of one hundred fifty (150) square feet of common open space per dwelling unit.

2. *Minimum Dimensions.* Required common open space must be located on the same lot as the development and in one (1) or more usable, common areas, each with minimum dimensions of twenty-five (25) feet and a minimum area of two thousand (2,000) square feet.

3. *Accessibility and Landscaping.* Common open space areas must be accessible to all attached single-family dwellings and must be improved with landscaping, recreational facilities, and/or walkways.

4. *Trees.* Trees must be planted within common open space areas at the rate of one (1) tree for every one thousand (1,000) square feet of required common open space. All trees must have a minimum two and one-half (2½) inch caliper.

5. *Driveways and Parking.* No driveways or off-street parking spaces (open or enclosed) may be located within the common open space. Bollards, curbs, wheel stops or other similar features shall be provided to ensure that required open space is not used for off-street parking, loading or vehicle circulation.

(Ord. No. 2018-69, § 8, 12-18-18; Ord. No. 2019-09, § 6, 3-26-19; Ord. No. 2024-20, § 15, 4-23-24)

Sec. 5.9.07. Auditorium, Theatre and Banquet Hall.

A. *Loading Areas.* Loading and unloading areas shall be shown on the site plan and designed to avoid pedestrian/vehicular conflicts or unnecessary vehicle movements in the public right-of-way.

B. *Alcohol Sales or Entertainment Requirements.* The requirements of Section 5.9.05. Alcohol Sales and Consumption and/or Section 5.9.12. Live Entertainment shall apply if these activities are planned to occur on the premises.

C. *Remote Broadcasting.*

1. Up to two (2) remote broadcasting sites where radio and/or television broadcasting occurs off-site from the principal location of the broadcasting station may be permitted within three hundred (300) feet of the main entrance of a theater complex, auditorium or arena in which an event is being held.

2. Remote broadcasting sites are only permitted in the TN-CC Zone District in conjunction with the following:
   a. An arena with a seating capacity of ten thousand (10,000) persons or more; and
   b. A convention center having one hundred thousand (100,000) square feet or more of floor area.
3. Remote broadcasting sites shall be permitted for up to ten (10) events each year and for a maximum of eight (8) days for each event. Sites and all equipment, signs, and other evidence of the use shall be removed immediately after the termination of the event for which it is associated.

Sec. 5.9.08. Bed and Breakfast.

A. *Principal Residence of Owner.* The dwelling unit in which the bed and breakfast operates shall be the principal residence of the owner-operator who shall reside on the premises at all periods when the use is in operation.

B. *Exterior Appearance.* The structure shall maintain an exterior appearance that is in character with surrounding residential uses. The requirements of Article 15 Signs shall apply.

C. *Guest Rooms.* The number of guest rooms is limited to one (1) fewer than the total number of bedrooms in the dwelling unit, not to exceed five (5) guest rooms. Maximum occupancy is limited to two (2) adults per guest room. Use of more than five (5) guest rooms shall be considered short-term lodging as provided in Table 5.6.06.B.

D. *Maximum Stay.* The owner shall ensure that the length of stay for a lodger not exceed thirty (30) consecutive days.

E. *Cooking.* Separate cooking facilities are prohibited.

F. *Accessory Services.* Accessory services such as personal service and retail or alcohol sales are permitted within a bed and breakfast use only if individually and expressly approved by the Planning Commission and shall only be for guest services and not as a commercial enterprise available to the general public.

G. *Parking.* One (1) additional on-site parking space shall be provided for each guest room in addition to the parking required for the principal residence. On-street parking shall not be used to fulfill this requirement.

H. *Proximity.* In order to avoid the concentration of intensive, non-residential land uses in residential neighborhoods, maintain residential character, and compatibility with adjacent residential uses, no bed and breakfast shall be within a five hundred (500) foot radius of another existing bed and breakfast, as measured from the perimeter of the parcel.

I. *Special Events.*

1. A bed and breakfast establishment may hold up to four (4) events within a calendar year where non-guests of the bed and breakfast are allowed to use the premises. Events shall have a maximum duration of two (2) days per occurrence.
2. Food and drink may be served to non-guests at an approved event.
3. Sufficient parking shall be provided for each event and occupancy limits shall be determined by the Fire Department and/or Building Official with proper safeguards in force for places of assembly.

4. A temporary use permit shall be obtained in compliance with Sections 5.9.35.A-B. and H., except that maximum duration of each occurrence as specified in I.1. above shall apply.

Sec. 5.9.09. Child Care Center.

A. *Outdoor Play Area and Fencing.* There shall be on-site outdoor play area sufficient to meet State regulations. All required outdoor play areas shall be enclosed with a minimum of four (4) foot high fence. If placed in the front yard, the fence shall be of an open style, decorative design. All other fence requirements of Section 5.2.11. shall be met.

B. *Ingress and Egress.* Vehicle ingress and egress shall be provided as far as possible from street intersections.

C. *Pick Up and Drop Off Area.* An on-site drive shall be provided for drop off and pick up of children near the entrance. Stacking area for the drop off/pick up area shall meet the requirements of Section 5.10.03.F.8. and shall be designed to prevent vehicles from stacking into or creating a hazard to traffic flow on the public street or creating obstructions to pedestrian movements on sidewalks or on the site of the child care center.

D. *Accessory to Institutional Use.* A child care center may be permitted as an accessory use to an institutional use, such as a religious institution, subject to satisfying all of the applicable necessary requirements of this Article

Sec. 5.9.10. Drive-In or Drive-Through Facility.

A. *Purpose.* The requirements of this Section are intended to minimize the potentially adverse effects of drive-in or drive-through activities on surrounding properties, pedestrians and traffic flow.

B. *Minimum Lot Depth.* A minimum lot depth of two hundred (200) feet is required.

C. *Minimum Lot Size.* A minimum lot size of one (1) acre is required per drive-through use.

D. *Hours of Operation.* Hours of operation shall be restricted to the hours between 6:00 a.m. to 12:00 Midnight if within one hundred fifty (150) feet of a Residential Zone District.

E. *Operations.*

1. The stacking requirements of Section 5.10.03.F.8. shall be met.
2. The Traffic Engineering Department shall review proposed stacking areas leading up to and from the service window, menu board, or similar service area for a drive-in or drive-through facility, and shall determine the number of stacking spaces required for that use or, alternatively, may require the applicant to provide a queuing analysis for uses generating more than thirty (30) trips per hour at peak times.
3. Drive-through lanes and stacking areas, menu boards, speakers, or service windows shall not be placed on a street facing side of a building or within twenty-five (25) feet of the lot line of any Residential Zone District or use unless the Planning Commission determines that no other location is feasible.

F. *Pedestrian Walkways.* Pedestrian walkways within the site shall be clearly visible, and be emphasized by enhanced paving, a clear change in material, or markings where they intersect drive-in or drive-through aisles.

G. *Screening Requirements.*

1. Any lot line adjacent to a Residential Zone District shall be screened in accordance with the provision of Section 5.11.12.
2. All service areas and ground-mounted mechanical equipment shall be screened from ground-level view. Trash storage shall comply with the requirements of Section 5.2.13.

H. *Integrated Drive-Through.* In the TN-TCC, TOD and SD-PRD Districts a drive-in or drive-through facility located shall be allowed only as part of a larger mixed-use project and integrated into a main building and are not permitted with freestanding, single use buildings. In these Zone Districts, all customer service areas associated with the drive-through use shall be enclosed within a main building, such as a drive-through lane within a parking structure or associated with a multi-use building.

I. *Banks, Credit Unions and Financial Institutions.* Drive-through lanes servicing Automated Teller Machines (ATMs), transaction windows and tubes shall be reviewed for placement number, activity level, noise and hours of operation.

Sec. 5.9.11. Electrical Substations and Private Utilities.

A. *Outdoor Enclosure.* Screening is deemed necessary to recognize the permanence of the infrastructure, help increase safety, reduce maintenance requirements, and lessen the opportunity for graffiti or vandalism.

B. The outdoor enclosure of above-ground essential service utilities shall be screened using a permanent brick or decorative textured block wall at least one (1) foot taller than the equipment being screened, provided that the screen need not be higher than ten (10) feet.

C. *Administrative Departure.* An Administrative Departure may be granted and alternative enclosure or screening materials approved if the functioning of the utility would be adversely affected by this requirement or if the location of the infrastructure is not clearly visible from a public street or nearby residential uses.

Sec. 5.9.12. Live Entertainment.

A. Live Entertainment shall only be used in conjunction with a banquet hall, restaurant, bar or similar facility.

B. *Review Standards.* The following considerations shall be used by the Planning Commission and the Director in the deliberation and approval of a Live Entertainment request in addition to the review standards of Section 5.12.09.

1. Whether adjacent or nearby parks (e.g., public parks or recreation centers), playgrounds (e.g., public or private), religious institutions, or schools are adversely affected.

2. Vehicular and pedestrian traffic, particularly during late night or early morning hours that might disturb area residents.

3. Noise, odors, or lights that spill over to any property with residential dwellings.

4. Excessive numbers of persons gathering outside the establishment.

5. Peak hours of use that materially adds to congestion or other negative traffic related effects in the neighborhood.

C. *Sound-Proofing.* The building shall be sound-proofed to meet the requirements of the Noise Control Ordinance (Chapter 151, Article 5 of the City Code). The noise analysis and the method of construction being used to meet the standards of the Noise Control Ordinance shall be provided to the Director prior to the issuance of a building permit.

D. *Building Openings.* No entrance or exit to the main building in which the activity will occur shall face an adjacent residential use. All other doors and windows, including fire exits, which may direct sound to residential properties shall remain closed during the entertainment.

E. *Hours of Operation.* Hours of operation shall not extend beyond 2:00 a.m.

Sec. 5.9.13. Helistops and Heliports.

A. *Landing and Takeoff Restrictions.* No person shall cause or allow a helicopter to land or takeoff in a TN-CC or TN-TCC Zone District between the hours of 11:00 p.m. and 7:00 a.m., nor shall any person cause or allow more than fifteen (15) landings and fifteen (15) takeoffs a month from any one (1) site, nor more than two (2) landings and two (2) takeoffs per day from any one (1) site.

B. *Special Events.* The City Manager may grant written permission for additional landings and takeoffs for special events deemed by the Manager to be of community significance.

C. *Noise Limitations.*

1. No person shall operate a helicopter or permit a helicopter to be operated so as to exceed the noise limits established in the Noise Control Ordinance (Chapter 151, Article 5 of the City Code).

2. Engine Operation. A helicopter engine shall not remain in continuous operation at a landing site for a duration of more than three (3) minutes.

D. *Exemptions.* The provisions of this Section shall not apply to hospitals and emergency centers providing helicopter services, or for emergencies, dignitaries, or City-sponsored event landings and takeoffs.

Sec. 5.9.14. Home Occupations.

A. *Purpose and Conformance.*

1. The regulations of this Section are intended to ensure that home occupations remain subordinate to the residential use, the residential viability of the dwelling is maintained, and that the use not be a detriment to the character and livability of the surrounding neighborhood.

2. The dwelling shall conform to all requirements of the Zone District.

B. *Business License and Approvals.*

1. All home occupations shall obtain a business license from the City Clerk. Home occupations shall be licensed pursuant to Chapter 116 Home Occupation of the City Code. Chapter 116 describes three occupational classes: Class A, which shall have minimal to no impact on the surrounding neighborhood; Class B and Class C, which have the potential for adverse effects to the neighborhood or community.

2. All license applications shall include an interior floor plan provided clearly indicated the planned location for the conduct of the home occupation, total living area square footage by the floor, and living area square footage by floor devoted to the home occupation.

3. Table 5.9.13.B summarizes the Classes and requirements for home occupations and the required approval processes.

Table 5.9.14.B Home Occupation Classes

Characteristic	**Requirement**		
	Class A	*Class B*	*Class C*
Approval Process	Director Review	Director Review	Special Land Use
Examples (non-inclusive)	Internet-sales, home office, bookkeeping	Music, fine arts instructor; one-room rental	Bed and breakfast See 5.9.08.
			Rooming house See 5.9.30.

Table 5.9.14.B Home Occupation Classes			
Characteristic	**Requirement**		
	Class A	*Class B*	*Class C*
Residential Type	Single-family, two-family, multiple-family	Single-family, two-family	Bed and breakfast See 5.9.08. Rooming house See 5.9.30.
Property Ownership	Owner or renter	Owner or renter with owner consent	Owner
Walk-in Retail Trade	Not permitted	Not permitted	Not permitted
Business-Related Visitors by Appointment	Not permitted	No more than 2 at any one time; hours of operation 7:00 a.m. to 8:00 p.m.	Bed and breakfast guests; not applicable to rooming houses

C. Signs shall comply with the requirements of Article 15.

D. *Space Limitations.*

1. No part of an accessory structure, either attached or detached, shall be used in connection with the home occupation.

2. Class A and Class B.

   a. Not more than one-fourth (¼) of the residential floor area of the dwelling unit and less than one-half (½) of the residential floor area of the main floor shall be devoted to the home occupation.

   b. In no instance shall all home occupations in any single dwelling unit permanently occupy more than three hundred (300) square feet of the dwelling unit.

E. *Alterations.*

1. Exterior Alterations. Home occupations shall not require exterior alterations or involve construction features not customary for dwellings.

2. No new external entrance to the space devoted to the occupation shall be created.

3. Interior Alterations. Any permanent structural alterations to the interior of the dwelling unit for purposes of conducting the home occupation which would render it unsuitable for residential use shall be prohibited.

F. There shall be no outdoor storage of items related to the home occupation.

G. The activity shall not require the creation of any additional parking spaces to service the home occupation.

H. *Residency.* Residency within the dwelling unit in which the home occupation is conducted shall comply with licensing provisions of Chapter 116 Home Occupation of the City Code.

I. *Hazards or Nuisances.* No home occupation shall be permitted which would increase traffic, fire and safety hazards, noise, dirt, odor, dust, gas, glare, fumes, vibration or other nuisance elements, or require the use of mechanical or electrical equipment which create a nuisance to the adjacent neighborhood.

J. *Other Codes.* All Building, Housing, Fire and other local or State Codes and ordinances, including Chapter 116 Home Occupation of the City Code, shall be met.

K. *Prohibited Occupations.* The following shall not be considered as home occupations, including, but are not limited to:

1. Animal processing.
2. Any repair of motorized vehicles, including the painting or repair of automobiles, trucks, trailers, boats, and lawn equipment.
3. Animal hospitals or kennels.
4. Barber shops or beauty parlors.
5. Restaurants or catering/food preparation businesses, except catering/food preparation businesses operating in compliance with the Cottage Food Law, PA 113 of 2010.
6. Medical or dental offices.
7. Construction businesses or landscaping businesses that provide the storage of goods, equipment and materials to be utilized in the operation of the business or use.
8. Furniture finishing and refinishing.
9. Warehousing.
10. Welding or machine shops.
11. Any other occupation or service which, in the opinion of the Director, creates unnecessary noise, vibration, glare fumes, odors, or electrical interference detectable to the normal senses, off the premises, or has the potential to adversely affect the character of the neighborhood.

L. *Fine Art/Craft/Music Instruction.* Instruction in a fine art, craft or music is a permitted home occupation.

(m) *Reserved.*
(Ord. No. 2018-45, §§ 6, 7, 7-24-18)

Sec. 5.9.15. Mobile Food Vending.

A. *Purpose and Applicability.*

1. Mobile food vending can provide employment and small business growth in the City while providing a broad range of food choices to the public. The provisions of this section are intended to provide a proper balance between these uses that allow brick-and-mortar restaurants to thrive while allowing for new food vending opportunities that can add vitality to vacant parking lots and underutilized sites.
2. These provisions shall apply to businesses engaged in the cooking, preparation, and distribution of food or beverage on properties outside of the public right-of-way.
3. This section does not apply to mobile food vendors that move from place to place and are in the same general location for up to thirty (30) minutes at a time, or locations under the control of Chapter 46 Downtown Vending of the City Code.
4. Mobile food vending shall be permitted subject to the requirements of this Section.

B. *Approval Procedures.*

1. The use and permit review of mobile food vending shall be done in accordance with Table 5.9.15.B.

Table 5.9.15.B Approval Procedures for Mobile Food Vending			
	Review Procedure		
Zone District	Temporary Use 89 days or less	Accessory Use 90 days or more	Principal Use 90 days or more
NOS, IT	Temporary Use Permit	Director Review	—
CC, TCC, TBA, TOD, C	Temporary Use Permit	Qualified Review	Qualified Review

2. Any alcohol sales associated with a mobile food vendor shall be reviewed in accordance with Section 5.9.05 of this Chapter.

3. *Other Approvals.* In addition to satisfying the requirements of this section, evidence of approval from the Kent County Health Department shall be provided for all mobile food vending. A Transient Merchant License shall be obtained from the Office of the City Clerk, as applicable.

C. *Required Information.* The following information shall be submitted with the permit application. The Director and/or Planning Commission may request additional information if deemed necessary. For Special Land Use applications, the site plan identified below may substitute for that required by Section 5.12.09.

1. A written description of the nature of the proposed use, including the methods of food preparation and cooking, and the frequency, duration and hours of operation;

2. A trash collection and removal plan;

3. Source of water and power that will serve the mobile food vending unit;

4. Dimensioned drawings of any proposed signage;

5. Details of the mobile food vending unit, including the type, dimensions, elevation drawings or photos, and details of any furniture, tent or other physical features associated with the proposed use;

6. A dimensioned site plan showing existing and proposed site improvements, including:

   i. Buildings and building setbacks;

   ii. The proposed location of the mobile food vending unit and any other associated activity;

   iii. Existing public improvements adjacent to the site, such as fire hydrants, bus shelters, trees and tree grates and parking meters;

   iv. The nature of the property surfaces (e.g. asphalt, gravel, etc.);

   v. The location of parking;

   vi. Site lighting;

   vii. Signs;

   viii. Trash receptacles;

   ix. The location of on-site water, generator, and/or electric utilities that will serve the mobile food vendor(s);

   x. The location of existing or planned sanitary facilities;

7. A business district map identifying existing restaurants within buildings and any other known mobile food vending operations within three hundred (300) feet; and

8. Photographs of the site.

D. *Review Standards.* In addition to the review standards of Section 5.12.09., the Planning Commission and the Director shall take the following into consideration in the review and approval of a mobile food vending permit:

1. Will the use contribute to the vitality and experience of the business district?
2. Will the use support or detract from existing brick and mortar establishments?
3. Is there an appropriate separation distance between temporary and permanent uses so as to not impair the long-term viability of nearby businesses?
4. Will the use add variety to the types of food or beverage offerings in the district or compete with area businesses in close proximity?
5. Will the proposed stand, trailer, wagon or vehicle contribute to the general aesthetic of the business district and include high quality materials and finishes?

E. *Outdoor Cooking.* Outdoor cooking associated with mobile food vending is subject to Special Land Use approval. An Administrative Departure may be granted for outdoor cooking for a mobile food vendor meeting the requirements for temporary use permit approval and provided there are no residential uses located within two hundred (200) feet of the property.

F. *Placement.* The mobile food vendor shall meet the setback requirements of the Zone District and the customer window shall be accessed directly from the public sidewalk. The intent of the placement is to contribute to the walkability of the business district and generate pedestrian activity. An Administrative Departure may be granted where an alternate placement would achieve this intent.

G. *Parking Area.* The area occupied by accessory concession sales shall not exceed twenty (20) percent of any required parking area. Sufficient on-site or district parking shall be provided for each stand, trailer, wagon, or vehicle on a lot, in addition to any other required parking for retail business buildings on the same parcel.

H. *Pedestrian Space.* A minimum pedestrian clear space of five (5) feet is required along all public walkways, unless an Administrative Departure is granted in accordance with Section 5.10.08. Pedestrian Access and Circulation.

I. *Public ROW and Clear Vision.* Sales shall not be in the public right-of-way or on public property unless otherwise approved, and shall be outside of clear vision areas.

J. *Sanitary Facilities.* Sanitary facilities shall be provided for mobile food vending operated as a principal use on a lot. An Administrative Departure from this requirement may be granted if documentation is provided for alternative arrangements.

K. *Hours of Operation.* Operating hours shall be no later than 10:00 p.m. Sunday through Thursday and 11:00 p.m. on Friday and Saturday, unless otherwise approved by the Planning Commission as a Special Land Use.

L. *Co-Location.* where mobile food vending has been approved on a lot as a principal use, locating additional vendors on the same lot is encouraged.

M. *Sound.* No amplified outdoor music, sound, or noise shall be permitted. Planned locations for outdoor generators that provide power shall be identified. Use of generators may be prohibited if it is anticipated that they may create a nuisance to neighbors due to noise, exhaust or vibration.

N. *Revocation.* Any approved stand, trailer, wagon, or vehicle on a property for the purposes of Mobile Food Vending shall remain in continuous operation so long as the premises is occupied. If the business closes, ceases to operate, or fails to keep regular business hours, then the temporary use

permit may be revoked by the Director, or by the Planning Commission for Special Land Uses in accordance with the provision of Section 5.12.09.I. If the approval is revised, the stand, trailer, wagon or vehicle shall be immediately removed from the property.
(Ord. No. 2019-16, § 7, 4-23-19)

Sec. 5.9.16. Live-Work Units.

A. A dwelling unit may provide live-work opportunities or artists' loft/studio arrangements that includes limited commercial activities on the ground level. Live-work units shall comply with ground floor residential use restrictions of this Chapter.

B. *Permitted Uses.* Permitted Uses in the NOS Neighborhood Office Service and TBA Traditional Business Area Zone Districts shall be permitted as live-work uses. Ground floor use requirements for non-residential uses shall not apply.

C. *Location.* The live-work unit shall be on a Regional or Major Street as defined in the City's Street Classification Policy.

D. *Space Limitations.* The commercial portion shall remain accessory to the primary residential use. A maximum of one-half (½) of the usable area of the dwelling may be devoted to a non-residential use. No part of an accessory structure, either attached or detached shall be used.

E. *Direct Access.* There shall be at least one (1) direct access between the working and living spaces within the live-work unit.

F. *Residency.* At least one (1) full-time employee who shall also be a resident of the property shall work in the work portion of the live-work unit.

G. *Leases.* The owner of the working and living spaces shall be a party to the same lease and shall be the lease holder of the property.

H. *Multiple Live-Work Units.* Where there are multiple live-work units within a single structure, each unit shall be physically separated from other units and uses within the structure, and access to individual units shall be from a common open space, corridor, hallway, or other common access areas.

Sec. 5.9.17. Manufactured Housing Community.

A. A Manufactured Housing Communities shall comply with Act 96 of the Michigan Public Acts of 1987, as amended.

B. *Access and Circulation.* A Manufactured Housing Community shall have two (2) points of ingress and egress, with frontage on a Regional or Major Street as defined in the City's Street Classification Policy. Internal streets shall meet all applicable City requirements for two-way streets.

C. *Pavement and Curbing.* All internal streets shall be paved and curbed. Access to individual manufactured house sites shall only be provided via internal streets.

D. *Utilities and Drainage.* Public water and sewer shall be connected to all manufactured housing units either separately or as a single unit. The Manufactured Housing Community shall manage all stormwater on site.

E. *Screening and Landscaping.* A Manufactured Housing Community which is adjacent to a LDR Zone District shall meet the landscape buffer requirements in Section 5.11.11.

F. *Required Open Space.* A Manufactured Housing Community with thirty (30) or more house sites shall contain at least one (1) designated open space area of two (2) percent of the total area of the site of the Manufactured Housing Community, with at least twenty-two thousand (22,000) square feet, and shall otherwise satisfy the urban open space requirements of 5.11.14.

G. *Outdoor Storage.* No personal property shall be stored outside or under any manufactured house. The storage of recreational vehicles shall be permitted only in the storage area designated by the owner of the development and shall be limited to the use of the residents. The storage yard shall be completely screened around its perimeter by a six (6) foot high solid decorative wall or fence.

H. *Accessory Structures.*

1. One (1) accessory structure, not to exceed one hundred twenty (120) square feet, shall be permitted for each manufactured housing unit.
2. Accessory structures shall not be located in the front yard of the housing unit, or on the side of the unit facing a street on a corner lot.
3. Attached accessory buildings shall be at least ten (10) feet from an adjacent manufactured housing unit and consist of materials similar to the manufactured housing unit.

I. *Submittal.* Application for the construction, alteration, or extension of a Manufactured Housing Community shall be submitted for Director Review.

Sec. 5.9.18. Materials Recovery, Recycling, Equipment Wrecking and Salvage.

A. *Applicability.* The provisions of this Section shall apply to all materials recovery and recycling operations, including the processing of junk, waste, discarded or salvaged materials, machinery, or equipment, including vehicle wrecking or dismantling.

B. The site shall be a minimum of two (2) acres.

C. *Screening.*

1. Outdoor storage and activities shall be completely screened from view, as seen from public rights-of-way and adjacent properties, by a solid wall or fence with a uniform minimum height of at least eight (8) feet and a maximum height of ten (10) feet. The wall or fence shall be constructed of uniform, high-quality, weather-resistant materials. Walls, fences and gates shall be kept in good repair (free of chips, peeling and graffiti) and setback a minimum of six (6) feet from lot lines abutting public rights-of-way.
2. Landscaping. A vegetative ground cover shall be planted between the required fence and public right-of-way and maintained in good condition. Berms and landscaping shall be installed at all locations around the site that lack natural screening in accordance with the Section 5.11.12., provided that berm height is not restricted.

D. *Machinery, Building, Mining and Stockpile Setbacks.* All wrecked vehicles, machinery, equipment, buildings, structures and activities shall meet the following minimum setbacks. Where more than one (1) setback is applicable, the greater setback distance shall apply.

1. Twenty-five (25) feet from any lot line;
2. One hundred (100) feet from a residential Zone District;
3. Five hundred (500) feet from a residence, and;
4. Three hundred (300) feet from any stream, water body or wetland.

E. *Noise, Odors, Smoke, Fumes, or Dust.* Any noise, odors, smoke, fumes, or dust generated on the site by any digging, excavating, loading or processing operation and apt to be borne by the wind, shall be confined to prevent a nuisance or hazard on adjacent properties or public street.

F. *Haul Route Map.* An area map delineating the haul route to be used for the proposed operation shall be submitted to the Director. Haul routes shall not pass through residential areas, except on Regional or Major Streets, and shall be approved by the City's Traffic Engineering Department.

G. *Noise Control Plan.* The Special Land Use application shall include a study and report prepared by a qualified professional that estimates the noise levels at the lot lines containing the extraction operation and at successive stages of the operation. The plan shall contain mitigation measures to be implemented when noise levels exceed acceptable standards.

H. Hours and days of operation shall be subject to Planning Commission approval based on the potential effects on surrounding properties, traffic conditions on affected roadways, and other similar factors.

I. Evidence of applications for Federal and/or State licensing permits for crushing facilities shall be submitted as part of the Special Land Use application.

Sec. 5.9.19. Marihuana Facilities.

A. *Purpose.* The concentration of any one use within a smaller geographic area can be burdensome for reasons of excessive parking needs and/or traffic congestion where there is high demand and can limit the type and variety of businesses that might otherwise exist if there is an oversaturation. The City of Grand Rapids Master Plan describes the desire for Mixed-Use Commercial Zone Districts and encourages a variety of land uses. It the intent of these provisions to ensure that quality of life is not impaired, neighborhood character is preserved, commercial retail viability and variety is enhanced and encouraged, or the stability of industrial areas is maintained.

B. *Applicability.* Any land use that requires a license from the Department of Licensing and Regulatory Affairs (LARA) in the administration of Michigan Medical Marihuana Facilities Licensing Act (MMFLA), Michigan Regulation and Taxation of Marihuana Act (MRTMA) or other state law providing for the sale, transport, testing, growing, distribution, and processing of marihuana or any other activity involving a marihuana-related use shall require review and approval as specified in Table 5.9.19.D. Any facility not specifically authorized in Table 5.9.19.D. is prohibited. Provisions of this Section do not apply to the medical use of marihuana in compliance with the Michigan Medical Marihuana Act (MMMA).

C. The Planning Commission is prohibited from waiving any portion of this Section, except as specifically authorized by Section 5.9.19.E.6. At the Director's discretion, any Director Review application may be forwarded to the Planning Commission for Special Land Use approval if the Director deems that the application could benefit from a review by the Commission.

D. *Approval Procedures for Marihuana Facilities.*

1. *License Type.* Marihuana facilities are permitted in accordance with the approval procedures described in Table 5.9.19.D. Licensed facilities may be co-located on the same parcel as allowed by Section G.2. and each license type shall be separately subject to the approval procedures described below.

2. *Conversion.* Conversion between license types is permitted in accordance with the approval procedures described in Table 5.9.19.D.

Table 5.9.19.D. Approval Procedures for Marihuana Facilities

License Type		Description		Criteria	Review Procedure	GNP Required
Provisioning Center (Medical) or Retailer (Recreational)		New or expansion		IT (co-located accessory use only, under 5,000 sq. ft.)	DR	No
				IT (co-located accessory use only, 5,000 sq. ft. or more)	SLU	No
				TCC, TBA, TOD, C, NOS, PRD	SLU	Yes
Grower (Medical or Recreational)	Any Class	New or expansion		TCC	SLU	Yes
				IT	DR	No
Processor (Medical or Recreational)		New		IT, TCC, TBA, C, TOD, PRD: Under 15,000 sq. ft. GFA	DR	IT: No Other zones: Yes
				IT, TCC, C: 15,000 sq. ft. or more GFA	SLU	Yes
		Expansion	Minor	Under 20% GFA increase	DR, after initial approval	No
			Major	20% GFA increase or more	Same as New	No
Secure Transporter (Medical or Recreational)		New or expansion		IT	DR	No
				TCC	SLU	No
Safety Compliance Facility (Medical or Recreational)		New or expansion		CC, TCC, TOD, C, NOS, IT, or TBA upper floor	DR	No
				TBA ground floor	SLU	No
Microbusiness		New or expansion		TCC, C	DR	No
				TBA, TOD (when at least 500' from a residential zone district)	DR	Yes
				TBA, TOD (when less than 500' from a residential zone district)	SLU	Yes
				IT	DR	No

(SLU = Special Land Uses; DR = Director Review; GNP = Good Neighbor Plan)

3. *Considerations.*

   i. During the approval process regulations for these facilities must take into consideration the use type and type of activities, hours of operation, excessive use of police resources which could reasonably be anticipated to be generated by the proposed establishment, both outside and inside, with particular emphasis upon noise, calls for service, trespass enforcement, parking, vehicular use by patrons, and vandalism and the secondary effects resulting from these uses. More specifically, these may include the hours of operation of the proposed establishment will have upon neighboring properties, with attention to the effects of noise, odors, litter, loitering, parking, and glare from exterior lighting or headlights on nearby residential properties.

   ii. A marihuana facility is not eligible for a state operating license until the Planning Director or Planning Commission grants approval using the defined process, as described in Table 5.9.19.D. and in Article 12, Section 5.12.09. The City Clerk will grant final authorization for the facility upon receipt of the signed resolution of approval.

E. *Separation Distances and Waivers.*

1. *Purpose.*

   i. Marihuana businesses have demonstrated a strong demand for storefront spaces and other business locations. It has been observed that without separation distances between these facilities and certain other land uses marihuana facilities can tend to concentrate in clusters. It is further recognized that these uses which, because of their very nature, have serious objectionable operational characteristics, particularly when concentrated under certain circumstances.

   ii. Special regulations of marihuana facilities have been deemed necessary to limit the intensity and density of this use, and to recognize that separation distances are necessary from certain uses as described in this Section.

2. *Separation Distance Measurements.* The distances described in this subsection shall be computed by measuring a straight line from the nearest property line of the parcel used for the purposes stated in this subsection to the nearest property line of the parcel used as a marihuana facility.

3. *Applicability.* The location and co-location of authorized facilities shall be determined as follows:

   a. The following minimum-distancing regulations shall apply to marihuana provisioning centers and retailers, except for provisioning centers or retailers co-located in an IT-District, pursuant to 5.9.19.E.4. A provisioning center or retailer shall not be located within:

      i. One thousand (1,000) feet of a child care center, or a school;

      ii. One thousand (1,000) feet of a youth center;

      iii. One thousand (1,000) feet of a publicly owned park or playground;

      iv. One thousand (1,000) feet of a religious institution;

      v. One thousand (1,000) feet of a Substance Use Disorder Program licensed by the State of Michigan;

      vi. One thousand (1,000) feet of a Residential Zone District, as defined in this Chapter, as measured along the primary street frontage on which the use is located;

      vii. Two thousand (2,000) feet of another provisioning center or retailer location that is located within a mixed-use commercial zone district and one thousand (1,000) feet of another provisioning center or retailer location that is located within an industrial zone district; and

      viii. One thousand (1,000) feet of another marihuana facility location, other than a provisioning center or retailer.

   b. The following minimum-distancing regulations shall apply to marihuana processors, marihuana growers, and marihuana provisioning centers or retailers co-located in an IT-District pursuant to 5.9.19.E.4. A facility shall not be located within:

      i. One thousand (1,000) feet of a child care center, or a school;

      ii. One thousand (1,000) feet of a youth center;

      iii. One thousand (1,000) feet of a publicly owned park or playground;

      iv. One thousand (1,000) feet of a religious institution;

      v. One thousand (1,000) feet of a Substance Use Disorder Program licensed by the State of Michigan;

vi. One thousand (1,000) feet of a Residential Zone District, as defined in this Chapter, as measured along the primary street frontage on which the use is located; and

vii. One thousand (1,000) feet of another facility location (see 5.9.19.E.4.a.).

c. The following minimum-distancing regulations shall apply to marihuana microbusinesses. A microbusiness shall not be located within:

i. One thousand (1,000) feet of a child care center, or a school;

ii. One thousand (1,000) feet of a youth center;

iii. One thousand (1,000) feet of a publicly owned park or playground;

iv. One thousand (1,000) feet of a religious institution;

v. One thousand (1,000) feet of a Substance Use Disorder Program licensed by the State of Michigan;

vi. Five hundred (500) feet of a Residential Zone District, as defined in this Chapter, as measured along the primary street frontage on which the use is located;

vii. When located in a TCC or C Zone District facility must be five hundred (500) feet of another marihuana facility location; and

viii. When located in a TOD or TBA Zone District facility must one thousand (1,000) feet of another marihuana facility location.

d. Exception. A marihuana facility or marihuana establishment which has received Special Land Use and/or Director Site Plan approval prior to September 29, 2020 shall not be subject to the minimum distancing regulations for a youth center.

4. For the purpose of determining a separation distance described in this Section the following definitions shall apply:

a. A marihuana facility is defined as a location at which the proposed land use has been approved and is effective pursuant to this Section. This does not include Secure Transporters or Safety Compliance Facilities.

b. School is defined as any building, playing field, or property used for school purposes to impart instruction to children in grades kindergarten through 12, when provided by a public, private, denominational, or parochial school, except those buildings used primarily for adult education or college extension courses.

5. An application seeking land use approval at a location does not foreclose the filing or consideration of an application for another location located within a minimum distance requirement outlined in this Section. However, once land use approval has been granted to a marihuana facility no other application within the applicable minimum distance requirement shall be considered.

6. *Sensitive Use Waiver.* Waivers granted by the Planning Commission for a medical marihuana land use are applicable only to that land use, except that any sensitive use waiver granted before September 29, 2020 for a marijuana provisioning center may be applied to the consideration of a marijuana retail use at the same location as part of the Planning Commission Special Land Use consideration and in accordance with the standards of Section 5.12.09.

F. *Co-Location and Stacked Licenses.* There may be only one (1) state operating license per parcel, except co-location and stacked grower licenses are permitted as permitted in subsections 2. and 3. below.

1. Once the initial license has been approved the application of separation distance requirements is not applicable. A facility with a stacked grower license counts as a single grower for the purposes of facility separation distance requirements.
2. In Mixed-Use Commercial Zone Districts co-location is allowed if each license is for a separate use (other than stacked grower licenses), subject to Table 5.9.19.D, all applicable state laws, rules and regulations concerning co-location, including but not limited to, LARA requirements for the separation of facilities.
3. In the IT Industrial-Transportation District, co-location is allowed if each license is for a separate use (other than stacked grower licenses), subject to Table 5.9.19.D, all applicable state laws, rules and regulations concerning co-location, including but not limited to, LARA requirements for the separation of facilities and GFA requirements in this Chapter. Retailers or provisioning centers may be co-located with a grower or processor as long as the retail GFA is not more than twenty-five (25) percent of the combined GFA.

G. *Application Requirements.* Each application shall be accompanied by a detailed site plan and any information necessary to describe the proposed use or change of use. Each request shall be considered a new application, including those for class change, stacking, expansion, transfers or other modifications that require Director Review or Special Land Use approval. If more than one (1) use is being requested for a parcel at the same time (e.g. co-location) only one (1) application shall be processed. Only one (1) application shall be processed per parcel at a time; once and application is submitted, any other applications for the same parcel will be rejected until the first application is decided. The following shall be submitted as part of an application in addition to the requirements of Section 5.12.09. All items must be satisfactorily completed for an application to be considered eligible for review.

1. *Verification.* A signed statement by the applicant indicating the proposed facility type, including if the proposed facility type involves stacked licenses or co-location and the number of licenses.
2. *Consent.* A notarized statement by the property owner that acknowledges use of the property for a marihuana facility and agreement to indemnify, defend and hold harmless the City, its officers, elected officials, employees, and insurers, against all liability, claims or demands arising out of, or in connection to, the operation of a marihuana facility. Written consent shall also include approval of the owner and operator for the City to inspect the facility at any time during normal business hours to ensure compliance with applicable laws and regulations.
3. *LARA.* A copy of official paperwork issued by LARA as follows:
    a. *For grower, processor, and provisioning center applications:* Paperwork indicating that the applicant has successfully completed the prequalification step of the application for the state operating license associated with the proposed land use.
    b. *For secure transporter and safety compliance facility applications:* Paperwork indicating that the applicant has successfully completed the prequalification step of the application for the state operating license associated with the proposed land use, or proof that the applicant has filed such application for the prequalification step with LARA, including all necessary application fees.
    c. *For all marihuana facility applications:* Required LARA marihuana facility plans and security plans shall be submitted. Copies of all documents submitted to LARA in

connection with the initial license application, subsequent renewal applications, or investigations conducted by LARA shall be made available upon request when such information is necessary and reasonably related to the application review.

4. *Proof of Insurance.* Evidence of a valid and effective policy for general liability insurance within minimum limits of one million dollars ($1,000,000.00) per occurrence and a two million dollar ($2,000,000.00) aggregate limit issued from a company licensed to do business in Michigan having an AM Best rating of at least B++ shall be produced that includes the name/s of the insured, effective and expiration dates, and policy number. The City of Grand Rapids and its officials and employees shall be named as additional insureds. The City shall be notified of any cancellation, expiration, reduction in coverage, or other policy changes within five (5) business days of the event.

5. *Building Elevations.* Existing and proposed building elevations shall be provided, including building materials, window calculations, descriptions of glass to be used, and other pertinent information that describes building construction or structural alterations.

6. *Site Plan.* Existing and proposed site changes must be submitted that demonstrate compliance with this Chapter.

7. *Sign and Lighting Plan.* A sign plan for the exterior of the building and any interior signs that will be visible to the public from the public right-of-way shall be submitted with sizes, lighting, and locations. All lighting fixtures visible to the public shall be identified by location, type, and intensity.

8. *Radius.* A map, drawn to scale, containing all child care centers, schools, publicly owned parks or playgrounds, religious institutions, Substance Use Disorder Programs, Residential Districts, and any marihuana facilities within one thousand (1,000) feet of the proposed location.

9. *Crime Prevention Through Environmental Design (CPTED) Plan.* The plan shall address surveillance methods, access control strategies, territorial reinforcement, maintenance, and target hardening; including the experience of customers, employees, and neighbors (residents, offices, businesses, etc.). The GRPD shall review the CPTED Plan prior to acceptance of the application and shall approve the Plan prior to the Planning Commission public hearing.

10. *Operations and Management Plan.* An operations and management plan shall be submitted. The O&M plan should describe security measures in the facility; this may include the movement of the product, methods of storage, cash handling, etc. See also Section 5.9.19.G.

11. *Good Neighbor Plan (GNP).* A GNP shall be submitted in accordance with the requirements of Section 5.12.06.D. and Table 5.9.19.D. An updated GNP may be required for expansion requests and applications for Director Review.

12. *Marihuana Industry Voluntary Equitable Development Agreement (MIVEDA).* A MIVEDA may be voluntarily offered and submitted as part of the application. If submitted as part of an application, the terms offered in the MIVEDA will be required and implemented into the final approval of the project. The contents of the agreement shall be developed within the framework of City Commission policy.

H. *Operations.* Marihuana facilities must be operated in compliance with all applicable state laws, LARA rules, all conditions of the facility's state operating licenses, and all applicable city ordinances. In addition, such facilities shall comply with the following regulations:

1. *Use.* Where located in a Mixed-Use Commercial Zone District, the use shall contribute to the vibrancy and walkability of the district. Uses shall be presented as being for retail purposes, unless ground-floor office use is permitted with administrative approval.

2. *Facility Exterior.* The exterior appearance of a facility must be compatible with surrounding businesses and any descriptions of desired future character, as described in the Master Plan or an Area-Specific Plan.
   a. No marihuana or equipment used in the growing, production, sale, processing, or transport of marihuana can be placed or stored outside of an enclosed building. This Section does not prohibit the placement or storage of motor vehicles outside of an enclosed building so long as money or marihuana is not left in an unattended vehicle.
   b. Site and building lighting shall be sufficient for safety and security, but not cause excessive glare or be designed so as to be construed as advertising with the intent to attract attention. Outdoor lighting will comply with Section 5.2.19.
   c. Drive-through facilities and mobile facilities are prohibited.
3. *Interior of Facility.* A facility will not be designed to attract attention, limit the life of the structure in which the facility is located, or create a nuisance.
   a. Interior construction and design of a facility will not impede the future use of a building for other uses as permitted in the assigned zone district.
   b. Neither marihuana nor marihuana-infused products may be directly visible from the exterior of the facility.
   c. Interior security measures shall not be visible from the public right-of-way (e.g. security shutters, bars, or other methods) during operating business hours.
   d. Interior walls between waiting rooms and display areas shall be forty (40) percent clear glass if the separation wall is thirty (30) feet or less away from the inside of the exterior building wall for the purposes of maintaining an active storefront.
   e. Interior lighting shall not be so bright so as to create a nuisance to neighboring property owners or passersby.
   f. Provisioning centers may not be open to customers between the hours of 9:00 p.m. and 9:00 a.m. The main entry of the business establishment will be wheelchair accessible.
   g. The separation of plant resin by butane extraction or another method that utilizes a substance with a flashpoint below one hundred (100) degrees Fahrenheit shall only be allowed in the IT Industrial-Transportation Zone District.
   h. Ventilation, by-product and waste disposal, and water management (supply and disposal) for the facility will not produce contamination of air, water, or soil; or reduce the expected life of the building due to heat and mold; or create other hazards that may negatively impact the structure and/or surrounding properties.
   i. Air contaminants must be controlled and eliminated by the following methods:
      i. The building must be equipped with an activated air scrubbing and carbon filtration system that eliminates all air contaminants prior to leaving the building. Fan(s) must be sized for cubic feet per minute (CFM) equivalent to the volume of the building (length multiplied by width multiplied by height) divided by three (3). The filter(s) shall be rated for the applicable CFM.
      ii. Air scrubbing and filtration system must be maintained in working order and must be in use at all times. Filters must be changed per manufacturers' recommendation to ensure optimal performance.
      iii. Negative air pressure must be maintained inside the building.
      iv. Doors and windows must remain closed, except for the minimum time length needed to allow people to ingress or egress the building.

v. An Administrative Departure may be granted for an alternative odor control system, in accordance with the Michigan Mechanical Code, if a mechanical engineer licensed in the State of Michigan submits a report that sufficiently demonstrates the alternative system will be equal to or better than the air scrubbing and carbon filtration system otherwise required.

vi. For purposes of this section, "air contaminants" means stationary local sources producing air-borne particulates, heat, odors, fumes, spray, vapors, smoke or gases in such quantities as to be irritating or injurious to health.

I. *Annual fee.* A licensee must pay a registration fee of five thousand dollars ($5,000.00), for each license used within the City to help defray administrative, compliance monitoring and enforcement costs. The holder of stacked or co-located licenses must pay a separate fee in the amount of five thousand dollars ($5,000.00) for each license. The initial annual registration fee(s) must be paid when the application for City approval is submitted. In each subsequent year, registration fees are due on the date of the City license approval. Fees assessed for marihuana land use approvals or licensing in addition to, not in lieu of, any licensing, land use or other permitting requirements of any law, state regulatory agency, or by City ordinance.

J. *Violations.*

1. A marihuana facility shall not be granted a state operating license until the findings and approvals of this Section are completed.

2. Civil infraction. It is unlawful to disobey, neglect, or refuse to comply with any provision of this Chapter. A violation is a municipal civil infraction. Each day the violation continues shall be a separate offense. Notwithstanding any other provision of this ordinance to the contrary, violators shall be subject to fines as determined by the City Commission.

3. Failure to comply with the requirements of this Section shall be considered a violation and may jeopardize the Director or Special Land Use approval and/or license.

4. Consumption. It shall be a violation of this Chapter for smoking, inhalation, or other consumption of marihuana, or for a person to knowingly allow this behavior to take place on or within the premises of any facility. All of the following will give rise to the rebuttable presumption that a person allowed the consumption of marihuana on or within the premises:

   a. The person had control over the premises or the portion of the premises where the marihuana was consumed;

   b. The person knew or reasonably should have known that the marihuana was consumed; and

   c. The person failed to take corrective action.

K. *Loss of State Operating License.* If at any time an authorized facility violates this Chapter or any other applicable City ordinance, the City Commission may request that LARA revoke or refrain from renewing the facility's state operating license.

1. *Revocation of Special Land Use approval.* Any approval granted for a facility may be revoked or suspended for any of the following reasons:

   a. Revocation or suspension of the licensee's authorization to operate by LARA.

   b. A finding by LARA that a rule or regulation has been violated by the licensee. After an automatic revocation of a Special Land Use approval, a new Special Land Use application shall be required for a facility to commence operation at the same location.

2. *Failure to obtain state license.* In addition to the requirements stated in Section 5.12.09.H.(2) or 5.12.16.B.(6), whichever is applicable, if the applicant fails to obtain the necessary license from LARA within the one (1) year approval period or any extension, the Director or Special Land Use approval shall expire.

3. *Cessation of operations.* Cessation of operations for one (1) year, including failure to maintain state licenses necessary to engage in the approved land use is cause for revocation of the Director or Special Land Use approval.

L. *Rights.* The operation of a licensed marihuana facility is a revocable privilege and not a right, in conformance with applicable state law. Nothing in this Chapter is to be construed to grant a property right for an individual or business entity to engage in the use, distribution, cultivation, production, possession, transportation or sale of marihuana as a commercial enterprise. Any individual or business entity which purports to have engaged in these activities either prior to or after the enactment of this amendment without obtaining the required authorization is deemed to be an illegally established use and is not entitled to nonconforming use status. Nothing in this Chapter may be held or construed to grant a vested right, license, permit or privilege to continued operations within the City.

M. *State Law.* Nothing in this Chapter shall be construed in such a manner as to conflict with the MMMA, MMFLA, MRTMA, or other applicable state marihuana law or rules.

N. *Federal Law.*

1. Nothing in this Chapter, or in any companion regulatory provision adopted in any other provision of this Code, is intended to grant, nor shall they be construed as granting, immunity from criminal prosecution for growing, sale, consumption, use, distribution, or possession of marihuana not in strict compliance with that Act and the General Rules.

2. Also, since Federal law is not affected by that Act or the General Rules, nothing in this Chapter, or in any companion regulatory provision adopted in any other provision of this Code, is intended to grant, nor shall they be construed as granting, immunity from criminal prosecution under Federal law. The Michigan Acts do not protect users, caregivers or the owners of properties on which the use of marihuana is occurring from Federal prosecution, or from having their property seized by Federal authorities under the Federal Controlled Substances Act.

O. *Receipt of Applications.* The Planning Department shall accept complete applications for any recreational marihuana land use that requires a license from LARA in the administration of MRTMA beginning on October 20, 2020. Applications for medical-only marihuana land uses shall be accepted on a continuous basis.
(Ord. No. 2018-45, § 8, 7-24-18; Ord. No. 2018-70, § 4, 12-18-18; Ord. No. 2020-21, § 9, 7-7-20; Ord. No. 2020-43, §§ 1—4, 9-29-20)

Sec. 5.9.20. Multiple-Family Dwellings.

A. *Applicability.* The following requirements apply to multiple-family dwellings, not including attached single-family dwellings, within any Residential Zone District, unless otherwise noted.

B. *Location.*

1. Multiple-family dwellings shall not be located on a Neighborhood Residential Street as defined in the City's Street Classification Policy. The Planning Commission may waive this restriction for redevelopment projects.

2. In the TN-LDR Zone District, a multiple-family development of six (6) or fewer units is a permitted use when located on a Link Residential or Network Residential Street.

C. *Open Space.*

1. *Minimum Required Greenspace or Urban Open Space.*

   a. In the MCN and MON district, every residential unit shall have a minimum of sixty-five (65) square feet of greenspace or urban open space and the required open space must be provided on the same lot as the dwelling unit(s) it serves.

   b. The open space area shall be substantially covered with grass, ground cover, shrubs, plants, trees or usable outdoor space open features, such as walkways or patios.

   c. The open space area shall not be less than twelve (12) feet in any dimension.

   d. The open space area must be usable, and cannot be occupied by mechanical equipment, dumpsters or service areas.

2. *Required Rear Yard.* In the MCN and MON districts, the required rear yard open space shall be within the rear yard, at ground level or, if on a terrace or patio, within four (4) feet of ground level. Where structures are in the rear yard setback and do not exceed six (6) feet in height, required open space may be provided directly above the structures.

D. *Driveways and Parking.* No driveways or off-street parking spaces (open or enclosed) shall be within the required rear yard space. Bollards, curbs, wheel stops or other similar features shall be provided to ensure that required rear yard open space is not used for off-street parking, loading or vehicle circulation.
(Ord. No. 2024-20, § 16, 4-23-24)

Sec. 5.9.21. Mineral Extraction.

A. *Exemptions.* The following shall be exempt from the requirements of this Section:

1. The usual and customary balancing of land by cutting and filling on a site in preparation for an approved development project provided that the removal does not exceed two hundred (200) cubic yards.

2. Excavation associated with public streets, sewer or water lines, public utilities, and other similar uses.

3. Any mineral extraction operation that was in existence and otherwise lawfully operated prior to the effective date of this Chapter.

B. *Site Requirements.*

1. Machinery, Building, Mining and Stockpile Setbacks. All machinery, equipment, buildings, structures and activities shall meet the following minimum setbacks. Where more than one (1) setback requirement in this subsection is applicable, the greater setback distance shall apply.

   a. Fifty (50) feet from any lot line;

   b. One hundred (100) feet from a Residential Zone District; and

   c. Three hundred (300) feet from any stream, water body or wetland.

2. *Nuisance or Hazard.* Any noise, odors, smoke, fumes, or dust generated on the site by any digging, excavating, loading or processing operation and borne, or apt to be borne by the wind, shall be confined to prevent a nuisance or hazard on adjacent properties or public streets.

3. *Landscaping.* Berms and landscaping shall be installed at all locations around the site that lack natural screening in accordance with the requirements of Section 5.11.12.

4. The following information shall be provided in addition to information required for a Special Land Use submittal.
    a. A tree inventory on a site map showing the location of all trees eighteen (18) inches in diameter or larger in the area(s) affected by mining shown by numbered dots, with an accompanying database table of corresponding species, caliper size listings, and condition.
    b. A site inventory that contains the identification of all water bodies, wetlands, woodlands, flora, floodplains, floodways, hydric soils, groundwater recharge areas, water table levels and flows, in addition to a written description of the quality, character, and health of the natural features.
    c. Division of the site into a series of cells that illustrate the sequence of the proposed extraction activities and estimated dates for activities.
    d. Reclamation Plan as described in C, below.
    e. Supporting Documentation as described in D, below.

C. *Required Reclamation Plan.* A plan shall be submitted showing how the entire property shall be returned to a developable site for uses that are permitted in the Zone District. The reclamation plan shall include the following:

1. Grading information showing proposed topography at contour intervals of not less than two (2) feet.
2. Schedule of progressive rehabilitation and the proposed date for completing all extraction operations and handling of all spoils and extraneous materials.
3. Concept plan(s) for the proposed end use of the site when restored, drawn to scale, and prepared by a professional engineer, licensed architect, or licensed landscape architect. The concept plan shall include:
    a. The proposed circulation system, including the location of internal roads and connection to the external road network;

b. Delineation of drainage patterns, identification of lakes, floodplains, water bodies, wetlands; and

c. Lot layout and other development information.

D. *Supporting Documentation.*

1. *Haul Route Map.* An area map delineating the haul route to be used for the proposed operation shall be submitted. Haul routes shall not pass through residential areas, except on Regional or Major Streets, and shall be approved by the City's Traffic Engineering Department.

2. *Noise Control Plan.* A study and report prepared by a qualified professional which estimates the noise levels at the lot lines containing the extraction operation and at successive stages of the operation shall be submitted. This plan shall contain mitigation measures to be implemented when noise levels exceed acceptable standards.

3. *Soil Erosion Plan.* A dust and mud control plan shall be included as part of the submittal to the City's Environmental Protection Services Department.

4. *Impact Mitigation Plan.* A plan to mitigate effects resulting from mineral extraction, and the method by which complaints about any aspect of the facility operation or off-site transportation are to be received and resolved shall be submitted. This plan shall set forth the procedures to address complaints regarding adverse effects, such as noise, fugitive dust, ground water changes, wetland loss or other potential effects.

E. *Operation Requirements.*

1. *Hours of Operation.* The Planning Commission shall set the appropriate days and times for extraction and transportation operations based on the potential effects on surrounding properties, traffic conditions on affected roadways, and other similar factors.

2. *Hazardous Materials.* All fuels, chemicals and other hazardous materials to be located on-site shall be noted in the application, including material, quantity, use, and method of primary and secondary containment.

3. *Equipment Storage.* Only equipment or vehicles owned or leased by the operator shall be stored on the site overnight.

4. *Ingress and Egress Roads.* Entrance roads used from any adjacent street shall be hard surfaced with a concrete or bituminous substance for at least one hundred fifty (150) feet from the entrance to the site.

5. *Outside Materials.* No material from outside the site shall be brought in for processing or storage.

6. *Reclamation.*

a. After mining is completed on one specified area, quadrant, or cell, reclamation shall follow progressively in reasonable stages set forth in the plan before mining continues on other areas of the site. Extraction areas which are inactive or expected to be inactive for over one (1) year shall be stabilized and slopes reduced to one (1) vertical foot to four (4) horizontal feet.

b. All rehabilitation activity shall be in compliance with soil erosion and sedimentation requirements of the City, as well as state and federal governments. Ground cover and other plantings to stabilize the soil surface and to beautify the restored area, as well as to protect from erosion and siltation, shall be provided. All seeding and planting materials shall be of native stock or plantings approved by the Director.

c. Reclamation of the entire site shall be completed within nine (9) months of cessation of all mining operations. All plant structures, buildings, stockpiles and equipment shall be removed within the time limit; provided, however, that structures that have a function under the reclamation plan and can be lawfully used under the requirements of the Zone District may be retained.

Sec. 5.9.22. Outdoor Activities (Excluding Vehicle Sale/Lease or Rental).

A. *Principal Use Required.* Outdoor activities shall be accessory to the principal use in the Mixed-Use Commercial Zone Districts.

B. *Parking Lot.* The area used by outdoor activities shall not occupy required vehicle or bicycle parking spaces.

C. *Pedestrian Space.* A minimum pedestrian clear space of five (5) feet is required along all public walkways in accordance with Section 5.10.08. Pedestrian Access and Circulation.

D. *Clear Vision.* Outdoor activities areas shall be outside of clear vision areas.

E. *Encroachment Permit.* An encroachment permit shall be obtained from the City if an outdoor activity area is in the public right-of-way or on public property.

F. *Required Materials.* A site plan and related materials shall be submitted that includes:

1. The location and dimensions of the outdoor activities;
2. Site dimensions and setback distances of all buildings or other planned structures or display areas;
3. Existing public improvements, such as fire hydrants, bus shelters, trees and tree grates and parking meters; and
4. Photographs of the area.

G. *Outdoor Displays.*

1. Items or products shall be displayed no farther than fifteen (15) feet from the commercial building or structure.
2. Items or products shall not be displayed during non-business hours, except in a designated display case.
3. Display areas that abut a Residential Zone District along a side or rear lot line shall be effectively screened from view of the Residential Zone District by a six (6) feet high solid wall or fence, or dense vegetative screen.

H. *Food Preparation and Cooking.* Special Land Use approval is required for outdoor food preparation and cooking, subject to the following requirements.

1. Food preparation shall be directly related to the principal use on the same lot.
2. All equipment shall be on private property.
3. Cooking apparatus must be separated from areas of pedestrian movement.
4. Smoke emissions shall not impair pedestrian or vehicular sight distances or serve as a distraction at street intersections.
5. An Administrative Departure may be granted provided that there are no residential uses located within two hundred (200) feet of the property.

Sec. 5.9.23. Outdoor Recreation Fields.

A. *Loading Areas.* Loading areas shall be shown on the site plan and designed to avoid pedestrian/vehicular conflicts or unnecessary vehicle movements in the public right-of-way.

B. *Alcohol Sales and Entertainment.* The requirements of Section 5.9.05. Alcohol Sales and Consumption and Section 5.9.12. Live Entertainment shall also apply if planned on the premises.

C. *Outdoor Lighting.* Outdoor lighting shall be designed specifically for playfields. Pole height shall be no taller than sixty (60) feet unless evidence is provided by the applicant that a greater height is necessary to manage spillover light from occurring on abutting properties.

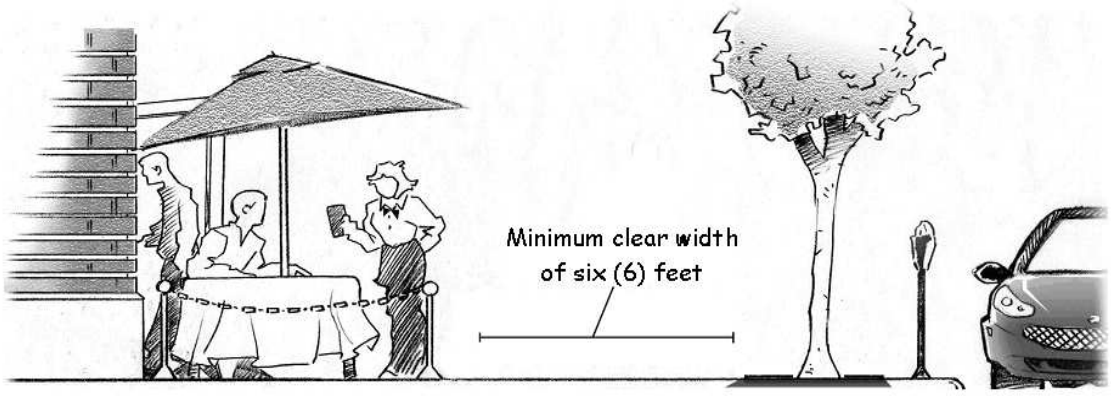
D. *Noise Control.* Any use of loud speakers or other sound amplification, including hours of operation, frequency, duration and level shall receive specific approval by the Planning Commission during its review of the project request.

Sec. 5.9.24. Outdoor Seating Areas.

A. *Accessory Use.* Outdoor seating areas shall be permitted as an accessory use to a principal use such as a restaurant, café or similar establishment.

B. *Application Materials.* A site plan shall be submitted that includes the location and dimensions of the outdoor seating area; proposed type and location of fencing or other separation barriers; proposed dimensioned layout of tables and seating; dimensions of the building; and existing public improvements, such as fire hydrants, bus shelters, trees and tree grates and parking meters. Photographs of the area and specification for proposed outdoor barriers and furniture shall be included.

C. *Pedestrian Space.* A minimum pedestrian clear width of six (6) feet is required along all public walkways at all times, unless waived in accordance with Section 5.10.08.C.2.



5.9.24.C. Pedestrian Space.

D. *Trash Receptacles.* Trash receptacles related to outdoor seating areas shall be provided outside of the public right-of-way during non-business hours.

E. *Dining Areas.* Outdoor dining areas shall be designed so as to be architecturally compatible with existing structures on the subject property.

F. *Canopy Enclosures.* To extend the seasonal use of outdoor dining areas, side walls may be affixed to a canopy extending over the dining area when all of the following requirements are met:

1. The outdoor dining area is located completely on private property and shall not encroach into the City's right-of-way.
2. The use of canopy side walls shall be permitted between September 15 and May 15.
3. Canopy side walls shall be constructed using a base fabric that is 100% acrylic and at least 9.25 ounces per square yard or heavier.
4. Where existing building windows face an outdoor dining area, the canopy side wall shall have an area of clear vinyl located on the same elevation that is equal to the building window being covered by the side wall. In no case shall a canopy side wall facing a public street have less than fifty (50) percent clear vinyl.
5. Side wall window openings shall be made of clear plexiglass or isinglass material of thirty (30) pounds and fabric-welded to the side wall.
6. All side wall frames shall have a powder coated finish and be constructed of a minimum 1"×1" tubular aluminum with a gauge of 8 (0.125 inches) or thicker.
7. Except as required by the building code, signage is not permitted on the exterior canopy side wall.
8. All Building and Fire codes and other local or State Codes and ordinances shall be met.

G. *Hours of Operation.* Outdoor seating shall cease operation by 10:00 p.m. Sunday through Thursday and 11:00 p.m. on Friday and Saturday, unless otherwise approved by the Planning Commission as a Special Land Use.

H. *Approval Process for Outdoor Seating Areas.*

Table 5.9.24.G. Approval Process for Outdoor Seating Areas

Location			Process	Use or Other Regulations
Within public ROW or on public property			Encroachment Permit	5.9.05.
Private property	Front yard		Counter Review	
	Rooftop; or side or rear yard	Not located within 300' of a residential use	Director Review	
		Located within 300' of a residential use	Special Land Use	

I. *Administrative Departure.* An Administrative Departure may be granted in lieu of a Special Land Use for outdoor seating areas dedicated for office or residential uses not available to the general public where in the opinion of the Director, the location would not adversely affect adjacent properties or substantially alter the character of the neighborhood.
(Ord. No. 2019-30, § 2, 7-23-19)

Sec. 5.9.25. Overhead Walkways or Other Connections.

A. Connections between structures that pass over a public street shall be approved by the City Commission, after a recommendation from the Planning Commission.

B. In evaluating a request for a connection, the Planning Commission and City Commission shall evaluate the relationship of the proposed connection to the street, its effect on street level activities and views, and the following requirements.

1. *Clear Glass.* The use of clear glass on the sides of an overhead connection is required and the use of darkened glass is prohibited. The requirements of Section 5.2.14. Building Transparency shall apply.
2. *Exterior Requirements.* The exterior of all overhead connections shall be level. Any sloping or ramped surface between levels shall be accommodated within the bridge structure itself. The exterior height of an overhead connection is limited to that which is height reasonably necessary to provide one (1) level plus any needed slope. No multi-level connections are permitted.
3. *Clear Span.* Overhead connections shall be designed and constructed to provide a clear span across streets, sidewalks and other public rights-of-way.
4. *Minimum Clearance.* There shall be a minimum clearance of sixteen (16) feet below any overhead walkway or connection above a public street or fire lane.

Sec. 5.9.26. Parking Structures.

A. *Design Requirements.* All design requirements of Table 5.6.08.A. Building Elements shall apply.

B. *Ground Level Active Use.*

1. An active use is required at the ground level of the parking facility where the lot abuts a public street. Space for the active use shall occupy a minimum width of seventy-five (75) percent of the structure frontage on at least one (1) primary public street. The Director shall determine the street to which this provision shall apply.

2. For parking structures occupying a corner lot, the required active space on the primary public street shall occupy at least one (1) corner. Active uses shall also turn the corner and occupy at least an additional twenty-five (25) percent of the structure façade along the additional public street frontage.

3. Space for the active uses shall have a minimum depth of thirty (30) feet. Active use areas shall not be used for storage or utility/service space.

Sec. 5.9.27. Recycling Collection Stations.

A. *Materials.* Materials collected at recycling collection points shall be limited to aluminum, copper, plastic, glass, paper materials, and batteries.

B. *Maintenance.* Recycling collection points shall be well maintained and orderly in appearance, such as bins with uniform color, size and shape. The areas immediately surrounding recycling sites shall be kept clean, in good repair and free of materials, rubbish or debris. The exterior of outside collection containers shall remain free of graffiti, chipped or peeling paint, or other signs of abandonment or neglect.

C. *Containers.* Collection containers shall be at least twenty (20) feet from any lot line adjacent to a residential use or Residential Zone District.

D. *Outside Storage.* If stored outside, recyclable materials shall be within weather-tight containers no higher than eight (8) feet.

E. *Screening.* Collection containers and recycling locations shall be screened from external view and may include solid fencing, a vegetative screen or combination thereof, as approved by the Director.

F. *Processing Equipment.* Processing equipment, including crushers and sorting equipment shall not be part of an outside collection operation.

G. *Parking.* A minimum of five (5) parking spaces per recycling collection point or one (1) parking space for each receptacle, whichever is greater, shall be required.

Sec. 5.9.28. Regulated Uses.

A. *Purpose.*

1. In the development and execution of this Section, it is recognized that there are some uses which, because of their very nature, have serious objectionable operational characteristics, particularly when several uses are concentrated under certain circumstances or when one (1) or more are near a Residential Zone District, thereby having a deleterious effect upon the adjacent areas. Special regulation of these uses as itemized in this Article is necessary to ensure that these adverse effects shall not contribute to the blighting or downgrading of the surrounding neighborhood. These controls are for the purpose of preventing a concentration of these uses within any one (1) area, or to prevent deterioration or blighting of a nearby residential neighborhood. These controls do not legitimatize activities, which are prohibited in other Chapters of the City Code.

2. In regulating sexually oriented businesses, it is the purpose of this Section to promote the health, safety, and general welfare of the citizens of the City, and to establish reasonable and uniform regulations to prevent the deleterious secondary effects of sexually oriented businesses. The provisions of this Chapter have neither the purpose nor effect of imposing a limitation or restriction on the content or reasonable access to any communicative materials, including sexually oriented materials. Similarly, it is neither the intent nor effect of this Chapter to restrict or deny access by adults to sexually oriented materials protected by the

First Amendment of the U.S. Constitution, or to deny access by the distributors and exhibitors of sexually oriented entertainment to their intended market. Neither is it the intent nor effect of this Chapter to condone or legitimize the distribution of obscene material.

3. Based on evidence of the adverse secondary effects of adult uses presented in hearings and in reports, and on findings incorporated in the following documents made available to the City Commission, the City Commission finds that sexually oriented businesses as a category of establishments are correlated with harmful secondary effects, and that the reports documented below are reasonably believed to be relevant to the problems that Grand Rapids is seeking to abate and prevent in the future.

   a. Case Law: *Pap's A.M. v. City of Erie*, 529 U.S. 277 (2000); *Thomas v. Chicago Park District*, 122 S. Ct. 775 (2002), *City of Renton v. Playtime Theatres, Inc.*, 475 U.S. 41 (1986), *Young v. American Mini Theatres*, 426 U.S. 50 (1976), *Barnes v. Glen Theatre, Inc.*, 501 U.S. 560 (1991); *California v. LaRue*, 409 U.S. 109 (1972); *DLS, Inc. v. City of Chattanooga*, 107 F.3d 403 (6th Cir. 1997); *East Brooks Books, Inc. v. City of Memphis*, 48 F.3d 220 (6th Cir. 1995); *Broadway Books v. Roberts*, 642 F.Supp. 486 (E.D. Tenn. 1986); *Bright Lights, Inc. v. City of Newport*, 830 F.Supp. 378 (E.D. Ky. 1993); *Richland Bookmart v. Nichols*, 137 F.3d 435 (6th Cir. 1998); *Dèjá vu v. Metro Government*, 1999 U.S. App. LEXIS 535 (6th Cir. 1999); *Bamon Corp. v. City of Dayton*, 7923 F.2d 470 (6th Cir. 1991); *Threesome Entertainment v. Strittmather*, 4 F.Supp.2d 710 (N.D. Ohio 1998); *J.L. Spoons, Inc. v. City of Brunswick*, 49 F.Supp.2d 1032 (N.D. Ohio 1999); *Triplett Grille, Inc. v. City of Akron*, 40 F.3d 129 (6th Cir. 1994); *Nightclubs, Inc. v. City of Paducah*, 202 F.3d 884 (6th Cir. 2000); *O'Connor v. City and County of Denver*, 894 F.2d 1210 (10th Cir. 1990); *Dèjá vu of Nashville, Inc., et al. v. Metropolitan Government of Nashville and Davidson County*, 2001 U.S. App. LEXIS 26007 (6th Cir. Dec. 6, 2001); *Z.J. Gifts D-2, L.L.C. v. City of Aurora*, 136 F.3d 683 (10th Cir. 1998); *Connection Distrib. Co. v. Reno*, 154 F.3d 281 (6th Cir. 1998); *Sundance Assocs. v. Reno*, 139 F.3d 804 (10th Cir. 1998); *American Library Association v. Reno*, 33 F.3d 78 (D.C. Cir. 1994); *American Target Advertising, Inc. v. Giani*, 199 F.3d 1241 (10th Cir. 2000); *Z.J. Gifts D-2, L.L.C. v. City of Aurora*, 136 F.3d 683 (10th Cir. 1998); *ILQ Investments, Inc. v. City of Rochester*, 25 F.3d 1413 (8th Cir. 1994); *Bigg Wolf Discount Video Movie Sales, Inc. v. Montgomery County*, 2002 U.S. Dist. LEXIS 1896 (D. Md., Feb. 6, 2002); *Currence v. Cincinnati*, 2002 U.S. App. LEXIS 1258 (6th Cir., Jan. 24, 2002); and other cases;

   b. Testimony and Reports. Testimony to Congress in 136 Cong. Rec. S 8987; 135 Cong. Rec. S. 14519; 135 Cong. Rec. S 5636; 134 Cong. Rec. E 3750; and reports of secondary effects occurring in and around sexually oriented businesses, including, but not limited to, Phoenix, Arizona - 1979; Minneapolis, Minnesota-1980; Houston, Texas - 1997; Amarillo, Texas; Garden Grove, California - 1991; Los Angeles, California - 1977; Whittier, California - 1978; Austin, Texas - 1986; Seattle, Washington - 1989; Oklahoma City, Oklahoma - 1986; Cleveland, Ohio - and Dallas, Texas - 1997; St. Croix County, Wisconsin - 1993; Bellevue, Washington, - 1998; Newport News, Virginia - 1996; New York Times Square study - 1994; Phoenix, Arizona - 1995-98; and also on findings from the paper entitled "Stripclubs According to Strippers: Exposing Workplace Sexual Violence," by Kelly Holsopple, Program Director, Freedom and Justice Center for Prostitution Resources, Minneapolis, Minnesota, and from "Sexually Oriented Businesses: An Insider's View," by David Sherman, presented to the Michigan House Committee on Ethics and Constitutional Law, Jan. 12, 2000, and the Report of the Attorney General's Working Group On The Regulation Of Sexually Oriented Businesses, (June 6, 1989, State of Minnesota), the City Commission finds that sexually oriented businesses as a category of establishments are

correlated with harmful secondary effects, and that the foregoing reports are reasonably believed to be relevant to the problems that Grand Rapids is seeking to abate and prevent in the future.

B. *Uses Subject to Control.* Uses subject to these controls are as follows:

1. Adult book stores, adult novelty stores, or adult video stores;

2. Adult cabarets;

3. Adult motion picture theaters;

4. Nude or semi-nude model studios; and

5. Sexually oriented businesses.

C. *Definitions.* Certain terms as used in this Section are defined under Regulated Uses in Section 5.16.02, R.

D. *Permitted Uses.* The Regulated Uses listed in Section 5.9.28.B. are permitted if:

1. The use is within a Zone District where the use is specifically permitted;

2. The use is more than five hundred (500) feet from any Residential Zone District, measured to the nearest lot line of the proposed use; and

3. The use is not within one thousand (1,000) feet of one (1) other Regulated Use, measured from the nearest lot line to the nearest lot line on a straight-line basis.

E. *Variance for Proximity to Residential or Other Regulated Use.*

1. If the proposed use is within five hundred (500) feet of a Residential Zone District, or within one thousand (1,000) feet of any other Regulated Use, the Board of Zoning Appeals may grant a variance for the distance restricts pursuant to the standards provided in Section 5.13.04.B. and pursuant to the procedures in 2., below.

2. A public hearing held in accordance with the requirements of the Zoning Act, except that notice shall be served on all owners and occupants of all property within five hundred (500) feet of the proposed use at least thirty (30) days prior to the Board of Zoning Appeals hearing on the matter.

3. Limit on Reapplication. No application which has been denied wholly or in part shall be resubmitted for a period of one (1) year from the date of said denial, except on the grounds of new evidence found valid by the Board of Zoning Appeals.

F. *Expansion and Discontinuance of Use.*

1. Establishments where uses are subject to the distance requirements of this Section shall not be expanded in any manner without first applying for and receiving a variance from the Board of Zoning Appeals as provided in E., above. Further, if a use subject to the distance requirements of this Section is discontinued for more than thirty (30) days, the use may not be reestablished without applying for and receiving the approval of the Board of Zoning Appeals as provided in E., above.

2. Nothing in this Section shall prevent the reconstruction, repairing, or rebuilding and continued use of any building or structure the uses of which make it subject to the controls of this Section which is damaged by fire, collapse, explosion or act of God.

Sec. 5.9.29. Residential Rehabilitation Facilities.

Any residential rehabilitation facility having thirteen (13) to twenty (20) adults shall be at least one thousand five hundred (1,500) feet from any other residential rehabilitation facility, transitional or emergency shelter, single room occupancy dwelling, or small or large adult foster care facility. The facility shall comply with all State of Michigan requirements, as applicable.

Sec. 5.9.30. Rooming and Boarding Houses.

A. There shall be not more than four (4) rooms occupied by tenants, provided that the Planning Commission may permit additional rooms on lots exceeding ten thousand (10,000) square feet as determined by the Planning Commission considering the following conditions.

1. Parking meeting the requirements of Article 10 and parking lot landscaping meeting the requirements of Sections 5.11.11 and 5.11.12 shall be provided.
2. The Planning Commission shall consider the presence of other similar uses in the immediate vicinity to determine if permitting additional rooms would have the effect of adversely affecting the character of the area.

B. Occupancy by tenants shall generally be for expected durations longer than one (1) week.

C. Independent Cooking. Individual rooms shall not contain independent cooking facilities. This requirement shall not prohibit the serving of meals to tenants or the use of a single kitchen by tenants.

D. No more than one (1) individual shall occupy a room.

E. Owner Occupied. Rooming and boarding houses shall be owner occupied and serve as the principal residence of the owner.

Sec. 5.9.31. Self-Storage Facilities.

A. Minimum site area shall be a minimum of three (3) acres.

B. The facility shall front on and have direct ingress and egress from a Regional or Major Street, or through a shared access drive off that street.

C. All buildings shall be set back at least twenty-five (25) feet from any lot line.

D. Landscape Requirements. The front yard shall be covered with grass or other ground cover or plant material, and with hedges and trees planted in a manner that effectively screens the facility from public view. In addition, any yard which is adjacent to a Residential Zone District shall have a landscape buffer per Section 5.11.12., provided the buffer is at least twenty (20) feet wide.

E. The perimeter of the entire site shall be secured by a six (6) foot ornamental fence or solid wall.

F. No storage of combustible or flammable liquids or fibers, or explosive or toxic materials shall be permitted.

G. Outdoor Storage of Vehicles. Outdoor storage of motor vehicles, recreational vehicles, trailers, campers, boats, and other items of value shall be separately approved as a Special Land Use.

H. One (1) dwelling unit for on-site manager may be provided.

I. There shall be no commercial enterprise or activity on the premises, other than the self-storage units and a related rental office.

J. TN-CC and TN-TCC Zone Districts.

1. All self-storage activities shall be contained within a single building and conducted exclusively indoors. Individual storage units may be accessed from inside the building only.
2. The lot area and setback regulations of Article 6 and landscaping regulation of Article 11 shall apply.
3. The requirement for a location on a Regional or Major Street may be waived by the Planning Commission if the facility will occupy an existing building and is otherwise found to be an appropriate location meeting the Special Land Use review standards.

Sec. 5.9.32. Single Room Occupancy (SRO).

A. *Separation Requirement.* Any SRO having thirteen (13) or more units shall be at least one thousand five hundred (1,500) feet from any other SRO, residential rehabilitation facility, transitional or emergency shelter, or small or large adult foster care facility.

B. *Continuous Tenancy.* At least ninety (90) percent of the SRO units shall be occupied by the same tenants for a continuous period of at least ninety (90) days.

C. *Size Limitation.* An SRO unit shall be limited to one (1) habitable room of three hundred (300) square feet or less, exclusive of up to seventy (70) square feet of floor area devoted to kitchen use.

D. *Good Neighbor Plan.* When a Special Land Use is required, a Good Neighbor Plan shall be submitted in accordance with the requirements of Section 5.12.06.D.
(Ord. No. 2024-20, § 17, 4-23-24)

Sec. 5.9.33. Social or Service Clubs; Motorcycle Clubs.

A. *Office Space.* Up to twenty-five (25) percent the gross floor area of the building or two-thousand (2,000) square feet, whichever is greater, may be used for office space.

B. *Management of Club.* The affairs and management of such social or service club shall be conducted by a board of directors, executive committee, or similar body chosen by the members at their annual meeting.

C. *Alcoholic Beverages.* The sale or consumption of beer, wine or other alcoholic beverages to members and their guests must comply with Section 5.9.05. This activity shall be secondary and incidental to the promotion of some other objective of the organization, and further provided that the sale of alcoholic beverages shall comply with all applicable federal, state and municipal laws, rules, regulations, orders, permits and licenses.

D. *Motorcycle Club Review Standards.* These review standards shall be used by the Planning Commission in its consideration of request for a motorcycle club, which by its nature, may adversely affect surrounding property owners if improperly located. The applicant shall also provide a written statement that responds to the following:

1. Given the character, location, development trends and other aspects of the neighborhood in which the proposed club is requested, it is demonstrated that the neighborhood is underserved by such a use and that the addition or change in use will demonstrably be an asset to the neighborhood.
2. The use or change in use as constructed and operated by the applicant is compatible with the neighborhood in which it will be located.

3. Adjacent or nearby parks (e.g., public parks or recreation centers), playgrounds (e.g., public or private), religious institutions, or schools will not be adversely affected.
4. The use or change in use will not have any, or minimal, negative secondary effects on the neighborhood. Negative secondary effects can include the following impacts:
   a. Vehicular and pedestrian traffic, particularly during late night or early morning hours that might disturb area residents.
   b. Noise, odors, or lights that emanate beyond the site's boundaries onto property in the area on which there are residential dwellings.
   c. Excessive numbers of persons gathering outside the establishment.
   d. Peak hours of use that add to congestion or other negative effects in the neighborhood.
   e. Fighting, brawling, outside urination or other behavior that can accompany intoxication.

Sec. 5.9.34. Social Service Facilities.

Office Uses. In Residential Zone Districts, up to twenty-five (25) percent of the gross floor area of the building or two thousand (2,000) square feet, whichever is greater, may be used for office space.

Sec. 5.9.35. Temporary Structures and Uses.

A. *Purpose, Applicability, Applications, Permits.*

1. This Section allows for the establishment of certain temporary uses or special events of limited duration, provided that the uses comply with the requirements of this Section and are discontinued upon the expiration of an approved time period. Any extension of the time period shall only be granted upon a finding that the need for the extension is due to circumstances beyond the immediate control of the applicant and applied for in writing prior to the expiration of the temporary use permit.
2. *Application.* The Director may issue a permit for temporary structures and uses based upon receipt of a permit fee as applicable and a complete application, including:
   a. A site plan, showing building locations, use areas, assigned parking areas and other relevant information;
   b. A written statement demonstrating compliance with the requirements of this Section;
   c. Written permission of the owner(s) for the activity on that property; and
   d. Any materials required by this Section for specific uses, structures, activities, and events.
3. *Permits.*
   a. Encroachment Permit. Any structures or activities planning to use public rights-of-way shall require an encroachment permit from the City's Engineering Department.
   b. The temporary structures and uses permit shall be in addition to other licenses, permits or approvals otherwise required by any governmental entity.
   c. A building permit shall be required where the temporary use includes a tent exceeding two hundred (200) square feet.
   d. Permit and inspection fees shall be set by resolution of the City Commission.
4. *Conditions of Approval.* The Director may attach conditions to the permit that would minimize disturbance to and compatibility with the area and surrounding land uses, and/or protect the public health, safety and welfare.

5. *Performance Guarantee.* The Director may require a performance guarantee meeting the requirements of Section 5.14.04 to insure compliance with this Chapter and all other applicable City ordinances, standards, rules and regulations.

6. Table 5.9.35.A shall also be used to govern the requirements for temporary structures and uses.

Table 5.9.35.A. Temporary Structures and Uses

Structure or Use	Section	Duration	Permit Required
Construction-related temporary structures	5.9.35.C.	1 year	Building and Temporary Use Permits
Temporary housing	5.9.35.D.	3 months	Building and Temporary Use Permits
Temporary storage in a portable commercial shipping container	5.9.35.E.	30 days per calendar year	None
Temporary portable residential storage containers		30 days, 3 times in 12 months	None
Temporary structures (as part of an institutional use)	5.9.35.F.	2 years	Building and Temporary Use Permit
Grand openings, parking lot sales, sidewalk sales and clearance sales	5.9.35.G.	14 days, 2 times in 12 months	Temporary Use Permit
Assembly and fundraising activities	5.9.35.H.	4 days, 4 times in 12 months	Temporary Use Permit
Outdoor seasonal sales	5.9.35.I.	45 days, 2 times in 12 months	Temporary Use Permit
Farmer's markets		See 5.9.35.I.2.	
Temporary surface parking lots	5.9.35.K.	2 years	Temporary Use Permit
Garage sales	5.9.35.L.	3 days, 2 times in 12 months	None

B. *General Requirements.*

1. *Public Rights-of-Way or Property.* Temporary uses, structures or special events that occur in the public right-of-way or other public land shall be governed by applicable City policies.

2. *Private Property.* Temporary uses, structures or special events on private property shall:

   a. Not conflict with the activities related to the principal uses taking place on the site;

   b. Not be detrimental to property or improvements in the surrounding area;

   c. Not have substantial adverse effects or noise effects on nearby residential neighborhoods or to the public health, safety, or general welfare;

   d. Not include permanent alterations to a structure or the site;

   e. Comply with any applicable conditions of any prior zoning approvals that apply to a site or use on the site;

   f. Not interfere with the normal operations of any permanent use on the property;

g. Contain sufficient land area to allow the temporary use, structure, or special event to occur, as well as adequate land to accommodate the parking and traffic movement associated with the temporary use; and

h. Except as provided in Section 5.9.35.J., not permit transient merchant activities or temporary seasonal retail sales on a vacant lot.

3. Temporary structures, uses and special events shall not involve the construction or alteration of any permanent building or structure.

4. *Temporary Structures.* All temporary structures including, but not limited to, greenhouses, trailers, mobile homes, etc., shall conform to the Zone District setback requirements, unless otherwise specified in the approval.

5. Permitted signs are regulated by Article 15 Signs.

6. *Sanitary Facilities.* Sanitary facilities, either portable or permanent, shall be made available to all employees, attendants and participants during hours of operation. If portable, they shall be maintained to minimize odors and to remain fully functional.

7. *Parking.* The number of parking spaces required for the temporary use or building shall be determined by the Director. Required parking spaces for a permanent use or building on the proposed site shall be considered in the parking calculation. No required parking spaces may be occupied by any activity related to the temporary use.

8. *Clean Up and Restoration.* All sites shall be completely cleaned of debris and temporary structures or equipment within five (5) days of the termination of the temporary use, including, but not limited to: trash receptacles, signs, stands, poles, electrical wiring or any other fixtures and appurtenances or equipment connected therewith. The applicant shall restore the site to its original condition or better, unless the area is intended for new construction within a reasonable time following the temporary event.

C. *Construction-Related Temporary Structures.*

1. The following temporary construction-related buildings and uses are permitted, subject to the following requirements.

a. *Construction Trailer or Construction Yard.* The construction trailer or construction yard shall be incidental and necessary to construction at the site. Any structures or area shall be removed within thirty (30) days after a Final Occupancy permit has been issued, regardless of any time remaining on the building permit.

b. *Temporary Sale Office or Model Home.* The temporary sales office or model home shall be incidental to and necessary for, and directly related to, the sale or rental of real property in a new subdivision or housing project. The temporary office or model home shall be removed when fifty (50) percent of the lots or units have been sold or leased, regardless of any time remaining on the permit or extension of the permit.

2. Permits for the same location and for the same purpose may be renewed by the Director for one (1) successive period of up to twelve (12) calendar months beyond what is permitted in Table 5.9.35.A.

D. *Temporary Housing.*

1. Temporary housing, in the form of a manufactured house, may be placed upon a site previously occupied by a detached single-family or two-family dwelling for the purposes of housing the intended occupants of a new dwelling, subject to the following requirements:

2. *Construction.* The former dwelling has been destroyed or otherwise rendered uninhabitable for a minimum of thirty (30) days, and a dwelling has been approved by the City for either reconstruction or replacement.

3. *Building and Housing Codes.* The type and condition of the temporary housing is permitted under applicable building or housing code requirements.

4. *Location.* The temporary housing is located in the rear yard. An Administrative Departure may be permitted for other locations where there is no feasible location in the rear yard provided that adjacent properties are not adversely affected.

5. *Extension Request.* One (1) time extension for an additional three (3) months may be permitted if requested at least thirty (30) days prior to the expiration of the temporary use permit.

E. *Temporary Storage.* Temporary storage containers shall be permitted to serve an approved existing use, subject to the following requirements.

1. *Portable Shipping Containers - Commercial.*

   a. *Location.* The container shall not be in the front yard, or within ten (10) feet of any lot line or structure on the lot or on an adjacent lot.

   b. *Access.* The container shall not impede ingress, egress, or emergency access.

2. *Temporary Portable Storage Container - Residential.*

   a. *Size.* The maximum allowable size is one hundred fifty (150) square feet with an overall length not to exceed sixteen (16) feet.

   b. *Clear Vision.* Clear vision areas shall be maintained at all times, and portable storage containers shall not obstruct the flow of pedestrian or vehicular traffic.

   c. *Location.* Containers shall be placed on a concrete or asphalt surface no closer than ten (10) feet from the front lot line.

   d. *Condition.* All containers in use on a lot shall be free from rust, peeling paint, and other visible forms of deterioration.

   e. *Number.* Up to two (2) containers may be on the same lot at the same time, provided the total maximum allowable sized is not exceeded.

F. *Temporary Structures - Institutional Use.* The following requirements shall apply to temporary institutional structures, such as portable classrooms.

1. *Principal Use.* The City shall have approved the principal use.

2. *Location.* The temporary structure shall:

   a. Not be in the front yard;

   b. Comply with side and rear yard requirements of the Zone District, but in no case be less than twenty-five (25) feet from the rear lot line abutting a residential use;

   c. Be at least six (6) feet from any structure; and

   d. Not be within any required off-street parking area or required landscaped area.

3. *Screening.* Under-skirting for the structure shall be used and landscaping provided around the perimeter of the base where visible from other developed lots or public rights-of-way.

4. *Extensions.* Extensions may be granted for up to two (2) additional one (1) year periods, upon approval of a written request submitted at least thirty (30) days prior to the expiration of the temporary use permit.

G. *Temporary Outdoor Sales and Services.* Grand openings, parking lot sales, sidewalk sales, clearance sales, special events and holiday celebrations including the temporary outdoor sale of merchandise, goods, materials or services may occur in a Mixed-Use Commercial Zone District, subject to the following requirements.

1. *Accessory Use.* Outdoor temporary sales or services shall be an accessory to an allowed use on the same lot.
2. *Parking and Access.* A designated off-street parking area adequate to serve the activity shall be provided where it does not interrupt or hamper the flow of traffic on public streets, impede access to the principal use, pedestrian movements, or emergency vehicle access.
3. *Area of Operation.* The area of operation for all activities associated with outdoor temporary sales or service shall:
    a. Not exceed eight hundred (800) square feet and no single dimension shall exceed forty (40) linear feet; and
    b. Be located on an asphalt, concrete or equivalent surface.
4. *Prohibited Sales.* Sales of merchandise or the provision of services unrelated to the principal use unless operated by, or in support of, or as a fundraiser for a nonprofit organization.

H. *Assembly and Fundraising Activities.* Assembly activities (e.g., carnivals, fairs, rodeos, sport events, concerts, and shows) or fundraising activities that benefit a community service group or non-profit organization (e.g. car washes, bake sales, auctions) are permitted in Residential Zone Districts on properties approved for educational, governmental, or institutional uses and in Mixed-Use Commercial Zone Districts, subject to the following requirements:

1. *Parking and Access.* A designated off-street parking area shall be provided adequate to serve the activity where it does not interrupt the flow of traffic on public streets; or impede access to the principal use, adjacent uses, pedestrian movements, or emergency vehicle access.
2. *Hours of Operation.* In all Residential Zone Districts, hours of operation shall start no earlier than 8:00 a.m. and end no later than 8:00 p.m., except on Fridays and Saturdays the hours may extend to 10:00 p.m. Hours of operation in all other districts shall operate within the hours of 8:00 a.m. to 11:00 p.m. unless otherwise approved by the Director.
3. *Setup/Takedown.* The duration of use provided in Table 5.9.35.A. shall include setup and takedown activities.
4. *Fundraising Agreement.* Goods or services being sold by a commercial entity for a fundraising event shall submit evidence of an event agreement with the community service group or non-profit organization with the permit application.

I. *Outdoor Seasonal Sales and Farmers' Markets.* The outdoor sale of agricultural products is permitted, subject to the following definitions and requirements:

1. *Seasonal Sales.*
    a. Seasonal sales are permitted in mixed-use commercial Zone Districts, and in all other Zone Districts on lots approved for educational, government or institutional uses.
    b. A minimum pedestrian walkway of at least five (5) feet in width along the front of the display/sales areas shall be maintained clear of obstructions.
2. *Farmers' Markets.*
    a. Farmers' markets are permitted in mixed-use commercial Zone Districts, and in all other Zone Districts on properties approved for educational, government or institutional uses.

b. Duration.

i. In Mixed-Use Commercial Zone Districts, the maximum duration of a farmers' market shall be nine (9) consecutive months.

ii. In all other Zone Districts, the maximum duration of the farmers' market shall be nine (9) total months in any twelve (12) month period.

iii. Activity is limited to three (3) days per week between 7:00 a.m. and 7:00 p.m. Expansion of the number of days or hours of operation may be approved as a Special Land Use.

c. Multiple vendors are permitted with items available for sale limited to products obtained primarily through farming or agricultural activities such as:

i. Farm produce (e.g. fruits, vegetables, grains, nuts, fresh flowers and bedding plants, trees and forest products, Christmas trees).

ii. Fresh meat, eggs honey and dairy products.

iii. Foodstuffs produced by the vendor or a family member (e.g. cheese, baked goods, etc.)

iv. Hand-made craft items (e.g. jewelry, pottery, wearing apparel, fine arts, etc.) provided that the sales area not to exceed twenty (20) percent of the farmers' market total sales area.

d. A minimum pedestrian walkway of at least five (5) feet in width along the front of the display/sales areas shall be maintained clear of obstructions.

3. *Food Preparation or Cooking.* With the exception of the TN-CC Zone District, outdoor food preparation or cooking is prohibited within two hundred (200) feet of a residential use. Cooking apparatus shall be separated from areas of pedestrian movement, and smoke emissions shall not impair pedestrian or vehicular sight distances or serve as a distraction at street intersections.

4. *Temporary Use Permit.* Prior to the opening of a seasonal sales operation or a farmers' market, an application for a Temporary Use Permit shall be submitted for review. In addition to a completed application and application fee, the following materials are required:

a. A site plan that includes the location and dimensions of the sales and parking areas; site dimensions and floor areas of any buildings or tents; and existing public improvements, such as fire hydrants, bus shelters, trees and tree grates and parking meters.

b. Photographs of the planned sales and parking areas.

c. Written rules of operation or management plan, including days and hours of operation, period of time to be in operation, and a list of products to be sold.

J. *Temporary Surface Parking Lots.* Temporary surface parking lots are permitted in any Mixed-Use Commercial District pending the construction of a development project, subject to the following requirements and conditions.

1. *Zoning Approval.* Evidence of a zoning approval under the provisions of this Chapter for a new development shall be submitted with the temporary use permit.

2. *Site Plan.* A site plan shall be submitted that includes site dimensions, existing public improvements, and proposed site layout of the temporary parking lot. Except as noted in 3., below, interior parking lot landscape, pedestrian and bicycle parking requirements shall not be applicable to temporary surface parking lots.

3. *Screening.* Minimum parking lot screening requirements of Section 5.11.11 shall apply if the parking lot will be used for longer than six (6) months, including any approved extension.

4. *Phasing Description.* A description of the various phases of the development project with anticipated dates of completion shall be submitted as part of the request.
5. *Extension.* The permitted duration of this use may be renewed for up to one (1) additional year, upon approval of a written request submitted to the Director at least thirty (30) days prior to the expiration of the temporary use permit.
6. *Removal.* If the project for which the temporary parking lot fails to be initiated and substantially completed, the Director may require the immediate removal of the parking area. A performance guarantee shall be submitted following approval of the temporary parking lot in an amount sufficient to remove the parking area and restore the site.

K. *Garage Sales.*

1. Garage sales are exempt from the permit requirements in this Section, provided that they meet the duration requirements of Table 5.9.35.A.
2. Garages/basement/yard sales operating beyond the duration requirements of Table 5.9.35.A. are considered commercial uses.
3. Items offered for sale shall be limited to personal property not acquired for resale by the residents of the lot where the sale occurs.

(Ord. No. 2019-16, §§ 5, 6, 4-23-19; Ord. No. 2024-20, § 18, 4-23-24)

Sec. 5.9.36. Transitional or Emergency Shelters.

A. In a residential zone district, any transitional or emergency shelter having seven (7) or more adults shall:

1. Be located on a Network Residential or Crosstown Connector Street as identified by the Vital Streets Plan, unless located on a lot of one (1) acre or more in area.
2. Be located within two thousand five hundred (2,500) feet of a transit stop.

B. Any transitional or emergency shelter having thirteen (13) or more adults shall be at least one thousand five hundred (1,500) feet from any other transitional or emergency shelter, residential rehabilitation facility, single room occupancy dwelling, or small or large adult foster care facility.

C. Good Neighbor Plan. A Good Neighbor Plan shall be submitted in accordance with the requirements of Section 5.12.06.D.

(Ord. No. 2024-20, § 17, 4-23-24)

Sec. 5.9.37. Reserved.

Sec. 5.9.38. Vehicle Fuel Stations (without vehicle service or repair, may include a convenience store or other retail use).

A. *Location of Equipment and Structures.* Fuel pumps, pump islands, detached canopies, compressed air connections, and similar equipment shall be set back at least fifteen (15) feet from a street right-of-way and twenty (20) feet from all lot lines adjacent to a residential use or Zone District.

B. *Landscape Buffer.* When gasoline or fuel sales are adjacent to a residential use or Zone District, a landscape buffer between uses shall be provided as required in Section 5.11.12.

C. *Outdoor Displays.* Outdoor displays of merchandise shall be directly adjacent to the front of the building and shall be limited to typical service station merchandise (e.g. road salt, vehicle fluids, beverages, and ice).

D. *Cash Register Viewing Window.* The cash register shall be clearly visible from the street. The viewing window shall have a contiguous area of at least fifteen (15) square feet of clear glass and maintain an unobstructed view into the building.

E. *Single-Bay Car Wash.* A single-bay car wash may be permitted as an accessory use, subject to the following development and design standards:

1. The entrance to the car wash bay shall be sited so as not to be readily visible from an adjacent primary street, as determined by the Director.
2. The car wash bay shall accommodate only one (1) vehicle at a time.
3. The car wash bay shall be outside of all required setback and landscape areas.
4. In addition to any other off-street parking requirements or stacking requirements of Section 5.10.03.F.8., the lot shall contain adequate space to allow a minimum of three (3) stacking spaces for car wash services and shall be located to prevent vehicles from stacking into or creating a hazard to traffic flow on the public street or create obstructions to pedestrian movements on sidewalks.
5. Where a car wash is adjacent to a residential use or Zone District, the hours of operation shall be limited to 8:00 a.m. through 10:00 p.m.

F. *Fuel Pump Canopy.* A canopy over the fuel pumps may be erected subject to the requirements of Section 5.2.18.

G. See also Section 5.9.37. where vehicle repair or service is provided.

H. *Principal Building Placement.* It is recognized that the traditional development pattern of vehicle fuel stations commonly places the primary building behind the fueling pumps and set back off street, which is contrary to the Site Layout and Building placement standards of TN and MCN zone districts. Therefore, in evaluating a site plan for a vehicle fuel station, the Planning Commission may modify the Required Building Line (RBL) of Table 5.6.07.A for the principal building provided that the Planning Commission determines that the following conditions have been met:

1. The Plan meets the intent of the placemaking elements of the Zone District; and
2. That new buildings relate well to each other, existing buildings and the abutting street; and
3. The plan maintains or creates a continuous street wall that contributes to the unique character of the Zone District; and
4. The plan consolidates driveways on primary streets and encourages vehicular access from secondary streets; and
5. Provides adequate sidewalk space for pedestrian access and comfort.

(Ord. No. 2019-30, § 3, 7-23-19)

Sec. 5.9.39. Vehicle Sales/Leasing and Automobile Rental.

A. The requirements of Section 5.9.40. Vehicle Service or Repair shall apply when these services are provided.

B. *Minimum Lot Size.* The site shall be a minimum of one (1) acre when vehicles are displayed outdoors.

C. *Open Drive Aisles.* Outdoor display and storage areas of vehicles shall maintain open drive aisles to allow free movement of vehicles.

D. *Parking.* All vehicles waiting to be picked up by the vehicle driver shall be kept in approved parking spaces on site.

E. *Licensing.* Vehicle licensing requirements of the State of Michigan shall be followed in the review and approval of vehicle sales requests.

F. *Flag or Pennant.* One (1) flag or pennant may be displayed on each vehicle for sale or lease. The maximum size of each flag or pennant shall not exceed twelve (12) inches × eighteen (18) inches.

G. *State Licenses.* Table 5.9.36 further clarifies the Use Tables 5.6.06.B. and 5.7.04.B. A "P" indicates a Permitted Use; an "S" indicates a Special Land Use; an "X" indicates the use is not allowed in that District.

Table 5.9.39. Michigan Vehicle License Classes Use Provisions

	TN			TN, MCN, MON	MCN, MON		SD
Class	**CC**	**TCC**	**TBA**	**TOD**	**C**	**NOS**	**IT**
Class A (New)	X	X	X	X	P	X	X
Class B (Used)	X	X	X	X	S	X	X
Class C (Used Parts)	X	X	X	X	S	X	P
Class D (Broker Office Only)	P	P	P	P	P	P	P
Class D (Broker Auction Site)	X	X	X	X	X	X	P
Class E (Transport)	X	X	X	X	X	X	P
Class F (Scrap Processor)	X	X	X	X	X	X	S
Class G (Salvage)	X	S	X	X	X	X	S
Class R (Recycler)	X	S	X	X	X	X	S
Class W (Wholesaler)	X	S	X	X	X	X	P

Sec. 5.9.40. Vehicle Service or Repair.

A. This Section applies to uses in the Mixed-Use Commercial Zone Districts. Repair and storage of vehicles in Residential Zone Districts shall be in accordance with the requirements of Section 5.2.12.

B. This Section shall be used in conjunction with Section 5.9.38. Vehicle Fuel Stations where vehicle repair or service is provided.

C. The site shall be a minimum of one (1) acre.

D. Screening.

1. Vehicle service bay openings shall be oriented away from any public street or Residential Zone District to minimize the view of the vehicle service area and to limit noise effects.
2. An Administrative Departure from this requirement may be granted to permit berms, evergreen shrubs, evergreen trees, masonry walls, solid wooden fencing, or any combination of these to minimize the bay openings from view.

E. Enclosed Activities.

1. All repair and maintenance activities shall be performed entirely within an enclosed building or structure.

2. Enclosed Equipment. Hydraulic hoists, pits, and all lubrications, greasing, automobile washing, or repairing equipment shall be enclosed within a building. When any building or portion of a building housing this equipment shares a lot line with a residential use or Zone District, the closest adjacent building wall shall consist of a solid wall with no openings other than those required by applicable building codes.

3. Enclosed Storage. All vehicle parts, dismantled vehicles (non-salvage or wrecking), and similar materials, and all discarded materials such as tires, cans and drums shall be stored within an enclosed building during all hours.

F. Storage of Vehicles.

1. Approved Parking Spaces. All vehicles awaiting repair or pick up by the vehicle owner shall be kept in approved parking spaces on site.

2. Only those damaged or wrecked vehicles awaiting repair shall be stored on site, provided that a maximum of two (2) used vehicles displayed for sale shall be permitted as an accessory use, subject to Director Review.

G. A Vehicle Service or Repair Facility shall be registered and licensed as required under the Motor Vehicle Service and Repair Act, Act 300 of 1974, MCL 257.1302a, as amended.

Sec. 5.9.41. Wireless Communication Facilities.

A. *Purpose and Intent.* The purpose of this Section is to establish guidelines for the siting of towers and antennas for wireless communication uses. The intent of this Section is to:

1. Encourage the location of towers in non-residential areas and minimize the total number of towers throughout the city; and
2. Promote the joint use of new and existing tower sites to minimize adverse visual impact of towers and antennas through careful design, siting, landscaping, and camouflaging techniques; and
3. Enhance the ability of the providers of wireless communications services to provide their services to the community quickly, effectively, and efficiently.

B. *Definitions.* Definitions used in this Section are under Wireless Communication Facilities in Section 5.16.02.W.

C. *Applicability.*

1. This Section applies to all construction and expansion of Wireless Communication Facilities.
2. Amateur Radio and Receive-Only Antennas. This Section shall not govern any tower, or the installation of any antenna, that is less than seventy (70) feet high, including building height, and is owned and operated by a federally-licensed amateur radio station operator or is used exclusively for receive-only antennas.

D. *Principal or Accessory Use.* Towers shall be installed on a conforming lot either as a principal use, or as an accessory use related to the principal use.

E. *Inventory of Existing Sites.*

1. An applicant for a tower and/or an antenna shall provide an inventory of its existing towers, antennas, or sites approved for towers and antennas that are within the city, or outside of the city serving areas within the city. The inventory shall include latitudinal and longitudinal location coordinates and the coverage area of the proposed tower or antenna, whether within or near the City's jurisdiction, including specific information about the design and height of each tower.
2. The City may share this information, provided that the City is not, by sharing that information, in any way representing or warranting that these sites are available or suitable for tower or antenna construction.

F. *Availability of Suitable Existing Towers or Other Structures.* No new tower shall be permitted unless the applicant demonstrates to the reasonable satisfaction of the Planning Commission that no existing tower or structure can accommodate the applicant's proposed antenna. Evidence may consist of any of the following.

1. No existing towers or structures are within the geographic area required to meet the applicant's engineering and coverage requirements.
2. Existing towers or structures are not of sufficient height to meet the applicant's engineering requirements.
3. Existing towers or structures do not have sufficient structural strength to support the applicant's proposed antenna and related equipment.

4. The applicant's proposed antenna would cause electromagnetic interference with the antenna(s) on the existing towers or structures, or the antenna(s) on the existing towers or structures would cause interference with the applicant's proposed antenna.

5. The fees, costs, or contractual provisions required by the owner in order to share an existing tower or structure or to adapt an existing tower or structure for sharing are unreasonable, meaning when the costs exceed new tower development.

6. The applicant demonstrates that there are other limiting factors that render existing towers and structures unsuitable.

G. *Measurement.* For purposes of measurement, tower and antenna setbacks and separation distances shall be applied to all facilities whether inside or outside the city's boundaries.

H. *Setbacks.*

1. Towers shall be located so that there is a sufficient radius of land around the tower so that its collapse shall be contained on the property where located. Accessory buildings shall follow the minimum setback requirements of the Zone District.

2. Antennas installed on building rooftops shall be setback from the edge of the roof at least one (1) foot for each foot of antenna height as measured from the top of the roof (or parapet, if one exists) to the highest point of the antenna.

I. *Separation.*

1. Towers shall be set back at least three hundred (300) feet from any off-site residential structure.

2. In Zone Districts other than SD-IT, towers over ninety (90) feet in height shall not be within one-quarter (¼) of a mile of any existing tower that is over ninety (90) feet high. Tower separation shall be measured by following a straight line from the portion of the base of the proposed tower that is closest to the base of the pre-existing tower.

J. *Height.* Where permitted, monopoles shall not be higher than one hundred ninety-five (195) feet in SD-IT and C Zone Districts; and one hundred fifty (150) feet in all other Zone Districts. Any tower and/or antenna placement adjacent to a Residential Zone District that requires lighting shall use a continuous red beacon at night.

K. *Location and Design.*

1. Co-Location.

   a. Towers shall be constructed to accommodate at least four (4) antenna platform levels. A statement by the applicant and/or a structural analysis sealed by an engineer affirming that the construction of the wireless communications facility will accommodate co-location of additional antennas for future users shall be provided.

   b. Co-location terms, including rates for compatible providers shall be included in the application. Terms shall be consistent with the market for metropolitan Grand Rapids and applicants shall submit a signed statement agreeing to permit co-location consistent with those rates.

   c. Two (2) equipment shelters shall be allowed per site. Multiple shelters integrated into one (1) shall be considered a single shelter. No single provider shall occupy more than two hundred fifty (250) square feet of interior floor space.

2. Design.

   a. Where visible from a public street, the design of equipment shelters and related structures including shall use colors, landscaping, materials screening, and textures that have the finish and appearance to blend into the character of the neighborhood and surrounding buildings so as to make the antenna and related equipment as visually unobtrusive as possible.

   b. Visible cabling and wiring, antenna and supporting electrical and mechanical equipment, must be a neutral color that is identical to, or closely compatible with, the color of the supporting structure so as to make the antenna and related equipment as visually unobtrusive as practicable.

   c. Stealth equipment is permitted to be used as a wireless communication tower for areas where special sensitivity to neighboring properties is necessary.

3. No advertising or business signs shall be allowed.

4. Wireless communications facilities shall be located and designed to not obstruct or significantly diminish views of the Grand River from public streets and public property.

5. Fencing and Landscaping.

   a. Security fencing or a wall not less than six (6) feet nor more than eight (8) feet high shall enclose towers and related appurtenances.

   b. Wireless communication facilities and equipment shall be placed on a site where existing vegetation is preserved to the maximum extent possible.

   c. Landscaping consisting of evergreen vegetation with a minimum planted height of six (6) feet placed densely so as to form a screen, shall be placed completely around the wireless communications facility at ground level, except as required to access the facility. Where appropriate, existing landscaping can be used to satisfy this requirement. Landscaping shall be installed on the outside of any fencing.

6. Administrative Departure. An Administrative Departure may be permitted for landscape requirements and/or require a different type of screen or wall depending upon the location.

L. *Approvals.* Wireless communications facilities are permitted under varying conditions dependent upon their form and the Zone District in which they are to be located. The following approval procedures apply.

1. *Director Review.*

   a. Installing an antenna on an existing structure other than a tower that already has existing antennas (such as a building, sign, light pole, water tower, or other free standing non-residential structure), provided the addition does not extend above the highest point of the building or structure by more than thirty (30) feet or fifty (50) percent of the height of the existing structure, whichever is less, (except single family detached dwellings and their accessory structures) in all Zone Districts.

   b. Installing an antenna on an existing structure other than a tower that does not have existing antennas (such as a building, sign, light pole, water tower, or other free standing non-residential structure), provided the addition does not extend above the highest point of the existing structure by more than thirty (30) feet or fifty (50) percent of the height of the existing building or structure, whichever is less, (not including single family detached dwellings and their accessory structures) in all Zone Districts except SD-OS, LDR and MDR.

c. Installing an antenna on an existing tower of any height, including the placement of additional buildings or other supporting equipment used in connection with that antenna, provided the additional height of the antenna adds no more than twenty (20) feet to the height of the existing tower.

2. *Special Land Use.*

a. Any wireless communication facility not listed under Director Review and otherwise prohibited shall require a Special Land Use approval in accordance with the requirements of Section 5.12.09.

b. In addition to the review consideration of Section 5.12.09., the Planning Commission shall consider the following factors in approving applications for towers and antennas and may attach conditions consistent with these factors.

i. Tower or antenna height;

ii. Proximity of the tower or antenna to residential structures and Residential Zone District boundaries;

iii. Nature of uses on adjacent and nearby properties;

iv. Surrounding topography;

v. Surrounding tree coverage and foliage;

vi. Tower or antenna design, with particular reference to design characteristics that have the effect of reducing or eliminating visual obtrusiveness;

vii. Proposed ingress and egress; and

viii. Availability of suitable existing towers, other structures, or alternative technologies not requiring the use of towers or structures.

M. *Building Permits.*

1. Structures covered under this Section shall require a building permit prior to the erection, expansion, including an increase in height, or relocation. The application for a permit shall include construction drawings showing the proposed method of installation, including details of structural support, footing, foundation, guys, braces, anchors, and other information as required by the City's Building Official to ensure proper engineering practice.

2. A site plan and other illustration drawn to scale shall be provided showing the lot or parcel on which the structure is to be erected, all structures on site, all structures within two hundred (200) feet of the site, all structural elements, and all other relevant information.

3. The permit shall include twenty-four (24) hour emergency contact information and contact information for the entities with responsibility for the wireless communications facilities described in the application. Contact information for the tower owner, operator, and emergency contact shall be kept current and on file with the City at all times.

N. *Federal and State Requirements.* Towers and antennas shall meet or exceed current standards and regulations of the Federal Aviation Administration (FAA), the Federal Communications Commission (FCC) and any other federal or state agency with the authority to regulate towers and antennas. If those standards and regulations are changed, then the owners of the towers and antennas shall bring them into compliance within the time mandated by the controlling federal and state agency. Failure to bring towers and antennas into compliance shall constitute grounds for removal of the structure at the owner's expense.

O. *Fees.* Notwithstanding any other provision of this Chapter, the Director may require, as part of fees for building permit or Special Land Use application for telecommunication facilities, an amount sufficient to recover all of the City's costs in retaining consultants to verify statements made in conjunction with the permit application, to the extent that verification requires specific expertise. The amount of this fee shall be equal to the cost charged by the consultant.

P. *Removal of Facilities.*

1. Any tower or antenna that is not operated for a continuous period of one (1) year or more shall be considered to be abandoned, and the owner shall remove the same within ninety (90) days of receipt of notice of the determination. Failure to remove an abandoned tower or antenna after this time period shall be grounds to remove the tower or antenna at the owner's expense.
2. The owner of a facility shall provide a performance guarantee meeting the requirements of Section 5.14.04. adequate to secure the cost of removing an antenna, antenna array, or tower that has been abandoned. In the event of a transfer of ownership, the seller shall be responsible for notifying the buyer of this requirement and for notifying the City of the transfer.
3. Damaged or Destroyed Nonconforming Facilities.
    a. Notwithstanding this Section, nonconforming wireless communications facilities that are damaged or destroyed by an Act of God may be rebuilt without having to first obtain approvals otherwise required by this Section, provided that any other permits applicable to construction or reconstruction must be obtained.
    b. The type, height, and location of the wireless communications facility shall be the same as the original approved facility and constructed in accordance with currently applicable building codes.
    c. Permits for construction shall be obtained within one hundred and eighty (180) days from the date the facility is damaged or destroyed, and reconstruction shall be started within six (6) months from the time of damage and shall be continued until completed.
    d. If no permit for construction is obtained, or if an issued permit expires, the facility shall be deemed abandoned as specified in Section 5.9.38.P.

Q. *Prohibited Facilities.*

1. Lattice and guy wire towers in all Zone Districts.
2. Towers in the TN-CC, TN-TCC, TN-TBA, TOD, LDR, MDR, SD-OS, and SD-NOS Zone Districts.

Sec. 5.9.42. Zoo.

Review Standards. A zoo use in any Zone District shall be subject to the Special District - Institutional Campus Section 5.7.05.F. Review and Approval.

ARTICLE 10. TRANSPORTATION AND MOBILITY

Sec. 5.10.01. Purpose and Intent.

A. The purpose of this Section is to support the development of a balanced transportation system that promotes the efficient use of transportation resources and supports the Themes of the Master Plan, Sustainability Plan, Vital Streets Plan and Manual, and other adopted plans of the City that include vehicle, transit, bicycles, and pedestrian circulation.

B. It is the intent of this Article that:

1. Measures will materially advance city streets as beautiful, functional places that provide mobility and equitable access for all people by marrying active sidewalks, safe bicycle facilities, a robust tree canopy, extensively used transit, and vehicular accommodations within an appropriate context.
2. These provisions improve bicycle and pedestrian movement to reduce reliance on personal vehicle use, provide for improved circulation between and within development sites, and promote transportation options to reduce Vehicle Miles Traveled (VMT) and related vehicle emissions.
3. Traffic-related serious injuries and fatalities will be eliminated in keeping with Vision Zero to create a safer, more comfortable atmosphere for pedestrians and bicyclists.
4. Transportation options will be available, affordable, and reliable for all people to meet their daily travel needs regardless of age, ability, race, ethnicity, or economic status.
5. Public health outcomes and recreational opportunities will be improved by promoting and enabling walking, bicycling, and other forms of active transportation to contribute reductions in childhood and adult obesity.

C. Further, off-street parking and loading spaces for each use shall be provided in accordance with the requirements established in this Section to:

1. Relieve traffic congestion in the streets;
2. To minimize any detrimental effects of off-street parking areas on adjacent lands;
3. Improve the visual aesthetics of parking areas;
4. Ensure the proper and appropriately located parking areas;
5. Prevent the establishment of excessive amounts of off-street parking;
6. Encourage appropriate redevelopment and reinvestment;
7. Advance the compatibility of parking lanes and drive entries with pedestrian safety; and
8. Reduce the need for parking by promoting the use of mass transit, bicycles, and other Transportation Demand Management measures as an alternative to traditional reliance on personal vehicle use.

D. General. The requirements of this Article shall apply to all new development and redevelopment in the City.

Sec. 5.10.02. Off-Street Parking: General Requirements.

A. *Change in Use or Intensity.*

1. Whenever the use of a building or lot changes to a use with different off-street parking requirements as identified in Table 5.10.04.C. parking facilities shall be provided as required by this Chapter for the new use.
2. If any building, structure, or intensity of use is increased through the addition of dwelling units, floor area, seating capacity, or through other means that affect parking requirements, additional off-street parking shall be provided to bring the use into compliance.
3. Any area once designated as required off-street parking shall not be changed to any other use unless and until equal facilities meeting the requirements of this Chapter are provided elsewhere, or the change in use alters the parking requirements of the site.

4. If a change in use or intensity results in a parking requirement that reduces required spaces by fifty (50) spaces or more in excess of the parking requirement at the time the parking lot was constructed, the Director, after notice to the property owner, may require the removal of all or part of the additional parking spaces, unless the owner applies for and is granted a parking adjustment as provided in Section 5.10.04.D. The parking area removed shall be landscaped in accordance with the provisions of this Chapter.

B. *Use.* Off-street parking areas as a principal use of a lot shall be regulated as listed in the Use Tables of the applicable Zone District.

Sec. 5.10.03. Off-Street Parking: Design Requirements.

A. The following requirements apply to surface parking areas. Additional requirements for parking structures are in Section 5.9.26.; for driveways in Section 5.10.03.F.

B. *Use of Off-Street Parking, Stacking, and Loading Areas.* All vehicular parking areas, stacking areas and loading areas required by this Article shall only be used for those designated purposes.

C. *Location.*

1. Except as otherwise permitted, all off-street parking areas shall be provided on the same lot as the use it serves, or no farther than three hundred (300) feet from the nearest point of the building to the nearest point of the parking facility along public rights-of-way or publicly available sidewalk.
2. Use of parking facilities in a Residential Zone District by a non-residential use shall be treated as a Special Land Use. Access to an off-street parking area that serves a nonresidential use shall not be permitted across lots that are residential in use or located in a Residential Zone District.
3. Parking may be owned, leased or shared by the owner of the building with another building owner upon providing evidence of agreements or easements to the Director. In the event that the agreement is no longer in effect, parking requirements shall be satisfied by each building that was a party to the shared agreement.
4. The use of parking in the public right-of-way shall only be permitted as allowed in Section 5.10.04.F.

D. *Design Requirements.*

1. *Defined Areas.* Off-street parking areas of three (3) or more spaces and off-street loading areas shall be striped and maintained in good condition to be clearly visible with lines to indicate parking space limits and loading areas. All striping shall comply with the Manual of Uniform Traffic Control Devices.
2. *Accessible Parking.* Parking lots shall provide parking spaces for vehicles for the disabled in compliance with the State Building Code and the Americans with Disabilities Act (ADA), as applicable.
3. *Outdoor Lighting.* New or redeveloped off-street parking, stacking and loading areas shall comply with the outdoor lighting requirements of Section 5.2.19.
4. *Landscaping Elements.* All parking areas shall be landscaped in accordance with Section 5.11.11. Parking and Loading Area Landscape Requirements.
5. *Streetscape Elements.* Streetscape elements (e.g. benches, trash receptacles, light fixtures, bollards, fountains, bicycle racks, etc.) placed within or immediately adjacent to an off-street parking area shall be compatible with the architectural features of buildings or structures in

the Neighborhood Classification to help establish a unifying theme for the neighborhood. Any adopted Streetscape Plan under the provisions of Section 5.11.13. Streetscape Design Standards shall be followed.

6. *Minimum Greenspace.* Lot areas used for off-street parking, stacking and loading areas are subject to minimum greenspace calculations for each Zone District.

7. *Parking Lot Width.* Parking lots shall not cover more than fifty (50) percent of the width of the lot as measured at the front lot line. This requirement shall not apply to parking in rear yards.

8. *Curbs and Vehicle Stops.* All off-street parking lots, access drives and aisles, and other vehicle maneuvering areas shall provide curbs or similar devices at least five (5) inches high to prevent vehicles from overhanging on or into public right-of-way, sidewalks, walkways, adjacent property, or landscape areas.

9. *Stormwater.*

   a. All stormwater runoff created from parking areas shall be completely retained on the site for any rainfall that is less than or equal to the 25-year, 24-hour rainfall. Stormwater facilities shall be reviewed and approved by the Environmental Services Department.

   b. All off-street parking, stacking and loading areas shall comply with the stormwater management standards of Chapter 32 of the City Code, City policies, and other applicable state and federal laws.

   c. When used for stormwater management purposes, planted areas may be installed at a lower grade than the parking lot pavement, include curbing at the edge of a landscaped area and have openings or gaps allowing drainage from the pavement to enter and percolate through the landscaped areas.

10. *Large Parking Lots (two hundred (200) or more spaces).*

   a. Large off-street parking lots shall be designed to simulate a grid pattern through the placement of landscape islands, buildings, and drive aisles.

   b. Large off-street parking lots shall include primary drive aisles that are designed to appear as an extension of the public street network, extending the full length of the main building façades.

   c. Utility placement on sites with large parking lots shall be configured to allow for future new buildings on the site.

11. *Electric Car Charging Points.* Large parking lots and structures shall provide at least one (1) electric plug-in service point for every two hundred (200) parking spaces. Plug-in points shall be associated with individual parking spaces and shall be installed according to appropriate design standards, as approved by the Director.

E. *Setbacks.* Except for parking areas on the same lot as a detached single-family or two-family dwelling, off-street parking and loading areas shall meet the following requirements:

1. *Front Yard Setbacks.*

   a. For accessory parking areas, no part of the parking area shall be permitted in the front yard.

   b. For parking areas that are principal uses and for parking lots in the MON-C Zone District, the parking area shall conform to the front yard setback or RBL requirements as appropriate, provided that a five (5) foot setback shall be met where there is no established RBL.

c. Parking areas that are accessory to a Vehicle Fueling Station may be permitted in the front yard subject to the requirements of Section 5.9.38.H.

d. Parking areas that support office or retail uses accessory to the primary use may be permitted in front yard in the SD-IT Zone District.

2. *Side and Rear Yard Setbacks.*

a. *Residential.* Parking areas within or abutting a Residential Zone District shall maintain the minimum side and rear yard setbacks as required in the Zone District; except where an alley abuts the property, the required rear yard setback may be reduced to five (5) feet. Parking areas shall not be in landscape buffer areas.

b. *Non-Residential.* For parking areas within or abutting a commercial or industrial use or Zone District without an abutting residential property, the parking lot side and rear setbacks must be at least five (5) feet, provided required landscape buffer requirements of Section 5.11.11. and greenspace requirements for the applicable Zone District are satisfied.

c. *Administrative Departure.* Parking areas may be permitted to extend across contiguous lots in developments with coordinated site design, shared access points and/or shared parking arrangements.

F. *Access and Driveways.*

1. All off-street parking, stacking and loading areas shall be arranged for convenient access and safety of pedestrians, bicyclists, and vehicles, and designed so that they do not interfere with other on-site circulation, parking facilities, or pedestrian movements.

2. All off-street parking, stacking and loading areas shall be provided with adequate, paved, access drives and aisles, or other vehicle maneuvering areas meeting the requirements of Section 5.10.04.

3. Except for detached single-family dwellings, attached single-family dwellings or where tandem parking is approved, or through a valet parking plan approved in accordance with Chapter 113 of the City Code, off-street parking areas with three (3) or more spaces shall be configured so that a vehicle may enter and leave a parking space without moving another vehicle.

4. Access.

a. Where a parking area abuts an alley, access to parking areas shall be obtained from the alley. Additional curb cuts on the public street shall be prohibited.

b. Where a parking area does not abut an alley, and abuts two (2) or more streets, access to the parking area shall be from the street with the lower traffic volumes.

c. An Administrative Departure may be granted if, due to the location or configuration of the parcel, these requirements cannot be satisfied.

5. See Section 5.10.08. for pedestrian access provisions in off-street parking lots.

6. Driveways.

a. Adequate ingress and egress to the parking area shall be provided by clearly defined driveways so that vehicles entering or leaving the parking lot will be traveling in a forward motion and in accordance with accepted access management principles.

b. Distance from Lot Line. Unless otherwise permitted by this Chapter or by the Traffic Engineering Department, all driveways, including the entry radius of the drive approach that serve a single main building or principal use, shall be at least one (1) foot from an abutting lot line.

c. Sidewalks shall extend through driveway approaches.

d. Surface. There shall be a hard-surfaced driveway from the public or private right-of-way to the required parking space. The drive surface must be permanent, and completely covered with concrete, bituminous surface, brick or other similar surface. A pervious surface may be used, subject to applicable City ordinances and policies.

e. Residential Driveways.

i. Number. For single- and two-family residential dwellings only one (1) driveway shall be permitted.

ii. Width. Residential driveways shall be a minimum of ten (10) feet wide. The minimum width of driveways for other uses shall be determined by the City's Traffic Engineering Department who may impose a maximum width based on access and safety considerations.

iii. Ribbon Driveways. Ribbon driveways are permitted for residential driveways, subject to the same dimensions for standard driveways. Individual ribbons shall only be permitted within the boundary of the lot and shall not be less than eighteen (18) inches or more than thirty (30) inches wide.

iv. Driveway with Garage. Where a garage or accessory structure is accessed directly from a public street and has a vehicle door eight (8) feet or wider, the driveway shall extend to the vehicle door.

(a) Garage doors and all required off-street parking spaces shall be set back at least twenty (20) feet from the front line to prevent obstruction of the sidewalk by parked cars.

(b) Driveway pavement shall not extend behind the front façade of the garage.

v. Residential Driveway without Garage. The driveway of a residential property that does not have an attached or detached garage shall extend twenty (20) feet past the rear of the dwelling to allow for sufficient car storage. In the case of corner lots with insufficient depth, the driveway shall extend at least twenty (2) feet past the front of the dwelling.

vi. Residential Turn-Around Space. Residential properties with front yards abutting a Major, Regional or City Collector Street, as defined in the Street Classification Policy, are permitted a turn-around space in the front yard under the following conditions:

(a) The space is set back a minimum of twenty (20) feet from the front lot line;

(b) The space is no larger than twelve (12) feet by twenty (20) feet;

(c) The space is screened from the street and abutting property with plant materials approved by the Director;

(d) The minimum greenspace requirement for the property is met; and

(e) The space is not used for regular parking or storage of vehicles.

7. Stacking Areas.

a. The Traffic Engineering Department shall review any proposed stacking areas to determine an adequate number of spaces if a number is not otherwise specified by this Chapter. A queuing analysis may be required from the applicant for uses generating more than thirty (30) trips per hour.

b. A minimum of twenty (20) feet per vehicle is required for each stacking space.

c. The stacking area shall not interfere with other on-site traffic circulation, parking spaces, or bicycle or pedestrian movements, or cause vehicles to queue within a private street or public right-of-way.

d. Unless otherwise permitted, stacking areas shall not be placed on a street facing side of a building or within twenty-five (25) feet of the lot line of any Residential Zone District or use unless the approving authority determines that no other location is feasible.

e. Where five (5) or more stacking spaces are provided, the individual stacking lanes shall be clearly delineated. Protective bollards, when used, shall be painted to match the dominant color used on the nearest structure with which the bollards are associated.

G. *Front Yard Parking.* Parking or storage of motor vehicles in the unpaved portion of the front yard of a residential use or residentially-zoned property is prohibited. A legal driveway in the front yard may be used for parking, provided the public sidewalk is not blocked.

H. *Administrative Departures.*

1. The distance from the lot line requirements for shared driveways of abutting properties may be eliminated, provided both property owners grant written permission for joint use and access.

2. For single and two-family dwellings, additional driveways may be permitted provided that sufficient lot frontage is available and that the lot configuration or other physical constraint requires an additional driveway for safe and adequate circulation.

3. Direct access to a public street may be permitted for lots where special conditions prevent access from the alley.

I. *Construction.*

1. A parking site plan shall be submitted prior to construction of any development or use that has more than three (3) required off-street parking spaces. The plan shall accurately depict the location and dimensions of required parking spaces, access aisles, and driveways, and the relation of the off-street parking areas to the uses or structures the areas are designed to serve.

2. A required parking lot shall be fully constructed within six (6) months of receipt of a building permit and prior to the issuance of a Building Certificate of Occupancy for the use or uses it serves. The Director may grant one (1) extension for up to an additional six (6) months in the event of adverse weather conditions or unusual delays beyond the control of the property owner or responsible person. The Director may require a performance guarantee as permitted in Section 5.14.04.

3. In the case of phased development, off-street parking, stacking and loading areas shall only be provided for the portions of the development for approved phases, or a temporary use permit has been approved for a surface parking lot.

4. Surfacing.

a. All off-street parking, stacking, loading areas and drive approaches from the alley or street shall be surfaced with asphalt, concrete, brick, stone, pavers, or an equivalent material in accordance with 1993 City of Grand Rapids Standard Construction Specifications as amended.

b. Surfaces such as pervious asphalt, pervious concrete or turf blocks are permitted; subject to Chapter 32 of the City Code and other City policies pertaining to stormwater management. A maintenance plan, outlining responsible parties, procedures, and schedules for permeable pavement areas must be submitted and approved by the City Engineer.

c. Surfacing materials for outdoor parking areas associated with vehicle or container storage may be gravel in accordance with 1993 City of Grand Rapids Standard Construction Specifications as amended, provided the subject area is at least one hundred (100) feet in driving distance from the nearest public street, no gravel is tracked off-site, and the paving surface is permitted under Chapter 32 of the City Code and other policies pertaining to stormwater management.

d. Parking and circulation areas must meet pavement strength specifications as determined by the Fire Department.

5. Parking areas shall be striped and maintained in good condition to be clearly visible with lines to indicate parking space limits. All striping shall comply with the Michigan Manual of Uniform Traffic Control Devices unless an alternative is approved by the Traffic Engineering Department.

J. *Maintenance.*

1. All parking areas shall be maintained free of dust, trash, weeds and debris. Surfacing, curbing, lighting fixtures, signs, and related appurtenances shall be maintained in a smooth, well-graded condition, and in good repair and safe condition at all times.

2. The visibility of pavement markings delineating parking spaces and directional control shall be maintained.

3. All off-street parking, stacking and loading areas required by this Chapter shall be maintained free of accumulated snow or standing water that prevents full use and occupancy of the areas, except for temporary periods of heavy rainfall or snowfall, not to exceed five (5) days.

(Ord. No. 2019-30, § 4, 7-23-19; Ord. No. 2020-13, § 9, 4-28-20; Ord. No. 2024-20, § 20, 4-23-24)

Sec. 5.10.04. Off-Street Parking: Space Requirements.

A. *Parking Plan / Demand Study.*

1. Prior to construction, a LUDS permit application shall be submitted for any development or use that is required to provide more than three (3) off-street parking spaces. The application shall accurately designate the required parking spaces, access aisles, and driveways, and the relation of the off-street parking areas to the uses or structures the areas are designed to serve.

2. Parking Demand Study. The Director may require an independent Parking Demand Study, completed by a qualified person or firm, that analyzes parking demand based on the recommendations of the Institute of Traffic Engineers (ITE), and includes relevant data collected from uses or mix of uses that are the same or comparable to the proposed use in terms of density, scale, bulk, area, type of activity and location. The study shall include the following information, unless waived by the Director.

a. Required parking computation in accordance with Table 5.10.04.C. and the number of parking spaces to be provided.

b. Information regarding any requested parking reductions in accordance with Section 5.10.05.

c. Demonstration of parking need based on factors such as land use and development character of the area to be served by the parking facility, including the relative intensity of uses requiring parking, availability of transit, proximity of nearby employment centers and residential uses, and other relevant factors.

d. Signed and executed easements, agreements, or other documentation required to ensure that spaces counted toward the parking requirements are properly secured.

e. Site plan(s) for planned parking areas covered by the parking plan indicating the locations of planned parking, names of property owners for properties not under the direct control of the applicant, and any other site details relevant to the parking plan application.

f. Any other information required by the Director to ensure an adequate review of the parking plan application.

B. *Dimensional Requirements.* Each off-street parking space shall have an area that meets the Dimensional Requirements in Table 5.10.04.B., except as may be allowed by the Traffic Engineering Department.

Table 5.10.04.B. Dimensional Requirements for Parking Spaces and Aisles

Parking Angle	Space Dimension (ft.)		Aisle Width (ft.)	
	Width	Depth	Minimum	Maximum
Parallel	8	22	12	16
45 degrees	8.5	19	12	16
60 degrees	8.5	20	16	20
90 degrees	8.5	18	22	26
Compact	8.5	17	20	24

C. *Required Parking Spaces.* The amount of required off-street parking spaces for individual uses shall be determined in accordance with Table 5.10.04.C. Off-Street Parking Requirements. The following factors shall be used in determining the required number of parking spaces.

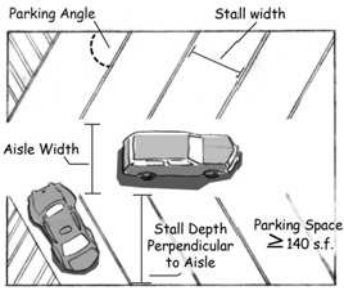
1. *Measurements.*

a. *Floor Area.* Where floor area is the unit of measurement to determine the required number of off-street parking and loading spaces, gross floor area (GFA) shall be used.

b. *Bench Seating.* In calculating bench seating for places of assembly, each continuous four (4) foot segment of benches, pews or other similar seating shall be counted as one (1) seat.

c. *Employees.* Where the number of spaces required is based on the number of employees, calculations shall be based upon the maximum number of employees likely to be on the premises at any one time. Where multiple shifts of employees are involved, calculations shall be based on the largest shift.

d. *Occupancy.* Where occupants are used as a measurement, all calculations shall be based on the maximum capacity permitted under fire safety and building codes.



5.10.04.C. Dimensional Standards for Parking Spaces and Aisles (Measurement).

e. *Stalls.* Where vehicle stalls are used as a measurement, all calculations shall be based on the number of service bays, garage door openings or similar area.

2. *Fractions.* Where units of measurements determining the number of required parking or loading spaces result in a fraction, the fraction shall be counted as one (1) additional parking space.

3. *Uses.*

a. Parking shall be calculated separately for each use in a building, structure or on a lot, except that the Planning Director may determine that a lower standard would be adequate for shared parking, as described in Section 5.10.05.E.

b. Accessory uses shall be calculated separately.

4. *Unlisted Requirements.* The Director shall make a determination as to the proper classification of a parking requirement not listed for a particular use based on the requirement of the closest comparable use. Where a comparison cannot reasonably be made, the Director may require a Parking Demand Study as provided in Section 5.10.04.A.

5. Bicycle Parking shall be as required in Section 5.10.10. Bicycle parking shall not occupy any required vehicle parking space.

Table 5.10.04.C. Off-Street Parking Requirements

Use Category	Use		Zone District* * See Section 5.10.04.F. for TN-CC Requirements			Measurement/Additional Requirements
			TN-TCC; TN-TOD	TN-MDR; TN-TBA; MCN-TOD; MON-TOD	All Other Zone Districts	
			Number of Parking Spaces			
RESIDENTIAL						
Household Living	Single-family dwelling	Detached	1.5	2/	2.0	Per dwelling unit
		Attached	1.5	1.5	2.0	
	Two-family dwelling		1.5/du	1.5	1.5	
	Multiple-family dwelling		1	1.25	1.5	Per dwelling unit plus .25 per bedroom above 2 bedrooms
	Age-restricted housing		2 per 3 dwelling units			80% of units restricted to age 65 or older
	Lodging, extended stay		.75	1	1	Per room plus accessory uses plus .25/room above 1 bed
Group Living	Nursing/convalescent home		.5	.75	1	Per bed
	Rooming/boarding houses		1	1	1	Per room
	Single room occupancy		.5	.75	.75	Per dwelling unit
	All other Group Living		.25	.25	.5	Per bed plus 1/employee
Accessory Uses	Accessory dwelling unit		0	0	0	
EDUCATIONAL, GOVERNMENT AND INSTITUTIONAL						
Government and Institutional	Educational uses		1	1	1	Per 1,000 sq. ft. plus 1 per classroom, auditorium and office use
	Assembly areas		.25	.25	.33	Per seat w/o seats 1 seat = 50 sq. ft.
	Child care center		1	1	1	Per 8 clients by capacity plus 1 per employee
	Community center		1	1	1	Per 1,000 sq. ft. plus 1 per classroom, auditorium and office use
	Hospital		3	3	3	Per bed
	Outdoor recreation field		6	6	8	Per 1,000 sq. ft.
	Research institution		.5	.75	1	Per employee
COMMERCIAL, OFFICE, AND RETAIL						

Table 5.10.04.C. Off-Street Parking Requirements						
Use Category	Use		Zone District* * See Section 5.10.04.F. for TN-CC Requirements			Measurement/Additional Requirements
			TN-TCC; TN-TOD	TN-MDR; TN-TBA; MCN-TOD; MON-TOD	All Other Zone Districts	
			Number of Parking Spaces			
Auto-Oriented	Automobile rental, short-term		1.25	1.25	1.25	Per vehicle for rent
	Car/truck wash		-	10	10	Per premise plus 1/stall above 5
	Drive-In or drive-through use		2	2	2	Per service, 1 window per lane shall be counted
	Vehicle uses	Fuel station	5	5	5	Per premise
		Service, repair facility; vehicle towing, storage	3	3	3	Per stall plus 1/employee
		Sales/lease (e.g. auto, boat, RV)	-	-	3.25	Per 1,000 sq. ft. of main building
		Wrecking, salvage, storage of inoperable vehicles	3	2	2	Per stall
Entertainment Hospitality and Recreation	Arcade, amusement devices, gaming, pool hall		3	3	.75	Per 1,000 sq. ft.
	Auditorium, cinema, concert hall, theater, banquet hall		.25	.25	.33	Per seat 1 seat=50 sq. ft. of GFA where seats are not used
	Bar, tavern		.75	1.0	1.25	Per 3 persons based on occupancy
	Bowling alley		2	2	6	Per lane plus accessory uses
	Dance club, night club		3	4	4	Per 1,000 sq. ft.
	Health or athletic club, sports complex (e.g. tennis, golf, soccer)		2.5	2.5	2.5	Per 1,000 sq. ft. plus accessory uses
	Social or service club		.75	1	1.25	Per 3 persons based on occupancy
	Lodging, short-term		.75	.75	1	Per room plus accessory uses
	Restaurants (also see Outdoor Seating below)		.5	.75	1.25	Per 3 persons based on occupancy
Office	Bank or credit union		2	2.5	3	Per 1,000 sq. ft.
	General or professional uses		2	2.5	3	
	Medical or dental uses		4	5	6	
	Live-work unit		2	2	2	Per unit

Table 5.10.04.C. Off-Street Parking Requirements					
		Zone District* * See Section 5.10.04.F. for TN-CC Requirements			
		TN-TCC; TN-TOD	TN-MDR; TN-TBA; MCN-TOD; MON-TOD	All Other Zone Districts	Measurement/Additional Requirements
Use Category	Use	Number of Parking Spaces			
Personal Services	Barber shop, beauty salon, nail salon, tattoo, tanning, therapeutic massage	1.5	2	3	Per station
	Contractor, building (e.g. plumbing, heating, electrical)	3	3	3	Per 1,000 sq. ft. plus 1/stall over 3
	Funeral home, mortuary	.25	.25	.33	Per person based on occupancy
	Personal service uses (not otherwise specified)	2	2.5	3.0	Per 1,000 sq. ft. plus 1/stall over 3, as applicable
	Studio (aerobics, dance, yoga, karate, etc.)	.25	.25	.33	Per person based on occupancy
	Veterinary hospital, kennel	1.5	1.5	1.5	Per 1,000 sq. ft.
Retail Sales, Outdoor Activities	Retail sales, general	1.25	2.5	3.25	
	Outdoor retail sales, nursery or garden center	.5	.75	.75	
	Outdoor retail sales, booths	1	1	1	Per stall plus accessory uses
	Outdoor seating	-	.25	.5	Per person based on occupancy
INDUSTRIAL, TRANSPORTATION, AND UTILITIES					
Industrial and Transportation	Assembly, manufacturing, and production	.25	.33	.33	Per 1,000 sq. ft. plus office uses
	Inter-modal transportation facility or transit center	2	3	4	Per 1,000 sq. ft.
	Mineral extraction	1	1	1	Per employee
	Printing, publishing and allied industries	.25	.33	.33	Per 1,000 sq. ft. plus office uses
	Self-storage facility	1	1	1	Per 1,000 sq. ft.
	Warehousing, wholesaling	2	2	2	Per employee
MARIHUANA					
Retail	Provisioning center (medical)	1.25	2.5	3.25	Per 1,000 sq. ft.
	Retailer (recreational)	1.75	3	3.75	Per 1,000 sq. ft.
Industrial	Grower, any class	.25	.33	.33	Per 1,000 sq. ft. plus office uses
	Processor	.25	.33	.33	Per 1,000 sq. ft. plus office uses
	Hemp processor-handler	.25	.33	.33	Per 1,000 sq. ft. plus office uses
Support	Safety compliance facility	2	2.5	3	Per 1,000 sq. ft.
	Secure transporter	2	2	2	Per employee
Note: The listing of various uses under each Zone District grouping is not intended to imply that those uses are permitted in every Zone District. The Use Table for each Zone District must be consulted for allowed uses.					
* See Section 5.10.04.F. for TN-CC parking requirements.					
sq. ft. = square feet; GFA = gross floor area; "-" = Not applicable					

D. *Maximum Parking.* No parking area for an individual use, building, or integrated complex shall exceed the required number of parking spaces by more than twenty (20) percent, unless approved by the Planning Commission as a Special Land Use, and based on a Parking Demand Study submitted by the applicant, as provided in Section 5.10.04.A.

E. *Deferral of Parking Spaces.* The Planning Commission may defer the construction of a portion of the parking spaces required in Table 5.10.04.C. as part of a Special Land Use or Site Plan Review application, subject to all of the following requirements.

1. The owner shall demonstrate that the required number of parking spaces is excessive for the nature of their business or operational characteristics.
2. An area of sufficient size to meet the deferred number of parking spaces, along with setbacks, landscaping, access drives, aisles and other required parking lot features, shall be retained as open space.
3. A deferred parking site plan shall identify the area where parking is being deferred, including dimensions and parking lot layout.
4. Stormwater management requirements shall be based on the full amount of required parking to ensure adequate capacity if additional parking is later deemed necessary.
5. The owner shall provide a written agreement to construct the deferred parking within six (6) months of a written notice from the Director based on observed need, or to give at least thirty (30) days prior notice to the Director if the deferred parking area is to be constructed.

F. *Traditional Neighborhoods Parking Requirements.*

1. *Traditional Neighborhoods - City Center (TN-CC) Zone District Parking Requirements.* Off-street parking shall not be required. If provided, the number of spaces shall not exceed one (1) space for each one thousand (1,000) square feet of gross floor area for all non-residential buildings and hotels, and one (1) space per dwelling unit, unless approved by the Planning Commission as a Special Land Use and based on a Parking Demand Study submitted by the applicant, as provided in Section 5.10.04.A.
2. *Traditional Neighborhoods - Low Density Residential (TN-LDR) and Mixed-Density Residential (TN-MDR) Zone District Parking Requirements.* Off-street parking shall not be required for developments of six (6) or fewer dwelling units when located on Link Residential and Network Residential Streets.
3. *Administrative Departure.*
    a. An Administrative Departure may permit General or Professional Office uses to provide up to three (3) spaces for each one thousand (1,000) square feet of gross floor area if all of the following conditions are met:
        i. The gross floor area of the use is at least 100,000 square feet.
        ii. The off-street parking provided is located within a structure.
        iii. That a Traffic Analysis meeting the requirements of the City's Transportation Engineer be submitted for review and approval by the City's Mobile GR Department.
        iv. A Transportation Demand Management (TDM) plan is submitted that demonstrates compliance with the below requirements.
            (a) *Bicycle parking and commuter amenities.*
                1) Enclosed, secure bicycle parking facilities, such as bicycle lockers or bicycle rooms are provided on site and given priority location on the ground floor.
                2) The required number of bicycle parking spaces provided shall be provided as indicated in Table 5.10.04.F.3.

Table 5.10.04.F.3. Required Bicycle Parking Spaces		
Vehicle Spaces Proposed	**Bicycle Spaces Required***	
1/1,000 sq. ft.	1/10,000 sq. ft.	No fewer than 3 spaces shall be provided.
2/1,000 sq. ft.	2/10,000 sq. ft.	
3/1,000 sq. ft.	3/10,000 sq. ft.	
*After the first 20 required bicycle spaces, additional spaces shall be calculated at 50% of the table values.		

3) A bicycle maintenance station is provided with three (3) feet of unobstructed space on each side. Tools and supplies should include at a minimum: a bicycle pump, wrenches, a chain tool, tire levers, hex keys/Allen wrenches, torx keys, screwdrivers, and spoke wrenches.

4) Showers and clothing lockers available to all employees are provided on site.

(b) *Carpooling.*

1) A minimum of five (5) percent of total parking spaces on site are reserved for priority carpool parking. Priority spaces must be the closest to building entrances or elevators but not closer than disabled parking.

(c) *Micromobility.*

1) A shared micromobility designated parking zone is provided that has adequate space for several vehicles and is accessible from or within the public right of way, as determined by the Mobile GR Department.

(d) *Transit.*

1) A transit pass agreement with The Rapid is provided and fully funded by the employer that allows all employees to commute via transit on an ongoing basis at no cost to the employees.

2) Any existing bus stops that abut the subject property shall be improved bus stop amenities (e.g., a shelter) as required and meeting specifications determined by The Rapid and Mobile GR Department.

(e) *Parking cash out.*

1) A parking cash out program meeting the requirements of Section 5.10.04.F.3.b. below is made available to all employees.

b. A parking cash out program is a program in which the employer offers employees the option to accept taxable cash income instead of a free or subsidized parking space at work. The reimbursement shall be no lower than the monthly rate of the nearest public parking ramp or a commensurate ratio of the rate depending on days required in-office.

G. *Affordable Housing.* The number of required off-street parking spaces for developments that utilize the Affordable Housing Bonus as outlined in Articles 5 and 6 may be calculated at one-half space less per unit than what is required in Table 5.10.04.C.

H. *Micro-Units.* The number of required off-street parking spaces for developments that contain micro-units as outlined in Article 6 (Section 5.6.07.B.2.b.) may be calculated at one-half (0.5) less space per micro-unit than what is required in Table 5.10.04.C., as long as two (2) bike spaces are also provided per micro-unit. Bicycle spaces provided in association with this calculation shall be in an enclosed, secure facility located on the ground floor with an exterior entrance and paved access to the nearest sidewalk, road, or bicycle path.
(Ord. No. 2019-09, § 7, 3-26-19; Ord. No. 2019-10, § 5, 3-26-19; Ord. No. 2020-18, § 1, 6-16-20; Ord. No. 2020-21, § 10, 7-7-20; Ord. No. 2024-20, §§ 21, 22, 4-23-24; Ord. No. 2024-40, §§ 6, 7, 9-24-24)

Sec. 5.10.05. Off-Street Parking: Reductions in Parking Requirements.

A. *Parking Reductions - Procedures.*

1. Off-street parking requirements may be reduced by the Director or Planning Commission based on the requirements of this Section.

2. If the conditions by which any reduction approved under the provisions of this Section are changed or eliminated, the approved reduction shall no longer apply and parking shall be provided in accordance with this Article or the owner applies for another parking reduction.

3. Administrative Approvals of Parking Reductions.

   a. Off-street parking requirements may be reduced by up to fifty (50) percent upon a finding by the Director that the applicant meets the requirements for at least one (1) of the allowable reductions of this Section. The Planning Director may require that the request for allowable off-street parking reductions be reviewed by the Planning Commission as a Special Land Use based on the potential to affect neighborhood character, the absence of convenient public parking, or the results of a Parking Demand Study as provided in Section 5.10.04.A. demonstrating a potential need for parking.

   b. Administrative Departure. An Administrative Departure up to eight (8) required off-street parking spaces may be granted where the building footprint comprises ninety (90) percent or more of the lot, or the lot cannot otherwise accommodate the required parking by reason of shape, location, natural features or other physical constraint, even if the Departure results in a reduction greater than fifty (50) percent of the required parking.

4. Special Land Use.

   a. A Special Land Use may be approved to reduce parking requirements above fifty (50) percent or to eliminate any off-street parking requirement upon a finding that the applicant meets the requirements for one (1) or more of the allowable reductions of this Section.

   b. In reviewing a parking reduction, the Planning Commission shall consider the following factors, as applicable.

      i. The land use and development character of the area to be served by the parking facility, including the relative intensity of uses requiring parking, availability of transit, proximity of nearby employment centers and residential uses, and other relevant factors;

      ii. The availability of other publicly available parking in the area, including information such as number of spaces, any applicable restrictions (time limits, dedicated parking areas, etc.), or other uses also counting spaces in the same parking area for meeting parking requirements;

      iii. The timing of parking use relative to other uses in the area including information regarding hours of operation or other operational parking needs that would permit use of the spaces;

      iv. Whether the location of all provided parking meets the requirements of this Article;

      v. Whether compliance with Table 5.10.04.C. is made to the maximum extent practicable taking into account parking lot design and efficiency of the layout;

      vi. Whether other adjustments as described in this Section should apply in conjunction with or in lieu of the requested need-based adjustment; and

vii. Whether supporting documentation, if provided, adequately demonstrates that sufficient parking is available to meet projected typical demand.

B. *Mixed-Use Parking Coefficient.* Where the Director determines that a mix of land uses could reduce the number of required parking spaces, Table 5.10.05.F. below shall be used to calculate mixed-use parking requirements. The required parking for each use shall be totaled, and then divided by the appropriate mixed-use coefficient.

Table 5.10.05.B. Mixed Use Parking Coefficients	Residential	Lodging	Office	Retail	Other Commercial
Residential	X	1.1	1.4	1.2	1.1
Lodging	1.1	X	1.7	1.3	1.2
Office	1.4	1.7	X	1.2	1.1
Retail	1.2	1.3	1.2	X	1.0
Other Commercial	1.1	1.2	1.1	1.0	X

1. For example, for a mixed-use development containing office and retail uses:

   $(\text{Parking}_{\text{OFFICE}} + \text{Parking}_{\text{RETAIL}})\ (14 + 21) = 35 \div 1.2 = 29.17$ (30 rounded up)

2. If there are more than two (2) uses in the development, the required parking for all uses shall be totaled and divided by the lowest applicable coefficient. For example, for a mixed-use development containing office, residential, and retail uses:

   $(\text{Parking}_{\text{OFFICE}} + \text{Parking}_{\text{RETAIL}})\ (14 + 21) = 35 \div 1.2 = 29.17$ (30 rounded up)

   $(P_{\text{OFFICE}} + P_{\text{RESIDENTIAL}} + P_{\text{RETAIL}})\ (14 + 12 + 21) = 47 \div 1.2 = 39.17$ (40 rounded up)

C. *On-Street and Business District Parking.*

1. The use of on-street parking, publicly-owned business district parking lots (district lot), or parking structure spaces to meet a portion of the minimum off-street parking requirements shall be permitted as provided in Subsection A., above, provided the following conditions are met:

   a. Adequate on-street, district lots or parking structures exist within five hundred (500) linear feet of the primary entrance of the main building;

   b. No more than fifty (50) percent of the off-street parking space requirement is met through the use of on-street, district lot or structure parking;

   c. The intensity of the use and its parking requirements shall not substantially adversely affect available parking for surrounding uses; and

   d. There are no adverse effects on existing or planned traffic circulation patterns.

2. A Parking Demand Study as provided in Section 5.10.04.A. may be required to demonstrate that there are adequate available on-street, district lot, or parking structure spaces.

D. *Payment in Lieu of Parking.* A parking program may be instituted to develop publicly owned district parking lots or structures as opposed to individually owned and operated parking areas.

1. *Mixed-Use Commercial Zone Districts.* In lieu of providing the required off-street parking spaces for any development, a payment may be made under the provisions of Section 5.10.05.C.2. and 3. below.

2. *Parking Facilities Account.*

   a. The purpose of the Parking Facilities Account as set forth in Chapter 31 of the City Code, is to fund the planning, designing, acquiring, building, financing, and developing, but not maintaining, of public off-street parking facilities designated by the City Commission as

serving the TN-CC Zone District. The Parking Facilities Account may also be used for other alternatives to the provision of parking facilities in the Zone District, including Transportation Demand Management measures.

b. Chapter 31 shall establish an amount which, if paid to the Parking Facilities Account, shall constitute provision of one (1) off-street parking space. Chapter 31 also sets forth conditions for partial in-lieu payments and recording of in-lieu payments.

3. *Special Assessment.* The City may, as part of any special assessment levied to defray a portion of the cost of a parking facility, determine that the payment, or alternatively, the levy of a special assessment, shall constitute provision of a designated number of parking spaces for the building or structure, and any future building or structure, located on the property specially assessed. The determination of the number of parking spaces deemed to be provided, if any, shall be made at the time that the special assessment is levied.

E. *Alternate Modes of Transportation.* One (1) or more of the following methods may be used to reduce off-street parking requirements:

1. *Transit.*

a. Parking requirements may be reduced under the provisions of Section 5.10.05. for up to fifty (50) percent of required parking spaces for buildings, structures, or uses within a half mile of a Bus Rapid Transit (BRT) station or one-quarter of a mile of a transit stop.

b. A Transportation Demand Management (TDM) study may be required to demonstrate that a sufficient number of vehicle drivers already use or would immediately opt for transit, and therefore would not result in adverse parking impacts on surrounding properties.

c. The applicant shall provide a written statement from The Rapid verifying that the transit station or transit stop is in a permanent location for the foreseeable future.

2. *Alternative Vehicles.*

a. One (1) alternative vehicle parking space may count as four (4) regular parking spaces.

b. Alternative parking spaces shall be reserved, signed, and enforced for car-sharing services or for Low-Emitting and Fuel-Efficient Vehicles (vehicles that are either classified as Zero Emission Vehicles (ZEV) by the California Air Resources Board or have achieved a minimum green score of forty (40) on the American Council for an Energy Efficient Economy (ACEEE) annual vehicle rating guide).

c. Electric car spaces shall include a power outlet for use by the parked car. These spaces should be closest to the main entrance (exclusive of spaces designated for handicapped). Power outlets may count toward those required by Section 5.10.03.D.11.

3. Each parking spaces reserved, signed, and enforced for carpooling or vanpooling services may count as two (2) regular parking spaces.

4. *Reductions for Bicycle Facilities.*

a. Vehicle parking requirements may be reduced by one (1) space for every four (4) covered, secured bicycle parking spaces, including lockers, one (1) or more floor pumps, and a work stand are provided on site. These amenities must be made easily accessible to cyclists using the bicycle parking spaces.

b. Parking requirements may also be reduced by four (4) spaces where free showers and locker facilities are available for use within the building.

c. See Section 5.10.10.B.5. for requirements related to covered bicycle parking spaces.

F. *Shared Parking Agreements.*

1. *Mixed-Land Use.* Where a mix of land uses creates staggered peak periods of parking demand, shared parking agreements that have the effect of reducing the total amount of required parking spaces are encouraged. Shared parking agreements for off-street parking for two (2) or more buildings or uses is permitted subject to the following:
   a. The total number of required parking spaces for each use on each lot shall not be reduced by more than fifty (50) percent.
   b. Shared parking areas shall be located within three hundred (300) feet of the use.
   c. Adjacent lots shall be connected by drive aisles.
   d. Shared parking leases or agreements shall have a term of not less than five (5) years, including any renewals at the option of the lessee.
2. *Easements.* Written easements providing for the continued use and maintenance of shared parking shall be submitted to the Planning for review and approval. Any agreement shall include provisions to address changes in use and ownership. The agreement shall include a provision that, should the agreement be severed or modified, parking for the affected properties will be brought into full compliance with this Chapter.

(Ord. No. 2020-18, § 2, 6-16-20; Ord. No. 2024-20, § 23, 4-23-24; Ord. No. 2024-40, § 8, 9-24-24)

Sec. 5.10.06. Loading/Unloading Spaces.

A. *Purpose.* In all Zone Districts, every building or part thereof which is to be occupied by one (1) or more uses that require the receipt or distribution of materials or merchandise by vehicles shall provide and maintain off-street loading spaces as required by this Section.

B. *Location.*

1. Loading/unloading areas and docks shall be prohibited in the front yard or on any building side facing and directly visible from a street.
2. Loading/unloading operations shall not interfere with the normal movement of vehicular and pedestrian traffic in public rights-of-way, off-street parking areas, internal drives, or sidewalks.
3. No loading space that is adjacent to a Residential Zone District shall be nearer than thirty (30) feet to the Zone District line unless it is contained within a completely enclosed building, or enclosed on all sides by a wall or solid fence not less than six (6) feet high.
4. The vehicular path and turning radii to the loading area must be shown on the site plan to verify truck maneuverability for the largest truck intended to serve the use.

C. *Required.* Loading/unloading spaces shall be at least twelve (12) feet wide, thirty (30) feet long, and have fourteen (14) feet of clearance. Each additional required loading space shall be at least ten (10) feet in width, forty-five (45) feet in length, and have fourteen (14) feet of clearance.

D. The minimum number of loading spaces shall be provided in accordance with Table 5.10.06.D. Loading Space Requirements.

Table 5.10.06.D. Loading Space Requirements

Use Type	Measurement	Loading Spaces
Number of Residential Dwelling Units	0—24	None
	25—74	1
	75 or More	2
Non-Residential GFA (sq. ft.)	Up to 20,000	None
	20,001—75,000	2
	75,001—100,000	3
	100,001+	5
sq. ft.= square feet; GFA = gross floor area		

E. If only one (1) loading space is required, an alley may be used in lieu of the required loading space.

F. *Administrative Departure.* An Administrative Departure may be approved to reduce the size of loading spaces, or to modify the number of spaces and location requirements where another measure or location would be more appropriate due to site constraints or the number or type of deliveries experienced by a particular use.

Sec. 5.10.07. Mobility and Circulation.

A. *Purpose.*

1. The purpose of this Section is to establish mobility and circulation standards that give equal treatment to all modes of travel; allow reasonable access to properties; create a continuous network of non-motorized pathways within and between developments; maintain the capacity of existing public infrastructure as land development occurs; ensure safe access to and from streets by emergency vehicles; and reduce interference with through traffic by other vehicles, bicycles and pedestrians.

2. Streets should be capable of accommodating multiple modes of transportation and should facilitate the creation of a public realm designed primarily for people, characterized by:
    a. Pedestrian-friendly design that places a high priority on walking, bicycling, and use of public transit;
    b. Streets and blocks arranged to allow for comfortable walking distances, to disperse traffic and to reduce the length of vehicle trips;
    c. A connection to, and enhancement of, the existing street network;
    d. A recognition of the role of buildings and landscaping that contributes to the physical definition of streets as civic places; and
    e. Residential and business uses that have convenient access to existing and future transit stops.

B. *Street and Sidewalk Connections.*

1. Continuation.
    a. Streets and internal circulation drives shall be arranged to provide for the alignment and continuation of existing or proposed streets and drives into adjacent lots, developed or undeveloped.
    b. This provision shall not be construed as prohibiting the termination of streets at public street intersections where appropriate, provided that the overall connectivity of the street network is maintained, and intersections are adequately spaced as determined by the Traffic Engineering Department.
    c. Street continuations may be limited by a highway, waterway, open space, utility line, roadways with limited access restrictions, or development that is expected to remain, as determined by the Traffic Engineering Department.
    d. Where a public street is vacated, pedestrian access shall be preserved for the public where the connection is necessary to prevent circuitous routing.
2. Street and sidewalk connections shall be made between neighborhood commercial centers and adjacent residential neighborhoods, unless otherwise approved by Traffic Engineering.
3. At all locations where streets terminate with no street connection, but a future connection is planned or accommodated, a sign shall be installed at the location with the text "STREET TO BE EXTENDED BY THE AUTHORITY OF THE CITY OF GRAND RAPIDS."
4. The Final Plat or Site Condominium and the deeds for all residential dwellings shall identify all stub streets and include a notation that all street stubs are intended for connection with future streets on adjoining parcels of land.

C. *Cross Access Between Adjacent Uses.*

1. Internal vehicular circulation areas shall be designed to allow for cross access to adjacent lots with residential, nonresidential or mixed-uses.
2. A stub for future cross access shall be provided from the vehicular use area to all adjacent lots. Where cross access is deemed impractical by the Planning Commission or Director during Site Plan Review or Director Review on the basis of topography, the presence of natural features, or vehicular safety factors, the requirement for cross access may be waived provided that appropriate bicycle and pedestrian connections are made between adjacent developments or uses.

3. A cross-access easement shall be recorded with the Kent County Register of Deed prior to the issuance of a Building Certificate of Occupancy for the development.

D. *Block Length.*

1. Unless prohibited by environmental or topographic constraints, the average block length in a development shall not exceed six hundred (600) linear feet between the right-of-way lines of intersecting streets, nor exceed a block perimeter of one thousand eight hundred (1,800) feet measured along all sides of a block along the property lines.

2. When existing barriers limit extension of the street network, blocks shall be created to match the requirements in D.1. above to the maximum extent practicable. Barriers may include features such as a highway, waterway, open space, utility line, roadways with limited access restrictions, or development that is expected to remain.

3. Mid-Block Paved Pathways.

   a. In cases where the maximum block length and/or block perimeter is exceeded, paved pathways in easements or on open space lots shall be provided mid-block to connect parallel streets on the long side of the block in a location approved by the Director.

   b. The mid-block pathway shall be a minimum of ten (10) feet wide, and designed as a continuation of the streetscape, including materials and furnishings, and lighted using footlights, bollard lights, building lights, and/or adjacent street lights to provide for safety and visibility.

   c. The mid-block pathway requirement may be fulfilled by a permitted alley when a minimum five (5) foot pathway is provided.

4. In lieu of a mid-block pathway, a mid-building pathway with 24-hour public access may serve as a mid-block pathway.

5. Administrative Departure. Other options for a mid-block or mid-building pathway may be approved that fulfill the same function.

6. These requirements shall not apply to residential blocks created under the provisions of Chapter 64, Subdivision Regulations.

Sec. 5.10.08. Pedestrian Access and Circulation.

A. *Purpose.* Pedestrian access shall be required for all sites to improve the health, safety and welfare of the public by providing clear pedestrian pathways at perimeter and internal site locations to reduce pedestrian and vehicular conflicts, improve accessibility for persons with disabilities, and establish a multi-modal environment that is supportive of walking, biking and transit use. These requirements are also intended to promote healthier lifestyles by encouraging walking and bicycling over the use of a private vehicle for many daily activities, and to provide the means by which residents and visitor can be more engaged with their neighbors, coworkers, and fellow visitors.

B. *New Construction.* All sites on which any new construction occurs shall provide sidewalks conforming to City standards along all portions of the property which border a public street, excluding alleys.

C. *Minimum Width for Pedestrians.*

1. At least five (5) feet of sidewalk space shall be kept clean and clear for the free passage of pedestrians at all times.

2. Administrative Departure. Upon consultation with Traffic Engineering, a lesser width of clear area approved. In evaluating a request for an Administrative Departure, the following shall be considered:
    a. Street classification and current or expected volume of use;
    b. Vehicular and pedestrian traffic volumes and related public safety;
    c. Nature of vehicular and pedestrian traffic (e.g. children, etc.);
    d. Availability and practicality (i.e. convenience) of alternative pedestrian routes; and
    e. Time of day, time of week, time of year, and duration of obstructions reducing the minimum required width (e.g. outdoor dining spaces, etc.).

D. *Internal Pedestrian Circulation.*

1. Requirements for mid-block or mid-building pathways of Section 5.10.07.D. shall apply.
2. All attached single-family and multiple family residential, non-residential and mixed-use developments shall comply with the following requirements.
    a. Continuous internal pedestrian walkways shall be provided to connect off-street surface parking areas with the primary entrances of main buildings.
    b. At least one (1) pedestrian walkway with a minimum width of five (5) feet shall be provided from the internal pedestrian walkway network to the public sidewalk system. In the case of corner lots, connections shall be made to the sidewalks of both streets.
    c. All internal pedestrian walkways shall be distinguished from driving surfaces through the use of durable, low-maintenance surface materials such as pavers, bricks, or scored/ stamped concrete or asphalt.
3. Walkways in Parking Lots.
    a. Paved walkways shall be provided for access to adjacent parks, shopping areas, transit stops, anticipated walkways and institutions. Walkways shall either be dedicated sidewalks raised above the surface of the parking lot, or, if at the same level as the parking lot, clearly marked with striping and tactile alerts, and may use alternative materials, such as pavers.
    b. Each surface parking area that has fifty (50) or more parking spaces, or has any parking spaces more than three hundred fifty (350) feet from the front façade of the main building, shall have at least one (1) pedestrian walkway or sidewalk allowing pedestrians to pass from the row of parking furthest from the main building façade to the primary building entrance.
    c. The required walkway must be at least five (5) feet wide, shall not be within a driving aisle, and, where possible, shall be within a landscaped island running perpendicular to the primary building façade. If parking spaces are adjacent to a sidewalk, the sidewalk must be at least seven (7) feet to allow for vehicular overhang.

E. *Trail Connections.* Where trails exist or are planned, paths or sidewalks shall connect building entries to the trail system.

Sec. 5.10.09. Transit Access and Amenities.

A. *Transit Stops.* Where public transit service is available or planned, convenient access to transit stops shall be provided by means of public or private sidewalks or walkways. Any provided seating shall not obstruct a public sidewalk.

B. Where transit shelters are provided, they shall be placed in highly visible and well lighted locations for purposes of safety, subject to review by The Rapid.

C. *Landscaping.* Landscape and/or plaza areas are encouraged at transit stops.

Sec. 5.10.10. Bicycle Facilities.

A. *Minimum Required Spaces.*

1. Any development or addition to an existing development requiring vehicle parking spaces shall be required to provide bicycle parking. Table 5.10.10.A. indicates the number of required spaces based on the Use Tables of the Zone District. Calculations by area are based on gross floor area of the main building(s). Fractions shall be rounded up.
2. No bicycle parking is required for single-family detached, two-family, attached single-family dwellings, group living, aeronautical, utilities, and manufactured housing communities.
3. Mixed use developments shall calculate the total number of required spaces using the appropriate use category for each use in the development. Developments with multiple buildings shall calculate space requirements for each building.

Table 5.10.10.A. Required Bicycle Parking Spaces

Use	Required Spaces*	Other Requirements
Residential	1 per dwelling unit	50% of required spaces may be within garages provided the Director determines that the garage size and dedicated bicycle parking facilities are generally adequate to accommodate these spaces.
Government/ institutional, educational	1/5,000 sq. ft.	No fewer than 3 spaces shall be provided.
Commercial, retail sales, personal service, auto-oriented, regulated uses	1/5,000 sq. ft.	
Offices	1/10,000 sq. ft.	
Entertainment, hospitality and recreation	1/15,000 sq. ft.	
Industrial, transportation	1/20,000 sq. ft.	Office uses shall be calculated separately. No fewer than 3 spaces shall be provided.
Parking structures	1/20 parking spaces	Parking structures that are integrated with a separate principal use shall use the greater of the separate calculations for the use and the parking structure.

*After the first 20 required bicycle spaces, additional spaces shall be calculated at 50% of the table values.

B. *Location.*

1. Bicycle parking shall be within fifty (50) feet of the nearest publicly accessible building entrance, in well-lit areas clearly visible from the street, and on the same lot as the use being served. Facilities may be indoors or outdoors. If indoors, access shall be available to the public during business hours, at a minimum.

2. A pedestrian-accessible walkway shall be available between the outdoor bicycle parking area and the primary building entrance. Public sidewalks may be used to meet this requirement. An aisle width of at least five (5) feet shall be provided adjacent to any bicycle parking facilities to allow for maneuvering.
3. Racks shall be installed a minimum of two (2) feet from any entrance door, wall or other obstruction, except for wall-mounted bicycle racks, which may be mounted directly on a wall, and shall not be placed within ten (10) feet of a fire hydrant.
4. Bicycle lockers shall be inside, or to the side or rear of the main building, but not within any required setback, at a Required Building Line, or within a clear vision area. If indoors, lockers shall be accessible to the public during operating hours of the use(s) within the building.
5. Covered Bicycle Parking Areas.
    a. Covered bicycle parking is required for any development that requires twenty-five (25) or more bicycle spaces in accordance with Table 5.10.10.A., or to be available for use associated with a parking reduction as described in Section 5.10.05.D.4.
    b. Covered bicycle parking areas shall be sheltered from natural elements by locating them inside or under main or accessory structures, in bicycle lockers, under roof extensions, overhangs, awnings, carports or enclosures, or other similar methods.
    c. If bicycle parking is covered, the cover must be permanently attached to the ground or a structure, and must have at least seven (7) feet of clearance above the surface to which it is attached. Covered parking areas shall maintain at least five (5) feet of clear area for pedestrian use.
    d. Covered bicycle parking areas shall not be place forward of any required setback or Required Building Line and, if attached to a main building, shall meet all applicable setbacks.
6. Bicycle parking placement shall not conflict with pedestrian travel.
7. Parking Lots.
    a. Bicycle parking and access facilities may be placed in vehicle parking areas but shall not take the place of a required vehicle parking space or conflict with internal parking aisles.
    b. Each surface parking area with two hundred (200) or more spaces shall have at least one (1) dedicated bicycle lane extending from the primary street to the bicycle parking area. Lanes must be easily accessible for bicycles from the public right-of-way and nearby bicycle paths, and may be either raised above the surface of the parking lot, or, if at the same level as the parking lot, must be clearly marked with striping and tactile alerts, bicycle lane markings, and a contrasting color from the surface of the parking lot, and may also use alternative materials, such as pavers.

C. *Facilities.*

1. Designs of bicycle racks, docks, posts, and lockers are encouraged to be decorative, unique, and appropriate to the surrounding area or related to the use being served, and shall be maintained in good repair. Bicycle parking design should be incorporated whenever possible into building design and coordinated with the design of street furniture when it is provided.
2. Bicycle parking racks, docks, or posts shall be designed and installed to allow a bicycle to be locked to a structure, attached to the pavement, building, or other permanent structure, with two (2) points of contact to an individual bicycle frame. Racks, docks, and posts shall be designed to allow the bicycle frame and one (1) or both wheels to be locked with a U-lock when used as intended.

3. The parking surface shall be level and easily accessible from the public right-of-way, and designed and maintained to be mud and dust free, clear of ice and snow, and kept in good repair. The use of rock or gravel areas for bicycle parking is permitted provided that edging materials are used so that the bicycle parking area is clearly demarcated and the ground material is contained.

D. *Administrative Departures.*

1. Required bicycle parking may be reduced by an Administrative Departure when it is demonstrated that the level of bicycle activity at that location warrants a different amount. In no case shall fewer than three (3) spaces be provided.

2. The Director may permit public bicycle parking provided by the City within the street right-of-way to be counted toward meeting a portion of the minimum bicycle parking requirement for a parcel, as determined by the Director. To count toward the requirements, the spaces shall be on the same block and on the same side of the street. Credit for public bicycle parking spaces shall apply to parking for all uses on the parcel rather than any specific use.

3. The requirements of this Section not related to the required number of bicycle parking spaces may be modified, reduced, or eliminated if the Director determines that compliance is impractical or unnecessary.

Sec. 5.10.11. Private Streets.

A. *City Standards.* Private streets shall not be constructed, extended or relocated without express written approval by the Engineering, Planning, Traffic Engineering, Fire and Streets and Sanitation Departments and other departments as deemed necessary attesting that the proposed private street complies with all City standards.

B. *Approval.* Private streets shall be permitted where there is no opportunity or potential to establish a public street or plat the land.

C. *Application Requirements.* The following shall be submitted:

1. The name(s) and address(es) of the owner(s) and all other parties having any access interest in the private street.

2. The proposed name of the street as well as the proposed addresses for all new lots or parcels that would have a front or side lot line on the street.

3. A site plan showing all proposed lots or parcels that would have access by means of the private street, and also showing the location, grade, route, elevation, dimensions and design of the private street and any proposed extensions thereof, together with existing and proposed curb cuts and the location of and distance to any public streets which the private street is to intersect. Adjacent parcels of land and any buildings thereon shall be included in the site plan.

4. A utility plan showing the location of all public utilities including, but not limited to, water, sewer, telephone, gas, electricity and cable, to be placed within the private street easement or right-of-way or within twenty (20) feet of either side thereof.

5. A private street maintenance agreement to be approved by the City Commission. The agreement shall run with the land and shall be recorded with the Kent County Register of Deeds. It shall be recorded prior to issuance of a LUDS permit.

D. *Maintenance.* The private street shall be continuously maintained in a manner that it does not constitute a danger to public health, safety and welfare. All costs associated with the repair of the private street shall be the responsibility of the individuals and/or the property owners association(s) comprised of land owners served by the street.

E. *Access and Occupancy.* The private street shall be readily accessible to and usable by emergency vehicles in all weather. An occupancy permit required under Chapter 131 for a dwelling or other building, the primary access to which is to be provided by a private street, shall not be issued until the private street has been constructed with sufficient width, surface and grade to ensure the safe passage and maneuverability of emergency service vehicles.

F. *Street Frontage.* All lots and parcels of land with access to a private street shall have frontage on the approved private street right-of-way equal to the minimum lot width requirement of the Zone District in which the lot is located. A parcel with frontage on both a private and public street shall be considered a corner lot.

G. *Disclosure.* The following statement shall be included in any deed or other instrument of conveyance recorded for any lots or other parcels of land served by a private street:

"This property does not abut or front upon a public street. If a public street does not abut or serve the property, the street abutting or serving the property is a private street, and it is therefore not required to be maintained by the City of Grand Rapids."

H. *Performance Guarantee.* As a condition of approval of a private street and the issuance of a LUDS permit, the City may require that the applicant provide a performance guarantee in accordance with the provisions of Section 5.14.04., the release of which is conditioned upon the satisfactory performance by the applicant of the terms of this Section and any conditions of approval.

I. *Fee.* A fee set by City Commission resolution may be assessed for processing a private street application.

J. *Effect on New and Existing Private Streets.*

1. The provisions of this Section shall apply to all private streets designated or constructed on and after the effective date of this Chapter.

2. The entire private street, including the portion thereof existing prior to the adoption of this Chapter, shall comply with all requirements of this Section if an existing private street is extended by an increase in its length, or if lots or parcels of land with access to the existing private street are added.

ARTICLE 11. LANDSCAPING AND GREEN INFRASTRUCTURE

Sec. 5.11.01. Purpose and Intent.

A. *Purpose.* The purpose of this Article is to promote and protect public health, safety and general welfare by preserving and improving environmental conditions affected by the built environment through the effective and functional use of landscaping and green infrastructure, and to accomplish the purposes and intents of this Chapter.

B. *Quality of Life.* Protect and enhance community quality of life by using the natural environment to provide shade and visual relief; provide a buffer between potentially incompatible uses; and screen adjacent properties from the effects of noise, light, glare, and other adverse effects.

C. *Design.* Required landscaping should be creatively and architecturally designed to add four (4) seasons of visual interest, preserve or complement natural systems, and fit with the character of the surrounding area.

D. *Resiliency.* Maximize the benefits of the natural environment to create a more resilient community, including improvement of water quality through stormwater retention, providing a mix of plant materials to mitigate the effects of disease, allow air quality improvements, mitigate the effects of vehicle emissions, and preserve and enhance wildlife habitats.

E. *Economic Benefit.* Protect and enhance property values, the character and quality of residential neighborhoods, and the attractiveness and economic vitality of business areas; decrease energy consumption and costs for heating and cooling; and reduce demand on the City's public infrastructure and systems for flood control, stormwater management, potable water, and other public services and amenities.

F. *Stormwater Impact.* Reduce stormwater effects and costs associated with site grading, flooding, erosion, expansion of impervious surface areas, and removal of vegetation.

G. *Health Benefits.* Decrease the urban-heat island effect on high heat days for vulnerable populations, provide benefits for physical activity by using shade to improve pedestrian comfort, improve air quality for persons with breathing problems, provide opportunities for quiet respites in urban environments, and offer connections to nature to help manage stress.

H. *Tree Preservation and Tree Canopy Coverage.*

1. Sustain and enhance the functions and benefits of vegetation by conserving trees, preserving tree canopy wherever feasible, and increasing canopy coverage through proper protection and planting to better bring trees to maturity.
2. The requirements relative to tree canopy preservation on each parcel bears an essential relationship to the City's and residents' interest in the preservation of the totality of Grand Rapids' canopy coverage, recognizing that it is the sum of each parcel's gain or loss of trees through land development activities that combine to produce a benefit for all.
3. Through application of these carefully measured regulations, the City finds that the burden on each parcel for the maintenance of tree canopy when redevelopment occurs will bear a rough proportionality to the important benefits gained from overall tree canopy preservation and replacement.

I. *Community Priorities.* Support achievement of the goals and priorities contained in officially adopted plans and policies, such as the Master Plan, Parks and Recreation Master Plan, Green Grand Rapids Plan, Sustainability Plan, Stormwater Master Plan, and Urban Forest Plan, and other adopted plans and policies of the City.

Sec. 5.11.02. Applicability.

A. *Type of Projects.* The requirements of this Article shall apply to all development projects that require a Land Use and Development Services (LUDS) permit and are, at a minimum, subject to the following provisions in addition to this Article.

1. *Nonconformities.* Any change to the use of a lot, building or structure is subject to the provisions of Article 3, and Section 5.3.06. Nonconforming Site Elements of this Chapter.
2. *Chapter 42 Trees.* Director or Planning Commission approval of landscape plans shall be subject to compliance with Chapter 42 of the City Code and other City regulations and policies pertaining to trees.

B. *Approval Required.* No removal of vegetation, ground cover or trees shall be undertaken once an application for an approval required by this Chapter is submitted, or prior to the issuance of a LUDS permit, where required.

C. If two (2) or more conflicting landscape or open space requirements apply to the same area, that which requires the most landscaping or open space shall apply.

Sec. 5.11.03. Landscape Plan Submittal Requirements.

A. A landscape plan shall be submitted as part of Director or Planning Commission approval, subject to the provisions of this Article and Article 12 Application and Review Procedures.

B. Landscape plans shall include, but are not necessarily be limited to, the following information, unless waived by the Director as being unnecessary. Additional information may be required by the Director or Planning Commission as necessary to evaluate the landscape plan.

1. *Existing and Proposed Features.*
    a. Existing and proposed site contours on the project site and one hundred (100) feet beyond the site lot lines, at intervals not to exceed two (2) feet.
    b. Delineation of natural rivers, wetlands, streams and water bodies, or other sensitive environmental areas that may influence water quality and/or stormwater discharge rates shall be delineated on final plats, condominium documents or site plans with a clear notation of use restrictions.
    c. Woodlands, wildlife areas, and steep slopes.
    d. Location, height and type of any berms, fences or walls measuring thirty (30) inches or higher.
    e. Location of all overhead utilities.
2. *Tree Protection and Canopy.*
    a. A Tree Inventory displayed as a map or plan with a list and description of the species, condition, and size for all trees six (6) inches in diameter at breast height (DBH) or larger that are within the project site or portion thereof, in those areas affected by development, and within twenty (20) feet of the project boundary.
    b. The percent of tree canopy by tree species shall be provided. The City of Grand Rapids Urban Tree Canopy Analysis Map (2015), as may be updated from time to time, is recognized as determinant of tree canopy coverage for the purposes of this Chapter.
    c. A Tree and Root Protection Plan showing tree protection and root protection zones shall be defined. Methods and details for protecting existing vegetation during construction as required in Section 5.11.10.
3. *Planting Plan Requirements.*
    a. Identification (including location, species, condition, and tree size) of existing trees, vegetation, and other landscape elements to be removed or retained. The reasons for removal shall be noted. Unhealthy trees, as defined, shall be exempt from tree replacement requirements.
    b. Location, size, spacing, and species of proposed plant material, including plant lists showing the required and proposed quantities. Where tree replacement is required or proposed, a table that corresponds to the plan shall be provided that lists the quantity and size, by species, of each tree to be planted.

c. Calculations verifying the minimum landscape area, required greenspace, trees, and plant materials required under this Article shall be provided as part of the Landscape Plan.

d. Specifications on soil depth, soil type/mix, open soil surface area, and planting methods.

e. Description of temporary and permanent irrigation methods for trees and landscape areas.

f. Typical cross section, including slope, height, and width of berms and the type of ground cover to be placed on them.

4. *Maintenance.*

a. Description of landscape maintenance program, including statement that all diseased, damaged or dead materials shall be replaced in accordance with the requirements of Section 5.11.07.H.

b. Maintenance of rain gardens and other similar features shall comply with the standards and requirements of the City's Environmental Services Department.

Sec. 5.11.04. Landscape Plan Review Standards and Administrative Departures.

A. *Review Standards.* The Planning Director and the Planning Commission shall use the following review standards in reviewing landscape plans.

1. The applicable Site Plan Review standards of Section 5.12.08.shall be met.

2. Landscape plans shall generally meet the Intent and Purposes of Section 5.11.01.

3. Site design and architectural layout activities shall preserve existing trees, other significant vegetation, and natural features to the greatest extent practicable and reduces the risk of damaging these features through changes of grade, soil moisture, and other alterations of the site. This includes, but is not limited to, the layout and design of buildings and associated site improvements including auguring, jacking, or boring to install utilities (as opposed to open cutting).

4. Provided landscaping and buffering helps block potential negative impacts related to noise, lighting levels, and activity through the use of denser landscape screening and/or a fence or wall visually softened by clustered plantings, creatively and architecturally designed, as appropriate to the character of the surrounding area.

B. *Administrative Departures.* In addition to the specific Administrative Departures provided in this Article, Administrative Departures from strict compliance of this Article may be approved, after consultation with the City's Environmental Services Department or City Forester as appropriate, where an applicant can demonstrate that any of the following conditions are applicable to the site.

1. Space limitations on the site or prevailing development patterns in the surrounding neighborhood justify alternative compliance.

2. Safety considerations warrant flexibility on the site.

3. The proposed alternative is equal to or superior in its ability to meet the purpose and intent of this Article and Section 5.12.08.

4. No other practicable alternative in the placement of a building, structure, street or utility construction, access drive, stormwater management facility, trail or pathway, or other site improvement that inhibits compliance with this Article is available.

Sec. 5.11.05. Natural Feature Protection: Site Grading and Steep Slopes.

A. *Design.* To avoid unnecessary site grading and disturbance of steep slopes, architectural and site designs that respond to a site and its topography shall be used.

B. *Grading.*

1. The general site topography and any natural landforms unique to the property shall be maintained and made part of the development to reinforce the neighborhood character.

2. Proper grading and elevation relationships to adjacent properties shall be maintained. All necessary grading shall complement natural landforms.

3. The most significant slopes and ridgelines shall be maintained in their natural state by clustering development.

4. Stormwater. Stormwater runoff that could result from major changes in topography shall be minimized.

5. Phased Construction. Large tracts shall be graded in workable units following a scheduled timeline so that construction does not result in large areas left bare and exposed to seasonal runoff.

C. *Slopes.*

1. *Cut and fill slopes shall be minimized.* Unstable slopes or slopes subject to erosion shall be protected. Slopes shall be re-vegetated using low-maintenance techniques.

2. *Steep Slopes.* Grading or removal of vegetative cover shall not be permitted on land with existing steep slopes (grade of twenty (20) percent or greater). Areas containing existing steep slopes shall be included as open space and not be a part of a building site.

D. *Administrative Departure.* Where steep slopes or other topographical or natural features make full compliance impractical or impossible, an Administrative Departure may be approved for grading on steep slopes where:

1. The contiguous surface area of steep slopes is less than ten thousand (10,000) square feet; or

2. There is insufficient area outside of stream and wetland buffers per Section 5.11.06.D.1. for required sedimentation and erosion control measures.

Sec. 5.11.06. Natural Feature Protection: Water Resource Protection.

A. *Purpose and Intent.* Water resource protection requirements are intended to reduce the effect of the built environment by preventing the chemical, physical, and/or biological degradation of water systems. These systems provide flood control, reduce pollution, maintain and enhance water quality, provide fish and wildlife habitat, and preserve open space. Protection areas shall be assigned to buffer high-value environmental features, while various innovative approaches in stormwater management and mitigation techniques will allow for the development of sites while preserving the functions and values of the environmental features.

B. *Chapter 32. Stormwater Management.* In addition to the requirements of this Article, development and land-disturbing activities shall comply with Chapter 32 of the City Code and other City policies pertaining to stormwater management, soil erosion and sedimentation control, and floodplains.

C. *Low Impact Development (LID).* Stormwater retention and detention facilities, as well as any contributing conveyance features designed to improve water quality through pretreatment techniques prior to discharge, shall be exempt from the provisions of this Section. The SEMCOG Low Impact Development Manual for Michigan or another comparable document shall be referenced to determine the appropriate Best Management Practices.

D. *Environmental Features.*

1. For the purposes of this Chapter, environmental features shall include rivers, wetlands, streams, water bodies, or other sensitive environmental areas that may influence water quality and/or stormwater discharge rates, but does not include artificial water bodies such as industrial mining pits and concrete-lined canals, areas with existing riparian floodwalls, or decorative landscape ponds.
2. Boundaries of features shall be determined by a qualified, credentialed consultant using methods accepted by Federal, State or regional permitting agencies, including the Michigan Department of Environmental Quality and the U.S. Army Corps of Engineers.

E. *Protection Areas.*

1. The area within seventy-five (75) feet of an existing environmental feature shall be considered a protection area. Grading, removal of vegetative cover, new structures and paving shall not be permitted within the protection area.
2. New plantings within the protection area must be native species. Table 5.11.06.E., Permitted Trees Near Water Features, identifies tree species that are permitted within a protection area that contribute to water uptake calculations upon review from the Environmental Services Department.

Table 5.11.06.E. Permitted Trees Near Water Features	
Botanical Name	**Common Name**
Juglans Nigra	Black Walnut
Salix spp.	Willow
Populus spp.	Cottonwood, Poplar, Aspen
Acer Saccharinum	Silver Maple
Catalpa Speciosa	Catalpa
Ulmus Rubra	Slippery Elm

3. Administrative Departure. The protection area may be reduced to fifty (50) feet from the environmental feature provided all of the following conditions are met.
   a. Site landscape features, such as vegetation and steep slopes, will be preserved in their natural state insofar as practicable by minimizing tree, vegetative cover and soil removal, alteration of natural drainage courses, and the amount of cutting, filling, and grading.
   b. Natural features and existing site topography have been incorporated into the proposed site design to the maximum extent practicable.
4. Special Land Use.
   a. The Planning Commission may approve a reduction of less than fifty (50) feet from the protection area to the distances noted in b., below, where:
      i. The conditions for an Administrative Departure of 3. above are satisfied;
      ii. The applicant has demonstrated that there is no practicable alternative; and
      iii. The removal of protection within this area will not result in a loss of habitat, hydrologic function, or erosion control.

b. The following reductions from the protection area may be approved by the Planning Commission.

i. To less than twenty-five (25) feet for public recreational facilities and improvements.

ii. To a minimum of twenty-five (25) feet for all other uses.

5. Residential Areas. Wetlands in residential plats or site condominiums shall be located in designated open areas, and not in areas designated for development, unless the City's stormwater engineer determines that another suitable location cannot be reasonably achieved.

6. Serviceable Structures. Water and sewer lines, bridge abutments or approaches, transportation structures, or other infrastructure may be developed and maintained within or near an environmental feature with approval from all applicable local, state, and/or federal agencies.

Sec. 5.11.07. General Standards for Landscaping and Planting.

A. *Required Vegetation.* All areas not covered by buildings, parking areas, driveways, walkways, pedestrian plazas or other pedestrian-oriented impervious surfaces or water surfaces shall be planted with living vegetation, including canopy trees, shrubbery and ground covers.

B. *Berms.*

1. Berm slopes shall not exceed a four to one (4:1) horizontal to vertical ratio, with a top width of at least one-half (½) the berm height, and a maximum height of three (3) feet above the base of the berm.

2. Berm slopes shall be stabilized with a ground cover or suitable vegetation and properly located outside of clear vision areas.

3. When constructed, berms shall retain in good condition existing healthy vegetation designated for preservation.

4. Administrative Departure. Berm heights up to five (5) feet may be permitted provided that stormwater management is not impaired.

C. *Topsoil.*

1. Soil shall be provided at a volume equivalent to plant size to ensure health and longevity.

2. Topsoil shall be installed with a minimum depth of four (4) inches for lawn areas, and eight (8) to twelve (12) inches within planting beds. Volumes for larger plants are correlated to plant type in Table 5.11.08.B. Minimum Plant Requirements. For the purposes of this calculation, the maximum soil depth is three (3) feet. Structural soil volume may count towards thirty-three (33) percent of total soil volume.

3. Topsoil for landscaping shall be clean, good quality loam topsoil, dark in color with visible organic content and neutral pH. Topsoil must not contain underlying soils, debris, or stones greater than one-half (½) inch. Topsoil shall be of uniform quality and free from hard clods, stiff clay, sod, or other undesirable materials.

D. *Stabilization.* All landscape planting areas shall be stabilized and maintained with seed, sod, ground covers, mulches or other approved materials to prevent soil erosion and allow rainwater infiltration.

E. *Planting Beds.* Bark used as mulch shall be maintained at a minimum depth of two (2) inches. Mulch shall be spread in a manner that avoids soil compaction. Planting beds shall be edged with plastic, metal, brick or stone in residential Zone Districts and metal edging in all other Zone Districts.

F. *Timing of Planting.* All required plant material shall be planted prior to issuing a Building Certificate of Occupancy. In the event that the project is completed during a time of year when planting is impractical, a performance guarantee meeting the requirements of Section 5.14.04. in the amount of the remaining improvements may be required.

G. *Completion of Improvements.* Tree stakes, tree ties and tree wrap shall be removed after completion of the initial growing season.

H. *Maintenance.*

1. Plant materials and landscape areas, including lawn, shall be maintained substantially weed- and debris-free, neat and orderly in appearance, and in healthy growing condition in accordance with the approved site plan.
2. Plants shall be controlled by reasonable pruning, trimming, or other suitable and acceptable methods so that they do not interfere with public utilities, restrict pedestrian or vehicular access, or constitute a traffic hazard.
3. Replacement of Plant Material.
    a. Unhealthy, withered, severely pruned, diseased or dead plants shall be replaced within one (1) year or the next appropriate planting period, whichever comes first.
    b. The property shall maintain any required plant material for one (1) year after the initial planting and replace any material which fails to survive or does not exhibit normal growth characteristics of health and vigor, as determined by the City Forester.
    c. The one (1) year periods shall begin after the approval of the planting by the City Forester and shall recommence as material is replaced.
    d. Specific tree replacement requirements are provided in Section 5.11.10.E.

I. *Credit for Existing Vegetation.* Existing healthy, well-formed trees and shrubs may be credited towards the requirements of this Article provided the vegetation is identified on the landscape plan, protected from harm during construction, located in an appropriate place, and maintained in a healthy growing condition. All attempts to conserve established, high-quality canopy trees shall be made.

Sec. 5.11.08. Plant Material Requirements.

A. *Plant Materials.* All plant material shall be hardy to the Grand Rapids area (generally Plant Hardiness Zone 6), be free of disease and insects, and conform to the American Standard for Nursery Stock of the American Nurserymen.

B. *Minimum Plant Requirements.*

1. The minimum plant size at planting, spacing, and soil volume necessary for healthy vegetation shall be provided in accordance with Table 5.11.08.B. Minimum Plant Requirements.

Table 5.11.08.B. Minimum Plant Requirements

Plant Material		Minimum Plant Size	Spacing on Center (ft.)	Soil Volume (cu. ft.)
Canopy/Shade Trees	Small	1.5 in. caliper	25 ft.	250
	Medium	2.5 in. caliper	35 ft.	500
	Large	2.5 in. caliper	45 ft.	750
Ornamental Trees		2.0 in. caliper	15 ft.	200
Evergreen Trees		5.0 ft. height	15 ft.	200
Shrubs		3.0 ft. height	3 ft.	N/A

2. Up to three (3) trees may be planted in the required minimum volume of topsoil if the topsoil volume is contiguous.
   a. Each additional small tree (over three (3)) planted in the same contiguous topsoil volume shall require an additional one hundred twenty-five (125) cubic feet of topsoil per tree.
   b. Each additional medium or large tree (over three (3)) planted in the same contiguous topsoil volume shall require an additional three hundred seventy-five (375) cubic feet of topsoil per tree.
3. The spacing requirements may be reduced to permit closely spaced evergreen plantings when used to form a complete visual barrier, provided the viability of the plant is not compromised.
4. Caliper measurements required in accordance with this Chapter shall be measured six (6) inches above the ground for trees up to and including four (4) inches in diameter; and twelve (12) inches above the ground for trees greater than four (4) inches in diameter. Diameter at breast height shall be measured at four and one-half (4 ½) feet above existing grade.

C. *Mixture of Non-Tree Species.* The landscape plan shall not contain more than thirty-three (33) percent of any single plant species. At least seventy (70) percent of new plantings shall be species native to Michigan.

D. *Mixture of Tree Species.* The landscape plan shall not contain any more than thirty-three (33) percent of any single tree genus. At least fifty (50) percent of tree plantings shall be species native to Michigan.

E. *Lawn Grasses.* Lawn grasses shall be planted in species normally grown as permanent lawns in the Grand Rapids area as determined by the Director in consultation with the City Forester.

1. Generally, grasses may be plugged, sprigged, seeded or sodded. When complete sodding or seeding is not used, nursery grass seed shall be sown and mulched for immediate protection until permanent coverage is achieved. Grass sod and seed shall be free of weeds and noxious pests or disease.
2. In swales and other areas susceptible to erosion, rolled sod, erosion reducing net or suitable mulch shall be used, and shall be staked where necessary for stabilization.

F. *Uncredited Tree Species.*

1. Uncredited Tree Species as listed in Tree Manual and Standards of Practice used by the City's Environmental Services Department and Table 5.11.08.F. are species that are permitted but shall not be credited toward required landscaping because of their brittleness, susceptibility to disease and insects, overly expansive root structure, excessive litter, and or other undesirable characteristics.
2. Uncredited tree species may be counted as trees for the purpose of counting towards the tree canopy requirement of Section 5.11.09. where appropriate.

Table 5.11.08.F. Uncredited Tree Species

Botanical Name	Common Name
Fraxinus	Ash
Juglans Nigra	Black Walnut
Pyrus Calleryana	Callery Pear
Catalpa Speciosa	Catalpa
Populus Spp.	Cottonwood, Poplar, Aspen
Gingko Biloba (female)	Female Gingko
Morus Spp.	Mulberry

Table 5.11.08.F. Uncredited Tree Species	
Botanical Name	**Common Name**
Maclura Pomifera	Osage Orange
Pinus Sylvestris	Scots Pine
Ulmus Pumila	Siberian Elm
Acer Saccharinum	Silver Maple
Ulmus Rubra	Slippery Elm
Salix Spp.	Willow

3. *Prohibited Tree/Shrub Species.* Planting the species as listed in the Tree Manual and Standards of Practice and Table 5.11.08.G. is prohibited in the city due to their invasive nature.

Table 5.11.08.G. Prohibited (Invasive) Tree/Shrub Species	
Botanical Name	**Common Name**
Acer Ginnala	Amur Maple
Elaeagnus Umbellata	Autumn Olive
Robinia Spp.	Black Locust
Acer Negundo	Box Elder
Rhamnus Cathartica	Common Buckthorn
Phragmites australis	Common Reed
Butomus umbellatus	Flowering Rush
Alliaria petiolata	Garlic Mustard
Polygonum sahalinensis (Fallopia sachalinensis)	Giant Knotweed
Rhamnus Frangula	Glossy Buckthorn
Berberis Thunbergii	Japanese Barberry
Fallopia japonica	Japanese Knotweed
Populus nigra var. italica	Lombardy Poplar
Rosa Multiflora	Multiflora Rose
Acer platanoides	Norway Maple
Lythrum salicaria	Purple Loosestrife
Elaeagnus Angustifolia	Russian Olive
Centaurea Biebersteinii	Spotted Knapweed
Ailanthus Altissima	Tree of Heaven

Sec. 5.11.09. Minimum Tree Canopy.

A. *Purpose.* The tree canopy requirements are designed to ensure a sufficient tree coverage to provide an attractive landscape that protects and enhances property values; that provides shade and visual relief, stormwater retention, air and water quality improvements, and buffering and screening from noise, lights and glare; and supports achievements of the City's forty (40) percent canopy goals and other goals contained in the City's Master Plan, Green Grand Rapids Plan, Sustainability Plan and Urban Forest Plan, and other applicable plans as may be adopted by the City.

B. *Applicability.* The minimum tree canopy provision shall apply to each lot in its entirety, including driveways and shall include trees located within the public right-of-way. The most current City of Grand Rapids Urban Tree Canopy Analysis Map is recognized as the determinant of tree canopy coverage for the purposes of this Chapter. The following shall comply with minimum tree canopy coverage requirement.

1. New development that necessitates Site Plan Review or a LUDS permit, including single-family homes as part of a multiple-lot development. Single-family attached, single-family detached, or two-family residential units on an individual, existing lot are not required to meet the provisions of this Section.

2. Existing development that necessitates site plan review or a LUDS permit, excepting Section 5.11.09.C. below.

3. Any change to the use of a lot, building or structure per the provisions of Section 5.3.06. Nonconforming Site Elements.

C. *Canopy Distribution.* The tree canopy shall be distributed throughout the site or lot, in parking lots, within the adjoining street rights-of-way, and within the side, front, and rear yards of the lot.

D. *Tree Credit.* Where tree canopy is insufficient to meet the tree canopy provisions, credit may be given for proposed or recently planted trees. The expected square-foot contribution of each planted tree will be based on Table 5.11.09.D. Trees that have been planted within thirty-six (36) months of the date of the application for zoning approval and are in good, healthy condition shall be credited toward tree canopy coverage at maturity so long as sufficient soil volume has been provided and the tree species is on the approved list for planting.

Table 5.11.09.D. Tree Canopy Credit

Canopy/Shade Tree	Minimum Plant Size (caliper inch)	Canopy Cover at Maturity (sq. ft.)	Crown Diameter (ft.)
Small	1.5	400	25
Medium	2.5	900	35
Large	2.5	1,600	45

E. *Protecting Existing Canopy.* Existing trees shall be conserved to the greatest extent possible. Where existing trees are to be retained to meet the Tree Canopy Requirements, those trees shall be protected as described in Section 5.11.10.

F. *Administrative Departures.*

1. Tree canopy requirements may be modified subject to meeting one (1) of the following options.

   a. Plant and maintain trees required to satisfy Tree Canopy provisions at another location agreed to by the City Forester; or

   b. Payment in lieu to the Grand Rapids Tree Bank's tree planting program for the purposes of preserving and increasing the community's tree canopy is allowed where tree replacement is not possible on the site. The payment shall be based on an inch by inch basis of the caliper of the lost tree, at a rate per inch as determined by ordinance of the City Commission.

2. Permanent planters, vegetated walls and green roofs that are accessible and safe for residential occupants may be used towards tree canopy calculations for mixed-income multiple family projects. These items shall be measured in square feet of surface area.

3. A reduction of not more than thirty-three (33) percent of the required tree canopy listed in each applicable zone district for a parcel may be permitted for development projects.

Sec. 5.11.10. Tree Preservation and Protection Requirements.

A. *Intent and Application.*

1. This Section establishes requirements for the conservation of trees. Existing vegetation shall be considered a site asset as mature site vegetation offers an established root system and broader urban forest canopy coverage than newly planted trees and shrubs. Therefore, existing vegetation should be protected as much as practicable before, during, and after site development.

2. Exemptions.

   a. Tree protection requirements do not apply to areas that are necessary for the construction by the City of sidewalks, roadways, public water and sanitary sewer.

   b. Unhealthy trees, as defined, shall be exempt from tree preservation and replacement requirements.

B. *Tree Preservation.*

1. *Site Layout and Design.*

   a. Landscape planning shall include the preservation of existing healthy trees. All reasonable efforts shall be undertaken in the architectural layout and site engineering design of the proposed development for buildings, driveways, sidewalks, bikepaths, stormwater management facilities, and parking areas to avoid unnecessary removal of protected trees to preserve existing protected trees.

   b. *Grading.* The required drainage and grading plan, including stormwater management facilities, shall be designed to avoid removal of protected trees in the tree preservation area thereby causing risk of loss through change in grade or moisture.

   c. *Utility Lines.* Proposed placement of all utility service lines shall be shown on the tree preservation plan. Every effort shall be made to protect existing protected trees during the placement of utility service lines including augering and/or jacking as opposed to open cutting as appropriate

2. *Adjacent Parcels.* Every effort shall be made during architectural and site engineering layout and design of the proposed development, including grading and utility placement, to preserve protected trees on adjacent parcels through sensitivity to the critical root zones of protected trees. The critical root zones of protected trees on adjacent parcels shall be carefully reviewed and consideration given during the preparation of the tree preservation plan.

C. *Tree and Root Protection Plan.* A Plan illustrating tree protection and root protection zones, methods and details for protecting existing vegetation during construction shall be required as part of any site modifications under the Land Use and Development Services (LUDS) Permit.

1. *Tree Protection Plan.* The Plan shall identify trees to be conserved. The Plan shall minimize the loss of soil and roots that will compromise the health and structural stability of trees. Compaction, soil structure damage, and water diversion shall be avoided. Roots and infrastructure conflicts shall be minimized.

2. *Tree Protection Zone (TPZ).*

   a. Each tree or group of trees to be retained shall have a designated TPZ around the drip line of the tree(s), the area of which may vary depending on species, factors, age and health of the plant, soil conditions, and proposed construction.

   b. The TPZ shall be established prior to any excavation, grading, trenching or boring, or demolition work, and remain in place until the completion of grading, landscaping, irrigation, or other work that may impact the tree or Critical Root Zone.

3. *Critical Root Zone (CRZ).*

   a. The Critical Root Zone shall include any tree roots present on the property to be disturbed, including roots from adjacent properties.

b. No more than thirty-three (33) percent of a single tree's Critical Root Zone shall be disturbed within a Tree Protection Zone. If more than thirty-three (33) percent of a single tree's Critical Root Zone is disturbed, that tree will not be counted towards meeting minimum tree canopy requirements.

4. *Barriers.* Tree protection fencing, notes and details shall be shown on the required landscape plan. The zone may be accomplished by physical barriers or soil protection layers or treatments. Barriers shall be erected before demolition, grading, or construction begins and remain in place until LUDS final inspection.

5. No impervious material, chemicals, vehicles, or other deleterious material shall be placed under the drip line, and a tree protection fence shall be installed around the Critical Root Zone during construction to limit disturbance.

D. *Tree Damage.*

1. The Director shall require any damage to preserved trees during construction to be mitigated, which may include limb pruning, root pruning, wound cleaning, watering, fertilizing, and any other industry accepted methods as determined by the City Forester. Any damage that is determined to be lethal and not correctable through mitigation shall cause the tree to be removed and replaced.

2. Removal of more than twenty-five (25) percent of the leaf surface of a tree within an annual growing season shall be considered tree removal and necessitate replacement.

E. *Replacement Trees.*

1. Should any tree designated for preservation and included as part of minimum required landscaping under this Article fail to thrive as a result of pre-construction, construction, or post-construction activities, the owner shall:

   a. Calculate the caliper of the lost tree. The tree shall be replaced on an inch by inch basis.

   b. Develop a replacement plan for an equivalent caliper of new trees to be planted. Replacement trees shall be planted within the Tree Protection Zone or where soils have not been compacted by development activities.

   c. Plant replacement trees of similar species which, at maturity, will obtain the same height, spread and growth characteristics of the lost tree.

2. At the time of planting, any replacement trees shall be a minimum of two and one-half (2½) inches caliper.

F. *Administrative Departures.* The following Administrative Departures may be considered following consultation with the City's Environmental Services Department (ESD) and/or City Forester, as appropriate.

1. Tree removal may be permitted where at least one (1) of the following conditions exist.

   a. The City Forester or a recognized landscape professional (i.e. Certified Arborist, Landscape Architect, etc.) has determined the tree to be unhealthy; or

   b. A nuisance or threat to an existing structure, underground utility or to public health, safety or welfare exists; or

   c. Removal is required by the City or authorized agent within public rights-of-way, subject to the requirements of Chapter 42 of the City Code; or

d. In areas where large tree groupings (more than ten thousand [10,000] square feet of contiguous tree canopy) exist, thinning is permissible so long as the overall canopy percentage for the grouping is not reduced.

2. A change in tree species or reduction in and size, not to exceed one-half (½) inch per tree, may be permitted where new trees will provide a greater tree canopy benefit than the lost tree.

Sec. 5.11.11. Parking and Loading Area Landscape Requirements.

A. *Purpose.* This Section sets minimum design standards and requirements for parking lots and loading areas, including the visual and physical separation of parking lots and structures from sidewalks, streets and other land uses.

B. *General Requirements.* All off-street parking and loading areas shall comply with the paving and drainage requirements of Section 5.10.03.

C. *Minimum Screening.* Any side of a parking lot or loading area which abuts a public right-of-way, public walkway or park, or the Grand River (see Section 5.8.03.), shall be screened by one (1) of the architectural and/or landscape elements described in this Section. The following screening methods may be used singly or in combination, provided clear vision areas described in Section 5.2.15. are maintained:

1. *Type I - Architectural Screen.*

a. Walls used as a screening device shall be constructed of permanent, low-maintenance materials such as concrete, brick, or architectural block and shall have a minimum eighty (80) percent opacity. The material used shall be compatible with materials used in construction of the main building, but in no case shall include wire or chain link fencing, slatted fencing, painted or stained wood screens or unpatterned or unpainted concrete or concrete block.

b. Architectural screens should avoid a blank and monotonous appearance by using decorative patterns or architectural elements such as piers, pilasters or breaks in the wall.

c. Architectural screens shall not be less than thirty-six (36) inches nor greater than forty-eight (48) inches high.

d. An architectural screen may be placed at the lot line. A two-foot minimum buffer shall be provided between the architectural screen and the parking or loading area to accommodate the overhang of cars and protect the wall wherever cars are likely to park adjacent to the wall.

2. *Type II - Architectural Screen with Landscape Buffer.*

a. A minimum three-foot wide landscape buffer shall be provided in addition to the requirements of a Type I Architectural Screen, as described in C.1. above.

b. The landscape buffer shall be placed between the wall and the lot line. Groundcover, ornamental grasses, annual or perennial flowers, shrubs, trees or a combination thereof may be used to soften the appearance of the wall.

3. *Type III - Fence with Landscape Buffer.*

a. A decorative fence shall be installed at the lot line if used in combination with a Type IV or Type V landscape buffer described in C.4. and C.5. below.

b. The fence shall be constructed of painted decorative elements between thirty-six (36) and forty-eight (48) inches high. Wire or chain link fencing shall not be permitted adjacent to public rights-of-way.

4. *Type IV - Landscape Hedge Buffer.*

   a. A minimum five-foot wide landscape buffer, consisting of ornamental grasses, hedges, shrubbery, or other planted materials shall be provided.

   b. The buffer shall be at least three (3) feet high when planted, and shall be maintained to form a minimum visual screen of a maximum of four (4) feet high with eighty (80) percent summer opacity within two (2) years after planting.

   c. Planting boxes or raised planters, constructed of materials acceptable under Type I Architectural Screens in C.1. above may be used, provided the height and opacity of such elements meet the criteria established within this Subsection.

5. *Type V - Intermittent Landscape Buffer.*

   a. A minimum five (5) foot wide landscape buffer between the right-of-way and the parking area shall be provided.

   b. The buffer shall be planted with a minimum of one (1) canopy tree and ten (10) shrubs per thirty-five (35) linear feet of lot frontage, or fraction thereof.

   c. The landscape buffer shall cover a minimum of sixty-five (65) percent of the total distance of any one (1) lot line.

D. *Changes in Grade.*

1. In situations where the parking area is more than three (3) feet below or above grade at the lot line, a landscape buffer having a minimum width of three (3) feet shall be provided at the grade of the sidewalk.

2. A landscape buffer or architectural screen shall be provided between the right-of-way and the parking area, as described in this Section.

3. Banks, berms and terraces shall be covered with landscape elements subject to the approval of the Director. If a retaining wall is used and exposed to view, it shall comply with the Type II Architectural Screen with Landscape Buffer described in C.2. above.

E. *Interior Landscape Standards.* Canopy trees shall be located throughout parking lots to reduce the urban heat island effect by providing shade, grant visual relief to expanses of parking, and contribute to the orderly circulation of motor vehicle and pedestrian traffic.

1. Any parking lot designed for a capacity of fifteen (15) vehicles or more shall provide one (1) canopy tree for every fifteen (15) parking spaces or fraction thereof at regular intervals within the interior of a parking lot.

2. Any of the following tree planting methods may be used singly or in combination:

   a. Open soil landscape islands with a minimum area of two hundred fifty (250) square feet, and at least seven (7) feet wide.

   b. Covered soil landscape areas specially designed to accommodate tree root growth are permitted with engineered design methods including structural soil, sidewalk support, and soil cells. A minimum tree opening of three (3) feet by three (3) feet is required. Minimum soil volume shall be seven hundred fifty (750) cubic feet per tree.

   c. Open soil and covered soil planting hybrids connected to green space with root paths. Minimum soil volume shall be seven hundred fifty (750) cubic feet per tree. Green space area shall be included in soil volume calculations. Root paths may be used to connect to other covered soil landscape areas.

3. Tree planting areas may be aggregated. Site corners may count as approved planting areas.

4. If a pedestrian pathway is included as a component of a landscape island, the island shall be at least eleven (11) feet wide. The pathway shall be five (5) feet wide, with three (3) feet wide landscape areas.

F. *Administrative Departure.* An Administrative Departure may be granted for the following requirements.

1. Parking screening requirements of this Section where alternative screening methods continue to substantially satisfy the standards of this Article. The Administrative Departure may also eliminate or modify the screening requirement in whole or in part for any side of a parking lot adjacent to an alley when that screening would serve no beneficial purpose or alternate screening methods are needed for the purposes of security.
2. Soil volumes for interior landscape areas may be reduced to five hundred (500) cubic feet per tree where a unique site condition physically prohibits full compliance, it can be demonstrated that the estimated crown spread of parking lot trees will be a minimum diameter of twenty-five (25) feet at full maturity, and/or root paths are connected between tree plantings to equal a larger soil volume.

Sec. 5.11.12. Landscape Buffers.

A. *Applicability.* Landscape buffers shall be used where non-residential activities or intense household or group living situations would affect an existing residential use with glare, noise or exhaust or where the effect of incompatible uses or proportionately different structures cannot be mitigated through building design or transitional features.

B. Landscape buffers are required in the following circumstances or as may otherwise be required by this Chapter.

1. Where a parking lot, non-residential driveway or drive-through facility is adjacent to a residential use, public park, recreation facility or open space.
2. Where a building or structure in a mixed-use Commercial Zone District is two (2) or more stories higher than the buildings or structures in the adjacent residential or SD-OS Zone District, or as otherwise required as a Transitional Feature in Section 5.6.08.I.
3. Where a twenty-four (24) hour non-residential use of property is adjacent to a residential use, regardless of Zone District.
4. Screening for perimeter areas of mineral extraction uses.
5. When required as a condition of approval for a zoning approval required by this Chapter.

C. *Location.* The landscape buffer shall be located in the rear and side yards on the subject property extending from the lot line.

D. *Minimum Landscape Buffer Standards.*

1. The following minimum standards shall apply to Zone Districts in the Neighborhood Classifications shown in Table 5.11.12.D. below.

	Min. Buffer Width (ft.)		Plant Material per 50 Linear Feet	
Neighborhood	**Side Yard**	**Rear Yard**	**Trees**	**Shrubs**
Traditional	10	8	2	10
Mid-20th Century	10	10	3	15

Neighborhood	Min. Buffer Width (ft.)		Plant Material per 50 Linear Feet	
	Side Yard	Rear Yard	Trees	Shrubs
Modern	20	20	4	20

2. Minimum landscape buffer requirements in Special Districts shall be the same as those of the neighborhood classification that abuts the Special District. Where a Special District abuts more than one (1) neighborhood classification, the Director shall determine which requirements apply.

3. Species composition of trees shall include at least forty (40) percent large maturing deciduous canopy trees and at least forty (40) percent large maturing evergreen varieties, except where the Director, in consultation with the City Forester, approves other species and tree sizes based on site factors that physically prevent the larger sizes, such as existing overhead utilities.

4. At least seventy-five (75) percent of all shrubs shall be evergreen or a dense variety of deciduous bush that provides year-round screening.

5. The Director may determine that additional landscaping is required in the landscape buffer to ensure that any unusual adverse effects of the more intense use require additional mitigation.

E. *Reduction in Buffer Requirements.*

1. The minimum width of a required buffer may be reduced by up to one-third (⅓) with the installation of a six-foot high solid wall or fence along the lot line.

2. If a required perimeter landscape buffer abuts a public alley, then up to one-half (½) of the alley width may be credited towards the minimum width requirement.

3. Administrative Departure. If the land use relationships between two (2) abutting lots are such that a lesser buffer would be acceptable, the minimum width of the required buffer may be reduced as an Administrative Departure.

F. *Development within Landscape Buffer.*

1. The following items shall be permitted within the landscape buffer:

   a. Sidewalks, trails and bike paths; and

   b. Stormwater management facilities provided they do not interfere with the performance and maintenance of the buffer area.

2. The required buffer shall not contain any development, vehicle storage, dumpsters, outdoor storage, impervious surfaces or site features that do not meet the requirements of this Section.

G. *Buffer Review.* The Director shall review the buffer during a period of up to two (2) years after a Certificate of Completion has been issued to determine its screening adequacy and effectiveness. Where insufficient plant materials were originally installed, plant materials have died, or the buffer is otherwise deemed to be inadequate, the landowner shall remedy any noncompliant conditions in accordance with the replacement provisions of Section 5.11.07.H.3.

Sec. 5.11.13. Streetscape Design Standards.

A. *Purpose and Intent.* Streetscape improvements are intended to mitigate the effect of the built environment on the natural environment and to support a healthy environment for people. Street trees, in particular, provide shade and visual relief, improve air quality, contribute to noise reduction, calm vehicular traffic, reduce stormwater effects, and improve property values.

B. *Applicability.* Streetscape improvements shall be applicable to all development projects requiring a Land Use and Development Services (LUDS) permit and/or where sidewalks or other facilities in the right-of-way are to be installed or replaced.

C. *Streetscape Plan.*

1. Where an area streetscape plan has been approved, including, but not limited to, the Downtown Streetscape Design Guidelines, those design guidelines shall be used for new walking surfaces, street furniture, street trees, landscaping, and lighting fixtures in the public right-of-way.

2. Where an area streetscape plan does not exist, the following streetscape standards shall be used.

   a. *Streetscape Trees.* At least one (1) small tree shall be planted for each twenty-five (25) feet of lot frontage or any fraction over twenty-five (25) feet. As an alternative, one (1) medium or large tree may be planted for each forty (40) feet of lot frontage or for any fraction of forty (40) feet. Clustering of ornamental, medium, or large trees is permitted when utility conflicts or required clear vision areas prevent compliance with minimum spacing requirements.

   b. *Root Barrier.* Root barriers shall be installed within areas where there is less than seven (7) feet between the back of curb and the sidewalk to prevent root penetration and destruction of curbs and sidewalks.

   c. *Soil.* Topsoil per Article 5.11.07.C. shall be used for tree installation.

D. *Chapter 42 Tree Ordinance.* Plans for trees and other vegetation in City rights-of-way shall be reviewed and approved by the City Forester or designee per Chapter 42, and shall include, but not be limited to, tree species, removal, placement, installation and maintenance.

E. *Maintenance and Replacement by Property Owner.* The property owner shall be required to maintain street trees for one (1) year after the trees are planted, and replace any tree which fails to survive or does not exhibit normal growth characteristics of health and vigor, as determined by the City Forester. The one (1) year period after the approval of the City Forester shall begin at each planting and shall recommence as trees are replaced.

F. *Administrative Departures.* An Administrative Departure that reduces or eliminates streetscape improvements may be granted where one (1) or more of the following conditions apply:

1. The parkway is too narrow or is otherwise not conducive to the planting of trees or other streetscape improvements.

2. The right-of-way is under the control of the Michigan Department of Transportation and it does not desire street trees or other streetscape improvements at that location.

3. No site improvements are being made under the LUDS permit, or are limited in scope or a sufficient distance from the right-of-way.

Sec. 5.11.14. Urban Open Space.

A. *Applicability and Purposes.*

1. *Applicability.* The provisions of this Section shall apply to residential, commercial, and mixed-use development sites over one (1) acre and in SD-PRD, TN-CC, TN-TCC, TN-TBA or TOD Zone Districts.

2. *Purposes.* Urban open spaces should have a variety of functional, well-designed open spaces that enhance the quality of life for residents, businesses, and visitors. Urban open spaces should:

    a. Include a wide range of characters from small intimate spaces to larger neighborhood and community uses, including small parks and playgrounds to provide gathering spaces for neighborhoods;

    b. Be arranged and designed as part of an urban open space network that defines and connects neighborhoods and the larger community; and

    c. Be located within convenient walking distance of all residents and businesses

B. *Requirements.* Any permanent open space created in conjunction with a development project shall accommodate pedestrian activity, rest and recreational opportunities by users of the property. The following minimum requirements shall apply to Urban Open Space.

1. *Size and Type.* A minimum of five (5) percent of the gross site area shall consist of urban open space, unless otherwise specified in the bonus provisions, in addition to the green space requirement of the Zone District. Urban open space may include one (1) or more of the following:

    a. Formal plantings, public art or gardens;

    b. Squares, open front courtyards, plazas and parks; and

    c. Active recreation areas such as pools, ball fields, playgrounds, tennis courts and trails.

2. *Location.* Urban open space shall be readily accessible to and visible from the street, and connected to a public sidewalk.

    a. A minimum of twenty-five (25) percent of the perimeter of the urban open space shall abut a street.

    b. The open space shall be no more than three (3) feet above or below the adjacent sidewalk level and be designed in accordance with the Americans with Disabilities Act (ADA) accessibility requirements.

3. *Configuration.* The urban open space shall be compact, contiguous and serve as a focal point of the development.

    a. In order to avoid long and narrow spaces, the length of a park or plaza may not exceed three (3) times its width, except where specifically used as a connection to additional recreational resources recognized by the City, such as parks or trails.

    b. Buildings shall be oriented toward the urban open space.

    c. The urban open space should be located to receive the maximum amount of year-round natural light.

4. *Availability.* If open to the general public, the hours of availability to the public shall be at least 8:00 a.m. to 9:00 p.m. A plaque no more than four (4) square feet in area may be displayed stating the hours for public use. If additional building height is granted through the urban open space bonus provisions of Section 5.6.08, a public easement shall be provided to the City to ensure public access.

5. *Credit.* A reduction of not more than fifty (50) percent of the required urban open space may be granted if the Director determines that at least four (4) of the six (6) following pedestrian amenities are provided in a manner that enhances the quality of the urban space and exceeds the specific requirements of this Section:
    a. Seating elements exceeding that required by Section 5.11.14.B.6., including a sidewalk café, moveable seating, fixed individual seats, fixed benches, seat walls, planter ledges, seating steps, and other creatively designed seating areas that invite resting and gathering;
    b. Pedestrian lighting beyond that required to illuminate public rights-of-way at a minimum of two and one-half (2½) foot candles;
    c. Substantial use of pedestrian-oriented awnings, canopies or overhangs that provide sufficient shelter from the elements for pedestrians;
    d. Street furnishings, including, but not limited to, waste receptacles, bicycle racks, drinking fountains or shelters for transit stops, which are placed throughout the planned urban open space;
    e. Landscape planters of sufficient size and coverage area to enhance the overall project site;
    f. Ornamental fountains or waterfalls; or
    g. Sculpture or other public art installation.
6. *Seating Areas.*
    a. One (1) linear foot of seating area shall be provided for each thirty (30) square feet of plaza or park space.
    b. Ledges, walls or planters that are flat, between twenty (20) and thirty-six (36) inches above grade, with a minimum depth of eight (8) inches. A combination of seating methods is encouraged.
    c. To ensure that adequate seating is inviting for use by the public, a portion of the required seating must be located within ten (10) feet of a public sidewalk, where present.
7. *Trees.* The total footprint of the urban open space shall be at least fifty (50) percent shaded at maturity. One (1) large maturing tree with a minimum caliper of two and one-half (2½) inches shall be planted for each eight hundred (800) square feet of urban space and planted in accordance with Sections 5.11.07. and 5.11.08.
8. *Suitability of Urban Open Space.*
    a. The Planning Commission shall review all proposed urban open space during the Site Plan Review process to determine the general suitability and practicality of the urban open space. In reaching a determination, the Commission may consider all relevant factors and information, including, but not limited to:
        i. The goals and objectives of the Master Plan, Parks and Recreation Master Plan, Green Grand Rapids Plan, and any other City adopted plan;
        ii. Suitability of the urban open space for active or passive recreational use or preservation of natural features;
        iii. The need for specific types of open space and recreation in the Zone District and particularly in the general vicinity of the proposed development, taking into account the anticipated users of the open space and nearby land uses; and
        iv. The proximity or potential connectivity to other open space types.

b. If the Planning Commission determines the open space proposed (or portions thereof) to be unsuitable, a fee-in-lieu of the provision of open space, or a combination of fee and provision of a partial open space requirement may be used to meet the requirement if the Planning Commission finds that all of the following considerations are met, as applicable.

i. That the amount of urban open space required by the nature and development intensity of the use would yield a lesser benefit than paying the fee.

ii. That urban open space is available in adjacent or nearby developments within six hundred sixty (660) feet of the principal entrance(s) to each building that is equal to or in excess of the calculated area for all developments individually.

iii. That physical conditions unique to the site make it impractical to provide the required urban open space.

iv. That providing the required urban open space would hamper an efficient site layout.

C. *Exclusions.* The following areas shall not be counted as urban open space.

1. Private yards, individual lots or easements less than the minimum size required by this Section;

2. Driveways, parking areas and required landscape islands;

3. Stormwater management areas;

4. Land covered by structures not designated for active recreational uses; and

5. Designated outdoor storage areas.

D. *Ownership and Maintenance.* Open space areas shall be maintained as permanent open space. Examples include, but are not limited to, common ownership by a homeowners association, deed-restricted private ownership, or by dedication to the City or other appropriate public entity. All methods utilizing private ownership shall be in a form approved by the City Attorney, who shall review the documents to ensure perpetual maintenance and preservation of the site. Contact information of the responsible person for the open space shall be provided to the City as part of project application and kept current.

Sec. 5.11.15. Alternative Energy.

A. *Wind Energy Systems.* For the purposes of this Section, an "On Site Use Wind Energy System" is intended to primarily serve the needs of the consumer, but may be connected to the utility grid under certain circumstances. "Utility Grid Wind Energy Systems" are intended to serve the needs of the community and are connected to the utility grid. Applicable screening and buffering requirements shall apply. Wind energy systems are permitted as an accessory use in all districts, subject to the requirements of Table 5.11.15.A.

Table 5.11.15.A. Wind Energy Systems					
			Review Process		
Zone Districts	System Type/Height		Counter Review 5.12.09	Director Review 5.12.10.	Setback and Tower Height
All	On site use wind energy system tower	Under 60 ft.	Required	—	See Sections 5.11.15.A.1 and 11.15.A.2. for the maximum height permitted for the Zone District; bonus heights may be included.
		60 ft. or more	—	Required	
	Anemometer Tower	Under 60 ft.	Required	—	
		60 ft. or more	—	Required	
SD-OS; SD-IT; SD-IC	Utility Grid Wind Energy System		—	Required	No height limit on properties larger than 3 acres, subject to FAA regulations

1. *Setbacks.* No part of the wind system structure, including guy wire anchors, shall extend closer than ten (10) feet to the lot lines of the installation site. Where property is located on both sides of a public right-of-way, a wind energy system may be placed no closer than one (1) rotor radius from the closest edge of the right-of-way.

2. *Tower Height.*

   a. Tower height shall be defined as the total height from grade to the highest extent of any equipment, including roof-mounted systems. For roof-mounted systems, the height shall be measured from the connection point on the roof.

   b. The height of tower-mounted systems is limited by the size of the property upon which they are constructed. A circular fall zone with a radius of one and two-tenths (1.2) times the total height of the system must be completely contained within the property. For roof-mounted systems, a circular fall zone with a radius of one and one-half (1.5) times the system height must be completely contained within the property.

   c. For the purposes of cooperative wind energy sharing, two (2) or more properties may combine to allow greater system height.

      i. This arrangement shall be subject to Director Review of Section 5.12.16., or may be subject to Special Land Use procedures, at the discretion of the Director.

      ii. Properties entering into a cooperative arrangement must record a permanent cross-access easement with the Kent County Register of Deeds and provided a recorded copy to the Planning Department, describing the terms of the arrangement, and a survey of all properties showing the proposed location of the wind tower(s) and associated fall zones. The easement language must also be included with the title and property survey of all properties entered into the cooperative.

      iii. Any sharing of energy produced by a wind energy system operated under the terms of a cooperative agreement as described in this Section may be subject to state utility regulations.

3. *Historic Districts.* Wind energy systems in a designated Historic District or Historic Landmark shall be subject to the review and approval of the Historic Preservation Commission.

4. *SCADA (Supervisory Control and Data Acquisition) or Met (Meteorological) Towers.* SCADA and Met towers shall comply with the setback requirements of this Section. An operations and maintenance office building, sub-station, or related equipment or structures shall comply with any applicable requirements of the Zone District.

5. *Construction Codes, Towers, and Interconnection Standards.* Utility systems including towers shall comply with all applicable state construction and electrical codes and local building permit requirements, Federal Aviation Administration requirements, the Michigan Airport Zoning Act (Public Act 23 of 1950, MCL 259.431 et seq.), the Michigan Tall Structures Act (Public Act 259 of 1959, MCL 259.481 et seq.), applicable utility, Michigan Public Service Commission, and Federal Energy Regulatory Commission interconnection standards. The minimum FAA lighting standards shall not be exceeded. All tower lighting required by the FAA shall be shielded to the extent possible to reduce glare and visibility from the ground.

6. *Safety.*

   a. An On-Site Use Wind Energy System shall have an automatic braking, governing, or feathering system to prevent uncontrolled rotation or over speeding. All wind towers shall have lightning protection. If a tower is supported by guy wires, the wires shall be clearly visible to a height of at least six (6) feet above the guy wire ground anchors.

   b. All Utility Grid Wind Energy Systems shall be designed to prevent unauthorized access to electrical and mechanical components and shall have access doors that are kept securely locked at all times when service personnel are not present. All waste lubricants and cooling fluids shall be properly and safely removed in a timely manner from the site of the wind energy system.

   c. Safety Signs. A sign shall be posted near the tower or operations and maintenance office building that shall contain emergency contact information. Signs shall be placed at the street access to warn visitors about the potential danger of falling ice. These signs shall be in addition to any signs allowed in Article 15.

   d. The minimum vertical blade tip clearance from grade shall be twenty (20) feet for a wind energy system employing a horizontal axis rotor.

7. *Visual Effect.* A Utility Grid Wind Energy System project shall use tubular towers and all systems shall be finished in a single, non-reflective matte finish of similar design, size, operation, and appearance and, to the extent possible, shall be integrated into the architectural character of the main building. The applicant shall avoid state or federal scenic areas and significant visual resources listed in the Master Plan or in local, state or federal historic registers.

8. *Environmental Impact.*

   a. The applicant shall have a third party, qualified professional conduct an analysis to identify and assess any potential effects on the natural environment including, but not limited to, wetlands and other fragile ecosystems, historical sites and birds and wildlife. The applicant shall take appropriate measures to minimize, eliminate or mitigate adverse effects identified in the analysis.

   b. The applicant shall identify and evaluate the significance of any net effects or concerns that shall remain after mitigation efforts. The applicant shall comply with applicable parts of the Michigan Natural Resources and Environmental Protection Act (Act 451 of 1994, MCL 324.101 et seq.).

9. *Noise.* Small wind energy systems shall not exceed sixty (60) decibels, measured at the closest residential dwelling. This level may be exceeded during short-term events such as utility outages or storms.

10. *Electromagnetic Interference.*

    a. A Utility Grid Wind Energy System shall not be installed in any location where its proximity to existing fixed broadcast, retransmission, or reception antennas for radio, television, or wireless phone or other personal communication systems would produce electromagnetic interference with signal transmission or reception unless the applicant provides a replacement signal to the affected party that shall restore reception to at least the level present before the operation of the wind energy system.

    b. A Utility Grid Wind Energy System shall not be installed in any location within the line of sight of an existing microwave communications link where operation of the wind energy system is likely to produce electromagnetic interference in the link's operation, unless the interference is insignificant.

11. *Shadow Flicker.* The applicant shall conduct an analysis on potential shadow flicker at occupied structures. The analysis shall identify the locations of shadow flicker that may be caused by the project and the expected durations of the flicker at these locations from sunrise to sunset over the course of a year. The analysis shall identify problem areas where shadow flicker may affect the occupants of the structures and describe measures that shall be taken to eliminate or mitigate the effects.

12. Signs shall meet the requirements of Article 15.

B. *Solar Energy Systems.*

1. *Accessory Use.* Solar energy systems are permitted as an accessory use in all Zone Districts.

2. *General Requirements.*

    a. Solar energy equipment shall be repaired, replaced, or removed within three months of becoming nonfunctional.

    b. All panels shall have tempered, non-reflective surfaces.

    c. Each system shall conform to applicable industry standards including those of the American National Standards Institute (ANSI).

    d. Solar energy collectors shall be installed, maintained, and used only in accordance with the manufacturer's specifications.

3. *Placement.*

    a. Solar collection systems shall be placed so as not to adversely affect the pleasure and enjoyment of nearby residential uses.

    b. Ground-mounted equipment. Ground mounted equipment for the collection of solar energy is permitted to the side or rear of the main building, but not within five (5) feet of a side or rear property line, shall be otherwise sited to minimize view from the public right-of-way and adjacent properties, and shall be camouflaged to the extent that the equipment can function normally.

    c. Rooftop equipment. Rooftop equipment for the collection of solar energy may be installed on the roof of a main or accessory structure, including carports or similar structures, when:

        i. The panels do not extend more than two (2) feet above the height of the structure upon which it is placed.

ii. The panels do not project beyond the eaves of the roof.

iii. The panels are integrated, to the extent possible, with the architectural character of the building or structure on which the equipment is affixed. No unfinished lumber is permitted.

4. *Administrative Departure.* An Administrative Departure may be approved for a location not meeting the requirements of this Section after considering the following:

a. Potential on-street glare from the solar energy system;

b. Alternative on-site locations, and;

c. The extent to which neighborhood character may be compromised.

5. *Connection to the Power Grid.* Any and all of the energy generated by solar energy systems may be transferred directly into the utility grid. Any connections shall comply with all other applicable City ordinances and policies and all applicable State or Federal laws.

(Ord. No. 2019-70, § 1, 11-12-19; Ord. No. 2025-07, § 3, 3-25-25)

ARTICLE 12. APPLICATION AND REVIEW PROCEDURES

Sec. 5.12.01. Purpose and Intent.

A. *Fairness and Equity.* Provide a clear and comprehensible development review process that is fair and equitable to all interests including applicants, affected neighbors, and the City;

B. *Orderly Review Process.* Establish an orderly review process for all proposed projects involving construction of a building or other structure, any site improvements or alterations or a modification in the use of land within the City that is consistent with this Chapter;

C. *Compliance with Chapter.* Ensure that land, parcels, and lots are appropriately developed so that their use and operation comply with all applicable requirements of this Chapter;

D. *Adequate Infrastructure.* Provide adequate and efficient facilities and/or infrastructure, land, rights-of-way, and easements so as not to burden the fiscal resources of the City. These provisions include the construction of buildings and utilities, streets and sidewalks, and landscaping;

E. *Open Spaces.* Provide functional open spaces, landscape buffers and other elements which contribute to creating an attractive, healthy and sustainable environment within City of Grand Rapids; and

F. *Provide for Health, Safety, and General Welfare.* Advance development in compliance with this Article that shall be generally harmonious with surrounding properties and shall not endanger the health, safety, and general welfare of existing, prospective, or future owners, users, surrounding and adjoining properties, and the public.

(Ord. No. 2020-21, § 11, 7-7-20)

Sec. 5.12.02. Summary of Authorities and Review Procedures, Effect of Decisions.

A. Table 5.12.02.A. summarizes the review procedures and approval authorities that have roles in the procedures set forth in this Article.

Table 5.12.02.A. Review Procedures and Decision-Making Bodies					
PH = Public Hearing Required PHO = Public Hearing Optional M = Public Meeting Required	R = Review and Recommend D = Approving Authority A = Authority for Appeal		CC = City Commission PC = Planning Commission BZA = Board of Zoning Appeals		
Review Procedure	**Section**	**CC**	**PC**	**BZA**	**Director**
Site Plan Review	5.12.08.	-	M, D PHO	-	R
Special Land Use	5.12.09.	-	PH, D	A[1]	R
Zoning Ordinance Text Amendment	5.12.10.	PHO, D	PH, R	-	R
Zoning Ordinance Map Amendment (Rezoning) or Change in Neighborhood Designation	5.12.10.	PHO, D	PH, R	-	R
Planned Unit/Redevelopment District	5.12.12.	PHO, D	PH, R	-	R
Site Condominiums	5.12.13.	PHO, D	PH, R	-	R
Conditional Rezoning	5.12.11.	PHO, D	PH, R	-	R
Master Plan Amendment	5.12.15.	PHO, R	PH, D	-	-
Optional Plan Review	5.12.14.	-	PH, D	A	R
Administrative Departure	5.12.16.	-	-	A	D
Counter Review	5.12.16.	-	-	A	D
Director Review	5.12.16.	-	-	A	D
State University Plan Approvals[2]	5.12.16.				A
Similar Use Determination	5.4.04.	-	-	A/D	D
Qualified Review	5.12.16	-	PHO, D	A	D
[1]Conditions of approval cannot be appealed to the Board of Zoning Appeals.					
[2]Further approvals and reviews may be required by the written memorandum of understanding or other written document adopted by the City Commission.					

B. *Effect of Decisions.*

1. Any application required to be reviewed under this Chapter shall be approved, approved with conditions, or denied by the approving authority based on the applicable review criteria for each decision. Where applicable, the minutes of a recommending or approving authority shall state the reasons for their decisions in the minutes and provide a written record of the decision to the applicant within a reasonable time following the recommendation or decision.

2. Prior to reaching a decision, if a required reviewing authority determines that an application does not meet the applicable review criteria as provided in the applicable provisions of this Chapter, but determines that the application could meet those criteria with modifications that otherwise could not be reasonably conditioned, the applicant may request that the decision or recommendation on the application be postponed to provide the opportunity to make those modifications. The Director may require the submission of a new application if the extent of the modifications warrant and shall notify the applicant accordingly.

3. Conditions of Approval. For those decisions that are approved with conditions, those conditions shall be:

   a. Designed to protect natural resources, the health, safety, welfare, and social and economic well-being, of those who shall use the land use or activity under consideration, residents and landowners immediately adjacent to the proposed land use or activity, and the community as a whole;

   b. Related to the valid exercise of the police power and purposes which are affected by the proposed use or activity; and

   c. Necessary to meet the intent and purpose of the zoning requirements, be related to the standards and requirements established in this Chapter for the land use or activity under consideration, and be necessary to ensure compliance with those standards and requirements.

4. The breach of any approval condition or requirement shall be considered a violation of this Chapter.

C. *Duration of Approvals.*

1. *Period of Duration.* Approval of any project shall be valid for a period of one (1) year, unless otherwise stated in this Chapter. Approved projects shall obtain a LUDS and/or building permit and substantial progress achieved or the approval shall lapse and new approval shall be required, unless an extension authorized by this Chapter is granted. (See Section 5.16.02.S. for a definition of substantial progress.)
2. *Extension.* Extension of approvals may be granted as provided in this Article if the request for extension is filed in writing prior to the expiration date, and the approving authority finds that the extension is warranted due to circumstances beyond the control of the applicant.
3. *Change of Ownership.* Zoning approvals are not affected by any change in ownership.
4. *Expiration.* Once a LUDS and/or building permit has been issued, and substantial progress has not occurred, project approval shall expire when the permit(s) expire(s) and new permits must be applied for in accordance with this Article. Abandonment of construction shall be governed by the requirements of Section 5.14.07.I.

D. *Reconsideration of Denial.* Unless otherwise specified, any project denied under the procedures of this Article shall not return for reconsideration by the approving authority prior to one (1) year from the date of denial, unless the Director determines that a new request is sufficiently different from the original request so that the new application has the potential to result in a different decision.
(Ord. No. 2019-11, § 5, 3-26-19)

Sec. 5.12.03. Optional Director Pre-Application Meeting.

A. Prior to submitting any application required by this Chapter, an optional pre-application meeting with the Director is recommended for the purpose of determining the approval type and process that will be followed to obtain project approval.

B. The pre-application meeting is a non-binding and informal review of the proposal and is intended to provide information to the applicant on the procedures and policies of the City and the potential for additional materials that may be needed based on the approval sought. Comments or discussion at the pre-application meeting shall not be binding nor confer upon the applicant any development approvals or other rights.

Sec. 5.12.04. General Application Requirements.

A. *Complete Applications.* Applicants shall file an application with the Planning Department for any approval required by this Chapter. An application shall not be accepted until the Director determines that the submitted application is complete, and incomplete applications shall be returned to the applicant. The applicant may request, in writing, the additional materials or changes to the application that are needed to complete the application. At a minimum, the following shall be provided, unless waived by the Director as unnecessary to a particular proposal.

1. An application form provided by the Planning Department and completed in full and signed by the applicant, including a detailed description of the proposed development project and use.
2. A site plan, information, and materials, as listed in the project application form or attachments, or in the individual Sections of this Article, specific to the approval requested. The submission shall be in sufficient detail to permit the evaluation of the application to determine whether the request complies with this Chapter.

3. The applicable fee established by resolution of the City Commission.

4. A description of any request(s) for Administrative Departures, variances, or other modifications provided for in this Chapter, identified in writing and clearly noted on project plans.

5. Any additional materials deemed reasonably necessary by the Director or required reviewing authority in making a decision on the application. Additional materials may be requested after the acceptance of the application as complete.

B. *Application Review.*

1. A review of an application shall not be initiated until the submitted application is accepted as complete. Upon acceptance, the Director shall review the application and determine whether any additional information may be required to address any identified issues. This may include materials such as environmental studies, traffic analyses, site analyses, or others as the Director may deem necessary. This determination shall be within ten (10) days from the date of application submission or following the Director's pre-application meeting, if held.

2. Prior to completing an application review the Director may transmit submitted materials to appropriate departments or agencies for input and recommendations for additional information.

C. *Deferral or Withdrawal of Application.* A request for postponement or withdrawal of an application shall be submitted in writing to the Director. This request may be made verbally at a public hearing provided it is made in writing by the applicant not later than seven (7) days following the request.

1. If the postponement of a public hearing is requested, then the required reviewing authority shall set the date and time or required circumstances (e.g. submission of additional requested material) in which the postponed application shall be re-heard.

2. If members of the public wish to speak on the postponed application at the original hearing time, public comment shall be taken and considered as part of the record of proceedings for the application.

3. The application shall be subject to additional fees to defray the costs of processing the application if additional notices are required.

D. *Simultaneous Processing.* Where two (2) or more applications are required by this Chapter, they may be processed simultaneously. Certain approvals may not take immediate effect until other applications are reviewed and approved.

Sec. 5.12.05. Public Notification and Hearings.

A. *Purpose and Applicability.* Public notification for submitted applications shall comply with the applicable provisions of this Section, the Zoning Act, and the Rules of Procedure of the applicable required reviewing authority, and other applicable provisions of this Chapter.

B. *Public Notice.* Public notice shall be made when required by this Chapter in accordance with the following requirements.

1. A notice of the request shall be published in a newspaper of general circulation serving the City.

2. Notice shall be sent by mail or personal delivery to the owners of property for which approval is being considered.

3. Notice shall also be sent to the owners and occupants of all property within three hundred (300) feet of the subject property, regardless of whether the property is located in the city. If the name of the occupant is not known, the term "occupant" may be used.

4. In accordance with the Zoning Act, where eleven (11) or more adjacent properties are proposed for a Zone District amendment, the Planning Department shall execute the procedures in Subsections B.1-2. above.

5. The notice shall be given not less than fifteen (15) days before the date of the public hearing at which the application shall be considered for approval. Content of the notice shall meet the requirements of the Zoning Act.

C. *Validity of Notice.*

1. When the records of the City document the publication, mailing, and posting of notices as required, it shall be presumed that notice of a public hearing was given as required. Failure of a party to receive written notice shall not invalidate the proceedings for which notice was required.

2. Minor defects in any notice shall not impair the notice or invalidate proceedings pursuant to the notice if a bona fide attempt has been made to comply with applicable notice requirements.

3. If questions arise regarding the adequacy of the meeting notice, the Planning Department shall be directed to make a finding as to whether substantial notice was provided. This finding shall be made available to the approving authority prior to final action on the request.

D. *Public Hearing.* The scheduling of the hearing shall allow for sufficient time for the Planning Department to prepare appropriate materials for the required reviewing authority and for public notification requirements to be satisfied.

E. *Re-Notice.* The notification of property owners shall apply only to the initial hearing on the proposed development, unless expressly requested by the reviewing authority or required by this Chapter. Additional notices may be sent if the application is postponed for a significant period of time, as determined by the Director or required reviewing authority.

Sec. 5.12.06. Neighborhood Meeting.

A. *Purpose.* The purpose of a neighborhood meeting is to educate occupants and owners of nearby properties about the proposed development application, receive comments and address concerns about the development proposal; and resolve conflicts and identified issues, where possible, prior to consideration by the required reviewing authorities. The meeting is intended to result in an application that can be made more responsive to neighborhood concerns and thereby allow for the potential to expedite and lessen the expense of the review process by avoiding delays.

B. *Applicability.*

1. At least one (1) development-specific neighborhood meeting using the Recommended Procedure in Subsection C., below, is strongly suggested for any project where a public hearing is required. For minor individual applications (minor variances, etc.), where a neighborhood meeting may not be as useful, individual or small-group discussions with nearby property owners or residents are encouraged. For applications requiring a Good Neighbor Plan per the requirements of Subsection D., below, at least one (1) neighborhood meeting is required prior to submission of the Special Land Use application and draft Good Neighbor Plan. The applicant is responsible for all costs associated with the meetings.

2. If not previously held, the Director and/or required reviewing authority may direct an applicant to conduct a neighborhood meeting if the proposed project is expected to affect the character of the neighborhood, significant land use issues, appearance concerns, traffic issues, effects on public facilities, or other potential effects on neighboring lands.

3. Refusal by the applicant to hold a neighborhood meeting shall not unnecessarily delay or discontinue the review process; however, the required reviewing authority may postpone a decision to allow additional time to gather input and information on testimony made during the public hearing.

C. *Recommended Procedure.* The following procedures are recommended for all neighborhood engagement efforts.

1. *Notice.*

   a. Notice of neighborhood meetings should be given to neighbors and/or neighborhood and/or business association representatives and to the Planning Department as provided below.

   b. Notice shall be provided at least fourteen (14) days prior to the neighborhood meeting by a postcard delivered by mail, for all addresses within a three hundred-foot radius of the subject property. Other means may also be used, including but not limited to hand-delivered fliers or door hangers, phone calls, emails, social media, canvassing, or advertisements or articles in a neighborhood newsletter, if applicable.

   c. Notice Requirements. Any notification shall include the following:

      i. Date, time, and location of the meeting(s).

      ii. Brief description of the proposal and address of the subject property.

      iii. Contact information for the applicant and/or representative(s).

      iv. Statement that requests for interpretation or other reasonable accommodations should be made by contacting the applicant at least seven (7) days prior to this meeting.

      v. If a public hearing for the proposal by the Planning Commission or other reviewing authority has been scheduled at the time the notice is sent, the date, time, and location of that public hearing shall be included in the notice language.

   d. Printed materials shall be legible. The notice may include Braille.

2. *Meeting Details.*

   a. The meeting (or last meeting in the case of multiple meetings) shall be held as close to fourteen (14) days prior to the date of application submission and/or the Planning Commission public hearing, as possible. If multiple meetings are held, the meeting times and days should be different for each.

   b. The distance of the meeting location from the subject property should be within one (1) mile, or as close as reasonably possible or where adequate venues may be found. The location should be easily accessible and ADA compliant.

3. The purpose of the meeting is to permit the applicant to explain the development proposal, answer any questions, respond to concerns, and propose ways to resolve any identified conflicts.

4. Following the meeting and prior to the public hearing, the applicant shall submit any sign-in sheets and a summary of the issues and discussions from the meeting to the Director for forwarding to the required reviewing authority. Any other correspondence received from the affected neighborhood regarding the meeting shall be forwarded to the Planning Department at least five (5) days prior to the public hearing.

5. City staff may be invited or elect to attend the neighborhood meeting, but will generally not serve as facilitators or be involved in substantive discussions. Involvement by City staff, if any, may be solely for purposes of advising the attendees regarding the review process and applicable ordinance requirements and review standards.

D. *The Good Neighbor Plan (GNP).*

1. *Purpose.* The purpose of the GNP is to identify and propose measures to reduce potential negative impacts on nearby residents and businesses by specific uses. The coordination and collaboration of owners or operators with interested parties both before and after the development or licensing process allows for a proactive approach to create a positive working relationship between the community and the applicant by requiring the formulation of a written implementation program. This Section provides a consistent method of addressing issues and likely areas of concern.

2. *Applicability.* Any land use specifically required to submit a Good Neighbor Plan (GNP) shall comply with the following provisions.

3. *Additional Special Land Use information.* In addition to the Use Regulations of Article 9, a Special Land Use application must include all the following:

   a. *Good Neighbor Plan.* A written implementation program containing the items listed below.

      i. Measures to ensure proper crime prevention and awareness training.

      ii. Training in the handling of State-regulated substances, where applicable.

      iii. Litter control.

      iv. Loitering control.

      v. Trespass enforcement.

      vi. Landscape maintenance.

      vii. Neighborhood communication.

      viii. Statement attesting to compliance with the City's anti-discrimination policies and ordinances related to hiring, housing, and public accommodation practices, as applicable.

      ix. For marijuana facilities, a Marijuana Industry Voluntary Equitable Development Agreement (MIVEDA), if offered and incorporated into the application in accordance with Article 9 Use Regulations, Section 5.9.19 Marihuana Facilities.

   b. *Mitigation.* Some uses by the nature of the activities occurring within, on, or around the subject property may create adverse effects on the neighborhood, business, or industrial district, or any area in which the facility is situated. Potential effects associated with operations, and opportunities to mitigate those effects, shall be taken into consideration in the development of a GNP, Special Land Use, and Site Plan Review request. Considerations shall include the following.

      i. The adverse effects, if any, that the hours of operation of the proposed establishment will have upon neighboring properties, with special attention to noise, odors, litter, loitering, parking, and glare from exterior lighting or headlights on nearby residential properties.

      ii. The amount and degree of law enforcement activities which could reasonably be anticipated to be generated by the proposed establishment, both outside and inside, with special emphasis upon noise, calls for service, trespass enforcement, parking, traffic, and vandalism.

iii. Whether the proposed use makes adequate provisions to eliminate the potential for adverse effects upon the stability of adjacent areas by depreciating the desirability of the property or nearby properties by the placement of the use; or, conversely, escalating rents or property values that could displace residents or businesses and how the requested use might reasonably protect the surrounding area so as not to have an adverse effect on values and existing residents and businesses.

iv. How the proposed use balances mobility options so as ensure increased access and opportunity for those who might not own or be able to operate a vehicle, and to avoid an excessive parking burden or increased congestion in the general area.

c. *Notification.* Notice shall be provided at least fourteen (14) days prior to the neighborhood meeting by a postcard delivered by mail, for all addresses within a three hundred-foot radius of the subject property. This notice shall comply with the requirements of Section 5.12.06.C.1.c.

d. *Record of Good Faith.* The GNP must be accompanied by written verification that the owner, operator, manager, or a representative of the parent company met with or attempted in good faith to meet with the local recognized organization(s), adjacent property owners, Corridor Improvement Authority or similar, and Planning Department. The written verification must include all the following:

i. A copy of the notice and the names and addresses of those notified of the applicant's intent to meet;

ii. A copy of the time, date, and location of any meetings, and the names, addresses, and phone numbers of those who participated in the meetings;

iii. A copy of the draft GNP and, if applicable, the site plan sent to the neighborhood association and as presented at the meetings, if different; and

iv. Identification of those components of the GNP which were agreed upon and those which were unresolved, plus a summary of any additional items discussed during the meeting(s).

v. The GNP must be completed and submitted to the Director no later than 12:00 p.m., Eastern time, at least eight (8) days prior to the Planning Commission's public hearing for the application.

e. A statement attesting to the community engagement efforts by the applicant as indicated within the Good Neighbor Plan shall be included from the neighborhood association or organization, and from the Board of the Corridor Improvement Authority, if applicable. If the local recognized organization has a Board of Directors, Land Use Committee, or similar, the applicant shall meet with at least one (1) of those groups prior to the attestation by a representative of that organization. An attestation by a representative should not be construed to be equivalent to support of the applicant's proposal.

(Ord. No. 2018-45, § 9, 7-24-18; Ord. No. 2018-70, § 5, 12-18-18; Ord. No. 2020-21, § 12, 7-7-20)

Sec. 5.12.07. Planning Commission Pre-Hearing Conference.

A. An informal pre-hearing conference with the Planning Commission is available for applications for which the Commission will be a required reviewing authority. The purpose of the conference is to provide information to the applicant prior to submission of a formal application on the procedures and policies of the City for projects that the Director deems to be complex or potentially controversial.

B. An application for a pre-hearing conference shall be filed with the Director, including materials sufficient to determine the general site layout, relationship to adjacent properties, and other information deemed relevant by the Director.

C. Comments made by the Commission or applicant shall be non-binding and shall not confer upon the applicant any development approvals or other rights.

Sec. 5.12.08. Site Plan Review.

A. *Purpose.* The purpose of the submittal is to ensure compliance with the development and design standards and requirements of this Chapter and to encourage quality development consistent with the goals of the Master Plan. A LUDS permit shall not be issued until the site plan has been approved. All projects requiring review shall submit a Site Plan Review application in accordance with this Article.

B. *Planning Commission Approval.* A project requires Site Plan Review by the Planning Commission under any of the following circumstances.

1. Any proposed development that does not qualify for an Administrative Review under Section 5.12.16. or any project that qualifies for Administrative Review that the Director determines should be submitted for Site Plan Review by the Planning Commission.

2. Any proposed development on one (1) acre or more located in a TN-TBA, TOD, or C Zone District, where in the opinion of the Director, the site alterations would substantially change the way the site functions or operates, have the potential to adversely affect adjacent properties, decrease the compatibility of the surrounding built environment, or substantially alter the character of the neighborhood.

3. Special Land Uses in all Zone Districts.

4. Development Plans (Preliminary and Final), and Minor Deviations of an approved Development Plan, for a PRD Planned Redevelopment District.

5. Approvals and amendments of Planned Sign Programs.

6. Recommendation to the City Commission for a Final Site Plan for a Site Condominium.

C. *Other Approvals.*

1. A Site Plan Review is not required for the following, but shall be considered a Counter Review as set forth in Section 5.12.16.

    a. Detached single-family dwellings; and

    b. Projects where interior construction does not increase gross floor area, increase the intensity of use, or effect parking requirements on a site that meets all development requirements and site design standards of this Chapter.

2. Site Condominiums. A Final Site Plan approval by the City Commission is required for a site condominium, following a recommendation by the Planning Commission.

D. *Application and Review Process.*

1. An application shall be filed with the Planning Department, as provided in Section 5.12.04. for either a Preliminary or Final Site Plan Review.

2. *Preliminary Site Plan Review.*

   a. If desired by the applicant, a Preliminary Site Plan Review application may precede the Final Site Plan Review, in accordance with the procedures set forth in this Article. If a Preliminary Site Plan Review is elected, a Preliminary Site Plan shall be submitted for review by the Planning Commission.

   b. The Director may also require submission of a Preliminary Site Plan for projects that raise complex issues, including, but not limited to, the need for major infrastructure improvements and other neighborhood or community-wide effects that would benefit from a Planning Commission review.

   c. The purpose of the Preliminary Site Plan Review is to provide an opportunity for input at the earliest stages of the development process, and to permit the Planning Commission to inform the applicant of the general suitability of the proposed plans prior to incurring extensive engineering and other costs which might be necessary for Final Site Plan approval.

   d. The Director may require additional information specific to the site if deemed necessary to assist in the determination of compliance with the Review Standards of Section 5.12.08.E.

   e. The Planning Commission shall review the Preliminary Site Plan Review application for conformity with the requirements of this Chapter and the review standards of this Article.

   f. Comments from the Planning Commission do not confer upon the applicant any development approvals or other rights.

3. *Final Site Plan Review.*

   a. A Final Site Plan Review shall be required for those projects for which a Preliminary Site Plan Review has been approved and for applications meeting the requirements of Section 5.12.08.B.

   b. A Final Site Plan Review application may be submitted for review without first receiving approval of a Preliminary Site Plan Review under the provisions of D.2., above.

   c. The Planning Commission shall review the Final Site Plan Review application for conformity with the requirements of this Chapter and the review standards of this Article.

   d. Following approval of a Final Site Plan Review, and other approvals that may be required by this Chapter, the applicant may submit for further permits as required by this Chapter and other provisions of the City Code.

4. *Optional Public Hearing.* In accordance with the Zoning Act, a public hearing for a Site Plan Review is not required. A public hearing shall be held if required by the Planning Commission or Director and notices sent in accordance with Section 5.12.05.B.

E. *Review Standards.* The following review standards shall apply for Site Plan Reviews by the Planning Commission and Director Review. Site Plan Review approval shall be granted only if the application meets all the applicable requirements of this Chapter and the following standards.

1. *Master Plan / Zoning Ordinance.* The proposed development will meet the purpose and intent of the Master Plan and Zoning Ordinance, including the Zone District.

2. *Site Design.*

   a. The site is designed to comply with all provisions of this Chapter.

   b. The site will be developed so as not to impede the normal and orderly development or improvement of surrounding property for uses permitted by this Chapter.

   c. Redevelopment of existing sites are brought into conformance with all site improvement provisions of this Chapter relative to and proportionate to the extent of redevelopment, as determined by the Director or Planning Commission, as applicable.

   d. Every building, structure or dwelling unit is provided with adequate means of ingress and egress by public streets and walkways.

   e. All elements of the site design are harmoniously and efficiently organized in relation to topography, the size and type of lot, character of the neighborhood and adjoining property, and the type, size, and proportions of buildings.

   f. All buildings or groups of buildings are arranged so as to permit access for emergency vehicles by practicable means.

   g. Outdoor lighting is designed so that it is deflected away from adjacent properties and does not impede the vision of drivers on public streets, adversely affect abutting properties, or unnecessarily affect the natural evening sky.

3. *Environment.*

   a. Site landscape features, such as notable mature vegetation and steep slopes, will be preserved in their natural state insofar as practicable by minimizing tree and soil removal, alteration to the natural drainage courses, and the amount of cutting, filling and grading.

   b. Natural features and site topography are incorporated into the proposed site design to the maximum extent practicable.

   c. Buildings and structures are placed in a manner that preserves and protects environmentally sensitive areas.

   d. Landscape buffers or greenbelts are provided that ensure that proposed uses are adequately buffered from one another and from surrounding public and private property. Special emphasis is placed on the preservation of notable vegetation that provides an effective landscape screen between properties, where desirable.

   e. Stormwater management measures will be employed to satisfy Chapter 32 and other City ordinances related to water quality.

4. *Vehicular, Bicycle, and Pedestrian Circulation.*

   a. Driveways are located to minimize conflict with traffic operations on abutting streets and the number of driveways is the minimum needed to provide reasonable access to the site.

b. The width of streets and driveways are appropriate for the existing and anticipated volume of traffic.

c. The arrangement of public or common ways for vehicular and pedestrian circulation respect the pattern of existing or planned streets and pedestrian or bicycle pathways in the area.

d. Off-street parking and loading areas are provided with particular attention to the effects of noise, glare, and odor on adjacent properties in the proposed development.

e. Safe, convenient and well-defined vehicular, bicycle, and pedestrian circulation within and to and from the site is provided. Driveways, streets and other elements are designed to promote safe and efficient movement within the site and at its access points.

f. Pedestrian pathways connect to transit stops or stations where practicable.

g. Bicycle facilities shall be planned to ensure that conflicts between cyclists, vehicles, and pedestrians are minimized to the greatest possible extent.

5. *Public Facilities.* The scale and design of the proposed development does not place an excessive burden on services currently furnished or may be required by the City or other public agency, including, but not limited to, fire and police protection, water supply, stormwater management, sanitary sewage removal and treatment, traffic control, and administrative services.

F. *Decisions.*

1. The Planning Commission shall approve, approve with conditions, postpone or deny the plan, stating the reasons for its decision in the minutes. The decision of the Planning Commission cannot be appealed to the Board of Zoning Appeals.

2. Conditions imposed by the Planning Commission shall meet the standards of Section 5.12.02.B.3. The Planning Commission may refer to Section 5.2.20 Infrastructure and Service Needs for additional conditions as warranted.

3. Site Plan Review approval cannot be used to permit a building or site requirement that does not meet the requirements of this Chapter. To this end, the Commission shall not have the authority to change any part of the site plan that meets the allowable uses or Development Requirements of the Zone District, or reverse the approval of an Administrative Departure.

4. *Modifications Permitted.*

a. For applications related to an application for approval of a shopping center or other integrated complex, as defined by this Chapter, the Planning Commission may approve modifications to the parking and sign requirements of Articles 10 and 15 respectively to accommodate design considerations such as shared parking arrangements, sign consolidation, and other similar elements.

b. Modifications shall only be granted if the Commission finds that they would result in an improved design, rather than simply as a reduction in required parking or a request for larger or additional signs.

5. *Effective Date.* Site Plan Review approvals shall have immediate effect. Other required approvals shall have the effective date applicable to that approval.

6. *Duration of Approval.*

a. *Preliminary Site Plan.* A Preliminary Site Plan approval shall be valid for a period of two (2) years. If a Final Site Plan Review application has not been submitted within the two (2) year period, the approval for the Preliminary Site Plan shall lapse and a new Preliminary or Final Site Plan Review application shall be required.

b. *Final Site Plan.* A Final Site Plan Review approval shall be valid for a period of one (1) year, in which time a LUDS and/or building permit shall be obtained and the first phase of construction substantially commenced.

c. *Extension.* Upon written request prior to expiration of the approval, two (2) extensions of up to six (6) months may be granted for a Final Site Plan Review approval if the Planning Commission finds that the extension is warranted due to circumstances beyond the control of the applicant.

d. *Expiration.* If no action is taken to initiate substantial construction after the expiration of the initial approval period or extension, the Final Site Plan Review approval shall expire when applicable LUDS and/or building permits expire and a new approval shall be required.

G. *Minor Amendments.* Any proposed changes by the holder of an approved Final Site Plan shall be submitted to the Director, including documentation detailing the conditions necessitating the changes.

1. The Director may approve minor amendments that do not alter the basic design nor any specific conditions imposed as part of the original approval, including the following.

   a. Change in the building size, up to ten (10) percent in total floor area.

   b. Movement of buildings or other structures by not more than ten (10) feet.

   c. Replacement of plant material specified in the landscape plan with comparable materials of an equal or greater size and/or number.

   d. Changes in building materials or colors that are similar to and have the same general appearance to, or of a comparable or higher quality than, the previously approved material.

   e. Adjustments to the location and layout of parking lots, provided the perimeter setbacks, yards and buffers, and required parking are maintained.

   f. Sign modifications to location, sign face, landscaping and lighting, provided the general sign design, number of signs, and dimensional requirements are maintained.

   g. Relocating fencing, walls, or screening (not including screening walls), provided that the same level and quality of materials and screening are maintained.

   h. Changes in floor plans that do not alter the character of the use.

   i. Changes required by outside agencies such as the county, state, or federal officials or agencies of competent jurisdiction.

   j. Other minor modifications deemed appropriate by the Director that do not alter the basic design or any specific conditions imposed as part of the original approval.

2. If the Director determines a proposed amendment is not minor, the proposed amendment shall be submitted as a new application and reviewed in accordance with the requirements of this Article.

H. *Project Phasing.*

1. *Phasing Plan.* Requests for project phasing shall be approved by the Planning Commission as part of the Site Plan Review. The phasing plan shall include the likely sequence and timeline for construction, as well as the reasoning behind the phased approach.

2. *Contiguous Sequencing.* Project phasing shall be sequenced so that development phases are contiguous, and that each phase has the potential to stand on its own in the event future phases are not constructed.

3. *Lapse.* The time period for the lapse of a construction phase shall not exceed twelve (12) months from the issuance of a Certificate of Occupancy.

4. *Traditional Neighborhood Zoning Classification.*

   a. Where two (2) or more structures are proposed on the same site within a Traditional Neighborhood classification, the first structure to be built shall be located along the primary public street, abutting the public right-of-way (front structure).

   b. The linear building frontage of the structure located along the primary public street shall be at least equal to the linear building frontage of the largest structure(s) to be constructed in subsequent phases.

(Ord. No. 2022-30, § 4, 8-23-22)

Sec. 5.12.09. Special Land Uses.

A. *Purpose.* This Section provides procedures and standards for uses of land or structures that, because of their unique characteristics, require additional consideration in relation to the welfare of adjacent properties, the neighborhood, and the community. The regulations and standards herein are designed to allow practical latitude for the applicant, but maintain adequate provision for the protection of the health, safety, convenience, and general welfare of the community.

B. *Applicability.*

1. The standards and requirements of this Section apply to all Special Land Uses required by this Chapter.

2. Use Intensity. Once approved, a Special Land Use shall not be increased in intensity unless a new Special Land Use approval is obtained. Increase in intensity shall include the enlargement, extension or expansion of: hours of operation, seating, display, building footprint or use footprint within a building, or other factor that was part of the originally approved application for the Special Land Use and would increase the relative intensity of the use.

C. *Application Procedures.*

1. An application shall be filed with the Planning Department as provided in Section 5.12.04.

2. Site Plan Review.

   a. Applications for Special Land Uses shall include a Preliminary or Final Site Plan Review application, which shall be submitted and reviewed concurrently in accordance with the provisions of Section 5.12.08. The procedures, standards, and requirements for each approval shall be followed.

   b. If a Preliminary Site Plan Review application is filed with the Special Land Use application, a Final Site Plan approval shall be required prior to the issuance of a LUDS and/or building permit related to the Special Land Use.

D. *Review Procedures.*

1. Following acceptance of a complete application, the Director shall assign the application a public hearing date and time.

2. Public Hearing. The Planning Commission shall provide public notice and hold a public hearing in accordance with the requirements of Section 5.12.05.

E. *Review Standards.* The Planning Commission shall only approve an application for a Special Land Use that meets the following standards.

1. *Master Plan / Zoning Ordinance.* The proposed use will be consistent with the purpose and intent of the Master Plan and Zoning Ordinance, including the Zone District.

2. The Site Plan Review Standards of Section 5.12.08.E.

3. *Neighborhood Effects.*

   a. The proposed use would be compatible, harmonious and appropriate with the existing or planned character and uses of the neighborhood, adjacent properties, and the natural environment.

   b. Potentially adverse effects arising from the proposed use on the neighborhood and adjacent properties would be minimized through the provision of adequate parking, the placement of buildings, structures and entrances, as well as the location of screening, fencing, landscaping, buffers or setbacks.

   c. The proposed use would not be detrimental, hazardous, or disturbing to existing or future adjacent uses or to the public welfare by reason of excessive traffic, noise, smoke, odors, glare, visual clutter, and electrical or electromagnetic interference.

   d. The proposed use would not adversely affect the walkability of the neighborhood, impair pedestrian circulation patterns, disrupt the continuity of the urban street wall or otherwise hinder the creation of a pedestrian-oriented environment.

4. *Environment.* The building and site area required for the proposed use will retain as many natural features of the landscape as practicable, particularly where the natural features assist in preserving the general character of the neighborhood.

5. *Public Facilities.*

   a. Adequate public or private infrastructure and services already exist or would be provided at no additional cost, and will safeguard the health, safety, and general welfare of the public.

   b. The proposed use would not be detrimental to the financial stability and economic welfare of the City.

   c. The proposed use would comply with all other applicable City ordinances and policies and all applicable State laws.

6. *Sale and/or Consumption of Alcohol.* Alcohol-related uses tend to have a particularly detrimental effect on neighborhoods where there is a concentration of these uses. Compliance with the standards of review for uses including alcohol sales in Section 5.9.05.D. shall be in addition to the Review Standards of this Section.

F. *Planning Commission Decision and Appeals.*

1. The Planning Commission shall approve, approve with conditions, postpone, or deny the application, stating the reasons for its decision and the review standards used in making its recommendation.

2. Appeals. Denial of a Special Land Use application may be appealed to the Board of Zoning Appeals. Conditions of approval imposed by the Planning Commission cannot be appealed to the Board of Zoning Appeals.

G. *Conditions of Approval.*

1. Conditions imposed by the Planning Commission shall meet the standards of Section 5.12.02.B.3.

2. The Planning Commission may modify or eliminate any of the applicable Use Regulations contained within Article 9 for a particular Special Land Use application upon finding that the standards of Section 5.12.09.E. and the intent of the Master Plan are better satisfied with the modification or elimination.

3. As a condition of approval, the Planning Commission may require a performance guarantee per Section 5.14.04. or other infrastructure and service improvements as needed for project approval, per Section 5.2.20.

H. *Duration of Approval.*

1. *Effective Date.* Approved Special Land Uses shall take effect sixteen (16) days after the date of Planning Commission approval, except as otherwise noted in the approval resolution.

2. *Period of Validity.*

   a. A Special Land Use approval shall be valid for a period of one (1) year, provided the property is used as approved or work has substantially commenced in that period.

   b. Upon written request prior to the expiration of the approval, two (2) extensions of up to six (6) months may be granted if the Planning Commission finds that the extension is warranted due to circumstances beyond the control of the applicant.

   c. If no action is taken to use the property as approved or work is not substantially commenced after the one (1) year approval period or any extension, the Special Land Use approval shall expire when applicable LUDS and/or building permits expire.

3. *Abandonment.*

   a. Once established, any Special Land Use shall be considered to be abandoned if the use ceases for a period of one (1) year. Once abandoned, a new Special Land Use application shall be required to continue the previously approved Special Land Use.

   b. A Special Land Use shall be considered abandoned if the Director determines that one (1) or more of the following conditions exist.

      i. One (1) or more utility meters, such as water, gas, and electricity to the property have been removed;

      ii. The property, buildings, and/or grounds are unsafe or unsanitary, as described in Chapter 140 Housing Code or Chapter 135 Building Maintenance Code;

      iii. Signs or other indications of the existence of the use have been removed;

      iv. Equipment or fixtures that are necessary for the operation of the use have been removed; or

      v. Failure to maintain current licenses, certificates, permits, registrations, or other appropriate documentation for the use.

I. *Violation and Revocation.*

1. The breach of any condition or requirement shall be considered a violation of the Special Land Use approval and a violation of this Chapter.

2. The Planning Commission shall have the authority to revoke any Special Land Use approval where the applicant has failed to comply with applicable requirements in this Article or Chapter, following notice to the property owner and a public hearing held in compliance with Section 5.12.05.

(Ord. No. 2021-22, § 1, 7-27-21)

Sec. 5.12.10. Zoning Ordinance Text and Map Amendments.

A. *Purpose.* This Section is intended to provide the process for amending this Chapter as new circumstances or uses arise, areas change in character, or other conditions warrant a change to the text of this Chapter or a change in the official Zoning Map.

B. *Applicability.* An amendment to the text of this Chapter, Zone District boundaries or Neighborhood Classification may be initiated by the City Commission, the Planning Commission, or an owner or person having a legal interest in property in the City.

C. *Application Procedures.* An application shall be filed with the Planning Department for any proposed amendment to this Chapter. At a minimum, the following materials shall be provided.

1. Applications shall be submitted on a form provided by the Planning Department, completed in full and signed by the applicant, and shall include a detailed description of the proposed amendment and certify the accuracy of the information.
2. For Zoning Ordinance text amendments, a copy of the existing language, the language of the proposed change(s), and the reason(s) for the requested change.
3. For Zoning Map (Neighborhood and District) amendments:
    a. The current and requested Neighborhood and Zone District.
    b. The following site and related information.
        i. Locations of vehicular access, including public and private roads, and private access easements;
        ii. Distance to road centerlines and right-of-way widths of all abutting streets and alleys;
        iii. Location of natural features such as existing drainage courses, wetlands, flood plains, streams, wood lot, and steep slopes;
        iv. All existing easements or rights-of-way;
        v. Location, size, and/or capacity of all existing utility lines abutting or entering to service the site.
        vi. Where TOD zoning is requested, a written verification from The Rapid that the transit station or stop is in a permanent location.
    c. A detailed statement of how the proposed amendment complies with the applicable review standards in Section 5.12.10.E.
    d. Any additional information required by the Director, Planning Commission or City Commission to assist in its review.
4. If a request for a new Zone District is for property not already in the Neighborhood Classification, approval of a Neighborhood Classification amendment is required prior to an approval for a change to a new Zone District. Requests for a change in Neighborhood Classification and Zone District may be submitted and reviewed concurrently.

D. *Review Procedures.*

1. *Application Completeness.* Upon acceptance of a complete application, the Director shall assign the application a public hearing date and time.
2. *Planning Commission Public Hearing.* The Planning Commission shall hold a public hearing as provided in Section 5.12.05.

3. *Recommendation to City Commission.* Following the public hearing, the Planning Commission shall make its recommendation to the City Commission, including a summary of the comments from the public and findings on the review standards used in making its recommendation.

E. *Review Standards.*

1. *Text Amendment.* For a change to the text of the Zoning Ordinance, the Planning Commission shall consider, and the City Commission may consider, whether the proposed amendment meets the following standards.

   a. *Master Plan/Zoning Ordinance.* The proposed amendment:

      i. Is consistent with the purpose and intent of the Master Plan and Zoning Ordinance, including those of the proposed Neighborhood Classification and Zone District.

      ii. Will enhance the functionality or character of the future development in the City.

   b. *Environment.* The proposed amendment will enhance the natural features and environmental integrity of the City.

   c. *Public Facilities.* The proposed amendment will protect the health, safety, morals, and general welfare of the public.

   d. *Other.* Whether the proposed amendment:

      i. Is needed to correct an error or omission in the original text; or

      ii. Will address a community need in physical or economic conditions or development practices; or

      iii. Would not result in the creation of significant nonconformities in the city.

2. *Neighborhood Classification or Zone District (Zoning Map) Amendment.* For a change to a new Neighborhood Classification or Zone District, the Planning Commission shall consider, and the City Commission may consider, the following standards.

   a. *Master Plan/Zoning Ordinance.*

      i. The proposed Neighborhood Classification or Zone District designation is consistent with purpose and intent of the Master Plan, including the Future Land Use Map.

      ii. The proposed Neighborhood Classification or Zone District designation will further the themes and objectives of the Master Plan, as well as any relevant adopted Area Specific Plans or other adopted plans of the City.

      iii. Any property to be rezoned can reasonably accommodate the requirements of the proposed Zone District.

   b. *Neighborhood.* The proposed new Neighborhood Classification or Zone District is compatible with the Zone District(s) and Neighborhood Classification(s) in the neighborhood.

   c. *Environment.* The physical, geological, hydrological and other environmental features of the property to be rezoned are compatible with the full range of uses in the proposed Zone District.

   d. *Public Facilities District.*

      i. Adequate public facilities already exist or will be provided at no additional public cost, and will safeguard the health, safety, and general welfare of the public.

      ii. The proposed Neighborhood Classification or Zone District will not be detrimental to the financial stability and economic welfare of the City.

e. *Other.*

i. The proposed Neighborhood Classification or Zone District is consistent with the trend of development in the neighborhood.

ii. The property to be rezoned was improperly zoned or classified when this Chapter was adopted or amended.

iii. The effects on the condition of any nearby parcels currently zoned in a Mixed-Use Commercial Zone District, especially considering existing vacancy rates, current per-square-foot lease or sale rates, and other conditions.

F. *City Commission Decision.*

1. Upon receipt of the recommendation of the Planning Commission, the City Commission may hold a public hearing in accordance with the Zoning Act prior to taking action on the proposed amendment.

2. Following a public hearing, if held, at a date determined by the City Commission, the Commission shall approve, approve with modifications, or deny the proposed Zoning Ordinance amendment by a majority vote of its members. The City Commission shall state the reason(s) for its decision for the minutes.

G. *Effective Date.*

1. Upon adoption of a Zoning Ordinance amendment, notice of adoption shall be published in accordance with the requirements of the Zoning Act.

2. The Zoning Ordinance amendment shall take effect thirty-one (31) days after the date the City Commission adopted the amendment, unless otherwise provided by the City Commission.

H. *Duration of Approval.* All amendments to the Zoning Ordinance are final.

I. *Resubmission.* Following the final action of a denial by the City Commission on a Neighborhood Classification or Zone District amendment, no further applications shall be considered for any part or all of the same property for at least one (1) year from the date of the City Commission's action, with the following exception.

1. If a Neighborhood Classification or Zone District amendment was denied, the City Commission may reconsider the amendment if a City Commission member on the prevailing side makes a motion for reconsideration and it is passed at the meeting at which the denial decision was made. The vote on the reconsideration of the original action shall not be held later than the next regularly scheduled City Commission meeting.

2. The time limit on reconsiderations may be waived by a majority vote of the City Commission when it is deemed necessary to facilitate the proper development of the City, and when the City Commission finds that there has been a substantial change in circumstances since the original vote on the Neighborhood Classification or Zone District amendment.

Sec. 5.12.11. Conditional Rezoning.

A. *Purpose.* The City Commission recognizes that there are certain instances where it would be in the best interests of the City, as well as advantageous to property owners seeking a change in a Neighborhood Classification or Zone District, if certain conditions and limitations could be proposed by applicants as part of an application for a zone change. Therefore, it is the intent of this Section to provide a process by which an applicant seeking a change in Neighborhood Classification or Zone

District boundaries may propose a Conditional Zoning Offer, with conditions and commitments attached thereto, as part of the application for the requested rezoning. These provisions shall be in accordance with the provisions of the Zoning Act.

B. *Application.* An applicant requesting a change in a Neighborhood Classification and/or Zone District may propose a Conditional Zoning Offer, as defined in this Section. The required application and process shall be the same for zone change requests as detailed in Section 5.12.10., except as modified by the requirements of this Section.

C. *Definitions.* The following definitions shall apply to this Section.

1. *"Conditional Zoning Offer"* shall mean written conditions, proposed by the applicant and approved by the City, processed as part of an approval under this Section. These conditions shall constitute requirements for, and in connection with, the development and/or use of the property approved under a Zoning Agreement.
2. *"Zoning Agreement"* shall mean a written agreement offered by the applicant and approved and executed by the applicant and the City and recorded with the Kent County Register of Deeds, incorporating the Conditional Rezoning Offer along with any requirements necessary to implement the Conditional Rezoning Offer.

D. *Eligibility.*

1. An applicant for rezoning may submit a proposed Conditional Rezoning Offer and Zoning Agreement with an application for a zone change. This election shall be made at the time the zone change is filed, or may be made at a later time during the rezoning process, as provided in this Section.
2. To be eligible, the Conditional Rezoning Offer shall set forth conditions which are equally or more restrictive than the regulations that would otherwise apply under the proposed Neighborhood Classification or Zone District.

E. *Zoning Agreement.* The Zoning Agreement shall set forth the Conditional Rezoning Offer and shall include those terms necessary to implement the Agreement. In addition, before acceptance by the City Commission the Zoning Agreement shall include the following:

1. Acknowledgement that the Zoning Agreement and the Conditional Rezoning Offer included therein were proposed voluntarily by the applicant, and that the City relied upon the Agreement and may not grant the zone change but for the Conditional Rezoning Offer and terms spelled out in the Zoning Agreement.
2. Acknowledgement that the Zoning Agreement and its terms and conditions are authorized by all applicable state and federal law and constitution, and that the Zoning Agreement is valid.
3. Agreement and understanding that the property shall only be developed and/or used in a manner that is consistent with the Zoning Agreement.
4. Agreement and understanding that the approval and the Zoning Agreement shall be binding upon and inure to the benefit of the property owner and the City, and their respective heirs, successors, assigns, receivers or transferees.
5. Agreement and understanding that if the zone change with a Zoning Agreement becomes void, no development shall take place or permits issued unless and until a new Neighborhood Classification or Zone District for the property has been established or a new zone change with a Zoning Agreement has been approved.
6. Agreement and understanding that each of the requirements and conditions in the Zoning Agreement represents a necessary and reasonable measure which, when considered with all

other conditions and requirements, is roughly proportional to the increased effects or other conditions created by the uses, activities or conditions represented in the approved zone change and Zoning Agreement, taking into consideration the changed Neighborhood Classification and Zone District and the specific use(s), activities, or conditions authorized.

7. Agreement and understanding that no part of the Zoning Agreement shall permit any activity, use, or condition that would otherwise be prohibited in the Zone District to which the property is to be zoned.

8. When necessary, the Zoning Agreement shall include and incorporate, by reference, a site plan that illustrates the implementation of the Conditional Rezoning Offer, if appropriate. The site plan and Zoning Agreement shall not replace the requirement for a Site Plan Review or other approvals required by this Chapter.

F. *Conditional Rezoning Offer.*

1. The Zoning Agreement shall specify the Conditional Rezoning Offer and any requirements necessary to implement it. However, the Conditional Rezoning Offer may not authorize uses or developments of greater intensity or density, and/or which are not permitted in the proposed Zone District.

2. Any uses proposed as part of a Zoning Agreement that would otherwise require approval of a Special Land Use or Site Plan Review shall be approved as required by this Chapter prior to establishment or commencement of the use.

3. The Conditional Rezoning Offer shall bear a reasonable and rational relationship and/or benefit to the property in question.

4. The Conditional Rezoning Offer may include limitations on the uses permitted on the property in question, specification of lower density or less intensity of development and use, and/or may impose more restrictive measures on the location, size, height, or other measure of buildings, structures, improvements, setbacks, landscaping, buffers, design, architecture and other features; provided that no variances from height, area, setback or similar dimensional requirements in this Chapter be allowed unless and until approved by the Board of Zoning Appeals as required in Article 13.

5. The Conditional Rezoning Offer may also include conditions related to the development of the property that are consistent with the intent of this Chapter and applicable state, federal and local regulations. These conditions may include, for example, extension or improvements to infrastructure serving the site, site specific improvements intended to minimize the effects of the development on surrounding properties, or other conditions deemed important to the development by the applicant.

6. A Conditional Rezoning Offer that includes provisions for preservation of natural features and/or open space, facilities for drainage, facilities for traffic and access, and similar activities that take place on private land shall include a written understanding for permanent maintenance of those features or improvements by entities other than the City, unless a separate agreement for dedication of the property to the City has been executed. The Zoning Agreement shall also contain a provision for authorization and finance of maintenance by or on behalf of the City, after notice, in the event that the property owner(s) fail(s) to perform necessary maintenance in a timely fashion.

G. *Application Procedures.*

1. An application for Conditional Rezoning shall be the same as outlined in this Section. In addition to the required materials listed in Section 5.12.04., a Zoning Agreement in a

recordable format acceptable to the City shall be submitted, along with any plans necessary to illustrate the Conditional Rezoning Offer. The Director shall determine the adequacy of any submitted application and may request additional materials deemed necessary to properly demonstrate the extent of the proposed Offer(s).

2. The application may be amended during the process of consideration, provided that any amended or additional Conditional Rezoning Offers are entered voluntarily and confirmed in writing by the applicant.

H. *Review Procedures.*

1. *Application Completeness.* Upon acceptance of the application for form and completeness, the Planning Director shall assign the application a public hearing date and time.

2. *City Attorney Review.* The Zoning Agreement shall be reviewed by the City Attorney prior to the required Planning Commission public hearing. The City Attorney shall indicate to the Planning Commission and City Commission whether the Zoning Agreement conforms to the requirements of this Section and the Zoning Act, and is in a form acceptable for recording with the Kent County Register of Deeds.

3. *Planning Commission Public Hearing.* The Planning Commission shall hold a public hearing in accordance with the requirements of Section 5.12.05.

I. *Review Standards.* The Planning Commission shall consider, and the City Commission may consider, whether the proposed Zoning Agreement and Conditional Rezoning offer meet the following standards.

1. The review standards of Section 5.12.10.E.2. as applicable.

2. The proposed Zoning Agreement and Conditional Rezoning offer:

   a. Bears a reasonable and rational connection and/or benefit to the property to be rezoned.

   b. Will result in a development that is more compatible with the neighborhood than would have been likely if the property had been rezoned without a Zoning Agreement, or if the property were to be developed under the existing Zone District.

   c. Are necessary to allow the rezoning to be approved, in that the property would likely not be rezoned without the proposed Zoning Agreement and Conditional Rezoning Offer.

   d. Are clearly in the public interest, as compared to the existing Zone District and considering the site specific land use or conditions proposed by the applicant, and that the benefit to the public as a result of approving the Conditional Rezoning and Zoning Agreement clearly outweighs any reasonably foreseeable detriments thereof.

J. *Recommendation to City Commission.* The Planning Commission may recommend approval, approval with recommended changes (related to the Zoning Agreement), or denial of the Conditional Rezoning and Zoning Agreement; provided however, that any conditions which add to or amend the Conditional Rezoning Offer are accepted by the applicant in writing prior to consideration by the City Commission.

K. *City Commission Decision.*

1. Upon receipt of the Planning Commission's recommendation, the City Commission shall approve or deny the Conditional Rezoning and Zoning Agreement. The City Commission may amend the application, provided that any conditions that add to or amend the Conditional Rezoning Offer are acceptable to the applicant.

2. Should a Conditional Rezoning Offer be revised following the Planning Commission public hearing and recommendation, the City Commission may conduct its own public hearing, in accordance with the requirements of the Zoning Act.

3. If changes are made in the proposed Zoning Agreement, the City Commission may return the application to the Planning Commission to hold a public hearing on the revised Zoning Agreement and submit a revised report and recommendation to the City Commission.

4. If an applicant proposes a Conditional Zoning Offer after the Planning Commission has held a public hearing on a Neighborhood Classification or Zone District request, the City Commission shall first return the application to the Planning Commission, which shall hold a new public hearing on the Conditional Rezoning and proposed Zoning Agreement and submit a report and recommendation to the City Commission.

L. *Implementation and Effective Date.*

1. Upon adoption of a Conditional Rezoning and Zoning Agreement, notice of adoption shall be published in accordance with the requirements of the Zoning Act.

2. The Zoning Map shall specify the Neighborhood Classification and/or Zone District to which the property is rezoned, plus the letter "A" to indicate that the property is subject to a Zoning Agreement (i.e., "TN-MDR-A"). The City Clerk shall maintain a listing of all properties subject to Zoning Agreements, and shall provide copies of the Agreements upon request.

3. The use of any affected property shall conform to all of the requirements regulating use and development within the new Zone District; subject to the provisions of the Zoning Agreement, which shall supersede all provisions otherwise applicable under the Chapter.

4. The applicant shall record the approved Zoning Agreement with the Kent County Register of Deeds within five (5) days following the effective date of approval by the City Commission. Evidence of recording shall be provided to the City Attorney within seven (7) days following the effective date of approval by the City Commission.

5. The Conditional Rezoning and Zoning Agreement shall take effect thirty-one (31) calendar days after the date the City Commission adopted the amendment, unless otherwise provided by the City Commission.

6. Prior to development, any other applicable zoning approval or other approval requirement imposed by this Chapter or other City ordinances shall be met.

M. *Duration of Approval.*

1. Provided that all development and/or use of the property in question is in compliance with the Zoning Agreement, a use or development authorized thereunder may continue indefinitely, provided that all terms of the Conditional Rezoning Offer and the Zoning Agreement continue to be met.

2. Unless extended by the City Commission for good cause, the Neighborhood Classification or Zone District change and Zoning Agreement shall expire two (2) years after adoption of the Conditional Rezoning and Zoning Agreement, unless substantial progress has occurred.

3. In the event that approved development has not commenced or has not proceeded diligently to completion within the aforementioned two (2) years, the Zoning Agreement shall be void and of no effect.

4. Should the Zoning Agreement become void, all development on the subject property shall cease, and no further development shall be permitted. Until action satisfactory to the City is taken to

bring the property into compliance with the Zoning Agreement, the City may withhold, or, following notice and an opportunity to be heard, revoke permits and certificates, in addition to, or in lieu of, any other lawful action to achieve compliance.

5. Notwithstanding the above, if the property owner applies in writing for an extension of the Zoning Agreement at least fifty (50) days prior to the expiration date, the City Commission may, after recommendation by the Planning Commission following a public hearing in accordance with the requirements of this Chapter and the Zoning Act, grant an extension of up to one (1) year. The extension may be granted if the property owner is able to demonstrate that the reasons for the extension were reasonably beyond his or her control and that the project has a reasonable expectation of proceeding. No further extensions may be requested.

6. If the Zoning Agreement becomes void as outlined above, a rezoning to the property's original Neighborhood Classification or Zone District shall be initiated and processed as required by the Zoning Act and this Chapter.

7. Nothing in the Zoning Agreement, nor any statement or other provision shall prohibit the City from rezoning all or any portion of the property that is part of the Agreement to another Zone District. Any rezoning shall be conducted in compliance with this Chapter and the Zoning Act.

8. Failure to comply with the Zoning Agreement at any time after approval may constitute a breach of agreement, and further use of the property may be subject to legal remedies available to the City, including a voiding of the Zoning Agreement.

N. *Amendment.*

1. During the initial two (2) year period following approval of the Zoning Agreement, or during any extension granted by the City as permitted above, the City shall not accept any request or consider any additions or alterations to the Conditional Rezoning Offer or the Zoning Agreement.

2. Following the initial two (2) year period following approval and any extensions, the Zoning Agreement may be amended or altered, in the same manner as was prescribed for the original Conditional Rezoning Offer and Zoning Agreement.

Sec. 5.12.12. Planned Redevelopment District (PRD) Review, Approval and Amendment.

A. *Purpose.* The PRD process is a review procedure that is intended to encourage innovative land planning and design by:

1. Recognizing greater flexibility in zoning requirements for larger and multi-lot sites;

2. Encouraging a mix of land uses;

3. Encouraging a sensitive design that respects the neighborhood character as well as natural or man-made features of the site and surrounding area; and

4. Promoting quality design and environmentally sensitive development.

B. *Applicability.*

1. *Existing PUD/PRDs.* Notwithstanding the requirements of this Chapter, existing conditions of approval for any Planned Unit Development (PUD) and Planned Redevelopment District (PRD) shall remain in full effect as approved prior to the effective date of this Chapter. However, any amendments to these developments shall comply with this Chapter. See also Section 5.7.06.A.4.

2. *Terminology.* The term PRD shall be used in this Chapter as the former PUD review and approval process was eliminated with the combination of the two (2) districts.

C. *Application Procedures.*

1. Applications shall be submitted as required in Section 5.12.04.

2. The application shall include either a Preliminary Site Plan or a Final Site Plan.

   a. A Preliminary Site Plan Review is intended as a conceptual approval. Subsequent Final Site Plans shall be subject to and reasonably consistent with the approved Preliminary Site Plan.

   b. A Final Site Plan approval is intended for an area that is about to undergo construction; showing more detailed site related plans. If not submitted as part of the rezoning application for City Commission approval, Planning Commission approval of a Final Site Plan is required for each phase of development.

3. The following materials shall be provided in addition to those of Section 5.12.08.

   a. A list of all proposed uses, total acreage, and/or square footage devoted to each use.

   b. All proposed setbacks, lot sizes, and other applicable yard and lot requirements.

   c. Total number of dwelling units, number of rooms per unit and proposed density.

   d. The location and size of parks, open recreation areas, other open space and all public and community uses, including proposed maintenance provisions for private open spaces.

   e. For phased developments, documentation that each phase shall be planned such that if later phases are not implemented, any single phase shall be consistent with the provisions of this Chapter and able to stand alone should subsequent phases no be developed. Any phase shall not detract from the feasibility of developing the remaining portion of the PRD in an appropriate and desirable manner.

   f. Any additional graphics or written materials requested by the Director, Planning Commission or City Commission to assist in the review of the project proposal.

4. If a Preliminary Site Plan is submitted, the Director may require additional information specific to the site if deemed necessary to ensure compliance with the Review Standards of Section 5.12.12.E.

5. Special Land Uses. The application shall include all of the information required under Section 5.12.09 for any Special Land Uses proposed with the development.

D. *Review Procedures.*

1. *Application Completeness.* Upon acceptance of a complete application, the Director shall assign the application a public hearing date and time.

2. *Planning Commission Public Hearing.* The Planning Commission shall conduct a public hearing in accordance with the requirements of the Section 5.12.05.

3. *Special Land Uses.*

   a. If Special Land Uses are proposed, the application for the use(s) shall be reviewed by the Planning Commission in accordance with the procedures of Section 5.12.09.

   b. A separate public hearing shall be required, but may be conducted concurrently with the PRD hearing.

   c. A decision on the Special Land Use application shall be by separate motion of the Planning Commission.

d. If approved, the Special Use shall not be valid unless the City Commission approves the PRD and the property is rezoned.

4. *Recommendation to City Commission.*

a. The Planning Commission shall review the PRD application and recommend to the City Commission approval, approval with conditions, or denial based on the Review Standards of Section 5.12.12.E. for the PRD, and Section 5.12.08.E. for the Preliminary or Final Site Plan.

b. The recommendation shall state the reasons for the recommendation and the review standards used in making the determination.

c. All setbacks, lot sizes, and other applicable yard and lot requirements shall be recommended by the Planning Commission and set by the City Commission for each PRD application.

d. The Planning Commission shall recommend and the City Commission shall consider appropriate transitions in landscaping, use, building height and massing, and density at the perimeter of any PRD.

e. The Planning Commission may recommend, and the City Commission may impose, additional conditions and safeguards deemed necessary, as described in Section 5.12.02.B.3.

f. The Planning Commission may recommend, and the City Commission may impose a performance guarantee in an amount equivalent to the estimated cost of improvements associated with the PRD, as described in Section 5.14.04., or infrastructure and service improvements as needed for project approval, per Section 5.2.20.

E. *Review Standards.* For a zone change to a PRD, the Planning Commission shall consider, and the City Commission may consider, whether the proposed PRD meets the following standards.

1. The Neighborhood Classification or Zone District change review standards of Section 5.12.10.E.2.

2. The Site Plan Review standards of Section 5.12.08.E.

3. Master Plan/Zoning Ordinance.

a. The mix of uses, density of development, and design of the proposed PRD are consistent with the Master Plan.

b. The proposed PRD is consistent with the purpose and intent of the Zoning Ordinance.

c. The proposed PRD meets the eligibility criteria of Section 5.7.06.B. of this Chapter.

d. The proposed PRD will ensure efficient development on the property and will result in a logical and orderly development pattern in the neighborhood.

4. *Neighborhood.*

a. The proposed development will be compatible, harmonious and appropriate with the existing or planned character and uses of the neighborhood, adjacent properties, and the natural environment.

b. Potential adverse effects arising from the proposed development on the neighborhood and adjacent properties will be minimized through the provision of adequate parking, the placement of buildings, structures and entrances, as well as the location of screening, fencing, landscaping, buffers or setbacks.

c. The proposed development will not be detrimental, hazardous, or disturbing to existing or future adjacent uses or to the public welfare by reason of excessive traffic, noise, smoke, odors, visual clutter, and electrical or electromagnetic interference.

d. Connections for pedestrians and vehicles are provided between buildings, uses and amenities within the property, as well as connections to and from the surrounding properties.

5. *Environment.* The proposed development will retain as many natural features of the landscape as practicable, particularly where the natural features assist in preserving the general character of the neighborhood.

6. *Public Facilities.*

a. Adequate public or private infrastructure and services already exist or will be provided at no additional public cost, and will safeguard the health, safety, and general welfare of the public.

b. The proposed development will not be detrimental to the financial stability and economic welfare of the City.

c. Wherever practicable, the proposed development will provide amenities, including but not limited to, park and recreational facilities, urban open space, and non-vehicular connections that serve a public purpose.

7. *Other.* Where applicable, the Planning Commission shall find that the Review Standards of Section 5.12.09.E. for any proposed Special Land Use are satisfied.

F. *City Commission Decision.*

1. The City Commission shall review the recommendation of the Planning Commission and approve, approve with conditions, or deny the application. If approved, the Preliminary or Final Site Plan submitted with the PRD application shall be considered an integral part of the zone change.

2. The Zoning Map shall be changed to reflect the location of the PRD after the effective date of the zone change.

G. *Effective Date.* Upon adoption of a PRD, notice of adoption shall be published in accordance with the requirements of the Zoning Act. The PRD approval shall take effect thirty-one (31) calendar days after the date of the City Commission approval, unless otherwise provided by the City Commission.

H. *Duration of Approval.*

1. Approval of a Final Site Plan and construction shall be initiated and substantial progress achieved within two (2) years of the effective date of the PRD approval. Upon written request prior to the expiration of the approval, one (1) extension of up to one (1) year may be granted if the Planning Commission finds that the extension is warranted due to circumstances beyond the control of the applicant.

2. With a multiple-phase PRD, substantial progress on a phase with an approved Final Site Plan shall preserve the approval of the PRD rezoning, provided that consecutive phases are started within two (2) years of completion of the previous phase.

3. Where development has not occurred or phases have not been completed within two (2) years, a public hearing following the review procedures of Section 5.12.05. shall be held to review the uncompleted portions or phases. This review shall consider the project's compliance with current requirements of this Chapter.

4. If substantial progress has not occurred within the specified time limits or a new PRD has not been approved, the Planning Commission shall initiate rezoning proceedings to an appropriate Zone District, with a recommendation by the Director.

I. *Amendments to Approved PRDs.* Following the City Commission approval of the PRD Preliminary or Final Site Plan Review and the effective date of the Zone Change, a proposed change to the PRD shall be classified in one (1) of the following categories.

1. *Minor Change.* The Director is authorized to grant the following proposed Minor Changes under Director Review procedures. The Director may refer any proposed Minor Changes to the Planning Commission for a decision.
   a. Alterations that lessen the intensity of the use without compromising the approved plan.
   b. Changes in the building size, up to five (5) percent in gross floor area of a single building.
   c. Movement of buildings or other structures by not more than five (5) feet.
   d. Replacement of plant material specified in the landscape plan with comparable materials of an equal or greater size.
   e. Changes in building materials to a comparable or higher quality.
   f. Changes in floor plans that do not alter the character of the use or significantly increase traffic generation.
   g. Changes required by outside agencies such as county, State, or federal departments provided the integrity of the project is not compromised, and the Planning Commission is informed of the change.
2. *Minor Deviation.* The Planning Commission shall review the following proposed Minor Deviations under Site Plan Review procedures. The Planning Commission may require a public hearing on any deviation from the adopted PRD.
   a. Change in the building size of more than five (5) percent but not more than fifteen (15) percent in gross floor area for a single building.
   b. Movement of buildings or other structures by more than five (5) feet but not more than fifteen (15) feet.
   c. Replacement of plant material specified in the landscape plan with materials of lesser quality or smaller than the approved size.
   d. Changes in building materials to a lesser quality than approved.
   e. Changes required by outside agencies such as county, State, or federal departments where the integrity of the project is compromised.
   f. Deviation from an approved Planned Sign Program, provided that the amendment process of Section 5.15.08.F. shall be followed.
3. *Major Amendment.* The Planning Commission shall review proposed Major Amendments under Zone Change procedures. The Planning Commission shall hold a public hearing for any Major Amendment to an adopted PRD. If the major amendment is not approved, the rezoning of the PRD shall not be affected. The following shall be considered a Major Amendment.
   a. Change in the use or character of the development or any increase in residential density.
   b. Increase of fifteen (15) percent or more in gross floor area for a single building.
   c. Significant increase in traffic generation or conflicts in pedestrian, bicycle, or vehicular circulation.
   d. Reduction in greenspace by more than five (5) percent.
   e. Any proposed change that the Director or Planning Commission determines is a Major Amendment.

Sec. 5.12.13. Site Condominiums.

A. *Purpose.* The purpose of this Section is to provide procedures for the division of land on the basis of condominium ownership that is not subject to the platting provisions of the Land Division Act, Public Act 288 of 1967, as amended.

B. *Applicability.*

1. *Separate Lot.* A site condominium lot shall be treated as a separate lot or parcel and may have buildings and uses as allowed in its Zone District provided the lot meets the development requirements for the Zone District in which it is located.

2. *Exempt Buildings.* Existing buildings where rental units are planned for conversion to condominium units shall be exempt from these requirements provided the number of residential units does not increase.

C. *Application Procedures.*

1. An application for a site condominium Site Plan Review shall be filed with the Planning Department pursuant to Section 5.12.04.

2. The application together with all required information shall be transmitted to the Planning Commission for review.

D. *Review Procedures.*

1. *Application Completeness.* Upon acceptance of the application for form and completeness, the Director shall assign the application a public hearing date and time.

2. *Public Hearing.* The Planning Commission shall hold a public hearing in accordance with the applicable requirements of Section 5.12.05.

E. *Site Plan Review Approval.*

1. *Preliminary Site Plan Review.*

   a. If submitted, a Preliminary Site Plan shall be reviewed and approved by the Planning Commission in accordance with Section 5.12.08.

   b. Approval of a preliminary Site Plan shall confer upon the proprietor approval of lot sizes, lot orientations, and street layouts for a period of two (2) years.

   c. Three (3) separate one (1) year extensions may be granted by the Planning Commission if applied for in writing prior to the date of expiration of approval of the Preliminary Site Plan.

   d. After a period of two (2) years from approval, unless extensions as provided for in this Chapter have been granted, the preliminary Site Plan approval shall become null and void if a Final Site Plan has not been submitted for City Commission approval.

2. *Final Site Plan Review.*

   a. A Final Site Plan meeting the requirements of Section 5.12.08. for the site condominium project shall be submitted for review by the Planning Commission. Following a public hearing noticed in accordance with the applicable provisions of Section 5.12.05., the Planning Commission shall make a recommendation to the City Commission for approval, approval with conditions, or denial, including a summary of the public comment and the findings related to the Site Plan Review Standards of Section 5.12.08.E. used in making its recommendation.

b. The owner shall submit ten (10) copies of the plan to the City Engineer who shall place the Final Site Plan, containing the information required by Section 5.12.08., on the agenda of the City Commission. Copies of the final plan shall be distributed to the appropriate City departments for their review and comment to the City Commission.

c. The City Commission may hold a public hearing prior to taking action. Following the public hearing, if held, the City Commission shall approve, approve with conditions, or deny the proposed Final Site Plan for the site condominium application. The City Commission shall state the reason(s) for its decision in the minutes.

d. The Final Site Plan Review for a site condominium shall be approved by the City Commission prior to the issuance of any building permit for any new structures on the proposed site. The City Commission may consider the issuance of LUDS and/or building permits prior to the approval of the Final Site Plan in exceptional or unusual circumstances beyond the ability of the applicant to control.

F. *Effective Date.*

1. *Effective Date.* The Final Site Plan for the approved site condominium shall take effect thirty-one (31) days after the date of the City Commission approval, unless otherwise provided by the City Commission.

2. *LUDS and/or Building Permit.* Prior to the issuance of a LUDS and/or building permit for any site work or building in an approved site condominium project, the following requirements shall be fulfilled, unless waived by the appropriate City department.

a. Proposed master deed.

b. Articles of incorporation for the condominium association.

c. Improvement plan approval.

d. Block grading, floodway, soil erosion approval.

e. Basement elevation and building restriction approval.

f. Construction of hydrant water, adequate fire access, stormwater detention, floodways, and soil erosion controls.

G. *Boundary Monuments.*

1. Monuments shall be set at all boundary corners and deflection points and at all street right-of-way intersection corner and deflection points. Lot irons shall be set at all condominium site corners and deflection points of condominium site lines.

a. The City Engineer may grant a delay in the setting of required monuments or irons for a reasonable time, but not to exceed one (1) year from the date of approval by the City Commission, on the condition that the owner or responsible person provide a performance guarantee in an amount determined from time to time by resolution of the City Commission and consistent with Section 5.14.04.

b. The deposit shall be returned to the owner or responsible person upon receipt of a certificate by a surveyor registered in the State of Michigan that the monuments and irons have been set as required, within the time specified.

c. If the owner or responsible person defaults, the City Commission shall promptly engage a registered surveyor to set the monuments and irons in the ground as shown on the condominium Final Site Plan, at the owner or responsible person's expense.

2. All rights-of-way and utility easements shall be described separately from individual condominium sites and shall be accurately delineated by bearings and distances on the condominium subdivision plan and the Final Site Plan.
3. The rights-of-way and utility easements shall be separately designed for their individual purpose, such as access, roadway, location, installation, maintenance and replacing of public utilities.
4. The developer shall dedicate to the City all easements for utilities. Water, sewer and electrical easements may be placed within streets, subject to the approval of the City Engineer and the applicable standards of the City.
5. All streets proposed for any site condominium shall be developed within the minimum design, construction, inspection, approval, and maintenance requirements of this Chapter and Chapter 64 Subdivision Regulations.

Sec. 5.12.14. Optional Plan Review (OPR) Procedures.

A. *Purpose.*

1. This Section establishes an alternative process by which the Planning Commission may evaluate and approve a development project that cannot otherwise be accommodated using the minimum standards of certain Zone Districts.
2. It is the intent of this Section to permit a reasonable degree of flexibility in the regulation of development projects to account for unique site conditions or other circumstances, and to encourage innovation in land use and variety in design, layout, and type of structures in a manner that shall achieve the successful integration of the proposed development project with the characteristics of the surrounding neighborhood.
3. The OPR process establishes a mechanism to review and address new development concepts, innovative design, special issues, public/private ventures, and other unique proposals or circumstances without changing the existing Zone District.
4. It is not intended that this process be used solely to circumvent the variance process provided in Article 13 for individual buildings or sites.

B. *Applicability.*

1. The following are eligible for approval using the OPR process.
    a. Land development in the TN-CC, TN-TCC, TOD, SD-IC, SD-PRD, OD-EBL, and OD-GR Zone Districts.
    b. Planned Sign Programs and Vintage Signs in any Zone District.
    c. Requests for modifications to Site Layout and Building Placement and Building Element Requirements in the Mixed Use Commercial Zone Districts.
    d. Setbacks from the Grand River in the Grand River Overlay District.
    e. Administrative Departures referred by the Director.
    f. As otherwise required by this Chapter.
2. The OPR process shall not be used to approve a Permitted Use or a Special Land Use that is not otherwise allowed in the Zone District.

C. *Application Procedures.*

1. An application shall be filed with the Planning Department pursuant to Section 5.12.04.

2. Applications for Optional Plan Review and Preliminary or Final Site Plan Review shall be submitted for simultaneous review. The procedures, standards, and specifications for each review shall be followed as specified in this Article and other applicable Articles of this Chapter. In all cases, a Final Site Plan Review shall be required prior to the issuance of a LUDS and/or building permit.

D. *Review Procedures.*

1. *Application Completeness.* Upon acceptance of the application for form, content, and completeness, the Director shall assign the application a public hearing date and time.

2. *Public Hearing.* The Planning Commission shall hold a public hearing in accordance with Section 5.12.05.

E. *Review Standards.* The Planning Commission shall consider the following standards in consideration of an Optional Plan Review application.

1. The Site Plan Review Standards of Section 5.12.08.E.

2. *Master Plan/Zoning Ordinance.* The project will be consistent with the purpose and intent of the Master Plan and Zoning Ordinance, including the Zone District.

3. *Neighborhood.*

   a. The project will be compatible, harmonious and appropriate with the existing or planned character and uses of the neighborhood, adjacent properties, and the natural environment.

   b. Potentially adverse effects arising from the project on the neighborhood and adjacent properties will be minimized through the provision of adequate parking, the placement of buildings, structures and entrances, as well as the location of screening, fencing, landscaping, buffers or setbacks.

   c. The proposed project will not be detrimental, hazardous, or disturbing to existing or future adjacent uses or to the public welfare by reason of excessive traffic, noise, smoke, odors, glare, visual clutter, and electrical or electromagnetic interference.

   d. The proposed project will not adversely affect the walkability of the neighborhood, impair pedestrian circulation patterns, disrupt the continuity of the urban street wall or otherwise hinder the creation of a pedestrian-oriented environment.

   e. The project will not significantly modify the basic standards of the Zone District to the extent that it adversely affects the established or future character of the neighborhood.

4. *Environment.* The proposed project will retain as many natural features of the landscape as practicable, particularly where the natural features assist in preserving the general character of the neighborhood.

5. *Public Facilities.*

   a. Adequate public or private infrastructure and services already exist or will be provided at no additional cost, and will safeguard the health, safety, and general welfare of the public.

   b. The proposed project will not be detrimental to the financial stability and economic welfare of the City.

   c. The proposed project will comply with all other applicable City ordinances and policies and all applicable State laws.

   d. The project provides urban open space, Grand River edge walkways, or other amenities that serve a public purpose.

6. The request is necessitated by a condition related to the site or structure, and is not a means to reduce cost or inconvenience.

F. *Planning Commission Decision.* The Planning Commission shall approve, approve with conditions, or deny the application, stating the reasons for its decision and the review standards used in making its recommendation.

G. *Conditions of Approval.*

1. Any condition of approval shall meet the standards of Section 5.12.02.B.3. Conditions of approval imposed by the Planning Commission cannot be appealed to the Board of Zoning Appeals.
2. As a condition of approval, the Planning Commission may require a performance guarantee per Section 5.14.04. or other infrastructure and service improvements as needed for project approval, per Section 5.2.20.
3. Revocation. The breach of any condition, safeguard, or requirement shall be considered a violation of the project approval and a violation of this Chapter. Following notice to the property owner and a public hearing held in compliance with Section 5.12.05., the Planning Commission shall have the authority to revoke any Optional Plan Review approval where the applicant has failed to comply with applicable requirements in this Article or this Chapter.

H. *Effective Date.* Approved Optional Plan Review requests shall take effect sixteen (16) days after the date of Planning Commission approval, except as otherwise noted in the approval resolution.

I. *Duration of Approval.*

1. An Optional Plan Review approval shall be valid for a period of one (1) year, provided the project has demonstrated substantial progress in that period.
2. Upon written request prior to the expiration of the approval, two (2) extensions of up to six (6) months may be granted if the Planning Commission finds that the extension is warranted due to circumstances beyond the control of the applicant.
3. If no action is taken to use the property as approved or demonstrated substantial progress has not been made after the one (1) year approval period, or as extended per this subsection, the Optional Plan Review approval shall expire when applicable LUDS and/or building permits expire.

(Ord. No. 2021-22, § 3, 7-27-21; Ord. No. 2022-30, § 5, 8-23-22)

Sec. 5.12.15. Master Plan Amendment.

A. *Planning Act.* An amendment to the Master Plan shall be adopted by the City Commission, following the procedural requirements of the Planning Act.

B. The following criteria shall be considered in the amendment of the Master Plan:

1. Whether the proposed amendment corrects an error or is the result of changing conditions, trends, or facts since the Master Plan's adoption;
2. *Plan Elements.* Whether the proposed amendment is consistent with the Guiding Principles, Themes, Development Characters, Area Specific Plans, Visions, and Recommendations of the Master Plan;
3. *Community Need.* Whether, and the extent to which, the proposed amendment addresses a demonstrated community need that was otherwise not considered in the Plan;

4. *General Welfare.* Whether the proposed amendment shall protect the health, safety and general welfare of the public;
5. *Mitigation of Adverse Effects.* Whether the proposed amendment avoids adverse impacts on the natural and built environments, including air and water quality, noise, wildlife, vegetation, streets and other infrastructure priorities;
6. *Compatibility.* Whether the proposed amendment would result in development that is compatible with existing and proposed uses surrounding the subject property, and the proposed design considerations and land uses are appropriate for the land and neighborhood; and
7. *Efficient and Orderly Development.* Whether the proposed land use amendment helps ensure efficient, logical, and orderly development within the city.

Sec. 5.12.16. Administrative Approvals: Administrative Departures, Director Review, Counter Review, Qualified Review, and State University Plan Approvals.

A. *Administrative Departures.*

1. *Purpose.*
   a. Administrative Departures are provided to permit development of individual lots or properties that generally fall within the requirements of the Zone District, but, due to site characteristics or other related conditions, a limited degree of flexibility to meet the spirit and purpose of this Chapter is appropriate.
   b. It is not intended to be a general waiver or lessening of regulations. Rather, the procedure permits a site-specific plan that is equal to or better than the strict application of a design standard. It is not intended as a substitute for a variance or as a means for relief from requirements of this Chapter.
2. *Applicability.* Only those Administrative Departures that are specifically noted in this Chapter may be requested and approved.
3. *Application Procedure.* Requests for Administrative Departures shall be submitted with the applicable application and shall include the following:
   a. Information and materials, as listed in the application form, in sufficient detail to indicate the nature and necessity of the request, and a scaled drawing, if appropriate. Requested Administrative Departures shall be separately listed and clearly noted on the proposed plan.
   b. The applicable fee established by resolution of the City Commission.
4. *Review Standards.* The Director shall consider whether the proposed alternative meets the following standards.
   a. *Zoning Ordinance.* The proposed Departure is consistent with the purpose and intent of the Zone District, and the specific requirements and conditions of the Administrative Departure approval criteria,
   b. *Neighborhood.* The proposed Departure will be compatible with adjacent properties and the neighborhood,
   c. *Environment.* The proposed Departure will retain as many natural features of the landscape as possible,
   d. *Public Facilities.* The proposed Departure will not place a burden on existing infrastructure and services, and

e. *Other.* The Departure request is necessitated by a condition of the site or structure, and not as a means to reduce costs or inconvenience.

5. *Decision.*

   a. The Director may approve, approve with conditions, or deny the request.

   b. If the Director determines that the extent of the requested Departure(s) requires additional community review and input, the Director may refer the application to the Planning Commission as an Optional Plan Review. The fee for the Administrative Departure shall then be applied to the Optional Plan Review application.

6. *Prior to Other Approval.* Decisions on Administrative Departures shall be made prior to consideration of other approval required by this Chapter.

7. *Appeal.* A decision regarding an Administrative Departure may be appealed to the Board of Zoning Appeals. Individual conditions imposed as part of an Administrative Departure approval cannot be separately appealed

B. *Director Review Procedures.*

1. *Purpose.* The Director Review process is intended to provide a streamlined review process for eligible projects to determine compliance with this Chapter.

2. *Applicability.* A project requires Director Review under the following circumstances.

   a. Review of a site plan under LUDS and building/construction permits for a project previously reviewed and approved by the Planning Commission, Board of Zoning Appeals, or City Commission.

   b. If desired by an applicant, as an advance review of a site plan or any component thereof, prior to submission for a LUDS permit. This review is only for general compliance and does not confer any approvals by the Director related to the LUDS permit.

   c. Essential services, electrical substations, private utilities and similar uses.

   d. Uses and structures permitted in Article 7 Special Districts for the SD-OS District and SD-IC District.

   e. Uses listed as Director Review in Article 9 Use Regulations, unless referred to the Planning Commission for Site Plan Review.

   f. Uses listed as Qualified Review in Article 5 Residential Zone Districts, Article 6 Mixed-Use Commercial Zone Districts or Article 9 Use Regulations, unless referred to the Planning Commission for public hearing.

   g. Minor change to a PRD Planned Redevelopment District or former PUD Planned Unit Development, as listed in Section 5.12.12.I.1.

   h. Minor modifications to a Planned Sign Program, as provided in Section 5.15.08.F.

   i. Any proposed project that is regulated by this Chapter but does not qualify for a Counter Review and is not subject to other reviews.

   j. Any proposed development on one (1) acre or more in a TN-TBA, TOD, or C Zone District, except as provided in Section 5.12.08.B.2.

   k. As otherwise required by this Chapter.

3. *Application and Review Procedures.*

   a. An application package shall be filed with the Planning Department pursuant to Section 5.12.04.A.

   b. Site plans shall be reviewed for conformance with Section 5.12.08.E. Applications for Director Review shall be reviewed by the following officials for compliance with all

applicable laws, rules, regulations, permit and license requirements, the Master Plan, other adopted City plans, policies and procedures, including but not limited to the following, as applicable.

i. Director. Zoning and overall design as the project relates to adjacent properties for compliance with provisions of this Chapter.

ii. City Engineer. Feasibility for utility service and streets for compliance with City ordinances and infrastructure policies.

iii. Traffic Engineer. Traffic flow and parking within the project, access to existing public roads and clear vision areas for compliance with City traffic safety policies.

iv. Stormwater Engineer. Drainage and stormwater management requirements.

v. Fire Chief. Access for fire vehicles and location of fire hydrants for compliance with the fire and building codes.

vi. Parks and Recreation Director. Adequacy of public recreation facilities for compliance with City recreational plans.

4. *Director Decision.*

a. The Director shall have the option of requiring any plan to undergo a Site Plan Review under the provisions of Section 5.12.08. even where deemed eligible for a Director Review if the scale or effect of the project is deemed to be significant enough to warrant the review of the Planning Commission.

b. The Director may impose condition(s) of approval that meet the Review Standards of Section 5.12.02.B.3. The Director may refer to Section 5.2.20. Infrastructure and Service Needs for additional conditions as warranted.

c. Permits shall not be issued for any building or site activity until the Director Review is completed.

d. Upon receipt of a complete application, the findings of the Director Review shall be sent to the applicant in writing within fourteen (14) days of the final determination.

e. Director Review decisions may be appealed to the Board of Zoning Appeals.

5. *Effective Date.* Projects approved through Director Review shall have immediate effect.

6. *Duration of Approval.*

a. A Director Review approval shall be valid for a period of one (1) year, in which time a LUDS and/or building permit shall be obtained and the first phase of construction substantially commenced.

b. Upon written request prior to expiration of the approval, one (1) extension of up to six (6) months may be granted if the Director finds that the extension is warranted due to circumstances beyond the control of the applicant.

c. If no action is taken to finalize construction after the one (1) year approval period, or as extended, plan approval shall expire when applicable LUDS and/or building permits expire.

7. *Amendments.* In the event of any proposed change(s) to an approved Final Site Plan, the applicant shall notify the Director. Documentation detailing the proposed change(s) and the conditions necessitating the changes shall be provided. If significant changes are proposed, the Director may require submission of a new application.

C. *Counter Review Procedures.*

1. *Purpose.* Certain site or building activities are considered minor improvements that do not warrant Director Review or Site Plan Review. These activities shall be considered Counter Reviews and are reviewed by the Planning Department for compliance with this Chapter. Counter reviews allow a more efficient review process and may also be used to identify projects that require a greater level of review.

2. *Applicability.* The following activities shall be subject to Counter Review and permits are required as provided for in this Chapter.

   a. *Single-Family and Two-Family Lots and Dwellings:*

      i. Construction of a new dwelling.

      ii. Addition to an existing dwelling.

      iii. Interior remodel of an existing dwelling.

      iv. Construction of or alteration to a detached accessory building or structure.

      v. Installation or alteration of a swimming pool, spa, hot tub or similar use.

      vi. Construction or alteration of a deck.

      vii. Installation or alteration of a fence.

   b. *Multiple-Family and Non-Residential Lots, Buildings or Structures:*

      i. Interior remodel of an existing building.

      ii. Change in use that does not result in substantial site or building alterations.

      iii. Construction of or alteration to a detached accessory building or structure.

      iv. Installation or alteration of a swimming pool, spa, hot tub or similar use.

      v. Construction or alteration of a deck.

      vi. Installation or alteration of a fence.

3. *Review Criteria and Decision.* The submitted plans shall comply with the requirements of the Zone District in which the project is located. If all requirements are met the application shall be approved.

4. *Effective Date.*

   a. Projects approved through Counter Review shall have immediate effect.

   b. Approvals shall be valid for a period of one (1) year, in which time a LUDS and/or building permit shall be obtained and substantial progress on the first phase of construction is demonstrated.

   c. Upon written request prior to the expiration of the approval, one (1) extension of up to six (6) months may be granted if the Director finds that the extension is warranted due to circumstances beyond the control of the applicant.

   d. If no action is taken to finalize construction after the one (1) year approval period, or as extended, plan approval shall expire when applicable LUDS and/or building permits expire.

D. *Qualified Review Procedures.*

1. *Purpose.* This Section provides procedures and standards for uses of land or structures that, because of their relationship to surrounding uses and structures, may require additional consideration in relation to the welfare of adjacent properties, the neighborhood, and the

community. The regulations and standards herein are designed to allow practical latitude for the applicant, but maintain adequate provision for the protection of the health, safety, convenience, and general welfare of the community.

2. *Applicability.* Only those Qualified Review uses that are specifically listed in this Chapter may be requested and approved.

3. *Review Procedures.*

   a. *Notice of Filing.* Upon receipt of a complete application, mailed notice of receipt of a Qualified Review application shall be mailed consistent with the requirements of Section 5.12.05. The notice shall state the nature of the use and provide option for affected persons to request a formal public hearing within fourteen (14) days of the mailing of the request.

   b. *No Request for Public Hearing.* If no request for public hearing is received, the Qualified Review request shall be processed pursuant to the Director Review procedures under Section 5.12.16.

   c. *Request for Public Hearing.* If a request for public hearing is received, the Qualified Review request shall be processed consistent with the Special Land Use procedures under Section 5.12.09. Notice of public hearing shall be provided consistent with the requirements of Section 5.12.05.

4. *Review Standards.* The Director or Planning Commission shall only approve an application for a Qualified Review use that meets the following standards.

   a. *Master Plan / Zoning Ordinance.* The proposed use will be consistent with the purpose and intent of the Master Plan and Zoning Ordinance, including the Zone District.

   b. The Site Plan Review Standards of Section 5.12.08.E.

   c. *Neighborhood Effects.*

      i. The proposed use would be compatible, harmonious and appropriate with the existing or planned character and uses of the neighborhood, adjacent properties, and the natural environment.

      ii. Potentially adverse effects arising from the proposed use on the neighborhood and adjacent properties would be minimized through the provision of adequate parking, the placement of buildings, structures and entrances, as well as the location of screening, fencing, landscaping, buffers or setbacks.

      iii. The proposed use would not be detrimental, hazardous, or disturbing to existing or future adjacent uses or to the public welfare by reason of excessive traffic, noise, smoke, odors, glare, visual clutter, and electrical or electromagnetic interference.

      iv. The proposed use would not adversely affect the walkability of the neighborhood, impair pedestrian circulation patterns, disrupt the continuity of the urban street wall or otherwise hinder the creation of a pedestrian-oriented environment.

   d. *Environment.* The building and site area required for the proposed use will retain as many natural features of the landscape as practicable, particularly where the natural features assist in preserving the general character of the neighborhood.

   e. *Public Facilities.*

      i. Adequate public or private infrastructure and services already exist or would be provided at no additional cost, and will safeguard the health, safety, and general welfare of the public.

ii. The proposed use would not be detrimental to the financial stability and economic welfare of the City.

iii. The proposed use would comply with all other applicable City ordinances and policies and all applicable State laws.

f. *Sale and/or Consumption of Alcohol*. Alcohol-related uses tend to have a particularly detrimental effect on neighborhoods where there is a concentration of these uses. Any use listed as a Qualified Review that includes sale and/or consumption of alcohol shall be referred to Public Hearing.

E. *State University Plan Approvals.*

1. *Purpose*. State universities created pursuant to the constitution and laws of the State of Michigan are unique entities, the boards of which are charged with operating the universities to carry out their respective educational missions for the benefit of the people of this State. It is the policy of the City to collaborate with and support state universities in the development of state university-owned property. The City also recognizes development of state university-owned property can affect residential neighborhoods in its vicinity. Accordingly, this Section is intended to enable a collaborative process that provides appropriate deference to the state university while ensuring residential neighborhood concerns and effects are appropriately considered in the development of a state university's property.

2. *Written Understanding*. In addition to, or in lieu of, other ways a state university and the City have collaborated in the development of state university owned property in the City a state university may elect to pursue the approach provided in 3. below.

3. If requested by a state university, the City may, with City Commission approval, enter into a written memorandum of understanding or other written document with a state university that provides for the following.

   a. Development and submission of a written plan for the development of one (1) or more parcels of state university owned property in furtherance of the university's mission;

   b. Engagement of the neighborhood association or others in the residential neighborhood in the vicinity of the university-owned property for purposes of hearing and considering their comments;

   c. A public meeting with the Director, with notice provided as required under Section 5.12.05: and

   d. The Director's concurrence with that plan.

4. The Director's concurrence with the plan(s) pursuant to a memorandum of understanding or other written document shall be all the approval needed under this Chapter for the state university's development of the state university owned property addressed by that memorandum of understanding or other written document.

5. A memorandum of understanding or other written document entered into pursuant to this provision may provide a process for review by the City Manager or other City officials of a Director's decision not to concur with a plan proposed by the state university pursuant to that memorandum of understanding or other written document.

(Ord. No. 2019-11, §§ 6—8, 3-26-19)

ARTICLE 13. VARIANCES, APPEALS AND INTERPRETATION PROCEDURES

Sec. 5.13.01. Purpose and Intent.

A. This Article provides the means for consideration of circumstances that prevent full compliance with this Chapter and procedures for the interpretation of the text of this Chapter.

B. The intent of these procedures is to ensure:

1. A process that provides a clear review process that is fair and equitable to all interests including applicants, affected neighbors, and the City; and
2. That development in compliance with this Chapter is generally harmonious with surrounding properties and does not endanger the health, safety, and general welfare of the public. This includes existing, prospective, or future owners or users of adjacent and nearby properties, and the public.

Sec. 5.13.02. Summary of Authorities and Review Procedures.

Table 5.13.02. summarizes the variances, appeals, and interpretation procedures and certain other decisions provided for in this Chapter, and clarifies the authorities for those decisions.

Table 5.13.02. Variance, Appeals and Interpretation Authorities				
Commission = Planning Commission			R = Review/Recommendation	
BZA = Board of Zoning Appeals			Director = Planning Director	
Procedure	**Section**	**Commission**	**BZA**	**Director**
Dimensional and Use Variances	5.13.04.	Optional for Use Variances	D	R
Appeal of Director or Planning Commission Decision, general	5.13.05.	-	D	-
Appeal of Director or Planning Commission Decision, involving a specific parcel	5.13.05.	-	D	-
Interpretations, general	5.13.06.	-	D	R
Interpretations, involving a specific parcel	5.13.06.	-	D	R

Sec. 5.13.03. Board of Zoning Appeals (BZA).

A. *Membership.*

1. A Board of Zoning Appeals (BZA) is hereby established and shall perform the duties and exercise the powers provided in the Zoning Act and this Chapter.

2. The BZA shall consist of nine (9) members appointed by the City Commission, each of which shall hold office for a three (3) year term. One (1) member may be a member of the Planning Commission, whose term on the BZA shall coincide with his or her Planning Commission term. One (1) member may be a City Commissioner, who shall not chair the BZA.

3. Alternate Members.

   a. The City Commission may appoint up to two (2) alternate members for the same term as regular members of the BZA.

   b. An alternate member may be called to sit as a regular member of the BZA in the absence of a regular member or for an individual case where the regular member has abstained for reasons of conflict of interest.

   c. The alternate member shall serve on the BZA until a final decision is made on the application for which the member was called.

   d. When serving as a member, an alternate member shall have the same deliberation and voting rights as a regular member of the BZA.

4. Conflict of Interest.

   a. A member shall disclose any conflict of interest with respect to any matter before the BZA and shall refrain from participating in any hearing, any discussion or any decision on that matter. Failure of any member to do so shall be deemed a misconduct of office.

   b. If a member is uncertain regarding a potential conflict of interest, the City Attorney shall make a determination prior to the hearing of the case and communicate that determination to the member and the chair.

5. Misconduct. Members of the BZA may be removed by the City Commission for misfeasance, malfeasance or nonfeasance upon written charges and after a public hearing.

B. *Meetings.*

1. Meetings shall be held as necessary at a fixed time and location and shall be open to the public, and conducted in accordance with the BZA Rules of Procedure.

2. Five (5) members of the BZA shall constitute a quorum for the conduct of its business, except that hearings for a Use Variance shall require a quorum of six (6) members.

3. The BZA shall determine the applications that may be reviewed at each meeting under the BZA Rules of Procedure. Additional applications shall be placed on the next available meeting date.

4. The BZA shall maintain an official record of its proceedings.

C. *Applicability.* The BZA is authorized to hear and decide the following types of applications:

1. Dimensional and Use Variances.

2. Interpretations of the text and maps of this Chapter.

3. Appeals of Planning Director decisions regarding Director Review, Administrative Departure, or Use Determination.

4. Appeals of Planning Commission decisions regarding Special Land Use and Optional Plan Review.

5. Sign Variances as authorized in Section 5.15.15.

D. *Application Procedures.* A complete application for a variance, appeal or interpretation shall be filed with the Planning Department in accordance with the provisions of Section 5.12.04. Where applicable, a scaled drawing that clearly defines the nature and extent of the request shall be included.

E. *Review Procedures.* The following application and review procedures shall apply to all applications to the BZA.

1. *Application Completeness.* Upon acceptance of the application for form, content, and completeness, the Director shall assign the application a public hearing date and time in accordance with the BZA Rules of Procedure.

2. *Public Hearing.* The BZA shall provide public notice and conduct a public hearing in accordance with the requirements of Section 5.12.05.

3. *Testimony.* A person may appear and testify at the public hearing, either in person or by a duly authorized agent or attorney. The chairperson may administer oaths and compel the attendance of witnesses. Written comment may also be submitted prior to the public hearing and provided to the BZA.

4. *Other Information Required.* The BZA may request other materials deemed necessary to assist in its determination.

F. *Conditions of Approval.*

1. The BZA may attach any conditions to any decision provided for in this Article regarding the location, character and other features of the application as it may deem reasonable.

2. As a condition of approval, the BZA may require a performance bond, per Section 5.14.04. or infrastructure and service improvements as needed for approval, per Section 5.2.20.

3. Any conditions attached to an approval shall meet the standards of Section 5.12.02.B.3.

G. *BZA Decision.*

1. The BZA shall render decisions in a timely fashion and in a manner that is consistent with the requirements of this Chapter.

2. The BZA shall approve, approve with conditions, or deny applications, stating the applicable review standards used and the reasons for its decision.

3. Voting Requirements.

   a. The following decisions may only be made through the affirmative vote of five (5) members.

      i. Approval of a dimensional variance.

      ii. Decision to reverse an order, requirement, decision, or determination by an approving authority as authorized by this Chapter.

      iii. Approval of an interpretation of the Zoning Ordinance map or text.

      iv. Approval of any other matters upon which the BZA is required by this Chapter to make a decision.

   b. A use variance may only be granted with the affirmative vote of six (6) members.

   c. Approval of minutes and other administrative matters dealing with the operation of the BZA shall be by majority vote of the quorum.

H. *Effective Date.*

1. The decision of the BZA shall not become final until minutes of the meeting at which final action on the request was taken are approved by the BZA, unless the BZA finds that immediate effect is necessary for the preservation of property or personal rights, and the BZA shall so certify on the record.

2. The City shall provide the applicant with a written notice of its decision within ten (10) days.

3. The decision of the BZA shall be final. However, any person being an aggrieved party affected by the decision shall have the right of appeal to the Kent County Circuit Court, as provided in the Zoning Act and Circuit Court procedures.

I. *Duration of Approval.*

1. Any approval given by the BZA for a specific property shall be valid for a period of one (1) year, provided the property is used as approved or work has substantially commenced in that period.

2. Upon written request prior to the expiration of the approval, one (1) extension of up to six (6) months may be granted by the BZA with a finding that the extension is warranted due to circumstances beyond the control of the applicant. If no action is taken to use the property as approved or work is not substantially commenced after the one (1) year approval period, or any extensions granted, the BZA approval shall expire immediately or when the applicable LUDS and/or building permits expire, whichever is later.

3. Any approval authorized by this Article may be revoked by the BZA and declared invalid following notice to the property owner and a public hearing held in compliance with Section 5.12.05., should any of the requirements of this Chapter, conditions imposed by the BZA, or standards of Sections 5.13.04.B. or 5.13.04.C. are not met or have failed to be maintained. Noncompliance shall also be a violation of this Chapter.

4. Duration of Approvals.

   a. That portion of any dimensional variance that is granted by the BZA shall not remain in effect if the owner physically moves, dimensionally reduces, or generally alters the approved variance in a way that brings the property closer in conformance with the Zone District.

   b. A use variance granted by the BZA shall be considered not remain in effect if the approved use ceases for a period of twelve (12) calendar months or more, or if the property is used for a use permitted in the Zone District. Any subsequent use shall only be in compliance with the Permitted Uses or Special Land Uses of the Zone District, or another use variance sought.

   c. The owner of property with a previous variance cannot rely on the original dimensional or use variance to support the claim of practical difficulty or unnecessary hardship if it is demonstrated that the property can, in fact, comply or more closely comply with the requirements of this Chapter.

Sec. 5.13.04. Dimensional and Use Variance Standards.

A. *Purpose.*

1. The variance process is intended to provide limited relief from the requirements of this Chapter in those cases where strict application of a particular requirement shall create a practical difficult (dimensional variance) or an unnecessary hardship (use variance) prohibiting the use of land in a manner otherwise required under this Chapter.

2. It is not intended that variances be granted merely to remove inconveniences or ease financial burdens. The possibility that compliance with the Chapter may prove to be more costly or time consuming shall not be part of the consideration of the BZA.

B. *Dimensional Variances - Review Standards.* A dimensional variance may only be granted by the BZA through a determination that there is evidence of practical difficulty with a finding that all of the following conditions are met.

1. *Exceptional or Extraordinary Circumstances or Conditions.* There are exceptional or extraordinary circumstances or conditions applying to the property that do not apply generally to other properties in the same Zone District or in the general vicinity Exceptional or extraordinary circumstances or conditions may include:

   a. Exceptional narrowness, shallowness or shape of a specific property in existence on the effective date of this Chapter or amendment; or

   b. Exceptional topographic or environmental conditions or other extraordinary situations on the land, building or structure; or

   c. The use or development of the property immediately adjacent to the subject property that prohibits the literal enforcement of the requirements of this Chapter.

2. *Substantial Property Right.* That the variance is necessary for the preservation and enjoyment of a substantial property right similar to that possessed by other properties in the same Zone District and in the neighboring area.

3. *Not Self-Created.* That the immediate practical difficulty causing the need for the variance was not created by an action or inaction by the applicant or the applicant's predecessors in title.

4. *No Substantial Detriment.* The variance, if granted, would not cause substantial detriment to adjacent property and the surrounding neighborhood.

5. *Master Plan / Zoning Ordinance.* The variance, if granted, is consistent with, and not materially impair, the purpose and intent of the Master Plan and the provisions of the Zoning Ordinance and District under consideration.

C. *Use Variances - Review Standards.* A use variance may only be granted by the BZA through a determination that there is evidence of an unnecessary hardship with a finding that all of the following conditions are met.

1. *Uniqueness.* That the condition, location, or situation is unique to that property and the Zone District.
2. *Not Self-Created.* That the need for the variance was not created by an action or inaction by the applicant or the applicant's predecessors in title.
3. *No Substantial Detriment.* That the variance would not alter the essential character of the neighborhood, nor be a detriment to adjacent properties.
4. *Cannot Be Reasonably Used.* That the land, building or structure cannot be reasonably used for any of the uses allowed in the Zone District.
5. *Master Plan / Zoning Ordinance.* That the variance, if granted, is consistent with, and will not materially impair, the purpose and intent of the Master Plan and the provisions of the Zoning Ordinance and District under consideration.

D. *Planning Commission Opinion.* Prior to reaching a decision on a use variance, the BZA may request that the Planning Commission, forward an opinion to the BZA following the presentation of the request by the applicant. The Planning Commission opinion shall be advisory and limited to a discussion of the use variance review standards, with the exception of the self-created standard.

Sec. 5.13.05. Appeals.

A. *Purpose.* The purpose for allowing appeals to administrative decisions is to ensure a review process that is fair and equitable.

B. *Affected Persons.* The BZA shall hear an administrative appeal taken from any person or any governmental official aggrieved by any order, requirement, decision or determination as permitted by this Chapter.

C. *Time Limits.* An appeal shall be filed with the BZA within thirty (30) days after the date of the decision being appealed, except for Special Land Uses, for which an appeal shall be filed within fifteen (15) days of the decision, and as may be required by Chapter 167. The filing shall specify the grounds of the appeal. The appeal shall be transmitted to the BZA together with all necessary written documentation regarding the action being appealed.

D. *Stay of Proceedings.* The filing of an application for an appeal shall stay all proceedings in furtherance of the action appealed, unless the Director certifies to the BZA that a stay would cause imminent peril to life or property. In this case, the proceedings may only be stayed by a restraining order granted by the Kent County Circuit Court.

E. *Review Standards.*

1. In deciding the appeal, the BZA shall be limited to determining whether the decision that was made was done so using the proper requirements and standards in this Chapter.
2. Unless otherwise permitted by the BZA, the decision of the BZA is limited to the information considered in the decision being appealed. Additional information such as verbal statements, written information, plans, pictures, sound recordings, or other information not available in making the original decision being appealed shall not be considered.

F. *BZA Decision.*

1. For an administrative appeal the BZA may reverse, affirm, or modify, in whole or in part, the order, requirement, decision or determination being appealed, and the BZA may make an order, requirement, decision or determination as ought to be made, and to that end shall have all the powers of the individual or body whose decision was appealed.
2. For appeals of Special Land Uses, the BZA shall not be permitted to alter a condition of approval attached to the Planning Commission's decision, unless the BZA finds the attached condition to be clearly contrary to the requirements for conditions as provided in Section 5.12.02.B.3.

Sec. 5.13.06. Interpretations of This Chapter.

A. *Purpose.* The purpose for seeking interpretations of this Chapter is to ensure a review process that is fair and equitable. The Director shall first review and recommend text interpretations to the BZA, however, a request from an applicant for an interpretation shall not be considered an appeal under the provisions of Section 5.13.05.

B. *Text.* The BZA may hear requests for the interpretation of the text of this Chapter. Text interpretations shall be narrow and address only the situation being interpreted, shall be based on a thorough reading of this Chapter and shall not have the effect of amending this Chapter. Interpretations shall give weight to practical interpretations by City officials when applied consistently over a period of time.

C. *Zoning Map.* The BZA may hear requests for the interpretation of the Zoning Map in this Chapter to determine the precise location of boundary lines between Zone Districts. In making its determination of the boundary lines, the BZA shall be governed by the rules of this Article and Section 5.4.05.

D. *Benefit to Property Owner.* Where the intent of this Chapter is unclear and the text or maps can be read to support equally more than one (1) interpretation, the benefit shall go to the applicant.

E. *Records.* Records shall be kept of all interpretations.

ARTICLE 14. ADMINISTRATION AND ENFORCEMENT

Sec. 5.14.01. Authority of the Planning Director and City Manager.

A. *Planning Director.* The administration of the Chapter, and the interpretation of the provisions of this Chapter, shall be the responsibility of the Planning Director.

B. *City Manager.* The enforcement of this Chapter shall be the responsibility of the City Manager.

C. *Lapse in Permitting or Enforcement.* No lapse, oversight or dereliction on the part of the City Manager or Director shall legalize, authorize, waive or excuse the violation of any of the provisions of this Chapter.

Sec. 5.14.02. Development Compliance and LUDS Permits.

A. *Permit Required.*

1. A Development Compliance Permit is necessary to confirm compliance with this Chapter and all conditions or stipulations of approval from the Planning Commission, Board of Zoning Appeals, City Commission, or the Director during the design and construction phases of a project.

2. Unless otherwise stated in this Chapter, the Development Compliance Permit shall be administered and enforced as a component of the consolidated application and permit titled the Land Use and Development Services (LUDS) Permit of Chapter 67 of the City Code.

3. No permit nor any license for any use, building or purpose shall be issued by any official or employee of the City if it would be in conflict with the provisions of this Chapter. Any permit or license so issued shall be null and void.

B. *Applicability.* A Development Compliance Permit is required for any of the following proposed land uses, development or redevelopment activities, property conditions, or special circumstances that include a physical alteration to a site, building or structure, including special conditions imposed as part of the approval.

1. Director Review.
2. Site Plan Review.
3. Special Land Use.
4. Optional Plan Review.
5. Planned Redevelopment District (PRD), or amendment thereto.
6. Plat, Subdivision (Chapter 64 of the City Code).
7. Site Condominium.
8. Dimensional variance, use variance, and sign variance.
9. Any other approvals of the Director, including Administrative Departures.
10. A commercial or industrial development or redevelopment project with any type of earth change involving an area of two thousand five hundred (2,500) square feet.
11. A new or redeveloped off-street parking area of more than three (3) spaces.

Sec. 5.14.03. Permits and Licenses.

A. *Requirements for Review.* Applications for permits and licenses issued by the Planning Department shall be reviewed by the Director to ensure compliance with this Chapter. Incomplete applications shall be returned to the applicant. At a minimum, the following shall be provided.

1. An application form, including a detailed description of the proposed development project and intended use in sufficient detail to determine whether the request complies with this Chapter or other City requirements.
2. A site plan drawn to scale, including all buildings and structures and other site improvements.
3. Any other information required by the Director.
4. A fee established by resolution of the City Commission.

B. *Permits and Licenses.* The following shall require Planning Department review.

1. Building permits.
2. Demolition permits.
3. Encroachment permits.
4. Outdoor display or seating permits, with or without encroachment.
5. Temporary use permits.

6. Property use verification.

7. City licenses, as determined necessary by this Chapter or as requested by the City Clerk.

8. State licenses, as determined necessary by this Chapter or as requested by the State of Michigan.

9. Zoning Permits for temporary uses, special events, outdoor activities, fences and walls higher than thirty (30) inches, accessory structures, and items requiring Counter Review under the provisions of Section 5.12.16.C.

10. Sign permits, in accordance with the requirements of Article 15 Signs.

Sec. 5.14.04. Performance Guarantees.

A. An applicant may be required to provide a performance guarantee as a condition of approval for any project for which a zoning approval is required by this Chapter. The performance guarantee shall be provided by the owner or responsible person. Examples of acceptable guarantees include, but are not limited to, cash deposit, certified check, irrevocable bank letter of credit, or surety bond, in a form acceptable to the City.

B. The performance guarantee shall be governed by and administered in accordance with the Zoning Act. The guarantee shall be reviewed and approved by the City prior to issuance of a LUDS and/or building permit.

C. The amount of the guarantee shall be established by the Director, but in no case shall exceed the cost of the project improvements which are the subject of the guarantee. The approval shall also prescribe the period of time within which the improvements for which the performance guarantee has been required are to be completed. The period will begin from the date of the issuance of the building permit.

D. The Director, upon the written request of the obligated party, shall rebate portions of the performance guarantee upon determination that the improvements for which the rebate has been requested have been satisfactorily completed. The portion of the performance guarantee to be rebated shall be in the same amount as stated in the itemized cost estimate for the applicable improvement.

E. Forfeiture.

1. If the conditions under which the guarantee was required are not fulfilled, the City may seek forfeiture of the performance guarantee under the provisions of this Section.

2. Should the City use the performance guarantee or a portion thereof to complete the required improvements, any amounts remaining after the completion shall be applied first to the City's administrative costs including, without limitation, attorney fees, planning consultants, and engineering consultant fees in completing the improvement with any balance remaining being refunded to the applicant.

3. If the performance guarantee is not sufficient to allow the City to complete the improvements for which it was posted, the applicant shall be required to pay the City the amounts by which the costs of completing the improvements exceeds the amount of the performance guarantee deposited.

F. Upon the satisfactory completion of the improvement for which the performance guarantee was required, as determined by the Director, the City shall return to the applicant the balance of the performance guarantee deposited.

Sec. 5.14.05. Violations.

A. All land developed or redeveloped, all buildings and structures erected, converted, enlarged, reconstructed, moved or structurally altered, and all land, building and structures uses must comply with all applicable provisions of this Chapter. Failure to comply with applicable provisions constitutes a violation of this Chapter. The violations listed in this Section are intended to be illustrative, and not limited to the specific items.

B. *Development or Redevelopment Violations.*

1. Engaging in the development or redevelopment of land or erecting a building or other structure that fails to meet the requirements of this Chapter.
2. Failure to comply with any condition or stipulation imposed on a permit or approval, including conditions of approval for any zoning approval authorized by this Chapter for which conditions of approval may be imposed.

C. *Alterations to Existing Land, Buildings or Structures Violations.*

1. Site Features. Modifying, converting, filling, excavating, removing, enlarging, reconstructing, moving or structurally altering land, vegetation, fences, and other site features in any way except as permitted by or pursuant to this Chapter.
2. Buildings and Structures. Modifying, converting, enlarging, reconstructing, demolishing, moving or structurally altering an existing building or structure except as permitted by Section 5.2.03.

D. *Use Violations.*

1. Using land, buildings or structures in any way except as permitted by or as required by this Chapter.
2. Engaging in the use of a building or land or any other activity without obtaining all permits or other approvals under this Chapter.

E. *Compliance Violations.*

1. Failure to comply with any lawful order issued by the City Manager or Director.
2. Failure to arrange for an initial inspection or a re-inspection to determine compliance with notices issued under this Chapter.
3. Failure to comply with any permit or other approval granted under this Chapter, including any conditions attached.

F. *Separate Violation.* Each act of violation and each day upon which a violation occurs or remains shall constitute a separate violation.

Sec. 5.14.06. Responsibility.

A. *Definitions.*

LUDS Enforcement. Enforcement actions taken under Chapter 67 Land Use and Development Services (LUDS) shall use Article 16 of this Chapter for the definitions or meaning of property owner, land owner and responsible party. For the purpose of this Chapter, owner, land owner and property owner; and responsible party and responsible person, are considered interchangeable terms.

B. Owners are responsible for compliance with the requirements of this Chapter, regardless of any verbal or other unofficial comments made by any City official. Owners are subject to the remedies and penalties of enforcement.

C. *Other Enforcement.* All other enforcement actions not authorized under Chapter 67 of the City Code shall use the definitions of owner and responsible person found in this Chapter and Chapter 140 of the City Code. Where definitions conflict, the more inclusive language shall apply.

Sec. 5.14.07. Enforcement Powers.

A. The City may use any lawful remedy or enforcement powers against the owner or responsible person for any violation of this Chapter, including, without limitation, one (1) or more of the actions of this Section. Remedies may be pursued simultaneously or sequentially and the pursuit of a single remedy does not foreclose the simultaneous or subsequent pursuit of other remedies. The remedies are cumulative and the City shall have all power granted from time to time under all applicable federal, state and local laws, rules and regulations:

B. *Uncorrected Violations.*

1. *Withhold Permit.* The City may deny or withhold any and all permits or other forms of authorization from an applicant on any property where there is an uncorrected violation of a provision of this Chapter or a condition or stipulation of approval for a permit or other authorization previously granted by the City. This enforcement provision shall apply regardless of whether the current owner or applicant is responsible for the violation in question.

2. *Permit Approved with Conditions.* In addition to denying or withholding a permit or other authorization, the City may grant any permit or other authorization subject to the condition that the violation be corrected.

C. *Revocation.* Any permit or other authorization revoked under this procedure shall become null and void. A LUDS Permit or other form of authorization authorized under this Chapter may be revoked when the City Manager determines that:

1. There is departure from the plans, specifications, or conditions required under the permit;

2. The LUDS Permit was procured by false representation or was issued in error; or

3. Any of the provisions of this Chapter or other City Code are being violated.

D. *Cease and Desist Order.* With or without revoking a permit, the City Manager may issue a cease and desist order on any land, building or structure for which there is an uncorrected violation of a provision of this Chapter. The cease and desist order must be in writing and must state the work in violation that is to be stopped, the reasons for the stoppage, and the conditions under which the work may be resumed.

E. *Court Order.* The City Attorney may bring and prosecute an action in any court of competent jurisdiction to:

1. Enjoin the owner or responsible person from continuing such use, erection, construction, moving or alteration; or if such is being or has been accomplished, the City Attorney shall enjoin the owner or responsible person from maintaining the same; and/or

2. Comply with the requirements of this Chapter.

F. *Other Enforcement—Municipal Civil Infraction and Misdemeanor Penalties.*

1. LUDS—Municipal Civil Infractions. Enforcement of LUDS violations and application of Municipal Civil Infraction fees shall follow the procedures and schedule of fines established in Chapters 67 and 170 of the City Code, respectively.

2. Except as provided in F.1., above, a violation of this Chapter shall, until the fourth offense, constitute a Municipal Civil Infraction, which upon an admission or finding of responsibility shall result in fines established in Chapter 170 Municipal Civil Infractions of the City Code.

3. A fourth offense shall be a misdemeanor punishable by a fine of up to five hundred dollars ($500.00), or imprisonment for up to ninety (90) days, or both.

4. Proceedings may be instituted pursuant to Chapter 170 of the City Code. In addition, anyone pleading or found responsible shall pay the costs of enforcement and prosecution.

5. In addition to civil fines, the District Court shall have equitable jurisdiction to enforce any judgment, writ or order necessary to enforce any provision of this Chapter, including but not limited to order the abatement or correction of the offending action or condition or by granting injunctive relief.

G. *Declaration of Nuisance.*

1. A violation of this Chapter is a nuisance per se and the City may institute appropriate actions or court proceedings to correct, or abate any violation of the provisions of this Chapter. If the owner or responsible person fails to abate a violation, the City may take action to abate the violation.

2. The abatement may be performed by the City, by a contract vendor, or by other means determined by the City, the actual cost which shall include an administrative fee, shall be a personal debt of the owner, and may be assessed as a lien against the property until paid.

H. Unless exempted under the provisions of the Zoning Act, no application for any zoning authorization shall be accepted, nor shall any final approval action be undertaken, if the owner of the property and/or the applicant is delinquent in paying any civil fine, costs, or other fee or fine authorized by this Chapter or other City Code.

I. *Abandonment.*

1. Once a final approval is granted by the City and construction begun, if significant construction is not meaningfully continued, or the Building Official determines that work has been abandoned for a continuous period of twelve (12) months, the approval shall lapse and cease to be in effect. No further work shall be permitted without approval of a new LUDS permit.

2. The Building Official shall make the determination of abandonment of a construction project based on the presence of one (1) or more of the following conditions.

   a. Removal of construction equipment or supplies;

   b. Expiration of an active building permit issued by the City;

   c. Evidence of a failure to maintain the property, such as overgrown weeds, failure to secure buildings, broken windows, or other evidence of lack of maintenance;

   d. Other actions documented by the Building Official as may otherwise be defined by Chapter 153, Article 6 of the City Code evidencing intent to abandon the construction of the project.

3. Once the Building Official makes a determination of abandonment, if a new LUDS permit application is not submitted within ninety (90) days from the date of the determination, the owner shall restore the site to its previous condition, and/or remove any structures or other evidence of work on the site, within one hundred and eighty (180) days from the date of the determination of abandonment.

4. If the owner fails to restore the site to its previous condition within one hundred and eighty (180) days, the City may take any and all actions necessary to restore the site to its previous condition, including removing any structures or other evidence of work, and the costs of removal shall be assessed against the property.

Sec. 5.14.08. Enforcement Process.

A. *Reasonable Entry.* If needed, inspections inside a structure, building, dwelling, dwelling unit or accessory building shall be made during reasonable hours. Entry without consent of an owner or an occupant shall require an order of the court as provided by State law.

B. *Basis of Inspections.* Inspections shall be made to obtain and maintain compliance with the provision of this Chapter for one (1) or more of the following purposes:

1. To determine conformity with a permit, zoning approval, or other approval provided in this Chapter, as well as any special conditions imposed.
2. To determine compliance with a notice or an order issued by the City.
3. To verify a complaint received by the City, indicating that there is a violation of the provisions of this Chapter.
4. To verify an observation by the City of a violation of the provisions of this Chapter.
5. To determine if an emergency is observed or reasonably believed to exist.
6. To fulfill a request for an inspection made by the owner or responsible person.
7. To inspect a designated area where all dwellings, accessory building, yards, and/or signs are to be inspected uniformly or intensively or for specific violations.

C. *Content of Written Notices of Violation.* Written notices of violation authorized by this Chapter shall include the following information:

1. A description of the real estate and/or project name sufficient for identification.
2. A statement of the violation or violations.
3. A correction order allowing a reasonable time to correct the violation and bring the property into compliance. If the written notice is a Notice to Abate, the notice shall indicate that the City may act to abate the violation if not brought into compliance.
4. A statement that failure to comply with the Notice may result in further enforcement action.
5. A statement that a fee shall be charged for the issuance of the Notice. If the written notice is a Notice to Abate, the cost of City action to abate the violation shall be a personal debt of the owner, which may be assessed as a lien against the property until paid.
6. A description of the right to appeal, as applicable.

D. *Method of Service.* The written notice of violation shall be deemed to be properly served in one (1) of the following ways:

1. Delivered personally;
2. Sent by first-class mail addressed to the last known address of the responsible person; or
3. Any other method authorized for the service of process by court rule or State statute.

E. *Posting.* After issuing a written notice of violation, the City, at its discretion, may post a copy of the written notice and/or a placard on the property.

F. *Administrative Extension.* A request may be submitted by the property owner for an administrative extension to correct violations cited in a written notice of violation. The extension period shall be determined by the designated enforcement officer, but shall not exceed six (6) months. An extension may be considered under the following circumstances.

1. The extension will not adversely affect adjacent properties nor pose a health or safety hazard to the occupants or others.
2. The owner or responsible person is making significant progress in correcting the violation(s); or
3. There are clearly established extenuating circumstances delaying compliance which are beyond the control of the owner or responsible person.

Sec. 5.14.09. Enforcement Appeals.

A. *LUDS.* Except as otherwise stated in this Article, an appeal related to a Land Use and Development Services (LUDS) action shall follow the procedures set forth in Chapter 67 of the City Code.

B. *Written Notice.* An appeal of a written notice, order or ruling regarding a violation on a property that is not covered or required to be covered by a LUDS Permit shall be made in writing within twenty (20) days of the date of the notice, order or ruling. However, if a notice, order, or ruling requires the correction of a cited violation within a shorter period of time, the appeal must be made within such shorter period.

C. *Prohibited Appeals.* Appeals governed by this Chapter of the following orders, notices or rulings are prohibited:

1. A determination that an emergency or hazard is present.
2. A ruling, decision, opinion or action of the City Attorney or imposed by a Court of Law, or a civil infraction ticket.
3. Conditions attached to an approved permit.
4. Declaration of Nuisance and/or a Notice to Abate.

Sec. 5.14.10. Transfer of Ownership.

An owner or responsible person transferring ownership of a property notified as being in violation of a provision of this Chapter shall notify the City in writing within ten (10) days of the transfer with the name, address and telephone number of the new owner and the effective date of the transfer of ownership. The City shall issue a new Notice of Violation to any person assuming the ownership or the status of responsible person for any condition, building or structure which has been cited in a Notice of Violation.

Sec. 5.14.11. Enforcement Fees.

A. Fees required for the enforcement of this Chapter shall be established by resolution of the City Commission.

B. *LUDS Fees.* Land Use and Development Services fees shall be assessed in accordance with Chapter 67 of the City Code.

C. *Other Fees.* The following are other fees related to inspections and enforcement of this Chapter not covered or required to be covered by a LUDS Permit.

1. Notice of Violation - Basic.

2. Notice of Violation - Extensive.
3. Additional Inspections including but not limited to Court requested, Attorney requested, progress inspection, inspection at request of owner or responsible person, or any inspection in addition to the first inspection.
4. Special Inspection after business hours, on weekends, or holidays.
5. Failure to keep appointment, arrange for an inspection, or provide entry for a scheduled inspection.
6. Repeat Notice of Violation where a notice for the same violation was issued within the last six (6) months.
7. Contact Request.
8. Administrative Extension.
9. Administrative Hourly Rate.
10. Attorney or Civil Infraction Warning Letter.
11. Preparation of Prosecution or Civil Infraction Case.
12. Notice to Abate.
13. Abatement Warning Letter.
14. Cost of Ordering Abatement.
15. Vendoring.
16. Second and Subsequent Vendoring.
17. Civil Infraction Preparation.
18. Search Warrant.
19. Title Search.
20. Recording Document with Kent County.
21. Collection Service Fee (City Treasurer).
22. Collection Service Fee (Small Claims Court).

D. *Sign Permits.* See Article 15 Signs for fee requirements related to sign permits.

ARTICLE 15. SIGNS

Sec. 5.15.01. Purpose and Intent.

A. Purpose.

1. This Article promotes safe, well-maintained, vibrant and attractive residential and business neighborhoods while accommodating the need for signs to function for the purposes for which they are intended. The regulations of this Article are written to directly address these purposes and intents and to provide the least restrictive means to accomplish their ends.
2. The regulations contained in this Article recognize that the individual user's right to convey a message must be balanced against the public's right to be free of signs which unreasonably

compete with one another, distract drivers and pedestrians, and create safety concerns and confusion. These regulations are intended to balance the individual user's desire to attract attention with the citizens' right to be free of unreasonable distractions.

3. This Article specifically recognizes the unique value of residential signs as a means of exercising constitutional freedom of expression, and accordingly provides liberally for the display of noncommercial messages in residential areas.

4. It is recognized that sign regulations provide business with equal opportunity to attract the public, and that uses that are substantially the same in character deserve similar treatment while recognizing that those with clearly unique circumstances may need to be regulated by other means to ensure that the Purposes and Intents of this Article are met.

5. The City recognizes constitutional rights to free expression as well as the need to provide directional information, enable travel and navigation, and promote commerce.

6. The City also recognizes that excessive numbers and locations for signs can impair travel and navigation by overwhelming and confusing travelers. Too many signs can also overwhelm the senses, impair sightlines and vistas, create feelings of anxiety and dismay, affect the tranquility of residential areas, impair aesthetics and degrade the quality of a community.

7. While these regulations allow for a variety of sign types and sizes, they do not necessarily ensure every property owner or business owner's desired level of visibility.

B. The intent of this Article are to:

1. Support the Master Plan's Themes of Great Neighborhoods, Vital Business Districts, Strong Economy, City that Enriches Our Lives, and Partnerships, as well as supporting the purposes and recommendations of the various Area Specific Plans and special plans that are adopted as part of the Master Plan, or other plans adopted in support of the orderly development of the city.

2. Ensure that signs are located, designed, constructed, installed and maintained in a way that protects life, health, property and the public welfare;

3. Protect public safety by prohibiting signs that are structurally unsafe or poorly maintained; that cause unsafe traffic conditions through distraction of motorists, confusion with traffic signs, or hindrance of vision; and that impede safe movement of pedestrians or safe ingress and egress from buildings or sites;

4. Protect aesthetic quality of neighborhoods by preventing visual clutter and protecting views; and to eliminate signs and sign structures on unused properties to prevent confusion and enhance traffic safety;

5. Ensure that the constitutionally guaranteed right of free speech is protected;

6. Reduce conflict between private signs and public signs used for purposes of traffic safety, identification of traffic controls, and other governmental purposes;

7. Reinforce and support the desired character of each Neighborhood Classification and Zone District in a manner that takes into consideration building scale and massing, lot size, building setbacks, transparency, street dimensions, travel speed and pedestrian presence so that signs contribute to the streetscape and aid in creating a "sense of place;"

8. Allow for adequate and effective signs for identification and appropriate commercial speech and non-commercial speech, and for the dissemination of public information, including but not limited to, public safety information and notification as may be required by law, and

9. Balance the need and right to communicate with needs to promote orderly communication, promote community aesthetics, prevent a proliferation of signs and sign structures that can be overwhelming, confusing, and distracting and to prevent the placement of signs and sign structures that can inhibit or impede safe travel.

Sec. 5.15.02. Applicability.

A. *Compliance with this Article.* It shall hereafter be unlawful for any person to erect, construct, install, place, locate, re-build, modify or maintain a sign or allow a sign to remain on property in the City except in compliance with this Article.

B. The effect of this Article is to:

1. Establish regulations that meet the Purposes and Intents of Section 5.15.01.;

2. Establish a permit system to allow a variety of sign types in designated Zoning Districts to ensure that the regulations and permit procedures of this Article are met;

3. Prohibit all signs not expressly permitted by this Article; and

4. Provide for enforcement of the provisions of this Article.

C. *Other City Codes.* All signs shall be designed to comply with all City Codes, as applicable, including but not limited to:

1. Chapter 51 Streets.

2. Chapter 68 Historic Preservation Commission.

3. Chapter 131 General Building Regulations.

4. Chapter 133 Electrical Code.

5. Chapter 134 Mechanical Code.

D. *Interaction with Other Regulations.* The regulations of this Chapter shall be in addition to any other applicable local, state or federal regulations. If there is any inconsistency between the regulations of this Chapter and another applicable regulation, the more restrictive regulation shall govern to the extent allowable by law.

Sec. 5.15.03. Nonconforming and Abandoned Signs; Billboard Exchange Program.

A. *Applicability.* Every permanently affixed sign which was legally erected, constructed, installed, placed or located, and which lawfully existed on the effective date of this Chapter, but which does not conform to the type, height, size, area, or location requirements of this Article shall be deemed a nonconforming sign, provided that this status shall not be granted to any portable, banner, or other easily removable sign, including signs affixed to the interior or exterior of windows.

B. *Expansion or Extension Prohibited.* Nonconforming signs shall not be expanded, enlarged, extended, relocated, repositioned, upgraded, or structurally altered to create an additional nonconformity or to increase the extent of the existing nonconformity, except as permitted by the Billboard Exchange Program. A nonconforming sign may be lessened in size or dimension without jeopardizing its nonconforming status in accordance with Section 5.15.03.G.

C. *Maintenance.* Nonconforming signs may be maintained and repaired so as to continue the useful life of the sign.

1. Maintenance and repair includes re-facing, painting of chipped or faded signs; replacement of faded or damaged surface panels; or repair or replacement of electrical wiring or electrical devices. A sign permit shall be submitted for sign re-facing, but is not required for normal repairs and maintenance.

2. Excluding maintenance and repair, changes to nonconforming signs shall be prohibited unless the signs are brought closer to conformance with this Chapter, meet the requirements of D., below, or are modified as permitted in Section 5.15.03.G.

D. *Damage or Destruction.* If a nonconforming sign is destroyed by an act of god or by means within the control of the owner to an extent that its repair or replacement exceeds fifty (50) percent of its replacement cost, exclusive of the foundation, the sign shall not be restored or replaced to its prior nonconforming status but shall conform in all aspects to the requirements of this Article.

E. *Site Redevelopment.* Nonconforming signs may be required to be removed as part of a zoning approval required by the Director, City Commission, Planning Commission or Board of Zoning Appeals involving the redevelopment of a site.

F. *Signs for Nonconforming Uses.* A sign on a lot with a nonconforming use shall be erected in accordance with the sign regulations for the District in which the property is located.

G. *Administrative Departure.* An Administrative Departure may be granted for the replacement of a nonconforming sign with a new sign frame or structure that is a minimum of twenty-five (25) percent smaller in area or dimensions than the nonconforming sign to be replaced, based on the sign requirements of the Zone District in which the sign is placed.

H. *Abandonment.*

1. *Removal Required.*

   a. Any nonconforming abandoned sign must be removed within sixty (60) days of written notice.

   b. The sign cabinet for the abandoned sign shall either be removed in its entirety, or the sign face removed, painted a neutral color, substituted with a covering to protect the internal sign elements and prevent breakage of sign panels.

   c. If the sign is not removed or otherwise made to conform to this requirement the City may declare the sign a nuisance per se and institute appropriate actions or court proceedings to correct or abate the violation, per Article 14 of this Chapter.

2. *Re-Use.* Once abandoned, if a new sign permit is not approved within one (1) year of the date of abandonment, the nonconforming sign structure shall be removed.

3. *Seasonal Activities.* A sign shall not be considered abandoned when used for seasonal activities during regular periods of the year.

4. *Time Extension.* The Director may grant a specified time for extension of the requested time to remove the sign structure, provided the owner submits a written statement prior to the expiration of the removal period indicating intent and reasonable timeline for re-use of the sign structure.

I. *Billboard Exchange Programs.*

1. *Purpose and Applicability*. For the purposes of this Section, two billboard exchange programs are contained herein. The first program pertains to permissible upgrades to non-conforming

off-premises signage allowed along I-196, I-96, or US-131 within the Upgrade Eligibility Zone. The second program is intended to allow the repositioning of non-conforming off-premises signage located within specified Mixed-Use Commercial Zone Districts. It is the intent of this Section to promote the health, safety, and general welfare of the citizens of Grand Rapids, and to establish reasonable and uniform regulations that advance the continued growth and development of the city. The provisions of this Section have neither the purpose nor effect of imposing a limitation or restriction on protected speech.

2. *Credits.* The premise of both exchange programs is to encourage a reduction or reassignment of billboard signage and/or square footage for the purposes of facilitating redevelopment. Therefore, all nonconforming off-premises signs existing on the effective date of this amendment, except those located in the MON-C or SD-IT Zone Districts, are eligible for voluntary removal credits to be applied toward (1) physical upgrades of eligible off-premises signs as defined in Section 5.15.03.I.3. within the Upgrade Eligibility Zone, or (2) repositioning as defined in Section 5.15.03.I.4. in appropriate Zone Districts. Credits shall be based on sign face size, sign type/locations, number of sign faces, and sign face square footage. Additional credits are available for certain signs, as approved by the Planning Director, to facilitate the redevelopment of land. No removal credits shall be awarded for sign faces to be removed or replaced by an eligible upgrade or for signs that conform to existing zoning requirements.

   a. Table 5.15.03.I.2.a. below describes how voluntary removal credits are calculated. Whole numbers shall only apply to credits to be used. The Planning Department shall document credits used and credits reserved for future use.

Table 5.15.03.I.2.a. Off-Premises Sign Voluntary Removal Credits

Sign Type/Location	Upgrade Eligibility Zone Credit (value)*	Repositioning Exchange Credit (sq. ft.)
Poster Billboard	1	Actual sq. ft. of face
Bulletin Billboard	2	Actual sq. ft. of face
Property for Redevelopment (Subject to Director Approval)	Base Credit × 2.0	sq. ft. credit x 2.0
*See Bonus Credits in Section 5.15.03.I.2.b.		

   b. *Bonus Credits.*

      i. Property for Redevelopment may receive a Bonus Credit of the Base Credit × 2.0, subject to Director Approval. For example: The removal of an off-premises poster-size sign with two (2) faces located on property to be used for redevelopment (with Director Approval) would be awarded four (4) credits; 2 faces × 1 credit per face × 2 bonus credits = 4 credits; within the Upgrade Eligibility Zone. If intended for use within an allowed Mixed-Use Commercial District, two poster-sized signs measuring 253 square feet each (506 square feet total) would be awarded double the amount, providing a 988 square feet credit available for repositioning.

      ii. Redevelopment bonus credits shall be awarded as determined by the Director. Bonus credits not used immediately may be reserved for future use. The Director shall determine that removal of a nonconforming off-premises sign is desired to facilitate a development project on a parcel that, due to a lease period or other constraint, the property owner is unable to negotiate the voluntary removal of the sign.

   c. *Credit Use in Upgrade Eligibility Zone.* Given the size and scale of standard off-premises advertising, credits are encouraged to first be used within the Upgrade Eligibility Zone

(i.e., alongside I-96, I-196, and US-131) for permitted upgrades as detailed in Section 5.15.03.l.g. Credits gained from removing billboards in the TBA, CC, TCC, TOD and MCN-C Zone Districts may be used within the Upgrade Eligibility Zone.

d. *Credit Use for Repositioning Exchange.* The second preferred location for the use of credits is within the City Center and Transitional City Center districts, where the scale and massing of buildings is substantially larger than those found in Traditional Business Areas and Mid-Century Business Districts. The use of credits for the purposes of repositioning shall be applied accordingly:

i. Credits gained from billboard removal in the TBA Zone District may be repositioned within the TBA, MCN-C, TOD, TCC, or CC Zone Districts.

ii. Credits gained from billboard removal in the TCC or CC Zone Districts may be used within those Zone Districts, but not the TBA.

iii. Credits gained from the TBA, MCN-C, TCC, and CC Zone Districts may be used within the MCN-C and TOD Zone Districts. Credits gained from the TOD Zone District may be used within the TOD Zone District.

iv. No credits may be used for repositioning from or within the MON-C and SD-IT Zone Districts. These districts are not eligible to be destination Zone Districts or originating Zone Districts.

Table 5.15.03.I.2.d.: Repositioning Exchange Districts and Sign Size

Destination Zone District	Maximum Sign Size	Originating Zone Districts
TBA	253 sq. ft.	TBA
CC, TCC	Unlimited*	CC, TCC, TBA
MCN-C	672 sq. ft.	CC, TCC, TBA, MCN-C
TOD	672 sq. ft.	CC, TCC, TBA, MCN-C, TOD
*See Super Sign definition in Sec. 5.15.16.		

v. *Credit Conversion.* Credits may be converted from a square footage credit into a standard bulletin or poster billboard face sign size to accumulate sign face credits for use in the Upgrade Eligibility Zone. Signs removed within the Upgrade Eligibility Zone may not be converted into a square footage credit for repositioning in the Repositioning Exchange Zone to a designated Mixed-Use Commercial Zone District.

e. *Existing Credits.* All sign-face credits reserved for future use as of the effective date of this Amendment may be used within the Upgrade Eligibility Zone but cannot be converted for use within a designated Mixed-Use Commercial Zone District.

3. *Upgrade Eligibility Zone.*

a. *Purpose and Intent.*

i. The purpose of the Upgrade Eligibility Zone Billboard Exchange is to reduce the overall number of nonconforming off-premises signs, facilitate redevelopment, reduce visual clutter in residential and neighborhood commercial areas, and allow for the modernization of off-premises signage by providing incentives for the voluntary removal of nonconforming off-premises signs. While it is recognized that off-premises signs serve a valuable purpose in the community by providing an advertising venue for local businesses and institutions, as well as a means to promote non-commercial speech, a proliferation of these signs may contribute to a sense of visual clutter and blight.

ii. Off-premises signs can deter the redevelopment of a parcel or limit the redevelopment potential of a site due to long lease periods for nonconforming off-premises signs. Accordingly, it is in the best interest of the City to advance the economic

welfare of the community by facilitating new investment and land development in accordance with the Master Plan and to remove any potential barriers that may hinder redevelopment opportunities within the city.

iii. The regulations in this section identify certain high-traffic volume corridors and locations within the city where continuing existing nonconforming off-premises signs is appropriate. In exchange for the voluntary removal of nonconforming off-premises signs, various physical upgrades may be permitted to existing nonconforming off-premises signs and support structures in the designated Upgrade Eligibility Zone. The Upgrade Eligibility Zone consists of existing off-premises signs and support structures in any Zone District that are oriented so that motorists traveling on I-196, I-96, or US-131 are the intended audience. All off-premises signs and support structures included in the Upgrade Eligibility Zone are listed in the current Upgrade Eligibility Zone Table maintained and kept current by the Planning Department.

b. *Upgrade Eligibility.* Off-premises signs and support structures located in the Upgrade Eligibility Zone may be upgraded if approved in accordance with the requirements of this Section.

c. *Permitted Upgrades.* Eligible off-premises signs may be upgraded, subject to the following requirements:

i. Nonconforming rights to sign height are transferrable between an old and new structure on the same site within the Upgrade Zone.

ii. Credits may be combined from more than one (1) off-premises sign location to permit a sign upgrade. Credits are transferable among off-premises sign owners.

iii. A proposed sign upgrade shall not be permitted in a location that would impede development or redevelopment on the site, as determined by the Director based on the knowledge of approved and proposed projects, building permits, and development trends.

iv. The non-conforming sign(s) being removed for credit(s) through this program to be used for upgrades must be removed in its entirety (including all sign faces and support structures) before the permitted upgrade may take place.

v. See Table 5.15.03.I.3.c.v. below for a description of how the credits may be used.

Table 5.15.03.I.3.c.v. Upgrade Components	**Removal Credits Required**
Sign Face Enlargement (from poster size to bulletin size)	3
Additional Poster Sign Face (maximum of two)	2
Additional Bulletin Sign Face (maximum of two)	6
Digital Billboard Face	2
Relocation on Same Lot (subject to Director approval)	2
Height Increase (up to an additional five (5) feet)	2
New Support Structure	3
Other Structure Improvement (as determined by the Director)	2

d. *Digital Billboards.* Off-premises signs and support structures located in the Upgrade Eligibility Zone may incorporate an Electronic Changeable Copy Sign face as defined in Section 5.15.17.E. and Section 5.15.17.C., subject to the following requirements:

i. Three (3) sign removal credits will be required for any digital billboard which requires a new support structure as outlined in Table 5.15.03.I.2.d. in order to meet current building code requirements to accommodate a digital billboard face.

ii. Two (2) sign removal credits will be required to replace a static face with a digital billboard face, except only one (1) sign removal credit will be required if a voluntary public-private partnership agreement is submitted and approved by the City Commission that provides for emergency messaging, public safety initiatives, community outreach opportunities, or other purposes for the benefit of public communications.

iii. No more than ten (10) sign faces can be converted to a digital billboard face within the Upgrade Eligibility Zone. Up to four (4) digital billboard faces, with two (2) facing each direction (E/W) may be installed along the I-96/I-196 corridor. Up to six (6) digital billboard faces, with three (3) facing each direction (N/S) may be installed along the US-131 corridor.

iv. Upgrades for digital billboards in accordance with this Section shall not be subject to the requirements of Section 5.15.10.C.3.d, Table 5.15.12.B. Electronic Sign, or Table 5.15.13.A. Electronic Sign.

v. The sign shall meet the following minimum performance standards:

1) *Spacing.* Digital billboards must be spaced a minimum of 1,750 feet from any other digital billboard face facing the same direction of oncoming traffic along the same roadway.

2) *Residential Impact Mitigation.*

a) Digital billboards will include incorporate light impact mitigating design technology if within three hundred (300) feet of residential use.

b) Digital billboards will not disturb residential uses with shifts in light, message changes, or glare.

c) A study shall be prepared to demonstrate the digital billboard's viewshed for consideration by the Planning Director or Planning Commission, depending on proximity to residential land uses.

3) *Lighting.*

a) To prevent glare, digital billboards shall not operate at a brightness level greater than 0.3 foot candles of ambient light, as may be further limited by this Section or other City Codes.

b) Digital billboards shall not display any illumination by flashing, intermittent or moving lights, and will not contain or display animated, moving video or scrolling elements.

c) Digital billboards shall have installed ambient light monitors and will at all times allow such monitors to automatically adjust the brightness level of the digital billboard based on ambient light conditions.

4) *Message Operations.*

a) The operation of a digital billboard will not be subject to the requirements of Section 5.15.10.

b) Each message shall be displayed for at least eight (8) seconds and a message change shall be accomplished within one (1) second or less.

c) A message change must occur simultaneously on the entire digital billboard's face.

d) A default design mechanism is included that freezes the digital billboard in one (1) position if there is a malfunction; contact information shall be provided for an agent responsible for the digital billboard's operation should a malfunction occur.

4. *Repositioning Exchange.*

a. Grand Rapids' Mixed-Use Commercial Zone Districts, inclusive of the downtown and surrounding neighborhood business districts, comprise a unique built environment that is denser (concentration of businesses and residents), more intense (building scale and pedestrian/bicycle/bus/vehicular movement), and more active (nightlife and events) than other areas of the city. These Zone Districts experience continuous growth and evolution through the development and redevelopment of new and existing buildings, structures, open spaces, and rights-of-way. Billboards have been located where the greatest number of potential customers can view off-premises advertising, which is in these same districts. It is inevitable, then, that in this dynamic context, off-premises signs are oftentimes positioned in the way of development within these districts. Given that in nearly every case billboards are considered to be non-conforming signs within the City Center (CC), Transitional City Center (TCC), Traditional Business Area (TBA), and Mid-Century Neighborhood Commercial (MCN-C) Zone Districts, there is a strong incentive for off-premises advertisers to resist change and remove a revenue-generating asset for unrelated private investment. To facilitate new development and the redevelopment of properties that are impeded by long-term lease agreements with a leaseholder of an off-premises sign, this Section has been designed to allow for the voluntary repositioning of off-premises signs within specified Zone Districts under certain conditions.

b. In the development and execution of this Section, it is recognized that off-premises signage, because of its very nature, has unique characteristics not common to on-premises signage. Michigan case law, Michigan's Tax Act, and common billboard lease industry language consider all structures, equipment, and materials as "trade fixtures" that are acknowledged as the personal property of an outdoor advertising company. As such, no property rights are bestowed upon a parcel of land for off-premises signage (billboards). Rather, rights to the off-premises signage reside with the owner of the trade fixtures.

i. *Case Law:* In Outdoor Systems Advertising, Inc. v. Korth, 238 Mich App. 664 (1999), the Court held that billboards are trade fixtures and, accordingly, remain a lessee's personal property as a matter of law. The trade fixture doctrine permits the lessee, upon the termination of the lease, to remove such a fixture from the lessor's real property. There is no unity of title between the owner of the land and the owner of the personal property. Supporting decisions: Michigan Nat'l Bank, Lansing v. Lansing, 96 Mich. App. 551, 555, 293 N.W. 2d 626 (1980), aff'd. 414 Mich. 851, 322 N.W.2d 173 (1982); Wentworth v. Process Installations, Inc., 122 Mich. App. 452, 465, 333 N.W.2d 78 (1983); Rite Media, Inc. v. Secretary of Massachusetts Hwy. Dep't, 429 Mass. 814, 712 N.E.2d 60 (1999); State ex rel. Comm'r, Dep't of Transportation v. Teasley, 913 S.W.2d 175 (Tenn. App., 1995); and other cases.

ii. *Act 206 of the State of Michigan:* "A "trade fixture" is property which was acquired by a tenant as detached personal property but which has been attached to leased or rented real property by the tenant and which is capable of being detached again for use elsewhere. The legislature has provided that "All outdoor advertising signs and billboards" will be classified as assessable personal property. Michigan General Property Tax Act 206 of 1893, Section 211.34c.(3)(ii).

iii. *Standard Industry Lease Language:* Typical billboard lease language reads to the effect of: "All structures, equipment, and materials placed upon the said premises by the Lessee are, and shall always, remain trade fixtures belonging to the Lessee that shall be removed by the Lessee at any time prior to or within a reasonable time after the term hereof or any extension thereof."

c. The regulations in this Section identify specified Mixed-Use Commercial Districts within the City where it is appropriate to consider "repositioning" off-premises advertising assets to make way for additional development within downtown's City Center (CC) and Transitional City Center (TCC) Zone Districts, as well as Traditional Business Areas (TBA) and Mid-Century Neighborhood Commercial (MCN-C); comprising Grand Rapids' neighborhood commercial districts. For the purposes of this Section, non-conforming off-premises signs are allowed to "float" as personal property/trade fixtures not directly bound by the ownership of a parcel of land but are rather associated by the zone district in which the off-premises sign is located, and a valid lease agreement is in effect or whole ownership of the parcel on which the non-conforming off-premises sign is positioned. As such, the location of these assets can move over time within a district to adjust to changing conditions as the city evolves.

d. The square footage credit obtained through the voluntary removal of non-conforming off-premises signs, as provided for in Section 5.15.03.I.2. may be used towards the relocation of off- premises signage subject to the following requirements:

i. The Planning Department will verify an inventory of all off-premises signage within each zone district prior to accepting new applications to reposition a non-conforming off-premises sign.

ii. The total number of off-premises sign faces in each zone district will not be greater than the number in existence as of the effective date of this Amendment. The number of off-premises signs is hereby capped so as to not increase the extent of non-conforming off-premises signs within any designated zone district.

iii. Repositioned off-premises signage square footage credits will be allowed as described in Section 5.15.03.I.2.

iv. A signed lease for a repositioned off-premises sign is required prior to the issuance of a sign permit.

v. Where located on a wall, there is no maximum sign size except in the TBA, MCN-C, and TOD Zone Districts. If an off-premises wall sign is larger than 672 square feet, it shall be considered a Super Sign.

vi. Off-premises signs shall not cover window openings or points of egress.

vii. Signs shall not be internally lit or located on or mounted to rooftops, be affixed to balconies or other appurtenances, compromise the historic nature of any building, or be placed in any locations that may present a safety hazard.

e. Relocation of non-conforming off-premises signage in accordance with this Section shall not be subject to the requirements of Table 5.15.13.A. Billboard or Off-Premises Sign.

f. Given the unique characteristics of the designated Mixed-Use Commercial Areas, including their pedestrian-orientation, mixed uses, and proximity to institutional and educational uses, neighborhood character areas (See Article 4, Section 5.4.02), and the significance of these places to community identity, the city has a significant governmental interest in protecting an area's aesthetic values and mitigating potential visual blight. The degree of potential impact on these qualities by a repositioned off-premises sign will be dependent upon sign characteristics such as sign dimensions, placement, and type; as well as community context, including historic districts, use mix, proximity to institutional and educational uses, and other factors. The repositioning of off-premises advertising signs will be evaluated by the Planning Director or Planning Commission to evaluate potential negative visual impacts to an area's aesthetics and the appropriateness of a repositioned sign's proposed size and location. The following criteria will apply:

i. The area, height, placement, and location of the proposed repositioned off-premises sign will not have a negative effect on the pedestrian experience and visual

aesthetics of the community greater than the magnitude of other off-premises signs of a similar size, height, placement, and location within the destination zone district.

ii. The proposed repositioned sign will not compromise public safety, access, or the observability of people within the public right-of-way, parking lots, parks, or other possible gathering areas.

iii. Potential anticipated negative visual aesthetics can be mitigated in a manner appropriate to the context of the zone district, city block, parcel, and wall in and on which the repositioned off-premises sign is proposed to be located.

g. To ensure a reasonable nexus between a repositioned off-premises sign that is a Super Sign in the TCC or CC Zone Districts, due to its uncommon nature, mitigation may be necessary to reduce any perceived negative visual effects from more visible signage. As such, an applicant may voluntarily offer to contribute to a fund supporting public art as a method of mitigation. The Downtown Development Authority and the city's various Corridor Improvement Authorities shall be authorized to establish such a fund for contributions made pursuant to this Section for the purposes of the commission, construction, siting, display, and maintenance of art murals and other public art to improve overall visual aesthetics within the zoning district. Supporting resources shall not exceed an amount equal to the greater of:

i. An amount, equal to $1 if the new off-premises sign is proposed to be a wall sign or painted sign for each square foot of the proposed new sign, for each year of the term of the sign permit; or

ii. An amount equal to the expected cost, as the Planning Department might reasonably determine, for the commission and installation of an art mural of an area equal to 200% of the area of the proposed off-premises sign, as well as the cost of the mural's maintenance for a period equal to the lease-period of the off-premises sign.

5. *Application and Review Procedures.*

a. *Special Land Use.* The following are subject to Section 5.12.09. Special Land Use procedures:

i. Digital billboards located in the CC Zone District.

ii. Digital billboards in all other zone districts, where the intensity of light from the billboard exceeds 0.3 footcandles at the lot line of any residential use.

iii. Super Signs.

b. *Director Review.* Except as indicated in Section 5.15.03.5.a. above, sign upgrades may be reviewed pursuant to Section 5.12.16.B. Director Review. The Planning Director has the authority to deny any requests for sign upgrades, repositioning, and/or sign face conversion where said requests are located on a parcel or building that is likely to be substantially altered in the next five (5) years or where the parcel or building would be impeding development or redevelopment in the next ten (10) years.

c. In addition to application materials required by Sections 5.12.04. and 5.12.08.D., the following shall be submitted:

i. An inventory of billboards to be removed and billboards to be upgraded. The inventory shall include the location, property survey, photos of the structure and all sign faces, the number of sign faces on the structure, height, and any other pertinent information for each billboard to be removed or upgraded.

ii. An itemized list of requested physical upgrades for each billboard to be upgraded.

iii. For repositioned signs, a signed lease containing the new address, sign size, sign placement, method of attachment, and other pertinent information to provide a clear understanding of the relocated sign.

d. Where located within an historic district or on a historic landmark, repositioned off-premises signs shall comply with Chapter 68 Historic Preservation Commission.

(Ord. No. 2023-37, §§ 1—3, 8-8-23)

Sec. 5.15.04. General Provisions.

A. *Requirements for All Signs.* All signs shall be designed, constructed, installed, placed, located and maintained in accordance with all applicable requirements, standards, procedures and regulations in and referred to by this Article.

B. *Placement.*

1. *Private Property.* All signs and sign structures shall be located on private property, except as provided in 2., below.

2. *Public Right-of-Way.* Those signs permitted in a public right-of-way are required to obtain an encroachment permit from the City. Signs illegally placed in the public right-of-way shall be forfeited and immediately confiscated by the City.

3. *Lot and Use Requirements.* Other than permitted off-premises signs, a sign containing a commercial message not pertaining to a use on the subject lot is prohibited, and no sign permit shall be approved until a principal use has been established on the property.

4. *Setbacks.* Unless otherwise provided, all signs shall maintain a minimum setback of fifteen (15) feet from all lot lines. Sign setbacks shall be measured from the nearest edge of the sign.

5. *Utility Lines and Poles.* There shall be at least a ten (10) foot horizontal separation between any sign and any overhead utility. The nearest part of any sign, including cables, guys, etc. shall be at least four (4) feet from any electrical conductor, electric light pole, road lamp, traffic light, or other public utility pole or standard.

6. *Natural Features.* No natural features shall be removed or altered, including removal of trees or alteration of the natural topography or other similar action, solely for the purpose of the construction, erection, installation, or modification of a permitted sign

7. *Clear Vision.* Signs shall comply with the Clear Vision Area requirements of Section 5.2.15. and Chapter 51, Article 8 of the City Code. Supporting structures shall be designed and placed to provide minimal visual obstruction.

8. *Administrative Departures.*

a. An Administrative Departure of up to five (5) feet from the required setback may be granted for sign placement where unique conditions such as building placement, slope, vegetation or other conditions exist on the site.

b. An Administrative Departure from the ten (10) foot separation between a sign and a utility line in Section 5.15.04.B.5. may be granted, provided it is recommended by the City's Traffic Engineering Division using the standards of the National Electrical Safety Code (NESC), as amended.

C. *Height and Ground Clearance.*

1. *Height.* Unless otherwise permitted, no portion of any pylon/pole sign shall exceed a height of twenty-five (25) feet.

2. *Building Roof Line.* Signs attached to a building shall not extend above the building roof line.

3. *Minimum Ground Clearance.*

   a. Projecting, awning, canopy, marquee and pole/pylon signs shall have a minimum ground clearance of eight (8) feet over public sidewalks and fourteen (14) feet where any sign extends over any vehicular driveway or parking area. No vehicles or structures shall be allowed in the area beneath a pylon sign.

   b. *Ground Clearance.* Ground clearance is measured from finished grade located directly below the sign to the lowest point on the sign structure enclosing the sign face.

4. *Clear Vision.* Any ground sign, permitted within fifteen (15) feet of the front lot line shall not be higher than thirty (30) inches, subject to the requirements of Section 5.2.15.C.

D. *Sign Quality.*

1. It is strongly recommended that all signs be designed by a professional sign designer and be installed by a qualified sign builder or contractor.

2. *Integration.*

   a. All permitted sign types shall be designed to fully integrate with the building architecture and overall site design, and to enhance the general character of the Zone District in which it is located. Signs attached to main buildings shall be coordinated and fit appropriately with the architecture of the building.

   b. Signs shall be fabricated, constructed, and installed to conceal fasteners and/or other methods of attachment that are not integral to the sign's design.

3. *Materials.*

   a. All permitted sign types shall be designed with the highest quality of materials and fabrication. High quality, durable and low maintenance materials are required. The type of material should be compatible with the associated building's façade and other materials in the surrounding area. Traditional materials, such as wood, are preferred over plastic.

   b. The following primary materials are required for sign faces. Other materials may be used in sign construction provided they are only used in supplementary parts of the sign, such as framing materials or other similar uses.

      i. *Metal faces.* .125-inch aluminum or 4mm composites for three (3) foot and greater spans to avoid oil canning/rippling of faces. Thinner materials may be used for shorter spans.

      ii. *Moldable Synthetic Materials.* Solar Grade (SG) acrylics and polycarbonates (or equivalent) to avoid fading, typically no less than .125 inches thick.

      iii. *Metal Returns.* Etched (sanded) primed and painted aluminum.

      iv. *Paints.* Paints, when used, shall be acrylic polyurethane paint systems with zinc chromate primers, or equivalent.

      v. *Wood Materials.* High Density Urethane (HDU), cedar, redwood, and treated lumber. Wooden signs shall be properly sealed to prevent moisture from soaking into the wood.

      vi. *Window Materials.* Window sign materials shall be of pressure sensitive vinyl or similar. For exterior use, high performance materials that have higher tack values and avoid premature fading shall be used. Printed Pressure Sensitive Vinyl (PSV) decals shall have an exterior laminate added to ensure exterior durability.

   c. *Prohibited Materials.* Signs shall not be constructed from materials that are remnants or manufactured for a different purpose.

d. *Administrative Departure.* An Administrative Departure may be approved for other materials if they provide appropriate high quality, durability, and design features.

E. *Illumination.* Where permitted, the illumination of signs is strongly encouraged to help add a sense of liveliness and activity to the area. The following provisions shall apply to illuminated signs that are permitted elsewhere in this Article.

1. *Glare / Distractions.* Illuminated signs shall not create glare or unduly illuminate the surrounding area. Sign illumination that could distract motorists or otherwise create a traffic hazard shall be prohibited.
2. *External Illumination.* Unless otherwise noted, signs may be externally illuminated, provided that all exterior lighting meets the requirements of this Article.
3. *Light Sources.* Signs shall be illuminated only by steady, stationary, shielded light sources using approved electrical devices. Exposed bulbs are prohibited except where neon or LED bulbs are used as signs, historic light fixtures are used for face-lit signs, or for marquee signs used for public theatres.
4. *Direction and Shielding.*
   a. Lighting fixtures shall be carefully located, aimed and shielded so that light is directed only onto the sign façade.
   b. To the extent possible, fixtures shall be mounted and directed downward (below the horizontal).
   c. Lighting fixtures shall not be directly visible from or aimed at adjacent streets, roads or properties.
   d. Raceways, conduit, and piping for electrical sources shall not be exposed to view.
5. *Back-Lit and Internally-Illuminated Signs.*
   a. Back-lit and internally-illuminated signs shall not cause excessive glare or allow light to encroach onto surrounding properties.
   b. Pan channel or cabinet sign illumination is permitted provided the sign shall be creatively designed with high quality materials and fabrication, as determined by the Director.
6. *Adjacent Residential Use.* Except in the TN-CC and TN-TCC Zone Districts, back-lit and internally illuminated signs are prohibited on any side or rear building face where a residential lot is adjacent to, or the sign is viewable from, a residential use.
7. *Vehicle Canopies.* All lighting on the underside of a canopy intended to shield vehicles from the elements shall be fully recessed and otherwise not visible from outside the property. A maximum of twenty-five (25) percent of the area of each fuel station canopy visible from a public street may be internally illuminated. No portion of these canopies may be externally illuminated.
8. *Timer Control.*
   a. Where illuminated signs are permitted in a residential Zone District, or where a residential Zone District is located across the street from the property on which the sign is places, illuminated signs shall be equipped with a functioning timer control.
   b. The control shall be set so that the sign is not illuminated after 11:00 p.m. or one-half (½) hour following the close of the business, whichever is later, and no sign shall be illuminated before 6:00 a.m., or one-half (½) hour prior to the beginning of the opening of the business, whichever is earlier.

c. Details of the design and operation of the timer controls shall be submitted with the sign permit application.

9. *Underground Wiring.* Underground wiring shall be required for all illuminated signs not attached to a building. A portable generator may be used on a temporary basis in lieu of underground wiring, where approved by the Building Official and a permit has been issued for the installation of permanent wiring.

F. *Sign Safety and Maintenance.*

1. *Dangerous and Unsafe Signs.*

a. *Immediate Hazard.* Any sign that the Director determines is an immediate hazard to health or safety shall be a nuisance per se and a violation of this Chapter, per Section 5.14.07.G.

b. *Unsafe Condition.* Any sign that becomes insecure, in danger of falling or otherwise unsafe, but not considered an immediate danger by the Director to the health or safety of the public, shall have the dangerous condition abated upon the receipt of the written notice, and shall be removed or repaired within fourteen (14) days after a notice of violation to the owner or responsible person, per Section 5.14.08.

2. *Maintenance.*

a. *Other City Codes.* Every sign shall be constructed and maintained in a manner consistent with Chapter 131 General Building Regulations and Chapter 135 Building Maintenance Code of the City Code and maintained at all times in good structural condition.

b. *Safe and Secure Materials.* All signs and sign structures shall be erected in a manner and with materials that shall remain safe and secure during the period of use. Signs and sign structures shall be maintained at all times in a state of safe repair, with all braces, bolts, clips, supporting frame, and fastenings free from deterioration, insect infestation, rot, rust or loosening.

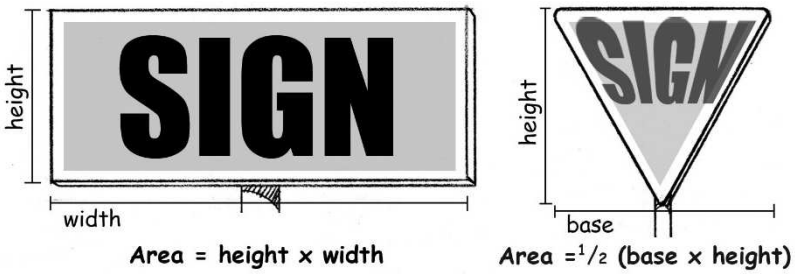
c. *Material Finishes.* All signs, sign structures, including all metal, wood, or other materials used for parts and supports, shall be kept neatly painted, stained, sealed, or preserved and free from corrosion.

d. *Banners and Flags.* Banners and flags shall be attached properly at all times and shall not be allowed to deteriorate to a tattered, torn or faded condition.

3. *Failure to Comply.* If the owner fails to remove, alter or repair a sign so as to comply with the standards herein set forth within the time specified in the notice, then the sign may be removed or altered by the City or its designee to comply with this Article.

Sec. 5.15.05. Sign Measurements.

A. *Area Measurement.*



5.15.05.A. Area Measurements.

1. Except as noted in C., below, the area of a sign shall be measured as the area within a single, continuous perimeter composed of any straight line geometric figure which encloses the extreme limits of writing, representation, emblem, logo, or any other figure of similar character, excluding only the pedestal, poles or other structure necessary to support the sign.

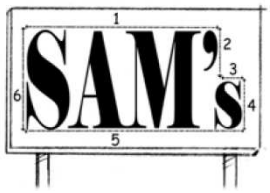
2. Measurements shall include any frame or other material or color forming an integral part of the display or used to differentiate the sign from the background against which it is placed.

3. Fractional measurements shall be rounded up to the nearest whole number.

B. *Circle Shapes.* The area of a sign that is located entirely within a perfect circle shall use the calculation for the area of a circle.

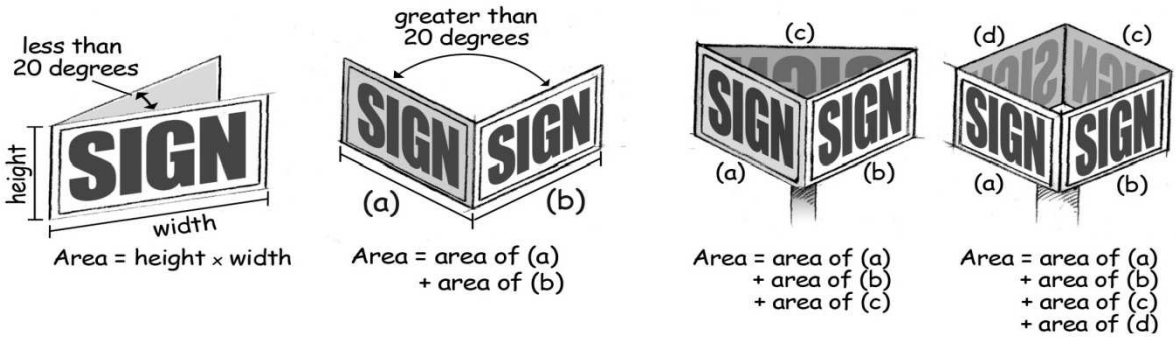
5-15-05.B.
Circle Shapes.

C. *Irregular Shapes.* In the case of an irregularly shaped sign or a sign with letters and/or symbols directly affixed to or painted on a wall, the area of the sign shall be the area within the perimeter of not more than six (6) straight lines at right angles that enclose the extreme limits of writing, representation, emblem, or any figure or similar character.



5-15-05.C. Irregular Shapes.

D. *Multiple Faces.* The area of a freestanding, ground, or projecting sign that has two (2) or more faces shall be measured by including the area of all sign faces, except if two (2) faces are placed back-to-back, are of equal size, and are no more than twenty-four (24) inches apart at any point, only one (1) face shall be used. If the faces are of unequal size, the larger shall be used.



5-15-05.D. Multiple Faces.

E. *Space between Lettering.* The sign area shall include vertical and horizontal spacing between letters, characters, emblems, and similar images that convey the sign's message.

F. *Height, Overall.* The overall height of a sign or sign structure is measured as the vertical distance from the lowest point of the ground directly below the sign, excluding any artificially constructed earthen berms, to the highest point on the sign or sign structure.

G. *Sign Base.* The base or supporting structure of a ground sign shall not count toward the permitted area of the sign, provided it is architecturally distinct from the sign face itself. The base or supporting structure shall be in proportion to the ground sign and may not exceed one hundred (100) percent of the permitted sign area.

H. *Painted Wall Signs.* The area of a painted wall sign shall be determined by calculating the area of the smallest square or rectangle that can be drawn around all of the sign elements, including the painted background used to differentiate the sign from the background against which it is placed.

I. *Windows and Doors.* Window panes separated by muntins shall not be counted separately as windows but shall be included in the cumulative total square footage of window area of the façade of the building. Measurements shall include and any painted, stenciled, or applied signs on windows, doors or other transparent surfaces regardless of material.

J. *Awning, Canopy or Marquee Signs.* The area of a sign that is incorporated into an awning, canopy or marquee shall be determined by calculating the area of the smallest square or rectangle that can be drawn around all of the sign elements. Unless otherwise provided in this Article, if an awning, canopy, or marque has a sign and is back-lit or internal illumination, the entire area of the awning or canopy face shall be counted as the sign area.

K. *Tenant Space Measurements.* For those sign types that are measured with respect to tenant spaces, sign area shall be measured by using that portion of the wall associated with that tenant space or storefront, as measured on the front exterior wall of the space.

Sec. 5.15.06. Sign Restrictions.

A. Any sign that is not specifically permitted by this Article is prohibited.

B. *Obstructions.*

1. *Obstruction of Ingress and Egress.* Signs that block ingress or egress from any building, in whole or in part, including those that obstruct any fire escape, required entrance, window, or door opening or that prevent free access to the roof by firefighters.
2. *Obstruct or Impair Vision.* Signs that obstruct or impair the vision of motorists, bicyclists or pedestrians at any intersection, driveway, or parking lot or loading area.
3. A five (5) foot wide clearance area for pedestrians shall be maintained for any sign placed on the ground, as permitted by this Article, such as an A-frame/sandwich board sign.

C. *Movement.*

1. *Moving, Spinning, Animated.* Signs with any moving, spinning or animated parts, or with the appearance of having any moving, spinning or animated parts, including streamers and pennants.
2. *Flashing, Oscillating, Blinking.* Signs employing any flashing, moving, oscillating, blinking, variable intensity of light or color or use intermittent electrical pulsations, except as otherwise allowed by this Article.
3. *Optical Illusion.* Signs with optical illusion of movement by means of a design which presents a pattern capable of reversible perspective, giving the illusion of motion or changeable copy, as well as signs that incorporate projected images.

D. *Signs Mimicking Emergency Vehicles, Traffic Signals or Traffic Signs.* Signs which would in any way simulate, or could be confused with, the lighting of emergency vehicles, traffic signals, or traffic signs shall be prohibited. There shall be no flashing, oscillating or intermittent, or red, yellow, or green illumination on any sign located in the same line of vision as a traffic control system. Any sign which uses the words "Stop," "Look," or "Danger," or any other shapes, colors, designs, words, phrases, symbols, or characters that interferes with, misleads, or confuses traffic shall be prohibited.

E. *Audible Devices.* Signs with audible devices, unless in accordance with Americans with Disabilities Act (ADA) requirements or those required by state or federal safety regulations.

F. *Prohibited Signs.* The following signs are prohibited in any Zone District.

1. Inflatable signs including but not limited to hot or cold air balloons, air-activated devices, or other attention-getting devices.
2. Human Signs.
3. Blade Signs.

4. Snipe Signs. Snipe signs shall not be within, project into, or overhang a public right-of-way, or attached to any telephone pole, light pole, tree, or other objects of a similar nature.

Sec. 5.15.07. Permitted Signs in All Zone Districts.

A. *Historic Signs.*

1. *Historic Painted Signs.* A historic business sign that was previously painted on the side(s) of a building prior to November 12, 1969 shall be permitted to remain and to be maintained in its original design, colors, and materials. A historic painted sign shall not be altered without approval of the Director or, if applicable, the Historic Preservation Commission.

2. *Historical Plaques.* Historical plaques and signs describing city, state or national designation as an historic site or structure, not exceeding two (2) square feet in area.

B. *Flags.*

1. No more than three (3) such flags shall be permitted on any one (1) lot or lots of common ownership and each flag shall not exceed five (5) feet by eight (8) feet in size.

2. Flags may either be attached to ground-mounted flag poles anchored in concrete or affixed to a building. The height of the flag pole shall not exceed the height restriction of the Zone District.

3. Flags, whether ground-mounted or wall-mounted, shall be grouped in a single area of the site or building.

C. *Address Numbers and Street Names.* Unless otherwise permitted in this Chapter, address numbers and street names no greater than twelve (12) inches high for residential uses and thirty-six (36) inches high for non-residential uses are permitted.

D. *Holiday Decorations.* Holiday decorations for nationally recognized holidays are permitted.

E. *Murals.* Murals shall be permitted, provided they:

1. Do not project more than one (1) foot from the side of a building; and

2. Do not constitute commercial speech, as determined with reference to the commercial interests of the person or entity that owns the building on which the mural is located.

F. *Official Sign.* Official signs shall be permitted in the public right-of-way in all Zone Districts.

G. *Traffic Control Signs.* Traffic control signs and signals including regulatory and directional traffic control and street signs erected by a public agency in compliance with Michigan Manual of Uniform Traffic Control Devices, are not subject to the requirements of this Article and shall be permitted in the public right-of-way.

H. *Window and Door Signs.*

1. Any painted, stenciled, or applied signs on windows, doors, or other transparent surfaces, regardless of material, shall not cover more than twenty-five (25) percent of the window, door, or other transparent surface.

2. Energized window signs, including electronic message boards, changeable message centers, multi-media or computer-controlled variable message signs and similar electronic devices, must comply with Section 5.15.10.C. and the signs permitted in each Zone District.

I. *Vehicle Signs.*

1. *Public Transit Vehicles.* Public transit vehicles with signs as part of the vehicle shall be stored in a completely enclosed building, unless the storage area is located in an SD-IT District, is otherwise permitted outside of an enclosed building for maintenance or operation, or is completely screened from view.
2. *Vehicle Identification Signs.* Vehicles displaying messages shall be parked in assigned loading/unloading areas, and shall not be parked in a location where, in the opinion, of the Director, the purpose is to act as a sign, unless the Director determines that there are no other feasible parking locations on the premises.

J. *Vintage Signs.*

1. Purpose. The purpose of allowing vintage signs is to provide for a contributing resource in historic neighborhoods to be continued either on a contributing site or existing contributing structure. The designation is intended to be limited to locally recognized businesses, institutions, or other significant uses.
2. The Planning Commission may designate a vintage sign through the Optional Review Process (Section 5.12.14.) either by application or upon the City's initiative. Applicants requesting approval shall have a legal interest in either the sign or the property on which the sign is to be placed/ or located.
3. The Planning Commission may designate a sign as a vintage sign provided the following criteria are met:
    a. The Review Standards of Section 5.12.14.E.
    b. The Planning Commission shall determine the sign to be of importance within the historic context of the immediate neighborhood whether of local, state, or national significance.
    c. The Planning Commission shall make a determination that the sign does, or will, meet the safety and maintenance requirements of Section 5.15.04.F.2. within six (6) months of designation.
4. The sign shall be located so as to not confuse drivers, pedestrians, or bicyclist as to the location of any active use whether adjacent or on the site. To this end, the Planning Commission may require relocation of the sign to another location on the same property. Any request for a different location on the property shall require another application.
5. If the vintage sign is to be relocated, it shall be placed at least ten (10) feet from any property line, not interfere with any required landscape or parking area, or impede visibility of any other permitted sign.
6. The sign shall not refer to any currently active use or use operating within the previous six months, either on the property on which the sign is placed or any other use within the city to which the sign refers.
7. Once approved as a vintage sign, no other application for a vintage sign may be approved for the same property. Nor may the sign be altered or in any way except as may be necessary for necessary maintenance in accordance with the provisions of Section 5.15.05.F. If removed, any subsequent sign shall meet the requirements of this Article.

K. *Driveway Signs.*

1. The maximum sign area shall not exceed four (4) square feet, or three (3) feet high. Driveway signs within fifteen (15) feet of the right-of-way shall conform to Clear Vision requirements of Section 5.2.15.

2. The signs may contain directional information, such as arrows and/or messages such as "Enter," "Exit," or similar.

3. Driveway signs may be externally- or internally-illuminated in the TN-TOD, MCN-C, SD-IT, SD-IC, and OD-EBL Districts. Illumination is not permitted in any other Zone District.

4. Illuminated driveway signs require a sign permit.

(Ord. No. 2021-22, § 2, 7-27-21)

Sec. 5.15.08. Planned Sign Program.

A. In lieu of the specific sign requirements of a particular Zone District, the Planning Commission may review and approve a Planned Sign Program for signs in all Zone Districts.

B. *Purpose.* The purpose of a Planned Sign Program is to allow a greater degree of flexibility in sign design and display in cases where strict compliance with the requirements of this Chapter may not be feasible. Further, a Planned Sign Program is intended to be used for multiple signs for large project development areas and integrated complexes to ensure that the requested signs work in a coordinated fashion to meet the general intent for signs in the District.

C. *Intent.*

1. The Planning Commission shall have the authority to approve alternative requirements for sign design, number, type, size, height, location, and lighting, provided that the applicant fulfills the Standards for Approval in E. below.

2. This Section shall not be used to circumvent the sign variance process or to simply permit larger, more visible, or additional signs than may otherwise be permitted by this Article, without any consideration for unique sign design and display or other conditions.

D. *Procedures.*

1. Eligibility. A Planned Sign Program may be approved only for integrated complexes and project sites larger than two (2) acres in size.

2. A Planned Sign Program shall be approved through the Optional Plan Review procedures of Section 5.12.14.

3. Applications for a Planned Sign Program shall include, at a minimum, the following materials.

   a. A narrative description indicating:

      i. A statement demonstrating that the eligibility requirements are met.

ii. The general design intent for proposed signs.

iii. A description of how the signs are coordinated with proposed building architecture and compatibility with the surrounding development context.

iv. A demonstration of how the requested Planned Sign Program fulfills the Standards for Approval of E., below.

b. The proposed locations, types, number, heights, and sizes of all signs, indicated on scaled plans and/or building elevation drawings.

c. Proposed materials, fabrication details, and illumination proposed for sign structures and faces.

4. The decision of the Planning Commission shall be final and may not be appealed to the Board of Zoning Appeals. However, the applicant may elect to submit a sign variance application to the Board of Zoning Appeals.

E. *Standards for Approval.* The application shall have the obligation to demonstrate, and the Planning Commission shall find, that all of the following are met before a Planned Sign Program may be approved.

1. That the Planned Sign Program would result in a more attractive aesthetic setting, improved safety, provide more convenient identification for planned users, or other similar purposes that would not be achievable without deviations from the specific sign requirements of the Zone District;

2. That the location and/or physical characteristics of the applicant's property or the needs for identification are unique when compared to other similarly situated parcels in the same Zone District and in the same vicinity;

3. That the proposed Planned Sign Program substantially furthers the Purposes and Intent of Section 5.15.01.; and

4. That approval of the Planned Sign Program would not create any adverse effects on one or more properties in the vicinity.

F. *Amendments.*

1. Minor modifications to a previously approved Planned Sign Program may be approved through the Director Review procedures of Section 5.12.16. provided the general sign design, number of signs, and dimensional requirements are maintained. Minor modifications include:

a. Changes in sign location of not more than five (5) feet;

b. Changes to sign faces, provided that the face is no larger and materials are consistent with the approved sign; and

c. Changes to landscaping and lighting.

2. An amendment to an approved Planned Sign Program not qualifying as a minor modification per Section 5.15.08.F.1. shall be reviewed by the Planning Commission using the Site Plan review process, including the option of a public hearing under the provisions of Section 5.12.08.D.4., and the standards of Section 5.15.08.E.

(Ord. No. 2018-32, §§ 8, 9, 6-5-18)

Sec. 5.15.09. Community Event Signs.

A. *Purpose and Applicability.*

1. The City finds that in certain circumstances it is in the interest of public safety to permit certain signs to highlight events that may draw attendance from areas outside the immediate neighborhoods and locations where the event is planned.

2. In these named instances, signs for City-recognized events may be permitted within the City right-of-way on a temporary basis to avoid confusion for citizens and permit adequate directional information for planned events.

3. The City shall not be responsible for the cost of production, erection, maintenance, or removal of event signs.

B. *Community Events.*

1. The sponsors and participants of community special events operating under a special events permit issued by the City Manager for City-sponsored or supported events may erect additional temporary signs or banners in a manner that is not otherwise consistent with this Article for the duration of the event in accordance with the applicable City policies governing special events. (See City Commission Policy 1100-05 Special Events.)

2. This requirement recognizes the variety and scale of community events covered by the City Commission's policy. These events may attract large numbers of people who are not familiar with the city and may require additional directional and other related signs to ensure that driver confusion is minimized and traffic is directed to the proper parking and event sites.

3. Sign locations, types, number, and size shall be approved by the City Manager. Sign permits are not required.

C. *City Sports Events.*

1. The City may permit sponsors and participants of special events operating under a special events permit issued by the City Manager to erect additional signs or banners in accordance with the applicable City policies governing special events (City Commission Policy 1100-05 Special Events).

2. Sign locations, types, number, and size shall be approved by the City Manager. Sign permits are not required.

Sec. 5.15.10. Changeable Copy Signs.

A. *General.* Changeable copy signs may be manual or electronic, and shall comply with the maximum area and site location requirements of the applicable Zone District.

B. *Changeable Portion of Sign.*

1. The changeable copy portion of a ground, pylon or wall sign shall not exceed fifty (50) percent of the total sign area and shall be integral to the sign cabinet. The remainder of the sign shall be of a permanent character as otherwise required under this Chapter. Temporary portable signs shall be exempt from this requirement.

2. Window Sign. A changeable copy sign located in a window shall not exceed twenty-five (25) percent of the window area nor be more than three (3) square feet in area and must comply with all other provisions of this Chapter.

C. *Electronic Signs.*

1. *Display Regulations.*

   a. Scrolling or traveling of a message onto and/or off of the display shall be allowed; provided the message is coming from one (1) direction only and that no message shall take more than five (5) seconds to be displayed in its entirety. Once scrolled, the screen may not change for five (5) minutes.

   b. If non-scrolling, the screen of the sign shall not change more than once every five (5) minutes, and shall remain in a stationary state for at least five (5) minutes.

   c. The display shall not, or shall not appear to, flash, undulate, pulse, or portray explosions, fireworks, flashes of light, or blinking or chasing lights; the display shall not appear to move toward or away from the viewer, expand or contract, bounce, rotate, spin, twist or other similar movements.

   d. All electronic signs in any residential Zone District or within one hundred fifty (150) feet of a residential Zone District that are directly visible from a residential use shall discontinue the display between the hours of 11:00 p.m. and 6:00 a.m.

2. *Light Level Requirements.*

   a. To prevent glare, electronic signs shall not operate at a brightness level greater than the manufacturer's recommended levels, except as provided in this or other City Codes.

   b. All signs shall have installed ambient light monitors and shall at all times allow such monitors to automatically adjust the brightness level of the electronic sign based on ambient light conditions.

   c. Maximum brightness levels for electronic signs shall not exceed five thousand (5,000) nits when measured from the sign face at its maximum brightness during daylight hours, and five hundred (500) nits when measured from the sign face at its maximum brightness between dusk and dawn.

3. *Approvals.*

   a. *Director Review.* In Residential Zone Districts the Director may approve, under the provisions of Section 5.12.16., electronic signs that are integral to a ground sign of thirty-two (32) square feet or less, and all of the following requirements are met.

      i. The electronic portion is thirty-five (35) percent or less of the overall sign area;

      ii. The electronic display is thirteen (13) square feet or less; and

      iii. The sign is at least one hundred seventy-five (175) feet from an adjacent residential use.

   b. *Permitted Use.* Electronic signs are permitted as of right in the TN-TBA, MCN-C, and MON-C Zone Districts, subject to the applicable provisions of this Article.

   c. *Special Land Use.* A Special Land Use approval under the provisions of Section 5.12.09. shall be required for the following:

      i. Electronic signs not qualifying for Director Review.

      ii. Any electronic sign referred by the Director, regardless of the qualification for a Director Review.

      iii. In Mixed-Use Commercial Zone Districts, electronic signs within three hundred (300) feet of any residentially zoned lot sharing the same street frontage.

      iv. All electronic signs in the MCN-TOD, MON-TOD, and NOS Zone Districts.

d. *Prohibited.* Electronic signs are not permitted in the TN-CC, TN-TCC, and TN-TOD Zone Districts.

4. *Additional Requirements.*

a. Permitting.

i. All electronic signs require a sign permit.

ii. Electronic sign permit applications shall include a copy of the manufacturer's specifications for luminosity and a certification from the owner or operator of the sign stating that the sign shall be operated in accordance with City Codes and that the owner or operator shall provide proof of conformance upon request of the City.

iii. An electrical permit shall be obtained prior to the issuance of a sign permit.

b. If the sign is programmed from the site or from a remote location, the computer interface that programs the sign shall be available to City staff for inspection upon request. The sign shall cease operation if the computer interface is not immediately available.

c. No lot, including abutting parcels under common ownership, shall be permitted more than one (1) electronic sign.

(Ord. No. 2018-32, § 10, 6-5-18)

Sec. 5.15.11. Signs in Residential Zone Districts.

A. *Neighborhood Character.* As described in Section 5.15.01., it is the intent of this Section to reinforce and enhance the unique character of each of the City's Residential Zone Districts in an appropriate manner, while at the same time permitting sufficient methods to allow a freedom of expression for individuals. Typical lot size, lot width, building placement and building scale elements define the physical form of a neighborhood. An excessive number of signs, excessive sign size and improper placement can create visual clutter that detracts from other important neighborhood design elements that establish an area's sense of place. Signs that are appropriately sized based on the physical attributes of a neighborhood (lot size, building placement, etc.) can strengthen community character and serve as important component in establishing neighborhood identity.

B. *Residential Zone Districts.* Table 5.15.11.B. pertains to signs in Residential Zone Districts, as described in Article 5. The table does not contain all sign requirements applicable to the Zone Districts. Signs shall comply with all other applicable requirements of this Chapter. Sign types are defined in Section 5.15.17.

Table 5.15.11.B. Signs: Residential Zone Districts

Characteristic	**Requirements**		
Electronic Sign - Educational, Government or Institutional Use (See Section 5.15.10.C.)			
Number	As permitted by sign type.		
Area (electronic portion)	16 sq. ft. or 50% of the total sign area, whichever is less (except as permitted by Director Review).		
Sign Type	Ground, window or wall sign.		
Sign Permit	A sign permit is required.		
Ground Sign—Development Entry; Educational, Government or Institutional Use			
Number	1 per street frontage; maximum 2 per lot or lots under common ownership		
	Development Entry	1 per entrance, separated by a minimum of 300 ft. measured along street frontages	
Area, Height	Area	32 sq. ft.	Base not exceeding ⅓ of the height of the sign excluded from sign area calculation, but included in the maximum height
	Height	6 ft.	
Placement	15 ft.		
Illumination	Internal and external		
Sign Permit	Required.		

Table 5.15.11.B. Signs: Residential Zone Districts		
Characteristic	**Requirements**	
Nameplate Sign		
Number	1 per dwelling	
Area	8 sq. ft.	
Illumination	Not permitted	
Placement	Wall sign only	
Sign Permit	Not required	
Wall Sign—Educational, Government, or Institutional Use		
Number	1 per street frontage; maximum of 2 per main building.	
Area, Maximum	TN-LDR, MCN-LDR, MON-LDR	24 sq. ft.
	TN-MDR, MCN-MDR, MON-MDR	32 sq. ft.
Illumination	Internal or external.	
Sign Permit	Required	
Window Sign		
Number	1 per street frontage; maximum of 2 per main building	
Area	Maximum 25% of window area, not to exceed 3 sq. ft. for electronic or changeable copy	
Illumination	Internal or external	
Sign Permit	Electronic signs only	
sq. ft. =square feet; ft. = feet; in.= inches.		

Sec. 5.15.12. Signs in Mixed-Use Commercial Zone Districts.

A. *Commercial Character.* As initially described in Section 5.15.01., it is the intent of this Section to reinforce and enhance the unique character of each of the City's Mixed-Use Commercial Zone Districts in an appropriate manner. Typical lot size, lot width, building placement and building scale elements define the physical form of a neighborhood. An excessive number of signs, excessive sign size and improper placement can create visual clutter that detracts from other important neighborhood design elements that establish an area's sense of place. Signs that are appropriately sized based on the physical attributes of a neighborhood (lot size, building placement, etc.) can strengthen community character and serve as important component in establishing neighborhood identity.

B. *Mixed-Use Commercial Zone Districts.* Table 5.15.12.B. pertains to signs in Mixed-Use Commercial Zone Districts, as described in Article 6. The table does not contain all sign requirements applicable to the Zone Districts. Signs shall comply with all other applicable requirements of this Chapter. Sign types are defined in Section 5.15.17.

Table 5.15.12.B. Signs: Mixed-Use Commercial Zone Districts			
Characteristic	**Requirements**		
A-Frame (Sandwich Board) Sign			
NOS	Not Permitted		
Number	1 per ground floor use		
Area, Height, Width	TN-CC, TN-TCC, TN-TBA, TN-TOD, MCN-TOD, MON-TOD, MCN-C, MON-C	Area	8 sq. ft.
		Height	4 ft.
		Width	2 ft.
Display Period	During open business hours		
Placement	5 ft. wide clearance area for pedestrians		
	In front of the use location		
	MCN-C, MON-C	Private property, behind the sidewalk if present; not permitted in ROW	
	TN-CC, TN-TCC, TN-TBA, TN-TOD, MCN-TOD, MON-TOD	Annual temporary occupancy permit if in public ROW	
Illumination	Not permitted		
Sign Permit	Annual permit		
Awning or Canopy Sign			

Table 5.15.12.B. Signs: Mixed-Use Commercial Zone Districts					
Characteristic	**Requirements**				
Area, Letter Height	All Districts		1.5 sq. ft./1 Lf. of ground-level tenant space		
	TN-CC, TN-TCC, TN-TBA, TN-TOD, MCN-TOD, MON-TOD		Letter height of 10 in.		
	MCN-C, MON-C, NOS		Text shall be boxed together		
			Counts against the maximum permitted wall sign area		
	Vehicle Fuel Station Canopies		Letter height 18 in. on 3 sides of canopy, not extending above the façade of the canopy		
			Does not count against the maximum permitted wall sign area		
Placement	TN-CC, TN-TCC, TN-TBA, TN-TOD, MCN-TOD, MON-TOD, NOS		Building wall		
	MCN-C, MON-C		Building façade (wall facing street) only		
Barrel/Plastic Awnings	TN-CC, TN-TCC, TN-TBA, TN-TOD, MCN-TOD, MON-TOD, NOS		Not Permitted		
	MCN-C, MON-C		Permitted		
Illumination	Internal or external.				
	TN-TBA, MCN-C, MON-C		Entire area of the awning or canopy counted as sign area if internally illuminated		
Ground Clearance	8 ft.				
Permits	Encroachment permit if located over a public ROW				
	Sign permit required.				
Banner					
Number	1 per street frontage				
Area	MCN-C, MON-C, NOS		Not permitted		
	Combined area of all banners for each 40 lf. of building frontage	TN-TCC, TN-TOD, MCN-TOD, MON-TOD	12 sq. ft.		
		TN-TBA	24 sq. ft.		
		TN-CC	40 sq. ft.		
Ground Clearance	8 ft.				
Placement	2 ft. from back of curb				
	Flat on a wall or projected vertically at an angle of 90 degrees to the structure				
	If projecting, attached to the wall with a 6-in. space between the building and the sign, and shall not extend more than 42 in. from the building.				
	Not cover windows or architectural details				
Permits	Encroachment permit required over a public ROW				
	Sign permit required.				
Electronic Sign (See Section 5.15.10.C.)					
Area	24 sq. ft. or 50% of the total sign area, whichever is less(applies to electronic portion of sign)				
Sign Type	Allowed as an integral component of a ground, wall or pylon sign, as permitted within the Zone District, and meeting all associated sign requirements				
	Window sign: 1 per ground floor level establishment, not exceeding 25% of the window area or 3 sq. ft. in area				
Permits	Encroachment permit required over a public ROW				
	Sign permit required.				
Event Signs					
Number	1 per street frontage; maximum 2 total per lot or lots in common ownership				
Area, Height	Ground Sign	Residential uses	Area	6 sq. ft.	
			Height	4 ft.	
		Nonresidential uses	Area	32 sq. ft.	
			Height	8 ft.	
	Portable Sign	Residential uses	Not permitted		
		Nonresidential uses	Area	32 sq. ft.	
			Height	8 ft.	
		Not permitted in TN-CC, TN-TCC, TN-TOD, OD-EBL			
	Banner, wall	Residential uses	Area	8 sq. ft.	
		Nonresidential uses		32 sq. ft.	
	Window	As permitted in Mixed-Use Commercial Zone Districts			
Placement	Ground, portable	5 ft. from property lines			
Materials	The material requirements of Section 5.15.04.D. shall not apply				
Illumination	Not permitted				
Sign Permit	Required for nonresidential uses only				

Table 5.15.12.B. Signs: Mixed-Use Commercial Zone Districts			
Characteristic	**Requirements**		
Ground Sign			
Number	1 per street frontage maximum		
	Ground sign and pylon sign not permitted on the same street frontage		
Area, Height	District	Maximum Area	Maximum Height
	TN-CC	18 sq. ft.	5 ft.
	TN-TCC, TN-TOD, TN-TBA, MCN-TOD, MON-TOD, NOS	32 sq. ft.	5 ft.
	MCN-C, MON-C	75 sq. ft.	6 ft.
	A base not exceeding ⅓ of the height of the sign shall be excluded from the sign area calculation, but shall be included in the overall height calculation		
Placement	Minimum setback from the property line.	TN-CC	4 ft.
		Other Districts	15 ft.
Landscape Area	200 sq. ft.		
Illumination	Internal or external		
ROW	Not permitted in public ROW		
Sign Permit	Required		
Administrative Departures	For a partial or full reduction in the landscape area due to topography, natural features, or other site conditions		
	For properties on a Regional or Major Street, to permit a ground sign up to 60 sq. ft. (where the maximum size is 32 sq. ft.) or 100 sq. ft. (where the maximum size is 75 sq. ft.)		
Marquee Sign			
Area on Marquee Fascia	TN-CC, TN-TCC, TN-TBA, TN-TOD, MCN-TOD, MON-TOD, NOS	Maximum letter height of 10 in.	
		Not counted against the maximum permitted wall sign area	
	MCN-C, MON-C	1.5 sq. ft./1 Lf. of ground-level tenant space.	
		Text shall be boxed together	
		Counted against the maximum permitted wall sign area	
	Up to 2 sign faces not exceeding 120 sq. ft. in area each side for buildings with a seating capacity of 400 persons or more in 1 or more central locations within the building, and having 25,000 sq. ft. or more of GFA		
Placement	TN-CC, TN-TCC, TN-TBA, TN-TOD, MCN-TOD, MON-TOD, NOS	On any building wall	
	MCN-C, MON-C	On building façade only (wall facing street)	
	In lieu of signs on the marquee fascia, signs may be attached to the top of a marquee as individual freestanding upright letters or symbols, provided the characters are no greater than 20 in. high		
Ground Clearance	8 ft.		
Illumination	External. Recessed lighting under the marquee is permitted		
Other	1 sign, not to exceed 3 sq. ft., per ground-level tenant space may be suspended under the marquee, provided ground clearance is maintained		
Permits	Encroachment permit is required if located over a public ROW		
	Sign permit required.		
Multi-Media Sign			
Approval Type	Not Permitted	TN-TCC, TN-TBA, TN-TOD, MCN-C, MCN-TOD, MON-C, NOS	
	Special Land Use	TN-CC for buildings with a seating capacity of 400 persons or more in 1 or more central locations within the building, and having a minimum GFA of 25,000 sq. ft.	
Other	Meet height and area limits of selected sign type; Planning Commission may approve a larger sign with Special Land Use		
Permits	Encroachment permit required over a public ROW		
	Sign permit required		
Parking Facility Sign (See Section 7.201. of the City Code.)			
A-Frame Sign	1 per entrance; regulations for A-frame signs apply		
Ground Sign	Where 80 or more parking spaces available for use by the general public on a daily basis		
	Height	9 ft.	
	Area	34 sq. ft.	
	Width	4 ft.	
Portal Sign	Overhead sign installed parallel to a street at main entrance(s) or exit(s)		
	Height	Sign	12 ft.
		Overhead sign panel	2 ft. (included within 12 ft. overall height requirement)

Table 5.15.12.B. Signs: Mixed-Use Commercial Zone Districts							
Characteristic	**Requirements**						
Parking Rate Sign	See Section 7.207 of the City Code						
	Area/height based on setback						
	Setback	Height/Area		Setback	Height/Area		
	3 ft.	Height	30 in.	10 ft. or more	Height	Area	
		Area	10 sq. ft.		10 sq. ft.	6 ft.	
Projecting Sign	Area			18.5 sq. ft.			
	Maximum distance from building			4 ft.			
	Number			1 per entrance			
Permits	Encroachment permit required over a public ROW						
	Sign permit required						
Projecting Sign							
Number	1 per ground floor establishment						
Area, Distance from Building	District			Area	Distance from Building		
	TN-CC			10 sq. ft.	4 ft.		
	TN-TCC, TN-TOD, MCN-TOD, MON-TOD			10 sq. ft.	3 ft.		
	TN-TBA, MCN-C, MON-C, NOS			12 sq. ft.	3 ft.		
Ground Clearance	8 ft.						
Distance from Back of Curb	2 ft.						
Height	Not extending above the sill of the 2nd story window or 16 ft., whichever is less						
Illumination	Internal or external						
Permits	Encroachment permit required over a public ROW						
	Sign permit required						
Administrative Departure	To permit alternate sign placement where windows or architectural details would be covered						
Pylon or Pole Sign							
Number	1 per street frontage						
	Ground sign and pylon sign not permitted on the same street frontage						
Area, Height	TN-CC, TN-TCC, TN-TBA, TN-TOD, NOS			Not Permitted			
	MCN-C, MCN-TOD, MON-C, MON-TOD			Area	50 sq. ft.		
				Height	25 ft.		
Placement	5 ft. from property lines.						
Ground Clearance	8 ft.						
	14 ft.			Where the sign extends over any vehicular driveway or parking area			
Landscape Area	200 sq. ft.						
Illumination	Internal or external						
Permits	Encroachment permit required over a public ROW						
	Sign permit required						
Administrative Departures	For a partial or full reduction in the landscape area due to topography, natural features, or other site conditions						
	To permit alternate sign placement where it is established that an appropriate area for the sign does not exist						
Upper Level Building Identification Sign - Wall Sign							
Area, Number	MCN-C, MON-C, NOS			Not Permitted			
	TN-TCC, TN-TBA, TN-TOD, MCN-TOD, MON-TOD			Number	1 per building		
				Area	1.25 sq. ft. for every 1 Lf. of exterior building wall		
				Type	A wall sign is not permitted if a projecting sign is present		
	TN-CC			Number	2 per building to identify the building, owner or principal tenant; 2 per building for a major tenant; maximum of 4		
				Area	1.25 sq. ft. for every 1 Lf. of exterior building wall		
				Type	Not more than 2 signs of the same type is permitted		
	Linear feet measured for exterior building wall on which the sign is placed at the height of the sign						

Table 5.15.12.B. Signs: Mixed-Use Commercial Zone Districts

Characteristic	Requirements										
Wall Sign Area	Buildings 6 stories or higher, if sign is placed on the top level of the building						Not counted against maximum permitted wall sign area				
	Buildings 6 stories or higher, if sign is placed below the top level of the building						Counted against maximum permitted wall sign area				
	Buildings of 5 or fewer stories										
Number	1 per building wall.										
Placement	The top level of the building is the area between the roof line and the upper edge of the top floor windows, on that portion of the building free or architectural detail.										
Letters, Symbols	Height	Stories	2	3	4	5	6	7	8—10	11—14	15+
		Height (in.)	24	30	36	42	48	54	60	72	84
Owner Permission	Written permission from building owner or designated representative required for sign that identifies the principal tenant (or major tenant in TN-CC)										
Illumination	Internal or external										
Permits	Encroachment permit required if over a public ROW										
	Sign permit required										
Administrative Departures	For letter height provided 70% of the total sign size is consistent with the height requirements										
	To permit alternate sign placement where windows or architectural details would be covered										
Upper Level Building Identification Sign - Projecting Sign											
Area, Number	MCN-C, MON-C, NOS						Not Permitted				
	TN-TCC, TN-TBA, TN-TOD, MCN-TOD, MON-TOD						Number	1 per building			
							Area	1.25 sq. ft. for every 1 Lf. of exterior building wall			
							Type	A projecting sign is not permitted if a wall sign is present			
	TN-CC						Number	1 per building wall; maximum of 4			
							Area	1.25 sq. ft. for every 1 Lf. of exterior building wall			
							Type	Not more than 2 signs of the same type is permitted			
	Linear feet measured for exterior building wall on which the sign is placed at the lowest height of the sign										
Sign Area	Buildings 6 stories or higher, if placed on top 2 stories*						Not counted against maximum permitted wall sign area				
	Buildings 6 stories or higher, if placed below the top 2 stories						Counted against maximum permitted wall sign area				
	Buildings of 5 or fewer stories						Not permitted				
Number	1 per building wall										
Letters, Symbols	Height	Stories	1—5	6	7+	8—10	11—14	15+			
		Height (in.)	Not permitted	48	54	60	72	84			
	The sign shall not extend more than 10 ft. from the face of the building										
Owner Permission	Written permission from building owner or designated representative required for sign that identifies the principal tenant (or major tenant in TN-CC)										
Illumination	Internal										
Permits	Encroachment permit required if over a public ROW										
	Sign permit required										
Administrative Departures	For letter height provided 70% of the total sign size is consistent with the height requirements										
	To permit alternate sign placement where windows or architectural details would be covered										
Wall Sign											
Number	1 per ground-level tenant space with customer entrance; maximum 4 per business										
Area	TN-TBA, TN-TOD, MCN-TOD, NOS	1 sq. ft./1 Lf. of ground-Level tenant space					Not to exceed 32 sq. ft.				
	TN-CC, TN-TCC, MON-TOD						Not to exceed 50 sq. ft.				
	MCN-C	1.5 sq. ft./1 Lf. of ground-level tenant space					Not to exceed 75 sq. ft.				
	MON-C						Not to exceed 100 sq. ft.				
Height	TN-CC, TN-TCC, TN-TBA						Not extending above the sill of the 2nd story window or 16 ft., whichever is less				
Projection	18 in. maximum										
Placement	If only 1 customer entrance, located on the same building wall as the customer entrance										
	If the building is located on a corner lot, 1 additional sign up to 24 sq. ft. permitted on second street façade										
	Shall not cover windows or architectural details										

Table 5.15.12.B. Signs: Mixed-Use Commercial Zone Districts			
Characteristic	**Requirements**		
Illumination	Internal or external		
Permits	Encroachment permit required over a public ROW		
	Sign permit required		
Administrative Departure	For sign placement where it is established that an appropriate area for the sign does not exist		
Wall Sign - Building Directory			
Number	1 per ground level entrance		
Area and Letter Height	TN-CC, TN-TCC, TN-TBA, TN-TOD, MCN-TOD, MON-TOD, NOS	Maximum area	6 sq. ft.
		Maximum letter ht.	2 in.
	MCN-C, MON-C	Maximum area	12 sq. ft.
		Maximum letter ht.	3 in.
Placement	At ground level and adjacent to the entrance to the lobby or arcade, on upper or lower levels		
Permits	Encroachment permit required over public ROW		
	Sign permit required		
Administrative Departure	To permit a larger sign, to the extent necessary to accommodate multiple tenants.		
Window Sign			
Number	1 per street frontage; maximum of 2 per main building		
Area	25% of window area if an electronic or changeable copy sign, not to exceed 3 sq. ft.		
Illumination	Internal or external		
Permits	Electronic signs only		
sq. ft. = square feet, ft. = feet, in. = inches; Lf. = linear feet; row = right-of-way			

(Ord. No. 2018-32, § 11, 6-5-18)

Sec. 5.15.13. Signs in Special and Overlay Districts.

A. *Special Districts and Overlay Districts.* Table 5.15.13.A. pertains to signs in Special and Overlay Zone Districts, as described in Articles 7 and 8. The table does not contain all sign requirements applicable to the Zone Districts. Signs shall comply with the requirements listed, as well as all other applicable requirements of this Chapter. Sign types are defined in Section 5.15.17.

Table 5.15.13.A. Signs: Special and Overlay Zone Districts		
Characteristic	**Requirements**	
Airport District (SD-AP)	Signs regulated by Kent County Board of Aeronautics	
Awning or Canopy Sign		
Area, Letter Height	SD-OS, OD-EBL	Letter height: 10 in.
	SD-IT, SD-IC	1.5 sq. ft./1 Lf. of ground-level tenant space; text shall be boxed together
Total Sign Area	SD-OS, OD-EBL	Not counted against the maximum permitted wall sign area
	SD-IT, SD-IC	Counted against the maximum permitted wall sign Area (See illumination)
Placement	SD-OS, OD-EBL	On any building wall
	SD-IT, OD-IC	On building façade only (wall facing street)
Barrel/Plastic Awnings	SD-OS, OD-EBL	Not Permitted
	SD-IT, OD-IC	Permitted
Illumination	SD-OS, SD-PRD	External
	SD-IT, SD-IC	Internal or External; if awning or canopy sign is internally illuminated, the entire area shall be counted against the permitted sign area
Ground Clearance	8 ft.	
Vehicle Fuel Station Canopy	Letter height 18 in. on 3 sides of the canopy, not extending above the façade of the canopy.	
	Not counted against maximum permitted wall sign area	
Permits	Encroachment permit required over public ROW	
	Sign permit required	
Banner		
Applicability	SD-OS, SD-IT, OD-EBL	Not permitted.
	SD-IC	Applies only for 250 ft. perimeter area around the outer edge of the campus property lines
Ground Clearance	8 ft.	

Table 5.15.13.A. Signs: Special and Overlay Zone Districts	
Characteristic	**Requirements**
Permits	Encroachment permit required if over public ROW
	Sign permit required
Billboard or Off-Premises Sign (See Section 5.15.03.I.)	

Table 5.15.13.A. Signs: Special and Overlay Zone Districts					
Characteristic	**Requirements**				
Applicability	SD-OS, SD-IC, OD-EBL	Not Permitted			
	SD-IT	Permitted			
Area, Height	Area		672 sq. ft. per sign side.		
	Height		40 ft.		
Sign Face	1 per direction of travel; maximum of 2				
Spacing Measurement	Lineal and radial spacing applies to all billboard sign structures on both sides of any street, measured from the base of sign pole; if on more than one pole or wall, measured from the closest edge of the sign				
Spacing Between Signs	Spacing is measured in any direction - linearly and radially				
	Interstate Highway or Expressway		5,000 ft.		
	Regional or Major Street		2,400 ft.		
Separation	From Residential Zone District, residential use, religious institution, school, park, historic district, or hospital (lot line to lot line)		250 ft.		
	Interchange or intersection along an Interstate Highway or Expressway, beginning at edge of ROW for entrance/exit ramp termini		1,500 ft.		
	Center of intersection of a Regional or Major Street		250 ft.		
Setback	Main building requirements of the SD-IT District; measured from ROW to nearest edge of the sign				
Use	Principal or accessory use. For a principal use, lot area and width requirements of SD-IT apply				
Placement	Not permitted on top of, cantilevered, or otherwise suspended above the roof line				
Illumination	Internal or external. Source of illumination may not be visible beyond the property lines of lot				
Prohibited Operation	See Section 5.15.06.C.				
Public Property	Not permitted				
Highway Advertising Act	Compliance required				
Other Right-of-Way Sign Permit	State of Michigan (issued prior to City sign permit) where governed by the Highway Advertising Act				
	Sign permit required, except for extensions				
Electronic Sign (See Section 5.15.10.)					
Approval Type	SD-IT, OD-EBL	Not Permitted			
	SD-OS, SD-IC	Permitted, except a Special Land Use is required if within 500 ft. of any Residential Zone District sharing same street frontage			
Area, Maximum (of electronic portion of sign)	SD-OS	16 sq. ft.			
	SD-IC	24 sq. ft.			
	Electronic portion, maximum sign area or 50% of the maximum sign area, whichever is less.				
Sign Type	Permitted in conjunction with a ground or wall sign, as permitted within the Zone District				
	1 window sign per ground floor level establishment, not exceeding 25% of the window area or 3 sq. ft., whichever is less				
Permits	Encroachment permit required if over public ROW				
	Sign permit required				
Event Signs					
Number	1 per street frontage; maximum 2 total per lot or lots in common ownership				
Area, Height	Ground Sign	Residential uses	Area	6 sq. ft.	
			Height	4 ft.	
		Nonresidential uses	Area	32 sq. ft.	
			Height	8 ft.	
	Portable Sign	Residential uses	Not permitted		
		Nonresidential uses	Area	32 sq. ft.	
			Height	8 ft.	
	Banner, wall	Residential uses	Area	8 sq. ft.	
		Nonresidential uses		32 sq. ft.	
	Window	As permitted in Special and Overlay Zone Districts			
Material	The materials requirements of Section 5.15.04.D. shall not apply				
Illumination	Not permitted				
Permits	Sign permit required - Nonresidential uses only				
Ground Sign					

Table 5.15.13.A. Signs: Special and Overlay Zone Districts				
Characteristic	**Requirements**			
Area, Height	District/Use		Area	Height
	SD-OS		32 sq. ft.	5 ft.
	SD-IT, SD-IC		60 sq. ft.	6 ft.
	OD-EBL	Office development, multiple tenant office or commercial building, institutional use	60 sq. ft.	6 ft.
		Individual office or commercial building.	32 sq. ft.	5 ft.
	Base not exceeding ⅓ of the height of the sign excluded from the sign area calculation, but included in the height calculation.			
Placement	15 ft. from property lines			
	Multiple signs spaced at least 300 ft. apart			
Landscape Area	200 sq. ft.			
Number	1 per street frontage			
	Ground sign and pylon sign not permitted on same street frontage			
Illumination	Internal or external			
Permits	Sign permit required			
Administrative Departures	For partial or full reduction in the landscape area due to topography, natural features, or other site conditions			
	For properties on a Regional or Major Street to permit a ground sign up to 60 sq. ft. (where the maximum size is 32 sq. ft.) or 100 sq. ft. (where the maximum size is 60 sq. ft.)			
Marquee Sign				
Area, Maximum on Marquee Fascia	SD-OS, OD-EBL	Maximum letter height 10 in. Not counted against the maximum permitted wall sign area		
	SD-IT, SD-IC	1.5 sq. ft./1 Lf. of ground-level tenant space; text shall be boxed together. Counted against the maximum permitted wall sign area		
	All districts	Sign with 1 or 2 sign faces not exceeding 120 sq. ft. each permitted for buildings with a seating capacity of 400 persons or more in 1 or more central locations within the building, and having a minimum GFA of 25,000 sq. ft.		
Placement	SD-IT, SD-IC	On any Building wall		
	SD-OS, OD-EBL	On building wall facing street		
	In lieu of signs on the marquee fascia, individual freestanding upright letters or symbols may be attached to the top of a marquee, characters not exceeding 20 inches in height			
	A sign is permitted on either the face of the marquee or the top of the marquee, but not on both			
Illumination	External illumination. Recessed lighting under marquee permitted			
Other	1 sign, 3 sq. ft. per each ground-level tenant space; may be suspended under marquee			
Permits	Encroachment permit required if over public ROW			
	A Sign permit required			
Parking Facility Sign (See Section 7.201 of the City Code.)				
A-Frame Sign	1 sign per entrance; regulations for A-frame signs apply.			
Ground Sign	Only for public parking areas with spaces for 80 or more vehicles.			
	Height	9 ft.		
	Area	34 sq. ft.		
	Sign regulations for ground signs shall apply.			
Portal Sign	Overhead sign installed parallel to a street at the main entrance(s) or exit(s) to a parking lot			
	Height	12 ft.		
	Overhead sign panel	2 ft. (included within the 12 ft. height limit)		
Parking Rate Sign	Public and commercial parking facilities shall post a rate sign that complies with the requirements of Section 7.207 of the City Code			
	Area	10 sq. ft.		
	Height based on setback from ROW	Setback from ROW	Height	
		3 ft.	30 in.	
		10 ft. or more	6 ft.	
Permits	Encroachment permit required if over public ROW			
Sign permit required				
Projecting Sign				
Applicability	Permitted only in SD-IT, SD-IC, OD-EBL			
Number	1 sign per ground floor establishment			
Area, Height	Area		12 sq. ft.	
	Height		Not extending above the sill of the 2nd story window or 16 ft., whichever is less	
Placement	3 ft. from back of curb			

Table 5.15.13.A. Signs: Special and Overlay Zone Districts

Characteristic	Requirements									
Illumination	Internal or external									
Permits	Encroachment permit required if over public ROW									
	Sign permit required									
Administrative Departure	To permit alternate sign placement where windows or architectural details would be covered									
Pylon or Pole Sign										
Applicability	Permitted only in SD-IT									
Area, Height	Area	60 sq. ft.								
	Height	25 ft.								
Placement	5 ft. from property lines									
Landscape Area	200 sq. ft.									
Number	1 per street frontage									
	Ground sign and pylon sign not permitted on the same street frontage									
Illumination	Internal or external									
Permits	Encroachment permit required if over public ROW									
	Sign permit required									
Administrative Departure	For partial or full reduction in the landscape area due to topography, natural features, or other site conditions									
Upper Level Building Identification Sign										
Area, Number	SD-OS, SD-IT	Not permitted								
	SD-IC, OD-EBL*	1.25 sq. ft./1 Lf. of exterior building wall (see Wall Sign Area)								
	1 per building									
	Linear feet measured for exterior building wall on which sign is placed, at the height of the sign									
	Letter required from the property owner or manager with permission for sign									
Wall Sign Area	Buildings six (6) stories or higher, sign placed on top level of building	Not counted against permitted wall sign area					Top level of the building is the area between the roof line and the upper edge or the top floor windows, on that portion of the building free of architectural detail			
	Buildings six (6) stories or higher sign placed below top level of building	Counted against maximum permitted wall sign area								
	Buildings five (5) stories or less									
Height of Letters, Symbol	Stories	2	3	4	5	6	7	8 to 10	11 to 14	15 or more
	Height (in.)	24	30	36	42	48	54	60	72	84
Owner Permission	Letter required from the property owner or manager with permission for sign									
Permits	Encroachment permit required if over public ROW									
	Sign permit required									
Administrative Departures	For letter height provided 70% of the total sign size is consistent with the height requirements									
	To permit alternate sign placement where architectural details would be covered									
Wall Sign										
Area	SD-OS, SD-IT, SD-IC, OD-EBL	Ground floor retail commercial use	1.5 sq. ft./1 Lf. of ground level retail commercial space; maximum 32 sq. ft.							
		Ground floor office, institutional, industrial use	1.5 sq. ft./1 Lf. of the building that fronts on a street; maximum of 40 sq. ft.							
Height	SD-OS, OD-EBL	Not extending above the sill of the 2nd story window or 16 ft., whichever is less								
Additional Sign	SD-IT, OD-EBL	1 additional sign on any side of the, maximum total of 2 and additional sign does not exceed twenty-four (24) sq. ft.								
Number	1 per ground-level tenant space for each customer entrance, not to exceed 4 per business									
Projection	Horizontal 18 in. projection from wall to which it is attached									
Placement	If only one customer entrance, sign shall be on same wall as the entrance									
	For corner lot, 1 additional sign up to 24 sq. ft. on second street façade									
	Signs shall not cover windows or architectural details									
Illumination	Internal or external									
Right-of-Way Sign Permit	Encroachment permit required if over public ROW									
	Sign permit required									
Administrative Departure	Where it is established that an appropriate area for the sign does not exist									
Wall Sign - Building Directory										

Table 5.15.13.A. Signs: Special and Overlay Zone Districts		
Characteristic	**Requirements**	
Area, Letter Height	SD-IT, SD-IC, OD-EBL	24 sq. ft.
		Letter height 4 in.
Number	1 directory sign per ground level entrance, at ground level and adjacent to entrance to lobby or arcade, or upper or lower levels	
Permits	Encroachment permit required if over public ROW	
	Sign permit required	
Administrative Departure	To permit a larger sign, to the extent necessary to accommodate multiple tenants	
Window Signs		
Number	1 per street frontage; maximum of 2 per main building	
Area	25% of window area if an electronic or changeable copy sign, or 3 sq. ft., whichever is less	
Illumination	Internal or external	
Permits	Sign permit required for electronic signs only	
sq. ft. = square feet, ft. = feet, in. = inches; Lf. = linear feet; row = right-of-way.		

B. *Planned Redevelopment District.* Planned Redevelopment District Sign Requirements.

1. *Planned Sign Program.* Unless otherwise provided in the resolution approving a particular Planned Redevelopment District (PRD), signs hereafter erected in a PRD shall be governed by the rules and requirements of the approved PRD, and of an established Zone District, as assigned by the Planning Commission. The assigned Zone District regulations shall be referred to as the Planned Sign Program. The Planning Commission shall evaluate the adjacent Zone Districts in the same Neighborhood Classification for consistency and compatibility in making its determination.

2. *Owner or Manager Approval.* All sign permit requests shall include evidence of approval by the property owner or facility manager to submit the permit application.

3. *Existing Signs.* Sign program amendment review shall consider existing signs prior to approval or denial of program change.

4. *Change in Copy.* The change of copy on a sign, or the substitution of one (1) sign for another, shall not require an amendment to a Planned Sign Program if the change or substitution is limited in effect to changing the identification of a business activity, and the new or altered sign conforms in all other respects to the approved Planned Sign Program.

5. *Deviations from Planned Sign Program.*

   a. Deviations from an approved Planned Sign Program shall be reviewed by the Planning Commission under the Minor Deviation procedures as provided in Section 5.12.12.I.2. No public hearing shall be required. However, the Planning Director or Planning Commission may send such notices of the pending action and receive such comments from surrounding property owners and occupants or other interested persons as either the Planning Director or Planning Commission deems appropriate.

   b. The decision of the Planning Commission may not be appealed to the Board of Zoning Appeals.

Sec. 5.15.14. Permits, Application Requirements, and Approval.

1. The purpose of this Section is to set forth procedures and standards for processing sign permit applications.

2. *Sign Permit.* Except as provided elsewhere in this Chapter, it shall be unlawful for any person to erect, place, install, display, alter, or relocate a sign without first obtaining a sign permit or permits. A sign permit shall not be issued if the site has existing, unresolved sign violations per the regulations of this Chapter.

3. *Permit Not Required.* A sign permit shall not be required under the following conditions.
   a. *Maintenance and Repairs.* Maintenance and repair includes painting of chipped or faded signs; replacement of faded or damaged surface panels; or repair or replacement of electrical wiring and electrical devices provided the size, structure or cabinet are not changed or removed. An electrical or other City permit may be required.
   b. *Exempt Signs.* The following signs must comply with all relevant provisions of this Article, but shall not require a sign permit:
      i. Driveway signs without illumination.
      ii. Incidental signs not exceeding two (2) square feet in total area.
      iii. Integral identifiers.
      iv. Murals with no commercial message.
      v. Official signs.
      vi. Residential temporary event signs.
      vii. Commercial temporary event signs twenty (20) square feet or smaller.
      viii. Historical plaques.
   c. *Re-faced Signs.* A sign permit and fee is required to reface off-premise signs. For other signs, a sign permit and a sign permit fee are not required to be issued if the sign is refaced in a manner that maintains the display on the sign as approved by the original permit. However, a sign permit application is required for the City's records.
4. *Sign Permit Application.* To obtain an approved sign permit, a complete application for a sign permit shall be filed by, or with the written consent of, the property owner on a form provided by the City, and shall be accompanied by the following information.
   a. *Sign Inventory.* Photographs, and descriptions of the type and dimensions, square footage, materials and copy of all other existing signs on the site, keyed to the site plan by a number or letter.
   b. *Proposed Signs.* A graphic representation of all proposed signs, including dimensions, square footage, dimensions of letters and figures, colors, materials, copy, landscaping, and illumination or movement characteristics, if any, keyed to the site plan by a number or letter.
   c. *Site Plan.* In addition to the sign information, a site plan shall be provided that identifies the locations of all existing and proposed signs, all existing and proposed buildings, parking areas, vehicular access ways and landscaping.
   d. *Sealed Plans.* Sealed construction plans, stress sheets and calculations, and other construction information, for freestanding signs fifteen (15) feet or higher or one hundred (100) square feet in area or more and for other installations as required by the City Building Official. A minimum of two (2) sets of such plans and specifications are required, bearing the signature and seal of a registered Michigan architect or engineer who shall assume responsibility for their design.
   e. *Performance Guarantee.* If required, a performance guarantee shall be submitted in accordance with the provisions of Section 5.14.04.
5. *Application Review.*
   a. *Determination.* The Director shall determine whether the proposed sign or sign program is in compliance with this Article and whether the purposes and objectives of this Article have been met. The determination will be based on a review of site plans, landscaping,

clear vision areas, parking locations, drives, setbacks, relationship of proposed location to immediate or surrounding areas for proper sign placement, and other applicable requirements of this Chapter.

b. *Approval.* The Director or designee, may approve, conditionally approve subject to modifications, or disapprove any application for a sign permit, subject to the following standards:

i. Whether the requirements of this Chapter have been satisfied.

ii. A finding is made that the sign will not adversely affect or be materially detrimental to adjacent uses, buildings or structures, taking into consideration site development, landscaping, construction, and material of exteriors, other signs, exterior lighting, uses, occupancy, density, and the entire development plan.

iii. The sign placement, scale, shape, illumination, size, letter styles, or other design aspect are architecturally appropriate and compatible in relation to the development on and adjacent to the site of the proposed sign.

6. *Duration of Approval.*

a. A sign permit shall be considered approval to proceed with the work specified in the permit.

b. The approved permit shall expire and become null and void if the work authorized under such permit is not commenced within one hundred eighty (180) days from the date of issuance. After this period, the City shall consider the application withdrawn and may destroy any application and plans pertaining to the application.

c. Upon written request prior to the date of expiration, the Director may grant one (1) extension of up to one hundred eighty (180) days if the applicant can demonstrate that the reasons for the extension were beyond their immediate control.

Sec. 5.15.15. Sign Variances.

A. *Authority.*

1. The Board of Zoning Appeals (BZA) is authorized to hear and decide requests for variances to sign requirements. The BZA shall process the request with the same application and hearing requirements of Section 5.13.03.

2. In deciding a sign variance application, the BZA shall state the reasons that justify the approval or denial of the variance. The BZA may attach conditions of approval regarding the location, character or other features of the proposed sign as it deems reasonable. The BZA shall evaluate a sign variance application using the review standards of B. below.

3. The decision of the BZA shall be final. However, any person being an aggrieved party affected by the decision shall have the right of appeal to the Kent County Circuit Court, as provided in the Zoning Act and Circuit Court procedures.

B. *Review Standards for Sign Variances.* A sign variance shall only be granted where exceptional practical difficulties prevent the strict application of the requirements of this Chapter. A sign variance may be allowed by the BZA only in cases where all of the following conditions are met.

1. *Exceptional or Extraordinary Circumstances or Conditions.* There are exceptional or extraordinary circumstances or conditions applying to the property for which the sign is intended that do not apply generally to other properties in the same Zone District or in the neighboring area. Exceptional or extraordinary circumstances or conditions may include:

a. *Shape of Lot.* A sign could not be placed in a required location due to the physical shape, topography or other physical condition of a lot or to the location of an existing structure.

b. *Environmental Conditions.* A sign could not be placed in the required location without removing or severely altering natural features, such as trees, topography, drainage courses or encroaching upon stormwater facilities.

c. *View Obstructions.* A sign could not be reasonably seen by passing motorists due to the configuration of existing buildings, trees, signs or other obstructions on an abutting property.

d. *Motorist Safety.* A sign could not be seen by passing motorists in sufficient time to allow safe deceleration and turning movements. The BZA shall consider the width of the road, driveway locations, number of moving lanes, volume of traffic, and speed limits.

2. *Substantial Property Right.* The variance is necessary for the preservation of a substantial property right similar to that possessed by other properties in the same Zone District and in the neighboring area. Increased costs associated with complying with this Chapter shall not be considered as a basis for granting a Variance.

3. *Not Self-Created.* The immediate practical difficulty causing the need for the variance was not created by the applicant or any person having an interest in the sign, sign structure, or property.

4. *No Substantial Detriment.* Granting the variance will not be detrimental to the public welfare, be injurious to other properties or improvements, endanger public safety, or substantially diminish or impair property values in the area.

5. *Master Plan/Zoning Ordinance.* The variance will be consistent with, and not materially impair, the purpose and intent of this Article, the regulation that is the subject of the variance, the Master Plan, and the Zoning Ordinance and Zone District.

Sec. 5.15.16. Enforcement and Fees.

A. *Enforcement.* The City may use any lawful remedy or enforcement powers against the owner or responsible person for any violation of this Article, as described in Article 14 Administration and Enforcement.

B. *Fees.* Fees shall be charged for the following services:

1. *Sign Permit Fees.* Before issuance of any required sign permit, the City shall collect an application fee in accordance with a fee schedule adopted by resolution of the City Commission.

2. *Second and Additional Inspections.* An additional inspection fee shall be charged if more than one (1) inspection is needed or requested to determine compliance with this Article. Second and additional inspections include but are not limited to: Court requested, Attorney requested, progress inspection, inspection at the request of the owner or responsible person, or any inspection in addition to the first inspection. The sign permit fee includes the cost of the first inspection and additional fees as permitted by this Section may be collected for second and additional inspections.

3. *Work without a Permit.* Any work started without a permit, or any work beyond the authorized scope of a sign permit constitutes a violation and is grounds for the designated enforcement staff to issue a notice of violation (NOV), a cease and desist order, or other enforcement actions until appropriate permits are obtained. Any permit that would be required based on the work conducted shall subject the owner or responsible person to a doubling of the normal permit fee. However, this action will not exempt any person from compliance with all other provisions of this Section nor from any penalty prescribed by law.

4. *Sign Permit and Inspection Fee Schedule.* The following sign permits and inspection services are hereby authorized, and fees established by resolution of the City Commission:
   a. Sign Permit;
   b. Sign Permit - Rework;
   c. Sign Permit - Work Started without a Permit;
   d. Temporary Sign Permit;
   e. Other fees as noted in Section 5.14.11.
5. *Responsible Person.* The owner or responsible person shall be responsible for the payment of fees associated with sign permits, inspection services and code enforcement actions related to bringing a sign(s) into compliance with this Article.

C. *Declaration of Nuisance.* Any sign installed, altered or maintained in violation of any provision of this Article constitutes a public nuisance per se and is subject to abatement pursuant to Section 5.14.07.

D. *Confiscated Signs.*

1. Any cost incurred by the City for the removal, alteration or relocation of a sign pursuant to the provisions of this Article shall be paid prior to the issuance or renewal of any permit for that property.
2. Signs removed by City personnel shall be held for ten (10) days. An owner or responsible person may claim the sign within ten (10) days of removal, provided that any costs associated with the sign removal have been paid to the City. After ten (10) days, the City shall be permitted to destroy the sign.

E. *Appeals.* The BZA may hear an administrative appeal taken from any person or any governmental official affected or aggrieved by any order, requirement, decision, or determination, as permitted by this Chapter.

Sec. 5.15.17. Sign Definitions.

The following words, terms and phrases, when used in this Article, shall have the meaning provided below, except where the context clearly indicates a different meaning. The provisions of Section 5.16.01. Rules of Construction and other applicable definitions of Article 16 Definitions shall apply to this Article.

A. Sign Definitions - A.

ABANDONED SIGN

A sign for which no legal owner can be found, or which contains a message referring to a former use of land on the lot on which the sign is located.

A-FRAME SIGN

A sandwich board or tent sign which is not permanently affixed to a structure or to the ground. Synonymous with Sandwich Board Sign.

AWNING SIGN

A sign affixed flat against the surface of an awning.

B. Sign Definitions - B.

BANNER/BANNER SIGN

A sign of non-rigid fabric, cloth, or other durable material that is mounted to a pole or a building by a permanent frame at one (1) or more edges without an enclosing structural framework.

BLADE SIGN

A ground mounted, anchored or attached to the ground by a pole. May also be known as feather flags, swoopers, tear drop banners, or other similar names.

BILLBOARD

See Off-Premises Sign.

BILLBOARD EXTENSION

Any temporary attachment or addition to the sign face area that extends beyond the dimensions of the existing sign face area.

BUILDING DIRECTORY SIGN

A directory sign that directs visitors to one (1) or more establishments located above or below the ground floor level of the building, or where the building contains a central arcade that services multiple establishments that do not have street frontage.

BULLETIN

A type of off-premises sign (billboard) that is larger than a poster and typically between 378 sq. ft. (10'6" x 36') and 672 sq. ft. (14' x 48') in area per sign face.

C. Sign Definitions - C

CANOPY SIGN

Any sign that is part of or attached to a canopy over a door, entrance, window, or outdoor service area. "Canopy" is not included in the meaning of the terms marquee or awning.

CHANGEABLE COPY SIGN

A sign or portion thereof with characters, letters, or illustrations that can be manually or electronically changed or rearranged without physically altering the face of the surface of the sign. See also ELECTRONIC SIGN.

COMMERCIAL MESSAGE

See SPEECH, COMMERCIAL and NONCOMMERCIAL

COMMUNITY EVENT SIGN

Signs approved by the City Manager for City recognized events.

CONTRIBUTING RESOURCE

Any building, structure, object or site, or archaeological value for which a historic property or historic district is significant and is identified as such on the Contributing Resources Map of the Historic Preservation Plan for the historic district or historic property.

CONTRIBUTING SITE

Any site which adds to the historic, architectural, or archaeological value for which a historic property or historic district is significant and is identified as such on the Contributing Resources Map of the Historic Preservation Plan for the historic district or historic property.

CONTRIBUTING STRUCTURE

Any structure which adds to the historic, architectural, or archaeological value for which a historic property or historic district is significant.

D. Sign Definitions - D

DEVELOPMENT ENTRY SIGN

A freestanding sign on the same property as a residential subdivision, site condominium development, apartment community, group living facility, manufactured housing community, or other similar development, that contains eight (8) or more units or lots.

DIGITAL BILLBOARD

A type of off-premises sign (billboard) that incorporates an electronic changeable copy sign face.

DRIVEWAY SIGN

An on-site sign near driveways, within parking areas, or within development sites to assist with the location and flow of travel for vehicles or pedestrians.

E. Sign Definitions - E

ELECTRONIC SIGN

Electronic message boards and changeable message centers, multi-media or computer-controlled variable message signs, and similar devices.

EVENT SIGN

A sign necessary to identify or direct individuals to the location of an event or activity. See also COMMUNITY EVENT.

F. Sign Definitions - F

FREESTANDING SIGN

A sign placed on or affixed to the ground that is independent from any building or other structure, such as pylon/pole or ground signs.

G. Sign Definitions - G

GOVERNMENTAL SIGN

A sign erected, required, or permitted to be erected by a local government, county, or the state or the federal government.

GROUND SIGN

A freestanding sign resting directly on the ground, or on a base or supported by short poles, and not attached to a building or wall, the bottom of which is no more than twenty-four (24) inches above the finished grade.

H. Sign Definitions - H

HUMAN SIGN

A sign held or displayed by a person, and unattached to any permanent or temporary structure.

I. Sign Definitions - I

ILLUMINATED SIGN

Any sign lighted by, or exposed to, artificial lighting either by light on or in the sign, or directed toward the sign.

INCIDENTAL SIGN

A sign that conveys information not intended to be legible from off the site.

INTEGRAL IDENTIFIERS

Typically includes names of buildings, dates of erection, monumental citations, or commemorative tablets carved into stone, concrete or similar material or made of bronze, aluminum or other noncombustible material.

J. Sign Definitions - J

Reserved for Future Use

K. Sign Definitions - K

Reserved for Future Use

L. Sign Definitions - L

LOGO

A non-text graphic representation of a trademark, or symbol, emblem, figure, element, abbreviation, etc., uniquely designed for recognition.

M. Sign Definitions - M

MARQUEE SIGN

A sign attached to or made a part of a marquee.

MULTI-MEDIA SIGN

A sign with alternating messages accomplished by electronic projection or similar means. See CHANGEABLE COPY SIGN and ELECTRONIC SIGN.

MURAL

A work of art or architectural detail, generally directly painted on a portion of a permanent structure.

N. Sign Definitions - N

NEON TUBING

Electric discharge tubing manufactured in shapes that form letters, parts of letters, skeleton tubing other decorative elements, and filled with various inert gases. Exposed neon tubing is considered a sign if not used as architectural lighting, as described in Section 5.2.19.E.

NONCOMMERCIAL MESSAGE

See SPEECH, COMMERCIAL and NONCOMMERCIAL

NONCONFORMING SIGN

A sign lawfully erected prior to the effective date of this Chapter, or amendments thereto, and which does not currently conform to the current sign regulations.

O. Sign Definitions - O

OFFICIAL SIGN

A public notice sign or warning sign required by a valid and applicable federal, state or local law, regulation or by order of a court of competent jurisdiction, including signs for essential services, governmental purposes and utility identification.

OFF-PREMISES SIGN

A sign that may include a commercial message relating to an establishment, organization, product, service, event, entertainment, or activity which is not located, sold, offered, produced, manufactured or furnished on the property (lot) on which the sign is located. Synonymous with BILLBOARD.

ON-PREMISES SIGN

A sign with a commercial message pertaining solely to the use of the property on which it is located such as to an establishment, product, merchandise, good, service or entertainment which is located, sold, offered, produced, manufactured or furnished on that property. It does not include any sign leased, rented or used by or to advertise the products, accommodations or activities not conducted or available on the premises.

P. Sign Definitions - P

PAINTED WALL SIGN

A sign painted directly on a building or on material which is then attached to a building.

PARKING FACILITY SIGN

A sign located at the entrance to a commercial parking facility as defined in Section 7.201 of the City Code.

PENNANT

Any lightweight plastic fabric, or other material suspended from a rope, wire, or string, usually in a series, often designed to move in the wind.

PERMANENT SIGN

Any sign intended to remain in place by being securely attached or installed upon a building, structure, or the ground.

POLE SIGN

See PYLON SIGN.

PORTABLE SIGN

A sign designed to be easily relocated to a different site. This definition includes trailer mounted signs with interchangeable letters.

PORTAL SIGN

An overhead sign installed parallel to the street at a main entrance or exit to a parking lot or structure.

POSTER

A type of off-premises sign (billboard) that is typically 253 square feet (11' x 23') in area per sign face.

PROJECTING SIGN

A sign attached to a building or wall that extends outward and is perpendicular (generally at or near a ninety (90) degree angle) to the building or wall to which it is attached.

PYLON SIGN

A freestanding sign supported on a pole or poles and not attached to a building or wall. Synonymous with Pole Sign.

Q. Sign Definitions - Q

Reserved for Future Use

R. Sign Definitions - R

RACEWAY

An elongated metal enclosure used to mount individual channel lettering and to conceal related transformers and wiring.

RE-FACING

Any alteration to the face of a sign involving the replacement of materials or pans. Re-facing does not refer to replacing the entire sign structure or the removal of the sign.

RESIDENTIAL SIGN

Signs displayed on single and two-family individual lots in residential Zone Districts.

ROOF LINE

For a pitched roof, the roof line is the lower edge of the eave; for a flat roof, the roof line is the uppermost line of the roof of a building; and for an extended façade or parapet, the roof line is uppermost height of the façade or parapet.

ROOF SIGN

A sign erected or extending above the roof line of a building.

S. Sign Definitions - S

SANDWICH BOARD SIGN

See A-FRAME SIGN.

SIGN

Any name, number, symbol, identification, description, display, illustration, object, graphic, sign structure, or part thereof, whether permanent or temporary, which is affixed to, painted on, represented directly or indirectly upon, or projected onto a building, structure, lot, or other device, whether mobile or affixed to the ground, and which directs attention to any object, product, place, activity, person, institution, organization, or business.

SIGN STRUCTURE

A structure specifically intended for supporting or containing a sign; including but not limited to supports, uprights, bracing, lighting, and framework.

SIGN SURFACE/SIGN FACE

The surface intended for the display of information on the sign.

SNIPE SIGN

A sign of any size, made of any material, and attached to a tree, pole, fence or other object.

SPEECH, COMMERCIAL AND NONCOMMERCIAL

1. COMMERCIAL SPEECH. Speech by an economically motivated speaker, the purpose of which is to encourage a commercial transaction. Commercial speech may have artistic value or pertain to issues of public importance. Soliciting charitable donations is not commercial speech.
2. NONCOMMERCIAL SPEECH. All speech that does not qualify as commercial speech.

SPORTS SPONSORSHIP SIGN

An accessory sign that is within the confines of a ball field, golf course, or park owned and operated by the City of Grand Rapids, used by the public for athletic activities.

STREAMER

A ribbon-shaped or cord-like rope which may have pennants and/or banners attached and which is stretched or hung between two (2) or more supports.

SUPER SIGN

A type of off-premises sign (billboard) that exceeds 672 square feet in area per sign face and is not a freestanding sign.

T. Sign Definitions - T

TEMPORARY SIGN

A sign not permanently attached to the ground, a structure, or a building and is not supported by a permanent frame. Temporary signs include but are not limited to: banners, portable signs and any other non-permanent sign.

TEMPORARY EVENT SIGN

A sign used to direct pedestrian and vehicular traffic and identify event locations for special events.

TRAFFIC CONTROL SIGN

A sign or signal including regulatory and directional traffic control and street signs erected by a public agency in compliance with Michigan Manual of Uniform Traffic Control Devices.

U. Sign Definitions - U

UPPER LEVEL BUILDING IDENTIFICATION SIGN

A sign located above the ground floor level to identify a building, owner or principal tenant, but not including the building address (see Section 5.15.07.C.).

V. Sign Definitions - V

VINTAGE SIGN

Any sign which contributes to the historic or architectural character of a property, neighborhood or zone district and that refers to a business, residence, structure or use that is no longer in existence.

W. Sign Definitions - W

WALL SIGN

A sign painted on, or attached directly to an exterior wall, and parallel to the exterior wall of a building, extending not more than eighteen (18) inches from the wall to which it is attached.

WINDOW SIGN

Any sign affixed to or within twelve (12) inches of the interior or exterior of a window and which is intended to be seen by the public from the outside.

X. Sign Definitions - X

Reserved for Future Use

Y. Sign Definitions - Y

Reserved for Future Use

Z. Sign Definitions- Z

Reserved for Future Use

(Ord. No. 2021-22, §§ 4, 5, 7-27-21; Ord. No. 2023-37, § 4, 8-8-23)

ARTICLE 16. DEFINITIONS

Sec. 5.16.01. Rules of Construction and Organization.

A. The following words, terms and phrases, when used in this Article, shall have the meanings ascribed to them in this Chapter, except where the context clearly indicates a different meaning.

B. *Rules of Construction:* The following rules of construction apply to this Chapter:

1. The language of this Chapter shall be read literally. Regulations are no more or less stringent than stated.
2. The particular shall control the general. For terms used in this Chapter, the use of a general or similar term shall not be taken to be the same as the use of any other specific term.
3. In case of any difference of meaning or implication between the text of this Chapter and any caption or illustration, the text shall control.
4. A building or structure includes any part thereof.
5. The term "used" includes the following meanings when used in context with the following terms: arranged, designed, constructed, altered, rented, leased, sold, occupied, and intended to be occupied.
6. Unless the context clearly indicates the contrary, where a regulation involves two (2) or more items, conditions, provisions or events connected by the conjunctions "and," "or" or "either . . . or," the conjunction shall be interpreted as follows:
   a. "And" indicates that the connected items, conditions, provisions or events apply.
   b. "Or" indicates that the connected items, conditions, provisions or events may apply singly or in any combination.
   c. "Either . . . or" indicates that the connected items, conditions, provisions or events apply singly but not in combination.

7. Unless otherwise specified, a "day" as used in this Chapter shall be a calendar day. If a deadline or required date of action falls on a Saturday, Sunday, or holiday observed by the City, the deadline or required date of action shall be the next day that is not a Saturday, Sunday, or City-observed holiday.
8. Unless otherwise stated, all calculations that result in a part or fraction of a whole number shall be rounded up to the next highest whole number.
9. Any reference to Chapter, Article or Section shall mean Chapter, Article or Section of Chapter 61 of the City Code, Zoning Ordinance, unless otherwise specified.
10. Terms not defined in this Chapter shall be given their ordinary and common meaning. Where not otherwise evident, terms shall have the meaning given in the latest edition of Merriam Webster's Collegiate Dictionary.

Sec. 5.16.02. Definitions.

A. Definitions—A.

ABUTTING or ABUTS

The condition of two (2) adjoining parcels having a common property line or boundary but not including lots separated by a street or alley. See ADJACENT.

ACCESSORY STRUCTURE

A building or structure that is subordinate in use and square footage to the principal use of land or buildings, is customarily found in connection with and on the same lot as the principal use or main building. Examples are garages, carports, sheds, gazebos, large play structures and greenhouses.

ACCESSORY USE

A use on the same lot that is customarily incidental, appropriate and subordinate to the principal use of land or buildings.

ACT OF GOD

An event that directly and exclusively results from the occurrence of natural causes that could not reasonably have been prevented by the exercise of foresight or caution.

ADJACENT

The condition of where two (2) or more parcels share common property lines or where two (2) parcels are separated only by an alley, easement or street.

ADMINISTRATIVE DEPARTURE

A minor deviation from the requirements of this Chapter, as provided for in this Chapter and the individual Zone Districts, and as reviewed and approved by the Director in accordance with Section 5.12.16.

ADMINISTRATIVE MANUAL

A document maintained by the Planning Department that serves as a user's guide to this Chapter. The Administrative Manual may contain copies of application forms, fees, schedule and contact information, additional definitions, and interpretations of the intent behind the language and standards in this Chapter, but is not a part of this Chapter.

ADULT FOSTER CARE

See GROUP LIVING.

ADULT USES

See REGULATED USES.

AFFORDABLE HOUSING

Any form of group living or household living intended for low- or moderate-income persons and families with incomes at or below eighty (80) percent of area median income, adjusted for family size; and where monthly shelter costs do not exceed a designated percentage of that person's or family's income, as used by the U.S. Department of Housing and Urban Development (HUD) or the Michigan State Housing Development Authority (MSHDA).

ALLEY

See STREET, ALLEY.

ALTERATION

Any change, addition or modification in construction or type of occupancy or any change in the structural members of a building, such as walls or partitions, columns, beams or girders, the consummated act of which may be referred to in this Chapter as "altered" or "reconstructed."

AMENDMENT

A change in the wording, context or substance of this Chapter, or a change in Zone District boundaries or Neighborhood Classifications on the Official Zoning Map.

ANIMAL, DOMESTIC

A small animal of the type generally accepted as pets including, but not limited to, dogs, cats, and fish, but not including roosters, ducks, geese, pea fowl, goats, sheep, hogs or similar animals.

ANIMAL SALES, SERVICES AND DAY CARE

An establishment that includes sales, grooming or other services, or day time care of dogs, cats and similar small animals. Typical uses include pet stores, dog bathing and clipping salons and pet grooming shops but not including overnight boarding.

APPEAL

A procedure by which a decision or enforcement action from a body or individual authorized to make an administrative decision under the provisions of this Chapter is disputed and submitted to the Board of Zoning Appeals for review.

APPLICANT

The owner of property, or the representative of the owner authorized in writing, applying for development approval.

APPROVAL

A formal action by a designated approving authority approving a plan, use, design, or progress or completion of work as authorized by this Chapter.

APPROVING AUTHORITY

The body or official approving a use, design, or progress or completion of work as authorized by this Chapter. See also REQUIRED REVIEWING AUTHORITY.

ARCADE

A continuous covered space fronting on and open to a street or publicly accessible open area.

ARCHITECTURAL ELEMENTS

That portion of a building containing any architectural projection, relief, cornice, column, change of building material, or window or door opening. Also, ornamentation or decorative

features attached to or protruding from an exterior wall that add detail and/or finely-scaled features to a façade. Examples are plinths, cornices, knee braces, columns, belt courses, chimneys, bay windows and other decorative ornaments. Synonymous with Architectural Detail.

ARCHITECTURAL METAL

Metal panel systems, either coated or anodized, metal sheets with expressed seams, metal framing systems, or cut, stamped, or case ornamental metal panels, but not including ribbed or corrugated metal panel systems.

ARTICULATION

Shifts in the plane of walls, setbacks, step-backs, reveals, overhangs, and details in order to create variations in a building's façade. Variations of a building's mass through the use of deep recesses, diminishing upper floor areas, and/or projecting roof overhangs.

ARTISANAL AND CREATIVE INDUSTRY

A use conducted for the production of quality products by skilled craft persons usually involving workers who practice a trade or handicraft and produces products in limited quantities often using traditional methods involving the use of hand tools and small-scale, light mechanical equipment. This may include activities which are concerned with knowledge and information, such as advertising, architecture, art, crafts, design, fashion, film, music, performing arts, publishing, software, toys and games, TV and radio, and video games.

ASSEMBLY BUILDING

A building or structure designed and intended for use as a place of public assembly, with or without fixed seats, for entertainment, business, social, religious, educational or other purposes. Examples of assembly buildings include, but are not limited to auditoriums, cinemas, community centers, convention centers, religious institutions, social or service clubs, sports arenas, and theaters.

ATTACHED

An addition to a main building that is integrated visually, structurally and architecturally with the main building, has an attached roof with similar design to the main building, permits access between the main building and the addition either internally or under the roof, and/or shares a common wall with the main building or is connected to the principal structure by a completely enclosed space. A completely enclosed space is an area under a roof which has solid walls at least eighteen (18) inches high around its entire exterior, or which is completely screened, walled, or provided with glass from floor to ceiling, so that the enclosed interior space is completely separated from the outside space.

AUDITORIUM

An establishment designed or used for the gathering of people seated as an audience; open to the general public, with or without admission charge; and used primarily for public speaking or live entertainment.

AUTOMATED TELLER MACHINE (ATM)

An automated mechanized consumer banking device operated by a financial establishment for the convenience of its customers. ATMs may be provided as a drive-through use, outside of a financial establishment, or a walk-up use in or on a structure unrelated to the financial establishment.

AUTOMOBILE

A motor vehicle designed for passenger or light cargo transportation, and for the purposes of this Chapter include pick-up trucks, vans, motorcycles, sport utility vehicles, and similar vehicles.

AVERAGE

See MEAN AVERAGE (Arithmetic Mean) and MEDIAN AVERAGE.

AWNING

A retractable or fixed shelter projecting from and supported by the exterior wall of a building (i.e. cantilevered) and constructed with non-rigid materials on a supporting framework. See also CANOPY and MARQUEE.

B. Definitions—B.

BACK OF CURB

That portion of the back side of a street curb, typically six (6) inches from the face of the curb and where the sidewalk or tree lawn begins. The face of the curb is the point where the curb meets the street gutter line.

BALCONY

A platform that projects from the exterior wall of a building above the ground floor, which is exposed to the open air, has direct access to the interior of the building, and is not supported by posts or columns extending to the ground.

BANQUET HALL

An establishment that is used regularly for serving food or beverages to groups that have reserved the facility for banquets or meetings prior to the event; and to which the general public is not admitted; and for which no admission charge is imposed at the door.

BASE ZONE DISTRICT

The Zone District that applies to mapped areas as depicted on the Zoning Map, but not including any Overlay Zone Districts.

BASEMENT

That portion of a structure between the floor and ceiling which has more than one-half (½) its height below grade.

BED AND BREAKFAST

A private home providing accommodations to the traveling public in habitable units for compensation, limited to short-stay facilities. This use includes the provision of approved related accessory and incidental services such as eating and drinking, meeting rooms, and the sale of gifts and convenience goods, not generally available to the public.

BERM

An elongated earthen mound capable of supporting live landscaping materials typically built to separate, screen, or buffer adjacent incompatible uses, parking areas, or buildings, or other similar features.

BIKE-SHARE FACILITIES

Bicycle parking, lockers, and other improvements used in a specific program operated by public or private agencies intended to be used in a program for the common use of bicycles.

BLOCK

Land bounded by streets, not including alleys, or by a combination of streets and public land, railroad rights-of-way, water bodies, or any other barrier.

BLOCK FACE

Land abutting one side of a street and lying between the two nearest intersecting or intercepting streets, railroad rights-of-way, water bodies, or un-subdivided land.

BOARD, BOARD OF ZONING APPEALS, OR BZA

The Board of Zoning Appeals for the City.

BUFFER

Vegetative material, structures (e.g. walls, fences), berms, or any combination of these elements that are used to separate and screen incompatible uses. See also SCREEN or SCREENING.

BUILDABLE AREA

The area of the lot within the limits of the required setbacks for a main building or structure. The buildable area is the total area of a lot that can be built upon.

BUILDING

An independent structure, either temporary or permanent, having a roof supported by columns or any other support used for the enclosure of persons, animals, or property of any kind, or carrying on business activities or other uses.

1. BUILDING ELEVATION. The front, side, or rear of a structure.
2. BUILDING FAÇADE. The building elevation facing a street.
3. BUILDING FRONTAGE. The length of any side of a building which fronts on a public street, a public or private parking area, or a pedestrian walk where customer access to the building is available.
4. BUILDING HEIGHT. The maximum permitted vertical height of a building, as measured in feet or stories.
5. BUILDING LINE. The edge of any required setback line in the Zone District, and the corresponding boundaries forming the buildable area of a lot.
6. BUILDING, MAIN. A building or structure in which the primary permitted use of the lot is conducted, with such use possibly occurring in one or more buildings or structures. Synonymous with principal building or principal structure.
7. BUILDING MASS. The three-dimensional bulk of a building using: height, width, and depth.

BZA

The Board of Zoning Appeals for the City.

C. Definitions—C.

CALIPER

See TREE, MEASUREMENTS

CAMPUS

The area encompassing the grounds and buildings of a college, university, hospital or other institutional or educational use.

CANOPY

A rigid multi-sided structure covered with fabric, metal or other material and supported in whole or in part by posts embedded in the ground. Compare to AWNING and MARQUEE.

CARPORT

A roofed structure or shelter or portion of a building open on two (2) or more sides that is provided for the purpose of sheltering one (1) or more vehicles.

CEMETERY

Land used or intended to be used for the burial of human remains or storage of cremated human remains, including columbaria, crematories, mausoleums and mortuaries, when operated in conjunction with, and within the boundary of, that cemetery.

CHARACTER

Those attributes, qualities, and features that make up and distinguish a building or structure, a group of buildings or structures, or a neighborhood or a Zone District, and give it a sense of place, purpose, function, definition, and uniqueness.

CHILD CARE

A private home or facility in which minor children are received for care and supervision for periods of less than twenty-four (24) hours a day, and where the parents are not immediately available to the child.

1. CHILD CARE CENTER. A facility, other than a private home, receiving one (1) or more preschool or school age children for care and supervision.
2. CHILD CARE HOME, FAMILY. A private home in which one (1) to six (6) minor children receive care and supervision, not including the children related to an adult member of the family by blood, marriage or adoption. The term includes a home that gives care to an unrelated minor child for more than four (4) weeks during a calendar year.
3. CHILD CARE HOME, GROUP. A private home in which seven (7) to twelve (12) minor children receive care and supervision, not including the children related to an adult member of the family by blood, marriage or adoption. The term includes a home that gives care to an unrelated minor child for more than four (4) weeks during a calendar year.

CITY

City of Grand Rapids, Michigan. When "City" is capitalized, the reference is to the government of the City of Grand Rapids; when "city" is not capitalized, the reference is to a geographic designation.

CITY CODE

The current City of Grand Rapids Code of Ordinances.

CITY FORESTER

The qualified forestry official or designee, as designated by the City Manager of the City assigned to carry out duties related to trees on public and private property as provided by this Chapter and other applicable City Ordinances.

CITY COMMISSION

The City Commission for the City.

CITY OFFICIALS

City officials who are duly elected or appointed to those offices or positions and includes anyone designated by them or by any of their superiors to act in their place. Examples include City Manager, Planning Director, City Clerk, and City Attorney, but shall not include members of appointed boards or commissions.

CLEAR GLASS

Clear or lightly tinted glass in windows, doors, and display windows with a glass Visible Light Transmittance (VLT) as regulated in Section 5.2.14.A. of this Chapter. See TRANSPARENCY.

CLEAR VISION AREA

The area at the intersection of two (2) streets, whether public or private, or a street and driveway through which an unobstructed view of approaching traffic is necessary for pedestrians and drivers. See Article 8 of Chapter 51 Streets of the City Code.

CLINIC

An establishment providing medical, dental, psychiatric or surgical treatment exclusively on an out-patient basis, with no overnight stays. Clinics may provide examinations, diagnostic services and medical treatment.

COMMERCIAL USE

Any nonresidential use of a lot, building or structure as a principal use for financial gain, including but not limited to entertainment activities, offices, personal services and retail sales.

COMMERCIAL VEHICLE

A vehicle designed, maintained or used primarily for the transportation of property or passengers in furtherance of a commercial enterprise, including tow trucks and semi-trucks.

COMMISSION

See Planning Commission.

COMMON OWNERSHIP

See Ownership, Common.

COMMUNITY CENTER

A government or nonprofit facility used for recreational, social, educational, cultural, or advisory services and activities. Services may be targeted to certain populations (e.g. youth, seniors) but membership is available to the general public. Examples of services include but are not limited to: parenting classes, counseling, tax assistance, health and fitness training, senior meals, and after-school tutoring sessions; but does not include educational uses, religious institutions, , or social or service clubs, operated as a principal use.

COMMUNITY GARDEN

A neighborhood- based development with the primary purpose of providing space for members of the community to grow plants for beautification, education, recreation, community distribution or personal use. Sites are typically managed by public or civic entities, nonprofit organizations or other community-based organizations that are responsible for maintenance and operations.

COMMUNITY EVENT

A temporary outdoor use of land for the purposes of a gathering, including but not limited to a fair, festival, celebration, or fundraiser.

COMPATIBILITY

The characteristics of different uses, activities or design that allow them to be near or adjacent to each other in harmony. Characteristics may include height, scale, mass, and bulk of structures; pedestrian or vehicular traffic, circulation, access, and parking impacts; and landscaping, lighting, noise, odor, and architecture.

CONTIGUOUS

Adjoining or touching at some point.

CONVENIENCE STORE

A retail establishment with a limited sales area which may be a freestanding use or associated with another principal use.

CREMATORY

An establishment that is involved in the purification and reduction of human bodies by fire.

CRIME PREVENTION THROUGH ENVIRONMENTAL DESIGN (CPTED)

Architectural design, site design, and landscape design principles and standards intended to reduce the fear and incidence of crime, and to improve quality of life.

CRITICAL ROOT ZONE (CRZ)

See TREE PROTECTION.

D. Definitions—D.

DECK

A roofless outdoor structure built as an above-ground platform supported by posts, at least one (1) foot above average grade, which may or may not be attached to the main building or have railings or steps.

DECORATIVE

Any architectural, physical, landscape, or natural feature or other element used to enhance an architectural feature or complement an aesthetic feature of a property.

DENSITY

The gross number of dwelling units per acre of land, calculated by dividing the number of dwelling units on a site by the gross acreage of the site, including dedicated rights-of-way within a site, and that portion of existing dedicated rights-of-way adjoining a site that is between the street or alley centerline and lot lines.

DEVELOPER

Any individual, firm, corporation, association, partnership or trust involved in commencing proceedings to effect development of land.

DEVELOPMENT

The construction, reconstruction, remodeling, conversion, structural alteration, relocation, enlargement, or demolition of any structure, proportion of a structure, or sign; any change in use in land, building, or structure, or material change in the appearance of any structure; any increase in the number of dwelling units, businesses, manufacturing establishments, or offices; any mining, excavation, filling, grading, paving, or land disturbance; and any division of land.

DIRECTOR or PLANNING DIRECTOR

See Planning Director for the City, or designee.

DISPLAY WINDOW

A window integrated into the façade of a building behind which is an area intended for the display of retail goods or promotional materials that is not intended for occupancy or which does not provide direct line of sight into the habitable space beyond.

DRIP LINE

See TREE, MEASUREMENTS.

DRIVE-IN OR DRIVE-THROUGH

An establishment that by design, physical facilities, service or packaging procedures encourages or permits customers to receive services, obtain goods or be entertained while remaining in their vehicles.

DWELLING UNIT

A building or portion thereof which is used exclusively for human habitation, typically consisting of a room or a suite of rooms designed, occupied or intended for occupancy as separate living quarters, with cooking, sleeping and sanitary facilities provided within the unit for use by one (1) household, family or person only. See HOUSEHOLD LIVING.

DWELLING, LIVE-WORK

See LIVE-WORK DWELLING UNIT.

E. Definitions—E.

EASEMENT

The right to use property owned by another for access to another property or for a specific purpose, including but not limited to utility placement, stormwater drainage, or pedestrian or vehicular access.

EDUCATIONAL USE

A facility offering classes, training courses, or skill development to the public or to members of an organization. This use includes but is not limited to elementary, middle, or high schools; vocational, business, technical schools or training centers; and colleges, and universities. May or may not include residential facilities, such as dormitories, and other accessory facilities, such as cafeterias, restaurants, retail sales, and other uses specifically related to the educational use.

ELEVATION DRAWING

A vertical view drawing of the front, side or rear of a structure that describes the design, floor-to-floor dimensions, building height, window and door dimensions, and signs. See BUILDING ELEVATION.

ENCROACHMENT

The portion of a building, structure, equipment, or sign that intrudes into a required setback, right-of way or easement.

ENTERTAINMENT, LIVE

Any event performed live by one (1) or more persons, whether done for compensation and whether admission is charged, including but not limited to: Musical acts, karaoke, theatrical acts, standup comedy, plays, revues, dance, magic acts, disc jockey functions or other similar activities, but not including Regulated Uses, as defined by this Chapter.

ESSENTIAL SERVICES

1. The erection, construction, alteration or maintenance by public utilities, municipal departments or commissions, or any governmental agencies, of underground or overhead gas, electrical, steam or water transmission or distribution system, collection, communication, supply or disposal system, including poles, wires, mains, drains, sewers, pipes, conduits, cables, fire alarm boxes, police call boxes, traffic signals, hydrants, towers, electric substations, telephone exchange buildings, gas regulator stations, and other similar equipment and accessories in connection therewith, reasonably necessary for the furnishing of utility service by such public utilities, municipal departments, commissions or any governmental agencies, or for the public health, safety or welfare.
2. For the purposes of this Chapter, wireless communications towers and antennas are not considered essential services, except where a communications facility that is used for the primary purpose of providing local public safety communication services that directly transmit information for fire protection, police protection, and basic or advanced life support to the City of Grand Rapids Police and Fire Departments, as defined in a written contractual agreement approved by the City Commission and uniquely connected to the Police Department data center.

ESTABLISHED AREA

An area of existing development or lots used to determine lot, area, and building requirements.

ESTABLISHED (BLOCK)

A block that has been legally subdivided into lots of record, when considered relative to lot area and lot width.

EVENT

A non-routine happening or social activity that brings people together for entertainment, business, civil, social, religious, educational or other purposes.

F. Definitions—F.

FAA

U.S. Federal Aviation Administration

FAMILY

1. Any number of persons related by blood, marriage, adoption or guardianship, occupying a dwelling unit and living as a single nonprofit housekeeping unit; or not more than six (6) unrelated individuals eighteen (18) years of age or older living together in one (1) dwelling unit, having a relationship which is functionally equivalent to a family. The relationship must be of a permanent and distinct character, cooking as a single housekeeping unit with a demonstrable and recognizable bond characteristic of a cohesive unit.
2. The following do not qualify as a family: Any society, club, fraternity, sorority, association, lodge, organization, coterie, combine, federation, organization which is not a recognized religious order, or group of students or other individuals where the common living arrangement or basis for the establishment of the housekeeping unit is temporary and/or of resort-seasonal character in nature. The term family does not include any adult foster care facility licensed under Public Act No. 218 of 1979 (MCL 400.701 et seq.) except an adult foster care family home as defined in Section 3 of that Act (MCL 400.703).

FARMERS' MARKET

The temporary outdoor sale, for an extended period, of an array of agricultural products, handmade goods, and similar locally produced items (not including secondhand goods).

FEMA

U.S. Federal Emergency Management Agency, including any successor agency.

FENCE

A structure used to delineate a boundary or act as a barrier or means of protection, confinement or screening.

FLEX-OFFICE

A facility including office, research, laboratory, manufacturing, clean assembly, warehousing, or other related activities whose configurations and construction methods allow for easy conversion of interior and exterior space.

FLOOR AREA

1. FLOOR AREA, GROSS (GFA). The sum of the gross area of each story of a building measured from the exterior limits of the faces of the structure, or from the centerline of walls separating two (2) buildings, including all areas of a building having a height of more than seven (7) feet, as measured from the floor to the lowest point of the ceiling. Measurement of GFA does not include areas used exclusively for vehicle parking or loading and, in industrial areas, storage sheds with less than one hundred fifty (150) square feet of space, bunkers, electrical substations, smoking shelters, instrument shelters, and similar enclosures.
2. FLOOR AREA, RESIDENTIAL The area of a residential dwelling unit that is the area within the building measured from the exterior limits of the faces of the structure, but not including areas of basements, unfinished attics, attached or detached accessory structures, breezeways, or enclosed and unenclosed porches.

FOSTER CARE

See GROUP LIVING.

FRONTAGE

See BUILDING FRONTAGE or LOT FRONTAGE.

FUNERAL HOME OR MORTUARY

An establishment in which the human dead are prepared for burial or cremation, including areas used to display funeral equipment, provide gathering spaces for viewing the body, and conduct funeral services.

G. Definitions—G.

GARAGE (PRIVATE)

An outbuilding or accessory structure used primarily for the parking or storage of vehicles and equipment for the use of the occupants of the main building or structure on the lot, with no facilities for vehicle service or repair.

GARAGE SALE/YARD SALE/BASEMENT SALE

A sale of personal household goods and clothing on the same premises as a principal residential use.

GLARE

See Lighting, Glare.

GRADE

A reference plane representing the ground level adjoining a building or structure used for the purpose of regulating the height of a structure measured at the level of the ground adjacent to the structure if the finished grade is level.

1. GRADE, AVERAGE. If the ground is not entirely level, the elevation using the ground elevation on each side of the structure, measured at six (6) feet from the exterior walls of the structure.
2. GRADE, EXISTING. The elevation or surface of the ground or pavement as it exists prior to disturbance.
3. GRADE, FINISHED. The elevation or surface of the ground after all earthwork has been completed, without a berm, measured at six (6) feet from the exterior walls of the structure.

GREENBELT

A landscape area serving as an obscuring screen, noise abatement or visual enhancement between land uses or between a land use and a public right-of-way.

GREENSPACE

All natural pervious open space at grade, including land covered with soil (and usually with lawns, landscaping, or other plant materials) and water bodies, as required by this Chapter; and does not include permanent structures, sidewalks, patios, decks, or pavement of any type including gravel. Compare to OPEN SPACE and OPEN SPACE, URBAN.

GROUND COVER

Low-growing plants including grass that form a dense, extensive growth after one (1) complete growing season and tend to be used to prevent weeds and soil erosion.

GROUND FLOOR or GROUND LEVEL ESTABLISHMENT

A building or portion thereof under separate ownership, lease, or management, which fronts on and has its floor at the closest level to the street, and has a public entrance from a street.

GROUP LIVING

Residential occupancy of a dwelling unit by other than a household and providing communal facilities.

1. ADULT DAY CARE. A facility providing group care and supervision in a place other than their usual place of abode on a less than 24-hour basis to adults who may be physically or mentally disabled and open during defined hours of operation to provide various care services, supervision and social interaction for the elderly.
2. ADULT FOSTER CARE FACILITY. A facility for the care of adults over eighteen (18) years of age, as licensed and regulated by the State of Michigan. It includes facilities and foster care homes for adults who are aged, mentally ill, developmentally disabled, or physically disabled who require supervision on an ongoing basis but who do not require continuous nursing care. It does not include nursing homes, assisted living facilities, hospitals, alcohol or substance abuse rehabilitation centers, or residential centers for persons released from or assigned to a correctional facility.
    a. ADULT FOSTER CARE FAMILY HOME. A private residence with the approved capacity to receive not more than six (6) adults who are provided with foster care for five (5) or more days a week and for two (2) or more consecutive weeks.

b. ADULT FOSTER CARE LARGE GROUP HOME. An adult foster care facility with the approved capacity to receive thirteen (13) to twenty (20) adults, excluding licensee and staff, to be provided with foster care.

c. ADULT FOSTER CARE SMALL GROUP HOME. An adult foster care facility with the approved capacity of not more than twelve (12) adults, excluding licensee and staff, who are provided with foster care.

3. ASSISTED LIVING FACILITY. A combination of housing, supportive services, personalized assistance or health care designed to respond to the individual needs of persons, typically the frail or elderly, who need help with activities of daily living. These facilities may include a central or private kitchen, dining, recreational or other service and support facilities, with separate bedrooms or living quarters.

4. NURSING OR CONVALESCENT HOME. A State of Michigan licensed long term facility providing accommodation and supervised medical and personal care on a twenty-four-hour basis for aged or infirm persons. A hospital is not included in this definition. A state licensed:

a. Sub-acute care facility (comprehensive inpatient care designed for a patient who has had an acute illness, injury, or exacerbation of a disease process; usually rendered either immediately after or instead of acute care hospitalization, to treat specific active or complex medical conditions or to administer any necessary technically complex medical treatments in the context of the person's underlying long-term condition);

b. Home for the aged;

c. Nursing home; or

d. Hospice facility providing twenty-four (24) hour care are included.

5. RESIDENTIAL REHABILITATION FACILITY. An adult residential care facility operated by a government agency or private nonprofit organization that provides care and supervision on a twenty-four-hour basis for the treatment of mental illness, alcohol or substance abuse, or other long term illnesses along with temporary group living accommodations. Also includes "half-way houses" for ex-prisoners making the adjustment from prison/jail to self-sufficiency.

6. ROOMING OR BOARDING HOUSE. A single-family detached dwelling which is owner-occupied and serves as the principal residence of the owner; where are occupied by individuals who are not related by blood, marriage or adoption to the owner; where two (2) or more rooms are occupied under separate rental agreements or leases; and where communal facilities (such as a kitchen or bathroom) are available to the occupants; and is not a hotel, motel or bed and breakfast.

7. SINGLE ROOM OCCUPANCY (SRO). A room in a dwelling that contains either a bathroom or kitchen, but not both, and that is designed and intended for a single person's long-term accommodation. An SRO facility is not an owner-occupied rooming/boarding house, hotel, motel or bed and breakfast.

8. TRANSITIONAL OR EMERGENCY SHELTER. A residential facility operated by a government agency or private nonprofit organization that provides temporary accommodations and on-site management for homeless persons or families, or other persons requiring interim housing arrangements.

H. Definitions—H.

HEDGE

A row of evergreen or deciduous shrubs planted close enough to form a solid barrier.

HEIGHT, BUILDING

See BUILDING HEIGHT.

HEIGHT, FENCE OR WALL

The vertical distance between finished grade and the highest point of the fence or wall to the top of the fence or wall, including posts, finials, or other supporting structures.

HEIGHT, STRUCTURE

When not a building, the vertical distance between the finished grade and the uppermost part of the structure.

HELIPORT

A landing area regularly used for landing and takeoff of helicopters, including landing pad, support buildings and equipment for refueling, parking, maintenance or repair.

HELISTOP

A landing area regularly used for landing and takeoff of helicopters, without the support services provided by a heliport, such as fueling stations, helicopter storage or other service or maintenance facilities for routine use.

HISTORIC STRUCTURE

A building or structure of historic value as designated in Chapter 68 Historic Preservation Commission of the City Code and/or designated by the county, State or Federal government as historic landmarks or structures.

HOME OCCUPATION

A business, profession, occupation or trade that is conducted within an owner-occupied principal dwelling unit for the economic gain or support of a resident of the dwelling unit and is incidental and secondary to the residential use.

HOSPITAL

A facility providing medical, psychiatric or surgical services for sick or injured persons primarily on an inpatient basis, including accessory facilities for outpatient and emergency treatment, diagnostic and testing services, laboratories, training, research and administration, and services to patients, employees or visitors.

HOUSEHOLD LIVING (DWELLING UNIT)

Residential occupancy of a dwelling unit by one (1) household, family or person. Typical uses include those listed below. Household living does not include the facilities defined under GROUP LIVING.

1. DWELLING UNIT, ACCESSORY. A secondary and clearly subordinate dwelling unit that is contained within a detached single-family or two-family dwelling, included within an accessory structure, or separate from but located on the same lot as a detached single-family or two-family dwelling. Also known as a "granny flat."
2. DWELLING UNIT, ATTACHED SINGLE-FAMILY. A single-family dwelling attached by a common vertical wall. This term includes town houses and row houses.
3. DWELLING UNIT, DETACHED SINGLE-FAMILY. A principal structure intended for occupancy by a single household, on a separate lot or parcel, and not sharing common structural elements with any other structure intended for occupation by another household.

4. DWELLING UNIT, HOME OCCUPATION. See HOME OCCUPATION.
5. DWELLING UNIT, LIVE-WORK. See LIVE-WORK UNIT.
6. DWELLING UNIT, MICRO-UNIT. A dwelling unit, included as part of a multi-unit development and located in a Mixed-Use Commercial zone district, with a total gross floor area of no more than four hundred seventy-five (475) square feet.
7. DWELLING UNIT, MULTIPLE-FAMILY OR MULTI-FAMILY. A building or lot containing three (3) or more dwelling units, each of which is totally separated from the other units, any two (2) or more of which may be provided with a common entrance or hall. Includes dwelling units on upper stories of a structure with non-residential uses on other stories.
8. DWELLING, TWO-FAMILY (DUPLEX). A building on a single lot containing two (2) dwelling units, each of which is totally separated from the other.
9. MANUFACTURED HOUSING COMMUNITY. See MANUFACTURED HOUSING (HOME) COMMUNITY

I. Definitions—I.

IMPERVIOUS SURFACE

Any hard-surfaced, man-made area that does not readily absorb or retain water, including, but not limited to, building roofs, parking and driveway areas, graveled areas, sidewalks, and paved recreational areas. Synonymous with non-pervious surface.

IMPROVEMENT

Any building, structure, place, work of art, or other object constituting a physical betterment of real property, or any part of the betterment.

INFRASTRUCTURE

Public or private structures that serve the common needs of the population, such as: potable water systems; waste water disposal systems, solid waste disposal sites or retention areas; storm drainage systems; electric, gas, telephone, cable, and other utilities; bridges; roadways; bicycle paths and trails; pedestrian sidewalks, paths and trails; and transit stops.

INSTITUTION

A building or parcel occupied by a non-profit corporation or non-profit organization for public or quasi-public activities.

INTEGRATED COMPLEX

A group of buildings contained within a single or joint development and under one (1) or more approved plans.

INTENSITY

The degree to which land is used, referring to levels of concentration or activity in uses, expressed in lot coverage, dwelling units per acre, parking needs, height, or other measurement used within this Chapter.

J. Definitions—J.

Reserved for future use.

K. Definitions—K.

KENNEL

A facility for the boarding, breeding, raising, grooming, selling, training or other animal husbandry activities for domestic animals.

L. Definitions—L.

LAND DIVISION ACT

The Land Division Act, Public Act 288 of 1967, as amended, or any successor acts.

LAND USE AND DEVELOPMENT SERVICES (LUDS)

A coordinated City program for the review, approval and monitoring of projects that involve the development or redevelopment of land.

LAND USE AND DEVELOPMENT SERVICES (LUDS) PERMIT

A LUDS permit allows for approvals of grading, drainage, landscaping, paving, erosion control, encroachments, permitted land use and similar activities.

LAND USE PLAN

The Future Land Use Map and accompanying text in the Master Plan.

LANDSCAPING

The treatment of the ground surface with live plant materials such as, but not limited to, grass, ground cover, trees, shrubs, vines and other live plant material. In addition, a landscape design may include other decorative natural materials, such as wood chips, boulders or mulch. Structural features such as fountains, pools, statues and benches shall also be considered a part of landscaping if provided in combination with live plant material.

LANDSCAPE SCREEN

A method of visually shielding or obscuring from view a screen comprised of fencing, walls, berms, or plantings of sufficient height, length, and opacity to form a visual barrier.

LEED CERTIFIED

The LEED (Leadership in Energy and Environmental Design) Green Building Rating System is a voluntary, consensus-based national standard for developing high performance, sustainable buildings.

LIGHTING

1. ACCENT LIGHTING. Back-lighted translucent panels or strip lighting affixed to any wall or roof which serves to provide visual emphasis and attract attention rather than illuminate space for human activity.
2. ARCHITECTURAL LIGHTING. Exterior lighting which primarily has an aesthetic purpose to illuminate architectural features of a building or site.
3. AVERAGE ILLUMINATION LEVELS. The overall average of all points on the surface of the illuminated area including the brightest and the dimmest points.
4. CUT-OFF FIXTURES. Cut-off fixtures control glare by directing light well below the horizon, out of the viewer's line of sight.
5. DIRECT LIGHT. Light emitted directly by a lamp, off a reflector, or through a refractor of a luminaire.
6. FIXTURE. The assembly that holds a lamp and may include an assembly housing, a mounting bracket or pole socket, a lamp holder, a ballast, a reflector or mirror, and a refractor or lens.

7. FLOODLIGHT. A light fixture designed to light a scene or object to a level greater than its surroundings. The beam of floodlights may range from narrow field angles of ten (10) degrees to wide angles of over one hundred (100) degrees.
8. FOOT-CANDLE. A measure of light falling on a given surface measured both horizontally and vertically. One (1) foot-candle is equal to the amount of light generated by one (1) candle shining on a square foot surface one (1) foot away.
9. GLARE. The condition that results from insufficiently shielded light sources or areas of excessive light within the field of view.
10. ILLUMINATING ENGINEERING SOCIETY OF NORTH AMERICA (IESNA). An association of professionals in the field of lighting and related professions.
11. LAMP. The component of a luminaire that produces the actual light including luminous tube lighting.
12. LIGHT EMITTING DIODE (LED). A semiconductor device that emits visible light when an electric current passes through it.
13. LIGHT POLLUTION. Artificial light which causes a detrimental effect on the environment, enjoyment of the night sky or causes undesirable glare or unnecessary illumination of adjacent properties or uses.
14. LIGHT SHIELD. Any attachment which interrupts and blocks the path of light emitted from a luminaire or fixture.
15. LUMINAIRE. The complete lighting system, including the lamp and the fixture.
16. LUMINAIRE, FULL CUTOFF. A luminaire that allows no direct light emissions above a horizontal plane through the luminaire's lowest light-emitting part.
17. LUMEN. A measure of light energy generated by a light source.
18. MAXIMUM TO MINIMUM ILLUMINATION RATIO. The ratio of the maximum illumination level to the minimum level.
19. MOUNTING HEIGHT. The vertical distance between the surface to be illuminated and the bottom of the light source.
20. LIGHTING, PEDESTRIAN-SCALE. Devices intended to provide outdoor lighting that are lower in height than typical street lighting and located proximate to pedestrian areas such as sidewalks, open space areas or plazas.
21. RECESSED LIGHTING. Lighting that uses a luminaire mounted above a ceiling (or behind a wall or other surface) with the opening of the luminaire level or behind the surface.
22. UNIFORMITY RATIO. The ratio of average illumination to minimum illumination.

LINER BUILDINGS

A series of smaller buildings that are part of a façade of a larger structure or as standalone perimeter structures positioned to break up the mass of the structure. Typically used in conjunction with parking structures.

LIVE-WORK DWELLING UNIT

A dwelling unit that contains limited commercial activities on the ground level of a multiple story building.

LOADING AREA

Any entrance/exit into or out of a building that is used for the loading and unloading of materials by trucks or other vehicles.

LOADING SPACE, OFF-STREET

Space provided for bulk pickups and deliveries, scaled to delivery vehicles, and not considered as part of the required off-street parking.

LODGING, EXTENDED STAY

Provision of temporary lodging services of more than thirty (30) consecutive days and less than ninety (90) consecutive days in duration.

LODGING, SHORT TERM

Provision of temporary lodging services of thirty (30) consecutive days or less in duration. The following are considered short-term lodgings:

1. ONE ROOM RENTAL. An owner-occupied dwelling in which a single room, couch, or other sleeping area is rented to no more than two adult guests overnight. The dwelling shall be the principal residence of the owner-operator and the owner-operator shall be on the premises when the rental activity is occurring. Subject to a Class B Home Occupation License.
2. BED AND BREAKFAST. An owner-occupied detached dwelling in which the owner/operator rents rooms to overnight guests where incidental food and drink may be offered only to those guests. The dwelling shall be the principal residence of the owner/operator and the owner/operator shall be on the premises when the Bed and Breakfast is active. Subject to a Class C Home Occupation License.
3. HOTEL AND MOTEL. An establishment where short-term lodging is offered for compensation, typically with a high level of guest services and may include on-site amenities such as pools, restaurants, fitness centers and similar features. Hotels and motels shall be considered five (5) or more bedrooms for the purposes of short-term lodging.

LOT

A parcel of land permitted by law to be used, occupied or intended to be occupied by one or more main buildings or structures and accessory structures, together with yards and open spaces required by this Chapter. A lot may or may not be specifically designated as such on public records. A lot may also include a condominium unit and any limited common element (as defined by Act 59 of Michigan Public Acts of 1978, as amended) under and surrounding the condominium unit, which together meet the minimum yard and area requirements of this Chapter.

1. LOT AREA. The total horizontal land area within the lot lines of the lot, not to include public or private rights-of-way.
2. LOT, CORNER
   a. A lot where the interior angle of two (2) adjacent sides at the intersection of two (2) streets is less than one hundred thirty-five (135) degrees.
   b. A lot abutting a curved street if the arc is of a smaller radius than one hundred fifty (150) feet and the tangents to the curve, at the two (2) points where the lot lines meet the curve or the straight street line extended, form an interior angle of less than one hundred thirty-five (135) degrees.
3. LOT COVERAGE. The part of the lot occupied by buildings or structures, accessory structures and impervious surfaces, expressed as a percentage of the total lot area.

4. LOT DEPTH. For an interior lot, the horizontal distance between the front and rear lot lines, measured along the midpoint between the side lot lines. For a corner lot, the horizontal distance of the longer of the two (2) dimensions between the front lot line and the side lot line.
5. LOT FRONTAGE. The horizontal distance between the side lot lines measured at the point where the side lot lines intersect with the street right-of-way. All sides of a lot that abut a street shall be considered frontage. On curvilinear streets, the arc between the side lot lines shall be considered the lot frontage.
6. LOT, INTERIOR. Any lot not a corner lot.
7. LOT LINES. The lines bounding a lot. Synonymous with Property Lines.
   a. LOT LINE, COMMON. A lot line separating one (1) lot from another lot.
   b. LOT LINE, FRONT
      i. For an interior lot, that line separating a lot from the street.
      ii. For a corner lot, those lot lines separating the lot from the street.
      iii. For individual through lots, that line separating a lot from the street which corresponds with the primary entrance of the building.
      iv. For a row of double frontage lots, all sides of the lots adjacent to streets shall be considered front yards.
   c. LOT LINE, REAR. That lot line that is parallel or approximately parallel to the front lot line.
   d. LOT LINE, SIDE. Any lot line other than the front lot line or rear lot line. A side lot line separating an interior lot from another lot is an interior side lot line.
8. LOT OF RECORD. A parcel of land, described by deed and/or subdivision plat, filed with the Kent County Register of Deeds.
9. LOT, THROUGH; DOUBLE FRONTAGE LOTS. An interior lot having frontage on two (2) more or less parallel streets as distinguished from a corner lot, or a waterfront lot that abuts a street.
10. LOT, WATERFRONT. Any lot which directly abuts and has lot frontage on a natural water body.
11. LOT WIDTH. For an interior lot, lot width is the horizontal distance between the side lot lines, measured at the required front setback or Required Building Line for the District in which it is located.

LUDS

See LAND USE AND DEVELOPMENT SERVICES.

M. Definitions—M.

MAIN BUILDING

A building in which the principal use of the lot is conducted.

MANUFACTURED HOUSE (HOME)

A structure transportable in one (1) or more sections, connected to required utilities which includes the plumbing, heating, air conditioning and electrical systems contained in the structure, built on a chassis and designed to be used as a single dwelling unit with or without permanent foundation.

MANUFACTURED HOUSING (HOME) COMMUNITY

A parcel or tract of land which is under the control of one person, group or firm upon which three (3) or more manufactured homes have been located on a continual non-recreational basis and which is offered to the public for that purpose regardless of whether a change is made therefore, together with any building, structure, enclosure, street, equipment, or facility used or intended for use incident to the occupancy of a manufactured house.

MARIHUANA, also known as MARIJUANA, also known as CANNABIS.

The following words and phrases have the meanings ascribed to them when used in this Chapter:

1. CO-LOCATION means the siting and operation of a combination of multiple facilities or facility types at a single location.
2. FACILITY means a location at which a license holder is licensed to operate under the MMFLA, MRTMA, or other applicable state law and administrative rules and regulations. For purposes of this Chapter, a facility does not include a location used by a primary caregiver to assist a qualifying patient connected to the caregiver through LARA's medical marihuana registration process in accordance with the MMMA.
3. FACILITY PLAN means the plans required to be submitted to LARA in accordance with the applicable state law and administrative rules and regulations that includes among other things diagrams, floor plans, construction details, etc.
4. GROWER means a person licensed to cultivate marihuana pursuant to MMFLA, MRTMA, or other applicable state marihuana law.
    1. Class A: A grower licensed by LARA to grow not more than one hundred (100) (recreational) or five hundred (500) (medical) marihuana plants.
    2. Class B: A grower licensed by LARA to grow not more than five hundred (500) (recreational) or one thousand (1,000) (medical) marihuana plants.
    3. Class C: A grower licensed by LARA to grow in excess of one thousand five hundred (1,500) (medical) or twelve thousand (12,000) (recreational) marihuana plants.
    4. Excess Grower: A grower licensed by LARA to grow in excess of thirteen thousand (13,000) marihuana plants.
5. INFUSED PRODUCT means a topical formulation, tincture, beverage, edible substance, or similar product containing marihuana and other ingredients and that is intended for human consumption.
6. LARA means the Department of Licensing and Regulatory Affairs, and any successor agency to the department.
7. LICENSEE means a person holding a state operating license.
8. LICENSING BOARD means the Medical Marihuana Licensing Board created by the MMFLA or other entity managed by LARA for licensing purposes.
9. MARIHUANA means all parts of the plant Cannabis sativa L., growing or not; the seeds of that plant; the resin extracted from any part of the plant; and every compound, manufacture, salt, derivative, mixture, or preparation of the plant or its seeds or resin. Marihuana does not include the mature stalks of the plant, fiber produced from the stalks, oil or cake made from the seeds of the plant, any other compound, manufacture, salt, derivative, mixture, or preparation of the mature stalks, except the resin extracted from those stalks, fiber, oil, or cake, or any sterilized seed of the plant that is incapable of germination. Marihuana does not include industrial hemp grown or cultivated, or both, for research purposes under the industrial hemp research act.

10. MICROBUSINESS means a person licensed to cultivate not more than one hundred fifty (150) marihuana plants; process and package marihuana; and sell or otherwise transfer marihuana to individuals who are 21 years of age or older or to a marihuana safety compliance facility, but not to other marihuana establishments.
11. MMMA means the Michigan Medical Marihuana Act, 2008 IL 1, as amended MCL 333.26424 et seq.
12. MMFLA means the Michigan Medical Marihuana Facilities Licensing Act, 2016 P.A. 281, as amended, MCL 333.27102 et seq.
13. MMFLA RULES means rules, including emergency rules, promulgated by LARA to implement the MMFLA.
14. MEDICAL USE OF MARIHUANA. The acquisition, possession, cultivation, manufacture, extraction, use, internal possession, delivery, transfer, or transportation of marihuana, marihuana-infused products, or paraphernalia relating to the administration of marihuana to treat or alleviate a registered qualifying patient's debilitating medical condition or symptoms associated with the debilitating medical condition, as defined under the MMMA.
15. MRTMA means the Michigan Regulation and Taxation of Marihuana Act, 2018 IL 1, as amended.
16. PREQUALIFICATION STEP means the portion of the application for a state operating license pertaining to the applicant's financial background and the criminal history of the applicant and other associated persons.
17. PROCESSOR means a licensee that is a commercial entity located in this state that purchases marihuana from a grower and that extracts resin from the marihuana or creates a marihuana-infused product for sale and transfer in packaged form to a provisioning center or another processor.
18. PROVISIONING CENTER means a licensee that is a commercial entity located in this state that purchases marihuana from a grower or processor and sells, supplies, or provides medical marihuana to registered qualifying patients, directly or through the patients' registered primary caregivers. Provisioning center includes a property where marihuana is sold to registered qualifying patients or registered primary caregivers.
19. RECREATIONAL USE OF MARIHUANA means the acquisition, possession, cultivation, manufacture, extraction, use, internal possession, delivery, transfer, or transportation of marihuana, marihuana-infused products, or paraphernalia relating to the administration of marihuana for recreational purposes, as defined by State law.
20. REGISTRATION FEE is the same as a license fee.
21. REHABILITATION FACILITY means a facility as licensed by LARA as a substance abuse disorder program for the purposes of determining separation distances only.
22. SAFETY COMPLIANCE FACILITY means a licensee authorized to test marihuana, including certification for potency and the presence of contaminants.
23. SECURE TRANSPORTER means a licensee that is a commercial entity located in this state that stores marihuana and transports marihuana between marihuana facilities for a fee.
24. STACKED GROWER LICENSE means more than one (1) state operating license issued to a single licensee to operate as a Class C grower as specified in each license at a facility.

25. STATE OPERATING LICENSE or, unless the context requires a different meaning, "license" means a license that is issued under the MMFLA or other applicable state marihuana law that allows the licensee to operate as a grower, processor, secure transporter, provisioning center, safety compliance facility, or other marihuana-related business. State operating license does not include a patient or caregiver registry identification card issued under MMMA.

MARQUEE

A shelter projecting from and supported by the exterior wall of a building and constructed of rigid materials on a supporting framework. Compare to AWNING and CANOPY.

MASTER PLAN

The Master Plan for the City of Grand Rapids, including appropriate graphic and written materials regarding the physical development of the City. The term "Master Plan" includes any unit or part of the plan and any amendment to the plan or parts thereof, including any adopted Area Specific Plans.

MDEQ or DEQ

Michigan Department of Environmental Quality, including any successor agency.

MDOT

Michigan Department of Transportation, including any successor agency.

MEAN AVERAGE (ARITHMETIC MEAN)

The numerical value derived by dividing the sum of a set of numbers by the total of the numbers. (Example: 50 + 100 + 75 = 225. 225 / 3 = 75. 75 is the mean.)

MEDIAN AVERAGE

The numerical value of an ordered set of values below and above which there is an equal number of values. If there is no middle value, median is the arithmetic average of the two (2) middle values. (Example: 40, 40, 48, 50, 60, 70, 71 = 50 is the median.)

MEZZANINE

An intermediate floor in any story occupying more than one third (⅓) of the floor area of that story.

MICHIGAN PLANNING ENABLING ACT or PLANNING ACT

Act 33 of 2008, as amended, or any successor acts.

MICHIGAN ZONING ENABLING ACT OR ZONING ACT

Public Act 110 of 2006, as amended, or any successor acts.

MID-BLOCK PATHWAY

A paved pathway dedicated to pedestrians and separated from vehicles that extend entirely through a block from a street to a parallel street or alley.

MID-BUILDING PATHWAY

A pathway, dedicated to pedestrians, intended to provide safe, well-lit, and convenient access through buildings from the public sidewalk to the rear or side of a building. Mid-building pathways may coincide with mid-block pathways.

MIXED-USE

The development of a lot, tract or parcel of land, or building(s) with two (2) or more primary land use components, such as residential and commercial uses, that are grouped into a visually compatible and functional land use arrangement. Mixed-uses may be vertically or horizontally integrated within a building or development site.

MLCC or LCC

Michigan Liquor Control Commission, including any successor agency.

MOBILE FOOD VENDING

Serving or offering for sale food and/or beverages from a cart, stand, trailer, wagon, vehicle, or any other similar temporary or moveable unit.

MOTORCYCLE CLUB

A building, room or other facility which is used as a meeting or gathering place for five (5) or more motorcyclists along with their motorcycles.

MUNICIPALITY

The City of Grand Rapids.

N. Definitions—N.

NATIVE VEGETATION, TREES, OR LANDSCAPE

Plant species that are native to southwestern Michigan and characteristic of a pre-settlement landscape.

NEIGHBORHOOD CLASSIFICATION

One of three (3) areas within the city that share similar development characteristics, as established in the Master Plan and Pattern Workbook, including: Traditional Neighborhood, Mid-20th Century Neighborhood, and Modern Neighborhood, within which are individual Zone Districts, Permitted Uses, Special Land Uses, and development requirements.

NONCONFORMING, NONCONFORMITY

1. NONCONFORMING BUILDING, NONCONFORMING STRUCTURE. A building or structure, or portion thereof, lawfully existing at the effective date of this Chapter or amendments thereto, which does not conform to the provisions of this Chapter.
2. NONCONFORMING BUILDING ELEMENT. Portions of the physical parts of buildings or structures lawfully existing at the effective date of this Chapter or amendments thereto, but which no longer conform to the provisions of this Chapter. Building elements may include, but are not limited to, building materials, façades, entrances, expression lines, transparency, and other similar elements as regulated by this Chapter.
3. NONCONFORMING LOT, NONCONFORMING LOT OF RECORD. A lot with area or dimension lawfully existing at the effective date of this Chapter or amendments thereto with less than the minimum area, dimension or access requirements or other lot requirement of this Chapter.
4. NONCONFORMING SIGN. A permanently affixed sign which was legally erected, constructed, installed, placed or located on the effective date of this Chapter or amendments thereto, but which no longer conform to the sign type, height, size, area, or location requirements of this Chapter, but not including any temporary event sign, banner, or placard, including those affixed to the interior or exterior of windows.
5. NONCONFORMING SITE ELEMENT. All or portions of site related features required by this Chapter lawfully existing at the effective date of this Chapter or amendments thereto, but which no longer conform to the provisions of this Chapter. Site elements may include, but are not limited to, parking, landscaping, lighting, access, and other similar elements as regulated by this Chapter.
6. NONCONFORMING USE. A use that lawfully occupied a building or land on the effective date of this Chapter or amendments thereto, that does not conform to the use regulations of the district in which it is located.

NON-RESIDENTIAL USE

A use of a lot, structure or building by a commercial, governmental or institutional, industrial or transportation, or other use that is not suitable or intended to be used for human habitation.

O. Definitions—O.

OPEN SPACE

Land devoted to conservation or recreational purposes and/or land designated by the City to remain undeveloped. Open space may include, but is not limited to: lawns, decorative plantings, walkways, active and passive recreation areas, playgrounds, fountains, swimming pools, living plant materials, wetlands and water bodies. Open space shall not include driveways, parking lots or other surfaces designed or intended for vehicular travel.

OPEN SPACE, URBAN

Open space required for certain developments in the SD-PRD, TN-CC, TN-TCC, TN-TBA, or TOD zone districts.

OUTDOOR ACTIVITY

Any enterprise, operation or activity that occurs outside of an enclosed building or structure as part of a permissible use of a lot, including any outdoor display of materials, machinery, vehicles or other items that may or may not be for sale or rent.

OUTDOOR DISPLAY

Merchandise displayed for public viewing in any space which is not enclosed, including, but not limited to, balconies, patios, terraces, walkways, parking areas, lawns, or gardens.

OUTDOOR SEATING

An unenclosed area where seating is provided in association with a commercial use, including, but not limited to seating on balconies, patios, terraces, walkways, lawns, or gardens.

OUTDOOR STORAGE

The keeping of any equipment, goods, junk, materials, merchandise, or vehicles in the same place outside an enclosed building or structure for more than twenty-four (24) hours. This shall not include the permitted display of vehicles or equipment for sale on a sales lot.

OVERHEAD WALKWAY

A pedestrian connection between structures over a public street.

OVERLAY ZONE DISTRICT

A Zone District with regulations that apply in place of, or in addition to, those of the base Zone District.

OWNER

Any person having legal or equitable interest in a property or in real improvements upon a property, solely, jointly, by the entireties, or in common. Owner shall also mean any person who has been empowered to act on behalf of, or as agent of the owner. For the purposes of enforcement, owner shall also mean any person who has or exercises care, custody, dominion or control over any property.

OWNERSHIP, COMMON (as related to abutting nonconforming lots)

A condition in which a single owner possesses two (2) or more nonconforming lots of record or combination of lots and portions of lots of record, in existence at the time of the passage of this Chapter, or an amendment thereto.

OWNERSHIP, SINGLE

Holding record title, possession under a contract to purchase or possession under a lease by a person, firm, corporation or partnership, individually, jointly, in common or in any other manner where the property is or will be under a single or unified control.

P. Definitions—P.

PACKAGE GOODS STORE

A retail establishment licensed by the State of Michigan for the sale of beer, wine, liquor and other alcoholic beverages (also known as package goods) for consumption off the premises, where the package goods sales area comprises fifty (50) percent or more of the total sales area. Compare to CONVENIENCE STORE.

PARAPET

A low wall or railing raised above the edge of a roof.

PARCEL

See Lot.

PARKING

An area on a street, in a paved lot or in a structure used for the temporary or permanent storage of a vehicle.

1. PARKING, DEFERRED. A portion of the required off-street parking associated with a use that is not installed at the time of construction, but delayed or deferred until the additional required parking is determined to be needed.
2. PARKING DEMAND STUDY. An analysis of the total number of parking spaces required in order to accommodate the maximum number of vehicles for parking purposes by a particular use or site at any given time, including the parking requirements for all employees, occupants, clients and visitors, based on the recommendations of the Institute of Traffic Engineers (ITE).
3. PARKING LOT. A paved area dedicated to vehicular ingress and egress, off-street parking, parking aisles, internal travel ways, fire lanes, and other areas dedicated to vehicular use, but not including vehicular storage or display areas. Synonymous with parking area.
4. PARKING, OFF-SITE. An off-street parking area intended to serve one or more nonresidential use(s) provided on a different lot than the use(s) it is intended to serve.
5. PARKING, OFF-STREET. A parking lot in a structure or in the open, which has access to a public or private street and is not within the right-of-way of any public or private street or part of any off-street loading space.
6. PARKING, SHARED. An off-street parking facility shared by two (2) or more uses that are in proximity to one another, and that have different operational characteristics such that utilization of the parking facilities by one use will not generally overlap with the utilization by the other use(s).
7. PARKING SPACE. An area of definite length and width, exclusive of drives, aisles or entrances giving access thereto, used for the parking of vehicles.
8. PARKING SPACE, ACCESSIBLE. A parking space with any additional space necessary for the ingress and egress from the vehicle by a person with disabilities and any equipment needed for that purpose.
9. PARKING SPACE, ON-STREET. A parking space within the right-of-way of a public or private street.
10. PARKING STRUCTURE. A structure designed to accommodate off-street parking that is fully or partially enclosed or on the deck surface of a building. Includes the terms parking garage, deck parking, and parking ramp.

11. PARKING, TANDEM. A parking space within a group of two (2) or more parking spaces or stalls arranged one behind the other.

PARKING LOT ISLAND

A planting area within a parking lot landscaping requirements or assist in the designation of parking aisles that is contained completely within the confines of a parking lot.

PARKING LOT LANDSCAPING

Landscaped areas in and around a parking lot in specified quantities to improve the safety of pedestrian and vehicular traffic, guide traffic movement, improve the environment and improve the appearance of the parking area and site.

1. PARKING LOT LANDSCAPING, INTERIOR. Vegetative material, structures (walls and fences), berms, and associated ground cover within the interior of a parking lot or other vehicular use area for the purposes of providing visual relief and heat abatement.
2. PARKING LOT LANDSCAPING, PERIMETER. Vegetative material, structures (walls and fences), berms, and associated ground cover around the perimeter of a parking lot or other vehicular use area for the purposes of screening the parking lot from off-site views when those areas are adjacent to a street right-of-way or other development.

PARTY, RESPONSIBLE

See PERSON, RESPONSIBLE.

PARTY STORE

See CONVENIENCE STORE.

PATIO

A level, surfaced area adjacent to a main building which is not more than twelve (12) inches above average grade, and without walls or a roof.

PEDESTRIAN

A person traveling on foot under their own power. For purposes of this Chapter, the term pedestrian shall also include a wheelchair user.

PEDESTRIAN-ORIENTED DEVELOPMENT or ENVIRONMENT

Development designed with an emphasis primarily on sidewalks and pedestrian access to the site and building rather than on vehicular access and parking. In most cases, the building is built close to the sidewalk, building walls along the sidewalk include large windows, and the main entrance is oriented to the sidewalk. Synonymous with pedestrian-friendly development or environment.

PEDESTRIAN SCALE

The use of human proportioned architectural features and site design elements clearly oriented to pedestrian activity. These elements are typically smaller in scale and more proportional to the human body, rather than monumental or large scale, and include surface texture and patterns, lighting, colors, materials and architectural details.

PERMITTED USE

A use permitted by right in a Zone District, as listed in this Chapter. Compare to SPECIAL LAND USE.

PERSON

Any individual, corporation, government agency, business trust, partnership, two (2) or more persons having a joint interest, or any other legal entity.

PERSON, RESPONSIBLE

Any person related to the use or development of the land, including participating, assisting, directing, creating, causing, or maintaining a condition that results in a violation of this Chapter; The responsible person may include an: architect, engineer, contractor, developer, agency, property owner, land owner, tenant or occupant, or any other person who has control over, or responsibility for, the property. Synonymous with responsible party.

PERVIOUS SURFACE

Area maintained in its natural condition, or covered by a material that permits infiltration or percolation of water into the ground.

PLACEMAKING

The process and features that serve to create and identify specific and memorable qualities of a location, including placemaking elements such as landscape, pedestrian amenities, unique architecture, places of historic significance, and other similar features that together create a unique sense of place for the viewer.

PLANNING ACT

The Michigan Planning Enabling Act, Public Act 33 of 2008, as amended, or any successor acts.

PLANNING COMMISSION or COMMISSION

The Planning Commission for the City.

PLANNING DEPARTMENT

The Planning Department for the City.

PLANNING DIRECTOR or DIRECTOR

The Planning Director for the City, or his or her designee.

PLANTING

A tree, vine or shrub placed on or in the ground.

PLAYGROUND

An any outdoor facility intended for recreation, open to the public, and with any portion thereof containing apparatus intended for the recreation of children.

PLAZA

A publicly- or privately-owned square or similar open area intended as a gathering space that is typically paved and includes pedestrian elements such as benches, seating, fountains, landscaping and public art.

PLINTH

A continuous, usually projecting course of stone or brick forming the base or foundation of a wall.

PORCH

1. ENCLOSED PORCH. A horizontal surface consisting of a deck, slab or other similar construction attached to a main building and designed for outdoor seating or as a means of entry to the building. A porch covered by a roof and enclosed by walls or windows.
2. OPEN PORCH. An unenclosed horizontal surface consisting of a deck, slab or other similar construction attached to a main building and designed for outdoor seating or as a means of entry to the building. A porch covered by a roof and open on the sides that does not abut the building, including porches with railings, knee walls and screens.

PORTABLE COMMERCIAL SHIPPING CONTAINER

A container used for the temporary storage and/or transportation of property for any commercial purpose.

PORTABLE RESIDENTIAL STORAGE CONTAINER

A container used for the temporary storage and/or transportation of personal property. Synonymous with temporary storage container.

PRIMARY ENTRANCE

The doorway into a building that faces a public street and is of greatest importance relative to other building entrances. The primary entrance is often the doorway facing the street on which the building is addressed.

PRINCIPAL RESIDENCE

Principal residence shall have the same definition as that phrase is defined in the General Property Tax Act, MCL 211.1 et seq.

PRINCIPAL USE

The primary use or activity taking place on a lot or in a building or structure, but not including any accessory uses occurring on the same lot.

PUBLIC ASSEMBLY FACILITY

A building or other facility where congregations of people regularly attend to participate in or hold meetings, workshops, lectures, civic activities, religious services, and other similar activities.

PUBLIC FACILITY OR USE

A facility including but not limited to a building, lot or infrastructure owned by a governmental entity or is used to provide a governmental function, activity, service, or public benefit.

PUBLIC PARK

Land owned by, or dedicated to, the City for recreational use by the public.

Q. Definitions—Q.

QUOIN

Corner stones that anchor the edge of the building wall or decorative feature to imitate corner stones, which wrap around the corner of an elevation and join two (2) abutting walls.

R. Definitions—R.

REAR YARD

See YARD.

RECESSED ENTRANCE

A doorway that is recessed into the face of the building to ensure that the open doors do not encroach onto the sidewalk or other right-of-way, or to provide a sense of entry.

RECREATIONAL VEHICLES AND EQUIPMENT

Portable structures, machines or devices, self-propelled or towable by another vehicle, capable of moving upon the highways without special movement permits; primarily designed, constructed or modified to provide temporary living quarters or for recreational camping, or

travel use and the trailers and other devices as shall be primarily intended for the transporting of all the structures, machines, or devices. Recreational vehicles and equipment include the following:

1. TRAVEL TRAILER. A portable vehicle on a towing chassis, which is designed to be used as a temporary dwelling during travel, recreational, and vacation uses, and which may be identified by the manufacturer as a "travel trailer", which may include self-contained sanitary, water, and electrical facilities, or a "fifth wheel". May otherwise be classified as a non-motorized recreational vehicle.

2. PICKUP CAMPER. A structure designed to be mounted on a pickup or truck chassis with sufficient equipment to render it suitable for use as a temporary dwelling during the process of travel, recreational, and vacation uses. May otherwise be classified as a non-motorized recreational vehicle.

3. MOTOR HOME. A vehicle intended for temporary human habitation, sleeping, and/or eating, mounted upon a chassis with wheels and capable of being moved from place to place under its own power. Motor homes generally contain sanitary, water, and electrical facilities. This type of recreational vehicle may be otherwise classified in any of the following classes:

    a. A Class A or bus-type recreational vehicle has the luggage compartment below the living quarter.

    b. A Class B motorized recreational vehicle includes conversion vans and camper vans that may contain refrigerator as well as water and electrical facilities. Otherwise known as a van/camper.

    c. A Class C recreational vehicle is a van with the bed over the cab and is much larger than a passenger van due to the bed over the cab.

4. FOLDING TENT TRAILER. A folding structure, mounted on wheels for towing and designed for travel and vacation use.

5. BOATS AND BOAT TRAILERS. Boats, floats, rafts, canoes, plus equipment customarily used to transport them.

6. OTHER RECREATIONAL EQUIPMENT. Includes snowmobiles, jet skis, all terrain or special terrain vehicles, utility trailers, plus equipment customarily used to transport them.

REDEVELOPMENT

Any expansion, addition, renovation, or major change to an existing building, structure or aspect of development.

REGULATED USES

1. ADULT MOTION PICTURE THEATER. An establishment regularly used for presenting material distinguished or characterized by an emphasis on matter depicting, describing, or relating to "specified sexual activities" or "specified anatomical areas," as defined herein, for observation by patrons therein.

2. ADULT BOOKSTORE, ADULT NOVELTY STORE, OR ADULT VIDEO STORE. A commercial establishment which has significant or substantial portion of its inventory, or

derives a significant or substantial portion of its revenues, or maintains a significant or substantial section of its sales and display space, to the sale or rental, for any form of consideration, of any one (1) or more of the following:

a. Books, magazines, periodicals or other printed and/or electronic or digital matter, or photographs, films, motion pictures, video cassettes, compact discs, slides, or other visual representations which are characterized by their emphasis upon the exhibition or description of "specified sexual activities" or "specified anatomical areas."

b. Instruments, devices, or paraphernalia which are designed for use or marketed primarily for stimulation of human genital organs or for sadomasochistic use or abuse of themselves or others.

c. For purposes of this definition, the phrase "significant or substantial" means thirty (30) percent or more of any term modified by that phrase.

3. SPECIFIED SEXUAL ACTIVITIES

a. Human genitals in a state of sexual stimulation or arousal;

b. Acts of human masturbation, sexual intercourse or sodomy;

c. Fondling or other erotic touching of human genitals, pubic region, buttock or female breast.

4. SPECIFIED ANATOMICAL AREAS

a. Less than completely and opaquely covered:

i. Human genitals, pubic region,

ii. Buttock, and

iii. The nipple and/or areola of the female breast.

b. Human male genitals in a discernible turgid state, even if completely and opaquely covered.

5. ADULT CABARET. A nightclub, bar, juice bar, restaurant bottle club, or similar commercial establishment, with or without alcoholic beverages, which regularly features:

a. Persons who appear nude or semi-nude,

b. Live performances which are characterized by the exposure of "specified anatomical areas" or "specified sexual activities," or

c. Films, motion pictures, videocassettes, slides, electronic, digital or other photographic reproductions which are characterized by their emphasis upon the exhibition or description of "specified sexual activities" or "specified anatomical areas."

6. NUDE OR SEMI-NUDE MODEL STUDIOS. Any building, structure, premises or part thereof regularly used solely or primarily as a place which offers as its principal activity the providing of models to display any "specified anatomical areas" as defined herein for patrons for a fee or charge.

7. REGULARLY FEATURES OR REGULARLY SHOWN. A consistent and substantial course of conduct such that the films or performances exhibited on the premises constitute a significant or substantial portion of the films or performances consistently offered as a part of the ongoing business of the adult entertainment business.

8. SEXUALLY ORIENTED BUSINESS. An adult bookstore, video store, or novelty store, adult cabaret, adult motion picture theater, or a commercial establishment that regularly features the sale, rental, or exhibition for any form of consideration, of books, films, videos,

DVDs, magazines, or other visual representation of live performances which are characterized by an emphasis on the exposure of display of specified sexual activities or specified anatomical areas.

RELIGIOUS INSTITUTION

A building owned or maintained by an organized religious organization for the purpose of regular assembly for worship. Examples of religious institutions include but are not limited to: churches, synagogues, mosques, temples, shrines, pagodas, and meetinghouses.

REQUIRED BUILDING LINE (RBL)

A line to which all or part of a building is required to be built. Compare with SETBACK

REQUIRED REVIEWING AUTHORITY

The City Commission, Planning Commission, Board of Zoning Appeals, or Director. A required reviewing authority may be either a recommending body or an approving authority, as provided by this Chapter.

RESIDENTIAL CHARACTER

A building form, neighborhood, or area that is intended primarily for human habitation, and includes human-scaled detailing, pedestrian orientation, and attributes intended to encourage human activity and interaction. This may include neighborhood scale commercial or service uses that do not affect the overall residential character of a building or neighborhood.

RESIDENTIAL REHABILITATION FACILITY

See GROUP LIVING, RESIDENTIAL REHABILITATION FACILITY.

RESTAURANT

A business establishment at which food and drinks are provided to the public, primarily for on-premises consumption by seated patrons.

RESTAURANT, DRIVE-IN/DRIVE-THROUGH

A business establishment with drive-in or drive-through facilities so that patrons may be served ready-to-consume food and drinks in disposable containers, for consumption on or off the premises, and while remaining in their vehicles.

RETAINING WALL

A wall or similar device used at a grade change to hold the soil on the up-hill side of the wall from slumping, sliding, or falling, including but not limited to, segmental walls, masonry walls, poured-in-place concrete walls, boulder walls, stacked railroad ties, and pre-split rock walls.

REZONING

The process described in this Chapter for changing the designation of a parcel to a different Zone District or Neighborhood Classification.

RIGHT-OF-WAY (ROW)

An area owned or maintained by the City, Kent County, State of Michigan, federal government, public utility, railroad, or private concern for the placement of utilities or facilities for the passage of vehicles or pedestrians, including roads, streets, pedestrian walkways, utilities, or railroads.

ROOF LINE

The top edge of a roof or parapet, whichever is higher.

ROOT PROTECTION ZONE (RPZ)

S. Definitions—S.

SATELLITE DISH ANTENNA

A parabolic or dish-shaped antenna designed for the purpose of receiving radio or television signals.

SCREEN OR SCREENING

A method of visually shielding or obscuring an abutting or nearby structure or use from another by fencing, walls, berms, gates, parapets, penthouse enclosures, features of a building, or plantings of sufficient height, length, and opacity to form a visual barrier.

SEASONAL SALES

The temporary sale of goods or products associated with the season or a cultural event, such as the sale of Christmas trees, pumpkins, or seasonal produce, normally conducted by a single vendor.

SELF-STORAGE FACILITY

A building or group of buildings under single management that contain individual, compartmentalized, and controlled access stalls or lockers for the storage of, and regular access to, residential or commercial customer's goods or wares.

SERVICE AREAS, OUTDOOR

Loading and unloading spaces, trash removal and storage operations, ground level mechanical facilities, or similar site uses.

SETBACK

The minimum distance required by this Chapter, measured from the front, side or rear lot line and/or right-of way line which describes the point at which the nearest part of the applicable building, structure, or sign, measured perpendicularly to the property line and/or right-of-way line shall be places, unless otherwise permitted by this Chapter. Compare to REQUIRED BUILDING LINE.

SIDE YARD

See YARD.

SIGNS

See Sign Definitions of Section 5.15.17.

SITE CONDOMINIUM DEVELOPMENT

A development of one (1) or more condominium units on an unplatted tract of land, in which each individual lot conforms to the requirements of the zone district in which it is located.

SOCIAL OR SERVICE CLUB

A nonprofit association of persons sharing a common interest or specific purpose who gather on a regular basis for fellowship, recreation, promotional activities, charitable causes and other purposes. Examples include civic clubs, fraternal lodges, veterans' organizations, ethnic halls, and private clubs. Bona fide members are characterized by certain membership qualifications, payment of fees or dues, and a constitution and bylaws. For the purposes of this Chapter, this definition shall also include the building, room, or other facility restricted to the use of the social or service club's members and guests.

SOCIAL SERVICE FACILITY

A building used in whole or in part by a government or nonprofit organization for the provision of counseling, social or advisory services to the general public or to targeted population groups (e.g. seniors, youth, persons with mental illness), and where no residential care is provided.

SPECIAL LAND USE

A land use of a lot, building or structure listed in a Zone District in this Chapter that could have additional effects related to the health, safety, convenience, and general welfare of users of nearby properties and the community as a whole, and for which additional scrutiny is needed. Compare to PERMITTED USE.

SQUARE

A formal open space that provides safe and accessible places for the public to meet and gather. It may provide shelters, benches, landscaping, public art, plantings, and greens or other flat, level surfaces.

STACKING AREA

A portion of a development and/or parking area at least twenty (20) feet long and dedicated to the temporary storage or "stacking" of vehicles engaged in a drive-through use of the site.

STEP-BACK

A horizontal portion of a building or structure that is recessed a specified distance from the façade of the story immediately below it. Once a building façade has been stepped back, it may not extend past the step-back line on a higher story.

STOOP

An open platform or landing of stone, masonry, concrete or wood leading to an entrance to a building with minimum dimensions of four (4) feet wide by three (3) feet deep and maximum dimension of six (6) feet wide by five (5) feet deep. If railings are used or required they must be similar to the architectural character of the building. Deck railing is prohibited. If wood is used it must be stained or painted to match the buildings main or accent colors.

STORAGE BUILDING

Structures used for the storage or warehousing of goods, but not including temporary storage containers such as portable on-demand units, self-storage facilities, or tractor trailers used for storage.

STORY

That part of a building, except a mezzanine, included between the surface of one floor and the surface of the next floor, or, if there is no floor above, then the ceiling next above.

STORY, HALF

An uppermost story, lying under a sloping roof, having an area of at least two hundred (200) square feet, with a clear height of seven (7) feet.

STREET

An existing or planned public or private right-of-way that is designed, dedicated, or used principally for vehicular traffic and providing access to abutting properties. The term street includes avenue, boulevard, circle, court, cul-de-sac, drive, place, road, or any other similar term.

1. STREET, ALLEY. A dedicated public or private way affording a secondary means of access to abutting property, not intended for general traffic circulation.

2. PRIMARY AND SECONDARY STREET. Where two (2) or more streets are compared for relative rank or importance, the primary street is the street with the higher(est) vehicle traffic counts.
3. PRIVATE STREET. A street easement which is privately-owned and maintained.
4. STREET FRONTAGE. The distance that a lot line adjoins a public or private street from one (1) lot line intersecting the street to the furthest lot line intersecting the same street. See LOT FRONTAGE.
5. STREET FURNISHINGS. Outdoor amenities, including but not limited to tables, chairs, umbrellas, landscape pots, wait stations, valet stations, bicycle racks, planters, benches, bus shelters, kiosks, waste receptacles and other similar items that help to define pedestrian use areas.

STREET CLASSIFICATIONS.

As defined in the Grand Rapids Street Classification Policy, as amended, and incorporated by reference in this Chapter:

1. CITY COLLECTOR STREET. A street that provides shorter distance movements within the City, collecting traffic form Local streets and higher volume Regional and Major streets, per the Grand Rapids Street Classification Policy.
2. EXPRESSWAY. A major state and federal highway, connecting cities.
3. LOCAL/NEIGHBORHOOD STREET. A street that provides access to land uses abutting the street right-of-way, per the Grand Rapids Street Classification Policy.
4. MAJOR STREET. A street that carries traffic through the City and to adjacent parts of the region.
5. NEIGHBORHOOD COLLECTOR STREET. A street that collects traffic from Local streets and higher volume City Collector streets, per the Grand Rapids Street Classification Policy.
6. REGIONAL STREET. A street that carries traffic between Grand Rapids and other communities in the region.

STREET TYPE - VITAL STREETS

As defined in the Grand Rapids Vital Streets Plan, as amended, and incorporated by reference in this Chapter:

1. CROSSTOWN CONNECTOR STREET. A street that is critically important in the regional travel network and are generally continuous from one end of the city to another.
2. LINK RESIDENTIAL STREET. A street that serves a larger network function, providing connectivity between nearby neighborhoods or local destinations. They are most typical in areas with traditional neighborhood character and a connected grid of streets but may be in any neighborhood type.
3. MAKER STREET. A street that serves industrial corridors and are built to accommodate commercial trucks.
4. NEIGHBORHOOD BUSINESS STREET. A street that is typically located in compact areas that occupy only a segment along a longer street corridor.
5. NEIGHBORHOOD RESIDENTIAL STREET. A street that serves as an important link for pedestrians and community bicyclists and does not generally feature transit service. Truck traffic may be restricted on these streets. These streets typically have limited connectivity to the larger network

6. NETWORK RESIDENTIAL STREET. A street that serves residential corridors and are critical to the larger transportation network by efficiently and safely moving regional vehicle and non-motorized users.

7. URBAN CENTER STREET. A street that represent a wide spectrum—from the highly pedestrianized to the transit-intensive to the high vehicular demands. These streets are Grand Rapids' principal employment and entertainment streets that also support a number of residents, institutions, students, and workers.

STREET WALL

An opaque wall or building façade placed parallel to a public or private street built along the Required Building Line or setback, which aligns with other Required Building Lines, setbacks, or buildings or structures along the same street frontage.

STREETSCAPE

The various components that make up the street, both in the right-of-way and on private lot frontages including pavement, permitted signs, parking spaces, landscaping and street trees, streetlights, sidewalks, etc.

STREETSCAPE PLAN

A plan adopted by the Planning Commission which may include maps, illustrations, and written descriptions which define the minimum standards for the street environment including the space between buildings, streets, paving, signage, landscaping and trees, lights and street furniture. This includes the general standards adopted as the Downtown Streetscape Plan, and as may be amended.

STRUCTURE

Anything constructed or erected, the use of which requires permanent location on the ground or attachment to something having permanent location on the ground, and other construction or erection with special function or form. Includes the term "building."

SUBSTANTIAL PROGRESS

All necessary Land Use and Development Services (LUDS) and building permits for the first phase of the development have been secured, and construction has started.

SURETY

A cash deposit, certified check, irrevocable bank letter of credit, bond, insurance, or other form of financial obligation acceptable to the City.

T. Definitions—T.

TEMPORARY STRUCTURE

A structure of limited duration, including those for special events that comply with this Chapter and are removed upon the conclusion of the event.

THROUGH TRAFFIC

Vehicular traffic not destined for individual sites or uses within an immediate area.

TOPSOIL

The upper layer of soil, in which plants have most of their roots.

TRAFFIC IMPACT STUDY

An analysis by a qualified person of the effect of traffic generated by a proposed development or redevelopment on street capacity, operations, and public safety, and may include a parking study and access management plan.

TRAFFIC ENGINEERING DIVISION or DEPARTMENT

The Traffic Engineering Division of the City.

TRAIL

An access way, either paved or unpaved, intended to serve multiple modes of travel including walking, jogging, bicycling, or other forms of non-motorized transport.

TRAILER

Any portable structure designed for towing depending solely on wheels for support.

TRANSIT-ORIENTED DEVELOPMENT (TOD)

Mixed-use developments along transit routes normally containing a substantial residential component(s). The location, design, and mix of uses in a TOD emphasize pedestrian-oriented environments and supports public transportation.

TRANSIT

The movement of people by public conveyance in a high occupancy vehicle, including busses, carpools or vanpools, light rail, streetcars and trains.

TRANSITIONAL FEATURES

Uses or structures permitted under this Chapter, which, by their nature or level and scale of activity, act as a transition or buffer between two (2) or more potentially incompatible uses or Zone Districts.

TRANSPARENCY

The ability to see through with clarity. An opening in the building wall allowing light and views between interior and exterior. Measured as clear glass areas for buildings and as open areas for parking structures. Compare to CLEAR GLASS.

TRANSPORTATION DEMAND MANAGEMENT (TDM) MEASURES

An approved and adopted plan of actions that will be implemented to reduce traffic volume with incentives and services promoting ride sharing, transit or other alternative commute options, including flextime and staggered work hour programs that reduce rush hour congestion.

TREE (TYPE)

The leaves, stems, trunk, bark, roots, and any other portion of a woody plant typically growing as a single stem (rarely a multiple stem) in an upright form.

TREE, MEASUREMENTS

1. DRIP LINE. The soil surface delineated by the outermost branch spread of a single plant or group of plants.
2. TREE CALIPER. The diameter of a tree trunk.
3. TREE CANOPY. The layer of leaves, twigs, branches, and stems of trees that cover the ground, buildings, and other surfaces when viewed from above. Tree Canopy Cover is measured as a percent of area covered by tree canopy. The City of Grand Rapids Urban Tree Canopy Analysis Map (2015) is recognized as the determinant of tree canopy coverage for the purposes of this Ordinance.
4. TREE DIAMETER AT BREAST HEIGHT (DBH). The diameter in inches of a tree measured in inches at four and one-half (4½) feet above the existing grade.
5. TREE HEIGHT. For a deciduous or evergreen tree, height shall be measured from the top of the tree to the surrounding ground elevation or top of the ball (location where fabric containing root system meets the exposed trunk).
6. TREE SIZE. Small, medium, and large tree sizes at full maturity relative to species, as determined by Article 11, Landscaping and Green Infrastructure and the City Forester.

TREE PROTECTION

1. CRITICAL ROOT ZONE (CRZ). The area within the drip line of an existing tree that provides the minimum volume of roots necessary for tree health and stability.
2. ROOT PROTECTION ZONE (RPZ). The soil area surrounding a tree defined by a perimeter, in which excavation, compaction, and other construction-related activities shall be avoided or mitigated. The RPZ may extend beyond the tree protection zone (TPZ).
3. TREE INVENTORY PLAN. A map or plan with a list and description of trees containing descriptive and desired information, such as location, species, condition, and tree size, for all or a portion of the project area.
4. TREE, PROTECTED. Any tree having a diameter of six (6) inches DBH or larger or having an aggregate diameter of fifteen (15) inches DBH or greater.
5. TREE AND ROOT PROTECTION PLAN. A written document included in construction plans and specifications that defines the protection perimeter and details measures designed to project and prevent damage to existing trees during all phases of the project.
6. TREE PROTECTION ZONE (TPZ). The area surrounding a tree defined by a perimeter, in which excavation and other construction-related activities should be avoided.
7. TREE PROTECTION ZONE BARRIERS. Devices such as fencing, berms, or signs installed to define and limit access to tree protection zones, or soil protection layers, as appropriate to accomplish the Tree and Root Protection Plan.
8. TREE, UNHEALTHY. As determined by the City Forester, a tree demonstrating one (1) or more signs of decline, as indicated by severe insect or disease infestation, or with damage or structural defects that may include, but are not limited to: Severed or damaged roots within the critical root zone; signs of previous topping or other improper pruning

practices; evidence of decay or structural defect; cracks, wounds, or cavities within the trunk or limbs; or any other defect that cannot be corrected through standard arboricultural practices.

TRELLIS

An outdoor garden frame used to partition an area and/or as a support for vines or other climbing plants.

TWENTY-FOUR HOUR (24) OPERATIONS

1. A business operation that has the potential to negatively impact adjacent properties and the surrounding neighborhood due to the following hours of operation:
   a. Open any time between 2:00 a.m. and 5:00 a.m.; or
   b. Open for twenty (20) hours within a consecutive twenty-four (24) hour period.
2. Twenty-four (24) hour operations shall include, but not be limited to: uses involving alcohol sales or consumption, live entertainment, dance, outdoor seating, outdoor uses of any kind, food-related drive-through facilities, convenience stores, pawnbrokers, or other uses as determined by the Director.
3. Twenty-four (24) hour uses as regulated by this Chapter shall not include: medical facilities, lodging, indoor athletic facilities, alcohol sales within a twenty-five thousand (25,000) square foot or larger retail use, automated teller machines (ATMs), industrial uses within the SD-IT District, or other like uses as determined by the Director.

U. Definitions—U.

URBAN FARM

An intentional effort by an individual or a community to grow its capacity for self sufficiency through the cultivation of plants and/or animals for profit or nonprofit, with a single entity serving as the primary operator. May include indoor operations, such as greenhouses, vertical farming, hydroponic systems and aquaponic systems; outdoor operations including growing beds, growing fields, hoophouses and orchards; or operations on the roof of a principal building as a principal use or accessory use.

USE CLASSIFICATION

A designation of the use of land in one (1) of the categories noted below. Regulated Uses are covered in Article 9. See Section 5.4.04 Use Determination for Similar Uses Not Addressed.

1. RESIDENTIAL
   a. Household Living (residential dwellings). Independent residential occupancy of a dwelling unit by a household, family or person. Typical uses include single-family houses, two-family houses, and multiple family apartment buildings.
   b. Group Living (including residential care). Residential occupancy of a dwelling unit by other than a household and providing communal facilities. Typical uses include adult foster care facilities, assisted living facilities, nursing homes, and transitional shelters.
2. EDUCATIONAL, GOVERNMENT AND INSTITUTIONAL
   a. Educational Uses. Public and private schools ranging from pre-school through post-graduate study, including technical, vocational and trade schools, as well as residential facilities on or adjacent to the campus and accessory uses such as assembly and athletic facilities, museums, and libraries.

b. Government and Institutional Uses. Public and private land and facilities that serve established government functions or provide social, religious or cultural services.

3. COMMERCIAL

a. Auto-Oriented. Businesses related to the sale or rental of motor vehicles, recreational vehicles, and other forms of personal transportation; fuel stations and repair facilities; car washes; drive-in or drive-through uses; vehicle towing services or wrecking facilities; and other similar businesses.

b. Entertainment, Hospitality or Recreation. Uses related to arts and entertainment, recreation, food and drink service, lodging, and uses related to tourism. Does not include outdoor recreational fields, home occupations or Regulated Uses.

c. Office Uses. Uses primarily engaged in providing professional, medical, and financial services; administrative and business support services; and other similar uses.

d. Personal Services. Services generally involving the care of the person or person's possession, usually on an individual or small group basis and primarily conducted on the premises.

e. Recreation. A facility or area providing opportunities for physical exercise, physical training or improvement of health for the general public or members of an organization. Includes but is not limited to: theaters, bowling alleys, dance halls, game centers, gymnasiums, health clubs, exercise and fitness facilities, and climbing wall centers.

f. Retail Sales. Establishments primarily engaged in the sale of goods and materials to the general public.

4. INDUSTRIAL AND TRANSPORTATION

a. Industrial. Land and facilities involved in the manufacture or treatment of goods from raw materials, assembly or production of products, warehousing and storage of goods

b. Transportation Related Facilities. Uses related to the movement of people and goods, including transfer facilities.

c. Aeronautical. Uses related to airport operations, and customary uses associated with airports.

5. UTILITY. A use category for public and private services providing essential services such as water, electric power, and heating systems, and wireless communication facilities.

6. ACCESSORY USES. See ACCESSORY USE.

V. Definitions—V.

VARIANCE

1. DIMENSIONAL VARIANCE. An approval by the Board of Zoning Appeals (BZA) after a demonstration that a practical difficulty related to the property is present that prevents a lot, building or structure from being erected or improved in a manner that complies with the strict provisions of this Chapter.

2. USE VARIANCE. An approval by the Board of Zoning Appeals (BZA) after a demonstration that an unnecessary hardship related to the property is present that prevents a lot, building or structure from being used for any of the Permitted Uses or Special Land Uses of the Zone District.

VEHICLE

Any device by which a person or property may be transported or drawn upon a street, not including devices moved by human power or used exclusively upon stationary rails or tracks.

VEHICLE FUEL STATION

An establishment where motor vehicle fuels and related products are sold to the public and where fuels are dispensed through fuel pumps directly into the vehicles and certain accessory uses; but does not include vehicle service or repair.

VEHICLE SALES AREA, OUTDOOR

An outdoor area used for the storage, display, sale or rental of new or used motor vehicles or recreational vehicles in operable condition.

VEHICLE SALES OR RENTAL

Establishments primarily engaged in the retail sale of new and used vehicles, noncommercial trucks, motor homes, or recreational vehicles in operable condition, including incidental storage, maintenance, and servicing.

VEHICLE WRECKING, SALVAGE OR STORAGE OF INOPERABLE VEHICLES

An establishment involved in vehicle wrecking and towing services; the dismantling or disassembling of used vehicles or trailers; the storage of one (1) or more impounded, damaged, or inoperable vehicles (whether licensed or unlicensed) for a period of more than twenty-four (24) hours; or the sale or dumping of dismantled, partially dismantled, obsolete or wrecked vehicles or their parts.

VEHICLE SERVICE OR REPAIR

An establishment that services or repairs vehicles, including commercial vehicles, engines and trailers, motor homes or recreational vehicles in an entirely enclosed building or structure.

VETERINARY CLINIC

A building, or any portion of a building, used for the treatment of house pets as outpatients only and does not have interior or outdoor kennels and overnight boarding.

VETERINARY HOSPITAL

A building, or any portion of a building, used for the treatment of house pets, and may have interior or outdoor kennels and overnight boarding.

W. Definitions—W.

WAYFINDING

An organized system of signs and other identifying elements that provide visual cues to visitors to locate specified features in the community.

WRC

Michigan Water Resources Commission, including any successor agency.

WIRELESS COMMUNICATION FACILITIES

1. ANTENNA. Any outdoor apparatus designed for telephonic, radio, or television communication through the sending and/or receiving of electromagnetic waves.
2. CO-LOCATION. A communications facility used by more than one wireless communications provider.
3. HEIGHT (Tower or Related Structure). The distance measured from ground level to the highest point on the tower or other structure, even if the highest point is an antenna.

4. LATTICE TOWER. A support structure constructed of vertical metal struts and cross braces forming a triangular or square structure which often tapers from the foundation to the top.
5. MONOPOLE. A support structure constructed of a single, self-supporting hollow metal tube securely anchored to a foundation.
6. STEALTH EQUIPMENT. A wireless communications facility designed to appear as another natural or artificial object that exists in the surrounding environment or which is architecturally integrated into a building or other structure, and designed to be minimally obtrusive and to camouflage or conceal the presence of antennas or towers.
7. TELECOMMUNICATION. The technology which enables information to be exchanged through the transmission of voice, video, or data signals by means of electrical or electromagnetic systems.
8. TOWER. Any structure that is designed and constructed primarily for the purpose of supporting one or more antennas, including self-supporting lattice towers, guy towers, or monopole towers. The term includes radio and television transmission towers, microwave towers, common-carrier towers, cellular telephone towers, alternative tower structures, and the like.
9. WIRELESS COMMUNICATIONS EQUIPMENT SHELTER. The structure in which the electronic receiving and relay equipment for a wireless communications facility is housed.
10. WIRELESS COMMUNICATIONS FACILITY. A facility consisting of the equipment and structures involved in receiving communications or radio signals from a mobile radio communications source and transmitting those signals to a central switching computer which connects the mobile unit with the land-based telephone lines.
11. FACILITY AS ESSENTIAL SERVICE. A communications facility that is used for the primary purpose of providing local public safety communication services that directly transmit information for fire protection, police protection, and basic or advanced life support to the City of Grand Rapids Police and Fire Departments, as defined in a written contractual agreement approved by the City Commission and uniquely connected to the Police Department Data Center.

X. Definitions—X.—Z.

YARD

An open space that lies between the nearest property line and the principal main building or structure and which is unoccupied and unobstructed from the ground upward except as permitted by this Chapter. The term "yard" shall only be used in relation to a lot on which a main building or structure has been placed.

1. FRONT YARD. An open space extending the full width of the lot, between the front lot line and the main building.
2. REAR YARD. An open space extending the full width of the lot, between the rear lot line and the main building.
3. SIDE YARD. An open space between the main building and the side lot line, extending from the front lot line to the rear lot line.

YOUTH CENTER

A government or nonprofit facility that offers regular, supportive on-site programming or services to persons 18 years of age or younger. Said programs or services shall operate a minimum of three (3) days per week year-round. Programs and services may include, but are

not limited to social, training, cultural, artistic, athletic, recreational or advisory services and activities, and may include private youth membership organizations or clubs and facilities that serve children and youth. A youth childcare, religious, schools and parks and playgrounds.

ZONE DISTRICT

An area within a Neighborhood Classification in which certain Permitted Uses and Special Land Uses are allowed and development requirements must be met.

ZONING ACT

The Michigan Zoning Enabling Act, Public Act 110 of 2006, as amended, or any successor acts.

ZONING MAP

The official map upon which the boundaries of various zoning districts are drawn and which is part of this Chapter.

(Ord. No. 2018-32, § 12, 6-5-18; Ord. No. 2018-45, § 10, 7-24-18; Ord. No. 2018-70, § 6, 12-18-18; Ord. No. 2019-16, §§ 8, 9, 4-23-19; Ord. No. 2020-21, §§ 13, 14, 7-7-20; Ord. No. 2020-43, § 5, 9-29-20; Ord. No. 2021-03, § 9, 1-26-21; Ord. No. 2023-26, § 9, 7-11-23; Ord. No. 2024-20, §§ 24—27, 4-23-24)

Chapter 62

PLANNING COMMISSION*

Sec. 5.291. Planning Commission.
Sec. 5.292. Members.
Sec. 5.293. Commission Organization.
Sec. 5.294. Employees, Consultants.
Sec. 5.295. Master Plan.
Sec. 5.296. Adoption of Plan.
Sec. 5.297. Streets, Parks, Buildings; Approval.
Sec. 5.298. Rescinding Action; Implementing Plan.
Sec. 5.299. Promoting Plan.
Sec. 5.300. Subdivision Regulations.
Sec. 5.301. Plat Approval.
Sec. 5.302. Capital Improvements Program.

*__Editor's note—__Ord. No. 2009-06, § 1, adopted February 17, 2009, repealed Ch. 62, §§ 5.291—5.303 in their entirety. Section 2 of said ordinance adopted a new Ch. 62, §§ 5.291—5.302 to read as herein set out. Former chapter pertained to similar subject matter.

__State law reference—__Municipal Planning, MCL 125.31 et seq.

Sec. 5.291. Planning Commission.

The Planning Commission as created under and pursuant to prior law is hereby continued under the Michigan Planning Enabling Act (2008 PA 33, MCL 125.3801 et seq.). All words and terms used in this Chapter shall have the meaning set forth in that Act. Should any provisions of this Chapter be inconsistent with the provisions of the Michigan Planning Enabling Act, as amended, or any other applicable law, the provisions of that Act or law shall govern. Also, if this Chapter does not contain applicable provisions of the Michigan Planning Enabling Act, those provisions shall nevertheless apply in relevant circumstances.

Sec. 5.292. Members.

A. The Planning Commission shall consist of nine (9) members, who shall be qualified electors of the City of Grand Rapids. However, in the discretion of the Mayor and the City Commission, one member may be other than a qualified elector of the City as provided for in Section 15(4)(c) of the Michigan Planning Enabling Act (MCL 125.3815(4)(c)). Members shall be representative of important segments of the community, as required under the Michigan Planning Enabling Act, and shall be appointed by the Mayor, subject to approval by a majority vote of the City Commission elected and serving. An elected officer or employee of the City of Grand Rapids is not eligible to be a member of the Planning Commission.

B. All members of the Planning Commission shall serve as such without compensation. The term of each member shall be three (3) years and shall expire on the first Monday in January on the third year succeeding his or her appointment, or until his or her successor is appointed, whichever is later.

C. Before participating in or casting a vote on a matter on which a member may reasonably be considered to have a conflict of interest, the member shall disclose the potential conflict of interest to the Planning Commission. The member is disqualified from participating and voting on the matter if so provided by the Bylaws or by a majority vote of the remaining members of the Planning Commission. Failure of a member to disclose a potential conflict of interest as required by this subsection constitutes malfeasance in office. Conflict of interest for purposes of this subsection shall be defined by the Bylaws of the Planning Commission. In any cases of potential conflict of interest not covered by the Bylaws, a member shall consult with and follow the advice of the City Attorney or Assistant City Attorney assigned to advise the Planning Commission.

D. It shall be the duty of each member to participate in and vote on every matter coming before the Planning Commission for a vote, unless a member is absent from a meeting in which a vote is held or unless a member has a conflict of interest as provided in this Chapter or in the Bylaws. If a member misses a meeting at which one or more matters are tabled, it shall be the duty of that member to review the minutes and ask questions of staff and other members as necessary so that the member is prepared to participate in the discussion and vote on such tabled matters. Failure of a member to vote on a matter at which the member is present and a vote is held shall constitute nonfeasance in office, unless that member has a conflict of interest as provided in this Chapter or in the Bylaws, or unless the member began his or her service on the Planning Commission after a matter was heard and tabled by the Planning Commission.

E. Members may, upon written charges and after a public hearing, be removed by a majority vote of the City Commission for misfeasance, malfeasance, or nonfeasance in office.

Sec. 5.293. Commission Organization.

A. The Planning Commission shall elect its Chair from the appointed members and create and fill such other of its offices as it may determine. The term of Chair shall be one (1) year, with eligibility for reelection. The Planning Commission shall hold at least one (1) regular meeting in each month.

B. The Planning Commission shall adopt Planning Commission Bylaws to govern the organization and duties of its members, a conflict of interest policy, and rules for the transaction of

business. It shall also keep a public record of its resolutions, transactions, findings and determinations.

C. The Planning Commission shall submit an annual fiscal year report in August of each year to the City Commission concerning its operations, its membership composition, and the status of planning activities, including recommendations regarding actions by the City Commission related to planning and development.

D. The Planning Commission but not individual members shall have the right to accept and use gifts or grants for the exercise of its functions, as further described in its Bylaws. Except as provided in Section 23(3) of the Michigan Planning Enabling Act, MCL 125.3823(3), the City's procedures shall be followed in accepting and accounting for the use of such gifts or grants.

E. All City officials and employees shall upon request, furnish to the Planning Commission, within a reasonable time, such available information as it may require for its work.

F. Planning Commission members, in the performance of their function, may enter upon any land and make examinations; provided, however, that they may enter upon such land only with the permission of the owner or the owner's authorized representative,.

G. In general, the Planning Commission shall have such powers as may be necessary to fulfill its functions, promote Master Planning, and carry out the purposes of this Chapter.

Sec. 5.294. Employees, Consultants.

The City Manager may employ a Planning Director and such employees as he or she considers necessary, contract for the services of planning and other technicians, and incur other expenses, within a budget authorized by the City Commission. The appointment, promotion, demotion and removal of the Planning Director and other employees shall be subject to the same provisions of law as govern other corresponding civil employees of this City. The Planning Commission may appoint advisory committees whose members are not members of the Planning Commission. The expenditures of the Planning Commission, exclusive of gifts, shall be within the amounts appropriated for the purpose by the City Commission, which shall provide for funds, equipment and accommodations the City Commission determines is necessary for the Planning Commission's work.

Sec. 5.295. Master Plan.

A. The Planning Commission shall make and approve a Master Plan as a guide for development in the City of Grand Rapids. The Master Plan is intended to guide development that is coordinated, adjusted, harmonious, efficient and economical. The Master Plan is intended to reflect the character of the City of Grand Rapids and its suitability for particular uses, and in accordance with present and future needs, best promotes the public health, safety, morals, order, convenience, prosperity, and general welfare of its people.

B. In the preparation of a Master Plan, the Planning Commission shall do the following, as applicable:

1. Make careful and comprehensive surveys and studies of present conditions and future growth with due regard to its relation to neighboring jurisdictions.

2. Consult with representatives of adjacent local units of government in respect to their planning so that conflicts in Master Plans and zoning may be avoided.

3. Cooperate with all departments of the state and federal governments and other public agencies concerned with programs for economic, social, and physical development and seek maximum coordination of the City's programs with these agencies.

C. The Master Plan shall address land use and infrastructure issues and may project twenty (20) years or more into the future. The Master Plan shall include maps, charts and descriptive, explanatory, and other related matters and shall show the Planning Commission's recommendation for the physical development of the City of Grand Rapids.

D. A Master Plan shall also include those of the following that are considered pertinent to the future development of the City of Grand Rapids:

1. A land use plan that, at a minimum, consists of a classification and allocation of land for residences, commerce, industry, recreation, ways and grounds, public buildings, schools, soil conservation, forests, woodlots, open space, wildlife refuges, and other uses and purposes.
2. The general location, character, and extent of streets, railroads, airports, bicycle paths, pedestrian ways, bridges, waterways, and waterfront developments; sanitary sewers and water supply systems; facilities for flood prevention, drainage, pollution prevention, and maintenance of water levels; and public utilities and structures.
3. Recommendation as to the general character, extent, and layout of redevelopment or rehabilitation of blighted areas; and the removal, relocation, widening, narrowing, vacating, abandonment, change of use, or extension of streets, grounds, open spaces, buildings, utilities, or other facilities.
4. A zoning plan for various zoning districts controlling the height, area, bulk, location, and use of buildings and premises. The zoning plan shall include an explanation of how the land use categories on the future land use map relate to the districts on the zoning map.
5. Recommendations for implementing the Master Plan proposals.

Sec. 5.296. Adoption of Plan.

A. After preparing the proposed Master Plan, the Planning Commission shall submit the proposed Master Plan to the City Commission for review and comment. The process for adopting the Master Plan shall not proceed further unless the City Commission approves the distribution of the proposed Master Plan.

1. If the City Commission approves the distribution of the proposed Master Plan, copies shall be distributed to the following, per the requirements of the Michigan Planning Enabling Act, as amended.
   a. Planning Commissions of the City of East Grand Rapids, City of Kentwood, City of Walker, City of Wyoming, Grand Rapids Township, and Plainfield Township.
   b. West Michigan Regional Planning Commission.
   c. Kent County Commission.
   d. Any registered public utility or railroad company operating within the City of Grand Rapids.
2. Any of the above-cited entities may submit comments on the proposed Master Plan within sixty three (63) days after submission.

B. Following the expiration of the comment period, the Planning Commission shall hold one (1) or more public hearings on the proposed Master Plan. Notice of the public hearing(s) shall be given at least fifteen (15) days prior to the hearing by publication in the Grand Rapids Press and by mail to the entities identified in Section 5.296.A.1. This notice may be sent with the proposed Master Plan.

C. Approval of the proposed Master Plan shall be by resolution of the Planning Commission carried by a motion of affirmative votes of not less than six (6) of its members and shall refer to the maps and other material that comprise the Master Plan. Copies shall be submitted to the City Commission.

D. The City Commission shall approve or reject the proposed Master Plan. If rejected, the City Commission shall submit a statement of its objections to the proposed Master Plan. The Planning Commission shall consider the objections and revise the proposed Master Plan to address those objections. The procedures for adoption of the Master Plan shall be repeated until the City Commission approves the proposed Master Plan.

E. Upon approval by the City Commission, the Master Plan shall contain copies of the Planning Commission resolution to approve and the City

Commission resolution to approve, pursuant to the Michigan Planning Enabling Act. Copies of the adopted Master Plan shall be sent to the entities identified in Section 5.296.A.1. above.

F. At least every five (5) years, the Planning Commission shall review the Master Plan and determine whether it is necessary to amend the Master Plan or adopt a new Master Plan. This decision shall be recorded in the minutes of the relevant meeting(s) of the Planning Commission. An amendment may cover a functional area of the Master Plan or a geographic area of the City of Grand Rapids.

G. The Planning Commission may at any time adopt Area Specific Plans, considered subplans under Section 35 of the Michigan Planning Enabling Act, 2008 PA 33, MCL 125.3835, for geographic areas smaller than the entire city.

H. The adoption of Area Specific Plans and any other amendments to the approved Master Plan shall follow the procedures for Master Plan adoption pursuant to this Chapter and the Michigan Planning Enabling Act. However, pursuant to Section 35 of that Act, MCL 125.3835, approval of such a subplan by the Planning Commission shall only require five (5) affirmative votes of its members, rather than six (6) affirmative votes required to adopt a Master Plan or Master Plan amendment for the entire City.

Sec. 5.297. Streets, Parks, Buildings; Approval.

A street; square, park, playground, public way, ground or other open space; or public building or other structure shall not be constructed or authorized in an area covered by the Master Plan unless the location, character and extent of the street, public way, open space, structure, or utility have been submitted to the Planning Commission by the City Commission or other body having jurisdiction over the authorization or financing of the project and has been approved by the Planning Commission. The Planning Commission shall submit its reasons for approval or disapproval to the body having jurisdiction. If the Planning Commission disapproves, the body having jurisdiction may overrule the Planning Commission by a vote of not less than two-thirds (⅔) of its entire membership. If the Planning Commission fails to act within thirty-five (35) days after submission of the proposal to the Planning Commission, the project shall be considered to be approved by the Planning Commission.

Sec. 5.298. Rescinding Action; Implementing Plan.

If the opening, widening or extension of a street, or the acquisition or enlargement of any square, park, playground, or other open space has been approved by the Planning Commission and authorized by the City Commission, the City Commission shall not rescind its authorization unless the matter has been resubmitted to the Planning Commission and the rescission has been approved by the Planning Commission. The Planning Commission shall hold a public hearing on the matter. The Planning Commission shall submit its reasons for approval or disapproval of the rescission to the City Commission. If the Planning Commission disapproves the rescission, the City Commission may overrule the Planning Commission by a vote of not less than two-thirds (⅔) of its entire membership (5 votes). If the Planning Commission fails to act within 63 days after submission of the proposed rescission to the Planning Commission, the proposed rescission shall be considered to be approved by the Planning Commission.

Sec. 5.299. Promoting plan.

A. The Planning Commission shall have the power to promote public interest in and understanding of the Master Plan and to that end may publish and distribute copies of the Plan or of any report and may employ such other means of publicity and education as it may determine.

B. Members of the Planning Commission, when duly authorized by the Planning Commission, may attend Planning conferences, meetings of Planning institutes, or hearings upon pending Planning legislation, provided sufficient City funds are available and authorized to pay reasonable traveling expenses for such attendance.

C. The Planning Commission shall, from time to time, recommend to the appropriate public officials programs for public structures and im-

provements and for the financing thereof. It shall be part of its duties to consult with and advise public officials and agencies, public utility companies, civic educational, professional and other organizations, and with citizens with relation to protecting or carrying out the plan.

Sec. 5.300. Subdivision Regulations.

A. The Planning Commission may, on its own initiative or upon the request of the City Commission, recommend ordinance provisions governing the subdivision of land under the Land Division Act, 1967 PA 288, as amended, MCL 560.101 et seq., that address plat design, including the proper arrangement of streets in relation to other existing or planned streets and to the master plan; adequate and convenient open spaces for traffic, utilities, access of firefighting apparatus, recreation, light and air; and the avoidance of congestion of population, including minimum width and area of lots. The recommendations may also address the extent to which streets shall be graded and improved and to which water and sewer and other utility mains, piping, or other facilities shall be installed as a conditions precedent to the approval of the plat. Before recommending such regulations to the City Commission, the Planning Commission shall hold a public hearing, of which notice of the time and place shall be published in the Grand Rapids Press at least fifteen (15) days prior to the hearing date.

Sec. 5.301. Plat Approval.

A. The Planning Commission shall review and make recommendations on plats before action thereon by the City Commission under Section 112 of the Land Division Act, 1967 PA 288, as amended, MCL 560.112. Prior to taking action on a proposed plat, the Planning Commission shall hold a public hearing. A plat submitted to the Planning Commission shall contain the name and address of the proprietor or other person to whom notice of a hearing shall be sent. Not less than 15 days before the date of the hearing, notice of the date, time, and place of the hearing shall be sent to that person at that address by mail and shall be published in the Grand Rapids Press. Similar notice shall be mailed to the owners of land immediately adjoining the proposed platted land.

B. The Planning Commission shall recommend approval, approval with conditions, or disapproval of a plat within 63 days after the plat is submitted to the Planning Commission. If applicable standards under the Land Division Act, 1967 PA 288, as amended, MCL 560.101, et seq., and an ordinance or published rules governing the subdivision of land authorized under Section 105 of that Act, MCL 560.105, are met, the Planning Commission shall recommend approval of the plat. If the Planning Commission fails to act within the required period, the plat shall be considered to have been recommended for approval, and a certificate to that effect shall be issued by the Planning Commission upon request of the proprietor. However, the proprietor may waive this requirement and consent to an extension of the 63-day period. The grounds for any recommendation of disapproval of a plat shall be stated upon the records of the Planning Commission.

C. A plat approved by the City Commission and recorded under Section 172 of the Land Division Act, 1967 PA 288, MCL 560.172, shall be considered to be an amendment to the Master Plan and a part thereof. Approval of a plat by the City Commission does not constitute an acceptance by the public of any street or other open space shown upon the plat. However, the City Commission may accept any such street or open space by a statement evidencing its clear intent to do so in the resolution approving the plat or in a subsequently adopted resolution.

D. The Planning Commission may, from time to time, recommend to the City Commission amendment of Chapter 61 Zoning Ordinance to conform to the Planning Commission's recommendations for the zoning regulations of the territory comprised within approved subdivisions.

Sec. 5.302. Capital Improvements Program.

The City Commission hereby exempts the Planning Commission from the requirement of Section 65(1) of the Michigan Planning Enabling Act, 2008 PA 33, MCL 125.3865(1) to annually prepare a capital improvements program. The City Com-

mission delegates the preparation of the capital improvements program to the City Manager, subject to final approval by the City Commission.

[The next page is 1825]

Chapter 63

RESERVED*

*__Editor's note—__Ord. No. 2006-16, § 1, adopted April 11, 2006, repealed Ch. 63 in its entirety. Formerly, said chapter pertained to oil and gas wells and derived from Ord. No. 82-22, adopted May 4, 1982. See the Code Comparative Table B for a detailed analysis of repeal.

[The next page is 1831]

Chapter 64

SUBDIVISION REGULATIONS*

Article 1. General Subdivision Platting Regulations

Sec. 5.321. Title.
Sec. 5.322. Required Improvements.
Sec. 5.323. Specifications for Improvements.
Sec. 5.324. Time for Completion.
Sec. 5.325. Contracts.
Sec. 5.326. General Procedure.
Sec. 5.327. Purpose.
Sec. 5.328. Territorial Limits of this Chapter.
Sec. 5.329. Title and Definitions.

Article 2. Procedure for the Preparation and Filing of Plats

Sec. 5.330. Application.
Sec. 5.331. Preliminary Plat.
Sec. 5.332. Tentative and Final Approval of Preliminary Plat.
Sec. 5.333. Record or Final Plat.
Sec. 5.334. Additional Requirements.
Sec. 5.335. Conformity with Statutes, Code, City Plans and City Requirements.
Sec. 5.336. Streets.
Sec. 5.337. Street and Subdivision Names.
Sec. 5.338. Alleys.
Sec. 5.339. Marginal Access Streets.
Sec. 5.340. Residential Blocks.
Sec. 5.341. Lots.
Sec. 5.342. Improvements.
Sec. 5.343. Variances.
Sec. 5.344. Procedure for a Variance.
Sec. 5.345. Compliance Required.

Article 3. Land Division Regulations

Sec. 5.346. Title.
Sec. 5.347. Purpose and Scope.
Sec. 5.348. Definitions.
Sec. 5.349. Prior Approval Requirement for Land Divisions and Transfers.
Sec. 5.350. Application for Approval.
Sec. 5.351. Procedure for Review of Applications for Approval.
Sec. 5.352. Standards for Approval.
Sec. 5.353. Allowance for Approval of Other Land Divisions/Transfers.
Sec. 5.354. Consequences of Noncompliance with the Land Division/Transfer Approval Requirement.
Sec. 5.355. Penalties and enforcement.
Sec. 5.356. Severability.
Secs. 5.357—5.360. Reserved.

***Cross references—**Utilities and services, Title II; parks, Ch. 41; trees, Ch. 42; streets, Ch. 51; Sidewalks, Ch. 52; zoning, Ch. 61; historic preservation, Ch. 68; general building regulations, Ch. 131; Property Maintenance Code, Ch. 140; grading and soil erosion control, Ch. 143; flood plain construction, Ch. 144; fences, Ch. 141; nuisances, Ch. 151; fire prevention, Ch. 159.

State law reference—Subdivision control act, MCL 560.101 et seq.

ARTICLE 1. GENERAL SUBDIVISION PLATTING REGULATIONS

Sec. 5.321. Title.

Article 1 and Article 2 of this Chapter may be known and cited as the "Subdivision Platting Ordinance."
(Ord. No. 69-85, 11-18-69; Ord. No. 2006-52, § 1, 7-25-06)

Sec. 5.322. Required Improvements.

The City Commission as a condition to the approval of any proposed plat submitted for approval to it, as the governing body of the municipality, pursuant to Act 288 of the Michigan Public Acts of 1967, as amended, may require the installation and construction of all or any part of the following improvements, in the whole or any part of said plat: Curb and gutter, pavement, sidewalks, water-mains, and sanitary sewers and their laterals and services, storm water drains and drainage facilities, including on-site and off-site drainage and including adequate provision for surface and subsurface drainage, topsoil between sidewalk and curb, street trees, grading, street signs, street lights, crosswalks, and off-street parking facilities; and may include walkways or any other items normally considered public improvements.
(Ord. No. 69-85, 11-18-69)

Sec. 5.323. Specifications for Improvements.

Installation and construction of such improvements shall be performed under the direction of the City Engineer and in accordance with plans and specifications approved by him or her.
(Ord. No. 69-85, 11-18-69)

Sec. 5.324. Time for Completion.

The City Commission may specify times within which the installation and construction of such improvements shall be completed.
(Ord. No. 69-85, 11-18-69)

Sec. 5.325. Contracts.

The City Commission shall require that the proprietor of such proposed plat enter into a contract or contracts with the City concerning the installation and construction of such improvements in accordance with the State Subdivision Control Act, Act 288 of the Michigan Public Acts of 1967, as amended, and Section 5.342 of this Chapter.
(Ord. No. 69-85, 11-18-69)

Sec. 5.326. General Procedure.

All preliminary plats filed with the City Clerk pursuant to Section 5.330 hereof shall be forwarded by the City Clerk to the City Engineer and the City Planning Director for a review of the proposed layout and design and extent of public improvements for conformity to the Master Plan and the requirements of this Chapter. All preliminary and final plats shall be subject to review by the City Planning Commission prior to submission to the City Commission as hereinafter provided in this Chapter. The City Engineer and the City Planning Director may recommend additional rules and regulations pertaining to the implementation and administration of this Chapter, which regulations shall be subject to the approval of the City Commission and which regulations shall become effective upon publication in the official newspaper of the City. No person shall fail to comply with any such rules and regulations.
(Ord. No. 69-85, 11-18-69)

Sec. 5.327. Purpose.

The purpose of this Chapter is to advise and instruct anyone desiring to subdivide or plat land within the City of Grand Rapids of the requirements of the City, and to supplement the appropriate utility and special and public improvements Ordinances, Chapter 61 (Zoning), the Master Plan, and the standard requirements and specifications for public improvements of the City so as to further and promote and protect in every possible way the public health, safety and welfare of the people within the City of Grand Rapids, by providing for the orderly development of land within the City of Grand Rapids.
(Ord. No. 69-85, 11-18-69)

Sec. 5.328. Territorial Limits of this Chapter.

The provisions of this Chapter shall apply within the corporate limits of the City of Grand Rapids and those lands outside the corporate limits owned by the City of Grand Rapids and such other lands outside the corporate limits of the City where the legislative body in which such lands are located officially agrees to accept the provisions of this Chapter.
(Ord. No. 69-85, 11-18-69)

Sec. 5.329. Title and Definitions.

In the interpretation of this Chapter, the following definitions shall apply:

(1) The word "alley" as used herein shall mean a strip of land over which there is a right-of-way, public or private, on which no dwelling or other land uses front, serving as a rear entrance to one (1) or more properties.

(2) The word "block" shall mean a tract of land bounded by actual or platted streets, waterways or other definite boundaries.

(3) The word "City" shall mean the corporate City of Grand Rapids, Michigan, or any other City-owned property without said corporate limits.

(4) The words "City Engineer" shall mean the City Engineer of the City of Grand Rapids, or his or her duly authorized representatives.

(5) The word "Proprietor" shall mean the applicant or owner or owners of the land being platted or subdivided, or the sponsor or proprietor of any plat, or their agents or representatives appointed or selected to act legally in their behalf.

(6) The words "dead end street" or "cul-de-sac" shall mean a street having one (1) terminus open for public vehicular or pedestrian access and the other terminated by a vehicular turnaround.

(7) The word "easement" shall mean a grant by the property owner for the use of a strip or parcel of land by the public or by public utilities.

(8) The word "improvements" shall mean any or all of the following: Curb and gutter, pavement, sidewalks, water mains and sanitary sewers and their laterals and services, storm water drains and drainage facilities, including on-site and off-site drainage and including adequate provision for surface and subsurface drainage, topsoil between sidewalk and curb, street trees, grading, street signs, street lights, crosswalks, and off-street parking facilities; and may include walkways or any other items normally considered public improvements.

(9) The words "local street" shall mean a street, other than a major street, designated primarily to provide access to abutting properties, usually residential.

(10) The words "marginal access street" shall mean minor streets which are generally parallel to and contiguous to major arterial streets and highways.

(11) The words "Major Street" shall mean a street connecting district centers serving large volumes of through traffic, usually located outside of or bounding residential neighborhoods and so designated in the Major Street Plan.

(12) The words "Major Street Plan" shall mean that part of the Master Plan relating to the major street System of the City, which has been adopted by the Planning Commission and approved by the City Commission and is on file in the Office of the Planning Director.

(13) The words "Master Plan" shall mean that Master Plan, or any part or amendments thereof, adopted by the Planning Commission, which is on file in the Office of the Planning Director.

(14) The words "Planning Commission" shall mean the City Planning Commission of the City of Grand Rapids.

(15) The words "Planning Director" shall mean the Planning Director of the City of Grand Rapids or his or her duly authorized representative.

(16) The words "Subdivision Control Act" shall mean Act 288, Michigan Public Acts of 1967, as amended.

(17) The word "subdivided" shall have the same meaning as defined in the Subdivision Control Act.

(18) The words "substandard right-of-way" shall mean any right-of-way which has a width less than the standard width established in the Master Street Plan, or standard widths required herein.

(19) The words "location map" shall mean a map showing the location of the proposed subdivision in relation to the nearest existing streets to enable the Planning Director and the Planning Commission to properly identify said proposed subdivision with relation to existing and proposed, if known, streets, schools, parks, and other commercial sites.

(20) The word "walkway" shall mean a walk to provide pedestrian access to schools, playgrounds, or other public community facilities.

(21) The words "Chapter 61" shall mean Chapter 61 (Zoning Regulations) of this Code, as amended, or any new Zoning Ordinance which may be hereafter adopted by the City Commission of the City of Grand Rapids and shall include the Zoning Ordinances of any of the Townships or other municipalities as long as such ordinances are in effect within the City of Grand Rapids, all new ordinances relating to zoning restrictions and districts which may hereafter be adopted under the provisions of Act 207 of the Michigan Public Acts of 1921, as amended, and all past and future amendments to any of the ordinances mentioned in this Section.

(22) The word "plat" shall mean the same as defined in Section 102(a) of Act 288 of the Michigan Public Acts of 1967.

(23) The words "preliminary plat" shall mean the same as defined in Section 102(c) of Act 288 of the Michigan Public Acts of 1967.

(24) The words "pre-preliminary plat" shall mean a map submitted to the Planning Director and City Engineer for informal review in accordance with Section 5.330 of this Chapter.

(Ord. No. 69-85, 11-18-69)

ARTICLE 2. PROCEDURE FOR THE PREPARATION AND FILING OF PLATS

Sec. 5.330. Application.

An application shall be submitted in triplicate to the City Clerk by the proprietor, together with six (6) copies of the preliminary plat and such other data as may be herein required for a complete review of the preliminary plat of any proposed subdivision. The proprietor may also submit such other preliminary land Development Plans made by qualified persons as may assist the representatives of the City to visualize the type and scope of the Development Planned.

The application shall contain the following information:

(1) Identifying name for the subdivision.

(2) Legal description of the property to be subdivided.

(3) Proposed means of water supply.

(4) Proposed method of sewage disposal.

(5) Proposed method of on-site and off-site drainage.

(6) Name and address of owner of record, and evidence of ownership.

(7) Name and address of the proprietor.

(8) Name and address of the surveyor.

(9) Proposed site grading.

There shall be an examination fee of one hundred dollars ($100.00) plus one dollar ($1.00) for each lot within the proposed subdivision, plus such amounts as may be charged to the City of Grand Rapids pursuant to State statute by other governmental units in connection with the proposed subdivision, but not including twenty dollars ($20.00) recording fee which is to be collected as provided under Section 5.333(1) hereof, submitted with all preliminary plats, payable to the Treasurer of the City of Grand Rapids. No additional examination fee will be required on submittal of the final plat.

Prior to submission of the preliminary plat as above provided, the proprietor may submit a pre-preliminary plat on a topographic map to the City

Planning Director and City Engineer for review of lot size, lot orientation, street layout, street width and overall compliance with the provisions of Chapter 61 (Zoning) and the Master Plan. This review shall not constitute any approval of the proposed preliminary plat, but shall serve primarily as guidance to the prospective proprietor. The City Planning Director and City Engineer shall respond to the proprietor within fifteen (15) days of the receipt of a pre-preliminary plat. Except for the informal review of the pre-preliminary plat as provided above, no preliminary plat shall be accepted for filling by the City Clerk nor otherwise considered or reviewed until the examination fee is paid.
(Ord. No. 69-85, 11-18-69)

Sec. 5.331. Preliminary Plat.

The preliminary plat shall be drawn to a scale of not more than two hundred (200) feet to one (1) inch and may be an original drawing or reproduction, on unbacked paper. It shall show the name, location and position of the subdivision and the subdivision plan and layout in sufficient detail on a topographic map to enable a determination of whether the subdivision meets requirements for lots, streets, utilities and roads including drainage and flood plains. In addition it shall contain the following information:

(1) Identifying name for the subdivision.

(2) Legal description of the parcel.

(3) Name and address of the proprietor.

(4) Name, address and seal of the surveyor who prepared the plat.

(5) Proposed division of the land.

(6) Date, cardinal point and scale.

(7) The boundary lines, accurate in scale, of the tract to be subdivided.

(8) The location, widths and names of any existing streets which may affect the location of a proposed street, and the location of any existing easements and their purpose.

(9) The location of all drains, drainage ditches, ravines, culverts and other natural or artificial drainage facilities.

(10) The location, widths and names of proposed streets, parks, lots and walkways in the area proposed to be platted and which are proposed to be dedicated to the public use.

(11) The location of all proposed easements and their purpose.

(12) When only a portion of a tract owned by the proprietor is proposed to be subdivided, a general layout of the remaining area shall be shown if the City Planning Director and the City Engineer determine that a reasonable review cannot be made of the proposed plat without reference to the remaining unplatted area at the time of the submission of the application and preliminary plat.

(13) A location map at a scale of one (1) inch equals four hundred (400) feet (1″ = 400′) relating the proposed subdivision to the existing streets in the surrounding area.
(Ord. No. 69-85, 11-18-69)

Sec. 5.332. Tentative and Final Approval of Preliminary Plat.

Preliminary plats shall be subject to both tentative and final approval by the Planning Commission and the City Commission, as follows:

(a) *Tentative Approval of Preliminary Plat:*

1. Preliminary plats shall be reviewed by the City Engineer and the City Planning Director who shall advise the City Planning Commission and the City Commission whether the proposed plat complies with the provisions of the Subdivision Control Act, the requirements of this Chapter, other applicable provisions of the City Code, and any other published rules and regulations adopted pursuant to this Chapter. The City Engineer shall coordinate the review of preliminary plats by the other various City Departments concerned therewith, including the City Planning Department, the City Traffic Engineer, the City Fire Department, and such other Departments as the City Commission may from time to time require to review such plats, and all reports

and recommendations of such reviewing departments shall be made to the City Engineer and transmitted by him or her to the City Planning Commission and the City Commission together with his or her recommendations. The City Planning Commission shall review the proposed plat and shall forward to the City Commission its recommendations as to whether the plat should be approved or rejected, together with its reason for rejection in the event that rejection is recommended.

2. If the preliminary plat meets the requirements as set forth in Section 5.332(a)(1) hereof, the City Commission shall tentatively approve the preliminary plat and shall direct the City Clerk to note such approval upon the copy of the preliminary plat to be returned to the proprietor. Tentative approval of the preliminary plat by the City Commission shall confer upon the proprietor for a period of one (1) year from the date of such approval, approval of lot sizes, lot orientation and street layout. Such one-year period may be extended if applied for by the proprietor in writing and granted by resolution of the City Commission. The five (5) remaining copies of the preliminary plat, as tentatively approved, which are retained by the City shall be distributed as follows: one (1) copy to the City Clerk, one (1) copy to the City Planning Director, and three (3) copies to the City Engineer.
3. If the preliminary plat does not meet the requirements as set forth in Section 5.332(a)(1) hereof, the City Commission shall reject said plat and shall set forth in writing its reasons for rejection and a list of changes necessary to render such plat acceptable. A copy of such list and reasons shall be furnished to the proprietor.
4. The City Commission shall take action either tentatively approving or rejecting the preliminary plat within ninety (90) days of the date that the preliminary plat was filed with the City Clerk under Section 5.331 hereof.
5. In the event that there is some deviation from the provisions of the City Code, the preliminary plat shall then be referred by the Planning Commission to the City Commission, together with its recommendations as to whether hardship exists and whether such deviation would violate the spirit and intent of this Chapter, and the proprietor shall be so advised. The City Commission, in hardship cases, shall have the authority to allow deviations from the provisions of this Chapter in accordance with Section 5.343 of this Chapter.
6. If the preliminary plat includes any land which, according to the Master Plan of the City, is required as sites for future schools, parks, playgrounds, or major streets, the Planning Commission shall not approve the preliminary plat. The Planning Director shall, within ten (10) days from the date the preliminary plat is filed, notify the appropriate public body. The appropriate public body shall have six (6) months from the date it is notified by the Planning Director to either make an agreement to purchase or to file a condemnation suit in the appropriate court. If the proprietor and the appropriate public body enter into an agreement of sale within said six (6) months, the Preliminary Plat shall be amended in accordance with the agreement. If no such agreement of sale has been made and the appropriate public body has not filed condemnation proceedings within said six (6) months, then the Planning Commission shall approve of the preliminary plat as submitted, except as other provisions of State law and this Code may require changes therein. If, however, condemnation proceedings have been commenced in court within said six (6) months, then the Planning Commission will delay action on the approval of said preliminary plat until

the condemnation proceedings are completed.

(b) *Final Approval of Preliminary Plat.* In order to obtain final approval of a preliminary plat, the proprietor, after having obtained tentative approval of the preliminary plat by the City Commission as provided in Section 5.332(a) hereof, shall:

1. Submit a preliminary plat to all authorities required by Sections 111 to 119 of Act 288 of the Michigan Public Acts of 1967.
2. Submit to the City Clerk a list of all such authorities certifying that such list shows all authorities as required by Sections 111 to 119.
3. Submit to the City Clerk all approved copies of the preliminary plat after all of the necessary approvals have been secured.

Upon receipt of all of the necessary approved copies of the preliminary plat the City Clerk shall forward the same to the City Engineer and the City Planning Director for their review. The City Engineer and the City Planning Director shall advise the City Planning Commission and the City Commission whether such preliminary plat meets all of the conditions for approval set forth in the tentative approval of the preliminary plat by the City Commission. If all such conditions have been met, the City Commission shall grant final approval of the preliminary plat. The City Commission shall take action either granting final approval or rejecting the preliminary plat within twenty (20) days of its submission to the City Clerk. The City Commission shall instruct the City Clerk to notify the proprietor of approval or rejection in writing, and if rejected, to give reasons. All proceedings hereunder shall be noted by the City Clerk in the minutes of the meeting and shall be open for inspection. Final approval of the preliminary plat under this Section shall confer upon the proprietor for a period of two (2) years from the date of approval, the conditional right that the general terms and conditions under which preliminary approval was granted will not be changed. The two-year period may be extended if applied for by the proprietor and granted by the City Commission in writing. If such an extension is granted, the City Commission shall direct the City Clerk to send written notice of such extension to the other approving authorities as listed on the list submitted by the proprietor pursuant to Section 5.332(a)(2) hereof.

(Ord. No. 69-85, 11-18-69)

Sec. 5.333. Record or Final Plat.

(1) After obtaining final approval of the preliminary plat by the City Commission as provided in Section 5.332(b) hereof, the proprietor shall cause a survey and five (5) true plats thereof to be made by a Surveyor. Said final plat shall conform to the requirements of the Subdivision Control Act and of this Chapter. The proprietor shall submit to the City Clerk five (5) true copies of said final plat, or six (6) true copies if the proprietor requests an additional copy to be returned to him or her, together with a check in the amount of twenty dollars ($20.00) payable to the Kent County Treasurer for the filing and recording fee pursuant to Section 241(1) of Act 288 of 1967. The proprietor may, at his or her option, submit one (1) reproducible copy of the final plat in accordance with the provisions of Rule 104(4) promulgated by the Michigan Department of Treasury in lieu of the number of copies required above. Prior to submitting the final plat to the City Clerk, the proprietor shall submit the final plat to the Kent County Drain Commissioner and/or the Board of County Road Commissioners of Kent County for their approval, if such approval is required by the Subdivision Control Act. A final plat shall not be accepted by the City Clerk after the date of expiration of the preliminary plat approval and any extensions thereof, as provided under Section 5.332(b) hereof.

(2) All improvements in the development of the subdivision shall conform to the standards and requirements of the City of Grand Rapids as may be set forth in the City Code, the current Standard Construction Specifications of the City, published rules and regulations adopted hereunder or the provisions of this Chapter. Plans and specifications for public improvements provided by the

proprietor at his or her own expense, shall be prepared by a Registered Professional Civil Engineer and shall bear the countersignature of the City Engineer, or his or her duly appointed representative. Provided, however, Plans and specifications for public improvements in whole or in part to be provided by use of public funds shall be prepared by or under the direction of and subject to the approval of the City Engineer.
(Ord. No. 69-85, 11-18-69)

Sec. 5.334. Additional Requirements.

(1) Proof of title. Prior to the approval of any final plat by the City Commission, the City Commission shall require the proprietor of the proposed plat to furnish to the City an abstract of title certified to date, or at the option of the proprietor a policy of title insurance, for examination by the City Attorney in order that the City may ascertain whether the proper parties have signed the plat. The City Commission may accept, in lieu of an abstract of title, an attorney's opinion based on the abstract as to the ownership and marketability of title to the land.

(2) Approval. The City Commission shall examine the record or final plat for compliance with the preliminary plat and required changes thereof, and if the plat complies with the preliminary plat and the requirements of Section 5.335 and the improvements have been provided for to the satisfaction of the City Commission, the City Planning Commission and the City Commission shall approve the plat and shall instruct the City Clerk to certify on the plat such approval, showing the date thereof, within twenty (20) days after submission thereof to the City Clerk.

(3) Rejection. If, after examination of the record or final plat, the City Commission determines that the plat does not conform to the Subdivision Control Act, as amended, or with the provisions of this Chapter or any other provisions of the City Code, the City Commission shall reject the plat. The City Commission shall approve or reject the plat within twenty (20) days after it has been filed with the City Clerk. If a plat is rejected by the City Commission, written notice of the rejection and its reason therefor shall be given to the proprietor within such twenty-day period. The City Commission shall instruct the City Clerk to record all proceedings in the minutes of the meeting, which shall be open for inspection.

(4) After a final plat has been approved by the City Commission and certified by the City Clerk, the City Clerk shall promptly forward all copies of the plat to the Clerk of the Kent County Plat Board, together with twenty dollars ($20.00) filing and recording fee deposited by the proprietor pursuant to Section 5.333(1) hereof.

(5) The City Commission may waive the placing of any of the required monuments or markers for a reasonable time, not to exceed one (1) year, on condition that the proprietor deposits with the City Clerk cash or a certified check, or irrevocable bank letter of credit running to the City of Grand Rapids, whichever the proprietor selects, in the amount of fifty dollars ($50.00) per monument and not less than two hundred dollars ($200.00) in total, except that lot corner markers shall be at the rate of twenty dollars ($20.00) per marker. Such cash, certified check or irrevocable bank letter of credit shall be returned to the proprietor upon receipt of a certificate by a surveyor that the monuments and markers have been placed as required within the time specified. If the proprietor defaults, the City Commission shall promptly require a Surveyor to locate the monuments and markers in the ground as certified on the plat, at a cost not to exceed the amount of the security deposited and shall pay the Surveyor.
(Ord. No. 69-85, 11-18-69)

Sec. 5.335. Conformity with Statutes, Code, City Plans and City Requirements.

No subdivision or plat shall be approved unless the same is in conformance with the statutes of the State of Michigan, the City Code, the City Master Plan, and the requirements of this Chapter.
(Ord. No. 69-85, 11-18-69)

Sec. 5.336. Streets.

(1) *Major Streets.* Major Streets shall conform to the Major Street Plan.

(2) *Relation to Adjoining Street System.* Provisions shall be made for the continuation and extension of existing streets in adjoining or adjacent subdivisions unless a variation therefrom is approved by the Planning Commission.

(3) *Access to Property.* To provide adequate means for fire protection, every subdivision shall have a dedicated public right-of-way with adequate public access.

(4) *Street Intersections.* Streets shall intersect one (1) another at right angles or as nearly at right angles as conditions permit. Wherever more than two (2) streets would converge at one (1) point, an appropriate design solution must be presented.

(5) *Dead End Streets (Cul-de-sacs).* Every permanently dead end street shall have a circular terminal area with a minimum right-of-way diameter of one hundred (100) feet. Such dead end streets shall not exceed seven hundred (700) feet in length.

(6) *Streets in Relation to Railroads.* Whenever a subdivision is adjacent to a railroad right-of-way, there shall be a street which is parallel to the railroad so as to restrict the number of grade crossings.

(7) *Street Widths.* The minimum width for all local and dead end streets shall be sixty (60) feet. The width for major streets shall conform to the width designated on the Major Street Plan, but the subdivider shall only be required to dedicate at his or her expense not more than one hundred (100) feet in width of right-of-way unless the connecting street is of greater width, in which case he or she shall be required to provide the greater width.

(8) *Street Grades.* Profiles shall be required on all streets. The minimum grade shall be four-tenths (0.4) of one percent for concrete surfaces and five-tenths (0.5) of one percent for all other surfaces. The maximum grade shall be six (6) percent on major streets and seven (7) percent on local streets.

(9) *Access to Streets Across Ditches.* When a proposed street crosses a watercourse or ditch, the manner of crossing shall be subject to the approval of the City Commission.

(10) *Substandard Rights-of-Way.* Wherever there exists adjacent to the tract to be subdivided, a dedicated or platted substandard street right-of-way, additional width shall be platted to bring the street right-of-way up to the standards established in the Master Plan, provided that the subdivider shall not be required to dedicate at his or her expense more than sixty (60) feet to bring the substandard street right-of-way up to the standards established in the Master Plan.

(11) *Pavement Specifications.* The minimum width of an improved roadway shall be thirty (30) feet measured from face to face of curb. The minimum pavement thickness of an improved roadway shall be eight (8) inches of compacted gravel and two (2) inches of hot-mix bituminous concrete or equivalent.
(Ord. No. 69-85, 11-18-69)

Cross reference—Streets generally, Ch. 51.

Sec. 5.337. Street and Subdivision Names.

All proposed streets which, if extended in either direction, would align or nearly align with another already existing and named, must bear the same name. New street names shall not duplicate existing street names. Duplication of proposed subdivision names of those already existing in Kent County will not be permitted.
(Ord. No. 69-85, 11-18-69)

Cross reference—Streets, Chapter 51, Article 5, naming streets, Section 4.25.

Sec. 5.338. Alleys.

Alleys will not be permitted in residential plats.
(Ord. No. 69-85, 11-18-69)

Sec. 5.339. Marginal Access Streets.

Where a plat abuts or contains an existing or proposed major thoroughfare or arterial street, the City Commission may require marginal access streets adjacent to such major thoroughfares where such lots front on such major streets.
(Ord. No. 69-85, 11-18-69)

Sec. 5.340. Residential Blocks.

Residential blocks shall be no more than one thousand three hundred twenty (1,320) feet long, nor less than two hundred (200) feet in width.

Where blocks are more than eight hundred (800) feet long, a ten-foot pedestrian sidewalk easement may be required by the City Commission upon recommendation by the Planning Commission, for access to adjacent schools, streets, parks or other public facilities.
(Ord. No. 69-85, 11-18-69)

Sec. 5.341. Lots.

(1) *Size of Lots.* Lots classified as residential shall conform in width and area to Chapter 61 (Zoning Regulations).

(2) *Lots with Double Frontage.* No double frontage lots shall be permitted except where essential to provide separation of residential development from traffic arteries or to overcome disadvantages due to topography.

(3) *Side Lot Lines.* Side lot lines, where practicable, shall be approximately at right angles to the right-of-way of the street on which the lot abuts.

(4) *Corner Lots.* Corner lots shall have extra width sufficient to permit compliance with the setback requirements of Chapter 61 on both rights-of-way.
(Ord. No. 69-85, 11-18-69)

Sec. 5.342. Improvements.

The proprietor of any plat shall provide for the installation and construction of such improvements as required by the City Commission, in either one (1) of several methods, as follows:

(1) *Improvements of Streets and Public Places.* By entering into a contract or contracts with the City for the installation and construction of streets and/or public places by the City at his or her own cost and expense. The City shall require of the proprietor a cash deposit, certified check, irrevocable bank letter of credit, or surety bond, whichever the proprietor elects, running to the City to insure completion within the time specified in the contract, and the performance of any contract relation with the City relative to improvement of streets and public places.

(2) *Sanitary Sewer and Water Facilities.* By entering into a contract or contracts with the City for the installation or construction of sanitary sewers and/or water facilities at his or her own cost and expense. The City shall require either a cash deposit, certified check, irrevocable bank letter of credit, or surety bond, whichever the proprietor elects, running to the City for the full cost of any required public sanitary sewer and water facilities to insure the installation of such required public sanitary sewer and water facilities, within the time specified within the contract.

(3) By filing a petition requesting that the public improvement be provided under the terms of Chapter 10 of the City Code, after which, the City shall hold a public hearing and consider the merits of the public improvement petition. Proceedings hereunder shall conform as near as practical to the provisions of Chapter 10 of the City Code; provided, however, that no assessment roll for any such improvement shall be confirmed by the City Commission until after final approval of the preliminary plat shall have been obtained by the proprietor pursuant to Section 5.332(b) hereof.

(4) *Rebates.* The City shall rebate to the proprietor, as the work progresses, amounts of any cash deposits equal to the ratio of the work completed to the entire project.

(5) *Major Streets.* In the case of improvements on major streets, the City may elect to pay all or any portion of costs in excess of the normal cost of a local residential street improvement project.
(Ord. No. 69-85, 11-18-69)

Sec. 5.343. Variances.

(1) If the proprietor can clearly demonstrate that literal enforcement of the terms of this Chapter is impractical, or will impose undue hardship in the use of his or her land because of peculiar conditions pertaining to his or her land, the City Commission, after a public hearing on the matter

at a regular or special City Commission meeting may permit such variance or variances as in its sound discretion it believes to be reasonable and within the general purposes and policy of this Chapter. Provided, that nothing herein shall be construed as to permit the City Commission to alter or vary the provisions of the State Subdivision Control Act, as amended, or any other State Statute.

(2) In making the findings required below, the City Commission shall consider, among other things, the location and condition of the proposed subdivision, the nature of the proposed variance as compared with the existing use of land in the vicinity, the number of persons to reside or work in the proposed subdivision, and the probable effect of the proposed subdivision and variance on traffic conditions in the vicinity.

(3) No variance shall be granted unless the City Commission finds that:

(a) There are special circumstances or conditions affecting said property such that the strict application of the provisions of this Chapter would deprive the applicant of the reasonable use of his or her land, and

(b) The variance is necessary for the preservation and enjoyment of a substantial property right of the applicant, and

(c) The granting of the variance will not be detrimental to the public welfare or be injurious to property in the area in which said property is situated.

(Ord. No. 69-85, 11-18-69)

Sec. 5.344. Procedure for a Variance.

A petition for any such variance shall be submitted in writing by the subdivider at the time when the preliminary plat is filed with the City Clerk pursuant to Section 5.330 hereof. The petition shall fully state the grounds for the application and all of the facts relied upon by the petitioner.

(Ord. No. 69-85, 11-18-69)

Sec. 5.345. Compliance Required.

Compliance with this Chapter shall be prerequisite to the approval of any plat or subdivision, except insofar as this Chapter may be in conflict with any applicable State statute or any applicable provisions of the City Charter or the Master Plan.

(Ord. No. 69-85, 11-18-69)

Secs. 5.346—5.360. Reserved.

ARTICLE 3. LAND DIVISION REGULATIONS

Sec. 5.346. Title.

This Article shall be known and cited as the "Land Division Ordinance."

(Ord. No. 2006-52, § 2, 7-25-06)

Sec. 5.347. Purpose and Scope.

A. The purpose of this Article is to implement the provisions of the Michigan Land Division Act (1967 PA 288, as amended, formerly known as the Subdivision Control Act) ("Act"), to prevent the creation of parcels of property and access easements which do not comply with applicable ordinances, zoning regulations and said Act, to minimize potential boundary disputes, to monitor the creation of new parcels and easements, to prevent illegal land divisions and to ensure that newly-created parcels are not landlocked, to prevent the creation of unusable lots due to noncompliance with the City of Grand Rapids Zoning Ordinance or other ordinances, to assure orderly development of the community, and to otherwise provide for the health, safety and welfare of the residents and property owners of City of Grand Rapids by establishing reasonable standards for prior review and approval of land divisions within City of Grand Rapids ("City").

B. Approval of any land division pursuant to this Article shall not provide, constitute, infer or imply use or zoning approval of any such division or resulting parcels or assure or imply a parcel is buildable. Such use of land must still comply with the City Zoning Ordinance and any other applicable ordinances, laws or regulations, and it remains the responsibility of the property owner to ensure such compliance.

C. It is not intended by this Article to repeal, abrogate, annul, or in any other way impair or interfere with provisions of the City Zoning Ordinance or of other laws or ordinances (except as otherwise expressly stated in Section 12 hereof) or of any private restrictions placed upon property by covenant, deed, or other private agreement; provided, however, that where any provision of this Ordinance imposes more stringent requirements, regulations, restrictions, or limitations upon the division or use of land, easements or buildings than are imposed or required by the provisions of any restrictions or any other law or ordinance, or any of said rules, regulations or permits, then the provisions of this Ordinance shall govern.
(Ord. No. 2006-52, § 2, 7-25-06)

Sec. 5.348. Definitions.

For purposes of this Article, certain terms and words used herein shall have the following meaning:

A. "*Act*" means Public Act No. 288 of 1967, as amended, being the Michigan Land Division Act. (MCLA 560.101 et seq.)

B. "*Applicant*" means a natural person, firm, association, partnership, corporation, estate, entity, governmental unit, or combination of any of them which holds an ownership interest in land whether recorded or not.

C. "*County*" means Kent County, Michigan.

D. "*Division*" means the partitioning or splitting of a parcel or tract of land by the proprietor thereof or by his or her heirs, executors, administrators, legal representatives, successors, or assigns for the purpose of sale, or lease of more than one (1) year, or of building development that results in one (1) or more parcels of less than forty (40) acres or the equivalent, and that satisfies the requirements of sections 108 and 109.

E. "*Transfer*" means the conveyance of property between two (2) or more adjacent parcels, if the property taken from one (1) parcel is added to an adjacent parcel; and any resulting parcel shall not be considered a building site unless the parcel conforms to the requirements of this Act or the requirements of an applicable or local ordinance.

F. "*Exempt split*" means the partitioning or splitting of a parcel or tract of land by the proprietor thereof or by his or her heirs, executors, administrators, legal representatives, successors, or assigns that does not result in one (1) or more parcels of less than forty (40) acres or the equivalent. For a property transfer between two (2) or more adjacent parcels, if the property taken from one (1) parcel is added to an adjacent parcel, any resulting parcel shall not be considered a building site unless the parcel conforms to the requirements of this act or the requirements of any applicable city ordinances.

G. "*Parent Parcel*" or "*Parent Tract*" means a parcel or tract, respectively, lawfully in existence on March 31, 1997.

H. "*City*" means the City of Grand Rapids, Kent County, Michigan.

I. The definitions of the Act, as amended, are hereby incorporated by reference and are made a part of this Article.

J. For purposes of Section 109(1)(c) of the Act, the word "width" shall mean the width and frontage requirements of the City Zoning Ordinance.

K. For purposes of Section 109(1)(d) of the Act, the word "area" shall mean any size, dimension, or space requirement of the City Zoning Ordinance.
(Ord. No. 2006-52, § 2, 7-25-06)

Sec. 5.349. Prior Approval Requirement for Land Divisions and Transfers.

Land in the City shall not be divided or transferred without the prior review and approval of the City Assessor (or designee) in accordance with this Article and the Act, except that a parcel proposed for subdivision through a recorded plat

pursuant to Article I and Article II of Chapter 64 and condominium developments shall be exempted from this requirement.
(Ord. No. 2006-52, § 2, 7-25-06)

Sec. 5.350. Application for Approval.

1. An applicant shall file all of the following with the City Assessor (or designee) for review and approval of a proposed land division before making any division:

A. A completed City application form, together with all required supported materials.

B. Signature on the application by the fee title owner of the property.

C. A survey map of the land proposed to be divided, showing the dimensions and legal descriptions of the existing parcel, the parcels proposed to be created by the division(s) (including "remnant" parcels or those to be retained by the owner) and any easements, the location of all existing structures and other land improvements, including the location of any well or septic systems on the lot, and the accessibility of the parcels for vehicular traffic and utilities from existing public/private roads. The City may waive the survey requirement for good cause shown if adequate and accurate legal descriptions are demonstrated by the materials submitted by the applicant, and additionally, such materials are sufficient to show that all of the requirements of the ordinance and the Act have been met. In the event that the City waives the survey requirement, a map drawn to scale that includes the items as stated above in item 5.C is required. Said map shall include the name and signature of the preparer and the date prepared.

D. Proof that all standards of the Act, this Article and other applicable ordinances and laws have been met.

E. The City may require that the applicant provide a title search from a title insurance company if it is reasonably necessary to show that previous land divisions do not preclude the proposed land division(s) or that there are no deed restrictions which would render a proposed parcel "not buildable."

F. Proof that all due and payable property taxes and installments of special assessments and charges in lieu of special assessments pertaining to all of the involved parcels are paid in full.

G. Unless a division creates a parcel which is acknowledged and declared to be "not buildable" under Section 8 [Section 5.353] of this Article, all divisions shall result in "buildable" parcels containing sufficient "buildable" area outside of non-developable land area, as defined by the City Subdivision Ordinance, and with sufficient area to comply with all required setback provisions, minimum floor areas, off-street parking spaces, on-site sewage disposal and water well locations (where public water and sewer service is not available), and maximum allowed area coverage of buildings and structures on the site.

H. The full fee in an amount as may from time to time be established by resolution of the City Commission for land division and transfer reviews pursuant to this Article to cover the costs of review of the application and administration of this Article.

2. An applicant shall file all of the following with the City Assessor (or designee) for review and approval of a proposed land transfer, before conveying property between two (2) or more adjacent parcels:

A. A completed City application form, together with all required supporting materials.

B. Signature on the application by the fee title owner of the property.

C. A survey map of the land proposed to be transferred, showing the dimensions and legal descriptions of the existing parcel, the parcels proposed to be created by the

transfer(s) (including "remnant" parcels or those to be retained by the owner) and any easements, the location of all existing structures and other land improvements, including the location of any well or septic systems on the lot, and the accessibility of the parcels for vehicular traffic and utilities from existing public/private roads.

The City may waive the survey requirement for good cause shown if adequate and accurate legal descriptions are demonstrated by the materials submitted by the applicant, and additionally, such materials are sufficient to show that all of the requirements of the Article and the Act have been met. In the event that the City waives the survey requirement, a map drawn to scale that includes the items as stated above in item 5.C is required. Said map shall include the name and signature of the preparer and the date prepared.

D. Proof that all standards of the Act, this Article and other applicable ordinances and laws have been met.

E. The City may require that the applicant provide a title search from a title insurance company if it is reasonably necessary to show that previous land divisions or transfers do not preclude the proposed transfer(s) or that there are no deed restrictions which would render a proposed parcel "not buildable".

F. Proof that all due and payable property taxes and installments of special assessments and charges in lieu of special assessments pertaining to all of the involved parcels are paid in full.

G. Unless a transfer creates a parcel which is acknowledged and declared to be "not buildable" under Section 8 [Section 5.353] of this Article, all transfers shall result in "buildable" parcels containing sufficient "buildable" area outside of non-developable land area, as defined by the City Subdivision Ordinance, and with sufficient area to comply with all required setback provisions, minimum floor areas, off-street parking spaces, on-site sewage disposal and water well locations (where public water and sewer service is not available), and maximum allowed area coverage of buildings and structures on the site.

H. The full fee in an amount as may from time to time be established by the City Manager for land division and transfer reviews pursuant to this Article to cover the costs of review of the application and administration of this Article.

(Ord. No. 2006-52, § 2, 7-25-06)

Sec. 5.351. Procedure for Review of Applications for Approval.

A. Upon receipt of a complete land division application package or transfer application from an applicant, the City Assessor (or designee) shall (i) approve, (ii) approve with reasonable conditions to assure compliance with applicable ordinances and the protection of public health, safety and welfare, or (iii) disapprove the land division or transfer applied for within forty-five (45) days after receipt of the application conforming to this Article's requirements (including any and all required zoning and private street approvals) and shall promptly notify the applicant in writing of the decision(s) and the reasons for any denial.

If the application does not conform to these Article requirements and the Act, the City Assessor (or designee) shall return the same to the applicant for completion in accordance with this Article and the Act.

B. Land division approvals shall be valid only for a period of one hundred twenty (120) days from the date of approval by the City. If the deeds or land contracts for such lots proposed by the land division are not properly recorded and accepted by the County Register of Deeds, and/or a proper survey by a registered surveyor which includes the legal description of the approved parcel(s) is not filed with and accepted by the City Assessor within this time period, the land division approval shall be considered null and void and a new application must thereafter be submitted. If an amendment to the City Zoning Ordinance or other City ordinance becomes effective

prior to the land division being recorded and the amendment applies to any of the resulting parcels in a way which would make the proposed lot or lots violate the City Zoning Ordinance or other City Ordinance, the land division approval shall be null and void even if the one hundred twenty (120) day time limit has not expired. Land transfer approvals shall be valid for a period of one (1) year.

C. The City Assessor (or designee) shall maintain an official record of all land division and transfer applications, including denied, approved, unrecorded and accomplished land divisions and transfer.

D. If the land division involves the use or creation of a private street, approval of the private street must be obtained from the City in accordance with all applicable City regulations prior to the approval of the land division.
(Ord. No. 2006-52, § 2, 7-25-06)

Sec. 5.352. Standards for Approval.

1. A proposed land division shall be approved only if all of the following criteria are met:

A. All of the parcels to be created by the proposed land division(s) must fully comply with the applicable lot (parcel) width, access, setback, and area requirements of the City Zoning Ordinance, other applicable City Ordinances and any deed restrictions concerning the number, size, or location of structures allowed on the parcel(s).

B. The ratio of depth to width of any parcel created by a land division (including a remnant parcel) shall not exceed 4:1 unless otherwise provided by the City Zoning Ordinance.

C. If the land division involves the use of a new curb cut to a public street or road, the applicant must submit evidence of review and approval of the curb cut location by the City Traffic Safety Department.

D. The City may require such additional conditions and safeguards as are deemed necessary to ensure compliance with the requirements of this Article.

E. No land division shall be approved until all ad valorem property taxes due and owing on the original parcel have been paid in full to the City and/or County, and all special assessments and charges in lieu of special assessments, due and owing against the original parcel have been paid to the City in full.

2. A proposed land transfer shall be approved only if all of the following criteria are met:

A. All of the parcels to be created by the proposed transfer(s) must fully comply with the applicable lot (parcel) width, access, setback, and area requirements of the City Zoning Ordinance, other applicable City ordinances and any deed restrictions concerning the number, size, or location of structures allowed on the parcel(s).

B. The ratio of depth to width of any parcel created by a transfer (including a remnant parcel) shall not exceed 4:1 unless otherwise provided by the City Zoning Ordinance.

C. If the transfer involves the use of a new curb cut to a public street or road, the applicant must submit evidence of review and approval of the curb cut location by the City Traffic Safety Department.

D. The City may require such additional conditions and safeguards as are deemed necessary to ensure compliance with the requirements of this Article.

E. No transfer shall be approved until all ad valorem property taxes due and owing on the original parcel have been paid in full to the City and/or County, and all special assessments and charges in lieu of special assessments, due and owing against the original parcel have been paid to the City in full.
(Ord. No. 2006-52, § 2, 7-25-06)

Sec. 5.353. Allowance for Approval of Other Land Divisions/Transfers.

Notwithstanding disqualification from approval pursuant to this Article, a proposed land division or transfer which does not fully comply with the

applicable lot, setback, accessibility and area requirements of the City Zoning Ordinance or this Article may be approved where the applicant executes and records a permanent deed restriction with the Kent County Register of Deeds, in a form acceptable to the City, designating the parcel as "not buildable" and also not usable for anything other than passive uses, which restrictions shall be enforceable by the City. Any such parcel shall also be designated as "not buildable" in the City records, and shall not thereafter be the subject of a request to the Zoning Board of Appeals for variance relief from the applicable lot and/or area requirements, and shall not be used except for passive uses.
(Ord. No. 2006-52, § 2, 7-25-06)

Sec. 5.354. Consequences of Noncompliance with the Land Division/Transfer Approval Requirement.

Any parcel created in violation of or noncompliance with this Article shall not be eligible for any building permit or zoning approvals. Furthermore, the Planning Director or his/her designee shall record an affidavit with the Kent County Register of Deeds designating the parcel as "nonbuildable" and not usable for anything other than passive use.
(Ord. No. 2006-52, § 2, 7-25-06)

Sec. 5.355. Penalties and enforcement.

Any person, firm, corporation, trust, governmental unit, partnership or other legal entity which violates or refuses to comply with any provision of this Article or knowingly provides false information on an application for approval of a land division or transfer shall be subject to the municipal civil infraction provisions of Chapter 170 of the City Code. Any person who violates any of the provisions of this Article shall also be subject to a civil action seeking invalidation of the land division and appropriate injunctive or other relief.
(Ord. No. 2006-52, § 2, 7-25-06)

Sec. 5.356. Severability.

The provisions of this Article are hereby declared to be severable and if any clause, sentence, word, section or provision is declared void or unenforceable for any reason by any court of competent jurisdiction, it shall not affect any portion of this Article other than said part or portion thereof.
(Ord. No. 2006-52, § 2, 7-25-06)

Secs. 5.357—5.360. Reserved.

[The next page is 1869]

Chapter 65

RESERVED*

*__Editor's note__—Ord. No. 2013-69, § 1, adopted October 22, 2013, repealed §§ 5.361—5.363, which pertained to urban renewal areas. See Code Comparative Table for complete derivation.

[The next page is 1897]

Chapter 66

RESERVED*

*__Editor's note—__Ord. No. 2014-18, § 1, adopted March 25, 2014, repealed Chapter 66, which pertained to natural and artificial drains and derived from Ord. No. 69-41, 5-20-69.

Chapter 67

LAND USE AND DEVELOPMENT SERVICES*

Article 1. General

Sec. 5.381. Findings.
Sec. 5.382. Purpose and Objectives.
Sec. 5.383. Definitions.
Sec. 5.384. Reserved.

Article 2. Luds Permit and Application

Sec. 5.385. Requirement for a LUDS Permit.
Sec. 5.386. Fees.

Article 3. Enforcement

Sec. 5.387. Responsibility and Liability.
Sec. 5.388. Enforcement Authority.
Sec. 5.389. Enforcement.
Sec. 5.390. Appeals.

*__Editor's note—__Ord. No. 2007-14, § 1, adopted Feb. 20, 2007, amended Chapter 67 in its entirety to read as herein set out. Formerly, said Chapter pertained to similar subject matter as enacted by Ord. No. 2005-93, § 1, adopted Dec. 6, 2005. See Code Comparative Table B for a detailed analysis of amendment.

ARTICLE 1. GENERAL

Sec. 5.381. Findings.

The Grand Rapids City Commission finds that:

(1) There are various regulated activities associated with land use and development not typically connected with a building permit.

(2) These activities include grading, drainage, landscaping, paving, erosion control, encroachments and permitted uses.

(3) Permits are required for some of these activities by other provisions of the City Code and/or written City Commission policy. This Chapter consolidates the following separate permits consolidated into a Land Use and Development Services (LUDS) permit:

a) Soil Erosion and Sedimentation Control Permit;

b) Stormwater Discharge Permit;

c) Paving Permit;

d) Development Inspections Permit;

e) Temporary Occupancy Permit.

(4) Regular inspections of site construction for which permits have been issued are needed to confirm compliance with City, State and Federal laws, regulations and standards.

(5) City, State, and Federal regulations governing these activities have become increasingly complex, requiring more involvement of City staff, while the City's staff and other resources to oversee these activities have been diminishing.

(6) To ensure compliance with City, State, and Federal regulations, to provide for the efficient use of City staff, and to streamline the permitting process and delivery of City services, it is necessary to establish a Land Use and Development Services (LUDS) permitting process and set of regulations.

(Ord. No. 2007-14, § 1, 2-20-07)

Sec. 5.382. Purpose and Objectives.

(1) The purpose of this Chapter is to streamline the land use and development or redevelopment approval process, exclusive of those approvals associated with the building trades (i.e., plumbing, mechanical and electrical). This is done by combining the various separate application and permit procedures contained elsewhere in this Code into a single application and permit process.

(2) The permit and regulations established by this Chapter are determined to be necessary to preserve the public health, safety and welfare; to facilitate sustainable development and redevelopment, streamline the review, and permitting process for development and redevelopment; and to fulfill the obligations of the City with respect to State and Federal law, rules and regulations applicable to the use and development of land.

(3) The objectives of this Chapter are:

(a) To simplify the land use and development or redevelopment process by consolidating several site development related permits into a single application and permit.

(b) To coordinate the review of plans, the inspection of construction activities, and the enforcement of regulations for the use and development or redevelopment of land.

(c) To provide for consistent and effective compliance with City, State and Federal regulation of use and development or redevelopment of land.

(Ord. No. 2007-14, § 1, 2-20-07)

Sec. 5.383. Definitions.

In this Chapter, these italicized words and phrases shall mean the following, unless the specific context indicates otherwise:

(1) *Administrative Order.* An enforcement document that informs a person or entity of a violation of the City Code, regulations or special conditions of approval, or any applicable State or Federal laws and regulations, and that directs the violator to take corrective action(s) within a specified time or date. Types of administrative or-

ders include but are not limited to: Notice of Violation (NOV), Corrective Action Order (CAO), Stop Work Order (SWO), Consent Order, Show Cause Order.

(2) *City.* The municipal corporation that is the City of Grand Rapids, and includes its officers, employees, agents, contractors, and authorized agents of the City when acting within the scope of their authority.

(3) *City Manager.* The City Manager of the City and any persons designated to act on behalf of the City Manager in the administration or enforcement of this Chapter.

(4) *Design Engineer.* Registered and licensed professional engineer responsible for the site plan design.

(5) *Earth Change.* Any human activity that removes ground cover, changes the slope or contours of the land, or exposes the soil surface to the actions of wind and rain. Earth change includes, but is not limited to, any excavating, surface grading, filling, landscaping or removal of vegetative roots.

(6) *Erosion.* The process by which the ground surface is worn away by action of wind, water, gravity or a combination of those forces.

(7) *Excavation* or *Cut.* Any act by which soil or rock is cut into, dug, quarried, uncovered, removed, displaced or relocated and the conditions resulting from such acts.

(8) *Grading.* Any stripping, excavating, filling, stockpiling of soil or any combination of such acts and the land in its excavated or filled condition.

(9) *Impervious Surface.* Surface that does not allow runoff to percolate into the ground such as roads, parking lots, sidewalks and rooftops.

(10) *Land Development.* Any construction work taking place outside of a building or structure that changes the shape, appearance, surface type, and function of a parcel of land, including landscaping, paving and grading, land balancing or other physical alteration to the land.

(11) *Land Owner* or *Landowner.* Any person who owns real property, or who holds a recorded easement on the property, or who is engaged in construction in a public right-of-way in accordance with Sections 13, 14, 15, and 16 of Act No. 368 of the Public Acts of 1925, as amended, (MCL 247.183, 247.184, 247.185, and 247.186) as defined in Administrative Rules, Part 17 of the Natural Resources and Environmental Protection Act, 1994, PA 451, as amended (Act 451).

(12) *Person* or *Entity.* An individual, association of individuals, a public, private or not for profit corporation, a firm, partnership or instrumentality.

(13) *Plan.* Written narratives, specifications, drawings, sketches, written standards, operating procedures or any combination of these, which contain information pursuant to this Chapter.

(14) *Property Owner.* Any person having legal or equitable title to property or any person having or exercising care, custody, dominion, or control over any property. (See also *Responsible Party* and *Land Owner*) *Property Owner* shall also mean:

(a) Any person who is authorized to act as an agent of the legal or equitable owner of property, or

(b) Any person who has received a Tax Deed from the State of Michigan for the property and the person has served a notice by persons claiming title under Tax Deed, and the six (6) month redemption period has expired or nine (9) months has lapsed since the person received the Tax Deed to the property, or

(c) Any person who performs work on property that disturbs the soil, changes the land form or otherwise impacts the drainage or stormwater discharge from property.

(15) *Redevelopment.* Any change to the land or its use that involves:

(a) A paved parking or driveway surface of one thousand (1,000) square feet or more that is being removed down to the sub-base and replaced.

(b) A change in the drainage system serving the property.

(c) A substantial improvement of the property.

(16) *Responsible Party.* Any developer, builder, property owner, tenant, employee, officer, director, partner, contractor or other person who participates in, or is legally or factually responsible for, any act or omission which is a violation of this Chapter or which results in a violation of this Chapter.

(17) *Show Cause Hearing.* A formal meeting with City staff occasioned by a Show Cause Order requiring a responsible party(s) to appear and demonstrate why a proposed enforcement action should not be taken against them.

(18) *Stripping.* Any activity which removes or significantly disturbs the vegetative surface cover of a property including, but not limited to, clearing and grubbing operations.

(19) *Structure.* Any man-made thing, edifice or construction in or upon the ground and any man-made change to the land. Structure includes, but is not limited to, buildings, manufactured homes, and recreational vehicles installed or left on a site for more than one hundred eighty (180) days.

(20) *Substantial Improvement.* Any repair, reconstruction or improvement of an existing structure the cost of which equals or exceeds fifty (50) percent of the true cash value of the structure, either:

(a) Before the improvement is started, or

(b) Before the damage occurred if the structure has been damaged and is being restored.

Substantial Improvement is started when the first alteration of any structural part of the building commences.

(Ord. No. 2007-14, § 1, 2-20-07)

Sec. 5.384. Reserved.

ARTICLE 2. LUDS PERMIT AND APPLICATION

Sec. 5.385. Requirement for a LUDS Permit.

(1) A LUDS Permit is required for any of the following proposed land uses, development or redevelopment activities, property situations, or special circumstances:

(a) A commercial or industrial development or redevelopment project with some type of earth change involving an area of two thousand five hundred (2,500) square feet or more.

(b) A plat, subdivision, Planned Unit Development, Planned Redevelopment District, Planned Industrial Development, Permitted with Approval Developments, Site Plan Review Development, Planned Redevelopment District, multi-family residential developments, or when otherwise required by the Planning Director, Planning Commission, or Board of Zoning Appeals.

(c) A new or redeveloped parking area of one thousand (1,000) square feet or more.

(d) An earth change within five hundred (500) feet of a wetland, creek, stream, lake, water body or flood plain.

(e) When a permit is required by an Administrative Order: Notice of Violation (NOV), Corrective Action Notice or Order (CAO), or Consent Order.

(f) Any earth change involving an area of one (1) acre or more.

(g) Any work or obstruction within the City's right-of-way relating to development or redevelopment of property.

(h) Any redevelopment of property, except single- and two-family residential properties.

(2) A LUDS Permit shall be obtained by the Property Owner or any entity or contractor performing work on behalf of the City.

(3) The Property Owner, or any entity or contractor performing work on behalf of the City shall be accountable and responsible for all activities associated with the development or redevelopment including the payment of any fines and penalties.

(4) A LUDS Permit shall be obtained prior to beginning any changes to the land surface on the development or redevelopment site. Failure to obtain a permit prior to the commencement of work is a violation of this Chapter.

(5) The LUDS Permit application and permit shall encompass and include various separate applications and permits required by other provisions of the City Code and/or written City Commission policy. These include: a Soil Erosion and Sedimentation Control (SESC) application and permit or an Authorization to Proceed with Earth Change required by Chapter 32, Sections 2.255 and 2.256; a Stormwater Discharge Permit application and permit required by Chapter 32, Section 2.213; a Paving Permit application and permit required by Chapter 61, Section 5.61(2); a Development Inspections Permit application and permit required by Chapter 61, Section 5.21(2)(b) and (c); and a Temporary Occupancy Permit application and permit required by Chapter 51, Sections 4.2, 4.3, and 4.4, and City Commission Policy 1000-06.

(6) The LUDS application shall serve as a single application for any or several of the permit applications listed in paragraph (5) above. The applicant will be required to complete only the LUDS application, and not any of the separate applications for the various permits or authorizations listed.

(7) Upon the proper completion of the application and payment of the appropriate review fee, which will vary from project to project and will be the sum of the separate application fees for the various permits or authorizations required for the work involved for each separate project, the City will review the project and resolve all outstanding issues with the applicant, as necessary, prior to issuance of the LUDS permit.

(8) Once all such issues have been resolved and the appropriate inspection fee has been paid, which will vary from project to project and will be the sum of the separate permit or authorization fees required for the work involved for each separate project, the City will issue the LUDS permit.

(9) If project timing or other circumstances dictate, and upon the request of the applicant and payment of the entire permit fee, the City may issue a conditional LUDS permit authorizing that some work on the project be permitted to proceed while other remaining issues are being resolved. (Ord. No. 2007-14, § 1, 2-20-07; Ord. No. 2013-20, § 1, 5-28-13)

Sec. 5.386. Fees.

(1) *Fee Schedule.*

(a) The amount charged for each of the fees established in this Chapter shall be as set forth by resolution of the City Commission.

(b) The City Manager may waive all or any portion of the fees provided for in this Chapter when, in the reasonable exercise of discretion, he or she determines it is fair and equitable to do so under the circumstances.

(2) *Review Fees.*

(a) A non-refundable review fee shall be paid for the review and processing of the Land Use and Development Permit Application. Consultations with City staff by the owner, developer or contractor, or their design professional in preparing application documents or revisions to those documents in obtaining a permit is included as part of the review services. This review fee shall be a consolidation of all the application fees for the various permit

and authorization applications appropriate for each particular site, which may include:

(i) Development Inspections Permit Application;

(ii) Stormwater Discharge Permit Application;

(iii) Paving Permit Application;

(iv) Soil Erosion and Sediment Control Permit Application;

(v) Authorization to Proceed with Earth Change Application.

The application fee shall be for the review of the plans and related documents for the proposed development or redevelopment, and for the review of one (1) revision to those plans and documents. Any subsequent submission of revised plans and documents shall include the payment of a fee equal to one-half (½) of the initial review fee.

(b) General Review Requirements. Any plans, specifications and other related documents submitted for review shall include a completed LUDS Permit application and application fee. All submitted documents need to provide adequate information about the existing site and proposed development to enable a complete review of the proposed project. Plans and specifications shall be of sufficient scale and detail to facilitate the evaluation of the proposed development.

(c) Review. The land use and development review process shall begin upon receipt of the above referenced materials. The review process will include, but is not limited to, a review of drainage, stormwater management, surface grading, soil erosion and sediment control, landscaping, exterior lighting, zoning restrictions, parking lot paving, driveway entrances, and encroachments upon public easements and rights-of-way for the proposed project.

(d) Notice. Upon completion of this land use and development review process, the applicant will be informed through a notice that either,

(i) The submitted plans and documents are accepted by the City, or

(ii) The submitted documents are unacceptable because they are either incomplete or are not in conformance with approved plans, specifications, Planning Commission resolutions, City Commission resolutions, City Code, State law or Federal Law. The applicant must submit revised or additional documents before a LUDS Permit will be issued.

(e) Supplemental Requirements. The City Manager may require additional information or design effort as he or she, in the reasonable exercise of discretion, determines is reasonably necessary to address unique site specific conditions before issuing a LUDS Permit.

(3) *Inspection Fee.*

(a) A non-refundable inspection fee shall be paid with the issuance of the LUDS Permit. The inspection fee is for site inspections and permit or authorization administration during the construction of the proposed development or redevelopment project. The inspection fee shall be a consolidation of all land development related permit and authorization inspections, which may include any (1) or all of the following permits or authorizations:

(i) Development Inspections Permit;

(ii) Stormwater Discharge Permit;

(iii) Soil Erosion and Sediment Control Permit;

(iv) Authorization to Proceed with Earth Change;

(v) Paving Permit;

(vi) Temporary Occupancy Permit.

Failure to obtain a LUDS Permit prior to beginning any site work is a violation of this ordinance.

(b) If the site work is not completed and the site stabilized with sufficient ground cover by the time the LUDS Permit expires, the applicant must obtain a permit extension at least one (1) week before the permit expires and pay the appropriate fee for the additional months needed for completing the project, stabilizing the site with an appropriate ground cover and the satisfactory completion of all conditions for approving the development.

(c) The City Manager shall determine, in the reasonable exercise of his or her discretion, whether there has been satisfactory completion of conditions for approval of a site development or redevelopment and, also, what constitutes appropriate ground cover, based on site conditions, weather, and other available relevant information.

(d) Failure to obtain a permit extension and pay the permit extension fee is a violation of this Chapter, which may result in enforcement action against the applicant and owner, forfeiture of any surety, and possible fines and penalties.

(4) *Re-inspection Fees.* The Property Owner, any entity or contractor performing work on behalf of the City shall pay a Re-inspection Fee for each occurrence when a re-inspection is needed to confirm compliance with an Administrative Order or an order of the Court. The fee amount shall be determined by resolution of the City Commission and shall be based on the level of enforcement.
(Ord. No. 2007-14, § 1, 2-20-07; Ord. No. 2013-20, § 2, 5-28-13)

ARTICLE 3. ENFORCEMENT

Sec. 5.387. Responsibility and Liability.

The Property Owner of a parcel that is being developed or redeveloped is responsible for the design, construction and all activities that take place on the property. Any acceptance or approvals granted by the City does not diminish nor excuse the responsibilities and liabilities of the Property Owner. The Property Owner retains complete responsibility for the project's design and its compliance with applicable laws, regulations and standards. Failure to comply with any of the conditions for the issuance of a LUDS permit, conditions of any sub-permit, or any conditions for City Commission or Planning Commission approval, and all applicable laws, regulations and standards is a violation of this Code.
(Ord. No. 2007-14, § 1, 2-20-07)

Sec. 5.388. Enforcement Authority.

(1) *Vested in City Manager.* The City Manager is authorized to administer and enforce the provisions of this Chapter. The City Manager is authorized to issue municipal civil infraction citations and municipal civil infraction violation notices for those matters deemed to be municipal civil infractions pursuant to Chapter 170 of this Code, and to issue court appearance tickets for all other matters that are violations of this Code.

Each violation and every day upon which any violation is permitted or suffered to exist, shall constitute a separate violation and shall be subject to a separate penalty. The City Manager may issue an administrative order calling for corrective action prior to taking other enforcement action pursuant to the preceding paragraph.

Violations not covered by the civil infractions provisions of Chapter 170 of the City Code, shall, if convicted, be subject to a criminal penalty of up to five hundred dollars ($500.00) per day or imprisonment for ninety (90) days or both such penalty and imprisonment.

In the case of a conviction pursuant to this Section of an entity who is not a natural person, any officer or director of a corporation, any officer or partner of a partnership, or any member of a limited liability company, or any officer or owner of a proprietorship is hereby deemed to be a proper person to serve any term of imprisonment imposed by the court as a result of the conviction.

(2) *Administrative Orders.* The City Manager may issue Administrative Orders whenever it is observed that any person or entity is in violation of this Chapter, or of the provisions of Chapters 32, 51, or 61 applicable to this Chapter, or of any special conditions of approval or conditions for

issuance of a permit pursuant to this Chapter, including any other related laws or regulations which the City is authorized to enforce. Multiple orders may be issued simultaneously or in combination as a single order with respect to a single discharger.

(3) *Emergency Authority.* When a necessary or advisable emergency protective measure or action is required to abate a nuisance, to prevent loss of human life, injury, or damage to property or the environment, or to otherwise protect the public health, safety or welfare, the City Manager is authorized to cause such measures and actions to be taken. The costs of such protective measures or actions shall be the Property Owner's and shall constitute a lien upon the property as provided for by law or in the City Charter. The costs shall also be a personal debt of the Property Owner that may be collected as other debts.
(Ord. No. 2007-14, § 1, 2-20-07)

Sec. 5.389. Enforcement.

(1) *Basis of Inspections.* Inspections will be made to obtain and maintain compliance with City, State and Federal laws, regulations and standards, based upon one (1) of the following:

(a) Routine inspections to insure compliance with approved plans, permit conditions, and program requirements.

(b) A complaint received by the City, indicating that there is a violation of the standards of this Chapter.

(c) An observation by the City of a violation of the Standards of this Chapter.

(d) The need to determine compliance with a notice or an order issued by the City.

(e) An emergency observed or reasonably believed to exist.

(f) A request for an inspection by the Property Owner.

(g) To determine compliance of special conditions required by a permit.

(2) *Content of Administrative Orders.* Administrative orders shall:

(a) Be in writing;

(b) Include a description of the real estate and/or the project name;

(c) Include a statement of the violation or violations;

(d) Include a correction order allowing a reasonable time to correct the violation and bring the site into compliance;

(e) State that failure to comply with the Notice may result in enforcement action.

(f) State the fee that shall be charged for the issuance of the notice.

(3) *Method of Service.* An Administrative Order shall be deemed to be properly served if served in one (1) of the following methods:

(a) Mailed by First Class mail

(b) Delivered personally

(c) Facsimile Transmission (FAX) to the phone number provided in an application for the responsible person or entity
(Ord. No. 2007-14, § 1, 2-20-07)

Sec. 5.390. Appeals.

(1) *Appeal of an Administrative Order.* Any person, receiving an Administrative Order may request a hearing regarding such order. If the appeal of an Administrative Order is in connection with an interpretation of the Zoning Code or any "special condition" of the Planning Commission or Zoning Board of Appeals, the appellant shall follow the procedures as set forth in the Zoning Code. Any other appeal shall be made by a written request for a hearing to the designated person and address indicated on the order within five (5) business days after receiving the order. A hearing date, time and place shall be set as soon as is practical but not later than thirty (30) business days after receipt of the request for a hearing.

(2) *Right of Further Appeal.* An appeal of the decision of the City Manager or designee following an appeal hearing shall be to Kent County Circuit Court.
(Ord. No. 2007-14, § 1, 2-20-07)

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Chapter 68

HISTORIC PRESERVATION COMMISSION*

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*__Editor's note—__Ord. No. 93-21, § 1, adopted May 18, 1993, repealed §§ 5.401—5.409, which pertained to historic preservation. Section 2 of said ordinance amended the Code by adding new provisions designated as §§ 5.391—5.404, to read as herein set out. See Code Comparative Table B.

__Cross references—__Grand Rapids Historical Commission, § 1.358 et seq.; general building regulations, Ch. 131; Property Maintenance Code, Ch. 140; compliance with historic preservation ordinance required prior to demolition of dwellings, § 8.619.

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Sec. 5.391. Short Title.

This Chapter shall be known as the "Historic Preservation Commission Ordinance" of the City of Grand Rapids.
(Ord. No. 93-21, § 2, 5-18-93)

Sec. 5.392. Purpose.

The purpose of this Chapter is to:

(1) Safeguard the heritage of the City of Grand Rapids by preserving districts which reflect elements of its cultural, social, economic, political or architectural history, and to preserve Historic Landmarks.

(2) Stabilize and improve property values in such districts.

(3) Foster civic beauty.

(4) Strengthen the local economy.
(Ord. No. 93-21, § 2, 5-18-93)

Sec. 5.393. Definitions.

As used in this Chapter:

(1) *Alteration* means work that changes the detail of a resource but does not change its basic size or shape.

(2) *Bureau* means the Bureau of History of the Michigan Department of State.

(3) *Certificate of Appropriateness* means the written approval of a permit application for work that is appropriate and that does not adversely affect a resource.

(4) *Commission* means the Historic Preservation Commission, which is the name the City of Grand Rapids has chosen to identify the "historic district commission" it has established pursuant to authorization of state law, MCL §399.201 et. seq. For purposes of this Chapter and all other purposes, the term "Historic Preservation Commission" shall be deemed to mean the "historic district commission" of the City of Grand Rapids.

(5) *Committee* means a historic district study committee appointed by the City Commission; some or all of the members of the Historic Preservation Commission may be appointed by the City Commission to serve on a Historic District Study Committee.

(6) *Demolition* means the razing or destruction, whether entirely or in part, of a resource and includes, but is not limited to, demolition by neglect.

(7) *Demolition by neglect* means neglect in maintaining, repairing or securing a resource that results in deterioration of an exterior feature of the resource or the loss of structural integrity of the resource.

(8) *Denial* means the written rejection of a permit application for work that is inappropriate and that adversely affects a resource.

(9) *Historic district* means an area, or group of areas not necessarily having contiguous boundaries, that contains one (1) resource or a group of resources that are related by history, architecture, archaeology, engineering, or culture. A historic landmark as defined in subsection (10) shall be considered a historic district for purposes of this Chapter and State law.

(10) *Historic Landmark* means any site, building, structure or object significant in history, architecture, archaeology and culture. A historic landmark is a historic district under the meaning of subsection (9) which contains only one (1) resource.

(11) *Historic preservation* means the identification, evaluation, establishment, and protection of resources significant in history, architecture, archaeology, engineering or culture.

(12) *Historic resource* means a publicly or privately owned building, structure, site, object, feature, or open space that is significant in the history, architecture, archaeology, engineering, or culture of this State or a community within this State, or of the United States.

(13) *Notice to proceed* means the written permission to issue a permit for work that is inappropriate and that adversely affects a re-

source, pursuant to a finding under section 5(6).

(14) *Open space* means undeveloped land, a naturally landscaped area, or a formal or man-made landscaped area that provides a connective link or a buffer between other resources.

(15) *Ordinary maintenance* means keeping a resource unimpaired and in good condition through ongoing minor intervention, undertaken from time to time, in its exterior condition. Ordinary maintenance does not change the external appearance of the resource except through the elimination of the usual and expected effects of weathering. Ordinary maintenance does not constitute work for purposes of this Chapter.

(16) *Proposed historic district* means an area or group of areas not necessarily having contiguous boundaries that has delineated boundaries and that is under review by a committee for the purpose of making a recommendation as to whether it should be established as a historic district or added to an established historic district.

(17) *Repair* means to restore a decayed or damaged resource to a good or sound condition by any process. A repair that changes the external appearance of a resource constitutes work for purposes of this act.

(18) *Resource* means one (1) or more publicly or privately owned historic or nonhistoric buildings, structures, sites, objects, features, or open spaces located within a historic district.

(19) *Work* means construction, addition, alteration, repair, moving, excavation or demolition.

(Ord. No. 93-21, § 2, 5-18-93)

Sec. 5.394. Historic Preservation Commission.

The Historic Preservation Commission is hereby established. It shall consist of seven (7) members who reside in the City of Grand Rapids. Members shall be appointed by the City Commission for three-year terms. A majority of the members shall have a clearly demonstrated interest in or knowledge of historic preservation. Members shall serve without compensation and shall be eligible for reappointment. In the event of a vacancy on the Commission, interim appointments shall be made by the City Commission within sixty (60) calendar days to complete the unexpired term of such position. Two (2) members shall be appointed from a list submitted by the Kent County Council for Historic Preservation or other existing Preservation Societies, and one (1) member shall be an architect duly registered in the State of Michigan. A person or representative of a person shall be entitled to appear at any public meeting of the Commission and be heard on any matter before the Commission before it reaches a decision. The Commission shall meet monthly or more frequently at the call of the Chairman.
(Ord. No. 93-21, § 2, 5-18-93)

Sec. 5.395. Permits.

(1) A permit shall be obtained before any work affecting the exterior appearance of a resource is performed within a historic district or, if required under subsection (4), work affecting the interior arrangements of a resource, is performed within a historic district. The person, individual, partnership, firm, corporation, organization, institution, or agency of government proposing to do that work shall file an application for a permit with the inspector of buildings, the Commission, or other duly delegated authority. If the inspector of buildings or other authority receives the application, the application shall be immediately referred together with all required supporting materials that make the application complete to the Commission. A permit shall not be issued and proposed work shall not proceed until the Commission has acted on the application by issuing a certificate of appropriateness or a notice to proceed as prescribed in this act. The applicant shall pay the fee established by resolution of the City Commission with the application before the City will process a permit application.

(2) An applicant aggrieved by a decision of the Commission concerning a permit application may file an appeal with the State Historic Preservation Review Board of the Michigan Historical Com-

mission within the Department of State. The appeal shall be filed within 60 days after the decision is furnished to the applicant. The appellant may submit all or part of the appellant's evidence and arguments in written form. The Review Board shall consider an appeal at its first regularly scheduled meeting after receiving the appeal, but may not charge a fee for considering an appeal. The Review Board may affirm, modify, or set aside a Commission's decision and may order a Commission to issue a certificate of appropriateness or a notice to proceed. A permit applicant aggrieved by the decision of the State Historic Preservation Review Board may appeal the decision to the Kent County Circuit Court.

(3) In reviewing plans, the Commission shall follow the U.S. Secretary of the Interior's Standards for rehabilitation and guidelines for rehabilitating historic buildings, as set forth in 36 C.F.R. part 67. Design review standards and guidelines that address special design characteristics of historic districts administered by the Commission may be followed if they are equivalent in guidance to the Secretary of Interior's Standards and guidelines and are established or approved by the bureau. The Commission shall also consider all of the following:

(a) The historic or architectural value and significance of the resource and its relationship to the historic value of the surrounding area.

(b) The relationship of any architectural features of the resource to the rest of the resource and to the surrounding area.

(c) The general compatibility of the design, arrangement, texture, and materials proposed to be used.

(d) Other factors, such as aesthetic value, that the Commission finds relevant.

(4) The Commission shall review and act upon only exterior features of a resource and shall not review and act upon interior arrangements unless interior work will cause visible change to the exterior of the resource. The Commission shall not disapprove an application due to considerations not prescribed in subsection (3).

(5) If an application is for work that will adversely affect the exterior of a resource the Commission considers valuable to the City, State, or nation, and the Commission determines that the alteration or loss of that resource will adversely affect the public purpose of the city, State, or nation, the Commission shall attempt to establish with the owner of the resource an economically feasible plan for preservation of the resource.

(6) Work within a historic district or on a historic landmark shall be permitted through the issuance of a notice to proceed by the Commission if any of the following conditions prevail and if the proposed work can be demonstrated by a finding of the Commission to be necessary to substantially improve or correct any of the following conditions:

(a) The resource constitutes a hazard to the safety of the public or to the structure's occupants.

(b) The resource is a deterrent to a major improvement program that will be of substantial benefit to the community and the applicant proposing the work has obtained all necessary planning and zoning approvals, financing, and environmental clearances.

(c) Retaining the resource will cause undue financial hardship to the owner when a governmental action, an act of God, or other events beyond the owner's control created the hardship, and all feasible alternatives to eliminate the financial hardship, which may include offering the resource for sale at its fair market value or moving the resource to a vacant site within the historic district, have been attempted and exhausted by the owner.

(d) Retaining the resource is not in the interest of the majority of the community.

(7) The business that the Commission may perform shall be conducted at a public meeting of the Commission held in compliance with the Open Meetings Act, Act No. 267 of the Public Acts of 1976, as amended, being sections 15.261 to 15.275 of the Michigan Compiled Laws. Public notice of the time, date, and place of the meeting shall be given in the manner required by Act No. 267 of

the Public Acts of 1976, as amended. A meeting agenda shall be part of the notice and shall include a listing of each permit application to be reviewed or considered by the Commission.

(8) The Commission shall keep a record of its resolutions, proceedings, and actions. A writing prepared, owned, used, in the possession of, or retained by the Commission in the performance of an official function shall be made available to the public in compliance with the Freedom of Information Act, Act No. 442 of the Public Acts of 1976, as amended, being sections 15.231 to 15.246 of the Michigan Compiled Laws.

(9) The Commission shall adopt its own rules of procedure and shall adopt design review standards and guidelines for resource treatment to carry out its duties under this act.

(10) The Commission may delegate the issuance of certificates of appropriateness for specified minor classes of work to its staff, to the inspector of buildings, or to another delegated authority. The Commission shall provide to the delegated authority specific written standards for issuing certificates of appropriateness under this subsection. On at least a quarterly basis, the Commission shall review the certificates of appropriateness, if any, issued for work by its staff, the inspector, or another authority to determine whether or not the delegated responsibilities should be continued.

(11) Upon a finding by the Commission that a historic resource within a historic district or a proposed historic district subject to its review and approval or a historic landmark is threatened with demolition by neglect, the Commission may do either of the following:

(a) Require the owner of the resource to repair all conditions contributing to demolition by neglect.

(b) If the owner does not make repairs within a reasonable time, the Commission or its agents may enter the property and make such repairs as are necessary to prevent demolition by neglect. The costs of the work shall be charged to the owner, and may be levied by the City Commission as a special assessment against the property. The Commission or its agents may enter the property for purposes of this section upon obtaining an order from the Kent County Circuit Court.

(12) When work has been done upon a resource without a permit and the Commission finds that the work does not qualify for a certificate of appropriateness, the Commission may require an owner to restore the resource to the condition the resource was in before the inappropriate work or to modify the work so that it qualifies for a certificate of appropriateness. If the owner does not comply with the restoration or modification requirement within a reasonable time, the Commission may seek an order from the Kent County Circuit Court to require the owner to restore the resource to its former condition or to modify the work so that it qualifies for a certificate of appropriateness. If the owner does not comply or cannot comply with the order of the Court, the Commission or its agents may enter the property and conduct work necessary to restore the resource to its former condition or modify the work so that it qualifies for a certificate of appropriateness in accordance with the Court's order. The costs of the work shall be charged to the owner, and may be levied by the City Commission as a special assessment against the property. When acting pursuant to an order of the Kent County Circuit Court, the Commission or its agents may enter a property for purposes of this Section.

(13) The Commission shall file certificates of appropriateness, notices to proceed, and denials of applications for permits with the inspector of buildings or other delegated authority. A permit shall not be issued until the Commission has acted as prescribed by this Chapter. If a permit application is denied, the decision shall be binding on the inspector or other authority. A denial shall be accompanied with a written explanation by the Commission of the reasons for denial and, if appropriate, a notice that an application may be resubmitted for Commission review when suggested changes have been made. The denial shall also include notification of the applicant's rights of appeal to the State Historic Preservation Review Board and to the Kent County Circuit Court. The failure of the Commission to act within 60 calendar days after the date a complete applica-

tion is filed with the Commission, unless an extension is agreed upon in writing by the applicant and the Commission, shall be considered to constitute approval.

(14) Nothing in the Chapter shall be construed to prevent ordinary maintenance or repair of a resource within a historic district or to prevent work on any resource under a permit issued by the inspector of buildings or other duly delegated authority before the chapter was enacted.
(Ord. No. 93-21, § 2, 5-18-93)

Sec. 5.396. Acceptance of Gift or Grant.

The City Commission may accept State or federal grants; may participate in State and federal programs that benefit historic preservation, and may accept public or private gifts for historic preservation purposes; and may appoint the Commission to administer on its behalf grants and gifts for the purposes herein provided. The City Treasurer shall be custodian of funds of the Commission and authorized expenditures shall be certified to the City Comptroller by the Secretary or other officer designated by the Commission. The Commission shall annually report to the City Commission any money it shall receive or expend.
(Ord. No. 93-21, § 2, 5-18-93)

Sec. 5.397. Right of Appeal.

Pursuant to MCL §399.211, any citizen or duly organized historic preservation organization in the City of Grand Rapids, as well as resource property owners, jointly or severally aggrieved by a decision of the Commission may appeal the decision to the Circuit Court, except that a permit applicant aggrieved by a decision of the Commission may not appeal to the Court without first exhausting the right to appeal to the State Historic Preservation Review Board under MCL §399.205(2).
(Ord. No. 93-21, § 2, 5-18-93)

Sec. 5.398. Historic District Study Committee.

(1) The City Commission may, by ordinance, establish one (1) or more historic districts and historic landmarks. The historic districts and landmarks shall be administered by the Commission established by this Chapter. Before establishing, modifying, or eliminating a historic district or historic landmark, a study complying with this section, including reports and hearings, shall be conducted by a Historic District Study Committee appointed by resolution of the City Commission. A Historic District Study Committee shall contain a majority of persons who have a clearly demonstrated interest in or knowledge of historic preservation and shall contain representation from one (1) or more duly organized local historic preservation organizations. The committee shall do all of the following:

(a) Conduct a photographic inventory of resources within each proposed historic district following procedures established or approved by the Bureau.

(b) Conduct basic research of each proposed historic district and the historic resources located within that district.

(c) Determine the total number of historic and non-historic resources within a proposed historic district and the percentage of historic resources of that total. In evaluating the significance of historic resources, the committee shall be guided by the selection criteria for evaluation issued by the United States Secretary of the Interior for inclusion of resources in the national register of historic places, as set forth in 36 C.F.R. part 60, and criteria established or approved by the Bureau, if any.

(d) Prepare a preliminary historic district study committee report that addresses at a minimum all of the following:

(i) The charge of the committee.
(ii) The composition of the committee membership.
(iii) The historic district or districts studied.
(iv) The boundaries for each proposed historic district in writing and on maps.
(v) The history of each proposed historic district.
(vi) The significance of each district as a whole, as well as a sufficient number of its individual resources to fully represent the variety of resources found

within the district relative to the evaluation criteria.

(e) Transmit copies of the preliminary report for review and recommendations to the City Planning Commission, the Bureau, the Michigan Historical Commission, and to the State Historic Preservation Review Board.

(f) Make copies of the preliminary report available to the public pursuant to subsection (4).

(2) Not less than 60 calendar days after the transmittal of the preliminary report, the committee shall hold a public hearing in compliance with the Open Meetings Act, Act No. 267 of the Public Acts of 1976, as amended, being sections 15.261 to 15.275 of the Michigan Compiled Laws. Public notice of the time, date, and place of the hearing shall be given in the manner required by Act No. 267 of the Public Acts of 1976, as amended. Written notice shall be mailed by first-class mail not less than 14 calendar days before the hearing to the owners of properties within the proposed historic district as listed on the tax rolls of the City Assessor.

(3) After the date of the public hearing, the committee and the City Commission shall have not more than one (1) year, unless otherwise authorized by the City Commission, to take the following actions:

(a) The committee shall prepare and submit a final report with its recommendations and the recommendations, if any, of the City Planning Commission to the City Commission. If the recommendation is to establish a historic district or districts, the final report shall include a draft of a proposed ordinance or ordinances.

(b) After receiving a final report that recommends the establishment of a historic district or districts, the City Commission, at its discretion, may introduce and pass or reject an ordinance or ordinances. If the City Commission passes an ordinance or ordinances establishing one (1) or more historic districts, the City Clerk shall file a copy of the ordinance or those ordinances, including a legal description of the property or properties located within the historic district or districts with the register of deeds. The City Commission shall not pass an ordinance establishing a historic district less than 60 days after a majority of the property owners within the proposed historic district as listed on the tax rolls of the local unit, have approved the establishment of the historic district pursuant to a written petition. However, such a petition shall not be a prerequisite to the establishing, modifying, or eliminating of a historic district or historic landmark as the City Commission in its discretion deems advisable.

(4) A writing prepared, owned, used, in the possession of, or retained by a committee in the performance of an official function shall be made available to the public in compliance with the Freedom of Information Act, Act No. 442 of the Public Acts of 1976, as amended, being section 15.231 to 15.246 of the Michigan Compiled Laws. (Ord. No. 93-21, § 2, 5-18-93)

Sec. 5.399. Historic Districts.

(1) The City Commission may at any time establish by ordinance historic districts and landmarks, including proposed districts and landmarks previously considered and rejected, may modify boundaries of an existing historic district or landmark, or may eliminate an existing historic district or landmark. Before establishing, modifying, or eliminating a historic district or landmark, a historic district study committee appointed by the City Commission shall, except as provided in subsection (2), comply with the procedures set forth in section 5.398 and shall consider any previously written committee reports pertinent to the proposed action.

(2) If considering elimination of a historic district or landmark, a committee shall follow the procedures set forth in Section 5.398 for issuing a preliminary report holding a public hearing and issuing a final report but with the intent of showing one (1) or more of the following:

(i) The historic district has lost those physical characteristics that enabled establishment of the district.

(ii) The historic district was not significant in the way previously defined.

(iii) The historic district was established pursuant to defective procedures.

(3) Upon receipt of substantial evidence showing the presence of historic architectural, archaeological, engineering, or cultural significance of a proposed historic district, the City Commission may, at its discretion, adopt a resolution requiring that all applications for permits within the proposed historic district be referred to the Commission. The Commission shall review permit applications with the same powers that would apply if the proposed historic district was an established historic district. The review may continue in the proposed historic district for not more than one (1) year, or until such time as the City Commission approves or rejects the establishment of the historic district by ordinance, whichever occurs first.

(4) If the City Commission determines that pending work will cause irreparable harm to resources located within an established historic district or a proposed historic district, the City Commission may, by resolution, declare an emergency moratorium of all such work for a period not to exceed six (6) months. The City Commission may extend the emergency moratorium for an additional period not to exceed six (6) months upon finding that the threat of irreparable harm to resources is still present. Any pending permit application concerning a resource subject to an emergency moratorium may be summarily denied.
(Ord. No. 93-21, § 2, 5-18-93)

Sec. 5.400. Historic Landmark Roster.

The Commission shall maintain a roster of historic landmarks and historic sites, which shall include a description of the characteristics of the historic landmark or historic site which justifies its designation, and a description of the particular features that should be preserved, and shall include the location and boundaries of the historic landmark or historic site.
(Ord. No. 93-21, § 2, 5-18-93)

Sec. 5.401. Advice and Guidance to Property Owners.

The Commission, upon request of any property owner, shall render advice and guidance with respect to any proposed work on a designated landmark site or any designated Historic District. In rendering such advice and guidance, the Commission will be guided by the purposes and standards in this Chapter.
(Ord. No. 93-21, § 2, 5-18-93)

Sec. 5.402. Other Duties.

The Commission may:

(1) Assist and collaborate in studies and programs designed to identify and evaluate structures, sites and areas worthy of preservation.

(2) Consult with and consider the ideas and recommendations of civic groups, public agencies, and citizens interested in historic preservation.

(3) Inspect and investigate structures, sites and areas which it has reason to believe worthy of preservation.

(4) Disseminate information to the public concerning those structures, sites and areas deemed worthy of preservation, and may encourage and advise property owners in the protection, enhancement, perpetuation and use of landmarks, historic sites, and other officially recognized property of historic interest.

(5) Consider methods other than those provided for in this Chapter for encouraging and achieving historic preservation, and make appropriate recommendations to the City Commission and other bodies and agencies, both public and private.

(6) Establish such policies, rules and regulations as it deems necessary to administer its duties as herein provided.

(7) Maintain and use its own funds to acquire property, or gifts for historic purposes, grants from State or Federal Govern-

ment, and to administer such resources in accordance with the purposes herein provided.

(Ord. No. 93-21, § 2, 5-18-93)

Sec. 5.403. Acquisition of Historic Resources.

If all efforts by the Commission to preserve a resource fail or if it is determined by the City Commission that public ownership is most suitable, the City Commission, if considered to be in the public interest, may acquire the resource using public funds, public or private gifts, grants, or proceeds from the issuance of revenue bonds. The acquisition shall be based upon the recommendation of the Commission or standing committee. The Commission is responsible for maintaining publicly owned resources using its own funds, if not specifically designated for other purposes or public funds committed for that use by the City Commission. Upon recommendation of the Commission, the City Commission may sell resources acquired under this Section with protective easements included in the property transfer documents, if appropriate.

(Ord. No. 93-21, § 2, 5-18-93)

Sec. 5.404. Violations of Chapter.

(1) A person who violates this Chapter shall be deemed guilty of a misdemeanor and shall be subject to the penalties provided for in Section 1.13 of the City Code.

(2) In addition to the foregoing, a person who violates this Chapter also may be adjudged responsible for a violation of the state "Local Historic Districts Act," MCL § 399.201 et seq., and be subject to the civil penalties and remedies provided for in Section (15) thereof, being MCL § 399.215.

(Ord. No. 93-21, § 2, 5-18-93; Ord. No. 2007-49, § 1, 8-28-07)

Sec. 5.405. Enforcement Fees.

Fees for the following inspection services required for the enforcement of this Article shall be established from time to time by resolution of the City Commission.

(1) Administrative hourly rate;

(2) Special Inspections conducted after business hours, on weekends or holidays, per hour;

(3) Notice of Violation;

(4) Inspection fee for every additional inspection, including but not limited to: court requested, attorney requested, progress inspection at request of owner/manager;

(5) Failure to keep appointment, arrange for inspection, or provide entry for scheduled inspection;

(6) Administrative or Progress Extension;

(7) Ownership Research for any property not occupied by the property owner;

(8) Title Search;

(9) Attorney Warning Letter;

(10) Contact Request;

(11) Search Warrant;

(12) Prosecution Preparation;

(13) Recording document at Kent County Register of Deeds;

(14) Collection Services Fee, as Charged by the City Treasurer;

(15) Collection Services Fee, for Small Claims Court.

(Ord. No. 2007-49, § 2, 8-28-07)

Secs. 5.406—5.409. Reserved.

Note—See the editor's note at Ch. 68.

Sec. 5.410. Indian Mounds Historic District.

That the following area owned by the City of Grand Rapids be and is hereby designated an historic district to be subject to the terms, conditions and requirements of this Chapter 68 of the Grand Rapids City Code:

That part of Sections 3 and 4, Town 6 North, Range 12 West, Commencing at a point on the West Section line 225.8 ft. North of the West¼ corner, Section 3, Town 7 North, Range 12 West, Kent County, Michigan; thence South 620.8 ft. along West Section line; thence West 90 ft.; thence South 23° 38′ West 349.2 ft.;

thence East to the Northerly right of way line of Interstate Highway 196; thence Northeasterly along said highway right of way to the Westerly line of New York Central Railroad right of way; thence Northerly along said Railroad Westerly right of way line to the centerline of Indian Mounds Drive; thence Southwesterly along said centerline to place of beginning; excepting the Northerly 100 ft. thereof.

(Ord. No. 73-25, 4-24-73)

Sec. 5.411. Heritage Hill Historic District.

That the following designated area within the City of Grand Rapids be and is hereby designated an historic district and shall be subject to the terms, conditions and requirements of this Chapter 68 of the Grand Rapids City Code:

The boundaries of the Heritage Hill Historic District are hereby established as shown on a map entitled "The Heritage Hill Historic District of the City of Grand Rapids, Michigan," which is incorporated into and made a part of this Chapter and which is kept by the Grand Rapids Planning Department.

(1) The map entitled "Heritage Hill Historic District of the City of Grand Rapids, Michigan" is hereby amended to include the following property parcels:

632 Union Avenue S.E. PP# 14-31-277-001

640 Union Avenue S.E. PP# 14-31-277-002

644 Union Avenue S.E. PP# 14-31-277-003

648 Union Avenue S.E. PP# 14-31-277-004

652 Union Avenue S.E. PP# 14-31-277-005

635 Union Avenue S.E. PP# 14-31-253-014

639 Union Avenue S.E. PP# 14-31-253-015

645 Union Avenue S.E. PP# 14-31-253-016

649 Union Avenue S.E. PP# 14-31-253-017

653 Union Avenue S.E. PP# 14-31-253-018

659 Union Avenue S.E. PP# 14-31-253-019

(2) The 2018 adoption of this ordinance [2018-16] subsection establishes the Period of Significance for the Heritage Hill Historic District as 1845 through 1968.

(Ord. No. 73-25, 4-24-73; Ord. No. 79-19, 4-10-79; Ord. No. 91-39, § 1, 7-16-91; Ord. No. 2018-16, § 1, 4-24-18)

Sec. 5.412. St. Cecilia Historic Landmark.

That the following described property be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of the Grand Rapids City Code:

Lot 1 except the south 5 feet and lot 2 except the north 18.19 feet, Block 30, Village of Grand Rapids.

(Ord. No. 73-25, 4-24-73)

Sec. 5.413. Art Museum—Pike House Historic Landmark.

That the following described property be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids:

Lot 1410 Steinman Assessor's Plat No. 48.

(Ord. No. 73-25, 4-24-73)

Sec. 5.414. Turner House Historic Landmark.

That the following described property be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids:

Lot 1, Block 6, Scribner and Turner Addition.

(Ord. No. 73-25, 4-24-73)

Sec. 5.415. Ryerson Public Library Historic Landmark.

That the original Ryerson Public Library building at 111 Library Street N.E. be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.
(Ord. No. 74-72, 9-10-74)

Sec. 5.416. Calkins Law Office Historic Landmark.

That the Calkins Law Office located on City property at 235 State Street, S.E., be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.
(Ord. No. 74-72, 9-10-74)

Sec. 5.417. Voigt House Historic Landmark.

That the Voigt House located on City owned property at 115 College S.E. be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.
(Ord. No. 74-72, 9-10-74)

Sec. 5.418. Fulton Street Cemetery Historic Landmark.

That the following described property at 805 Fulton Street N.E. be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids:

That part of Sections 29 and 30, Town 7 N, Range 11 West, bounded on the N by Fountain Street N.E., bounded on the W by Eastern Avenue N.E., bounded on the S by East Fulton, and bounded on the East by the rear property lines of the properties fronting on the West side of Batavia Place N.E. and the West property line of Lot 1203 Stienmann's Assessor's Plat No. 42.
(Ord. No. 74-72, 9-10-74)

Sec. 5.419. St. Andrew's Catholic Cemetery Historic Landmark.

That the following described property at 900 Madison Avenue S.E. be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids:

Bounded on the West by Madison Avenue S.E., bounded on the North by Prince Street S.E., bounded on the East by Union Avenue, S.E., and bounded on the South by the North line of Charles Jones' addition, according to the recorded plat thereof.
(Ord. No. 74-72, 9-10-74)

Sec. 5.420. German-English School House Historic Landmark.

That the following described property at 327 Front Avenue, N.W., be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids:

Commencing at the southwest corner of Front Avenue and Douglas Street, thence west 100 feet, south 40 feet, east 100 feet and north 40 feet to the place of beginning.
(Ord. No. 74-72, 9-10-74)

Sec. 5.421. Reserved.

Sec. 5.422. Ledyard Building Historic Landmark.

That the following described property at 125-145 Ottawa Avenue N.W. be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids:

Plat of the Village of Grand Rapids the northerly 44 feet of Lot 7, Block 8 lying northerly and easterly of alley, also

That part of the east 90 feet of the southerly 44 feet of Lot 8, Block 8 lying east of alley, also

The east 102.50 feet of Lot 8, Block 8 except the southerly 44 feet thereof, also

The east 102.50 feet of Lot 9, Block 8.
(Ord. No. 74-72, 9-10-74)

Sec. 5.423. Old Federal Building (U.S. Courthouse) Historic Landmark.

That the Old Federal Building, also known as the U.S. Courthouse, located at 148 Ionia Avenue N.W. be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.
(Ord. No. 75-97, 11-18-75)

Sec. 5.424. Cobblestone Portion of Trowbridge Street N.E. Historic Landmark.

That the cobblestone portion of Trowbridge Street N.E., that being the portion of Trowbridge Street N.E. situated between Lafayette Avenue N.E. and Clancy N.E. be designated an historic landmark and be subject to the terms, conditions

and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.
(Ord. No. 75-97, 11-18-75)

Sec. 5.425. Cobblestone Portion of North Avenue N.E. Historic Landmark.

That the cobblestone portion of North Avenue N.E., being that portion of North Avenue N.E. situated between Walnut N.E. and Cedar N.E. be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.
(Ord. No. 75-97, 11-18-75)

Sec. 5.426. St. Andrew's Catholic Cathedral Historic Landmark.

That the following described property at 267 Sheldon Avenue S.E. be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids:

Lots 1, 2, 15 and 16 of Block 20, Bostwick and Company's Addition, and the vacated portion of Maple Street between S. Division Avenue and Sheldon Avenue S.E.
(Ord. No. 75-97, 11-18-75)

Sec. 5.427. Ladies Literary Club Historic Landmark.

That the following described property at 61 Sheldon Boulevard S.E. be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids:

Lot 5, Block 17, and North 37.5 feet of Lot 6, Block 17, Bostwick and Company's addition.
(Ord. No. 75-97, 11-18-75)

Sec. 5.428. Oakhill Cemetery Historic Landmark.

That the following described property located at 603 Hall Street S.E. be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids:

Bounded on the East by Eastern Avenue S.E., bounded on the South by Adams Street S.E., bounded on the West by Union Avenue S.E. and the East boundaries of Eaton's addition, Robinson's Fairgrounds addition and Campbell and Underwood's 2nd addition, according to the recorded plats thereof; bounded on the North by a line parallel to and 14 feet South of the South boundary of Doran's Assessor's Plat No. 22.

Sec. 5.429. First (Park) Congregational Church Historic Landmark.

That the following described property at 10 East Park Place N.E. be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids:

Lots 3 and 4, Section 22 and the North 51.92 feet of Lots 2 and 5, Section 22 of the plat of the Village of Grand Rapids.
(Ord. No. 75-97, 11-18-75)

Sec. 5.430. Veteran's Memorial (Fulton Street) Park Historic Landmark.

That the following described property at 101 E. Fulton Street be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids:

Bounded on the South by E. Fulton Street, bounded on the East by east Park Place N.E., bounded on the North by Library Street N.E. and bounded on the West by Sheldon Avenue N.E.
(Ord. No. 75-97, 11-18-75)

Sec. 5.431. Monument Park/Civil War Memorial Site Historic Landmark.

That the Monument Park/Civil War Memorial Site at Division Avenue and Fulton Street be designated an historic landmark and be subject to the terms, conditions and requirements of this

Chapter 68 of Title V of the Code of the City of Grand Rapids:

Bounded by north line of Fulton Street on the south, east line of Division Avenue on the west and north line of Monroe Avenue on the north and east.

(Ord. No. 77-15, 6-28-77)

Sec. 5.432. John Ball Memorial Historic Landmark.

That the John Ball Memorial in the John Ball Park located on City property be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.

(Ord. No. 77-15, 6-28-77)

Sec. 5.433. Woodlawn Cemetery Historic Landmark.

That the Woodlawn Cemetery located on the west and east of Kalamazoo Avenue be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids:

West of Kalamazoo Avenue

Part of the Southeast1/4 of Section 8, Town 6 North, Range 11 West, commencing at a point 33 feet South of the center of said Section, thence South along North and South1/4 line 1080 feet more or less, thence South 87° East 800 feet, thence North 8° East 225 feet, thence North 26° East 300 feet, thence North 43° 15′ East 545 feet more or less to the Westerly line of Kalamazoo Avenue (66 feet wide), thence North 24° West along said Westerly line 150 feet to the South line of Alger Street, thence South 86° 30′ West along said Southerly line to place of beginning.

East of Kalamazoo Avenue

Part of Sections 8 and 9, Town 6 North, Range 11 West, commencing at a point 620 feet South 24° East along the centerline of Kalamazoo Avenue and 33 feet Easterly at right angles to said centerline, being on the East line of Kalamazoo Avenue, thence South 79° East 355 feet, thence North 4° West 210 feet, thence North 86° East 650 feet, thence South 69° East 680 feet, thence South 37° 575 feet, thence South 26° West 600 feet, thence North 51° West 260 feet, thence South 68° West 240 feet, thence South 88° West 290 feet, thence North 68° West 305 feet, thence North 42° West 190 feet, thence North 84° West 220 feet more or less to the Easterly line of Kalamazoo Avenue, thence North 24° West 845 feet more or less to place of beginning.

(Ord. No. 77-25, 6-28-77)

Sec. 5.434. Garfield's House Historic Landmark.

That the Garfield's House located at 300 Burton Street, S.E., be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 69 of Title V of the Code of the City of Grand Rapids:

Part of lot 9, commencing at NE corner of sd lot 9; th W along S line of Burton St. 236.5 ft.; th S 220 ft,; th Ely par with S line of Burton St. 64.8 ft. to Wly line of lot 10 sd. subd. N; th NEly along Wly line of sd lot 10 sd Wly line extended Nly 91.61 ft.; th Ely par w S line of Burton St. to Wly line of Jefferson Drive; th Nly along Wly line of Jefferson Dr. 130.04 ft. to beg. except com at NE corner of sd lot 9; th W along S line of Burton 110 ft.; th S at rt. angles to S line of Burton St. 120 ft.; th E par with S line of Burton St. to Wly line of Jefferson Dr.; th Nly to Beg: Burton Farms Subdivision.

(Ord. No. 77-25, 6-28-77)

Sec. 5.435. Garfield's Grave Historic Landmark.

That the Garfield's Grave located in Garfield Park be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.

(Ord. No. 77-25, 6-28-77)

Sec. 5.436. Uhl-hall House Historic Landmark.

That the Uhl-Hall House located at 512 Overbrook Lane, S.E., be designated an historic land-

mark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids:

That Part of lot 1 Overbrook Plat lying Wly of a line par with E line of sd Plat running thru a pt which is 80 ft. W of the SW cor of lot 22 sd plat excluding therefrom that part of sd lot 1 lying W of a line which is 100 ft. E of and par with the extreme W line of sd lot 1. Also excluding any part thereof lying S of S bank of Plaster Creek.

(Ord. No. 77-25, 6-28-77)

Sec. 5.437. Shanahan House Historic Landmark.

That the Shanahan House Historic Landmark located at 1330 Plainfield Avenue be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.

Rear 160 ft. of the Homestead Block bounded by Grove Street on the north, Carman Avenue on the east, Shanahan Street on the south end, Plainfield Avenue on the west.

(Ord. No. 77-25, 6-28-77)

Sec. 5.438. Seventh Day Adventist Church Historic Landmark.

That the Seventh Day Adventist Church located at 100 Sheldon Avenue, S.E., be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids:

Lot 15 and 16, Blk 12 Bostwick and Co's Addition.

(Ord. No. 77-25, 6-28-77)

Sec. 5.439. Fountain Street Church.

That the Fountain Street Church located at 24 Fountain Street, N.E., be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids:

Lots 1 and 2 of Block 20 and the North 41 feet of the east 121 feet of Lot 12, Blk. 20, Plat of Village of Grand Rapids, Campau Plat so called.

Also part of lots 3 and 4 of said same block and plat commencing at a point on the south line of Fountain Street 147.44 feet east of the northwest corner of lot 5 of said block thence southerly 92 feet to a point 2 feet east of the west line of lot 3 thence southerly and parallel with the west line of lot 3, 40 feet to the south line of lot 3 thence east along the south line of lot 3 to the southeast corner of said lot 3, thence north along the east line of lot 3 to the south line of Fountain Street thence west along the south line of said street to the place of beginning.

(Ord. No. 79-46, 7-3-79)

Sec. 5.440. Briggs Farm Homestead.

That the Briggs Farm Homestead located at 2420 Plainfield Avenue, N.E., be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.

Lots 380 and 381 of Pasadena Subdivision.

(Ord. No. 79-46, 7-3-79)

Sec. 5.441. Fire Engine House No. 6.

That Fire Engine House No. 6, a City-owned property located at 312 Grandville Avenue S.W. be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids:

That part of Lots 1, 2, 18, and 19 Block 14 lying East of Grandville Avenue, Ellsworth Addition.

(Ord. No. 79-46, 7-3-79)

Sec. 5.442. Greenwood Cemetery.

That the following described property known as Greenwood Cemetery located at Leonard Street and Bristol Avenue N.W. be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids:

All of the West½ of the southwest¼ of Section 14 Town 7 north, Range 12 north except public street right-of-ways.

(Ord. No. 79-81, 11-27-79)

Sec. 5.443. Moses V. Aldrich Memorial.

That the Moses V. Aldrich Memorial located on City property in John Ball Park be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.
(Ord. No. 79-81, 11-27-79)

Sec. 5.444. Belknap Statue.

That the Belknap Statue located on City property in Belknap Park be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.
(Ord. No. 79-81, 11-27-79)

Sec. 5.445. Jacob Aman Grave Site.

That the Jacob Aman Grave Site located on City property in Aman Park be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.
(Ord. No. 79-81, 11-27-79)

Sec. 5.446. Campau Trading Post Site Tablet.

That the Campau Trading Post Site Tablet located at 201 Pearl Street, N.W. (northwest corner of Pearl Street and Monroe Avenue N.W.) be designated as an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids provided, however, that the described terms, conditions and requirements shall not be applicable to other land, property, buildings or improvements located on the site.
(Ord. No. 79-81, 11-27-79)

Sec. 5.447. Indian Mission Site Tablet.

That the Indian Mission Site Tablet located at 337 Front Street, N.W. (northwest corner of Front Street and Douglas Avenue N.W.) be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids provided, however, that such described terms, conditions and requirements shall not be applicable to other land, property, buildings or improvements located on the site.
(Ord. No. 79-81, 11-27-79)

Sec. 5.448. Garfield Park Lodge.

That the Garfield Park Lodge located on City property in Garfield Park be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.
(Ord. No. 79-81, 11-27-79)

Sec. 5.449. Heartside Historic District.

(1) That the following designated area within the City of Grand Rapids be and is hereby designated an Historic District and shall be subject to the terms, conditions and requirements of this Chapter 68 of the Grand Rapids City Code:

> The boundaries of the Heartside Historic District are hereby established as shown on a map entitled "The Heartside Historic District of the City of Grand Rapids" and dated September 9, 2003, which is incorporated into and made a part of this Section and which is kept on file by the Grand Rapids Planning Department.

(2) The 2017 adoption of this ordinance establishes the Period of Significance for the Heartside Historic District as 1860 through 1959.
(Ord. No. 79-86, 12-4-79; Ord. No. 84-32, § 1, 5-1-84; Ord. No. 99-53, § 1, 9-28-99; Ord. No. 2003-34, § 1, 9-9-03; Ord. No. 2017-61, § 1, 12-12-17)

Sec. 5.450. The Holmdene Estate Historic Landmark.

That the following described buildings of the Holmdene Estate located at 1607 Robinson Road, S.E., within the Aquinas College Campus, be designated as historic landmarks and be subject

to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids:

The Edward Lowe Mansion and Gardens.

The Carriage Barns.

The Lodge House (Gate House).

The Stables.

The Winery.
(Ord. No. 80-13, 2-19-80)

Sec. 5.451. The Castle Historic Landmark.

The Castle, located at 455 Cherry Street, S.E., be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.
(Ord. No. 80-13, 2-19-80)

Sec. 5.452. Coit Elementary School Landmark.

That the Coit Elementary School located at 617 Coit Avenue, N.E., be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.
(Ord. No. 80-52, 7-1-80)

Sec. 5.453. Monroe Water Filtration Plant Landmark.

That the Monroe Water Filtration Plant located at 1430 Monroe Avenue, N.W., be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.
(Ord. No. 80-52, 7-1-80)

Sec. 5.454. Rapistan Schoolhouse Landmark.

That the Rapistan Schoolhouse formerly known as Grand Rapids Township School District No. 6 and located at 1755 Michigan Street, N.E., be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of the Code of the City of Grand Rapids.

East 148 feet of the south 198 feet of the west one-half of the southwest one-quarter of Section 21, Tract 7 north, Range 11 west.
(Ord. No. 80-52, 7-1-80)

Sec. 5.455. Grand Rapids Study Clubhouse Landmark.

That the Grand Rapids Study Clubhouse located at 427 James Avenue, S.E., be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of the Code of the City of Grand Rapids.

Lot 131 and north 2.78 feet of Lot 134 Grand Rapids Homestead Association Subdivision of a part of the Remington Addition.
(Ord. No. 80-52, 7-1-80)

Sec. 5.456. Former Fire Engine House No. 9 Landmark.

That the Former Fire Engine House No. 9 located at 527 Leonard Street, N.W., be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of the Code of the City of Grand Rapids.

South 100 feet of Lot 15 and the south 100 feet of the west 10 feet of Lot 16, Wieland's Addition.
(Ord. No. 80-52, 7-1-80)

Sec. 5.457. Fitch House Landmark.

That the Fitch House located at 39 Fitch Place S.E., be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of the Code of the City of Grand Rapids.

Lots 2 and 3 James Fitch Addition.
(Ord. No. 80-52, 7-1-80)

Sec. 5.458. Calumet Flats Landmark.

That the building known as Calumet Flats located at 301 South Division Avenue be designated an historic landmark and be subject

to the terms, conditions and requirements of this Chapter 68 of the Code of the City of Grand Rapids.

Lot 1, Block 3 and North 5 feet of Lot 10 Block 3, Ellsworth's Addition.

(Ord. No. 80-84, 12-2-80)

Sec. 5.459. Karl (Aldrich) Building Landmark.

That the Karl (Aldrich) Building located at 98 Monroe Center, N.W., be designated as an historic landmark and be subject to the terms, con-

ditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.

Part of Lot 1, Section 10, Commencing at the northeast corner of Monroe Center and Ottawa Avenue, N.W., thence southeasterly along the North line of Monroe Center 25 ft., thence northeasterly at right angles to Monroe Center 54 ft., thence westerly to the East line of Ottawa Avenue at a point 35.75 ft. North of the place of beginning, thence south to the place of beginning, Plat of the Village of Grand Rapids, Campau Plat, so-called.

(Ord. No. 81-9, 2-3-81)

Sec. 5.460. Church of God in Christ Landmark.

That the Church of God in Christ Building located at 1009 Hermitage Street, S.E., be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.

Lots 11 and 12, Block 10 except the North 7 ft. thereof, E.P. Fuller's Subdivision.

(Ord. No. 81-9, 2-3-81)

Sec. 5.461. Flat Iron Building Landmark.

That the Flat Iron Building located at 102-108 Monroe Center, N.W, be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.

(Ord. No. 81-56, 7-7-81)

Sec. 5.462. Commercial Building Landmarks.

That five (5) unnamed commercial buildings located at 112 through 124 Monroe Center, N.W., be designated historic landmarks and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.

(Ord. No. 81-56, 7-7-81)

Sec. 5.463. Charles C. Comstock House.

That the Charles C. Comstock House located at 151 Boltwood Drive N.E., be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids:

Lot 646 Riverside Gardens Addition No. 21.

(Ord. No. 82-11, 3-30-82)

Sec. 5.464. Reserved.

Editor's note—Ord. No. 85-33, § 1, adopted May 14, 1985, repealed § 5.464, which pertained to the former Temple Emanuel/former Holy Trinity Greek Orthodox Church landmark designation, as derived from Ord. No. 82-59, adopted July 20, 1982.

Sec. 5.465. Former Clark/Wurzburg House.

That the former Clark/Wurzburg House located at 1033 Lake Drive, S.E., be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.

Part of the east one half of the southwest one quarter of Section 29, Tract 7 north, Range 11 west. Bounded on the south by Lake Drive, on the east by Luton S. Addition, on the north by Paddock S Subdivision and Dennis Subdivision, and on the west by Paddock Ave. Also lots 10, 11, 12, 13, 14 and 15 Luton S. Addition and vacated alley lying south of said lot 12.

(Ord. No. 82-59, 7-20-82)

Sec. 5.466. George W. Welsh Civic Auditorium.

That the front portion of the George W. Welsh Civic Auditorium located on Lyon Square, N.W. and including the south face of the main building, the enclosed lobby, the open portico, and columnated front facade be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.

(Ord. No. 85-35, § 1, 5-28-85)

Sec. 5.467. Meyer May House.

That the Meyer May House located at 450 Madison Avenue SE be designated an historic land-

mark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.

Lot 29 and West 31.35 feet of Lot 28 Mills Second Addition.
(Ord. No. 86-64, § 1, 11-18-86)

Sec. 5.468. Villa Maria.

That Villa Maria, located at 1315 Walker Avenue NW, be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.
(Ord. No. 87-37, § 1, 6-16-87)

Sec. 5.469. Louis Campau Gravesite.

The Louis Campau Gravesite, located in St. Andrews Cemetery, be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.
(Ord. No. 90-40, § 1, 4-24-90)

Sec. 5.470. Hebe Fountain.

The Hebe Fountain, located at the entrance of the Michigan Veteran's Facility, 3000 Monroe NE, be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.
(Ord. No. 90-85, § 1, 11-20-90)

Sec. 5.471. Gerald R. Ford, Jr. Boyhood Home.

The Gerald R. Ford, Jr. Boyhood Home, located at 649 Union SE, be designated an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.
(Ord. No. 90-85, § 1, 11-20-90)

Sec. 5.472. Calder Sculpture La Grande Vitesse.

The Calder sculpture La Grande Vitesse, located at the Calder Plaza be designated as an historic landmark and be subject to the terms, conditions and requirements of this Chapter.
(Ord. No. 91-2, § 1, 1-8-91)

Sec. 5.473. Grand Rapids—Indiana Railroad Bridge.

The Grand Rapids—Indiana Railroad Bridge, a pedestrian bridge over the Grand River located south of Pearl Street, be designated as an historic landmark and be subject to the terms, conditions and requirements of this Chapter.
(Ord. No. 91-2, § 1, 1-8-91)

Sec. 5.474. Boulevard House.

That the Boulevard House located at 951—953 Cherry Street, S.E. be designated as an Historic Landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.
(Ord. No. 91-55, § 1, 11-5-91)

Sec. 5.475. Sixth Street Bridge.

That the Sixth Street Bridge, located over the Grand River connecting Newberry Street, N.W., and Sixth Street N.W., be designated an Historic Landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.
(Ord. No. 92-60, § 1, 9-29-92)

Sec. 5.476. Former Wealthy Theatre.

The Former Wealthy Theatre, located at 1130 Wealthy Street, S.E. (Lot 5, Block 2, Barth's Addition) be designated as an Historic Landmark and is hereby subject to the terms, conditions and requirements of this Chapter 68, Title V of the Code of the City of Grand Rapids.
(Ord. No. 94-22, § 1, 6-7-94)

Sec. 5.477. Cherry Hill Historic District.

That the following identified area within the City of Grand Rapids be and is hereby designated an historic district and shall be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.

The boundaries of the Cherry Hill Historic District are hereby established as shown on a map entitled "The Cherry Hill Historic District of the City of Grand Rapids, Michigan," which is incor-

porated into and made a part of this Chapter, and which is kept by the Grand Rapids Planning Department.
(Ord. No. 94-26, § 1, 6-28-94)

Sec. 5.478. Charles A. Hauser Historic Landmark.

That the following described area within the City of Grand Rapids be designated as an Historic Landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.

Lot 32 and the north 36 feet of Lot 30, Gold Street Blk., Scribner's Addition.
(Ord. No. 96-43, § 1, 11-12-96)

Sec. 5.479. Wealthy Theater Historic District.

That the following described area within the City of Grand Rapids be designated as an historic district and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.

The boundaries of the Wealthy Theater Historic District are hereby established as shown on the map titled "The Wealthy Theater Historic District of the City of Grand Rapids, Michigan," which is incorporated into and made a part of this chapter, and which is kept by the Grand Rapids Planning Department.
(Ord. No. 97-52, § 1, 11-4-97)

Sec. 5.480. Aldrich Block Historic Landmark.

That the following described area within the City of Grand Rapids be designated as an Historic Landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids. "Lots 1 and 2, Sec. 11, Plat of the Village of Grand Rapids, Campau Plat so called."
(Ord. No. 97-57, § 1, 12-2-97)

Sec. 5.481. Peck Block Historic Landmark.

That the following described area within the City of Grand Rapids be designated as an Historic Landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.

Lots 6 and 7, also part of Lot 8, Section 17, described as: Commencing at a point on the east line of Section 17, 170 feet north of the most southerly corner of said Section 17, thence westerly 47 feet to a point of intersection with the southerly line of Lot 8, thence southeasterly along said southerly line to the east line of Lot 8, thence northerly along said east line to the place of beginning, Plat of the Village of Grand Rapids, Campau Plat so called.
(Ord. No. 98-13, § 1, 4-28-98)

Sec. 5.482. Fairmount Square Historic District.

That the following identified area within the City of Grand Rapids be and is hereby designated an historic district and shall be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.

The boundaries of Fairmount Square Historic District are hereby established as shown on a map entitled "The Fairmount Square Historic District of the City of Grand Rapids, Michigan," which is incorporated into and made a part of this Chapter, and which is kept by the Grand Rapids Planning Department.
(Ord. No. 99-60, § 1, 11-9-99)

Sec. 5.483 Berkey and Gay Company Furniture Factory Historic Landmark.

That the following described area within the City of Grand Rapids be designated as an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.

Lots 519, 526, 527, 534, 535, 542 and 543 and that part of lots 550 and 551 lying Southwesterly of the Grand Trunk Western Railroad right-of-way, ALSO vacated Walbridge Street adjacent thereto, all being in the plat of the Village of Kent (commonly called Kent Plat), Section 24, Town 7 North, Range 12 West, City of Grand Rapids, Kent County, Michigan (as recorded in Liber 19 of Plats, pages 12 and 13)

and all being described as: BEGINNING at the Southwest corner of said lot 519; thence North 12°58′17″ East 968.05 feet along the East right-of-way line of Monroe Avenue; thence South 31°32′01″ East 68.43 feet along the Westerly right-of-way line of the Grand Trunk Western Railroad; thence Southerly 205.55 feet along said right-of-way line on a 438.04 foot radius curve to the right, the chord of which bears South 18°05′28″ East 203.67 feet; thence South 89°48′51 East 30.47 feet along the centerline of vacated Walbridge Street; thence South 08°17′37″ West 698.59 feet along the East right-of-way line vacated Ottawa Place (Bond Avenue Alley); thence South 89°59′33″ West 246.03 feet along the North right-of-way line of Mason Street to the place of beginning.

(Ord. No. 2000-51, § 1, 9-5-00)

Sec. 5.484. 400—406 Bridge Street NW Historic Landmark.

That the following described area within the City of Grand Rapids be designated as an historic Landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.

Lots 1, 2, 3, and 4, Section 25, Township 7 North, Range 12 West, J.W. Converse Plat, City of Grand Rapids, Kent County.

(Ord. No. 2001-36, § 1, 9-11-01; Ord. No. 2005-10, § 1, 2-8-05)

Sec. 5.485. The Michigan Trust Company Building Historic Landmark.

That the following described area within the City of Grand Rapids be designated as an historic landmark and be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.

Lot 1, Section 9, also Lot 2 Section 9, extending south 0.84 feet and extending north 0.17 feet of the south 1.01 feet of the east 16.31 feet of west 115.31 feet, also part of Lots 7 and 8 of Section 9, commencing 6.04 feet east along the north line of said Lot 8 from the northwest corner thereof, thence west 6.04 feet to the northwest corner of said Lot, thence south to the southwest corner of said Lot 7, thence east along the south Lot line 4.51 feet, thence north to the beginning extending south 0.84 feet. Plat of the Village of Grand Rapids, also known as Campau Plat, commonly known as 40 Pearl Street NW.

(Ord. No. 2002-39, § 1, 7-23-02)

Sec. 5.486. American Seating Company Historic District.

That the following described area within the City of Grand Rapids is hereby designated an Historic District and shall be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.

All of Town Lot 1, Smith and VanAllen's Addition to the City of Grand Rapids, Kent County, Michigan, according to the recorded plat thereof, lying East of the Railroad right of way. ALSO part of Lot 2, Amended Plat of Town Lots 2 and 3, Smith and VanAllen's Addition to the City of Grand Rapids, Kent County, Michigan, according to the recorded plat thereof, lying East of the Railroad right of way. TOGETHER WITH AND SUBJECT TO a non-exclusive easement for ingress and egress over the South 30.00 feet of Lot 3 of Amended Plat of Town Lots 2 and 3, Smith and VanAllen's Addition.

(Ord. No. 2003-17, § 1, 5-6-03)

Sec. 5.487. Metal Office Furniture Company Historic District.

(1) That the following described area within the City of Grand Rapids is hereby designated an Historic District and shall be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.

The Metal Office Furniture Company Plants No. 2 and 3 are located on the near southwest side of Grand Rapids, Michigan at 401 Hall Street SW. The area is legally described as: Commencing at the northeast corner of Lot 14, Caulfield's Subdivision of part of Blocks 7 and 8 Caulfield's Subdivision of Caulfield's Second Addition, thence easterly along a northerly line of said block to a point 13 feet westerly of the westerly line of Century Avenue, thence southerly parallel to Century Avenue to the north

line of Hall Street, thence west to a point 118 feet east of Sheridan Avenue, thence northerly parallel to Sheridan Avenue to the beginning.

(Ord. No. 2004-20, § 1, 4-27-04)

Sec. 5.488. Mathias Alten House Historic District.

That the following described area within the City of Grand Rapids is hereby designated an Historic District and shall be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.

The Mathias Alten House located on the northwest corner of Alten Avenue and East Fulton Street of Grand Rapids, Michigan at 1593 East Fulton Street. The area is legally described as: Lot 15, Alten Plat.

(Ord. No. 2007-34, § 1, 6-19-07)

Sec. 5.489. Rood Building Historic District.

That the following described area within the City of Grand Rapids is hereby designated an Historic District and shall be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.

The Rood Building is located on the north side of Pearl Street NW east of Monroe Avenue NW of Grand Rapids, Michigan at 139 Pearl Street NW. The area is legally described as:

Parcel A: Commencing on the east line of Monroe Avenue (formerly Canal Street) 66 feet north of the corner of said Monroe Avenue and Pearl Street and running thence East 67-1/2 feet; thence North 39 feet to a point 27 feet south of the north line of Block 1 of Campau Plat; thence West 67-1/2 feet parallel with said north line to said Monroe Avenue and thence south on the east line of said Monroe Avenue to the place of beginning.

Parcel B: Commencing on the North line of Pearl Street at the southeast corner of the Rood Building so called, being 97-1/2 feet east of the intersection of the north line of Pearl Street and the east line of Monroe Avenue (formerly Canal Street); thence north along the east line of the east wall of Rood Building about 78 feet to the angle in said wall; thence east along centerline of the wall or walls between said Rood Building and the Powers Opera House Building and on that line produced to the center of the Arcade 30 feet to the north line of the Rood Block produced East; thence west to the southeast corner of the Lyon Block, so called, thence west along the south line of the south wall of said Lyon Block produced northerly; thence south along the line of said west line of said westerly wall of said Rood Block about 108 feet to the north line of Pearl Street; thence east along the north line of Pearl Street 80 feet to beginning.

(Ord. No. 2011-28, 8-9-11)

Sec. 5.490. Century Furniture Building Historic District.

That the following described area within the City of Grand Rapids is hereby designated an Historic District and shall be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.

The Century Furniture Building is located on the south side of Logan Street SW, east of Ionia Street SW, of Grand Rapids, Michigan, at 40 Logan Street SW. The area is legally described as:

LOT 4 BLK 1 EX S 0.80 FT OF W 46.0 FT ALSO LOT 5 BLK 1 EX S 0.80 FT ALSO LOT 6 BLK 1 EX 0.80 FT ALSO LOT 7 BLK 1 ALSO LOT 8 BLK 1 EX S .80 FT* GRANT'S ADDITION.

(Ord. No. 2011-43, 10-11-11)

Sec. 5.491. Congress School Historic District—940 Baldwin SE Historic District and Expansion of the Fairmount Square Historic District to Include Congress School—940 Baldwin SE.

That Congress School (940 Baldwin SE), as described below, be designated as a single resource historic district, and be included within the

expanded boundaries of the Fairmount Square Historic District, as described below, which shall be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.

"The Fairmount Square Historic District is roughly bounded by properties on the west side of Eastern Avenue to the west, Wealthy Street to the South, properties on the east side of Diamond Avenue to the east and properties on the south side of Lake Drive to the north. The District will be expanded north across Lake Drive SE to incorporate the Congress School building and site, located at 940 Baldwin SE." The expansion area is legally described as:

> Lots 10 thru 19, Block 2 inclusive; also Lots 1 thru 12, Block 3 inclusive; also that part of the vacated portion of Congress Avenue lying between said Blocks 2 and 3 and lying between the South line of Baldwin Street and the Northerly line of Lake Drive. Merrill & Nims Addition, City of Grand Rapids, Kent County, Michigan.

(Ord. No. 2013-07, 2-19-13)

Sec. 5.492. Dean-Kendall House—2350 Leonard Street NW Historic Landmark.

That the following described property within the City of Grand Rapids is hereby designated an Historic Landmark and shall be subject to the terms, conditions and requirements of this Chapter 68 of Title V of the Code of the City of Grand Rapids.

The property is legally described as:

> Parcel: 2350 Leonard Street NW (41-13-22-101-001)
>
> Description: NW ¼ NW ¼ NW ¼ NW ¼ SEC 22 T7N R12 W 2.50A

(Ord. No. 2026-08, § 1, 4-14-26)

Secs. 5.493—5.550. Reserved.

Chapter 69

NEIGHBORHOOD ENTERPRISE ZONES

Sec. 5.551. Purpose.
Sec. 5.552. Definitions.
Sec. 5.553. Designation of Zones.
Sec. 5.554. Application for Certificate.
Sec. 5.555. Inspections.
Sec. 5.556. Issuance of Certificate of Compliance.
Sec. 5.557. Inspection fee.
Secs. 5.558—5.574. Reserved.

Sec. 5.551. Purpose.

The purpose of this chapter is to preserve Grand Rapids neighborhoods and to further the maintenance, preservation, improvement and development of housing for all persons regardless of income level; to provide that the City, by resolution, may designate one or more neighborhood enterprise zones pursuant to the Michigan Neighborhood Enterprise Zone Act, Public Act 147 of 1992, as amended, being M.C.L.A. 207.771 et seq.; and to encourage, through ad valorem property tax benefits established by said Act, the construction of new structures that have as their primary purpose owner-occupied one or two unit residential housing and the rehabilitation of existing structures having as their primary purpose residential housing consisting of one to eight units, and under specific circumstances for newly constructed market rate rental residential projects, by bringing them into conformity with minimum Building and Housing Code standards and improving the livability of units.
(Ord. No. 2004-27, § 1, 5-25-04; Ord. No. 2013-71, § 1, 11-12-13)

Sec. 5.552. Definitions.

As used in this chapter:

(1) *Certificate of compliance* means a certificate issued by the Building Official, or his or her designee, attesting to the fact that a new, rehabilitated or market rate rental facility for which an enterprise zone certificate is in effect is in compliance with the construction or safety codes of the City.

(2) *Neighborhood enterprise zone* means any zone designated by the City by resolution as a neighborhood enterprise zone pursuant to the requirements of the Michigan Neighborhood Enterprise Zone Act, Public Act 147 of 1992, as amended, being M.C.L.A. 207.771 et seq.

(3) *Neighborhood enterprise zone certificate* means a certificate as defined and issued pursuant to the Neighborhood Enterprise Zone Act.

(4) *New facility* means 1 or both of the following:

(i) A new structure or a portion of a new structure that has as its primary purpose residential housing consisting of 1 or 2 units, 1 of which is or will be occupied by an owner as his or her principal residence. New facility includes a model home or a model condominium unit. New facility includes a new individual condominium unit, in a structure with 1 or more condominium units that has as its primary purpose residential housing and that is or will be occupied by an owner as his or her principal residence.

(ii) A new structure or a portion of a new structure that meets all of the following:

(A) Is rented or leased or is available for rent or lease.

(B) Is a mixed use building or located in a mixed use building that contains retail business space on the street level floor.

(C) Is located in a qualified downtown revitalization district.

(5) *Owner* means the record title holder of, or the vendee of the original land contract pertaining to a new facility or a rehabilitated facility for which a neighborhood enterprise zone certificate is applied for or issued.

(6) *Rehabilitated facility* means an existing structure or a portion of an existing structure with a current true cash value of $80,000.00 or less per unit that has or will have as its primary purpose residential housing, consisting of 1 to 8 units, the owner of which proposes improvements that if done by a licensed contractor would cost in excess of $5,000.00 per owner-occupied unit or 50% of the true cash value, whichever is less, or $7,500.00 per nonowner-occupied unit or 50% of the true cash value, whichever is less, or the owner proposes improvements that would

be done by the owner and not a licensed contractor and the cost of the materials would be in excess of $3,000.00 per owner-occupied unit or $4,500.00 per nonowner-occupied unit and will bring the structure into conformance with minimum Grand Rapids Housing Code standards for occupancy or improve the livability of the units while meeting minimum Grand Rapids Housing Code standards. Rehabilitated facility also includes an individual condominium unit, in a structure with 1 or more condominium units that has as its primary purpose residential housing, the owner of which proposes the above described improvements. Rehabilitated facility also includes existing or proposed condominium units in a qualified historic building with 1 or more existing or proposed condominium units. Rehabilitated facility does not include a facility rehabilitated with the proceeds of an insurance policy for property or casualty loss. A qualified historic building may contain multiple rehabilitated facilities.

(Ord. No. 2004-27, § 1, 5-25-04; Ord. No. 2013-71, § 1, 11-12-13)

Sec. 5.553. Designation of Zones.

The City, by resolution, may designate one or more neighborhood enterprise zones.

(1) A neighborhood enterprise zone for rehabilitation and new construction shall contain not less than ten (10) platted parcels of land. A neighborhood enterprise zone located in a qualified downtown revitalization district may contain less than 10 platted parcels if the platted parcels together contain 10 or more facilities. All the land within a neighborhood enterprise zone shall also be compact and contiguous. Contiguity is not broken by a road, right-of-way, or property purchased or taken under condemnation.

(2) The total acreage of the neighborhood enterprise zones designated under this section shall not exceed fifteen (15) percent of the total acreage contained within the boundaries of the City.

(Ord. No. 2004-27, § 1, 5-25-04; Ord. No. 2013-71, § 1, 11-12-13)

Sec. 5.554. Application for Certificate.

Once a Neighborhood Enterprise Zone is established in the manner provided in Section 5.553 and the Neighborhood Enterprise Zone Act, any person who proposes to construct a new facility or to rehabilitate property located in a Neighborhood Enterprise Zone, and who intends to seek the tax benefits provided in the Neighborhood Enterprise Zone Act, may file an application for a Neighborhood Enterprise Zone Certificate with the City's Economic Development Office. The application must be filed before a building permit is issued for the work proposed and shall be filed in the form and manner prescribed for in said Act. The City shall charge a non-refundable application fee set by City Commission resolution approving City Commission Policy to be paid with the filing of the application. The application for a certificate shall be subject to the requirements, approvals and conditions of the Neighborhood Enterprise Zone Act.

(Ord. No. 2004-27, § 1, 5-25-04; Ord. No. 2013-71, § 1, 11-12-13)

Sec. 5.555. Inspections.

(1) Before the sale of a new facility, rehabilitated or rental facility for which a neighborhood enterprise zone certificate is in effect, an inspection by the City shall be requested and made to determine compliance with the construction or safety codes of the City.

(2) No sale of any new, rehabilitated, or rental facility for which a neighborhood enterprise zone certificate is in effect may be finalized until there is compliance with the construction or safety codes of the City, and a certificate of compliance attesting to the fact is issued by the City Manager or his or her designee.

(Ord. No. 2004-27, § 1, 5-25-04; Ord. No. 2013-71, § 1, 11-12-13)

Sec. 5.556. Issuance of Certificate of Compliance.

(1) A certificate of compliance shall be issued only after the new, rehabilitated, or market rate rental facility has been inspected and meets the requirements of the construction or safety codes of the City. An inspection report shall be completed by the inspector after the inspection is completed. The report shall note all violations found in the facility. Before a certificate of compliance is issued, all violations must be corrected and the required inspection fee paid.

(2) After issuance, a certificate of compliance shall only be valid for one sale of a new, rehabilitated, or market rate rental facility. A new inspection and certificate of approval shall be required each time a new or rehabilitated facility is sold.

(Ord. No. 2004-27, § 1, 5-25-04; Ord. No. 2013-71, § 1, 11-12-13)

Sec. 5.557. Inspection Fee.

The City shall charge a non-refundable inspection fee which shall be set by Commission resolution and paid in advance of the certificate of approval inspection.

(Ord. No. 2013-71, § 1, 11-12-13)

Secs. 5.558—5.574. Reserved.

Chapter 70

RESERVED

Secs. 5.575—5.999. Reserved.

CODE

OF THE

CITY OF

GRAND RAPIDS, MICHIGAN

Volume II

GENERAL ORDINANCES OF THE CITY

Published by Order of the City Commission

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CLEAN AIR AND PUBLIC PLACES ORDINANCE*

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Sec. 6.14.	Effective Date.

*__Editor's note—__Ord. No. 2020-50, § 1, adopted October 27, 2020, repealed the former Ch. 71, §§ 6.1—6.14, and enacted a new Ch. 71 as set out herein. The former Ch. 71 pertained to clean indoor air ordinance and derived from Ord. No. 2006-71, § 2, 10-17-06; Ord. No. 2007-38, §§ 1, 2, 7-10-07.

__Cross references—__Solid waste management, Ch. 25; sewage disposal, Ch. 27; health and safety standards for dwellings, accessory buildings and yards, § 8.535 et seq.; Building Maintenance Code, Ch. 135; nuisances, Ch. 151; waterways, Ch. 154; animals, Ch. 155; fire prevention, Ch. 159.

Sec. 6.1. Title.

Chapter 71 shall be known as the "Clean Air & Public Places Ordinance" of the City of Grand Rapids.
(Ord. No. 2020-50, § 1, 10-27-20)

Sec. 6.2. Purpose.

This Chapter shall serve to protect the public health, safety and welfare by regulating smoking and related activities in public places and public and private worksites.

A. The Grand Rapids City Commission hereby finds and declares that:

1. The U.S. Surgeon General, National Research Council, and National Academy of Sciences, report that environmental tobacco smoke causes lung cancer in healthy adult nonsmokers and can cause lung function and structure alteration to the fetus of pregnant non-smoking women. Additionally, in utero exposure is known to predispose children to long-term pulmonary risks. Further, these agencies found, separating smokers and nonsmokers within the same air space may reduce but does not eliminate a nonsmoker's exposure to environmental tobacco smoke.

2. The U.S. Environmental Protection Agency (EPA) finds that environmental tobacco smoke is a Group A Carcinogen - a category reserved for known cancer-causing agents in humans.

3. The National Institute for Occupational Safety and Health (NIOSH):

(a) Finds that secondhand smoke poses an increased risk of lung cancer and, possibly, heart disease to people exposed in the worksite,

(b) Recommends that non-smokers should not be exposed to secondhand smoke, and

(c) Finds that nonsmokers can be protected by elimination of smoking in the building, or establishing separately ventilated smoking areas that exhaust directly to the outside.

B. These studies find that tobacco smoke is a major contributor to indoor and outdoor air pollution, and that breathing secondhand smoke is a cause of disease, including cancer, heart disease and stroke in nonsmokers. At special risk are infants, children, teens, pregnant women, elderly people, nonsmokers with long-term exposure to secondhand smoke, individuals with cardiovascular disease, and individuals with impaired respiratory function, including the young, asthmatics and those with obstructive airway disease. Also harmed are those with health conditions induced by breathing secondhand smoke including asthma, lung cancer, heart disease, respiratory infection, decreased respiratory function, including bronchoconstriction and broncho-spasm.

C. Michigan law prohibits the consumption of marihuana in any public place or smoking it where prohibited by the person who owns, occupies, or manages the property.

D. Accordingly, the City of Grand Rapids City Commission finds and declares that the purpose of this chapter is to protect the public health, safety, and welfare by promoting clean air by regulating smoking in places open to the general public and public worksites.
(Ord. No. 2020-50, § 1, 10-27-20)

Sec. 6.3. Definitions.

A. For purpose of this Chapter, the following definitions will be applicable:

1. *"Business"* means any sole proprietorship, partnership, joint venture, corporation of any type, or other business entity, including retail establishments where goods or services are sold as well as any

other entity where legal, medical, dental, engineering, architectural or other services are delivered.

2. *"Business Vehicle"* means a car, bus, van or other motorized device which is owned or leased by an employer for the use of employees.

3. *"Electronic Smoking Device"* means any device that simulates smoking and/or can be used to deliver aerosolized or vaporized nicotine or any other substance to the person inhaling from the device, including, but not limited to, e-cigarettes, e-cigars, e-pipes, vape pens or e-hookah. Electronic smoking device includes any component, part, or accessory of such a device, whether or not sold separately, and includes any simulated smoking and/or contains any substance intended to be aerosolized or vaporized during the use of the device.

4. *"Employee"* means any person who works for or under the direction of an employer in consideration for direct or indirect compensation of any kind, and any person who volunteers his or her services for a nonprofit or business entity.

5. *"Employer"* means any person, business, partnership, corporation, government, or non-profit entity that employs the services of one (1) or more individual persons.

6. *"Enclosed Area"* means all space between a floor and ceiling that is enclosed on all sides by solid walls or windows (exclusive of door or passage ways) which extend from the floor to the ceiling, including all space therein screened by partitions which do not extend to the ceiling or are not solid, office landscaping or similar structures.

7. *"Food Service Establishment"* means any fixed or mobile restaurant, coffee shop, cafeteria, short order cafe, luncheonette, grill, tearoom, sandwich shop, soda fountain, tavern, bar, cocktail lounge, nightclub, drive-in, industrial or commercial feeding establishment, private non-profit or other organization serving the public, rental hall, catering kitchen, delicatessen, theater, commissary, food concession, or similar place in which food or drink is prepared for direct consumption through service on the premises or elsewhere, and any other eating or drinking establishment or operation where food is served or provided for the public. Food service establishment does not include:

   (a) A motel that serves continental breakfasts only.

   (b) A bed and breakfast that has ten (10) or fewer sleeping rooms, including sleeping rooms occupied by the innkeeper, one (1) or more of which are available for rent to transient tenants.

   (c) A bed and breakfast that has at least eleven (11) but fewer than fifteen (15) rooms for rent, if the bed and breakfast serves continental breakfasts only.

   (d) A child care organization regulated by Michigan law unless the establishment is carrying out an operation considered to be a Food Service Establishment under the laws of the State of Michigan.

8. *"Marihuana"* means all parts of the plant Cannabis sativa L., growing or not; the seeds of that plant; the resin extracted from any part of the plant; and every compound, manufacture, salt, derivative, mixture, or preparation of the plant or its seeds or resin. Marihuana does not include the mature stalks of the plant, fiber produced from the stalks, oil or cake made from the seeds of the plant, any other compound, manufacture, salt, derivative, mixture, or preparation of the mature stalks, except the resin extracted from those stalks, fiber, oil, or cake, or any sterilized seed of the plant that is incapable of germination. Marihuana does not include industrial hemp.

9. *"Place of Assembly"* means any area where public or private groups assemble to engage in business, government or social functions.

10. *"Playground"* means any park or recreation area designed in whole or in part to be used by children that has play or sports equipment installed, has been designated or landscaped for play or sports activities, any similar facility located on public or private school grounds, or on grounds owned by the City of Grand Rapids.

11. *"Public"* means the public at large, any portion of the public at large, or any individual member of the public at large.

12. *"Public Place"* means any open or enclosed area to which the public is invited or in which the public or any portion of the public is permitted, including but not limited to, banks, educational facilities, health facilities, laundromats, city parks (including cemeteries), public transportation facilities, playgrounds, reception areas, retail food production and marketing establishments, clubs, retail service establishments, retail stores, theaters and waiting rooms. A private home or dwelling unit is not a "public place."

13. *"Public Transit Vehicles" mean buses, taxicabs, or other* means of public transit.

14. *"Service Line"* means any indoor line at which one (1) or more persons are waiting for or receiving service of any kind, whether or not such service involves the exchange of money.

15. *"Recreation Area"* means any public or private area open to the public for recreational purposes, whether or not any fee for admission is charged, including but not limited to, streets, sidewalks, amusement parks, athletic fields, beaches, fairgrounds, gardens, parks, plazas, skate parks, swimming pools, trails, zoos. Recreation areas do not include golf courses.

16. *"Smoking"* means inhaling, exhaling, burning, vaporizing, or carrying any lighted cigar, cigarette, pipe, weed, or plant, except as part of a religious ceremony or observance.

17. *"Sports Arena"* means sport pavilions, gymnasiums, health spas, boxing arenas, swimming pools, roller and ice rinks, or bowling alleys where members of the general public assemble either to engage in physical exercise, participate in athletic competition, or witness sports events, excluding such facilities, or portions thereof, licensed as a food service establishment.

18. *"Tobacco product"* means any product that is made from or derived from tobacco, or that contains nicotine, that is intended for human consumption or is likely to be consumed, whether smoked, heated, chewed, absorbed, dissolved, inhaled or ingested by any other means, including, but not limited to, a cigarette, e-cigarette (electronic smoking devices), cigar, pipe tobacco, vapor products containing tobacco, alternative nicotine product, smokeless tobacco including, but not limited to chewing tobacco, snuff, snus, and as otherwise defined in Section 2 of the Tobacco Product Tax Act, MCL 205.422.

19. *"Tobacco Specialty Store"* means a retail store utilized primarily for the sale of tobacco products and accessories and in which the sale of other products is incidental.

20. *"Worksite"* means any enclosed area under the control of an employer which employees normally frequent or occupy during the course of employment, including, but not limited to, work areas, common use areas, employee lounges and restrooms, conference and class rooms, employee cafeterias, hallways and vehicles owned by an employer. A private home or dwelling unit is not a "worksite" unless it is used for commercial or industrial

purposes, constitutes a child-care facility during its hours of operation, or health care facility.

(Ord. No. 2020-50, § 1, 10-27-20)

Sec. 6.4. Prohibited Acts.

No person shall:

A. Smoke in any enclosed public or private worksite, or public place (whether open or enclosed) within the City of Grand Rapids, including but not limited to, the following places:

1. All enclosed areas of worksites and public places located within the City of Grand Rapids, including business vehicles that are occupied by more than one (1) person, except as exempted by this regulation.
2. Restrooms, lobbies, reception halls, hallways and any other common-use areas which are open to the public.
3. Buses, taxicabs, and other means of public transit, and ticket, boarding, and waiting areas of public transit depots.
4. Service lines.
5. Retail stores.
6. All areas available to and customarily used by the general public in all business and non-profit entities patronized by the public, including but not limited to, attorney's offices and other offices, banks, laundromats, hotels and motels (including individual rooms), playgrounds, and public parks.
7. All areas located within galleries, libraries and museums.
8. Any facility which is primarily used for exhibiting any motion picture, stage, drama, lecture, musical recital or other similar performance, except performers when smoking is part of a stage production.
9. Sports arenas.
10. Convention halls.
11. Public and private meeting facilities.
12. Waiting rooms, hallways, wards and semi-private rooms of health facilities, including but not limited to hospitals, clinics, physical therapy facilities, doctors' offices, and dentists' offices.
13. Lobbies, hallways, and other common areas in hotels, motels, multiple-tenant office buildings and malls, apartment buildings, condominiums, mobile home parks, retirement facilities, nursing homes, and other multiple-unit residential facilities.
14. Public places where bingo games are held.

B. Dispose of used or unused tobacco product waste within the boundaries of any areas in which tobacco product use is prohibited.

C. Dispose of tobacco products, tobacco by products, or other waste by leaving it on a sidewalk, grass or other landscaped area, street, or any other area not specifically designated as a tobacco product disposal receptacle.

D. Intimidate, threaten any reprisal, effect any reprisal, or otherwise retaliate against another person who seeks to attain compliance with this chapter and other related city policies.

E. Consume marihuana in any public place.

A violation of this section is hereby declared to be a public nuisance.

(Ord. No. 2020-50, § 1, 10-27-20)

Sec. 6.5. Owner May Designate Establishment to be Nonsmoking.

Notwithstanding any other provision of this chapter, any owner of any establishment or facility, or a designated representative of the owner of any establishment or facility, may

declare that entire establishment or facility to be a nonsmoking establishment if not otherwise contrary to applicable State or local law.
(Ord. No. 2020-50, § 1, 10-27-20)

Sec. 6.6. Responsibilities of Employers.

A. It shall be the responsibility of employers to provide a smoke-free worksite as set forth in this chapter.

B. Each employer having a place of employment shall adopt, implement, make known and maintain a written smoking policy. The policy shall contain, at a minimum, the following wording and requirements: Smoking is prohibited in all enclosed areas within this worksite. This includes common work areas, auditoriums, classrooms, conference and meeting rooms, private offices, elevators, hallways, medical facilities, cafeterias, employee lounges, stairs, restrooms, employer owned or leased vehicles, and all other enclosed facilities.

C. The smoking policy shall be communicated to all current employees prior to its effective date, and at the time of employment for all other employees.

D. All employers shall supply a written copy of the smoking policy upon request to any existing or prospective employee.
(Ord. No. 2020-50, § 1, 10-27-20)

Sec. 6.7. Prohibition of Smoking near Entrances, Windows and Ventilation Systems.

Smoking shall be prohibited within at least ten (10) feet of any entrances, windows and ventilation systems of all worksites and public places where smoking is prohibited by this chapter. Any individual who owns, manages, operates or otherwise controls the use of any premises subject to this chapter shall establish a no smoking area which extends no less than ten (10) feet from any entrances, windows and ventilation systems to any enclosed areas where smoking is prohibited. All receptacles for extinguishing smoking materials shall be placed outside of the no smoking area.
(Ord. No. 2020-50, § 1, 10-27-20)

Sec. 6.8. Where Smoking is Not Regulated.

A. Notwithstanding any other provision of this chapter to the contrary, the following areas shall not be subject to the smoking restrictions of this chapter:

1. In private homes or dwelling units, except when used for commercial or industrial purposes or as a child-care facility, health care facility or adult day care facility.
2. Tobacco specialty stores with the appropriate state licensing and approved state exemptions.
3. On privately owned land when the smoking does not create a public nuisance affecting other public areas or adjoining neighbors resulting in complaints to law enforcement or code compliance.
4. "Designated Consumption Establishments" properly licensed by the State, if allowed by Grand Rapids' City Ordinances.
5. Golf courses, except for structures located thereon (clubhouse, etc.).

(Ord. No. 2020-50, § 1, 10-27-20)

Sec. 6.9. Posting of Signs.

A. As of the effective date of this chapter, "This Building is Smoke-Free" signs, "No Smoking" signs, the international "No Smoking" symbol (consisting of a pictorial representation of a burning cigarette enclosed in a red circle with a red bar across it) or other appropriate signs shall be clearly, sufficiently and conspicuously posted where smoking is prohibited by this chapter, or at the direction of the owner. The signage shall be posted by the owner, operator, manager or other person having control of such establishment or facility.

B. Every public place where smoking is prohibited shall have signs conspicuously posted at every entrance clearly stating that smoking is prohibited.

C. All ashtrays or ash receptacles shall be removed from any area where smoking is prohibited by this chapter by the owner, operator, manager or other person having control of such area.
(Ord. No. 2020-50, § 1, 10-27-20)

Sec. 6.10. Enforcement.

A. Enforcement of this chapter shall be implemented by the City Manager, or his or her designee.

B. Any citizen who observes a violation of this chapter may report such violation to the City Manager, or his or her designee.

C. Any owner, manager, operator or employee of any establishment regulated by this Chapter shall inform persons who are in violation of this Chapter of the appropriate provisions thereof.

D. Person(s) who violate or fail to comply shall be subject to one or more of the following:

1. A request to stop smoking or using the prohibited product;
2. A request for the individual to leave the premises subjecting him/her to possible prosecution for trespass under state law if they refuse;
3. Liable for a civil infraction, in accordance with the civil fines set forth in this code, Section 9.857.71 of Title IX, Chapter 170.

E. Except as otherwise provided herein, enforcement is at the sole discretion of the City of Grand Rapids. Nothing in this chapter shall create a right of legal action against the City of Grand Rapids, its agents, or assigns for deciding not to compel enforcement. This chapter does not create third party beneficiary rights or form the basis for any private legal action amongst and/or between private parties.
(Ord. No. 2020-50, § 1, 10-27-20)

Sec. 6.11. Violations and Penalties.

A. No person who owns, manages, operates, or otherwise controls the use of any premises subject to this chapter shall fail to comply with any of its provisions. The owner, operator and manager of such premises are jointly and severally responsible for a municipal civil infraction whether present or not.

B. It shall be unlawful for any individual to smoke in any area where smoking is prohibited by the provisions of this chapter. Any individual violating this section shall be subject to a warning. Upon being warned, the individual shall extinguish smoking materials or to leave the premises. If she or he refuses either to leave the premises or to extinguish smoking materials, he or she shall be responsible for a municipal civil infraction.

C. Any individual who owns, manages, operates or otherwise controls the use of any premises subject to jurisdiction under this chapter is required to take all necessary steps to enforce the provisions of this chapter. In the event that these steps are not taken, and should a violation of any provision of this chapter occur, that individual who owns, manages, operates, or otherwise controls the use of any premises shall be responsible for a municipal civil infraction and/or any other penalty authorized under state law.
(Ord. No. 2020-50, § 1, 10-27-20)

Sec. 6.12. Other Applicable Laws.

This chapter shall not be interpreted or construed to permit smoking where it is otherwise restricted by other applicable laws.
(Ord. No. 2020-50, § 1, 10-27-20)

Sec. 6.13. Severability.

If any provision, clause, sentence or paragraph of this chapter or the application thereof to any person or circumstances shall be held invalid, such invalidity shall not affect the other provisions of this chapter which can be given effect without the invalid provision or application, and to this end the provisions of this chapter are declared to be severable. To the extent a particular state law provides for additional regulations and penalties, those regulations and penalties shall apply in addition to those outlined in this chapter.
(Ord. No. 2020-50, § 1, 10-27-20)

Sec. 6.14. Effective Date.

This amended chapter shall be and effective January 1, 2021. Any previous versions of this chapter in conflict with the provisions herein are hereby repealed and replaced.
(Ord. No. 2020-50, § 1, 10-27-20)

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Chapter 72

WATER WELLS PROHIBITED

Article 1. Findings and Definitions

Sec. 6.31. Findings.
Sec. 6.32. Definitions.

Article 2. Butterworth Landfill Restricted Zone

Sec. 6.33. Butterworth Landfill Restricted Zone Regulations.

Article 3. Other Restricted Zones

Sec. 6.34. Other Restricted Zones.
Sec. 6.35. Failure to Comply with Section 6.34(i).
Sec. 6.36. Prohibited Act in Other Restricted Zones.
Sec. 6.37. Amendment or Repeal of a Restricted Zone and Regulations.

Article 4. Other Restricted Zones—Description of Established Zones and Their Regulations [Reserved]

Sec. 6.38. [Reserved].

Article 5. Penalties and Miscellaneous Provisions

Sec. 6.39. Penalties and Remedies for Violation.
Sec. 6.40. Building or Improvement Permit.
Sec. 6.41. Notice of Proposed Amendment.
Sec. 6.42. Saving Provision.

ARTICLE 1. FINDINGS AND DEFINITIONS

Sec. 6.31. Findings.

The City Commission finds that the use of certain groundwater wells and water supplies from such wells for human consumption or other purposes may constitute a public health and welfare risk and endanger the safety of the residents of Grand Rapids. The identified public health and welfare risk affects premises that are located in the vicinity of sites that are the source or location of contaminated groundwater, or where there is a known and identified threat of contaminated groundwater from a release. The Commission has determined to prohibit certain uses of water from wells at properties located in the vicinity of such contaminated sites in order to minimize the public health and welfare risk and protect the City's residents.
(Ord. No. 2002-28, § 1, 5-21-02)

Sec. 6.32. Definitions.

As used in this Chapter, the following definitions shall apply:

(1) *Affected premises* shall mean a parcel of property any part of which is located within a restricted zone.

(2) *Contamination* means groundwater contamination in concentrations that exceed the residential drinking water criteria established by the MDEQ in operational memoranda or rules pursuant to Part 201, Environmental Remediation, or Part 213, Leaking Underground Storage Tanks, of the Natural Resources and Environmental Protection Act, 1994 PA 451, as amended, dependent upon whether the release is regulated pursuant to Part 201 or Part 213.

(3) *Applicant* means a person who applies for the establishment of a restricted zone and accompanying regulations pursuant to this Chapter.

(4) *MDEQ* means the Michigan Department of Environmental Quality or its successor agency.

(5) *Person* means any individual, co-partnership, corporation, association, club, joint venture, estate, trust, and any other group or combination acting as a unit, and the individuals constituting such group or unit.

(6) *Restricted Zone* means an area legally described and incorporated within this Chapter and within which the prohibition of groundwater wells applies. A map of each Restricted Zone shall be included in the Section of this Ordinance adopted for that Restricted Zone pursuant to Article 3 of this Chapter.

(7) *Well* means an opening in the surface of the earth for the purpose of removing water through non-mechanical or mechanical means for any purpose other than a public emergency or conducting response actions that are consistent with the Michigan Natural Resources and Environmental Protection Act, the Comprehensive Environmental Response, Compensation and Liability Act, the Resource Conservation and Recovery Act, or other applicable statute. Well does not include sump pumps, but the exposure pathways related to a sump pump (e.g., indoor air, groundwater contact) may require evaluation as part of the response action process pursuant to Part 201 or Part 213 of the Michigan Natural Resources and Environmental Protection Act, or other similar state or federal statute or regulation.
(Ord. No. 2002-28, § 1, 5-21-02)

ARTICLE 2. BUTTERWORTH LANDFILL RESTRICTED ZONE

Sec. 6.33. Butterworth Landfill Restricted Zone Regulations.

(1) *Purpose and Intent.* The City of Grand Rapids has entered into a Consent Decree with the United States Environmental Protection Agency concerning environmental remediation at the Butterworth Landfill. A provision of that Consent Decree requires the City to enact an ordinance to prohibit the drilling or use of groundwater wells within approximately 700 feet of the east and

west perimeter of the Landfill, and within 200 feet of the north perimeter of the Landfill, and between the Butterworth Landfill and the Grand River along the south perimeter of the Landfill. This restriction is needed in order to protect the public from consumption and other contact with potentially hazardous contaminants which may be contained in water drawn from any such wells, and also to prevent the migration of any contaminated groundwater which may exist underneath or in the vicinity of the Landfill, which may occur if groundwater is drawn from wells in close proximity to the Landfill. This section is intended to comply with that provision of the Consent Decree and, at the same time, protect the health, safety, and welfare of residents and occupants of property in close proximity to the Landfill.

(2) *Butterworth Landfill Restricted Zone.* The following describes the Butterworth Landfill Restricted Zone for purposes of this Chapter:

Those parts of Section 35, 34 & 26, T7N, R12W, City of Grand Rapids, Kent County, Michigan described as: Commencing at the point of intersection of the center thread of the Grand River with a line lying 300 feet Westerly of and parallel with the West line of said Section 35; thence Northerly, along said parallel line, to its intersection with the Westerly Right-of-Way line of the I-196 Expressway; thence Northerly, along said Westerly Right-of-Way line of the I-196 expressway, to its intersection with a line lying 100 feet North of and parallel with the North line of said Section 35; thence Easterly, along said parallel line lying 100 feet North of and parallel with the North line of said Section 35, to its intersection with a line lying 700 feet East of and parallel with the East 1/8 line of said Section 35 and the Northerly extension thereof; thence Southerly, along said parallel line and its Northerly extension, to the centerline thread of the Grand River; thence Westerly, along said centerline thread, to the place of beginning.

The map attached as Exhibit A depicts the boundaries of the Butterworth Landfill Restricted Zone.

(3) *Water Wells Prohibited.* From and after the effective date of this ordinance, no person shall install or use or allow or permit or provide for the installation or use of a groundwater well on any affected premises within the Butterworth Landfill Restricted Zone.

(Ord. No. 2002-28, § 1, 5-21-02)

Editor's note—Exhibit A is not set out herein, but is on file and available for inspection in the offices of the city.

ARTICLE 3. OTHER RESTRICTED ZONES

Sec. 6.34. Other Restricted Zones.

(1) *Procedure for Establishing Other Restricted Zones.* Other restricted zones shall be established on a case-by-case basis following the procedures set forth in this Chapter. The boundaries of each such restricted zone, and the regulation of wells within each zone, shall be tailored to address the specific problems posed by each site and the nature and extent of contaminated groundwater necessitating the establishment of a restricted zone. After the City Commission establishes a restricted zone, the restricted zone and its accompanying regulations shall be described and published as part of Article 4 of this Chapter.

(2) *Procedure for Establishing.* The procedure for establishing a restricted zone shall be as follows:

(a) An Applicant shall first file a notice of intent with the City Manager or his/her designee advising the City of the Applicant's interest in establishing a restricted zone and accompanying groundwater use regulations pursuant to this Ordinance. Along with the notice, the Applicant shall pay a fee established by resolution of the Commission which shall be established at a level intended to cover the City's anticipated out-of-pocket expenses to review and respond to the notice. The notice shall describe the proposed location of the restricted zone, the nature of the proposed use restrictions, a preliminary map of the restricted zone, and the proposed time schedule for implementation of the restrictions. The City will provide to the Applicant a prelimi-

nary and non-binding indication of the City's potential willingness to adopt the proposed restricted zone and regulations. The Applicant shall seek and obtain MDEQ's approval of the proposed restricted zone and regulations prior to filing an Application with the City.

(b) After MDEQ approves the proposed restricted zone and groundwater use regulations, an Applicant shall apply to the City in a form specified, or on a form provided, by the City Manager or his or her designee.

(c) Along with the application, the Applicant shall pay an application fee established by resolution of the City Commission. The fee shall be established at a level intended to cover the City's anticipated out-of-pocket expenses to establish a restricted zone, as well as a reasonable portion of the City's costs in administering and enforcing this Chapter.

(d) The application shall at a minimum contain or provide the following, which may be provided as part of the Remedial Action Plan ("RAP") or other documents submitted to MDEQ, provided that the Applicant provides appropriate cross-references to the responsive part of the RAP or other documents:

1. The name, address, and phone number of the Applicant, as well as each person having an interest as owner, tenant, easement holder or mortgagee in the real property which is the source or site of contamination.
2. The street address and legal description of the real property which is the source or site of contamination, and the nature of the Applicant's relationship to that property and involvement concerning the contamination.
3. The nature and extent of the contamination, both in summary form in plain English, and in detail in technical terms, stating the types and concentrations of contaminants; a map or survey showing their current location; a statement of their likely or anticipated impact on groundwater and the nature of the risks presented by the use of the groundwater, as well as the likely or anticipated path of migration if not remediated or corrected; and a detailed statement of any plan to remediate, correct, and/or contain the contamination.
4. A detailed map and legal description of the proposed restricted zone.
5. The street address and legal description of all affected premises.
6. The names, addresses (mailing and street), and phone numbers of all persons with an interest as owner, tenant, easement holder or mortgagee of all affected premises.
7. The location, current status, and usage characteristics of all existing groundwater wells within the proposed restricted zone.
8. A detailed statement or description of the proposed regulation or prohibition of the use of existing and future wells within the restricted zone that is required to adequately protect the public health and welfare from hazards associated with the use of such wells, including a description of permissible uses, if any, of wells in the restricted zone.
9. A description and time schedule for any actions the Applicant will take to implement any remediation plan, mitigate the adverse impact of the regulations (e.g., provide substitute water service), and to properly close and abandon any existing wells subject to the use prohibition within the restricted zone.
10. A complete copy of the proposed restricted zone and accompanying groundwater use regulations, and all supporting documentation, as submitted to the MDEQ, along with a written statement from an MDEQ

representative with approval authority stating that the proposed restricted zone and use regulations have received MDEQ approval as part of the response actions for the groundwater contamination. The MDEQ approval may be contingent upon the City's establishment of the restricted zone pursuant to this Chapter.

11. Copies of the notice provided to the Kent County Health Department concerning the restricted zone and accompanying regulations, and the Health Department's written acknowledgment that it will not issue permits for prohibited wells within the restricted zone.

(e) Once the City Manager or his or her designee is satisfied that the application is complete, the City Manager shall place the matter on the City Commission agenda to set a date, time, and place for a public hearing on the application.

(f) After the City Commission sets the public hearing, the City Manager or his or her designee shall cause a written notice of the hearing to be sent by first class mail to all persons, from the list provided by the Applicant as part of the application, having an interest as owner, tenant, easement holder or mortgagee in any of the affected premises. The notice shall contain a brief statement regarding the Application fairly designed to inform the recipients of its main features and potential impact on the recipients in general. The notice shall be mailed at least ten (10) days, but not more than twenty (20) days, prior to the date of the hearing. The notice shall also be mailed to the MDEQ representative who gave the approval of the proposed restricted zone and use regulations and the MDEQ District Supervisor for the MDEQ regulatory program with jurisdiction over the contaminated site.

(g) After the public hearing, the City Commission shall act on the application within thirty (30) days, unless it determines that it needs more information before it can decide. In that case, it shall act on the application within thirty (30) days after it has received the additional information.

(h) It shall take four (4) affirmative votes of the City Commission to establish, amend, or repeal a restricted zone and/or accompanying regulations and restrictions.

(i) Upon the establishment of a restricted zone and accompanying regulations and restrictions, the Applicant shall do all of the following in a timely manner:

1. Within 10 days of the City Commission action, cause a notice of the City Commission action to be recorded with the Kent County Register of Deeds. Such notice shall be in a form approved by the City. It shall be recorded in a manner designed to insure that it serves as record notice of the substance and effect of the City Commission action with respect to all affected premises within the restricted zone.

2. Within 30 days of recording the notice, provide the City Clerk, the Kent County Health Department, and the MDEQ (Chief and District Supervisor for the regulatory program with jurisdiction) with copies of the recorded notice clearly showing the date of recording and the liber and page numbers where recorded.

3. Complete the steps as stated and scheduled in the application, as modified by City Commission approval, to close and abandon any existing wells as required and mitigate the adverse impact the approved regulations and restrictions on the use of wells would have on the owner or occupants of the affected premises. Provide the City with proof satisfactory to the City Manager or his or

her designee that such steps have been completed pursuant to the approved schedule.
(Ord. No. 2002-28, § 1, 5-21-02)

Sec. 6.35. Failure to Comply with Section 6.34(i).

If an Applicant fails to comply with any requirement of Section 6.34(i) of this Chapter, the City shall notify the Applicant of the non-compliance and provide a specified opportunity to cure the non-compliance. If the Applicant fails to cure any non-compliance as required by the City, the City shall take appropriate action, which may include the repeal of the portion of Article 4 of this Chapter which contains the restricted zone and regulations established pursuant to the Applicant's request. If the City repeals a portion of Article 4 pursuant to this Section, the City shall file an appropriate notice with the Register of Deeds.
(Ord. No. 2002-28, § 1, 5-21-02)

Sec. 6.36. Prohibited Act in Other Restricted Zones.

After the City Commission establishes a restricted zone and accompanying regulations and restrictions, it shall be unlawful for any person to install, use, or permit anyone else to install or use, a well within the restricted zone contrary to those regulations and restrictions.
(Ord. No. 2002-28, § 1, 5-21-02)

Sec. 6.37. Amendment or Repeal of a Restricted Zone and Regulations.

An Applicant or other interested party may request in writing that the City repeal or amend a restricted zone and its regulations if all or a portion of the restricted zone or regulations have become unnecessary due to improved conditions in the affected groundwater. The request must describe the justification for the repeal or amendment, and include the MDEQ's written and specific concurrence with the requested action.
(Ord. No. 2002-28, § 1, 5-21-02)

ARTICLE 4. OTHER RESTRICTED ZONES—DESCRIPTION OF ESTABLISHED ZONES AND THEIR REGULATIONS [RESERVED]

Sec. 6.38. [Reserved].

ARTICLE 5. PENALTIES AND MISCELLANEOUS PROVISIONS

Sec. 6.39. Penalties and Remedies for Violation.

Any person violating this Chapter shall be guilty of a misdemeanor punishable by a jail term of up to ninety (90) days and a fine of up to Five Hundred Dollars ($500). Each day a violation continues shall be deemed a separate offense. In addition, the City may seek an order from a court of competent jurisdiction to restrain any person from violating this Chapter, including the collection of costs and attorney fees associated with such enforcement action. Any well in violation of this Chapter is hereby declared and deemed a nuisance, subject to abatement, and shall be immediately taken out of service and properly and lawfully abandoned. Any person found to be responsible for installing, permitting, maintaining, or using such well is subject to being ordered by a court of competent jurisdiction to properly and lawfully remove or abandon such well.
(Ord. No. 2002-28, § 1, 5-21-02)

Sec. 6.40. Building or Improvement Permit.

No permit for building, alteration or other required permit for a premises or improvement thereon shall be issued by the City for any premises found in violation of this ordinance, or where it is proposed to install or use a well in violation of this ordinance.
(Ord. No. 2002-28, § 1, 5-21-02)

Sec. 6.41. Notice of Proposed Amendment.

At least thirty (30) days prior to any amendment or repeal of this Chapter in whole or in

part, the City shall notify the Michigan Department of Environmental Quality of its intent to so act.
(Ord. No. 2002-28, § 1, 5-21-02)

Sec. 6.42. Saving Provision.

If any portion of this Chapter is held invalid or unconstitutional by any court of competent jurisdiction, such portion shall be deemed a separate, distinct, and independent provisions, and such holding shall not affect the validity of remaining portions of the Chapter, it being the intent of the City that provisions of this Chapter be fully severable. The City shall promptly notify the Michigan Department of Environmental Quality upon the occurrence of any event described in the preceding sentence.
(Ord. No. 2002-28, § 1, 5-21-02)

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Chapter 73

URBAN AGRICULTURE

Sec. 6.50. Urban Agriculture Committee.
Sec. 6.51. Duties and Responsibilities.

Sec. 6.50. Urban Agriculture Committee.

An Urban Agriculture Committee of nine (9) members is hereby established. Each member shall be appointed to serve for a term of two (2) years. The Mayor shall appoint two (2) members, all of whom shall be citizens with a demonstrated interest or expertise in agricultural issues as follows: one (1) member representing a farmers market and one (1) representing a local community support agriculture organization. The City Commission shall appoint six (6) members, with each Commissioner appointing one (1) member with an interest in urban agriculture issues. The City Manager shall appoint one (1) City staff member with responsibility in the areas of zoning, community or economic development, code enforcement, or sustainability.
(Ord. No. 2016-50, § 1, 7-26-16; Ord. No. 2025-01, § 1, 1-14-25)

Sec. 6.51. Duties and Responsibilities.

The Urban Agriculture Committee shall be an advisory committee with the following duties and responsibilities:

(1) Educating members of the public about the benefits of growing, processing and distribution of food and other products through agricultural activities within the City of Grand Rapids.

(2) Providing leadership and expertise to policy makers in the development of public infrastructure necessary for increased urban food production, processing and marketing.

(3) Providing guidance on policies associated with the extension of appropriate farm-related services and opportunities to urban growers.

(4) Advising and assisting City efforts to integrate health, nutrition, food production, food access and agricultural economics.

(5) Help develop policies that integrate urban agriculture and urban planning.

(6) Conduct such special studies or projects as the Mayor, the City Manager or the City Commission may request.

The Committee shall select a chairperson and may adopt such rules of procedure for its meetings as it may deem appropriate. The Committee shall meet at least quarterly at a time and place convenient for its purposes. The Committee shall be subject to the provisions of the Michigan Open Meetings Act. [MCL §15.261 et seq.]
(Ord. No. 2016-50, § 1, 7-26-16)

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Chapter 74

MOBILE FOOD BUSINESS ORDINANCE*

Sec. 6.100. Title.
Sec. 6.101. Purpose.
Sec. 6.102. Definition.
Sec. 6.103. Zoning Ordinance Suspended.
Sec. 6.104. License Required.
Sec. 6.105. Application for License.
Sec. 6.106. Processing fees.
Sec. 6.107. Locations Permitted.
Sec. 6.108. Temporary Limited Permit.
Sec. 6.109. Mobile Food Business Special Event Permit.
Sec. 6.110. Operating Guidelines.
Sec. 6.111. Impoundment.
Sec. 6.112. Other Permits or Licenses or Authorizations.
Sec. 6.113. Revocation.
Sec. 6.114. Complaints and Appeals.
Sec. 6.115. Severability.

*__Editor's note—__Ord. No. 2019-02, § 1, adopted January 8, 2019, amended chapter 74 in its entirety to read as herein set out. Former chapter 74 §§ 6.100—6.116, pertained to pilot mobile food business ordinance. See Code Comparative Table for complete derivation.

Sec. 6.100. Title.

This Chapter 74 shall be known as the "Mobile Food Business Ordinance" of the City of Grand Rapids.
(Ord. No. 2019-02, § 1, 1-18-19)

Sec. 6.101. Purpose.

The purpose of this Chapter is to establish a pragmatic policy framework for managing mobile food Businesses in the City's public and open space and rights-of-way areas in order to support culinary entrepreneurship, small Business development, place-making and increased vibrancy in the City of Grand Rapids. This ordinance advances implementation of GR Forward, an amendment to the City Master Plan adopted by the City Commission in December 2015 and does so in a way that promotes the public health, safety, and welfare.
(Ord. No. 2019-02, § 1, 1-18-19)

Sec. 6.102. Definition.

Mobile Food Business (Business) shall mean a business serving or offering for sale food and/or beverages from a mobile food unit which means for purposes of this ordinance a self-contained, fully enclosed unit including trailers.
(Ord. No. 2019-02, § 1, 1-18-19)

Sec. 6.103. Zoning Ordinance Suspended.

During the existence of this ordinance, any and all applicable Zoning Ordinance provisions are hereby suspended only insofar as they apply to Mobile Food Businesses locating on public property (which includes for purposes of this ordinance all publicly owned property, public open spaces and public rights-of-way within the designated areas set forth in this ordinance). Any Mobile Food Business that seeks a license to operate on private property shall remain subject to the City's Special Land Use Application and Review Standards. Other provisions of the City Code relating to cart businesses in Chapter 46 and relating to licensing and regulation generally in Chapter 91 shall remain in full force and effect to the extent that they do not conflict with this Chapter.
(Ord. No. 2019-02, § 1, 1-18-19)

Sec. 6.104. License Required.

No Business shall operate a Mobile Food Business on publicly owned property without a valid Business license required under this section. To the extent authorized by any such license granted under the provisions of this section, the licensee may conduct such licensed Business on publicly owned property only in accordance with this ordinance. Licenses issued after July 1, 2019, shall be valid for one year from the date of issuance.
(Ord. No. 2019-02, § 1, 1-18-19)

Sec. 6.105. Application for License.

Businesses seeking to engage in Mobile Food vending shall make a written application to the City Clerk for a license under this Chapter. The application for license shall be on forms provided by the City Clerk and shall be accompanied by a fee established by resolution of the City Commission. Application information required shall include the following:

(1) Name of the applicant and Business, signature, phone number, email contact and Business address of the applicant.

(2) Information on the Mobile Food Business, including the year, make and model of the vehicle or unit and its dimensions.

(3) Copies of all necessary licenses or permits issued by the Kent County Health Department and/or the State of Michigan.

(4) Written consent of fire safety and generator noise decibel and exhaust compliance by the Grand Rapids Fire Department.

(5) A signed statement that the licensee shall hold harmless the City, any applicable special service district and their officers and employees, and shall indemnify the city, any applicable special service district, and their officers and employees for any claims for damage to property or injury to persons which may occur as a result of any activity carried on under the terms of the license.

(6) Proof of insurance coverage.

a. Proof of Commercial General Liability policy with limits of no less than one million dollars ($1,000,000.00) per occurrence with a two million dollar ($2,000,000.00) general aggregate including products liability issued by an insurer licensed to do Business in the State of Michigan and which names the City as an additional insured.

b. Proof of public liability and Property Damage motor vehicle policy with limits of no less than one million dollars ($1,000,000.00) used by an insurer licensed to do Business in the State of Michigan.

(7) A license issued under this ordinance is valid for a Mobile Food Business and its employees.

(8) A license issued under this ordinance shall not be transferable from one Mobile Food Business to another.

(Ord. No. 2019-02, § 1, 1-18-19)

Sec. 6.106. Processing fees.

Fees required by this Code for license applications shall be paid to the City Treasurer prior to submission of the application. Prior to the issuance of a license pursuant to the provisions of this Chapter, fees required by this Code for the issuance of a license shall be paid to the City Treasurer. Processing fees are non-refundable. Except as otherwise provided for by law or in this Code, fees required by this Code shall be set out in Chapter 92 of this Code.

(Ord. No. 2019-02, § 1, 1-18-19)

Sec. 6.107. Locations Permitted.

Businesses licensed under this ordinance shall be permitted to operate only on publicly owned property (public property, open spaces, public rights-of-ways) in accordance with the terms of their license within the City of Grand Rapids. All special event permitting ordinances and requirements in the City continue to apply and to be in full force and effect in addition to this ordinance. The provisions of this Chapter shall not apply to vending in connection with Special Events as provided for in this Code in which case the Special Events provisions of this Code and any resolution adopted in connection with the special event shall apply.

All Businesses wishing to locate in a public park or open space shall comply with City Department of Parks and Recreation requirements and fees.

All Businesses wishing to locate in parking meter locations or designated on-street locations shall comply with City Parking Department (Mobile GR) requirements and fees.

Businesses shall be allowed to operate within the following designated areas as described below and as reflected on the attached maps which are adopted and incorporated in this Chapter as if fully set out. Copies of the maps are available at the Office of the Grand Rapids City Clerk located on the second floor of City Hall, 300 Monroe Ave., NW, Grand Rapids, Michigan:

(1) Gillett Bridge - The area on the Gillett Bridge pedestrian crossing from the east to west bank of the Grand River.

(2) Lyon Square - The paved public plaza area at the western terminus of Lyon Street SW.

(3) Calder Plaza - The concrete public plaza surrounding the City-County Building. This zone also includes the metered parking spaces on the west side of Ottawa Avenue NW between Michigan Street and Lyon Street.

(4) Canal Park - The paved public parking area within Canal Park. Also the metered parking spaces on the west side of Monroe Avenue NE adjacent to Canal Park.

(5) Sixth Street Park - The paved public parking area within Sixth Street Park. Also the metered parking spaces on the west side of Monroe Avenue NE adjacent to Sixth Street Park.

(6) Coldbrook Edge - The paved parking area along the east bank of the Grand River south of the Grand Rapids Fire

Department station, north of the electrical transformer and west of the City Water Facility at 1101 Monroe Avenue NW.

(7) Ionia Ave SW - The metered parking area along the west side of Ionia Avenue SW from Williams Street SW to Wealthy Street SW.

(8) Grandville Ave - The metered parking on the east and west side of Grandville Avenue SW from the area underneath the 131 overpass to Cherry Street SW.

(9) Commerce Ave - The metered parking area on the east and west side of Commerce Avenue SW from Oakes Street SW to Cherry Street SW.

(10) Century Ave - The on-street parking area on the east and west sides of Century Avenue SW from Wealthy Street SW to Logan Street SW.

(11) Fulton Street/131 overpass - The off-street public right-of-way areas to the north and south of Fulton Street W immediately under the 131 overpass.

(12) Rosa Parks Circle - The paved area along the east side of Rosa Parks Circle from Monroe Center Street NW to Louis Street NW.

(13) 22 Ottawa Avenue NW - The surface public parking located at the corner of Ionia Avenue NW and Fulton Street W commonly known as "the Wedge lot."

(14) Cherry Park (752 Cherry Street SE) - The on-street parking on the north side of Cherry Street, from Eastern Avenue SE to Charles Avenue SE, consistent with park hours.

(15) Fulton Street Farmers Market (1145 E Fulton Street) - Space shall continue to be eligible for food trucks within Fulton Street Farmers Market (FSFM) boundaries according to the agreements between FSFM management and Businesses.

(16) Crescent Park - The metered parking spaces on Bostwick Avenue NE from Crescent Street NE to Michigan Street NE.

(17) Kendall College/GRCC - The metered spaces on the north side of Fountain Street NW from Ionia Ave NW to Library NE.

(18) Kendall College - The metered parking spaces on Pearl Street NW from Ionia Ave NW to Division Avenue N.

(19) Fulton Street Bridge - The metered parking spaces on the bridge over the Grand River.

Potential areas within the Corridor Improvement Authority Districts, (CIDs, formed pursuant to PA 280 of 2005, as amended, or PA 57 of 2018), subject to CID recommendation and City Commission approval, may be added to the designated area maps in the future pursuant to the ordinance amendment process.

As the City of Grand Rapids seeks to incrementally expand the use of Mobile Food Businesses through this initiative, the City will accept proposals from the public regarding potential new designated locations. All proposals should be submitted to the City Manager's Office. In order to qualify, proposed locations must be publicly-owned facilities. If approved, the proposed location will be incorporated into this Chapter as a recognized designated location pursuant to the ordinance amendment process. The City is not obligated to approve proposed locations.
(Ord. No. 2019-02, § 1, 1-18-19)

Sec. 6.108. Temporary Limited Permit.

A licensed Mobile Food Business may procure a temporary permit to operate in the public right-of-way outside of the designated locations defined by this Chapter in order to serve at the request of the public. Businesses may make an application for a temporary permit through Mobile

GR utilizing its meter reservation program. Such application shall, in addition to information required by Mobile GR, include the following:

(1) Name and License Number of Mobile Food Business issued through the City Clerk's office.

(2) Written and signed request of public entity for Business to provide service. Request must include:

a. Date and Times of Service, including the start and end times of service;

b. Address of Service location, including meter numbers if applicable;

c. Name, phone number, e-mail contact and address of public entity;

d. Estimated number of people to be served.

Mobile Food Businesses operating under a temporary permit shall adhere to all of the following guidelines:

(1) All operating guidelines as defined by this Chapter.

(2) Businesses shall comply in all respects with state and local law.

(3) Businesses must provide evidence of a specific request for service outside of a designated zone.

(4) Vending may take place only between the hours of 8:00 a.m. and 10:00 p.m. and the duration shall not exceed four (4) hours.

(5) Businesses must obtain a meter reservation through Mobile GR.

(Ord. No. 2019-02, § 1, 1-18-19)

Sec. 6.109. Mobile Food Business Special Event Permit.

A licensed Mobile Food Business may procure a one-time Mobile Food Business Special Event Permit to operate in the public right-of-way within the designated locations defined by this Chapter in order to operate during officially sanctioned Special Events overseen by the City of Grand Rapids Special Events Office. Businesses may make an application for a Mobile Food Business Special Events Permit, just as it would for any other type of permit, at the City Clerk's Office. The organizer of the Special Event must then notify the Special Events Office, which will consider inclusion and approval of the Mobile Food Business within the context of the Special Event being evaluated, and will specify the terms and conditions of the authorization within the Special Event Authorization Permit issued for the event as whole.

Mobile Food Businesses operating under a Mobile Food Business Special Event Permit shall adhere to all terms within the Special Events Authorization Permit as well as the following:

(1) All operating guidelines as defined by this Chapter.

(2) All state and local laws.

(3) All fee schedules as adopted by the City Clerk's office for a Special Event Mobile Food Business Permit.

(Ord. No. 2019-02, § 1, 1-18-19)

Sec. 6.110. Operating Guidelines.

(1) Businesses shall be ready to provide visual proof of the City License and all necessary Kent County Health Department and/or State of Michigan permits at all times.

(2) Hours of Operation.

a. In Parks, from dawn until dusk, consistent with other Park activities.

b. In Industrial Designated Areas, twenty-four (24) hours, seven (7) days a week.

c. In Downtown Designated Areas, 6:00 a.m. until 2:30 a.m.

d. After City Commission approval and following recommendations from CID Boards relating to locations and hours, certain CID areas may be eligible in the future.

e. These hours will be strictly enforced.

(3) All Mobile Food Businesses shall offer a waste container for public use which the Business shall empty at its own expense. All waste originating from the Mobile Food Business operation shall be collected and disposed of off-site by the Business each day. Spills of food or food

by-products shall be cleaned up and no dumping of gray water on the street or in parks and storm drains is allowed. Businesses should take appropriate precautions to prevent spills or other damages to the public property, including park land, sidewalks and streets. Businesses will be liable to pay for any damages to the public property as a result of their operation. Businesses are responsible for all grey water, grease, and other food waste, which shall NOT be dumped or disposed of on or into public property including drains.

(4) No Mobile Food Business shall make or cause to be made any unreasonable or excessive noise. No loud music or amplified announcements are permitted. Additionally, all generators must operate at a level of eighty (80) decibels or lower when measured from a distance of fifteen (15) feet. Initial inspection by the Fire Department will include generator noise testing.

(5) All Mobile Food Businesses shall direct exhaust away from the service side of the vehicle. Initial inspection by the Fire Department will include exhaust compliance.

(6) Signage shall be placed on the Mobile Food Business. Separate free-standing signs are permitted in accordance with the City's existing encroachment regulations.

(7) No flashing or blinking or strobe lights are allowed when the Mobile Food Business is Parked and in service. All exterior lights more than sixty (60) watts shall contain opaque hood shields to direct illumination downward.

(8) Power required for a Mobile Food Business located in the public right-of-way shall be self-contained and self-provided but a Mobile Food Business may request authorization from the City Clerk's office to utilize public utilities where available. No power cable shall be extended on or across any city street or sidewalk except in a safe, concealed manner designed to prevent tripping.

(9) Mobile Food Businesses shall not park adjacent to street trees, bicycle racks, refuse containers or other streetscape amenities in a way that congests efficient pedestrian travel.

(10) On-street parking and curbside service is permitted when in compliance with all ordinances, regulations, parking zones and posted signage.

(11) When on-street, the Business shall provide service on the curbside only and the Mobile Food Business shall be parked within one (1) foot of the curb. No service shall be provided on the driving lane side of the Mobile Food Business.

(12) Parking at metered spaces is allowed and subject to the following conditions:

a. A Mobile Food Business may reserve metered spaces through and in compliance with the City's Meter Reservation Program or it may choose to pay the posted meter rate as required, except that Temporary Limited Permits allowed in Section 6.109 may only be used in conjunction with the meter reservation program administered through Mobile GR.

b. The Mobile Food Business shall comply with all posted requirements and fees.

c. No Mobile Food Business, including any trailer, shall occupy more than two (2) metered Parking spaces. Trailers may be detached from the vehicle while in operation.

d. No Mobile Food Business shall have the right to occupy any particular space except through the licensing process.

(13) No vending is allowed within fifteen (15) feet of a fire hydrant.
(Ord. No. 2019-02, § 1, 1-18-19)

Sec. 6.111. Impoundment.

Any equipment associated with the Mobile Food Business that is not in compliance with this Chapter and left on public property may be impounded at the owner's expense.
(Ord. No. 2018-57, § 1, 9-18-18; Ord. No. 2019-02, § 1, 1-18-19)

Sec. 6.112. Other Permits or Licenses or Authorizations.

A license or permit obtained under this Chapter shall not relieve any Business of the responsibil-

ity for obtaining any other permit or license or authorization required by any other ordinance, statute or administrative rule.
(Ord. No. 2019-02, § 1, 1-18-19)

Sec. 6.113. Revocation.

The City Clerk may revoke the permit of any Business engaged in Mobile Food Vending who fails to meet any requirement of this Chapter or violates any other federal, state or local law, makes a false statement on their application, or takes part in any activity adverse to the protection of the public health, safety and welfare.

Immediately upon such revocation, the City Clerk shall provide written notice to the permit holder by certified mail to their place of Business or residence as indicated on the application. Immediately upon such revocation the permit shall become null and void.
(Ord. No. 2019-02, § 1, 1-18-19)

Sec. 6.114. Complaints and Appeals.

If a valid written complaint is filed with the City Clerk alleging that a Business has violated the provisions of this Chapter, the City Clerk shall promptly send a copy of the written complaint to the Business together with a notice that the Clerk's Office will investigate the truthfulness of the complaint. The City Clerk shall invite the Business to respond to the complaint, present evidence and respond to any evidence discovered during the investigation. If the City Clerk, after reviewing all relevant material, finds the complaint is supported by a preponderance of the evidence, the City Clerk shall certify the complaint.

If a license is denied or revoked by the City Clerk, the applicant or holder of a license may appeal to and have a hearing before the City Manager. The City Manager shall make a written determination, after presentation by the applicant or licensee and the City Clerk as to whether or not the grounds for denial, revocation or complaint are valid. If the City Manager determines that such grounds are supported by a preponderance of the evidence, the action of the City Clerk or filing of the complaint shall be sustained. The applicant or licensee may then appeal the City Manager's decision to a court of competent jurisdiction.
(Ord. No. 2019-02, § 1, 1-18-19)

Sec. 6.115. Severability.

If any portion of this ordinance is found by a court of competent jurisdiction to be invalid, the remainder of the ordinance shall survive and remain in full force and effect.
(Ord. No. 2019-02, § 1, 1-18-19)

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Chapters 75—79

RESERVED*

Secs. 6.43—6.450. Reserved.

***Editor's note—**Chapter 72, Food Establishments, deriving from Ord, No. 66-10, adopted Mar. 1, 1966, was repealed by Ord. No. 75-33, adopted Apr. 22, 1975.

Chapter 73, Food Service Establishments, deriving from the 1965 Code, was repealed by Ord. No. 75-33, adopted Apr. 22. 1975.

Chapter 74, Homestead Commission, deriving from Ord. No. 75-6, adopted Jan. 21, 1975; Ord. No. 78-85, adopted Nov. 28, 1978; Ord. No. 82-46, adopted June 1, 1982; and Ord. No. 84-35, adopted May 29, 1984, was repealed by Ord. No. 89-31, adopted June 6, 1989.

Chapter 75, Meat Establishments, deriving from the 1965 Code, was repealed by Ord. No. 71-69, adopted Nov. 2, 1971.

Chapter 76, Milk, deriving from the 1965 Code, was repealed by Ord. No. 71-69, adopted Nov. 2, 1971.

Chapter 77, Nursing Homes, deriving from the 1965 Code, was repealed by Ord No. 82-20, adopted May 4, 1982.

Chapter 78, Fumigation, deriving form the 1965 Code, was repealed by Ord. No. 72-91, adopted Dec. 5, 1972.

Chapter 79, Phosphate Compounds and Detergents, deriving from the 1965 Code, was repealed by Ord. No. 72-9, adopted Feb. 8, 1972.

Subsequently, Ord. No. 2002-28, § 1, adopted May 21, 2002, added provisions designated as a new Ch. 72.

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Chapters 80—90

RESERVED

Secs. 6.450—6.999. Reserved.

[The next page is 2545]

TITLE VII—LICENSING AND REGULATION

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Chapter 91

LICENSING AND REGULATION GENERALLY*

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Sec. 7.2. License Required.
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Sec. 7.5. Application.
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*Charter references—Ordinances and Regulations, Title V, Sec. 2; Collection of Specific Taxes—License Fees, Rents, etc., Title V, Sec. 16.

Cross references—Department of Community Improvement and Inspection Services, § 1.101; Department of Weights and Measures, § 1.121; property tax levy and collection, Ch. 9, special assessments, Ch. 10; purchases, contracts and sales, Ch. 11; uniform City income tax, Ch. 14; investments, Ch. 18; fees for processing industrial and commercial facilities exemption certificates, Ch. 19; Tax Increment Finance Authority, Ch. 22; license required for solid waste haulers, § 2.10; Water System, Ch. 26; Sewage Disposal System, Ch. 27; City markets, Ch. 44; Monroe Center, Ch. 46; Monroe Center Mall vendors, § 3.104; permits for use of Lyon Square, § 3.205; sales in Lyon Square, § 3.207; sidewalk builder's license, § 4.81; snowplow operator's license, § 4.91 et seq.; drilling permits, § 5.311; fees and bonds, Ch. 92; plumbing licenses, § 8.28 et seq.; plumbing permits, § 8.30 et seq.; water service and drainage system contractor license, § 8.35; electrical permits, § 8.57 et seq.; electrical licenses, § 8.72 et seq.; mechanical contractor's license, *§§ 8.157, 8.158; boiler engineer's license, § 8.159; mechanical permits, § 8.160 et seq.; grading permit,* § 8.856; sound trucks, § 9.71 et seq.; license required for operation of lodging accommodations, § 9.169; firearm licenses, §§ 9.173, 9.174, 9.178—9.180; alcoholic liquor, Ch. 157; consumer protection, Ch. 158; alarms, Ch. 163; registration of bicycles, § 10.141 et seq.

State law reference—Licensing regulations, MCL 339.201 et seq., MSA 18.425(201) et seq.

Sec. 7.1. Definitions.

As used in this Title, the following words and phrases shall have the meanings ascribed to them in this Section.

(1) *City Clerk* and *Clerk* shall mean the City Clerk of the City of Grand Rapids.

(2) *City Commission* and *Commission* shall mean the City Commission of the City of Grand Rapids or a Committee of the City Commission designated by it to act on behalf of the full City Commission as permitted by the provisions of this Chapter.

(3) *City Manager* and *Manager* shall mean the City Manager of the City of Grand Rapids or the City Manager's designee as permitted by this Chapter.

(4) *County* shall mean Kent County, Michigan, and shall include all Boards, Commissions, agencies, instrumentalities, officers, and employees of the government of Kent County.

(5) *License* shall mean any license, permit, certificate or any other type of approval required by this Title.

(Ord. No. 82-23, 5-4-82)

Sec. 7.2. License Required.

No person, as owner, agent, manager, employee, or otherwise, shall operate, conduct, maintain, or otherwise be engaged in the carrying on of any trade, business, profession, occupation, amusement, activity, or privilege for which any license is required by any provision of this Code without first obtaining a license from the City in the manner provided for herein.

(Ord. No. 82-23, 5-4-82)

Sec. 7.3. Multiple Licenses Required.

The granting of a license or permit to any person operating, conducting, maintaining, or otherwise carrying on or engaging in any trade, business, profession, occupation, amusement or privilege required by this Code to be licensed shall not relieve the person so licensed from the necessity of securing such other licenses or permits as may be required by this Code, except as specifically provided elsewhere in this Code.

(Ord. No. 82-23, 5-4-82)

Sec. 7.4. State Licensed Businesses.

The fact that a license or permit has been granted to any person by the State of Michigan to engage in the operation of, conduct of or carrying on of, any trade, business, profession, occupation, amusement, activity or privilege shall not exempt such person from the necessity of securing a license or permit from the City if such a license or permit is required by this Code. No license required by this Code shall be issued to any person who is required to have a license or permit from the State of Michigan until such person shall submit evidence of having obtained the required State license or permit.

(Ord. No. 82-23, 5-4-82)

Sec. 7.5. Application.

Unless otherwise provided for by law or ordinance or in this Code, every person required to obtain a license as provided for in this Code shall make application to the City Clerk for such license on forms provided or prescribed by the City Clerk. The application shall require such information to be provided as will enable the Clerk to determine whether the applicant, if licensed, will serve the public in a fair, honest, safe and competent manner and in compliance with the requirements of this Code and all other applicable Federal, State and local laws, ordinances, rules and regulations. The person making application for any license shall state under oath or affirmation that the information provided on such application is true and shall provide, under oath or affirmation, such other information relative to the granting of the license or to the applicant's qualifications as the Clerk may require. No person shall make a false statement or false representation on any license application or in connection with the application for any license provided for in this Code.

(Ord. No. 82-23, 5-4-82)

Sec. 7.6. License Term and Fees.

(1) The license year applicable to all annual licenses, (Chapter 92, Section 7.48), shall begin on July 1 of each year and shall end on June 30 of the following year.

(2) Any license not issued prior to the beginning of a license year shall be issued for the balance of the license year. The fee charged for each license, whether for a full or partial license year, shall be the fee provided for in Chapter 92 of this Code.

(3) Where provision is made in Chapter 92 or elsewhere in this Code for the issuance of a license for a period of less than one (1) year, the effective date of such a license shall be as provided on the face of the license by the City Clerk and such a license shall be in effect only for the period provided on the face of the license by the Clerk. In the absence of a provision by the Clerk on the face of a license, the license shall be valid only on the date upon which it is issued.

(4) Notwithstanding any other provision of this Code, licenses which have been duly issued pursuant to the provisions of this Code which have an expiration date of April 30, 2007 shall be valid until June 30, 2007 and no penalty shall accrue for failure to renew such licenses until July 1, 2007.
(Ord. No. 82-23, 5-4-82; Ord. No. 89-24, § 1, 4-4-89; Ord. No. 2003-11, § 1, 4-1-03; Ord. No. 2007-03, § 1, 1-9-07)

Sec. 7.7. Conditions for Issuance.

No license shall be issued to any applicant until the applicant has complied with all the provisions of this Code and all provisions of the laws of the State of Michigan applicable to the trade, business, profession, occupation, amusement, activity or privilege for which the license is sought have been complied with.
(Ord. No. 82-23, 5-4-82)

Sec. 7.8. Agreement by Applicant.

All licenses are issued subject to the following conditions, which shall be noted on the application form:

(1) The applicant agrees to permit inspection of the licensed premises and/or activity at reasonable times by any properly identified officer or employee of the City.

(2) The applicant agrees to the temporary suspension of the license without prior notice or hearing when, in the judgment of the appropriate officials, such a suspension is necessary to preserve the public health, safety or welfare.

(3) The applicant agrees that he or she will keep aware of and comply with all applicable Federal, State and local laws, ordinances, rules and regulations during the term of the license.

(4) The applicant agrees that he or she will not engage in the licensed trade, business, profession, occupation, amusement, activity or privilege at any time after the license has expired, without having been reissued, or at any time when the license is suspended or revoked.

(5) No license shall be issued unless and until the applicant has paid all personal property taxes assessed him or her and unless the applicant has paid all other debts due and owing to the City.

Each applicant shall sign a statement indicating that he or she has read the foregoing and agrees with its provision prior to the issuance of any license.
(Ord. No. 82-23, 5-4-82)

Sec. 7.9. Certification Required.

In each case where the certification by any of the following officials or employees shall be required prior to the issuance of the license by the City Clerk, such certification shall be based upon such inspection or investigation as may be deemed appropriate by the officer or employee named and shall indicate a determination that the requirements following the official's or employee's title have been complied with.

(1) *Fire Chief:* That the provisions of the Fire Code and all other applicable regulations and requirements of the City and the State of Michigan relative to fire safety have been complied with.

(2) *Police Chief:* That the criminal history of the applicant, if any, has been checked and that there is no indication that the

applicant cannot serve the public in the licensed area in a fair, honest and open manner.

(3) *Building Official:* That the building requirements of this Code and of the State of Michigan have been complied with.

(4) *Zoning Official:* That the zoning and other land use provisions of this Code will permit the licensed activity at its proposed location.

(Ord. No. 82-23, 5-4-82; Ord. No. 2013-35, § 1, 7-23-13)

Sec. 7.10. Title Includes Subordinates.

As provided for in Chapter 1 of this Code, whenever, by a provision of this Title, any officer or employee of the City of Grand Rapids is assigned any duty or empowered to perform any act or duty, the title of such officer or employee shall mean and include any authorized subordinate of the officer or employee or any other employee authorized to act on behalf of the officer or employee named.

(Ord. No. 82-23, 5-4-82)

Cross reference—Title of officer includes deputy or subordinate, § 1.9. insurance and bonds, § 1.12.

Sec. 7.11. Bonds.

Where a provision of this Code requires that the applicant for any license or permit furnish a bond, such bond shall be furnished in an amount deemed adequate by the proper City officer, or, where the amount thereof is specified in the schedule of fees and bonds set out in Chapter 92 or elsewhere in this Code, in the amount so required. The form of such bond shall be acceptable to the City Attorney. In lieu of a bond, an applicant for a license or permit may furnish one (1) or more policies of insurance as authorized in Chapter 1 of this Code.

(Ord. No. 82-23, 5-4-82)

Cross reference—Insurance and bonds, § 1.12.

Sec. 7.12. Exemption.

The licensing provisions of this Title shall not apply to the governments of the United States, the State of Michigan, the County of Kent or the City of Grand Rapids, or to any public board of education located wholly or partially within the City.

(Ord. No. 82-23, 5-4-82)

Sec. 7.13. Exemption from Fee.

No license fee shall be required for any person exempt from such fee by State or Federal law. Such person shall comply with all other provisions of this Code.

(Ord. No. 82-23, 5-4-82)

Sec. 7.14. Suspension or Revocation.

(1) Any license issued by the City may be suspended or revoked by the City Clerk for cause as herein defined. Any permit issued by the City may be suspended or revoked by the issuing officer or Authority for cause as herein defined. In either case, a hearing shall be scheduled to be held by the City Manager or the City Manager's designee or the issuing Authority.

Depending upon the necessity for prompt action, the hearing shall be held in accordance with one (1) of the following provisions:

(a) If there is no immediate threat to the public health, safety or welfare, the hearing shall be held to determine whether the license or permit should be suspended or revoked. The holder of the license or permit shall be notified of the time, date and place of the hearing and shall be notified of the reason or reasons for the proposed suspension or revocation. The license or permit holder shall be entitled to be represented by counsel, to submit evidence, to cross-examine testifying witnesses, and to make arguments concerning the factual and legal issues. The hearing officer or body shall render a written decision stating the reasons for the decision.

(b) If there is an immediate threat to the public health, safety or welfare, the license or permit may be suspended prior to the hearing. If a license or permit is suspended prior to the hearing, the hearing shall be commenced as soon as is practical, but in no case more than ten

(10) days after the suspension. The hearing shall be held to determine whether to terminate or extend the suspension or whether the suspension should be converted into a revocation of the license or permit. The holder of the license or permit shall be notified of the time, date and place of the hearing and shall be notified of the reason or reasons for the already-imposed suspension and for any contemplated future action. The license or permit holder shall be entitled to be represented by counsel, to submit evidence, to cross-examine testifying witnesses, and to make arguments on factual and legal issues. The hearing officer or body shall render a written decision stating the reasons for the decision.

(2) In any hearing held pursuant to the provisions of this Chapter, the rules of evidence shall be followed as far as practicable, but a hearing officer or body may admit and give probative effect to evidence of a type commonly relied upon by reasonably prudent people in the conduct of their affairs. Irrelevant, immaterial or unduly repetitious evidence may be excluded. Notice may be taken of facts within the general knowledge of the community.

(3) Any person dissatisfied with the decision of the City Manager or other appropriate hearing officer or body may appeal to the City Commission, provided that a written request for such an appeal shall be filed within seven (7) days of the date of the decision to be appealed. The City Commission shall schedule a hearing on the appeal within eight (8) days of the receipt of the request for appeal by the City Clerk. The hearing shall be scheduled and held before the entire City Commission or a Committee thereof, as the City Commission shall determine. The factual record made in the hearing below shall constitute the basic record for the appeal. The City Commission may, but need not, allow the presentation of additional evidence by a majority vote. Argument as to relevant factual and legal issues shall be permitted. The decision of the City Commission shall be by majority vote. The Commission may affirm, reverse or modify any action taken relative to a license. The decision of the City Commission shall be final.
(Ord. No. 82-23, 5-4-82)

Sec. 7.15. Issuance of License.

Where proper application is made for a license or permit and the conditions, requirements and prerequisites for the issuance of the license or permit have been met, the license or permit applied for shall be issued by the City Clerk, provided that no cause, as that term is defined herein, exists for denial of the license.
(Ord. No. 82-23, 5-4-82)

Sec. 7.16. Denial of a License.

Where proper application is made for a license or permit and such a license or permit is denied by the City Clerk or other issuing person or body, the applicant shall have the right to appeal such a denial as elsewhere provided for by the law or in this Code. If no such provision is made for an appeal of a denial, the applicant may appeal as set out herein. For purposes of this Section, denial of a license shall include refusal to issue an original license or refusal to renew or reissue an existing license. Denial shall be made only for cause as herein defined. Within the (10) days of notification of denial of a license from the City Clerk, an applicant shall file with the City Clerk a written notice of appeal. The Clerk shall refer a copy of this notice to the City Manager. Upon receipt of a notice of appeal, the City Clerk shall confer with the City Manager or the City Manager's designee to set a hearing time as soon as is practical but not later than ten (10) days after the filing of the notice of appeal with the City Clerk. The hearing provided for may be conducted by the City Manager or the City Manager's designee and it shall be conducted as provided for in Section 7.14 except that the issue to be determined is whether the denial of the license was proper. The person conducting the hearing shall render a written decision stating the reasons for the decision.
(Ord. No. 82-23, 5-4-82)

Sec. 7.17 Fees.

Fees required by this Code for license applications shall be paid to the City Treasurer prior to submission of the application. Fees required by this Code for the issuance of a license shall be paid to the City Treasurer prior to the issuance of the license. Except as otherwise provided for by

law or in this Code, fees required by this Code shall be set out in Chapter 92 of this Code. No fees shall be refunded.
(Ord. No. 82-23, 5-4-82)

Sec. 7.18. License Reissuance.

It shall be the responsibility of all persons engaging in any trade, business, profession, occupation, amusement, activity or privilege required to be licensed to obtain all licenses required by this Code prior to engaging in or continuing in the licensed trade, business, profession, occupation, amusement, activity or privilege. To assist in the reissuance of licenses to license holders, the City Clerk may send a license renewal application and invoice for the license fee to license holders prior to the end of a license year. Upon receipt of the completed application and the appropriate fee, and after such investigation as he or she deems necessary, the clerk may issue a license for the following year. If a licensee fails to file an application for renewal and/or fails to pay the license renewal fee prior to the expiration of a license year or within the thirty-one (31) day renewal grace period following the end of a license year, that application shall be considered to be an application for a new license and compliance with the provisions of Section 7.28 shall be required prior to the granting of a license.
(Ord. No. 82-23, 5-4-82; Ord. No. 98-36, § 1, 8-4-98)

Sec. 7.19. Exhibition of License.

Where certain premises are licensed or where a licensed trade, business, profession, occupation, amusement, activity or privilege is carried on at a fixed place or establishment, all licenses shall be conspicuously displayed upon the premises, or at the fixed place or establishment. All licenses shall be displayed in an area of the premises, fixed place or establishment that is open to the public. Where there is no premises, fixed place or establishment, the licensee shall have the license or licenses issued in his or her possession at all times when conducting, carrying on, or otherwise engaging in the licensed trade, business, profession, occupation, amusement, activity or privilege. The license shall be promptly displayed upon the request of any police officer or any properly identified officer or employee of the City.
(Ord. No. 82-23, 5-4-82)

Sec. 7.20. Exhibition on Vehicle and Machine.

(1) Each license granted for the operation of a vehicle as required under this Code shall include the issuance of a tag, insignia, license plate or number. This tag, insignia, license plate or number shall be prominently displayed on the vehicle in a place where it can readily be seen and read at all times when the vehicle is being used in the licensed activity.

(2) Every person who owns or operates any vending machine, amusement device or other coin-operated device which is required to be licensed under this Code shall conspicuously display on each such machine or device his or her name, address and City license number, in a form approved by the City Clerk.
(Ord. No. 82-23, 5-4-82)

Sec. 7.21. Displaying Invalid License and Surrender of Invalid License.

No person shall display any expired license, any license for which a duplicate has been issued, or any license which has been suspended or revoked, nor shall any person display any license which has not been duly and regularly issued to or on behalf of the person displaying it for the trade, business, profession, occupation, amusement, activity or privilege in, at, or for which the license is displayed. It shall be the duty of every licensee or any employee, agent or representative of a licensee to surrender to any properly identified representative of the City, upon demand, any license which is expired, suspended, revoked, altered, amended, modified, changed or damaged or any license for which a duplicate has been issued.
(Ord. No. 82-23, 5-4-82)

Sec. 7.22. Transfer, Alteration or Misuse of a License.

No license issued under the provisions of this Code shall be transferable or assignable unless specifically and explicitly authorized by this Code.

No person shall transfer or assign or attempt to transfer or assign any license and no person shall receive or attempt to receive a transferred or assigned license. No person shall, except as authorized by this Code or by the City Clerk, write upon, alter, amend, modify, change or damage any license.
(Ord. No. 82-23, 5-4-82)

Sec. 7.23. Revocation.

In addition to any other penalties or actions permitted or authorized by this Code, any transfer or assignment of a license or any attempted transfer or assignment shall be void and shall result in the automatic revocation of the license.
(Ord. No. 82-23, 5-4-82)

Sec. 7.24. Curb Stands Prohibited.

No person, whether licensed pursuant to this Title or not, shall park at the curb for the purpose of conducting business, nor shall any person establish a stand, booth or other place of business on any street, curb, sidewalk, public right-of-way or thoroughfare without having obtained permission to do so from the City Manager. This Section shall not be interpreted to prohibit parking for the purpose of making deliveries or for the purpose of consummating sales to persons waiting at the curb provided that the seller leaves the curb immediately after such deliveries or sales are completed.
(Ord. No. 82-23, 5-4-82)

Sec. 7.25. Curb Service Prohibited.

No person shall engage in the giving of curb service. For purposes of this Section, "curb service" is defined as the use of a public street, highway, thoroughfare or right-of-way by a person operating from a store or other fixed location for the sale, solicitation for sale, or delivery of any goods, services or property.
(Ord. No. 82-23, 5-4-82)

Sec. 7.26. Responsibility.

Any person who aids, abets, counsels, procures, commands or assists in the commission of any violation of the provisions of this Title shall be punishable as a principal.
(Ord. No. 82-23, 5-4-82)

Sec. 7.27. Cause Defined.

The term "cause" as used in this Title shall include the doing or omitting of any act, the permitting of any condition to exist in any trade, business, profession, occupation, amusement, activity or privilege for which a license is provided under the provisions of this Code, or upon the premises or facilities used in connection therewith, which act, omission or condition is:

(1) A violation of this Code.

(2) A violation of any other applicable Federal, State or local law, ordinance, rule or regulation.

(3) Unlawful or fraudulent in nature.

(4) Beyond the scope of the license granted.

(5) Abandonment of the licensed trade, business, profession, occupation, amusement, activity or privilege.

(6) A deceptive practice as defined in Section 9.290 of this Code.

(Ord. No. 82-23, 5-4-82)

Sec. 7.28. Late Application Penalty.

Any person who shall fail to file an application for a license at or prior to the time required by this Code or within the thirty-one (31) day renewal grace period, shall be assessed a late application fee of ten (10) percent of the fee provided for in Chapter 92 of each calendar month or fraction thereof that the person should have been licensed or Twenty-Five dollars ($25.00), whichever is greater. No new or renewal license shall be issued until such fee shall have been paid. Any application filed after the thirty-one (31) day renewal grace period following the end of a license year shall be treated as an application for a new license and no such license shall be issued until the fees for a new license, as provided for in

Chapter 92, shall have been paid. The provision of this Section shall be cumulative to the provisions of Section 1.13 of this Code and to the provisions of this Code relating to the suspension, revocation and denial of a license.
(Ord. No. 82-23, 5-4-82; Ord. No. 98-36, § 2, 8-4-98)

Secs. 7.29—7.40. Reserved.

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Chapter 92

FEES AND BONDS REQUIRED*

Sec. 7.41. Fee, Bond and Insurance Requirement Established.
Sec. 7.42. Payment of Fee Prerequisite to Issuance of License.
Sec. 7.43. Fees Required.
Sec. 7.44. Fees Not Refundable.
Sec. 7.45. First Issuance and Renewal Fees Distinguished.
Sec. 7.46. Insurance.
Sec. 7.47. Bond.
Sec. 7.48. Fee Schedule.
Secs. 7.49—7.60. Reserved.

*__Charter references__—*Ordinances and Regulations*, Title V, Sec.2; Collection of Specific Taxes—License Fees, Rents, etc., Title V, Sec. 16.

Cross references—Insurance and bonds, § 1.12; fee schedule for miscellaneous building permits, § 8.34(b); fee for water service and drainage system license, § 8.39; water service and drainage system fees, § 8.76; electrical inspection and license fees, § 8.66 et seq.; building inspection fees, § 8.627; fire permit fees, § 9.336(F-103.4.1).

Sec. 7.41. Fee, Bond and Insurance Requirement Established.

The fee required to be paid, the amount of any bond needed to be filed and the amount and type of any insurance required to be carried to obtain any license, permit or City authorization to carry on any trade, business, profession, occupation, amusement, activity or privilege shall be as provided for in this Chapter unless the fee, bond or insurance requirement is established elsewhere in this Code.
(Ord. No. 82-24, 5-4-82)

Sec. 7.42. Payment of Fee Prerequisite to Issuance of License.

No license, permit or City permission to engage in any trade, business, profession, occupation, amusement, activity or privilege shall be granted or issued unless the required fee shall have been paid to the City Treasurer and the required bond and the required type and amount of insurance shall have been filed with the City, all as required by this Code. Any license, permit or City permission granted or issued without the payment of the required fee or the filing of the required insurance shall be void and invalid.
(Ord. No. 82-24, 5-4-82)

Sec. 7.43. Fees Required.

The fees required for the issuance or granting of any license, permit or City permission shall be established annually by resolution of the City Commission prior to June 1, to become effective for the license year beginning July 1 for the license categories established in Section 7.48 of this Code unless such fees are established elsewhere in this Code.
(Ord. No. 82-24, 5-4-82; Ord. No. 90-31, § 3-27-90; Ord. No. 2007-04, § 1, 1-9-07)

Sec. 7.44. Fees Not Refundable.

Except as otherwise provided for in this Code, no fee required by the provisions of this Chapter, once paid, shall be refunded.
(Ord. No. 82-24, 5-4-82)

Sec. 7.45. First Issuance and Renewal Fees Distinguished.

For each category of license, there shall be three (3) fees established. A first issuance fee shall be charged when an applicant for a license, a permit or for City permission does not have an existing valid and current license, permit or permission of the type being applied for. This shall include, but not be limited to, first-time applicants and applicants whose license, permit or permission has expired without being renewed prior to expiration, or within the thirty-one (31) day renewal grace period following the end of a license year. A renewal fee shall be charged only in those instances where an applicant has, at the time of application, an existing valid and current license, permit or permission of the same type as is being applied for. A grace period renewal fee shall be charged in those instances in which an applicant has had a valid license, permit or permission of the same type as is being applied for and renews that license, permit or permission within thirty-one (31) days after its expiration date. Applicants making renewal during this grace period shall pay one hundred twenty-five (125) percent of the established renewal fee for the license.
(Ord. No. 82-24, 5-4-82; Ord. No. 98-36, § 3, 8-4-98)

Sec. 7.46. Insurance.

Where liability insurance is required for the issuance of any license, permit or City permission provided for in this Code, the required insurance shall be subject to the provisions of Section 1.12 of this Code and unless otherwise provided for in this Code, shall be comprehensive general liability insurance covering both personal injury and property damage and shall be a combined single limit policy of not less than one million dollars ($1,000,000.00).
(Ord. No. 82-24, 5-4-82; Ord. No. 2016-05, § 1, 2-9-16)

Sec. 7.47. Bond.

Where a bond is required for the issuance of any license, permit or City permission provided for in this Code, the bond shall be subject to the

provisions of Section 1.12 of this Code and shall be in an amount of not less than five thousand dollars ($5,000.00) unless otherwise provided for in this Code.
(Ord. No. 82-24, 5-4-82)

Sec. 7.48. Fee Schedule.

Category

AMBULANCE (7.375)

AMUSEMENTS

Mechanical Rides (7.322)

First Ride

Each Additional Ride

Coin-Operated Device

Owner (7.322)

First Device

Each Additional Device

Owner-Operator (7.324)

First Device

Each Additional Device

Operator (7.323)

DANCE (7.302)

Dance Hall License

DOWNTOWN VENDOR (3.103)

Each Additional Cart

Sidewalk Vendor

FIXED LOCATION VALET LICENSE

HOME OCCUPATION (Chapter 116)

HOTEL/MOTEL (9.169)

LIQUOR LICENSE (All Classes) (9.248)

Processing Fee, Each Application

Temporary Location, Each Application

LIQUOR LICENSE — DEVELOPMENT DISTRICTS

LIVE ENTERTAINMENT PERMIT APPLICATION (7.349)

MOBILE FOOD VENDING TRUCK

MOBILE FOOD VENDING TRUCK - TEMPORARY SERVICE PERMIT

MOTION PICTURE THEATER APPLICATION (7.346)

MOTOR VEHICLE RENTAL AGENCY (7.364)

PARKING FACILITY (7.204)

- Surface Lot, Each
- Structure, Each

PAWNBROKER (7.273)

PEDICABS (Chapter 114)

- Company
- Vehicle
  - First Vehicle
  - Each Additional Vehicle
- Driver

SECOND HAND (7.291)

SNOWPLOW SERVICES (4.91)

- Owner, Includes First Vehicle
- Each Additional Vehicle

SOLID WASTE HAULER (2.10)

SOUND TRUCK

- Commercial, Each Vehicle (9.77)
  - First Day
  - Each Additional Day
- Non-Commercial, Each Vehicle (9.75)
  - First Day
  - Each Additional Day

SPECIAL EVENT VALET LICENSE

TRANSIENT MERCHANT (7.254)

- Permit For A Year, Each
- Special Event Permit
- Mobile Vending Cart
  - First Cart
  - Each Additional Cart
- Mobile Vending Cart
  - Operator's Registration
- Vending Truck
  - First Vehicle

Each Additional Vehicle

VALET COMPANY LICENSE

(Ord. No. 82-24, 5-4-82; Ord. No. 82-58, 7-13-82; Ord. No. 84-37, § 1, 5-29-84; Ord. No. 85-15, § 1, 3-12-85; Ord. No. 85-24, § 1, 4-30-85; Ord. No. 86-24, §§ 1, 2, 4-15-86; Ord. No. 90-31, § 1, 3-27-90; Ord. No. 90-71, § 3, 10-16-90; Ord. No. 91-13, § 1, 3-5-91; Ord. No. 2002-20, § 1, 4-9-02; Ord. No. 2006-19, § 1, 4-11-06; Ord. No. 2007-04, § 2, 1-9-07; Ord. No. 2009-29, § 1, 5-29-09; Ord. No. 2010-26, § 1, 5-25-10; Ord. No. 2010-33, § 1, 6-22-10; Ord. No. 2015-31, § 1, 6-16-15; Ord. No. 2016-73, §§ 1, 2, 11-1-16; Ord. No. 2017-22, § 1, 3-7-17; Ord. No. 2018-29, §§ 1—3, 6-5-18)

Secs. 7.49—7.60. Reserved.

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Chapter 93

GASOLINE STATIONS*

Sec. 7.61. Determination of Necessity.
Sec. 7.62. Definitions.
Sec. 7.63. General Requirements.
Sec. 7.64. Design Standards.
Sec. 7.65. Reserved.
Sec. 7.66. Reserved.
Sec. 7.67. Abandonment or Discontinuance of a Gasoline Station.
Sec. 7.68. Reserved.
Sec. 7.69. Self-Service Stations.
Sec. 7.70. Conflicts with Other Laws or Regulations.
Secs. 7.71—7.80. Reserved.

*__Cross reference—__Fire Code, Ch. 159.

__State law reference—__P.A. 423 of 1984, as amended by P.A. 151 of 1989.

Sec. 7.61. Determination of Necessity.

The City Commission of the City of Grand Rapids, after carefully considering need for regulation of gasoline stations, hereby determines that the operation of a gasoline station, if not properly regulated, could create and promote a hazard to the general welfare and safety of the citizens of Grand Rapids. The City Commission further determines that the standards contained in this Chapter are the minimum that will ensure the public health, safety and welfare.
(Ord. No. 82-25, 5-4-82)

Sec. 7.62. Definitions.

For the purpose of this Chapter, certain words and phrases used herein shall be interpreted or defined as follows:

Alley: Any public or private thoroughfare not a street, sidewalk or foot path.

Bay, Service: An area within the principal building for the servicing or repair of motor vehicles.

Building: Any structure having a roof supported by columns or by walls, whether stationary or movable.

Building, Accessory: A subordinate building, the use of which is customarily incidental to that of a principal building on the same lot.

Building, Principal: A building in which is conducted the main or principal use of the lot on which said building is situated.

Building Setback: The required distance by which any building or structure must be separated from the street, lot line or other designated area.

Driveway: Any means intended for or utilized as an entrance or exit for vehicles entering or leaving a gasoline station.

Gasoline Station: A structure, building or premises or any portion thereof where a flammable, combustible or hazardous liquid is stored, housed or sold for supply to motor vehicles.

Remodeling: Any construction not considered in common usage to be in the nature of repair.

Service Station: A structure, building or premises or any portion thereof where a flammable, combustible or hazardous liquid is stored, housed or sold for supply to motor vehicles.

Street: A public or private thoroughfare which affords a principal means of access to abutting property, provided that this definition shall include any street dedicated and of record, whether used as such or not.

Structures: Any combination of materials, including buildings, constructed or erected, the use of which requires location on the ground, including, but not limited to, signs, billboards and fences.
(Ord. No. 82-25, 5-4-82)

Sec. 7.63. General Requirements.

(1) All gasoline stations shall be designed and constructed in conformity with the City Code of the City of Grand Rapids and all other laws, ordinances, rules and regulations applicable to the construction of gasoline stations.

(2) All permanent storage of material, merchandise and equipment other than liquid fuel shall be within the building.

(3) All lubrication, repair and servicing equipment shall be entirely enclosed within the building.

(4) Accessory buildings shall not be permitted.

(5) Driveways shall not open on, extend into, or cross alleys.

(6) In the event that a gasoline station has been abandoned or not used as a gasoline station for a period of more than one (1) year, any application to operate said premises as a gasoline station shall be considered as an application for a new gasoline station.

(7) Use of acetylene torches or welding equipment on the premises of a gasoline station or garage may be permitted in areas properly designated and protected, provided that any area to be used for such purpose shall receive the approval of the Fire Chief.

(8) No flammable liquids other than approved safety solvents used in an approved manner shall

be used for washing or cleaning purposes or as a solvent at any location on the premises.

(9) Drains located on the premises without approved separators in the trap are prohibited.

(10) All repair and service work shall be done within the principal building.

(11) No gasoline station owner or operator shall permit the storage of automobiles for a period in excess of twenty-four (24) hours unless the vehicle is enclosed in the building.

(12) No gasoline station owner or operator shall deposit or cause or permit to be deposited upon the roadways, sidewalks or alleys adjacent to the premises, any snow or ice or other debris cleared from the premises.

(13) In the event that a gasoline station has been abandoned or not used as a gasoline station for a period of more than one (1) year, the owner of the property shall remove all underground storage tanks in the ground. If serious practical difficulties would be caused by the removal of one (1) or more of the tanks, the City Manager may permit the owner to leave one (1) or more of the underground tanks in the ground and to fill the tanks with a material, and in a manner, acceptable to the Fire Chief. The City Manager may also specify such conditions as he or she deems to be necessary to protect the public health, safety and welfare. (Ord. No. 82-25, 5-4-82)

Sec. 7.64. Design Standards.

All gasoline stations hereafter erected shall be designed and constructed in conformity with the following design standards:

(1) *Relation to Residential Areas.* No gasoline station building or structure shall be erected within twenty-five (25) feet of the property line of any property used or zoned for residential purposes. Screening shall be provided to separate any station from any residential site. Screening shall consist of a solid wall, compact evergreen shrubs or a uniformly painted board fence without spaces. Such screening shall have a minimum height of four (4) and a maximum height of six (6) feet.

(2) *Curb Cuts.* Curb cuts shall not exceed forty (40) feet at the curb line and thirty (30) feet at the property line. The angle of driveway approaches shall not be less than forty-five (45) nor more than ninety (90) degrees.

(3) *Lighting.* Exterior lighting shall be directed away from adjoining residential areas. There shall be no flashing or oscillating revolving lights.

(4) *Minimum Frontage and Area.* The minimum frontage shall be one hundred (100) feet and the minimum lot area shall be ten thousand (10,000) square feet.

(5) *Minimum Setback.* The building shall be set back a minimum of forty (40) feet from any street.

(6) *Driveway Location.* Driveways shall be a minimum of twenty (20) feet from street intersections. This distance shall be measured from the point of intersection of the near curb lines of the intersecting streets. Driveways shall be a minimum of ten (10) feet from abutting properties.

(7) *Dispensing Location.* All dispensing locations shall be a minimum of fifteen (15) feet from any public right-of-way or property line.

(8) *Signs.* All signs must comply with all applicable provisions of this Code.

(9) *Surfacing and Drainage.* Driveways, service areas and parking areas shall be provided with pavement having an asphaltic or Portland cement binder so as to provide a permanent, durable and dustless surface and shall be so graded and drained as to dispose of all surface water accumulated within the area. All surfacing and drainage shall be maintained in good repair and shall be installed and maintained in compliance with this Code and all other applicable laws and ordinances.

(10) *Test Holes.* Test holes for possible leakage shall be provided in the ground at the end of each tank and at such other locations as the Fire Chief may direct. The installation of all test holes shall be in accordance with

the directions of and subject to the approval of the Fire Chief.
(Ord. No. 82-25, 5-4-82)

Sec. 7.65. Reserved.

Editor's note—Ord. No. 2006-18, § 1, adopted April 11, 2006, repealed § 7.65 in its entirety. Formerly, said section pertained to applications as enacted by Ord. No. 82-25, adopted May 4, 1982.

Sec. 7.66. Reserved.

Editor's note—Ord. No. 2006-18, § 1, adopted April 11, 2006, repealed § 7.66 in its entirety. Formerly, said section pertained to license or permit required as enacted by Ord. No. 82-25, adopted May 4, 1982.

Sec. 7.67. Abandonment or Discontinuance of a Gasoline Station.

No person owning a gasoline station and no person operating a gasoline station shall discontinue the operation of the gasoline station for a period in excess of thirty (30) days without notifying the Fire Chief.
(Ord. No. 82-25, 5-4-82; Ord. No. 2006-18, § 2, 4-11-06)

Sec. 7.68. Reserved.

Editor's note—Ord. No. 2006-18, § 1, adopted April 11, 2006, repealed § 7.69 in its entirety. Formerly, said section pertained to licenses and license fees as enacted by Ord. No. 82-25, adopted May 4, 1982.

Sec. 7.69. Self-Service Stations.

In addition to complying with the other provisions of this Chapter, gasoline stations which have self-service dispensers shall comply with the following:

(1) Self-service dispensing devices of the remote controlled type approved by the Fire Chief and installed in a manner that, when a fueling operation is completed, the dispenser is deactivated at the emergency control position or dispenser location and may be reactivated only at the emergency controls position are permitted at self-gasoline stations if there is at least one (1) qualified attendant on duty while the station is open to the public. The attendant's primary function shall be to supervise, observe and control the dispensing of Class I, II, and III liquids while the liquids are being dispensed. It is the responsibility of the attendant to prevent the dispensing of Class I liquid into an unlawful portable container, to control sources of ignition and to handle accidental spills and fire extinguishers as needed.

(2) The attendant on duty shall be capable of performing the functions and assuming the responsibilities covered in subsection (1).

(3) If the dispensing of a Class I, II or III liquid at a gasoline station open and available to the public is by a person other than the gasoline station attendant, the nozzle shall be an approved automatic closing type without a hold-open latch.

(4) Approved emergency controls approved by the Fire Chief shall be installed at a location not more than one hundred (100) feet from a dispenser. The attendant shall remain at the emergency controls during the dispensing of a Class I, II or III liquid.

(5) Permanent signs and placards printed in not less than one-half-inch block letters on a contrasting background shall be posted at each self-service dispensing device and in full view so as to give complete and clear instructions for its operation.

(6) Permanent signs and placards printed in not less than three-inch block letters on a contrasting background shall be conspicuously posted in full view so as to:

a. Prohibit smoking anywhere on station property within fifteen (15) feet of motor fueling operations.

b. Require that all vehicles be shut off prior to motor fueling.

(7) Two-way electronic voice communications approved by the Fire Chief shall be provided between the emergency controls position and the self-service dispensing locations.

(8) Self-service dispensers shall not occupy the same pump island as attended dis-

pensers. Pump islands with self-service dispensers shall be separated from all other attended dispenser pump islands by a distance of not less than ten (10) feet.

(9) Where vehicle design characteristics, or a position or location of a vehicle would obscure the attendant's view of the fueling operation, or the volume of sales would otherwise prevent reasonable supervision of the fueling operation, there shall be additional procedures or equipment or both so as to assure compliance with the provisions of this Chapter.

(10) A self-service station shall be equipped with not less than two (2) fire extinguishers of a 10 BC rating or greater or a fire suppression system approved by the Fire Chief.

(11) Each attendant shall supervise the fueling of not more than nine (9) vehicles at one (1) time. If more than nine (9) vehicles are to be fueled at one (1) time there shall be an additional attendant on duty for each additional nine (9) fueling operations or fractions thereof. Sufficient safeguards in the form of barriers or other devices shall be provided to ensure that no more than the prescribed number of fueling operations may be carried out at one (1) time as determined by the number of attendants on duty.

(12) Gasoline dispensing units shall be placed not less than ten (10) feet from a door, door opening, window or window opening.

(13) Electrical wiring shall conform to the National Electrical Code, 1975 Edition.

(14) Heating in the booth of the self-service station, if control booth is in a hazardous area, shall be of the type approved for this location.

(Ord. No. 82-25, 5-4-82)

Sec. 7.70. Conflicts with Other Laws or Regulations.

If any provision of this Chapter differs from a provision of any other applicable law, ordinance, rule or regulation, both the provision of this Chapter and the differing provision shall apply if possible. If the two (2) provisions are in conflict, then the provision establishing the higher or stricter standard shall apply.

Secs. 7.71—7.80. Reserved.

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Chapter 94

TAXICABS*

Sec. 7.81. Definitions.
Sec. 7.82. Fraudulent Nonpayment.
Sec. 7.83. Compliance with Other Laws.
Sec. 7.84. Civil Infraction Violation.
Secs. 7.85—7.124. Reserved.

*__Editor's note—__Ord. No. 2017-21, § 1, adopted March 7, 2017, amended chapter 94 in its entirety to read as herein set out. Former chapter 94, §§ 7.81—7.106, pertained to similar subject matter, and derived from Ord. No. 82-26, 5-4-82; Ord. No. 85-49, § 1, 8-27-85; Ord. No. 88-70, § 1, 10-18-88; Ord. No. 92-25, § 1, 4-28-92; Ord. No. 94-5, § 1, 1-11-94; Ord. No. 95-8, § 1, 2-7-95; Ord. No. 97-11, § 1, 3-18-97; Ord. No. 99-18, § 1, 4-13-99; Ord. No. 2007-33, §§ 1, 2, 6-19-07; Ord. No. 2008-14, §§ 1—3, 5-13-08; Ord. No. 2014-09, §§ 1, 2, 3-11-14; Ord. No. 2016-22, §§ 1—9, 5-10-16.

Sec. 7.81. Definitions.

Words used in this Chapter shall have the meanings set forth in MCL 257.2102.
(Ord. No. 2017-21, § 1, 3-7-17)

Sec. 7.82. Fraudulent Nonpayment.

Any person who shall solicit or receive the service of any taxicab within the City of Grand Rapids or upon the streets or highways of the City of Grand Rapids without paying for such service, with the intent to defraud the owner or operator of such taxicab out of the compensation for the service rendered, shall be liable to the punishment provided in this Code. Proof that any person refused and neglected to pay for such service on demand, or left such taxicab without paying or offering to pay for such service, shall be prima facie proof of fraudulent intent.
(Ord. No. 2017-21, § 1, 3-7-17)

Sec. 7.83. Compliance with Other Laws.

All persons subject to regulation pursuant to MCL 257.2101 et seq. shall comply with all applicable Federal and State laws.
(Ord. No. 2017-21, § 1, 3-7-17)

Sec. 7.84. Civil Infraction Violation.

A limousine, taxicab, or transportation network company driver shall not violate MCL 257.2111, MCL 257.2123(8), MCL 257.2141, or MCL 257.2145 which are hereby incorporated by reference as if fully set out herein. Per the authority granted to the City by MCL 257.2115(1), a violation of any of these sections shall constitute a civil infraction, as provided for in Chapter 170 of this Code.
(Ord. No. 2017-21, § 1, 3-7-17)

Secs. 7.85—7.124. Reserved.

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Chapter 95

BUS COMPANIES*

Sec. 7.125. Liability Insurance Required.
Sec. 7.126. Exemption.
Secs. 7.127–7.190. Reserved.

*Cross reference–General traffic regulations, Ch. 181.

Sec. 7.125. Liability Insurance Required.

No person, firm, partnership or corporation shall operate buses on regularly scheduled routes on the streets of the City of Grand Rapids for the purpose of carrying public paying passengers without first providing to the City's Licensing Officer proof of public liability insurance covering the operation of its vehicles in the amount of not less than one million dollars ($1,000,000.00) per occurrence. Said certificate of insurance must require at least thirty (30) days advance written notice of cancellation of said coverage to the City. (Ord. No. 85-87, § 1, 12-17-85)

Sec. 7.126. Exemption.

This Chapter shall not apply to any person, firm, partnership or corporation which operates public transportation bus service primarily between Grand Rapids and other communities and uses City streets incidental to providing such service. (Ord. No. 85-87, § 1, 12-17-85)

Secs. 7.127–7.190. Reserved.

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Chapter 96

GOING OUT OF BUSINESS

Sec. 7.191. Going Out of Business or Removal Sale.
Secs. 7.192–7.200. Reserved.

Sec. 7.191. Going Out of Business or Removal Sale.

No person shall conduct a going out of business sale or removal sale unless he or she shall have first obtained a license as provided for in Act 39 of the Public Acts of 1961, as amended, being MCL 442.211 et seq.

Act 39 of the Public Acts of 1961, as amended, being MCL 442.211 et seq., is incorporated herein as if fully set out herein. Any violation of that Act shall be a violation of this Code.
(Ord. No. 82-27, 5-4-82)

Cross reference—Going-out-of-business sales, permit fee, § 7.48.

State law reference—Closing out sales, MCL 442.211 et seq., MSA 19.401(1) et seq.

Secs. 7.192—7.200. Reserved.

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Chapter 97

PARKING FACILITIES*

Sec. 7.201. Definition.
Sec. 7.202. License Required.
Sec. 7.203. Application.
Sec. 7.204. License Fees.
Sec. 7.205. Issuance of License.
Sec. 7.206. Licenses Not to Be Issued.
Sec. 7.207. Signs Required.
Sec. 7.208. Operational Requirements.
Sec. 7.209. Notification of Claim.
Sec. 7.210. Obligations.
Sec. 7.211. Regulations.
Sec. 7.212. Parking of Vehicles.
Sec. 7.213. Consent of Owner to Use of Vehicle.
Sec. 7.214. Rate Change Procedure.
Secs. 7.215–7.230. Reserved.

*Cross references—Automobile parking system, Ch. 30; parking and loading spaces, § 5.51 et seq.

Sec. 7.201. Definition.

In the interpretation of this Chapter a "Parking Facility" shall mean any plot, piece or parcel of land, or any building, ramp or structure used for the purpose of temporarily storing ten (10) or more vehicles, where the owner or person storing such vehicles is charged a fee, and which is open to the general public. One hundred forty (140) square feet per car shall be the unit of measurement of capacity of parking facilities. Only the space actually marked for the parking of vehicles shall be measured and no marked space shall contain less than one hundred forty (140) square feet. "Parking Facility" shall not include parking provided by a landlord for tenant use.
(Ord. No. 82-28, 5-4-82)

Sec. 7.202. License Required.

No person shall maintain, operate, or conduct a parking facility within the City of Grand Rapids without first having obtained a license therefor from the City Clerk.
(Ord. No. 82-28, 5-4-82)

Sec. 7.203. Application.

Applications for licenses shall be on forms provided or prescribed by the City Clerk and shall contain the names of the owner or owners of the parking facility, the location of the facility, the telephone number(s) of the facility, the address of the owner or owners, the date of birth of the owner or owners, and the name under which the facility is to be operated. The application may also contain such other information as will enable the Clerk to make a fair determination of compliance with this Code and other applicable laws, statutes, rules and regulations. The application shall also contain the schedule of rates as displayed on the sign or signs required by Section 7.207 of this Code setting forth the parking charge the applicant will actually make for various days of the week, hours of the day, and holidays or special occasions, together with a statement that the applicant agrees that he or she will not charge in excess of the rates set forth in such schedule, and that upon proof of making charges other than those shown on said schedule, the license may be suspended or revoked. The schedule of rates charged by a licensee may be altered, amended, or charged only by the procedure set out in Section 7.214 of this Code.

Each application shall be signed and verified under oath by the applicant, if an individual, or by a duly authorized agent if a partnership or corporation.
(Ord. No. 82-28, 5-4-82)

Sec. 7.204. License Fees.

The annual license fee shall be as specified in Chapter 92 of this Code.
(Ord. No. 82-28, 5-4-82)
Cross reference—License fee for parking facilities, § 7.48.

Sec. 7.205. Issuance of License.

If, after investigation, the City Clerk shall be reasonably satisfied that the applicant has complied with the requirements of this Code and all other applicable laws, statutes, rules and regulations, and if the proper fee shall have been paid, the City Clerk shall issue a license for a Parking Facility.
(Ord. No. 82-28, 5-4-82)

Sec. 7.206. Licenses Not to Be Issued.

No license shall be issued to any person whose license has, within five (5) years prior to the date of the application, been revoked, nor to any firm, partnership, association or corporation, any of whose members, officers, or Managers have had their license or licenses revoked within five (5) years prior to the date of application.
(Ord. No. 82-28, 5-4-82)

Sec. 7.207. Signs Required.

(1) Each licensee shall maintain at each public entrance to such parking facility a permanently affixed sign or signs suitable to apprise persons using such parking facility of the name of the licensee; the hours of the day and/or night during which such facility is open for storing motor vehicles; the rate charged, and the closing hour of such facility. Where more than one (1) rate is charged for parking, the figures for each rate shall be of the same size and dimensions and such figures shall measure not less than six (6) inches in height, and the letters and figures indicating the

closing hours shall be not less than six (6) inches in height.

(2) Where separate rates or charges are made for day parking and for night parking, the change in rate shall not become effective before 5:30 p.m. and notice of the rate or charge and the time at which the rate or charge changes shall be posted on the signs provided for in the preceding paragraph.

(3) All posted rates or charges, whether required by the provisions of this Chapter or otherwise, shall be stated in terms of dollars and/or cents for a particular time period. Maximum charges or rates shall be stated in terms of dollars and cents. No maximum charges or rates shall be stated solely in terms of time.
(Ord. No. 82-28, 5-4-82)

Sec. 7.208. Operational Requirements.

At the time of accepting a motor vehicle for storing or parking in a parking facility, the person conducting the same, or his or her agent, servant or employee shall furnish or cause to be furnished to the person parking the motor vehicle a distinctive check which shall contain the name of the person, firm or corporation owning or operating such parking station and the address of the place where such motor vehicle is parked, and upon which shall be written, stamped or punched the date, or a symbol to indicate the date, on which said check issued.

This provision shall not apply to any unattended parking facility or where cars are stored on a monthly fee basis.

It shall be the duty of the licensee to report to the Police Department the make and license number of any car that shall have remained more than forty-eight (48) hours on any parking facility of the licensee without having been reclaimed. Such report shall be made within three (3) hours after the expiration of the forty-eight-hour period. This shall not apply where a contract for parking for a period in excess of forty-eight (48) hours has been entered into.
(Ord. No. 82-28, 5-4-82)

Sec. 7.209. Notification of Claim.

Each licensee shall immediately notify the Police Department and the City Clerk of any claim by reason of loss, theft or conversion occurring upon his or her premises or of any claim for damages arising from the operation of the parking facility.
(Ord. No. 82-28, 5-4-82)

Sec. 7.210. Obligations.

The obligations herein created for any person operating or conducting a parking facility under the terms of this Chapter to the owner of a motor vehicle parked therein shall not extend beyond the regular hours of attendance as posted at the parking facility and printed upon the claim check furnished to the motor vehicle owner.
(Ord. No. 82-28, 5-4-82)

Sec. 7.211. Regulations.

(1) Persons operating parking facilities not within a building, structure or ramp shall keep the same enclosed with a suitable fence, wall or other barrier so that motor vehicles may not be removed from such facility except at the regular established entrances and exits.

(2) Each licensee shall keep the sidewalks surrounding the facility free from ice, sleet and snow and shall keep the sidewalks in safe condition for the travel of pedestrians.

(3) Snow shall not be removed from parking facilities into the public streets or alleys or sidewalks.

(4) Every parking facility shall be paved and properly drained.

(5) No licensee shall sublet, sublease, or otherwise permit any parking facility or any portion thereof to be used by any vendor of goods, wares or merchandise or services for the conduct of such vendor's business unless the same is conducted in a permanent building or structure.
(Ord. No. 82-28, 5-4-82)

Sec. 7.212. Parking of Vehicles.

Persons operating parking facilities shall at all times leave within the boundaries of such sta-

tions as much space as is required for shifting vehicles, and shall not move vehicles into and out of the facility nor park vehicles outside of the licensed parking facility.
(Ord. No. 82-28, 5-4-82)

Sec. 7.213. Consent of Owner to Use of Vehicle.

It shall be unlawful to make any use for any person whatsoever of any motor vehicle parking in any parking facility, unless such use shall first be expressly authorized by the owner or person having control of such vehicle.

Sec. 7.214. Rate Change Procedure.

No operator of a parking facility shall change the charge or rate charged to park in the facility unless the operator shall have filed with the City Clerk a copy of the new rate or schedule of rates at least thirty (30) days prior to the date that the new rate or schedule of rates is first charged.
(Ord. No. 82-28, 5-4-82)

Secs. 7.215–7.230. Reserved.

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Chapter 98

RESERVED*

Secs. 7.231–7.250. Reserved.

*Editor's note–Ordinance No. 86-23, § 1, adopted April 15, 1986, repealed Chapter 98, Radio and Television Dealers, consisting of §§ 7.231–7.239, as derived from the 1965 codification.

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Chapter 99

TRANSIENT MERCHANTS*

Sec. 7.251. Definitions.
Sec. 7.252. License Required.
Sec. 7.253. License Application.
Sec. 7.254. License Fee.
Sec. 7.255. Fixed Stands Prohibited.
Sec. 7.256. Curb Service Prohibited.
Sec. 7.257. Prohibited Areas.
Sec. 7.258. Practices Prohibited.
Sec. 7.259. Exempt Persons.
Sec. 7.260. Hours of Business.
Sec. 7.261. Obedience to Signs.
Sec. 7.262. Reserved.
Secs. 7.263—7.270. Reserved.

*__Cross reference—__Prohibited noise, § 9.63(1).

Sec. 7.251. Definitions.

As used in this Chapter, the following words and phrases shall have the indicated meanings:

(1) *Transient Merchant.* The phrase "transient merchant" shall mean any "canvasser," "hawker," "peddler," "solicitor," or "transient vendor" as herein defined. These terms are defined as follows:

a. *Canvasser* shall mean "solicitor" as herein defined.

b. *Hawker* means any person who offers goods, property or services for sale in the streets, highways, thoroughfares or public rights-of-way of the City by crying out, or by signals, music or other noise.

c. *Peddler* means any person who travels from place to place for the purpose of displaying, selling, making sales, offering for sale or leasing with the option to buy, at retail, any goods, property or services. The word "Peddler" also means any person who travels by foot, vehicle, wagon, cart or any other means of conveyance whatsoever displaying, selling, offering for sale, taking orders for sale, or leasing with the option to buy, at retail, any goods, property or service.

d. *Solicitor* means any person who travels from place to place and offers for sale, takes orders for or attempts to take orders for the retail sale of any goods, personal property or service whatsoever for future delivery. "Solicitor" also means any person who, while on a public street or while in a public place, offers for sale, takes orders for or attempts to take orders for the retail sale of any goods, personal property or service whatsoever for future delivery.

e. *Transient Vendor* means any person not licensed as a "street vendor" who sells, offers for sale, exhibits, displays, demonstrates or takes orders for the retail sale of any personal property or service whatsoever from any vehicle, conveyance, stand or temporary structure. "Transient vendor" also means any person who for a period of thirty (30) days or less per year hires, leases, rents, occupies or uses any place or places within the City, whether in a building or not, for the purpose of exhibiting samples or for the purpose of taking orders for future delivery or both.

(2) Reserved.

(3) *Mobile Vending Cart* shall mean a structure with at least two (2) operational wheels which is easily moved and which is used for vending by a transient merchant.

a. No person shall use a mobile vending cart which has not been licensed by the City Clerk.

b. Only one license is required per mobile vending cart which shall be issued to the business owner.

(Ord. No. 82-29, 5-4-82; Ord. No. 84-38, § 1, 5-29-84; Ord. No. 2006-17, § 1, 4-11-06; Ord. No. 2016-77, § 1, 11-15-16)

Sec. 7.252. License Required.

No person shall engage in the business of being a transient merchant without first having obtained a license therefore; provided, however, that any transient merchant who conducts business solely from a mobile vending cart as herein defined shall only be required to obtain a Mobile Vending Cart Operator's License.

(Ord. No. 82-29, 5-4-82; Ord. No. 84-38, § 2, 5-29-84; Ord. No. 2006-17, § 2, 4-11-06)

Sec. 7.253. License Application.

Persons desiring a license or Registration as provided for in this Chapter shall file an application in a form prescribed or provided by the City Clerk.

(Ord. No. 82-29, 5-4-82; Ord. No. 84-38, § 3, 5-29-84)

Sec. 7.254. License Fee.

Prior to the issuance of a License or Registration pursuant to the provisions of this Chapter, a fee as specified in Chapter 92 shall be paid.
(Ord. No. 82-29, 5-4-82; Ord. No. 84-38, § 4, 5-29-84)

Cross reference—License fee for transient merchants, § 7.48.

Sec. 7.255. Fixed Stands Prohibited.

No person, whether licensed pursuant to the provisions of this Chapter or not, shall stop or remain in any one (1) location in any street, alley or public place within the City to conduct business as a transient merchant for longer than is necessary to make a sale to a customer wishing to engage in a transaction. No person, whether licensed pursuant to the provisions of this Chapter or not, shall conduct business from a fixed stand located in any street, alley or public place.
(Ord. No. 82-29, 5-4-82)

Sec. 7.256. Curb Service Prohibited.

No person shall operate or maintain any stand, vehicle, store or place of business on or near to any street, lane, highway or public place in such a manner that the customers or traders with such person occupy or congregate within the limits of the street, lane, highway or public place. No person shall be permitted to use the streets, alleys, lanes or public places of the City for the service of customers or for the transaction of business, or to use any stands, stores or other places of business in any manner that shall require the customer, when transacting said business, to stand within the limits of the streets, highways, alleys or public places of the City. This provision shall not apply to licensed street vendors operating with City permission.
(Ord. No. 82-29, 5-4-82)

Sec. 7.257. Prohibited Areas.

No person, whether licensed pursuant to this Chapter or not, shall, in the sale of goods, wares, merchandise, or any other form of personal property, obstruct any street, alley, sidewalk or driveway except as may be necessary and reasonable to consummate a sale. No person, whether licensed pursuant to this Chapter or not, shall remain, barter, sell, offer or expose for sale any goods, wares or merchandise adjacent to any property against the wish or desire of the property owner or the tenant or occupant of such property nor within five hundred (500) feet of the entrance to any school building between the hours of 8:00 a.m. and 5:00 p.m. on the days when school is in session nor on those portions of streets on which a public park abuts. No person shall engage in the business of being a transient merchant on any street, alley or public place after having been requested to desist by any police officer of the City because of congested or dangerous traffic conditions.
(Ord. No. 82-29, 5-4-82)

Sec. 7.258. Practices Prohibited.

No transient merchant shall, while in any public place, shout or cry out his or her goods or merchandise, nor blow any horns, ring any bell, broadcast or play any sound, or use any similar device to attract the attention of the public.
(Ord. No. 82-29, 5-4-82)

Sec. 7.259. Exempt Persons.

The following shall be exempt from the licensing requirements of this Chapter, but shall be subject to the other provisions hereof:

(1) Any person under eighteen (18) years of age, when engaged in the business of being a transient merchant on foot in the neighborhood of his or her residence under the direct supervision of any school or recognized charitable organization or religious organization.

(2) Any person exempt from the licensing requirements of this Chapter by virtue of State or Federal law.

(3) Any person who is the duly authorized representative or agent of any church, charitable or labor organization, education or fraternal organization, or of any political group seeking funds or membership or contacting members or electors.

(4) Any person engaging in business solely at a City-operated market, provided that

all transactions are conducted solely within the confines of that market and that the rules and regulations of the market are observed.

(Ord. No. 82-29, 5-4-82)

Sec. 7.260. Hours of Business.

No transient merchant shall call at any dwelling or residence except between the hours of 9:00 a.m. and 9:00 p.m. on any day of the week without an appointment.

(Ord. No. 82-29, 5-4-82)

Sec. 7.261. Obedience to Signs.

No transient merchant shall call without an appointment at any dwelling or residence where a sign is displayed stating "No peddlers," "no solicitors," "no salesmen," "no trespassing," or words of similar meaning or import.

(Ord. No. 82-29, 5-4-82)

Sec. 7.262. Reserved.

Editor's note—Ord. No. 2018-33, § 1, adopted June 12, 2018, repealed § 7.262, which pertained to special event license. See Code Comparative Table for complete derivation.

Secs. 7.263—7.270. Reserved.

Chapter 100

PAWNBROKERS*

Sec. 7.271. License Required.
Sec. 7.272. Application.
Sec. 7.273. License Fee and Bond.
Sec. 7.274. Name at Entrance.
Sec. 7.275. Regulation of Business.
Sec. 7.276. Licensee to Report Lost or Stolen Goods.
Sec. 7.277. Record of Purchases.
Sec. 7.278. Incorporation of State Law.
Sec. 7.279. Recordkeeping and Reporting Requirements.
Secs. 7.280—7.290. Reserved.

*__State law reference—__Licensing of pawnbrokers, MCL 445.471 et seq., 446.201 et seq., MSA 19.581 et seq., 19.740(1) et seq.

Sec. 7.271. License Required.

No person shall engage in the business of Pawnbroker in the City of Grand Rapids without first having complied with all the provisions of Act 273 of the Public Acts of the State of Michigan, for the year 1917, and the provisions of this Chapter and obtained the license as herein provided for.
(Ord. No. 82-30, 5-4-82)

Sec. 7.272. Application.

Any person, firm or corporation desiring to engage in the business of Pawnbroker shall file an application for a license with the City Clerk, as provided for in Chapter 91.
(Ord. No. 82-30, 5-4-82)

Sec. 7.273. License Fee and Bond.

The applicant, prior to issuance of the license, shall pay an annual license fee as provided for in Chapter 92 and shall file a bond in the penal sum of six thousand dollars ($6,000.00), conditioned that such applicant will in all respects faithfully comply with and observe all the requirements of Act 273 of the Public Acts of 1917, as amended, and the faithful performance of the duties and obligations of the business, including compliance with the provisions of the City Charter and this Code.
(Ord. No. 82-30, 5-4-82; Ord. No. 2010-66, § 1, 11-30-10)

Cross reference—License fee for pawnbrokers, § 7.48.

Sec. 7.274. Name at Entrance.

Every licensee hereunder shall cause his, her or their name, as the case may be, to be painted or printed in large legible characters and placed over the outside door or entrance of such business, together with the words "Licensed Pawnbroker."
(Ord. No. 82-30, 5-4-82)

Sec. 7.275. Regulation of Business.

No Pawnbroker, whether licensed pursuant to the provisions of this Chapter, shall:

(1) Accept or purchase any goods, article, property or thing from any person who is at that time intoxicated.

(2) Accept or purchase any goods, article, property or thing that the pawnbroker knows or has reason to believe is stolen.

(Ord. No. 82-30, 5-4-82)

Sec. 7.276. Licensee to Report Lost or Stolen Goods.

It shall be the duty of every licensee hereunder upon receiving information that any goods, articles or thing pledged with such licensee has been lost or stolen to immediately notify the Police Department in writing of the fact, giving the name and address of the person from whom received, and of any other facts connected therewith that may tend to the discovery of or conviction of the thief or thieves.
(Ord. No. 82-30, 5-4-82)

Sec. 7.277. Record of Purchases.

When a licensee shall purchase or receive any article of personal property, the licensee shall make an appropriate record thereof as required by law.
(Ord. No. 82-30, 5-4-82)

Sec. 7.278. Incorporation of State Law.

Act 273 of the Public Acts of 1917, as amended, being MCL 446.201 et seq., (MSA 19.581 et seq.), is incorporated herein by reference as if fully set out herein. Act 231 of the Public Acts of 1945, as amended, being MCL 445.471 (MSA 19.740(1)), is incorporated herein as if fully set out herein. Any violation of either Act set out above shall be considered to be a violation of this Code.
(Ord. No. 82-30, 5-4-82)

Sec. 7.279. Recordkeeping and Reporting Requirements.

(1) A Pawnbroker licensed under this Chapter shall comply with the recordkeeping and reporting requirements for Secondhand Dealers, as set forth in Chapter 101, Sections 7.296 through 7.298, of this Code.

(2) The holder of a current license issued under this Chapter shall have 90 days from the effective date of this section to comply with the recordkeeping and reporting requirements required in Section 7.298.
(Ord. No. 2010-66, § 1, 11-30-10)

Secs. 7.280—7.290. Reserved.

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Chapter 101

SECONDHAND DEALERS*

Sec. 7.291. Secondhand Dealer Defined; Application of Chapter.
Sec. 7.292. License required; Application, Fee, Term and Transfer.
Sec. 7.293. State Pawnbroker License Required for Certain Practices.
Sec. 7.294. Posting Name of Licensee.
Sec. 7.295. Hours of operation; purchases from certain persons prohibited.
Sec. 7.296. Thumbprints and identification of customers.
Sec. 7.297. Records, Tagging articles; Holding Period.
Sec. 7.298. Computerized reporting of transactions.
Sec. 7.299. Exemptions.
Sec. 7.300.1. License revocation.
Sec. 7.300.2. Appeals.
Sec. 7.300.3. Penalty.
Sec. 7.300.4. Compliance by current Licensees.

*__Editor's note—__Ord. No. 2010-66, §§ 3, 4, adopted November 30, 2010, repealed the former Ch. 101, §§ 7.291, and enacted a new Ch. 101 as set out herein. The former Ch. 101 pertained to secondhand dealers and junk dealers and derived from Ord. No. 82-31, 5-4-82; Ord. No. 90-71, § 1, 10-16-90; Ord. No. 2008-13, § 1, 5-13-08.

__State law references—__Licensing of secondhand and junk dealers, 445.471 et seq., MSA 19.711 et seq., 19.740(1) et seq.; junkyards near highways, MSA 9.391(11) et seq.

Sec. 7.291. Secondhand Dealer Defined; Application of Chapter.

(1) As used in this chapter, "secondhand dealer" means any person, including any firm, corporation or other entity, whose business is that of dealing in, buying, selling, exchanging, storing or receiving secondhand goods, articles or merchandise of any kind, including lead pipe, tools, lighting fixtures, plumbing fixtures, radios, watches, jewelry, precious stones, scrap metals, musical instruments, electrical motors, electrical appliances, firearms, automotive parts and accessories, bicycles, clothing, wearing apparel, micrometers, clothing or any article of personal property or other valuable thing.

(2) The definition of secondhand dealer does not include:

(a) Householders selling, purchasing, consigning, or trading articles owned and possessed by themselves or the executors or administrators of any such householders;

(b) Sellers of new articles, wares or merchandise from manufacturers, wholesale distributors or jobbers for retail sale to customers;

(c) Persons, firms, or corporations whose principal business is that of dealing in new goods, articles and merchandise and who do not buy secondhand goods, articles and merchandise outright, but who occasionally accept in trade or repossess used household appliances, watches, jewelry, precious stones and musical instruments.

(Ord. No. 2010-66, § 4, 11-30-10)

Sec. 7.292. License required; Application, Fee, Term and Transfer.

(1) No person shall operate as a secondhand dealer without first obtaining a license to do so from the City as provided in this Chapter.

(2) A person desiring to operate as a secondhand dealer shall apply for a license as provided in Chapter 91 of this Code. Any license required by this Chapter or State law may be issued by the City Clerk as provided in Chapter 91. The provisions of Chapter 91 and Chapter 92 of this Code shall apply to licenses required by this Chapter or State law.

(3) The applicant, prior to the issuance of the license, shall pay an annual license fee as provided for in Chapter 92 and shall affirm that such applicant will in all respects faithfully comply with and observe all the requirements of all applicable federal, state, and local laws and regulations, including Act 350 of the Public Acts of 1917, as amended, and faithfully perform the duties and obligations of the business, including compliance with the provisions of the City Charter and this Code.

(4) Issuance of any license under this Chapter shall be subject to the following additional requirements:

(a) A Licensee shall designate the particular place where the business will be conducted and no Licensee may conduct business in any place not so designated.

(b) A Licensee's location shall be subject to local zoning requirements.

(c) A license shall not be issued to a person who has been convicted of a crime involving an element of theft, dishonesty, or the possession or sale of stolen property, nor shall any Licensee employ any person who has been convicted of such a crime.

(d) A Licensee shall comply with all federal and state laws and regulations. If such laws or regulations conflict with the provisions of this Chapter, the more restrictive provision shall apply.

(Ord. No. 2010-66, § 4, 11-30-10)

Sec. 7.293. State Pawnbroker License Required for Certain Practices.

No person licensed as a Secondhand Dealer under this Chapter shall advertise or represent himself or herself as a pawnbroker or accepting items at pawn unless so licensed in compliance with State law and with Chapter 100 of this Code.

(Ord. No. 2010-66, § 4, 11-30-10)

Sec. 7.294. Posting Name of Licensee.

In addition to the conspicuous display of any license issued, as required under Sec. 7.19 of Chapter 91, a Licensee under this Chapter shall post conspicuously in the designated place of business a sign having his or her name and occupation legibly inscribed thereon in letters at least six inches in height.
(Ord. No. 2010-66, § 4, 11-30-10)

Sec. 7.295. Hours of Operation; Purchases from Certain Persons prohibited.

(1) No person shall purchase or receive, by sale, barter or exchange or otherwise, an article under a license issued pursuant to this chapter from any person between the hours of 9:00 p.m. and 7:00 a.m. or as otherwise prohibited by law. Further, no person shall purchase or receive such an article from any of the following:

(a) A person who is at the time intoxicated or visibly under the influence of alcohol or narcotics.

(b) A person known by the dealer to be a thief or an associate of thieves, a prior recipient of stolen property, or any person the Licensee or employee has reason to suspect of being such.

(c) A minor under the age of eighteen years without written consent of the parent or guardian of such minor.

(2) No person shall purchase or receive, by sale, barter or exchange or otherwise, any article or item that the person knows to be stolen, reasonably should have been known to be stolen, or suspects as having been stolen except as specifically authorized by law enforcement authorities.
(Ord. No. 2010-66, § 4, 11-30-10)

Sec. 7.296. Thumbprints and Identification of Customers.

(1) Whenever a Licensee or employee of a Licensee under this chapter purchases or receives any article or valuable thing as described in Section 7.291(1), the Licensee shall first take, on a form approved by the Police Department, a legible print of the thumb of the right hand of the person from whom such article was received. If such person has no right thumb, the Licensee shall take the legible print of the thumb of the left hand or of a finger, which shall be so identified in writing by the Licensee.

(2) The seller must provide the secondhand dealer with personal identification at the time of the transaction, in the form of a valid operator's license or a federal or state identification card which includes a photograph that positively matches the seller. The Licensee shall obtain and maintain a copy of the identification.
(Ord. No. 2010-66, § 4, 11-30-10)

Sec. 7.297. Records, Tagging Articles; Holding Period.

(1) A Licensee shall keep a permanent record in which shall be written, in the English language, at the time of purchase, exchange or other receipt of any article, a complete and accurate description thereof. Such description shall include an electronic photograph of the article, the article's trade name and serial number, if any; the name, residence and a copy of the federal or state-issued identification/operator's license of the person from whom the article was purchased or received; and the day and hour when such purchase or exchange was made and such other matters required by law. Each entry in such record shall be numbered consecutively. A member of the Police Department, Sheriff's Department, State Police or other authorized person is entitled to inspect the premises and records of a Licensee during all normal business hours.

(2) A tag shall be attached to each article purchased, exchanged, or received by the Licensee in some visible and convenient place, with a number written thereupon to correspond with the entry number in the record required in subsection (a), until the article is sold or otherwise disposed of. The Licensee shall promptly prepare from such record a legible and correct copy, on forms approved by the Chief of Police and written in the English language, containing a description of each article purchased or received during the preceding day, the hour and day when the purchase, exchange, or receipt was made, and the

description of the person from whom it was purchased, exchanged or received. Such statement shall be verified by the affidavit of the Licensee.

(3) Any article purchased, exchanged, or received under a license issued pursuant to this chapter shall be retained by the purchaser thereof for at least 15 days before disposing of the article, in an accessible place on the premises where such articles are purchased and received.
(Ord. No. 2010-66, § 4, 11-30-10)

Sec. 7.298. Computerized Reporting of Transactions.

(1) By 11:59 p.m. daily, at his or her own expense, every Licensee under this chapter shall promptly complete and transmit, by electronic means, to the Police Department's computerized system(s), the data identifying all transactions in which the Licensee received used goods the preceding day by pawn, exchange, purchase, or consignment. A transaction reported by electronic transmission under this subsection shall not be reported on paper forms unless the Chief of Police so requests.

(2) Each transaction report and record shall include a digital photograph of the article or group of articles, along with a description of the article and, if applicable, serial number, make, model number, size, color of the article or articles; the purchase/loan price; ticket number; dealer name and location; the name of the person conducting transaction; place of storage/stock location; and customer information including operator's license number or other federal or state identification number, customer's name (last, first, middle), customer address, customer date of birth, physical description (height, weight, hair color, race, gender, appropriate fingerprint) and any other information required by the local law enforcement agency.
(Ord. No. 2010-66, § 4, 11-30-10)

Sec. 7.299. Exemptions.

(1) Sections 7.296(1), 7.297(2)-(3), and 7.298 of this Chapter shall not apply to:

(a) Secondhand or used tires when such tires are removed from the vehicle to which such tires are attached in the presence of the person receiving them.

(b) Used car dealers;

(c) Non-profit organizations re-selling donated goods;

(d) Art galleries;

(e) Used book stores;

(f) Clothing consignment stores;

(g) Antique dealers and other dealers in used household goods

(2) All Licensees exempted from electronic reporting under this section nonetheless shall report, in a format approved by the local law enforcement agency, any transactions involving the following items:

(a) Home and personal audio and video equipment, including but not limited to televisions, radios, audio players, receivers, and recorders of any kind; and personal electronic devices;

(b) Car stereos, GPS devices, and other audio and video equipment for use or installation in a motor vehicle;

(c) Computers and video game devices of any kind and related software, game disks, and cartridges;

(d) Electrical or other appliances; and

(e) Hand or power tools for use in carpentry, woodworking, plumbing, electrical work, and any other aspects of building, construction or other trade.

(3) All Licensees exempted under this section nonetheless must comply with state law requirements, as set forth in MCL 445.404(2) and Section 7.297(1) of this Chapter, to make and maintain a separate record of all transactions that is open to inspection by local law enforcement officers and the Michigan State Police.
(Ord. No. 2010-66, § 4, 11-30-10)

Sec. 7.300.1. License Revocation.

If a Licensee under this Chapter or any of his or her agents, servants or employees is found criminally guilty of violating any of the provisions of this chapter and/or any applicable state law, the Chief of Police may request that the City

Clerk revoke the license of the violator and the City Clerk may, after providing notice to the Licensee, revoke the license. The violator, following such revocation, shall not be permitted to carry on such business in the City for a period of one year.
(Ord. No. 2010-66, § 4, 11-30-10)

Sec. 7.300.2. Appeals.

Any person aggrieved by the action of the City in the denial, suspension or revocation of license to do business may appeal as provided in Chapter 91. The appeal procedures set forth in Chapter 91 shall apply to any appeal brought under this Chapter.
(Ord. No. 2010-66, § 4, 11-30-10)

Sec. 7.300.3. Penalty.

Violations of this ordinance shall be a misdemeanor, punishable by imprisonment for up to ninety (90) days, a fine, not to exceed $500.00, and costs of prosecution.
(Ord. No. 2010-66, § 4, 11-30-10)

Sec. 7.300.4. Compliance by Current Licensees.

The holder of a current license issued under this Chapter shall have 90 days from the effective date of this section to comply with the recordkeeping and reporting requirements set forth in Section 7.298.
(Ord. No. 2010-66, § 4, 11-30-10)

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Chapter 102

INDOOR EVENTS*

Sec. 7.301. Title.
Sec. 7.302. Purpose, Intent, Scope.
Sec. 7.303. Definitions.
Sec. 7.304. License Requirements.
Sec. 7.305. License Denial, Suspension, Revocation, Appeal.
Sec. 7.306. Operation of Facility.
Sec. 7.307. Governing Law.
Sec. 7.308. Violations and Penalties.

*__Editor's note—__Ord. No. 2019-27, § 1(1.1—1.8), adopted July 9, 2019, repealed the former Ch. 102, §§ 7.301—7.308, and enacted a new Ch. 102 as set out herein. The former Ch. 102 pertained to dance halls and derived from Ord. No. 2013-34, § 2, 7-23-13.

Sec. 7.301. Title.

This Chapter shall be known as the Indoor Events Ordinance of the City of Grand Rapids.
(Ord. No. 2019-27, § 1(1.1), 7-9-19)

Sec. 7.302. Purpose, Intent, Scope.

The purpose of the Ordinance is to promote, protect, and preserve the health, safety, and welfare of persons gathered at indoor events within the City of Grand Rapids which are open to the general public or a portion thereof and occur in a public place.

The intent of the Ordinance is to impose reasonable regulation on the use of facilities for indoor events, including a comprehensive approval process, inspections, and moderation or elimination of potential adverse effects on surrounding properties.
(Ord. No. 2019-27, § 1(1.2), 7-9-19)

Sec. 7.303. Definitions.

As used in this Chapter, the words and terms set out below shall have the following meanings:

(1) *Alcoholic Beverage.* Any beverage which contains alcoholic liquor and is therefore under the jurisdiction and control of the Michigan Liquor Control Commission.

(2) *Applicant.* Any individual, corporation, legal entity, association, society, or group seeking an indoor event license under this Chapter.

(3) *Event.* An episodic occurrence or event or series of occurrences or events, specific to an identifiable time and place, that bring persons together for an indoor activity or series of activities in a facility, as described in this Chapter. Events may include, but are not limited to, entertainment (concerts, plays, performances, films and videos, other activities), social (activities of fraternal/sororal, veterans, ethnic, other organizations), recreation (dances, karaoke, games, other activities), sports (individual or team, physical fitness and health, other physical activities), and community (civic, political, educational, other activities). An event may be free of charge or subject to an admission fee. A private gathering in a residential building shall not be considered an event.

(4) *Facility.* A permanent, non-residential structure or a portion thereof, or any room or space therein, which is to be put to use as a place where fifty (50) or more persons congregate during an event of limited duration open to the general public or a portion thereof. Facilities may include, but are not limited to, banquet spaces, theaters, nightclubs, clubs, sports facilities, entertainment venues, catering spaces, and similar places.

(5) *License.* After meeting all requirements and conditions described herein, an applicant shall be authorized to conduct indoor events in a facility as described herein for a period of one (1) year.

(6) *Owner.* Any person having legal or equitable interest in a facility, or that person's agent.

(7) *Person.* An individual, corporation, legal entity, association, society, or group, except for governmental, religious, and educational institutions.

(8) *Public Place.* A facility available for rental or use by the general public or a portion thereof, regardless of the function or occasion for which it is rented or used.
(Ord. No. 2019-27, § 1(1.3), 7-9-19)

Sec. 7.304. License Requirements.

(a) No person shall put a facility to use for indoor events without an Indoor Events License issued by the City Clerk's Office.

(b) A person desiring an Indoor Events License shall complete an application as provided by the City Clerk.

(c) *Applicant Information.* The application shall include the following information and be submitted with payment of the fee provided for in Chapter 92 of City Code:

(1) Applicant's name, address, telephone number, and email address.

(2) Location of facility, including address and parcel identification number.

(3) If applicant is a business entity, (a) name of corporation, partnership, or company, (b) name of registered agent, (c) name(s) of all members or stockholders, and (d) state of incorporation.

(4) Proof of ownership or lease of the facility.

(5) A Certificate of Occupancy issued by the Grand Rapids Building official or his or her designee.

(6) If liquor is to be served at events, a copy of a valid liquor license and any required permits issued under the laws of the State of Michigan, the Grand Rapids City Charter, and the Grand Rapids City Code.

(7) A Certificate of Insurance for comprehensive general liability insurance as required by Chapter 92, Sec. 7.46 and Title I, Chapter 1, Sec. 1.12, and proof of workers compensation insurance if required by law.

(8) Any other pertinent information requested by the City.

(d) *Application Changes.* If there is a change in the facts provided with the application, the applicant must provide written notice of the change to the City Clerk within ten (10) days of its occurrence. Failure to do so may be cause for denial of a license, and if a license has already been issued, suspension or revocation of the license.

(e) *Inspection.*

(1) For the purpose of ensuring compliance with this Chapter, the applicant or her or his agent shall permit properly identified representatives, employees or agents of the Grand Rapids Police Department, Grand Rapids Fire Department, Grand Rapids Building Department, any other City department as the City deems necessary, or the Kent County Health Department to enter onto and inspect any portion of the facility where assembly will occur, to confirm that it complies with all requirements of City Code and applicable local, state and federal laws, rules and regulations and is safe for use as an indoor event facility. Where entry is denied or cannot be achieved for any other reason, a license may be denied, suspended, or revoked, and any other appropriate legal action may be taken.

(2) The inspection may include, but shall not be limited to, interior and exterior building construction including structural, electrical, plumbing, heating, cooling, ventilation, mechanical, fire and other hazard safety systems, accessibility, storage of flammable/hazardous materials, ingress/egress, signage, emergency systems, health and sanitation, kitchen facilities, garbage disposal, environmental, parking, and use of adjacent public space if appropriate.

(3) No license shall be issued without the approval of the Grand Rapids Police Chief, Fire Chief, Zoning Official, and Building Official or their designees pursuant to Title VII, Chapter 91, Sec. 7.9 - Licensing and Certification Required, any other City department as the City deems necessary, and the Kent County Health Department if appropriate. If required approvals are not obtained, the City Clerk shall, not later than five (5) days after notification that one (1) or more approvals were not given, inform the applicant that the license was denied and the reasons therefor.

(f) No license shall be granted to any applicant who, upon investigation, is found to have unpaid or delinquent real property, personal property, or City income taxes, or special assessments.

(g) Following approval of the application as required herein, and upon payment of the fee provided for in Chapter 92 of City Code, the City Clerk shall cause a license to be issued.

(h) *Term of License.* A license shall be issued to a facility for a term of one (1) year.

(i) *Posting of License.* A license issued under this Chapter shall be posted and clearly visible at the main entrance of the facility, and it shall be a violation of this Chapter to conceal, remove, deface, or alter the license.

(j) *Renewal of License.*

(1) If renewal of a license does not occur within sixty (60) days from the date of expiration of the original license, the applicant will be required to comply with the requirements for obtaining a new license described in Section 7.304(a)—(e) above.

(2) A license will not be renewed until an annual fire inspection of the facility has occurred. Based on the outcome of the fire inspection, additional inspection/s may be required before renewal of the license.

(3) A license will not be renewed if the applicant has unpaid or delinquent real property, personal property, or City income taxes, or special assessments.

(k) *Non-transferability.* A license issued under this Chapter shall not be transferred or assigned to any person or used by any person other than the licensee to whom it was issued, nor shall a license be used or displayed at any location other than the location designated on the license.

(l) *Exceptions.*

(1) The use of temporary structures for temporary events of precisely limited duration is regulated and authorized by the provisions governing Temporary Use Permits under the Grand Rapids Zoning Ordinance. Temporary use of a temporary structure is a use which ceases upon expiration of a stated time period, at which point the Permit expires.

(2) This Chapter shall not apply to facilities operated by governmental entities or educational institutions which are regulated by the State of Michigan.

(Ord. No. 2019-27, § 1(1.4), 7-9-19)

Sec. 7.305. License Denial, Suspension, Revocation, Appeal.

(a) *Grounds for Denial, Suspension, or Revocation of License.* A license may be denied, suspended, or revoked by the City based upon any of the following grounds:

(1) The applicant or licensee has failed to comply with the application provisions of this Chapter.

(2) The applicant or licensee has been found guilty of or responsible for any misdemeanor or civil infraction pursuant to City Code which indicates a reasonable likelihood that the applicant or licensee is unwilling or unable to comply with this Chapter.

(3) The applicant or licensee has knowingly made a false statement of material fact, or knowingly failed to state a material fact during or after the application process.

(4) The applicant or licensee has permitted any illegal gambling; sale or use of illegal drugs; obscenity; alcohol violation; public or private nuisance; overcrowding; or disorderly conduct in or on the property of the facility, or has failed, refused, or neglected to provide for the health, safety, and welfare of persons using the facility; has violated any federal, state, or local laws, rules, or regulations; or has failed or refused to permit an inspection of the facility.

(b) *Right to Appeal.* Upon denial, suspension, or revocation of a license, the applicant shall have the right to appeal pursuant to Chapter 91 of City Code.

(Ord. No. 2019-27, § 1(1.5), 7-9-19)

Sec. 7.306. Operation of Facility.

(a) *Hours.*

(1) The hours of operation of an event held at a facility located in a residential district or within two hundred (200) feet of a residential district shall be 7:00 a.m. to 12:00 a.m.

(2) The hours of operation of an event held at a facility located further than two hundred (200) feet of a residential district shall be 7:00 a.m. to 2:00 a.m.

(3) If the hours of operation of an event are otherwise regulated by a special land use or temporary use permit granted under City Code by the Planning Commission or Planning Director, those hours shall apply to the event.

(b) *Nuisance and Criminal Activity.* A facility shall have no or minimal effects on the surrounding neighborhood, including but not limited to:

(1) Unusually heavy vehicular traffic during late night or early morning hours, or excessive traffic-related effects including noise, parking, and congestion.

(2) Excessive pedestrian traffic, including noise and congestion outside the facility boundaries.

(3) Noise, odors, or light that are perceptible in violation of City Code.

(4) Increased criminal activities of any sort on or in the vicinity of the facility.

(c) *Alcohol.* The sale, service, and on-premise consumption of alcohol at an event shall be regulated by the laws of the State of Michigan, and the Grand Rapids Charter and City Code as applicable.

(d) *Permittee Presence.*

(1) The permit holder or his or her agent named on the license application shall remain on facility premises for the duration of any event to supervise activities, and shall be responsible to ensure that such activities are in compliance with this Chapter, City Code, and any other applicable local, state and federal laws, rules, and regulations.

(Ord. No. 2019-27, § 1(1.6), 7-9-19)

Sec. 7.307. Governing Law.

(a) The provisions of Chapter 91 of City Code shall apply where they are not in conflict with the provisions of this Chapter.

(b) In addition to this Ordinance, rules and regulations may be promulgated by the City Manager as he or she may deem necessary to protect the public health, safety and welfare. Said rules and regulations shall be published and available on the City's website.

(Ord. No. 2019-27, § 1(1.7), 7-9-19)

Sec. 7.308. Violations and Penalties.

(a) A violation of this Chapter, or of any rule or regulation duly adopted and published pursuant to this Chapter, shall be a misdemeanor, punishable by imprisonment for up to ninety (90) days or a fine not to exceed five hundred dollars ($500.00) or both, and court costs.

(b) Penalties may also include injunction, nuisance abatement under state or local law, civil action to recover the City's costs of inspection, enforcement, prosecution and administration, and license denial, suspension, or revocation.

(c) Any person who violates this Chapter may be cited for a violation for each day the violation continues.

(d) Whenever any unlawful conduct or condition exists at any facility, an officer of the Grand Rapids Police Department is authorized to order the facility vacated. If a building or fire law, ordinance, rule, or regulation is being violated, the Grand Rapids Fire Department shall have authority to order the facility immediately vacated.

(e) Any violations apply to the entire facility, regardless of the fact that events may be held in different rooms or spaces.

(Ord. No. 2019-27, § 1(1.8), 7-9-19)

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Chapter 103

RESERVED*

*__Editor's note—__Ord. No. 2020-25, § 1, adopted July 21, 2020, repealed §§ 7.321—7.325, which pertained to amusements and derived from Ord. No. 2018-24, § 1, 6-5-18.

Chapter 104

RESERVED*

*__Editor's note—__Ord. No. 2019-32, § 1, adopted July 23, 2019, repealed § 7.341—7.350, which pertained to motion picture theaters and derived from Ord. No. 82-34, 5-4-82.

Chapter 105

CANNABIS RELATED MUNICIPAL LICENSING*

Sec. 7.361. Purpose and Intent.
Sec. 7.362. Definitions.
Sec. 7.363. Cannabis Establishments and Licensees Authorized to Operate within the City.
Sec. 7.364. Cannabis Related Municipal License Required.
Sec. 7.365. General Provisions.
Sec. 7.366. Application Requirements.
Sec. 7.367. Environmental Sustainability.
Sec. 7.368. Conduct of Business at Licensed Cannabis Establishment.
Sec. 7.369. Social Equity Plan.
Sec. 7.370. License Denial, Suspension, or Revocation.
Sec. 7.371. Revocation Not Exclusive Penalty or Remedy.
Sec. 7.372. Fees.
Sec. 7.373. Renewal of Existing Licenses.
Sec. 7.374. Issuance of License and Authorization to Operate Under License.
Sec. 7.375. Penalty for Violations.
Sec. 7.376. Coordination with State Licensing Authorities.
Sec. 7.377. Conflicts with Other Laws or Regulations.
Sec. 7.378. Severability.
Sec. 7.379. Acceptance of Licensing Applications.

*__Editor's note—__Ord. No. 2020-20, § 1, adopted July 7, 2020, amended chapter 105 in its entirety to read as herein set out. Former chapter 105, §§ 7.361—7.379, pertained to marihuana related municipal licensing, and derived from Ord. No. 2019-66, § 1, 10-8-19; Ord. No. 2020-08, § 1, 3-17-20.

Sec. 7.361. Purpose and Intent.

The City of Grand Rapids intends to license and regulate cannabis facilities and establishments as authorized under the Michigan Medical Marihuana Facilities Licensing Act (MMFLA), Public Act 281 of 2016, MCL 333.27101 et seq., and the Michigan Regulation & Taxation of Marijuana Act (MRTMA), Public Act 1 of 2018, MCL 333.27951 et seq., and to exercise authority as a home rule city to enforce ordinances under its police power in order to preserve the public health, safety, and welfare. By requiring a license and compliance with the requirements of this Chapter, the City intends to protect the public health, safety, and welfare by:

(1) Promoting the safe, regulated manufacturing, production, and sale by state-licensed cannabis establishments and facilities;

(2) Discouraging the sale of unsafe and unlicensed cannabis products;

(3) Preserving and protecting the health, safety, and welfare of the residents of the City and the general public by minimizing unsafe and unregulated cannabis production and sale;

(4) Minimizing the impact of the cannabis industry's intensive use of water and energy, particularly the growing process of cannabis plants. It is the City of Grand Rapids' intention to minimize the impact cannabis establishments have on public infrastructure and the environment by maximizing efficiency and reducing the need for the use of nonrenewable resources wherever possible;

(5) Promoting and encouraging participation in the cannabis industry by people from communities that have been disproportionately impacted by cannabis prohibition and enforcement and to positively impact those communities.

(Ord. No. 2020-20, § 1, 7-7-20)

Sec. 7.362. Definitions.

The following terms shall have the definitions indicated for the purposes of this Chapter:

(1) Terms contained in the Michigan Medical Marihuana Facilities Licensing Act (MMFLA), Public Act 281 of 2016, MCL 333.27101 et seq., and the Michigan Regulation and Taxation of Marijuana Act, Public Act 1 of 2018, MCL 333.27954 et seq., as amended (MRTMA), apply to the terms found herein. This Chapter contains some words and phrases that are defined in the MMFLA and the MRTMA. As used in this Chapter, they have the same meaning as provided in the MMFLA & MRTMA, unless the term is otherwise defined in this Chapter or the context requires a different meaning.

(2) *"Applicant"* means a person who applies for a Cannabis Related Municipal License under this Chapter.

(3) *"Cannabis"* shall have the same meaning as "marihuana" as defined in the MRTMA, MCL 333.27953(e). The term "cannabis" shall be the preferred term used in this ordinance, unless the term "marihuana" occurs in a proper name, including a state statute or agency name.

(4) The words *"Establishments"* and *"Facilities"* are used interchangeably and refer to any cannabis related locations at which a licensee is licensed to operate under either MMFLA, MRTMA, or both.

(5) *"Licensee"* means a person or entity issued a cannabis establishment or facility license under this Chapter or by the State, including safety compliance facilities, cannabis event organizers, temporary events, and secure transporters.

(6) *"Municipal cannabis license"* or *"license"* means a required Cannabis Related Municipal License issued pursuant to this Chapter that allows the licensee to operate within the City as one (1) of the following, as specified in the license:

(a) Grower, including Class A Grower, Class B Grower, Class C Grower, and Excess Grower;

(b) Processor;

(c) Provisioning Center;

(d) Retailer;

(e) Designated Consumption Establishment;

(f) Microbusiness;

(g) Safety Compliance Facility;

(h) Secure Transporter;

(i) Cannabis Related Event Coordinator;

(j) Cannabis Related Temporary Event.

(Ord. No. 2020-20, § 1, 7-7-20)

Sec. 7.363. Cannabis Establishments and Licensees Authorized to Operate within the City.

(1) Pursuant to the MMFLA and MRTMA, the City of Grand Rapids authorizes the operation in the City of the following cannabis licenses, provided they possess a state operating license issued under the MMFLA, MRTMA, or both, and they comply with the additional requirements of this Chapter, Chapter 61 (Zoning), and all other applicable laws and ordinances:

(a) Class A Grower, Class B Grower, Class C Grower, and Excess Marijuana Grower;

(b) Processor;

(c) Provisioning Center;

(d) Retailer;

(e) Microbusiness;

(f) Secure Transporter;

(g) Safety Compliance Facility.

(2) Pursuant to the MRTMA, the City of Grand Rapids does not currently authorize operation in the City of the following cannabis licenses:

(a) Designated Consumption Establishment;

(b) Cannabis Related Temporary Event.

(3) A Cannabis Related Event Coordinator may be located within the City of Grand Rapids without a municipal license, so long as none of the coordinated events are held within the City of Grand Rapids.

(Ord. No. 2020-20, § 1, 7-7-20)

Sec. 7.364. Cannabis Related Municipal License Required.

(1) No person shall operate a cannabis establishment in the City of Grand Rapids without first obtaining a municipal license and/or permit to do so as required by this Chapter.

(2) For co-located cannabis establishments, as authorized by this Code and state law, a separate Cannabis Related Municipal License is required for each type of establishment operated.

(3) For cannabis establishments with stacked and/or excess grow operations as authorized by this Code and state law, a license is required for each stacked and excess cannabis grower license.

(4) The license requirement in this Chapter shall be in addition to any other requirements imposed by any other state or local law, including but not limited to state or local laws applicable to commercial entities performing functions similar to the functions performed by cannabis establishments.

(5) A license issued under this Chapter shall be valid for one (1) year after the date of issuance, unless the City Clerk issues a longer license as authorized by this chapter. The expiration date of the state operating license that corresponds to a cannabis facility license issued under this Chapter constitutes the expiration date of the Cannabis Related Municipal License. Expiration of the Cannabis Related Municipal License does not affect a person's licensure under MMFLA or MMRTA but does affect the person's ability to operate a cannabis establishment in the City.

(6) This Chapter does not apply to, or regulate, any patient or caregiver conduct protected by the Michigan Medical Marihuana Act, 2008 IL 1, MCL 333.26421 et seq. (MMMA).

(Ord. No. 2020-20, § 1, 7-7-20)

Sec. 7.365. General Provisions.

(1) A Cannabis Related Municipal License is a revocable privilege and not a right. Nothing in this Chapter may be held or construed to grant a vested right, license, permit or privilege to continued operations within the City.

(2) A license issued under this Chapter is valid only for the applicant named on the license, the location of the establishment, and type of establishment identified on the license. Each license is personal and exclusive to the licensee.

(3) The revocation, suspension, and placement of restrictions by the State on a state operating license apply equally to a license issued by the City.

(4) An applicant or licensee has a continuing duty to provide information requested by the City and to cooperate in any investigation, inquiry, or hearing conducted by the City.

(5) Acceptance of a license from the City under this Chapter constitutes consent by the licensee for the City to conduct inspections of the licensed premises to ensure compliance with this Chapter.

(6) The issuance of any license pursuant to this Chapter does not create an exception, defense, or immunity to any person with regard to any potential criminal or civil liability the person may have under any federal or state law or city ordinance.

(7) No Cannabis Related Municipal License may be sold, assigned, mortgaged or otherwise transferred.
(Ord. No. 2020-20, § 1, 7-7-20)

Sec. 7.366. Application Requirements.

(1) An application for a cannabis facility license shall be submitted to the City Clerk in a form provided by the City. Any application that does not include all information requested by the application form or is not supported by the materials required by this Chapter or the license application shall be denied and/or rejected.

(2) The application may require information that will enable the City Clerk to make a fair determination as to the applicant's fitness and ability to comply with the provisions of this Code and all other applicable laws, ordinances and regulations, including but not limited to:

(a) The name and address of the facility and any other contact information requested on the application form.

(b) The name and address of all owners (entities and individuals) of the real property where the facility is located.

(c) A copy of official paperwork issued by the State indicating that the applicant has successfully completed the prequalification step of the application for a state operating license.

(d) Proof of applicant's ownership, legal possession, or otherwise legal interest in the premises.

(e) Proof that the appropriate zoning approval has been received.

(f) Copy of the security plan required by State Administrative Rule 35, R. 333.235, or MRTMA Emergency Rule 35, or their successor regulations.

(g) Evidence of a valid and effective policy for general liability insurance within minimum limits of one million dollars ($1,000,000.00) per occurrence and a two million dollars ($2,000,000.00) aggregate limit issued from a company licensed to do business in Michigan having an AM Best rating of at least B++ shall be produced that includes the name/s of the insured, effective and expiration dates, and policy number. The City of Grand Rapids and its officials and employees shall be named as additional insureds. The City shall be notified of any cancellation, expiration, reduction in coverage, or other policy changes within five (5) business days of the event.

(h) If the application is for a grower's license, the maximum number of plants that the applicant intends to grow.

(i) Proof of environmental sustainability plan conforming to the requirements of this Chapter.

(j) Proof of social equity plan conforming to the requirements of this Chapter.

(k) Any information and materials required by City Policy.

(l) Other information and materials specific to the type of establishment or activity being licensed as indicated on the license application.

(3) Payment of a non-refundable application fee per cannabis license sought and/or proof that the applicant has, within the prior three hundred sixty-five (365) days, paid the zoning application fee for zoning approval associated with the cannabis facility type identified in the application as required in Chapter 61, Section 5.9.19. Fees shall be offset to ensure the annual fees required by cannabis facility ordinances or zoning regulations promulgated pursuant to the MMFLA & MRTMA do not exceed five thousand dollars ($5,000.00) annually, per application.
(Ord. No. 2020-20, § 1, 7-7-20)

Sec. 7.367. Environmental Sustainability.

(1) All establishments shall enroll in the Grand Rapids 2030 District prior to operation. Enrollment shall be, at a minimum, as a building owner or substantially similar enrollment option that enables the confidential reporting of cannabis facility performance data, which shall be reported via Energy Star Portfolio Manager on at least an annual basis and no later than sixteen (16) months after operations commence.

(2) A grower of any class and microbusinesses shall be required to meet the following environmental sustainability requirements:

(a) Create and submit an analysis of predictive energy load, including design energy use intensity (EUI) to the City's Office of Sustainability as well as all energy utilities serving the applicant, including electricity, natural gas, and steam, at the time of the Cannabis Related Municipal License application.

(b) Create and submit an environmental sustainability plan to the City's Office of Sustainability at the time of the Cannabis Related Municipal License application, that includes the following items:

(i) Estimated greenhouse gas (GHG) emissions for the coming year and reporting on the past year's GHG emissions;

(ii) Identification of water efficiency measures planned;

(iii) A list of wastewater pollutant loadings and toxics; and

(iv) A solid waste management plan detailing disposal plans and anticipated amounts for plants, soils and other wastes that will be generated.

(c) At least fifty (50) percent of plant canopy area that is partially or fully illuminated by electric lighting shall be illuminated by fixtures with photosynthetic photon efficacy of at least 1.9 µmol/J at the time operations commence.

(d) Submit a whole building energy audit meeting ASHRAE Level II guidelines or better to the City's Office of Sustainability within sixteen (16) months after operations commence.

(e) All applications for renewal of any license shall include the environmental sustainability plan submission required by this section and proof of compliance with the annual reporting requirements under this Section.
(Ord. No. 2020-20, § 1, 7-7-20)

Sec. 7.368. Conduct of Business at Licensed Cannabis Establishment.

(1) The operations at a licensed cannabis facility shall be conducted in compliance with the MMFLA and the MRTMA, and any rules promulgated pursuant to other laws, rules, and regulations of the state of Michigan and the City of Grand Rapids.

(2) All security measures required by the State shall be maintained.

(a) Security devices and all components of those devices required by the State, including but not limited to, video surveillance systems, alarm systems, and locks, shall be in good working order.

(b) Licensees shall register their video surveillance systems with the Grand Rapids Police Department.

(3) All cannabis in any form on the premises of a licensed cannabis facility shall be cultivated, manufactured, tested, sold, and packaged in the State of Michigan.

(4) Access to the licensed cannabis establishment is restricted to the licensee, employees of the licensee, and adult patrons age 21 or older in establishments licensed for recreational cannabis, and the department, through its investigators, agents, auditors, or the State Police or authorized City employees acting within the scope of their employment. A separate waiting area may be created for visitors not authorized to enter the cannabis establishment.

(5) Recreational cannabis products must be separated from medical cannabis products in accordance with State law.

(6) A licensee shall display all cannabis facility licenses issued under this Chapter and state operating licenses in plain view clearly visible to patrons, clients, city officials, and state authorized agents.

(7) A licensee shall not permit or allow the sale, consumption, or use of alcohol or tobacco products on licensed premises unless it is licensed to do so by the State and the City, and/or as otherwise permitted by law.

(8) A licensee shall not permit or otherwise allow the use, smoke, inhalation, or consumption of cannabis, in any form, anywhere within a licensed cannabis establishment or on the property of a licensed establishment unless it is licensed to do so by the State and the City.

(9) A licensee shall comply with the Michigan Construction Code and Americans with Disabilities Act Amendment Act of 2008 (ADAA) meeting ANSI A117.1.
(Ord. No. 2020-20, § 1, 7-7-20)

Sec. 7.369. Social Equity Plan.

(1) All cannabis license applicants shall provide a social equity plan detailing any practices, initiatives, or policies the applicant will implement to promote and encourage participation in the cannabis industry by people from communities that have been disproportionately impacted by cannabis prohibition and enforcement and to positively impact those communities.

(2) The social equity plan shall address, at a minimum:

(a) Employment practices regarding recruitment, hiring, promotion, or transfer of individuals that have been impacted by cannabis prohibition and enforcement or individuals from communities that have been disproportionately impacted by cannabis prohibition and enforcement;

(b) Supplier practices to promote and encourage individuals that have been disproportionately impacted by cannabis prohibition and enforcement or individuals from communities that have been disproportionately impacted by cannabis prohibition and enforcement to participate in the cannabis industry as suppliers;

(c) Public accommodation practices to promote and encourage people from communities that have been disproportionately impacted by cannabis prohibition and enforcement to participate in the cannabis industry;

(d) Community impact practices and initiatives that positively impact communities disproportionately impacted by cannabis prohibition and enforcement;

(e) Anti-discrimination policies that prohibit discrimination in employment and public accommodations in accordance with Chapter 176 of this Code (Human Rights Ordinance); and

(f) A summary outlining the licensee's social equity plan that will be published and made publicly available on a licensee website, if available, or another method reasonably calculated to reach clients, patrons, suppliers, and the public, if the licensee does not maintain an online presence.

(3) All licensees shall make good faith effort to meet the objectives of the social equity plan submitted with the application or license renewal. "Good faith effort" means efforts designed to implement the established objectives of the licensee's Social Equity Plan which by their scope, intensity and appropriateness to the objective, can reasonably be expected to fulfill the Plan objective. License renewals shall require reporting on the licensee's good faith efforts under this Section.
(Ord. No. 2020-20, § 1, 7-7-20)

Sec. 7.370. License Denial, Suspension, or Revocation.

(1) A license issued under this Chapter may be denied, suspended, revoked, or nonrenewed for any of the following reasons:

(a) The applicant or licensee is ineligible or does not hold the appropriate state operating license under the MMFLA or MRTMA.

(b) The applicant or licensee, or his or her agent, manager or employee, has violated, does not meet, or has failed to comply with any of the terms, requirements, conditions or provisions of this Chapter, City Code, or with any applicable state law.

(c) A license application contains any misrepresentation or omission of any material fact, or false or misleading information, or the applicant has provided the city with any other false or misleading information related to the establishment.

(d) Cannabis is grown, dispensed, possessed, distributed, or sold on the premises in violation of this Chapter or any other applicable state or local law, rule or regulation.

(e) The establishment is operated or is operating in violation of the specifications of the license application, license, any conditions of approval by the City or any other applicable state or local law, rule or regulation. Voluntary commitments made pursuant to City Policy are included within the specifications of the license application and the City may deny, suspend, revoke, or non-renew the license based on non- compliance with those commitments.

(f) The City, the county, or any other governmental entity with jurisdiction, has closed the establishment temporarily or permanently or has issued any sanction for failure to comply with health and safety provisions of this Chapter or other applicable state or local laws related to public health and safety.

(g) The establishment's state operating license has been suspended, revoked, denied, or not renewed.

(h) The cannabis establishment has been operated in a manner that adversely affects the public health, safety or welfare. Evidence to support a finding under this Section may include, without limitation, a recurring pattern of conduct that violates City Code directly related to or arising from the operation of the cannabis establishment; a recurring pattern or drug-related criminal conduct within the premises of the cannabis establishment or in the immediate area surrounding the establishment; a recurring pattern of criminal conduct directly related to or arising from the operation of the cannabis establishment; or an ongoing nuisance condition emanating from or caused by the cannabis establishment. Criminal drug-related conduct considered under this Section shall be limited to the violation of a State law, state regulation, or city ordinance.

(2) These grounds for denial, suspension or revocation of a license provided for in this Chapter shall be in addition to other grounds for denial, suspension or revocation of licenses or permits provided for in Chapter 91 and elsewhere in this Code.

(3) Prior to suspension, revocation, or nonrenewal of any license issued under this Chapter, the licensee shall be entitled to a hearing as provided in Section 7.16 of Chapter 91 of this Code.

(4) An applicant has the right to appeal the denial of a license as provided in Section 7.16 of Chapter 91 of this Code.
(Ord. No. 2020-20, § 1, 7-7-20)

Sec. 7.371. Revocation Not Exclusive Penalty or Remedy.

Nothing in this Chapter shall be deemed to prohibit the City from imposing other penalties or seeking other remedies authorized by the Grand Rapids City Code or other ordinance of the City, including filing a public nuisance action or any other legal action in a court of competent jurisdiction.
(Ord. No. 2020-20, § 1, 7-7-20)

Sec. 7.372. Fees.

(1) The annual license fee shall be as specified in Chapter 92 of this Code.

(2) License fee discounts may be provided in accordance with City Policy.
(Ord. No. 2020-20, § 1, 7-7-20)

Sec. 7.373. Renewal of Existing Licenses.

(1) The same procedures that apply to applying for a new license shall apply to the renewal of existing licenses.

(2) An application for renewal of an existing license shall be submitted no sooner than sixty (60) days before the existing license expires and no later than thirty-one (31) days before the expiration date.

(3) If a license renewal is not submitted by the license expiration date, the license may be renewed within sixty (60) days after its expiration date upon application, payment of applicable fees and penalties, and satisfaction of any renewal requirements if state licensure is still active.

(4) Multi-year license renewals may be provided in accordance with City Policy for a duration not to exceed three (3) years.
(Ord. No. 2020-20, § 1, 7-7-20)

Sec. 7.374. Issuance of License and Authorization to Operate Under License.

(1) If, after investigation, the City Clerk shall be reasonably satisfied that the applicant has successfully demonstrated compliance with all requirements for issuance of a license, the City Clerk shall issue the applicable Cannabis Related Municipal License or grant renewal of an existing license.

(2) A licensee is authorized to operate under a municipal license issued pursuant to this Chapter only after the following additional requirements are met.

(a) The licensee also holds a valid current state operating license for that location and establishment type. A copy of the valid current state operating license shall be provided to the City Clerk.

(b) A certificate of occupancy has been issued.

(c) The licensee is not operating in violation of any City ordinances or state law.

(d) Zoning is deemed appropriate by the City for the location and any and all Special Land Use permits and/or waivers have been approved.

(e) Any other license specific requirements as stated herein and in the license application have been met.
(Ord. No. 2020-20, § 1, 7-7-20)

Sec. 7.375. Penalty for Violations.

(1) Any person who violates a provision of this Chapter shall be responsible for a municipal civil infraction and shall be subject to such civil infraction fines and costs as provided in Chapter 170, but the fee will not exceed the fee limitation set by the state.

(2) Each day of violation shall be a separate violation.
(Ord. No. 2020-20, § 1, 7-7-20)

Sec. 7.376. Coordination with State Licensing Authorities.

The City Clerk shall coordinate with the Michigan Marijuana Regulatory Agency (MRA) to provide information that LARA or the MRA deems necessary to carry out licensing under the MMFLA and MRTMA, including but not limited to:

(1) Attestation as to ordinances and zoning regulations adopted by the City relating to cannabis establishments, and amendments thereto.

(2) Information regarding a licensee or applicant for a state operating license including:

(a) Information that the board deems necessary to determine whether a state operating license should be issued or renewed;

(b) Description of a violation of an ordinance or a zoning regulation committed by the licensee, but only if the violation relates to activities licensed under this Chapter, zoning regulations relating to cannabis establishments, or applicable cannabis laws;

(c) Denial, suspension, revocation, or nonrenewal of a cannabis facility license; or

(d) Whether there has been a change to an ordinance or zoning regulation relating to cannabis establishments and/or licensing since the state operating license was issued, and a description of the change.

(3) Recommendation to LARA that a state operating license for a cannabis establishment located in Grand Rapids be restricted or not renewed. The Clerk shall provide specific written input and information necessary for LARA to consider the recommendation.

(Ord. No. 2020-20, § 1, 7-7-20)

Sec. 7.377. Conflicts with Other Laws or Regulations.

Nothing in this Chapter shall be construed in such a manner as to conflict with the MMFLA, MMMA, MMRTA, or other applicable state cannabis law or rules. If any provision of this Chapter differs from a provision of any other applicable law, ordinance, rule or regulation, both the provision of this Chapter and the differing provision shall apply if possible. If the two (2) provisions are in conflict, then the provision establishing the higher or stricter standard shall apply, consistent with state law.
(Ord. No. 2020-20, § 1, 7-7-20)

Sec. 7.378. Severability.

The various parts, sections, and clauses of this Chapter are hereby declared to be severable. If any part, sentence, paragraph, section or clause is adjudged unconstitutional or invalid by a Court of competent jurisdiction, the remainder of the Chapter shall not be affected thereby.
(Ord. No. 2020-20, § 1, 7-7-20)

Sec. 7.379. Acceptance of Licensing Applications.

(1) The City Clerk will begin accepting license applications as follows:

(a) On July 20, 2020 for grower, processor, provisioning center, retailer, safety compliance facility, and secure transporter license applications;

(b) On October 20, 2020 for microbusiness license applications;

(c) The City Commission may provide for an earlier acceptance date by resolution.

(2) Medical Cannabis Facilities not in violation of this Chapter that were previously licensed under MMFLA and granted zoning approval prior to the date that the City begins accepting applications may continue to operate as a Medical Cannabis Facility (only) using their zoning approval as a temporary license until January 20, 2021 provided they submit a complete application by August 20, 2020. Operation of such a

facility absent a temporary or regular license to do so once the City begins accepting applications is prohibited.

(3) The City shall give priority processing preference to applications in accordance with City Policy.

(4) This section may be amended if in the public interest to do so.
(Ord. No. 2020-20, § 1, 7-7-20)

Chapter 106

RESERVED*

*__Editor's note—__Ord. No. 2018-28, § 1, adopted June 5, 2018, repealed chapter 106, §§ 7.371—7.380, which pertained to ambulance service. See Code Comparative Table for complete derivation.

[The next page is 3011]

Chapter 107

RESERVED*

*__Editor's note—__Ord. No. 2018-25, § 1, adopted June 5, 2018, repealed chapter 107, §§ 7.391—7.395, which pertained to coin-operated laundries. See Code Comparative Table for complete derivation.

[The next page is 3039]

Chapter 108

RESERVED*

*__Editor's note—__Ord. No. 2018-26, § 1, adopted June 5, 2018, repealed chapter 108, §§ 7.401—7.405, which pertained to coin-operated car washes. See Code Comparative Table for complete derivation.

[The next page is 3067]

Chapter 109

TELECOMMUNICATIONS—METRO ACT

Sec. 7.431. Purpose.
Sec. 7.432. Conflict.
Sec. 7.433. Terms Defined.
Sec. 7.434. Permit Required.
Sec. 7.435. Issuance of Permit.
Sec. 7.436. Construction/Engineering Permit.
Sec. 7.437. Conduit or Utility Poles.
Sec. 7.438. Route Maps.
Sec. 7.439. Repair of Damage.
Sec. 7.440. Establishment and Payment of Maintenance Fee.
Sec. 7.441. Modification of Existing Fees.
Sec. 7.442. Savings Clause.
Sec. 7.443. Use of Funds.
Sec. 7.444. Annual Report.
Sec. 7.445. Cable Television Operators.
Sec. 7.446. Existing Rights.
Sec. 7.447. Compliance.
Sec. 7.448. Reservation of Police Powers.
Sec. 7.449. Severability.
Sec. 7.450. Effective Date.
Sec. 7.451. Enforcement.
Secs. 7.452—7.499. Reserved.

Sec. 7.431. Purpose.

The purposes of this Chapter are to regulate access to and ongoing use of public rights-of-way by telecommunications providers for their telecommunications facilities while protecting the public health, safety, and welfare and exercising reasonable control of the public rights-of-way in compliance with the Metropolitan Extension Telecommunications Rights-of-Way Oversight Act (Act No. 48 of the Public Acts of 2002) ("Act") and other applicable law, and to ensure that the City qualifies for distributions under the Act by modifying the fees charged to providers and complying with the Act.
(Ord. No. 2002-62, § 1, 10-29-02)

Sec. 7.432. Conflict.

Nothing in this Chapter shall be construed in such a manner as to conflict with the Act or other applicable law.
(Ord. No. 2002-62, § 1, 10-29-02)

Sec. 7.433. Terms Defined.

The terms used in this Chapter shall have the following meanings:

(1) *Act* means the Metropolitan Extension Telecommunications Rights-of-Way Oversight Act (Act No. 48 of the Public Acts of 2002), as amended from time to time.[1]

(2) *City* means the City of Grand Rapids.

(3) *City Commission* means the City Commission of the City of Grand Rapids or its designee. This Section does not authorize delegation of any decision or function that is required by law to be made by the City Commission.

(4) *City Manager* means the City Manager or his or her designee.

(5) *Permit* means a non-exclusive permit issued pursuant to the Act and this Chapter to a telecommunications provider to use the public rights-of-way in the City for its telecommunications facilities.

All other terms used in this Chapter shall have the same meaning as defined or as provided in the Act, including without limitation the following:

(6) *Authority* means the Metropolitan Extension Telecommunications Rights-of-Way Oversight Authority created pursuant to Section 3 of the Act.

(7) *MPSC* means the Michigan Public Service Commission in the Department of Consumer and Industry Services, and shall have the same meaning as the term "Commission" in the Act.

(8) *Person* means an individual, corporation, partnership, association, governmental entity, or any other legal entity.

(9) *Public Right-of-Way* means the area on, below, or above a public roadway, highway, street, alley, easement or waterway. Public right-of-way does not include a federal, state, or private right-of-way.

(10) *Telecommunication Facilities* or *Facilities* means the equipment or personal property, such as copper and fiber cables, lines, wires, switches, conduits, pipes, and sheaths, which are used to or can generate, receive, transmit, carry, amplify, or provide telecommunication services or signals. Telecommunication facilities or facilities do not include antennas, supporting structures for antennas, equipment shelters or houses, and any ancillary equipment and miscellaneous hardware used to provide federally licensed commercial mobile service as defined in Section 332(d) of Part I of Title III of the Communications Act of 1934, chapter 652, 48 Stat. 1064, 47 U.S.C. 332 and further defined as commercial mobile radio service in 47 CFR 20.3, and service provided by any wireless, two-way communication device.

(11) *Telecommunications Provider, Provider and Telecommunications Services* mean those terms as defined in Section 102 of the Michigan telecommunications act, 1991 PA 179, MCL 484.2102. Telecommunication provider does not include a person or an affiliate of that person when providing

a federally licensed commercial mobile radio service as defined in Section 332(d) of part I of the communications act of 1934, chapter 652, 48 Stat. 1064, 47 U.S.C. 332 and further defined as commercial mobile radio service in 47 CFR 20.3, or service provided by any wireless, two-way communication device. For the purpose of the Act and this Chapter only, a provider also includes all of the following:

(a) A cable television operator that provides a telecommunications service.

(b) Except as otherwise provided by the Act, a person who owns telecommunication facilities located within a public right-of-way.

(c) A person providing broadband internet transport access service.

(Ord. No. 2002-62, § 1, 10-29-02)

Sec. 7.434. Permit Required.

(1) *Permit Required.* Except as otherwise provided in the Act, a telecommunications provider using or seeking to use public rights-of-way in the City for its telecommunications facilities shall apply for and obtain a permit pursuant to this Chapter.

(2) *Application.* Telecommunications providers shall apply for a permit on an application form approved by the MPSC in accordance with Section 6(1) of the Act. A telecommunications provider shall file one (1) copy of the application with the City Clerk, one (1) copy with the City Manager, and one (1) copy with the City Attorney. Upon receipt, the City Clerk shall make two (2) copies of the application and distribute one (1) copy to the City's Director of Streets and Sanitation and one (1) copy to the City Engineer. Applications shall be complete and include all information required by the Act, including without limitation a route map showing the location of the provider's existing and proposed facilities in accordance with Section 6(5) of the Act.[2]

(3) *Confidential Information.* If a telecommunications provider claims that any portion of the route maps submitted by it as part of its application contain trade secret, proprietary, or confidential information, which is exempt from the Freedom of Information Act, 1976 PA 442, MCL 15.231 to 15.246, pursuant to Section 6(5) of the Act, the telecommunications provider shall prominently so indicate on the face of each map.

(4) *Application Fee.* Except as otherwise provided by the Act, the application shall be accompanied by a one-time non-refundable application fee in the amount of five hundred dollars ($500.00).

(5) *Additional Information.* The City Manager may request an applicant to submit such additional information which the City Manager deems reasonably necessary or relevant. The applicant shall comply with all such requests in compliance with reasonable deadlines for such additional information established by the City Manager. If the City and the applicant cannot agree on the requirement of additional information requested by the City, the City or the applicant shall notify the MPSC as provided in Section 6(2) of the Act.

(6) *Previously Issued Permits.* Pursuant to Sections 4(2) and 5(1) of the Act, authorizations or permits previously issued by the City under Section 251 of the Michigan telecommunications act, 1991 PA 179, MCL 484.2251 and authorizations or permits issued by the City to telecommunications providers prior to the 1995 enactment of Section 251 of the Michigan Telecommunications Act but after 1985 shall satisfy the permit requirements of this Chapter.

(7) *Existing Providers.* Pursuant to Section 5(3) of the Act, within one hundred eighty (180) days from November 1, 2002, the effective date of the Act, a telecommunications provider with facilities located in a public right-of-way in the City as of such date, that has not previously obtained authorization or a permit under Section 251 of the Michigan Telecommunications Act, 1991 PA 179, MCL 484.2251, shall submit to the City an application for a permit in accordance with the requirements of this Chapter. Pursuant to Section 5(3) of the Act, a telecommunications provider submitting an application under this subsection is not required to pay the five hundred dollars ($500.00) application fee required under subsection (4) above. A provider under this subsection shall be given up

to an additional one hundred eighty (180) days to submit the permit application if allowed by the Authority, as provided in Section 5(4) of the Act.
(Ord. No. 2002-62, § 1, 10-29-02)

Sec. 7.435. Issuance of Permit.

(1) *Approval or Denial.* The authority to approve or deny an application for a permit is hereby delegated to the City Manager. Pursuant to Section 15(3) of the Act, the City Manager shall approve or deny an application for a permit within forty-five (45) days from the date a telecommunications provider files an application for a permit under Section 7.434(2) of this Chapter for access to a public right-of-way within the City. Pursuant to Section 6(6) of the Act, the City Manager shall notify the MPSC when the City Manager has granted or denied a permit, including information regarding the date on which the application was filed and the date on which permit was granted or denied. The City Manager shall not unreasonably deny an application for a permit.

(2) *Form of Permit.* If an application for permit is approved, the City Manager shall issue the permit in the form approved by the MPSC, with or without additional or different permit terms, in accordance with Sections 6(1), 6(2) and 15 of the Act.[3]

(3) *Conditions.* Pursuant to Section 15(4) of the Act, the City Manager may impose conditions on the issuance of a permit, which conditions shall be limited to the telecommunications provider's access and usage of the public right-of-way.

(4) *Bond Requirement.* Pursuant to Section 15(3) of the Act, and without limitation on subsection (3) above, the City Manager may require that a bond be posted by the telecommunications provider as a condition of the permit. If a bond is required, it shall not exceed the reasonable cost to ensure that the public right-of-way is returned to its original condition during and after the telecommunications provider's access and use.
(Ord. No. 2002-62, § 1, 10-29-02)

Sec. 7.436. Construction/Engineering Permit.

A telecommunications provider shall not commence construction upon, over, across, or under the public rights-of-way in the City without first obtaining such construction or engineering permits as may be required under this Code, as amended, for construction within the public rights-of-way. No fee shall be charged to a telecommunications provider for such a construction or engineering permit. To the extent the fee requirements of any City Chapter or resolution are in conflict with this Section 7.436, those fee requirements are repealed.
(Ord. No. 2002-62, § 1, 10-29-02)

Sec. 7.437. Conduit or Utility Poles.

Pursuant to Section 4(3) of the Act, obtaining a permit or paying the fees required under the Act or under this Chapter does not give a telecommunications provider a right to use conduit or utility poles.
(Ord. No. 2002-62, § 1, 10-29-02)

Sec. 7.438. Route Maps.

Pursuant to Section 6(7) of the Act, a telecommunications provider shall, within ninety (90) days after the substantial completion of construction of new telecommunications facilities in the City, submit route maps showing the location of the telecommunications facilities to both the MPSC and to the City. The route maps should be in electronic format unless and until the MPSC determines otherwise, in accordance with Section 6(8) of the Act.
(Ord. No. 2002-62, § 1, 10-29-02)

Sec. 7.439. Repair of Damage.

Pursuant to Section 15(5) of the Act, a telecommunications provider undertaking an excavation or construction or installing telecommunications facilities within a public right-of-way or temporarily obstructing a public right-of-way in the City, as authorized by a permit, shall promptly repair all damage done to the street surface and all installations under, over, below, or within the public right-of-way and shall promptly restore the public right-of-way to its preexisting condition.
(Ord. No. 2002-62, § 1, 10-29-02)

Sec. 7.440. Establishment and Payment of Maintenance Fee.

In addition to the non-refundable application fee paid to the City set forth in subsection 7.434(4) above, a telecommunications provider with telecommunications facilities in the City's public rights-of-way shall pay an annual maintenance fee to the Authority pursuant to Section 8 of the Act.
(Ord. No. 2002-62, § 1, 10-29-02)

Sec. 7.441. Modification of Existing Fees.

In compliance with the requirements of Section 13(1) of the Act, the City hereby modifies, to the extent necessary, any fees charged to telecommunications providers after November 1, 2002, the effective date of the Act, (including providers with permits or consent agreements in effect on October 31, 2002) relating to access and usage of the public rights-of-way, to an amount not exceeding the amounts of fees and charges required under the Act, which shall be paid to the Authority. In compliance with the requirements of Section 13(4) of the Act, the City also hereby approves modification of the fees of providers with telecommunication facilities in public rights-of-way within the City's boundaries, so that those providers pay only those fees required under Section 8 of the Act. The City shall provide each telecommunications provider affected by the fee with a copy of this Chapter, in compliance with the requirement of Section 13(4) of the Act. To the extent any fees are charged telecommunications providers in excess of the amounts permitted under the Act, or which are otherwise inconsistent with the Act, such imposition is hereby declared to be contrary to the City's policy and intent, and upon application by a provider or discovery by the City, shall be promptly refunded as having been charged in error.
(Ord. No. 2002-62, § 1, 10-29-02)

Sec. 7.442. Savings Clause.

Pursuant to Section 13(5) of the Act, if Section 8 of the Act is found to be invalid or unconstitutional, the modification of fees under Section 7.441 above shall be void from the date the modification was made.
(Ord. No. 2002-62, § 1, 10-29-02)

Sec. 7.443. Use of Funds.

Pursuant to Section 10(4) of the Act, all amounts received by the City from the Authority shall be used by the City solely for rights-of-way related purposes. In conformance with that requirement, all funds received by the City from the Authority shall be deposited into the Major Street Fund and/or the Local Street Fund maintained by the City under Act No. 51 of the Public Acts of 1951.
(Ord. No. 2002-62, § 1, 10-29-02)

Sec. 7.444. Annual Report.

Pursuant to Section 10(5) of the Act, the City Manager shall file an annual report with the Authority on the use and disposition of funds annually distributed by the Authority to the City.
(Ord. No. 2002-62, § 1, 10-29-02)

Sec. 7.445. Cable Television Operators.

Pursuant to Section 13(6) of the Act, the City shall not hold a cable television operator in default or seek any remedy for its failure to satisfy an obligation, if any, to pay after November 1, 2002, the effective date of this Act, a franchise fee or similar fee on that portion of gross revenues from charges the cable operator received for cable modem services provided through broadband internet transport access services.
(Ord. No. 2002-62, § 1, 10-29-02)

Sec. 7.446. Existing Rights.

Pursuant to Section 4(2) of the Act, except as expressly provided herein with respect to fees, this Chapter shall not affect any existing rights that a telecommunications provider or the City may have under a permit issued by the City or under a contract between the City and a telecommunications provider related to the use of the public rights-of-way.
(Ord. No. 2002-62, § 1, 10-29-02)

Sec. 7.447. Compliance.

The City hereby declares that its policy and intent in adopting this Chapter is to fully comply with the requirements of the Act, and the provisions hereof should be construed in such a manner as to achieve that purpose. The City shall

comply in all respects with the requirements of the Act, including but not limited to the following:

(1) Exempting certain route maps from the Freedom of Information Act, 1976 PA 442, MCL 15.231 to 15.246, as provided in Section 7.434(3) of this Chapter, to the extent permitted by law;

(2) Allowing certain previously issued permits to satisfy the permit requirements hereof, in accordance with Section 7.434(6) of this Chapter;

(3) Allowing existing providers additional time in which to submit an application for a permit, and excusing such providers from the five hundred dollars ($500.00) application fee, in accordance with Section 7.434(7) of this Chapter;

(4) Approving or denying an application for a permit within forty-five (45) days from the date a telecommunications provider files an application for a permit for access to and usage of a public right-of-way within the City, in accordance with Section 7.435(1) of this Chapter.

(5) Notifying the MPSC when the City has granted or denied a permit, in accordance with Section 7.435(1) of this Chapter.

(6) Not unreasonably denying an application for a permit, in accordance with Section 7.435(1) of this Chapter.

(7) Issuing a permit in the form approved by the MPSC, with or without additional or different permit terms, as provided in Section 7.435(2) of this Chapter;

(8) Limiting the conditions imposed on the issuance of a permit to the telecommunications provider's access and usage of the public right-of-way, in accordance with Section 7.435(3) of this Chapter.

(9) Not requiring a bond of a telecommunications provider which exceeds the reasonable cost to ensure that the public right-of-way is returned to its original condition during and after the telecommunication provider's access and use, in accordance with Section 7.435(4) of this Chapter.

(10) Not charging any telecommunications providers any additional fees for construction or engineering permits, in accordance with Section 7.436 of this Chapter;

(11) Providing each telecommunications provider affected by the City's right-of-way fees with a copy of this Chapter, in accordance with Section 7.441 of this Chapter;

(12) Submitting an annual report to the Authority, in accordance with Section 7.444 of this Chapter; and

(13) Not holding a cable television operator in default for a failure to pay certain franchise fees, in accordance with Section 7.445 of this Chapter.

(Ord. No. 2002-62, § 1, 10-29-02)

Sec. 7.448. Reservation of Police Powers.

Pursuant to Section 15(2) of the Act, this Chapter shall not limit the City's right to review and approve a telecommunication provider's access to and ongoing use of public right-of-way or limit the City's authority to ensure and protect the health, safety, and welfare of the public.
(Ord. No. 2002-62, § 1, 10-29-02)

Sec. 7.449. Severability.

The various parts, sentences, paragraphs, sections, and clauses of this Chapter are hereby declared to be severable. If any part, sentence, paragraph, section, or clause of this Chapter is adjudged unconstitutional or invalid by a court or administrative agency of competent jurisdiction, the unconstitutionality or invalidity shall not affect the constitutionality or validity of any remaining provisions of this Chapter.
(Ord. No. 2002-62, § 1, 10-29-02)

Sec. 7.450. Effective Date.

This Chapter shall become effective from and after November 1, 2002.
(Ord. No. 2002-62, § 1, 10-29-02)

Sec. 7.451. Enforcement.

(1) *Violations.* A person who violates any provision of this Chapter is responsible for a municipal civil infraction, and shall be subject to such

civil infraction fines and costs as provided in Chapter 170 of the Code of the City of Grand Rapids. Nothing in this Section shall be construed to limit the remedies available to the City in the event of a violation of this Chapter by any person.

(2) *Authorized Officials.* The City Manager is hereby designated as the authorized official to issue municipal civil infraction citations (directing alleged violators to appear in court) or municipal civil infraction violation notices (directing alleged violators to appear at the Municipal Ordinance Violations Bureau) for violations of this Chapter, as provided in Chapter 170 of the Code of the City of Grand Rapids.
(Ord. No. 2008-04, § 1, 2-19-08)

Secs. 7.452—7.499. Reserved.

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Chapter 110

CATV CONSENT AGREEMENT*

Sec. 7.500. Consent Agreement.
Sec. 7.501. Application.
Sec. 7.502. Cable Television Advisory Forum.
Sec. 7.503. Licensing of Operators of Cable Television Public Service Channels.
Secs. 7.504—7.530. Reserved.

*Cross references—Streets, Ch. 51; zoning, Ch. 61; general building regulations, Ch. 131; Electrical Code, Ch. 133.

Sec. 7.500. Consent Agreement.

(1) All multichannel video providers shall obtain a consent agreement from the City of Grand Rapids prior to providing service to any resident, business or person within the City of Grand Rapids.

(2) Multichannel video provider means a person or entity who meets one or more of the following tests:

(a) The provider is a cable operator, as such term is defined in the Federal Cable Act, being Title VI of the Federal Communications Act of 1934, 47 U.S.C. Sections 521 and following, or is otherwise required to obtain a "franchise", as such term is defined in such Act.

(b) The provider is an operator of an open video system, as such term is defined in Title VI of the Federal Communications Act of 1934 and implementing regulations.

(c) Any person or entity who provides multichannel video service to a resident, business or person within the City of Grand Rapids, where such service is transmitted in whole or in part via wires or lines that are in or cross any public rights-of-way within the City of Grand Rapids.

The preceding sentence shall apply whether the provider owns, leases or otherwise obtains the right to use such wires or lines, including wires or lines of a telecommunications provider used pursuant to tariff or otherwise for such purpose.

Multichannel video service means multiple channels of video programming where the individual video channels are generally considered comparable to programming provided by a television broadcast station or by a direct to home satellite service.

(d) A person or entity providing multichannel video service who is otherwise required to obtain a franchise or consent agreement under applicable law.

(Ord. No. 75-10, 2-11-75; Ord. No. 98-23, § 1, 6-23-98)

Sec. 7.501. Application.

Any proposed multichannel video provider shall make formal application in writing to the Grand Rapids City Commission. The grant of the City' s consent to use it's public rights-of-way and all precedent conditions which become a part thereof shall be founded upon considerations of the public health, safety and welfare of the citizens of the City of Grand Rapids.

(Ord. No. 75-10, 2-11-75; Ord. No. 98-23, § 2, 6-23-98)

Sec. 7.502. Cable Television Advisory Forum.

(1) The Cable Television Advisory Forum is hereby created to advise the City Commission on matters enumerated herein.

(2) The Cable Television Advisory Forum shall consist of five (5) members who are residents of the City of Grand Rapids, Michigan. Members shall be appointed by the City Commission for staggered three-year terms ending the first Monday in January. The Members shall serve without compensation and shall be chosen to broadly represent the community at large. Membership shall require appropriate academic, professional and technical specialization.

(3) The Cable Television Advisory Forum shall meet as often as necessary to carry out the functions described herein. It shall elect a Chairperson to preside over meetings, provide that minutes be taken of all regular meetings, and adopt such rules of procedure as it deems fit and which are not inconsistent herewith.

(4) The Cable Television Advisory Forum shall have the duties of:

(a) Advising the Grand Rapids City Commission on all aspects of its Cable Television Policy, including, but not limited to, review of a cable operator's performance and review of a public service channel operator's performance;

(b) Upon request by the City Commission, the Cable Television Advisory Forum shall conduct public hearings on all aspects of a Cable Television System, a cable operator's performance and a public service

channel operator's performance. The Forum shall submit a written report of its findings and recommendations to the City Commission following each such public hearing;

(c) Reviewing the adequacy of access opportunities to the Cable Television medium through the various access channels;

(d) Evaluating the effectiveness of the Grand Rapids Cable Access Center by monitoring programming and operations;

(e) Maintaining a knowledge of current developments in cable technology;

(f) Monitoring changing cable legislation with the specific focus of its potential impact on the public;

(g) Submitting an annual report to the City Commission describing the activities of the Forum during the reporting year; and

(h) Assuming such additional responsibilities as may be assigned to it from time to time by the Grand Rapids City Commission.

(5) The Cable Television Advisory Forum shall not engage in rate regulation, rate change request processing, financial analysis, legal interpretation, or contractual negotiation with a cable operator or public service channel operator.
(Ord. No. 76-86, 10-12-76; Ord. No. 84-24, § 1, 4-10-84; Ord. No. 84-64, § 1, 9-11-84; Ord. No. 85-71, § 1, 11-12-85; Ord. No. 99-40, 7-13-99; Ord. No. 2010-17, § 1, 4-13-10)

Sec. 7.503. Licensing of Operators of Cable Television Public Service Channels.

(1) The City shall issue licenses to operate available cable television public service channels according to the following criteria and procedures:

(a) Licenses will be issued only to non-profit entities with appropriate tax-exempt status.

(b) Applicants shall submit a completed application in a form approved by the Cable Television Advisory Forum to the City's Cable Administrator no later than a reasonable deadline set by the Cable Administrator.

(c) After the deadline for the receipt of applications, the Cable Television Advisory Forum shall hold a public hearing to receive comments concerning the various applications.

(d) After the public hearing, the Cable Television Advisory Forum shall discuss and consider all applications and make appropriate recommendations to the City Commission stating in writing reasons in support of each such recommendation.

(e) Upon the receipt of the recommendations of the Cable Television Advisory Forum, the City Commission may, in its discretion, hold a public hearing to receive additional public comment and input before making its decision on the issuance of licenses. After considering all applications, the recommendations and supporting reasons of the Cable Television Advisory Forum, any public comments received and any other information which the City Commission reasonably determines is relevant, the City Commission shall decide which applicants, if any, shall be issued licenses and shall direct the City Clerk accordingly.

(f) The City Commission shall have the right to revoke any license issued pursuant to this section if the Licensee fails to substantially comply or habitually fails to comply with this section, with the rules adopted pursuant to it, loses its non-profit or appropriate tax-exempt status, falsifies its application or any required reports, or for other good and substantial cause shown and found by the City Commission. Prior to any such license revocation, the licensee shall be given reasonable notice and an opportunity for a public hearing on the charges against it before the Cable Television Advisory Commission at an open meeting of that body. After the hearing and its deliberation thereon, the Cable Television Advisory Forum shall forward

its recommendations and the minutes of the hearing to the City Commission for a decision on the proposed revocation. The City Commission may, but shall not be required to hold its own hearing prior to making its decision.

(g) All licenses issued pursuant to this section shall expire on the date the City's Consent Agreement with the cable operator (currently TCI) expires (currently June 19, 2000).

(h) The City Manager shall, after consulting with the Cable Television Advisory Forum, recommend and the City Commission shall adopt such rules, as necessary, to implement this section.

(Ord. No. 94-11, § 1, 3-1-94)

Secs. 7.504—7.530. Reserved.

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Chapter 111

REGULATIONS AND PROCEDURES FOR BASIC CABLE T.V. RATE REGULATION

Sec. 7.531. Definitions.
Sec. 7.532. Purpose; Interpretation.
Sec. 7.533. Rate Regulations Promulgated by FCC.
Sec. 7.534. Filing; Additional Information; Burden of Proof.
Sec. 7.535. Proprietary Information.
Sec. 7.536. Public Notice; Initial Review of Rates.
Sec. 7.537. Tolling Order.
Sec. 7.538. Public Notice; Hearing on Basic Cable Service Rates Following Tolling of 30-day Deadline.
Sec. 7.539. Staff or Consultant Report; Written Response.
Sec. 7.540. Rate Decisions and Orders.
Sec. 7.541. Refunds; Notice.
Sec. 7.542. Written Decisions; Public Notice.
Sec. 7.543. Rules and Regulations.
Sec. 7.544. Failure to Give Notice.
Sec. 7.545. Additional Hearings.
Sec. 7.546. Additional Powers.
Sec. 7.547. Failure to Comply; Remedies.
Sec. 7.548. Severability.
Sec. 7.549. Conflicting Provisions.

Sec. 7.531. Definitions.

For purposes of this Chapter, "Act" shall mean the Communications Act of 1934, as amended (and specifically as amended by the Cable Television Consumer Protection and Competition Act of 1992, Pub. L. 102-385), and as may be amended from time to time; "FCC" shall mean the Federal Communications Commission; "FCC Rules" shall mean all rules of the FCC promulgated from time to time pursuant to the Act; "basic cable service" shall mean "basic service" as defined in the FCC Rules, and any other cable television service which is subject to rate regulation by the City pursuant to the Act and the FCC Rules; "associated equipment" shall mean all equipment and services subject to regulation pursuant to 47 CFR § 76.923; and an "increase" in rates shall mean an increase in rates or a decrease in programming or customer services. All other words and phrases used in this Chapter shall have the same meaning as defined in the Act and FCC Rules.
(Ord. No. 93-40, § 1, 9-7-93)

Sec. 7.532. Purpose; Interpretation.

The purpose of this Chapter is to: 1) adopt regulations consistent with the Act and the FCC Rules with respect to basic cable service rate regulation, and 2) prescribe procedures to provide a reasonable opportunity for consideration of the views of interested parties in connection with basic cable service rate regulation by the City. This Chapter shall be implemented and interpreted consistent with the Act and FCC Rules.
(Ord. No. 93-40, § 1, 9-7-93)

Sec. 7.533. Rate Regulations Promulgated by FCC.

In connection with the regulation of rates for basic cable service and associated equipment, the City of Grand Rapids shall follow all FCC Rules.
(Ord. No. 93-40, § 1, 9-7-93)

Sec. 7.534. Filing; Additional Information; Burden of Proof.

(1) A cable operator shall submit its schedule of rates for the basic service tier and associated equipment or a proposed increase in such rates in accordance with the Act and the FCC Rules. The cable operator shall include as part of its submission such information as is necessary to show that its schedule of rates or its proposed increase in rates complies with the act and the FCC Rules. The cable operator shall file ten (10) copies of the schedule or proposed increase with the City Clerk. For purposes of this Chapter, the filing of the cable operator shall be deemed to have been made when at least ten (10) copies have been received by the City Clerk. The City Commission may, by resolution or otherwise, adopt rules and regulations prescribing the information, data and calculations which must be included as part of the cable operator's filing of the schedule of rates or a proposed increase.

(2) In addition to information and data required by rules and regulations of the City pursuant to Section 7.534(1) above, a cable operator shall provide all information requested by the City Manager in connection with the City's review and regulation of existing rates for the basic service tier and associated equipment or a proposed increase in these rates. The City Manager may establish deadlines for submission of the requested information and the cable operator shall comply with such deadlines.

(3) A cable operator has the burden of proving that its schedule of rates for the basic service tier and associated equipment or a proposed increase in such rates complies with the Act and the FCC Rules including, without limitation, 47 USC § 543 and 47 CFR §§ 76.922 and 76.923.

(Ord. No. 93-40, § 1, 9-7-93)

Sec. 7.535. Proprietary Information.

(1) If this Chapter, any rules or regulations adopted by the City pursuant to Section 7.534(2), or any request for information pursuant to Section 4(b) requires the production of proprietary information, the cable operator shall produce the information. However, at the time the allegedly proprietary information is submitted, a cable op-

erator may request that specific, identified portions of its response be treated as confidential and withheld from public disclosure. The request must state the reason why the information should be treated as proprietary and the facts that support those reasons. The request for confidentiality will be granted if the City determines that the preponderance of the evidence shows that non-disclosure is consistent with the provisions of the Freedom of Information Act, 5 U.S.C. § 552. The City shall place in a public file for inspection any decision that results in information being withheld. If the cable operator requests confidentiality and the request is denied, (1) where the cable operator is proposing a rate increase, it may withdraw the proposal, in which case the allegedly proprietary information will be returned to it; or (2) the cable operator may seek review within five working days of the denial in any appropriate forum. Release of the information will be stayed pending review.

(2) Any interested party may file a request to inspect material withheld as proprietary with the City. The City shall weigh the policy considerations favoring non-disclosure against the reasons cited for permitting inspection in light of the facts of the particular case. It will then promptly notify the requesting entity and the cable operator that submitted the information as to the disposition of the request. It may grant, deny or condition a request. The requesting party or the cable operator may seek review of the decision by filing an appeal with any appropriate forum. Disclosure will be stayed pending resolution of any appeal.

(3) The procedures set forth in this Section shall be construed as analogous to and consistent with the rules of the FCC regarding requests for confidentiality including, without limitation, 47 CFR § 0.459.

(Ord. No. 93-40, § 1, 9-7-93)

Sec. 7.536. Public Notice; Initial Review of Rates.

Upon the filing of ten (10) copies of the schedule of rates or the proposed increase in rates pursuant to Section 7.534(1) above, the City Clerk shall publish a public notice in a newspaper of general circulation in the City which shall state that: 1) the filing has been received by the City Clerk and (except those parts which may be withheld as proprietary) is available for public inspection and copying, and 2) interested parties are encouraged to submit written comments on the filing to the City Clerk not later than seven (7) days after the public notice is published. The City Clerk shall give notice to the cable operator of the date, time, and place of the meeting at which the City Commission shall first consider the schedule of rates or the proposed increase. This notice shall be mailed by first-class mail at least three (3) days before the meeting. In addition, if a written staff or consultant's report on the schedule of rates or the proposed increase is prepared for consideration of the City Commission, then the City Clerk shall mail a copy of the report by first-class mail to the cable operator at least three (3) days before the meeting at which the City Commission shall first consider the schedule of rates or the proposed increase.

(Ord. No. 93-40, § 1, 9-7-93)

Sec. 7.537. Tolling Order.

After a cable operator has filed its existing schedule of rates or a proposed increase in these rates, the existing schedule of rates will remain in effect or the proposed increase in rates will become effective after thirty (30) days from the date of filing under Section 7.534(1) above unless the City Commission (or other properly authorized body or official) tolls the thirty (30) day deadline pursuant to 47 CFR § 76.933 by issuing a brief written order, by resolution or otherwise, within thirty (30) days of the date of filing. The City Commission may toll the thirty (30) day deadline for an additional 90 days in cases not involving cost-of-service showings and for an additional 150 days in cases involving cost-of-service showings.

(Ord. No. 93-40, § 1, 9-7-93)

Sec. 7.538. Public Notice; Hearing on Basic Cable Service Rates Following Tolling of 30-day Deadline.

If a written order has been issued pursuant to Section 7.537 and 47 CFR § 76.933 to toll the

effective date of existing rates for the basic service tier and associated equipment or a proposed increase in these rates, the cable operator shall submit to the City any additional information required or requested pursuant to Section 7.534. In addition, the City Commission shall hold a public hearing to consider the comments of interested parties within the additional 90 day or 150 day period, as the case may be. The City Clerk shall publish a public notice of the public hearing in a newspaper of general circulation within the City which shall state: 1) the date, time, and place at which the hearing shall be held, 2) interested parties may appear in person, by agent, or by letter at such hearing to submit comments on or objections to the existing rates or the proposed increase in rates, and 3) copies of the schedule of rates or the proposed increase in rates and related information (except those parts which may be withheld as proprietary) are available for inspection or copying from the office of the Clerk. The public notice shall be published not less than fifteen (15) days before the hearing. In addition, the City Clerk shall mail by first-class mail a copy of the public notice to the cable operator not less than fifteen (15) days before the hearing.
(Ord. No. 93-40, § 1, 9-7-93)

Sec. 7.539. Staff or Consultant Report; Written Response.

Following the public hearing, the City Manager shall cause a report to be prepared for the City Commission which shall (based on the filing of the cable operator, the comments or objections of interested parties, information requested from the cable operator and its response, staff or consultant's review, and other appropriate information) include a recommendation for the decision of the City Commission pursuant to Section 7.540. The City Clerk shall mail a copy of the report to the cable operator by first-class mail not less than twenty (20) days before the City Commission acts under Section 7.540. The cable operator may file a written response to the report with the City Clerk. If at least ten (10) copies of the response are filed by the cable operator with the City Clerk within ten (10) days after the report is mailed to the cable operator, the City Clerk shall forward it to the City Commission.
(Ord. No. 93-40, § 1, 9-7-93)

Sec. 7.540. Rate Decisions and Orders.

The City Commission shall issue a written order, by resolution or otherwise, which in whole or in part, approves the existing rates for basic cable service and associated equipment or a proposed increase in such rates, denies the existing rates or proposed increase, orders a rate reduction, prescribes a reasonable rate, allows the existing rates or proposed increase to become effective subject to refund, or orders other appropriate relief, in accordance with the FCC Rules. If the City Commission issues an order allowing the existing rates or proposed increase to become effective subject to refund, it shall also direct the cable operator to maintain an accounting pursuant to 47 CFR § 76.933. The order specified in this Section shall be issued within 90 days of the tolling order under Section 7.537 in all cases not involving a cost-of-service showing. The order shall be issued within 150 days after the tolling order under Section 7.537 in all cases involving a cost-of-service showing.
(Ord. No. 93-40, § 1, 9-7-93)

Sec. 7.541. Refunds; Notice.

The City Commission may order a refund to subscribers as provided in 47 CFR § 76.942. Before the City Commission orders any refund to subscribers, the City Clerk shall give at least seven (7) days written notice to the cable operator by first-class mail of the date, time, and place at which the City Commission shall consider issuing a refund order and shall provide an opportunity for the cable operator to comment. The cable operator may appear in person, by agent, or by letter at such time for the purpose of submitting comments to the City Commission.
(Ord. No. 93-40, § 1, 9-7-93)

Sec. 7.542. Written Decisions; Public Notice.

Any order of the City Commission pursuant to Sections 7.540 or 7.541 shall be in writing, shall be effective upon adoption by the City Commission, and shall be deemed released to the public upon adoption. The Clerk shall publish a public notice of any such written order in a newspaper of general circulation within the City which shall: 1) summarize the written decision, and 2) state that copies of the text of the written decision are avail-

able for inspection or copying from the office of the Clerk. In addition, the City Clerk shall mail a copy of the text of the written decision to the cable operator by first-class mail.
(Ord. No. 93-40, § 1, 9-7-93)

Sec. 7.543. Rules and Regulations.

In addition to rules promulgated pursuant to Section 7.534, the City Commission may, by resolution or otherwise, adopt rules and regulations for basic cable service rate regulation proceedings (including, without limitation, the conduct of hearings), consistent with the Act and the FCC Rules.
(Ord. No. 93-40, § 1, 9-7-93)

Sec. 7.544. Failure to Give Notice.

The failure of the City Clerk to give the notices or to mail copies of reports as required by this Chapter shall not invalidate the decisions or proceedings of the City Commission.
(Ord. No. 93-40, § 1, 9-7-93)

Sec. 7.545. Additional Hearings.

In addition to the requirements of this Chapter, the City Commission may hold additional public hearings upon such reasonable notice as the City Commission in its sole discretion, shall prescribe.
(Ord. No. 93-40, § 1, 9-7-93)

Sec. 7.546. Additional Powers.

The City shall possess all powers conferred by the Act, the FCC Rules, the cable operator's franchise, and all other applicable law. The powers exercised pursuant to the Act, the FCC Rules, and this Chapter shall be in addition to powers conferred by law or otherwise. The City may take any action not prohibited by the Act and the FCC Rules to protect the public interest in connection with basic cable service rate regulation.
(Ord. No. 93-40, § 1, 9-7-93)

Sec. 7.547. Failure to Comply; Remedies.

The City may pursue any and all legal and equitable remedies against the cable operator (including, without limitation, all remedies provided under a cable operator's consent agreement with the City) for failure to comply with the Act, the FCC Rules, any orders or determinations of the City pursuant to this Chapter, any requirements of this Chapter, or any rules or regulations promulgated hereunder. Subject to applicable law, failure to comply with the Act, the FCC Rules, any orders or determinations of the City pursuant to this Chapter, any requirements of this Chapter, or any rules and regulations promulgated hereunder, shall also be sufficient grounds for revocation or denial of renewal of a cable operator's consent agreement.
(Ord. No. 93-40, § 1, 9-7-93)

Sec. 7.548. Severability.

The various parts, sections, and clauses of this Chapter are hereby declared to be severable. If any part, sentence, paragraph, section or clause is adjudged unconstitutional or invalid by a Court of competent jurisdiction, the remainder of the chapter shall not be affected thereby.
(Ord. No. 93-40, § 1, 9-7-93)

Sec. 7.549. Conflicting Provisions.

In the event of any conflict between this Chapter and the provisions of any prior ordinance or any franchise, permit, consent agreement or other agreement with a cable operator, then the provisions of this Chapter shall control.
(Ord. No. 93-40, § 1, 9-7-93)

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Chapter 112

TELECOMMUNICATIONS PROVIDERS

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Sec. 7.552. City Signal; Permit.
Sec. 7.553. [Reserved.]

Article 2. Definitions

Sec. 7.554. Terms Defined.
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Article 3. Permits

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Sec. 7.557. Permit Application Procedures.
Sec. 7.558. [Reserved.]
Sec. 7.559. Annual Permit Fees.
Sec. 7.560. Duration of Permit; Renewal.
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Article 4. Liability and Insurance

Sec. 7.564. No City Liability; Indemnification.
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Article 5. Assignment of Permit Prohibited; Revocations and Removal of Facilities

Sec. 7.566. No Assignment or Transfer of Control Without City Consent.
Sec. 7.567. Revocation.
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Article 6. Miscellaneous

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Sec. 7.571. Severability.
Secs. 7.572—7.580. [Reserved.]

ARTICLE 1. PURPOSE

Sec. 7.550. Purpose: Application of Chapter.

(1) *BEFORE November 1, 2002.* Before November 1, 2002, the purpose of this Chapter is to regulate the access to and ongoing use of Public Rights-of-Way by Telecommunications Providers to ensure and protect the public health, safety, and welfare and to exercise reasonable control of the public Rights-of-Way pursuant to the City Charter, the Michigan Telecommunications Act (Act No. 216 of the Public Acts of 1995, as amended, being MCLA 484.2101 et seq.), other State statutes (including without limitation, MCLA 247.183), and Article VII § 29 of the 1963 Michigan Constitution by 1) minimizing disruption of the Public Rights-of-Way by regulating the access to and ongoing use of the Public Rights-of-Way by Telecommunications Providers and the construction, installation, operation, and use of facilities in the Public Rights-of-Way to provide Telecommunications Services, 2) ensuring that the City and the public are protected from liability for use of the Public Rights-of-Way by Telecommunications Providers, 3) providing for the payment of nondiscriminatory permit fees which do not exceed the fixed and variable costs of granting permits and maintaining the rights-of-way used by Telecommunications Providers, and 4) assisting Telecommunications Providers in understanding the City's requirements for use of the Public Rights-of-Way and providing a fair and non-discriminatory policy for permitting the use of the Public Rights-of-Way by such providers.

(2) *AFTER October 31, 2002.* The Michigan Metropolitan Extension Telecommunications Right-of-Way Oversight Act [Act 48 of the Public Acts of 2002] is effective November 1, 2002. In order to comply with Act 48 the City has adopted Chapter 109 to Title VII of the Code of the City of Grand Rapids (Telecommunications—METRO ACT) for Permits issued to Telecommunications Providers on or after November 1, 2002. However, a number of the City's existing telecommunications right-of-way Permits and Consent Agreements dated prior to November 1, 2002 incorporate by reference all or portions of this Chapter 112 of the City Code. Under Sections 4(2) and 5(1) of Act 48, these existing Permits and Consent Agreements continue in force and effect in accordance with their existing terms and conditions, subject to Section 13 (regarding fee modification) and any other applicable sections of Act 48. Notwithstanding any other provision of this Chapter 112 or the City Code, this Chapter shall remain in effect solely for the limited purpose of applying to those Permits and Consent Agreements in existence before November 1, 2002 (except as otherwise provided in Act 48). Except as provided in this Subsection (2), this Chapter 112 shall have no application to Telecommunications Providers after October 31, 2002.

(Ord. No. 97-47, § 1, 9-30-97; Ord. No. 2002-63, § 1, 10-29-02)

Sec. 7.551. Reservation of Rights.

The issuance of a Permit or Permits under this Chapter and the access to and use of the Public Rights-of-Way by a Telecommunications Provider shall not constitute a waiver of or otherwise adversely affect the following reserved rights:

(1) *Right to Require Franchise.* Article VII, § 29 of the 1963 Michigan Constitution and the City Charter require that all public utilities obtain a franchise to conduct a local business within the City. The applicability of this requirement to Telecommunications Providers may be challenged under Section 102(dd) of the Michigan Telecommunications Act which purports to define telecommunications services as not constituting public utility services. Due to this and other legal and regulatory issues, and to avoid the expense and delay of litigation that may be unnecessary, the City hereby determines that Telecommunications Providers shall not be required at this time to obtain franchises for the transaction of local business within the City. Telecommunications Providers shall be required to obtain and maintain a Permit for access to and ongoing use of the Public Rights-of-Way and to otherwise comply with the terms of this Chapter. Such a Permit shall not constitute a franchise. The City reserves the right to require Telecommunications Pro-

viders to obtain a franchise in the future to transact local business within the City.

(2) *Rights Regarding Takings Claim.* Certain cable or Telecommunications Providers have initiated or supported legal proceedings in which they contend that federal law grants them the right to physically occupy the rights-of-way and other property of a municipality for the purpose of providing telecommunications service without compensating the municipality for the use or value of the property so occupied or the cost of acquiring and maintaining such property. Municipalities dispute that claim. The City believes that if such a claim were sustained it would, among other things, constitute an unlawful taking by the United States in violation of the Fifth Amendment of the United States Constitution. The legal issues involved in such disputes have not been finally decided. The City desires to act on applications for Permits granting access to its Public Rights-of-Way at this time rather than wait for determination of these issues, provided this can be done without waiver or loss of any rights of the City or a Permittee. Therefore, notwithstanding any other provision hereof, a Permittee is not precluded by this Chapter from seeking relief from the fee provisions of Section 7.559 from any court or agency of competent jurisdiction. If a Permittee seeks such relief, the City reserves the right to assert a takings claim and to take all action it deems necessary in support thereof. Neither this Chapter nor the issuance or acceptance of a Permit hereunder constitutes or will be claimed to constitute a waiver or relinquishment of any rights or defenses of either the City or the Permittee in connection with these disputed issues, and the acceptance of a Permit constitutes an acknowledgment and agreement thereto by the Permittee.

(3) *Option to Obtain Consent Agreement.* The City finds that legislative, legal and regulatory issues in connection with use of the Public Rights-of-Way by Telecommunications Providers and the resulting potential for litigation and delay are likely to have an adverse impact on the development of a healthy, competitive telecommunications infrastructure in the community. This would be detrimental to the City and its residents as well as to Telecommunications Providers. The issues affect, among other things, both the cost to Telecommunications Providers and compensation to the City for the maintenance and use of its Public Rights-of-Way. In order to promote certainty, encourage competition and avoid litigation, the City will, at the request and sole option of an applicant or Permittee, consider entering into a consent agreement for use of the Public Rights-of-Way for the provision of Telecommunications Services on terms and conditions mutually acceptable to the City and the Telecommunications Provider. It is the City's intent that such an agreement would satisfy the requirement for a Permit under this Chapter, and would include, among other things, a fee of up to five percent of the applicable gross revenues of the Telecommunications Provider, which would include the Permit fee; an extended term of up to 15 years; authorization to conduct a local business in the City pursuant to Article VII, Section 29 of the 1963 Michigan Constitution; and a covenant to abide by the terms of the agreement as a compromise of disputed issues and uncertain outcomes, notwithstanding the resolution of these legislative, regulatory and legal requirements in the future. A Permittee may request a consent agreement at any time.

(Ord. No. 97-47, § 1, 9-30-97)

Sec. 7.552. City Signal; Permit.

City Signal, Inc. and the City entered into a Right-of-Way Agreement in 1990, which has since been amended, including a 1995 amendment which permitted City Signal (now Brooks Fiber Communications) to use the Public Rights-of-Way to provide local telephone service within the City in accordance with the terms and conditions of the

Right-of-Way Agreement, as amended. For purposes of this Section, the term "Agreement" shall refer to the 1990 Right-of-Way Agreement, as amended. The Agreement contains requirements for the use of the Public Rights-of-Way that are substantially similar to the requirements of this Chapter. For purposes of this Chapter, the Agreement shall be deemed to satisfy the requirement of a Permit under this Chapter and under the Telecommunications Act for the term of the Agreement. Any requests of Brooks Fiber Communications for expansion of its Telecommunications System shall be considered in accordance with the Agreement. Upon expiration of the Agreement, Brooks Fiber Communications shall be required to comply with all terms and conditions of this Chapter as it may be amended from time to time. (Ord. No. 97-47, § 1, 9-30-97)

Sec. 7.553. [Reserved.]

ARTICLE 2. DEFINITIONS

Sec. 7.554. Terms Defined.

The meaning of the terms used in this Chapter shall be as follows:

(1) "Affiliate" and "Affiliated" means any entity Controlling, Controlled by or under common Control with a Permittee.

(2) "City" means the City of Grand Rapids.

(3) "City Commission" means the City Commission of the City of Grand Rapids or its designee. This subsection does not authorize delegation of any decision or function that is required by law to be made by the City Commission. In any case in which a hearing is held pursuant to this Chapter, the City Commission may conduct the hearing or, in its sole discretion, may by resolution appoint a committee or subcommittee of the Commission or a hearing officer to conduct the hearing and submit a proposal for decision to it, pursuant to procedures established by resolution.

(4) "City Manager" means the City Manager or his or her designee.

(5) "Control," "Controlling" and "Controlled" mean effective control, by whatever means exercised, such as those described in Report and Order and Further Notice of Proposed Rule Making in MM Docket 92-264, 8 FCC Rcd 6828 (1993) at paragraphs 22-28 (adopting broadcast transfer of control standards as then in effect).

(6) "Local Exchange Service" means the provision of an access line and usage within a local calling area for the transmission of high quality two-way interactive switched voice or data communication.

(7) "Permit" means a non-exclusive permit issued pursuant to this Chapter for access to and ongoing use of Public Rights-of-Way by Telecommunications Providers for wires, poles, pipes, conduits, or other facilities designed or used to provide Telecommunications Services.

(8) "Permittee" means a Telecommunications Provider which has been issued a Permit pursuant to this Chapter.

(9) "Person" means an individual, corporation, partnership, association, governmental entity, or any other legal entity.

(10) "Public Rights-of-Way" means the public rights-of-way, easements, highways, streets, and alleys within the City.

(11) "Telecommunications Act" means Act No. 216 of the Public Acts of 1995, as amended from time to time.

(12) "Telecommunications Provider" means a Person who provides one or more Telecommunications Services for compensation.

(13) "Telecommunications Services" means regulated and unregulated services offered to customers for the transmission of two-way interactive communication and associated usage. "Telecommunications Services" does not include one-way transmission to subscribers of video programming or other programming services and subscriber interaction for the selection of video programming or other programming services.

(14) "Telecommunications System" means facilities designed or used to provide Telecommunications Services.

(Ord. No. 97-47, § 1, 9-30-97)

Sec. 7.555. [Reserved.]

ARTICLE 3. PERMITS

Sec. 7.556. Permits.

(1) *Permit Required.* No Person shall use the Public Rights-of-Way to provide Telecommunications Services without a Permit issued pursuant to this Chapter or a consent agreement under Sec. 7.551(3) herein. For purposes of this Chapter, use of the Public Rights-of-Way includes the installation, construction, maintenance, repair, or operation of a Telecommunications System within the Public Rights-of-Way. In addition, a Person providing Local Exchange Service or other local Telecommunications Services is using the Public Rights-of-Way for purposes of this Chapter whether such Person owns the facilities in the Public Rights-of-Way outright or obtains the use of or access to the facilities from a third party under lease, contract, interconnection, or wholesale for retail or other similar arrangement. Failure to comply with the Permit requirement of this Section shall constitute a violation of this Chapter. A Person who violates this requirement shall comply with all

requirements of this Chapter applicable to a Permittee and shall pay the annual fee plus late payment charges as provided by Sec. 7.559 for the time period in which the violator did not have a Permit plus the actual costs incurred by the City in enforcing this Chapter against the Person.

(2) *Consent Agreement.* If a Telecommunications Provider negotiates a consent agreement with the City under the provisions of Sec. 7.551(3), and the City determines that the consent agreement substantially satisfies the obligations of a Telecommunications Provider under this Chapter, giving due regard to any special circumstances involving the Telecommunications Provider, the consent agreement will be deemed to satisfy the requirement of a Permit under this Chapter and under the Telecommunications Act. When a consent agreement is no longer in effect, the Telecommunications Provider shall be required to comply with all terms and conditions of this Chapter as it may be amended from time to time.
(Ord. No. 97-47, § 1, 9-30-97)

Sec. 7.557. Permit Application Procedures.

(1) *Application.* A Telecommunications Provider shall apply for a Permit pursuant to this Chapter. The application shall be made on an application form provided by the City. Ten (10) copies of the application shall be filed with the City Clerk, and two (2) additional copies each shall simultaneously be filed with the City Manager and City Attorney.

(2) *Required Information.* In addition to other information required by the application form or otherwise required by the City or this Chapter, the application shall include, without limitation, the following information:

(a) The name and address of the applicant and each Person exercising Control over the applicant, and if the applicant or any Person or Persons exercising Control is not a natural Person, each of its officers, directors, stockholders beneficially holding more than 5% of the outstanding voting shares, general partners, and limited partners holding an equity interest of more than 5%.

(b) Copies of the most recent financial statements of the applicant.

(c) A description of (i) the applicant's existing and proposed Telecommunications System and Telecommunications Services in the City, (ii) the types of existing and proposed wires and other facilities in the Public Rights-of-Way, and (iii) a statement whether such facilities are owned by the applicant, or if not owned by the applicant, a copy of the agreement or legal instrument granting the applicant the right to the use of or access to such facilities.

(d) A map setting forth the specific location of the facilities in the Public Rights-of-Way. The map shall identify the location of above ground and underground facilities.

(3) *Application Fee.* The application will be accompanied by a non-refundable application fee in an amount established by ordinance or resolution of the City Commission. The non-refundable application fee shall be designed to reimburse the City for the costs of reviewing an application for a Permit and issuance of a Permit in accordance with the procedures of this Chapter.

(4) *Administrative Completeness.* An application shall not be deemed to be filed for purposes of the ninety-day permit application review period in Section 251(3) of the Telecommunications Act unless and until the application is determined by the City Manager to be administratively complete. A determination whether the application is administratively complete shall be made by the City Manager within ten (10) business days after the application is received by the City. If the City Manager determines that the application is not administratively complete, the City Manager shall so advise the applicant in writing and shall identify the items which must be furnished by the applicant for an administratively complete application.

(5) *Additional Information.* The City Manager may request an applicant to submit such additional information which the City Manager deems reasonably necessary or relevant to review the application. The applicant shall comply with all

such requests in compliance with reasonable deadlines for such additional information established by the City Manager. If the applicant fails to provide the requested additional information by the deadline established by the City Manager, the ninety-day period for acting on the application under Subsection (7) below shall be extended by the number of days after the deadline that the information was provided to the City Manager.

(6) *Misleading Statements.* A Person who provides information to the City in connection with a Permit application or any other matters under this Sec. 7.557 which contains an untrue statement of a material fact or omits a material fact necessary to make the information not misleading shall be in violation of this Chapter, and shall be subject to all remedies for violation of this Chapter and the City Code including, without limitation, denial of the requested action and Permit revocation pursuant to Sec. 7.567. Each day that a Person fails to correct an untrue statement of a material fact or the omission of a material fact necessary to make the information not misleading shall constitute a separate violation of this Chapter.

(7) *Permit Approval or Denial.* Within 75 days after the City Manager determines that the application is administratively complete (subject to any adjustments for delays in providing additional information as provided in Subsection (5)), and at the City Manager's request, the City Commission may hold a public hearing on the application. Notice of the public hearing shall be published in a newspaper in general circulation not less than ten (10) days before the public hearing. Notice of the public hearing shall also be mailed to the applicant not less than ten (10) days before the public hearing. Any report or recommendation on the application obtained or prepared by the City Manager shall be mailed to the applicant not less than ten (10) days before the public hearing. The applicant and any other interested parties may appear in person, by agent, or by letter at such hearing to submit comments on the application. Upon the recommendation of the City Manager if no public hearing is held, or following the public hearing if held, the City Commission shall approve, approve with conditions, or deny the application within ninety (90) days after the City Manager determines that the application is administratively complete pursuant to subsection (4), subject to any adjustments for delays in providing additional information as provided in subsection (5). The City Commission shall not unreasonably deny an application for a Permit. The failure of the City to comply strictly with the procedural requirements of this Section 7.557 for the review of Permit applications shall not invalidate the decision or proceedings of the City.

(8) *Conditions.* The City Commission may impose conditions on a Permit to protect the public health, safety and welfare. Without limitation, these conditions may include the posting of a bond by the Telecommunications Provider in an amount which shall not exceed the reasonable cost to ensure that the Public Rights-of-Way are returned to their original condition during and after the Telecommunications Provider's access and use.

(9) *Modification.* The City Commission may, in its discretion, grant a modification of a specific requirement of Secs. 7.560, 7.561, 7.562, or 7.565 of this Chapter if the applicant requests such modification in its application for a Permit and if the applicant demonstrates that: a) there are exceptional or extraordinary circumstances which warrant a modification, b) the modification will not be detrimental to the public health, safety, and welfare, and c) the modification will not impair the intent and purposes of this Chapter and its several Sections. The application shall describe the applicant's request for a modification and the reasons for the request with specificity. A modification granted by the City Commission pursuant to this Section shall expire upon the expiration of the Permit or earlier if so determined by the City Commission. A modification shall modify only those requirements expressly set forth in the approval of the City Commission and shall not modify any other provisions of this Chapter. If a request for a modification is denied by the City Commission, the Telecommunications Provider shall comply with all requirements of this Chapter without exception.

(10) *Waiver.* The City Commission shall grant a waiver of any requirement of this Chapter if an applicant or Permittee requests a waiver and the

City Commission finds that a) unless waived the requirement will prohibit or have the effect of prohibiting the ability of the applicant or Permittee to provide any Telecommunications Service within the meaning of Section 253(a) of the Federal Telecommunications Act, 47 USC § 253(a), b) the requirement is not within the scope of any state or local authority referenced in Section 253(c) of the Federal Telecommunications Act, 47 USC § 253(c), and c) the requirement is not necessary to protect the public safety and welfare or safeguard the rights of consumers. A request for a waiver may be included in an application for a Permit. A request for a waiver shall include a detailed statement of the facts and circumstances forming the basis for the request. If the request is made in connection with an application for a Permit, the provisions of Secs. 7.557(4) through 7.557(8) shall apply to the request, except that submission of a request for a waiver shall constitute consent that the time periods provided in Sec. 7.557(7) for holding a public hearing and acting on an application are extended by ninety (90) days. Sections 7.557(1), 7.557(3) and Sec. 7.557(6) shall apply to a waiver request that is not made in connection with a Permit application, and the request may be denied for violation of or failure to comply with any of those provisions. Sec. 7.557(7) shall also apply to such a request, with the exception of the seventy-five (75) and ninety (90) day time periods set forth in that Section, but the City Commission may by resolution establish different or additional procedures for conducting the public hearing and acting on the request.
(Ord. No. 97-47, § 1, 9-30-97; Ord. No. 99-42, § 1, 7-27-99)

Sec. 7.558. [Reserved.]

Sec. 7.559. Annual Permit Fees.

(1) *Establishment of Annual Fees; Payment.* In addition to the non-refundable application fee set forth in Sec. 7.557(3) and any other fees for other permits or authorizations required by the City Code, the Permittee shall pay an annual fee in an amount established by ordinance or resolution of the City Commission. The annual fee may be modified from time to time by ordinance or resolution of the City Commission. The amount of the annual fee shall not exceed the fixed and variable costs to the City in maintaining the Public Rights-of-Way used by a Telecommunications Provider unless otherwise permitted by law. The annual fee shall be payable quarterly as follows:

1st quarter (Jan. 1 - March 31) - April 30

2nd quarter (April 1 - June 30) - July 31

3rd quarter (July 1 - Sept. 30) - October 31

4th quarter (Oct. 1 - Dec. 31) - January 31

When a Permit is issued during a calendar year, the annual fee shall be prorated for the balance of the calendar year. In the event that a quarterly payment is not paid when due, the Permittee shall pay a late payment charge of the greater of $100 or interest at the rate of one percent (1%) over the prime rate then charged by NBD Bank and computed monthly. A Person who violates this Chapter by failing to obtain a Permit shall pay the annual fee plus late payment charges, as required by this Section, for the time period in which the violator did not have a Permit plus the actual costs of the City in enforcing this Chapter against the Person.

(2) *Option to Pay Annual Fee Based Upon Gross Revenues.* A Permittee, at its option, may elect to pay an annual fee of 1% of its annual Gross Revenues as set forth below, in lieu of and in full satisfaction of the annual fee established by the City Commission pursuant to Sec. 7.559(1) above. Permittees may elect this annual fee option for administrative convenience in computing the fee or for any other reason.

(a) An election shall be made within forty five (45) days of applying for a Permit or at least sixty (60) days before the start of any calendar year after issuance of a Permit.

(b) Any election, once made, shall continue in effect until the end of the next three calendar years, such that an election made

in a permit application in 1997 would continue in effect through the end of the year 2000.

(c) An election shall be made on a form provided by the City. Copies of the form shall be submitted in the manner provided in Sec. 7.557(1). The Permittee shall supply all information requested on the

form and any additional information that the City Manager deems reasonably necessary or relevant, including information on Affiliates of the Permittee relating to the requirements of Secs. 7.559(2)(e), 7.559(2)(f), 7.559(2)(g), and 7.559(3). After providing notice and an opportunity to be heard the City may reject or revoke an election for failure to comply with this Sec. 7.559(2)(c).

(d) The annual fees shall be paid quarterly by the same due dates as are set forth in Sec. 7.559(1) above.

(e) An election shall apply to all Affiliates of a Permittee. In making its election, a Permittee shall expressly affirm that it has the authority to bind, and does bind, its Affiliates to the obligations of this Sec. 7.559(2) including Sec. 7.559(2)(f) and the audit and records provisions of Secs. 7.559(2)(g) and 7.559(3).

(f) For purposes of this Sec. 7.559(2), "Gross Revenues" is defined in Appendix A. (g) If a Permittee or any Affiliate of a Permittee refuses to pay the fees due under this option or prohibit or effectively prohibit the City from auditing the Permittee or its Affiliates under Sec. 7.559(3) to verify the accuracy of annual fees, then the City at its option may revoke the election for all or any portion of the time period in question. The annual fees computed under Sec. 7.559(1) shall then become immediately due and payable, less a credit for any sums paid by the Permittee or its Affiliates, plus the late payment charges set forth in Sec. 7.559(1) and any additional sums due under the last sentence of Sec. 7.559(3).

(3) *Records.* All records (including those of Affiliates) reasonably necessary to verify the accuracy of annual fees paid by the Permittee under either Sec. 7.559(1) or Sec. 7.559(2) shall be made available by a Permittee at a location within the City or within twenty (20) miles of the City's boundaries. The City, by itself or in combination with other municipalities, reserves the right to audit any Permittee (or any Affiliate of a Permittee) to verify the accuracy of annual fees paid or to be paid to the City. Any additional amount due the City shall be paid within 30 days of submission of an invoice. If the additional amount due exceeds two percent (2%) of the total annual fee which the audit determines should have been paid for a calendar year, the Permittee shall pay the City's costs in connection with the audit within 30 days of submission of an invoice.

(4) *Other Payments.* The non-refundable application fees and the annual fees established pursuant to this Chapter shall be in addition to any tax, charge, fee, or payment due, or to become due, to the City by a Permittee under the ordinances of the City or the laws of the State of Michigan.

(5) *Misleading Statements.* A Person who provides information to the City in connection with any matter under this Sec. 7.559 which contains an untrue statement of a material fact or omits a material fact necessary to make the information not misleading shall be in violation of this Chapter, and shall be subject to all remedies for violation of this Chapter and the City Code including, without limitation, rejection or revocation of an election under Sec. 7.559(2) and Permit revocation pursuant to Sec. 7.567. Each day that a Person fails to correct an untrue statement of a material fact or the omission of a material fact necessary to make the information not misleading shall constitute a separate violation of this Chapter.
(Ord. No. 97-47, § 1, 9-30-97)

Sec. 7.560. Duration of Permit; Renewal.

A Permit shall remain in effect until December 31 following the fifth anniversary of the issuance of the Permit (unless the Permit expires pursuant to Sec. 7.561(11) or the Permit is earlier revoked pursuant to Sec. 7.567). Applications for renewal of Permits shall be filed in the same manner as original applications in Sec. 7.557 and shall be filed with the City not less than 120 days before the expiration of the Permit. The City expressly reserves all rights to approve, approve with con-

ditions, or deny applications for Permit renewals pursuant to this Chapter and to impose additional conditions on renewed Permits.
(Ord. No. 97-47, § 1, 9-30-97)

Sec. 7.561. Permit Terms and Requirements.

(1) *Non-Exclusive; Additional Permits.* A Permit shall be non-exclusive. The City expressly reserves the right to approve, at any time, additional Permits for access to and ongoing use of the Public Rights-of-Way by Telecommunications Providers and to enter into agreements and grant franchises for such access and use. The issuance of additional Permits, entry into agreements, or grant of franchises shall not be deemed to amend, modify, revoke, or terminate the terms and conditions of any Permits previously issued to Telecommunication Providers.

(2) *Expansion Requests.* A Permit approved by the City Commission shall authorize access to and ongoing use of the Public Rights-of-Way described in the Permit, subject to strict compliance with the conditions of the Permit, the requirements of this Chapter, and any other applicable requirements of the City Code or applicable state and federal law. The Permittee shall not use any Public Rights-of-Way not expressly authorized by the Permit. Any use of the Public Rights-of-Way (including any installation, construction, maintenance, repair, or operation of a Telecommunication System within the Public Rights-of-Way) to provide Telecommunications Services shall be performed only as authorized by the Permit. A Permittee may, however, expand its Telecommunications System to Public Rights-of-Ways not described in its Permit by obtaining approval of an amended Permit from the City. Such approval may be granted in writing by the City Manager in response to a written request from the Permittee for expansion to specific portions of named Public Rights-of-Way. The City Commission may establish by resolution a non-refundable application fee for such a request. The City Manager may grant, grant with conditions, or deny such request. The City Manager shall not unreasonably deny any request. A denial of any request may be appealed to the City Commission which shall make the final decision. Any expansion into additional Public Rights-of-Way shall be subject to all terms and conditions of the original Permit and this Chapter including, without limitation, the application of the annual fee to the expanded Public Rights-of-Way used by the Permittee.

(3) *Construction Permit.* A Permittee shall not commence construction upon, over, across or under the Public Rights-of-Way in the City without first obtaining a permit as required under Chapter 51 of the City Code, as amended, for construction within the Public Rights-of-Way.

(4) *Lease or Use of Facilities; Overlashing.* A Permittee shall not lease, sublease, license or otherwise allow the use of wires, conduit, poles or facilities in the Public Rights-of-Way by a Person who is required to obtain a Permit under Sec. 7.556 of this Chapter or is required by law to obtain the City's permission or consent to transact local business in the City, and who lacks such Permit, permission or consent. A Permittee shall not allow the property of a third party or non-Telecommunications System wires or any other facilities to be overlashed, affixed or attached to any portion of a Permittee's Telecommunications System; or allow other actions with a similar result without the written consent of the City Manager.

(5) *"As Built" Maps.* Without expense to the City, a Permittee shall provide the City with "as-built" maps, records and plans showing its Telecommunications System or portions thereof within the City, including those of Affiliates used by the Permittee, and maps and descriptive information of facilities of other Persons used by the Permittee. The City Manager may waive part or all of this requirement if satisfactory records of the location of the Telecommunications System were previously provided to the City. The "as built" maps, records and plans shall be provided within thirty (30) days of the completion of the Telecommunications System and any extensions, additions, or modifications to the Telecommunications System. In addition to the foregoing, a Permittee, without expense to the City, shall, upon forty-eight (48) hours notice, give the City access to all "as-built" maps, records, plans and specifications showing its Telecommunications System or portions thereof within the City. Upon request by the City, a Permittee shall inform the

City as soon as possible (but no more than one business day after the request) of any changes from previously supplied maps, records, or plans and shall mark up maps provided by the City so as to show the location of its Telecommunications System.

(6) *No Recourse.* A Permittee shall have no recourse whatsoever against the City for any loss, cost, expense or damage arising out of the failure of the City to have the authority to grant all or any part of a Permit or the authority to grant permission to use all or part of the Public Rights-of-Way. A Permittee expressly acknowledges that on accepting a Permit it did so relying on its own investigation and understanding of the power and authority of the City.

(7) *No Inducement.* By acceptance of a Permit, a Permittee acknowledges that it has not been induced to obtain the Permit by any understanding or promise or other statement, whether verbal or written, by or on behalf of the City or by any third Person concerning any term or condition of a Permit not expressed in this Chapter.

(8) *Acceptance of Terms and Conditions.* Permittee acknowledges by the acceptance of a Permit that it has carefully read its terms and conditions and does accept all of such terms and conditions.

(9) *No Priority.* A Permit does not establish any priority of use of the Public Rights-of-Way by a Permittee over any present or future Permittees or parties having agreements with the City or franchises for such use. In the event of any dispute as to the priority of use of the Public Rights-of-Way, the first priority shall be to the public generally, the second priority to the City, the third priority to the State of Michigan and its political subdivisions in the performance of their various functions, and thereafter as between Permittees, other Permit holders, parties having agreements with the City, and franchisees, as determined by the City in the exercise of its powers, including the police power and other powers reserved to and conferred on it by the State of Michigan.

(10) *Future Use by City.* A Permittee acknowledges, by accepting a Permit, that it obtains no rights to or further use of the Public Rights-of-Way other than those expressly granted herein. Each Permittee acknowledges and accepts as its own risk that the City may make use in the future of the Public Rights-of-Way which a Permittee is using or in which a Permittee's Telecommunications System is located in a manner inconsistent with the Permittee's use of such Public Rights-of-Way and that in such event the Permittee will not be entitled to compensation from the City.

(11) *Expiration of Permit.* Unless the City grants an extension, a Permit shall expire one year from the date of issuance unless prior thereto the Permittee either (a) commences construction, installation, or operation of its Telecommunications System within the Public Rights-of-Way authorized by the Permit and diligently pursues completion of construction or installation, or (b) commences use of the Public Rights-of-Way to provide Telecommunications Services as authorized by the Permit.
(Ord. No. 97-47, § 1, 9-30-97)

Sec. 7.562. Use of Public Rights-of-Way By Permittee.

(1) *No Burden on Public Rights-of-Way.* A Permittee and its contractors and subcontractors and a Permittee's Telecommunications System shall not unduly burden or interfere with the present or future use of any of the Public Rights-of-Way within the City. A Permittee shall erect and maintain its Telecommunications System so as to cause minimum interference with the use of the Public Rights-of-Way and with the rights and reasonable convenience of property owners. Permittee's cables and wires shall be suspended or buried so as to not endanger or injure Persons or property in the Public Rights-of-Way. If the City in its reasonable judgment determines that any portion of the Telecommunications System constitutes an undue burden or interference, the Permittee at its sole cost and expense shall modify its Telecommunications Systems or take such other actions as the City may determine are in the public interest to remove or alleviate the burden, and the Permittee shall do so within the time period established by the City.

(2) *Restoration of Property.* A Permittee and its contractors and subcontractors shall immediately restore, at the Permittee's sole cost and expense and in a manner approved by the City, any portion of the Public Rights-of-Way that is in any way disturbed, damaged, or injured by the construction, operation, maintenance or removal of the Telecommunications System to as good or better condition than that which existed prior to the disturbance. In the event that the Permittee, its contractors or subcontractors fail to do so within the time specified by the City, the City shall be entitled to complete the work and the Permittee shall reimburse the City for the costs of doing so.

(3) *Easements.* Any easements over or under private property necessary for the construction or operation of a Telecommunications System shall be arranged and paid for by the Permittee. Any use or intrusion on private property without an easement or other instrument evidencing permission of the property owner shall constitute a trespass by the Permittee and a violation of this Chapter. Any easements over or under property owned by the City other than the Public Rights-of-Way shall be separately negotiated with the City.

(4) *Tree Trimming.* A Permittee may trim trees upon and overhanging the Public Rights-of-Way so as to prevent the branches of such trees from coming into contact with its Telecommunications System. The Permittee shall minimize the trimming of trees to trimming only those trees that are essential to maintain the integrity of its Telecommunications System. No trimming shall be done in the Public Rights-of-Way without previously informing the City.

(5) *Pavement Cut Coordination / Additional Fees.* A Permittee shall coordinate all construction work in the Public Rights-of-Way with the City's program for street construction, rebuilding, resurfacing and repair (collectively, "Street Resurfacing"). A Permittee shall meet with the City Engineer, or his or her designee, at least twice per year to this end.

The goals of such coordination shall be to require a Permittee to conduct all work in the Public Rights-of-Way in conjunction with or immediately prior to any Street Resurfacing planned by the City, and to prevent the Public Rights-of-Way from being disturbed by a Permittee for a period of years after such Street Resurfacing.

In addition to any other fees or payments required by this Chapter, a Permittee shall pay to the City the sum of $1,250 for each fifty feet (50') cut into or excavation of any Public Rights-of-Way, or portion thereof, which was subject to Street Resurfacing within eighteen (18) months prior to such cut or excavation. This fee is in addition to and not in lieu of the obligation to restore the Public Rights-of-Way and is in addition to all other fees required by this Chapter or other ordinances of the City.

(6) *Marking.* A Permittee shall mark any installations of its Telecommunications System which occur after the effective date of this Chapter as follows:

(a) Aerial portions of its Telecommunications System shall be marked with a marker on its lines on alternate poles which shall state the Permittee's name and provide a toll-free number to call for assistance.

(b) Direct buried underground portions of its Telecommunications System shall have (i) a conducting wire placed in the ground at least several inches above the Permittee's cable (if such cable is non-conductive), (ii) at least several inches above that a continuous colored tape with the Permittee's name and a toll-free phone number and a statement to the effect that there is buried cable beneath, and (iii) stakes or other appropriate above-ground markers with the Permittee's name and a toll-free number indicating that there is buried telephone cable below.

(c) Portions of its Telecommunications System located in conduit, including facilities of others used by a Permittee, shall be marked at each manhole with the Permittee's name and toll-free telephone number to call for assistance.

(7) *Compliance with Laws.* A Permittee shall comply with all laws, statutes, ordinances, rules and regulations regarding the installation, con-

struction, ownership and use of its Telecommunications System, whether federal, state or local, now in force or which hereafter may be promulgated (including, without limitation, any ordinance requiring the installation of additional conduit when a Permittee installs underground conduit for its Telecommunications System). Before any installation is commenced, the Permittee shall secure all necessary permits, licenses and approvals from all appropriate departments, agencies, boards or commissions of the City or other governmental entity as may be required by law, including, without limitation, all utility line permits and highway permits. A Permittee shall comply in all respects with applicable codes and industry standards, including but not limited to the National Electrical Safety Code (latest edition) and the National Electric Code (latest edition). A Permittee shall comply with all zoning and land use ordinances and historic preservation ordinances as may exist or may hereafter be amended.

(8) *Street Vacation.* If the City vacates or consents to the vacation of Public Rights-of-Way within its jurisdiction, and such vacation necessitates the removal and relocation of a Permittee's facilities in the vacated right-of-way, the Permittee shall, as a condition of the Permit, consent to the vacation and move its facilities at its sole cost and expense when ordered to do so by the City or a court of competent jurisdiction. The Permittee shall relocate its facilities to such alternate route as the City, acting reasonably and in good faith, shall designate.

(9) *Relocation.* If the City requests a Permittee to relocate, protect, support, disconnect, place underground or remove its facilities because of street or utility work, or other public projects, the Permittee shall relocate, protect, support, disconnect, place underground or remove its facilities, at its sole cost and expense, to such alternate route as the City, acting reasonably and in good faith, shall designate. The work shall be completed within the time period designated by the City.

(10) *Public Emergency.* The City shall have the right to sever, disrupt, dig-up or otherwise destroy facilities of a Permittee, without any prior notice, if such action is deemed necessary by the Mayor, City Manager, Police Chief, or Fire Chief or their designees because of a public emergency. Public emergency shall be any condition which, in the opinion of any of the officials named, poses an immediate threat to life, health, or property caused by any natural or man-made disaster, including, but not limited to, storms, floods, fire, accidents, explosions, major watermain breaks, hazardous material spills, etc. The Permittee shall be responsible for repair at its sole cost and expense of any of its facilities damaged pursuant to any such action taken by the City.

(11) *Miss Dig.* If eligible to join, a Permittee shall subscribe to and be a member of "MISS DIG," the association of utilities formed pursuant to Act 53 of the Public Acts of 1974, as amended, MCL § 460.701 et seq., and shall conduct its business in conformance with the statutory provisions and regulations promulgated thereunder.

(12) *Use of Existing Facilities; Undergrounding.* A Permittee shall utilize existing poles, conduits, and other facilities wherever practicable, and shall not construct or install any new, different, or additional poles or other facilities unless expressly authorized by the Permit. Where utility wiring is located underground, either at the time of initial construction or subsequent thereto, a Permittee's Telecommunications System shall also be located underground unless otherwise expressly authorized by the Permit. All undergrounding shall be at the sole cost and expense of the Permittee.

(13) *Underground Relocation.* If a Permittee has its facilities on poles of Consumers' Energy Company or another public utility company and Consumers' Energy Company or other public utility company relocates its facilities underground, the Permittee shall relocate its facilities underground in the same location at Permittee's sole cost and expense.

(14) *Pole/Conduit License Agreement; Notification.* If a Permittee forfeits or otherwise loses its rights under a pole/conduit license agreement with Consumers' Energy Company or other entity, then Permittee shall notify the City Manager in writing within thirty (30) days.

(15) *Identification.* All personnel of a Permittee and its contractors or subcontractors who have as part of their normal duties contact with the general public shall wear on their clothing a clearly visible identification card bearing their name and photograph. A Permittee shall account for all identification cards at all times. Every service vehicle of a Permittee and its contractors or subcontractors shall be clearly identified as such to the public with the Permittee's name and telephone number.

(16) *9-1-1 Emergency Service.* As a condition of a Permit, a Permittee providing Local Exchange Service shall provide 9-1-1 service within the City in accordance with the provisions of the applicable 9-1-1 Service Plan and the rules and orders of the Michigan Public Service Commission.
(Ord. No. 97-47, § 1, 9-30-97)

Sec. 7.563. [Reserved.]

ARTICLE 4. LIABILITY AND INSURANCE

Sec. 7.564. No City Liability; Indemnification.

(1) *City Not Liable.* The City, and its officers, agents, elected or appointed officials, employees, departments, boards, and commissions, shall not be liable to a Permittee or to its Affiliates or customers for any interference with or disruption in the operation of a Permittee's Telecommunications System or the provision of Telecommunications Services, or for any damages arising out of a Permittee's use of the Public Rights-of-Way.

(2) *Indemnification.* As a condition of a Permit, a Permittee shall defend, indemnify, protect, and hold harmless the City, its officers, agents, employees, elected and appointed officials, departments, boards, and commissions from any and all claims, losses, liabilities, causes of action, demands, judgments, decrees, proceedings, and expenses of any nature (including, without limitation, attorneys' fees) arising out of or resulting from the acts or omissions of the Permittee, its officers, agents, employees, contractors, successors, or assigns, but only to the extent of the fault of the Permittee, its officers, agents, employees, contractors, successors, or assigns.
(Ord. No. 97-47, § 1, 9-30-97)

Sec. 7.565. Insurance.

(1) A Permittee shall obtain and maintain in full force and effect for the duration of a Permit the following insurance covering all insurable risks associated with its ownership or use of its Telecommunications System:

(a) A comprehensive general liability insurance policy, including Completed Operations Liability, Independent Contractors Liability, Contractual Liability coverage and coverage for property damage from perils of explosion, collapse or damage to underground utilities, commonly known as XCU coverage, in an amount not less than Ten Million Dollars ($10,000,000.00).

(b) An Automobile Liability Insurance Policy covering any vehicles used in connection with its activities under its Permit in an amount not less than One Million Dollars ($1,000,000.00).

(c) Workers' Compensation and Employer's Liability Insurance with statutory limits.

(2) The City shall be named as an additional insured in all applicable policies. All insurance policies shall provide that they shall not be canceled or modified unless thirty (30) days prior written notice is given to the City. A Permittee shall provide the City with a certificate of insurance evidencing such coverage as a condition of issuance of the Permit and shall maintain on file with the City a current certificate. All insurance shall be issued by insurance carriers licensed to do business by the State of Michigan or by surplus line carriers on the Michigan Insurance Commission approved list of companies qualified to do business in Michigan. All insurance and surplus line carriers shall be rated A+ or better by A.M. Best Company.

(3) Each policy which is to be endorsed to add the City as an additional insured hereunder, shall contain cross-liability wording, as follows:

"In the event of a claim being made hereunder by one insured for which another insured is or

may be liable, then this policy shall cover such insured against whom a claim is or may be made in the same manner as if separate policies had been issued to each insured hereunder."

(4) If the insurance policies required by this Section are written with deductibles in excess of $50,000, the deductibles shall be approved in advance by the City. A Permittee agrees to indemnify and save harmless the City from and against the payment of any deductible and from the payment of any premium on any insurance policy required to be furnished by this Chapter.

(5) The Permittee shall require that its contractors and subcontractors working in Public Rights-of-Way carry in full force and effect workers' compensation and employer liability, comprehensive general liability and automobile liability insurance coverages of the types which Permittee is required to obtain under Section 12(a) with appropriate limits of coverage.

(6) The Permittee's insurance coverage shall be primary insurance with respect to the City, its officers, agents, employees, elected and appointed officials, departments, boards, and commissions. Any insurance or self-insurance maintained by any of them shall be in excess of the Permittee's insurance and shall not contribute to it.
(Ord. No. 97-47, § 1, 9-30-97)

ARTICLE 5. ASSIGNMENT OF PERMIT PROHIBITED; REVOCATIONS AND REMOVAL OF FACILITIES

Sec. 7.566. No Assignment or Transfer of Control Without City Consent.

A Permittee shall not assign or transfer a Permit or any of its rights under a Permit, in whole or in part, voluntarily, involuntarily or by operation of law, including by merger or consolidation or by other means, nor shall there be a transfer of Control of a Permittee or its business, without the prior written consent of the City, which shall not be unreasonably withheld. The Permittee shall reimburse the City for reasonable, actual costs incurred in the review of a request by the Permittee for consent to an assignment or transfer of the Permit or a transfer of Control of a Permittee or its business. Notwithstanding anything in this Section to the contrary, the Permittee may grant a security interest in its rights under a Permit in favor of a third party without first obtaining the consent of the City. If a Permit or any rights thereunder is assigned or transferred in whole or in part with the approval of the City, the terms and conditions of the Permit and of this Chapter shall be binding upon the successors and assigns of the Permittee.
(Ord. No. 97-47, § 1, 9-30-97)

Sec. 7.567. Revocation.

In addition to all other rights and powers reserved or pertaining to the City, the City reserves as an additional separate and distinct remedy the right to revoke a Permit and all rights and privileges of a Permittee in any of the following events or for any of the following reasons:

(1) A Permittee fails after thirty (30) days prior written notice to comply with any of the provisions of the Permit or this Chapter (except Sec. 7.557(6)); or

(2) A Permittee becomes insolvent, unable or unwilling to pay its debts, or is adjudged bankrupt; or

(3) All or part of a Permittee's facilities are sold under an instrument to secure a debt and are not redeemed by the Permittee within ninety (90) days from such sale; or

(4) A Permittee violates Sec. 7.557(6) of this Chapter or otherwise attempts to or does practice any fraud or deceit in its conduct or relations with the City; or

(5) The City condemns all of the property of a Permittee within the City by the lawful exercise of eminent domain; or

(6) A Permittee abandons its Telecommunication System or fails to seek renewal of its Permit; or

(7) A Permittee fails to pay any fines due for violations of this Chapter; or

(8) A Permittee fails to pay any civil fines imposed by a court of competent jurisdiction, such as pursuant to an ordinance providing for civil infractions.

No revocation, except for reason of condemnation, shall be effective unless the City Commission shall have adopted a resolution setting forth the reason for the revocation and the effective date, which resolution shall not be adopted without thirty (30) days prior notice to the Permittee and a hearing at which the Permittee receives rudimentary due process.
(Ord. No. 97-47, § 1, 9-30-97)

Sec. 7.568. Removal of Facilities.

(1) *Removal; Underground.* Upon revocation of a Permit, or upon expiration of a Permit if the Permit is not renewed, the Permittee may remove any underground Cable from the Public Rights-of-Way which has been installed in such a manner that it can be removed without trenching or other opening of the streets along the extension of Cable to be removed. Except as otherwise provided, the Permittee shall not remove any underground Cable or conduit which requires trenching or other opening of the Public Rights-of-Way along the extension of Cable to be removed. The Permittee shall remove, at its sole cost and expense, any underground Cable or conduit which is ordered to be removed by the City based upon a determination, in the sole discretion of the City, that removal is required in order to eliminate or prevent a hazardous condition or promote future utilization of the streets for public purposes. Any order by the City to remove Cable or conduit shall be mailed to the Permittee not later than thirty (30) calendar days following the date of revocation or expiration of the Permit. A Permittee shall file written notice with the City Clerk not later than thirty (30) calendar days following the date of expiration or termination of the Permit of its intention to remove Cable and a schedule for removal by location. The schedule and timing of removal shall be subject to approval and regulation by the City. Removal shall be completed not later than twelve (12) months following the date of revocation or expiration of the Permit. Underground Cable and conduit in the Public Rights-of-Way which is not removed within such time period shall be deemed abandoned and, at the option of the City, title shall be vested in the City. For purposes of this subsection (1), "Cable" means any wire, coaxial cable, fiber optic cable, feed wire or pull wire.

(2) *Removal; Above Ground.* Upon revocation of a Permit, or upon expiration of a Permit if the Permit is not renewed, a Permittee, at its sole cost and expense, shall, unless relieved of the obligation by the City, remove from the Public Rights-of-Way all above ground elements of its Telecommunication System, including but not limited to poles, pedestal mounted terminal boxes, and lines attached to or suspended from poles.

(3) *Permits; Restoration; Completion.* A Permittee shall apply for and obtain such encroachment permits, licenses, authorizations or other approvals and pay such fees and deposit such security as required by applicable law or ordinance of the City, shall conduct and complete the work of removal in compliance with all such applicable law or ordinances, and shall restore the Public Rights-of-Way to the same condition they were in before the work of removal commenced.
(Ord. No. 97-47, § 1, 9-30-97)

Sec. 7.569. [Reserved.]

ARTICLE 6. MISCELLANEOUS

Sec. 7.570. Other Provisions Not Waived.

(1) Nothing in this Chapter shall be construed as a waiver of any Charter provisions, codes, ordinances or regulations of the City or the City's right to require Permittee or Persons utilizing the Telecommunication System or Telecommunications Services to secure appropriate permits or authorization for such use.

(2) The City fully reserves its police powers to ensure and protect the public health, safety, and welfare and fully reserves its authority and power to amend this Chapter at any time. The terms and conditions of any Permit shall be subject to compliance with any future amendments of this Chapter. The City fully reserves its right to exercise the reasonable control of the Public Rights-of-Way pursuant to Article VII, § 29 of the 1963 Michigan Constitution.

(3) Nothing in this Chapter or any Permit shall limit any right the City may have to acquire by eminent domain any property of a Telecommunications Provider.

(4) Nothing in this Chapter or any Permit shall limit the authority of the City to impose a tax, fee, or other assessment of any kind on any Person. A Telecommunications Provider shall pay all fees necessary to obtain all Federal, State, and local licenses, permits, and authorizations required for the construction, installation, maintenance, or operation of its Telecommunications System within the Public Rights-of-Way.
(Ord. No. 97-47, § 1, 9-30-97)

Sec. 7.571. Severability.

The various parts, sections and clauses of this Chapter are hereby declared to be severable. If any part, sentence, paragraph, section or clause is adjudged unconstitutional or invalid by a court or administrative agency of competent jurisdiction, the remainder of the Chapter shall not be affected thereby, except as provided in this Section. If a court or administrative agency of competent jurisdiction determines, by a final, non appealable order or an order from which no appeal has been taken within the time allowed, that any right or obligation of a Permittee under this Chapter is invalid, unconstitutional or unenforceable, then the Permit shall become revocable and subject to termination without cause by either the City or the Permittee on 60 days written notice. In the event of termination under this Section by the City, the procedures for revocation set forth in Sec. 7.567 shall be followed. In the event of termination under this Section by either the City or the Permittee, the provisions of Sec. 7.568 for removal shall apply.
(Ord. No. 97-47, § 1, 9-30-97)

Secs. 7.572—7.580. [Reserved.]

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Chapter 113

VALET PARKING

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Sec. 7.581. Definitions.

The following terms shall have the definitions indicated for the purposes of this Chapter:

(1) *Licensee:* means any person or entity licensed for the provision of valet parking services, or hired as an independent contractor by a business establishment to perform valet parking services to members of the public. This definition includes any business establishment that performs valet parking services for its valet customers by means of its own employees.

(2) *Person:* means a natural person, a corporation, a partnership, any other form of business entity and any business or commercial operation or establishment, whether operated for profit or not for profit, including, but not limited to, hotels, motels, restaurants, bars, taverns, retail establishments of any kind, office buildings, schools, colleges, wedding and reception halls, arenas, theatres, concert halls, and hospitals. The term does not include private residences.

(3) *Premises:* means private real property.

(4) *Valet Attendant or Employee:* means any person hired by a valet company to perform valet services.

(5) *Valet Customer:* means a customer, employee, visitor, or other person who owns or operates a vehicle that receives valet parking services and all drivers and passengers of such a vehicle.

(6) *Valet Drop-Off Location:* means a place approved by the City at or near the licensee's business location where valet customers and their passengers embark and disembark from their vehicles and load or unload their vehicles when utilizing valet services.

(7) *Valet Parking License:* means a license duly issued by the City Clerk pursuant to the provisions of this Chapter, and shall include a Fixed Location Valet License, Special Event Valet License, or Valet Company License as described in this Chapter.

(8) *Valet Parking Lot:* means a parking lot or lots or other place or places where the licensee, valet parking operator or valet attendant or employees lawfully park one (1) or more valet customers' vehicles until the vehicle is retrieved by a licensee, valet attendant, or the valet customer.

(9) *Valet Parking Receipt:* means a piece of paper or token with a unique number, letter, or symbol which identifies and connects the valet customer with his or her vehicle, which is issued in triplicate, one (1) copy of which is given to the valet customer, one (1) copy of which is attached to the key to the valet customer's vehicle and kept at the valet station, and one (1) copy of which is left in the interior of the valet customer's vehicle on the dash or at some other place where the receipt is visible from the exterior of the vehicle when looking at or through the windshield of the vehicle.

(10) *Valet Parking Sign:* means a fixed or movable sign, approved by the City, which is placed on, in or near the public right-of-way stating that valet parking is available at that location.

(11) *Valet Parking Services:* means any act of assisting a valet customer driving a vehicle to park or retrieve the vehicle for a valet customer while the valet customer visits, works at, or patronizes a business or which valet customer otherwise avails himself or herself of the valet service. The term does not include merely loading or unloading people, animals or cargo from a vehicle, opening or closing door of vehicles, greeting customers and patrons in vehicles or giving directions for parking unless such activities are connected with the operation of the valet customer's vehicle.

(12) *Valet Parking Station:* means a table, podium, desk, or similar place at or near the valet drop-off and pick-up location

where one (1) copy of the valet parking receipts and keys to the valet customers' vehicles are kept and where valet customers may retrieve the keys to their vehicles.

(Ord. No. 2002-11, § 1, 2-26-02; Ord. No. 2016-63, § 1, 9-13-16)

Sec. 7.582. Valet Parking License Required.

(1) No person shall solicit or perform the operation of vehicles for the purpose of storage or parking or perform any other valet parking services unless the person holds a valid and unrevoked Valet Parking License issued under authority of this Chapter.

(2) No person shall solicit or perform the operation of vehicles for the purpose of storage or parking or perform any other valet parking services from any location not licensed for such valet purposes under this Chapter.

(3) This provision shall not apply to any business establishment which provides such parking or storage solely on its own property and does not use the public streets for pick-up, drop-off, or movement of vehicles.

(Ord. No. 2002-11, § 1, 2-26-02; Ord. No. 2016-63, § 2, 9-13-16; Ord. No. 2017-47, § 1, 9-12-17)

Sec. 7.582.1. Types of Licenses.

There shall be three (3) types of valet parking licenses:

(1) *Fixed Location Valet License.*

(a) A Fixed Location Valet License shall be required for any business that contracts for valet parking services on a daily, weekly, monthly, or other regular basis, excepting events that occur on an annual basis.

(b) Applicants may apply for available City-designated locations following application guidelines as defined in this Chapter.

(2) *Special Event Valet License.*

(a) A Special Event Valet License shall be required of any business which contracts for valet parking services at any location other than those defined as fixed locations in subdivision (1) of this section.

(b) A Special Event Valet License is only available for events that occur on a non-recurring basis.

(c) An application for a Special Event Valet License must state the purpose of the special event, including but not limited to, a wedding, a conference, or a similar special event.

(d) Notwithstanding any other provision of this Chapter, and without limiting the power to deny an application for other reasons, the City Clerk or his or her designee shall have discretion to deny an application for a Special Event Valet License if he or she reasonably concludes that the application is more properly one for a Fixed Location Valet License.

(3) *Valet Company License.* A Valet Company License shall be required of any company that performs valet services in the City of Grand Rapids.

(Ord. No. 2016-63, § 2, 9-13-16)

Sec. 7.583. Application of Substantive Provisions.

The substantive provisions of this Chapter are intended to apply to all persons offering or performing valet parking services whether licensed or not. It is the intent of this Chapter that the failure to obtain a license shall not excuse compliance with the remaining requirements set out in this Chapter.

(Ord. No. 2002-11, § 1, 2-26-02)

Sec. 7.584. Application for Valet License.

(1) Any person desiring a Fixed Location Valet License or a Special Event Valet License shall, prior to engaging in any valet parking activities, make an application for a license with the City Clerk on an application in a form to be determined and provided by the City Clerk.

(2) Such application shall, in addition to information required by the City Clerk, include the following information:

(a) *Fixed Location Valet License:*

i. Proof of a contract with a licensed valet company, being a person holding a valid Valet Company License issued pursuant to this Chapter;

ii. Proof of consent or approval from the duly authorized representative of each business listed on the application;

iii. Proof of notice issued to all businesses within a City block of the City-designated valet parking zone of the intent to apply for its use. Notice must be given of intent to apply at least ten (10) business days prior to submitting an application to the City;

iv. A valet parking plan meeting all requirements outlined in Section 7.596 of this Chapter;

v. Days and hours that valet service will be offered;

vi. Map additions or requests for changes to the existing City designated zones shall include:

- A map of the proposed valet parking location to be added to the City designated list of zones;
- Written justification for why the map addition is necessary and beneficial to the business or businesses and City;
- If the request includes the creation or repositioning of an existing loading zone applicants must contact the Traffic Safety department before applying;
- Applications that include map additions may be made by the First Friday in April or the First Friday in October. Applications will not be reviewed for approval except during April and October each year. Within 30 days the applicant will be informed of the decision to approve or deny the new location and will then have an opportunity to appeal the decision according to the appeal process provided for in Section 7.16 of Chapter 91 of this Code.

(3) *Special Event Valet Location.*

(a) Applications will be submitted to the City for review at least seven (7) business days prior to the scheduled event date;

(b) Proof of contract with a licensed Valet Company, including a copy of the valet company's insurance;

(c) A valet parking plan meeting all requirements outlined in Section 7.596 of this Chapter.

Any person or persons providing valet service in the City of Grand Rapids, prior to engaging in any valet parking business, shall make an application for a license with the City Clerk on an application and in a form to be determined and provided by the City Clerk. Such application shall, in addition to information required by the City Clerk, include proof of insurance for all valet operations within the City.
(Ord. No. 2002-11, § 1, 2-26-02; Ord. No. 2016-63, § 3, 9-13-16)

Sec. 7.585. Legal Entities as Applicants.

If the applicant is an entity organized under Chapter 450 of the Michigan Compiled Laws, the name of the entity shall be set forth exactly as shown in its formation documents, together with the names and residence addresses of each of the officers, members, owners, and/or directors of the entity. The information required for an individual license application shall be provided for each officer, member, or owner of the entity. If the applicant is a partnership, the information required for an individual license application shall be supplied for each of the partners, includ-

ing limited partners. If one (1) or more of the partners is an entity organized under MCL Ch. 450, the provisions above apply.
(Ord. No. 2017-47, § 2, 9-12-17)

Editor's note—Ord. No. 2017-47, § 2, adopted September 12, 2017, amended § 7.585 in its entirety to read as herein set out. Former § 7.585, pertained to corporations and partnerships, and derived from Ord. No. 2002-11, § 1, 2-26-02.

Sec. 7.586. License Fee and Investigation.

All applications shall be accompanied by a nonrefundable application fee as provided for in Chapter 92 of this Code.
(Ord. No. 2002-11, § 1, 2-26-02; Ord. No. 2016-63, § 4, 9-13-16)

Sec. 7.587. Insurance.

The Valet Company applicants shall meet the following insurance requirements throughout the term of any license issued under this Chapter:

(1) Workers' compensation insurance as required by state law;

(2) Comprehensive general liability insurance with limits not less than five hundred thousand dollars ($500,000.00) each occurrence combined single limit bodily injury and property damage, including contractual liability, personal injury, broad form property damage, products and completed operations coverage. Coverage may be combined with the comprehensive automobile coverage.

(3) Comprehensive automobile liability insurance with limits not less than five hundred thousand dollars ($500,000.00) each occurrence combined single limit bodily injury and property damage, including owned, non-owned and hired auto coverage, as applicable. Coverage may be combined with the comprehensive general liability coverage.

(4) Garagekeepers' legal liability insurance with limits not less than one hundred thousand dollars ($100,000.00) each occurrence, including coverage for fire and explosion, theft of the entire vehicle, riot, civil commotion, malicious mischief and vandalism, collision or upset.

Comprehensive general liability, comprehensive automobile liability and garagekeepers' legal liability insurance policies shall be endorsed to provide the following:

(a) Name as additional insureds the City of Grand Rapids and its officers, agents, and employees.

(b) Provide that such policies are primary insurance to any other insurance available to the additional insureds, with respect to any claims arising out of activities conducted under the license, and that insurance applies separately to each insured against whom claim is made or suit is brought.

All policies shall be endorsed to provide that thirty (30) days advance written notice to the City of any change, cancellation, nonrenewal or reduction in coverage. Certificates of insurance, satisfactory to the City, evidencing all coverage above shall be furnished to the City prior to issuance of a license or renewal of a license. Complete copies of the policies shall be furnished to the City upon request.
(Ord. No. 2002-11, § 1, 2-26-02; Ord. No. 2016-63, § 5, 9-13-16)

Sec. 7.588. Issuance or Denial of License; Appeals of Decisions Under this Chapter.

Appeals of license denials, license conditions and all other applicable matters covered by this Chapter shall follow the process outlined in Section 7.16 of Chapter 91 of this Code. There shall be no appeal of a Special Event license unless the notice of the intended event at a location has been given twenty (20) or more days before the event.
(Ord. No. 2002-11, § 1, 2-26-02; Ord. No. 2016-63, § 6, 9-13-16)

Sec. 7.589. Fees.

Fees necessary for the administration of this ordinance shall be established from time to time by resolution of the City Commission. Subsequent to the approval of a Fixed Valet Location, licensees who will be making use of the public right-of-way for a valet parking station, for drop-off or pick-up area or for any other reason which denies the use of that portion of the right-of-way to the general public shall pay to the City a fee for this use. This fee will be determined by taking into consideration the days and hours that valet service will be offered and the duration of time that the public right-of-way will be denied to the general public. Fees for the installation of signage will be assessed according to the fee schedule established for the administration of this Chapter.
(Ord. No. 2002-11, § 1, 2-26-02; Ord. No. 2016-63, § 7, 9-13-16)

Sec. 7.590. Revocation or Suspension of Licenses.

Any license issued under this chapter shall be subject to suspension or revocation by the City Clerk for violation of, or for committing, causing or permitting another to commit or cause a violation of, any provision of federal or state law or this Code or for any grounds that would warrant the denial of such licenses in the first instance. Licensees employing others to perform work shall be jointly and severally responsible with the employees for any violation of any provision of federal or state law or this Code.

Prior to the revocation of any license issued under this chapter, the licensee shall be entitled to a hearing as provided for in Section 7.16 of Chapter 91 of this Code.
(Ord. No. 2002-11, § 1, 2-26-02; Ord. No. 2016-63, § 8, 9-13-16)

Sec. 7.591. Substantive and Operational Requirements.

(1) The licensee shall have the license(s) required by this Code at the place where it is conducting any valet parking activity under the license(s), and shall exhibit such license(s) on demand of any police officer or other City employee providing identification as such.

(2) A drop-off and pick-up site upon a public street or right-of-way shall only be at the City-approved location set forth in the license. At no time shall vehicles be accepted for valet parking when stopped in a traffic lane, nor shall vehicles be returned to customers in a traffic lane. At no time shall vehicles be double parked on any street, highway, alley or other place open to the public for the operation of motor vehicles.

(3) At no time shall a licensee use, or permit the use of, any parking space on any street for valet parking. A valet company may use a City parking lot for valet parking if such use is authorized by the approved plan of the fixed location or special event license. No licensee, valet parking operator or valet attendant or employee shall deposit or cause to be deposited in a parking meter a coin for the purpose of parking or increasing or extending the parking time of any vehicle other than that individual's own vehicle.

(4) The City Manager is hereby authorized to promulgate rules and regulations to carry out the purpose of this Chapter. Copies of the rules and regulations adopted shall be kept on file at the office of the City Clerk and the office of the Director of Parking Services for free distribution to the public.

(5) The licensee shall be jointly and severally liable with the employee for any violation of this section.
(Ord. No. 2002-11, § 1, 2-26-02; Ord. No. 2016-63, § 9, 9-13-16; Ord. No. 2017-47, § 3, 9-12-17)

Sec. 7.592. Requirements for Employees.

(a) Every person holding a license under this ordinance, and any other person operating a valet parking operation as defined in this Chapter, shall maintain a continuously updated list of the names and residence addresses, dates of birth and current driver's license numbers of all of its employees who perform valet parking services. Such list shall be maintained at the business address listed on the license application, and shall be exhibited on demand of any police officer or other properly identified City employee who requests it.

(b) It shall be unlawful for any employee whose drivers license is currently suspended, revoked or denied or who has not been issued a valid, current Michigan driver's license to perform valet parking services. The licensee shall be jointly and severally liable with the employee for any violation of this provision. Each licensee shall obtain a photocopy of each employee's driver's license prior to allowing the employee to operate a customer's vehicle.
(Ord. No. 2002-11, § 1, 2-26-02)

Sec. 7.593. Compliance with Applicable Laws.

Nothing in this Chapter is intended to authorize, or authorizes, a licensee, valet parking operator or valet attendant or employee to park any vehicle or to do or omit any act which results in a violation of any applicable federal, state or local laws, ordinances, rule or regulation.
(Ord. No. 2002-11, § 1, 2-26-02)

Sec. 7.594. Reserved.

Editor's note—Ord. No. 2016-62, § 10, adopted September 13, 2016, repealed § 7.594, which pertained to Pre-Application Requirements. See Code Comparative Table for complete derivation.

Sec. 7.595. Reserved.

Editor's note—Ord. No. 2016-62, § 10, adopted September 13, 2016, repealed § 7.595, which pertained to Valet Parking Services Requirements. See Code Comparative Table for complete derivation.

Sec. 7.596. Valet Parking Plan; Modification of Valet Parking Plan.

(1) *Valet Parking Plan.* The applicant for a Fixed Location Valet License shall submit a valet parking plan to the City which shall include the following:

(a) The days of the week and times of day when valet services will be provided, and the number of vehicles that are reasonably anticipated to make use of the service during the proposed times; and

(b) The location of a valet parking station which is either:

(i) On the premises of the licensee or on the premises of another business which is jointly applying for the license; or

(ii) On the public right-of-way at a City-designated or approved location; and

(c) A valet drop-off location not more than sixty (60) feet long and not less than thirty (30) feet long, located either:

(i) On the premises of the licensee or on the premises of another business which is jointly applying for the license; or

(ii) On the public right-of-way at a City-designated or approved location; and

(d) A valet parking lot or lots or other lawful location within a one (1) mile radius of the valet service location which holds a valid parking facility license as authorized by this Code and is either:

(i) Located on the premises of the licensee or on the premises of another business jointly applying for the license; or

(ii) Located on some other real property on which the licensee or valet company business has a written lease or agreement licensing the licensee to utilize the real property as a valet parking lot on the days of the week and at the times of day that the licensee proposes to operate the valet services; and

(e) The route that will be driven to and from the valet service location to the valet parking lot when providing valet services; and

(f) The number of valet parking attendants that the Valet Company will be providing for the operation of the valet parking location; and

(g) Any proposed conditions, terms, requirements, or limitations on the parking plan to protect public health, safety or welfare; and

(h) A signed certificate from the valet company contracted for service showing that the parking plan has been reviewed and will be adhered to by the company and its employees.

(2) *Rejection of Valet Parking Plan.* A valet parking plan may be rejected by the City Clerk for any reason deemed necessary by the Clerk for the lawful administration of the Chapter, including but not limited to the following:

(a) The valet parking plan does not contain or meet one (1) or more of the requirements of this Chapter; or

(b) The applicant has not submitted sufficient information or documentation for the City to determine whether the valet parking plan meets the requirements of this article; or

(c) The provision of valet parking services at the valet location in the manner shown in the valet parking plan is likely to cause or encourage violations of federal, state or City laws, ordinances, rules or regulations or to cause unreasonable traffic congestion, unreasonable hazards to pedestrians, vehicles, valet customers or valet attendants, or other unreasonable or unnecessary threats to public health, safety, or welfare.

(d) If a parking plan is rejected an applicant may make alterations to the plan as recommended by the City and resubmit the plan without penalty.

(3) *Conditional Approval of Valet Parking Plan.*

(a) Parking plans may be approved with terms, conditions and restrictions that may be necessary or advisable to protect public health, safety, welfare or convenience. In the event that a parking plan is approved with conditions, limitations, and restrictions these shall be provided in writing along with the issued license.

(b) The applicant shall have the right to contest the validity of such conditions, terms, limitations, and restrictions in an informal administrative hearing before the City Manager or the City Manager's designee within twenty-one (21) days of the issuance of the conditional license. A request for such an appeal shall be filed in writing with the City Clerk.

(4) *Modification of Valet Parking Plan.* Any licensee may apply to the City for a modification of the valet parking plan approved at the time the licensee's license was issued. Such an application for a modification shall be processed as provided for in this Chapter. Any approved modification of the valet parking plan shall be in writing and shall become a condition of the license. Modifications to the parking plan will be submitted for review by the required departments before changes are made."
(Ord. No. 2002-11, § 1, 2-26-02; Ord. No. 2016-63, § 11, 9-13-16)

Sec. 7.597. Terms of the License.

(1) Every license shall be issued in writing and shall be valid for the City license year in which it is granted.

(2) Every license shall be issued to a specific licensee for a specific location, and shall not be valid for any other location.

(3) Every license includes the contents, terms, conditions, restrictions and limitations of the valet parking plan approved at the time the license is issued, or as modified in writing by the City after issuance, and they shall be conditions of the license. The City Clerk may impose any additional term, condition, requirement, or limitation on any licensee license that the City Clerk may determine is necessary to protect public health, safety, welfare or convenience.

(4) The issuance of a license under this article does not grant the licensee any right, license, franchise, or property right in any part of the public right-of-way under the license itself or

under the terms of any revocable approval for use of the public right-of-way issued or utilized in connection with such license. The City and any of its police officers or identified employees may require the licensee to temporarily or permanently suspend its valet parking operation, the use of its valet drop-off location, or remove its valet parking station or valet parking sign from a part or all of the public right-of-way in order to protect public safety, to facilitate special transportation needs, to license construction, for parades and other special events, or for other public purposes.
(Ord. No. 2002-11, § 1, 2-26-02; Ord. No. 2016-63, § 12, 9-13-16)

Sec. 7.598. Suspension or Revocation of License and Administrative Fines.

(a) In addition to any grounds for suspension, revocation or denial set out elsewhere in this Code, the following shall be grounds for suspension, revocation or denial of a license provided for in this Chapter:

(1) Any false or misleading statement of material fact on an application for a license or to any City employee enforcing this article or conducting an investigation pursuant to the provisions of this article; or

(2) The commission of any act prohibited under this article or the failure to perform any act required under this article by the licensee or an employee of the licensee, or the aiding, abetting, authorizing, counseling or permitting of any such commission or omission; or

(3) Violation of any term, condition or limitation on a license or authorizing or permitting another to commit such a violation, or

(4) Committing any crime involving violence or theft or the commission of any such act by a person employed by the licensee;

(b) In addition to or in the alternative to any suspension, revocation, or administrative fine provided in this section, the City Clerk may impose new or additional terms, requirements, conditions, or limitations on any license issued under this article.

(c) For purpose of this Chapter and the suspension, revocation or denial of any licensee, or the imposition of any new terms, conditions, limitations, or restrictions on such license, any act or omission of a valet attendant or other employee that occurs in the course of his or her employment as a valet attendant or employee of the licensee shall be conclusively imputed to the licensee.
(Ord. No. 2002-11, § 1, 2-26-02)

Sec. 7.599. Penalty.

(1) A violation of this Chapter shall be a municipal civil infraction punishable by a fine as established in Chapter 170 of the City Code.

(2) A civil infraction citation for a violation for which this Chapter provides joint and several liability between the licensee and the employee shall be issued against the licensee only.

(3) A fourth offense shall be a misdemeanor punishable by a fine of up to five hundred dollars ($500.00), or imprisonment for up to ninety (90) days, or both such fines and imprisonment.

(4) A civil infraction citation for any violation set forth in this Chapter may be issued by any Police Officer, Police Recruit, Police Cadet, Police Intern, or other authorized City employee.
(Ord. No. 2017-47, § 4, 9-12-17)

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Chapter 114

PEDICABS*

Sec. 7.601. Purpose.
Sec. 7.602. Definitions.
Sec. 7.603. Operating Regulations.
Sec. 7.604. Vehicle Regulations.
Sec. 7.605. Application For Operating Permit.
Sec. 7.606. Reserved.
Sec. 7.607. Pedicab Identification Number and Decal.
Sec. 7.608. Fees.
Sec. 7.609. Grounds For Denial, Suspension or Revocation of License.
Sec. 7.610. Reserved.
Sec. 7.611. Preliminary Breath Test.
Sec. 7.612. Penalty.

*__Editor's note—__Ord. No. 2018-30, § 1, adopted June 5, 2018, repealed the former chapter 114, §§ 7.601—7.612, and enacted a new chapter 114 as set out herein. The former chapter 114 pertained to similar subject matter. See Code Comparative Table for complete derivation.

Sec. 7.601. Purpose.

The transportation of persons by means of pedicabs is a matter closely affecting the public interest. The public interest requires that pedicabs be fit for their intended purpose and that the safety and welfare of passengers be protected in the operation of pedicabs and pedicab companies. (Ord. No. 2018-30, § 1, 6-5-18)

Sec. 7.602. Definitions.

[The following words, terms and phrases, when used in this Chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:]

(1) *Pedicab* means a multi-wheeled passenger vehicle that is moved by human power that is pulled, pushed or otherwise propelled by a person, which is used in the movement of passenger(s) on public right-of-way and shall include, but not be limited to, cycle-rickshaws, cyclos, velotaxis, trishaws, pedal pubs, biketaxis and any other pushcart or rickshaw-type vehicle or non-motorized passenger vehicle.

(2) *Pedicab Owner* means a person who is the owner of a pedicab or a proprietor of a pedicab business who supplies pedicabs to others to operate as independent contractors or employees.

(3) *Pedicab Operator* means any person who operates a pedicab.

(4) *City Manager* means the City Manager of the City of Grand Rapids or the City Manager's authorized subordinate as provided for in Section 1.9 of this Code.

(5) *Darkness* means any time from one-half (½) hour after sunset to one-half (½) hour before sunrise or any time when visibility is obstructed by elements such as fog, rain or snow.

(Ord. No. 2018-30, § 1, 6-5-18)

Sec. 7.603. Operating Regulations.

No person shall drive or operate a pedicab for hire upon the streets, highways or thoroughfares of the City of Grand Rapids, and no person who owns or controls a pedicab shall permit it to be so driven or operated unless the pedicab company holds a valid and unrevoked Pedicab Company license issued under authority of Chapter and operates in compliance with all of the requirements of this Section.

(1) No person under the age of 18 shall operate a pedicab.

(2) No person shall drive or operate a pedicab unless that person has a current valid Michigan driver's license.

(a) It shall be unlawful for any pedicab operator whose driver's license is currently suspended, revoked or denied or who has not been issued a valid, current Michigan driver's license to operate a pedicab. The pedicab owner shall be jointly and severally liable with the pedicab operator for any violation of this provision. Each pedicab owner shall obtain a photocopy of each pedicab operator's driver's license prior to allowing the pedicab operator to operate the pedicab.

(b) Each pedicab owner shall maintain a continuously updated list of the names and residence addresses, dates of birth and current driver's license numbers of all its pedicab operators. Such list shall be maintained digitally and/or at the business address listed on the license application, and shall be exhibited on demand of any police officer or other properly identified City employee who requests it.

(3) No person shall operate, or cause to be operated, a pedicab in an unsafe condition.

(4) All pedicab operators are subject to all applicable traffic safety laws, rules, and regulations of the City of Grand Rapids and the State of Michigan.

(5) Pedicabs are not permitted to park on public property except as follows:

(a) The City Manager may designate a portion of a public street, alley, plaza, park or similar public place as "pedicab stand" for the parking of pedicabs.

(b) In a legal parking space, provided that the fee for occupying said space is paid, if applicable.

(c) A single pedicab may park temporarily at the curb only as long as necessary for passengers to board and exit the vehicle, time not to exceed existing loading zone time limits.

(d) In all cases, pedicabs shall be parked in a location that does not impede pedestrian or vehicular traffic.

(e) Pedicab operators shall not stop to load or unload passengers or their belongings in the intersection of any street, crosswalks or in any manner or other location that would be considered unsafe. No pedicab shall load or unload in any such manner that will in any way impede or interfere with the orderly flow of traffic on the streets.

(6) Fares must be agreed upon at the beginning of each trip.

(7) No person shall use or allow any pedicab to be used, for any illegal purpose. No person shall use or permit or allow any pedicab to be used in, or to aid or abet, any illegal act.

(8) No person shall operate or knowingly permit any other person to operate any pedicab under the influence of intoxicating liquor, any controlled, exhilarating or stupefying substance or of any combination of substances mentioned herein.

(9) No person shall operate a pedicab when the number of passengers exceeds the number of available seats. No person shall operate a pedicab unless all passengers are seated in a seat designed for that purpose and using the seatbelt provided for in the seat.

(10) Each pedicab owner shall adopt and operate a system for the collection, storage and return of personal property left in a pedicab.

(Ord. No. 2018-30, § 1, 6-5-18)

Sec. 7.604. Vehicle Regulations.

No person shall drive or operate a pedicab for hire upon the streets, highways or thoroughfares of the City of Grand Rapids, and no person who owns or controls a pedicab shall permit it to be so driven or operated unless the pedicab vehicle is in compliance with all of the requirements of this section.

(1) All pedicab owners must have each pedicab vehicle inspected by a bike mechanic prior to operation. All pedicab vehicles must be constructed for and have the structural integrity to support pedicab operations. Each pedicab vehicle must be equipped with the following:

(a) *Tires.* Tires shall be of a size appropriate for the pedicab with no mismatched tires. There shall be no cuts to the tire, localized worn spots that expose the ply, or visible tread wear indicators.

(b) *Operation bell or horn.* The pedicab shall be equipped with a fully operational bell or horn.

(c) *Brakes.* It shall be unlawful for a licensee to operate, or cause to be operated, a pedicab that is not equipped with front and rear braking system capable of being manipulated by the licensee or pedicab operator from his normal position of operation and is capable of causing a pedicab with full complement of permitted passengers to come to a complete stop within a distance of fifteen (15) feet from a speed of ten (10) miles per hour in a linear path of motion when each wheel of the pedicab is in contact

with the ground on dry, level, clean pavement. The braking system controlling the rear wheels shall be hydraulic or mechanical disc or drum brakes which are unaffected by rain or wet conditions.

(d) *Headlights, tail lights, mirrors, turn signals and other requirements.* Every pedicab shall be equipped with the operational equipment set forth in the subsections below:

i. A headlight capable of projecting a beam of white light for a distance at a minimum of three hundred (300) feet which shall be clearly visible during darkness and must be illuminated at all times during darkness.

ii. A side mounted mirror affixed to the pedicab to reflect to the pedicab operator a view of the street for a distance of at least two hundred (200) feet from the rear of the pedicab.

iii. A red tail light and brake light affixed to the rear of the pedicab which must be visible for a distance of at least five hundred (500) feet from the rear of the pedicab and must be illuminated at all times during darkness. Turn signals must be affixed to the front and rear of the vehicle.

iv. Reflectors placed on each wheel and at each corner of the body of the pedicab.

v. Any other equipment required to comply with all applicable federal and state laws.

vi. A pedicab must not have any cracks, broken or missing parts, or other visible damage. All wheels must be firmly attached to the hub of the vehicle and all springs, axles, and supporting structures of each pedicab vehicle must be intact.

(2) Each pedicab owner shall, at all times, keep each pedicab vehicle clean and free of refuse and in safe operating condition. Prior to the operation of any pedicab and at the beginning of each shift or each day of operation, the pedicab owner shall thoroughly inspect the pedicab for safe operating conditions. For any condition found then or at any other time that will prevent the safe operation of the pedicab, the owner shall immediately remove the pedicab from service and correct the condition before the pedicab is returned to service.

(3) Each pedicab owner shall at all times maintain a policy of liability insurance in the minimum amount of one million dollars ($1,000,000.00) for personal injuries, and property damage arising out of the permitted operations. The policy shall directly protect the City of Grand Rapids, its officers and employees and agents as additional named insureds, and shall provide that the insurance be primary insurance and that no other insurance purchased by the City will be called on to contribute to a loss covered by said policy. The policy shall further provide ten (10) days' notice of cancellation or material change to the City's designated agent. Prior approval of the City of Grand Rapids is required. Each owner and operator shall further agree to hold the City harmless for any liability or claim arising out of his or her operation that is not covered by the required insurance. Any deviation from the listed insurance coverage is subject to the approval of the City of Grand Rapids.

(4) If a pedicab is involved in a crash, the pedicab operator shall immediately notify the pedicab owner and the police department and remain at the scene until the crash is investigated by the police. The pedicab owner shall submit a full written report on the condition of the pedicab vehicle to the City Clerk's office within 72 hours after the occurrence. Before

operating the pedicab vehicle again, the pedicab owner shall have the vehicle re-inspected by a bike mechanic.

(Ord. No. 2018-30, § 1, 6-5-18)

Sec. 7.605. Application For Operating Permit.

(1) The operating permit application form shall be prescribed by the City.

(2) Any application that does not include all information requested by the application form or is not supported by the materials required by this Chapter shall be denied.

(3) The application form shall require the following information:

(a) The applicant's full name and residence address;

(b) The applicant's date of birth;

(c) The applicant's Michigan driver's license number; and

(d) Such other information as the City may require.

(4) The applicant shall provide the following material to complete the application;

(a) Valid Michigan driver's license;

(b) Two recent color passport-sized photographs;

(c) Such other material as the City may require.

(Ord. No. 2018-30, § 1, 6-5-18)

Sec. 7.606. Reserved.

Sec. 7.607. Pedicab Identification Number and Decal.

(1) It is unlawful for any owner to lease, rent or allow a pedicab to be operated for hire without first having obtained a decal issued by the City. The decal shall be affixed on the lower left rear side of the pedicab.

(Ord. No. 2018-30, § 1, 6-5-18)

Sec. 7.608. Fees.

The annual license fee shall be as specified in Chapter 92 of this Code.

(Ord. No. 2018-30, § 1, 6-5-18)

Sec. 7.609. Grounds For Denial, Suspension or Revocation of License.

Any license issued under this Chapter shall be subject to suspension or revocation by the City Clerk for violation of, or for committing, causing or permitting another to commit or cause a violation of any provision of federal or state law or this Code or for any grounds that would warrant the denial of such licenses in the first instance. Pedicab owners shall be jointly and severally responsible with the pedicab operators for any violation or any provision of federal or state law or this Code.

Prior to revocation of any license issued under this Chapter, the licensee shall be entitled to a hearing as provided for in Section 7.16 of Chapter 91 of this Code.

(Ord. No. 2018-30, § 1, 6-5-18)

Sec. 7.610. Reserved.

Sec. 7.611. Preliminary Breath Test.

A peace officer who has reasonable cause to believe that a person is or was operating a pedicab upon a public highway or other place open to the public or generally accessible to a pedicab, including an area designated for the parking of vehicles, and that the person by the consumption of alcoholic liquor may have affected his or her ability to operate a pedicab may require the person to submit to a preliminary chemical breath analysis. A pedicab operator who refuses to take or fails to properly take a preliminary chemical breath analysis as required by this Section is a violation of this Code. In this instance, the pedicab operator will cease operations and coordinate with the pedicab company owner to retrieve the vehicle or replace the operator.

(Ord. No. 2018-30, § 1, 6-5-18)

Sec. 7.612. Penalty.

(1) A violation of any provision of this Chapter shall, until the fourth such offense, constitute a Municipal Civil Infraction, which upon an admission or finding of responsibility shall result in fines established in Chapter 170 Municipal Civil Infractions of the City Code.

(2) A civil infraction citation or violation for which this Chapter provides joint and several liability between the operator and the owner shall be issued against the licensee only.

(3) A fourth offense shall be a misdemeanor punishable by a fine of up to $500.00, or imprisonment for up to ninety (90) days, or both such fines and imprisonment.
(Ord. No. 2018-30, § 1, 6-5-18)

Chapter 115

VIDEO SERVICE PROVIDER RIGHT-OF-WAY MANAGEMENT

Sec. 7.620. Purpose.
Sec. 7.621. Consistent Interpretation.
Sec. 7.622. Definitions.
Sec. 7.623. Applicability to Permittees.
Sec. 7.624. Contacts, Maps and Plans.
Sec. 7.625. Use of Public Right-of-Way.
Sec. 7.626. Indemnification.
Sec. 7.627. Insurance.
Sec. 7.628. Performance Bond or Letter of Credit.
Sec. 7.629. Removal.
Sec. 7.630. Other Items.
Sec. 7.631. Repealer.
Sec. 7.632. Effective Date.

Sec. 7.620. Purpose.

(1) Under the Uniform Video Services Local Franchise Act, Video Service Providers may obtain a franchise to provide Video Services in Municipality using a standardized, uniform form of franchise agreement established by the MPSC. This form includes the right to use the Public Right-of-Way to provide such service but does not contain right-of-way management and related provisions.

(2) Municipality's cable television consent agreement with its current Cable Operator predates the Uniform Video Services Local Franchise Act and has right-of-way management and related provisions. However, that Act states that as of January 1, 2007, "any provisions" of such an agreement "that are inconsistent with or in addition to" the standardized, uniform form of franchise agreement established by the MPSC "are unreasonable and unenforceable by the franchising entity."

(3) Telecommunications providers who obtain a standardized, uniform form of franchise agreement generally will have previously obtained from Municipality a permit under the Metro Act to construct and maintain their telecommunications facilities in the Public Right-of-Way. Such Metro Act Permits set forth the terms and conditions for such right-of-way usage, standard forms of such permits were agreed to in a collaborative process between municipalities and providers that was initiated by the MPSC, and such standard forms have since been approved by the legislature and the MPSC.

(4) Because telecommunications providers typically provide Video Services over combined video and telecommunications facilities, such Metro Act Permits generally provide adequate Public Right-of-Way related protections for Municipality and the public when such providers are providing Video Services.

(5) Other Video Service Providers, in particular new providers or existing Cable Operators, may not have a Metro Act Permit issued by Municipality.

(6) The Uniform Video Services Local Franchise Act and the standardized, uniform franchise agreement require Video Service Providers with such an agreement to comply with all valid and enforceable local regulations regarding the use and occupation of the Public Right-of-Way in the delivery of Video Services, including the police powers of the franchising entity, and makes such right-of-way usage subject to the laws of the State of Michigan and the police powers of the franchising entity.

(7) The Uniform Video Services Local Franchise Act and the standardized, uniform franchise agreement state that franchising entities shall provide Video Service Providers with open, comparable, nondiscriminatory and competitively neutral access to the Public Right-of-Way, and may not discriminate against a Video Service Provider for the authorization or placement of a Video Service or communications network in the Public Right-of-Way.

(8) The Michigan Constitution reserves reasonable control of their highways, streets, alleys and public places to local units of government, which may exercise such authority through the use of their police powers.

(9) The purpose of this Chapter is to promote and protect the public health, safety and welfare and exercise reasonable control over the Public Right-of-Way by regulating the use and occupation of such rights-of-way by Video Service Providers who lack a Metro Act Permit from Municipality. This Chapter does so by setting forth terms and conditions for such usage and occupation from the forms of Metro Act permit approved by the MPSC and approved by the legislature in Section 6(1) of the Metro Act, thus providing open, comparable, nondiscriminatory, and competitively neutral access to the Public Right-of-Way and not discriminating against a Video Service Provider for the authorization or placement of a Video Service or communications network in Public Right-of-Way.
(Ord. No. 2008-03, § 1, 2-19-08)

Sec. 7.621. Consistent Interpretation.

This Chapter shall be interpreted and applied so as to be consistent with the Metro Act and

corresponding provisions of the forms of Metro Act permit approved by the MPSC, including applicable MPSC, Metro Authority and court decisions and determinations relating to same.
(Ord. No. 2008-03, § 1, 2-19-08)

Sec. 7.622. Definitions.

The following definitions apply to this Chapter:

(1) *Act* means the Uniform Video Services Local Franchise Act, being Act 480 of the Public Acts of 2006, MCL 484.3301 and following, as amended from time to time.

(2) *Cable Operator* shall have the same meaning as in the Act.

(3) *Claims* shall have the meaning set forth in Section 7.626(1).

(4) *Facilities* means the lines, equipment and other facilities of a Permittee which use or occupy the Public Right-of-Way in the delivery of Video Services in Municipality.

(5) *Franchise Agreement* means the franchise agreement entered into or possessed by a Video Service Provider with Municipality as required by Section 3(1) of the Act, if it is the standardized, uniform form of franchise agreement established by the MPSC.

(6) *Manager* means Municipality's City Manager or his or her designee.

(7) *Metro Act* means the Metropolitan Extension Telecommunications Rights-of-Way Oversight Act, being Act No. 48 of the Public Acts of 2002, MCL 484.3101 and following.

(8) *Metro Act Permit* means a permit to use the Public Right-of-Way issued by Municipality under City Code Chapter 109, which implements the Metro Act, after a provider's application for same to Municipality as set forth in such Chapter.

(9) *Metro Authority* shall have the same meaning as "Authority" in the Metro Act.

(10) *MPSC* means the Michigan Public Service Commission, and shall have the same meaning as the term "Commission" in the Act and the Metro Act.

(11) *Municipality* means City of Grand Rapids.

(12) *Permittee* means a Video Service Provider without a currently valid Metro Act Permit but with either (a) a Pre-Existing Agreement, or (b) a currently valid Franchise Agreement.

(12.1) Upon applying to Municipality for and then obtaining a Metro Act Permit from Municipality, a Video Service Provider is not a Permittee and is no longer required to comply with this Chapter. A Video Service Provider is also not a Permittee and is not required to comply with this Chapter if it and Municipality enter into a voluntary franchise agreement as described in Section 7.630(2) of this Chapter.

(13) *Person* means an individual, corporation, association, partnership, governmental entity, or any other legal entity.

(14) *Pre-Existing Agreement* means a cable television consent agreement predating the effective date of the Act, January 1, 2007, which has not expired or been terminated.

(15) *Public Right-of-Way* shall have the same meaning as in the Act.

(16) *Street Construction* and *Street Resurfacing* shall have the meanings set forth in Section 7.625(9) of this Chapter.

(17) *Video Service* shall have the same meaning as in the Act.

(18) *Video Service Provider* shall have the same meaning as in the Act, and shall include an "incumbent video provider" as referred to in Section 5(2) of the Act.

(Ord. No. 2008-03, § 1, 2-19-08)

Sec. 7.623. Applicability to Permittees.

(1) *Compliance, Insurance Exception.* All Permittees shall comply with this Chapter, except that a Permittee need not comply with the insurance provisions of Section 7.627 of this Chapter if it is maintaining the insurance required by Sec-

tion II.J of the standardized, uniform form of franchise agreement established by the MPSC (which in accordance with the Act states that incumbent video providers shall comply with the terms which provide insurance for right-of-way related activities that are contained in its last cable franchise or consent agreement from the franchising entity entered into before the effective date of the Act).
(Ord. No. 2008-03, § 1, 2-19-08)

Sec. 7.624. Contacts, Maps and Plans.

(1) *Permittee Contacts.* Permittee shall provide the Manager with the names, addresses and the like for engineering and construction related information for Permittee and its Facilities as follows:

(1.1) The address, e-mail address, phone number and contact person (title or name) at Permittee's local office (in or near Municipality).

(1.2) If Permittee's engineering drawings, as-built plans and related records for the Facilities will not be located at the preceding local office, the location address, phone number and contact person (title or department) for them.

(1.3) The name, title, address, e-mail address and telephone numbers of Permittee's engineering contact person(s) with responsibility for the design, plans and construction of the Facilities.

(1.4) The address, phone number and contact person (title or department) at Permittee's home office/regional office with responsibility for engineering and construction related aspects of the Facilities.

(1.5) Permittee shall at all times provide Manager with the phone number at which a live representative of Permittee (not voice mail) can be reached twenty-four (24) hours a day, seven (7) days a week, in the event of a public emergency.

(1.6) Permittee shall notify Municipality in writing pursuant to the notice provisions of its Franchise Agreement or Pre-Existing Agreement (whichever is then in effect) of any changes in the preceding information.

(2) *Route Maps.* Within ninety (90) days after the substantial completion of construction of new Facilities in Municipality, Permittee shall submit route maps showing the location of the Facilities to Municipality, in the same manner and subject to the same provisions as apply to telecommunications providers under Section 6(7) and 6(8) of the Metro Act, MCL 484.3106(7) and (8).

(3) *As-Built Records.* Permittee, without expense to Municipality, shall, upon forty-eight (48) hours notice, give Municipality access to all "as-built" maps, records, plans and specifications showing the Facilities or portions thereof in the Public Right-of-Way. Upon request by Municipality, Permittee shall inform Municipality as soon as reasonably possible of any changes from previously supplied maps, records, or plans and shall mark up maps provided by Municipality so as to show the location of the Facilities.
(Ord. No. 2008-03, § 1, 2-19-08)

Sec. 7.625. Use of Public Right-of-Way.

(1) *[Reserved].*

(2) *Overlashing.* Permittee shall not allow the wires or any other facilities of a third party to be overlashed to Permittee's Facilities without Municipality's prior written consent. Municipality's right to withhold written consent is subject to the authority of the MPSC under Section 361 of the Michigan Telecommunications Act, MCL § 484.2361.

(3) *No Burden on Public Right-of-Way.* Permittee, its contractors, subcontractors, and the Facilities shall not unduly burden or interfere with the present or future use of any of the Public Right-of-Way. Permittee's aerial cables and wires shall be suspended so as to not endanger or injure persons or property in or about the Public Right-of-Way. If Municipality reasonably determines that any portion of the Facilities constitutes an undue burden or interference, due to changed circumstances, Permittee, at its sole expense, shall modify the Facilities or take such other actions as Municipality may determine is in the

public interest to remove or alleviate the burden, and Permittee shall do so within a reasonable time period. Municipality shall attempt to require all occupants of a pole or conduit whose facilities are a burden to remove or alleviate the burden concurrently.

(4) *No Priority.* This ordinance does not establish any priority of use of the Public Right-of-Way by Permittee over any present or future permittees or parties having agreements with Municipality or franchises for such use. In the event of any dispute as to the priority of use of the Public Right-of-Way, the first priority shall be to the public generally, the second priority to Municipality, the third priority to the State of Michigan and its political subdivisions in the performance of their various functions, and thereafter as between other permit, agreement or franchise holders, as determined (except as otherwise provided by law) by Municipality in the exercise of its powers, including the police power and other powers reserved to and conferred on it by the State of Michigan.

(5) *Restoration of Property.* Permittee, its contractors and subcontractors shall immediately (subject to seasonal work restrictions) restore, at Permittee's sole expense, in a manner approved by Municipality, any portion of the Public Right-of-Way that is in any way disturbed, damaged, or injured by the construction, installation, operation, maintenance or removal of the Facilities to a reasonably equivalent (or, at Permittee's option, better) condition as that which existed prior to the disturbance. In the event that Permittee, its contractors or subcontractors fail to make such repair within a reasonable time, Municipality may make the repair and Permittee shall pay the costs Municipality incurred for such repair.

(6) *Marking.* Permittee shall mark its Facilities installed after the effective date of this ordinance as follows: Aerial portions of the Facilities shall be marked with a marker on Permittee's lines on alternate poles which shall state Permittee's name and provide a toll-free number to call for assistance. Direct buried underground portions of the Facilities shall have (1) a conducting wire placed in the ground at least several inches above Permittee's cable (if such cable is nonconductive); (2) at least several inches above that, a continuous colored tape with a statement to the effect that there is buried cable beneath; and (3) stakes or other appropriate above ground markers with Permittee's name and a toll-free number indicating that there is buried cable below. Bored underground portions of the Facilities shall have a conducting wire at the same depth as the cable and shall not be required to provide the continuous colored tape. Portions of the Facilities located in conduit, including conduit of others used by Permittee, shall be marked at its entrance into and exit from each manhole and handhole with Permittee's name and a toll-free telephone number.

(7) *Tree Trimming.* Permittee may trim trees upon and overhanging the Public Right-of-Way so as to prevent the branches of such trees from coming into contact with the Facilities, consistent with any standards adopted by Municipality. Permittee shall dispose of all trimmed materials. Permittee shall minimize the trimming of trees to that essential to maintain the integrity of the Facilities. Except in emergencies, all trimming of trees in the Public Right-of-Way shall have the advance approval of Manager.

(8) *Installation and Maintenance.* The construction and installation of the Facilities shall be performed pursuant to plans approved by Municipality. The open cut of any Public Right-of-Way shall be coordinated with the Manager or Manager's designee. Permittee shall install and maintain the Facilities in a reasonably safe condition. If the existing poles in the Public Right-of-Way are overburdened or unavailable for Permittee's use, or the facilities of all users of the poles are required to go underground then Permittee shall, at its expense, place such portion of its Facilities underground, unless Municipality approves an alternate location. Permittee may perform maintenance on the Facilities without prior approval of Municipality, provided that Permittee shall obtain any and all permits required by Municipality in the event that any maintenance will disturb or block vehicular traffic or are otherwise required by Municipality.

(9) *Pavement Cut Coordination.* Permittee shall coordinate its construction and all other work in the Public Right-of-Way with Municipality's pro-

gram for street construction and rebuilding (collectively "Street Construction") and its program for street repaving and resurfacing (except seal coating and patching) (collectively, "Street Resurfacing").

(9.1) The goals of such coordination shall be to encourage Permittee to conduct all work in the Public Right-of-Way in conjunction with or immediately prior to any Street Construction or Street Resurfacing planned by Municipality.

(10) *Compliance with Laws.* Permittee shall comply with all valid and enforceable federal and state statutes and regulations; and all valid and enforceable local regulations regarding the use and occupation of the Public Right-of-Way, including the police powers of Municipality; regarding the construction, installation, and maintenance of its Facilities, now in force or which hereafter may be promulgated. Before any installation is commenced, Permittee shall secure all necessary permits, licenses and approvals from Municipality or other governmental entity as may be required by law, including, without limitation, all utility line permits and highway permits. Municipality shall not unreasonably delay or deny issuance of any such permits, licenses or approvals. Permittee shall comply in all respects with applicable codes and industry standards, including but not limited to the National Electrical Safety Code (latest edition adopted by Michigan Public Service Commission) and the National Electric Code (latest edition). Permittee shall comply with all zoning and land use ordinances and historic preservation ordinances as may exist or may hereafter be amended. This section does not constitute a waiver of Permittee's right to challenge laws, statutes, ordinances, rules or regulations now in force or established in the future.

(11) *Street Vacation.* If Municipality vacates or consents to the vacation of Public Right-of-Way within its jurisdiction, and such vacation necessitates the removal and relocation of Permittee's Facilities in the vacated Public Right-of-Way, Permittee shall consent to the vacation and remove its Facilities at its sole cost and expense when ordered to do so by Municipality or a court of competent jurisdiction. Permittee shall relocate its Facilities to such alternate route as Municipality and Permittee mutually agree, applying reasonable engineering standards.

(12) *Relocation.* If Municipality requests Permittee to relocate, protect, support, disconnect, or remove its Facilities because of street or utility work, or other public projects, Permittee shall relocate, protect, support, disconnect, or remove its Facilities, at its sole cost and expense, including where necessary to such alternate route as Municipality and Permittee mutually agree, applying reasonable engineering standards. The work shall be completed within a reasonable time period.

(13) *Public Emergency.* Municipality shall have the right to sever, disrupt, dig-up or otherwise destroy Facilities of Permittee if such action is necessary because of a public emergency. If reasonable to do so under the circumstances, Municipality shall attempt to provide notice to Permittee. Public emergency shall be any condition which poses an immediate threat to life, health, or property caused by any natural or man-made disaster, including, but not limited to, storms, floods, fire, accidents, explosions, water main breaks, hazardous material spills, etc. Permittee shall be responsible for repair at its sole cost and expense of any of its Facilities damaged pursuant to any such action taken by Municipality.

(14) *Miss Dig.* If eligible to join, Permittee shall subscribe to and be a member of "MISS DIG," the association of utilities formed pursuant to Act 53 of the Public Acts of 1974, as amended, MCL § 460.701 et seq., and shall conduct its business in conformance with the statutory provisions and regulations promulgated thereunder.

(15) *Underground Relocation.* If Permittee has its Facilities on poles of Consumers Energy, Detroit Edison or another electric or telecommunications provider and Consumers Energy, Detroit Edison or such other electric or telecommunications provider relocates its system underground, then Permittee shall relocate its Facilities underground in the same location at Permittee's sole cost and expense.

(16) *Identification.* All personnel of Permittee and its contractors or subcontractors who have as part of their normal duties contact with the general public shall wear on their clothing a clearly visible identification card bearing Permittee's name, their name and photograph. Permittee shall account for all identification cards at all times. Every service vehicle of Permittee and its contractors or subcontractors shall be clearly identified as such to the public, such as by a magnetic sign with Permittee's name and telephone number.
(Ord. No. 2008-03, § 1, 2-19-08)

Sec. 7.626. Indemnification.

(1) *Indemnity.* Permittee shall defend, indemnify, protect, and hold harmless Municipality, its officers, agents, employees, elected and appointed officials, departments, boards, and commissions from any and all claims, losses, liabilities, causes of action, demands, judgments, decrees, proceedings, and expenses of any nature (collectively "Claims") (including, without limitation, attorneys' fees) arising out of or resulting from the acts or omissions of Permittee, its officers, agents, employees, contractors, successors, or assigns, but only to the extent such acts or omissions are related to Permittee's use of or installation of Facilities in the Public Right-of-Way and only to the extent of the fault or responsibility of Permittee, its officers, agents, employees, contractors, successors and assigns.

(2) *Notice, Cooperation.* Municipality shall notify Permittee promptly in writing of any such Claims and the method and means proposed by Municipality for defending or satisfying any such Claims. Municipality shall cooperate with Permittee in every reasonable way to facilitate the defense of any such Claims. Municipality shall consult with Permittee respecting the defense and satisfaction of such Claims, including the selection and direction of legal counsel.

(3) *Settlement.* Municipality shall not settle any Claim subject to indemnification by Permittee without the advance written consent of Permittee, which consent shall not be unreasonably withheld. Permittee shall have the right to defend or settle, at its own expense, any Claim against Municipality for which Permittee is responsible hereunder.
(Ord. No. 2008-03, § 1, 2-19-08)

Sec. 7.627. Insurance.

(1) *Coverage Required.* Prior to beginning any construction in or installation of Permittee's Facilities in the Public Right-of-Way, Permittee shall obtain insurance as set forth below and file certificates evidencing same with Municipality. Such insurance shall be maintained in full force and effect until the end of the term of its Franchise Agreement or Pre-Existing Agreement, (whichever is then in effect). In the alternative, Permittee may satisfy this requirement through a program of self-insurance, acceptable to Municipality, by providing reasonable evidence of its financial resources to Municipality. Municipality's acceptance of such self-insurance shall not be unreasonably withheld.

(1.1) Commercial general liability insurance, including Completed Operations Liability, Independent Contractors Liability, Contractual Liability coverage, railroad protective coverage and coverage for property damage from perils of explosion, collapse or damage to underground utilities, commonly known as XCU coverage, in an amount not less than five million dollars ($5,000,000.00).

(1.2) Liability insurance for sudden and accidental environmental contamination with minimum limits of five hundred thousand dollars ($500,000.00) and providing coverage for claims discovered within three (3) years after the term of the policy. Pursuant to the 2006 MPSC decision in Case U-14720, Permittee need not comply with the preceding sentence until such time after the effective date of this ordinance that it decides to place any new or existing Facilities underground within the Public Right-of-Way in Municipality.

(1.3) Automobile liability insurance in an amount not less than one million dollars ($1,000,000.00).

(1.4) Workers' compensation and employer's liability insurance with statutory limits, and any applicable Federal insurance of a similar nature.

(1.5) The coverage amounts set forth above may be met by a combination of underlying (primary) and umbrella policies so long as in combination the limits equal or exceed those stated. If more than one (1) insurance policy is purchased to provide the coverage amounts set forth above, then all policies providing coverage limits excess to the primary policy shall provide drop down coverage to the first dollar of coverage and other contractual obligations of the primary policy, should the primary policy carrier not be able to perform any of its contractual obligations or not be collectible for any of its coverages for any reason during the term of the Franchise Agreement or Pre-Existing Agreement (whichever is then in effect), or (when longer) for as long as coverage could have been available pursuant to the terms and conditions of the primary policy.

(2) *Additional Insured.* Municipality shall be named as an additional insured on all policies (other than worker's compensation and employer's liability). All insurance policies shall provide that they shall not be canceled, modified or not renewed unless the insurance carrier provides thirty (30) days prior written notice to Municipality. Permittee shall annually provide Municipality with a certificate of insurance evidencing such coverage. All insurance policies (other than environmental contamination, workers' compensation and employer's liability insurance) shall be written on an occurrence basis and not on a claims made basis.

(3) *Qualified Insurers.* All insurance shall be issued by insurance carriers licensed to do business by the State of Michigan or by surplus line carriers on the Michigan Insurance Commission approved list of companies qualified to do business in Michigan. All insurance and surplus line carriers shall be rated A+ or better by A.M. Best Company.

(4) *Deductibles.* If the insurance policies required by this ordinance are written with retainages or deductibles in excess of fifty thousand dollars ($50,000.00), they shall be approved by Manager in advance in writing. Permittee shall indemnify and save harmless Municipality from and against the payment of any deductible and from the payment of any premium on any insurance policy required to be furnished hereunder.

(5) *Contractors.* Permittee's contractors and subcontractors working in the Public Right-of-Way shall carry in full force and effect commercial general liability, environmental contamination liability, automobile liability and workers' compensation and employer liability insurance which complies with all terms of this Section. In the alternative, Permittee, at its expense, may provide such coverages for any or all its contractors or subcontractors (such as by adding them to Permittee's policies).

(6) *Insurance Primary.* Permittee's insurance coverage shall be primary insurance with respect to Municipality, its officers, agents, employees, elected and appointed officials, departments, boards, and commissions (collectively "them"). Any insurance or self-insurance maintained by any of them shall be in excess of Permittee's insurance and shall not contribute to it (where "insurance or self-insurance maintained by any of them" includes any contract or agreement providing any type of indemnification or defense obligation provided to, or for the benefit of them, from any source, and includes any self-insurance program or policy, or self-insured retention or deductible by, for or on behalf of them).
(Ord. No. 2008-03, § 1, 2-19-08)

Sec. 7.628. Performance Bond or Letter of Credit.

(1) *Municipal Requirement.* Municipality may require Permittee to post a bond (or letter of credit), in the amount provided in Section 15(3) of the Metro Act, as amended, MCL § 484.3115(3).
(Ord. No. 2008-03, § 1, 2-19-08)

Sec. 7.629. Removal.

(1) *Removal; Underground.* As soon as practicable after the later of the term of its Franchise Agreement or Pre-Existing Agreement expires,

Permittee or its successors and assigns shall remove any underground cable or other portions of Permittee's Facilities from the Public Right-of-Way which has been installed in such a manner that it can be removed without trenching or other opening of the Public Right-of-Way. Permittee shall not remove any underground cable or other portions of the Facilities which requires trenching or other opening of the Public Right-of-Way except with the prior written approval of Manager. All removals shall be at Permittee's sole cost and expense. For purposes of this sub-section, "cable" means any wire, coaxial cable, fiber optic cable, feed wire or pull wire.

(2) *Removal; Above Ground.* As soon as practicable after the later of the expiration of the term of its Franchise Agreement or Pre-Existing Agreement, Permittee, or its successor or assigns at its sole cost and expense, shall, unless waived in writing by Manager, remove from the Public Right-of-Way all above ground elements of its Facilities, including but not limited to poles, pedestal-mounted terminal boxes, and lines attached to or suspended from poles.

(3) *Schedule.* The schedule and timing of removal shall be subject to approval by Manager. Unless extended by Manager, removal shall be completed not later than twelve (12) months following the expiration of the later of the term of a Franchise Agreement or Pre-Existing Agreement. Portions of Permittee's Facilities in the Public Right-of-Way that are not removed within such time period shall be deemed abandoned and, at the option of Municipality exercised by written notice to Permittee at the address provided for in the Franchise Agreement or Pre-Existing Agreement (whichever was last in effect), title to the portions described in such notice shall vest in Municipality.
(Ord. No. 2008-03, § 1, 2-19-08)

Sec. 7.630. Other Items.

(1) *Duties.* Permittees shall faithfully perform all duties required by this Chapter.

(2) *Different Terms.* The Act allows local units of government and Video Service Providers to enter into voluntary franchise agreements that include terms and conditions which are different from those required under the Act or which are different from those in the standardized, uniform form of franchise agreement established by the MPSC. The Metro Act allows municipalities and providers to mutually agree to Metro Act Permit terms differing from those in the standard forms of Metro Act permit approved by the MPSC. Current or prospective Permittees who desire terms different from those in this Chapter, as applied to them, should request such a voluntary franchise agreement or a mutually agreed to Metro Act Permit from Municipality.

(3) *Interpretation and Severability.* The provisions of this Chapter shall be liberally construed to protect and preserve the peace, health, safety and welfare of the public, and should any provision or section of this Chapter be held unconstitutional, invalid, overbroad or otherwise unenforceable, such determination/holding shall not be construed as affecting the validity of any of the remaining conditions of this Chapter. If any provision in this Chapter is found to be partially overbroad, unenforceable, or invalid, Permittee and Municipality may nevertheless enforce such provision to the extent permitted under applicable law.

(4) *Violations.* A Permittee who violates any provision of this Chapter is responsible for a municipal civil infraction, and shall be subject to such civil infraction fines and costs as provided in Chapter 170 of the Code of the City of Grand Rapids. Nothing in this Section shall be construed to limit the remedies available to Municipality in the event of a violation by a Permittee of this Chapter.

(5) *Authorized Officials.* The Manager, which includes his or her designee, is hereby designated as the authorized official of Municipality to issue municipal civil infraction citations (directing alleged violators to appear in court) or municipal civil infraction violation notices (directing alleged violators to appear at the Municipal Ordinance Violations Bureau) for violations of this Chapter, as provided in Chapter 170 of the Code of the City of Grand Rapids.
(Ord. No. 2008-03, § 1, 2-19-08)

Sec. 7.631. Repealer.

All ordinances, resolutions or rules, parts of ordinances, resolutions or rules inconsistent with the provisions hereof are hereby repealed.
(Ord. No. 2008-03, § 1, 2-19-08)

Sec. 7.632. Effective Date.

This ordinance shall take effect on the 20th day of March, 2008, unless given immediate effect.
(Ord. No. 2008-03, § 1, 2-19-08)

Chapter 116

HOME OCCUPATION

Sec. 7.640. Purpose.
Sec. 7.641. Definitions.
Sec. 7.642. Home Occupation Fire Safety Requirements.
Sec. 7.643. Home Occupation License Required.
Sec. 7.644. Application for Home Occupation License.
Sec. 7.645. License Fee.
Sec. 7.646. Issuance of License.
Sec. 7.647. Transfer Prohibited.
Sec. 7.648. Grounds for Denial, Suspension or Revocation of a Home Occupation License.
Sec. 7.649. Compliance with Other Laws.
Sec. 7.650. Conflicts with Other Laws or Regulations.
Sec. 7.651. No Immunity or Indemnification from Federal Law.

Sec. 7.640. Purpose.

The services offered through a home occupation are a matter closely affecting the public interest. The public interest requires that home occupations be operated properly and in a safe, fair, honest, and competent manner by qualified persons. The public interest further requires that home occupations be clearly incidental to or secondary to the residential use of the dwelling. Home Occupations are divided into three classes as follows.
(Ord. No. 2010-32, § 1, 6-22-10; Ord. No. 2013-75, § 1, 11-19-13; Ord. No. 2014-66, § 1, 8-26-14)

Sec. 7.641. Definitions.

Home Occupation—Class A. An accessory use with minimal to no impact on the surrounding neighborhood. The use is personal to the applicant, is not transferable to any other person, and does not apply to any other business of the applicant. Class A is also intended to allow businesses that rely solely on electronic or off-premise transactions. Types of business in this category include, but are not necessarily limited to:

(a) Business where all work and communication is conducted over the internet, telephone, and/or electronic mail.

(b) Business where a service is provided to a client or customer, with no client or customer visitation to the business location. In these instances, the business location is used solely for bookkeeping and electronic or telephone communication with clients and customers.

(c) Business where the owner produces a product at the business location and offers it for sale or service over the internet or transports the product(s) to off-premise merchants, trade shows, flea markets, and the like for sale or service.

(d) Business where an off-premises service, which includes but is not limited to, clerical, financial, cosmetic, kitchenware, jewelry, fine art, crafts, music instructor, tutoring of an individual, and clothing in nature is provided to a customer.

Home Occupation—Class B. An accessory use which may have potentially deleterious effects to the neighborhood or community and therefore require an additional level of administrative review. This is a conditional use intended to allow businesses that generate limited quantities of customer visitation and/or merchandise and service deliveries. These businesses are required to comply with other codes, i.e. Zoning, Building, Housing, Fire, Sales Tax, Income Tax, Hotel and Motel Tax, and other local or State codes and ordinances for home occupations. The business is personal to the applicant, and is not transferable to any other person, and does not apply to any other business of the applicant. Types in this category include, but are not necessarily limited to:

(a) Business where the design, preparation, production, storage, or distribution of goods and/or services takes place at the business location.

(b) Business where not more than one-fourth (¼) of the living area of the dwelling unit and less than one-half (½) of the living area of the main floor shall be devoted to the home occupation.

(c) Business where chemicals, chemical compounds, fertilizer, combustible materials, corrosive, butane, nitrous oxide or flammable products are used.

(d) Business where a service, which includes but is not limited to, hydroponic growing operation, taxidermy, medical marihuana caregiver, and agricultural activities in nature is provided to a customer.

(e) Business where transients are accommodated for sleeping or lodging purposes under a one-room rental, as defined in Chapter 61 of this Code.

(f) No more than two (2) adult customers, clients, students, or patients shall be on the premises at any one time.

Home Occupation—Class C. An accessory use which may have potentially deleterious effects to the neighborhood or community and therefore require an additional level of administrative review. This is a conditional use intended to

allow businesses that involve overnight lodging accommodations. These businesses are required to comply with other codes, i.e. Zoning, Building, Housing, Fire, Sales Tax, Income Tax, Hotel and Motel Tax, and other local or State codes and ordinances for home occupations. The business is personal to the applicant, and is not transferable to any other person, and does not apply to any other business of the applicant. Types in this category include, but are not necessarily limited to:

(a) Bed and breakfast establishments.

(b) Rooming and boarding houses.

(c) Any other place where transients are accommodated for sleeping or lodging purposes.

For the purposes of this Chapter only, a state licensed "Family Child Care Home" or a state licensed "Group Child Care Home" or any "state licensed residential facility" as defined by MCL 125.3102 of the Michigan Zoning Enabling Act located in a private residence shall not be defined as a Home Occupation, and shall not be subject to the licensing requirements of this Chapter.
(Ord. No. 2010-32, § 1, 6-22-10; Ord. No. 2010-52, § 1, 9-14-10; Ord. No. 2013-75, § 2, 11-19-13; Ord. No. 2014-66, § 2, 8-26-14; Ord. No. 2015-11, § 1, 2-24-15)

Sec. 7.642. Home Occupation Fire Safety Requirements.

Home occupations as defined by this Chapter are required to install and maintain single-station or multiple-station smoke alarms in the place of residence, as specified in Chapter 169 of this Code. Home occupations are further required to install and maintain at least one fire extinguisher that is properly selected, installed, and maintained in a conspicuous and unobstructed location(s) in the residence.
(Ord. No. 2010-32, § 1, 6-22-10)

Sec. 7.643. Home Occupation License Required.

(1) No person shall operate any Class B or Class C Home Occupation business unless a license therefore has been obtained as provided for in this Chapter.

(2) No person shall advertise any portion of a dwelling unit or rental by the night or by the week, unless that person shall have first obtained a Home Occupation license as provided for in this Chapter.

(3) No license is required by this Code in order to operate a Class A Home Occupation business. All other requirements pertaining to Home Occupations as set forth in Chapter 61 of this Code, the City's Zoning Code, continue to apply and remain in full force and effect with regard to Class A Home Occupation businesses.
(Ord. No. 2010-32, § 1, 6-22-10; Ord. No. 2010-52, § 2, 9-14-10; Ord. No. 2013-75, § 3, 11-19-13; Ord. No. 2014-66, § 3, 8-26-14; Ord. No. 2015-76, § 1, 12-15-15)

Sec. 7.644. Application for Home Occupation License.

Any person desiring a license to operate a Home Occupation business in the City of Grand Rapids shall pay an application fee as provided for in Chapter 92 of this Code and, after paying the application fee, shall file an application for a Home Occupation License with the City Clerk. The application shall be in a form provided or prescribed by the City Clerk and shall require such information to be provided under oath or affirmation as the City Clerk deems necessary to a fair determination of the applicant's ability to provide home occupation service to the public in a safe, fair, honest and competent manner and to comply with the provisions of this Code and other applicable Federal, State and local laws, or ordinances, rules and regulations. The applicant may also be required to furnish such other information under oath as the Clerk may deem necessary.
(Ord. No. 2010-32, § 1, 6-22-10; Ord. No. 2010-52, § 3, 9-14-10; Ord. No. 2014-66, § 4, 8-26-14)

Sec. 7.645. License Fee.

No Home Occupation license shall be issued unless the fee provided for in Chapter 92 of this Code shall have been paid.
(Ord. No. 2010-32, § 1, 6-22-10; Ord. No. 2010-52, § 4, 9-14-10)

Sec. 7.646. Issuance of License.

(1) If, after investigation, the City Clerk shall be reasonably satisfied that the applicant has complied with the requirements of this Code and all other applicable laws, statutes, rules and regulations, and if the proper fee shall have been paid, the City Clerk shall issue a Home Occupation license.

(2) No more than two hundred (200) Class B Home Occupation licenses for one-room short-term rentals shall be issued at any one time. Such permits are non-transferrable. A permit number shall be included in all advertising of the one-room rental.

The City Clerk shall provide a notice within ten (10) days of issuing a one-room short-term rental permit to all owners and residents within three hundred (300) feet of the property. Notice of permit issuance for the short-term rental shall include property address, permit number, and contact information of the Clerk's licensing division which shall be provided to receive complaints regarding the operation or occupancy of the short-term rental use.
(Ord. No. 2010-32, § 1, 6-22-10; Ord. No. 2013-75, § 4, 11-19-13; Ord. No. 2014-66, § 5, 8-26-14)

Sec. 7.647. Transfer Prohibited.

No Home Occupation License may be sold, assigned, mortgaged or otherwise transferred.
(Ord. No. 2010-32, § 1, 6-22-10; Ord. No. 2010-52, § 5, 9-14-10)

Sec. 7.648. Grounds for Denial, Suspension or Revocation of a Home Occupation License.

(1) Any violation of this Chapter, of Chapter 61 of this Code, of Chapter 152 of this Code, or of the laws of this State or any other State relating to the operation of a home occupation business may be considered sufficient grounds for the denial of a license or the suspension or revocation of a license issued pursuant to the provisions of this Chapter. These grounds for denial, suspension or revocation of a license provided for in this Chapter shall be in addition to other grounds for denial, suspension or revocation of licenses or permits provided for in Chapter 91 and elsewhere in this Code.

(2) For Class B Home Occupations to be used as a one-room short-term rental and Class C Home Occupations, if the real property has a 0% Principal Residence Exemption (PRE) on the current tax roll, as provided for in the General Property Tax Act, MCL 211.1 et seq., and this fact is brought to the attention of the City Clerk, then the City Clerk shall:

(a) In the case of an application for a new or renewal Home Occupation license, immediately deny the license application;

(b) In the case of an existing Home Occupation license, immediately suspend or revoke the license.

(3) For Class B Home Occupations to be used as a one-room short-term rental and Class C Home Occupations, a license shall not be granted unless the applicant demonstrates to the City Clerk's satisfaction that the applicant holds one of the following types of interest in the real estate upon which the Home Occupation is to be operated:

(a) Sole ownership; or

(b) A joint tenant by the entireties; or

(c) A joint tenant.

(4) For Class B Home Occupations to be used as a one-room short-term rental and Class C Home Occupations, if it comes to the attention of the City Clerk that any person holds an interest in the real estate upon which the Class B Home Occupation to be used as a one-room short-term rental and Class C Home Occupation is to be operated, as a tenant in common, then the City Clerk shall:

(a) In the case of an application for a new or renewal Home Occupation license, immediately deny the license application;

(b) In the case of an existing Home Occupation license, immediately suspend or revoke the license.

(Ord. No. 2010-32, § 1, 6-22-10; Ord. No. 2013-75, § 5, 11-19-13; Ord. No. 2014-66, § 6, 8-26-14)

Sec. 7.649. Compliance with Other Laws.

All persons holding a license issued pursuant to the provisions of this Chapter shall comply with all applicable Federal, State and local laws, ordinances, rules and regulations. Failure to comply may be considered sufficient grounds for the denial of a license or the suspension or revocation of a license issued pursuant to the provisions of this Chapter.

(Ord. No. 2010-32, § 1, 6-22-10)

Sec. 7.650. Conflicts with Other Laws or Regulations.

If any provision of this Chapter differs from a provision of any other applicable law, ordinance, rule or regulation, both the provision of this Chapter and the differing provision shall apply if possible. If the two (2) provisions are in conflict, then the provision establishing the higher or stricter standard shall apply.

(Ord. No. 2010-32, § 1, 6-22-10)

Sec. 7.651. No Immunity or Indemnification from Federal Law.

A registered primary caregiver, in compliance with the General Rules of the Michigan Department of Community Health, the Michigan Medical Marihuana Act, P.A. 2008, Initiated Law, MCL 333.26423(d) and the requirements of this Chapter, shall be allowed as a home occupation. Nothing in this Chapter, or in any companion regulatory provision adopted in any other provision of this Code, is intended to grant, nor shall they be construed as granting, immunity from criminal prosecution for growing, sale, consumption, use, distribution, or possession of marihuana not in strict compliance with that Act and the General Rules. Also, since Federal law is not affected by that Act or the General Rules, nothing in this Chapter, or in any companion regulatory provision adopted in any other provision of this Code, is intended to grant, nor shall they be construed as granting, immunity from criminal prosecution under Federal law. The Michigan Medical Marihuana Act does not protect users, caregivers or the owners of properties on which the medical use of marihuana is occurring from Federal prosecution, or from having their property seized by Federal authorities under the Federal Controlled Substances Act.

(Ord. No. 2010-32, § 1, 6-22-10)

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Chapter 117

SMALL CELL WIRELESS FACILITIES IN THE PUBLIC RIGHTS-OF-WAY

Article 1. Permit And Collocation Provisions

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Sec. 7.654. Multiple Permits.
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ARTICLE 1. PERMIT AND COLLOCATION PROVISIONS

Sec. 7.652. Definitions.

Any term not defined below may use a definition as provided by the Act. For purposes of this section, the following terms and phrases shall be defined as follows:

Act means the Small Wireless Communications Facilities Deployment Act, 2018 PA 365, MCL 460.301 et seq.

Antennae means communications equipment that transmits or receives electromagnetic radio frequency signals used in the provision of wireless services.

Applicable Codes means the term as it has been defined with the Act and any additional ordinances or resolutions adopted by the Authority.

Applicant means a wireless provider that submits an application described by the Act.

Application means an application submitted by a Wireless Services Provider or a Wireless Infrastructure Provider pursuant to the Act.

Authority means the City of Grand Rapids, or subdivision thereof if authorized by law to make legislative, quasi-judicial, or administrative decisions concerning an application governed by the Act.

Authority Pole means a utility pole owned or operated by the Authority and located within the right-of-way.

City means the City of Grand Rapids, Kent County, Michigan.

Collocate means to install, mount, maintain, modify, operate, or replace wireless facilities on or adjacent to a wireless support structure or utility pole. "Collocation" has a corresponding meaning. Collocation does not include make-ready work or the installation of a new utility pole or new wireless support structure.

Communications facility means the set of equipment and network components, including wires, cables, antennas, and associated facilities, used by a communications service provider to provide communications service.

Fee means a nonrecurring charge for services.

Make-ready work means work necessary to enable an authority pole or utility pole to support collocation, which may include modification or replacement of utility poles or modification of lines.

Micro wireless facility means a small cell wireless facility that is not more than twenty-four (24) inches in length, fifteen (15) inches in width, and twelve (12) inches in height and that does not have an exterior antenna more than eleven (11) inches in length.

Municipally owned electric utility means a system owned by a municipality or combination of municipalities to furnish power or light and includes a cooperative electric utility that, on or after March 12, 2019, acquired all or substantially all of the assets of a municipal electric utility, when applying the Act to the former territory of the municipal electric utility.

Nonauthority pole means a utility pole used for electric delivery service and controlled by the governing body of a municipally owned electric utility.

Public right-of-way or *ROW* means the area on, below, or above a public roadway, highway, street, alley, bridge, sidewalk, or utility easement dedicated for compatible uses. Public right-of-way does not include any of the following: (i) A private right-of-way; (ii) A limited access highway; (iii) Land owned or controlled by a railroad as defined in section 109 of the railroad code of 1993, 1993 P.A. 354, MCL 462.109; (iv) Railroad infrastructure.

Rate means a recurring charge.

Small Cell Wireless Network shall mean any small cell telecommunication or data-based wireless network that uses small cells facilities, including but not limited to, distributed antennae systems (DAS), femtocells, picocells, metrocells or microcells.

Small Cell Wireless Facilities or *Small Cell Wireless Network Facilities* means structures of any nature installed and/or operated for the provision of telecommunication or wireless services, including without limitation, antennas, supporting structures for antennas, poles, equipment shelters or houses, and any ancillary equipment and which meet the dimensional requirements of the Act.

Utility pole means a pole or similar structure that is or may be used in whole or in part for cable or wireline communications service, electric distribution, lighting, signage, or a similar function, or a pole or similar structure that meets the height requirements in section 13(5) of the Act and is designed to support small cell wireless facilities. Utility pole does not include a sign pole less than fifteen (15) feet in height above ground.

Wireless facility means equipment at a fixed location that enables the provision of wireless services between user equipment and a communications network, including, but not limited to, radio transceivers, antennas, coaxial or fiber-optic cable, regular and backup power supplies, and comparable equipment, regardless of technological configuration. Wireless facility includes a small cell wireless facility. Wireless facility does not include any of the following: (i) the structure or improvements on, under, or within which the equipment is collocated; (ii) a wireline backhaul facility; (iii) Coaxial or fiber-optic cable between utility poles or wireless support structures or that otherwise is not immediately adjacent to or directly associated with a particular antenna.

Wireless infrastructure provider means any person, including a person authorized to provide telecommunications services in this state but not including a wireless services provider, that builds or installs wireless communication transmission equipment, wireless facilities, or wireless support structures and who, when filing an application with an authority under the Act, provides written authorization to perform the work on behalf of a wireless services provider.

Wireless services provider means a person that provides wireless services.

Wireless support structure means a freestanding structure designed to support or capable of supporting small cell wireless facilities. Wireless support structure does not include a utility pole.
(Ord. No. 2019-26, § 1, 6-11-19)

Sec. 7.653. Permit Requirement.

No person shall install, operate or collocate, in whole or in part, Small Cell Wireless Facilities or Small Cell Wireless Network Facilities in the Authority's public right-of-way or other public place without first applying for and receiving a Small Cell Wireless Permit from the Authority in a form and subject to such terms and conditions as is acceptable to the Authority. Nothing herein shall be interpreted to require the Authority to issue such a Permit, within the limitations of the Act, and the Authority reserves to itself discretion to grant, deny or modify a request for such a Permit as it determines to be in the best interest of the City and its citizens. If the proposed activity will occur within a shared right-of-way or right-of-way that overlaps another right-of-way, a wireless provider shall provide, to each affected jurisdiction, to which an application for the activity is not submitted, notification of the wireless provider's intent to locate a small cell wireless facility within the right-of-way.
(Ord. No. 2019-26, § 1, 6-11-19)

Sec. 7.654. Multiple Permits.

No provider shall install or operate a Small Cell Wireless Facility, as defined by the Small Wireless Communications Facilities Deployment Act, Act No. 365 of the Public Acts of 2018, without first obtaining a permit from the Authority pursuant to the Act. No person shall install or operate a wireline telecommunications facility, as defined in the Metropolitan Extension Telecommunications Rights-Of-Way Oversight ("METRO") Act, Act No. 48 of the Public Acts of 2002, without first obtaining a permit from the Authority pursuant to the METRO Act, including any part of a Small Cell Wireless system constituting wireline telecommunication facilities. In some circumstances, both permits may be required for operations containing both wireline and wireless components.
(Ord. No. 2019-26, § 1, 6-11-19)

Sec. 7.655. Route Maps.

Maps clearly indicating all existing and proposed facilities must be included with each application for collocation or installation of a Small Cell Wireless Facility pursuant to the Act. The Authority may require route maps as a condition of permit approval for Small Wireless Facilities applications and must require route maps as a condition of permit approval for METRO Act applications. The required map(s) shall be legible, to scale, labeled with streets, and contain sufficient detail to clearly identify the proposed Small Cell Wireless Facilities' locations and surroundings. Where applicable, the required map or list shall include and identify any requested pole height(s). Maps pursuant to this section must be updated periodically to reasonably reflect the current number of facilities in the public rights-of-way.
(Ord. No. 2019-26, § 1, 6-11-19)

Sec. 7.656. Design Parameters.

Where permitted by the Authority, the following minimal design parameters shall apply to Small Cell Wireless Facilities in the Authority's public rights-of-way:

1. A Small Cell Wireless Facility, as defined by the Act, shall not exceed more than six (6) cubic feet in volume or, in the case of an antenna that has exposed elements, all elements would fit within a six-cubic-foot enclosure. Additionally, all other equipment associated with the facility may not be cumulatively more than twenty-five (25) cubic feet in volume.

2. A Micro Wireless Facility, as defined by the Act, shall not exceed more than twenty-four (24) inches in length, fifteen (15) inches in width, and twelve (12) inches in height and that does not have an exterior antenna more than eleven (11) inches in length.

3. The maximum height of a pole or other supporting structure installed to accommodate a Small Cell Wireless Facility shall be forty (40) feet.

4. A Small Cell Wireless Facility in the right-of-way shall not extend more than five (5) feet above a utility pole or other supporting structure.

5. As a default, all small-cell equipment including, but not limited to brackets, cables, connections, antennas, wires and network infrastructure located in the right-of-way shall be shrouded for concealment, as defined by the City of Grand Rapids Department of Electrical, Lighting and Communications. All hardware associated with shrouded pole equipment for concealment shall be painted to match the color of the utility pole or wireless support structure. Alternative designs shall be permitted upon a showing by an Applicant that shrouded collocation is unreasonable, technically nonfeasible, discriminatory or technologically prohibitive, provided they meet all other design, spacing, stealth and concealment measures provided by this Chapter.

6. The Applicant shall be responsible to obtain such other permits and approvals as required by local, state or federal law.

(Ord. No. 2019-26, § 1, 6-11-19)

Sec. 7.657. Compliance with Applicable Law.

The Authority, in reviewing and authorizing a permit under the Act and/or a Permit referred to in this Chapter, and the Applicant or Wireless Services Provider, in the establishment and operation of any Small Cell Wireless Network Facility, shall comply with all applicable local, state and federal laws.
(Ord. No. 2019-26, § 1, 6-11-19)

Sec. 7.658. Application Fees.

Fees for Applications are required and shall be as provided for in the Act, as amended, or those documents and as periodically authorized by resolution of the City Commission. The fee associated with an Application may be required for each Application received by the Authority. Application fees will be assessed as follows:

Energy, Lighting and Communications

$200/each	Small Cell Facility on a pole owned by a municipally-owned electric utility
$300/each	Small Cell Facility on a pole owned by a municipally-owned electric utility in which an engineering report is required
$100/each	Addition of new utility pole to an existing Small Cell Facility
Direct Costs	Make-Ready Work as described by Section 7.660.

Zoning

$500/each	Zoning Approval: New facilities or modification of existing facilities
$1,000/each	Zoning Approval: New Wireless Support Structure or modification of existing Wireless Support Structure

(Ord. No. 2019-26, § 1, 6-11-19)

Sec. 7.659. Collocation Rates.

Rates for collocation and pole rental are charges which may be assessed annually and must be paid for each site existing at the time fees are assessed. Both rental and collocation fees may apply to a Wireless Provider for each site it operates. Failure to pay these fees within ninety (90) days authorizes the Authority to demand removal of the corresponding collocation or a number of collocations relative to the delinquent amount. The Authority is not responsible for costs incurred by the removal or reinstallation of facilities removed due to nonpayment of collocation rates. Every five (5) years after the enactment of this Chapter, collocation fees are subject to a ten (10) percent increase pursuant to MCL 460.1313. Although both rates may apply, they must be assessed individually. All collocation rates may be amended, in compliance with the Act, by resolution, ordinance or implication through a change in state or federal law. Baseline collocation and rental rates for the first five (5) years after enactment of this Chapter will be assessed as follows:

$20/each	Rental of an existing Authority-owned Utility Pole or Wireless Support Structure
$125/each	Rental of an Authority-owned Utility Pole or Wireless Support Structure that has been erected by or on behalf of the Wireless Provider after March 12, 2019.
+	
$30/each	Collocation on an Authority-owned pole

(Ord. No. 2019-26, § 1, 6-11-19)

Sec. 7.660. Make-Ready Work Fees.

The Authority may assess to an Applicant the commercially reasonable, competitively neutral, nondiscriminatory, good faith costs of actual charges necessary to make the collocation site requested by the Applicant compliant with industry standards for collocation. Fees may not include costs for prior damage or prior noncompliance unless caused by the Applicant directly, unreasonable consultant fees or expense, or costs exceeding the actual costs to make the area suitable for collocation or erection of infrastructure. An estimate of Make-Ready Work Fees must be furnished by the Authority within sixty (60) days after receipt of a complete application. All make-ready work must be completed by the Authority within sixty (60) days of written acceptance of the estimate.
(Ord. No. 2019-26, § 1, 6-11-19)

Sec. 7.661. Bonding Requirements.

An Applicant must provide a bond of one thousand dollars ($1,000.00) per Small Cell Wireless Facility to provide for repair of the right-of-way and the removal of abandoned or improperly maintained Small Cell Wireless Facilities, including those that the Authority determines should be removed to protect public health, safety, or welfare. The Wireless Provider shall be responsible for all costs of repair after installation and removal and is responsible for the complete restoration of the site to its pre-installation condition. Costs of restoration exceeding the amount of the bond may be assessed to the Wireless Provider directly. All restoration measures shall have a forty-five-day warranty period from the day restoration is substantially complete, during which any structural or design defect or failure remains the responsibility of the Wireless Provider, subject to an opportunity to cure. This provision shall be construed in harmony with Section 7.667 concerning Removal Requirements. Cash bond may be required only from

Applicants who have defaulted or failed to perform on a previous bond given to the Authority or have failed to obtain or maintain a bond as required by the Act.
(Ord. No. 2019-26, § 1, 6-11-19)

Sec. 7.662. Application Process.

An Applicant submitting an application to the Authority must comply with all terms of MCL 460.1315. A single application may request collocation of up to twenty (20) Small Cell Wireless Facilities. The Applicant must furnish all fees, rates, bonds, maps, permits, licenses and permissions in order for an application to be deemed complete for purposes of any deadline imposed by the Act or this section. An application submitted by an Applicant will be subject to the following process:

1. The Authority will inform an Applicant of an incomplete application by written notice within twenty-five (25) calendar days of its receipt.
2. The Applicant may submit supplemental documents to cure an incomplete application. The authority will inform the Applicant within ten (10) calendar days of receipt of supplemental documents whether the submission completes the application.
3. An application for collocation of a Small Cell Wireless Facility on a Utility Pole or Wireless Support Structure must be decided with sixty (60) calendar days from the date it is deemed complete, subject to the terms of subsections (6) and (7) below.
4. An application for collocation of a Small Cell Wireless Facility on a new Utility Pole or Wireless Support Structure or for modification of an existing Utility Pole or Wireless Support Structure must be decided with ninety (90) calendar days from the date it is deemed complete, subject to the terms of subsections (6) and (7) below.
5. An application requesting the construction of a new Wireless Support Structure by or on behalf of the Applicant must be decided with one hundred fifty (150) calendar days from the date it is deemed complete.
6. If an application from another Wireless Services Provider or Wireless Infrastructure Provider is received within one (1) week of an application, an additional fifteen (15) days is permissible for rendering a decision on the first application.
7. Upon written notice to the Applicant showing good cause, the Authority will be permitted an additional fifteen (15) days to decide an application.

(Ord. No. 2019-26, § 1, 6-11-19)

Sec. 7.663. Radio Frequency Notice and FCC Compliance.

The communication systems and devices used by the City of Grand Rapids Utilities operate on FCC regulated and licensed Radio Frequency. The FCC regulates Radio Frequency (RF) and has established safety guidelines relating to potential RF exposure. The FCC is required by the National Environmental Policy Act of 1969 to evaluate the effect of emissions from FCC-regulated transmitters on the quality of the human environment. As a result, the FCC established Maximum Permissible Exposure ("MPE") limits, in consultation with many federal agencies including the Environmental Protection Agency, the Food and Drug Administration, and the Occupational Safety and Health Administration. State and Local governments have limited authority over certain wireless facilities. The statute also preempts local decisions premised directly or indirectly on the environmental effects of radio frequency (RF) emissions, assuming that the provider is in compliance with the Commission's RF rules. Notification signage is required in areas or near equipment that may have RF exposure levels that may exceed the General Population MPE, Occupational MPE, or both.
(Ord. No. 2019-26, § 1, 6-11-19)

Sec. 7.664. Spacing, Stealth and Concealment.

Subject to the design parameters in section 7.656, a Small Cell Wireless Facilities shall not be installed or collocated within six hundred (600) feet of an existing Small Cell Wireless Facility installed or collocated by the same Wireless Provider, except that Microcell Facilities as defined by this Chapter shall not be within three hundred (300) feet of an existing Microcell Facility installed or collocated by the same Wireless Provider. Shrouded pole equipment for concealment of all communication facility components shall be the default design for utility poles located within the right-of-way, but shall allow exceptions as provided in Section 7.656. Screening and/or camouflage may be required based on the location of the proposed wireless facility. A proposed facility may not obstruct the clear vision area of any intersection, obstruct pedestrian movement, interfere with traffic signals, or cause damage to trees or light poles. Unless otherwise permitted, Small Cell Wireless Facilities shall be located no closer than eighteen (18) inches from an existing/proposed sidewalk/face of curb and no closer than ten (10) feet from any driveway. Any Wireless Service Provider operating within the right-of-way must adhere to the Americans with Disability Act of 1990, Public Law 101-336 and all laws adopted by the City of Grand Rapids impacting access for disabled persons. An Applicant may be exempted from any of these requirements upon a written showing that compliance would be unreasonable, technically nonfeasible, discriminatory, or technologically prohibitive. Once precise locations and spacing, stealth and concealment measures have been approved in accordance with this section, the Applicant shall provide latitude and longitude coordinates for the Small Cell Wireless Facilities' locations to the City's Engineering Department.
(Ord. No. 2019-26, § 1, 6-11-19)

Sec. 7.665. Prior Permit and Permit Renewal.

An Applicant with an existing permit that seeks additional collocations or renewal of terms through a new application must submit a complete application, including fees, bonds, and documentation as if it were a new application under MCL 460.1315. No permit issued pursuant to this Chapter will be deemed adequate for purposes of any other application or request for collocation.
(Ord. No. 2019-26, § 1, 6-11-19)

Sec. 7.666. Denial of Permits.

The Authority may deny a completed application only for failure to conform to the requirements of this Chapter, the procedure detailed by the Act, or any of the following reasons:

(1) Materially interfere with the safe operation of traffic control equipment.

(2) Materially interfere with sight lines or clear zones for transportation or pedestrians.

(3) Materially interfere with compliance with the Americans with Disabilities Act of 1990, Public Law 101-336, or similar federal, state, or local standards regarding pedestrian access or movement.

(4) Materially interfere with maintenance or full unobstructed use of public utility infrastructure under the jurisdiction of an authority.

(5) With respect to drainage infrastructure under the jurisdiction of an authority, either of the following:

(A) Materially interfere with maintenance or full unobstructed use of the drainage infrastructure as it was originally designed.

(B) Not be located a reasonable distance from the drainage infrastructure to ensure maintenance under the drain code of 1956, 1956 PA 40, MCL 280.1 to 280.630, and access to the drainage infrastructure.

(6) Fail to comply with reasonable, nondiscriminatory, written spacing requirements of general applicability adopted by ordinance or otherwise that apply to the location of ground- mounted

equipment and new utility poles and that do not prevent a wireless provider from serving any location.

(7) Fail to comply with applicable codes.

(8) Fail to comply with Section 13(7) or (8) [of Act 365].

(9) Fail to meet reasonable, objective, written stealth or concealment criteria for small cell wireless facilities applicable in a historic district or other designated area, as specified in an ordinance or otherwise and non-discriminatorily applied to all other occupants of the right-of-way, including electric utilities, incumbent or competitive local exchange carriers, fiber providers, cable television operators, and the authority.

An application requesting collocation of more than one (1) Small Cell Wireless Facility may be approved or denied by the Authority for each facility individually and denial for one (1) or more proposed collocation will not result in the failure of the entire application.
(Ord. No. 2019-26, § 1, 6-11-19)

Sec. 7.667. Removal Requirements.

Before discontinuing use of a Small Cell Wireless Facility, Utility Pole or Wireless Support Structure, regardless of whether by decision or requirement, shall notify the Authority in writing and submit a removal plan to restore the right-of-way and Authority infrastructure to its original condition. If the Authority approves the timeline proposed by the removal plan, the Wireless Service Provider or Wireless Infrastructure Provider must adhere to the terms of the approved removal plan. If the Wireless Service Provider or Wireless Infrastructure Provider does not have an approved removal plan or fails to renew its license within forty-five (45) days after the discontinuance of use, the Authority may complete the removal itself and assess the costs of removal against the Wireless Service Provider or Wireless Infrastructure Provider. Additionally, a site which is licensed but has been abandoned or left unused for more than one (1) year, is subject to the removal procedure provided within this subsection. A Permit under this Chapter expires at the time the Small Cell Wireless Facility has been removed.
(Ord. No. 2019-26, § 1, 6-11-19)

Sec. 7.668. Policy Implementation.

Employees and staff of the Authority shall promulgate rules and policies consistent with the Act and may make amendments to design parameters or stealth, spacing and concealment criteria that are reasonable, technically feasible and technologically neutral.
(Ord. No. 2019-26, § 1, 6-11-19)

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Chapters 118—130

RESERVED

TITLE VIII—NEIGHBORHOOD IMPROVEMENT

Chapter

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Chapter 131

GENERAL BUILDING REGULATIONS*

Sec. 8.1. Assumption of Responsibility.
Sec. 8.2. Applicable Codes.
Sec. 8.3. Codes on File.
Sec. 8.4. Designation of Building Official.
Sec. 8.5. Demolition of Structures.
Sec. 8.6. Fees.
Sec. 8.7. Moved Structures.
Sec. 8.8. Unlawful Conduct; Penalties; Designation of Violation as Municipal Civil Infraction; Fourth and Subsequent Violations Designated as Misdemeanor.
Sec. 8.9. Construction Code Board of Appeals; Membership; Qualification of Board Members; Quorum.
Secs. 8.10—8.24. Reserved.

*__Editor's note—__Ordinance No. 2004-39, adopted July 27, 2004, amended Chapter 131 in its entirety to read as herein set out. Formerly, Ch. 131 pertained to similar subject matter as enacted by Ord. No. 89-45, adopted Aug 29, 1989; as amended. See Code Comparative Table B.

__Cross references—__Combustible and solid waste, Ch. 25; City water system, Ch. 26; City sewage disposal system, Ch. 27; trees, Ch. 42; streets, Ch. 51; sidewalk obstructions, §§ 4.20, 4.21; zoning, Ch. 61; Site Plan review, § 5.65.1 et seq.; oil and gas wells, Ch. 63; subdivision regulations, Ch. 64; interference with natural or artificial drains, § 5.366; building permits required prior to construction, alteration, etc., work in historic districts or historic landmarks, § 5.406; license fee for building movers, § 7.48; compliance with Chapter 143 prerequisite to issuance of certificate of occupancy, § 8.855; dangerous structures, § 9.11 et seq.; air pollution control, § 9.31 et seq.; noise control, § 9.61 et seq.; unoccupied buildings and structures, § 9.129; fire prevention, Ch. 159; standards for alarm systems, § 9.404.

__State law reference—__State Construction Code Act, MCL 125.1501 et seq.

Sec. 8.1. Assumption of Responsibility.

Pursuant to Section 8b of Act 230, of the Public Acts of 1972, as amended, the City of Grand Rapids has assumed responsibility for the administration and enforcement of the Act throughout its corporate limits.
(Ord. No. 2004-39, § 1, 7-27-04)

Sec. 8.2. Applicable Codes.

This Chapter sets forth procedures for the application and enforcement of the Michigan Building Code and the Michigan Residential Code.
(Ord. No. 2004-39, § 1, 7-27-04)

Sec. 8.3. Codes on File.

Complete printed copies of the current Michigan Building Code and the current Michigan Residential Code are available for public use and inspection at the office of the City Clerk.
(Ord. No. 2004-39, § 1, 7-27-04)

Sec. 8.4. Designation of Building Official.

The Building Official of the Neighborhood Improvement Department shall serve as the building official pursuant to the provisions of the Michigan Building Code and the Michigan Residential Code.
(Ord. No. 2004-39, § 1, 7-27-04; Ord. No. 2009-59, § 1, 11-10-09)

Editor's note—Section 5 of Ord. No. 2009-59, adopted November 10, 2009, provides for an effective date of 12-1-09.

Sec. 8.5. Demolition of Structures.

8.5.1 Permit Required. Pursuant to the Michigan Building Code and Michigan Residential Code, it shall be unlawful for any person to move, dismantle, wreck or demolish any building without having first obtained a permit from the Neighborhood Improvement Department. Permits shall not be transferable.

8.5.2 Sewer Disconnection. Before any work on or in connection with moving, dismantling, wrecking or demolishing of a building is started, the applicant shall have the sewer disconnected and blocked off at a place and in a manner as prescribed by the Department. This provision is not intended to relieve any party from complying with Chapters 51 and 52 (Streets and Sidewalks) of the City Code, should this work be done within any right-of-way of the City.

8.5.3 Water Service Disconnection. Water service to a building(s) proposed for demolition shall have the water service disconnected at the discretion of the Water Department pursuant to the issuance of the appropriate permit(s).

8.5.4 Standards of Demolition. The demolition of any structure shall be done in accordance with the following specifications:

(a) No structure shall be removed from the premises in a whole or substantially whole condition. All buildings shall be demolished on the premises.

(b) The sewer lateral shall be exposed and properly capped at the lot line or at a location designated by the Inspector. Backfilling is to be done only after inspected and approved by the City.

(c) All structures and their foundations shall be completely razed to a level of two (2) feet below the ground surface or grade line and removed from the site. Razing shall include, but is not limited to, all posts, piers, walls, basement partitions, sheds, steps, thresholds, paved areas and all other above-ground items.

(d) Concrete floors shall be broken and foundation walls removed two (2) feet below grade.

(e) All basements and cellars or other areas below grade shall be filled and compacted to grade only with sound approved solid fill of sand, gravel and dirt. Brick, stone, mortar, plaster or concrete removed from the demolished structures may be used if it is arranged not to form or collect surface or subsurface water. Masonry fragments used as fill shall not be over 24 inches in greatest dimension. No decomposable organic material or wood, glass, paper, piping, steel or other metal material or any unstable or combustible material shall be used in making fills.

(f) All masonry, such as private sidewalks, driveways, driveway aprons or retaining walls, shall be removed unless such removal will create a hazardous condition or unless the owner has requested otherwise in writing.

(g) Wood partitions, stairways, furnaces, piping and other equipment, rubbish and debris located in basements or elsewhere on the property shall be removed from the site.

(h) Any damage to public sidewalks or any part of the street right-of-way shall be repaired or replaced to meet City Engineer standards.

(i) The lot shall be filled, compacted and graded to blend with surrounding property and sidewalk grades.

(j) Final fill shall be at least two inches of sandy loam, dirt or topsoil containing no brick, mortar or concrete pieces larger than two inches.

8.5.5 Recovery of Expense of Demolition. Expenses incurred by the City in the demolition or removal of any structure shall be billed to the owner of the property upon which the building was located. The City Treasurer shall collect the account, which shall be a personal debt of the property owner, which may be assessed as a lien against the property until paid in full.

8.5.6 Minor Buildings. A permit is not required to dismantle, wreck or demolish a residential-type garage, tool shed or other similar building having no utilities as approved by the Building Official.

8.5.7 Surety. Prior to the issuance of a permit, the applicant shall furnish surety (performance bond, letter of credit or cashier's check) to the City equal to the contract cost of demolition. Any person, firm or corporation normally engaged in the demolition of buildings may provide a yearly surety to the City in the amount of One Million Dollars ($1,000,000.00), which shall cover all demolition surety as heretofore required.

8.5.8 Completion of Demolition. Release of surety shall be conditioned upon the diligent completion of all demolition work and upon the completion of said work in a manner so as not to leave the premises hazardous or dangerous to the health, safety or welfare of the inhabitants of the City of Grand Rapids, as determined by the Building Official.

(Ord. No. 2004-39, § 1, 7-27-04; Ord. No. 2009-59, § 2, 11-10-09)

Editor's note—Section 5 of Ord. No. 2009-59, adopted November 10, 2009, provides for an effective date of 12-1-09.

Sec. 8.6. Fees.

Fees required for the administration of this Chapter shall be established from time to time by resolution of the City Commission, including:

1. Permit application;
2. Permit issuance;
3. Plan review application;
4. Professional license application;
5. Professional license registration;
6. Professional testing/examination;
7. Administrative hourly rate;
8. Requested research hourly rate;
9. Inspection hourly rate;
10. Certificate/written report;
11. Failure to gain access;
12. Work not ready to be inspected;
13. Evening, weekend, and holiday inspection;
14. Replacement of inspection card;
15. Working without a permit;
16. Correction Notice;
17. Notice of Violation;
18. Administrative Extension;
19. Attorney Warning Letter;
20. Warrant preparation and prosecution;
21. Search warrant;
22. Title search;
23. Recording document with Kent County;

24. Collection Service Fee (City Treasurer); and
25. Collection Service Fee (Small Claims Court).

Fee calculations based upon cost of construction shall be supported by a contract with construction costs, or in the absence of such contract shall be calculated using the International Code Council Square Foot Construction Cost and Regional Cost Modifier tables.
(Ord. No. 2004-39, § 1, 7-27-04; Ord. No. 2009-59, § 3, 11-10-09)

Editor's note—Section 5 of Ord. No. 2009-59, adopted November 10, 2009, provides for an effective date of 12-1-09.

Sec. 8.7. Moved Structures.

8.7.1 Building Mover. Any owner or authorized agent who intends to move a building or structure, or to cause any such work to be done, shall first make application to the building official and obtain the required permit.

8.7.2 Indemnity for Injury. Said permit shall not be granted unless the applicant shall indemnify and hold harmless the City of Grand Rapids from any and all claims and liabilities of any nature whatsoever which arise out of any building moving activity as herein authorized. Said permit shall not be granted unless the applicant shall further indemnify and reimburse the City for all loss, injury or damage to any tree, pavement, street, sewer, water main, sidewalk, wire, fire alarm, telephone pole, cables or other property of the City of Grand Rapids, which loss, injury or damage arises out of moving a building by said applicant.

8.7.3 Insurance. Said applicant shall furnish to the building official an executed duplicate policy of insurance approved by the City Risk Manager and City Attorney co-insuring the applicant and the City against any and all legal liability from damage to persons or property arising out of the activities of the building mover as herein authorized. Said insurance shall further insure the applicant and the City for any and all legal liability to the City of Grand Rapids because of obligations imposed by this Chapter. Said policy of insurance shall be in the minimum amounts of One Million Dollars ($1,000,000) for each person and One Million Dollars ($1,000,000) for each accident in the event of bodily injury and One Million Dollars ($1,000,000) for property damage with a maximum of One Million Dollars ($1,000,000) for each accident.

8.7.4 Owner's Bond. The owner of any building to be moved shall deposit a surety bond in the amount of One Hundred Thousand Dollars ($100,000), which shall be conditioned upon the diligent completion of all work, repairs, structural changes or other activity necessary to place the building in its final state, fully conditioned for its new use in accordance with the requirements of the City Code. Said work shall be completed within a period of time not to exceed ninety days following relocation of the building on its new site, provided that upon application of the owner, the City Manager may extend the time by one additional period of up to ninety days upon showing good cause.

8.7.5 Route. No permit to move a building or structure, or to cause any such work to be done, shall be approved by the City Manager until approval of the proposed route has been secured in writing from the Traffic Engineer, Chief of Police and Fire Chief. If it is determined that a different route would be more advantageous to the public safety, the City Manager shall require such changed route before issuing the permit.

8.7.6 Rules for Move. It shall be the duty of the person who obtains a permit pursuant to this Chapter follow the route prescribed and to observe all regulations and special conditions required for the protection of streets and to move such building with all possible dispatch and in a manner least calculated to obstruct public travel. No person shall leave the building standing over any street crossing. If it shall be necessary for the building to stand overnight in any street or public place, the licensed person shall place sufficient bright red lights upon the same as a warning. Such lights shall be kept burning during the night.
(Ord. No. 2004-39, § 1, 7-27-04; Ord. No. 2009-59, § 4, 11-10-09; Ord. No. 2013-32, §§ 1, 2, 7-23-13)

Sec. 8.8. Unlawful Conduct; Penalties; Designation of Violation as Municipal Civil Infraction; Fourth and Subsequent Violations Designated as Misdemeanor.

(1) Definitions.

Inspector - A City official charged with enforcement of all state and local building codes including the State Construction Code, Michigan Building Code, and Michigan Residential Code.

(2) Except as set forth in Section 8.8(4), any person who engages in the following conduct in violation of this Section, or orders or directs another person to engage in such conduct is responsible for a municipal civil infraction and shall be subject to the penalties described in Chapter 170 of this Code:

(a) Knowingly violates any state or local building code including the State Construction Code, Michigan Building Code, Michigan Residential Code, the Grand Rapids Code of Ordinances, or any code or a rule promulgated for the enforcement of such codes.

(b) Knowingly installs or maintains equipment in violation of a condition of a permit.

(c) Knowingly fails to comply with an order issued by the City of Grand Rapids as the enforcing agency under this Chapter.

(d) Knowingly makes a false or misleading written statement, or knowingly omits required information or a statement in an inspection report, application, petition, request for approval, or appeal to the City of Grand Rapids as the enforcing agency under this Chapter.

(e) Knowingly refuses entry or access to an inspector lawfully authorized to inspect any premises, building, or structure.

(f) Unreasonably interferes with an authorized inspection.

(g) Knowingly issues, fails to issue, causes to be issued, or assists in the issuance of a certificate, permit, or license in violation of the Grand Rapids Code of Ordinances, the Michigan Building Code, Michigan Residential Code or any rule promulgated under such Codes or other applicable laws.

(h) Having a duty to report violations of the Michigan Building Code, Michigan Residential Code or a rule promulgated under this Code or other applicable laws, knowingly conceals a violation.

(3) Each act in violation of this Chapter shall constitute a separate violation of this Code and shall be subject to enforcement for every day upon which any violation shall continue.

(4) Fourth and subsequent violations shall be a misdemeanor punishable by a fine of not more than five hundred dollars ($500.00) or imprisonment for not more than ninety (90) days, or both.

(5) Stop Work Orders. The City is authorized to issue an Order to Stop Work in instances where work is being undertaken without a permit, or in violation of an issued permit. (Reference MCL 125.1512).

(6) Injunctive Relief. If an Order to Stop Work issued under this Section is not obeyed, the City may apply to the Circuit Court for an order enjoining the continuation of construction undertaken in violation of a building permit, this Code, or any other applicable law. (Reference MCL 125.1512).

(Ord. No. 2017-07, § 1, 1-24-17)

Sec. 8.9. Construction Code Board of Appeals; Membership; Qualification of Board Members; Quorum.

(1) The Construction Code Board of Appeals shall consist of three (3) general members and four (4) trade specialist members appointed by the City Manager, by and with the approval of the City Commission. Appointments shall be made for a term of four (4) years, but any appointed member may, for cause, be removed from office at any time by the City Manager.

(2) The three (3) general members shall be licensed professional architects or engineers with at least five (5) years of experience, or Fire Code Officials. The four (4) trade specialist members shall include:

(a) A building contractor or construction superintendent with at least five (5) years of experience in directing non-residential building construction.

(b) A licensed Master Electrician.

(c) A licensed Mechanical Contractor.

(d) A licensed Master Plumber.

(3) A quorum of the Board shall require the presence of at least four (4) members and shall include at least two (2) general members and at least one (1) trade specialist with expertise in the code provision(s) which are at issue in the appeal.
(Ord. No. 2017-03, § 1, 1-10-17)

Secs. 8.10—8.24. Reserved.

Chapter 132

PLUMBING CODE*

Sec. 8.25. Assumption of Responsibility.
Sec. 8.26. Applicable Code.
Sec. 8.27. Code on File.
Sec. 8.28. Designation of Code Official.
Sec. 8.29. Registration of State License.
Sec. 8.30. Permit Fees.
Sec. 8.31. Fee Refunds.
Sec. 8.32. Unlawful Conduct; Penalties; Designation of Violation as Municipal Civil Infraction; Fourth and Subsequent Violations Designated as Misdemeanor.
Secs. 8.33—8.50. Reserved.

*__Editor's note—__Ordinance No. 2004-43, § 1, adopted Aug. 10, 2004, amended Ch. 132 in its entirety to read as herein set out. Formerly Ch. 132 pertained to similar subject matter as enacted by Ord. No. 75-39, adopted May 6, 1975; as amended. See Code Comparative Table B.

__Cross references—__City water system, Ch. 26; City sewage disposal system, Ch. 27.

__State law reference—__Regulation of plumbing and licensing of plumbers, MCL 338.901 et seq.

Sec. 8.25. Assumption of Responsibility.

Pursuant to Section 8b of Act 230, of the Public Acts of 1972, as amended, the City of Grand Rapids has assumed responsibility for the administration and enforcement of the Act throughout its corporate limits.
(Ord. No. 2004-43, § 1, 8-10-04)

Sec. 8.26. Applicable Code.

This Chapter sets forth procedures for the application and enforcement of the Michigan Plumbing Code.
(Ord. No. 2004-43, § 1, 8-10-04)

Sec. 8.27. Code on File.

Complete printed copies of the Michigan Plumbing Code are available for public use and inspection at the office of the City Clerk.
(Ord. No. 2004-43, § 1, 8-10-04)

Sec. 8.28. Designation of Code Official.

The Building Official of the Neighborhood Improvement Department shall serve as the Code Official pursuant to the provisions of the Michigan Plumbing Code.
(Ord. No. 2004-43, § 1, 8-10-04; Ord. No. 2009-60, § 1, 11-10-09)

Editor's note—Section 4 of Ord. No. 2009-60, adopted November 10, 2009, provides for an effective date of 12-1-09.

Sec. 8.29. Registration of State License.

All plumbing contractors doing work within the City of Grand Rapids shall register their State Plumbing Contractors License with the Department. No licensed master plumber may register his license as the licensed representative of more than one organization, firm, or corporation at the same time. This registration is valid until the expiration date of the State Plumbing Contractors License.
(Ord. No. 2004-43, § 1, 8-10-04; Ord. No. 2009-60, § 2, 11-10-09)

Editor's note—Section 4 of Ord. No. 2009-60, adopted November 10, 2009, provides for an effective date of 12-1-09.

Sec. 8.30. Fees.

Fees required for the administration of this Chapter shall be established from time to time by resolution of the City Commission as set forth in Chapter 131 entitled "General Building Regulations."
(Ord. No. 2004-43, § 1, 8-10-04; Ord. No. 2009-60, § 3, 11-10-09)

Editor's note—Section 4 of Ord. No. 2009-60, adopted November 10, 2009, provides for an effective date of 12-1-09.

Sec. 8.31. Fee Refunds.

The Building Official may authorize refunding of any fee paid hereunder which was erroneously paid or collected. The Building Official shall not authorize refunding of any fee paid except on written application filed by the original permittee not later than one hundred eighty (180) days after the date of fee payment.
(Ord. No. 2004-43, § 1, 8-10-04)

Sec. 8.32. Unlawful Conduct; Penalties; Designation of Violation as Municipal Civil Infraction; Fourth and Subsequent Violations Designated as Misdemeanor.

(1) *Definitions.*

Inspector - A City official charged with enforcement of the State Construction Code, including the Michigan Plumbing Code.

(2) Except as set forth in Section 8.32(4), any person who engages in the following conduct in violation of this Section, or orders or directs another person to engage in such conduct is responsible for a municipal civil infraction and shall be subject to the penalties described in Chapter 170 of this Code:

(a) Knowingly violates any local or state building codes including the State Construction Code, the Michigan Plumbing Code, the State Plumbing Act, the Grand Rapids Code of Ordinances, or any code or a rule promulgated for the enforcement of such codes.

(b) Knowingly installs or maintains equipment in violation of a condition of a permit.

(c) Knowingly fails to comply with an order issued by the City of Grand Rapids as the enforcing agency under this Chapter.

(d) Knowingly makes a false or misleading written statement, or knowingly omits required information or a statement in an inspection report, application, petition, request for approval, or appeal to the City of Grand Rapids as the enforcing agency under this Chapter.

(e) Knowingly refuses entry or access to an inspector lawfully authorized to inspect any premises, building, or structure.

(f) Unreasonably interferes with an authorized inspection.

(g) Knowingly issues, fails to issue, causes to be issued, or assists in the issuance of a certificate, permit, or license in violation of the Grand Rapids Code of Ordinances, the Michigan Plumbing Code or any rule promulgated under such Codes or other applicable laws.

(h) Having a duty to report violations of the Michigan Plumbing Code or a rule promulgated under this Code or other applicable laws, knowingly conceals a violation.

(3) Each act in violation of this Chapter shall constitute a separate violation of this Code and shall be subject to enforcement for every day upon which any violation shall continue.

(4) Fourth and subsequent violations shall be a misdemeanor punishable by a fine of not more than five hundred dollars ($500.00) or imprisonment for not more than ninety (90) days, or both.

(5) Stop Work Orders. The City is authorized to issue an Order to Stop Work in instances where work is being undertaken without a permit, or in violation of an issued permit. (Reference MCL 125.1512).

(6) Injunctive Relief. If an Order to Stop Work issued under this Section is not obeyed, the City may apply to the Circuit Court for an order enjoining the continuation of construction undertaken in violation of a building permit, this Code, or any other applicable law. (Reference MCL 125.1512).
(Ord. No. 2017-08, § 1, 1-24-17)

Secs. 8.33—8.50. Reserved.

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Chapter 133

ELECTRICAL CODE*

Sec. 8.51. Assumption of Responsibility.
Sec. 8.52. Applicable Codes.
Sec. 8.53. Codes on File.
Sec. 8.54. Designation of Code Official.
Sec. 8.55. Registration of Contractor License.
Sec. 8.56. Qualifications.
Sec. 8.57. Fees.
Sec. 8.58. Fee Refunds.
Sec. 8.59. Reciprocal Provisions.
Sec. 8.60. Unlawful Conduct; Penalties; Designation of Violation as Municipal Civil Infraction; Fourth and Subsequent Violations Designated as Misdemeanor.
Secs. 8.61—8.150. Reserved.

*__Editor's note—__Ord. No. 202-35, § 1, adopted October 4, 2022, amended Chapter 133 in its entirety to read as herein set out. Former Chapter 133, §§ 8.51—8.81, pertained to similar subject matter, and derived from Ord. No. 2004-44, § 1, 8-10-04; Ord. No. 2009-61, §§ 1—3, 11-10-09; Ord. No. 2017-04, § 1, 1-10-17; Ord. No. 2017-09, § 1, 1-24-17.

Sec. 8.51. Assumption of Responsibility.

Pursuant to Section 8b of Public Act 230 of 1972, as amended, the City of Grand Rapids has assumed responsibility for the administration and enforcement of the Act throughout its corporate limits.
(Ord. No. 2022-35, § 1, 10-4-22)

Sec. 8.52. Applicable Codes.

This Chapter sets forth procedures for the application and enforcement of the Michigan Skilled Trades Regulation Act (PA 407 of 2016) and the Michigan Electrical Code.
(Ord. No. 2022-35, § 1, 10-4-22)

Sec. 8.53. Codes on File.

Complete printed copies of the Michigan Electrical Code are available for public use and inspection at the office of the City Clerk.
(Ord. No. 2022-35, § 1, 10-4-22)

Sec. 8.54. Designation of Code Official.

The Building Official of the Neighborhood Improvement Department shall be responsible for administering the Michigan Electrical Code within the City of Grand Rapids.
(Ord. No. 2022-35, § 1, 10-4-22)

Sec. 8.55. Registration of Contractor License.

All Electrical contractors doing work within the City of Grand Rapids shall register their State Electrical Contractors License with the City of Grand Rapids Building Inspections Department. This registration is valid until the expiration date of the State Electrical Contractors License.
(Ord. No. 2022-35, § 1, 10-4-22)

Sec. 8.56. Qualifications.

To qualify for registration of Electrical Contractor, Fire Alarm, and Sign Contractors the licensee shall:

(1) Provide a current Electrical Contractor, Fire Alarm or Sign Contractor License from the State or their residential municipality.

(2) File a completed application form provided by the City of Grand Rapids before contracting any work in the City of Grand Rapids.

(Ord. No. 2022-35, § 1, 10-4-22)

Sec. 8.57. Fees.

Fees required for the administration of this Chapter shall be established from time to time by resolution of the City Commission as set forth in Chapter 131 entitled "General Building Regulations."
(Ord. No. 2022-35, § 1, 10-4-22)

Sec. 8.58. Fee Refunds.

The Building Official may authorize refunding of any fee paid hereunder which was erroneously paid or collected. The Building Official shall not authorize refunding of any fee paid except on written application filed by the original permittee not later than one hundred eighty (180) days after the date of fee payment.
(Ord. No. 2022-35, § 1, 10-4-22)

Sec. 8.59. Reciprocal Provisions.

The City shall permit Electrical Contractors, Fire Alarm and Sign Specialty Contractors, lawfully licensed by other municipalities of the State of Michigan or by the State Electrical Administrative Board, within the scope of licensure to install, alter or repair electrical wiring, equipment, apparatus or fixtures within the corporate limits of the City, upon registration with the City of Grand Rapids Building Inspections Department, which registration shall expire concurrently with the license presented for registration. All other licenses issued by the State of Michigan or other municipality within the State shall be reciprocal.
(Ord. No. 2022-35, § 1, 10-4-22)

Sec. 8.60. Unlawful Conduct; Penalties; Designation of Violation as Municipal Civil Infraction; Fourth and Subsequent Violations Designated as Misdemeanor.

(1) *Definitions.*

Inspector. A City official charged with enforcement of the State Construction Code, including the Michigan Electrical Code.

(2) Except as set forth in Section 8.60(4), any person who engages in the following conduct in violation of this Section, or orders or directs another person to engage in such conduct is responsible for a municipal civil infraction and shall be subject to the penalties described in Chapter 170 of this Code:

(a) Knowingly violates any local or state building codes including the State Construction Code, the Michigan Electrical Code, the Michigan Electrical Administrative Act, the Grand Rapids Code of Ordinances, or any code or a rule promulgated for the enforcement of such codes.

(b) Knowingly installs or maintains equipment in violation of a condition of a permit.

(c) Knowingly fails to comply with an order issued by the City of Grand Rapids as the enforcing agency under this Chapter.

(d) Knowingly makes a false or misleading written statement, or knowingly omits required information or a statement in an inspection report, application, petition, request for approval, or appeal to the City of Grand Rapids as the enforcing agency under this Chapter.

(e) Knowingly refuses entry or access to an inspector lawfully authorized to inspect any premises, building, or structure.

(f) Unreasonably interferes with an authorized inspection.

(g) Knowingly issues, fails to issue, causes to be issued, or assists in the issuance of a certificate, permit, or license in violation of the Grand Rapids Code of Ordinances, the Michigan Electrical Code or any rule promulgated under such Codes or other applicable laws.

(h) Having a duty to report violations of the Michigan Electrical Code or a rule promulgated under this Code or other applicable laws, knowingly conceals a violation.

(3) Each act in violation of this Chapter shall constitute a separate violation of this Code and shall be subject to enforcement for every day upon which any violation shall continue.

(4) Fourth and subsequent violations shall be a misdemeanor punishable by a fine of not more than five hundred dollars ($500.00) or imprisonment for not more than ninety (90) days, or both.

(5) Stop Work Orders. The City is authorized to issue an Order to Stop Work in instances where work is being undertaken without a permit, or in violation of an issued permit. (Reference MCL 125.1512.)

(6) Injunctive Relief. If an Order to Stop Work issued under this Section is not obeyed, the City may apply to the Circuit Court for an order enjoining the continuation of construction undertaken in violation of a building permit, this Code, or any other applicable law. (Reference MCL 125.1512.)
(Ord. No. 2022-35, § 1, 10-4-22)

Secs. 8.61—8.150. Reserved.

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Chapter 134

MECHANICAL CODE*

Sec. 8.151. Assumption of Responsibility.
Sec. 8.152. Applicable Codes.
Sec. 8.153. Codes on File.
Sec. 8.154. Designation of Code Official.
Sec. 8.155. Mechanical Contractor's License Required.
Sec. 8.156. Registration of Contractor's License Required.
Sec. 8.157. Boiler Engineer's License, Boiler Operator's License, Specialty Operator's License.
Sec. 8.158. Application for Permits.
Sec. 8.159. Fees.
Sec. 8.160. Fee Refunds.
Sec. 8.161. Unlawful Conduct; Penalties; Designation of Violation as Municipal Civil Infraction; Fourth and Subsequent Violations Designated as Misdemeanor.
Secs. 8.162—8.200. Reserved.

*__Editor's note—__Ord. No. 2004-45, § 1, adopted Aug. 10, 2004, amended Ch. 134 in its entirety to read as herein set out. Formerly, said chapter pertained to similar subject matter as enacted by Ord. No. 98-17, adopted May 5, 1998; as amended. See Code Comparative Table B.

Sec. 8.151. Assumption of Responsibility.

Pursuant to Section 8b of Act 230, of the Public Acts of 1972, as amended, the City of Grand Rapids has assumed responsibility for the administration and enforcement of the Act throughout its corporate limits.
(Ord. No. 2004-45, § 1, 8-10-04)

Sec. 8.152. Applicable Codes.

This Chapter sets forth procedures for the application and enforcement of the Michigan Mechanical Code.
(Ord. No. 2004-45, § 1, 8-10-04)

Sec. 8.153. Codes on File.

Complete printed copies of the Michigan Mechanical Code are available for public use and inspection at the office of the City Clerk.
(Ord. No. 2004-45, § 1, 8-10-04)

Sec. 8.154. Designation of Code Official.

The Building Official of the Neighborhood Improvement Department shall serve as the code official pursuant to the provisions of the Michigan Mechanical Code.
(Ord. No. 2004-45, § 1, 8-10-04; Ord. No. 2009-62, § 1, 11-10-09)

Editor's note—Section 5 of Ord. No. 2009-62, adopted November 10, 2009, provides for an effective date of 12-1-09.

Sec. 8.155. Mechanical Contractor's License Required.

It shall be unlawful for any individual, partnership, association, corporation, governmental subdivision, college, or university to perform installations, alterations, or servicing of mechanical heating, cooling or refrigeration systems or components within the City of Grand Rapids without first having a Mechanical Contractor's License currently in force as stipulated in Section 7, of the State "Forbes Mechanical Contractors Act" of 1984.
(Ord. No. 2004-45, § 1, 8-10-04)

Sec. 8.156. Registration of Contractor's License Required.

Any Licensed Mechanical Contractor who performs work within the City of Grand Rapids or who is designated as a Licensed Mechanical Contractor by another entity within the City of Grand Rapids shall register said license with the Department.
(Ord. No. 2004-45, § 1, 8-10-04; Ord. No. 2009-62, § 2, 11-10-09)

Editor's note—Section 5 of Ord. No. 2009-62, adopted November 10, 2009, provides for an effective date of 12-1-09.

Sec. 8.157. Boiler Engineer's License, Boiler Operator's License, Specialty Operator's License.

It shall be unlawful for any person, company or corporation to own and/or operate a steam boiler of more than 10 bhp (98.1 kW) or a boiler designed to carry a steam pressure of more than 15 psi (103.4 kPa) within the City of Grand Rapids without having in its employ a Licensed Boiler Engineer who shall be responsible for the maintenance and safe operation of the boiler. It shall further be unlawful for any person, company or corporation within the City of Grand Rapids to allow anyone who does not have a valid Boiler Operator's License to perform the duties of a Boiler Operator. Specialty boilers, as determined by city staff, will be allowed to be operated by employees as per the requirements of item three. Licenses shall be issued by the Building Official as follows:

(1) A Boiler Engineer License shall be issued only to an applicant who has held a Boiler Operator License for at least three years while working full time under the supervision of a Licensed Boiler Engineer or equivalent combination of training and experience and has passed an examination prepared by the Department.

(2) A Boiler Operator License shall be issued only to an applicant having at least one year full-time work under the supervision of a Licensed Boiler Engineer or

equivalent combination of training and experience and having passed an examination prepared by the Department.

(3) A limited Specialty Operator License shall only be issued to an applicant who has been trained on specific equipment by a qualified individual and has passed an examination as prepared by the department.

(4) Licenses shall be renewed annually. Licenses which have been allowed to lapse shall not be renewed unless the delinquent fees are paid up. However, if a license has lapsed for more than three years, the Department may require a written examination.

(5) Any license issued hereunder may be revoked or suspended by the Department after a hearing stating the reason for revocation or suspension. Supplying false information with the application for a license or failure to comply with the provisions of this Chapter, or the rules and regulations adopted thereunder, or failure to properly supervise work performed under a License shall be considered sufficient reason for revocation of a License.

(6) The Department shall establish rules for the examination of applicants desiring to obtain boiler licenses. Such rules shall be available to any person wishing a copy thereof.

(Ord. No. 2004-45, § 1, 8-10-04; Ord. No. 2009-62, § 3, 11-10-09)

Editor's note—Section 5 of Ord. No. 2009-62, adopted November 10, 2009, provides for an effective date of 12-1-09.

Sec. 8.158. Application for Permits.

Mechanical permits required by the Mechanical Code shall be issued only to authorized mechanical contractors, state licensed boiler installers, or single-family occupant homeowners on forms provided by the Department.
(Ord. No. 2004-45, § 1, 8-10-04)

Sec. 8.159. Fees.

Fees required for the administration of this Chapter shall be established from time to time by resolution of the City Commission as set forth in Chapter 131 entitled "General Building Regulations."
(Ord. No. 2004-45, § 1, 8-10-04; Ord. No. 2009-62, § 4, 11-10-09)

Editor's note—Section 5 of Ord. No. 2009-62, adopted November 10, 2009, provides for an effective date of 12-1-09.

Sec. 8.160. Fee Refunds.

The building official may authorize refunding of any fee paid hereunder which was erroneously paid or collected. The building official shall not authorize refunding of any fee paid except on written application filed by the original permittee not later than 180 days after the date of fee payment.
(Ord. No. 2004-45, § 1, 8-10-04)

Sec. 8.161. Unlawful Conduct; Penalties; Designation of Violation as Municipal Civil Infraction; Fourth and Subsequent Violations Designated as Misdemeanor.

(1) *Definitions.*

(a) *Mechanical Safety Inspection* - An in-person inspection of a heating system or heating appliance conducted by a qualified, State licensed contractor for the purpose of certifying that the equipment is functioning in a safe manner consistent with the State Mechanical Code, the Grand Rapids Code of Ordinances, any code or rule promulgated for the enforcement of such codes, and equipment manufacturer's specifications.

(b) *Inspector* - A City official charged with enforcement of the State Construction Code, including the Michigan Mechanical Code.

(c) *Qualified Mechanical Contractor* - A contractor qualified to participate in the City of Grand Rapids Mechanical Safety Inspection Program pursuant to the

Administrative Rules promulgated by the City Manager for the administration of such program.

(2) Mechanical Safety Inspection Certification Required. Any heating system or heating appliance not owned by the occupant of a dwelling unit shall be inspected and serviced by a Qualified Mechanical Contractor as required under Chapter 140 of this Code, being the Grand Rapids Property Maintenance Code.

(3) Except as set forth in Section 8.161(4), any person who engages in the following conduct in violation of this Section, or orders or directs another person to engage in such conduct is responsible for a municipal civil infraction and shall be subject to the penalties described in Chapter 170 of this Code:

(a) Knowingly violates any state or local building code including Michigan Mechanical Code, the Grand Rapids Code of Ordinances, or any code or a rule promulgated for the enforcement of such codes.

(b) Knowingly installs or maintains equipment in violation of a condition of a permit.

(c) Knowingly fails to comply with an order issued by the City of Grand Rapids as the enforcing agency under this Chapter.

(d) Knowingly makes a false or misleading written statement, or knowingly omits required information or a statement in an inspection report, application, petition, request for approval, or appeal to the City of Grand Rapids as the enforcing agency under this Chapter.

(e) Knowingly refuses entry or access to an inspector lawfully authorized to inspect any premises, building, or structure.

(f) Unreasonably interferes with an authorized inspection.

(g) Knowingly issues, fails to issue, causes to be issued, or assists in the issuance of a certificate, permit, or license in violation of the Grand Rapids Code of Ordinances, the Michigan Mechanical Code or any rule promulgated under such Codes or other applicable laws.

(h) Having a duty to report violations of the Michigan Mechanical Code or a rule promulgated under this Code or other applicable laws, knowingly conceals a violation.

(4) Each act in violation of this Chapter shall constitute a separate violation of this Code and shall be subject to enforcement for every day upon which any violation shall continue.

(5) Fourth and subsequent violations shall be a misdemeanor punishable by a fine of not more than five hundred dollars ($500.00) or imprisonment for not more than ninety (90) days, or both.

(6) Stop Work Orders. The City is authorized to issue an Order to Stop Work in instances where work is being undertaken without a permit, or in violation of an issued permit. (Reference MCL 125.1512).

(7) Injunctive Relief. If an Order to Stop Work issued under this Section is not obeyed, the City may apply to the Circuit Court for an order enjoining the continuation of construction undertaken in violation of a building permit, this Code, or any other applicable law. (Reference MCL 125.1512).

(8) The City Manager is authorized to establish and administer a Mechanical Safety Inspection Program under authority of this Code, and shall promulgate any rules and regulations necessary for the administration of such Program.
(Ord. No. 2017-10, § 1, 1-24-17)

Secs. 8.162—8.200. Reserved.

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Chapter 135

BUILDING MAINTENANCE CODE*

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*__Editor's note—__Ordinance No. 87-54, § 1, adopted Aug. 11, 1987, added a new Chapter 135, §§ 8.050—8.130, to the Code. At the editor's discretion, said Sections have been redesignated as §§ 8.201—8.254, in order to conform to the numbering system used elsewhere in this title. Subsequently, Ord. No. 92-69, § 1, adopted Oct. 20, 1992, amended Ch. 135 in its entirety to read as herein set out. See Code Comparative Table B.

__Cross references—__Combustible and solid waste, Ch. 25; urban renewal areas, Ch. 65; general health regulations, Ch. 71; general building regulations, Ch. 131; Housing Code, Ch. 140; abatement of nuisance, § 9.2; dangerous structures, § 9.11 et seq.; litter, § 9.91 et seq.; noxious weeds and nuisances, § 9.111 et seq.; abandoned refrigerators, § 9.121 et seq.; unoccupied buildings and structures, § 9.129 et seq.; fire prevention, Ch. 159.

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ARTICLE 1. IN GENERAL

Sec. 8.201. Findings and Determination of Necessity.

The City Commission finds that there are many non-residential buildings in the City which are poorly maintained and neglected by their owners. These buildings adversely affect citizens who own or occupy nearby buildings and dwellings by lowering property values and rental values. Many of these poorly maintained and neglected buildings have become so dilapidated that occupancy is no longer economically feasible. This increases the incidence of vandalism and fire. The City Commission finds that the elimination and prevention of these conditions is necessary and is in the best interest of the City and its citizens.
(Ord. No. 92-69, § 1, 10-20-92)

Sec. 8.202. Purpose.

The purpose of this Chapter is to maintain, preserve and improve the stock of non-residential buildings in the City. To accomplish this, this Chapter sets out minimum standards for the exterior maintenance of all non-residential buildings. In carrying out this purpose, it is the intention of the City Commission to exercise its full powers to protect the public health, safety and welfare, whether the powers so exercised are derived from the Constitution, State law or the City Charter.
(Ord. No. 92-69, § 1, 10-20-92)

Sec. 8.203. Definitions and Interpretations.

Certain words and terms used in this Chapter are specifically defined at the end of the Chapter. These words and terms are identified by underlining in the text of the Chapter and, when so underlined, these words and terms shall be given the indicated definitions. All other words and provisions of this Chapter shall be interpreted so as to eliminate or prevent the conditions set out in Section 8.201.
(Ord. No. 92-69, § 1, 10-20-92)

Sec. 8.204. Applicability.

The provisions of this Chapter shall apply to any person owning, occupying, managing or controlling any non-residential property in the City as identified by this Chapter.
(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 2002-56, § 1, 9-24-02)

ARTICLE 2. PROPERTY MAINTENANCE STANDARDS

Sec. 8.205. Property Maintenance Required.

All property, regulated by this Chapter, whether occupied or unoccupied and all property including vacant property and/or formerly occupied property shall meet or exceed the standards of this Article.
(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 2002-56, § 2, 9-24-02)

Sec. 8.206. Structural Integrity.

Basic structural elements, foundations, foundation walls and supporting columns shall be in good repair.
(Ord. No. 92-69, § 1, 10-20-92)

Sec. 8.207. Exterior Surfaces.

All exterior finish surfaces shall be weathertight and in good repair and shall not have any holes, cracks or deterioration which allow water or vermin to reach any basic structural element or to enter the interior of any building.
(Ord. No. 92-69, § 1, 10-20-92)

Sec. 8.208. Protection of Exterior Surfaces.

All exterior surfaces of a building or structure made of iron, wood, steel, masonry or other materials which may deteriorate from exposure to weather shall be protected from the weather by a properly applied weather-resistant paint, stain or other waterproof finish. Primers shall be properly covered with a water-resistent finish coating.
(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 93-10, § 1, 2-23-93)

Sec. 8.209. Exterior Windows and Doors.

All exterior windows and doors shall be weather tight and in good repair, intact and functioning as originally intended and designed, or shall be secured against weather by boarding which is painted a color matching that of the adjacent exterior siding. Boarding shall be done in a manner and with materials as specified in this Code. All exterior openings suitable for human or animal entry shall be secured by use of exterior grade plywood, of at least three-eighths (3/8) inch thickness, cut to the size of the opening and secured by use of Phillips headed two (2) inches long screws on all first story or ground accessible points of entry or by use of 16d common nails which are permitted only on entry points being secured above the first story or where not accessible from ground level. Boards shall be placed over all points of entry.
(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 93-10, § 1, 2-23-93; Ord. No. 2002-56, § 3, 9-24-02)

Sec. 8.210. Exterior Attachments.

Exterior attachments to basic structural elements, including but not limited to gutters, downspouts, screening, vents, antennae, tanks, awnings, canopies, marquees, signs, lighting fixtures, handrails, guardrails and utility connections shall be in good repair.
(Ord. No. 92-69, § 1, 10-20-92)

Sec. 8.211. Accessory Improvements.

All accessory improvements located on a property, including but not limited to walkways, driveways, parking areas, storm drains, parking bumpers, steps, handrails, guardrails, signs, lighting fixtures, poles, fences, walls, tanks, antennae and all other freestanding or made structures shall be in good repair.
(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 2002-56, § 4, 9-24-02)

Sec. 8.212. Outdoor Storage.

Outdoor storage of materials of value shall not be permitted to be located between the street and the building nor closer than three (3) feet to any side or rear lot line. Materials of value shall be stored in a safe and sanitary manner, shall not be scattered about and shall not have openings nor be stacked in a manner which may provide harborage for vermin.
(Ord. No. 92-69, § 1, 10-20-92)

Sec. 8.213. Trees and Shrubs.

No tree, shrub or other vegetation shall be allowed to damage a building or block safe vision of a sidewalk, drive or street. No dead tree, trees, or parts thereof shall be permitted on any property regulated by this Chapter.
(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 2002-56, § 5, 9-24-02)

Sec. 8.214. Health and Sanitation.

All exterior areas shall be sanitary and free of trash and garbage.
(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 2002-56, § 6, 9-24-02)

Sec. 8.215. Tenant Responsibility for Maintenance.

A tenant shall be responsible for complying with the standards of this Chapter on that portion of the premises controlled exclusively by the tenant.
(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 2002-56, § 7, 9-24-02)

Sec. 8.216. Owner Responsibility for Maintenance.

The owner of a property shall be responsible for complying with the Standards set forth in this Chapter except as otherwise stated in this Chapter.
(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 2002-56, § 8, 9-24-02)

Sec. 8.217. Good Workmanship.

Additions, replacements, repairs or changes made to buildings, accessory buildings, appurtenances, structures, improvements, or facilities regulated by this Chapter shall be made with good workmanship.
(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 2002-56, § 9, 9-24-02)

Sec. 8.218. Exterior Security Lighting.

An exterior light fixture in good repair shall be provided adjacent to each entryway and exit located at the front, side or rear of a building having electrical service. Such light fixture shall be lit between the hours of 7:00 p.m. and 7:00 a.m. daily.
(Ord. No. 93-10, § 2, 2-23-93; Ord. No. 2002-56, § 10, 9-24-02)

Sec. 8.219. Street Address Visible.

Street addresses, as required and regulated by Title IV of the City Code shall also be provided for any building regulated by this Chapter so as to identify the building from an adjacent public alleyway.
(Ord. No. 93-10, § 2, 2-23-93)

Sec. 8.220. Vacant Property Identification.

An identification sign in good repair and visible from the street shall be affixed to a vacant unoccupied property regulated by this Chapter. Such sign shall provide the name and phone number of the property owner or other responsible person to be contacted regarding maintenance or an emergency.
(Ord. No. 93-10, § 2, 2-23-93; Ord. No. 2002-56, § 11, 9-24-02)

Sec. 8.221. Reoccupancy of Vacant Properties.

No building where electrical service or water service has been terminated shall have services restored until a Certificate of Use and Occupancy or a Certificate of Permitted Occupancy has been issued by the City.
(Ord. No. 93-10, § 2, 2-23-93; Ord. No. 2002-56, § 12, 9-24-02)

Sec. 8.222. Registration of Abandoned Properties.

Owners of abandoned properties shall register such properties as required by this Chapter. Registration requirements will not preclude the City from taking appropriate actions to secure the property or to issue orders to repair or abate or from acting upon imminent hazard(s).
(Ord. No. 2002-56, § 13, 9-24-02)

Sec. 8.223. Registration Information.

For each abandoned or vacant property, and for any structure which is abandoned, as defined in this Code, the owner(s) shall register with the City and shall provide the following information:

(1) Legal name of owner(s) and date of birth.

(2) Address of owner(s), both locally and as otherwise appropriate.

(3) Name, address, and telephone number of any agent or representative authorized by the owner to handle the affairs of the property, if employed. If such an agent or representative is utilized, he/she must reside within a one-hour driving radius of the City.

(4) Telephone number(s) of owner for contact purposes.

(5) Proof of identification of owner.

(6) Enclosed statement which shall contain the following data:

a. Estimated length of time property is expected to remain unused,

b. Reason for nonuse, and

c. Plans for restoration, reuse or removal. This must be accompanied by a timeline or work schedule.

(7) Such additional information as is required by the City.
(Ord. No. 2002-56, § 14, 9-24-02)

Secs. 8.224—8.229. Reserved.

ARTICLE 3. ENFORCEMENT PROCEDURES

Sec. 8.230. Inspections Authorized.

The standards of this Chapter are to be enforced by inspections of buildings, accessory structures and any property subject to any of the terms of this Chapter.
(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 2002-56, § 15, 9-24-02)

Sec. 8.231. Geographic Applicability.

The provisions of this Chapter shall apply to all non-residential buildings, structures and properties located in the City of Grand Rapids.
(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 95-19, § 1, 4-11-95; Ord. No. 2002-56, § 16, 9-24-02)

Sec. 8.232. Enforcement Process.

The City may, but shall not be required to, bring a violation of the standards established in this Chapter to the attention of the property owner or other responsible person by issuing a Notice of Violation or by any other lawful means. The City may prosecute or take other appropriate action regarding a violation of this Chapter without issuing a Notice of Violation.
(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 2002-56, § 17, 9-24-02)

Sec. 8.233. Time to Correct Violations.

Any Notice of Violation shall provide a specified time for achieving compliance in relation to the seriousness of the violation. If a Notice of Violation is issued, the following time limits shall be used:

(1) Not more than twenty-four (24) hours for an emergency.

(2) Not more than ten (10) days for correcting hazardous conditions.

(3) Not more than one hundred twenty (120) days for all other violations, except as stated otherwise below.

(4) The Administrator may approve an extension of time to correct a violation up to the doubling of the time provided in a written Notice when there are documented extenuating circumstances beyond the control of the responsible person or where the responsible person has made a substantial documented effort to correct violations. Granting of an administrative appeal shall be in lieu of an appeal to the Building Maintenance Appeal Board. No appeal to the Board shall be allowed if an administrative extension has been granted.

(5) No other extensions or further extensions shall be permitted except by order of the Building Maintenance Appeal Board for good cause shown. The Building Maintenance Appeal Board shall be permitted to grant extensions up to but not exceeding three (3) times the length of time provided within the original Notice of Violation. The Board shall not permit more than one (1) extension. The Board shall be permitted to grant extensions when it can be demonstrated to the Board's satisfaction that the time allowed is unreasonable, circumstances have prevented a good faith effort to comply, or substantial work has been completed and additional time is warranted to complete the necessary repairs.

(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 2002-56, § 18, 9-24-02)

Sec. 8.234. Fees.

The following fees shall be paid by a responsible person to the City. Unpaid fees shall be a personal debt to the City which may be assessed as a lien against the inspected property until paid:

(1) One hundred seventy five dollars ($175.00) for issuance of a Notice of Violation.

(2) One hundred fifty dollars ($150.00) for an administrative extension of a Notice of Violation.

(3) One hundred dollars ($100.00) for issuance of any City Attorney letter warning of impending prosecution action.

(4) Two hundred dollars ($200.00) for any reinspection requested by a City Attorney,

the Court or an Officer of the Court to determine compliance with a cited violation of this Chapter.

(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 93-30, § 1, 7-13-93; Ord. No. 2002-56, § 19, 9-24-02)

Sec. 8.235. Emergency Orders.

If the City determines that a condition exists or is likely to exist which is an emergency, the City shall immediately attempt to verbally inform the responsible person and all occupants of the building of the nature of the condition. The City shall immediately attempt to give Verbal Notice to the responsible person to correct the condition. Such an order shall be effective immediately. A written Notice of Violation called for by this Chapter shall be prepared and mailed and/or personally served to the responsible person as soon as practicable after the Verbal Notice herein referred to has been attempted. Failure to comply with an emergency order is a violation of this Code. If notice is attempted to be served in good faith but cannot be completed prior to having to take action necessary to abate an emergency condition, such notice shall be posted upon the subject property in a prominent location. Failure to comply with an emergency notice or order is a violation of this Chapter.

(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 2002-56, § 20, 9-24-02)

Sec. 8.236. Abatement of Emergency.

If the responsible person cannot be contacted or fails to correct an emergency condition within the time ordered, the City Manager or a representative of the City Manager may authorize corrective actions to abate the emergency. The cost of abatement shall be billed to the owner as a personal debt which, if unpaid, may be assessed as a lien upon the property involved.

(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 2002-56, § 21, 9-24-02)

Sec. 8.237. Authorization to Condemn.

It shall be unlawful for any person to occupy or any person other than the owner to enter any building or accessory building the City has condemned as unfit for human occupancy or entry for any of the following reasons or conditions:

(1) An emergency condition is present.

(2) A hazardous condition cited in a Notice of Violation has not been corrected.

(3) A Notice of Violation, which contains an order to Repair or Demolish has been issued to the owner.

(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 2002-56, § 22, 9-24-02)

Sec. 8.238. Emergency Entry Authorized.

When an emergency is believed to exist within a property, building or accessory building, the City shall have the right to enter immediately and at any time without a warrant or without requesting permission. Entry must be for the sole purpose of determining that an emergency exists or to abate an emergency condition known to exist.

(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 2002-56, § 23, 9-24-02)

Sec. 8.239. Complainant Information.

Prior to recording a complaint alleging a violation of the provision of this Chapter, the City may record the name, address and telephone number of the complainant, but only if such information is provided.

(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 2002-56, § 24, 9-24-02)

Sec. 8.240. Change in Ownership.

An owner or responsible person of a property who has received a notice regarding a violation of a provision of this Chapter shall notify the City by writing the inspector within ten (10) days of transferring ownership of the cited property to another person. The notice to the City shall include the name, address and telephone number of the new owner and the effective date of the transfer of ownership. The City shall immediately issue a new Notice of Violation to any new person assuming the ownership or the status of responsible person for any property which has been cited in a Notice of Violation. An owner or responsible

person who has failed to comply with a Notice of Violation shall remain responsible for any violations cited in a Notice of Violation and shall not be relieved of the responsibility of having violated any provision of this Chapter by transferring ownership or responsible person status.
(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 2002-56, § 25, 9-24-02)

Sec. 8.241. Reserved.

Editor's note—Ord. No. 2002-56, § 26, adopted Sept. 24, 2002, repealed § 8.241, which pertained to recurrent violations. See the Code Comparative Table.

Sec. 8.242. Removal of Posted Sign or Notices.

No person shall remove, damage, deface, interfere with, move or conceal any Notice or sign posted in accordance with the provision of this Chapter without first obtaining permission of the City.
(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 2002-56, § 27, 9-24-02)

Secs. 8.243—8.254. Reserved.

ARTICLE 4. COURT ORDERS, PENALTIES AND FEES

Sec. 8.255. Violations Separate.

Each violation of any provision of this Chapter may be charged as separate violation of this Code. Each violation shall be denominated as a separate count on the complaint or appearance ticket and on any warrant issued pursuant thereto. Each count shall be submitted separately to the Court or jury for its determination as to the defendant's guilt. Upon conviction, the Court shall sentence the defendant separately on each count.
(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 2002-56, § 28, 9-24-02)

Sec. 8.256. Penalties and Sentencing.

Upon conviction for violation of any provision of this Chapter, the Court shall sentence the defendant to pay a fine of up to five hundred dollars ($500.00) or up to ninety (90) days in jail or both such fine and such imprisonment for each count as provided for in the Charter of the City of Grand Rapids and as provided for by state law. The Court shall exercise its authority to sentence the defendant to a term of probation and to prescribe the conditions therefore and its power to suspend all or part of any fine or term of imprisonment, so as to bring about compliance with the terms of this Chapter and to prevent further violations.
(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 2002-56, § 29, 9-24-02)

Sec. 8.257. Fines and Jail Sentences.

Fines and jail sentences shall reflect the seriousness of each offense as well as the history of the person convicted. Fines and jail sentences shall not be less than the following amounts for each separate offense:

(1) At least one hundred fifty dollars ($150.00) and/or fifteen (15) days in jail for each failure to comply with an emergency order or correct a hazardous condition.

(2) At least fifty dollars ($50.00) and/or five (5) days in jail for each failure to comply with any other provision of this Chapter or any order or Notice issued in accordance with the provisions of this Chapter.

(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 2002-56, § 30, 9-24-02)

Sec. 8.258. City Costs.

Upon conviction for violation of any provision of this Chapter, the Court shall order the defendant to reimburse the City for all of the costs of enforcement of this Chapter attributable to the violations for which the Defendant was convicted, including but not limited to the costs of inspection, prosecution and administration. If such condition is not imposed, the City may file a civil action against the defendant and may, upon proof of the defendant's conviction, recover all of the costs referred to above.
(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 2002-56, § 31, 9-24-02)

Sec. 8.259. Reserved.

Editor's note—Ord. No. 95-19, § 2, adopted April 11, 1995, repealed § 8.259 which pertained to fees. See the Code Comparative Table.

Sec. 8.260. Fines Doubled.

In cases of recurrent violations as set forth in herein, the minimum fines set forth in this Article shall be doubled.
(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 2002-56, § 32, 9-24-02)

Secs. 8.261—8.264. Reserved.

ARTICLE 5. BUILDING MAINTENANCE APPEAL BOARD

Sec. 8.265. Creation and Purpose.

A Building Maintenance Appeal Board is created for the purpose of hearing and deciding appeals concerning the application or interpretation of the provisions of the Standards of this Chapter as provided herein.
(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 2002-56, § 32A, 9-24-02)

Sec. 8.266. Appeal Authorized.

Except as otherwise provided in this Chapter, any person issued a notice by the City in the course of enforcement of the provisions of this Chapter may appeal the decision or interpretation made by the City. All appeals shall be filed, heard and decided in accordance with the provisions of this Article.
(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 2002-56, § 33, 9-24-02)

Sec. 8.267. Time Period for Filing an Appeal.

An appeal must be filed within twenty (20) days of the date of any order or notice being appealed. However, if an order requires the correction of a cited violation within a shorter period of time, the appeal must be made within such shorter period. The Appeal Board shall not have the power to extend the time limits provided for in this Section.
(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 2002-56, § 34, 9-24-02)

Sec. 8.268. Effect of Appeal on Correction Time Limits.

A responsible person who has been ordered to correct a violation within a specified period of time shall not be held accountable for any time which elapses between the time of filing an appeal and the time a decision is made by the Appeal Board.
(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 2002-56, § 35, 9-24-02)

Sec. 8.269. Procedure for Filing an Appeal.

Any person wishing to make an appeal must fill out a Claim of Appeal form setting forth the order or ruling being appealed. The appellant must file the form with the City at a place to be designated by the Board and which shall be noted on the Claim of Appeal form. The City will send a notice to the appellant regarding the date the appeal will be heard by the Appeal Board. Notice of the hearing date will be by regular mail sent to the address stated on the Claim of Appeal. Any person requesting a Claim of Appeal form shall be notified of the Standards for Appeal Board Decisions.
(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 2002-56, § 36, 9-24-02)

Sec. 8.270. Appeal Fee.

An appeal fee established by resolution of the City Commission shall be submitted with any Claim of Appeal. The Appeal Board may also authorize the return of a fee to an appellant if the Board determines that an error by the City caused an unnecessary appeal to be submitted.
(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 2002-56, § 37, 9-24-02)

Sec. 8.271. Procedures Prior to Hearing.

Prior to an appeal hearing, the following procedures shall take place:

(1) The City shall forward copies of the Claim of Appeal and a copy of the notice or order being appealed to members of the Housing Appeal Board.

(2) The Housing Appeal Board may arrange for a Committee composed of a member or

members of the Housing Appeal Board to make an investigation of the premises which are the subject of the appeal in those cases where an on-site viewing of the premises would aid the Board in making its decision.

(3) or,

(4) The Housing Board of Appeals may arrange for staff or others to prepare a video tape or photographic presentation of the property subject to appeal. This presentation shall include, as elements, the exterior view of the dwelling, from all sides, the exterior view of adjoining properties, specific illustration of the issue(s) of the appeal, and interior illustration as needed to make a determination.

(5) The City shall notify the owner and all occupants of the premises that is the subject of the appeal. The City shall also notify, to the extent possible, all taxpayers of record of properties which are within two hundred (200) feet of the premises being appealed and either face on the same street as the premises or are located in the same block behind the premises.

(6) Failure of the owner or other responsible person to arrange access to any portion of the property where a cited violation is located and which is not clearly visible from a public street or alley shall constitute grounds for denial of an appeal.

(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 2002-56, § 38, 9-24-02)

Sec. 8.272. Hearings on Appeals.

All hearings on appeals shall take place at a regular or special meeting of the Appeal Board. The City shall have a minimum of fifteen (15) days after a Claim of Appeal is filed to issue the required notices. The appeal shall be heard at the first regularly scheduled meeting of the Board following the fifteen-day period for which the hearing is scheduled, provided that a quorum is present. When a quorum is not present, the President or other presiding member of the Board shall reschedule the meeting, and the appeal shall be heard at the rescheduled meeting. A hearing may be held at a special meeting by a majority vote of the Board.

(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 2002-56, § 39, 9-24-02)

Sec. 8.273. Hearing Procedures.

At any hearing of the Appeal Board, the following procedures shall be followed:

(1) Testimony of the appellant, the City and any witnesses shall be heard. A summary or minutes shall be recorded in a manner determined by the City.

(2) The appellant, or authorized agent of the appellant, and the City inspector or a Supervisor of the inspector who issued the Notice shall be present.

(3) At least five (5) members of the Appeal Board shall be present at a hearing and shall constitute a quorum.

(4) Summary minutes shall be prepared to show all motions and actions of the Board.

(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 2002-56, § 40, 9-24-02)

Sec. 8.274. Decision by the Appeal Board.

After all evidence and testimony has been presented, the Appeal Board shall affirm, modify or reverse the notice being appealed. Any decision of the Appeal Board modifying or reversing a notice by the City shall require the concurring vote of five (5) members. If any appeal is adjourned more than one (1) time, it shall be deemed to be an affirmance of the ruling or order issued.

(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 2002-56, § 41, 9-24-02)

Sec. 8.275. Standards for Appeal Board Decisions.

A decision by the Appeal Board shall include the reasons for the decision in the language of the decision. Any decision of the Board not complying

with this Section shall be void. Any decision to reverse or modify any order or ruling of the City shall:

(1) Include any necessary special conditions to carry out the intent of the provisions being appealed, and

(2) Determine that the decision is necessary to avoid causing undue hardship to the appellant which is not caused to others to whom the same provision is applied, or

(3) Determine that the order or ruling was an incorrect interpretation of a Standard of this Chapter, or

(4) Determine that an alternative proposed by an appellant meets the minimum standards for building maintenance as expressed in this Chapter.

(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 2002-56, § 42, 9-24-02)

Sec. 8.276. Appeals Prohibited.

An emergency order shall not be appealed because, of imminent danger calling for immediate action. A ruling, decision, opinion or action of the City Attorney cannot be appealed to the Appeal Board.

(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 2002-56, § 43, 9-24-02)

Sec. 8.277. Interests Conflicts.

No member of the Appeal Board shall speak or vote on any appeal in which the member has any direct personal or financial interest nor shall any member participate in any matter where participation is prohibited by the City Charter or State Law.

(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 2002-56, § 44, 9-24-02)

Sec. 8.278. Summary of Rulings.

The Appeal Board shall report a summary of its findings and rulings to the City Commission annually. The report shall include a summary of recurrent appeals or recurrent problems, along with resultant recommendations for modifications to this Chapter.

(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 2002-56, § 45, 9-24-02)

Sec. 8.279. Appeal Board Designated.

The Housing Appeal Board of the City of Grand Rapids, as constituted by Chapter 140 of the City Code, shall serve as the Building Maintenance Appeal Board.

(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 2002-56, § 46, 9-24-02)

Sec. 8.280. Compliance with Appeal Board Decisions.

It shall be a violation of this Code for a responsible person to fail to comply with special conditions which are a part of an Appeal Board decision modifying or reversing an order or ruling of the City.

(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 2002-56, § 47, 9-24-02)

Secs. 8.281—8.284. Reserved.

ARTICLE 6. DEFINITIONS

Sec. 8.285. Definitions.

All words and phrases used in this Chapter shall be given their common and normal meaning unless defined in this Chapter. The words and phrases defined hereinafter shall be given the meaning indicated in the interpretation and enforcement of this Chapter.

(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 2002-56, § 48, 9-24-02)

Sec. 8.286. General Term Usage.

Unless the context clearly indicates otherwise, when words are used in this Chapter, the following rules of construction shall apply:

(1) The singular includes and shall apply to the plural, and the plural applies to and includes the singular.

(2) The masculine gender shall include the feminine and neuter, and the feminine and neuter shall include the masculine.

(3) Where the text uses the negative of a defined word, the negative of the definition shall be applied.

(4) The definition of a verb or a noun shall be used in an appropriate fashion where the adverbial or adjectival form of the word is used.

(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 2002-56, § 49, 9-24-02)

Sec. 8.287. Definitions.

The following words and terms shall mean:

(1) Abandon shall mean the failure to continue the exercise of care, custody and control of property owned by a person, including the nonpayment of real property taxes.

(2) Abandoned non-residential structure - For the purposes of this Article, an abandoned non-residential structure shall mean any building or property with a structure which has been used or was intended for use as a non-residential unit, in whole or part, which has become and which meets at least one (1) of the following categories:

a. Is open to entry;

b. Is fire damaged to an extent which prohibits safe occupancy;

c. Is open to trespass;

d. Is the site of loitering or vagrancy;

e. Has criminal activity in vicinity;

f. Demonstrates a lack of property maintenance and upkeep as evidenced by one (1) or more violations of this Code;

g. Is under notice for being in violation of City ordinances;

h. Is boarded for at least thirty (30) days;

i. Has taxes in arrears for a period of time exceeding three hundred sixty-five (365) days;

j. Has utilities disconnected or not in use;

k. Is under condemnation notice or legal order to vacate;

l. Is structurally unsound;

m. Is a potential hazard or danger to persons.

(3) Administrator means the City Supervisor charged with the responsibility for administering the provisions of this Chapter, or the superiors of the Supervisor.

(4) Basic Structural Elements means the parts of a building which provide the principal strength, stability, integrity, shape and safety of the building, including, but not limited to plates, studs, joists, rafters, stringers, stairs, sub-flooring, flooring, sheathing, lathing, roofing, siding, window frames, door frames, porches, railings, eaves, chimneys, flashing, masonry and all other essential components.

(5) Building means any structure upon a property, presently or formerly used or intended to be used in whole or in part for the purpose of commerce, trade, manufacture, business, government, worship, education, office, medical, storage or any other purpose.

(6) Certified Mail means that class or type of mail designated by the U.S. Postal Service as "certified mail" and also includes the class or type of mail designated as "registered mail" and "registered mail, return receipt requested".

(7) City means the municipal corporation that is the City of Grand Rapids and includes all authorized agents of the City of Grand Rapids, when acting within the scope of their authority.

(8) Court means a court of competent jurisdiction.

(9) Deteriorate means to decay, decompose or degenerate.

(10) Deterioration or deteriorated means the fact or process of decay or degeneration which has progressed to the point where

it has resulted in or will soon result in making an object or mechanism unsafe, unsanitary, inoperable, unusable or unsuitable for its intended use, including, but not limited to the advanced stage of rot, rust, mold, vermin ingestion, infestation or destruction.

(11) Emergency means a condition which is a violation of this Chapter and which constitutes an imminent danger calling for immediate action in order to avoid death, injury or illness to a human or the destruction or severe damaging of real or personal property.

(12) Garbage means any spoiled or discarded animal or vegetable material resulting from the handling, preparation, cooking or consumption of food for humans or animals, as well as other organic waste material subject to rapid decomposition, including trash to which such material has adhered.

(13) Good Repair means to be properly installed, stable and maintained sufficiently free of defects or deterioration so as to be functional for its present use and to be safe and sanitary.

(14) Good Workmanship means completing a task of addition, change, construction, repair or replacement to industry standards, using like materials, so that the result is free of defects, operates as intended and creates no unsafe conditions.

(15) Hazardous means a condition which is a violation of this Chapter and which the Administrator has determined to be likely to result in the death, injury or illness of a human or in severe damage to real or personal property.

(16) Insects includes, but is not limited to, termites, roaches, ants, bees, wasps, hornets, yellow-jackets and other similar destructive or dangerous bugs and flying life forms.

(17) Inspector means any employee of the City whose responsibilities include enforcement of the provisions of this Chapter.

(18) Intended means:

(a) The purpose, operation and/or arrangement for which something has been designed or built, or

(b) The purpose, operation and/or arrangement for which something is currently, safely and legally being used.

(19) Non-residential means any structure or portion of a structure occupied or intended to be occupied, in whole or in part, for a use other than a dwelling, home, residing place, living space or sleeping space for one (1) or more human beings, either permanently or transiently.

(20) Owner or ownership means any person holding legal or equitable title to a property or to real improvements upon a property, solely, jointly, by the entireties, in common, or as land contract vendee. Owner shall also mean any person who in fact has been empowered to act on behalf of, or as the agent of the owner. Owner shall also mean a person who has or exercises care, custody, dominion or control over any property. Owner shall not include any person who is a tenant.

(21) Person means a human individual, an association of individuals, a public, private or not-for-profit corporation, a firm or partnership.

(22) Property means any lot or parcel of land inclusive of any building or improvements located thereon.

(23) Regular Mail means that class of mail designed by the U.S. Postal Service as "first class" mail. Regular Mail shall also include post cards and postal cards.

(24) Responsible Person means an owner or a person or persons designated in this Chapter as being responsible for meeting the standards of this Chapter.

(25) Safe means a condition which is not likely to do harm to humans or to real or personal property.

(26) Sanitary means free of grease, excrement, dirt, food residue, garbage, rust or similar matter which can harbor bacteria unsafe to humans or animals, or which produces strong odors or which provides food for, or is an available source of food for, animals or insects.

(27) Signature means the handwritten name of a person or a facsimile thereof.

(28) Structure means anything constructed or placed upon a property which is supported by the ground or which is supported by any other structure, except a currently operable licensed vehicle.

(29) Trash means waste materials and items which are not in good repair or are discarded and which are of little or no value, including, but not limited to plaster, paper, wrappings, plant cuttings, household furnishings, building materials, packing and clothing, appliances, equipment, machinery or parts thereof.

(30) Unsafe means a condition which is reasonably likely to do harm to humans or property if not corrected or stopped.

(31) Verbal Notice means notice of the existence of an emergency given directly or by telephone to a responsible person.

(32) Vermin means rodents, birds and insects which are destructive of real or personal property or injurious to health.

(Ord. No. 92-69, § 1, 10-20-92; Ord. No. 2002-56, § 50, 9-24-02)

Secs. 8.288—8.300. Reserved.

[The next page is 3789]

Chapters 136—139

RESERVED*

Secs. 8.301—8.500. Reserved.

*Editor's note—Chapter 136, Sign Regulations, §§ 8.628—8.660, was repealed by Ord. No. 74-88, adopted Oct. 29, 1974.

[The next page is 3889]

Chapter 140

PROPERTY MAINTENANCE CODE*

Sec. 8.501. Adoption of the Code.
Sec. 8.502. Availability.
Sec. 8.503. Penalties.
Sec. 8.504. Amendments to the Code.

*__Editor's note—__Ord. No. 2012-35, § 1, adopted June 19, 2012, effective July 1, 2012, amended chapter 140 in its entirety to read as herein set out. Former chapter 140, §§ 8.501—8.505, 8.510—8.522, 8.525—8.546, 8.550—8.557, 8.560—8.566, 8.570—8.591, 8.595—8.610, 8.615—8.627, 8.640—8.646, 8.655—8.662, 8.670—8.679, 8.685—8.689, 8.700—8.708, 8.715—8.719, 8.725—8.729, 8.735—8.738, 8.745—8.747 pertained to Housing Code. See Code Comparative Table for detailed analysis of repeal and inclusion.

__Cross references—__Department of Community Improvement and Inspection Services, § 1.101 et seq.; Housing Commission, § 1.353 et seq.; taxation of low cost housing, § 1.410 et seq.; City Water System, Ch. 26; Sewage Disposal System, Ch. 27; trees, Ch. 42; street numbers, §§ 4.27, 4.28; zoning, Ch. 61; subdivision regulations, Ch. 64; urban renewal areas, Ch. 65; historic preservation, Ch. 68; general building regulations, Ch. 131; fences, Ch. 141; nuisances, Ch. 151; fire prevention, Ch. 159; discrimination in housing, Ch. 160; alarms, Ch. 163.

__State law reference—__The Housing Law of Michigan, 1917, P.A. 167, MCL 125.401 et seq.

Sec. 8.501. Adoption of the Code.

The 2021 edition of the International Property Maintenance Code as published by the International Code Council, Inc. is adopted by reference as herein modified for the purposes of protecting the public health, safety and welfare in all existing structures, residential and nonresidential, and on all existing premises by establishing minimum maintenance standards for all structures and occupants of all structures; and providing for administration, enforcement and penalties. The 2021 edition of the International Property Maintenance Code, together with the provisions of this Chapter, shall be known and may be cited as the "Property Maintenance Code" of the City of Grand Rapids.
(Ord. No. 2012-35, § 1, 6-19-12, eff. 7-1-12; Ord. No. 2023-22, § 1, 6-13-23)

Sec. 8.502. Availability.

Complete copies of this Property Maintenance Code of the City of Grand Rapids are available at the Office of the City Clerk for inspection by the public. Complete copies of the International Property Maintenance Code, 2021 edition as published by the International Code Council, Inc., and referenced herein, are also available at the Office of the City Clerk for inspection by the public.
(Ord. No. 2012-35, § 1, 6-19-12, eff. 7-1-12; Ord. No. 2023-22, § 2, 6-13-23)

Sec. 8.503. Penalties.

Failure to comply with a provision of this Chapter shall constitute a civil infraction, except for those provisions that pertain to the following, which shall constitute a misdemeanor:

(1) An unsafe structure or equipment as described in Section 111, or any violation which creates an imminent danger as described in Section 112.

(2) A Utility Interruption.

(3) A dwelling that has been condemned for human occupancy and/or a Notice to Vacate Condemned Dwelling has been issued.

(4) A failure to comply with a Notice to Repair or Demolish.

(5) Notwithstanding the foregoing, a misdemeanor complaint shall be issued where three (3) or more Civil Infraction Citations have been issued for the same violation(s) to the same owner.

(6) Failure to comply with a Stop Work Order issued under authority of Section 110.

(Ord. No. 2012-35, § 1, 6-19-12, eff. 7-1-12; Ord. No. 2023-22, § 3, 6-13-23)

Sec. 8.504. Amendments to the Code.

The following sections and subsections of the 2021 International Property Maintenance Code are hereby amended or deleted, and additional sections are added as indicated. The section numbers used below follow the same numbering convention as the sections of the 2021 International Property Maintenance Code.

101.1 Title. These regulations shall be known as the Property Maintenance Code of the City of Grand Rapids, hereinafter referred to as "this Code".

103.1 Creation of agency. The Code Compliance Department or Division, herein referred to as "the Department," has assumed responsibility for implementation, administration and enforcement of the provisions of this Code. The official in charge, or their designee, thereof shall be known as the "code official."

104.1 Fees. The fees for activities and services performed by the Department in carrying out its responsibilities under this Code shall be established from time to time by resolution of the City Commission, and shall include the services indicated in the following schedule. No monitoring fees shall be assessed for the first sixty (60) days.

(1) Administrative hourly rate;

(2) Special Inspections conducted after business hours, on weekends or holidays, per hour;

(3) Registration of Rental Property, per building;

(4) Certificate of Compliance issued before expiration date;

(5) Certificate of Compliance issued after expiration;

(6) New Construction - Certificate of Compliance;

(7) Notice of Violation;

(8) Notice to Vacate;

(9) Inspection fee for every additional inspection, including but not limited to: court requested, attorney requested, progress inspection at request of owner/manager and/or Housing Appeal Board, Housing Rehab request;

(10) Failure to keep appointment, arrange for inspection, or provide entry for scheduled inspection;

(11) Occupied without a Certificate of Compliance, or vacant unit under orders occupied prior to compliance approval inspection;

(12) Administrative or Progress Extension;

(13) Housing Appeal filed by last appeal date; Housing Appeal filed after last appeal date;

(14) Ownership Research for any property not occupied by the property owner includes, but not limited to returned mail processing & lack of current registration;

(15) Title Search;

(16) Warning of Prosecution Letter;

(17) Issuance of Relocation Payment (plus relocation amount);

(18) Monitoring Fee for Vacant/Abandoned Structure and/or Prosecution Cases;

(19) Notice to Repair or Demolish;

(20) Demolition, per structure;

(21) Contact Request;

(22) Search Warrant;

(23) Prosecution Preparation;

(24) Recording document at Kent County Register of Deeds;

(25) Condemned for Human Occupancy;

(26) Collection Services Fee, as charged by the City Treasurer;

(27) Abatement of Nuisance.

104.1.1 Lien against property. Whenever the City has cited a property for any violation of this Chapter, the cost of service as established by City Commission resolution, shall be billed to the property owner. Such billing shall be personal debt of the owner to the City, which may be assessed as a lien against the property, including interest thereon, until paid.

105.3.1 Right of entry for abandoned or vacant structures. If the owner has failed to secure a property and it has been secured by the City, the City may enter or re-enter the structure to conduct necessary inspections to assure compliance with the requirements of this Code and to determine if there are emergency or hazardous conditions.

110.4 Failure to comply. Any person who shall continue any work after having been served with a stop work order, except such work as that person is directed to perform to remove a violation or unsafe condition, shall constitute a violation of this Code as provided in Section 8.503.

111.4.2 Method of service. Notice of a violation of this Chapter shall be deemed to be properly served if a copy thereof is:

(1) Delivered personally; or

(2) Sent by first-class mail addressed to the last known address of the responsible person; and a copy posted in a conspicuous place in or about the structure affected by such notice.

111.9.1 Work hours for a condemned property. Work to restore a condemned property may only take place between the hours of 7 a.m. and 10 p.m. Anyone found in a condemned property outside of those hours shall be in violation.

301.4 Dwelling required. No person shall occupy nor allow the occupancy of a structure, vehicle, or property that is not designed, constructed, or approved as a permanent dwelling.

302.4 Weeds. Refer to Title IX, Chapter 151 for enforcement.

302.8. Motor Vehicles. Refer to Title IX, Chapter 151 for enforcement.

302.10 Outdoor storage of materials. Outdoor storage of materials of value shall not be permitted on a porch, in a front yard or closer than three (3) feet to a dwelling, accessory building or to side or rear lot line. Materials of value kept outside shall be stored in a safe and sanitary manner, shall not be scattered about and shall not have openings that may provide harborage for vermin.

302.11 Entry/Exit lighting requirements. Each entry or exit from or to the exterior shall be equipped with an exterior wall or ceiling mounted light fixture. Basement entries that are not typically used for a common entry into the building are excluded. Such exterior fixtures shall be controlled by a wall-mounted switch located on the interior of the same entry or exit. The location of the switch shall not be obstructed by the door or any obstacle. Motion-activated or photocell lighting is acceptable in place of a wall-mounted switch located on the interior of the same entry or exit.

304.3 Premises Identification. Refer to Title IV, Chapter 51 for enforcement.

304.14 Insect screens. During the period from May through October, every door, window and other outside opening required for ventilation of habitable rooms, food preparation areas, food service areas or any areas where products to be included or utilized in food for human consumption are processed, manufactured, packaged or stored shall be supplied with approved tightly fitting screens of minimum 16 mesh per inch (16 mesh per 25 mm), and every screen door used for insect control shall have a self-closing device in good working condition.

304.15 Doors. All exterior doors, door assemblies, operator systems if provided, and hardware shall be maintained in good condition. All exterior doors used by occupant(s) or the public shall include a lock in good condition in accordance with Section 702.3. Locks at all entrances to dwelling units and sleeping units shall tightly secure the door. Locks on means of egress doors shall be in accordance with Section 702.3. All entry/exit doors shall be equipped with a peephole door viewer installed not more than five (5) feet from the floor and in good repair, unless the door is equipped with a window or there is a window adjacent to the door.

304.18.2 Windows. All windows of a unit that are accessible to the public shall be installed and equipped with a locking device in good repair. Every opening single or double hung sash window that is on the ground floor of a dwelling or which is otherwise readily accessible to the public shall be equipped with easily removable window pinning or other window stop devices in good repair which will secure the window in a closed position and in a partially open position of four (4) to six (6) inches for ventilation.

307.1 Handrails/Guardrails. A handrail in good repair shall be provided for any interior or exterior stairway with four (4) or more stair risers. Stairs with steps having a tread depth of more than three (3) feet need not have a handrail. Spindles meeting the requirements of the applicable locally-adopted construction code are required on handrails except for basement steps leading to an unfinished basement. Any side of an open stairway, stairwell, porch, stoop, patio or floor which is thirty (30) inches or more above the immediate adjacent step, floor or ground, shall be provided with a guardrail at least thirty-six (36) inches high for one- and two-family dwellings or forty-two (42) inches high for multi-family dwellings. Such guardrails shall be in good repair, fitted with vertical balusters, horizontal rails, masonry or other approved structural material, so that the narrowest dimension of any opening below the guardrail is not greater than four (4) inches. Any such balusters or rails shall be securely anchored and in good repair. Components of wooden balusters or rails shall have a minimum thickness of at least one-half (½) inch. Guardrails and baluster spacing of differing dimensions located within a Historic District or upon a designated Historic Landmark may be approved by the City Historic Preservation Commission to preserve original construction designs.

602.3 Heat supply. Every owner and operator of any building who rents, leases, or lets one or more dwelling units or sleeping units on terms, either express or implied, to furnish heat to the occupants thereof shall supply heat at a minimum temperature of 68°F (20°C) in all habitable rooms, bathrooms and toilet rooms.

602.4 Occupiable work spaces. This section of the Code shall be omitted from enforcement.

603.1.1 Heating system inspections. Any heating system, heating appliance, or water heater not owned by the occupant of a unit shall be certified to be in good working condition by a City-approved licensed heating contractor no more than ninety (90) days prior to the renewal of a Certificate of Compliance under Chapter 10.

703.3—703.8 Fire-Resistance Ratings. Refer to TITLE IX, Chapter 159 for enforcement.

704.1.1—704.7 Fire Protection Systems. Refer to TITLE IX, Chapter 159 for enforcement.

CHAPTER 9 REGISTRATION OF DWELLINGS

901 Registration of Rental Dwellings.

901.1 Rental dwelling defined. For the purposes of the Chapter, rental dwelling shall be defined as any dwelling which contains a dwelling unit, rooming unit or hotel unit that is not occupied as a residence by the owner; and shall include any single-family residential structure that is not occupied as a residence by the owner.

901.2 Registration of rental dwellings required. The owner of any rental dwelling shall register such dwelling with the City annually. The owner of any rental dwelling that is vacant or abandoned as defined by this Chapter shall register such property annually.

901.3 Registration of newly-constructed rental dwellings. The owner of a newly constructed rental dwelling shall register the rental dwelling with the City within thirty (30) days of issuance of a Use and Occupancy Permit.

901.4 Change in registration information. The owner of rental dwellings already registered with the City shall re-register the same within thirty (30) days of any change in the original registration information.

901.5 Change in ownership. A new owner of a rental dwelling shall register the dwelling within thirty (30) days of assuming ownership.

901.6 Registry of rental dwellings. The City shall maintain a registry of rental dwellings and rental units within the City of Grand Rapids that contains the following information:

(1) The address of the rental dwelling.

(2) The number and type of rental units in the dwelling.

(3) The name, residence address and birth date of the owner.

(4) The name, residence address and birth date of the Manager or other responsible person designated by the owner.

(5) The mailing address, email address and telephone number where the owner and or other responsible person will accept notices and calls from the City.

901.7 Inaccurate or incomplete registration information. It shall be a violation of this Code for an owner or a responsible person to provide inaccurate information for the registration of rental dwellings or to fail to provide information required by the City. When the owner is not a natural person, the owner information shall be that of the President, General Manager, resident agent, or other chief executive officer of the organization. Where more than one (1) natural person has an ownership interest, the required information shall be provided for each owner.

902 Registration of Abandoned or Vacant Structures.

902.1 Abandoned or vacant structures defined. For purposes of the Chapter, abandoned or vacant structure shall be defined as a structure that has not been occupied by a human for a time exceeding thirty (30) days and meets any of the following criteria:

(1) Is a location for loitering, vagrancy, unauthorized entry or other criminal activity;

(2) Has one or more broken or boarded windows or unsecured point of entry;

(3) Has taxes in arrears for a period of time exceeding 365 days;

(4) Has utilities disconnected or not in use;

(5) Is not maintained in compliance with this Code; or

(6) Is subject to foreclosure as defined herein.

902.2 Prompt registration required. An owner of an abandoned or vacant structure as defined by this Chapter shall be required to register such property within fifteen (15) days after:

(1) The structure has become abandoned or vacant as defined by this Chapter; or

(2) The structure becomes subject to foreclosure, or

(3) The date of notice by the City that the structure has been declared abandoned or vacant, whichever is earlier; or

(4) In the case of foreclosure, the mortgagee that has foreclosed on abandoned or vacant property shall register said property within fifteen (15) days of the expiration of the redemption period. Registration requirements shall not preclude the City from taking appropriate actions to secure the property; or to issue notices of violation or notices to abate; or from acting upon imminent hazard(s). Foreclosure is defined as the process by which a mortgage, security interest or lien is enforced against a parcel of real property through sale or offering for sale the real property to satisfy a debt or claim. For purposes of this Chapter, a notice of foreclosure and/or a notice of trustee's sale, a pending tax sale, and/or properties that have been the subject of a foreclosure sale where the title was retained by the beneficiary of a mortgage involved in the foreclosure, and/or that have transferred under a deed in lieu of foreclosure/sale shall constitute the foreclosure of property.

902.3 Annual registration required. Once an abandoned or vacant structure has been registered by the owner under this Chapter, such registration shall be valid and effective for 365 days from the date of registration and shall be renewed annually thereafter until the property is no longer abandoned or vacant as defined in this section.

902.4 Requirement to keep information current. If at any time the information contained in the registration is no longer valid, then the property owner shall file an updated registration within fifteen (15) days. There shall be no fee to update the current owner's information.

902.5 Registration information regarding abandoned or vacant structures. Every abandoned or vacant structure within the City of Grand Rapids shall be registered with the City by the owner(s). Such owner(s) shall register such structure with the City, and shall provide the following information:

(1) Address of the abandoned or vacant structure.

(2) Date upon which the structure became vacant or abandoned.

(3) The name, address, email address, phone number and birth date of the owner(s).

(4) The name, address, email address, phone number and birth date of the manager, agent, or representative designated by the owner; or responsible person as defined in this Chapter.

(5) Additional information as requested.

902.6 Occupancy prohibited. An abandoned structure shall not be occupied until all violations have been corrected in accordance with the applicable requirements of the Michigan Building Code, Michigan Electrical Code, Michigan Mechanical Code, Michigan Plumbing Code and applicable provisions of the Grand Rapids City Code of Ordinances. All mechanical, electrical, plumbing, and structural systems shall be certified by a licensed contractor as being in good repair.

CHAPTER 10 CERTIFICATES OF COMPLIANCE

1000 Certificates of Compliance.

1000.1 Certificate of Compliance required. Any rental dwelling or any dwelling containing at least one (1) rental unit, hotel unit or rooming unit, shall be in substantial compliance with the provisions of this Chapter. No rental dwelling, rental unit, hotel unit or rooming unit shall be occupied prior to the issuance of a Certificate of Compliance.

1000.2 Standards for issuance of Certificate of Compliance. The City shall issue a Certificate of Compliance for a rental dwelling where the City finds that the structure, rental dwelling, its units, accessory buildings and yards are in compliance with the provisions of this Chapter.

1000.3 Validity of Certificate of Compliance.

(1) *Six-year Certificate of Compliance.* A Certificate of Compliance shall be valid for no more than six (6) years. Each Certificate shall contain an expiration date. For any rental dwelling, a six-year Certificate of Compliance shall be issued provided:

(a) The property has been owned by the same owner since the last certification.

(b) The property has no recorded or verified violations since the last certification.

(c) The property owner contacts the City for a Certificate of Compliance inspection within ninety (90) days prior to the expiration of the current Certificate of Compliance.

(d) The property is registered prior to the expiration of the Certificate of Compliance.

(e) No outstanding fees, taxes, or assessments are assessed against the property.

(f) The previous Certificate of Compliance for the property was not a two-year certificate.

(2) *Four-year Certificate of Compliance.* For any rental dwelling, a four-year Certificate of Compliance shall be issued provided:

(a) The property owner contacts the City for a Certificate of Compliance inspection within ninety (90) days prior to the current Certificate of Compliance expiration date.

(b) The property is registered prior to the Certificate of Compliance expiration date.

(c) The property is brought into compliance either prior to the Certification expiration date or within the time frame provided in the Notice of Violation, including deferred due dates. The Notice of Violation shall be issued before the Certificate of Compliance expires and shall serve as a temporary Certificate of Compliance.

(3) *Two-year Certificate of Compliance.* For any rental dwelling, a two-year Certificate of Compliance shall be issued if all of the conditions of either a six-year Certificate of Compliance or four-year Certificate of Compliance required by Section 1000.3(1) or 1000.3(2) have not been met.

(4) *Certification of newly-constructed rental dwellings.* A six-year Certificate of Compliance may also be granted for a newly-constructed rental dwelling, which has been granted a Use and Occupancy Permit by the City.

(5) *Certification inspections.* All units shall be inspected in rental dwellings that contain sixteen (16) or more units and/or each parcel containing four (4) or more rental dwellings, except where:

(a) The property owner contacts the City for a Certificate of Compliance inspection within ninety (90) days prior to the expiration of the current Certificate; and

(b) The property owner registers the property prior to the current Certificate of Compliance expira-

tion date. If both of the above conditions are met, only fifty (50) percent of the units shall be inspected. The units inspected shall be chosen at random by the inspector. For each unit where a violation is discovered, an additional unit shall be added to the total number of units inspected.

(6) *Condominiums.* For purposes of this Chapter, a condominium is defined as a building or buildings that contain individually owned apartments, units, or homes where the interior maintenance is the responsibility of the unit owner and the exterior environment responsibility remains with the condominium association.

For the purpose of certification, the following shall apply:

(a) If the owner lives in the condominium unit of which they are the owner and occupant, no certification or registration is required.

(b) If the owner owns an individual unit of which they are not the occupant, the condominium will be considered a single-family rental and shall comply with all registration and certification requirements as that of other single-family rentals.

(c) When the developer has condominiums for sale that are not sold but are rented or vacant, for purposes of this Article, shall be considered a multiple unit property for certification and registration purposes.

(7) *Transfer of Certificate of Compliance.* A Certificate of Compliance is valid only while the owner that applied for the Certificate owns the property. A Certificate of Compliance may be transferred if:

(a) The sale occurs within 365 days of the issuance of the Certificate of Compliance to the seller, and

(b) The buyer notifies the City of the transfer of ownership within thirty (30) days of the sale. Such transferred Certificate will expire upon the date stated on the Certificate. A six-year Certificate of Compliance shall not be transferred to a new owner. A six-year Certificate, when transferred to a new owner within 365 days of the issuance of the Certificate of Compliance, shall revert to a four-year Certificate of Compliance.

1000.4 Suspension of Certificate of Compliance.

(1) A Certificate of Compliance may be suspended when the City has cited a substantial violation of the provisions of this Chapter, and shall be suspended if a hazard to health or safety is found to be present. If a Certificate of Compliance is suspended, the suspension shall be noted in the Notice of Violation.

(2) Failure of a buyer to notify the City of the change in ownership pursuant to the requirements of Section 1000.3(7)(b) shall result in suspension of the Certificate of Compliance. A new Certificate issued subsequent to a suspension shall be retroactive to the date of sale, with the owner responsible for all applicable fees from that date.

(3) Where a Certificate of Compliance has been suspended, or when the premises have not been issued a Certificate of Compliance, the City may seek to suspend payments of rent, with such rents paid into an escrow account established pursuant to State law.

1000.5 Expiration of Certificate of Compliance. A Certificate of Compliance shall expire on the date stated on the Certificate. It shall be a violation of this Chapter for any unit in a rental dwelling to be occupied sixty (60) days after the expiration of the Certificate of Compliance.

1000.6 Renewal of Certificate of Compliance. The owner shall be responsible for registering a rental dwelling and arranging a compliance

inspection prior to the expiration date on the Certificate of Compliance. When a Certificate of Compliance is reissued in accordance with this Chapter, it shall have a two-, four-, or six-year expiration date with the same month and day as shown on the previous Certificate regardless of the date that the new Certificate is actually issued.

1000.7 Certificate of Compliance not required. A Certificate of Compliance shall not be required for living or sleeping accommodations in jails, hospitals, skilled care facilities, school dormitories, assisted living facilities, foster homes, or where periodic inspections by the City are not otherwise required by law.

CHAPTER 11 ANIMALS

1101 Domestic Animals. If an occupant or owner keeps or allows domestic animals within a dwelling, in a yard, in a structure, or upon a property, the occupant or owner shall remove any odorous or unsanitary condition. The property owner shall be responsible for the repair of any damage to the dwelling, structure or yard caused by the animals and shall be responsible for any unsafe condition. For purposes of the Chapter, domestic animals shall mean any animal that the City determines is not likely to bite without provocation nor cause death, maiming or illness of a human, including but not limited to the following: bird (caged), cat (domestic), chinchilla, ferret, dog (domestic), fish, lizard (non-venomous), snake (non-venomous), spider (non-venomous or non-poisonous).

1102 Farm Animals. No farm animal shall be kept or allowed to be kept within any dwelling or dwelling unit or within one hundred (100) feet of any dwelling, dwelling unit, well, spring, stream, drainage ditch or drain. For purposes of this Chapter, farm animals shall mean any horse, swine, cattle, sheep, goat, llama, chicken, goose, duck or turkey. Farm animal also means any other Animal, raised for commercial profit, slaughter, or more than 2 breeder rabbits.

1103 Wild Animals. Any animal not a domestic animal or farm animal, as defined by this Chapter, is a wild animal, and shall not be kept or allowed on any property in the City of Grand Rapids.

CHAPTER 12 LEAD-BASED PAINT

1200 Lead-based paint. It shall be required to perform activities that identify the presence of lead violations in the interior and on the exterior of residential structures in which initial construction was completed prior to January 1, 1978, and such violations shall be addressed in keeping with local, state, and federal guidelines.

1201 Definitions. As used in this Chapter, the following terms shall have the meanings indicated. All other terms related to the evaluation, control, and abatement of lead-based paint hazards are used as defined in the Michigan Lead Abatement Act.

(1) *Michigan Lead Abatement Act* shall mean the State of Michigan statute that addresses the evaluation, control, and abatement of lead hazards, the licensing of lead professionals, and other State laws pertaining to lead hazards as found in the Michigan Public Health Code, Act 368 of 1978 Part 54A. References to the Act include the State's promulgated rules for implementation of the Act.

(2) *Federal Statute* shall mean the federal statute that addresses the evaluation, control, and abatement of lead-based paint hazards in housing as found in 40 CFR Part 745 and 24 CFR Part 35, both entitled "Lead-Based Paint Poisoning Prevention in Certain Residential Structures."

(3) *Clearance Examination* shall mean an activity conducted in compliance with the Work Practice Standards of the Michigan Lead Abatement Act, R225.9940 et seq., by third-party, certified personnel following lead-based paint hazard reduction and/or the repair of cited violations for which Renovation, Repair and Painting Program (RRP) certification is required to determine that the lead-based paint hazard reduction activities are complete and that no settled lead-dust hazards exist in the dwelling unit or worksite.

(4) *Deteriorated Paint* shall mean any interior or exterior paint or other coating that, through a visual assessment, is found to be peeling, chipping, crazing, flaking, abrading, chalking or cracking, or any paint or coating located on an interior or exterior surface or fixture that is otherwise damaged or separated from the substrate, or a chewable surface that contains visual signs of chewing.

(5) *Dwelling Unit* shall mean, for the purpose of this Chapter, a unit that meets one of the following criteria:

(a) A single unit providing complete, independent living facilities for one or more persons, including permanent provisions for living, sleeping, eating, cooking and sanitation; or

(b) A room or group of rooms forming a single habitable space equipped and intended to be used for living, sleeping, cooking and eating which does not contain, within such a unit, a toilet, lavatory and bathtub or shower; or

(c) Any room or group of rooms forming a single habitable unit occupied or intended to be occupied for sleeping or living, but not for cooking purposes.

A basement or attic that is accessible from inside a dwelling unit is considered to be part of the dwelling unit. Common areas and basements and/or attics that are only accessible through a common area or from the exterior of a residential property are not considered to be part of the dwelling unit.

(6) Reserved.

(7) Reserved.

(8) *Evaluation* shall mean a risk assessment, a lead-dust screening, a lead-based paint investigation, paint testing, a clearance examination, or a combination of these to determine the presence of lead violations or lead-based paint.

(9) *Lead-Based Paint Enforcement Threshold* shall mean the measure of deteriorated paint inside a dwelling unit not to exceed:

(a) Two (2) square feet in any one interior room or space, or

(b) Ten percent (10%) of the total surface area on an interior component type with a small surface area (such as windowsills, baseboards, or trim). When determining if a deteriorated lead-based paint violation is interior or exterior as it relates to windows, in addition to that portion of the window component that faces the interior, all exterior-facing portions of the window component, except for the exterior frame or trim, are considered to be interior.

(10) *Lead-Based Paint Hazard Reduction Activities* shall mean measures designed to reduce or eliminate human exposure to lead hazards through methods including interim controls or abatement or a combination of the two conducted in compliance with the Work Practice Standards of the Michigan Lead Abatement Act, R325.99401 et seq.

(11) *Lead-Based Paint Violation* shall mean any deteriorated paint condition in pre-1978 housing subject to the presumptions and obligations in Section 1202.

(12) *Lead-Dust Violation* shall mean the presence of lead content in household dust exceeding the current standards set forth in Section 1206(1)(e) as determined by a dust wipe taken in accordance with Section 1206(1).

(13) *Lead Violation* shall mean the presence of lead-based paint violation, lead-dust violation, or bare soil located within thirty (30) inches of the foundation wall of any pre-1978 residential structure subject to the presumptions and obligations of Section 1202. For the purposes of this ordinance, lead in drinking water or consumer products are not considered to be lead violations.

(14) *Lead-Dust Screening* shall mean a limited lead-based paint and lead-dust activity that is required for all pre-1978 residential rental properties that pass visual inspection and to assure that the lead content in household dust falls below the levels as prescribed in Section 1206 (1)(e). A lead-dust screening includes a visual inspection for failing paint above the lead-based paint enforcement threshold and/or other lead-based paint and lead-dust violations. A lead-dust screening includes the collection of a limited number of dust wipes as required in Section 1204 and the issuance of a "Lead Dust Screening Report" for the purposes of monitoring lead-safe property maintenance.

(15) *Residential Property* shall mean property zoned for living or dwelling for individuals or households that include one or more dwelling units. The residential property includes any common areas, building exterior surfaces, and any surrounding land, including outbuildings, fences and play equipment affixed to the land, belonging to an owner and available for use by residents.

(16) *Residential Structure* shall mean any structure on a residential property, including but not limited to, a house, garage, building, outbuildings, or fence.

(17) *Renovation, Repair and Painting Program (RRP)* shall mean the U.S. Environmental Protection Agency (EPA) statute (40 CFR Part 745) that requires certification for all home improvement contractors, property management firms, handypersons or others compensated for renovation work that involves window replacement or that disturbs more than six (6) square feet of interior and/or twenty (20) square feet of exterior paint or surface coating in pre-1978 residential housing and child-occupied facilities. This EPA requirement also applies to rental property owners working on rental properties. The individual must complete training, use safe work practices, and verify that the work area is clean after completion of renovations, all of which are defined by the federal statute.

(18) *Visual Assessment* shall mean a visual examination of all surfaces within the dwelling unit. A visual assessment shall not be considered to be complete if the examining individual is locked out or otherwise prevented from inspecting any room or space within the dwelling unit. For the purpose of determining whether or not a deteriorated lead-based paint violation is interior or exterior as it relates to windows, in addition to that portion of the window component that faces the interior, all exterior-facing portions of the window component, with the exception of the exterior frame or trim, are considered to be interior.

(19) *Worksite* shall mean an interior or exterior area where lead-based paint hazard reduction activity takes place. There may be more than one worksite in a dwelling unit or at a residential property.

1202 Presumptions and obligations.

(1) *Presumptions.*

(a) For purposes of this Chapter, all paint on the interior or exterior of any residential structure on which the original construction was completed prior to January 1, 1978, shall be presumed to be lead-based.

(b) Loose paint particles shall be presumed to be a lead violation. If the loose paint on the cited surface can be satisfactorily demonstrated to not contain lead, no lead violation shall exist.

(2) *Obligations.*

(a) Any person seeking to rebut these presumptions shall establish through the means set forth in Section 1205 that the paint on the residential structure in question is not lead-based paint.

(b) Residential rental dwellings shall be maintained free of deteriorated paint exceeding lead-based paint enforcement threshold.

(c) Residential rental dwellings shall be maintained free of lead-dust violations.

1203 Lead violations.

1203.1 Deteriorated lead-based paint violation. The interior of any residential structure on which the original construction was completed prior to 1978, shall be maintained in a condition such that the paint thereon does not become deteriorated paint exceeding the lead-based paint enforcement threshold of this Chapter.

1203.2 Bare soil violation. From May 1 through October 31, bare soil located within thirty (30) inches of the foundation wall of any residential structure is prohibited and shall be presumed to be a lead violation. Such presumed lead violation shall be corrected by proper installation of dense vegetation, permanent paving material, or a minimum six-inch deep cover of loose material such as bark, wood chips, or stone, unless the owner provides testing performed by a Risk Assessor or Lead Paint Inspector that the cited soil does not contain lead hazards as defined by federal statute (40 CFR Part 745 Subpart D Section 745.6(4)(c)).

1203.3 Loose paint particles, removal required. The owner of a dwelling or dwelling unit shall not allow loose paint particles in the interior or exterior of a dwelling or dwelling unit.

1203.4 Lead-dust violation. A lead-dust violation shall be identified and cited in accordance with the procedures set forth in Section 1204.

1203.5 Lead-dust sampling violation. A lead-dust sampling violation shall be cited upon a failure by an owner of a residential property to timely cause dust samples to be taken and certified test results to be submitted to the Department in accordance with the procedures set forth in Sections 1204 and 1206.

1204 Inspections for lead violations.

1204.1 Inspections for lead violations for Certificate of Compliance. All inspections performed on pre-1978 properties to obtain a Certificate of Compliance shall include a visual assessment for deteriorated paint and bare soil violations in accordance as follows:

(1) When the visual assessment identifies no interior deteriorated lead-based paint violation in rental dwellings, the owner shall cause dust samples to be taken and certified test results to be obtained in accordance with the protocols established for a lead-dust screening in Section 1206 to determine whether a lead-dust violation exists. For rental dwellings containing sixteen (16) or more dwelling units, the owner shall cause dust samples to be taken in units inspected.

(2) The owner shall cause dust samples for the lead-dust screening to be taken and shall submit all certified test results to the Department prior to the renewal of a Certificate of Compliance under Chapter 10. If all certified results are not submitted within the specified time, a lead-dust sampling violation shall be cited. Where dust sample results are greater than or equal to the levels permitted in Section 1205(1)(e), they shall be cited and additional dust wipe samples shall be taken in the subject areas following cleaning and other lead-dust reduction activities until all said areas are found to be below the listed thresholds.

1204.2 Inspections for lead violations upon complaint. The Department may cite deteriorated lead-based paint (Section 1203.1), bare soil (Section 1203.2), and loose paint particles (Section 1203.3) upon complaint.

1205 Remedy for violations. Following a visual assessment which results in the citation of a deteriorated lead-based paint violation, the violation may be removed only by one of the following methods:

(1) Certification by a lead-based paint inspector or risk assessor that the residential property has been determined not to contain lead-based paint through a lead inspection conducted in accordance with

the Work Practice Standards of the Michigan Lead Abatement Act, R325.99401 et seq.

(2) Certification by a lead-based paint inspector or risk assessor that all cited violations of Section 1203 have been abated, or interim controls implemented, and clearance has been achieved in accordance with standards found in Section 1206; provided, however, that the residential property has been inspected pursuant to those standards after the deteriorated paint or lead-dust violation was last cited, including a full visual assessment.

1206 Standards for lead safety inspection and report.

(1) The following standards are required for the dust sampling for a lead-dust screening required by Section 1204:

(a) *Qualified personnel.* Whereas the lead-dust screening by itself does not meet the State standard for clearance, the lead-dust screening shall only be conducted by a state-certified lead inspector, risk assessor, or any similar state-certified personnel that have been trained and certified to collect dust samples for the purposes of conducting clearance pursuant to the Certified Individuals and Firms section of the Michigan Lead Abatement Act, R325.99301 et seq., and whose approval to conduct such dust wipe tests in the city is not subject to State or local suspension or revocation.

(b) *Examination requirements.* Dust samples shall be collected and analyzed in accordance with this section.

1. Dust samples shall be wipe samples taken on interior windowsills and floors, excluding open porches.

2. Dust samples shall be taken from each of no more than four rooms. The selection of rooms to be tested, where applicable, shall include no less than one bedroom and the living room. At least one wipe sample shall be taken from a windowsill with a paint history, if present, and one from a floor in each room. Where there are less than four rooms, then all rooms shall be sampled.

3. The method for collecting dust samples shall include:

(i) Laying out the sample area by using a template or tape to outline the area;

(ii) Labeling each tube with its own identification number to be recorded on the sample collection form;

(iii) Putting on clean gloves before taking each sample; and not touching anything other than the wipe after putting on the gloves;

(iv) Using an unused wipe to sample the entire area inside the template or tape as follows:

(a) Starting in the upper corner of the sample area, use a side-to-side motion, wiping the entire area, pressing firmly with the fingers;

(b) Fold the wipe sample in half, dirty side in;

(c) With the clean side of the sample and starting at the upper corner, use a top-to-bottom motion, wiping the entire area, pressing firmly with the fingers;

(d) Fold the wipe sample in half again, dirty side in;

(e) With the clean side of the sample, wipe around the entire perimeter, cleaning the corners, fold the sample; and

(f) Place the folded wipe sample in the tube.

(v) Writing down the measurements of the sample area on the collection form;

(vi) Cleaning the sampling equipment after each wipe sample is taken;

(vii) Forwarding wipe samples to an authorized laboratory.

4. Dust samples shall be analyzed by a laboratory recognized by the EPA pursuant to the Toxic Substances Control Act as being capable of performing analysis for lead compounds in dust samples.

(c) *Coordination with federal and state-funded lead abatement projects.* For properties participating in lead abatement activities funded by U.S. Department of Housing and Urban Development or funding administered by the Michigan Department of Health and Human Services, a clearance examination conducted in compliance with the Work Practice Standards of the Michigan Lead Abatement Act, R325.99401 et seq., shall meet the required activities standard of this section.

(d) *Report.* The certified person or firm completing the lead-dust screening shall submit directly to the City a report that is prepared according to this section.

1. The report shall include the following information:
   (i) The address of the residential property and, if only part of a multifamily residential property is affected, the specific dwelling units and common areas affected;
   (ii) The date(s) of the examination;
   (iii) The name, address, and signature of each person performing the examination, including the person's State certification number;
   (iv) The results of the visual assessment for the presence of deteriorated paint and visible dust, debris, residue or paint chips;
   (v) The results of the analysis of dust samples, in ug per square foot, by location of sample; and
   (vi) The name and address of each laboratory that conducted the analysis of the dust samples, including the identification number for each such laboratory recognized by the EPA pursuant to the Toxic Substances Control Act.
2. The report must be for required activities conducted no more than 90 days prior to the expiration date of the Certificate of Compliance, or one year if coordinated with a federal or state-funded lead abatement project as described in Section 1206(1)(c).

(e) *Lead-dust screening dust standards.* Where dust sampling is required by Section 1204, local lead-dust standards will apply and shall be the same as the December 2022 EPA lead hazard standards. These local standards are subject to change.

1. Dust sample results shall be less than:
   (i) For floors: 10 ug/ft^2;
   (ii) For windowsills: 100 ug/ft^2; and
2. Where dust sample results are greater than or equal to the levels above, additional dust wipe samples shall be taken in the subject areas until all said areas are found to be below the listed thresholds.

(2) *Standards to remedy Section 1205(2) deteriorated lead-based paint violations* shall comply with the following:

(a) *Qualified personnel.* A clearance report shall only be issued by state-certified lead inspector, risk assessor, clearance technician, or any similar state certified personnel permitted to collect dust samples for evaluation pursuant to the Work Practice Standards of the Michigan Lead Abatement Act, R325.99401 et seq.

(b) *Examination and report.* Examination procedures and report preparation must follow the procedures set forth in the Work Practice Standards of the Michigan Lead Abatement Act, R325.99401 et seq.

(c) *Clearance standards.* The standards for clearance of abatement activities shall follow the Federal statute (40 CFR Part 745 Subpart L-Lead-Based Paint Activities, 745.227).

(3) *Validity of wipe test results.* For the purposes of meeting the requirement in Section 1204, the results of all successful wipe tests shall be valid for the period of the current Certificate of Compliance unless a subsequent inspection of the dwelling unit conducted by a government entity or their contractor identifies a lead-dust violation, which would immediately cause the previous wipe test results to be invalid.

(4) *Requirement to avoid conflict of interest.* All lead-dust screening and clearance examinations shall be performed by state-certified persons and entities independent of those who have an ownership or other financial or business interest in the residential property cited. In no instance shall entities conduct lead-dust screening activities for another person or entity that provides services in return.

(5) *Consistency and compliance efforts.* Random audits may be performed on third-party service providers to ensure consistency and compliance with the required lead-dust screening and clearance standards. Non-random audits may also be performed based on a reasonable suspicion that a third-party service provider is not providing proper tests. Reasonable suspicion includes, but is not limited to, complaints received about the provider or about a specific residential property inspected by the provider. If the audit results indicate noncompliance with these standards or otherwise call into question the integrity of the individual or firm to satisfy the requirements of this section, the code official may reject individual reports and may bar individuals, corporations, and/or associations from submitting reports in the future. The code official will set forth the reason for rejection and/or barring in writing to the issuer of the reports and any other affiliated persons, corporations and/or associations.

1207 Lead-based paint hazard reduction activities and control. Any person disturbing or removing paint, or in any other way generating excessive dust or debris during work, on the interior or exterior of any residential structure on which construction was completed before 1978, must

use lead-safe work practices as described and regulated in the federal statute. All interim controls and maintenance activities must comply with the Renovation, Repair and Painting Program (RRP). If interim controls are part of a wider abatement project, they must also comply with the requirements of the Michigan Lead Abatement Act. All abatement activities must be conducted according to the requirements of the Michigan Lead Abatement Act.

1208 Exemptions.

(1) The requirements of Section 1203.4 and Section 1203.5 shall not include:

(a) Single-family, owner-occupied dwellings.

(b) Any rental dwelling that is designated for occupants fifty-five (55) years of age or older and is in compliance with the housing for older persons exemption under the Fair Housing Act.

(c) Hotel and motel rooming units that are not extended stay facilities.

(2) Any rental dwelling exempt under Section 1000.7 of this Code. This exemption does not exempt a residential property from a dust sampling required by any other local, state, or federal law, rule, or regulation.

1209 Occupant protection.

(1) Occupants shall not be permitted to enter the worksite during lead-based paint hazard reduction activities or RRP-regulated maintenance activities (unless they are employed in the conduct of these activities at the worksite) until after lead-based paint hazard reduction activities or RRP-regulated maintenance activities have been completed, including until any required clearance has been achieved.

(2) Occupants shall be temporarily relocated during interior lead-based paint hazard reduction activities or RRP-regulated maintenance activities where the occupants do not have safe daily access to sleeping areas, bathroom, and kitchen facilities for more than eight (8) hours. The occupant shall not be permitted reentry until any required clearance examination can be successfully completed on the occupant's unit.

(3) During relocation, the dwelling unit and the worksite shall be secured against unauthorized entry. Occupant belongings shall be protected from contamination by lead-dust and debris during lead-based paint hazard reduction activities or RRP-regulated maintenance activities. Occupant belongings in the containment area shall be relocated to a safe and secure area outside the containment area or covered with an impermeable covering with all seams and edges taped or otherwise sealed.

1210 Coordination with local public health. The Department may provide reasonable assistance to government agencies working to address lead exposure in housing where an active investigation is being conducted and a child with an elevated blood lead level resides or is known to frequent. These government agencies shall include, but are not limited to, the Kent County Health Department (KCHD), the Michigan Department of Health and Human Services (MDHHS), the U.S. Environmental Protection Agency (EPA), and the U.S. Department of Housing and Urban Development (HUD).

(1) A Certificate of Compliance may be suspended upon a government entity providing evidence that lead dust exceeding the standards set forth in Section 1206(1)(e) exists at the property.

(a) *Evidence for suspension.* To suspend the Certificate of Compliance, the City must receive evidence within thirty (30) days of inspection. This evidence shall be a copy of a lead risk assessment or other related lead evaluation report(s) conducted by or on behalf of the government entity. Those reports must be prepared by personnel certified by the State to conduct lead evaluation activities pursuant to the Certified

Individuals and Firms section of the Michigan Lead Abatement Act, R325.99301 et seq.

(b) *Reinstatement of Certificate of Compliance.* The Certificate of Compliance will not be reinstated until subsequent clearance of the specific lead violations cited in the provided report has been documented. This documentation must be received directly from a government agency and/or an independent and appropriately State-certified lead evaluation professional. The expiration of the reinstated Certificate will be the same as the original Certificate.

(2) A new or renewed Certificate of Compliance may be denied for any residential property currently under orders to abate lead hazards from a government agency.

(Ord. No. 2012-35, § 2, 6-19-12, eff. 7-1-12; Ord. No. 2023-22, § 4, 6-13-23)

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Chapter 141

FENCES*

Sec. 8.800. Prohibited Fencing Materials.
Sec. 8.801. Stability and Materials.
Sec. 8.802. Protective Coatings.
Sec. 8.803. Maintenance.
Secs. 8.804—8.825. Reserved.

*Cross references—Zoning, Ch. 61; general building regulations, Ch. 131.
State law reference—Fencing required for junkyards, MCL 252.204 et seq., MSA 9.391(14) et seq.

Sec. 8.800. Prohibited Fencing Materials.

No barbed wire or electrically charged fences shall be permitted upon any residential property nor at any location in the City except that barbed wire is permitted surrounding nonresidential uses if it is at all times at a height of at least six (6) feet.
(Ord. No. 92-49, § 1, 7-28-92)

Sec. 8.801. Stability and Materials.

A fence shall be stable, safe and properly supported. Fence posts shall be at right angles to the horizon. Fences shall not be constructed of salvage materials.
(Ord. No. 84-57, § 1, 7-24-84)

Editor's note—Prior to its amendment by Ord. No. 84-57, § 1, adopted July 24, 1984, § 8.801 pertained to prohibited fencing materials, as derived from Ord. No. 76-10, adopted March 2, 1976, and Ord. No. 76-24, adopted March 30, 1976.

Sec. 8.802. Protective Coatings.

Wood fences shall be protected from deterioration with properly applied paint or other protective coating, with the exception of redwood and cedar fences or fences constructed with pressure-treated lumber. Metal fences or metal fence parts subject to corrosion shall be properly painted or coated to prevent deterioration.
(Ord. No. 84-57, § 2, 7-24-84)

Sec. 8.803. Maintenance.

Fences shall be maintained to retain their original shape and configuration. Elements of the fence that are missing, damaged, destroyed or affected by deterioration or neglect shall either be replaced or repaired to maintain conformity with the original fence design or the fence shall be removed completely. Any fence required by Chapter 61 or some other City Authority shall be maintained in accordance with this Section or replaced.
(Ord. No. 84-57, § 3, 7-24-84)

Secs. 8.804—8.825. Reserved.

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Chapter 142

RESERVED*

Secs. 8.826—8.850. Reserved.

*Editor's note—Ord. No. 95-43, § 1, adopted July 11, 1995, repealed Ch. 142, in its entirety. Former Ch. 142 pertained to sign location control. See the Code Comparative Table.

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Chapter 143

RESERVED*

Secs. 8.851—8.875. Reserved.

*__Editor's note—__Ord. No. 2004-46, § 1, adopted Aug. 10, 2004, repealed ch. 143, §§ 8.851—8.865, in its entirety. Formerly, said chapter pertained to grading and soil erosion control as enacted by Ord. No. 73-42, adopted June 12, 1973; as amended.

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Chapter 144

RESERVED*

Secs. 8.876—8.900. Reserved.

*__Editor's note—__Ord. No. 2004-47, § 1, adopted Aug. 10, 2004, repealed ch. 144, §§ 8.876—8.900, in its entirety. Formerly, said chapter pertained to flood plain construction as enacted by Ord. No. 75-79, adopted Aug. 26, 1975; as amended.

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Chapters 145—150

RESERVED

Secs. 8.901—8.999. Reserved.

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TITLE IX—POLICE REGULATIONS*

Chapter

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152. Disorderly Conduct
153. Weapons
154. Waterways
155. Animals
156. Curfew
157. Alcoholic Liquor
158. Reserved
159. Fire Prevention
160. Discrimination in Real Property Transactions
161. Civil Emergency
162. Trespassing on Railroad Property
163. False Intrusion and Holdup Alarms
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172. False Fire Alarms
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174. Residential Rental Application Fees
175. Crime Prevention Through Environmental Design (CPTED) Ordinance
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177—180. Reserved

*__Charter reference—__Ordinances and Regulations, Title V, Sec. 2.

Chapter 151

NUISANCES*

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Sec. 9.2. General Definition of Nuisances.
Sec. 9.3. Abatement of Nuisances.
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Secs. 9.7—9.10. Reserved.

Article 2. Dangerous Structures

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Sec. 9.12. Notice and Hearing.
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Article 3. Handbills and Handbill Distributors

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Secs. 9.27—9.30. Reserved.

Article 4. Air Pollution Control

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Sec. 9.32. Definitions.
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Sec. 9.34. Unlawful Emission of Air Pollution Contaminants.
Sec. 9.35. Recreational Fires.
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Article 5. Noise Control

Sec. 9.61. Title and Purpose.
Sec. 9.62. Definitions.
Sec. 9.63. Prohibited Noise.
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Sec. 9.64. Prohibited Entertainment or Commercial Sound.
Sec. 9.65. Sound Pressure Limitations.
Sec. 9.66. Exceptions.
Sec. 9.66.1. Test Equipment Standards.
Sec. 9.67. Adjustment of Standards.
Sec. 9.68. Regulations.

***Charter references—**Abatement of Nuisances, Title VI, Sec. 11(c); also Title X, Sec. 24.

Cross references—Solid Waste Transportation Unit and Identification of Solid Waste Carts, § 2.11; discharging or prohibited substances into City sewage disposal system declared a nuisance, § 2.64; general health regulations, Ch. 71; buildings or structures erected, used, moved, demolished, occupied or maintained in violation of Chapter 131 declared a nuisance per se, § 8.5 (117.5); electrical wiring or equipment installed, altered or maintained in violation of Chapter 133 declared a nuisance per se, § 8.85.

State law reference—Environmental protection act, MCL 691.1202 et seq., MCL 600.381 et seq.

Sec. 9.69. Variances.
Sec. 9.70. Sound Systems in Motor Vehicles.
Sec. 9.70.1. Penalties.

Article 6. Sound Trucks

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Sec. 9.71. Definitions.

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ARTICLE 1. GENERAL PROVISIONS*

Sec. 9.1. Statement of Findings and Purpose.

The existence of public nuisances as defined in this Chapter, and elsewhere in the Code, on private or public property, is found to create conditions tending to reduce the value of private property, to promote blight and deterioration, to invite illegal activities, to create fire hazards, to create hazards to the health and safety of minors, to create harborage for vermin and pests and to be injurious to the public health, safety and general welfare. Therefore, the presence of a public nuisance on private or public property is declared to be contrary to the public good and shall be subject to notices, orders or other Code enforcement actions to abate, and in the absence of compliance with such Code enforcement actions, to abatement by the City or a City contractor or vendor. The City also finds that abatement-related and Code enforcement actions or abatement by the City may not be adequate to deal with the problem and shall not preclude other legal or administrative actions as deemed necessary or advisable by the City. The City further finds that there is a need to recover Code enforcement and public nuisance abatement-related costs incurred by the City in public nuisance abatement whether the public nuisance is abated by the City, a City vendor or contractor, or by some other person. It is the purpose of this Chapter to provide for the lawful and cost-effective abatement of public nuisances as promptly as possible.
(Ord. No. 2011-44, § 1, 10-11-11)

Sec. 9.2. General Definition of Nuisances.

Whatever annoys, injures or endangers the safety, health, comfort or repose of the public; offends public decency; interferes with, obstructs or renders dangerous any street, highway or any body of water; or in any way renders the public insecure in life or property is hereby declared to be a public nuisance. Public nuisances shall include, but not be limited to, whatever is forbidden by any provision of this Chapter and shall include any provision of this Code declared in this Code to be a nuisance.

No person shall commit, permit, create or maintain a public nuisance.
(Ord. No. 2011-44, § 1, 10-11-11)

Sec. 9.3. Abatement of Nuisances.

Where no other procedure is made specifically applicable by another provision of this Code, any property, structure, condition or activity prohibited by this Chapter, or declared a public nuisance elsewhere in this Code, may be abated by the City Manager, acting in the capacity of Director of Public Welfare, or the City Manager's designee, in accordance with the procedure set out in this Chapter. The City Manager shall first investigate, or cause to be investigated, the existence of the alleged public nuisance to determine whether or not a public nuisance as defined in Section 9.1, or elsewhere in this Code, exists and to further determine the person who has created, is committing, is permitting or is maintaining that public nuisance. The City Manager, or the City Manager's designee, shall then give written notice to the person or persons responsible for the creation, commission, permitting or maintenance of such public nuisance, specifying in particular the nature of the public nuisance, the corrective action to be taken to abate the public nuisance, and the time limit for the abatement of the public nuisance, which shall be a reasonable time, but not to exceed twenty days from the time the notice is served. The notice shall be served in accordance with Section 1.11 of the City Code.

If, at the expiration of the time limit in the notice, the person responsible for the public nuisance shall not have complied with the requirements of the notice, the City Manager shall carry out the requirements of the notice, take other action as permitted by this Code or state law, or otherwise abate the public nuisance. Notwithstanding any other provision of this Code, where a public nuisance that necessitates abatement exists on private property, the owner of the property where the public nuisance condition exists, as determined by the City in accordance with this Code, shall be liable for all costs incurred by the

*__Editor's note—__Ord. No. 2011-44, § 1, adopted October 11, 2011, amended article 1 in its entirety to read as herein set out. Former article 1, §§ 9.1—9.4, pertained to similar subject matter, and derived from Ord. No. 66-43, 11-1-66.

City in connection with its enforcement of the City Code regardless of whether the City performs the work, a City contractor or vendor performs the work, or whether the City's Code enforcement actions caused the person or persons with ownership of the property, as defined in this Code, to perform the work or otherwise bring the property into compliance with the applicable provisions of the City Code.

All of the costs of Code enforcement activities provided for in this Code and incurred by the City shall be billed to the owner of the property, or other clearly responsible party, and shall be paid within 30 days of mailing. All costs of such abatement-related and Code enforcement activities shall be a personal debt owed to the City by the person billed for the public nuisance and, if the public nuisance is attributable to the use, occupancy, care, control, dominion or ownership of any land or premises, shall also, in addition to being a personal debt, be charged against such premises and the owner thereof and shall be a lien on the property until paid.

It shall be a violation of this Code for any person to fail, neglect or refuse to comply with an order issued pursuant to the provisions of this Chapter unless an appeal is lawfully filed as provided for in this Chapter.
(Ord. No. 2011-44, § 1, 10-11-11)

Sec. 9.4. Remedies Severable.

Any action taken by the City to abate any public nuisance under the provisions of this Article, or any other provision of the City Code, shall not affect the right of the City to institute other legal or administrative proceedings against the person committing, creating, permitting or maintaining any public nuisance for violation of this Code nor affect the imposition of the penalty or remedy prescribed or imposed for such violation. Upon application by the City to any court of competent jurisdiction, the court may order the public nuisance abated and/or the violation or threatened violation restrained and enjoined.
(Ord. No. 2011-44, § 1, 10-11-11)

Sec. 9.5. Appeals; Hearing.

Except as otherwise provided in this Chapter, appeals from any notice, billing, order or any other Code enforcement or abatement-related action of any officer, employee or agent charged with the enforcement of this Chapter shall be made to the Housing Appeal Board established by and provided for in Chapter 140 of this Code and according to the process and procedure set out therein. As provided for in Chapter 140, an appeal shall be filed within twenty (20) days of the date of any notice, order, ruling or action being appealed. However, if a notice, order, ruling or action requires the abatement of a public nuisance or other action within a shorter period of time, the appeal must be made within such shorter period. Upon the filing of an appeal as provided for in this Chapter, compliance with the notice, billing or order shall be stayed until the matter is heard and decided by the Housing Appeal Board except as otherwise provided in this Chapter. As provided for in Chapter 140, failure to comply with the requirements of that Chapter regarding an appeal shall be grounds for denial of the appeal. An appeal fee, established by the City Commission, shall be paid as provided for in Chapter 140 of this Code, unless waived as provided for by that Chapter.

The Housing Appeals Board may modify, reverse or affirm the notice, billing or order, in whole or in part, or make such order or decision with regard to the appeal as is determined necessary in light of the circumstance of the situation and the need to protect the public as provided for in Section 9.1. In hearing and deciding an appeal, the Housing Appeal Board shall have all the power of the officer, employee or agent from whom the appeal was taken. The decision of the Housing Appeal Board shall be final except as otherwise provided for by law.

If, as determined by the City Manager or the City Manager's designee, a serious and immediate threat to life, health or other public or private property exists, the City may summarily abate the public nuisance notwithstanding the filing of an appeal. The City shall attempt to provide verbal or written notice to the responsible party prior to a summary abatement, but, in light of the need for summary action, the failure to effectively provide such notice shall not preclude summary abatement. Should a summary abatement occur,

the appeal shall be limited to the issue of responsibility for the cost of abating the public nuisance and related costs, as provided for by this Code.

It shall be a violation of this Code for any person to fail, neglect or refuse to comply with an order or decision of the Housing Appeal Board made pursuant to this Chapter.
(Ord. No. 2011-44, § 1, 10-11-11)

Sec. 9.6. Code Enforcement and Abatement—Related Costs.

Where the public nuisance conditions that necessitate abatement exist on private or public property, the person or persons committing, creating, permitting or maintaining the public nuisance, and any owner of the private property where the public nuisance conditions exist, shall be liable for all Code enforcement and abatement-related costs incurred by the City in connection with its enforcement of the provisions of this Code regardless of whether the City performs the abatement work, the abatement work is performed by a City contractor or vendor, or the abatement is performed by the person or persons with use, occupancy, care, control, dominion or ownership over the property or others. Costs authorized to be charged under this Code include, but are not limited to, notices, orders, inspections and other actions, including property remediation after the public nuisance abatement.
(Ord. No. 2011-44, § 1, 10-11-11)

Secs. 9.7—9.10. Reserved.

ARTICLE 2. DANGEROUS STRUCTURES*

Sec. 9.11. Dangerous Structures.

No person shall maintain any structure which is unsafe or which is a menace to the health or safety of the public.

Sec. 9.12. Notice and Hearing.

The Commission may, after notice to the owner and after holding a public hearing thereon, condemn such structure by giving notice to the owner of the land upon which such structure is located, specifying in what respects said structure is a public nuisance and requiring said owner to alter, repair, tear down or remove the same within such reasonable time, not exceeding sixty (60) days, as may be necessary to do or have done the work required by said notice. Said notice may also provide a reasonable time within which such work shall be commenced.

Sec. 9.13. Abatement.

If, at the expiration of any time limit in said notice, the owner has not complied with the requirements thereof, the City Manager shall carry out the requirements of said notice. The cost of such abatement shall be charged against the premises and the owner thereof.

Sec. 9.14. Emergency Abatement.

The City Manager may abate any such public nuisance, if the public safety requires immediate action, without preliminary order of the Commission. Thereafter the cost of abating such nuisance shall be charged against the premises and the owner thereof in accordance with the provisions of Section 11.9 [Section 97(c)] of the City Charter.

Secs. 9.15—9.23. Reserved.

ARTICLE 3. HANDBILLS AND HANDBILL DISTRIBUTORS

Sec. 9.24. Posting Prohibited.

No person shall hang, post, place, paste, put or in any other manner affix any handbill, notice, advertisement, sign, placard, card or any other advertising device on any telegraph, telephone, electric light or postal telegraph pole or poles now erected or which shall hereafter be erected in any street, alley or other public place in the City of Grand Rapids, provided, however, that the provisions hereof shall not apply to the posting of official election notices required by statute to be posted in public places.

*__Cross reference—__Unsafe, damaged or deteriorated structures, § 8.5(120.0).

Sec. 9.25. Method of Distribution.

Any person distributing advertising matter from house to house shall be required to follow the walks, both inside and outside the premises, shall not cut across the yards, and if a receptacle for such advertising is furnished, he or she shall place same in such receptacle. If no receptacle is furnished, he or she shall place said advertising matter in such manner so that the same will not be blown about.

Sec. 9.26. Additional Regulations.

No person shall throw or deposit:

(1) Any commercial or noncommercial handbill in or upon any sidewalk, street or other public place within the City, nor shall any person hand out or distribute or sell any commercial handbill in any public place; provided, however, that it shall not be unlawful on any sidewalk, street or public place within the City for any person to hand out or distribute, without charge to the receiver thereof, any noncommercial handbill to any person willing to accept it;

(2) Any commercial or noncommercial handbill in or upon any vehicle; provided, however, that it shall not be unlawful in any public place for a person to hand out or distribute without charge to the receiver thereof, a noncommercial handbill to any occupant of a vehicle who is willing to accept it;

(3) Any commercial or noncommercial handbill in or upon any private premises which are temporarily or continuously uninhabited or vacant;

(4) Any commercial or noncommercial handbill in or upon private premises which are inhabited, except by handing or transmitting any such handbill directly to the owner, occupant, or other person then present in or upon such private premises.

Secs. 9.27—9.30. Reserved.

ARTICLE 4. AIR POLLUTION CONTROL*

Sec. 9.31. Intent and Scope.

This Air Pollution Control Article shall serve to protect the public health, safety and welfare by regulating the emission of contaminants into the atmosphere.
(Ord. No. 67-51, 10-17-67; Ord. No. 78-16, 3-14-78)

Sec. 9.32. Definitions.

For the purpose of this Article, the following definitions will be applicable:

(1) *Air Cleaning Device* shall mean any method, process or equipment which removes, reduces, or renders less noxious air contaminants discharged into the atmosphere.

(2) *Air Contaminant* shall mean a dust, fume, gas, mist, odor, smoke, vapor, or combination thereof.

(3) *Air Pollution* shall mean the presence, in the ambient air, of air contaminants which are in quantities, of characteristics, and of durations which, by condition and/or circumstances, become injurious and/or detrimental to the health and welfare of all living things.

(4) *Air Quality Index* shall mean Grand Rapids air quality conditions as determined by the Michigan Department of Environmental Quality.

(5) *Air Quality Standard* shall mean the concentration and duration of an air contaminant specified as the maximum acceptable concentration and duration of that contaminant in the ambient air as set forth below:

Ambient Air Quality Standards

	Primary	*Secondary*
Suspended Particulates (micrograms/cu. meter)		

*__State law reference__—Air Pollution Act, MCL 336.11 et seq.

	Primary	*Secondary*
Annual geometric mean	75	—
Max. 24-hr. conc.*	260	150
Sulfur Oxides (micrograms/cu. meter)		
Annual arith. average	80 (.03 ppm)	—
Max. 24-hr. conc.*	365 (.14 ppm)	—
Max. 3-hr. conc.*	—	1300 (.5 ppm)
Carbon Monoxide (milligrams/cu. meter)		
Max. 8-hr. conc.*	10 (9 ppm)	10
Max. 1-hr. conc.*	40 (35 ppm)	40
Photochemical Oxidants (micrograms/cu. meter)		
Max. 1-hr. conc.*	160 (.08 ppm)	160
Nitrogen Oxides (micrograms/cu. meter)		
Annual arith. average	100 (0.5 ppm)	100
Hydrocarbons (micrograms/cu. meter)		
Max. 3-hr. conc.* (6:00—9:00 a.m.)	160 (.24 ppm)	160

Note: Values in parts per million (ppm) are only approximate.

*Not to be exceeded more than once a year per site.

(6) *Ambient Air* shall mean that part of the atmosphere, outside of a building, to which the public has access.

(7) *Certified Prescribed Burn Manager* shall mean an individual who has successfully completed the certification program of the Michigan Department of Natural Resources under MCL 324.51513 and possesses a valid certification number; or an individual who is certified as a burn manager under the National Wildfire Coordinating Group Certification.

(8) *CFFDRS* shall mean Canadian Forest Fire Danger Rating System.

(9) *Collected Air Contaminants* shall mean those air contaminants which are prevented by any air cleaning device, design, apparatus and/or obstruction, from entering into the ambient air and therefore, through accumulation, require periodic removal and disposal.

(10) *Fuel Burning Equipment* shall mean a device, contrivance or piece of equipment which burns fuel and all the appurtenances thereto including ducts, breechings, control equipment, fuel feeding equipment, ash removal equipment, combustion controls, stacks, chimneys and miscellaneous equipment used directly or indirectly in the fuel combustion process. Outdoor furnaces, boilers and similar devices, regardless of fuel type, are included in this definition.

(11) *Incinerator* shall mean a device specifically designed for the burning of refuse and/or waste material.

(12) *Manager* shall mean the Environmental Services Department Manager or his or her authorized representative.

(13) *Metropolitan Area* shall mean the City limits of Grand Rapids and the City limits of cities with whom the City of Grand Rapids has air pollution control agreements.

(14) *Opacity* shall mean the degree to which an emission reduces the transmission of light or obscures an observer's view.

(15) *Open Burning* shall mean a fire from which the products of combustion are emitted directly into the ambient air without passing through a stack or chimney, and shall include recreational fires as permitted by Section 9.35 of this Article. Open Burning, as defined in this Section, shall not include a fire from an LPG (liquid petroleum gas) fueled device that is portable and used in accordance with the manufacturer's instructions and specifications, or permanently installed and operated in compliance with applicable building code and fire code provision(s).

(16) *Ozone Action Day* shall mean a day on which the Michigan Department of Environmental Quality has determined that the potential for high ozone levels may occur on that given day.

(17) *Particulate Matter* shall mean any substance, except uncombined water, that exists as a liquid or solid in minute amounts under standard conditions.

(18) *Person* shall mean an individual person, trustee, court appointed representative, syndicate, association, partnership, firm, club, company, corporation, business trust, institution, Department, Bureau, Agency, or instrumentality of Federal, State or local government, or other entity recognized by law as subject to rights and duties.

(19) *Prescribed Burn* or *Prescribed Burning* shall mean the burning, in compliance with a prescription and to meet planned fire or land management objectives, of a continuous cover of fuels.

(20) *Prescription* shall mean a written plan establishing the criteria necessary for starting, controlling, and extinguishing a prescribed burn.

(21) *Process* or *Process Control Equipment* shall mean any device and/or contrivance including all appurtenances thereto, which may cause the discharge of an air contaminant into the ambient air. "Fuel burning equipment" shall be excluded from this definition.

(22) *Refuse* shall mean all putrescible or non-putrescible solid waste, except body waste and construction waste.

(23) *Ringleman Chart* shall mean that chart published and described in the U.S. Bureau of Mines Information Circular 8333, which illustrates graduated shades of gray to black for use in estimating the density of smoke.

(24) *Salvage Operation* shall mean any operation conducted in whole or in part for the salvaging or reclaiming of any product or material.

(25) *Smoke* shall mean gas and/or airborne particles consisting essentially of carbonaceous material, in sufficient density to be observable.

(26) *Source Sample* shall mean an emission sample from an air contaminant source, collected for analysis from an effluent stream.

(27) *Source Separation* shall mean the last operation preceding the emission of an air contaminant, which (a) results in the separation of the air contaminant from the process material or in the conversion of the process materials into air contaminants, as in the case of combustible fuel; and (b) is not an air pollution abatement operation.

(28) *Stack* or *Chimney* shall mean a flue, conduit, or duct designed to direct an effluent into the ambient air.

(29) *Standard Conditions* shall mean a temperature of seventy (70) degrees Fahrenheit and a gas pressure of 29.92 inches of mercury absolute.

(Ord. No. 67-51, 10-17-67; Ord. No. 78-16, 3-14-78; Ord. No. 2007-08, § 1, 1-23-07; Ord. No. 2009-02, §§ 1, 2, 1-27-09; Ord. No. 2016-57, § 1, 8-23-16)

Sec. 9.33. Duties of the Manager.

The Manager shall act as the authorized agent for the City to effect the purposes of this Article. The Manager and his or her authorized agents shall perform investigative, technical, scientific and other services. The responsibilities of the Manager shall include:

(1) Issue, modify, or cancel orders which require the control of air pollution.

(2) When deemed necessary by the Manager, the Manager may require that plans for air cleaning devices and any part(s) thereof shall be submitted to him or her for consideration and approval.

(3) Investigate and inspect actual, suspected or potential sources of air pollution. If, in connection with such an investigation or inspection, samples of air contaminants are taken for analysis, a duplicate of the analytical report shall be furnished promptly to the person suspected of causing said air pollution.

(4) Prepare and develop plans for the control and/or abatement of existing air pollution and for the prevention and limitation of any new pollution.

(5) Conduct or cause to be conducted studies and research with respect to air pollution control, abatement and prevention.

(6) Determine through field studies and sampling the degree of air pollution in the metropolitan area.

(7) Inspect metropolitan businesses, in accordance with the requirements of the current agreement between the City and the State of Michigan Department of Natural Resources, to determine the degree of compliance with the State of Michigan Air Surveillance Act.

(8) Measure the suspended particles and gases within the metropolitan area in accordance with State and Federal requirements.

(9) The Manager may require such reasonable measures as may be necessary to prevent particulate matter from becoming airborne; including, but not limited to, paving or frequent cleaning of roads, driveways and parking lots, application of dust-free surfaces; application of water; and the planting and maintenance of vegetative ground cover."

(Ord. No. 67-51, 10-17-67; Ord. No. 78-16, 3-14-78; Ord. No. 2009-02, §§ 1, 3, 1-27-09

Sec. 9.34. Unlawful Emission of Air Pollution Contaminants.

(1) *Emission of Particulate Matter.* It shall be unlawful to cause or to allow the emission of particular matter in excess of the maximum allowable emission rate listed below:

PARTICULATE MATTER EMISSION SCHEDULE

Source	*Capacity Rating in Pounds Steam Per Hr.*	*Maximum Allowable Emission at Operating Conditions[(a)] (lbs. particulate per 1000 lbs. gas)*
A. *Fuel Burning Equipment:*		
1. Pulverized coal (includes cyclone furnaces)	0—1,000,000	See Table 2 for maximum emission limit
	Over 1,000,000	Apply to Commission for specific emission limit
2. Other modes of firing coal (other than pulverized)	0—100,000	0.65
	100,001—300,000	0.65—0.45[(b)]
	Over 300,000	Apply to Commission for specific emission limit
3. Wood (sawdust, shavings, hogged, other) where heat input of wood fuel 75% of total heat input		0.50
All other combination fuel burning equipment which uses wood as one of the fuels		Apply to Commission for specific emission limit

Source	*Rating in lbs. waste per hour*	*Maximum Allowable Emission at Operating Conditions[(a)] (lbs. particulate per 1000 lbs. gas)*
B. *Incinerators:*		

Source	Rating in lbs. waste per hour	Maximum Allowable Emission at Operating Conditions[a] (lbs. particulate per 1000 lbs. gas)
1. Residential apartments, commercial and industrial[c], [d]	0—100	0.65
	Over 100	0.30
2. Municipal	All	0.30
3. Pathological[d]		0.20
4. Manure drying or incineration		0.20
C. *Steel Manufacturing:*		
1. Open hearth furnaces		0.10
2. Basic oxygen furnaces		0.10
3. Electric furnaces		0.10
4. Sintering plants		0.20
5. Blast furnaces		0.15
6. Heating and reheating furnaces		0.30

Source	Total Plant Melt Rate in Tons/Hr.	Maximum Allowable Emission at Operating Conditions[a] (lbs. particulate per 1000 lbs. gas)
D. *Ferrous Cupola Operations:*		
1. Production cupolas	0—10	0.40
	10—20	0.25
	Over 20	0.15
2. Jobbing cupolas		0.40
3. Electric arc melting		0.10
4. Sand handling		0.10
E. *Chemical and Mineral Kilns*		0.20
F. *Asphalt Paving Plants*		0.30
G. *Cement Manufacture* (up to 15,000 barrels per day kiln capacity):		
1. Kiln-wet or dry process		0.25
2. Clinker coolers		0.30
3. Grinding, crushing and other material handling		0.15

Note: A maximum allowable emission listing shall be applied for to the Commission for all kiln installations which will result in a total plant kiln capacity in excess of 15,000 barrels of cement per day.

Source	Gas Flow Rate (SCFM)	Maximum Allowable Emission at Operating Conditions[a] (lbs. particulate per 1000 lbs. gas)
H. *Iron Ore Pelletizing:*		

Source		*Gas Flow Rate (SCFM)*	*Maximum Allowable Emission at Operating Conditions[(a)] (lbs. particulate per 1000 lbs. gas)*
1.	Grate kilns and traveling grates	Greater than 600,000	Apply to Commission for specific Commission limit
		300,001—600,000	0.10
		100,000—300,000	0.25
		less than 100,000	0.20

Notes:

(a) Fuel burning and refuse incineration limitation shall be calculated to fifty (50) percent excess air.

(b) Emission limitations for specific ratings are determined by linear interpolation between the ranges shown.

(c) These emission limitations do not apply to domestic incinerators (defined as having not over five (5) cubic feet of storage capacity).

(d) Afterburner or approved equivalent is mandatory.

(e) Differentiation between jobbing and production foundries. Cupolas used in a jobbing foundry are the same as those used in a production foundry and will vary in size only according to the quantity of iron melted per hour. However, the cupolas in a jobbing foundry will be run intermittently just long enough at one time to pour the molds that are ready on the foundry floor, job. This might be for a two- to four-hour period per day for any number of days per week. Production foundry cupolas will melt continuously to pour a succession of molds that are constantly being prepared to reserve this continuous flow of iron. This would become eight (8) hours, sixteen (16) hours, or twenty-four (24) hours per day for any number of days per week.

2. The maximum allowable emission rate listed by the Michigan Air Pollution Control Commission on its own initiative or by application. A new listed value shall be based upon the control results achievable with the application of the best technically feasible, practical equipment available. This applies only to sources not assigned to a specific emission limit in item 1.
3. The maximum allowable emission rate specified as a condition of a State permit to install or a State permit to operate.
4. The maximum allowable emission rate specified in a voluntary agreement, performance contract, stipulation, and/or an order of the Michigan Air Pollution Control Commission.
5. The maximum allowable emission rate based upon process weight rate shall be as follows:

Table 2
Allowable Rate of Emission Based on Process Weight Rate[(a)]

Process Weight Rate		*Rate of emission*	*Process Weight Rate*		*Rate of emission*
lb./hr.	*tons/hr.*	*lb./hr.*	*lb./hr.*	*tons/hr.*	*lb./hr.*
100	0.05	0.55	16,000	8.00	16.5
200	0.10	0.88	18,000	9.00	17.9
400	0.20	1.40	20,000	10.00	19.2
600	0.30	1.83	30,000	15.00	25.2
800	0.40	2.22	40,000	20.00	30.5
1,000	0.50	2.58	50,000	25.00	35.4
1,500	0.75	3.38	60,000	30.00	40.0
2,000	1.00	4.10	70,000	35.00	41.3

Process Weight Rate		*Rate of emission*	*Process Weight Rate*		*Rate of emission*
lb./hr.	*tons/hr.*	*lb./hr.*	*lb./hr.*	*tons/hr.*	*lb./hr.*
2,500	1.25	4.76	80,000	40.00	42.5
3,000	1.50	5.38	90,000	45.00	43.6
3,500	1.75	5.95	100,000	50.00	44.6
4,000	2.00	6.52	120,000	60.00	46.3
5,000	2.50	7.58	140,000	70.00	47.8
6,000	3.00	8.56	160,000	80.00	49.0
7,000	3.50	9.49	200,000	100.00	51.2
8,000	4.00	10.4	1,000,000	500.00	69.0
9,000	4.50	11.2	2,000,000	1,000.00	77.6
10,000	5.00	12.0	6,000,000	3,000.00	92.7
12,000	6.00	13.6			

(a) Interpolation of the data in this table for process weight rates up to 60,000 lb./hr. shall be accomplished by use of the equation $E = 4.\ 10P^{0.67}$ and interpolation and extrapolation of the data for process weight rates in excess of 60,000 lb./hr. shall be accomplished by use of the equation $E = 55.0\ P^{0.11}\text{-}40$, where E = rate of emission in lb./hr. and P = process weight in tons/hr.

Process weight—The total amount of all material introduced into an industrial operation, including solid fuels, but excluding liquid fuels and gaseous fuels when these are used as fuels and air introduced for purposes of combustion.

Process weight rate—For continuous or long-term operation: The total process weight for the entire period of operation or for a typical portion thereof, divided by the number of hours of such period or portion thereof. For batch operations: The total process weight for a period which covers a complete operation or an integral number of cycles, divided by the hours of actual process operation during such period.

(2) *Standards for Density of Emission.* Emission of a visible air contaminant having a density darker than No. 1.0 of the Ringleman Chart or having more than a twenty (20) percent opacity shall be prohibited except where the presence of uncombined water vapor is the only reason for failure of air emissions to meet the requirements of this Article.

A visible air contaminant of a density not darker than No. 2 of the Ringleman Chart or not more than forty (40) percent opacity may be emitted for not more than three (3) minutes in any sixty-minute period, but this emission shall not be permitted on more than three (3) occasions during any twenty-four-hour period.

(3) *Measuring Density.* The density of an air contaminant shall be measured at the point of emission or the nearest observable point on the plume.

(4) *Grading Visible Emissions.*

(a) Darkness of a visible emission of an air contaminant shall be graded by using the Ringleman Chart or by means of a device or technique which results in a measurement of equal or better accuracy.

(b) Opacity of a visible emission of an air contaminant shall be graded by observers trained and certified by the State of Michigan Air Quality Control Division, Department of Natural Resources, using a device or technique approved by and on file with the Michigan Air Pollution Control Commission.

(5) *Diluting and Concealing of Emissions.* The concealing and/or diluting of air contaminants which, prior to diluting or concealing, do not comply with the standards herein expressed, shall be prohibited. This shall not apply to the control of odors.

(6) *Air Contaminant or Water Vapor, When Prohibited.* No person shall cause or permit the emission of an air contaminant or water vapor including an air contaminant whose emission is not otherwise prohibited by this Article, or an air contaminant or water vapor which reacts or may react with any other air contaminant or natural air, and which causes or will cause detriment to the safety, health, welfare or comfort of any person, or which causes or will cause damage to property or business.

(7) *Open Burning.* Open burning shall be prohibited, except as provided herein and in Section 9.35 of this Article.

(a) The following exemptions shall be allowed provided they do not violate any other Sections of this Chapter.

(i) The burning of wood, charcoal, coke or other accepted fuels for the preparing of food in an approved container or utensil while being used in a safe and sanitary manner.

(ii) The use of approved gaseous or liquid fired salamanders commonly employed in conjunction with building and construction operations when being used in accordance with accepted safety standards.

(iii) Roofers, tinners, plumbers, or others pursuing a business requiring the use of fire or for the purpose of boiling tar, pitch or oil used in the regular course of an appropriate business or trade, and while being used in a safe and sanitary manner.

(iv) Open burning for Fire Department and/or Civil Defense purposes shall be permitted only under the following conditions:

a. The area is adequately protected by Fire Department personnel.

b. The fire will be of short duration.

c. The ambient air, at time of burning is relatively free of pollutants.

d. The Fire Department Chief submits to the Manager written authorization for such burning.

(v) Prescribed burning shall be permitted only under the following conditions:

a. The State of Michigan department with responsibility for environmental protection determines that the prescribed burn would not violate state statute or state administrative rule or regulation, and provides a statement in writing that such burning, as proposed, would not violate state statute or state administrative rule or regulation.

b. A certified prescribed burn manager provides the Grand Rapids Fire Department, administrative office, a copy of the prescription for Fire Department approval no later than 30 days in advance of the earliest planned burn date contained in the prescription.

c. The Grand Rapids Fire Chief or his or her designee approves the parameters for the date of the burn and the time period during the day that the burn will occur giving consideration to other planned events within the City during the period in question, as well as Fire Department resources available to provide fire suppression and complaint response services.

d. A prescription shall be on-site at the location of the burn and available for inspection by a representative of the Manager or of the Fire Department.

e. A certified prescribed burn manager is present on the site of the prescribed burn with a copy of the prescription, from ignition of the prescribed burn until a minimum of 30 minutes after the burn is extinguished, to watch for re-kindles.

f. The Air Quality Index is described to be "Good" to "Moderate" immediately prior to the prescribed burning.

g. The Michigan Department of Environmental Quality has not issued an Ozone Action Day advisory.

h. A certified prescribed burn manager shall notify the Grand Rapids Fire Department, Central Dispatch, as follows:
   (1) One hour prior to the proposed start of the prescribed burn;
   (2) At the start of the prescribed burn;
   (3) When crews have left the burn site; and
   (4) If the burn is cancelled.

i. Mandatory prescription requirements shall include all of the following:
   (1) A copy of the written statement from the State of Michigan described in paragraph (7)(a)(v)a. above.
   (2) The stand or site description, to include the landowner's name and mailing address and the legal description of the treatment area.
   (3) The acreage to be treated.
   (4) A map of the area to be burned indicating special concerns located within 1 mile of the treatment area. Special concerns include, but are not limited to, all of the following:
      (i) Adjacent landowners;
      (ii) Power lines;
      (iii) Utilities;
      (iv) Roads;
      (v) Residences;
      (vi) Schools;
      (vii) Hospitals;
      (viii) Nursing homes; and
      (ix) Public facilities, in general.
   (5) The personnel and equipment to be used to conduct the burn.
   (6) The land management objectives of the burn.
   (7) The type of vegetation or fuel model CFFDRS to be burned and the amount of fuel to be consumed in either tons/acre or percent of the available fuel load.
   (8) A listing of all the alternatives to prescribed burning considered by the landowner, including a description of the reasons why prescribed burning was chosen, rather than the alternatives, as a method of meeting the planned fire or land management objectives.
   (9) The operational plan of the burn procedure, including, but not limited to, the following:
      (i) Fire breaks to be used to confine the burn to the prescribed area;
      (ii) Ignition plan, smoke management plan, and fire containment strategy;
      (iii) Provisions for the safety of the individuals conducting the burn;
      (iv) Provisions for the protection of power lines, pipelines, and other utilities within the burn area;
      (v) A contingency plan to control and suppress burns occur-

ring outside the prescribed area and if the burn does not progress as expected. The contingency plan shall include necessary supporting resources and emergency contact information;

(vi) Weather parameters, including but not limited to surface wind speed, direction, relative humidity, temperature, and fine fuel moisture thresholds;

(vii) Expected fire behavior factors, including burn technique, flame length, and rate of spread; and

(viii) The criteria the certified prescribed burn manager will use for making go/no-go burn decisions.

(10) Time and date prescription was prepared.

(11) Time parameters for the burn, including the parameters for the date of the burn and the time period during the day that the burn will occur.

(12) Evaluation of the anticipated smoke impacts and a plan to mitigate these impacts.

(13) Signature and certification number of the certified prescribed burn manager.

(14) Signature of the landowner(s) for whom the burn is to be conducted, or a designee.

(15) Identify all individuals and organizations to be notified or the prescribed burn and the notification plan.

j. Fire suppression and complaint response costs incurred by the City shall be the responsibility of the certified prescribed burn manager.

k. The landowner or prescribed burn manager shall provide the City with the types and amounts of insurance required, and approved, by the City, upon recommendation of its Insurance Agent of Record, naming the City and its officers, employees, and agents as Additional Insured.

(b) Smoking, smoldering incinerators or any burning of garbage or refuse that smolders or gives off nauseous odors is prohibited.

(8) *Fugitive Dust.* It shall be prohibited to handle and/or transport any material and/or substance in such a manner which causes said material and/or substance to be discharged into the ambient air.

(9) Outdoor Fuel Burning Equipment, as defined in Sec. 9.32 of this Chapter, shall be prohibited.

(Ord. No. 67-51, 10-17-67; Ord. No. 78-16, 3-14-78; Ord. No. 78-86, 12-5-78; Ord. No. 2007-08, § 2, 1-23-07; Ord. No. 2009-02, §§ 4, 5, 1-27-09; Ord. No. 2016-57, § 3, 8-23-16; Ord. No. 2019-12, § 1, 4-9-19)

Sec. 9.35. Recreational Fires.

(1) The City having successfully permitted contained and regulated recreational fires as part of a thirty (30) month pilot program without administrative difficulty hereby permits recreational fires subject to this Section.

(2) The burning of wood for recreational purposes in a contained and regulated manner within a recreational outdoor fire pit, chiminea, or free standing container designed for use in having safe and controlled outdoor fires shall be

allowed provided it does not violate any other Sections of this Chapter and the following conditions are met:

(a) The fire pit or container is located in a residential zone district.

(b) A permit for a contained and regulated recreational fire has been issued by the City Manager or his/her designee pursuant to the procedure set forth in this Section.

(c) The fire pit or container is located at least 20 feet from any structure or combustible material.

(d) The fire pit or container is located at least 20 feet from any lot line, roadway, alleyway, or fence.

(e) The fire pit or container is located at least 15 feet from any overhead line.

(f) The fire pit or container is no larger at its largest point than three (3) feet wide, three (3) feet deep, and three (3) feet tall (exclusive of feet, legs or chimney) and is made of non-combustible materials.

(g) The fire pit or container is covered by a screen or other spark cover/arrestor.

(h) There is a 4-A rated fire extinguisher, garden hose connected to a water supply, or other means of fire suppression readily available for immediate use.

(i) The fire is constantly attended by a competent adult at least 18 years of age until the fire is extinguished.

(j) Burning occurs between the hours of 7:00 a.m. and 10:00 p.m.

(k) Only seasoned dry firewood can be burned.

(l) Burning of yard waste, leaves, trash, refuse, building materials, or other materials is expressly prohibited.

(m) Fires are prohibited during all ozone action days, times of high fire risk issued by the Michigan Department of Natural Resources, or burning bans imposed by the State or City.

(n) If the Fire Chief and his/her designee(s), or a police officer, determines that any open burning is unsafe due to dry weather, wind conditions or other unfavorable conditions, or the impact on air quality or the health of nearby residents, or the opening burning causes a foul odor or smoke emissions reasonably offensive to the occupants of nearby properties, or the open burning creates a visibility hazard on streets, roads, or railways, the Fire Chief and his/her designee(s), or a police officer, may order the open burning to be extinguished or may impose reasonable conditions on the open burning.

(o) Fires may only be had on a lot containing a single-family or two-family dwelling in areas other than the front yard. No person shall have fires on a lot containing a multi-family dwelling or within a condominium project.

(p) Fires are only permitted by an occupant of a dwelling unit on the real property where the fire is located.

(3) *Recreational Fire Permits:* Any person wanting to have a contained and regulated recreational fire within the City shall first apply for and obtain a permit from the City Manager and his/her designee, before that person may legally have a recreational fire. Regulations pertaining to permits shall be as follows:

(a) Any person applying for a permit to have a contained and regulated recreational fire within the city shall submit a permit application form promulgated by the City Manager or his/her designee and shall pay an application fee established by resolution of the City Commission.

(b) If the applicant is not the owner of the real property on which he or she wants to have a recreational fire, the applicant must provide written consent of the owner of the real property. Without such written consent, the permit application will not be granted.

(c) Once a completed application form, application fee and written consent of the owner of the real property has been submitted to the City Manager or his/her designee, the City shall within ten (10) business days send written notice of the application for a permit to have a contained and regulated recreational fire to the following:

(i) The address of record for all buildings, condominium units, apartments, business suites, and other units intended for human occupancy located within one hundred twenty (120) feet of any lot line of the real property on which the recreational fire is proposed. For buildings that contain two or more condominium units, apartments, or business suites this notice shall be sent to all addresses of record within a building that is physically located entirely or partially within one hundred twenty (120) feet of any lot line of the real property on which the recreational fire is proposed.

(ii) The address of record for the owner of all real properties located entirely or partially within one hundred twenty (120) feet of any lot line of the real property on which the recreational fire is proposed. For real properties that contain condominiums, this notice shall only be sent to the owners of units physically located in a building that is entirely or partially within one hundred twenty (120) feet of any lot line of the real property on which the recreational fire is proposed.

(iii) If a recreational fire is proposed on a lot containing a two-family dwelling, written notice of the application for a recreational fire permit shall also be sent to the physical property address of the other unit within that two-family dwelling.

(d) If the City Manager or his/her designee receives an objection to the issuance of a permit from any person required to be notified of the permit application within twenty-one (21) days from mailing the written notice of the permit application, the following process will occur:

(i) The City Manager or his/her designee shall review the objection to determine if the objection is valid and reasonable in consideration of the City's mandate to protect public health, safety, and welfare.

(ii) The City Manager or his/her designee may ask the objector to provide documentation in support of the objection. Any such documentation which is of a confidential nature will not be released to a third party by the City, and will be returned to the objector when all appeal deadlines have run.

(e) If the City Manager or his/her designee receives no objections to the issuance of a permit from any person required to be notified of the permit application, within the appropriate time period as specified above, he or she shall review the permit application for compliance with setback, pit or container, and safety requirements set forth within the ordinance.

(f) If the City Manager or his/her designee grants the request for the permit, he/she shall do so in writing, which writing shall state the property address at which contained and regulated fires are permitted.

(g) If the City Manager or his/her designee denies the request for the permit, he/she shall do so in writing, which writing shall state the reasons for such denial.

(h) If the City Manager or his/her designee denies this request for the permit, the provisions of the City Code Section 7.16 regarding appeals from license and permit denials shall apply.

(i) An initial permit shall be valid for a period of one (1) year. If, in the judgment of the City Manager or his/her designee,

the permittee has abided by all ordinance provisions and permit conditions, and has not created a nuisance to the owners or occupants of primary or secondary adjacent properties or the neighborhood, the permit may be renewed for successive one (1) year periods subject to the notification process in subsection (3)(c) above. However, no permit issued pursuant to this ordinance shall remain valid past the date on which this ordinance has expired or is repealed, whichever is earlier.

(j) Any permit may be suspended or revoked by the City Manager or his/her designee, by written notice to the permit holder, upon a finding that the permittee has violated applicable City ordinance provisions or permit conditions.

(k) If the City receives complaints relating to recreational fires for which a permit has been issued under this Section, the City may re-notice neighboring properties pursuant to subsection (3)(c) and (d), and suspend or revoke a permit.

(l) If the City Manager or his/her designee suspends or revokes a permit, the provisions of City Code Section 7.14 regarding suspension and revocation of permits and licenses shall apply.

(m) A permit as described above is personal to the applicant. Such a permit may not be transferred to another individual. If ownership of the underlying real property is transferred, the permit does not run with the land, and a person desiring to have permitted recreational fires must apply for a new permit.

(n) The City Manager or his/her designee is hereby authorized to promulgate rules and regulations relative to recreational fire permits.

(4) *Exemption:*

(a) Fires conducted for ceremonial or religious purposes shall be allowed without a permit to celebrate particular events, under the same terms and conditions as outlined in this Section.

(b) The property owner shall notify the City of Grand Rapids Fire Department forty-eight (48) hours before a fire described in this Section is scheduled to occur.

(5) *Penalties:*

(a) A violation of this Section shall be a municipal civil infraction, punishable by a fine as established in Chapter 170 of this Code.

(b) The Fire Chief and his/her designee(s) are hereby authorized to issue municipal civil infraction citations and notices for any violation of this Section.

(c) Notwithstanding the foregoing, a misdemeanor complaint shall be issued where three (3) or more civil infraction citations have already been issued to the same person for violations of this Section.

(Ord. No. 2016-57, § 3, 8-23-16; Ord. No. 2016-67, § 1, 9-20-16; Ord. No. 2017-02, § 1, 1-10-17; Ord. No. 2018-51, §§ 1, 2, 8-14-18; Ord. No. 2019-12, § 2, 4-9-19)

Secs. 9.36—9.60. Reserved.

ARTICLE 5. NOISE CONTROL*

Sec. 9.61. Title and Purpose.

(1) Article 5 of Chapter 151 shall be known as the "Noise Control Ordinance" of the City of Grand Rapids.

(2) The City Commission intends to minimize the exposure of citizens to the potential negative physiological and psychological effects of exces-

*__Editor's note—__Ord. No. 2019-71, §§ 1, 2, adopted November 19, 2019, repealed the former Art. 5, §§ 9.61—9.70, and enacted a new Art. 5 as set out herein. The former Art. 5 pertained to similar subject matter and derived from Ord. No. 73-8, 2-6-73; Ord. No. 75-36, 4-29-75; Ord. No. 76-2, 1-6-76; Ord. No. 76-20, 3-23-76; Ord. No. 78-27, 4-18-78; Ord. No. 83-56, 9-27-83; Ord. No. 95-67, § 1, 11-14-95; Ord. No. 99-65, § 1, 11-23-99; Ord. No. 2013-74, § 1, 11-19-13; Ord. No. 2016-79, § 1, 11-15-16.

sive noise while protecting, promoting, and preserving the public health, safety, and welfare. The City Commission intends to control the level of noise in a manner that promotes the use, value, and enjoyment of property, conduct of business, and sleep and repose and reduces unnecessary, unreasonable, and excessive sound in the environment.
(Ord. No. 2019-71, § 2, 11-19-19)

Sec. 9.62. Definitions.

As used in this Article:

(1) *Amplified Sound* means sound that is increased by electronic means.

(2) *ANSI* means American National Standards Institute or its successor bodies. All acoustical terminology used in this Article shall be consistent with applicable ANSI/ASA standards.

(3) *ASA* means Acoustical Society of America or its successor bodies.

(4) *Director* means the Environmental Services Director or his or her duly authorized representative.

(5) *Decibel* means a logarithmic unit of measurement which indicates the ratio between two (2) quantities (commonly electrical or sound energy levels, or pressure levels) (see Sound pressure level).

(6) *Discrete Tone* means a sound wave whose instantaneous sound pressure varies essentially as a sinusoidal function of time.

(7) *Entertainment or Commercial Business* includes any person or entity possessing a liquor license or indoor events license or any business providing goods or services to customers for consideration.

(8) *Essential Services* means the erection, construction, alteration, or maintenance by public utilities, municipal Departments or Commissions, or any governmental agencies of street or right-of-way facilities, underground or overhead gas, electrical, steam, water, or other transmission or distribution systems, collection, communication, supply or disposal systems, including poles, conduits, cables, fire alarm boxes, police call boxes, traffic signals, hydrants, towers, electric substations, telephone exchange buildings, gas regulator stations, and other similar equipment and accessories in connection therewith, reasonably necessary for the furnishing of utility service by such public utilities, municipal Departments or Commissions, or any governmental agencies, or for the public health, safety, or welfare. Essential services in this Article shall also mean Michigan Department of Transportation work including capital preventive maintenance, light duty rehabilitation, rotomilling and resurfacing, pavement restriping, asset management related repairs, alterations, or improvements, emergency repairs essential to the operational functionality, safety, and maintenance of the transportation network, and such other activities approved in writing by the City Engineer.

(9) *IEC* means International Electrotechnical Commission or its successor bodies.

(10) *Impulse Noise* is characterized by brief excursions of sound pressure which significantly exceed the ambient environmental sound pressure. The duration of a single impulse is usually less than one (1) second.

(11) *Intermittent Noise* means a noise whose sound pressure level equals the ambient environmental level two (2) or more times during the period of observation. The time period during which the level of the noise remains at an essentially constant value different from that of the ambient noise level is on the order of one (1) second or more.

(12) *ISO* means International Organization for Standardization or its successor bodies.

(13) *Motor Vehicle* means "motor vehicle" as defined in the State Motor Vehicle Code, 1949 P.A. 300 (MCL 257.1 et seq.).

(14) *Noise Disturbance* shall mean any sound that unreasonably disturbs a person of normal sensitivities or unreasonably interferes with the peaceful enjoyment of the premises of another because the sound:

(a) Can be heard due to the volume or intensity of the sound; and

(b) Can be heard distinctly and discretely above the ambient sound of the surrounding area.

(15) *Octave Band* means a frequency band with lower and upper cut-off frequencies having a ratio of 2. The cutoff frequencies of 707 hertz and 1414 hertz define an octave band in common use.

(16) *Period of Observation* means the time interval during which acoustical data are obtained. The period of observation is determined by the characteristics of the noise being measured and should also be at least ten (10) times as long as the response time of the instrumentation. The greater the variance in indicated sound level, the longer must be the observation time for a given expected accuracy of the measurement.

(17) *Person* means every natural person, partnership, association, or corporation which may own, operate, or control those devices or facilities herein described.

(18) *Property Line* means the imaginary line representing the legal limits of real property (including an apartment, condominium, room, or other dwelling unit) owned, leased, or otherwise occupied by a person, business, corporation, or institution. In cases involving sound from an activity on a public street or other public right-of-way, the property line shall be the nearest boundary of the public right-of-way.

(19) *Repetitive Impulse Noise* means more than five (5) impulses per hour.

(20) *Residential and Residence* mean a legal use of property for temporary or permanent dwelling purposes.

(21) *Residential disturbance* means a gathering of one or more persons at a residential property, between 10:00 p.m. and 7:00 a.m., at which sound emanating from the gathering is frequent, repetitive, or continuous, and is audible to a person of normal hearing located 25 feet or more from the property line.

(22) *Responsible Person* means an owner, member, or partner of an entity that owns or leases entertainment or commercial business premises, a manager or person in charge of entertainment or commercial business premises, or any employee at an entertainment or commercial business if no owner, member, partner, or manager can be identified.

(23) *SAE* means the Society of Automotive Engineers or its successor bodies.

(24) *Sound* means mechanical radiant energy that is transmitted by longitudinal pressure waves in a material medium, such as air, and is the objective cause of hearing, and includes all amplified and unamplified sound regardless of its source.

(25) *Sound Level* or *Noise Level* means, for airborne sound, a weighted sound pressure level, obtained using metering characteristics and A-weighting as specified in the referenced standards. When A-weighing is employed it must be indicated.

(26) *Sound Pressure Level* of a sound, in decibels, is twenty (20) times the logarithm to the base 10 of the ratio of the pressure of this sound to the reference sound pressure having the value of 2×10^{-4} dynes per square centimeter.

(27) *Steady Noise* means a noise whose level remains essentially constant.

(28) *Zoning District* refers to the districts established by the Zoning Ordinance of the City of Grand Rapids and found in Chapter 61 of Title V of this Code.

(Ord. No. 2019-71, § 2, 11-19-19)

Sec. 9.63. Prohibited Noise.

No person shall:

(1) Make, cause to be made, or allow the making of any sound, by any means, that creates a noise disturbance. Non-commercial public speaking and public assembly activities conducted on any public property or public right-of-way are exempted from operation of this subsection.

(2) Between 10:00 p.m. and 7:00 a.m., operate or play any radio, television, electronic audio equipment, drum, musical instrument, or device creating amplified sound such that the sound emanating therefrom can be heard across a property line of property devoted to residential uses.

(3) Allow real property under one's possession or control to be used for a residential disturbance.

(4) Operate any device creating amplified sound on any public property or public right-of-way that is louder than average conversational level at a distance of one hundred (100) feet or more, measured vertically or horizontally, from the source.

(5) Operate any device creating amplified sound within one hundred (100) feet of a health care hospital or clinic. The distance is measured from the property line of the property upon which the health care hospital or clinic is located.

(6) Operate or use any pile driver, shovel, hammer, derrick, hoist, tractor, roller, or any other mechanical apparatus in building or construction operations between 10:00 p.m. and 7:00 a.m., except for work on essential services, within six hundred (600) feet of a residence or hospital.

(7) Activate, cause, or suffer to be activated any horn or audible signal device on any motor vehicle of any kind except as a warning of danger or peril as provided in Chapter 181 of Title X of this Code.

(8) Operate or allow to be operated any motor of a motor vehicle which weighs more than five (5) tons (ten thousand (10,000) pounds) for a consecutive period of longer than two (2) minutes while such vehicle is in a stationary location on private property located within one hundred fifty (150) feet of property devoted to residential uses.

Except the provisions of this subsection shall not apply:

(a) When the vehicle or motor is being used for normal productive work.

(b) When the vehicle or motor is being used by a public utility, municipal department, commission, or other governmental agency to provide essential services.

(c) To buses operated for the transportation of passengers while standing in established bus turnarounds, terminals, or storage yards.

(d) To any vehicle standing within a completely enclosed structure.

(9) Operate or use, between 10:00 p.m. and 7:00 a.m., any motorized lawnmower or other lawn, landscaping, or yard maintenance equipment or domestic power tools.

(10) Between 10:00 p.m. and 7:00 a.m., yell, cry, call, shout, whistle, or sing upon a public way, or in such proximity to a public way, as to be distinctly and loudly audible upon such public way.

(11) Alter, modify, or change any exhaust muffler, intake muffler, or other equipment designed to abate noise on any motor equipment unless such alteration, modification, or change shall reduce the noise emitted by such equipment. Nothing in this Section shall be interpreted to prohibit the replacement of worn noise abatement equipment certified as meeting or exceeding specifications of the manufacturer's original equipment.

(12) Own any dog which by loud or frequent or habitual barking, yelping or howling, shall cause annoyance to the people in the neighborhood.

(Ord. No. 2019-71, § 2, 11-19-19; Ord. No. 2023-48, § 1, 10-10-23; Ord. No. 2026-01, § 1, 1-13-26)

Sec. 9.63.1. Per Se Violations.

Unless otherwise exempted by this Article, making, causing to be made, or allowing to be made any of the sounds identified in Section 9.63 is deemed unreasonable and constitutes a prohibited noise.

(Ord. No. 2019-71, § 2, 11-19-19)

Sec. 9.64. Prohibited Entertainment or Commercial Sound.

(1) Acknowledging the importance of entertainment and commercial businesses in the City of Grand Rapids, the following provisions are intended to balance this vital economic necessity with residential health and quality of life concerns.

(2) For purposes of this Section:

(a) Nighttime Hours are that time between 10:00 p.m. Sunday through Thursday and 7:00 a.m. of each subsequent day, and 1:00 a.m. and 7:00 a.m. on Saturday and Sunday.

(b) Sound includes all amplified and unamplified sound coming from an entertainment or commercial business regardless of source. It shall include, but not be limited to, human voices of guests and employees, instrumental and vocal music, and electronic sounds.

(3) No entertainment or commercial business shall emit or permit the emission of sound that is frequent, repetitive, or continuous from the premises of the establishment, including any outdoor area which is part of or under the control of the establishment, and is clearly audible to a person of normal hearing located one hundred (100) feet or more from the property line during nighttime hours.

(Ord. No. 2019-71, § 2, 11-19-19)

Sec. 9.65. Sound Pressure Limitations.

(1) In non-Special Land Use SD-IT Industrial-Transportation Districts, at no point on the boundary of a Residential or Commercial Zone District shall the sound pressure level of any individual operation or plant, or the combined operations of any person, firm, or corporation, exceed the decibel levels in the designated octave bands shown below for the zoning districts indicated as measured using test equipment per ANSI/ASA Standards S1.1, S1.4, S1.11, and S1.15, and SAE J-184, or the latest revisions thereof, and with reference to Section 9.66.1 of this Article.

Octave Band Center Frequency (Hz)	*Maximum Sound Pressure Levels (dB) Along District Boundaries (Daytime, Steady Noise) Residential*	*Commercial*
31.5	72	79
63	71	78
125	65	72
250	57	64
500	51	58
1000	45	52
2000	39	46
4000	34	41
8000	32	39
	Maximum repetitive impulse noise sound pressure levels to be 10 (dB) lower than the values shown for steady noise.	

For monitoring purposes, the A scale levels (slow response) of 55 dB(A) and 62 dB(A), respectively, for Residential or Commercial Zone Districts may be used. Any noise level exceeding these values constitute a violation of this subsection of the Article. Where noise levels below the abovementioned 55 dB(A) and 62 dB(A) are measured, the octave band test is to be applied to determine compliance with this subsection.

For purposes of this subsection, maximum nighttime sound pressure levels (between 10:00 p.m. and 7:00 a.m.) are to be 7 (dB) lower than the values shown for daytime steady noise for each octave band center frequency.

(2) For Special Land Uses within SD-IT Industrial-Transportation Districts, at no point either on the boundary of a Residential or Commercial Zone District, or at one hundred twenty-five (125) feet from the nearest property line of a plant or operation, whichever distance is greater,

shall the sound pressure level of any individual operation or plant, or the combined operations of any person, firm, or corporation, exceed the decibel levels in the designated octave bands shown below for the zoning districts indicated, as measured using test equipment per ANSI/ASA Standards S1.1, S1.4, S1.11, and S1.15, and SAE J-184, or the latest revisions thereof, and with reference to Section 9.66.1 of this Article.

Octave Band Center Frequency (Hz)	*Maximum Sound Pressure Levels (dB) Along District Boundaries (Daytime, Steady Noise) Residential*	*Commercial*
31.5	75	80
63	74	79
125	69	74
250	64	69
500	58	63
1000	52	57
2000	47	52
4000	43	48
8000	40	45
	Maximum repetitive impulse noise sound pressure levels to be 10 (db) lower than the values shown for steady noise.	

For monitoring purposes the A scale levels (slow response) of 61 dB(A) and 66 dB(A), respectively, for Residential and Commercial Zone Districts may be used. Any noise levels exceeding these values constitute a violation of this subsection of the Article. Where noise levels below the abovementioned 61 dB(A) and 66 dB(A) values are measured, the octave band test is to be applied to determine compliance with this subsection.

For purposes of this subsection, maximum nighttime sound pressure levels (between 10:00 p.m. and 7:00 a.m.) are to be 7 (dB) lower than the values shown for daytime steady noise for each octave band center frequency.

(3) In Commercial Zone Districts, all activities involving the production, processing, cleaning, servicing, testing, repair of materials, goods or products, or any property use shall conform with the performance standards stated in subsection (1), above, provided that performance standards shall in every case be applied at the boundaries of the lot on which any such activities take place.

(4) In Residential Zone Districts, any property use shall conform with the performance standards stated in subsection (1) above, for Residential Zone District boundaries, provided that performance standards shall in every case be applied at the boundaries of the lot on which such use is established.

(5) The maximum sound pressure levels established in subsections (1), (2), (3) and (4) to be applied to the boundaries of a lot shall not apply to construction sites. Construction site noise level shall be regulated by section 9.63(5) above.

(6) In all instances in which a Special Land Use within an SD-IT Industrial-Transportation District does not adjoin a Residential or Commercial Zone District, the performance standards governing noise for the non-Special Land Use SD-IT Industrial-Transportation Districts shall apply at the nearest Residential or Commercial Zone District boundary line, as these districts are defined and designated under the provisions of the Grand Rapids Zoning Ordinance.

(7) Any property uses established in an Industrial-Transportation or Commercial Zone District shall be so operated as to comply with the following performance standards governing vibrations:

(a) In a Special Land Use within an SD-IT Industrial-Transportation District, any property use creating intense or shaking vibrations such as are created by drop forges or heavy hydraulic surges shall be set back at least three hundred (300) feet from the zoning district line of any Residential or Commercial Zone District and at least one hundred fifty (150) feet from the zoning district line of any non-Special Land Use SD-IT Industrial-Transportation District unless such operation is controlled in such manner as to prevent such transmission beyond the zoning district line of earth shaking vibrations perceptible without the aid of instruments.

(b) In a non-Special Land Use SD-IT Industrial-Transportation District or Commercial Zone District, any property use

creating earth-shaking vibrations such as are created by drop forges or hydraulic surges shall be controlled in such manner as to prevent transmission beyond the lot lines of earth-shaking vibrations perceptible without the aid of instruments.

(Ord. No. 2019-71, § 2, 11-19-19)

Sec. 9.66. Exceptions.

The following uses and activities are not prohibited noises:

(1) Use of motorized lawn mowers and other lawn, landscaping, and yard maintenance equipment or domestic power tools, provided such equipment is used between 7:00 a.m. and 10:00 p.m.

(2) Residential use of snow blowers and snow removal from commercial or industrial properties by any internal combustion device.

(3) Sounds resulting from any authorized emergency vehicle.

(4) Sounds produced at organized sporting events between 7:00 a.m. and 10:00 p.m.

(5) Sounds produced at a special event conducted under a permit issued under this Code, provided the sound complies with the terms of the permit.

(6) Sounds and vibrations produced at the Grand Rapids-Kent County Convention/ Arena Authority Amphitheater between the hours of 7:00 a.m. and 11:00 p.m. except as provided in Subsection (7).

(7) Sounds and vibrations produced at the Grand Rapids-Kent County Convention/ Arena Authority Amphitheater after 11:00 p.m. in the case of performance delays occasioned by unforeseeable, exigent circumstances (including, but not limited to, inclement weather that prevents the safe operations the Amphitheater) with the prior written approval of the City Manager or City Manager's designee. The City Manager shall define the form and content of the request for extended performance hours under this Subsection (7).

(Ord. No. 2019-71, § 2, 11-19-19; Ord. No. 2023-28, § 1, 7-25-23)

Sec. 9.66.1. Test Equipment Standards.

Test equipment standards applicable to tests and measurements described and required herein are:

ANSI/ASA S1.1	Acoustic Terminology (ISO/TR 25417:2007) (IEC 60050-801:1994)
ANSI/ASA S1.4	Sound Level Meters (IEC-61672-1, 2, & 3:2013)
ANSI/ASA S1.11	Octave-band and Fractional-octave-band Filters (IEC 61260-1:2014, 61260-2, 61260-3:2016)
ANSI/ASA S1.15	Laboratory Standard Microphones

or the latest revisions thereof, and such other and further standards as may be propounded in the Code of Recommended Practices of the Director.

(Ord. No. 2019-71, § 2, 11-19-19)

Sec. 9.67. Adjustment of Standards.

It is the intent of the City of Grand Rapids to periodically reevaluate the future noise level limits and other standards contained in this noise control ordinance, and, if appropriate, to adjust such standards either upward or downward to reflect future advances in technology or the state of the art.

(Ord. No. 2019-71, § 2, 11-19-19)

Sec. 9.68. Regulations.

(1) The City Manager may establish regulations for the implementation or enforcement of Article 5, Chapter 151, of Title IX of the Code of the City of Grand Rapids. Any regulation promulgated under this Section shall pertain only to the means, manner, or method of implementation or enforcement of the Article and shall not change, alter, or amend the requirements of the Article. The regulations promulgated hereunder, or amendments or changes thereof, shall become effective upon review and approval by the City Commission.

(2) Violation of the regulations promulgated under this Article shall be punished as provided for in Section 1.13 of this Code.

(3) Copies of the Regulations promulgated under this Section shall be kept on file at the Office of the City Clerk and at the Office of the Director. These regulations shall be available for public inspection and copying during normal business hours.
(Ord. No. 2019-71, § 2, 11-19-19)

Sec. 9.69. Variances.

(1) The provisions of this Article shall not apply to those events, activities, or locations which have been granted a variance, as hereinafter set out, by the City Commission.

(2) The City Commission shall have the authority to grant variances subject to the conditions and under the circumstances set out in this Section. These variances, to be known and entitled as Noise Variances, shall exclude the event, activity or location for which the permit is issued from the operation and requirements of this Article, subject to the provisions of this Section.

(3) Any person seeking a variance pursuant to this Section shall file an application with the City Clerk on a form prescribed by the City Manager. The application shall contain, in addition to such information as shall be required by the City Manager, information demonstrating that bringing the source of sound for which the variance is sought or the activity involved into compliance with this Article, would cause an unreasonable hardship for the applicant, the community or for other persons. Upon receiving such an application, the Clerk shall submit it to the City Manager. Upon receipt of an application, the City Manager shall cause such investigation as he or she deems necessary to be made concerning the application. This investigation may include, but need not be limited to, consulting with such City Departments as he or she may deem necessary or desirable. The City Manager, subject to the provisions of subsection (4) of this Section may, in his or her discretion, cause a public hearing to be held on any application for a Noise Variance. If no public hearing is held, the City Manager, subject to the provisions of subsection (4) of this Section, shall allow interested parties to submit written comments concerning an application for a Noise Variance. The applicant shall, prior to the investigation of the application by the City Manager, cause a public notice of said application for a Noise Variance to be published at least twice in a daily newspaper of general circulation published in the City of Grand Rapids, in a form prescribed by the City Manager.

(4) The City Manager, in addition to such other investigation as he or she may deem necessary:

(a) Shall require applicant to show that the notice requirements herein provided for have been met;

(b) Shall permit applicant to offer such evidence as it desires to establish applicant's position that a variance should be granted;

(c) Shall permit those opposing applicant's request for a variance to offer evidence in opposition to the granting of a variance;

(d) May, in his or her discretion, refuse to receive or hear evidence that is merely cumulative, and may reasonably limit the time allowed to present evidence by those supporting and those opposing the application.

(5) The City Manager shall consider all evidence received pursuant to this Section and based upon this evidence and the results of his or her investigation, shall make a recommendation to the City Commission as to whether a Noise Variance should be granted. The City Manager shall make his or her recommendation based upon the factors set out in subsection (6), and shall state the reasons for his or her recommendation in writing. The application and the recommendation of the City Manager shall be placed on the agenda of the City Commission and shall be considered in due course according to the Rules of the City Commission. In deciding whether to grant the Noise Variance, the City Commission shall consider the factors set out in subsection (6) of this Section. The City Commission shall, by resolution, grant or deny the Variance.

If a resolution approving a Noise Variance is passed, the City Clerk shall issue a Noise Variance subject to the terms of this Section.

(6) The following factors shall be considered in determining whether to grant the variance:

(a) The balance of the hardship to the applicant, the community and other persons in not granting the variance against the adverse impact on the health, safety and welfare of persons adversely affected and any other effects of the granting of the variance.

(b) The number, if any, of previous variances granted to the applicant, or for the same location or activity.

(c) The nearness of any residence or residences, or any other use which would be adversely affected by noise exceeding the limits prescribed by this Article.

(d) The sound level of the sound to be generated by the event or activity.

(e) Whether the type of noise to be produced by the event is usual or unusual for the location or area for which the variance is requested.

(f) The density of population of the area in which the event or activity is to take place.

(g) The time of day or night which the activity or event will take place.

(h) The nature of the sound to be produced, including but not limited to whether the sound will be steady, intermittent or of a repetitive impulse nature.

(7) Neither the City Manager nor the City Commission shall consider the communicative content of the activity or event in determining whether to grant or deny a variance. The rights of all interested persons to due process of law and equal protection of law shall not be denied.

(8) Variances shall only be granted subject to the following conditions:

(a) That the event or activity for which the permit is sought shall be held in a public place.

(b) That the event or activity for which the permit is sought shall be open to the public. There shall be no discrimination based on race, color, creed, national origin, or sex.

(c) Variances issued shall be subject to such reasonable conditions as the City Commission shall require, including, but not limited to, conditions:

(i) Limiting the days of the week for which the variance is valid.

(ii) Limiting the number of days for which the variance is valid.

(iii) Limiting the hours of the day, or days, for which the variance is valid.

Such conditions shall be noted on the variance issued to the applicant and noncompliance with any condition of the variance shall terminate the variance and subject the applicant, event or activity to the provisions of this Article. The variance shall not be valid unless all conditions thereof are agreed to by the applicant, or its duly authorized officer or agent, in writing.

(9) Any variance issued pursuant to this Section shall be kept at the site of the event or activity for which the variance was obtained. The variance shall be displayed, on request, to any law enforcement officer, Environmental Services Department employee or park patrol officer. The requirements of this subsection are hereby made express conditions of the granting of the variance and failure to comply with these conditions shall cause the variance to terminate as provided for in subsection (8).

(10) The City Commission, in granting or denying a variance pursuant to this Section, shall be an administrative body acting in a quasi-judicial capacity, subject to review as provided in Article 6, Section 28, of the Michigan Constitution of 1963.

(Ord. No. 2019-71, § 2, 11-19-19)

Sec. 9.70. Sound Systems in Motor Vehicles.

No person operating or in control of a stopped or moving motor vehicle shall operate or permit the operation of a sound system in the vehicle so as to produce sound that is clearly audible fifty (50) feet from the vehicle between 7:00 a.m. and 10:00 p.m., or clearly audible twenty-five (25) feet from the vehicle between 10:00 p.m. and 7:00 a.m.; provided, however, this section shall not apply to the sound system of a police, fire, or other public service motor vehicle while the public service vehicle is being used in the performance of public service work.
(Ord. No. 2019-71, § 2, 11-19-19)

Sec. 9.70.1. Penalties.

(1) A violation of this Article shall be a municipal civil infraction, punishable by a fine as established in Chapter 170 of this Code.

(2) A person who violates this Article may be warned to cease and desist in lieu of other enforcement action. A person receiving a warning shall be advised to abate and have a reasonable amount of time to comply with the warning. If the warning is heeded and the sound no longer constitutes a prohibited noise, then no other enforcement action shall be taken.

(3) Only one warning shall be given to any entertainment or commercial business location in a six-month period for a violation of Section 9.64. The owner(s) of the entertainment or commercial business shall be responsible to make all persons who may be deemed a responsible person aware of the warning. A warning shall be considered effective against all persons who are then or may during such six-month period be deemed a responsible person.

(4) The owner or partner of an entertainment or commercial business that violates Section 9.64 shall be jointly and severally liable for the violation with the entertainment or commercial business.

(5) Notwithstanding the foregoing, a violation of Section 9.64 or 9.65 of this Article by any person is deemed a misdemeanor punishable by a fine of up to five hundred dollars ($500.00) and a maximum of ninety (90) days in jail, or both, if that person violated Section 9.64 or 9.65 of this Article at any time within the prior six (6) months.

(6) Each occurrence of a violation, or in the case of continuous violations, each day a violation occurs or continues, constitutes a separate infraction, and may be punished separately.
(Ord. No. 2019-71, § 2, 11-19-19; Ord. No. 2026-01, § 2, 1-13-26)

ARTICLE 6. SOUND TRUCKS

DIVISION 1. GENERALLY

Sec. 9.71. Definitions.

In the interpretation of this Article, the following definitions shall apply:

(1) *Sound Truck* shall mean any vehicle or conveyance, other than an emergency vehicle, having mounted thereon or attached thereto any sound amplifying equipment designed or arranged so as to broadcast or propagate sound outside the vehicle or conveyance. This term, then, is not intended to cover normal radio, tape or sound systems installed within the vehicle and intended or arranged primarily to be heard by occupants of the vehicle, but is intended to cover all other vehicles with sound amplifying equipment other than an authorized emergency vehicle such as a police car, ambulance or fire truck.

(2) *Sound Amplifying Equipment* shall mean any machine or device for the amplification of the human voice, music, or any other sound. "Sound Amplifying Equipment" as used herein shall not be construed as including standard automobile radios when used and heard only by occupants of the vehicle in which installed or warning devices on authorized emergency vehicles or horns or other warning devices on other vehicles used only for traffic safety purposes.
(Ord. No. 82-40, 5-4-82)

DIVISION 2. NONCOMMERCIAL USE OF SOUND TRUCKS

Sec. 9.72. Registration Required.

No person shall use, or cause to be used, a sound truck with its sound amplifying equipment in operation for noncommercial purposes in the City of Grand Rapids before filing a registration statement with the City Clerk in writing. Such registration statement shall be effective for not more than one (1) month from the date thereof. This registration statement shall be filed in duplicate and shall state the following:

(1) Name and home address of the applicant.

(2) Address of place of business of applicant.

(3) License number and vehicle identification number of the sound truck to be used by applicant.

(4) Name and address of person who owns the sound truck.

(5) Name and address of person having direct charge of the sound truck.

(6) Name and address of all persons who will use or operate the sound truck.

(7) The purpose for which the sound truck will be used.

(8) A general statement as to the Section or Sections of the City in which the sound truck will be used.

(9) The proposed hours of operation of the sound truck.

(10) The date or dates of proposed operation of the sound truck.

(11) A general description of the sound amplifying equipment which is to be used, including, but not limited to, the following:

a. The type, brand name and serial number of each component of the sound amplifying equipment, including, but not limited to, all microphones, amplifiers and speakers.

b. The power output in watts to be used in the system.

(Ord. No. 82-40, 5-4-82)

Sec. 9.73. Registration Statement Amendment.

Any person using a sound truck or causing a sound truck to be used for noncommercial purposes shall amend any registration statement filed within forty-eight (48) hours after any change in the information furnished in a previously filed registration statement.
(Ord. No. 82-40, 5-4-82)

Sec. 9.74. Identification.

The City Clerk shall return to each person filing a registration statement pursuant to Section 9.72 a certified copy of that statement. This certified copy of the registration shall be carried in the sound truck at all times when the sound amplifying equipment is in operation. The certified copy of the registration shall be promptly displayed, upon request, to any police officer or to any representative of the City of Grand Rapids.
(Ord. No. 82-40, 5-4-82)

Sec. 9.75. Fees.

The registration fee for noncommercial use of sound trucks shall be as prescribed in Chapter 92 of this Code.
(Ord. No. 82-40, 5-4-82)

Cross reference—License fee for sound truck, noncommercial use, § 7.48(56).

Sec. 9.76. Regulations for Use.

Noncommercial use of sound trucks in the City of Grand Rapids with sound amplifying equipment in operation shall be subject to the following limitations:

(1) The only sounds permitted are music or human speech.

(2) Operations shall be permitted on public streets or alleys only between the hours of 11:30 a.m. and 1:30 p.m., between 4:00 p.m. and 6:00 p.m. and between 7:00 p.m., and 9:00 p.m. each day except on Sundays when no operations shall be

authorized. In addition to the foregoing, sound amplifying equipment may also be operated only between 6:30 a.m. an 8:30 a.m. and between 3:00 p.m. and 4:00 p.m. each day except on Sundays in areas zoned industrial in Chapter 61 (Zoning) of this Code. In parks or other places except public streets or alleys, operations shall be permitted only between the hours of 9:00 a.m. and 10:00 p.m., except on Sundays, and in parks only between 1:30 p.m. and 10:00 p.m. on Sundays.

(3) Sound amplifying equipment shall not be operated unless the sound truck upon which such equipment is mounted is moving at a speed of at least ten (10) miles per hour, except when said sound truck is stopped or impeded by traffic or is lawfully parked within three hundred (300) feet of an industrial or commercial establishment in connection with a labor question involving such establishment.

When stopped by traffic the sound amplifying equipment shall not be operated for a period longer than one (1) minute at each such stop. When lawfully parked within three hundred (300) feet of an industrial or commercial establishment under the conditions set forth above, the sound amplifying equipment shall not be operated for a period longer than thirty (30) minutes while the sound truck is parked.

(4) Sound amplifying equipment of sound trucks shall not be operated within three

hundred (300) feet of hospitals, schools, churches, or courthouses.

(5) No sound truck with its sound amplifying equipment in operation shall be operated on the following streets between the points designated:

Monroe Avenue between Michigan Street and Fulton Street.
Fulton Street between Market Avenue and Jefferson Avenue.
Division Avenue between Michigan Street and Wealthy Street.

(6) The human speech and music amplified shall not be obscene.

(7) No sound amplifying equipment shall be operated in such a manner that it produces a sound pressure level in excess of eighty (80) decibels measured at a distance of not less than fifty (50) feet from the vehicle center line under American National Standards Institute Standards with the meter set for fast response and the A-weighted scale.

(8) No sound truck shall be operated on a public sidewalk, in any public place not open to the operation of motor vehicles by the general public, or upon private property without the consent of the owner of that property.

(Ord. No. 82-40, 5-4-82)

DIVISION 3. COMMERCIAL USE OF SOUND TRUCKS

Sec. 9.77. License Required.

No person shall operate any sound truck, or cause any sound truck to be operated, in the City of Grand Rapids for commercial purposes, with sound amplifying equipment in operation, without first having obtained a license therefor from the City Clerk. The license fees shall be as prescribed in Chapter 92 of this Code.

(Ord. No. 82-40, 5-4-82)

Cross reference—License fee for sound trucks, commercial use, § 7.48(56).

Sec. 9.78. Application for License.

Persons applying for the license required in Section 9.77 shall file an application in a form prescribed or provided by the City Clerk. The application shall require such information to be provided as the City Clerk deems necessary to determine whether the applicant will serve the public in a fair, honest, safe, and competent manner and in compliance with this Code and all other applicable laws, ordinances, rules and regulations.

(Ord. No. 82-40, 5-4-82)

Sec. 9.79. Issuance of License.

Upon determining that the applicant is fit and able to serve the public as required by this Article, the City Clerk, upon payment of the license fee, shall issue a license as provided for in this Article.

(Ord. No. 82-40, 5-4-82)

Sec. 9.80. Possession and Display of License.

The license issued by the City Clerk shall be carried in the sound truck at all times when the sound amplifying equipment is in operation. The license shall be promptly displayed, upon request, to any police officer or to any representative of the City of Grand Rapids.

(Ord. No. 82-40, 5-4-82)

Sec. 9.81. Regulations for Use.

No person shall operate a sound truck or cause, allow or permit a sound truck to be used for commercial purposes in violation of the limitations set out in Section 9.76.

(Ord. No. 82-40, 5-4-82)

Secs. 9.82—9.90. Reserved.

ARTICLE 7. LITTER*

Sec. 9.91. Definitions.

In this interpretation of this Article the following definitions shall apply:

(1) *Garbage* is putrescible animal and vegetable wastes resulting from the handling,

*State law reference—Littering, MCL 752.901, MSA 28.603(1).

preparation, cooking and consumption of food.

(2) *Litter* is "garbage," "refuse" and "rubbish" as defined herein and all other waste material which, if thrown or deposited as herein prohibited, tends to create a danger to public health, safety and welfare.

(3) *Park* is a park, reservation, playground, beach, recreation center or any other public area in the City, owned or used by the City and devoted to active or passive recreation.

(4) *Private Premises* is any dwelling, house, building, or other structure, designed or used either wholly or in part for private residential purposes, whether inhabited or temporarily or continuously uninhabited or vacant, and shall include any yard, grounds, walk, driveway, porch, steps, vestibule or mailbox belonging or appurtenant to such dwelling, house, building, or other structure.

(5) *Refuse* is all putrescible and nonputrescible solid wastes (except body wastes), including garbage, rubbish, ashes, street cleanings, dead animals, abandoned vehicles, and solid market and industrial wastes.

(6) *Rubbish* is nonputrescible solid wastes consisting of both combustible and noncombustible wastes, such as paper, wrappings, cigarettes, cardboard, tin cans, yard clippings, leaves, wood, glass, bedding, crockery and similar materials.

Sec. 9.92. Litter in Public Places.

(1) No person shall throw or deposit litter in or upon any street, sidewalk or other public place within the City except in public receptacles, in authorized private receptacles for collection, or in official City Dumps.

(2) No person shall throw any rock, brick, rubbish or other missile into or upon a public street.

(3) No person shall take up any rock, brick, rubbish or other dangerous missile with the intent to throw or deposit it upon a public street in a manner which would be likely to endanger a person, property, or a motor vehicle.

(Ord. No. 69-72, 9-9-69)

Sec. 9.93. Placement of Litter in Receptacles.

Persons placing litter in public receptacles or in authorized private receptacles shall do so in such a manner as to prevent it from being carried or deposited by the elements upon any street, sidewalk or other public place or upon private property.

Sec. 9.94. Sweeping Litter Into Gutters.

No person shall sweep into or deposit in any gutter, street or other public place within the City, the accumulation of litter from any building or lot, or from any public or private sidewalk or driveway. Persons owning or occupying property shall keep the sidewalk in front of their premises free of litter.

Cross reference—Litter and accumulation of rubbish, § 2.6.

Sec. 9.95. Merchants to Keep Sidewalks Free of Litter.

No person owning or occupying a place of business shall sweep into or deposit in any gutter, street or other public place within the City, the accumulation of litter from any building or lot or from any public or private sidewalk or driveway. Persons owning or occupying places of business within the City shall keep the sidewalks in front of their business premises free of litter.

Sec. 9.96. Litter Thrown by Persons in Vehicles.

No person, while a driver or passenger in a vehicle, shall throw or deposit litter upon any street or other public place within the City, or upon private property.

Sec. 9.97. Truck Loads Causing Litter.

No person shall drive or move any truck or other vehicle within the City unless such vehicle is so constructed or loaded as to prevent any load, contents of litter from being blown or deposited upon any street, alley or other public place. Nor shall any person drive or move any vehicle or truck

within the City, the wheels or tires of which carry onto or deposit in any street, alley or other public place, mud, dirt, sticky substances, litter or foreign matter of any kind.

Sec. 9.98. Litter in Parks.

No person shall throw or deposit litter in any park within the City except in public receptacles and in such a manner that the litter will be prevented from being carried or deposited by the elements upon any part of the park or upon any street or other public place. Where public receptacles are not provided, all such litter shall be carried away from the park by the person responsible for its presence and properly disposed of elsewhere as provided herein.

Sec. 9.99. Litter in Lakes, Streams and Fountains.

No person shall throw or deposit litter in any fountain, pond, lake, stream or any other body of water in a park or elsewhere within the City.

Sec. 9.100. Dropping Litter from Aircraft.

No person in an aircraft shall throw out, drop or deposit within the City any litter, handbill or any other object.

Sec. 9.101. Litter on Occupied Private Property.

No person shall throw or deposit litter on any occupied private property within the City, whether owned by such person or not, except that the owner or person in control of private property may maintain authorized private receptacles for collection in such a manner that litter will be prevented from being carried or deposited by the elements upon any street, sidewalk, or other public place or upon private property.

Cross reference—Combustible and solid waste, Ch. 25.

Sec. 9.102. Owner to Maintain Premises Free of Litter.

The owner or person in control of any private property shall at all times maintain the premises free of litter. Provided, however, that this Section shall not prohibit the storage of litter in authorized private receptacles for collection.

Cross references—Litter and accumulation of refuse, § 2.6; property maintenance nuisances, § 9.107 et seq.

Sec. 9.103. Litter on Vacant Lots.

No person shall throw or deposit litter upon any open or vacant private property within the City whether owned by such person or not.

Sec. 9.104. Clearing of Litter from Open Private Property by City.

(1) *Notice to Remove.* The City Manager is hereby authorized and empowered to notify the owner of any open or vacant property within the City, or the agent of such owner, to properly dispose of litter located on such owner's property which is dangerous to public health, safety and welfare. Such notice shall be given in accordance with Section 1.11 of this Code.

(2) *Action Upon Non-Compliance.* Upon the failure, neglect or refusal of any owner or agent so notified, to properly dispose of litter dangerous to the public health, safety or welfare within thirty (30) days after receipt of written notice provided for in subsection (1), above, the City Manager shall make a full and complete report thereof to the City Commission, which may then proceed to levy a special assessment against property involved.

Cross reference—Special assessments, Ch. 10.

Sec. 9.105. Owner Responsible for Refuse and Solid Waste Removal.

(1) All the owners of any property shall be responsible for the removal of any refuse located on the parkway adjacent to the owners' property on any day of a scheduled City refuse collection except when the items are placed on the parkway for City collection in accordance with this Code and the City rules and regulations. Failure to comply with the requirements of this Section shall be a violation of this Code and shall constitute a nuisance which may be abated as provided for in this Section. As used in this Section, refuse

shall include any solid waste, garbage, rubbish or refuse as defined in this Code and any trash, rubble, brush, used or discarded property.

(2) Any authorized City employee observing a violation of subsection (1) of this Section may institute the procedure set out in subsection (3) of this Section.

(3) The following procedure shall be used when a violation of subsection (1) is observed:

(a) Any authorized City employee observing refuse not properly contained and marked for pick up may place a notice on or near the refuse which indicates the nature of the violation and that the owner of the property must properly dispose of the refuse, abate the nuisance and eliminate the violation before the next scheduled City refuse collection day. The notice shall also state that if the owner fails to abate the nuisance and eliminate the violation prior to the next scheduled City refuse collection day that the City will do so and that the owner will be responsible for all costs related thereto including administrative costs and fees. The notice shall also state that the accrued costs and fees shall be a personal debt of the owner and may be assessed as a lien against the property until paid.

(b) Whenever a notice as provided in (a) above is served, the City shall also mail a notice to abate the nuisance to the owner of the property at the last known address shown on the City Assessor's records, which notice shall contain the information set out in (a) above. This mailed notice shall be sent by regular first class mail.

(c) If the nuisance is not abated and the violation eliminated prior to the next scheduled City refuse collection day, the City may remove the refuse.

(4) Upon the removal by the City of any refuse as provided for herein, the property owner shall, in addition to other remedies provided for in this Code, be responsible for all City costs and fees.

(5) City costs and fees shall include, but not be limited to:

(a) The cost of removal and disposal of the refuse or solid waste, and

(b) An administrative fee as provided for in Section 9.112 of this Code to pay for the City's administrative costs.

(6) When the City has collected and disposed of refuse pursuant to this Section, the costs and fees established by this Section shall be billed to the property owner. The costs and fees so billed shall be a personal debt of the owner to the City and may be collected in a civil action against the owner. The costs and fees so billed for the abatement of this nuisance shall also constitute a lien against the property and may be so assessed and collected as provided for in the City Charter. (Ord. No. 90-73, § 1, 10-16-90)

Sec. 9.106. Reserved.

ARTICLE 8. PROPERTY MAINTENANCE NUISANCES*

Sec. 9.107. Definitions.

The terms used in this Chapter shall have the meanings or definitions provided for below.

Interchangeability: Words stated in the present tense include the future; words stated in the masculine gender include the feminine and neuter; the singular includes the plural and the plural includes the singular.

Terms Defined in Other Provisions of the Grand Rapids City Code: Where terms are not defined in this Article and are defined elsewhere in the Grand Rapids City Code, such terms shall have the meanings assigned to them in those City Code provisions unless the context of this Chapter clearly indicates otherwise.

Terms Not Defined: Where terms are not defined through the methods set out in this Section,

*Cross references—Solid waste management, Ch. 25; general health regulations, Ch. 71; yard maintenance standards, § 8.567 et seq.; Building Maintenance Code, Ch. 136.

State law reference—Control and eradication of noxious weeds, MCL 247.61 et seq.

such terms shall have the ordinarily accepted meanings consistent with the text of this Chapter.

1. *Garbage* means rejected food wastes, including waste accumulation of animal, fruit or vegetable matter, used or intended for food or that attends the preparation, use, cooking, dealing in, or storing of meat, fish, fowl, fruit or vegetable.

2. *Hazard* or *Hazardous* means a condition which may potentially result in the death, injury or illness of a human or in severe damage to real or personal property.

3. *Inoperable Vehicle* shall mean any motor vehicle unable to move under its own power, or part of any motor vehicle or other conveyance which is wrecked, disabled, partially dismantled, junked, or abandoned.

4. *Owner* means every person holding legal or equitable title to a property or to real improvements upon a property solely, jointly, by the entireties, in common, or as land contract vendee. Owner shall also mean:

   (a) Every person who in fact has been empowered to act on behalf of, or as agent of the owner; or

   (b) Every person who has or exercises care, custody, dominion or control over any property; or

   (c) Every person who is a record owner as demonstrated by a deed or other document of title recorded at the office of the Register of Deeds; or

   (d) Every person listed as the taxpayer by Assessor's records.

   An owner shall not include any person who is a tenant.

5. *Residential Composting* means the collection of organic materials from household kitchen food and yard waste, in a fully enclosed and commercially manufactured compost receptacle.

6. *Rubbish* means hazardous or non-hazardous non-putrescible solid waste, excluding ashes, including, but not limited to, all combustible and noncombustible waste, paper, cardboard, metal containers, wood, glass, trash, rubber, brush, bedding, crockery, used or demolished building materials, litter of any kind, and discarded items of little or no apparent value.

7. *Unlicensed* or *Unregistered Vehicle* shall mean any motor vehicle or other vehicle or conveyance which lacks a current license plate or registration required for use and includes any vehicle or conveyance which is inoperable or is not functional as intended.

8. *Vendoring* means the hiring of a contractor or vendor by the City to perform work pursuant to this Article.

(Ord. No. 2006-32, § 1, 6-6-06; Ord. No. 2011-44, § 2, 10-11-11; Ord. No. 2013-44, § 1, 9-10-13, eff. 10-1-13)

Sec. 9.108. Nuisances Prohibited on Public and Private Property.

The following conditions are declared a public nuisance. All property within the City, whether occupied or vacant, improved or unimproved, shall be maintained by the owner free of the following nuisances:

(1) Ragweed, poison ivy, poison sumac, poison oak and similar plants.

(2) Any grass, weeds or undergrowth higher or longer than twelve (12) inches, except:

   (a) On portions of undeveloped property behind a wooded tree line.

   (b) On portions of unsubdivided lands more than twenty-five (25) feet from a public sidewalk or a street open to the public.

   (c) On portions of undeveloped lots in a subdivision less than sixty (60) percent developed lying more than twenty-five (25) feet from a public sidewalk or public street.

(3) Any bush, shrub, tree or other vegetation or portion thereof obstructing the line of

vision or interfering with passage of pedestrians or motorists on a sidewalk, walkway, driveway or street.

(4) Stagnant or Unsanitary Water.

(5) Garbage or rubbish or any other unhealthy, hazardous or offensive condition, object or substance, subject to the following exceptions. Residential composting, as that term is defined in this Chapter, shall be permitted subject to the following conditions:

(a) Residential composting is only permitted on the premises of an occupied residential dwelling.

(b) The compost may not contain animal waste, meat, bones, grease, oils, fats, or cooked foods of any kind.

(c) The compost must be completely contained in a fully enclosed and commercially manufactured compost receptacle.

(d) The compost receptacle must be located in the rear yard of the residential dwelling.

(e) The compost receptacle must be kept tightly covered except when opened for deposit or removal of compost materials.

(f) The compost receptacle shall have a capacity of no greater than 64 cubic feet.

(g) The compost receptacle shall be constructed of rigid and durable materials, which shall not include any of the following: burlap, tarp, vehicle tires, wire mesh, chicken wire, flexible fencing material of any kind, or any substantially similar materials.

(6) Any dead tree or any portion thereof, or any dying tree that presents a hazard to any member of the public or to property.

(7) Any Unsecured Building. An unoccupied or vacant building, structure or part thereof shall be kept secured by the owner against unauthorized entry and water damage. Boarding shall be done in a manner and with materials as specified in Section 9.110 of this Code.

(8) Reserved.

(9) Refrigerators, Freezers, or Similar Equipment Providing Enclosed Spaces. A refrigerator, an airtight container, a tank with an open access hole and any other contrivance or property which encloses or substantially encloses a space is declared to be an unlawful and immediate hazard, a nuisance and a violation of this Code if placed anywhere outdoors in a manner which could result in injury or death. Such declared hazard, space or equipment may be abated as an emergency without notice. Upon making harmless a violation of this Section, the City shall issue a notice to abate the violation as set forth in Section 9.111 of this Chapter.

(10) Failure to Maintain Alleys, Parkways, or Property Abutting Public Right-of-Ways. Every owner shall be responsible for maintaining the following public access areas abutting their property in compliance with this Article, including the following:

(a) The sidewalk and parkway to the curb or street pavement, except for dead trees;

(b) A public or utility easement to the centerline;

(c) An alley or alleyway to the centerline, except for standing or stagnant water.

(11) Inoperable, Unlicensed or Unregistered Vehicles. No more than one (1) operable vehicle, that is unlicensed or unregistered shall be located outdoors for more than seven (7) days on a property with a residential or commercial structure. Such vehicle must be located behind a dwelling or commercial building. Inoperable, unlicensed or unregistered vehicle storage is prohibited on any vacant property, whether a structure exists on the property or not.

(12) Outdoor Furniture. Any furniture or furnishings manufactured or intended to be for indoor use and is not constructed to be used outdoors, shall not be placed within the yard or on any unenclosed porch or similar area that will allow access for vermin, weather or arson.

(Ord. No. 2006-32, § 1, 6-6-06; Ord. No. 2010-30, § 1, 6-22-10; Ord. No. 2013-44, §§ 2, 3, 9-10-13, eff. 10-1-13; Ord. No. 2023-29, § 1, 7-25-23)

Sec. 9.108a. Personal Property, Belongings, Furnishings or Equipment Left in the Right-of-Way.

(1) *Definitions.* The definitions contained in this subsection shall govern the construction, meaning and application of words and phrases used in this Section.

(a) *City Employee* means any full or part-time employee of the City of Grand Rapids or a contractor retained by the City for the purpose of implementing this Section.

(b) *Essential Personal Property* means any and all personal property that cumulatively is less than two cubic feet in volume, which, by way of example, is the amount of property capable of being carried within a backpack.

(c) *Excess Personal Property* means any and all personal property that cumulatively exceeds the amount of property that could fit in a 32-gallon container with the lid closed.

(d) *Personal Property* means any tangible property, and includes, but is not limited to, goods, materials, merchandise, Tents, tarpaulins, bedding, sleeping bags, hammocks, sheds, structures, mattresses, couches, chairs, other furniture, appliances, and personal items such as household items, luggage, backpacks, clothing, documents, and medication.

(e) *Public Area* or *Public Areas* means all property that is owned, managed or maintained by the City, including property under the jurisdiction of the Department of Parks and Recreation, and shall include, but not be limited to, any street, sidewalk, medial strip, space, ground, park, building or structure.

(f) *Store, Stored, Storing* or *Storage* means to put personal property aside or accumulate for use when needed, to put for safekeeping, and/or to place or leave in a public area. Moving personal property to another location in a public area or returning personal property to the same block on a daily basis shall be considered storing. This definition shall not include any personal property that, pursuant to statute, ordinance, permit, regulation or other authorization by the City or State, is stored with the permission of the City on real property that is owned or controlled by the City.

(g) *Unattended* means no person is present with the personal property to assert or claim ownership of the personal property. Conversely, property is considered "attended" if a person is present with the personal property and the person claims ownership over the personal property.

(2) *Regulation and Impoundment of Stored Personal Property; Discard of Certain Stored Personal Property.*

(a) No person shall store any unattended personal property or attended excess personal property in a public area. With pre-removal notice as specified in Subsection 3(a), the City may impound any unattended personal property in a public area, regardless of volume. Post-removal notice shall be provided as set forth in Subsection 3(b).

(b) No person shall store any attended excess personal property in a public area. With pre-removal notice as specified in Subsection 3(a), the City may impound any attended excess personal property stored in a public area. Post-removal notice shall be provided as set forth in Subsection 3(b).

(c) No person shall store any personal property in a public area in such a manner as to obstruct, disrupt, or interfere with City operations of any nature, including but not limited to maintenance or cleaning. Without prior notice, the City may temporarily move personal property, whether attended or unattended, which is obstructing City operations in a public area during the time necessary to conduct the City operations. The City also may impound personal property that is obstructing City operations in a public area, pursuant to Subsection 3(a) or 3(b).

(d) No person shall store any personal property in a public area in such a manner that it does not allow for passage as provided by the Americans with Disabilities Act of 1990, Pub. L. No. 101-336, 104 Stat. 328 (1990), as amended from time to time. Without prior notice, the City may move and may immediately impound any personal property, whether attended or unattended, stored in a public area in such a manner that it does not allow for passage as required by the ADA. Post-removal notice shall be provided as set forth in Subsection 3(b).

(e) No person shall store any personal property, whether attended or unattended:

(i) Within ten (10) feet of any operational or utilizable driveway or loading dock;

(ii) Within five (5) feet of any operational or utilizable building entrance or exit;

(iii) Within two (2) feet of any fire hydrant, fire plug, or other fire department connection; or

(iv) In a manner which intentionally blocks or interferes with others' ability to safely use a public bench or other physical public sitting structure.

(v) Without prior notice, the City may move and may immediately impound any personal property, whether attended or unattended, stored in a public area in violation of this subsection. Post-removal notice shall be provided as set forth in Subsection 3(b).

(f) No person shall store any personal property in a public area if the personal property, whether attended or unattended, constitutes an immediate threat to the public health or safety. Without prior notice, the City may remove and may discard any personal property stored in a public area if the personal property poses an immediate threat to the health or safety of the public.

(i) Garbage or rubbish or any other unhealthy, hazardous or unsafe item may be disposed immediately pursuant to City protocol and is not required to be stored pending disposal.

(g) No person shall store any personal property, whether attended or unattended, in such a manner that obstructs or interferes with any activity in a public area for which the City has issued a permit. Without prior notice, the City may move and may immediately impound any personal property stored in a public area in violation of this subsection. Post-removal notice shall be provided as set forth in Subsection 3(b).

(h) No person shall store any personal property, whether attended or unattended, in such a manner as to obstruct any portion of a street or other public right-of-way open to use by motor vehicles, a designated bike lane or bike path, or other public right-of-way open exclusively to use by bicycles. Without prior notice, the City may move and may immediately impound any personal property, whether attended or unattended, in violation of this subsection. Post-removal notice shall be provided as set forth in Subsection 3(b).

(3) *Notice.*

(a) *Pre-Removal Notice.* Pre-removal notice shall be deemed provided if a written notice is provided to the person who is storing or claims ownership of the personal property, or is posted conspicuously on or near the personal property. The written notice shall contain the following:

(i) A general description of the personal property to be removed.

(ii) The location from which the personal property will be removed.

(iii) The date and time the notice was posted.

(iv) A statement that the personal property has been stored in violation of Subsection 2.

(v) A statement that the personal property may be impounded if not removed from public areas.

(vi) A statement that moving personal property to another location in a public area shall not be considered removal of personal property from a public area.

(vii) The address where the removed public property will be located, including a telephone number and the internet website of the City through which a person may receive information as to impounded personal property as well as information as to voluntary storage location(s).

(viii) A statement that impounded personal property may be discarded if not claimed within thirty (30) days after impoundment.

(b) *Post-Removal Notice.* Upon removal of stored personal property, written notice shall be conspicuously posted in the area from which the personal property was removed. The written notice shall contain the following:

(i) A general description of the personal property removed.

(ii) The date and approximate time the personal property was removed.

(iii) A statement that the personal property was stored in a public area in violation of Subsection 2.

(iv) The address where the removed personal property will be located, including a telephone number and internet website of the City through which a person may receive information as to impounded personal property.

(v) A statement that impounded personal property may be discarded if not claimed within thirty (30) days after impoundment.

(4) *Storage and Disposal.*

(a) Except as specified herein, the City shall move personal property to a place of storage.

(b) Except as specified herein, the City shall move and store impounded personal property for 30 days, after which time, if not claimed, it may be discarded. The City shall not be required to undertake any search for, or return, any impounded personal property stored for longer than thirty (30) days.

(c) The City shall maintain a record of the date any impounded personal property was discarded.

(d) Garbage or rubbish or any other unhealthy, hazardous or unsafe item may be disposed immediately pursuant to City protocol and is not required to be stored pending disposal.

(5) *Repossession.* The owner of impounded personal property may repossess the personal property prior to its disposal upon submitting satisfactory proof of ownership. A person may establish satisfactory proof of ownership by, among other methods, describing the location from and date when the personal property was impounded from a public area, and providing a reasonably specific and detailed description of the personal property. Valid, government-issued identifica-

tion is not required to claim impounded personal property. An owner of personal property shall not be charged a fee if repossession occurs within thirty (30) days of removal.

(6) *Ban on Tents and other Attachments in Certain Public Areas and Regulation of Hours in other Public Areas.*

(a) Unless a permit is obtained, no person shall erect, configure, construct, maintain, use, occupy, or allow to remain erected any tent in any public area. Without prior notice, the City may deconstruct any tent, whether attended or unattended, in violation of this subsection. With pre-removal notice as specified in Subsection 3(a) or posted signage, the City may impound any tent in violation of this subsection.

(b) No person shall erect any barrier against or lay string or join any wires, ropes, chains or otherwise attach any personal property to any public property, including but not limited to, a building or portion or protrusion thereof, fence, bus shelter, trash can, mailbox, pole, bench, news rack, sign, tree, bush, shrub or plant, without prior written consent of the City.

(c) No person shall erect any barrier against or lay string or join any wires, ropes, chains or otherwise attach any personal property to any private property in such a manner as to create an obstruction on or across any street or area where the public may travel.

(d) Without prior notice, the City may remove any barrier, string, wires, ropes, chains or other attachment of personal property, whether attended or unattended, to any public property, or to any private property which creates an obstruction to any Street or area where the public may travel.

(Ord. No. 2023-29, § 2, 7-25-23)

Sec. 9.109. Abatement of Property Maintenance Nuisances.

Upon observing a violation of this Article, the City may issue a Notice to Abate, as provided for in Section 9.111, and take such other action or actions as is provided for in this Article to abate the public nuisance. These actions may include any of the administrative Code enforcement, abatement-related or abatement actions provided for in Section 9.113. These actions may include, but shall not be limited to, abatement of the public nuisance by a City contractor or vendor or other means determined by the City as provided for in Section 9.112.

(Ord. No. 2006-32, § 1, 6-6-06; Ord. No. 2011-44, § 3, 10-11-11)

Sec. 9.110. Standards for Abatement of Structural Nuisances.

All windows, doors or other openings in a vacant or unoccupied structure which can be reached from the ground or from an appurtenance or adjacent structure shall be in good repair and locked or otherwise fastened from the inside or shall be secured in the manner set forth in this Code. All openings or structural elements in poor repair which allow the interior to be damaged by water shall be secured or otherwise made watertight.

(1) *Boarding Exterior Openings.* Boarding shall be secured by use of exterior grade plywood of at least ⅜" thickness, cut to the size of the opening and secured by use of Phillips headed 2½" long screws, spaced to inhibit prying, on all first story or ground accessible points of entry or by use of 16d common nails which are permitted only on entry points being secured above the first story or where not accessible from the ground level. Boards may be placed over all points of entry. Open holes, overlapping and extensions beyond the frame which allow prying are not permitted. Boarding shall be painted either white, grey or a color similar to that of the boarded building.

(2) *Time Limit to Secure Structure.* A City order to board or secure a property shall be complied with in not more than seventy-two (72) hours. If the securing has not been commenced, is incomplete, or does not comply with the requirements for boarding, the City shall secure the

structure and the City shall bill the owner of record for all costs incurred, including service fees and administrative costs. The amount so billed shall constitute a personal debt of the owner and may be assessed as a lien against the cited property.

(Ord. No. 2006-32, § 1, 6-6-06; Ord. No. 2010-30, § 2, 6-22-10)

Sec. 9.111. Notice to Abate.

Upon observing a violation of the provisions of this Article upon any property not under the control or ownership of the City of Grand Rapids, the County of Kent or the State of Michigan, the City may issue a Notice to Abate. The Notice to Abate shall include:

(1) The nature and location of the violation.

(2) The time within which the violation must be abated.

(3) Notice that the City may act to abate the violation if it is not abated by the owner within a reasonable time stated in the Notice, but which may not exceed fifteen (15) days.

(4) Notice that the cost of such action by the City, plus an administrative fee, shall be a personal debt of the owner, which may be assessed as a lien against the property until paid.

(5) Notice that any refusal to allow the City to abate an uncorrected violation shall be a separate violation under this Code.

(Ord. No. 2006-32, § 1, 6-6-06)

Sec. 9.112. Authorization for City Abatement.

Upon failure of a property owner to abate a violation as ordered in a Notice to Abate, the City may abate the nuisance. This abatement may be performed by the City, by a contract vendor, or by other means determined by the City.

(Ord. No. 2006-32, § 1, 6-6-06)

Sec. 9.113. Code Enforcement Actions; Additional Abatement Notices and Actions and Administrative Fees.

The actions taken to abate a public nuisance pursuant to this Article may include any of the actions provided for in this Section as determined by the City. The fees necessary for the administration of this Article and authorized by Section 9.114 shall be established from time to time by resolution of the City Commission. Where any action not specifically authorized by this Section is taken by the City, the fee charged by the City shall include the actual cost of such action and any administrative costs incurred in taking such action. Actions specifically authorized by this Section and the administrative fees shall include the following:

(1) Notice to Abate;

(2) Search Warrant;

(3) Contact Request or Warning of Abatement Action;

(4) Attorney Warning Letter;

(5) Civil Infraction Preparation;

(6) Additional Inspections;

(7) Vendoring;

(8) Second and Subsequent Vendoring;

(9) Vehicle Removal;

(10) Second and Subsequent Vehicle Removal;

(11) Denied Entry.

(Ord. No. 2006-32, § 1, 6-6-06; Ord. No. 2011-44, § 4, 10-11-11)

Sec. 9.114. Charge to Owner.

All of the costs of Code enforcement and abatement-related activities on private or public property provided for in this Article incurred by the City shall be billed to the owner and shall be paid within 30 days of mailing. All costs of actual abatement and any Code enforcement or abatement-related activities, as provided for in this Article, shall be a personal debt owed the City by the owner of any private property upon which a public nuisance is located. The debt shall also, in

addition to being a personal debt, be charged against such premises and the owner thereof and shall be a lien on the property until paid.

It shall be a violation of this Code for any person to fail, neglect or refuse to comply with an order issued pursuant to the provisions of this Chapter unless an appeal is lawfully filed as provided for in this Chapter."
(Ord. No. 2006-32, § 1, 6-6-06; Ord. No. 2011-44, § 4, 10-11-11)

Sec. 9.115. Penalties.

A violation of Section 9.108 of this Code is a civil infraction.
(Ord. No. 2006-32, § 1, 6-6-06)

Secs. 9.116—9.130. Reserved.

ARTICLE 9. RESERVED*

Secs. 9.116—9.119. Reserved.

ARTICLE 10. RESERVED†

Secs. 9.120—9.123. Reserved.

ARTICLE 11. RESERVED‡

Secs. 9.124—9.129. Reserved.

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*__Editor's note—__Ord. No. 2006-32, § 2, adopted June 6, 2006, repealed Art. 9 in its entirety. Formerly, said article pertained to unoccupied structure nuisances.

†__Editor's note—__Ord. No. 2006-32, § 2, adopted June 6, 2006, repealed Art. 10 in its entirety. Formerly, said article pertained to abandoned possessions.

‡__Editor's note—__Ord. No. 2006-32, § 2, adopted June 6, 2006, repealed Art. 11 in its entirety. Formerly, said article pertained to vehicle nuisances.

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Chapter 152

DISORDERLY CONDUCT*

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Sec. 9.161. Title.
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***Charter reference—**Board of Library Commissioners, Title XIII.

State law references—Disorderly persons, MCL 750.167; disturbing public places, MCL 750.170; incitement to riot, MCL 752.542; unlawful assembly, MCL 752.543, MSA 28.790(3); false pretenses, MCL 750.218 et seq.; frauds and cheats, MCL 750.271 et seq.; resisting, obstructing, or opposing public officer, MCL 750.479; failure to obey a police officer, MCL 750.479a; false impersonation of a public officer, MCL 750.215; escapes, rescues, jails and prison breaking, MCL 750.195; obstructing and disobeying firefighter, MCL 750.241; window peeping, MCL 750.167(e); indecent exposure, MCL 750.167(f); fortunetelling, MCL 750.267 et seq.; firearms discharge, MCL 750.234; disturbance of religious meetings, MCL 752.525; disturbance of meetings, MCL 750.169 et seq.; improper language in the presence of women/children, MCL 750.337; lotteries, MCL 750.377 et seq.; loitering in house of prostitution, MCL 750.167(i); loitering in place of illegal business, MCL 750.167(j); extortion generally, MCL 750.213 et seq.; malicious use of service provided by communications common carrier, MCL 750.540c.

Sec. 9.163. Fare Inspectors.
Sec. 9.164. Definitions.

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Sec. 9.165. Harassing or Molesting Calls.
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ARTICLE 1. IN GENERAL

Sec. 9.131. General Provisions.

The following general provisions shall apply in all prosecutions for offenses provided for in this Article:

(1) "Public place," where used in this Article, means any street, alley, park, sidewalk, public building, any place of business open to the public or frequented by the public or any portion thereof, and any other place which is open to public view or to which the public, or any portion thereof, has access.

(2) Any person who aids, abets, counsels, procures, commands or assists in the commission of any offense prohibited by this Article shall be punishable as a principal.

(3) "City," where used in this Article, means the City of Grand Rapids, Michigan.

(Ord. No. 76-14, 3-2-76)

Sec. 9.132. Offenses Against Persons.

No person shall:

(1) Commit an assault or battery upon another person.

(2) Molest another person.

(3) Recklessly endanger the life, health or well-being of any person.

(4) Wilfully obstruct free or uninterrupted passage in any street, on any sidewalk, in any public place or in any other place to which the public is admitted.

(Ord. No. 76-14, 3-2-76; Ord. No. 2014-12, § 1, 3-11-14)

State law reference—Assaults, MCL 750.81 et seq.

Sec. 9.133. Property Offenses.

No person shall:

(1) Trespass upon the premises of another or unlawfully remain upon the premises of another to the annoyance or disturbance of the lawful occupants.

(2) Prowl about the premises of any other person in the nighttime without authority or the permission of the owner of such premises.

(3) Lurk, lie in wait or be concealed in any business, yard or other premises with intent to commit any crime or offense whatsoever.

(4) Wilfully, wantonly or recklessly damage, destroy, alter or deface public property or the property of any other person.

(5) Take or remove or attempt to take or remove any property not his or her own.

(6) Obtain or attempt to obtain goods or money by fraud, trick or under false pretenses.

(7) Meddle with, tamper with, interfere with, move, damage or disconnect any property not his or her own.

(8) Destroy, damage or in any manner alter or deface any drinking fountain or public toilet or restroom; or deposit or throw any substance in any water fountain for drinking; or in any manner pollute the water therein.

(9) Urinate, defecate or perform any other act which creates a hazardous or deleterious condition in any public place or upon the property of any other person. This subsection shall not apply to public restroom facilities.

(10) Affix, paste or otherwise attach to any vehicle owned by another person any notice, poster, leaflet, broadside or other item or device which interferes with the vision of the driver or causes or tends to cause damage to said vehicle. This subsection shall not apply to parking violation notices placed on motor vehicles by duly authorized representatives of the City or by law enforcement officers of any other governmental unit when acting in the course of their official duties.

(11) Commit the following conduct:

a. Order, procure, or consume any food and/or beverage at any restaurant, bar, café or any other type of establishment serving food and/or drink;

b. Without paying therefore, except when credit is given therefore by express agreement;

c. With intent to defraud such establishment out of the pay for the same.

d. In all prosecutions under this subsection, prima facie evidence of intent to defraud shall include the following:

(i) Obtaining such food and/or beverage by false pretense; or

(ii) Obtaining such food and/or beverage by false or fictitious show of any method of payment; or

(iii) Refusal, neglect or otherwise failure to pay therefore on demand; or

(iv) Payment thereof with a credit card, debit card, check, draft, or order upon a bank or depository on which payment was refused or otherwise declined; or

(v) Absconding without paying or offering to pay therefore.

e. No conviction shall be had under the provisions of this subsection unless complaint is made within 60 days of the time of the violation hereof.

(Ord. No. 76-14, 3-2-76; Ord. No. 2014-13, § 1, 3-11-14; Ord. No. 2014-19, § 1, 3-25-14)

State law references—Trespassing generally, MCL 750.546 et seq.; malicious and wilful mischief and destruction, MCL 750.377 et seq.; larceny, MCL 750.356 et seq.; false pretenses, MCL 750.218 et seq.; frauds and cheats, MCL 750.271 et seq.

Sec. 9.134. Substance Offenses.

No person shall:

(1) Be in a state of intoxication in a public place endangering directly the safety of another person or of property.

(2) Be in a state of intoxication in any public place in a manner that causes a public disturbance.

(3) Intentionally smell or inhale the fumes of any substance releasing toxic vapors for the purpose of causing a condition of euphoria, excitement, exhilaration, stupefaction or dulled senses; or to possess, buy or use any such substance for the purpose of violating, aiding or abetting another to violate this Section.

(4) Be under the influence in any public place of any drug, any other exhilarating or stupefying substance, or any combination of substances mentioned herein.

(Ord. No. 76-14, 3-2-76; Ord. No. 78-6, 1-17-78)

Cross reference—Consumption of alcoholic liquor prohibited in public places, § 9.241.

State law reference—Use of chemical agents, MCL 752.271 et seq.

Sec. 9.135. Offenses Against Government Order.

No person shall knowingly and willfully:

(1) Assault, batter, resist or obstruct any police officer or other law enforcement officer in the performance of his or her duties as such.

(2) Fail or refuse to obey a lawful order of any law enforcement officer that is issued in the performance of the officer's official duties provided that the officer is in uniform or otherwise identifies or offers to identify himself or herself as a law enforcement officer.

(3) Fail or refuse to identify oneself when requested to do so by any law enforcement officer when the officer is attempting to issue to such person a citation or appearance ticket for a violation of this Code or of any City or State law.

(4) When operating a motor vehicle which has been stopped in response to a law enforcement officer's signal, command or direction, leave or attempt to leave the scene unless and until such person has identified himself or herself to the officer.

(5) Escape or attempt to escape while lawfully confined by or in the custody of the City of Grand Rapids or any of its law enforcement officers.

(6) Give false information in connection with an official investigation of any violation of

this Code or of any City or State law to any law enforcement officer or other official or employee of the City of Grand Rapids, when said officer, official or employee is acting in his or her official capacity.

(7) Fail or refuse to obey a hand, voice, emergency light, emergency siren, or other visual or audible signal of any law enforcement officer that is issued in the performance of the officer's official duties, directing the operator of a motor vehicle to bring his or her motor vehicle to a stop. This subsection does not apply unless the law enforcement officer giving the signal is clearly identified as a police officer and the officer's vehicle is identified as an official police vehicle, by official decals and/or the presence of activated emergency lights and/or siren.

(Ord. No. 76-14, 3-2-76; Ord. No. 80-51, 7-1-80; Ord. No. 2005-89, § 1, 11-15-05; Ord. No. 2014-14, § 1, 3-11-14)

State law references—Resisting, obstructing or opposing public officer, MCL 750.479; failure to obey a police officer, MCL 750.479a; false impersonation of a public officer, MCL 750.215; escapes, rescues, jails and prison breaking, MCL 750.195; obstructing and disobeying firefighter, MCL 750.241.

Sec. 9.136. Miscellaneous Offenses.

(1) *Definitions.* As used in this Section and unless otherwise defined:

(a) *Loitering* means lingering or hanging around without any apparent purpose in a place described in Subsection (2)(c) or (2)(d) of this Section.

(b) *Accost* means repeated nonconsensual conduct directed to another person in such a manner as would cause a reasonable person to feel harassed, intimidated, or that a commission of a criminal act was about to occur.

(2) No person shall:

(a) Engage in peeping in the windows of any inhabited place.

(b) Make an indecent exposure of his or her person.

(c) Loiter in any public building or in any other building or premises owned by another person after having been requested to leave by the lawful owner or occupant or a representative of the owner or occupant.

(d) Loiter or obstruct a doorway in such a manner that interferes with the functioning of the door, or an individual's ability to pass through the doorway.

(e) Accost another person:

(i) Within twenty (20) feet of any Automated Teller Machine (ATM).

(ii) In any public transportation vehicle, such as a bus or train, or within twenty (20) feet of where such a vehicle takes on or releases passengers.

(iii) In any outdoor dining area or within twenty (20) feet of any outdoor space where individuals are consuming food or beverage.

(iv) At any permitted special event or within twenty (20) feet of a permitted special event entrance or exit.

(f) Knowingly engage in or advertise any business which offers as its principal activity the providing of nude models for artists or photographers.

(g) Fire or shoot any air gun, spring gun, bow and arrow, slingshot or other dangerous weapon or instrument in any street, avenue, alley, public place or in any place in such a manner as to endanger or be likely to endanger any person or property.

(Ord. No. 76-14, 3-2-76; Ord. No. 78-21, 4-11-78; Ord. No. 2014-16, § 1, 3-25-14; Ord. No. 2023-30, § 1, 7-25-23)

State law references—Window peeping, MCL 750.167(c); indecent exposure, MCL 750.167(f); fortune telling, MCL 750.267 et seq.; firearms discharge, MCL 750.234.

Sec. 9.137. Breach of the Peace Offenses.

No person shall:

(1) Create or engage in any disturbance, fight or quarrel in a public place.

(2) Create or engage in any disturbance, fight or quarrel that causes or tends to cause a breach of the peace.

(3) Disturb the public peace and quiet by loud or boisterous conduct.

(4) Disturb without lawful authority any lawful assembly or meeting of persons.

(5) Engage in, participate in or attempt to engage in or participate in a riot.

(6) Incite, cause or attempt to incite or cause a riot.

(7) Utter profane, obscene or injurious language directed at or in the presence of another person, which language causes or would tend to cause an immediate breach of the peace.

(Ord. No. 76-14, 3-2-76)

State law references—Disorderly persons, MCL 750.167; cursing and swearing, MCL 750.103; disturbance of religious meetings, MCL 752.525 et seq.; disturbance of meetings, MCL 750.169 et seq.; improper language in the presence of women/children, MCL 750.337.

Sec. 9.138. Vice Offenses.

No person shall:

(1) Engage in any act of prostitution.

(2) Knowingly attend, frequent, operate or be an occupant or inmate of any place where prostitution, illegal gambling, the illegal sale of intoxicating liquor, or where any other illegal business or occupation is permitted or conducted.

(3) Engage in prostitution, illegal gambling, the illegal sale of intoxicating liquor or any other illegal business or occupation.

(4) Solicit or accost any person for the purpose of inducing the commission of any illegal act.

(5) Transport any person to a place where he or she knows prostitution, illegal gambling or other illegal activity is practiced, encouraged or allowed for the purpose of enabling the person transported to engage in illegal gambling, prostitution or any other illegal activity.

(6) Keep or maintain a gaming room, gaming tables or any policy or pool tickets used for illegal gambling, or knowingly suffer or allow a gaming room, gaming tables or any policy or pool tickets used for illegal gambling to be kept, maintained, played or sold on any premises occupied or controlled by him or her.

(7) Knowingly attend, loiter about, frequent or remain in or upon any building, house, vacant lot, street, curblawn, parkway, alley, yard, apartment, store, automobile, boat, boathouse, airplane, or other place of any description whatsoever where any illegal controlled substance or any drug paraphernalia is sold, dispensed, furnished, given away, or stored.

As used in this subsection, "controlled substance" shall be defined as provided for in the Controlled Substance Act of the State of Michigan, MCL 333.7101 et seq., (MSA 14.15(7101) et seq.), as amended.

As used in this subsection, "drug paraphernalia" shall be defined as provided for in 1988 Public Act 139, MCL 333.7451 et seq. (MSA 14.15(7451) et seq.).

This subsection shall not apply to persons licensed or permitted by the State of Michigan to engage in the activity otherwise prohibited herein nor to any person lawfully possessing a controlled substance pursuant to a prescription written by a person authorized to write prescriptions under the State and Federal law. The application of the exception provided by this paragraph shall constitute an affirmative defense which must be raised by the accused.

(Ord. No. 76-14, 3-2-76; Ord. No. 89-61, § 1, 10-10-89)

State law references—Prostitution generally, MCL 750.448 et seq.; gambling, MCL 750.301 et seq.; lotteries, MCL 750.377 et seq.; loitering in house of prostitution, MCL 750.167(i); loitering in place of illegal business, MCL 750.167(j).

Sec. 9.139. Resort Offenses.

No person shall:

(1) Permit or allow any premises owned, occupied or controlled by him or her to be

used or occupied by persons engaging in any act of prostitution or any other illegal sexual activity.

(2) Permit or allow any premises owned, occupied or controlled by him or her to be used or occupied by noisy, boisterous or disorderly persons.

(3) Permit or allow any loud or boisterous noise, or any fight, quarrel or disturbance on any premises owned, occupied or controlled by him or her.

(Ord. No. 76-14, 3-2-76)

Sec. 9.140. Conduct in sexually oriented businesses.

(1) *Purpose and Findings.*

a. The City hereby adopts and incorporates herein its stated findings and legislative record related to the adverse secondary effects of sexually oriented businesses, including the judicial opinions and reports related to such secondary effects, as detailed in Section 5.9.25.A of this Code.

b. The City Commission also relies upon findings concerning secondary effects contained in additional reports as well as in cases in accord with those cited in Section 5.9.25.A, including those upholding regulations of nudity and the time, place, and manner of operation of sexually oriented

businesses: *Deja Vu of Cincinnati, L.L.C. v. Union Township,* 411 F.3d 777 (6th Cir. 2005);*Bronco's Entertainment, Ltd. v. Charter Township of Van Buren,* 2005 U.S. App. LEXIS 18496 (6th Cir. 2005); *Charter Township of Van Buren v. Garter Belt, Inc.,* 258 Mich. App. 594 (2003) (following *City of Erie v. Pap's A.M.,* 529 U.S. 277 (2000), *Barnes v. Glen Theatre, Inc.,* 501 U.S. 560 (1991), and *California v. LaRue,* 409 U.S. 109 (1972)); *Gammoh v. City of La Habra,* 395 F.3d 1114 (9th Cir. 2005); *SOB, Inc. v. County of Benton,* 317 F.3d 856 (8th Cir. 2003); *G.M. Enterprises, Inc. v. Town of St. Joseph,* 350 F.3d 631 (7th Cir. 2003); *Heideman v. South Salt Lake City,* 348 F.3d 1182 (10th Cir. 2003); *In re Tennessee Public Indecency Statute,* 1999 U.S. App. LEXIS 535 (6th Cir. 1999); *Currence v. City of Cincinnati,* 2002 U.S. App. LEXIS 1258); *Jott, Inc. v. Clinton Township,* 224 Mich. App. 513 (1997); *Michigan ex rel. Wayne County Prosecutor v. Dizzy Duck,* 449 Mich. 353 (1995); *Kev, Inc. v. Kitsap County,* 793 F.2d 1053 (9th Cir. 1986); *Hang On, Inc. v. City of Arlington,* 65 F.3d 1248 (5th Cir. 1995); *Tily B, Inc. v. City of Newport Beach,* 69 Cal. App. 4th 1 (Cal. App. 1997); *Lady J. Lingerie, Inc. v. City of Jacksonville,* 973 F.Supp. 1428 (M.D. Fla. 1997); *City of Elko v. Abed,* 2004 Minn. App. LEXIS 360 (Minn. App. 2004); *Center for Fair Public Policy v. Maricopa County,* 336 F.3d 1153 (9th Cir. 2003); *Richland Bookmart, Inc. v. Nichols,* 137 F.3d 435 (6th Cir. 1998); *Richland Bookmart, Inc. v. Nichols,* 278 F.3d 570 (6th Cir. 2002); *DiMa Corp. v. Town of Hallie,* 185 F.3d 823 (7th Cir. 1999); *Lady J. Lingerie, Inc. v. City of Jacksonville,* 176 F.3d 1358 (11th Cir. 1998); *Nat'l Amusements Inc. v. Town of Dedham,* 43 F.3d 731 (1st Cir. 1995); *Mitchell v. Comm'n on Adult Enter. Est. of the State of Delaware,* 10 F.3d 123 (3d Cir. 1993); *Star Satellite, Inc. v. City of Biloxi,* 779 F.2d 1074 (5th Cir. 1986); *Heideman v. South Salt Lake City,* 2006 U.S. App. LEXIS 2745 (10th Cir. 2006); *Fantasyland Video, Inc. v. San Diego County,* 373 F. Supp. 2d 1094 (S.D. Cal. 2005); *State ex rel. Nasal v. BJS No. 2, Inc.,* 127 Ohio Misc. 2d 101 (Ohio Ct. Comm. Pleas 2003); *Baby Dolls Topless Saloons, Inc. v. City of Dallas,* 295 F.3d 471_2002 (5th Cir. 2002); *Z.J. Gifts D-2, L.L.C. v. City of Aurora,* 136 F.3d 683 (10th Cir. 1998); *World Wide Video of Washington, Inc. v. City of Spokane,* 368 F.3d 1186 (9th Cir. 2004); *Andy's Restaurant & Lounge, Inc. v. City of Gary,* Case No. 2:01-CV-327 (N.D. Ind. 2005); Summaries of Key Reports Concerning the Negative Secondary Effects of Sexually Oriented Businesses; Rome, Georgia—1996; San Diego, California—2003; Greensboro, North Carolina—2003; Dallas, Texas—1997; and numerous media reports, in finding that:

(i) Sexually oriented businesses, as a category of commercial uses, are often associated with a wide variety of adverse secondary effects including, but not limited to, personal and property crimes, prostitution, potential spread of disease, lewdness, public indecency, illicit drug use and drug trafficking, negative impacts on surrounding properties, urban blight, litter, and sexual assault and exploitation.

(ii) Illegal and unsanitary acts involving nudity, including lewd conduct, masturbation, oral and anal sex, occur at unregulated sexually oriented businesses, including those businesses which provide private or semi-private rooms, booths, or cubicles for viewing films, videos, or live performances.

(iii) Each of the foregoing negative secondary effects constitutes a harm which the City has a substantial government interest in preventing and/or abating. This substantial government interest in preventing secondary effects, which is the City's rationale for this ordinance, exists independent of any comparative analysis between sexually oriented and

non-sexually oriented businesses. Additionally, the City's interest in regulating sexually oriented businesses extends to preventing future secondary effects of either current or future sexually oriented businesses that may locate in the City. The City finds that the cases and documentation relied on in this ordinance are reasonably believed to be relevant to said secondary effects.

(2) *Definitions.*

a. The terms in this Chapter shall have the meanings ascribed to them in Section 5.16.02, R—"REGULATED USES"— of this Code, unless otherwise indicated herein.

b. In addition, the following terms shall have the meanings ascribed to them as follows:

(i) "*Employee*" means a person who performs any service for any consideration on the premises of an sexually oriented business on a full-time, part-time, or contract basis, whether or not the person is denominated an employee, independent contractor, agent, or otherwise, and whether or not said person is paid a salary, wage, or other compensation by the operator of said sexually oriented business. Employee does not include a person exclusively on the premises for repair or maintenance of the premises or equipment on the premises or for the delivery of goods to the premises.

(ii) "*Nudity,*" "*Nude,*" or "*State of Nudity*" means the knowing or intentional live display of a human genital organ or anus with less than a fully opaque covering or a female's breast with less than a fully opaque covering of the nipple and areola. Nudity, as used in this section, does not include a woman's breastfeeding of a baby whether or not the nipple or areola is exposed during or incidental to the feeding.

(iii) "*Operate*" or "*Cause to Operate*" shall mean to cause to function or to put or keep in a state of doing business. "*Operator*" means any person on the premises of a sexually oriented business who exercises overall operational control of the business or a part of the business, who can open or close the business to the public, or who causes to function or who puts or keeps the business open or in operation. A person may be found to be operating or causing to be operated a sexually oriented business regardless of whether that person is an owner or part owner of the business.

(iv) "*Semi-Nudity,*" "*Semi-Nude,*" or *in a* "*Semi-Nude Condition*" means the showing of the female breast below a horizontal line across the top of the areola and extending across the width of the breast at that point, or the showing of the male or female buttocks. This definition shall include the lower portion of the human female breast, but shall not include any portion of the cleavage of the human female breasts exhibited by a bikini, dress, blouse, shirt, leotard, or similar wearing apparel provided the areola is not exposed in whole or in part.

(v) "*Sexually Oriented Business*" for purposes of this Chapter shall mean any adult motion picture theater, adult bookstore, adult novelty store, adult video store, adult cabaret or seminude model studio as defined in Section 5.16.02, R—"REGULATED USES"— of this Code.

(vi) "*Patron*" means a customer of the sexually oriented business or a person from the general public, not an "employee" of the business, who is on the premises to obtain, receive, or view the products, services, or performances offered by the business.

(vii) "*Regularly*" means recurring, attending, or functioning at fixed or uniform intervals.

(3) *Unlawful Activities.*

a. Nothing contained in this Chapter is intended, or shall be construed, to permit or authorize activities which are unlawful under state law or City ordinance. It is unlawful and a violation of this Chapter for an operator to knowingly or intentionally violate the provisions of this Chapter or to allow, either knowingly or intentionally, an employee or a patron to violate the provisions of this Chapter. It shall be a defense to prosecution that the person prosecuted was powerless to prevent the violation.

b. No person shall knowingly or intentionally, in a sexually oriented business, appear before a patron or patrons in a state of nudity, regardless of whether such public nudity is expressive in nature.

c. No employee shall knowingly or intentionally, in a sexually oriented business, appear within view of any patron in a semi-nude condition unless the employee, while semi-nude, shall be and remain at least six (6) feet from all patrons and on a fixed stage at least eighteen (18) inches from the floor in a room of at least six hundred (600) square feet.

d. A sexually oriented business which exhibits on the premises, through any mechanical or electronic image-producing device, a film, video cassette, digital video disk, or other video reproduction characterized by an emphasis on the display of specified sexual activities or specified anatomical areas shall comply with the following requirements: The interior of the premises shall be configured in such a manner that there is an unobstructed view from an operator's station of every area of the premises, including the interior of each viewing room but excluding restrooms, to which any patron is permitted access for any purpose. An operator's station shall not exceed thirty-two (32) square feet of floor area. If the premises has two (2) or more operator's stations designated, then the interior of the premises shall be configured in such a manner that there is an unobstructed view of each area of the premises to which any patron is permitted access for any purpose from at least one (1) of the operator's stations. The view required in this paragraph must be by direct line of sight from the operator's station. It is the duty of the operator to ensure that at least one (1) employee is on duty and situated in an operator's station at all times that any patron is on the portion of the premises monitored by that operator station. It shall be the duty of the operator, and it shall also be the duty of any employees present on the premises, to ensure that the view area specified in this paragraph remains unobstructed by any doors, curtains, walls, merchandise, display racks or other materials or enclosures at all times that any patron is present on the premises.

e. Sexually oriented businesses that do not have stages or interior configurations which meet at least the minimum requirements of this section shall be given one hundred eighty (180) days from the effective date of this Article to comply with the stage and building requirements of this section. During said one hundred eighty (180) days, any employee who appears within view of any patron in a semi-nude condition shall nevertheless remain, while semi-nude, at least six (6) feet from all patrons.

f. No employee who regularly appears within view of patrons in a semi-nude condition in a sexually oriented business shall knowingly or intentionally touch a patron or the clothing of a patron in a sexually oriented business.

g. No operator shall allow or permit a sexually oriented business to be or remain open between the hours of two o'clock (2:00) a.m. and seven o'clock (7:00) a.m. on any day.

(4) *Scienter Required to Prove Violation or Business Liability.* This Article does not impose strict liability. Unless a culpable mental state is otherwise specified herein, a showing of a knowing or reckless mental state is necessary to establish a violation of a provision of this Article. Notwithstanding anything to the contrary, for the purposes of this Article, an act by an employee shall be imputed to the sexually oriented business for purposes of finding a violation of this Article only if an officer, director, or general partner, or a person who managed, supervised, or controlled the operation of the business premises, knowingly or recklessly allowed such act to occur on the premises. It shall be a defense to liability that the person to whom liability is imputed was powerless to prevent the act.

(5) *Penalty; Equitable Remedies.*

a. Any person, business, or entity violating or refusing to comply with any provisions of this Chapter shall, upon conviction, be deemed guilty of a misdemeanor and shall be punished by imposition of a fine not to exceed five hundred dollars ($500.00) or by imprisonment for a period not to exceed ninety (90) days, or both. Each day that a violation is permitted to exist or occur, and each separate occurrence, shall constitute a separate offense. Further, any premises, building, dwelling, or other structure in which a sexually oriented business, as defined in Section 5.16.02, R - "REGULATED USES" - of this Code, is repeatedly operated or maintained in violation of the provisions of this Chapter shall constitute a public nuisance and shall be subject to civil abatement proceedings initiated by the City of Grand Rapids in a court of competent jurisdiction. Each day that a violation is permitted to exist or occur shall constitute a separate operation or maintenance of the violation.

b. Notwithstanding subsection (1) hereof, the City may employ any remedy available at law or in equity to prevent or remedy a violation of any provision of this Chapter.

(6) *Severability.* This Article and each section and provision of said Chapter hereunder, are hereby declared to be independent divisions and subdivisions and, not withstanding any other evidence of legislative intent, it is hereby declared to be the controlling legislative intent that if any provisions of said Chapter, or the application thereof to any person or circumstance is held to be invalid, the remaining sections or provisions and the application of such sections and provisions to any person or circumstances other than those to which it is held invalid, shall not be affected thereby, and it is hereby declared that such sections and provisions would have been passed independently of such section or provision so known to be invalid.

(Ord. No. 2006-23, § 1, 4-25-06; Ord. No. 2008-34, § 1, 8-26-08)

ARTICLE 2. DISORDERLY CONDUCT ON AND AROUND SCHOOL PROPERTY AND ELSEWHERE

Sec. 9.141. Unauthorized Persons Not to Enter or Trespass on School Property.

No regularly enrolled student who has been suspended or expelled from any public, private or parochial school nor any person who is not a regularly enrolled student or parent or guardian thereof or a school official, teacher or other public or school employee shall enter or trespass upon or loiter in or upon any public, private or parochial school building or school property in the City for any reason whatever unless such person has received written permission from the principal or other person designated by the principal to be in or upon or to remain in or upon such public, private or parochial school building or school property; provided, however, that such written permission need not be secured by persons engaging in or attending a school or Recreation Board authorized activity or by persons using school playground or playground equipment after school hours or when school is not in session unless such entry or use shall have been otherwise prohibited by a rule or regulation of the School Board, school principal or other person, Board or Committee with the authority to prohibit such use or entry.

(Ord. No. 67-62, 11-7-67; Ord. No. 72-67, 9-19-72)

State law reference—Trespassing, MCL 750.546 et seq.

Sec. 9.142. Disturbing Schools.

No person shall wilfully or maliciously make or assist in making any noise, disturbance or improper diversion by which the peace, quietude or good order of any public, private or parochial school is disturbed.
(Ord. No. 67-62, 11-7-67)

State law reference—Disturbing public places, MCL 750.170.

Sec. 9.143. Duty of Person Creating Disturbance to Leave Premises.

Any person, whether lawfully or unlawfully in or upon any public, private or parochial school building or school property who is found to be creating a disturbance in or upon any such school building or property shall leave immediately when so directed by the principal or by any other person designated by the principal.
(Ord. No. 67-62, 11-7-67)

Sec. 9.144. Extortion.

No person shall by violence, threats of violence or other form of coercion force or attempt to force any public, private or parochial school student or other person to give or lend any money or other thing of value to any person at any time.
(Ord. No. 67-62, 11-7-69)

State law reference—Extortion generally, MCL 750.213 et seq., MSA 28.410 et seq.

Sec. 9.145. Unauthorized Borrowing of Money or Things of Value from Students in the School or Traveling to or from School.

No person shall borrow or attempt to borrow any money or thing of value from any student in or upon any public, private or parochial school building or school property in the City or during any time when such student is engaging in, going to or returning from any regularly scheduled session or activity of any such school without first obtaining the written approval of the principal of such school or other person designated by the principal to issue such written approval; provided, however, that this Section shall not apply to college students who borrow money or things of value from other college students or adults.
(Ord. No. 67-62, 11-7-69)

Sec. 9.146. Destruction of School Property.

No person shall damage, destroy or deface any public, private or parochial school building or the grounds, outbuildings, fences, trees or other appurtenances or fixtures belonging thereto.
(Ord. No. 67-62, 11-7-69)

Sec. 9.147. Definitions.

For the purposes of Sections 9.141 through 9.146 inclusive, the term "school" shall mean any pre-elementary, elementary (grades K—6), secondary (grades 7—12) school, any college or combination thereof and the term "principal" shall mean any principal of any elementary or secondary school or the chief administrative officer of any elementary or secondary school or college.
(Ord. No. 67-62, 11-7-69)

Secs. 9.148—9.150. Reserved.

ARTICLE 3. OBSCENE LITERATURE

Sec. 9.151. Definitions.

As used in this Article:

(1) *Obscene* means that to the average person, applying contemporary community standards, the predominant appeal of the matter, taken as a whole, is to prurient interest. For matter to be obscene it must be established that the dominant theme as a whole appeals to a prurient interest in sex; the matter is patently offensive because it affronts contemporary community standards relating to the description or representation of sexual matter; and the matter is utterly without redeeming social value. Where the matter is designed for a primarily disseminated to a clearly defined deviant sexual group, rather than the public at large, the prurient appeal requirement is satisfied if the dom-

inant theme of the matter taken as a whole appeals to the prurient interest in sex of the members of that group.

(2) *Matter* means any book, magazine, newspaper, or other printed or written material or any picture, drawing, photograph, motion picture, or other pictorial representation or any statue or other figure, or any recording, transcription, or mechanical, chemical or electrical reproduction or any other Articles, equipment, machines, devices, or materials.

(3) *Person* means any individual, partnership, firm, association, corporation, or other legal entity.

(4) *Distribute* means to transfer possession of, whether with or without consideration.

(5) *Knowingly* means having actual knowledge of the character and content of the subject matter.

(6) *Purvey* means the pandering, deliberate representation, holding out, presenting, advertising, or publicizing of matter, in such a manner as to arouse and stimulate any person or persons to accept or regard such matter as prurient; or the pandering, deliberate representation, holding out, presenting, advertising, or publicizing of matter, in such a manner as to emphasize the sexually provocative aspect of such matter; or to knowingly distribute matter designed to pander, deliberately represent, hold out, present, advertise or publicize other matter as prurient, appealing to the prurient interests, sexually provocative or erotically arousing.

(Ord. No. 66-26, 5-17-66)

Sec. 9.152. Sale, Distribution, Publication, Printing or Exhibition of Obscene Matter Generally.

It is unlawful for any person to knowingly send or cause to be sent, or bring or cause to be brought, into this City for sale or distribution, or in this City to prepare, publish, print, exhibit, or distribute, or offer to distribute, or have in his or her possession with intent to distribute or to exhibit or offer to distribute, any obscene matter.
(Ord. No. 66-26, 5-17-66)

Sec. 9.153. Distribution of Obscene Matter to Minors.

It is unlawful for any person to knowingly send or cause to be sent, or exhibit, or distribute, or offer to distribute any obscene matter to a minor under eighteen (18) years of age, while in possession of such facts that he or she should reasonably know that such person is a minor under eighteen (18) years of age.
(Ord. No. 66-26, 5-17-66)

Sec. 9.154. Purveying and Promoting Obscene Matter.

It is unlawful for any person to knowingly purvey matter or to write or create advertising or solicit anyone to publish such advertising or otherwise promote the sale or distribution of matter represented or held out by him or her to be obscene.
(Ord. No. 66-26, 5-17-66)

Sec. 9.155. Employment or Use of Minors.

It shall be unlawful for any person, while in possession of such facts that he or she should reasonably know that a person is a minor under eighteen (18) years of age, to hire, employ, solicit or use such minor to do, participate or assist in doing any of the acts forbidden under this Chapter.
(Ord. No. 66-26, 5-17-66)

Sec. 9.156. Requiring Purchaser or Consignee to Receive Obscene Matter as Condition to Sale.

It shall be unlawful for any person to knowingly, as a condition to a sale, allocation, consignment or delivery for resale of any paper, magazine, book, periodical, publication, or other matter or merchandise, require that the purchaser or consignee receive any obscene matter or to deny or threaten to deny a franchise, to revoke or threaten to revoke or impose any penalty, finan-

cial or otherwise, by reason of the failure of any person to accept obscene matter, or by reason of the return of such obscene matter.
(Ord. No. 66-26, 5-17-66)

Secs. 9.157—9.160. Reserved.

ARTICLE 4. FARE EVASION

Sec. 9.161. Title.

Article 4 of Chapter 152 of this Code shall be known as the "Fare Evasion Ordinance" of the City of Grand Rapids.
(Ord. No. 2014-51, § 1, 7-22-14)

Sec. 9.162. Prohibition on Fare Evasion.

No person shall occupy, ride in, or use a Silver Line public transportation vehicle without paying the fare established by the public transportation authority. All persons that occupy, ride in, or use a Silver Line public transportation vehicle must possess proof of fare payment and shall present such proof upon the demand of a police officer, security officer, or fare inspector authorized in accordance with this article. A violation of this section shall constitute a municipal civil infraction, as provided for in Chapter 170 of this Code.
(Ord. No. 2014-51, § 1, 7-22-14)

Sec. 9.163. Fare Inspectors.

(1) A public transportation entity may appoint or employ fare inspectors as necessary to enforce the provisions of this article. The employing public transportation entity shall determine the requirements for employment as a fare inspector.

(2) A fare inspector that is appointed or employed in accordance with this section is authorized to enforce the provisions of this article while acting within the scope of his or her authority and in the performance of his or her duties.
(Ord. No. 2014-51, § 1, 7-22-14)

Sec. 9.164. Definitions.

As used in this article, the following definitions shall apply:

(1) "Proof of fare payment" means:

a. A transit pass valid for the day and time of use; or

b. A receipt showing payment of the applicable fare for use of the public transportation vehicle during the day and time specified in the receipt.

(2) "Public transportation authority" means a public authority authorized to provide public transportation services or any other entity authorized under the laws of the State of Michigan to provide public transportation services.

(3) "Public transportation entity" means any legal or administrative entity authorized under the laws of the State of Michigan to enforce the provisions of this article, including the City of Grand Rapids and such other entities that may be created with the authority to enforce this article.

(4) "Public transportation vehicle" means a bus, train, or any other vehicle used by a public transportation authority to provide public transportation services.

(5) "Silver Line" means a public rapid transit bus line operated by Interurban Transit Partnership or its successors between 60th Street in Wyoming/Kentwood and Michigan Street in downtown Grand Rapids, Michigan.

(6) "Transit pass" means any pass, coupon, card, identification, token, ticket, or other document used to obtain public transportation services.
(Ord. No. 2014-51, § 1, 7-22-14)

ARTICLE 5. TELEPHONE OFFENSES

Sec. 9.165. Harassing or Molesting Calls.

It shall be unlawful for any person or persons to telephone another person repeatedly for the sole purpose of harassing or molesting such other person or his or her family, whether or not conversation ensues, except for telephone calls made for legitimate business purposes.
(Ord. No. 67-1, 1-10-67)

State law reference—Malicious use of service provided by communications common carrier, MCL 750.540e.

Sec. 9.166. Abusive Language.

It shall be unlawful for any person or persons to use any threatening, vulgar, indecent, obscene, immoral or insulting language over any telephone.
(Ord. No. 67-1, 1-10-67)

State law reference—Malicious use of service provided by communications common carrier, MCL 750.540e.

ARTICLE 6. LODGING ACCOMMODATIONS; REGISTRATION AND OCCUPANCY*

Sec. 9.167. Duty to Maintain Guest Register.

The proprietor, manager, desk clerk or any other person in charge of any hotel, motel, lodging house, rooming house, or any other place where transients are accommodated for sleeping or lodging purposes, shall comply with the following:

(1) Maintain a register in which shall be inscribed in ink, at the time of arrival, the correct name of every guest renting or occupying a bed, room or rooms;

(2) Together with the name in the register shall be inscribed the home street and city address of each guest and the make, year, state of registration and the license number of the motor vehicle in which each such guest arrived;

(3) The register shall also indicate the room, rooms or space rented or assigned to each guest and the time of arrival of each guest.

(Ord. No. 2013-77, § 2, 11-19-13; Ord. No. 2015-37, § 1, 7-28-15)

Sec. 9.168. Unlawful Registration or Occupancy.

(1) No person shall knowingly write, cause to be written, or permit to be written in any register provided for by this Article any false, incorrect or inaccurate information.

(2) No person shall occupy any room, rooms or space in any accommodation named in Section 9.167 unless and until the information provided in Section 9.167 shall have been entered in the register therein provided for.

(3) No proprietor, manager, desk clerk or other person in charge of a hotel, motel, lodging house, rooming house, or other place where transients are accommodated for sleeping or lodging purposes shall let, rent or permit the occupancy of any space, room or rooms more than once between the hours of 6:00 p.m. on one (1) day and 6:00 a.m. the next day except to bona fide travelers.
(Ord. No. 2013-77, § 2, 11-19-13)

Sec. 9.169. License Required.

(1) No person shall operate any hotel, motel, lodging house, rooming house, or other place where transients are accommodated for sleeping or lodging purposes without obtaining a license therefor as provided for herein.

(2) Application for such a license shall be made to the City Clerk as provided for in Chapter 91.

(3) No license shall be issued pursuant to the provisions of this Article unless the premises to be licensed shall be in compliance with all applicable provisions of this Code and until the license fee provided for in Chapter 92 shall have been paid.

(4) Notwithstanding any other requirement of this Chapter, no charitable or religious institution providing transient accommodations incidental to and in connection with a bona fide charitable or religious program shall be required to pay a license fee pursuant to this Chapter.
(Ord. No. 2013-77, § 2, 11-19-13)

ARTICLE 7. FALSIFYING OFFICIAL DOCUMENTS

Sec. 9.170. Filings Made With the City Assessor.

(1) No person shall knowingly write, cause to be written, or permit to be written any false, incorrect or inaccurate information on any document, record or form required to be filed with the City Assessor.

*__Editor's note—__Ord. No. 2013-77, § 1, adopted November 19, 2013, repealed the former Art. 6, §§ 9.167—9.169, and § 2 of said ordinance enacted a new Art. 6 as set out herein. The former Art. 6 pertained to similar subject matter. See Code Comparative Table for complete derivation.

(2) No person shall knowingly file or cause to be filed with the City Assessor any document, record or form containing any false, incorrect or inaccurate information.
(Ord. No. 2013-52, § 1, 9-24-13, eff. 10-1-13; Ord. No. 2014-77, § 1, 11-12-14)

Chapter 153

WEAPONS*

Sec. 9.171.	Purpose, Findings, and Interpretations.
Sec. 9.172.	Definitions.
Sec. 9.173.	Regulation of Firearms.
Sec. 9.173.1.	Carrying.
Sec. 9.174.	Regulation of Pneumatic Guns, Bows, Crossbows, and Other Devices Capable of Expelling a Projectile.
Sec. 9.175.	Exceptions.
Sec. 9.176.	Regulation of Imitation Firearms.
Sec. 9.177.	Alteration of an Imitation Firearm; Possession of an Altered Imitation Firearm.
Sec. 9.178.	Parental Responsibility.
Sec. 9.179.	Seizure and Forfeiture of Weapons.
Sec. 9.180.	Penalty.

*__Editor's note—__Ord. No. 2019-75, §§ 1, 2, adopted December 3, 2019, repealed the former Ch. 153, §§ 9.171—9.180, and enacted a new Ch. 153 as set out herein. The former Ch. 153 pertained to firearms and derived from Ord. No. 67-11, 4-25-67; Ord. No. 2006-15, § 1, 4-11-06.

Sec. 9.171. Purpose, Findings, and Interpretations.

(1) The purpose of this Chapter is to secure and maintain the public peace, health, safety, welfare and convenience of the residents and property owners of the City by the regulation of firearms, pneumatic guns, imitation firearms, and other devices capable of expelling a projectile.

(2) The City of Grand Rapids is the second most populated city in Michigan, with a population over 200,000 (Census Bureau population estimate, July 1, 2018) and a population density at or exceeding 4,235.6 people per square mile (Census Bureau, 2010). The City Commission finds that the City is so heavily populated as to make unregulated conduct anywhere within city limits to be dangerous to the inhabitants of the City.

(3) Nothing within this Chapter shall relieve a person of the duties and obligations imposed by state or federal law or regulations. Nothing in this Chapter shall be construed in a manner as to conflict with applicable state or federal law or regulations. To the extent of any conflict between any provision of this Chapter and any provision of state or federal law, the provision of state or federal law shall control. In the event any court of competent jurisdiction shall hold any provision of this Chapter invalid or unenforceable, such holding shall not invalidate or render unenforceable any other provision thereof.
(Ord. No. 2018-75, § 2, 12-3-19)

Sec. 9.172. Definitions.

(1) *"Brandish"* means to point, wave about, or display in a manner intended to induce fear in another person.

(2) *"Bow"* means a device for propelling an arrow from a string drawn, held, and released by hand if the force used to hold the string in the drawn position is provided by the archer's muscles.

(3) *"Crossbow"* means a weapon consisting of a bow, with a draw weight of one hundred (100) pounds or more, mounted transversely on a stock or frame and designed to fire an arrow, bolt, or quarrel by the release of a bow string controlled by a mechanical or electric trigger with a working safety.

(4) *"Firearm"* means any weapon which will, is designed to, or may readily be converted to expel a projectile by action of an explosive. Firearm does not include pneumatic gun or imitation firearm.

(5) *"Other device capable of expelling a projectile"* means a device other than a firearm, pistol, or pneumatic gun from which is propelled a missile, projectile, pellet, or other mass by means of springs, rubber, elastic strip, levers or other mechanical means which device shall be capable by the discharge of any such missile, projectile, pellet, or other mass of inflicting personal injury or death upon any person. "Other device capable of expelling a projectile" is not a toy item or apparatus deemed by the manufacturer to be usable by an individual under age ten (10) that discharges low risk projectiles including but not limited to foam, Nerf, and ping-pong balls.

(6) *"Pneumatic gun"* means any implement, designed as a gun, that will expel a BB or pellet by spring, gas, or air. Pneumatic gun includes a paintball gun that expels by pneumatic pressure plastic balls filled with paint for the purpose of marking the point of impact. For purposes of this Chapter, pneumatic gun does not include an imitation firearm.

(7) *"Projectile"* means any missile, bullet, shot, pellet, or other mass.

(8) *"Public place,"* means any street, alley, park, sidewalk, public building, any place of business open to the public or frequented by the public or any portion thereof, and any other place which is open to public view or to which the public, or any portion thereof, has access.

(9) *"Imitation firearm"* means any toy, imitation, facsimile or imitation pistol, revolver, shotgun, rifle, air rifle, BB gun, pellet gun, machine gun, or other similarly simulated weapon which because of its color, size, shape, or other characteristics, can reasonably be perceived to be a real firearm or pneumatic gun. "Imitation Firearm" does not include:

(a) A pneumatic gun;

(b) A non-firing collector replica antique firearm, which looks authentic and may be a scale model but is not intended as a toy, modeled on real firearms designed, manufactured, and produced prior to 1898;

(c) Decorative, ornamental, and miniature objects having the appearance, shape and/or configuration of a firearm, including those intended to be displayed on a desk or worn on bracelets, necklaces, key chains, and so on, provided that the objects measure no more than thirty-eight (38) millimeters in height by seventy (70) millimeters in length, the length measurement excluding any gun stock length measurement; or

(d) A toy item or apparatus deemed by the manufacturer to be usable by an individual under age ten (10) that discharges low-risk projectiles including but not limited to foam, Nerf, and ping-pong balls.

(Ord. No. 2018-75, § 2, 12-3-19)

Sec. 9.173. Regulation of Firearms.

(1) No person shall discharge any firearm in the City of Grand Rapids.

(2) No person shall brandish any firearm in any public place.

(Ord. No. 2018-75, § 2, 12-3-19)

Sec. 9.173.1. Carrying.

No person shall carry any firearm upon his or her person in any public street, alley or other place open to the public in the City of Grand Rapids unless:

(1) The person has been issued a valid license to do so as provided by Act 372 of Michigan Public Acts of 1927, as amended (MCL 28.421 et seq.), or

(2) All ammunition has been removed from the chamber, cylinder, clip or magazine of the firearm and the firearm has been noticeably rendered inoperable by being broken down or disassembled or is completely enclosed within a case or other similar container.

(Ord. No. 2018-75, § 2, 12-3-19)

Sec. 9.174. Regulation of Pneumatic Guns, Bows, Crossbows, and Other Devices Capable of Expelling a Projectile.

(1) No person shall discharge any bow, crossbow, pneumatic gun, or other device capable of expelling a projectile in the City of Grand Rapids, except

(a) At authorized target ranges;

(b) On other property where firearms may be discharged; or

(c) On or within private property with the permission of the owner or possessor of that property if conducted with reasonable care to prevent a projectile from crossing the bounds of the property.

(2) A person that grants permission to discharge a bow, crossbow, pneumatic gun, or other device capable of expelling a projectile on private property and fails to exercise reasonable care to prevent a projectile from crossing the bounds of the property, and where such projectile crosses the bounds of the property, is in violation of this Chapter.

(3) No person shall brandish a bow, crossbow, pneumatic gun, or other device capable of expelling a projectile.

(4) No person under the age of sixteen (16) shall possess a bow, crossbow, pneumatic gun, or other device capable of expelling a projectile in a public place without the supervision of a parent, a guardian, or a person eighteen (18) years of age or older.

(Ord. No. 2018-75, § 2, 12-3-19)

Sec. 9.175. Exceptions.

(1) The prohibitions in Sections 9.173 and 9.174 do not apply:

(a) To persons acting lawfully in self-defense or defense of another under the self-defense act, 2006 PA 309, MCL 780.971 to 780.974;

(b) To police officers or other peace officers in the lawful performance of their duties;

(c) To indoor enclosed firearm ranges so constructed as to prevent damage to property or injury or death to any person where such firearm ranges are otherwise lawful; or

(d) To persons engaged in an authorized military or civic activity, including a flag ceremony, color guard, parade, award presentation, historical reenactment, or memorial by permission of the director of public safety.

(2) Nothing in this Chapter shall prevent police officers from using an open-air range within the City, for the purpose of training. Such activity shall be subject to the control and discretion of the chief of police as to scheduling the time and determining the location for such target practice and all other respects.
(Ord. No. 2018-75, § 2, 12-3-19)

Sec. 9.176. Regulation of Imitation Firearms.

(1) No person shall knowingly display or expose any imitation firearm in a public place.

(2) No person shall brandish an imitation firearm.

(3) No person shall manufacture, enter into commerce, ship, transport, receive, sell or offer to sell an imitation firearm in violation of federal law.

(4) No person shall knowingly give, sell, or otherwise furnish an imitation firearm to any person under the age of 18.

(5) This Section does not apply to:

(a) An imitation firearm that has a blaze orange tip or other approved marking as described in 15 USC § 5001, 15 CFR 272, or other applicable federal law or regulation, and the blaze orange tip or marking is not concealed;

(b) An imitation firearm used in a theatrical production, including any motion picture, film, video, television, stage production, or commercial film or video production;

(c) An imitation firearm used in conjunction with a certified or regulated sporting event or competition;

(d) An imitation firearm used in an authorized military, civil defense, or civic activity, including a flag ceremony, color guard, parade, award presentation, historical reenactment, or memorial;

(e) An imitation firearm used for a public display authorized by a school or a display that is part of a museum collection;

(f) An imitation firearm used in a parade, ceremony, or other similar activity for which a permit has been obtained from the City; or

(g) An imitation firearm displayed on a wall plaque or in a presentation case.

(h) An imitation firearm that is being used in an area where the discharge of a firearm is lawful or in conjunction with law enforcement training.
(Ord. No. 2018-75, § 2, 12-3-19)

Sec. 9.177. Alteration of an Imitation Firearm; Possession of an Altered Imitation Firearm.

(1) No person shall alter, remove, or obliterate any coloration, markings, or bands that are required by 15 USCA Section 5001 and accompanying federal regulations for any imitation firearm in a way that makes the imitation firearm look more like a firearm or pneumatic gun.

(2) No person shall knowingly possess an imitation firearm on which the blaze orange tip or other approved markings as described in 15 USCA Section 5001 and accompanying federal regulations has been altered, removed or obscured.

(3) This Section does not apply to a lawful use of an imitation firearm in any theatrical production, including any motion picture, video, television, or stage production.
(Ord. No. 2018-75, § 2, 12-3-19)

Sec. 9.178. Parental Responsibility.

A parent, guardian or other person having the physical custody or charge of a minor under the age of seventeen (17) years shall exercise reasonable parental control by requiring the minor to observe the provisions of this Chapter.
(Ord. No. 2018-75, § 2, 12-3-19)

Sec. 9.179. Seizure and Forfeiture of Weapons.

(1) The police department, upon seizing or otherwise coming into possession of a weapon or part of a weapon used in violation of this Chapter, shall retain possession thereof for a time period sufficient to notify the owner of the weapon, as provided in this Section. The retention, disposition and forfeiture of firearms by the police department shall be in compliance with MCL 750.239a or other applicable state law.

(2) All weapons carried, possessed or used contrary to this Chapter are hereby declared forfeited to the City. Forfeiture shall not apply to the owner if the owner is not alleged to have been involved in the conduct for which forfeiture is required or did not knowingly allow the weapon to be possessed illegally. Written notification shall be given to the owner at the conclusion of the criminal case stating that the owner has ninety (90) days to claim the weapon. The police department shall return a weapon to its owner if the owner claims the weapon within the notification period and the police department determines that the owner was not involved in the violation for which the weapon was seized. A weapon shall be returned under this subsection within thirty (30) days after the weapon is claimed by the owner unless the weapon is a firearm and the owner is prohibited from possessing a firearm under state or federal law.

(3) For purposes of this Section, "weapon" means any firearm, pneumatic gun, bow, crossbow, other device capable of expelling a projectile, or imitation firearm.
(Ord. No. 2018-75, § 2, 12-3-19)

Sec. 9.180. Penalty.

(1) Any person who violates any provision of this Chapter shall be guilty of a misdemeanor and upon conviction shall be subject to a fine of up to five hundred dollars ($500.00) or imprisonment for up to ninety (90) days or both.

(2) The presumption shall be that any person who violates any provision of the imitation firearm section of this Chapter shall be subject to a civil infraction fine of five hundred dollars ($500.00) for the first offense and shall be guilty of a misdemeanor for any subsequent offense. Upon conviction they shall be subject to a fine of up to five hundred dollars ($500.00) or imprisonment for up to ninety (90) days or both.
(Ord. No. 2018-75, § 2, 12-3-19)

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Chapter 154

WATERWAYS*

Sec. 9.181. Definitions.
Sec. 9.182. Pollution.
Sec. 9.183. Obstructions.
Sec. 9.184. Encroachment.
Sec. 9.185. Gathering Clams.
Sec. 9.186. Bathing and Swimming.
Sec. 9.187. Fishing Prohibited.
Sec. 9.188. Life Preservers.
Sec. 9.189. Boats Prohibited at Sixth Street Bridge to Fourth Street Dam.
Sec. 9.190. Standing, Walking or Climbing Upon the Fourth Street Dam Prohibited.

*__Cross references—__Parks and public grounds, Title III; grading and soil erosion control, Ch. 143; flood plain construction, Ch. 144.

Sec. 9.181. Definitions.

In the interpretation of this Chapter the following definitions shall apply.

(1) *Boat* is any vessel or watercraft, other than a seaplane on the water, used or capable of being used for transportation on water, but shall not include any documented vessel, government owned vessel or vessel from any country other than the United States.

(2) *Waterway* is any waters, waterway, lake, river, canal or connecting waters within the boundaries of the City, and under its jurisdiction.

Sec. 9.182. Pollution.

No person shall put into the waters of any waterway or on the ice covering any of said waters, any filth of any description, or throw or deposit or permit to be deposited or placed in any of the waters of any waterway, or on ice covering said waters, any glass, cans or bottles, any metal object, rubbish, garbage, refuse, sewage, or any other substance likely to injure any person, fish, bird or animal, or cause any unsightly or unsanitary conditions, either in or upon said waters or on the shoreline adjacent thereto.

Cross references—Littering lakes, streams and fountains, § 9.99; sewage disposal system generally, Ch. 27.

Sec. 9.183. Obstructions.

No person shall place any obstruction, or permit the placing of any obstruction, within any waterway which would tend to endanger or impede navigation or the flow of such waterway. Any person offending against the provisions of this Section shall be liable to the City of Grand Rapids for all costs and expenses incurred by it in the removal of such obstruction, in addition to the punishment prescribed in Chapter 1.

Cross reference—General penalty, § 1.13.

Sec. 9.184. Encroachment.

No person shall fill any land or place any structure beyond the established dock lines of the City, or beyond the existing shoreline of the waterway where no dock line has been established.

Sec. 9.185. Gathering Clams.

No person shall engage in gathering clams from the bed of Grand River from Leonard Street Bridge north to the north limits of the City of Grand Rapids by means of a dredge, hooks or other methods that will disturb the sediment in the bottom of the river, or any vegetation growing therein.

Sec. 9.186. Bathing and Swimming.

(1) No person shall bathe, swim or enter the waters of Grand River, the canals on either side thereof, or any other public waterway within the limits of the City of Grand Rapids at any place, locality and time, except such as have been designated by an order of the City Manager; provided, however, that this Section shall not apply to any person whose trade, business or occupation requires him or her to so enter said waters.

(2) The City Manager shall in his or her discretion from time to time adopt regulations designating the places or localities and time in which bathing and swimming shall be lawful, and shall provide such guards and protection therefor as he or she shall deem expedient and proper.

Sec. 9.187. Fishing Prohibited.

No person shall catch, kill or attempt to catch any fish within, upon or adjacent to an area of the Grand River located between Sixth Street and I-196 having as its boundary on the north, the north line of Fourth Street extended easterly, and as its boundary on the south, a line sixty (60) feet south of the south face of the Fish Ladder and thirty (30) feet from the east face of the Fish Ladder and adjacent spectator viewing area on the west bank of the Grand River. No person shall engage in fishing within any area of the City of Grand Rapids or in the Grand River where signs have been posted prohibiting fishing. Such signs shall be placed within one hundred (100) feet of the bank along such prohibited area.
(Ord. No. 75-77, 8-19-75; Ord. No. 97-53, § 1, 11-18-97)

Sec. 9.188. Life Preservers.

Every person who shall be in or upon the Grand River for the purpose of fishing or attempt-

ing to catch fish during the hours between sunset in the evening and sunrise in the morning in any area of the City of Grand Rapids shall wear a life preserver or lifebelt or ring buoy or other device of this sort prescribed by the regulations of the Commandant of the United States Coast Guard. (Ord. No. 75-98, 11-25-75)

Sec. 9.189. Boats Prohibited at Sixth Street Bridge to Fourth Street Dam.

No person shall enter the water of the Grand River in any boat, canoe or other craft on the waters thereof in the area between the Sixth Street Bridge and the Fourth Street Dam for the purpose of fishing or attempting to catch fish. (Ord. No. 75-98, 11-25-75)

Sec. 9.190. Standing, Walking or Climbing Upon the Fourth Street Dam Prohibited.

No person shall stand, walk, or climb upon the Fourth Street Dam, or any appurtenance thereto, in the waters of the Grand River. (Ord. No. 79-68, 10-16-79)

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Chapter 155

URBAN AGRICULTURE*

Article 1. General Provisions

Sec. 9.191. Definitions and General Requirements.
Sec. 9.192. Cruelty to Animals.
Sec. 9.193. Poisoning Animals.
Secs. 9.194—9.200. Reserved.

Article 2. Bees

Sec. 9.201. Where Kept.
Sec. 9.202. Flight Path.
Sec. 9.203. Bee Permits.
Sec. 9.204. Violation to be a Municipal Civil Infraction.
Sec. 9.205. Applicability of the Property Maintenance Code.
Secs. 9.206—9.211. Reserved.

Article 3. Backyard Chickens

Sec. 9.212. Purpose and Findings.
Sec. 9.213. Chickens.
Sec. 9.214. Chicken Permits.
Sec. 9.215. Violation to be a Municipal Civil Infraction.
Sec. 9.216. Applicability of the Property Maintenance Code.

Article 4. Reserved

Secs. 9.217—9.230. Reserved.

*__Editor's note—__Ord. No. 2023-47, §§ 1, 2, adopted October 10, 2023, amended chapter 155 in its entirety to read as herein set out. Former chapter 155, §§ 9.191—9.194, 9.201—9.213, 9.217—9.222, pertained to animals, and derived from Ord. No. 2003-06, § 1, 1-28-03; Ord. No. 2015-13, § 1, 2-24-15; Ord. No. 2016-49, §§ 1—3, 7-26-16.

__Cross reference—__Shooting birds or animals, license required, § 9.176.

__State law references—__Authority to adopt animal control ordinance, MCL 287.290, MSA 12.541; Wildlife Conservation Act, MCL 300.251 et seq., MSA 13.1251 et seq.; crimes related to animals and birds, MCL 750.49 et seq., MSA 28.244 et seq.; cruelty to animals, MCL 752.21 et seq., MSA 28.161 et seq.

ARTICLE 1. GENERAL PROVISIONS

Sec. 9.191. Definitions and General Requirements.

(1) *Domestic Animals.* For purposes of this Chapter, "domestic animal" or "domestic animals" shall mean any animal that is not likely to bite without provocation and/or is not likely to cause death, maiming or illness of a human, including but not limited to the following: bird (caged), cat (domestic), chinchilla, ferret, dog (domestic), fish, lizard (non-venomous), snake (non-venomous), spider (non-venomous or non-poisonous).

(2) *Farm Animals.* For purposes of this Chapter, the term "farm animal" or "farm animals" shall mean bees that are kept, harbored or raised, or any horse, swine, cattle, sheep, goat, llama, chicken, goose, duck or turkey. The term "farm animal" or "farm animals" shall also mean any other animal raised for commercial profit or slaughter and shall include more than two breeder rabbits.

a. No farm animal shall be kept or allowed to be kept within any dwelling or dwelling unit.

b. Except for bees and chickens as provided below, no farm animal shall be kept or allowed to be kept within one hundred (100) feet of any dwelling or dwelling unit.

c. Except for bees, no farm animal shall be kept or allowed to be kept within one hundred (100) feet of any well, spring or stream.

d. Except for bees, no farm animal shall be kept or allowed to be kept within fifty (50) feet of any stormwater catch basin which is located on private property. For purposes of this Section, stormwater catch basins located within a public or private street shall not be counted.

(3) *Wild Animals.* Any animal that is not a domestic animal or farm animal, as defined by this Article, is a wild animal, and shall not be kept or allowed on any property in the City of Grand Rapids.

(4) *Care and Keeping of Animals.* If an occupant or owner keeps or allows animals within a dwelling, in a yard, in a structure, or upon a property, the occupant or owner shall remove any odorous or unsanitary condition. The property owner shall be responsible for the repair of any damage to the dwelling, structure or yard caused by the animals and shall be responsible for any unsafe condition.

(5) *Exemption for John Ball Zoo.* The requirements of this Chapter shall not apply to the John Ball Zoo.
(Ord. No. 2023-47, § 2, 10-10-23)

Sec. 9.192. Cruelty to Animals.

(1) No person shall cruelly treat or abuse any animal or bird.

(2) No person shall beat, kick, hit, bite, burn or in any other manner cause an animal to suffer needlessly.

(3) No person shall cause abusive injury to an animal.

(4) No person shall tease or entice a dog or other animal.

(5) No person shall give an animal any alcoholic beverage unless prescribed by a veterinarian.
(Ord. No. 2023-47, § 2, 10-10-23)

Sec. 9.193. Poisoning Animals.

No person shall throw or deposit any poisonous substance on any exposed public or private place where it endangers, or is likely to endanger, any animal or bird.
(Ord. No. 2023-47, § 2, 10-10-23)

Secs. 9.194—9.200. Reserved.

ARTICLE 2. BEES

Sec. 9.201. Where Kept.

No person shall keep, harbor or raise any bees in or upon any premises within the City unless in a hive or box located and kept:

(1) More than twenty-five (25) feet from any residence, hospital, sanitarium, school,

church, office building, store, hotel, apartment house, rooming house or any place of habitation; and

(2) Not less than five (5) feet from the edge of his or her own lot or property line and at least ten (10) feet from a public sidewalk where present; and

(3) Located only in the "rear yard" of the property, as that term is defined in Chapter 61 of this Code, known as the Zoning Ordinance and a minimum of twenty-five (25) feet from a front property line. The Planning Director may permit an alternate placement where a rear yard does not exist due to existing building placement or for properties that do not have a rear yard, providing that there are no detrimental effects on adjacent properties.

(4) Hives or Boxes - The maximum number of hives per lot shall be as follows:

a. Two (2) hives for a lot that is not greater than 11,000 square feet in area, and

b. Four (4) hives for a lot greater than 11,000 square feet but not greater than 22,000 square feet in area, and

c. Each hive or box shall have a maximum size of twenty (20) cubic feet.

(Ord. No. 2023-47, § 2, 10-10-23)

Sec. 9.202. Flight Path.

A flyway barrier of six feet in height shall be installed to shield any part of a property line that is within twenty-five (25) feet of a hive. The flyway barrier shall consist of a wall, fence, dense vegetation or a combination thereof and it shall be positioned to transect both legs of a triangle extending from an apex at the hive to each end point of the property line to be shielded.
(Ord. No. 2023-47, § 2, 10-10-23)

Sec. 9.203. Bee Permits.

Any person wanting to keep bees within the City shall first apply for and obtain a permit from the City Manager or his/her designee before that person can legally keep bees within the City. Regulations pertaining to permits shall be as follows:

(1) Any person applying for a permit to keep bees within the City shall submit a permit application on a form promulgated by the City Manager or his/her designee, and shall pay an application fee established by resolution of the City Commission.

(2) If the applicant is not the owner of the real property on which he or she wants to keep bees, the applicant must provide the written consent of the owner of the real property. Without such written consent, the permit application may not be granted.

(3) An initial permit shall be valid for a period of three (3) years.

a. If, in the judgment of the City Manager or his/her designee, the permittee has abided by all ordinance provisions and permit conditions, and has not created a nuisance to the owners or occupants of adjacent properties or the neighborhood, the permit may be renewed for an additional three (3) year period.

b. If the permittee has recorded or verified violations of ordinance provisions or permit conditions but is currently in compliance, the permit may be renewed for an additional one (1) year.

c. However, no permit issued pursuant to this ordinance shall remain valid past the date on which this ordinance either expires or is repealed, whichever is earlier.

(Ord. No. 2023-47, § 2, 10-10-23)

Sec. 9.204. Violation to be a Municipal Civil Infraction.

(1) No person shall keep bees or allow bees to be kept on real property under his or her control, unless a permit to keep bees is first obtained from the City in the manner provided for herein.

(2) A violation of this Article shall be a municipal civil infraction, punishable by a fine as established in Chapter 170 of this Code.
(Ord. No. 2023-47, § 2, 10-10-23)

Sec. 9.205. Applicability of the Property Maintenance Code.

A violation of this Article shall be subject to all of the enforcement mechanisms and provisions set forth in the Property Maintenance Code. However, so long as this Article shall remain in effect, its provisions regarding the keeping of bees shall supersede any conflicting provisions regarding the keeping of bees that may be set forth in local amendments to the Property Maintenance Code.
(Ord. No. 2023-47, § 2, 10-10-23)

Secs. 9.206—9.211. Reserved.

ARTICLE 3. BACKYARD CHICKENS

Sec. 9.212. Purpose and Findings.

The City having successfully permitted the keeping of backyard chickens as part of a two (2) year pilot program without significant complaints or administrative difficulty hereby permits the keeping of backyard chickens subject to this Chapter.
(Ord. No. 2023-47, § 2, 10-10-23)

Sec. 9.213. Chickens.

Chickens may be kept in the City with a valid Chicken Permit subject to the following conditions:

(1) Chickens may only be kept on a lot containing a single-family or two-family dwelling. No person shall allow chickens to be kept on a lot containing a multi-family dwelling.

(2) Chickens may only be kept on a lot which is at least three thousand eight hundred (3,800) square feet in size.

(3) Chickens may only be kept by an occupant of a dwelling unit located on the real property on which the chickens are kept.

(4) Chickens must be kept in and confined in a properly designed and constructed coop or chicken house, or a fenced and covered enclosure, which may be located only in the "rear yard" of the property, as that term is defined in Chapter 61 of this Code, known as the Zoning Ordinance. The Planning Director may permit an alternate placement where a rear yard does not exist due to existing building placement or for properties that do not have a rear yard, providing that there are no detrimental effects on adjacent properties.

(5) Each fenced and covered enclosure shall be designed with adequate yard space for each chicken, and the coop or chicken house and the fenced and covered enclosure combined shall not cover more than fifty (50) percent of the rear yard. Enclosures must be clean and resistant to predators and rodents.

(6) Each fenced and covered enclosure shall be located at least ten (10) feet from any lot line.

(7) No person shall keep or allow to be kept more than four (4) chickens on a lot which is less than 5,000 square feet in size.

(8) No person shall keep or allow to be kept more than six (6) chickens on a lot which is 5,000 square feet or greater in size.

(9) Chicken feed must be in rodent resistant and weatherproof containers.

(10) Chickens may not be butchered, slaughtered, or otherwise killed, for any reason or any purpose, on any real property on which chickens may be kept pursuant to this ordinance.

(11) The person keeping the chickens shall abide by all health and safety standards of the City's Property Maintenance Code.

(12) Roosters are expressly prohibited, regardless of the age or maturity of the bird.

(Ord. No. 2023-47, § 2, 10-10-23)

Sec. 9.214. Chicken Permits.

Any person wanting to keep chickens within the City shall first apply for and obtain a permit from the City Manager or his/her designee, before that person may legally keep chickens within the City. Regulations pertaining to permits shall be as follows:

(1) Any person applying for a permit to keep chickens within the City shall submit a permit application on a form promulgated by the City Manager or his/her designee and shall pay an application fee established by resolution of the City Commission.

(2) If the applicant is not the owner of the real property on which he or she wants to keep chickens, the applicant must provide the written consent of the owner of the real property. Without such written consent, the permit application may not be granted.

(3) The City Manager or his/her designee shall review the permit application in light of the following factors:

a. The number of chickens the applicant desires to keep;

b. The size of the lot on which chickens are proposed to be kept;

c. The adequacy of the applicant's plans for housing and confining the chickens; and

d. Other factors relevant to the applicant's particular circumstances.

(4) If the City Manager or his/her designee grants the request for the permit, he/she shall do so in writing, which writing shall state the property address at which chickens may be kept, as well as the number of chickens allowed to be kept, and any other conditions of the permit to keep chickens.

(5) If the City Manager or his/her designee denies the request for the permit, he/she shall do so in writing, which writing shall state the reasons for such denial.

(6) If the City Manager or his/her designee denies the request for the permit, the provisions of City Code Section 7.16 regarding appeals from license and permit denials shall apply.

(7) An initial permit shall be valid for a period of three (3) years.

a. If, in the judgment of the City Manager or his/her designee, the permittee has abided by all ordinance provisions and permit conditions and has not created a nuisance to the owners or occupants of adjacent properties or the neighborhood, the permit may be renewed for an additional three (3) year period.

b. If the permittee has recorded or verified violations of ordinance provisions or permit conditions but is currently in compliance, the permit may be renewed for an additional one (1) year.

c. However, no permit issued pursuant to this ordinance shall remain valid past the date on which this ordinance either expires or is repealed, whichever is earlier.

(8) Any permit may be suspended or revoked by the City Manager or his/her designee, by written notice to the permit holder, upon a finding that the permittee has violated applicable City ordinance provisions or permit conditions.

(9) If the City Manager or his/her designee suspends or revokes a permit, the provisions of City Code Section 7.14 regarding suspension and revocation of permits and licenses shall apply.

(10) A permit as described above is personal to the applicant. Such a permit may not be transferred to another individual. If ownership of the underlying real property on which the chickens are kept is transferred, the permit does not run with the land, and a person desiring to keep chickens on the property must apply for a new permit.

(Ord. No. 2023-47, § 2, 10-10-23)

Sec. 9.215. Violation to be a Municipal Civil Infraction.

(1) No person shall keep a chicken or allow a chicken to be kept on real property under his or her control, unless a permit to keep chickens is first obtained from the City in the manner provided for herein.

(2) A violation of this Article shall be a municipal civil infraction, punishable by a fine as established in Chapter 170 of this Code.
(Ord. No. 2023-47, § 2, 10-10-23)

Sec. 9.216. Applicability of the Property Maintenance Code.

A violation of this Article shall be subject to all of the enforcement mechanisms and provisions set forth in the Property Maintenance Code. However, so long as this Article shall remain in effect, its provisions regarding the keeping of chickens shall supersede any conflicting provisions regarding the keeping of chickens that may be set forth in local amendments to the Property Maintenance Code.
(Ord. No. 2023-47, § 2, 10-10-23)

ARTICLE 4. RESERVED

Secs. 9.217—9.230. Reserved.

Chapter 156

CURFEW*

Sec. 9.231. Minors Under Twelve.
Sec. 9.232. Minors Under Fifteen.
Sec. 9.233. Minors Under Seventeen.
Sec. 9.234. Aiding or Abetting Violation.
Sec. 9.235. Parents, Guardians, Etc.
Sec. 9.236. Juvenile Arrest Procedure.
Sec. 9.237. Parental or Guardian Neglect.
Secs. 9.238–9.240. Reserved.

*State law reference–Curfew, MCL 722.751 et seq., MSA 28.342(1) et seq.

Sec. 9.231. Minors Under Twelve.

No minor under the age of twelve (12) years shall loiter, idle, congregate, traverse or remain in or upon any public street, highway, alley or park between the hours of 10:00 p.m. and 6:00 a.m. unless the minor is accompanied by a parent or guardian, or some adult delegated by the parent or guardian to accompany the child.
(Ord. No. 67-10, 4-25-67; Ord. No. 70-57, 8-25-70)

Sec. 9.232. Minors Under Fifteen.

No minor under the age of fifteen (15) years shall loiter, idle, traverse, congregate of remain in or upon any public street, highway, alley or park between the hours of 11:00 p.m. and 6:00 a.m., except where the minor is accompanied by a parent or guardian, or some adult over the age of twenty-one (21) years delegated by the parent or guardian to accompany the minor child, or where the minor is upon an errand or other legitimate business directed by his or her parent or guardian.
(Ord. No. 67-10, 4-25-67; Ord. No. 70-57, 8-25-70)

Sec. 9.233. Minors Under Seventeen.

No minor under the age of seventeen (17) years shall loiter, idle, congregate, traverse or remain in or upon any public street, highway, alley or park between the hours of 12:00 midnight and 6:00 a.m., except where the minor is accompanied by a parent or guardian, or some adult over the age of twenty-one (21) years delegated by the parent or guardian to accompany the minor child, or where the minor is upon an errand or other legitimate business directed by his or her parent or guardian.
(Ord. No. 67-10, 4-25-67; Ord. No. 70-57, 8-25-70; Ord. No. 2013-28, § 1, 6-25-13)

Sec. 9.234. Aiding or Abetting Violation.

No person of the age of seventeen (17) years or over shall assist, aid, abet or encourage any minor under the age of seventeen (17) years to violate the provisions of Sections 9.231 and 9.232 or 9.233.
(Ord. No. 67-10, 4-25-67; Ord. No. 70-57, 8-25-70)

Sec. 9.235. Parents, Guardians, Etc.

No parent, guardian or other person having the legal care and custody of any minor under the age of seventeen (17) years shall knowingly allow, permit or encourage any such minor while in his or her legal custody to loiter, idle, congregate, traverse or remain in or upon any public street, highway, alley or park as prohibited in Sections 9.231, 9.232 or 9.233.
(Ord. No. 67-10, 4-25-67; Ord. No. 70-57, 8-25-70)

Sec. 9.236. Juvenile Arrest Procedure.

Arrests and prosecution of minors under the age of seventeen (17) years for violation of this Chapter shall be in accordance with Section 17 and the other provisions of Chapter XIIA (MCL 712A.1) of Act 288 of the Michigan Public Acts of 1939, as amended.
(Ord. No. 67-10, 4-25-67; Ord. No. 70-57, 8-25-70)

Sec. 9.237. Parental or Guardian Neglect.

No parent, guardian or other person having the legal care and custody of any minor under the age of seventeen (17) years shall fail to exercise a sufficient or reasonable control over the minor so as to prevent the minor from committing a violation of the State laws or City of Grand Rapids ordinances, including traffic violations, where said parent, guardian or other person had knowledge of the fact that said minor had previously committed three (3) or more violations of the statutes of the State of Michigan or the ordinances of the City of Grand Rapids, including traffic violations.
(Ord. No. 70-57, 8-25-70)

Secs. 9.238—9.240. Reserved.

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Chapter 157

ALCOHOLIC LIQUOR*

Sec. 9.241. Consumption in Public Places.
Sec. 9.242. False Representation as to Age.
Sec. 9.243. Uncapped Liquor in Passenger Compartment.
Sec. 9.244. False or Altered Identification.
Sec. 9.245. False Representation of Age to Gain Entry or to Acquire Alcohol.
Sec. 9.246. Furnishing to Minors.
Sec. 9.247. Definitions.
Sec. 9.248. Application for License and Payment of Fee.
Sec. 9.249. Establishments Open During Prohibited Hours of Sale.
Sec. 9.250. Standards for City Commission Recommended for Denial, Nonrenewal or Revocation of an Alcoholic Liquor License.
Secs. 9.251–9.280. Reserved.

*Cross references—Public intoxication, § 9.134; operating a motor vehicle while under the influence of intoxicating liquor, § 10.16.

State law reference—Liquor Control Act, MCL 436.1 et seq., MSA 18.971 et seq.

Sec. 9.241. Consumption in Public Places.

(1) It shall hereafter be unlawful for any person to consume alcoholic liquor in any public place in this City, or in any place to which the public is admitted, except those places which are properly licensed therefor by the Liquor Control Commission and then only the particular kind or style of alcoholic liquor which is licensed for sale on said premises, and the owner or operator of any such place shall be deemed to be a violator.
(Ord. No. 71-81, 12-28-71; Ord. No. 2014-55, § 1, 7-22-14)

Cross reference—Public intoxication, § 9.134.

Sec. 9.242. False Representation as to Age.

No person under twenty-one (21) years of age shall falsely represent himself or herself to be twenty-one (21) years of age or older to purchase, acquire or attempt to purchase or acquire for himself or herself, or for any other person, any alcoholic liquor.
(Ord. No. 80-64, 8-6-80)

Sec. 9.243. Uncapped Liquor in Passenger Compartment.

No person shall transport or possess any alcoholic liquor in a container which is open, uncapped or upon which the seal is broken within the passenger compartment of a vehicle upon any street or roadway or any other place open to the general public, including any area designated for the parking of motor vehicles, provided, that in vehicles not having a trunk or compartment separate from the passenger compartment any container which is open, uncapped or upon which the seal is broken may be permitted in a passenger compartment if such container is encased or enclosed so as to not be readily accessible to the occupants of such vehicle. This Section shall not apply to any chartered passenger vehicle licensed by the Michigan Public Service Commission.
(Ord. No. 74-6, 1-22-74)

State law reference—Similar provisions, MCL 436.34a.

Sec. 9.244. False or Altered Identification.

No person under twenty-one (21) years of age shall produce, supply or use false or altered identification to purchase, acquire or attempt to purchase or acquire any alcoholic liquor for himself or herself or for any other person.
(Ord. No. 66-31, 6-28-66; Ord. No. 67-46, 8-1-67; Ord. No. 71-81, 12-28-71; Ord. No. 80-64, 8-26-80)

Sec. 9.245. False Representation of Age to Gain Entry or to Acquire Alcohol.

No person shall make false representations as to his or her age or the age of another:

(1) In gaining entry or attempting to gain entry to any establishment which sells, serves or furnishes alcoholic liquor; or

(2) In obtaining or attempting to obtain any alcoholic liquor for himself or herself or for any other person.

(Ord. No. 71-81, 12-28-71; Ord. No. 72-10, 2-8-72; Ord. No. 80-64, 8-26-80)

Sec. 9.246. Furnishing to Minors.

(1) No person shall knowingly sell, give, furnish or offer to sell, give or furnish alcoholic liquor to any person who shall not have attained the age of twenty-one (21) years.

(2) No person engaged in the business of selling alcoholic liquor within an establishment licensed therefor by the State of Michigan, or his or her designated agent or employee, shall give, furnish or sell, or offer to give, furnish or sell alcoholic liquor to any person who shall not have attained the age of twenty-one (21) years except upon authority of and pursuant to the prescription of a duly licensed physician. Provided, that in any criminal prosecution brought for violation of this subsection proof may be introduced in defense of said prosecution that prior to delivery of any alcoholic liquor, the defendant demanded and was shown a valid motor vehicle operator's license or State of Michigan identification card of the person purchasing the alcoholic liquor which license or identification card indicated the purchaser was twenty-one (21) years of age or older.
(Ord. No. 66-31, 6-28-66; Ord No. 70-35, 6-2-70; Ord. No. 71-81, 12-28-71; Ord. No. 79-32, 6-5-79)

State law reference—Similar provisions, MCL 436,33.

Sec. 9.247. Definitions.

For purposes of this Chapter, the following definitions shall apply:

(1) The term "alcoholic liquor" shall include any spirituous, vinous, malt or fermented liquor, liquids and compounds, whether or not medicated, proprietary, patented, and by whatever name called, containing one-half of one (0.5) percent or more of alcohol by volume, which are fit for use for beverage purposes.

(2) The word "alcohol" shall mean the product of distillation of fermented liquid, whether rectified or diluted with water or not, whatever may be the origin thereof. It does not mean ethyl and/or industrial alcohol, diluted or not, that has been denatured or otherwise rendered unfit for beverage purpose.

(Ord. No. 66-31, 6-28-66)

Sec. 9.248. Application for License and Payment of Fee.

(1) Where State law requires the approval of the local legislative body for the issuance of an alcoholic liquor license or for the transfer, change of classification or other modification of an alcoholic liquor license, the person requesting the issuance, transfer, change or modification of the license shall make an application for such action by the City Commission by filing an application with the City Clerk.

(2) Upon the filing of an application as provided for in this Section, a fee as specified in Chapter 92 shall be paid.

(Ord. No. 82-43, 5-4-82)

Cross reference—Liquor license fee, § 7.48(34).

Sec. 9.249. Establishments Open During Prohibited Hours of Sale.

Any licensee licensed by the Michigan Liquor Control Commission to sell alcoholic beverages who shall remain open for business during the hours of any day when such sales are prohibited, shall at all times during such hours of prohibited sales, securely lock, remove from the retail sales area, or otherwise secure any alcoholic beverages so as to prevent their sale or possible sale during such hours. The licensee shall be exempt from this requirement during any such prohibited hours in which a person employed solely as a security guard is present.

(Ord. No. 78-43, 6-20-78

Sec. 9.250. Standards for City Commission Recommended for Denial, Nonrenewal or Revocation of an Alcoholic Liquor License.

Pursuant to the authority granted by Section 17 of Act No. 8 of the Public Acts of 1933, Extra Session (MCL 436.17), as amended, the City Commission may recommend to the Liquor Control Commission denial of an application for a new alcoholic liquor license, denial of the transfer of location of an existing license, denial of the renewal of an existing license, or revocation of an existing license. Prior to making any such recommendation for the denial of transfer, the denial of renewal or the revocation of any such existing license, the City Commission shall hold a public hearing, after due notice to the licensee of the hearing and the reasons for the proposed recommendations, at which hearing the licensee may present evidence and testimony and confront adverse witnesses. The licensee shall be provided with a written statement of the findings of the City Commission based upon the evidence presented.

(1) Any recommendation to the Liquor Control Commission by the City Commission pursuant to this Section shall be based upon a finding that the applicant or the licensee has engaged in, or has permitted to occur on or involving the licensed premises, any one or more of the following:

(a) The consumption of spirits, if licensed to sell only beer or wine or both beer and wine.

(b) Dancing or live entertainment open to the public, with or without an admission charge, unless holding a valid dance or dance-entertainment permit.

(c) Any disorderly conduct or action which disturbs the peace and good order of the neighborhood.

(d) Any incidents of prostitution, solicitation for prostitution, or larceny.

(e) Any gambling activity or the placing or using of any gambling apparatus or paraphernalia therein.

(f) Any possession, sale or use of any illegal drug or controlled substance.

(g) Use of interior lighting which is insufficient to enable a person with average vision to clearly see all persons within the premises.

(h) Any violation of the Building Code of the City of Grand Rapids.

(i) Any violation of the Fire Code of the City of Grand Rapids.

(j) Any violation of any other provision of the City Code or State or Federal law which is designed to protect the public health, safety or welfare or any rule or regulation adopted pursuant to any such provision of this Code or of such State or Federal law.

(k) Serving alcoholic beverages to anyone at any time or in any manner which is prohibited by the State liquor law or any rule or regulation promulgated pursuant to said law.

(Ord. No. 85-20, § 1, 4-9-85)

State law reference—Liquor control act, MCL 436.1 et seq., MSA 18.971 et seq.

Secs. 9.251—9.280. Reserved.

Chapter 158

RESERVED*

*__Editor's note__—Ord. No. 2014-08, § 1, adopted March 11, 2014, repealed §§ 9.281—9.290, which pertained to consumer protection. See Code Comparative Table for complete derivation.

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Chapter 159

FIRE PREVENTION*

Sec. 9.331. Adoption of International Fire Code.
Sec. 9.332. Conflict with Other Laws.
Sec. 9.333. Changes in Code.
Sec. 9.334. Permits and Fees.
Sec. 9.335. Reports.
Secs. 9.336—9.360. Reserved.

*__Editor's note—__Ordinance No. 2005-61, § 1, adopted Aug. 9, 2005, amended Chapter 159 in its entirety to read as herein set out. Former Chapter 159 pertained to similar subject matter, as enacted by the 1965 codification (Ord. No. 1688, adopted May 4, 1965), as amended. See the Code Comparative Table for a detailed analysis of repeal and inclusion.

__Cross references—__Fire Department, § 1.91 et seq.; emergency management, Ch. 13; City Water System, Ch. 26, general health regulations, Ch. 71; investigative authority of Fire Chief re licensing of certain businesses, § 7.9; license fee for explosives, § 7.48(17), for fire extinguishers, sales and installation, § 7.48(18), for fireworks, § 7.48(20), for flammable liquids, § 7.48(21); gasoline station, Ch. 93; ambulance service, Ch. 106, building regulations, Ch. 131; Electrical Code, Ch. 133; Mechanical Code, Ch. 134, Building Maintenance Code, Ch. 135; Property Maintenance Code, Ch. 140; air pollution control, § 9.31 et seq.; false intrusion and holdup alarms, Ch. 163.

Sec. 9.331. Adoption of International Fire Code.

The City of Grand Rapids, in order to regulate and govern the safeguarding of life and property from fire or explosion hazards, adopts the International Fire Code, 2021 edition, as published by the International Code Council, including appendix B, D, F, I, J and N of said International Fire Code.

The purpose and intent of this code is to prescribe minimum requirements consistent with nationally recognized standards for providing a reasonable level of safety to life and property and for protection from the hazards of fire, explosion, or dangerous conditions arising from the storage, handling and use of hazardous substances, materials and devices and from conditions hazardous to life or property related to the occupancy of buildings and premises. This code shall also provide for the issuance of certain permits and collection of delineated fees.

All matters within the intent of this code and not covered by this code shall comply with the referenced standards listed in the International Fire Code, 2021 edition, as published by the International Code Council (including Appendix Chapters B, D, F, I, J and N).

At least three (3) copies of this code have been and are now filed in the City Clerk's office except as otherwise specifically stated herein, the provisions of such Code are hereby adopted and incorporated by reference as though fully set out at length herein, and the provisions thereof shall be controlling within the City of Grand Rapids.
(Ord. No. 2006-36, § 1, 6-13-06; Ord. No. 2014-24, § 1, 5-13-14; Ord. No. 2018-58, § 1, 9-18-18; Ord. No. 2024-01, § 1, 1-9-24)

Sec. 9.332. Conflict with Other Laws.

Should any provision of the City Code or State law require a permit or license covering the same operations, business, activity or material for which the Fire Code requires a permit, such City Code provision or State law shall prevail and it shall be necessary to obtain the permit as required by the Fire Code.

Should any new construction requirements in the current edition of Michigan Building Code conflict with construction requirements in the Fire Code, the Michigan Building Code shall prevail.
(Ord. No. 2012-34, § 1, 6-19-12, eff. 7-1-12; Ord. No. 2014-24, § 1, 5-13-14)

Sec. 9.333. Changes in Code.

The following sections and subsections of the 2021 International Fire Code are hereby amended or deleted as set forth and additional sections and subsections are added as indicated. Subsequent section numbers used in this Chapter shall refer to the like numbered sections of the International Fire Code, 2021 edition.

(1) *Section 101.1.* 101.1 Title. These regulations shall be known as the Fire Code of City of Grand Rapids, herein referred to as "this code".

(2) *Section 105.5.32.* 105.6.32 Mobile food preparation vehicles. A license is required for mobile food preparation vehicles as set forth in the City's Mobile Food Business Ordinance, Chapter 74 of Title VI of the City's Code of Ordinances.

(3) *Section 105.5.34.* Deleted.

(4) *Section 111.1.* 111.1 Board of Appeals established. In order to hear and decide appeals of orders, decisions or determinations made by the Fire Code Official relative to the application and interpretation of this code there shall be a Board of Appeals. The Board of Appeals shall be the Construction Code Board of Appeals of the City of Grand Rapids. All appeals shall be governed by the procedures for appeals to the Construction Code Board of Appeals.

(5) *Section 112.4.* 112.4 Violation Penalties. Persons who shall violate a provision of this code or shall fail to comply with any of the requirements thereof or who shall erect, install, alter, repair or to do work in violation of the approved construction documents or directive of the fire code official, or of a permit or certificate used

under provisions of this Chapter, shall be guilty of a municipal civil infraction for the first offense. All subsequent offenses shall be a misdemeanor punishable by a fine of up to $500, or imprisonment for up to 90 days, or both such fines and imprisonment. Each day that a violation continues after due notice has been served shall be deemed a separate offense and a separate violation subject to enforcement action.

(6) *Section 111.5.* 111.5 Posting of Official Fire Department Notices. Whenever it is determined by the Fire Official that a building is unsafe for public occupancy or public safety personnel, the Fire Official or other personnel may evacuate and/or post a notice, placard, or sign on the building indicating the building's unsafe condition.

(7) *Section 113.4.* 113.4 Failure to Comply. Any person who shall continue any work after having been served with a stop work order, except such work as that person is directed to perform to remove a violation or unsafe condition, shall be guilty of a misdemeanor.

(8) *Section 202* Definitions. Mobile Food Preparation Vehicles. Mobile Food Preparation Vehicles shall have the same meaning as Mobile Food Vending Business under Section 6.102 of Chapter 74 of Title VI of the City's Code of Ordinances.

(9) *Section 307.* Deleted.

(10) *Section 319.1.* 319.1 General. Mobile food preparation vehicles shall comply with this section.

(11) *Section 319.2.* 319.2 License required. A license is required for mobile food preparation vehicles as set forth in the City's Mobile Food Business Ordinance, Chapter 74 of Title VI of the City's Code of Ordinances.

(12) *Section 507.5.1.* 507.5.1 Where Required. Where a portion of the facility or building hereafter constructed or moved into or within the jurisdiction is more than 300 feet from a hydrant on a fire apparatus access road, as measured by an approved route around the exterior of the facility or building, on-site fire hydrants and mains shall be provided where required by the fire code official. Provided however, that for group R-3 occupancies the distance requirement shall be 400 feet.

(13) *Section 901.6.3.* 901.6.3. Records. Records of all system inspections, tests and maintenance required by the referenced standards and/or City Code shall be maintained on the premises for a minimum of three years and shall be copied by the inspection, testing, and/or maintenance contractor to the fire code official using a system as specified by him or her.

(14) *Section 903.2.1.1.* 903.2.1.1 Group A-1. An automatic sprinkler system shall be provided throughout stories containing Group A-1 occupancies and throughout all stories from the Group A-1 occupancy to and including the levels of exit discharge serving that occupancy where one of the follow conditions exists:

1. The fire area exceeds 12,000 square feet (1115 m^2).
2. The fire area has an occupant load of 299. During special events and holidays, if the establishment assigns an existing employee or security to conduct fire watch, then the establishment may increase capacity. Fire inspectors will provide free inspections and training related to capacity requests.
3. The fire area is located on a floor other than a level of exit discharge serving such occupancies.
4. The fire area contains a multiple-theater complex.

(15) *Section 1103.5.1* Deleted.

(16) *Section 1103.7.5.1.* 1103.7.5.1 Group R-1 hotel and motel manual fire alarm system. A manual fire alarm system that activates the occupant notification system in

accordance with section 907.5 shall be installed in existing Group R-1 hotels and motels more than one story in height or with more than 20 sleeping units. Fire Prevention will inspect and install smoke alarms in each room and interior egress area to ensure occupant safety. This section shall have a phased adoption and be completed by 2028. During this period, funding from state and local sources shall be sought to offset costs.

Exceptions:

1. A manual fire alarm system is not required in buildings less than two stories in height where all sleeping units, attics and crawl spaces are separated by 1-hour fire resistance-rated construction and each sleeping unit has direct access to a public way, egress court or yard.
2. A manual fire alarm system is not required in buildings not more than three stories in height with not more than 20 sleeping units and equipped throughout with an automatic sprinkler system installed in accordance with Section 903.3.1.1 or 903.3.1.2.
3. Manual fire alarm boxes are not required throughout the building where the following conditions are met:
   - 3.1. The building is equipped throughout with an automatic sprinkler system installed in accordance with Section 903.3.1.1 or 903.3.1.2.
   - 3.2. The notification appliances will activate upon sprinkler water flow.
   - 3.3. Not less than one manual fire alarm box is installed at an approved location.

(17) *Section 1104.1.* 1104.1 General. Means of egress in existing buildings shall comply with the minimum egress requirements when specified in Table 1103.1 as further enumerated in Sections 1104.2 through 1104.24, and the building code that applied at the time of construction. Where the provisions of this chapter conflict with the building code that applied at the time of construction, the most restrictive provision shall apply. Existing buildings that were not required to comply with a building code at the time of construction shall comply with the minimum egress requirements when specified in Table 1103.1 as further enumerated in Sections 1104.2 through 1104.24.

Exception: Means of egress conforming to the requirements of the building code under which they were constructed shall be considered as complying means of egress if, in the opinion of the fire code official, they do not constitute a distinct hazard to life.

(18) *Section 1104.25.* 1104.25 Egress path markings. Existing high-rise buildings of Group A, B, E, I, M and R-1 occupancies shall be provided with luminous egress path markings in accordance with Section 1025 by July 1, 2024.

Exception: Open, unenclosed stairwells in historic buildings designated as historic under a state or local historic preservation program.

(19) *Section 3305.5.1.* 3305.5.1 Fire watch during construction. A fire watch shall be provided during nonworking hours for new construction that exceeds 40 feet (12 192 mm) in height above the lowest adjacent grade at any point along the building perimeter, for new multistory construction with an aggregate area exceeding 50,000 square feet (4645 m^2) per story or as required by the fire code official. In addition to traditional fire watch, security personnel or remotely monitored detectors is allowed to ensure early notification of fires in large buildings under construction.

(20) *Section 5704.2.9.6.1.* 5704.2.9.6.1 Locations where above ground tanks are prohibited. New bulk plants for storage

of Class I and II liquids in above ground tanks outside of buildings are permitted only in areas zoned SD-IT, unless the Fire Code Official modifies this requirement in writing.

All above ground storage tanks shall comply with the provisions of NFPA 30, Flammable and Combustible Liquids, the most current edition.

(21) *Section 5706.2.4.4.* 5706.2.4.4 Locations where above ground tanks are prohibited. The storage of Class I and Class II liquids in above ground storage tanks is permitted only in areas zoned SD-IT, unless the Fire Code Official modifies this requirement in writing.

(22) *Section 5806.2.* 5806.2 Limitations. The storage of flammable cryogenic fluids in stationary containers is permitted only in areas zoned SD-IT, unless the Fire Code Official modifies this requirement in writing.

(23) *Section 6104.2.* 6104.2 Maximum capacity within established limits. Within the limits established by law restricting the storage of liquefied petroleum gas for the protection of heavily populated or congested areas, the aggregate capacity of any one installation shall not exceed a water capacity of 500 gallons or two hundred ten pounds gas capacity.

Exception: In particular installations this capacity limit shall be determined by the Fire Code Official, after consideration of special features such as topographical conditions, nature of occupancy, and proximity to buildings, capacity of proposed LP-gas containers, degree of fire protection to be provided and capabilities of the local fire department. The Fire Code Official may require plans to be submitted prior to allowing an increased capacity limit.

(24) *Section J101.1.* J101.1 Scope. Where required by the Fire Code Official due to the size, height, complex layout, fire protection features, or use of a structure, or due to historic response activity, new and existing buildings shall have a building information sign(s) that comply with Sections J101.1.1 through J101.7.

Exceptions:

1. Group U occupancies.
2. One- and two-family dwellings.

(25) *Section J101.8.* J101.8 Sign classification maintenance, building information. Sign maintenance shall comply with each of the following:

1. Fire departments in the jurisdiction shall define the designations to be placed with the sign.
2. The owner of a building shall be responsible for the maintenance and updates to the sign in accordance with fire department designations.

(Ord. No. 2014-24, § 1, 5-13-14; Ord. No. 2018-58, § 2, 9-18-18; Ord. No. 2024-01, § 2, 1-9-24)

Sec. 9.334. Permits and Fees.

The fees required for the issuance or granting of any permit, certification, inspections services, other Fire Department operational fees, and collection services fees, as charged by the City Treasurer, shall be established from time to time by appropriate City Commission Resolution. (Ord. No. 2014-24, § 1, 5-13-14)

Sec. 9.335. Reports.

The following reports are required as designated below:

INSPECTION REPORT—ADMINISTRATIVE

Automatic Fire-Suppression Systems. An annual inspection report is required for an automatic fire-extinguishing system.
Fire Alarm and Detection Systems and Related Equipment. An annual inspection report is required for fire alarm and detection systems and related equipment.
Hood Suppression Systems and Related Equipment. A semi-annual inspection report is required for hood suppression systems and related equipment.

Life Safety System. An annual inspection report is required for life safety systems such as rolling fire doors, smoke evacuation systems, and smoke dampers.
Inspection Reports. Inspection due dates are based on a fixed date as assigned by the Fire Department. Annual inspection reports are due yearly by the assigned date. Semi-annual inspection reports are due twice a year by the assigned dates.

(Ord. No. 2014-24, § 1, 5-13-14)

Secs. 9.336—9.360. Reserved.

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Chapter 160

DISCRIMINATION IN REAL PROPERTY TRANSACTIONS*

Sec. 9.361. Findings of Fact.
Sec. 9.362. Policy.
Sec. 9.363. Definitions.
Sec. 9.364. Discriminatory Practices.
Sec. 9.365. Exemptions.
Sec. 9.366. Discriminatory Financial Practices.
Sec. 9.367. Blockbusting.
Sec. 9.368. Religious Institutions.
Sec. 9.369. Elderly Housing.
Sec. 9.370. False or Misleading Statements Prohibited.
Sec. 9.371. Period of Limitations.
Secs. 9.372—9.375. Reserved.

*__Editor's note—__Ord. No. 2015-60, § 1, adopted October 13, 2015, repealed the former Ch. 160, §§ 9.361—9.371, and enacted a new Ch. 160 as set out herein. The former Art. Ch. 160 pertained to similar subject matter. See Code Comparative Table for complete derivation.

__Cross reference—__Property Maintenance Code, Ch. 140.

__State law reference—__See Elliot-Larsen Civil Rights Act, MCL 37.2501 et seq.

Sec. 9.361. Findings of Fact.

(1) That the population of the City of Grand Rapids consists of people of nearly every race, color, religion, ancestry and national origin, of varying ages and genders, of married and non-married persons, of disabled and nondisabled persons, and of those receiving various sources of lawful income including public assistance. Many of these persons are compelled to live in circumscribed areas, under substandard, unhealthy, unsafe, unsanitary and overcrowded living conditions, at least in part because of discrimination in the sale, lease, rental and financing of housing.

(2) That these conditions have substantially increased mortality, disease, crime, vice and juvenile delinquency, fires and risk of fires, inter-group tensions and other evils, all of which is detrimental to the public health, safety and general welfare of the City of Grand Rapids.

(3) That the harmful effects produced by discrimination in housing increase the cost of government and reduce the public revenues, thus imposing financial burdens upon the public for the relief and amelioration of the conditions so created.

(4) That discrimination in housing adversely affects the continued redevelopment, renewal, growth and progress of the City of Grand Rapids.
(Ord. No. 2015-60, § 1, 10-13-15)

Sec. 9.362. Policy.

It is hereby declared to be the policy of the City of Grand Rapids, in the exercise of its police power for the protection of the public health, safety and general welfare, for the maintenance of business and good government, and for the promotion of the City's trade, commerce and manufacture, to assure equal opportunity to all persons to live in adequate housing facilities regardless of race, color, creed, religion, national origin, ancestry, age, gender, disability, marital status, height, weight, sexual orientation, gender identity, source of lawful income or public assistance recipient status, and to that end, prohibit discrimination in housing.
(Ord. No. 2015-60, § 1, 10-13-15)

Sec. 9.363. Definitions.

For the purposes of this Chapter:

(1) *Real property* includes buildings, structures, real estate, lands, tenements, leaseholds, interests in real estate cooperatives, condominiums, and hereditaments, corporeal and incorporeal, or any interest therein.

(2) *Real estate transaction* includes the sale, exchange, rental or lease of real property.

(3) *Housing accommodation* includes any improved or unimproved real property, or part thereof, which is used or occupied, or is intended, arranged or designed to be used or occupied, as the home or residence of one (1) or more individuals.

(4) *Real estate broker or salesperson* means a person, whether licensed or not, who, for or with the expectation of receiving a consideration, lists, sells, purchases, exchanges, rents or leases real property, or who negotiates or attempts to negotiate any of these activities, or who holds himself or herself out as engaged in these activities, or who negotiates or attempts to negotiate a loan secured or to be secured by mortgage or other encumbrance upon real property, or who is engaged in the business of listing real property in a publication; or a person employed by or acting on behalf of any of these.

(5) *Family* means a person living alone, or two (2) or more persons customarily living together as a single housekeeping unit in a dwelling unit as distinguished from a group occupying a hotel, club, religious or institutional building, boarding or lodging house, or fraternity or sorority house.

(6) *Disabled* or *Disability status* means with respect to a person:

a. A physical or mental impairment which substantially limits one (1) or more of such person's major life activities; or

b. A record of having such an impairment or being regarded as having such an impairment; or

c. A disability, as defined in a. or b. above, if the handicap is one affecting a person residing in or using, or intending to reside in or use, the real property subject to this Chapter, or any person related to or associated with the person engaging in the real estate transaction.

(7) *Familial status* means one (1) or more individuals (who have not attained the age of eighteen (18) years) being domiciled with:

a. A parent or another person having legal custody of such individual or individuals; or

b. The designee or such parent or other person having such custody, with the written permission of such parent or other person.

c. The protections afforded against discrimination on the basis of familial status shall apply to any person who is pregnant or is in the process of securing legal custody of any individual who had not attained the age of eighteen (18) years.

(8) *Elderly* means a person who is at least sixty-two (62) years of age.

(9) *Source of lawful income* means consistent income derived from wages, social security, supplemental security income, all forms of Federal, State or local assistance payments or subsidies, Section 8 assistance, child support, alimony and public assistance which can be verified and substantiated.

(Ord. No. 2015-60, § 1, 10-13-15)

Sec. 9.364. Discriminatory Practices.

It shall be unlawful for an owner, a real estate broker or salesperson, or any other person, because of race, color, creed, religion, national origin, ancestry, age, gender, disability, marital status, height, weight, sexual orientation, gender identity, source of lawful income or public assistance recipient status:

(1) To refuse to engage in a real estate transaction with a person;

(2) To discriminate against a person in the terms, conditions or privileges of a real estate transaction or in the furnishing of facilities or services in connection therewith;

(3) To refuse to receive or to fail to transmit a bona fide offer to engage in a real estate transaction from a person;

(4) To refuse to negotiate for a real estate transaction with a person;

(5) To represent to a person that real property is not available for inspection, sale, rental or lease when, in fact, it is so available, or to intentionally fail to bring a property listing to the person's attention, or to refuse to permit the person to inspect real property;

(6) To print, circulate, post or mail or cause to be so published a statement, advertisement or sign, or to use a form of application for a real estate transaction, or to make a record or inquiry in connection with a prospective real estate transaction, which indicates, directly or indirectly, an intent to make a limitation, specification, or discrimination with respect thereto; or

(7) To offer, solicit, accept, use or retain a listing of real property with the understanding that a person may be discriminated against in a real estate transaction or in the furnishing of facilities or services in connection therewith.

(Ord. No. 2015-60, § 1, 10-13-15)

Sec. 9.365. Exemptions.

The provisions of Section 9.364 do not apply:

(1) To the rental of a housing accommodation in a building which contains housing accommodations for not more than two (2) families living independently of each

other, if the lessor or a member of his or her family resides in one (1) of the housing accommodations; or

(2) To the rental of a room or rooms in a single dwelling unit by an individual if he or she or a member of his or her family resides therein.

(Ord. No. 2015-60, § 1, 10-13-15)

Sec. 9.366. Discriminatory Financial Practices.

It shall be unlawful for a person to whom application is made for financial assistance in connection with a real estate transaction or for the construction, rehabilitation, repair, maintenance or improvement of real property, or a representative of such a person:

(1) To discriminate against the applicant because of race, color, creed, religion, national origin, ancestry, age, gender, disability, marital status, height, weight, sexual orientation, gender identity, source of lawful income or public assistance recipient status.

(2) To use a form of application for financial assistance or to make or keep a record or inquiry in connection with applications for financial assistance which indicates, directly or indirectly, an intent to make a limitation, specification or discrimination as to race, color, religion, or national origin.

(Ord. No. 2015-60, § 1, 10-13-15)

Sec. 9.367. Blockbusting.

It shall be unlawful for a person, for the purpose of inducing a real estate transaction from which he or she may benefit financially:

(1) To represent that a change has occurred or will or may occur in the composition with respect to race, color, creed, religion, national origin, ancestry, age, gender, disability, marital status, height, weight, sexual orientation, gender identity, source of lawful income or public assistance recipient status of the owners or occupants in the block, neighborhood or area in which the real property is located; or

(2) To represent that this change will or may result in the lowering of property values, an increase in criminal or antisocial behavior, or a decline in the quality of schools in the block, neighborhood or area in which the real property is located.

(Ord. No. 2015-60, § 1, 10-13-15)

Sec. 9.368. Religious Institutions.

It shall not be unlawful for a religious institution or organization or a charitable or educational organization operated, supervised or controlled by a religious institution or organization to give preference to members of the same religion in a real property transaction when the property is to be used for religious, charitable or educational purposes.

(Ord. No. 2015-60, § 1, 10-13-15)

Sec. 9.369. Elderly Housing.

It shall not be unlawful for a property owner to give preference to elderly persons in the rental of housing accommodation(s) when the proposed rental accommodation(s) is located in a building which contains housing accommodations for more than one (1) family and all rental units will be occupied by elderly persons.

(Ord. No. 2015-60, § 1, 10-13-15)

Sec. 9.370. False or Misleading Statements Prohibited.

It shall be unlawful for any person, firm or corporation to knowingly or intentionally present false or misleading statements to the authorities charged with the enforcement of this Chapter or to sign a complaint for violation of this Chapter, based upon false or misleading information.

(Ord. No. 2015-60, § 1, 10-13-15)

Sec. 9.371. Period of Limitations.

Complaints of this Chapter shall be in writing to the City Attorney not later than one hundred eighty (180) days after the commission of the offense(s).
(Ord. No. 2015-60, § 1, 10-13-15)

Secs. 9.372—9.375. Reserved.

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Chapter 161

CIVIL EMERGENCY*

Sec. 9.376. Definitions.
Sec. 9.377. Proclamation.
Sec. 9.378. Curfew.
Sec. 9.379. Orders.
Sec. 9.380. When Effective.
Sec. 9.381. Termination.
Sec. 9.382. Violation of Orders, Rules or Regulations.
Secs. 9.383–9.389. Reserved.

*Cross reference–Emergency management, Ch. 13.
State law reference–Emergency Preparedness Act, MCL 30.401 et seq., MSA 4.824(11) et seq.

Sec. 9.376. Definitions.

As used in this Chapter:

(1) A *civil emergency* is hereby defined to be:

(a) A riot or unlawful assembly characterized by the use of actual force or violence or any threat to use force if accompanied by immediate power to execute by three (3) or more persons acting together without authority of law; or

(b) Any mob action or other civil disobedience causing danger of injury to or damages to persons or property; or

(c) Any natural disaster or manmade calamity including flood, conflagration, cyclone, tornado, earthquake or explosion within the corporate limits of the City resulting in the death or injury of persons or the destruction of property to such an extent that extra-ordinary measures must be taken to protect the public health, safety and welfare.

(2) *Curfew* is hereby defined as a prohibition against any person or persons walking, running, loitering, standing or motoring upon any alley, street, highway, public property or vacant premises within the corporate limits of the City, excepting persons officially designated to duty with reference to said civil emergency.

(Ord. No. 68-62, 9-10-68)

Sec. 9.377. Proclamation.

When, in the judgment of the Mayor, a civil emergency as defined herein is deemed to exist, he or she may forthwith proclaim in writing the existence of a state of civil emergency. In event of the Mayor's absence or inability to act, the President of the City Commission shall have the power to proclaim a state of civil emergency and to enter any order that the Mayor might enter.

(Ord. No. 68-62, 9-10-68)

Cross references—Declaring a state of emergency, § 1.571; declaring state of disaster, § 1.572.

Sec. 9.378. Curfew.

After proclamation of a state of civil emergency by the Mayor, he or she may order a general curfew applicable to such geographical areas of the City or to the City as a whole, as he or she deems advisable, and applicable during such hours of the day or night as he or she deems necessary in the interest of the public safety and welfare. Said curfew order may also provide that it shall not be applicable to any person who, upon trial charged with a violation of the curfew order, submits competent evidence that at the time of his or her arrest he or she was going to or from his or her place of employment by the most direct route, within a period of not exceeding one hour immediately preceding or immediately following the hours of employment. In the trial of any prosecution, the burden of proof shall be upon a person claiming an exception under this provision. Said curfew order may also provide that it shall not be applicable to any person who secures a consent of the Superintendent of Police or his or her agent for specific traveling, and who at the time of arrest is traveling within the provisions of the Superintendent's consent. In the trial of any prosecution, the burden of proof shall be upon the person claiming an exception under this provision.

(Ord. No. 68-62, 9-10-68)

Cross reference—Curfew, Ch. 156.

Sec. 9.379. Orders.

After proclamation of a state of civil emergency, the Mayor may also, in the interest of public safety and welfare, make any or all of the following orders:

(1) Order the closing of all retail liquor stores.

(2) Order the closing of all beer taverns.

(3) Order the closing of all private clubs or portions thereof wherein the consumption of intoxicating liquor and or beer is permitted.

(4) Order the discontinuance of the sale of alcoholic beverages or liquor.

(5) Order the discontinuance of selling, distributing or giving away any gasoline or other liquid flammable or combustible products.

(6) Order the discontinuance of selling, distributing or giving away gasoline or other liquid flammable or combustible products in any container other than a gasoline tank properly affixed to a motor vehicle.

(7) Order the closing of gasoline stations and other establishments, the chief activity of which is the sale, distribution or disposing of liquid flammable or combustible products.

(8) Order the discontinuance of selling, distributing, dispensing or giving away of any firearms or ammunition of any character whatsoever.

(9) Order the closing of any or all establishments or portions thereof, the chief activity of which is the sale, distribution, dispensing or giving away of firearms and/or ammunition.

(10) Order that the removal of gasoline from the gasoline tank of any motor vehicle for any purpose whatsoever shall be unlawful.

(11) Order that it shall be unlawful for any person to participate in, or be present with, a group of three (3) or more persons gathered anywhere within the emergency area, unless permission has been granted by the Superintendent of Police or his or her duly authorized agent.

(12) Order that it shall be unlawful for any person to open or operate any place of amusement.

(13) Order and authorize the Superintendent of Police or his or her duly authorized agent to use such force and control as may be necessary to prohibit unnecessary and prohibited traffic within the emergency area.

(14) Issue such other orders as are imminently necessary for the protection of life and property.

Such orders may be amended or rescinded by the Mayor during the pendency of the state of civil emergency, but shall cease to be in effect upon termination of the state of civil emergency, or upon a proclamation by the Mayor that a state of civil emergency no longer exists.
(Ord. No. 68-62, 9-10-68)

Sec. 9.380. When Effective.

The proclamation of a state of civil emergency and orders provided for in this Chapter shall become effective upon their issuance and dissemination to the public by appropriate news media.
(Ord. No. 68-62, 9-10-68)

Sec. 9.381. Termination.

A state of civil emergency proclaimed in accordance with the provisions of this Chapter shall terminate forty-eight (48) hours from the time of issuance of the proclamation, or upon a proclamation by the Mayor that a state of civil emergency no longer exists, whichever occurs first; provided, however, that such state of civil emergency may be extended for such additional periods of time as determined necessary by resolution of the City Commission.
(Ord. No. 68-62, 9-10-68)

Sec. 9.382. Violation of Orders, Rules or Regulations.

Any person who shall violate any order, rule or regulation made in conformity with a proclamation of emergency issued pursuant to this Chapter shall be subject to immediate arrest, and upon conviction, punished as provided in Section 1.13.
(Ord. No. 68-62, 9-10-68)

Secs. 9.383—9.389. Reserved.

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Chapter 162

TRESPASSING ON RAILROAD PROPERTY*

Sec. 9.390. Trespassing.
Secs. 9.391–9.399. Reserved.

*Cross reference–Railroad trains, Ch. 182.

Sec. 9.390. Trespassing.

No person shall walk, drive, ride, or park any bicycle, vehicle or other device including any vehicle or device moved by human power upon the tracks of any railroad company operating its lines within the City, or go upon or cross such tracks or right-of-way at any place other than a public or private crossing without the express or implied consent of the railroad company.
(Ord. No. 69-77, 9-23-69)

Cross reference—Trespassing generally, § 9.133(1).

State law references—Trespassing, MCL 750.546 et seq.; MSA 28.814 et seq.

Secs. 9.391—9.399. Reserved.

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Chapter 163

FALSE INTRUSION AND HOLDUP ALARMS*

Sec. 9.400. Purpose.
Sec. 9.401. Definitions.
Sec. 9.402. Alarm User Permit.
Sec. 9.403. Display of Permit.
Sec. 9.404. Standards for Alarm Systems.
Sec. 9.405. Inspection of Alarm Systems.
Sec. 9.406. False Alarms.
Sec. 9.407. Exceptions.
Secs. 9.408—9.499. Reserved.

*__Editor's note—__Ord. No. 2006-37, § 1, adopted June 6, 2006, renamed the title of chapter 163 to read as herein set out. Formerly, said chapter was entitled Alarms.

__Cross references—__Alarm system inspection and license fee, § 8.67(11); Electrical Code, Ch. 133; Property Maintenance Code, Ch. 140; smoke detectors, § 9.336(F-400.7 et seq.).

Sec. 9.400. Purpose.

The City Commission determines that the number of false intrusion and holdup alarms within the City of Grand Rapids has caused problems which necessitate the enactment of this Chapter. Included in these problems are:

Unreasonable demands upon the time and resources of the Grand Rapids Police Department.

Increased danger to police officers and citizens of the City of Grand Rapids caused by the emergency response of the Grand Rapids Police Department to intrusion and holdup alarms.

The unwarranted diversion of Grand Rapids Police Department resources to answering false alarms and the consequent reduction of resources available to deal with other police responsibilities.

This Chapter is intended to provide minimum standards for the installation of alarm systems, to regulate the use of alarm systems, and to prescribe a penalty for excessive numbers of false alarms.
(Ord. No. 81-2, 1-13-81)

Sec. 9.401. Definitions.

As used in this Chapter:

(1) *Alarm system* means any device or piece of equipment or an assembly of equipment and devices designed or arranged to signal visibly, audibly, electronically, mechanically or by any combination of these methods the presence of a hazard requiring urgent attention and to which the police are expected to respond. As used in this Chapter, the term "alarm system" shall include, but not be limited to, "automatic holdup alarm systems," "burglar alarm systems," and "manual holdup alarm systems," as those terms are herein defined. Fire alarm systems and alarm systems which monitor temperature, humidity, or any other condition not directly related to the detection of an unauthorized intrusion into a premises or an attempted robbery at a premises are specifically excluded from the provisions of this Chapter unless such systems are integrated into an "alarm system" as defined in this Section.

It is intended that the term "alarm system," as defined in this Section, shall exclude those devices or those pieces or assemblies of equipment and devices attached and affixed entirely within a protected premises and designed or arranged primarily to signal visibly, audibly, electronically, mechanically or by any combination of these methods the presence of a hazard to the occupants of the protected premises. "Alarm systems" as defined in this Section shall include those devices or pieces or assemblies of equipment and devices attached and affixed at any place on the protected premises and designed or arranged primarily to signal visibly, audibly, electronically, mechanically or by any combination of these methods the presence of a hazard to a point and to persons not on the protected premises.

(2) *Alarm user* means any person, whether owner, occupant or tenant, upon whose premises an alarm system is maintained or operated within the City of Grand Rapids, except for alarm systems on motor vehicles. If, however, the alarm system on a motor vehicle is connected with an alarm system at a premises, the person using such a system is an alarm user.

(3) *Automatic holdup alarm system* means an alarm system in which the signal transmission is initiated by the action of a robber or attempted robber.

(4) *Burglar alarm system* means an alarm system signaling an entry or attempted entry into an area protected by the system.

(5) *Holdup alarm system* means an alarm system signaling a robbery or attempted robbery.

(6) *Manual holdup alarm system* means an alarm system in which the signal trans-

mission is initiated by the direct action of the person assaulted or by an observer of the assault.

(7) *False alarm* means any activation of an alarm system, except activation caused by criminal activity, acts of God or verifiable interruptions of electrical or telephonic service to an alarm user, unless the alarm is canceled by the party that originally notified the police of the alarm before the police arrive on the scene.

(8) An *act of God* is unusual, extraordinary, sudden or unexpected display of the forces of nature against which the science and the skill of mankind are of no avail.

(9) *Person.* Person means any individual, partnership, corporation, unincorporated association or any group of persons.

(Ord. No. 81-2, 1-13-81; Ord. No. 2000-46, § 1, 7-25-00)

Sec. 9.402. Alarm User Permit.

(1) Within one hundred twenty (120) days after the adoption of this Chapter, every alarm user within the City of Grand Rapids shall obtain an alarm user permit for each alarm system operated within the City. Such alarm user permit shall be issued by the Grand Rapids Police Department upon compliance with the provisions of this Chapter. The permit shall be valid for a period of one (1) year and shall be nontransferable.

(2) Any person maintaining or operating an alarm system at more than one (1) premises within the City of Grand Rapids shall obtain an alarm user permit for each separate premises.

(3) The form of the application and alarm user permit shall be established by the Police Chief and shall be approved by the Grand Rapids City Attorney. The completed application for each alarm user permit shall be accompanied by a fee to be used to defray the cost of administering this Chapter. The amount of the fee shall be fixed by the City Commission.

(4) Any alarm system user who maintains or operates an alarm system without first obtaining a permit, as required by this Section, shall be guilty of a violation of this Code.

(Ord. No. 81-2, 1-13-81)

Cross reference—Alarm system inspection and license fee, § 8.67(11).

State law reference—Private security guards and alarm systems, MCL 338.1051 et seq.

Sec. 9.403. Display of Permit.

The alarm system user permit shall be kept on the premises serviced by the alarm system and shall be displayed upon the request of a duly authorized representative of the Grand Rapids Police Department.

(Ord. No. 81-2, 1-13-81)

Sec. 9.404. Standards for Alarm Systems.

(1) Any alarm system installed or used in the City of Grand Rapids and which is subject to the permit provisions herein shall make use of equipment equivalent to or exceeding the following minimum applicable Underwriter's Laboratory (UL) standards for the system installed: UL 609, "Local Burglar Alarm Units and Systems"; UL 636, "Holdup Alarm Units and Systems"; UL 681, "Installation and Classification of Mercantile and Bank Burglar Alarm Systems"; UL 1023, "Household Burglar Alarm Systems Units."

(2) Any alarm system installed or used in the City of Grand Rapids which is subject to the provisions of this Chapter and which signals an audible alarm that can be heard off the alarm system user's premises shall be equipped with an automatic device which shall shut off the audible alarm after it has sounded for not more than fifteen (15) minutes and which will not permit the audible signal to be activated again until the alarm is manually reset.

(3) The device, equipment or hardware used in an alarm system may correspond to any of the several levels of protection or grades of service listed in the applicable standards, provided, however, that alarm users shall not be required to provide protection for all of the areas or openings which may be required to be protected by the applicable standards.

(4) The standards referred to in this Section are hereby adopted as part of this Chapter subject to the modifications and qualifications set forth herein and a copy of each such standard shall be kept on file at the Grand Rapids Police Department and the Grand Rapids City Clerk's office and shall be available for public inspection and copying.

(5) In those instances where UL has not established standards for categories of equipment or where new equipment is undergoing field testing, the Police Chief may require that the alarm system be inspected at the expense of the alarm user by a professional electrical engineer who shall certify in writing whether the alarm system meets or exceeds the performance standards set out in Section 9.404.

(6) The provisions of this Section are not applicable to alarm systems installed prior to the effective date of this Chapter.
(Ord. No. 81-2, 1-13-81)

Sec. 9.405. Inspection of Alarm Systems.

(1) For the purpose of enforcing the provisions of this Chapter, a sworn officer of the Grand Rapids Police Department or any employee of the Grand Rapids Police Department with specific authorization to inspect alarm systems granted by the Chief of Police shall, upon any activation of an alarm system, be admitted to the premises in or upon which the alarm system is located for the purpose of inspecting such alarm system or systems.

(2) Any employee of the Grand Rapids Police Department with specific authorization to inspect alarm systems granted by the Chief of Police shall have authority to enter, at all reasonable times, the premises in or upon which an alarm system is located for the purpose of inspecting an alarm system or systems which has activated:

(a) Three (3) false alarms in any one hundred twenty (120) day period.

(b) Four (4) false alarms in any two hundred forty (240) day period.

(c) Five (5) false alarms in any three hundred sixty-five (365) day period.

(Ord. No. 81-2, 1-13-81)

Sec. 9.406. False Alarms.

(1) No alarm user shall maintain, use, or allow the use of an alarm system or alarm systems which signals false alarms in excess of that permitted herein. An alarm system user shall be in violation of this Code whenever any alarm system signals:

(a) More than three (3) false alarms in any one hundred twenty (120) day period.

(b) More than four (4) false alarms in any two hundred forty (240) day period.

(c) More than five (5) false alarms in any three hundred sixty-five (365) day period.

(2) False alarms which are recorded in the first sixty (60) days after installation of an alarm system for which an alarm system user permit has been issued shall not be counted. False alarms that are successfully contested by the alarm user shall not be counted.

(3) Fines:

(a) The fine for the first false alarm in excess of the number herein permitted shall be not less than fifty dollars ($50.00).

(b) The fine for the second false alarm in excess of the number herein permitted shall be not less than seventy-five dollars ($75.00).

(c) The fine for the third false alarm in excess of the number herein permitted shall be not less than one hundred dollars ($100.00).

(d) The fine for the fourth false alarm in excess of the number herein permitted shall be not less than one hundred twenty-five dollars ($125.00).

(e) The fine for the fifth false alarm in excess of the number herein permitted shall be not less than one hundred fifty dollars ($150.00).

(f) The fine for [the sixth and] each subsequent false alarm in excess of the number herein permitted shall be not less than two hundred dollars ($200.00).

(Ord. No. 81-2, 1-13-81; Ord. No. 2000-46, § 2, 7-25-00)

State law reference—False fire alarms, MCL 750.240.

Sec. 9.407. Exceptions.

This Chapter shall not apply to the use of an alarm system by law enforcement personnel of Federal, State or local governments.
(Ord. No. 81-2, 1-13-81)

Secs. 9.408—9.499. Reserved.

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Chapter 164

PARKING OR STORAGE OF MOTOR VEHICLES IN A FRONT YARD WITHIN A RESIDENTIAL DISTRICT*

Sec. 9.500. Purpose.
Sec. 9.501. Definitions.
Sec. 9.502. Parking in Front Yards.
Sec. 9.503. Violations.
Sec. 9.504. Registered Owner.
Sec. 9.505. Parking in Driveways.
Sec. 9.506. Circular Driveways and Surfaced Turnabouts.
Secs. 9.507–9.600. Reserved.

*Cross references—Commercial vehicles prohibited from parking in residential zones unless within enclosed garage or building, § 5.23(17); storage of motor homes, boat trailers, recreational vehicles, etc., permitted in rear yards, or in side yards if screened, § 5.23(19); parking regulations generally, § 10.40 et seq.

Sec. 9.500. Purpose.

The purpose of this Chapter is to protect the public health, safety and general welfare, to enhance the visual environment of the City, and to preserve residential neighborhoods.
(Ord. No. 80-83, 11-25-80)

Sec. 9.501. Definitions.

For the purpose of this Chapter:

(1) *Front yard* shall mean that area measured by the full width of the front lot line to a depth measured from said front lot line to the first supporting member of a structure. In the case of corner lots, the front yard shall be the area measured by the lot lines on each street to a depth measured from said lot lines to the first supporting member of the structure.

(2) *Residential neighborhoods* shall mean those areas established by Chapter 61, Section 5.12, Map, of this Code as R-1, R-2, R-3 or R-4 zones.

(Ord. No. 80-83, 11-25-80)

Sec. 9.502. Parking in Front Yards.

Parking or storage of motor vehicles in a front yard within a residential district is prohibited.
(Ord. No. 80-83, 11-25-80)

Sec. 9.503. Violations.

The registered owner or operator of a motor vehicle which is illegally parked or stored in a front yard within a residential district shall upon conviction thereof be subject to the penalties provided for in Section 1.13 of this Code.
(Ord. No. 80-83, 11-25-80)

Sec. 9.504. Registered Owner.

In any proceeding relating to arrest or prosecution for violation of this Chapter, evidence that a particular vehicle described in the complaint was parked or stored in violation of this Chapter together with evidence by verifying ownership with the Secretary of State that the defendant named in the complaint was on the date alleged in the complaint the registered owner of the vehicle may be accepted by the court as establishing probable cause for the issuance of a warrant for the registered owner of the vehicle and creates in evidence a presumption that the registered owner was the person who parked or stored the vehicle at the location where and during the time which the violation occurred.
(Ord. No. 80-83, 11-25-80)

Sec. 9.505. Parking in Driveways.

Nothing in this Chapter shall prohibit the parking of motor vehicles upon driveways. A driveway, for this purpose, shall be surfaced with concrete, asphalt, gravel or similar material and shall lead from an authorized curb cut to a garage, carport, or required parking space.
(Ord. No. 80-83, 11-25-80)

Sec. 9.506. Circular Driveways and Surfaced Turnabouts.

A surfaced turnabout area, a circular driveway from an authorized curb cut to another authorized curb cut, or auxiliary parking spaces not required by Chapter shall be permitted under the following conditions:

(1) Such areas and driveways shall not occupy in excess of fifty (50) percent of the area of the front yard; and

(2) Such areas shall be surfaced with concrete, asphalt, brick or six-inch solid concrete blocks. Where the brick or solid concrete block surface is to be used, the soil and topsoil shall be removed and a sand sub-base shall be provided.

(Ord. No. 80-83, 11-25-80)

Secs. 9.507–9.600. Reserved.

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Chapter 165

SKATEBOARDING*

Sec. 9.601. Purpose.
Sec. 9.602. Prohibited Conduct.
Sec. 9.603. Exceptions.
Sec. 9.604. Area in Which Prohibition Applies.
Sec. 9.605. Rights and Responsibilities.
Sec. 9.606. Reflective Clothing and Lights.
Sec. 9.607. Enforcement.
Sec. 9.608. Violation a Civil Infraction.
Sec. 9.609. Confiscation of Property.
Secs. 9.610—9.700. Reserved.

*__Editor's note—__Ord. No. 2015-24, § 1, adopted May 12, 2015, amended chapter 165 in its entirety to read as herein set out. Former chapter 165, §§ 9.601—9.605, pertained to prohibition of skateboarding. See Code Comparative Table for complete derivation.

Sec. 9.601. Purpose.

The City Commission finds that skateboards, long boards, roller skates and inline skates are acceptable modes of transportation. The City Commission further finds that persons operating skateboards, long boards, roller skates and inline skates downtown create the potential for significant property damage and personal injury to themselves and others, when their conduct is not regulated. The City Commission finds these problems and concerns are most acute in the downtown area because of heavy pedestrian and vehicular traffic and because the unique physical features in the downtown area are attractive to persons using skateboards, long boards, roller skates and inline skates.

Thus, the purpose of this Chapter is to allow skateboarding, long boarding, roller skating and inline skating in the downtown area as a mode of transportation, while simultaneously limiting the risk of property damage and personal injury associated with skateboards, long boards, roller skates and inline skates by prohibiting their use anywhere in the downtown area except as specified in this Chapter.
(Ord. No. 2015-24, § 1, 5-12-15)

Sec. 9.602. Prohibited Conduct.

No person shall ride, propel, push or otherwise operate a skateboard, long board, roller skates or inline skates anywhere within the area described in Section 9.604. This prohibition is subject to the exceptions set forth in Section 9.603.
(Ord. No. 2015-24, § 1, 5-12-15)

Sec. 9.603. Exceptions.

Notwithstanding the prohibitions contained in the foregoing Section, riding, propelling, pushing or otherwise operating a skateboard, long board, roller skates or inline skates is expressly permitted as follows:

(a) Persons under the age of 15 may ride, propel, push or otherwise operate a skateboard, long board, roller skates or inline skates on any public sidewalk anywhere within the area described in Section 9.604.; and

(b) Persons age 15 or older may ride, propel, push or otherwise operate a skateboard, long board, roller skates or inline skates on or in any public street or alley anywhere within the area described in Section 9.604.; and

(c) Persons may ride, propel, push or otherwise operate a skateboard, long board, roller skates or inline skates in facilities specifically designated for use of skateboards; and

(d) Persons may ride, propel, push or otherwise operate a skateboard, long board, roller skates or inline skates on any private property where the owner has given permission for such use.

(Ord. No. 2015-24, § 1, 5-12-15)

Sec. 9.604. Area in Which Prohibition Applies.

The area of the City in which the prohibition of Section 9.602. applies is the Downtown Improvement District as described in Section 1.960 of the City Code, except that portion of the Downtown Improvement District that is north of I-196.
(Ord. No. 2015-24, § 1, 5-12-15)

Sec. 9.605. Rights and Responsibilities.

Persons operating skateboards, long boards, roller skates, and inline skates within the City of Grand Rapids shall possess the same rights and responsibilities pursuant to City Code as the operator of a bicycle possesses under the Michigan Motor Vehicle Code and City Code.
(Ord. No. 2015-24, § 1, 5-12-15)

Sec. 9.606. Reflective Clothing and Lights.

No person shall ride, propel, push or otherwise operate a skateboard, long board, roller skates or inline skates during limited visibility conditions or between the hours of sunset and sunrise, unless such person:

(a) Displays a white light on the front of his or her person above the waistline, with that light plainly discernable from a distance of not less than three hundred (300) feet ahead; and

(b) Wears reflective clothing above the waistline, as the outermost layer of clothing.

(Ord. No. 2015-24, § 1, 5-12-15)

Sec. 9.607. Enforcement.

This Chapter may be enforced by any police officer or by any other City employee authorized to issue appearance tickets for violation of the City Code and by any other City employee specifically authorized by the City Manager to issue appearance tickets for violation of this Chapter.

(Ord. No. 2015-24, § 1, 5-12-15)

Sec. 9.608. Violation a Civil Infraction.

A violation of this Chapter shall be a municipal civil infraction punishable by a fine as established in Chapter 170 of the City Code.

(Ord. No. 2015-24, § 1, 5-12-15)

Sec. 9.609. Confiscation of Property.

No person empowered to enforce this Chapter shall confiscate or impound any skateboard, long board, roller skates or inline skates from any person who is riding, propelling, pushing or otherwise operating a skateboard, long board, roller skates or inline skates in the downtown area, during enforcement of this Chapter.

(Ord. No. 2015-24, § 1, 5-12-15)

Secs. 9.610—9.700. Reserved.

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Chapter 166

DRUG AND PROSTITUTION NUISANCES*

Sec. 9.701. Definitions.
Sec. 9.702. Legislative Findings with Respect to Drug Use and Prostitution or Soliciting for Prostitution.
Sec. 9.703. Authority for Declaration of a Public Nuisance.
Sec. 9.704. Procedure for Declaration of a Public Nuisance.
Sec. 9.705. Abatement of Nuisance and Costs.
Sec. 9.706. Presumption of Public Nuisance—Drugs or Drug Paraphernalia.
Sec. 9.707. Presumption of Public Nuisance—Prostitution or Soliciting for Prostitution.
Sec. 9.708. Notification to the Property Owner.
Sec. 9.709. Appeal.
Sec. 9.710. Posting and Listing of Public Nuisances.
Sec. 9.711. Entry into or Use of Any Property of Which the City Commission has Ordered to be Vacated and for Which the City Commission has Prohibited Occupancy.
Sec. 9.712. Penalty.
Secs. 9.713—9.799. Reserved.

*Editor's note—Ord. No. 93-39, § 1, adopted Sept. 7, 1993, amended Ch. 166, in its entirety, to read as herein set out in §§ 9.701—9.712. Prior to inclusion of said ordinance, Ch. 166 pertained to similar subject matter. See the Code Comparative Table.

Sec. 9.701. Definitions.

For the purposes of this Chapter, the terms defined below shall have the meanings indicated below in this Section:

(1) *City Commission* means the Grand Rapids City Commission or a standing or special Committee of the Grand Rapids City Commission.

(2) *Owner* means any person who possesses or has any legal or equitable interest in a property. *Owner* also means any person who has or exercises any control, custody or dominion over a property whether or not that person has or claims to have any legal or equitable interest in the property. *Owner* also means any person having an ownership interest in a property as disclosed by the records referred to in this Chapter.

(3) *Property* means any land, structure, house, building, premises or any part thereof.

(4) *Repeated* and *repeatedly* mean two (2) or more times.

(Ord. No. 93-39, § 1, 9-7-93)

Sec. 9.702. Legislative Findings with Respect to Drug Use and Prostitution or Soliciting for Prostitution.

The City Commission determines that whenever the repeated use, sale, furnishing, giving or possession of controlled substances or drug paraphernalia occurs on any property or whenever property is repeatedly used for violation of the controlled substances or drug paraphernalia laws or for purposes of prostitution or soliciting for prostitution, a public nuisance may result. Such a public nuisance results from the increased criminal activity that occurs in the neighborhood surrounding the property, increased pedestrian and/or vehicular traffic in the neighborhood surrounding the property, the fear engendered in the minds of neighbors and the peace and quiet of residents living in the neighborhood surrounding the property being disturbed.

(Ord. No. 93-39, § 1, 9-7-93)

Sec. 9.703. Authority for Declaration of a Public Nuisance.

Whenever the illegal use, sale, furnishing, giving or possession of controlled substances or drug paraphernalia repeatedly occurs on any property or when any violation of the controlled substances act or the drug paraphernalia laws or any act of prostitution or soliciting for prostitution occurs repeatedly on any property, the City Commission may declare by resolution that the property is a public nuisance and order that the nuisance be abated as provided in this Chapter.

(Ord. No. 93-39, § 1, 9-7-93)

Sec. 9.704. Procedure for Declaration of a Public Nuisance.

A Declaration of a Public Nuisance under the authority of this Chapter shall occur only in accordance with the following procedure:

(1) Such a declaration may occur only after there has been notice given to the owner of the property and the owner has had an opportunity to be heard at a public evidentiary hearing before the City Commission.

(2) Notice of the public evidentiary hearing shall be given to the owner and shall consist of personal service or the mailing of a certified letter to the owner at the address indicated by the City Assessor's records, the records of the Register of Deeds of Kent County and the records of the City's Housing Inspection office. The notice shall state the nature of the alleged nuisance and the time, date and location of the hearing. If the notice is served by certified mail, it shall be delivered with a return receipt requested according to the practices of the post office. Receipt of the return receipt card by the City indicating the owner's having received such notice shall be deemed notice to the owner. Such notice to an owner shall occur at least seven (7) calendar days prior to the date of the public hearing. As used in this Chapter, "the owner", "an owner," or "owner" shall mean any and all persons that the City is aware of who have or who may have an ownership interest as defined in this Chapter. Whenever this Chapter provides for notice to the owner, it shall be construed to mean that notice shall be given to all persons having a known ownership interest as so defined.

(3) The City Commission, sitting as an administrative body as provided for in Title V, Section 1 of the City Charter and acting in a quasi-judicial capacity, shall make a determination as to whether a public nuisance exists under the standards established by this Chapter. The City Commission shall make this determination based solely upon the evidence presented at the public evidentiary hearing. In conducting the public evidentiary hearing, the City Commission shall afford the owner and the Police Department an opportunity to present relevant and material evidence and to make arguments as to factual or legal issues. Cross-examination of opposing witnesses shall be permitted. The owner may appear in person or be represented by an attorney. Lay representation is not permitted. In conducting its public evidentiary hearing, the City Commission shall not be bound by the rules of evidence and may admit and give weight to probative evidence of a nature that is commonly relied upon by reasonably prudent individuals in the conduct of their affairs. Irrelevant, incompetent and immaterial evidence and unduly repetitious evidence shall be excluded.

(Ord. No. 93-39, § 1, 9-7-93)

Sec. 9.705. Abatement of Nuisance and Costs.

If the Grand Rapids City Commission determines by a preponderance of the evidence that a property is a public nuisance, it may, by resolution, in addition to any other remedies available to the City at law or in equity, order abatement of the nuisance.

(1) The abatement process shall be conducted as follows:

(a) If it is determined that all or a portion of the property is to be ordered vacated, the City Commission shall order the property vacated and declare that occupancy of all or a portion of the property is prohibited and authorized the Police Department to prohibit the occupancy of the property by either padlocking all or a portion of the property or boarding or otherwise securing all or a portion of the property, as is appropriate, for a period of up to one (1) year as the City Commission shall determine based upon the evidence; and/or

(b) Determine that the owner shall be liable for the full cost of any materials and personnel (including police and any other City employees or contractors) involved in the padlocking, boarding or securing of the property in the first instance and the full cost of any personnel and materials involved in any subsequent or remedial padlocking, boarding or securing of the property; and/or

(c) Determine that the costs set out herein shall be a personal debt of the owner and/or assess those costs against the property as a lien as provided for in the City Charter.

(2) Where only a discreet area under the control of a person or persons other than the owner is involved in the illegal activity, the City Commission shall not order that any part of the property other than the part used for the illegal activity be vacated. It is the intent of this provision to protect those truly and completely innocent of any participation in the act and those not having any notice of, or direct or imputed knowledge of, the illegal acts from being deprived of the use of their property. By way of example and not limitation, if only a single apartment in a multiple dwelling is used for illegal purposes as provided for in this Chapter, the City Commission may vacate only the apartment used for the illegal purposes and shall not vacate the entire building.

(Ord. No. 93-39, § 1, 9-7-93)

Sec. 9.706. Presumption of Public Nuisance—Drugs or Drug Paraphernalia.

The City Commission may find that a public nuisance exists if the following conditions are established by the evidence presented at the public evidentiary hearing:

(a) The property has been searched by the police and illegal controlled substances or il-

legal drug paraphernalia have been found by the police; or

(b) The property has been the location of a violation of the Michigan controlled substances law or of the Michigan drug paraphernalia law as evidenced by conviction of an individual for violation of either at that location; and

(c) A letter, informing the owner that an illegal controlled substance and/or illegal drug paraphernalia has been found by the police at the property or that a drug-related or drug paraphernalia-related crime has been committed on the property, and of the potential consequences if a similar activity occurs at the property, has been:

(1) Personally served on an owner; or

(2) Sent by certified mail to an owner, as provided for in this Chapter, and a return receipt card has been received by the City; and

(d) The same property is searched by the police again within six (6) months from the date of the first search and a controlled substance or drug paraphernalia is found by the police or, if within six (6) months, a subsequent violation of the controlled substances act or the drug paraphernalia law occurs.

(Ord. No. 93-39, § 1, 9-7-93)

Sec. 9.707. Presumption of Public Nuisance—Prostitution or Soliciting for Prostitution.

The City Commission may find that a public nuisance exists if the following conditions are established by the evidence presented at the public evidentiary hearing:

(a) The property has been the location of an act of prostitution or soliciting for prostitution as proven by the conviction of an individual for engaging in an act of prostitution or soliciting for prostitution at that location, and

(b) A letter, informing an owner that an act of prostitution or soliciting for prostitution has occurred on the property and of the potential consequences if a similar activity occurs at the property, has been:

(1) Personally served on an owner; or

(2) Sent by certified mail to an owner, as provided for in this Chapter, and a return receipt card has been received by the City; and

(c) The same property is again proven to be the location of an act of prostitution or soliciting for prostitution by the conviction of an individual for engaging, at that location, in any act prohibited by the laws of this State or of any act prohibited by the Grand Rapids City Code relating to prostitution or soliciting for prostitution.

(Ord. No. 93-39, § 1, 9-7-93)

Sec. 9.708. Notification to the Property Owner.

The notification letters to the property owner provided for in Sections 9.706 and 9.707 of this Chapter and the notice of a public evidentiary hearing provided for in Section 9.704 of this Chapter shall contain a report of the nature of the violation of the law found, the nature of the drugs or drug paraphernalia seized, the individuals involved and, with reasonable specificity, the location of the contraband or illegal act.

(Ord. No. 93-39, § 1, 9-7-93)

Sec. 9.709. Appeal.

(a) An owner aggrieved by any final determination by the City Commission under this Chapter may appeal the determination to the Circuit Court within twenty-one (21) days of the date of the decision.

(b) The Circuit Court shall review the City Commission's decision to determine whether the City Commission's decision is in violation of the law, has been procured by fraud, if an abuse of discretion exists, and whether the decision is supported by competent, substantial and material evidence on the record as a whole. The Circuit Court's review shall be made upon the record made before the City Commission. It is the responsibility of the appealing party to demonstrate error.

(Ord. No. 93-39, § 1, 9-7-93)

Sec. 9.710. Posting and Listing of Public Nuisances.

(a) Whenever the City Commission shall have ordered a property to be vacated and ordered that occupancy is prohibited, the Police Department shall post a notice so stating at each entrance to any building on the property and at the entrance to each dwelling unit or other portion of the property ordered vacated and shall replace any notices that are missing or unreadable.

(b) The City Clerk shall maintain a list of those properties that have been declared to be public nuisances and of the remedy ordered by the City Commission. Immediately upon a declaration of public nuisance as provided for herein, the City Clerk shall add the property to the list. Any citizen requesting a list of such properties shall be supplied one at no charge. The list shall be available for public inspection at the City Clerk's office.

(c) No person other than an authorized city employee shall tamper with, damage, alter, destroy or remove any such notice posted by the City.
(Ord. No. 93-39, § 1, 9-7-93)

Sec. 9.711. Entry Into or Use of Any Property of Which the City Commission has Ordered to be Vacated and for Which the City Commission has Prohibited Occupancy.

No person shall enter upon any property that has been declared by the City Commission to be a nuisance and which the City Commission has ordered to be vacated and for which occupancy has been prohibited. It shall be an affirmative defense to a prosecution under this Section that written permission to enter the property was obtained from the Chief of Police.
(Ord. No. 93-39, § 1, 9-7-93)

Sec. 9.712. Penalty.

Whoever violates Section 9.709(c) or Section 9.710 shall be subject to the following minimum criminal penalties which shall be assessed in addition to any other lawful sentence that the sentencing Court may impose:

(a) For a first violation, a fine of not less than one hundred seventy-five dollars ($175.00) nor more than five hundred dollars ($500.00).

(b) For a second violation, a fine of not less than three hundred dollars ($300.00) nor more than five hundred dollars ($500.00), and imprisonment for not less than ten (10) days nor more than ninety (90) days.

(c) For a third or subsequent violation, a fine of not less than four hundred dollars ($400.00) nor more than five hundred dollars ($500.00), and imprisonment for not less than thirty (30) days nor more than ninety (90) days.

(Ord. No. 93-39, § 1, 9-7-93)

Secs. 9.713—9.799. Reserved.

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Chapter 167

DISHONORED CHECKS

Article 1. Dishonored Checks

Sec. 9.800. Purpose.
Sec. 9.801. Definitions.
Sec. 9.802. Checks Drawn Without Sufficient Funds.
Sec. 9.803. Penalty.
Sec. 9.804. Reserved.

Article 2. Liability for the Expense of Dishonored Check Response

Sec. 9.805. Person Responsible.
Sec. 9.806. Presumption.
Sec. 9.807. Charges Against Person.
Sec. 9.808. Cost Recovery Schedule.
Sec. 9.809. Billing.
Sec. 9.810. Failure to Pay; Procedure to Recover Cost.
Sec. 9.811. Severability.

ARTICLE 1. DISHONORED CHECKS

Sec. 9.800. Purpose.

The City of Grand Rapids finds that a significant number of checks are written and dishonored within its geographical boundaries causing serious financial loss and hardship to citizens and merchants therein. In addition, the City of Grand Rapids finds that the financial loss and hardship incurred by its citizens and merchants seriously impacts on the stream of commerce and the general public by causing increases in the costs of goods and services. As a result of these activities, a greater operational and financial burden is placed upon the City's police and legal services by persons who are placing dishonored checks into the stream of commerce.
(Ord. No. 94-31, § 1, 7-12-94)

Sec. 9.801. Definitions.

The following definitions shall apply in the interpretation and enforcement of this Chapter:

(1) *Address of Record* shall mean: the address that appears on the check or the last known address of record of the maker of a check that is recorded with the Secretary of State at the time the check was presented for payment of money, goods or services.

(2) *Check* shall mean: any check, draft or order for the payment of money, to apply on account or otherwise, upon any bank or other depository.

(3) *Dishonored* shall mean:

a. Any check, draft or order drawn or written on any account or otherwise, upon any bank or other depository, without sufficient funds for the payment of same when presentment is made to the drawee.

b. Any check, draft or order drawn or written on any account which has been closed with or by the bank or other depository upon which it is drawn.

(4) *Drawee* shall mean: a person, business, organization, partnership, company, or corporation to whom a check is presented or is requested to pay the amount of money therein mentioned.

(5) *Expenses of Dishonored Check Response* shall mean: the direct and reasonable cost incurred by the City of Grand Rapids or to a private person or corporation operating at the request or direction of the City of Grand Rapids, when responding to a reported dishonored check, including the cost of providing police, City Attorney and/or administrative services in response to any reported dishonored check.

These costs further include all of the salaries and wages of the City of Grand Rapids personnel and/or contractors engaged in investigation, supervision and report preparation, and all costs connected with the administration and provision of any prosecution of the person responsible for the dishonored check, except actual court costs which may be levied by the Court as a result of statute or Court Rule.

(6) *Maker* shall mean: a person, business, organization, partnership, company, or corporation who is the maker or drawer of a check.

(7) *Present* shall mean: make, draw, utter or deliver.

(8) *Presenting* shall mean: the making, drawing, uttering or delivering.

(9) *Protest* shall mean: a check has been refused for payment or acceptance by a bank or other repository.
(Ord. No. 94-31, § 1, 7-12-94)

Sec. 9.802. Checks Drawn Without Sufficient Funds.

(1) No person shall with intent to defraud, make, draw, utter or deliver any check, draft or order for the payment of money, to apply on account or otherwise, upon any bank or other depository, knowing at the time of the making, drawing, uttering or delivering, that the maker or drawer does not have sufficient funds in or credit with the bank or other depository, for the payment of the check, draft, or order in full upon its presentation, of the amount payable in such check, draft or order in any amount.

(2) No person shall with the intent to defraud, make, draw, utter or, deliver any check, draft or order for the payment of money, to apply on ac-

count or otherwise, upon any bank or other depository, if at the time of making, drawing, uttering, or delivering the check, draft or order he or she does not have an account in or credit with the bank or other depository for the payment of the check, draft, or order upon presentation.

(3) No person shall with the intent to defraud, make, draw, utter or deliver any check, draft or order for the payment of money to apply on account or otherwise, upon any bank, or other depository, unless the person has sufficient funds for payment for same when presentment is due to the drawee in any amount, except where the lack of funds is due to garnishment, attachment, levy, or other lawful cause, and such fact was not known to the person who made, drew, uttered or delivered the instrument at the time of so doing.

(4) As against the maker or drawer thereof, the making, drawing, uttering or delivering, of a check, draft or order, payment of which is refused by the drawee, when presented in the usual course of business, shall be prima facie evidence of intent to defraud and of knowledge of insufficient funds in or credit with such bank or other depository, provided such maker or drawer shall not have paid the drawee thereof the amount due thereon, together with all cost and protest fees, within five (5) business days after receiving notice by First Class Mail that such check, draft or order has not been paid by the drawee.

(5) Where such check, draft or order is protested on the grounds of insufficiency of funds or credit, the notice of protest thereof shall be admissible as proof of presentation, non-payment and protest, and shall be prima facie evidence of intent to defraud and knowledge of insufficient funds or credit with such bank or other depository.
(Ord. No. 94-31, § 1, 7-12-94)

Sec. 9.803. Penalty.

The penalty for a person convicted of violating Section 9.802 shall be a fine of not more than $500.00 and costs of prosecution and cost recovery or by imprisonment for not more than 90 days, or both such fine and imprisonment in the discretion of the court. Each act of this violation and every day upon which any such violation shall occur shall constitute a separate offense.
(Ord. No. 94-31, § 1, 7-12-94)

Sec. 9.804. Reserved.

ARTICLE 2. LIABILITY FOR THE EXPENSE OF DISHONORED CHECK RESPONSE

Sec. 9.805. Person Responsible.

Any person is liable for the expense of a dishonored check response, if such person proximately causes any incident resulting in a dishonored check response.
(Ord. No. 94-31, § 1, 7-12-94)

Sec. 9.806. Presumption.

(1) For the purpose of this chapter, a person is presumed to be the proximate cause of an incident if said person makes, draws, utters or delivers any dishonored check or causes directly or indirectly a check to become dishonored.

(2) For the purpose of this chapter, a person is presumed to have acted with intent to defraud if said person shall not have paid the drawee thereof the amount due thereon, together with all costs and protest fees, including the fees assessed hereunder, within five (5) business days after receiving notice by first class mail to the last known address of record that such check, draft or order has not been paid by the drawee.
(Ord. No. 94-31, § 1, 7-12-94)

Sec. 9.807. Charges Against Person.

The expense of a dishonored check response shall be a charge against the person liable for the expense under this Article. The charge constitutes a debt of that person and is collectable by the City of Grand Rapids for incurring those costs in the same manner as in the case of an obligation under a contract, expressed or implied.
(Ord. No. 94-31, § 1, 7-12-94)

Sec. 9.808. Cost Recovery Schedule.

The Grand Rapids City Commission shall, by resolution, adopt a schedule of costs included within the expense of a dishonored check response.

This schedule shall be available to the public from either the Grand Rapids City Clerk, Treasurer or the Police Department.
(Ord. No. 94-31, § 1, 7-12-94)

Sec. 9.809. Billing.

The City Comptroller, or his designee, may submit a bill for the dishonored check response by first class mail to the last known address of record or personal service to the person liable for the expenses as enumerated under this Article. The bill(s) shall require full payment within thirty (30) consecutive days from the date of service. Service by mail shall be effective upon depositing said bill in a United States Postal Service receptacle. In no event shall billing be permitted after one year from the last expense incurred.
(Ord. No. 94-31, § 1, 7-12-94)

Sec. 9.810. Failure to Pay; Procedure to Recover Cost.

Any failure by the person described in this Article as liable for the expense of a dishonored check response, to pay the bill within thirty (30) consecutive days of service shall be considered in default. In case of default, the City of Grand Rapids may commence civil suit to recover the expenses and any costs allowed by the law.
(Ord. No. 94-31, § 1, 7-12-94)

Sec. 9.811. Severability.

The phrases, sentences, sections and provisions of this Chapter are severable and the finding that any portion hereof is unconstitutional or otherwise unenforceable shall not detract from or affect the enforceability of the remainder of this ordinance.
(Ord. No. 94-31, § 1, 7-12-94)

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Chapter 168

PARENTAL RESPONSIBILITY

Sec. 9.812. Purpose.
Sec. 9.813. Definitions.
Sec. 9.814. Parental Duties.
Sec. 9.815. Aiding and Abetting Delinquent Acts.
Sec. 9.816. Notification of Parents; Record of Notification.
Sec. 9.817. Penalties.
Sec. 9.818. Severability.

Sec. 9.812. Purpose.

This Chapter is declared necessary for the preservation of the public peace, health, safety and welfare of the people of the City of Grand Rapids and is intended to address situations where parents have failed to act responsibly and reasonably in the supervision of their minor children to the detriment of the general public.
(Ord. No. 97-2, § 1, 1-7-97)

Sec. 9.813. Definitions.

As used in this Chapter;

(a) **Delinquent Act** means an act which violates the laws of the United States, or the statutes of the state or the ordinances of the city or an act which would cause the minor to come under the jurisdiction of the juvenile division of the Probate Court as defined by MCLA 712A.2, but does not include a civil infraction traffic violation.

(b) **Minor** means any unemancipated person under the age of seventeen (17) years.

(c) **Parent** means mother, father, legal guardian and any other person having the care or custody of a minor, or any person seventeen (17) years of age or older with whom the minor resides.

(d) **Drugs** means any controlled substance as defined now or hereafter by the Public Health Code for the State of Michigan. Currently, such substances are defined in Part 72 of the Health Code being sections 333.7201 et seq., of the Michigan Compiled Laws.
(Ord. No. 97-2, § 1, 1-7-97)

Sec. 9.814. Parental Duties.

(a) It is the continuous duty of the parent of any minor to exercise reasonable control to prevent the minor from committing any delinquent act.

(b) No parent of any minor shall fail to exercise reasonable parental control over such minor. The exercise of reasonable parental control shall include, but is not limited to, the following:

(1) Keeping drugs out of the home and out of the possession of the minor, except those drugs duly prescribed by a licensed physician or other authorized medical professional.

(2) Keeping firearms out of the possession of the minor except those used for hunting in accordance with local ordinance and state law and with the knowledge and supervision of a parent.

(3) Requiring the minor to observe the curfew ordinance of the City of Grand Rapids.

(4) Requiring the minor to attend regular school sessions and forbidding the minor to be absent from class without parental or school permission.

(5) Arranging proper supervision for the minor when the parent must be absent.

(6) Preventing the minor from maliciously or willfully destroying any property which belongs to any other person.

(7) Forbidding the minor from keeping stolen property or alcoholic beverages.

(8) Seeking help from appropriate governmental authorities or private agencies in handling or controlling the minor, when necessary.

(9) Assisting and cooperating with governmental authorities in their efforts to handle or control the minor, including production of the minor for juvenile court appointments and hearings.
(Ord. No. 97-2, § 1, 1-7-97)

Sec. 9.815. Aiding and Abetting Delinquent Acts.

Any person who shall by any act, omission, or by any word, procure, counsel, aid, abet, encourage, contribute toward, cause or tend to cause any minor to become delinquent so as to come under or tend to come under the jurisdiction of the juvenile division of the probate court, as defined in MCL 712A.2, whether or not such child shall in fact be adjudicated a ward of the probate court, shall be guilty of a misdemeanor.
(Ord. No. 97-2, § 1, 1-7-97)

Sec. 9.816. Notification of Parents; Record of Notification.

(a) Whenever a minor is arrested or detained for the commission of any delinquent act within the City of Grand Rapids, the Grand Rapids Police Department shall immediately attempt to notify the parent of such arrest or detention, the reason therefore, and the parent's responsibility under this Chapter.

(b) A record of such notification efforts shall be kept by the Grand Rapids Police Department.
(Ord. No. 97-2, § 1, 1-7-97)

Sec. 9.817. Penalties.

(a) Upon the first conviction for a violation of any provision of this Chapter, the Court shall impose a fine and/or a jail term as provided for in Section 1.13 of this Code and any other costs or fees permitted or required by law. In addition to such fine and/or jail term the Court shall, unless it makes a specific finding that probation is inappropriate, exercise its authority to sentence the Defendant to a term of probation with such conditions as the Court deems appropriate. Such conditions may include participation in, and completion of, programs or therapies deemed appropriate by the Court in light of the facts of the particular case community service and/or work crew. Restitution shall also be required to make whole any victim or third party who has suffered financial loss in connection with the charged violation. Should the Court choose not to sentence the Defendant to a term of probation or should the Court suspend all or any portion of a fine, costs or restitution assessed against the Defendant, the Court shall so state on the record and shall state the reason or reasons for its action. In addition to the penalties provided for in this subsection, the Court may also impose any penalties otherwise provided for by law.

(b) Upon the second or subsequent violation of any provision of this Chapter, the Court shall assess a fine of not less than two hundred dollars ($200.00) nor more than five hundred dollars ($500.00) in addition to any costs or fees permitted or required by law. In addition to such fines and costs, the Court may impose a jail sentence of up to ninety (90) days. The Court may in its discretion also impose any of the penalties provided for in subsection (a) of this section or otherwise permitted by law.
(Ord. No. 97-2, § 1, 1-7-97)

Sec. 9.818. Severability.

Should any section, subdivision, clause or phrase of this Chapter be declared by the courts to be invalid or unenforceable, such holding shall not affect the validity or enforceability of the Chapter as a whole or of any part thereof, other than such parts so invalidated or declared unenforceable.
(Ord. No. 97-2, § 1, 1-7-97)

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Chapter 169

HOME SAFETY

Article 1. Smoke Alarms

Sec. 9.831. Smoke Alarms Required.
Sec. 9.832. Smoke Alarm Location and Installation Date.
Sec. 9.833. Smoke Alarm Installation.
Sec. 9.834. Smoke Alarm Effectiveness.
Sec. 9.835. Smoke Alarm Power Source.
Sec. 9.836. Tampering with, Disconnecting or Damaging a Smoke Alarm.
Sec. 9.837. Smoke Alarm Maintenance.
Sec. 9.838. Smoke Alarm Required in Rental Units Prior to Occupancy.
Sec. 9.839. Occupant of Property Required to Maintain Smoke Alarms.
Sec. 9.840. Smoke Alarms Not Required.
Sec. 9.841. Smoke Alarms and Fire Detection or Protection Systems to Be Maintained.
Sec. 9.842. Enforcement.
Sec. 9.843. Approval of Smoke Alarms.
Sec. 9.844. Inspection.
Sec. 9.845. Definitions.
Sec. 9.846. Exception.

ARTICLE 1. SMOKE ALARMS

Sec. 9.831. Smoke Alarms Required.

Single-station or multiple-station smoke alarms, as specified in this Article, are required and shall be installed and maintained in full operating condition as specified in this Article. Additional approved smoke alarms installed in accordance with National Fire Protection Association recommendations are both recommended and encouraged.
(Ord. No. 99-62, § 1, 11-9-99)

Sec. 9.832. Smoke Alarm Location and Installation Date.

(1) Required smoke alarms shall be located in each of the following locations:

(A) In each bedroom, sleeping room or regular sleeping location.

(B) Outside of each sleeping area in the immediate vicinity of the bedrooms, sleeping rooms or sleeping locations.

(C) On every story of the dwelling unit including basements. For purposes of this provision only, in a dwelling unit that has split levels without an intervening door between immediately adjacent levels, a smoke alarm installed on the upper level shall suffice for both the upper and the immediately adjacent lower level provided that the lower level is less than one full story below the upper level.

(2) The smoke alarms required by this Article shall be required to be installed and fully operational on or before the date indicated:

(A) For rental dwellings containing three or more dwelling units, after January 1, 2000, at the time that an inspection is requested pursuant to Section 8.644 of the City Code but, in no case, later than December 31, 2000.

(B) For two-family dwellings, whether rental dwellings or owner-occupied, not later than July 1, 2000.

(C) For single-family rental dwellings, not later than December 31, 2000.

(Ord. No. 99-62, § 1, 11-9-99; Ord. No. 2000-63, § 1, 11-14-00)

Sec. 9.833. Smoke Alarm Installation.

All smoke alarms installed as part of work requiring a building permit shall be installed as provided for in the Building Code then in effect and applicable to the work being done. All other smoke alarms shall be installed in accordance with the National Fire Protection Association Part 74 or as mandated in this Article. Installation shall be in a workmanlike manner and shall be in a location and in a manner that accidental or unintentional operation or deactivation shall not occur due to jarring, vibration or the presence of substances other than products of unintended combustion.
(Ord. No. 99-62, § 1, 11-9-99)

Sec. 9.834. Smoke Alarm Effectiveness.

When activated, all smoke alarms shall provide an alarm suitable to warn the occupants of the individual room or the dwelling unit in which the alarm is installed. If an occupant is deaf or hard of hearing, the smoke alarm shall provide a visual signal upon activation in accordance with the Building Code then in effect. Audible alarms shall produce a sound level of not less than eighty-five (85) dBA as measured three (3) meters from the smoke alarm. It is recommended that installed alarms be tested to determine that they can be heard in all places where occupants are sleeping when other devices frequently used in that area, such as fans, room air conditioners or humidifiers, are in operation.
(Ord. No. 99-62, § 1, 11-9-99)

Sec. 9.835. Smoke Alarm Power Source.

The primary power source for a required smoke alarm shall be household alternating current (AC) or a lithium battery with a functional life expectancy of ten (10) years or more. When a hard-wired household alternating current (AC) alarm is installed, there shall also be lithium battery automatic backup in the event of a failure or interruption of the AC primary power source. When an

alarm with a lithium battery with a life expectancy of ten (10) years or more is installed as the primary power source, the alarm unit shall be one in which the battery is sealed within the unit and cannot be removed from the unit without serious damage to the unit. No seriously damaged or inoperative smoke alarm shall meet the requirements of this Article. Mass-market battery powered units, including those powered by alkaline batteries, capable of being used in other consumer applications or those powered by lithium batteries not sealed within the unit do not comply with the requirements of this provision for required alarms. Additional smoke alarms which are installed but are not required by this Article may be powered by alternating current or a battery.
(Ord. No. 99-62, § 1, 11-9-99)

Sec. 9.836. Tampering with, Disconnecting or Damaging a Smoke Alarm.

No person shall tamper with, meddle with, interfere with, damage, disconnect, deactivate or otherwise interfere with the effectiveness of a smoke alarm, except as otherwise permitted in this Article. Parents or other adults shall not disable a smoke alarm in a dwelling unit in which a child lives nor shall any parent or adult remove a battery from any smoke alarm in a dwelling unit in which a child lives unless that battery is immediately replaced by a fully functional battery. Smoke alarms not required by an existing law, ordinance or regulation may be moved, removed or replaced if such action does not result in non-compliance with this provision or another applicable law, ordinance, rule or regulation.
(Ord. No. 99-62, § 1, 11-9-99)

Sec. 9.837. Smoke Alarm Maintenance.

All smoke alarms installed in a dwelling unit, whether required or not, shall be maintained in full operating condition at all times, except as provided for in this Article.
(Ord. No. 99-62, § 1, 11-9-99)

Sec. 9.838. Smoke Alarm Required in Rental Units Prior to Occupancy.

No person shall rent to, lease to, let or license the occupancy of any property owned by, managed by or within the care, custody or control of that person for residential or sleeping purposes nor shall any person permit the use of any property owned by, managed by or within the care, custody or control of that person to be utilized for any residential or sleeping use unless the provisions of this Article are fully complied with. No person shall sleep or be allowed to sleep in any dwelling unit or other place not complying with the requirements of this provision for the presence of operating smoke alarms.
(Ord. No. 99-62, § 1, 11-9-99)

Sec. 9.839. Occupant of Property Required to Maintain Smoke Alarms.

No person who leases or rents property from another person, or who occupies or uses the property of another for residential or sleeping purposes shall permit a smoke alarm required by this Article to become inoperative by a failure to do periodic cleaning or maintenance or by failure to replace a battery.
(Ord. No. 99-62, § 1, 11-9-99)

Sec. 9.840. Smoke Alarms Not Required.

This Article shall not apply to structures which are not occupied for any purpose or which are not occupied at any time for sleeping or residential purposes. This Article shall apply to any dwelling unit or sleeping space that is occupied in any structure whether or not the remainder of the structure is occupied. Any institutional use or R-1 occupancy required to meet the requirements of another law, ordinance, rule or regulation providing protection equivalent or similar to the provisions of this Chapter is exempt from this Chapter provided that it is in full compliance with the other applicable requirement.
(Ord. No. 99-62, § 1, 11-9-99)

Sec. 9.841. Smoke Alarms and Fire Detection or Protection Systems To Be Maintained.

Smoke alarms or other fire detection or fire protection systems installed in compliance with, or not prohibited by, any other law, ordinance, rule or regulation are encouraged and shall be maintained in full operating condition until the

requirements of this provision and any other applicable law, ordinance, rule or regulation are met. If any fire detection or fire protection system other than a smoke alarm is deactivated or becomes inoperative, the Fire Chief or Fire Marshall shall be notified. Upon such notification, the Fire Chief or Fire Marshall may conduct an inspection of the premises and may take such action or issue such order as is permitted by law, ordinance, rule or regulation.
(Ord. No. 99-62, § 1, 11-9-99)

Sec. 9.842. Enforcement.

This provision shall be enforced as directed by the City Manager or the City Manager's designee.
(Ord. No. 99-62, § 1, 11-9-99)

Sec. 9.843. Approval of Smoke Alarms.

Approval of smoke alarms, fire detection or fire protection systems permitted by this Article shall be by the Fire Chief or the Fire Chief's designee. Each approved alarm shall have a "hush button" or silencing feature that will allow the alarm to be silenced for a short period of time in the case of nuisance alarms.
(Ord. No. 99-62, § 1, 11-9-99)

Sec. 9.844. Inspection.

Inspections to ensure compliance with this provision shall be conducted in accordance with applicable statutory and constitutional standards and as directed by appropriate employees in the City's administrative structure. Employees enforcing this provision are authorized to enter a structure or premises open to the public when the structure or premises is open to the public for the purpose of inspection, subject to applicable statutes and constitutional provisions. In all other instances, permission to inspect may be sought from an appropriate person or entry may be made as otherwise permitted by law.
(Ord. No. 99-62, § 1, 11-9-99)

Sec. 9.845. Definitions.

As used in this Article, the following terms shall have the indicated meanings:

Multiple Station - a group of single station smoke alarms which are connected so that activation of one causes all the connected alarms to activate.

Single Station - a smoke alarm which operates separately from other detection or alarm devices and is not connected to other such devices.

Smoke Alarm - a device which detects the visible or invisible products of combustion and sounds an alarm and which is approved as provided for in this Section.
(Ord. No. 99-62, § 1, 11-9-99)

Sec. 9.846. Exception.

Not withstanding any other provision of this Chapter, the provisions of this Chapter shall not apply to existing detached single-family owner occupied residences except as follows:

(1) Not less than one fully operative smoke alarm complying with the current Underwriter's Laboratory (U.L.) standard shall be installed on each level of every existing detached single-family owner occupied residence. On every level which has rooms used for sleeping purposes, a smoke alarm, which may be the alarm required on that level, shall be installed outside of the sleeping area in the immediate vicinity of the bedrooms, sleeping rooms or sleeping locations.

(2) All smoke alarms installed in a dwelling unit, whether required or not, shall be maintained in full operating condition at all times, except as provided for in this Article.

(3) No person shall tamper with, meddle with, interfere with, damage, disconnect, deactivate or otherwise interfere with the effectiveness of a smoke alarm except as otherwise permitted in this Article. Parents or other adults shall not disable a smoke alarm in a dwelling unit in which a child lives nor shall any parent or adult remove a battery from any smoke alarm in a dwelling unit in which a child lives unless that battery is immediately replaced by a fully functional battery. Smoke alarms not required by an existing law, ordinance or regulation may be moved, removed or replaced if such action does

not result in non-compliance with this provision or another applicable law, ordinance, rule or regulation.

(4) This provision shall only be applicable when possession is transferred, in whole or in part, by deed or land contract to another individual or entity. The person(s) or entity transferring possession in whole or in part shall be the party responsible under this Section to see that compliance is made.

(Ord. No. 2000-63, § 2, 11-14-00)

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Chapter 170

MUNICIPAL CIVIL INFRACTIONS*

Sec. 9.851. Definitions.
Sec. 9.852. Adoption and Incorporation of State Law by Reference.
Sec. 9.853. Commencement of Municipal Civil Infraction Action.
Sec. 9.854. Issuance and Service of Municipal Civil Infraction Citations.
Sec. 9.855. Contents of Municipal Civil Infraction Citations.
Sec. 9.856. Municipal Ordinance Violations Bureau.
Sec. 9.857. Violations Constituting Municipal Civil Infractions and Fines.
Secs. 9.857.1—9.857.26. Reserved.
Sec. 9.857.27. City Sewage Disposal System.
Secs. 9.857.28—9.857.31. Reserved.
Sec. 9.857.32. Stormwater.
Secs. 9.857.33—9.857.40. Reserved.
Sec. 9.857.41. Parks and Recreation.
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Sec. 9.857.51. Streets.
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Secs. 9.857.53—9.857.60. Reserved.
Sec. 9.857.61. Zoning.
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Sec. 9.857.94. Taxicabs.
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Sec. 9.857.131. General Building Regulations.
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Secs. 9.857.135—9.857.139. Reserved.
Sec. 9.857.140. Property Maintenance.
Secs. 9.857.141—9.857.150. Reserved.
Sec. 9.857.151. Nuisances.
Sec. 9.857.152. Fare Evasion.
Secs. 9.857.153, 9.857.154. Reserved.
Sec. 9.857.155. Urban Agriculture.
Secs. 9.857.156—9.857.159. Reserved.
Sec. 9.857.160. Discrimination in Real Property Transactions.
Secs. 9.857.161—9.857.163. Reserved.
Sec. 9.857.164. Parking Vehicles in Front Yards.
Sec. 9.857.165. Prohibition of Skateboarding.
Secs. 9.857.166—9.857.172. Reserved.
Sec. 9.857.173. Fireworks.
Sec. 9.857.174. Residential Rental Applications.

*__Editor's note—__It should be noted that the amendments made by Ord. No. 2000-50, adopted Sept. 5, 2000, are not effective until January 1, 2001.

Sec. 9.857.175. Crime Prevention Through Environmental Design (CPTED).
Secs. 9.857.176—9.857.180. Reserved.
Sec. 9.857.181. Traffic.
Sec. 9.858. Reserved.
Sec. 9.859. Miscellaneous Municipal Civil Infraction Provisions.
Secs. 9.860—9.870. Reserved.

Sec. 9.851. Definitions.

As used in this chapter:

(a) *Authorized City official* means a police officer or other employee or officer of the City authorized by this Code, state law or any other ordinance to issue municipal civil infraction citations or municipal civil infraction violation notices.

(b) *Bureau* means the Municipal Ordinance Violations Bureau, as currently existing or as may in the future be established.

(c) "*Isolated*" means a violation which is infrequent or where there is no pattern of non-compliance.

(d) *Municipal civil infraction action* means a civil action in which the defendant is alleged to be responsible for a municipal civil infraction.

(e) *Municipal civil infraction citation* means a written complaint or notice prepared by an authorized City official, directing a person to appear in a court designated on the municipal civil infraction citation regarding the occurrence or existence of a municipal civil infraction violation by the person cited and to answer to the allegations contained in the citation.

(f) *Municipal civil infraction determination* means a determination that a defendant is responsible for a municipal civil infraction by one of the following:

(i) An admission of responsibility for the municipal civil infraction.

(ii) An admission of responsibility for the municipal civil infraction, "with explanation".

(iii) A preponderance of the evidence at an informal hearing or formal hearing on the question under section Michigan Compiled Laws Sections 600.8719 or 600.8721, respectively.

(iv) A default judgment for failing to appear as directed by a citation or other notice, at a scheduled appearance under Michigan Compiled Laws Sections 600.8715(3)(b) or (4), at an informal hearing under Section 600.8719, or at a formal hearing under Section 600.8721.

(g) *Municipal civil infraction violation notice* means a written notice, prepared by an authorized City official, directing a person to appear at the 61st District Court or at a Municipal Ordinance Violations Bureau now existing or hereafter established to answer to the allegations made in the municipal civil infraction violation notice and to pay the fine and costs, if any, prescribed for the violation by the schedule of civil fines adopted by the City, as authorized by state law.

(h) "*Recurring*" means that there are violations for two or more consecutive monitoring periods or there is a pattern of non-compliance.

(i) "*Significant*" means a violation which fulfills any one of the requirements defined as Significant Non-compliance in Section 2.62(46) of the City Code unless the City Manager as defined in Chapter 27 of the Code determines that the Significant Non-compliance status is due solely to a low number of samples and that based on knowledge of the process(es) employed it is reasonable to conclude that the discharge is not representative for the period in question.

(j) *State Law* means the statutory law enacted by the State of Michigan, including, but not limited to, the Home Rule Cities Act (MCL 117.1 et seq.; Act 279 of the Acts of 1909, as amended up to and including Act 260 of the Public Acts of 1999), the Revised Judicature Act (MCL 600.1 et seq.; Act 236 of the Public Acts of 1961, as amended), the City and Village Zoning Act, (MCL 125.581 et seq.; Act 207 of the Public Acts of 1921, as amended), and the Housing Law of Michigan, (MCL 125.401 et seq.; Act 167 of the Public Acts of 1917, as amended).

(Ord. No. 2000-50, § 1, 9-5-00; Ord. No. 2004-07, § 1, 2-17-04)

Sec. 9.852. Adoption and Incorporation of State Law by Reference.

As provided for in state law, the City of Grand Rapids hereby adopts and incorporates the provisions of state law enabling municipalities to adopt and enforce ordinances declared to be municipal civil infractions to the fullest extent possible.
(Ord. No. 2000-50, § 1, 9-5-00)

Sec. 9.853. Commencement of Municipal Civil Infraction Action.

A municipal civil infraction action may be commenced upon the issuance by an authorized City official of a municipal civil infraction citation directing the alleged violator to appear in court; or a municipal civil infraction violation notice directing the alleged violator to appear at the Municipal Ordinance Violations Bureau.
(Ord. No. 2000-50, § 1, 9-5-00)

Sec. 9.854. Issuance and Service of Municipal Civil Infraction Citations.

Municipal civil infraction citations shall be issued and served by authorized City officials as follows:

(a) The time for appearance specified in a citation shall be within a reasonable time after the citation is issued.

(b) The place for appearance specified in a citation shall be the 61st District Court.

(c) Each citation shall be numbered consecutively and shall be in a form approved by the State Court Administrator. The original citation shall be filed with the District Court. Copies of the citation shall be retained by the City and issued to the alleged violator as provided for in state law.

(d) A citation for a Municipal civil infraction signed by an authorized City official shall be treated as if it were made under oath if the violation alleged in the citation occurred in the presence of the official signing the complaint and if the citation contains the following statement above the date and signature of the official: "I declare under the penalties of perjury that the statements above are true to the best of my information, knowledge and belief."

(e) An authorized City official may issue a citation to a person if:

(1) Based upon investigation, the official has reasonable cause to believe that the person is responsible for a municipal civil infraction; or

(2) Based upon investigation of a complaint by someone who allegedly witnessed the person commit a municipal civil infraction, the official has reasonable cause to believe that the person is responsible for an infraction, and the City Attorney approves in writing the issuance of the citation.

(f) Municipal civil infraction citations shall be served by an authorized City official as follows:

(1) Except as provided below, an authorized City official shall personally serve a copy of the citation upon the alleged violator.

(2) If the municipal civil infraction involves the use or occupancy of land, a building or other structure, a copy of the citation does not need to be personally served upon the alleged violator, but may be served upon an owner or occupant of the land, building or structure by posting the copy on the land or attaching the copy to the building or structure. In addition, a copy of the citation shall be sent by first class mail to the owner of the land, building or structure at the owner's last known address.

(Ord. No. 2000-50, § 1, 9-5-00)

Sec. 9.855. Contents of Municipal Civil Infraction Citations.

(a) A municipal civil infraction citation shall contain the name and address of the alleged violator, the municipal civil infraction or infractions alleged, the place where the alleged violator

shall appear in court, the telephone number of the court and the time at or by which the appearance shall be made.

(b) Further, the citation shall inform the alleged violator that he or she may do one of the following:

(1) Admit responsibility for the municipal civil infraction by mail, in person or by representation, at or by the time specified for appearance.

(2) Admit responsibility for the municipal civil infraction "with explanation" by mail by the time specified for appearance or in person, or by representation.

(3) Deny responsibility for the municipal civil infraction by doing either of the following:

A. Appearing in person for an informal hearing before a judge or District Court magistrate, without the opportunity of being represented by an attorney, unless a formal hearing before a judge is requested by the City.

B. Appearing in court for a formal hearing before a judge with the opportunity of being represented by an attorney.

(c) The citation shall also inform the alleged violator of all of the following:

(1) That if the alleged violator desires to admit responsibility "with explanation" in person or by representation, the alleged violator must apply to the court in person, by mail, by telephone or by representation within the time specified for appearance and obtain a scheduled date and time for an appearance.

(2) That if the alleged violator desires to deny responsibility, the alleged violator must apply to the court in person, by mail, by telephone or by representation within the time specified for appearance and obtain a scheduled date and time to appear for a hearing, unless a hearing date is specified on the citation.

(3) That a hearing shall be an informal hearing unless a formal hearing is requested by the alleged violator or the City.

(4) That at an informal hearing the alleged violator must appear in person before a judge or District Court magistrate, without the opportunity of being represented by an attorney.

(5) That at a formal hearing the alleged violator must appear in person before a Judge and will have the opportunity of being represented by an attorney retained at his or her own expense.

(d) The citation shall contain a notice in boldfaced type stating that the failure of the alleged violator to appear within the time specified in the citation or at the time scheduled for a hearing or appearance is a misdemeanor and will result in entry of a default judgment against the alleged violator on the municipal civil infraction.
(Ord. No. 2000-50, § 1, 9-5-00)

Sec. 9.856. Municipal Ordinance Violations Bureau.

(a) *Establishment.* There is hereby established a Municipal Ordinance Violations Bureau (the Bureau), as authorized by state law, to accept admissions of responsibility for municipal civil infractions in response to municipal civil infraction violation notices issued and served by authorized City officials, and to collect and retain civil fines and costs as prescribed by this Code or any other ordinance.

(b) *Location: Supervision: Employees.* The Bureau shall be located at City Hall and shall be under the supervision and control of the City Treasurer.

(c) *Disposition of Violations.* The Bureau may dispose only of municipal civil infraction violations for which a fine has been scheduled and for which a municipal civil infraction violation notice, and not a municipal civil infraction citation, has been issued. The fact alone that a fine has been scheduled for a particular violation shall not entitle any person to dispose of the violation at the Bureau. Nothing in this chapter shall prevent or restrict the City from issuing a municipal civil

infraction citation for any violation or from taking other action permitted by law. No person shall be required to dispose of a municipal civil infraction violation at the Bureau and may have the violation processed by the Court. The unwillingness of any person to dispose of any violation at the Bureau shall not prejudice the person or in any way diminish the person's rights, privileges and protections accorded by law.

(d) *Scope of Authority.* The scope of the Bureau's authority shall be limited to accepting admissions of responsibility for municipal civil infractions and collecting and retaining scheduled civil fines and costs as a result of those admissions. The Bureau shall not accept payment of a fine from any person who denies having committed the offense or who admits responsibility only with explanation, and in no event shall the Bureau determine, or attempt to determine, the truth or falsity of any fact or matter relating to an alleged violation.

(e) *Municipal Civil Infraction Violation Notices.* Municipal civil infraction violation notices shall be issued and served by authorized City officials under the same circumstances and upon the same persons as are provided for citations in this Chapter. In addition to any other information required by this Code or any other ordinance, the notice of violation shall indicate the time by which the alleged violator must appear at the Bureau, the methods by which an appearance may be made, the address and telephone number of the Bureau, the hours during which the Bureau is open, the amount of the fine scheduled for the alleged violation and the consequences for failure to appear and pay the required fine within the required time.

(f) *Appearance: Payment of Fines and Costs.* An alleged violator receiving a municipal civil infraction violation notice shall appear at the Bureau and pay the specified fine and costs at or by the time specified for appearance in the municipal civil infraction violation notice. An appearance may be made by mail, in person or by representation.

(g) *Procedure Where Admission of Responsibility Not Made or Fine Not Paid.* If an authorized City official issues and serves a municipal ordinance violation notice and if an admission of responsibility is not made and the civil fine and costs, if any, prescribed by the schedule of fines set forth in this Code for the violation, are not paid at the Bureau, a Municipal civil infraction citation may be filed with the 61st District Court, and a copy of the citation may be served by first class mail upon the alleged violator at the alleged violator's last known address. The citation filed with the court does not need to comply in all particulars with the requirements for citations as provided by state law, but shall consist of a sworn complaint containing the allegations stated in the municipal ordinance violation notice and shall fairly inform the alleged violator how to respond to the citation.

(Ord. No. 2000-50, § 1, 9-5-00)

Sec. 9.857. Violations Constituting Municipal Civil Infractions and Fines.

"Municipal Civil Infraction" shall include the following offenses set forth in this Code of Ordinances. A schedule of civil fines payable to the 61st District Court for admissions of responsibility served with municipal ordinance violation notices is hereby established. The fines for the violations listed below shall be as follows.

(Ord. No. 2014-82, § 1, 12-2-14; Ord. No. 2015-19, § 1, 4-14-15; Ord. No. 2015-65, § 1, 10-27-15; Ord. No. 2016-76, § 1, 11-15-16)

Secs. 9.857.1—9.857.26. Reserved.

Sec. 9.857.27. City Sewage Disposal System.

Code Chapter	*Code Section*	*Municipal Civil Infraction*	*Initial Offense*	*First Repeat Offense*	*Second Repeat and Subsequent Offense*	*Period for Repeat Offense*
27	2.66, 2.67, 2.62(46)	Pretreatment; violation of discharge limit.	$500.00	$500.00	$1,000.00	1 Year
27	2.66, 2.67, 2.62(46)	Pretreatment; violation of applicable technical review criteria (Note 1).	$1,000.00	per significant offense		1 Year
27	2.66(1)(b)	Building sewers and connections; failure to maintain grease trap.	$100.00	$250.00	$500.00	1 Year
27	2.66(1)(b)	Building sewers and connections; failure to maintain grease trap maintenance records.	$100.00	$250.00	$500.00	1 Year
27	2.66(1)(b), 2.66(1)(c)	Building sewers and connections; failure to install an interceptor device.	$100.00	$250.00	$500.00	NA (Note 2)
27	2.66(2)(a), 2.66(2)(d), 2.66(2)(e), 2.63.1, 2.83	Pretreatment; discharge that endangers human health or the environment or has caused the POTW to exercise its emergency authority.	$10,000.00 per significant offense	$10,000.00 per significant offense	$10,000.00 per significant offense	1 Year
27	2.66(2)(b), 2.66(2)(m)	Pretreatment; discharge of waste that causes obstruction.	$50.00	$250.00	$1,000.00	1 Year
27	2.66(2)(f)	Pretreatment; discharge causing pass through or interference (Note 3).	$1,000.00	$2,000.00	$5,000.00	1 Year
27	2.66(2)(j)	Building sewers and connections; discharging of wastes not containing sewage.	$50.00	$100.00	$500.00	1 Year

Code Chapter	*Code Section*	*Municipal Civil Infraction*	*Initial Offense*	*First Repeat Offense*	*Second Repeat and Subsequent Offense*	*Period for Repeat Offense*
27	2.66(3)	Pretreatment reporting violation; failure to notify of bypass.	$100.00	$500.00	$1,000.00	1 Year
27	2.67 Permit	Pretreatment; failure to meet compliance date within 30 days (Note 4).	$100.00 (Note 4)	$500.00 (Note 4)	$1,000.00 (Note 4)	1 Year
27	2.67(1)	Pretreatment; failure to meet compliance deadlines for existing or new source.	$500.00	$1,000.00	$2,000.00	1 Year
27	2.67(2)	Pretreatment; dilution of waste stream in lieu of treatment.	$500.00	$1,000.00	$2,000.00	1 Year
27	2.67(4)a, 2.67(4)b Permit	Pretreatment recordkeeping; failure to develop spill prevention and slug control plans (no harm).	$100.00	per isolated offense		NA (Note 2)
27	2.67(4)a, 2.67(4)b Permit	Pretreatment recordkeeping; failure to develop spill prevention and slug control plans (harm).	$1,000.00	per significant offense		NA (Note 2)
27	2.67(4)(d)	Pretreatment; failure to post POTW phone number in facility.	$50.00	$250.00	$1,000.00	1 Year
27	2.67(4)(d)	Pretreatment; failure to train employees in emergency notification procedure.	$50.00	$250.00	$1,000.00	1 Year
27	2.68(1)	Pretreatment; unpermitted discharge; failure to obtain permit.	$500.00	$1,000.00	$2,000.00	1 Year
27	2.69, 2.67(4)(c) Permit	Pretreatment reporting violation; failure to report spill or changed discharge (no harm).	$500.00	$1,000.00	$2,000.00	1 Year
27	2.69, 2.67(4)(c) Permit	Pretreatment reporting violation; failure to report spill or changed discharge (harm).	$500.00	$500.00	$1,000.00	1 Year

Code Chapter	*Code Section*	*Municipal Civil Infraction*	*Initial Offense*	*First Repeat Offense*	*Second Repeat and Subsequent Offense*	*Period for Repeat Offense*
27	2.70, 2.72(4), 2.77	Pretreatment monitoring violation; failure to monitor all pollutants according to permit.	$50.00	$500.00	$1,000.00	1 Year
27	2.72 Permit	Pretreatment monitoring violation; sampling using incorrect sampling collection technique.	$50.00	$250.00	$1,000.00	NA (Note 2)
27	2.72(4)	Pretreatment monitoring violation; sampling at incorrect location.	$50.00	$250.00	$1,000.00	NA (Note 2)
27	2.76	Pretreatment reporting violation; incomplete or missing records or reports.	$50.00	$250.00	$1,000.00	NA (Note 2)
27	2.76(1)	Pretreatment; failure to accurately report noncompliance.	$100.00	$500.00	$1,000.00	1 Year
27	2.76(1) Permit	Pretreatment reporting violation; failure to provide reports within 30 days.	$50.00	$500.00	$1,000.00	1 Year
27	2.77(1)	Pretreatment recordkeeping; copies of records denied.	$100.00	$500.00	$1,000.00	NA (Note 2)
27	2.77(1)	Pretreatment; entry for site visit denied or consent withdrawn.	$50.00	$250.00	$1,000.00	1 Year
27	2.77(3)	Pretreatment monitoring violation; failure to follow proper analytical requirements.	$50.00	$250.00	$1,000.00	1 Year
27	2.77(5)	Pretreatment reporting violation; failure to report additional monitoring.	$50.00	$250.00	$1,000.00	NA (Note 2)
27	2.78	Pretreatment monitoring violation; failure to install monitoring equipment.	$50.00	$250.00	$1,000.00	1 Year

Code Chapter	*Code Section*	*Municipal Civil Infraction*	*Initial Offense*	*First Repeat Offense*	*Second Repeat and Subsequent Offense*	*Period for Repeat Offense*
27	2.106(1)	Building sewers and connections; failure to obtain a sanitary sewer service application or notify of change in ownership.	$100.00	$250.00	$500.00	1 Year
27	2.109(5)	Building sewers and connections; failure to disconnect roof drain after notification.	$500.00	$1,000.00/day	$1,000.00/day	NA (Note 2)
27	2.110	Building sewers and connections; opening or connecting to public sewer without a permit.	$100.00	$250.00	$500.00	1 Year
27	2.111(1)	Building sewers and connections; connecting to public sewer without a permit.	$100.00	$250.00	$500.00	1 Year
27	2.111(2)	Building sewers and connections; failure to have building sewer connection inspected.	$100.00	$250.00	$500.00	1 Year
Note 1: Technical Review Criteria (TRC) = 1.4 times the limit for BOD, TSS, fats, oil and grease, and 1.20 times the limit for all other pollutants except pH which has no TRC.						
Note 2: NA means there is no time period after which a repeat offense is considered an initial offense.						
Note 3: Mercury elimination plans as described in Section 2.66(1)(q) of Chapter 27 of the code may be employed for mercury violations.						
Note 4: $100.00 for first offense, $500.00 if not compliant within 30 days, $1,000.00 if not complaint 60 days thereafter.						

(Ord. No. 2016-76, § 1, 11-15-16)

Secs. 9.857.28—9.857.31. Reserved.

Sec. 9.857.32. Stormwater.

Code Chapter	*Code Section*	*Municipal Civil Infraction*	*Initial Offense*	*First Repeat Offense*	*Second Repeat and Subsequent Offense*	*Period for Repeat Offense*
32	2.213	Stormwater discharge; failure to obtain a stormwater discharge permit.	$1,000.00	$1,750.00	$2,500.00	1 year

Code Chapter	*Code Section*	*Municipal Civil Infraction*	*Initial Offense*	*First Repeat Offense*	*Second Repeat and Subsequent Offense*	*Period for Repeat Offense*
32	2.231	Stormwater discharge; discharge of a pollutant into the public drainage system, public right-of-way, adjacent property, or water body of the state.	$1,000.00	$1,750.00	$2,500.00	Project Completion or 1 year
32	2.233	Stormwater discharge; interference with a natural or artificial drain.	$1,000.00	$1,750.00	$2,500.00	3 years
32	2.242, 2.243	Stormwater discharge; failure to install stormwater facilities to properly manage the discharge of stormwater runoff.	$1,000.00	$1,750.00	$2,500.00	1 year
32	2.251	Soil erosion and sediment control; failure to install erosion and sediment controls.	$1,000.00	$1,750.00	$2,500.00	Until Project Completion
32	2.251	Soil erosion and sediment control; failure to install appropriate or adequate erosion and sediment controls.	$1,000.00	$1,750.00	$2,500.00	Until Project Completion
32	2.251	Soil erosion and sediment control; failure to maintain erosion and sediment controls.	$1,000.00	$1,750.00	$2,500.00	Until Project Completion
32	2.252	Soil erosion and sediment control; failure to obtain a permit.	$500.00 or 50% of permit fee, whichever is greater	$500.00 or 50% of permit fee, whichever is greater	$500.00 or 50% of permit fee, whichever is greater	None (Note 1)
32	2.254(3)	Soil erosion and sediment control; failure to obtain a permit extension.	$1,000.00	$1,750.00	$2,500.00	1 year
Note 1: "None" means each offense is considered to be a separate and new offense.						

(Ord. No. 2016-76, § 1, 11-15-16)

Secs. 9.857.33—9.857.40. Reserved.

Sec. 9.857.41. Parks and Recreation.

Code Chapter	*Code Section*	*Municipal Civil Infraction*	*Initial Offense*	*First Repeat Offense*	*Second Repeat and Subsequent Offense*	*Period for Repeat Offense (Note 1)*
41	3.8	Park, pool or other facility after hours.	$100.00	$200.00	$400.00	NA
41	3.15	Domestic animals running at large within City parks.	$50.00	$100.00	$200.00	NA
41	3.18	Skateboards, bicycles, in-line skates, other recreational conveyances within City parks where prohibited by signs.	$50.00	$100.00	$200.00	NA
Note 1: "NA" means there is no time period after which a repeat offense is considered an initial offense.						

(Ord. No. 2016-76, § 1, 11-15-16)

Sec. 9.857.42. Trees.

Code Chapter	*Code Section*	*Municipal Civil Infraction*	*Initial Offense*	*First Repeat Offense*	*Second Repeat and Subsequent Offense*	*Period for Repeat Offense (Note 1)*
42	3.68(1)	Remove, prune, damage, harm City tree	$250.00	$500.00	$750.00	1 day (Note 1)
42	3.68(2)	Topping City tree	$250.00	$500.00	$750.00	1 day (Note 1)
42	3.68(3)	Attach rope, wire, nail, poster, hammock to City tree	$50.00	$100.00	$200.00	1 day (Note 1)
42	3.68(4)	Attach electrical line or device to City tree	$250.00	$500.00	$750.00	1 day (Note 1)
42	3.68(5)	Use of tree spur climbing spike on City tree	$100.00	$200.00	$400.00	1 day (Note 1)
42	3.68(6)	Deposit, store, maintain material on city property or right of way that impedes tree roots	$100.00	$200.00	$400.00	1 day (Note 1)
42	3.68(7)	Cause toxic substance to be located on City property or right of way	$250.00	$500.00	$750.00	1 day (Note 1)
42	3.68(8)	Causing fire damage to city tree	$250.00	$500.00	$750.00	1 day (Note 1)
42	3.68(9)	Engage in prohibited act listed in Tree Manual and Standards of Practice	$250.00	$500.00	$750.00	1 day (Note 1)

Code Chapter	*Code Section*	*Municipal Civil Infraction*	*Initial Offense*	*First Repeat Offense*	*Second Repeat and Subsequent Offense*	*Period for Repeat Offense (Note 1)*
42	3.68(10)	Violation of order issued under Tree Ordinance	$250.00	$500.00	$750.00	1 day (Note 1)
Note 1: per Sec. 3.70 Each day during which any violation shall occur or continue to occur shall be a separate offense.						

(Ord. No. 2016-76, § 1, 11-15-16; Ord. No. 2018-54, § 1, 9-11-18; Ord. No. 2018-60, § 1, 10-9-18)

Secs. 9.857.43—9.857.50. Reserved.

Sec. 9.857.51. Streets.

Code Chapter	*Code Section*	*Municipal Civil Infraction*	*Initial Offense*	*First Repeat Offense*	*Second Repeat and Subsequent Offense*	*Period for Repeat Offense*
51	4.2	Public right-of-way; obstructing the right-of-way without a permit.	$1,000.00	$1,750.00	$2,500.00	1 year
51	4.20	Public right-of-way; obstructing the sidewalk without a permit.	$1,000.00	$1,750.00	$2,500.00	1 year

Code Chapter	*Code Section*	*Municipal Civil Infraction*	*Initial Offense*	*First Repeat Offense*	*Second Repeat and Subsequent Offense*	*Period for Repeat Offense*
51	4.3	Public right-of-way; failure to obtain a permit.	$1,000.00	$1,750.00	$2,500.00	1 year
51	4.3	Public right-of-way; failure to comply with permit.	$1,000.00	$1,750.00	$2,500.00	1 year

(Ord. No. 2016-76, § 1, 11-15-16)

Sec. 9.857.52. Sidewalks.

Code Chapter	*Code Section*	*Municipal Civil Infraction*	*Initial Offense*	*First Repeat Offense*	*Second Repeat and Subsequent Offense*	*Period for Repeat Offense (Note 1)*
52	4.91	Operating a snowplow without a license.	$100.00	$250.00	$500.00	NA
52	4.94	Failure to display signage on snowplow; failure to display snowplow license.	$100.00	$250.00	$500.00	NA
52	4.99	Failure to properly deposit snow.	$100.00	$250.00	$500.00	NA
Note 1: "NA" means there is no time period after which a repeat offense is considered an initial offense.						

(Ord. No. 2016-76, § 1, 11-15-16)

Secs. 9.857.53—9.857.60. Reserved.

Sec. 9.857.61. Zoning.

Code Chapter	*Code Section*	*Municipal Civil Infraction*	*Initial Offense*	*First Repeat Offense*	*Second Repeat and Subsequent Offense*	*Period for Repeat Offense*
61	All	Zoning	$100.00	$200.00	$400.00	Misdemeanor (Note 1)
Note 1: Per Section 5.14.06(g) a fourth or subsequent violation is a misdemeanor.						

(Ord. No. 2016-76, § 1, 11-15-16)

Secs. 9.857.62, 9.857.63. Reserved

Sec. 9.857.64. Subdivision Regulations.

Code Chapter	*Code Section*	*Municipal Civil Infraction*	*Initial Offense*	*First Repeat Offense*	*Second Repeat and Subsequent Offense*	*Period for Repeat Offense*
64	Article 3	Land Division Ordinance.	$250.00	$500.00	$1,000.00	NA (Note 1)
Note 1: "NA" means there is no time period after which a repeat offense is considered an initial offense.						

(Ord. No. 2016-76, § 1, 11-15-16)

Secs. 9.857.65, 9.857.66. Reserved.

Sec. 9.857.67. Land Use and Development Services (LUDS).

Code Chapter	*Code Section*	*Municipal Civil Infraction*	*Initial Offense*	*First Repeat Offense*	*Second Repeat and Subsequent Offense*	*Period for Repeat Offense*
67	5.385	LUDS; failure to obtain a permit.	$1,000.00	$1,750.00	$2,500.00	1 year
67	5.385(10), 5.386(3)(b)	LUDS; failure to obtain a permit extension.	$1,000.00	$1,750.00	$2,500.00	(Note 1)
67	5.387	LUDS; failure to comply with any condition of a permit.	$1,000.00	$1,750.00	$2,500.00	(Note 1)
67	5.387	LUDS; failure to comply with any condition for receipt of Planning Commission approval or City Commission approval for the proposed site development.	$1,000.00	$1,750.00	$2,500.00	(Note 1)
67	5.387	LUDS; failure to comply with applicable laws, regulations and standards.	$1,000.00	$1,750.00	$2,500.00	(Note 1)
67	5.388(2)	LUDS; failure to comply with an Administrative Order.	$1,000.00	$1,750.00	$2,500.00	(Note 1)
Note 1: Project completion or 1 year, whichever is longer.						

(Ord. No. 2016-76, § 1, 11-15-16)

Secs. 9.857.68—9.857.70. Reserved.

Sec. 9.857.71. Clean Indoor Air Ordinance.

Code Chapter	*Code Section*	*Municipal Civil Infraction*	*Initial Offense*	*First Repeat Offense*	*Second Repeat and Subsequent Offense*	*Period for Repeat Offense (Note 1)*
71	All	Clean Indoor Air Ordinance.	$50.00	$50.00	$50.00	None
Note 1: "None" means each offense is considered to be a separate and new offense.						

(Ord. No. 2016-76, § 1, 11-15-16)

Secs. 9.857.72—9.857.93. Reserved.

Sec. 9.857.94. Taxicabs.

Code Chapter	*Code Section*	*Municipal Civil Infraction*	*Initial Offense*	*First Repeat Offense*	*Second Repeat and Subsequent Offense*	*Period for Repeat Offense*
94	7.84	Violating certain taxicab requirements pursuant to state law	$50.00	$100.00	$200.00	NA

(Ord. No. 2017-23, § 1, 3-7-17)

Secs. 9.857.95—9.857.108. Reserved.

Sec. 9.857.109. Telecommunications - Metro Act.

Code Chapter	*Code Section*	*Municipal Civil Infraction*	*Initial Offense*	*First Repeat Offense*	*Second Repeat and Subsequent Offense*	*Period for Repeat Offense (Note 1)*
109	All	Telecom-munications - Metro Act.	$250.00	$500.00	$750.00	NA
Note 1: "NA" means there is no time period after which a repeat offense is considered an initial offense.						

(Ord. No. 2016-76, § 1, 11-15-16)

Secs. 9.857.110—9.857.113. Reserved.

Sec. 9.857.114. Pedicabs.

Code Chapter	*Code Section*	*Municipal Civil Infraction*	*Initial Offense*	*First Repeat Offense*	*Second Repeat and Subsequent Offense*	*Period for Repeat Offense (Note 1)*
114	7.612	Failure to require a pedicab passenger to wear seatbelt.	$50.00	$50.00	$50.00	None
Note 1: "None" means each offense is considered to be a separate and new offense.						

(Ord. No. 2016-76, § 1, 11-15-16)

Sec. 9.857.115. Video Service Provider Right-Of-Way Management.

Code Chapter	*Code Section*	*Municipal Civil Infraction*	*Initial Offense*	*First Repeat Offense*	*Second Repeat and Subsequent Offense*	*Period for Repeat Offense (Note 1)*
115	All	Video Service Provider Right-of-Way Management.	$250.00	$500.00	$750.00	NA
Note 1: "NA" means there is no time period after which a repeat offense is considered an initial offense.						

(Ord. No. 2016-76, § 1, 11-15-16)

Secs. 9.857.116—9.857.130. Reserved.

Sec. 9.857.131. General Building Regulations.

Code Chapter	*Code Section*	*Municipal Civil Infraction*	*Initial Offense*	*First Repeat Offense*	*Second Repeat and Subsequent Offense*	*Period for Repeat Offense*
131	8.8	8.8(2)	$100.00	$200.00	$400.00	Misdemeanor (Note 1)
Note 1: Per Section 8.8(4) a fourth or subsequent violation is a misdemeanor.						

(Ord. No. 2016-76, § 1, 11-15-16; Ord. No. 2017-11, § 1, 2-14-17)

Sec. 9.857.132. Plumbing Code.

Code Chapter	*Code Section*	*Municipal Civil Infraction*	*Initial Offense*	*First Repeat Offense*	*Second Repeat and Subsequent Offense*	*Period for Repeat Offense*
132	8.32	8.32(2)	$100.00	$200.00	$400.00	Misdemeanor (Note 1)
Note 1: Per Section 8.32(4) a fourth or subsequent violation is a misdemeanor.						

(Ord. No. 2016-76, § 1, 11-15-16; Ord. No. 2017-11, § 1, 2-14-17)

Sec. 9.857.133. Electrical Code.

Code Chapter	*Code Section*	*Municipal Civil Infraction*	*Initial Offense*	*First Repeat Offense*	*Second Repeat and Subsequent Offense*	*Period for Repeat Offense (Note 1)*
133	8.81	8.81(2)	$100.00	$200.00	$400.00	Misdemeanor (Note 1)
Note 1: Per Section 8.81(4) a fourth or subsequent violation is a misdemeanor.						

(Ord. No. 2016-76, § 1, 11-15-16; Ord. No. 2017-11, § 1, 2-14-17)

Sec. 9.857.134. Mechanical Code.

Code Chapter	*Code Section*	*Municipal Civil Infraction*	*Initial Offense*	*First Repeat Offense*	*Second Repeat and Subsequent Offense*	*Period for Repeat Offense (Note 1)*
134	8.161	8.161(3)	$100.00	$200.00	$400.00	Misdemeanor (Note 1)
Note 1: Per Section 8.161(5), a fourth or subsequent violation is a misdemeanor.						

(Ord. No. 2016-76, § 1, 11-15-16; Ord. No. 2017-11, § 1, 2-14-17)

Secs. 9.857.135—9.857.139. Reserved.

Sec. 9.857.140. Property Maintenance.

Code Chapter	*Code Section*	*Municipal Civil Infraction*	*Initial Offense*	*First Repeat Offense*	*Second Repeat and Subsequent Offense*	*Period for Repeat Offense*
140	All provisions of City Code Chapter 140, or the IPMC adopted by reference therein, except those provisions specifically designated as misdemeanors in Section 8.503.	Any violation of the Property Maintenance Code.	$100.00	$200.00	$400.00	Misdemeanor (Note 1)
Note 1: Per Section 8.503, a fourth violation becomes a criminal misdemeanor.						

(Ord. No. 2016-76, § 1, 11-15-16)

Secs. 9.857.141—9.857.150. Reserved.

Sec. 9.857.151. Nuisances.

Code Chapter	*Code Section*	*Municipal Civil Infraction*	*Initial Offense*	*First Repeat Offense*	*Second Repeat and Subsequent Offense*	*Period for Repeat Offense*
151	9.35	Any violation of the Recreational Fire Section.	$100.00	$200.00	$400.00	None (Note 1)
151	9.63	Prohibited Noises.	$100.00	$200.00	$400.00	None
151	9.64	Prohibited Entertainment or Commercial Sound.	$200.00	$400.00	$800.00	None (Note 2)
151	9.65	Sound Pressure Limitations.	$100.00	$200.00	$400.00	None (Note 2)
151	9.70	Loud sound system in vehicle.	$100.00	$200.00	$400.00	None
151	9.108	Property maintenance nuisances.	$100.00	$200.00	$400.00	None
Note 1: Per Section 9.35(4), a fourth violation becomes a criminal misdemeanor. Note 2: Per Section 9.70.1(5), a violation is deemed a criminal misdemeanor if that person violated Section 9.64 or 9.65 of Article V of Chapter 151 within the prior six months. Per Section 9.70.1(6), in the case of continuous violations, each day a violation occurs or continues constitutes a separate infraction and may be punished separately.						

(Ord. No. 2016-76, § 1, 11-15-16; Ord. No. 2016-84, § 1, 12-6-16; Ord. No. 2019-72, § 1, 11-19-19; Ord. No. 2026-02, § 1, 1-13-26)

Sec. 9.857.152. Fare Evasion.

Code Chapter	*Code Section*	*Municipal Civil Infraction*	*Initial Offense*	*First Repeat Offense*	*Second Repeat and Subsequent Offense*	*Period for Repeat Offense (Note 1)*
152	9.162	Riding a Silver Line public transportation vehicle without paying fare.	$65.00	$130.00	$250.00	NA
Note 1: "NA" means there is no time period after which a repeat offense is considered an initial offense.						

(Ord. No. 2016-76, § 1, 11-15-16)

Secs. 9.857.153, 9.857.154. Reserved.

Sec. 9.857.155. Urban Agriculture.

Code Chapter	*Code Section*	*Municipal Civil Infraction*	*Initial Offense*	*First Repeat Offense*	*Second Repeat and Subsequent Offense*	*Period for Repeat Offense (Note 1)*
155	9.201—9.205	Keeping bees without a permit, in violation of the permit issued, or in violation of the Bees Ordinance requirements.	$50.00	$100.00	$200.00	NA

Code Chapter	*Code Section*	*Municipal Civil Infraction*	*Initial Offense*	*First Repeat Offense*	*Second Repeat and Subsequent Offense*	*Period for Repeat Offense (Note 1)*
155	9.212—9.216	Keeping backyard chickens without a permit, in violation of the permit issued, or in violation of the Backyard Chicken Ordinance requirements.	$50.00	$100.00	$200.00	NA
Note 1: "NA" means there is no time period after which a repeat offense is considered an initial offense.						

(Ord. No. 2016-76, § 1, 11-15-16; Ord. No. 2023-49, § 1, 10-10-23)

Secs. 9.857.156—9.857.159. Reserved.

Sec. 9.857.160. Discrimination in Real Property Transactions.

Code Chapter	*Code Section*	*Municipal Civil Infraction*	*Initial Offense*	*First Repeat Offense*	*Second Repeat and Subsequent Offense*	*Period for Repeat Offense (Note 1)*
160	All	Discrimination in real property transactions.	$1,000.00	$1,500.00	$2,000.00	NA
Note 1: "NA" means there is no time period after which a repeat offense is considered an initial offense.						

(Ord. No. 2016-76, § 1, 11-15-16)

Secs. 9.857.161—9.857.163. Reserved.

Sec. 9.857.164. Parking Vehicles in Front Yards.

Code Chapter	*Code Section*	*Municipal Civil Infraction*	*Initial Offense*	*First Repeat Offense*	*Second Repeat and Subsequent Offense*	*Period for Repeat Offense (Note 1)*
164	9.502	Parking in Front Yards.	$100.00	$200.00	$400.00	NA
Note 1: "NA" means there is no time period after which a repeat offense is considered an initial offense.						

(Ord. No. 2016-76, § 1, 11-15-16)

Sec. 9.857.165. Prohibition of Skateboarding.

Code Chapter	*Code Section*	*Municipal Civil Infraction*	*Initial Offense*	*First Repeat Offense*	*Second Repeat and Subsequent Offense*	*Period for Repeat Offense (Note 1)*
165	9.602	Skateboarding in the Downtown area.	$50.00	$100.00	$200.00	NA
Note 1: "NA" means there is no time period after which a repeat offense is considered an initial offense.						

(Ord. No. 2016-76, § 1, 11-15-16)

Secs. 9.857.166—9.857.172. Reserved.

Sec. 9.857.173. Fireworks.

Code Chapter	*Code Section*	*Municipal Civil Infraction*	*Each Offense*
173	All	Violating the provisions of the Fireworks Chapter	$1,000.00
Note: $500.00 of the fine collected under this section must be remitted to the local law enforcement agency responsible for enforcing the ordinance.			

(Ord. No. 2016-76, § 1, 11-15-16; Ord. No. 2019-23, § 1, 6-11-19)

Sec. 9.857.174. Residential Rental Applications.

Code Chapter	*Code Section*	*Municipal Civil Infraction*	*Initial Offense*	*First Repeat Offense*	*Second Repeat and Subsequent Offense*	*Period for Repeat Offense (Note 1)*
174	All	Violating the provisions of the Residential Rental Application Chapter.	$100.00	$200.00	$1,000.00	NA
Note 1: "NA" means there is no time period after which a repeat offense is considered an initial offense.						

(Ord. No. 2018-37, § 1, 7-10-18)

Sec. 9.857.175. Crime Prevention Through Environmental Design (CPTED).

Code Chapter	*Code Section*	*Municipal Civil Infraction*	*Initial Offense*	*First Repeat Offense*	*Second Repeat and Subsequent Offense*	*Period for Repeat Offense*
175	9.951	9.951.E	$100.00	$200.00	$400.00	Misdemeanor (Note 1)
Note 1: Per Section 9.951.E.3 a fourth or subsequent violation is a misdemeanor.						

(Ord. No. 2019-64, § 1, 9-24-19)

Secs. 9.857.176—9.857.180. Reserved.

Sec. 9.857.181. Traffic.

Code Chapter	*Code Section*	*Municipal Civil Infraction*	*Initial Offense*	*First Repeat Offense*	*Second Repeat and Subsequent Offense*	*Period for Repeat Offense (Note 1)*
181	10.132(1)	Operating a bicycle or micromobility device on a sidewalk within the Downtown Improvement District.	$50.00	$100.00	$200.00	NA
181	10.132(2)	Riding a bicycle or micromobility device on a sidewalk where traffic control devices or signs prohibit bicycles or micromobility devices.	$50.00	$100.00	$200.00	NA
181	10.132(3)	Failure to yield right-of-way to pedestrians or others using the sidewalk or trail.	$50.00	$100.00	$200.00	NA
181	10.132(4)	Failure to provide warning signal to pedestrians.	$50.00	$100.00	$200.00	NA
181	10.132(5)	Failure to yield right-of-way to turning vehicle.	$50.00	$100.00	$200.00	NA
181	10.132(6)	Failure to reduce speed or yield right-of-way at intersection.	$50.00	$100.00	$200.00	NA
181	10.132(7)	Failure to obey traffic control devices or signs while on a trail.	$50.00	$100.00	$200.00	NA
181	10.180	Operating a vehicle in a traffic lane designated for buses.	$100.00	$100.00	$100.00	NA
Note 1: "NA" means there is no time period after which a repeat offense is considered an initial offense.						

(Ord. No. 2016-76, § 1, 11-15-16; Ord. No. 2024-16, § 1, 4-9-24)

Sec. 9.858. Reserved.

Editor's note—Ord. No. 2014-82, § 2, adopted December 2, 2014, repealed § 9.858, which pertained to Violations Constituting Municipal Civil Infractions. See Code Comparative Table for complete derivation.

Sec. 9.859. Miscellaneous Municipal Civil Infraction Provisions.

(1) If the person is cited as a minor, that individual shall be permitted to appear in court or to admit responsibility for a civil infraction without the necessity of appointment of a guardian or next friend. A court having jurisdiction over a municipal civil infraction shall have jurisdiction over the minor and may proceed in the same manner as if that individual were an adult.

(2) A municipal civil infraction action is a civil action in which the defendant is alleged to be responsible for a municipal civil infraction as defined by state law and this Code. The plaintiff in a municipal civil infraction action shall be the City of Grand Rapids if the alleged municipal civil infraction is a violation of this Code, any other City ordinance designating the violation as a municipal civil infraction or a state law designating a violation as a municipal civil infraction.

(3) As provided for in Section 1.13 of this Code, each act of violation and every day upon which any violation is permitted or suffered to exist or continue shall constitute a separate violation and shall be punished separately upon admission or determination of responsibility. The penalty provided by this Chapter, shall apply to any amendment or addition to this Chapter or to the provisions of this Code defining substantive violations of this Chapter whether or not such penalty is reenacted in the amendatory ordinance.

(4) Disposition of Municipal Civil Infraction cases:

(1) If a defendant is determined to be responsible or responsible "with explanation" for a municipal civil infraction, the judge or district court magistrate may order the defendant to pay a civil fine, costs as provided for by law, and, if applicable, damages and expenses as provided in Michigan Compiled Laws Section 8733(2). In the order of judgment, the judge or district court magistrate may grant a defendant permission to pay a civil fine, costs, and damages and expenses within a specified period of time or in specified installments. Otherwise, the civil fine, costs, and damages and expenses are due immediately.

(2) If a defendant is ordered to pay a civil fine under subsection (1), the judge or district court magistrate shall summarily tax and determine the costs of the action, which are not limited to the costs taxable in ordinary civil actions and may include all expenses, direct and indirect, to which the plaintiff has been put in connection with the municipal civil infraction, up to the entry of judgment. Costs of not less than nine dollars ($9.00) or more than five hundred dollars ($500.00) shall be ordered. Except as otherwise provided by state law, costs shall be payable to the general fund of the plaintiff.

(3) In addition to ordering the defendant to pay a civil fine, costs, and damages and expenses, the judge or district court magistrate may issue a writ or order under Michigan Compiled Laws Section 8302.

(4) A district court magistrate shall impose the sanctions permitted under subsections (2) and (4) only to the extent expressly authorized by the chief judge [or] district court.

(5) The schedule of civil fines and costs to be imposed for municipal civil infractions which is required to be posted shall also be readily available for public inspection. The schedule need not include all municipal civil infractions. The schedule may exclude cases on the basis of a defendant's prior record of municipal civil infractions.

(6) A default in the payment of a civil fine, costs, or damages or expenses ordered pursuant to state law and this Code or an installment of the fine, costs, or damages

or expenses as determined by the court may be collected by a means authorized for the enforcement of a judgment pursuant to state law.

(7) If a defendant fails to comply with an order or judgment issued pursuant to state law within the time prescribed by the court, the court may proceed under Michigan Compiled Laws Sections 8729, 8731, or 8733, as applicable.

(8) A defendant who fails to answer a citation or notice to appear in court for a municipal civil infraction is guilty of a misdemeanor as provided for in state law.

(5) Default in payment of fines, costs, damages, or expenses.

(1) If a defendant defaults in the payment of a civil fine, costs, or, if applicable, damages or expenses as provided in state law, or any installment, as ordered, the court, upon the motion of the plaintiff or upon its own motion, may require the defendant to show cause why the defendant should not be held in civil contempt and may issue a summons, order to show cause, or a bench warrant of arrest for the defendant's appearance.

(2) If a corporation or an association is ordered to pay a civil fine, costs, or damages or expenses, the individuals authorized to make disbursement shall pay the fine, costs, or damages or expenses, and their failure to do so shall be civil contempt unless they make the showing required in this section.

(3) Unless the defendant shows that the default was not attributable to an intentional refusal to obey the order of the court or to a failure on his or her part to make a good faith effort to obtain the funds required for payment, the court shall find that the default constitutes a civil contempt and may order the defendant committed until all or a specified part of the amount due is paid.

(4) If it appears that the default in the payment of a fine, costs, or damages or expenses does not constitute civil contempt, the court may enter an order allowing the defendant additional time for payment, reducing the amount of payment or of each installment, or revoking the fine, costs, or damages or expenses.

(5) The term of imprisonment on civil contempt for nonpayment of a civil fine, costs, or damages or expenses shall be specified in the order of commitment, and shall not exceed one (1) day for each thirty dollars ($30.00) due. A person committed for nonpayment of a civil fine, costs, or damages or expenses shall be given credit toward payment for each day of imprisonment and each day of detention in default of recognizance before judgment at the rate of thirty dollars ($30.00) per day.

(6) A defendant committed to imprisonment for civil contempt for nonpayment of a civil fine, costs, or damages or expenses shall not be discharged from custody until one of the following occurs:

(a) The defendant is credited with the amount due pursuant to subsection (5).

(b) The amount due is collected through execution of process or otherwise.

(c) The amount due is satisfied pursuant to a combination of subdivisions (a) and (b).

(7) The civil contempt shall be purged upon discharge of the defendant pursuant to subsection (6).

(Ord. No. 2000-50, § 1, 9-5-00)

Secs. 9.860—9.870. Reserved.

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Chapter 171

CITIZEN BAND RADIO

Sec. 9.875. Purpose and Findings.
Sec. 9.876. Definitions and Abbreviations.
Sec. 9.877. FCC Regulations on File.
Sec. 9.878. Prohibited Conduct.
Sec. 9.879. Exemption.
Sec. 9.880. Violations Separate.
Sec. 9.881. Penalties and Sentencing.

Sec. 9.875. Purpose and Findings.

The City Commission of the City of Grand Rapids finds that some citizens band radio operators in the City of Grand Rapids have operated their citizens band stations in violation of the rules and regulations published by the Federal Communication Commission in 47 CFR, Part 95, Subpart D. The City Commission also finds that the Federal Communications Commission is unable to enforce its rules and regulations relating to the operation of citizens band stations. Therefore, it is necessary for the City of Grand Rapids to enforce the rules and regulations of the Federal Communications Commission in order to protect the health and safety of the citizens of Grand Rapids. More specifically, the City Commission finds that it is necessary to protect its citizens from unsolicited and unwanted invasions of their homes and interference with their home electronic devices caused by irresponsible citizens band station operators. Any violation of a provision of this Chapter is hereby declared a nuisance and may, in addition to the penalties provided for in Section 1.13 of this Code, be abated by any method provided for by law.
(Ord. No. 2001-13, § 1, 4-10-01)

Sec. 9.876. Definitions and Abbreviations.

(a) "Citizens band radio service", "CB radio service", or "CB" means Citizens Band Radio Service as defined in 47 CFR, Part 95, subpart D.

(b) "Citizens band transmitter" or "CB transmitter" means:

(1) An apparatus that converts electrical energy received from a source into radio frequency energy capable of being radiated; or

(2) An apparatus authorized by the FCC, pursuant to an application filed after September 9, 1976, for use in the operation of a CB station.

(c) "CB station" means a citizens band transmitter, radio, or other apparatus that transmits or emits energy in the frequencies assigned by the FCC for CB.

(d) "CFR" means Code of Federal Regulations.

(e) "FCC" means Federal Communications Commission.

(f) "Radio frequency interference" means radio frequency energy which:

1. Is radiated from a CB station; and

2. Interferes with the operation of any electronic device located off the premises of the CB station.

(Ord. No. 2001-13, § 1, 4-10-01)

Sec. 9.877. FCC Regulations on File.

Complete printed copies of the current FCC Regulations found at 47 CFR Part 95, Subpart D, shall be made available for public use and inspection at the Office of the City Clerk.
(Ord. No. 2001-13, § 1, 4-10-01)

Sec. 9.878. Prohibited Conduct.

No person shall violate any regulation of the FCC found at 47 CFR Part 95, Subpart D, which:

(A) Prohibits a use of citizens band radio equipment not authorized by the FCC.

(B) Prohibits the unauthorized operation of citizens band radio equipment on a frequency between 24 MHz and 35 MHz.

(Ord. No. 2001-13, § 1, 4-10-01)

Sec. 9.879. Exemption.

A station that is licensed by the FCC pursuant to section 301 of the Communications Act of 1934 (47 U.S.C. 301) in any radio service for the operation at issue shall not be subject to action by the City of Grand Rapids under this Chapter, as provided in 47 U.S.C. 302a(f)(2).
(Ord. No. 2001-13, § 1, 4-10-01)

Sec. 9.880. Violations Separate.

A person may be charged with more than one (1) violation of the provisions of this Chapter in a single complaint or appearance ticket. Each violation so charged shall be denominated as a separate count on the complaint or appearance ticket and on any warrant issued pursuant thereto. Each count shall be submitted separately to the court or jury for its determination as to the

defendant's guilt. Upon conviction, the court shall sentence the defendant separately on each count.
(Ord. No. 2001-13, § 1, 4-10-01)

Sec. 9.881. Penalties and Sentencing.

Upon conviction for violation of any provision of this Chapter, the court shall sentence the defendant to pay a fine of up to five hundred dollars ($500.00) or up to ninety (90) days in jail or both such fine and imprisonment as provided in Chapter 1, Section 1.13. The court may, in addition to such fine and/or imprisonment, place the defendant on probation for any period of time and subject to any conditions permitted by State law. The court may also, in appropriate cases, suspend all or part of any fine or term of imprisonment imposed on such terms and conditions as the court deems appropriate. The court shall exercise its authority to sentence the defendant to a term of probation and to prescribe the conditions therefor and its power to suspend all or part of any fine or term of imprisonment so as to bring about compliance with the terms of this Chapter and to prevent further violations.
(Ord. No. 2001-13, § 1, 4-10-01)

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Chapter 172

FALSE FIRE ALARMS*

Sec. 9.895. Purpose.
Sec. 9.896. Definitions.
Sec. 9.897. Registration of Fire Alarm System.
Sec. 9.898. Display of Fire Alarm Registration.
Sec. 9.899. Responsibility for Compliance; Requirement of Alarm User to Respond to Scene.
Sec. 9.900. False Fire Alarms.
Sec. 9.901. Service Fees.
Sec. 9.902. Conflict with Other City Ordinances.
Sec. 9.904. Penalties.

*__Cross references—__Alarm system inspection and service fees, § 8.67; false intrusion and holdup alarms, Ch. 163.

Sec. 9.895. Purpose.

(1) The purpose of this Chapter is to encourage Alarm Users and Fire Alarm Contractors to properly install, use and maintain Fire Alarm Systems in order to improve the reliability of such Systems and thereby reduce or eliminate False Fire Alarms.

(2) This Chapter governs the use of Fire Alarm Systems intended to summon the Grand Rapids Fire Department; requires registration of such Systems; allows for the assessment of Service Fees; and provides for civil penalties.
(Ord. No. 2006-35, § 1, 6-13-06)

Sec. 9.896. Definitions.

(1) *Adopted Code(s)* means the 2003 International Fire Code as amended by the City of Grand Rapids, as found at Chapter 159 of the Code of the City of Grand Rapids.

(2) *Alarm User* means any person; whether owner, occupant, or tenant, upon whose premises a Fire Alarm System is maintained or operated within the City of Grand Rapids.

(3) *Department* means the Grand Rapids Fire Department.

(4) *Enforcement Official* means the Grand Rapids Fire Chief or his/her designated representative.

(5) *False Fire Alarm* means the activation of any Fire Alarm System not caused by heat, smoke or fire, resulting in response by the Department. A False Fire Alarm includes, but is not limited to activation of a Fire Alarm System through any of the following:

a. negligent or intentional use or misuse of the System;

b. mechanical failure;

c. malfunction; or

d. improper installation.

A False Fire Alarm does not include an alarm caused by naturally occurring weather, seismic or other condition; interruption of electrical or telephone service to the Alarm User; or malicious or criminal activity by a third party who is not an agent or employee of the alarm user.

(6) *Fire Alarm Contractor* means any individual, partnership, corporation or other entity appropriately licensed as a Fire Alarm Contractor by the State of Michigan, State Electrical Administrative Board.

(7) *Fire Alarm Registration* means the documentation required by the Department to register a Fire Alarm System.

(8) *Fire Alarm System* means any device or equipment designed to signal visibly, audibly, electronically, mechanically or by any combination of these methods the presence of a heat, smoke or fire hazard to which the Department is trained to respond. The term Fire Alarm System does not include an alarm designed to alert only the inhabitants of a Premises.

(9) *Letter for Excessive False Fire Alarms* means a notification provided to an Alarm User by the Department for three (3) or more False Fire Alarms. This warning notice will require that the Fire Alarm System be inspected and/or serviced within fifteen (15) days, and that written documentation be submitted to the Department certifying that the Fire Alarm System is in working order. Failure to provide this written documentation will result in a Service Fee for excessive False Fire Alarms.

(10) *Premises* means any building, structure or combination of buildings and structures, in which a Fire Alarm System is installed.

(11) *Qualified Fire Alarm Technician* means any person who inspects, installs, repairs or performs maintenance on Fire Alarm Systems and is factory trained and licensed by the State of Michigan.

(12) *Record of Completion* means the form required to be filed with the Department pursuant to the National Fire Protection Association's National Fire Alarm Code (NFPA 72).

(13) *Service Fee* means the monetary charge payable to the City of Grand Rapids to defray the expenses of implementing the purposes of this Chapter.

(14) *Report of Service/Repair* means the appropriate documentation in a format acceptable to the Enforcement Official that verifies proper

repairs or maintenance have been performed by both the Fire Alarm Contractor and the Alarm User.
(Ord. No. 2006-35, § 1, 6-13-06)

Sec. 9.897. Registration of Fire Alarm System.

(1) *Registration Required.* All newly-installed Fire Alarm Systems shall be required to be registered at the time that a Record of Completion is prepared, in accordance with Adopted Codes. The Alarm User or his duly authorized agent shall complete and deliver the Fire Alarm Registration in the required format to the Enforcement Official before the Fire Alarm System is activated. For all existing Fire Alarm Systems as of the date of adoption of this Ordinance, Fire Alarm Registration shall occur not later than one hundred eighty (180) days after the effective date of this Chapter.

(2) *Change in Registration Information.* When any information contained in the Fire Alarm Registration Form is no longer accurate for any reason, the Alarm User shall re-register the Fire Alarm System not later than fifteen (15) days after the Alarm user becomes aware of any such change, noting all necessary changes on said Registration Form.

(3) *Transferals Prohibited.* Fire Alarm Registrations shall not be transferable from one Premise to another or from one Alarm User to another.

(4) *Notice to Department of Existence of System; Notice to Alarm User.* Every Fire Alarm Contractor shall notify the Enforcement Official of the existence of a Fire Alarm System before the Fire Alarm System is put into operation. It is the responsibility of the installing Fire Alarm Contractor to provide the Alarm User with notice of the existence of this Chapter, a Fire Alarm Registration form and a copy of the Fire Alarm System operation instructions in accordance with Adopted Codes, as well as the manufacturer's instructions.
(Ord. No. 2006-35, § 1, 6-13-06)

Sec. 9.898. Display of Fire Alarm Registration.

The Fire Alarm Registration shall be kept on the Premises serviced by the Fire Alarm System and shall be displayed upon request of the Enforcement Official or a member of the Department.
(Ord. No. 2006-35, § 1, 6-13-06)

Sec. 9.899. Responsibility for Compliance; Requirement of Alarm User to Respond to Scene.

(1) Unless otherwise stated herein, the Alarm User shall be responsible for complying with all provisions of this Chapter.

(2) The Alarm User or any person identified on the Fire Alarm Registration Application shall appear at the Premises upon request of the Department when a Fire Alarm System has been activated.
(Ord. No. 2006-35, § 1, 6-13-06)

Sec. 9.900. False Fire Alarms.

(1) Notification to Alarm User. If the Department records three (3) or more False Fire Alarms at one (1) Premises within a twelve (12) month calendar year, a Letter for Excessive False Fire Alarms shall be mailed by first class mail to the Alarm User and any Fire Alarm Contractor. Said notice shall direct that the Alarm User submit a Report of Service/Repair within fifteen (15) calendar days of receipt of said letter stating that:

a. The Fire Alarm System has been examined by a Qualified Fire Alarm Technician; and

b. A bona fide attempt has been made to identify and correct any defect of design, installation or operation of the Fire Alarm System which was identified as a possible cause of the False Fire Alarm.

(2) No Fee shall be assessed for the first two (2) False Fire Alarms at the same premises requiring response by the Department during any calendar year.

(3) Failure of the Alarm User to return a satisfactory Report of Service/Repair to the Enforcement Official within said fifteen (15) day period shall result in the imposition of a Service Fee.

(4) A Fire Alarm Contractor, Alarm User, or any other individual shall not conduct testing or perform repair work on any Fire Alarm System, sprinkler system or fire suppression system without first notifying the Department Dispatch Center that such testing or repair work is being performed. Violation of this subsection shall result in the imposition of a Service Fee.

(5) False Fire Alarms activated by any components connected to the Fire Alarm System shall be included in computing the total number of False Fire Alarms for purposes of this Chapter.

(6) During the fifteen (15) day period after receipt of a Letter for Excessive False Fire Alarms any additional False Fire Alarms will not be counted toward the year's total False Fire Alarms, provided that the provisions of subsection (A) above have been met.
(Ord. No. 2006-35, § 1, 6-13-06)

Sec. 9.901. Service Fees.

(1) The provisions of this Chapter shall not apply to any newly installed Fire Alarm System for a period of forty-five days (45) from the date of installation. In an existing building the forty-five (45) days begin when the installation of the new system is completed. In new construction the forty-five (45) days begin when the installation of the system is completed and an occupancy permit is issued. The provisions of this Chapter shall apply from and after the expiration of the initial forty-five (45) day period following the issuance of the occupancy permit and/or completed installation.

(2) Should any Service Fee assessed pursuant to this Chapter remain unpaid in excess of thirty (30) days, a Late Fee shall be assessed and shall be payable in addition to the Original Service Fee.

(3) The Service Fees established by this Chapter shall be calculated periodically based on employee labor rates, equipment costs and the Department service costs and established by appropriate City Commission Resolution.
(Ord. No. 2006-35, § 1, 6-13-06)

Sec. 9.902. Conflict with Other City Ordinances.

If the provisions of this Chapter conflict with any ordinance or resolution previously adopted by the City, the provisions of this Chapter shall control.
(Ord. No. 2006-35, § 1, 6-13-06)

Sec. 9.904. Penalties.

A violation of this Chapter shall be a Civil Infraction.
(Ord. No. 2006-35, § 1, 6-13-06)

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Chapter 173

FIREWORKS

Sec. 9.905. Definitions.
Sec. 9.906. Compliance with Applicable Ordinances and Codes.
Sec. 9.907. Use of Consumer Fireworks Prohibited.
Sec. 9.908. Firework Safety.
Sec. 9.909. Violations, Fines and Penalties.
Secs. 9.910—9.924. Reserved.

Sec. 9.905. Definitions.

As used in this chapter, the following definitions shall apply:

(1) *Act 634* means the Michigan Fireworks Safety Act, Act 634 of the Public Acts of Michigan of 2018, being MCL 28.451 et seq., as it may be amended from time to time.

(2) *Consumer fireworks* means that term as defined in Act 634.

(3) *Firework* or *fireworks* means that term as defined in Act 634.

(4) *Homemade fireworks* means that term as defined in Act 634.

(5) *Retailer* means that term as defined in Act 634.

(6) *Wholesaler* means that term as defined in Act 634.

(Ord. No. 2012-33, § 1, 6-19-12, eff. 7-1-12; Ord. No. 2019-22, § 1, 6-11-19)

Sec. 9.906. Compliance with Applicable Ordinances and Codes.

Unless otherwise provided in this Chapter, a retailer or wholesaler of fireworks located within the City must comply with the requirements of the City's Zoning Ordinance, as well as all building codes and regulations.

(Ord. No. 2012-33, § 1, 6-19-12, eff. 7-1-12)

Sec. 9.907. Use of Consumer Fireworks Prohibited.

(1) Unless otherwise provided in this Chapter, no person shall ignite, discharge, or use consumer fireworks in the City.

(2) A person may only ignite, discharge, or use consumer fireworks in the City on the following days after 11:00 a.m.:

(a) December 31 until 1:00 a.m. on January 1.

(b) The Saturday and Sunday immediately preceding Memorial Day until 11:45 p.m. on each of those days.

(c) June 29 to July 4 until 11:45 p.m. on each of those days.

(d) July 5, if that date is a Friday or Saturday, until 11:45 p.m.

(e) The Saturday and Sunday immediately preceding Labor Day until 11:45 p.m. on each of those days.

(Ord. No. 2012-33, § 1, 6-19-12, eff. 7-1-12; Ord. No. 2013-27, § 1, 6-25-13; Ord. No. 2019-21, § 1, 6-11-19)

Sec. 9.908. Firework Safety.

No person shall recklessly endanger the life, health, safety, or well-being of any person by the ignition, discharge, or use of consumer fireworks.

(Ord. No. 2012-33, § 1, 6-19-12, eff. 7-1-12)

Sec. 9.909. Violations, Fines and Penalties.

Any person violating the provisions of this Chapter shall be guilty of a municipal civil infraction, punishable by a fine as established in Chapter 170 of this Code.

(Ord. No. 2012-33, § 1, 6-19-12, eff. 7-1-12; Ord. No. 2013-27, § 2, 6-25-13; Ord. No. 2014-83, § 1, 12-2-14)

Secs. 9.910—9.924. Reserved.

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Chapter 174

RESIDENTIAL RENTAL APPLICATION FEES

Sec. 9.925. Rental application fee requirements.
Sec. 9.926. Complaint Procedure.
Sec. 9.927. Return of Fees.
Sec. 9.928. Penalties.

Sec. 9.925. Rental application fee requirements.

The Grand Rapids City Commission finds that rental application fees should be regulated to protect applicants from the unnecessary and predatory collection of fees. The purpose and intent of this Chapter is to establish rules and regulations for the collection and return of rental application fees in the city.

Rental application fee: A fee paid by the applicant (prospective tenant) to a rental property owner or his or her representative (hereinafter "rental property owner"), in order that the owner can screen the background of the applicant before signing the lease and before any contractual relationship is created. For purposes of this ordinance, applicants subject to screening are those individuals who sign or intend to sign a lease or other contractual agreement in relation to the rental unit.

(1) Before taking a rental application fee, a rental property owner must disclose to the applicant, in writing, the criteria on which the application will be judged. Additionally, the amount of the application fee that will be charged must be disclosed on any advertisement or posting related to the rental and the amount disclosed shall not be exceeded.

(2) Rental property owners shall only advertise rental units, receive applications, screen applicants, and accept application fees for rental properties when such rental properties are actually available and ready for occupancy, unless applicants consent in writing to being added to a waiting list. For purposes of this ordinance, a rental unit is no longer considered available if a different applicant has been screened by the rental property owner, has been offered the rental unit and accepted, and has placed a deposit on the rental unit. For purposes of this ordinance, a rental unit may be considered available if a tenant of a unit has declared they will not be renewing a lease. Rental property owners shall document the date and time that deposits are placed on rental units.

(3) A rental property owner shall provide an applicant with a disclosure statement at the time each application is made. Such disclosure statement shall (a) clearly state the criteria on which the application will be judged, (b) shall contain a description of the screening process utilized and the name and contact information of the person or screening agency or third party used, if any, in the screening process, (c) shall contain the amount of the fee that will be charged with the application, and (d) shall contain an itemized explanation for the disposition and use of the application fee. A rental property owner shall also provide the applicant with any paperwork or copies of electronic correspondence generated as a result of the screening process, to the extent permitted by State and Federal law. The disclosure statement shall also include the following statement: Within thirty (30) days of receipt of a denial, the applicant may, if he or she believes this ordinance has been violated, file a written complaint with the City Manager or the City Manager's Designee, addressed to City Manager, City of Grand Rapids, 300 Monroe Ave. NW, Grand Rapids, Michigan 49503, 6th Floor, Attention: Rental Application Fee Ordinance Complaint.

(4) Application fees for rental properties shall not exceed the actual cost of the screening process, which may include national, state and/or local criminal background checks, credit reports, rental history record and/or reference checks, eviction records and/or employment verification. Application fees shall not include administrative fees, with the exception of actual reasonable costs necessarily incurred to check rental history and employment verification which are considered valid charges. Rental property owners must provide applicants an itemized explanation for

the disposition and use of the application fee. A rental property owner shall also provide the applicant with any paperwork or copies of electronic correspondence generated as a result of the screening process, to the extent permitted by State and Federal law.

(Ord. No 2018-36, § 1, 7-10-18)

Sec. 9.926. Complaint Procedure.

(1) If the applicant believes the application fee exceeds the actual cost of the screening process as described in, and limited by, Section 9.925(4) or believes that the reasons for denial deviate from the legal, disclosed criteria for evaluating the application, or believes that the rental property owner has violated any other requirement of the ordinance, the applicant or his or her representative may, with assistance as needed, within thirty (30) days of receipt of the denial, file a written complaint with the City Manager or the City Manager's designee in accordance with Section 9.925(3) of this ordinance.

(2) The written complaint must be filed with the City Manager or the City Manager's designee within thirty (30) days from the date the denial is received by the applicant.

(Ord. No 2018-36, § 1, 7-10-18)

Sec. 9.927. Return of Fees.

(1) In addition to any fines imposed as the result of a municipal civil infraction incurred under this ordinance, the rental property owner must refund the entire application fee to the applicant if the rental property owner fails to comply with the requirements of this ordinance in any way, including but not limited to situations in which the screening process has not occurred or has not been documented sufficiently prior to denial.

(2) The return of any application fee to the applicant by the rental property owner as required by this ordinance shall be made using the same method in which the payment was made by applicant whenever possible. In all other cases, the return of the application fee shall be in the form of a check made out to the applicant.

(3) A rental property owner may collect and hold an application fee for an available rental unit for up to thirty (30) calendar days so long as the rental property owner provides a written receipt to the applicant. If a rental unit becomes no longer available after applications and application fees are received but before some applications have undergone the screening process, all application fees associated with the unscreened applications shall be returned to the respective applicants within not more than fourteen (14) calendar days from the date that the rental unit is no longer available in accordance with the meaning set forth in Section 9.925(2). Rental property owners shall date and time stamp each rental application in the order in which it is received.

(4) In all cases where an applicant is not offered the rental unit applied for, the rental property owner shall provide the applicant with a written notification statement explaining the reason or reasons that the rental unit was not offered to applicant. An explanation shall be given that provides the applicant with a clear statement of the reason or reasons that the rental unit was not offered along with the documentation substantiating the reason or reasons. The explanation shall also provide a list of resources that the applicant may use to assist him or her with future application processes. This provision shall be in addition to notification requirements within State and Federal law. For purposes of this ordinance, a denial means any circumstances in which the applicant is not offered the rental unit.

(Ord. No 2018-36, § 1, 7-10-18)

Sec. 9.928. Penalties.

(1) A violation of this ordinance shall be a municipal civil infraction punishable by a fine as established in Chapter 170 of the City Code.

(Ord. No 2018-36, § 1, 7-10-18)

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Chapter 175

CRIME PREVENTION THROUGH ENVIRONMENTAL DESIGN (CPTED) ORDINANCE

Article 1. Title, Purpose, And Scope

Sec. 9.929. Title.
Sec. 9.930. Purpose and Intent.
Sec. 9.931. Definitions.
Sec. 9.932. Administration.
Sec. 9.933. Severability.
Sec. 9.934. Fees.

Article 2. General Requirements Applicable To Establishments That Sell Tobacco, Alcohol, And Marijuana; Massage Businesses; And Establishments Open Later Than Midnight

Sec. 9.935. Applicability.
Sec. 9.936. Contact information.
Sec. 9.937. Visibility.
Sec. 9.938. Lighting.
Sec. 9.939. Property Maintenance.
Sec. 9.940. Rules Pertaining to Bodyworks Businesses.

Article 3. Enhanced Measures For Commercial Chronic Nuisance Establishments

Sec. 9.941. Purpose.
Sec. 9.942. Applicability.
Sec. 9.943. Procedure.
Sec. 9.944. Abatement and Enhanced Measures.
Sec. 9.945. Correction Agreement.
Sec. 9.946. Certificate of Compliance.

Article 4. Enforcement Procedures And Appeals

Sec. 9.947. Enforcement Process.
Sec. 9.948. Enforcement Appeals.
Sec. 9.949. Transfer of Ownership.

Article 5. Violations, Penalties, And Remedies

Sec. 9.950. Violations.
Sec. 9.951. Enforcement Powers.
Sec. 9.952. Commencement of Legal Action.
Sec. 9.953. Lien.
Sec. 9.954. Remedies Severable.

ARTICLE 1. TITLE, PURPOSE, AND SCOPE

Sec. 9.929. Title.

These regulations shall be known as the "CPTED" Ordinance of the City of Grand Rapids, Michigan.
(Ord. No. 2019-44, § 1, 8-27-19)

Sec. 9.930. Purpose and Intent.

(a) Crime Prevention through Environmental Design, known as CPTED (pronounced "septed"), is a philosophy of crime prevention that utilizes a multidisciplinary approach to the built environment that is intended to deter criminal behavior, foster improved quality of life, assist in achieving community-policing goals, and facilitate self-policing by the community. CPTED draws on passive strategies incorporated into the normal planning, design, and management of the built environment. This Chapter focuses on goals that relate to the physical built environment and generally addresses the following key elements of CPTED philosophy:

(1) Natural access management for the physical guidance of people and vehicles; and

(2) Natural surveillance to promote and maximize visibility; and

(3) Territorial reinforcement to delineate space and express a positive sense of ownership; and

(4) Physical maintenance and management for the general upkeep of a building or area.

(b) CPTED enhances community-policing, self-policing by the community, and collaboration between property owners, businesses, residents and neighborhoods in the following ways:

(1) The creation of a safe environment, both real and perceived, is coupled with place-making to foster community belonging and ownership that discourages criminal behavior.

(2) In healthy and safe communities, people are able to generate and implement practical solutions to neighborhood issues because residents are able to coordinate and communicate when not under environmental stress.

(3) Human-scaled, pedestrian-oriented environments allow for face-to-face social interaction, relationship building, the self-management of behaviors and community accountability.

(4) A relationship-based community can help encourage and maintain community self-policing efforts to reduce the need for City resources and police intervention in places that may be sensitive to a police presence.

(c) These provisions are intended to maintain and enhance the attractiveness and economic vitality of business districts and commercial areas by providing a comprehensive approach focused on establishments that sell tobacco, alcohol for off-premises consumption, and marijuana; bodyworks facilities and those potentially engaged in the illicit adult sexual services industry; and businesses that are open past midnight, subject to certain conditions, in the implementation of CPTED principles to create a safe environment for Grand Rapidians in the following ways:

Alignment of Provisions with CPTED Principles					
Ordinance Provisions	*Elements*	*Access Management*	*Natural Surveillance*	*Territorial Reinforcement*	*Property Maintenance*
Visibility	Window coverage, interior fixtures, window transparency, security devices, parking lots, cash register viewing window, video surveillance		X		
	Customer entrances	X			
Lighting	Sharp cut-off lighting, architectural lighting		X		
	Exterior doors and parking area	X	X	X	
Property Maintenance	Trash, litter, graffiti			X	X
	Vegetation maintenance to maintain vision, lighting, removal, maintain safe passage for pedestrians and vehicles	X	X	X	X

(d) The provisions of this Chapter are deemed to be the minimum requirements necessary for the promotion of the public health, safety and general welfare of the people of Grand Rapids. In addition to the standard requirements of this Chapter, enhanced measures are also provided to reduce recurring issues on sites of chronic noncompliance.

(e) These regulations should be used in conjunction with the associated relevant chapters of City Code, including the Zoning Ordinance, Nuisance Code, and Building Maintenance Code. (Ord. No. 2019-44, § 1, 8-27-19)

Sec. 9.931. Definitions.

The following definitions shall apply for purposes of this Chapter. Terms not defined in this Chapter shall be given their ordinary and common meaning. Where not otherwise evident, terms shall have the meaning given in the latest edition of Merriam Webster's Collegiate Dictionary.

Accent lighting. Lighting which serves to provide visual emphasis and attract attention rather than illuminate space for human activity.

Alcohol retail sales. A retail establishment licensed by the State of Michigan for the sale of beer, wine, liquor and other alcoholic beverages (also known as package goods) for consumption off-premises holding a Specially Designated Merchant (SDM) or Specially Designated Distributor (SDD) license. Restaurants shall be exempt from the requirements of this chapter.

Bodyworks. Any personal service that is not licensed by the State of Michigan and uses one (1) or more of the following practices: the use of touch, words, or directed movement to deepen awareness of patterns of movement in the body (including the Feldenkrais method and the Trager approach); the affectation of the human energy system or acupoints or qi meridians of the human body (including polarity therapy, Asian bodywork therapy, Reiki, and Shiatsu); reflexology; or structural integration. Bodyworks does not include massage therapy.

Cash register viewing window. A window through which the cash register for a convenience or package goods store shall be clearly visible from the street. The viewing window shall have a contiguous area of at least twenty (20) square feet of clear glass, minimum dimension of three (3) feet on any side, and have an unobstructed view into the store

Chronic nuisance establishment. An establishment that has been the subject of four (4) compliance letters, orders, or citations for violations of any state or local law issued by the City within any one-hundred-eighty-day period or, within a twenty-four-month period data demonstrates that the establishment contributes to impaired safety within the immediate vicinity which necessitates the deployment of additional city resources.

Clear glass. Clear or lightly tinted glass in windows, doors, and display windows with a glass that meets Visible Light Transmittance (VLT) and Visible Light Reflectance (VLR) standards. See "transparency".

Convenience store. A retail establishment with a limited sales area which may be a freestanding use or associated with another principal use.

Crime Prevention Through Environmental Design (CPTED). Architectural design, site design, and landscape design principles and standards intended to reduce the fear and incidence of crime, and to improve quality of life.

Customer entrance. The doorway into a building used for customers or patrons of the business establishment.

Establishment. A place of business that is licensed by the State of Michigan for tobacco, alcohol (off-premises consumption) and marijuana; provides "bodyworks" personal services; and businesses engaged in retail sales and assembly uses that have hours that extend past midnight; or businesses where repeated zoning, nuisance, building and other public safety issues arise that may benefit from the application of CPTED provisions. Retail businesses that are greater than twenty-five thousand (25,000) square feet in size shall be exempt from the requirements of this Chapter.

Exterior doors. Doorways that allow ingress to or egress from a building.

Glare. The condition that results from insufficiently shielded light sources or areas of excessive light within the field of view.

Graffiti. Any inscription, design, word, figure, or mark of any type drawn, marked, painted, tagged, etched, scratched, or written upon any building, bridge, fence, gate, rock, structure, tree, wall, or other property that defaces, damages, or destroys any public or private, real or personal property, without the privilege to do so.

IES. Illuminating Engineering Society.

Marijuana provisioning center or marijuana retail sales. An establishment licensed by the State of Michigan for the sale of medical marijuana or adult-use marijuana.

Massage therapy. Massage Therapy means the "practice of massage therapy" as that term is defined and regulated in the Public Health Code, Public Act 368 of 1978, Part 179A, MCL 333.17951 et seq. Only state-licensed massage therapists shall conduct massage therapy.

Parking area, parking lot. A paved area not within the right-of-way of any public or private street dedicated to vehicular ingress and egress, off-street parking, parking aisles, internal travel ways, fire lanes, and other areas dedicated to vehicular use, but not including vehicular storage or display areas.

Responsible person. Any person or persons related to the use or development of the land, including participating, assisting, directing, creating, causing, or maintaining a condition that results in a violation of this Chapter. The responsible person may include the property or land owner, tenant or occupant, agent, or any other person who has control over, or responsibility for, the property. Synonymous with responsible party.

Retail sales. Establishments primarily engaged in the sale of goods and materials to the general public.

Right-of-way. Any public street or other public place used for street or sidewalk purposes, including the area between the sidewalk and curb line.

Secondary location. A secondary business operation of the holder of an SDM license that has a primary building of twenty-five thousand (25,000) square feet or larger and an ancillary gas station as the secondary business, located on the same lot or adjacent lots, shall be considered as one (1) integrated development and exempt from this Chapter so long as the businesses remain under common ownership; including as a subsidiary or affiliate.

Sign. Any name, number, symbol, identification, description, display, illustration, object, graphic, sign structure, or part thereof, whether permanent or temporary, which is affixed to, painted on, represented directly or indirectly upon, or projected onto a building, structure, lot, or other device, whether mobile or affixed to the ground, and which directs attention to any object, product, place, activity, person, institution, organization, or business.

Transparency. The ability to see through with clarity. An opening in the building wall allowing light and views between interior and exterior. Measured as clear glass areas for buildings and as open areas for parking structures. Compare to "clear glass".

Window sign. Any sign affixed to or within twelve (12) inches of the interior or exterior of a window and which is intended to be seen by the public from the outside.
(Ord. No. 2019-44, § 1, 8-27-19)

Sec. 9.932. Administration.

The City Manager or designee is responsible for the administration of this Chapter.
(Ord. No. 2019-44, § 1, 8-27-19)

Sec. 9.933. Severability.

If any provision of this Chapter or application thereof to any person or circumstance is held invalid by any court, other provisions or applications of the Ordinance which can be given effect without the invalid provision or applications shall not be affected, and to this end the provisions of the Ordinance.
(Ord. No. 2019-44, § 1, 8-27-19)

Sec. 9.934. Fees.

Fees associated with the administration of this Chapter shall be set from time to time by resolution of the City Commission.
(Ord. No. 2019-44, § 1, 8-27-19)

ARTICLE 2. GENERAL REQUIREMENTS APPLICABLE TO ESTABLISHMENTS THAT SELL TOBACCO, ALCOHOL, AND MARIJUANA; MASSAGE BUSINESSES; AND ESTABLISHMENTS OPEN LATER THAN MIDNIGHT

Sec. 9.935. Applicability.

The requirements of this Article apply to a place of business that is licensed by the State of Michigan for tobacco, alcohol (off-premises consumption) and marijuana; provides "bodyworks" personal services; and businesses engaged in retail sales and assembly uses that have hours that extend past midnight. Businesses where repeated zoning, nuisance, building and other public safety issues arise that meet this Chapter's criteria of a chronic nuisance and where the public would benefit from the application of this Chapter for reasons of health, safety and welfare shall also be considered eligible.
(Ord. No. 2019-44, § 1, 8-27-19)

Sec. 9.936. Contact information.

Establishments meeting the requirements of this Chapter shall provide twenty-four-hour contact information to the City of Grand Rapids Planning Department. This information shall contain the contact name of the responsible party for the business, legal identification, mailing address, email and phone number. This information shall be updated annually.
(Ord. No. 2019-44, § 1, 8-27-19)

Sec. 9.937. Visibility.

(a) *Purpose and Intent.* The following regulations employ natural surveillance, natural access management, and territorial reinforcement techniques to establish a safe and comfortable environment. These regulations are intended to facilitate a clear, unobstructed view into and out of establishments, ensure customers can see and be seen when entering and leaving the premises, provide physical orientation and a pedestrian-friendly environment, and to discourage would-be offenders by making noncompliance obvious.

(b) *Effective date.*

(1) All existing windows shall comply with window coverage, interior fixture, window treatment, transparency, entrance identification, and security device requirements of this Section after the effective date of this Chapter.

(2) Improvements to customer entrances and parking areas, as described in this Section, shall be installed within three (3) years after the effective date of this Chapter. Glass replacement at customer entrances in order to meet transparency requirements shall comply after the effective date of this Chapter.

(c) *Identification.* Customer entrances shall be clearly identifiable by means of signage, architectural features, awnings, lighting, or other means, as otherwise permitted by other City codes and ordinances.

(d) *Window Coverage.* The view from outside of the building through windows, doors or other transparent surfaces shall not be obstructed or blocked by more than twenty-five (25) percent by any painted, stenciled, applied sign or film; bars or other security device; interior display, shelving, cooler, furniture; or other solid fixtures or covering, separately or in combination, except as outlined below. Window panes separated by muntins shall not be counted separately as windows but shall be included in the cumulative total square footage of window area.

(e) *Interior fixtures.* Movable fixtures including but not limited to interior displays, shelving, coolers, furniture, or other solid, movable fixtures above three (3) feet in height located on the interior of the establishment shall be set back a minimum of five (5) feet from the window. Interior fixtures closer than five (5) feet from the window shall be considered window coverage.

(f) *Window treatments.* Shades, blinds, curtains or other window treatments shall allow visibility into the establishment from the outside during business hours but may be used to temporarily filter or block direct sunlight during hours of operation.

(g) *Transparency.*

(1) Glass in ground floor windows, doors, and display windows shall be transparent or lightly tinted, maintain a visible light transmittance measurement of at least sixty-eight (68) percent, and have a reflectivity value of no greater than twelve (12) percent from both inside and outside. Mirrored or darkly tinted glass is not permitted.

(2) The area of the front and sides of a building between two (2) and eight (8) feet above the sidewalk (or ground level adjacent to the building if a sidewalk is not present) shall be used to measure transparency.

(h) *Customer Entrance.*

(1) Doors used for customer entry and exit shall be transparent or contain a transparent viewing window. The viewing window shall be located in the upper half of the door, be at least thirty (30) percent of the area of the door and be situated in a manner that promotes visibility from both sides of the door. Completely solid or opaque doors are not permitted.

(2) The primary building entrance shall be in the front façade parallel to the street and readily visible from the public right-of-way. At least one (1) main building entrance shall be located on the primary street.

(i) *Security Devices.*

(1) Steel barriers, shutters, hurricane curtains and other similar security devices are

not permitted on the exterior of the building. If located inside the building, they may not be visible from the public sidewalk or right-of-way during business hours.

(2) Security bars or other similar devices are permitted, subject to Section (b), above. Security bars count against window coverage.

(j) *Parking area.* A parking area abutting and associated with an establishment shall be readily viewed from inside the building by means of either a camera part of a functioning video surveillance system, or by a transparent window of at least six (6) square feet in area for every forty (40) linear feet or portion thereof of the wall(s) of a building that faces the parking area.

(k) *Administrative Departures.*

(1) An administrative departure may be granted for interior fixtures where minimum building transparency requirements listed in Building Elements tables of Articles 5, 6 and 7 of the Zoning Ordinance are satisfied.

(2) An administrative departure may be granted from window coverage, window treatment, or transparency requirements for non-compliant existing windows if another existing window is increased in size, or a new window is added, on the building façade commensurate with the area of the existing window that shall remain covered or non-transparent due to the operating needs of the business.

(3) An administrative departure may be granted for the placement of the customer entrance door if the building entrance is located within five (5) feet of a front corner of the building so long as the corner area of the entrance is at least sixty (60) percent transparent on the street-facing side and situated in a manner that promotes visibility from the public right-of-way.

(Ord. No. 2019-44, § 1, 8-27-19)

Sec. 9.938. Lighting.

(a) *Purpose and Intent.* The following regulations are intended to establish lighting standards based on IES-recommended best practices to promote safety, utility, security, productivity, commerce, and meet energy constraints with the following CPTED-related objectives: facilitate the visual ability of those performing security or enforcement functions; provide a clear view of an area from a distance, and enable anyone moving in or immediately around it to be easily seen and recognized; remove potential hiding places; permit identification and create the perception that those in the area are identifiable; complement other security devices; provide deterrence and aid in apprehension; and maintain visibility by minimizing and controlling the amount and type of lighting that tends to create glare.

(b) *Effective date.*

(1) All outdoor lighting installed after the effective date of this Chapter shall comply with these requirements. This includes, but is not limited to, new lighting, replacement lighting, or any other lighting whether attached to structures, poles, the earth, or any other location, including lighting installed by any third party.

(2) Existing outdoor lighting installed prior to the effective date of this Chapter that does not comply with these requirements shall be improved to within three (3) years after the effective date of this Chapter in a sufficient manner to meet the intent of this Section.

(c) Conformance with All Applicable Codes. All outdoor lighting shall be installed in conformance with the provisions of this Chapter, applicable Electrical and Energy Codes, and applicable sections of the Building Code.

(d) *Hours of Operation.* All lighting regulated by this Section shall operate from dusk to dawn.

(e) *General Standards.*

(1) *Lighting types.* All outdoor lighting regulated by this Chapter shall be full cut-off and fully shielded as defined by IES and directed downward to prevent

off-site glare and illumination. No portion of the lamp, reflector, lens, or refracting system may extend beyond the housing or shield, with the exception of pedestrian walkway ground lighting. The use of barn lights, non-shielded wall packs, floodlights, or lights not aimed downward is prohibited.

(2) *Solid-state luminaires (high-intensity discharge or LED modules)* shall be used in an effort to maintain a unified lighting standard.

(3) *Uniformity Ratios.* To maintain uniformity in light levels and prevent or minimize dark areas, the ratio of maximum to minimum lighting levels on a given lot is measured in footcandles at ground level and shall not exceed a ratio of fifteen-to-one (15:1). Parking lots shall maintain the same uniformity ratios as the main building or principal use served.

(4) *Intensity.* The intensity of light within a site shall not exceed ten (10) footcandles within any part of the site and one (1) footcandle at any lot line, except where it abuts or faces a Residential Zone District or residential use, a maximum of 0.5 footcandles is permitted.

(5) *Interior Lighting.* Any establishment in which the interior of the premises remains visually unobstructed after the close of business shall be illuminated with a low-level night light or equipped with a motion detector sensor.

(6) *Automatic Switching Requirements.* Any lighting required by this Chapter shall be equipped with controls that automatically extinguish all outdoor lighting when sufficient daylight is available.

(7) *Illumination of recessed areas.* Alcoves and other recessed areas of buildings or property that are capable of human concealment shall be illuminated during the hours of darkness.

(8) *Accent Lighting.*

a. Unshielded decorative lighting that causes glare, including, but not limited to luminous tube (neon), string, rope, tape, LED, fluorescent, or other similar lighting, is prohibited.

b. Landscaping lighting shall not generate excessive light levels, cause glare, or direct light beyond the landscaping intended to be featured.

c. Holiday lighting, or decorative lighting approved by the Planning Director, may be allowed in accordance with the Zoning Ordinance.

(9) *Exterior Doors.* Each exterior door shall be illuminated so that entry and exit activity is made clearly visible.

(10) *Parking Area.* A parking area abutting and associated with an establishment shall be illuminated in its entirety at an intensity of at least two (2) foot-candles per square foot at eighteen (18) inches as measured horizontally at the surface on which the light is mounted. Lighting reduction requirements of the Zoning Ordinance for parking areas containing a minimum of four (4) light poles apply.

(Ord. No. 2019-44, § 1, 8-27-19)

Sec. 9.939. Property Maintenance.

(a) *Purpose and Intent.* Regular property upkeep expresses ownership, communicates a space is cared for and protected, and allows for the continued use of a space for its intended purpose. Furthermore, proper maintenance promotes natural surveillance by minimizing the likelihood of landscaping obscuring views of outdoor areas from inside of the structure, enhances wayfinding and orientation, and serves as an additional expression of territoriality and ownership.

(b) *Effective date.* The properties of all establishments shall comply with the property maintenance requirements of this Section after the effective date of this Chapter.

(c) *General.*

(1) All exterior areas of a property shall remain sanitary and free of trash, garbage and litter.

(2) A trash receptacle shall be provided within five (5) feet of the exterior of the customer entrance, except if a business district trash receptacle is provided within ten (10) feet of the customer entrance.

(3) Commercial waste receptacles and enclosures shall not allow for easy concealment, nor create blind spots or hiding areas.

(4) Graffiti shall be removed within twenty-four (24) hours of its appearance on any surface on the subject property.

(5) The establishment and property shall be in compliance with all state, local and city ordinances.

(d) *Vegetation.*

(1) Views of windows, building address numbers, walkways and the line of vision to the establishment from the public right-of-way shall not be obstructed by vegetation.

(2) Reasonable pruning, trimming, or other suitable and acceptable methods shall be used to control vegetation. Vegetation and landscape areas shall be maintained substantially debris-free, neat and orderly in appearance, and in healthy growing condition. Dead vegetation shall be removed or replaced.

(3) Vegetation shall not interfere or obstruct any lighting required by this Chapter.

(4) The passage or movement of pedestrians or vehicles on any sidewalk, driveway, parking lot, or any other area intended for the use of pedestrians or vehicles shall not be obstructed or interfered with by vegetative overgrowth.

(Ord. No. 2019-44, § 1, 8-27-19)

Sec. 9.940. Rules Pertaining to Bodyworks Businesses.

(a) *Purpose and Intent.* Increased access, improved visibility, and operations requirements for bodyworks establishments can reduce or prevent sex trafficking, commercial sexual exploitation, and labor trafficking/exploitation. In addition to the provisions of this Chapter, the following rules are intended to deter illicit adult sexual services businesses.

(b) *Effective date.* All bodyworks establishments shall comply with the rules of this Section after the effective date of this Chapter in addition to all other provisions contained herein.

(c) *Hours of operation.* Bodyworks businesses shall maintain reasonable hours of operation; operating hours may begin at 7:00 a.m. and conclude by 10:00 p.m. Twenty-four-hour operations are prohibited.

(d) *Customer entry.* Customer access to the building entry shall only be through the front door of the primary building entrance facing the public right-of-way.

(e) *Occupancy and doors.* No person or persons shall be permitted to reside on the premises of a bodyworks business. Interior doors, other than those for restrooms, customer records and fire doors, shall not contain locks or locking mechanisms.

(f) *Licensure.* Only licensed massage therapists shall be allowed to operate as a massage business within the City of Grand Rapids. All valid, unexpired licenses shall be displayed at the front entrance of the business for each massage therapist employed. To verify that a massage therapist is licensed, an establishment shall produce the employee, legal identification and therapist's State of Michigan license for inspection. An establishment is not a bodyworks establishment where the principal use is to provide massage therapy by a licensed massage therapist, in compliance with Chapter 61 of the City Code, Zoning Ordinance. Bodyworks, as defined in this Chapter, is considered to be a separate use for personal services and is not designated or implied to be massage or massage therapy.

(Ord. No. 2019-44, § 1, 8-27-19)

ARTICLE 3. ENHANCED MEASURES FOR COMMERCIAL CHRONIC NUISANCE ESTABLISHMENTS

Sec. 9.941. Purpose.

Business establishments that accumulate several violations are particularly resource

intensive on City departments and deleterious to the neighborhood surrounding the property. It is the determination of the City Commission that additional enforcement remedies are necessary to address the public health, safety, and welfare issues created by establishments with chronic incidents in a coordinated way. Corrective measures that protect these establishments' employees, their customers, and the neighborhoods in which they are located can assist in reducing adverse impacts the quality of life for neighboring businesses and residents.
(Ord. No. 2019-44, § 1, 8-27-19)

Sec. 9.942. Applicability.

One of the following shall constitute the finding that an establishment is a chronic nuisance. Declaration of the establishment as a public nuisance shall subject it to the requirements of this Article.

(a) The establishment has been the subject of four (4) compliance letters, orders, or citations for violations of any state or local law issued by the City within any one-hundred-eighty-day period (calendar days).

(b) Data indicators within a twenty-four-month period demonstrate that the establishment contributes to criminal incidents (e.g. assaults, robberies) within the immediate vicinity resulting in increased calls for service, additional deployment of police resources for the protection of persons and property or investigations, and disinvestment or failure to thrive of nearby properties.
(Ord. No. 2019-44, § 1, 8-27-19)

Sec. 9.943. Procedure.

(a) The City Manager may declare the property is a nuisance, as defined in this Chapter, by issuing a Notice.

(b) Notice to the responsible person/s shall include:

(1) Street Address or a legal description sufficient for identification of the property;

(2) Declaration that the City Manager or designee has declared the property a nuisance with a concise statement specifying the conditions which constitute the nuisance;

(3) Demand that the responsible person respond to the City Manager or designee within seven (7) days of service of the notice to discuss a course of action to correct the conditions; and

(4) Notice that, if the responsible person does not respond to the City Manager or designee as required in this section, or if the matter is not voluntarily corrected satisfactorily, the City may file an action to abate the property as a chronic nuisance property pursuant to this Chapter or take any other legal action against the responsible person.

(c) When a notice is issued pursuant to this section to a responsible person, other than an owner or owner's agent, who has permitted a property to become a chronic nuisance property, a copy of which notice shall also be sent by first-class mail or personally served on the owner of the property, and a copy shall be sent by certified mail.

(d) If either of the following occurs, the City Manager may refer the matter to the City Attorney for initiation of proceedings pursuant to Article 5 of this Chapter:

(1) The agreed course of action does not result in the abatement of safety violations to the satisfaction of the City Manager or designee within thirty (30) days of issuance of the notice or within such longer period as permitted in writing; or

(2) The person fails to respond as required by the notice.
(Ord. No. 2019-44, § 1, 8-27-19)

Sec. 9.944. Abatement and Enhanced Measures.

(a) Pursuant to the issuance of a notice as described in Article 4, the City Manager or his/her designee may require a chronic nuisance

establishment to engage in one (1) or more corrective actions. Enhanced measures to ensure public safety, reduce unlawful incidents, and facilitate compliance are identified below. A written Correction Agreement, as provided in this Chapter, may be used as a tool to implement corrective actions and ensure all requirements are met.

(1) *CPTED Plan.* Develop a CPTED Plan in coordination with City staff and, accordingly, implement recommendations of the Plan; agree to a final inspection of the property to ensure compliance.

(2) *Good Neighbor Plan.* Produce and implement a Good Neighbor Plan, a written program relative to litter control, property and landscape maintenance, and neighborhood communication. Good Neighbor Plan requirements are contained in Article 12 of the Zoning Ordinance.

(3) *Cash register viewing window.* Install a window that allows a clear and unobstructed view of the cash register and sales transaction area from outside the building and in a normal line of sight. The viewing window shall be at least twenty (20) square feet in size, minimum dimension of three (3) feet on any side, and consist of clear glass. No signs shall be posted on the viewing window.

(4) *Age verification ID scanner.* Utilize an age verification identification scanner for age-restricted sales and uses.

(5) *Surveillance system.* Install and maintain a functioning video surveillance system capable of recording and retrieving a digital image to assist in offender identification and apprehension. Cameras associated with the system shall be positioned to capture images of alcohol display areas, the cash register; the customer entrance, and all exterior sides of the building. Enroll in the Police Department Security Camera Registration Program.

(6) *Maximum display shelving height.* Limit shelving height to five (5) feet on the sales floor when not located alongside a perimeter wall.

(7) *Height markers at the entrance.* Locate markers which display height measures at customer exit doors.

(8) *Silent alarm.* Equip the establishment with a functioning silent alarm to law enforcement or a private security agency, unless an application for an exemption is made to and granted by the City.

(9) *Drop safe/depository safe.* Utilize a drop safe or depository safe and limit the amount of cash kept on the premises after 11:00 p.m.

(10) *Crime prevention training plan.* The responsible person of the business shall prepare and submit a crime deterrence and safety training prevention plan for approval by the City. The establishment's manager and point of sale employees shall be trained on the curriculum within sixty (60) days of employment. Existing employees shall receive training within six (6) months of the date of notice.

(11) *Sales training plan.* The responsible person of the business shall prepare and submit a training curriculum covering laws regarding sales, identification verification, declining sales, conflict de-escalation and addressing customer behavior issues for approval by the City. The establishment's manager and point of sale employees shall receive training within sixty (60) days of employment. Existing employees shall receive training within six (6) months of the date of notice.

(b) The remedies available in this section are in addition to any other remedies available in this Chapter. Any other measure reasonably related to abate the chronic nuisance, when done as part of a Correction Agreement shall be permitted. Items related to the unique

circumstances associated with the property and neighborhood in which it is situated, including in a Good Neighbor Plan, may be included.
(Ord. No. 2019-44, § 1, 8-27-19)

Sec. 9.945. Correction Agreement.

A Correction Agreement is a contract between the City and the responsible person of the chronic nuisance establishment in which such person agrees to promptly take all lawful and reasonable actions, which shall be set forth in the agreement to abate the nuisance conditions within a specified time and according to specified conditions. The agreement shall be signed by the responsible person and, if different, the owner. The agreement shall be executed by the City Manager or designee in a form approved by the City Attorney. In no case shall the term of a Correction Agreement exceed one (1) year.

The agreement shall include the following:

(a) The name and address of the responsible person of the property;

(b) The street address or a description sufficient for identification of the property, building, structure, or land upon or within which the nuisance is occurring;

(c) A description of the nuisance conditions;

(d) The necessary corrective action to be taken, and a date or time by which correction must be completed;

(e) An agreement by the responsible person that the City may inspect the property as may be necessary to determine compliance with the correction agreement;

(f) An agreement by the responsible person that the City may abate the nuisance and recover its costs and expenses and monetary penalties pursuant to this Chapter from the responsible person for the nuisance if the terms of the correction agreement are not met; and

(g) When a responsible person, other than an owner or an owner's agent, has permitted a property to be a chronic nuisance property, an agreement by the owner to promptly take all acts and pursue all remedies requested by the City Manager or designee.

(h) An agreement that the City will not engage in any Additional Enforcement Remedies as long as the parties remain compliant with the terms and conditions of the Correction Agreement.

(i) An agreement that the terms and conditions contained in a Correction Agreement are not subject to appeal.

(Ord. No. 2019-44, § 1, 8-27-19)

Sec. 9.946. Certificate of Compliance.

A Certificate of Compliance shall be provided once the conditions of the Correction Agreement are satisfied. The compliance period shall be good for two (2) years during which the establishment shall be considered under probation and subject to bi-annual inspections. Failure to perform during that period may result in a revocation of the Certificate of Compliance and the creation of a new Correction Agreement or the commencement of enforcement activities.
(Ord. No. 2019-44, § 1, 8-27-19)

ARTICLE 4. ENFORCEMENT PROCEDURES AND APPEALS

Sec. 9.947. Enforcement Process.

(a) *Reasonable Entry.* Upon presentation of proper credentials and when permission is granted by a person who represents he or she has authority to grant permission, inspections may be conducted within the business, premises or accessory structures during reasonable hours. Entry without consent of an owner or an occupant shall require an administrative search warrant or order issued by a court of competent jurisdiction.

(b) *Access.* Every occupant of a building, premises or accessory structure shall give the Inspector access to any part of the building, premises or accessory structure thereto at all reasonable times for the purposes of making an

inspection and any documentation, such as licenses, as are necessary to comply with the Ordinance.

(c) *Basis of Inspections.* Inspections shall be made to obtain and maintain compliance with the provision of this Chapter for one (1) or more of the following purposes:

(1) To determine conformity with a permit, zoning approval, or other approval provided in this Chapter, as well as any special conditions imposed.

(2) To determine compliance with a notice or an order issued by the City.

(3) To verify a complaint received by the City, indicating that there is a violation of the provisions of this Chapter.

(4) To verify an observation by the City of a violation of the provisions of this Chapter or to investigate compliance with the provisions of this Chapter.

(5) To determine if an emergency is observed or reasonably believed to exist.

(6) To fulfill a request for an inspection made by the owner or responsible person.

(7) To inspect a designated area where all dwellings, accessory building, yards, and/or signs are to be inspected uniformly or intensively or for specific violations.

(d) *Content of Written Notices of Violation.* Written notices of violation authorized by this Chapter shall include the following information:

(1) A description of the real estate and/or project name sufficient for identification.

(2) A statement of the violation or violations.

(3) A correction order allowing a reasonable time to correct the violation and bring the property into compliance. If the written notice is a Notice to Abate, the notice shall indicate that the City may act to abate the violation if not brought into compliance.

(4) A statement that failure to comply with the Notice may result in further enforcement action.

(5) A statement that a fee shall be charged for the issuance of the Notice. If the written notice is a Notice to Abate, the cost of City action to abate the violation shall be a personal debt of the owner, which may be assessed as a lien against the property until paid.

(6) A description of the right to appeal, as applicable.

(e) *Method of Service.* The written notice of violation shall be deemed to be properly served in one (1) of the following ways:

(1) Delivered personally;

(2) Sent by first-class mail addressed to the last known address of the responsible person; or

(3) Any other method authorized for the service of process by court rule or State statute.

(f) *Posting.* After issuing a written notice of violation, the City, at its discretion, may post a copy of the written notice and/or a placard on the property.

(g) *Administrative Extension.* A request may be submitted by the property owner for an administrative extension to correct violations cited in a written notice of violation. The extension period shall be determined by the designated enforcement officer but shall not exceed six (6) months. An extension may be considered under the following circumstances.

(1) The extension will not adversely affect adjacent properties nor pose a health or safety hazard to the occupants or others.

(2) The owner or responsible person is making significant progress in correcting the violation(s); or

(3) There are clearly established extenuating circumstances delaying compliance which are beyond the control of the owner or responsible person.

(Ord. No. 2019-44, § 1, 8-27-19)

Sec. 9.948. Enforcement Appeals.

Except as otherwise provided in this Chapter, any person issued a notice by the City in the course of enforcing the provisions of this Chapter may appeal the decision or interpretation made by the City.

(a) *Written Notice.* An appeal of a written notice, order or ruling regarding a violation shall be made in writing within twenty (20) days of the date of the notice, order or ruling. However, if a notice, order, or ruling requires the correction of a cited violation within a shorter period of time, the appeal must be made within such shorter period.

(b) *Prohibited Appeals.* Appeals governed by this Chapter of the following orders, notices or rulings are prohibited:

(1) A determination that an emergency or hazard is present.

(2) A ruling, decision, opinion or action of the City Attorney or imposed by a Court of Law, or a civil infraction ticket.

(3) Conditions attached to an approved permit.

(4) A Correction Agreement.

(5) A Declaration of Nuisance and/or a Notice to Abate.

(6) State licensure definitions, requirements and rules.

(c) The Crime Prevention Through Environmental Design (CPTED) Appeals Board is authorized to hear and decide appeals concerning the application or interpretation of the provisions of this Chapter:

(1) All appeals shall be filed, heard and decided in accordance with the provisions set forth in Chapter 135, Article 5.

(2) No other extensions or further extensions from that allowed for under an Administrative Extension shall be permitted except by order of the CPTED Appeals Board for good cause.

(3) Extensions may be granted no more than three (3) times the length of time provided with the original Notice. The Board shall not permit more than one (1) extension.

(4) Extensions may be allowed when the Board finds that the time allowed is unreasonable, circumstances have prevented a good faith effort to comply, or substantial work has been completed and additional time is warranted.

(5) In making its determination, The CPTED Appeals Board shall read the Purpose and Intent of this Chapter and any associated articles that reflect on intent prior to making its decision.

(Ord. No. 2019-44, § 1, 8-27-19)

Sec. 9.949. Transfer of Ownership.

An owner or responsible person transferring ownership of a property notified as being in violation of a provision of this Chapter shall notify the City in writing within ten (10) days of the transfer with the name, address and telephone number of the new owner and the effective date of the transfer of ownership. The City shall issue a new Notice of Violation to any person assuming the ownership or the status of responsible person for any condition, building or structure which has been cited in a Notice of Violation.

(Ord. No. 2019-44, § 1, 8-27-19)

ARTICLE 5. VIOLATIONS, PENALTIES, AND REMEDIES

Sec. 9.950. Violations.

Except as otherwise provided in Section 9.951(E)(3), a violation of this Chapter shall be a municipal civil infraction punishable by a fine as established in Chapter 170 of the City Code for the first offense. All subsequent offenses shall be a misdemeanor punishable by a fine of up to five

hundred dollars ($500.00), or imprisonment for up to ninety (90) days, or both such fines and imprisonment. Each day that a violation continues after due notice has been served shall be deemed a separate offense and a separate violation subject to enforcement action.
(Ord. No. 2019-44, § 1, 8-27-19)

Sec. 9.951. Enforcement Powers.

(a) The City may use any lawful remedy or enforcement powers against the owner or responsible person for any violation of this Chapter, including, without limitation, one (1) or more of the actions of this Section. Remedies may be pursued simultaneously or sequentially and the pursuit of a single remedy does not foreclose the simultaneous or subsequent pursuit of other remedies. The remedies are cumulative and the City shall have all power granted from time to time under all applicable federal, state and local laws, rules and regulations:

(b) *Uncorrected Violations.*

(1) *Withhold Permit.* The City may deny or withhold any and all permits or other forms of authorization from an applicant on any property where there is an uncorrected violation of a provision of this Chapter or a condition or stipulation of approval for a permit or other authorization previously granted by the City. This enforcement provision shall apply regardless of whether the current owner or applicant is responsible for the violation in question.

(2) *Permit Approved with Conditions.* In addition to denying or withholding a permit or other authorization, the City may grant any permit or other authorization subject to the condition that the violation is corrected.

(c) *License Revocation.*

(1) The City may institute an action to suspend, revoke, deny, or not renew any city license required by City Code.

(2) Revocation, denial, or nonrenewal of State licensing may be sought for noncompliance of a recognized chronic nuisance establishment. The City reserves the right to notify the Michigan Liquor Control Commission (MLCC), Michigan Department of Licensing and Regulatory Affairs (LARA) and any other appropriate state agency required to engage with the subject business.

(3) Action taken under this subsection is not subject to appeal.

(d) *Court Order.* The City Attorney may bring and prosecute an action in any court of competent jurisdiction to:

(1) Enjoin the owner or responsible person from continuing operations of the business establishment; and/or

(2) Comply with the requirements of this Chapter.

(e) *Municipal Civil Infraction and Misdemeanor Penalties.*

(1) Municipal Civil Infractions. Enforcement of violations and application of Municipal Civil Infraction fees shall follow the procedures and schedule of fines established in Chapters 67 and 170 of the City Code, respectively.

(2) Except as provided in subsection (e)(1), above, a violation of this Chapter shall, until the fourth offense, constitute a Municipal Civil Infraction, which upon an admission or finding of responsibility shall result in fines established in Chapter 170 Municipal Civil Infractions of the City Code.

(3) A fourth offense shall be a misdemeanor punishable by a fine of up to five hundred dollars ($500.00), or imprisonment for up to ninety (90) days, or both.

(4) Proceedings may be instituted pursuant to Chapter 170 of the City Code. In addition, anyone pleading or found responsible shall pay the costs of enforcement and prosecution.

(5) In addition to civil fines, the District Court shall have equitable jurisdiction to enforce any judgment, writ or order necessary to enforce any provision of this

Chapter, including but not limited to order the abatement or correction of the offending action or condition or by granting injunctive relief.

(f) *Declaration of Nuisance and Notice to Abate.*

(1) A violation of this Chapter is a nuisance per se and the City may institute appropriate actions or court proceedings to correct, or abate any violation of the provisions of this Chapter. If the owner or responsible person fails to abate a violation, the City may take action to abate the violation.

(2) The abatement may be performed by the City, by a contract vendor, or by other means determined by the City, the actual cost which shall include an administrative fee, shall be a personal debt of the owner, and may be assessed as a lien against the property until paid.

(3) Upon observing a violation of the provisions of this Chapter, the City may issue a Notice to Abate. The Notice to Abate shall include:

a. The nature and location of the violation.

b. The time within which the violation must be abated.

c. Notice that the City may act to abate the violation if it is not abated by the owner or responsible person within a reasonable time stated in the Notice, but which may not exceed fifteen (15) days. If physical alterations of a building structure are required, the abatement period may be extended through the use of a correction agreement.

d. Notice that the cost of such action by the City, plus an administrative fee, shall be a personal debt of the owner, which may be assessed as a lien against the property until paid.

e. Notice that any refusal to allow the City to abate an uncorrected violation shall be a separate violation under this Code.

(Ord. No. 2019-44, § 1, 8-27-19)

Sec. 9.952. Commencement of Legal Action.

Upon referral by the City Manager, the City Attorney may initiate an action in any court of competent jurisdiction to abate violations of this article, to impose penalties pursuant to this chapter, to seek alternative remedies under city or state laws and seek any other relief authorized by law.

(Ord. No. 2019-44, § 1, 8-27-19)

Sec. 9.953. Lien.

All of the costs of Code enforcement activities provided for in this Code and incurred by the City shall be billed to the responsible person and shall be paid within thirty (30) days of mailing. All costs for abatement-related and Code enforcement activities shall be a personal debt owed to the City by the person billed for the public nuisance and, if the public nuisance is attributable to the use, occupancy, care, control, dominion or ownership of any land or premises, shall also, in addition to being a personal debt, be charged against such premises and the owner thereof and shall be a lien on the property until paid.

(Ord. No. 2019-44, § 1, 8-27-19)

Sec. 9.954. Remedies Severable.

Any action taken by the City to abate any public nuisance under the provisions of this Chapter, or any other provision of the City Code, shall not affect the right of the City to institute other legal or administrative proceedings against the person committing, creating, permitting or maintaining any public nuisance for violation of this Chapter nor affect the imposition of the penalty or remedy prescribed or imposed for such violation. Upon application by the City to any court of competent jurisdiction, the court may order the public nuisance abated and/or the violation or threatened violation restrained and enjoined.

(Ord. No. 2019-44, § 1, 8-27-19)

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Chapter 176

HUMAN RIGHTS*

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Sec. 9.956. Definitions.

Article 2. Prohibited Discriminatory Practices

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*__Editor's note—__Ord. No. 2019-43, § 1, adopted August 27, 2019, amended the Code by adding provisions designated as Ch. 175, §§ 9.935—9-953. Inasmuch as there were already provisions so designated, the provisions have been redesignated as Ch. 176, §§ 9.955—9.973 at the discretion of the editor.

ARTICLE 1. GENERAL PROVISIONS

Sec. 9.955. Statement of Public Policy.

It is hereby declared to be contrary to the public policy of the City of Grand Rapids (City) for any person to deny any individual the enjoyment of civil rights, or for any person to discriminate against any individual in the exercise of civil rights because of actual or perceived color, race, religion or creed, sex, gender identity or expression, sexual orientation, national origin, genotype, age, marital status, familial status, medical condition, disability, height, weight, or source of lawful income (cumulatively known as protected classes).
(Ord. No. 2019-43, § 1, 8-27-19)

Sec. 9.956. Definitions.

As used in this Chapter, the following words and phrases shall mean:

(1) *Age:* The length of time in years that an individual has lived.

(2) *Agent:* Any person acting on behalf of an employment, housing, public accommodation, or public services entity.

(3) *Bias:* A tendency, opinion, or inclination that is preconceived, unreasoned or based on protected class status including, but not limited to, prejudice in favor of or against one person, or group compared with another, usually in a way considered to be unfair or based on stereotypes.

(4) *Bona Fide Occupational Qualification:* A condition, characteristic, or factor which informs decisions and conduct with respect to a protected class in the area of employment when there are no less discriminatory means, but which is lawful, reasonable, necessary, and narrowly tailored to the safe, efficient, and standard operation of the employer, as further described in Section 9.959 below.

(5) *City:* The City of Grand Rapids, Michigan.

(6) *Color:* pigmentation of the skin.

(7) *Complainant:* a person aggrieved by a violation of a provision of this Chapter who files a complaint with the Office of Diversity and Inclusion (ODI).

(8) *Conviction Record:* the history of all criminal convictions of an individual in any jurisdiction, including time served in prison, jail, juvenile detention, probation, rehabilitation or diversionary programs, or placement on a sex offender registry.

(9) *Creed:* A system of beliefs, principles, or opinions that guides an individual's actions.

(10) *Disability:* A physical or mental characteristic of an individual which may result from disease, injury, congenital condition, or functional disorder, if the characteristic:

(a) For purposes of employment, substantially limits one or more of the major life activities of an individual but is unrelated to that individual's qualifications for employment or ability to perform the duties of a particular job or position; or

(b) For purposes of public accommodation, is unrelated to an individual's ability to use and benefit from a place of public accommodation or public service; or

(c) For purposes of housing, substantially limits one or more of an individual's major life activities but is unrelated to that individual's ability to acquire, rent or maintain property.

For the purposes of this Chapter, disability shall include, but not be limited to, the use of adaptive aids, devices, or guides, but shall not include temporary impairments associated with drug or alcohol consumption

(11) *Discrimination:* To make or refrain from making a decision, selectively furnish or withhold access, or act or threaten to act

in an adverse way in the areas of employment, housing, public accommodation, public services, or other benefit, based in whole or in part on the actual or perceived status of an individual as a member of a protected class. Discrimination includes:

(a) The use of facially neutral practices that have an adverse impact on members of a protected class.

(b) Harassment directed at a protected class; harassment does not need to be both severe and pervasive.

(c) Any act which results in unequal treatment or segregation of an individual.

(12) *Employee:* An individual performing lawful work for another person who does not share familial status with that person, in exchange for monetary compensation.

(13) *Employer:* Any person compensating one or more individuals for the performance of work in a lawful business or enterprise.

(14) *Equal:* Subject alike to all requirements, qualifications, conditions, and considerations that are not prohibited grounds of discrimination.

(15) *Familial Status:* An individual's position within the network of that individual's biological and legal relations within three degrees of consanguinity, or through marriage, adoption or other legal custodial relationship.

(16) *Gender Identity or Expression:* An individual's actual or perceived sex including identity, self-image, appearance, expression, or behavior, whether or not that identity, self-image, appearance, expression, or behavior is different from that traditionally associated with the individual's biological sex assigned at birth.

(17) *Genotype:* The genetic constitution of an individual.

(18) *Harassment:* Conduct or communication directed at another individual intentionally for the purpose or effect of creating an intimidating, hostile, or offensive environment with regard to employment, public accommodation, public services, or housing.

(19) *Height:* Length of an individual's body as measured in feet and inches.

(20) *Housing:* Any real property, building, structure, or portion thereof which is used or occupied, or is intended to be used or occupied, as the home or residence of one or more individuals. This includes, but is not limited to, a house, apartment, condominium unit, rooming house, housing cooperative, homeless shelter, hotel, motel, tourist home, retirement home, or nursing home.

(21) *Marital Status:* The state of being married, remarried, never married, divorced, or widowed.

(22) *Medical Condition:* All past or present physical or mental health diagnoses, treatments, and procedures an individual has received, associated symptoms and risk factors, and effects of such diagnoses, treatments, and procedures.

(23) *National Origin:* An individual's nation of origin, or the physical, cultural, or linguistic characteristics associated with that nation or a part thereof.

(24) *Office of Diversity and Inclusion (ODI):* The department of the City responsible for promoting diversity and ensuring compliance with civil rights laws.

(25) *Perceived:* The perception of a person who acts, but not necessarily the perception of an individual for or against whom the action is taken.

(26) *Person:* An individual, association, partnership, agency, organization, or corporation, public or private, including all employees thereof. The term, when applied to partnerships, associations, and corporations, includes members and officers.

(27) *Protected Class:* Any group or status identified in Section 9.955.

(28) *Public Accommodation:* A facility, including a governmental entity or business, offering or furnishing goods, services, places, privileges, or advantages to the general public for purchase, consumption, use, or acquisition, including, but not limited to, hotels, motels, housing, restaurants, taverns, concert and entertainment venues, retail and service enterprises, public services, and certain educational institutions. Public services include those goods or services provided by the City in the public interest to the people living within its jurisdiction, either directly or under contract.

(29) *Race:* The perceived status of human beings as belonging to distinct groups based on inherited characteristics primarily identified by skin color, and which is a social construct unsupported by the science of genetics.

(30) *Religion:* A particular system of faith and worship.

(31) *Retaliation:* Adverse action taken against the person who filed a complaint or participated in a complaint investigation under the Human Rights Ordinance.

(32) *Sex:* The biological designation of male or female assigned at birth. For gender, see subsection (16) above.

(33) *Sexual Harassment:* A type of discrimination including, but not limited to, unwelcome sexual advances, requests for sexual favors, and other verbal or physical conduct or communication of a sexual nature when:

(a) Submission to such conduct or communication by an individual is made a term or condition, either explicitly or implicitly, of obtaining employment, public accommodation, public services, or housing.

(b) Submission to or rejection of such conduct or communication by an individual is used as a factor in decisions affecting the individual's employment, public accommodation, public services, or housing.

(c) Such conduct or communication has the purpose or effect of substantially interfering with an individual's employment, public accommodation, public services, or housing, or creating an intimidating, hostile, or offensive employment, public accommodation, public services, or housing environment.

(34) *Sexual Orientation:* An individual's sexual and/or romantic identity in relation to the gender(s) to which the individual is attracted, or the absence of such sexual and/or romantic identity.

(35) *Source of Lawful Income:* Any legal source from which an individual obtains money.

(36) *Weight:* The body mass of an individual measured in pounds.

(Ord. No. 2019-43, § 1, 8-27-19)

ARTICLE 2. PROHIBITED DISCRIMINATORY PRACTICES

Sec. 9.957. In General.

(1) No person shall adopt, enforce, or employ any policy, requirement, qualification, practice, or factor which has the effect of creating unequal treatment or opportunities relating to housing, employment, public accommodations or public services on the basis of actual or perceived membership in a protected class as defined under Section 9.955 of this Chapter, except as exempted under Section 9.964 of this Chapter.

(2) The prohibitions against discrimination as provided for in this Chapter shall not be deemed preempted by state or federal law, but are intended to supplement such law.

(3) This Chapter shall be construed and applied in a manner consistent with the First and 14th Amendments of the U.S. Constitution and Art. I, § 2 of the Constitution of Michigan regarding freedom of speech and free exercise of religion.

(Ord. No. 2019-43, § 1, 8-27-19)

Sec. 9.958. Discriminatory Housing Practices.

(1) The opportunity to purchase, lease, rent, sell, use, convey, and finance housing without discrimination on the basis of actual or perceived membership in a protected class as identified in Section 9.955 of this Chapter is hereby recognized and declared to be a civil right.

(2) The provisions of Chapter 160 of the City Code shall apply to discriminatory housing practices, including but not limited to those provisions governing discriminatory housing and financial practices, exceptions, blockbusting, and violations.

(3) In addition to the exemptions contained in Chapter 160 of the City Code, the following considerations may result in exceptions to discriminatory housing practices:

(a) *Safety.* Any decision based upon the reasonable and well-substantiated belief that an individual's physical or mental health poses a serious threat to the health, safety, and welfare of the individual, other residents, or other persons

(b) *Conviction Record.* History of criminal conviction may be considered in housing decisions, although arrest with no conviction may not be considered. An outright ban on prospective tenants with a criminal background is prohibited. Landlords must carefully consider, on a case-by-case basis, the nature and severity of the crime, the age of the individual at the time of the crime, whether there have been repeat offenses, whether the individual maintained a good tenant history before or after the conviction, evidence of rehabilitation efforts, and whether the crime for which the individual was convicted may pose a demonstrable risk to the health, safety or welfare of other residents or persons (which would include manufacturing or distributing illegal drugs) or to property.

(c) *Competence.* Any decision which is based upon the reasonable and well-substantiated belief that an individual is incapable of satisfactorily fulfilling reasonable responsibilities associated with the housing arrangement.

(d) The following are not legitimate exceptions:

i. The anticipated or actual objections of other residents, neighbors, or persons.

ii. Mere inconvenience, less than an undue hardship, to a housing agent in procuring or providing reasonable aid to a member of a protected class to accommodate that individual's needs.

(Ord. No. 2019-43, § 1, 8-27-19)

Sec. 9.959. Discriminatory Employment Practices.

(1) The opportunity to obtain employment and advancement opportunities without discrimination on the basis of actual or perceived membership in a protected class as identified in Section 9.955 of this Chapter is hereby recognized and declared to be a civil right. No person shall discriminate against a current or prospective employee with respect to hire, tenure, terms, conditions, or privileges of employment, or any matter directly or indirectly related to employment, unless such act is based on a bona fide occupational qualification.

(2) The City as an employer shall also be bound by the provisions of Section 1.150 of the City Code.

(3) Bona fide occupational qualifications shall include:

(a) *Safety.* Any decision based upon the reasonable and well-substantiated belief that an individual's physical or mental health poses a serious threat to the health, safety, and welfare of the individual or other employees or customers.

(b) *Conviction Record.* History of criminal conviction may be considered in employment decisions, although arrest with no conviction may not be considered. An

outright ban on prospective employees with a criminal background is prohibited. Employers must carefully consider, on a case-by-case basis, the nature and severity of the crime, the age of the individual at the time of the crime, whether there have been repeat offenses, whether the individual maintained a good employment history before or after the conviction, evidence of rehabilitation efforts, and whether the crime for which the individual was convicted may pose a demonstrable risk to the health, safety or welfare of other employees or persons or to property.

(c) *Competence.* Any decision which is based upon the reasonable and well-substantiated belief that an individual has not met certain educational or licensing requirements, or is otherwise incapable of satisfactorily performing necessary duties or fulfilling reasonable responsibilities associated with a particular occupation.

(d) *Undue hardship.* A qualification is bona fide if and only if the particular needs of the protected individual affected by it cannot be reasonably accommodated without undue hardship, or without unreasonably expanding health and safety risks. Mere inconvenience to the accommodating party is not grounds for discrimination. Whether the cost of a reasonable accommodation imposes an undue hardship depends on the employer's resources, not on the individual's salary, position, or status.

(e) The following are not bona fide occupational qualifications:

i. Mere inconvenience, less than an undue hardship, to an employment agent in procuring or providing aid to a member of a protected class to accommodate that individual's needs.

ii. The anticipated or actual objections of other employees, co-workers, customers, or other persons unrelated to an individual's competence as an employee.

iii. A qualification which has insignificant or incidental bearing on, or which is otherwise not necessary to, the efficient operations of the employer.

(Ord. No. 2019-43, § 1, 8-27-19)

Sec. 9.960. Discriminatory Public Accommodation and Public Services Practices.

(1) The opportunity to enjoy full and equal access to all public accommodations and public services without discrimination on the basis of actual or perceived membership in a protected class as identified in Section 9.955 of this Chapter is hereby recognized and declared to be a civil right. No person shall discriminate in making available full and equal access to all goods, services, activities, and privileges of any place of public accommodation. Public services shall include those provided in the public interest by the City to the people living within its jurisdiction, either directly or by contract.

(2) Exceptions:

(a) Public accommodations must be made accessible to individuals with disabilities in compliance with the Americans with Disabilities Act (ADA), unless to do so would not be readily achievable due to cost, size and operation of the facility, and other factors.

(b) An individual who displays offensive behavior, engages in disorderly conduct, or otherwise represents a clear threat to public health, safety, and welfare may be removed from, or prevented from entering, a public accommodation.

(c) Based upon cost, need, availability, subscription, qualification under federal, state, or local laws, rules, or regulations, or other non-discriminatory factors, public services may not be available to all persons living within the city.

(Ord. No. 2019-43, § 1, 8-27-19)

Sec. 9.961. Nondiscrimination by City Contractors.

1. All contractors proposing to do business with the City shall satisfy Section 1.517 of City Code, this Chapter, and any policies based thereon as adopted by the City.

2. A contractor shall, as a condition of being deemed a responsible bidder, at the time of its submission to the City in responding to an invitation to bid or request for proposal, certify in writing that it is in compliance with the provisions of Section 1.517, this Chapter, and any applicable policies.

3. Each City contract shall provide that a breach of the obligation not to discriminate shall be considered a material breach of the contract.
(Ord. No. 2019-43, § 1, 8-27-19)

Sec. 9.962. Biased Crime Reporting.

(1) No person shall knowingly or recklessly report to a City of Grand Rapids police officer, City of Grand Rapids dispatcher, or other City of Grand Rapids personnel that an individual who is an actual or perceived member of a protected class as identified in Section 9.955 of this Chapter has committed, or may or will commit, a crime, if such report is based in whole or in part on the individual's membership in a protected class and not on a reasonable suspicion of criminal activity in consideration of all available facts and the totality of the circumstances

(2) This Section is enacted for the purpose of ensuring the public health, safety, and welfare of persons within the city. Any person in violation of this Section may also be subject to penalty under Grand Rapids City Code 9.135(6) False Information or Michigan Penal Code 750.411(a) False Report of a Crime.
(Ord. No. 2019-43, § 1, 8-27-19)

Sec. 9.963. Other Prohibited Practices.

(1) No person shall adopt, enforce or employ any policy or requirement, or publish, post, broadcast, or distribute any advertisement, sign, notice, or solicitation which discriminates, or suggests, supports, or affirms discrimination, in the provision of housing, employment, public accommodations, or public services.

(2) No agent, broker, or any other person shall discriminate in making referrals or listings or providing information with regard to housing, employment, public accommodations, or public services. A report of such person's responsibility for a violation of this Chapter shall be made to an applicable licensing or regulatory agency for such person or business, if any.

(3) No person shall interfere with, coerce, intimidate, threaten or retaliate against an individual for making a complaint or assisting in the investigation regarding a violation or alleged violation of this Chapter, nor require, request, conspire with, assist or coerce another person to retaliate against an individual for making a complaint or assisting in an investigation.

(4) No person shall conspire with, assist, coerce or request another person to discriminate in any manner prohibited by this Chapter.
(Ord. No. 2019-43, § 1, 8-27-19)

ARTICLE 3. EXEMPTIONS

Sec. 9.964. Exempted Practices.

The following practices shall not be violations of this Chapter:

(1) Restriction by a religious organization, association, or society, or any nonprofit institution or organization operated, supervised or controlled by or in conjunction with a religious organization, association, or society, limiting the sale, rental or occupancy of dwellings which it owns or operates for other than commercial purposes to persons of the same religion, or giving preference to such persons, unless membership in such religion is discriminatory on the basis of actual or perceived membership in a protected class as identified in Section 9.955 of this Chapter; restriction of employment opportunities to officers, religious instructors, and clergy of the denomination, or; limited admission or preference based on

religion in an educational institution controlled by the religious organization, association, society, or affiliated nonprofit.

(2) Restriction by a private club or other establishment not open to the public, except to the extent that the goods, services, facilities, resources, privileges, advantages, or accommodations of the private club or establishment are made available to customers or patrons of another establishment that is a place of public accommodation, or the private club or establishment is licensed under the Michigan Liquor Control Act.

(3) Restriction, by the owner of an owner-occupied one-family or two-family dwelling, a housing facility, or public accommodation devoted entirely to the housing or accommodation of individuals of one sex, to occupancy and use on the basis of sex.

(4) Restriction of occupancy in a housing project, provision of public accommodations or services, or employment privileges or assistance to individuals who are of low income, over forty (40) years of age, or disabled, in circumstances in which such limitations are appropriately designated and in compliance with federal, state, or local law, rules, or regulations.

(5) Discrimination based on an individual's age when such discrimination is required by state, federal, or local laws, rules, or regulations.

(6) Restrictions on the sharing of a dwelling unit by an individual sharing said unit.

(7) Housing exemptions as provided in Chapter 160 of the City Code.

(8) Refusal to enter into a contract with an unemancipated minor.

(9) Refusal to admit to a place of public accommodation serving alcoholic beverages an individual under the legal age for purchasing alcoholic beverages.

(10) Refusal to admit individuals under 18 years of age to a business providing entertainment or selling literature that the operator of said business deems unsuitable for minors.

(11) Restrictions on use of facilities or resources by a private educational institution which provides education only to individuals of a particular sex.

(12) Restriction on use of an educational institution's facilities and resources to those affiliated with such institution.

(13) Restrictions on participation in instructional programs, athletic events, or on athletic teams on the basis of age, sex, height, or weight consistent with applicable federal, state, or local laws, rules, or regulations.

(14) Provision of discounts on products or services to students, minors, and older persons.

(15) Restrictions by the City of Grand Rapids on use of any of its facilities, or on its employment opportunities, based on duly-adopted institutional policies which conform to local, state, or federal laws, rules, or regulations.

Affirmative action provisions related to, preferential treatment of, or benefits conferred on, any of the protected classes identified in Section 9.955 of this Chapter are permissible to the extent allowed by law.
(Ord. No. 2019-43, § 1, 8-27-19)

ARTICLE 4. COMMUNITY RELATIONS COMMISSION

Sec. 9.965. Creation; Membership.

(1) A Community Relations Commission (CRC) is established to work with the Office of Diversity and Inclusion (ODI), City Manager and City Commission to support and promote this Chapter and strengthen the relationship between the community and the City of Grand Rapids.

(2) The CRC shall consist of thirteen (13) members to be appointed for a term of three (3) years by the Mayor with the approval of the City Commission. CRC members shall be selected, to the extent possible, to be representative of the community at large.

(3) A member may serve a maximum of two (2) consecutive terms. A member may be reappointed to the CRC three (3) years after the expiration of that member's last term.

(4) Three (3) members shall be appointed each year for terms commencing on the first Tuesday in January.

(5) In the event of resignation, removal, or death of a member, that member's successor shall be appointed by the Mayor with the approval of the City Commission to serve for the unexpired term of the departed member.

(6) The CRC shall meet not less than once per month. A quorum of its members, that being a majority of members appointed to the CRC, shall adopt such rules as deemed necessary for the conduct of business.

(7) The CRC shall elect a chairperson and such other officers as it deems necessary.

(8) The chairperson shall appoint such subcommittees as necessary, including but not limited to ad hoc subcommittees to address issues brought by the ODI, the City Manager, and/or the City Commission.

(9) CRC members shall serve without compensation, but shall be reimbursed for preapproved expenses necessarily incurred in connection with their duties as members of the CRC.

(10) The City shall provide staff support to the CRC through the ODI, or as otherwise directed by the City Manager.
(Ord. No. 2019-43, § 1, 8-27-19)

Sec. 9.966. Duties.

The duties of the CRC shall be to:

(1) Foster mutual understanding and respect among all people in the City, and discourage and prevent discriminatory practices toward any protected class described in Section 9.955 of this Chapter.

(2) Upon its own initiative or at the request of the ODI, the City Manager, or the City Commission, identify issues relative to community tensions, discriminatory practices, or acts of prejudice against any protected class described in Section 9.955 of this Chapter for review or possible investigation by the City.

(3) Conduct research projects and obtain data to ascertain the status and treatment of any protected class described in Section 9.955 of this Chapter, and make reports and recommendations to the ODI. If applicable, findings and research will be forwarded from ODI to the City Manager for review and/or further action.

(4) Develop, or cooperate with other governmental or private entities to develop, programs and courses of community education for presentation in schools, public libraries, public museums, or other suitable venues, or develop presentations illustrating the contributions of protected classes to the culture, tradition, and progress of the City and society at large and demonstrating the deleterious effects of prejudice, intolerance, and discrimination.

(5) Issue publications or reports that in its judgment will tend to minimize or eliminate prejudice, intolerance, and discrimination in the City.

(6) Advise the ODI on opportunities of alignment for the City's Strategic Plan efforts and when applicable, assist ODI with those opportunities and efforts.

(7) Cooperate with federal, state, and local agencies and departments as requested by the ODI to assist in addressing and resolving issues of discrimination.

(8) Recommend to the ODI, City Manager and City Commission measures to enhance harmonious and equitable relations among City residents and institu-

tions, support and fortify the efforts of City departments and agencies to protect those described in Section 9.955 of this Chapter, and advise and consult as necessary on civil rights and the violation thereof.

(Ord. No. 2019-43, § 1, 8-27-19)

ARTICLE 5. COMPLAINT PROCEDURES, INVESTIGATION, LEGAL CONSEQUENCES, PENALTIES

Sec. 9.967. Complaint Procedures and Investigation.

(1) A complaint may be filed with the ODI by any individual (the complainant) who has experienced or been witness to discrimination within the City as described in this Chapter. The complaint must be filed in person, by mail, or via the ODI's online complaint reporting site within one hundred eighty (180) calendar days of the date upon which the complainant knew or should have known of the alleged discriminatory act. If an individual fails to file a complaint within the specified time frame, the complaint will not be considered.

(2) A complaint shall indicate, at a minimum, all parties involved, the contact information of the complainant, a description of the discriminatory conduct, the date(s) and location(s) of its occurrence, and the protected class or classes, defined in Section 9.955 of this Chapter, which were discriminated against. The complaint will not be processed without this information.

(3) The ODI, with the assistance of the City Attorney's Office, shall review the complaint to determine relevance under this Chapter. Upon completion of the review, the ODI shall address the complaint through one or more of the following actions:

(a) Referral of the complainant to an appropriate local, state or federal entity for further investigation and action. Complaints which are covered by local, state or federal law will be referred to the appropriate local, state or federal agency for full investigation.

i. The ODI and the City Attorney's Office will determine the most appropriate federal or state investigative agency to address the issue brought forward and make a referral to that agency.

(4) The complainant will receive written notification of the referral of the complaint to the external agency.

(5) The complaint will then follow the process established by the investigative agency referred to.

(6) The ODI will document all referrals that are made including but not limited to information regarding location of complainant, type of complaint, agency referral.

(a) Conduct a complaint investigation in conjunction with the City Attorney's Office. This investigation may also include or be led by additional trained City personnel when needed.

i. ODI and/or another designated City investigator and the City Attorney's Office will conduct an investigation of the complaint filed utilizing appropriate investigatory methods.

ii. The City investigator (ODI or other designated City personnel) and the City Attorney's Office will make a determination regarding whether the complaint violates the Human Rights Ordinance and communicate that determination to the complainant in writing.

iii. The City investigator and City Attorney's Office will document all complaints investigated including but not limited to complaint disposition, location of complaint, and type of complaint.

(b) Arrangement of mediation between the involved parties, upon their agreement, to seek a resolution without legal action.

If an agreement is reached, a record of the agreement shall be prepared by the City Attorney's Office and signed by all parties. A violation of the agreement shall be considered a violation of this Chapter.

(c) Dismissal of the complaint if the allegations do not constitute a violation of this Chapter.

(7) Action on the complaint shall be taken in accordance with this Chapter within ninety (90) days of receipt, and the parties shall be notified if additional time is needed.

(8) The ODI shall provide written notice to the parties of the reasons for any action taken, and upon request, provide the parties with any evidence used in reaching its decision.

(9) The City Attorney's Office and/or City investigator may share non-confidential data with the CRC.

(10) In the course of its investigation, the City Attorney's Office may request a person to produce books, papers, records, or other documents which may be relevant to an alleged violation. If said person does not comply with the request, the City Attorney's Office may apply to the 17th Circuit Court for an order requiring production of the materials.

(11) No individual shall knowingly file a false complaint or provide false information in the investigation of a complaint. All complaints received by, and responses from, the ODI shall be retained by the City of Grand Rapids in accordance with its retention policy.

(12) The ODI shall provide an annual report to the City Manager, City Commission and the CRC providing a statistical and aggregate reporting of the data regarding:

(a) Type of Complaint;

(b) Length of investigation and/or review;

(c) Disposition of Complaint (ie: referred, investigated, mediated, sustained, etc.).

To the extent legally possible, complaint information will be kept confidential. No information regarding complaints will be released prior to the final disposition of the complaint.

(13) The ODI, with the assistance of the City Attorney's Office, shall develop all other rules of procedure deemed necessary for the reporting, hearing, and resolution of complaints.
(Ord. No. 2019-43, § 1, 8-27-19)

Sec. 9.968. Citations for Civil Infractions.

Following a City investigation, the ODI, upon consultation with the City Attorney's Office, may issue a civil infraction citation for violation of any of the provisions of this Chapter, including the Bias Crime Reporting provision, Section 9.962.
(Ord. No. 2019-43, § 1, 8-27-19)

Sec. 9.969. Injunctions.

The City Attorney's Office may commence a civil action to obtain injunctive relief to prevent discrimination prohibited by City Code and this Chapter, to reverse the effects of such discrimination, or to enforce a mediation agreement.
(Ord. No. 2019-43, § 1, 8-27-19)

Sec. 9.970. Retaliation.

No individual shall take adverse action against a person for:

(1) Filing a complaint under this Chapter;

(2) Testifying or providing witness or evidence of a violation of this Chapter; or

(3) Opposing violations of this Chapter.

Incidents of alleged retaliation shall be reported to the ODI and will be investigated under the investigative policy.
(Ord. No. 2019-43, § 1, 8-27-19)

Sec. 9.971. Prosecution and Penalties.

(1) The City Attorney's Office may prosecute a violation of this Chapter referred to it by the ODI or any other source.

(2) Violation of this Chapter shall be prosecuted by the City Attorney's Office as a municipal civil infraction pursuant to the provisions of Michigan law.

(3) A municipal civil infraction is punishable by a fine of not more than five hundred dollars ($500.00) and all other costs, damages, expenses, sanctions and remedies as authorized by Michigan law.

(4) Nothing contained in this Chapter shall be construed to limit in any way the remedies, legal or equitable, available to the City or any person for the prevention or correction of discrimination including, but not limited to false information pursuant to the Grand Rapids City Code Section 9.135(6) or false report of a crime pursuant to the Michigan Penal Code, MCL 750.411a. Such remedies shall be governed by applicable law.
(Ord. No. 2019-43, § 1, 8-27-19)

Sec. 9.972. Other Action.

(1) To the extent allowed by law, a person alleging a violation of this Chapter may bring a civil action for appropriate injunctive relief, damages, or both against the person(s) who acted in violation of this Chapter.

(2) Damages may include those for injury or loss caused by each violation of this Chapter, including reasonable attorney fees.

(3) Private actions and remedies under this Section shall be in addition to any actions for violations which the City Attorney's Office may take.
(Ord. No. 2019-43, § 1, 8-27-19)

Sec. 9.973. Severability.

If any section, subsection, sentence, clause, phrase or portion of this Chapter is for any reason held invalid or unconstitutional by any court of competent jurisdiction, that portion shall be deemed a separate, distinct and independent provision and such holding shall not affect the validity of the remaining provisions of this Chapter.
(Ord. No. 2019-43, § 1, 8-27-19)

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Chapters 177—180

RESERVED

Secs. 9.974—9.999. Reserved.

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TITLE X—TRAFFIC

Chapter

181. General Traffic Regulations
182. Electric Patrol Vehicles
183. Recovery of City Costs and Expenses

Chapter 181

GENERAL TRAFFIC REGULATIONS*

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Article 3. Truck Routes and Freeways

Sec. 10.36. Truck Routes.
Sec. 10.37. Vehicles Prohibited on Freeways.
Secs. 10.38, 10.39. Reserved.

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*__Cross references—__Parking Violations Bureau, Ch. 16; solid waste transportation unit and identification of solid waste carts, § 2.11; automobile parking system, Ch. 30; vehicles on Monroe Center Mall, § 3.109; prohibition of motor vehicle, etc., in Lyon Square, § 3.208; streets, Ch. 51; vision clearance at intersections, § 4.61 et seq.; snowplow operators, § 4.91 et seq.; taxicabs, Ch. 94; bus companies, Ch. 95; parking facilities, Ch. 97; motor vehicle rental business, Ch. 105; signs resembling official traffic signs, etc., prohibited, § 8.831(5); air pollution control, § 9.31 et seq.; prohibited motor vehicle noise, § 9.63(5)—(8), (19), (20); sound trucks, § 9.71 et seq.; litter from vehicles, §§ 9.96, 9.97; motor vehicle nuisances, § 9.124 et seq.; parking or storage of motor vehicles in a front yard within a residential district, Ch. 164.

__State law references—__Michigan Vehicle Code, MCL 257.1 et seq.; authority of City to regulate traffic, MCL 257.602c; MCL 750.479a; MCL 257.606.

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Article 11. High Occupancy Vehicle Lanes

Sec. 10.179. Traffic Lane—Reserved for High Occupancy Vehicles Only.
Sec. 10.180. Civil Infraction Violation.

ARTICLE 1. DEFINITIONS AND APPLICABILITY

Sec. 10.1. Definitions.

Words and phrases used herein, for the purpose of this Chapter, shall have the meanings respectively ascribed to them in Act 300 of the 1949 Public Acts of the State of Michigan, as it may be amended from time to time, except as herein otherwise provided and except where the context clearly indicates a different meaning.
(Ord. No. 79-48, 7-24-79)

Sec. 10.2. Further Definitions.

The words and phrases used in the following Sections shall have the indicated meaning when used in this Title.
(Ord. No. 79-48, 7-24-79)

Sec. 10.3. Alley.

A public way within a block primarily intended for service and access to abutting property. Traffic regulations set forth herein shall apply to alleys as well as roadways when such regulations are applicable.
(Ord. No. 79-48, 7-24-79)

Sec. 10.4. Buses and Bus Stops.

(1) *Bus.* Every motor vehicle designed for carrying twelve (12) or more persons and used for the transportation of persons, and every motor vehicle, other than a taxicab, ambucab or ambulance designed and used for the transportation of persons for compensation.

(2) *Bus stop.* That area adjacent to the curb or edge of a roadway that has been set aside, and marked by a traffic control device, as an area where buses may stop for the purpose of loading and unloading passengers.
(Ord. No. 79-48, 7-24-79)

Sec. 10.5. Darkness.

The period from one-half (½) hour after sunset to one-half (½) hour before sunrise as sunrise and sunset are determined by the U.S. Weather Service.
(Ord. No. 79-48, 7-24-79)

Sec. 10.6. Loading Zone.

That space adjacent to the curb of a roadway reserved by a traffic control device or devices for the exclusive use of vehicles during the actual period of loading or unloading passengers or property.
(Ord. No. 79-48, 7-24-79)

Sec. 10.7. Park or Parking.

The complete cessation of movement of a vehicle, whether occupied or not.
(Ord. No. 79-48, 7-24-79)

Sec. 10.8. Police Officer.

Every officer of the Police Department or any person authorized to direct or regulate traffic or parking or who is authorized to make arrests or issue parking violation tags or citations for violations of any provisions of the Motor Vehicle Code or of this Chapter.
(Ord. No. 79-48, 7-24-79)

Sec. 10.9. Proper Authority.

The City Manager of the City of Grand Rapids or his or her duly authorized designee.
(Ord. No. 79-48, 7-24-79)

Sec. 10.10. Right-of-Way.

The privilege of the immediate use of the roadway.
(Ord. No. 79-48, 7-24-79)

Sec. 10.11. School Bus.

Every motor vehicle with a manufacturer's rated seating capacity for twelve (12) or more children, owned by a public, government or private agency, and operated for the exclusive transportation of children to or from school and appropriately marked as a school bus.
(Ord. No. 79-48, 7-24-79)

Sec. 10.12. Signal.

(1) *Authorized Emergency Vehicle Signal.* The audible sound emanating from a horn, bell or siren of a vehicle.

(2) *Direction Signal.* The extending of the arm from the left side of the vehicle or the operation of a flashing light plainly visible from the front or rear of a vehicle.
(Ord. No. 79-48, 7-24-79)

Sec. 10.13. Stop.

The complete cessation of movement.
(Ord. No. 79-48, 7-24-79)

Sec. 10.14. Traffic Control Devices and Traffic Lanes.

(1) *Traffic Control Device.* Any sign, signal, marking, parking meter or other device placed or erected by the Proper Authority for the purpose of regulating, warning or guiding traffic.

(2) *Traffic Lane.* An area in the roadway reserved for moving traffic.
(Ord. No. 79-48, 7-24-79; Ord. No. 2000-01, § 1, 1-4-00; Ord. No. 2015-52, § 1, 9-22-15)

Sec. 10.15. Application of the Provisions of this Code and State Law.

(1) The operator of every motor vehicle shall operate the vehicle on that portion of the roadway set aside for vehicular use and shall conform to:

(a) The provisions of this Chapter which are adopted pursuant to the authority granted in the home rule cities act, MCL 117.1 et seq. and the authority granted in the Michigan Constitution, including, but not limited to the specific grants of authority to local governments in Article VII of that Constitution;

(b) The provisions of the Michigan Vehicle Code which is incorporated herein by reference as if fully set herein. The Michigan Vehicle Code is incorporated pursuant to the authority granted by the home rule cities act, specifically MCL 117.3. For purposes of this Section, the Michigan Vehicle Code is composed of Sections 257.1 through 257.923 of the Michigan Compiled Laws (Act 300 of The Public Acts of 1949, as amended and as it may, from time to time, be amended, specifically including, but not limited to, Public Act 61 of the Public Acts of 2003.) References in the Michigan Vehicle Code to local authority or local authorities shall mean the City of Grand Rapids acting by and through its City Commission and City Manager. The penalties provided for in the Michigan Vehicle Code are also adopted by reference provided, however, that the City of Grand Rapids may not directly enforce any provision of the Michigan Vehicle Code which provides for penalties of incarceration of in excess of ninety-three (93) days.

(c) The order or direction of a police officer, notwithstanding the provisions of existing traffic laws, when such officer is directing or regulating traffic in the interest of public safety.

(2) Any violation of the Michigan Vehicle Code, as incorporated herein by reference, shall be a violation of this Chapter except as otherwise provided in this Code or state law.

(3) The provisions of this Chapter relating to the operation of vehicles shall refer to the operation of vehicles upon the streets of the City of Grand Rapids and to places open to the general public, or to a portion of the general public, for the operation of vehicles.

(4) Any provision of the Michigan Vehicle Code or of this Chapter which describes an act, omission, or condition which is declared to be a civil infraction shall be processed as a civil infraction as provided for under State law. Any person found to be responsible for a civil infraction may be ordered to pay a civil fine of not more than One Hundred Dollars ($100.00) and costs and the Judge or Magistrate may impose such additional penalties as are provided for by state law.

(5) Any provision of the Michigan Vehicle Code or of this Chapter which describes an act, omission or condition which is declared to be a misdemeanor shall be processed as a misdemeanor. Unless some other penalty is specifically provided for by this Code or by the Michigan Vehicle Code, any person found guilty of a misdemeanor under this Chapter shall be punishable by a fine of not more than Five

Hundred Dollars ($500.00), or by imprisonment for not more than ninety (90) days, or both such fine and such imprisonment. Offenses for which there is a maximum period of imprisonment of 93 days, as provided for in the Michigan Vehicle Code, are specifically excluded from the operation of this provision.

(6) When any person is found guilty of a criminal violation or responsible for a civil infraction pursuant to this Chapter, the Judge or Magistrate shall summarily determine and tax the costs of the action which costs shall include all expenses, direct and indirect, to which the City has been put in connection with the violation or infraction up to the entry of judgment as provided for by state law.
(Ord. No. 79-48, 7-24-79; Ord. No. 81-32, 5-12-81; Ord. No. 83-14, 3-15-83; Ord. No. 83-19, 4-5-83; Ord. No. 91-62, §§ 1, 2, 12-10-91; Ord. No. 95-2, § 1, 1-17-95; Ord. No. 2000-64, § 1, 11-14-00; Ord. No. 2003-35, § 1, 9-9-03)

State law reference—Similar provisions, MCL 257.602(c), and MCL 750.479a.

ARTICLE 2. OPERATION

Sec. 10.16. Attempting to Flee or Elude a Police Officer.

No person who is the driver of a motor vehicle who is given by hand, voice, emergency light, or siren, a visual or audible signal by a police officer, acting in the lawful performance of his or her duty, directing the driver to bring his or her motor vehicle to a stop shall willfully fail to obey such direction, by increasing the speed of the motor vehicle, extinguishing the lights of the motor vehicle, or otherwise attempting to flee or elude the officer, provided that the officer is in uniform and, if in a vehicle, the vehicle is adequately identified as an official police vehicle.

A person who violates this Section is guilty of a misdemeanor punishable by a jail term of not more than ninety (90) days, or a fine of not more than Five Hundred Dollars ($500.00), or both, together with costs of the prosecution.
(Ord. No. 79-48, 7-24-79; Ord. No. 83-14, 3-15-83; Ord. No. 91-62, §§ 1, 2, 12-10-91)

Cross references—Uncapped liquor in passenger compartment, § 9.243; consumption of alcoholic liquor in public places, § 9.241.

State law reference—Similar provisions, MCL 257.625.

Sec. 10.17. Interference with Traffic.

(1) No operator of a vehicle shall stop, stand or park a vehicle in a traffic lane, except when necessary to avoid conflict with other traffic, or in compliance with the law or the directions of a police officer or traffic control device.

(2) No operator of a vehicle shall change his or her course, back up, or start a vehicle which is stopped, standing or parked, unless and until such movement can be made without interfering with other vehicles, devices moved by human power, or pedestrians.
(Ord. No. 79-48, 7-24-79)

State law reference—Similar provision, MCL 257.648(1).

Sec. 10.18. Yield when Entering Roadway Required.

The operator of a vehicle entering a street or roadway from an alley, private drive or building shall stop his or her vehicle before crossing the inner sidewalk line. The operator may then proceed, provided he or she yields the right-of-way to and does not interfere with other vehicles, bicycles or pedestrians proceeding in a lawful manner.
(Ord. No. 79-48, 7-24-79)

State law reference—Similar provision, MCL 257.652.

Sec. 10.19. Stop Required Near Crosswalk.

A vehicle approaching an intersection controlled by a stop sign shall be brought to a complete stop within five (5) feet of the near crosswalk, whether marked or unmarked. The operator may then proceed, provided he or she yields the right-of-way to and does not interfere with other vehicles, bicycles or pedestrians proceeding in a lawful manner.
(Ord. No. 79-48, 7-24-79)

Sec. 10.20. Blocking Intersection.

Notwithstanding any traffic control signal indication or other right to proceed, no driver shall enter an intersection or a marked crosswalk unless there is sufficient space on the other side of the intersection or crosswalk to accommodate his or her vehicle without obstructing or blocking the passage of other vehicles, bicycles or pedestrians.
(Ord. No. 79-48, 7-24-79)

Sec. 10.21. One-Way Streets.

Upon a roadway designated and sign-posted for one-way traffic, a vehicle shall be driven only in the direction designated.
(Ord. No. 79-48, 7-24-79)

Sec. 10.22. Prohibited Turns.

No operator of a vehicle shall enter a roadway from a driveway by turning left into the roadway or turn left into a driveway from a roadway during those hours or at such times as the same shall be prohibited by a sign posted prohibiting such left turns.
(Ord. No. 79-48, 7-24-79)

Sec. 10.23. Turning Vehicle.

No operator shall turn his or her vehicle at intersections except as follows:

(1) The operator of a vehicle intending to turn to the right shall approach an intersection in the lane of traffic nearest to the right side of the roadway, and in turning shall keep as closely as possible to the right-hand curb or edge of the roadway.

(2) The operator of a vehicle intending to turn to the left shall approach and enter the intersection in that portion of the right half of the roadway nearest the center line thereof, unless otherwise designated, and shall leave the intersection to the right of the centerline of the roadway being entered.

(3) The operator of a vehicle intending to make a left turn from a two-way roadway into a one-way roadway shall approach the intersection in that portion of the right half of the highway nearest the centerline thereof, unless otherwise designated, and shall pass to the right of such centerline of the two-way roadway at the point where it enters the intersection.

(4) The operator of a vehicle intending to make a left turn from a one-way roadway into a two-way roadway, shall approach the intersection in the lane of traffic nearest to the left side of the roadway, and after entering the intersection, the left turn shall be made so as to leave the intersection to the right of the centerline of the roadway being entered.

(5) Where both roadways are one-way, both the approach for a left turn, and a left turn, shall be made as close as possible to left curb or edge of the roadway.

(Ord. No. 79-48, 7-24-79)
State law reference—Similar provision, MCL 257.647.

Sec. 10.24. U-Turn Prohibited.

No operator shall turn his or her vehicle around (make a U-Turn) so it heads in the opposite direction in the traveled portion of the roadway at any intersection controlled by either a traffic signal or a law enforcement officer.
(Ord. No. 79-48, 7-24-79)

Sec. 10.25. Passing; Lane Movements.

(1) The operator of a vehicle overtaking another vehicle proceeding in the same direction, except on one-way roadways, or roadways having four (4) or more lanes, shall pass at a safe distance to the left thereof, and when safely clear of such overtaken vehicle, shall take a position as near the right-hand curb as possible; provided, that a vehicle whose operator has signaled his or her intention to turn left or which is about to turn left, shall not be passed on the left, and overtaking vehicles in such cases shall be permitted to pass to the right.

(2) No operator of a vehicle shall overtake and pass another vehicle within an intersection, on a railroad grade crossing, upon a curve, at the brow of a hill, or at any other time unless he or she can do so in safety.

(3) The operator of a vehicle about to be passed from the rear, of [on] a two- or three-lane roadway, except on one-way roadways, shall give way to the right and shall not increase his or her speed until the overtaking vehicle has turned into its proper lane of traffic ahead of him or her.

(4) Except on one-way roadways, or when passing other vehicles, all vehicles shall be driven upon the right half of the roadway, and all slow moving vehicles shall be driven as closely as possible to the right-hand curb of such roadway.

(5) Notwithstanding the general provisions of subsections (1), (3) and (4) hereof, the operator of a vehicle may overtake, and allowing sufficient clearance, pass another vehicle proceeding in the same direction either upon the left or upon the right of a roadway with unobstructed pavement of sufficient width whenever such roadway has been divided and marked into four (4) or more adjacent lanes for moving traffic, or whenever traffic is moving in two (2) or more substantially continuous lines in the same direction, or on any roadway sign-posted therefor, provided such movement can be made in safety.

(6) No person shall drive off the pavement in overtaking or passing on the right.

(7) A vehicle shall be driven as nearly as possible entirely within a single lane or line of traffic and shall not be moved from such lane or line until such movement can be made with safety.

(8) The driver of a motor vehicle overtaking a bicyclist proceeding in the same direction shall allow the bicyclist at least a five-foot separation between the right side of the driver's vehicle, including all mirrors or other projections, and the left side of the bicyclist at all times.
(Ord. No. 79-48, 7-24-79; Ord. No. 2000-01, § 2, 1-4-00; Ord. No. 2015-52, § 2, 9-22-15)

State law reference—Similar provision, MCL 257.634.

Sec. 10.26. Interference with Driver.

(1) No operator or a vehicle shall embrace, or be embraced by, another person while his or her vehicle is in motion.

(2) No person shall operate a vehicle while it is so crowded with objects or persons as to impede the control of the vehicle, and at no time shall there be more than three (3) persons over twelve (12) years of age in the front seat of a vehicle, including the operator thereof.
(Ord. No. 79-48, 7-24-79)

State law reference—Similar provision, MCL 257.677.

Sec. 10.27. Permitting Others to Violate Prohibited.

No person shall knowingly authorize or permit a motor vehicle owned by him or her or under his or her control to be driven by any person in violation of any provisions of this Chapter.
(Ord. No. 79-48, 7-24-79)

Sec. 10.28. Standing in a Roadway.

No person shall stand in the traveled portion of any roadway, except to avoid contact with vehicles lawfully on the roadway.
(Ord. No. 79-48, 7-24-79)

State law reference—Similar provision, MCL 257.676b.

Sec. 10.29. Civil Infractions and Misdemeanors.

(1) Violation of any Section of the Michigan Vehicle Code incorporated into this Code by reference and designated as a civil infraction shall be a civil infraction.

(2) Violation of any Section of the Michigan Vehicle Code incorporated into this Code by reference and designated as a misdemeanor shall be a misdemeanor.

(3) Violation of any of the following Sections of this Code shall be misdemeanors:

1. 10.16
2. 10.27
3. 10.102
4. 10.161
5. 10.163
6. 10.167 through 10.178

(4) Violation of any Section of this Code not specifically designated to be a misdemeanor shall be a civil infraction.
(Ord. No. 79-48, 7-24-79)

Sec. 10.30. Adoption of MCL 625(1)(c).

(1) Section 625(1)(c) of the Michigan Vehicle Code (Act No. 300 of the Public Acts of 1949), MCL 257.625(1)(c) as amended, is hereby adopted by reference for the purpose of protecting the public.

(2) The penalties provided by MCL 257.625(1)(c) are adopted by reference and violations of this section shall be punishable by one (1) or more of the following:

(a) Community service for not more than three hundred sixty (360) hours;

(b) Imprisonment for not more than one hundred eighty (180) days; and

(c) A fine of not less than two hundred dollars ($200.00) or more than seven hundred dollars ($700.00).

(Ord. No. 2012-32, § 1, 6-19-12, eff. 7-1-12)

Secs. 10.31—10.35. Reserved.

ARTICLE 3. TRUCK ROUTES AND FREEWAYS

Sec. 10.36. Truck Routes.

(1) The purpose of this Section is to regulate the orderly operation of trucks on the streets of the City. The primary objectives are to facilitate the transfer of goods and services by trucks to businesses and to preserve the quality of life of the neighborhoods. Prime considerations involved with the purpose of this Section are: (1) the safety of our citizens; (2) avoidance of unreasonable or unnecessary disturbance or reduction in property values due to truck noise, vibration, and/or air pollution; (3) protection against the deterioration of those streets not designated for truck traffic, and (4) adequate truck service to businesses and residences in an expeditious manner, having due regard for economical vehicle operation.

(2) Where density of traffic, protection of life and property, construction and condition of the roadway, or any hazardous condition make it advisable, the direction of traffic flow, and routing of buses, trucks and heavy vehicles, may be made by the Proper Authority by duly posted traffic control devices and it shall be unlawful to drive or cause to be driven, any vehicle in violation of such direction and routing.

(3) The streets of the City are hereby designated for this Section into three (3) classes:

(a) *Truck Routes:* Those streets specifically designated herein as Truck Routes.

(b) *Major Streets:* Those streets, other than Truck Routes, that are identified in subsection (5) below, or certified by the Michigan Department of Transportation as Major Streets in the City of Grand Rapids.

(c) *Local Streets:* All streets not designated herein as Truck Routes or major streets.

(4) The following roadways, or portions of roadways, in the City of Grand Rapids, are hereby designated as Truck Routes:

Street	*Location*
EAST-WEST ROADWAYS	
4th	Scribner to Front
6th	Turner to Front
28th	West City Limits to East City Limits
29th	West City Limits to East City Limits
44th	West City Limits to East City Limits
Albany	Hynes to Wallen
Ann	Alpine to Monroe
Bridge	Lane to Grand River
Burton	West City Limits to Towner
Burton	Eastern to Kalamazoo (7:00 a.m. to 7:00 p.m. only)
Butterworth	West City Limits to Front
Canton	Wallen to Buchanan
Cascade	Fulton to East City Limits
Coldbrook	Monroe to Clancy
Cottage Grove	Buchanan to Linden
Crofton	Linden to Eastern
Franklin	Grandville to Division
Fulton	Lake Michigan to East City Limit
Garden	Division to Madison
Hall	Freeman to Kalamazoo

Street	*Location*
I-96	West City Limits to East City Limits
I-196	West City Limits to I-96
Lake Michigan	West City Limits to Fulton
Leonard	West City Limits to East City Limits
Logan	Grandville to Century
Lyon	Ransom to Barclay
Matilda	Clancy to Lafayette
Michigan	Grand River to Plymouth
Michigan	Leffingwell to East Beltline (7:00 a.m. to 7:00 p.m. only)
Oak Industrial	Plymouth to Leffingwell
Pannell	West City Limits to Alpine
Richmond	Alpine to Scribner
Shamrock	Sheridan to Century
State	Jefferson to Lafayette
Stevens	Steele to Division
Wealthy	Garfield to East City Limits
Webster	Scribner to Front
NORTH-SOUTH ROADWAYS	
Alpine	North City Limits to Leonard
Barclay	Michigan to Lyon
Breton	28th to 29th
Buchanan	Canton to Cottage Grove
Century	Ellsworth to Burton
Clancy	Leonard to Matilda
Clyde Park	Grandville to South City Limits
College	I-196 to Michigan
Division	Coldbrook to South City Limits
East Beltline	North City Limits to South City Limits
Eastern	Fulton to Hall
Eastern	Hall to Burton (7:00 a.m. to 7:00 p.m. only)
Eastern	Burton to 36th
Eastern	40th to South City Limits
Freeman	Market to Terminus
Freeman	Terminus to Hall
Front	Webster to 4th
Front	Pearl to Mt. Vernon
Front	Watson to Wealthy
Fuller	Leonard to Fulton
Garfield	Butterworth to Wealthy
Godfrey	Market to South City Limits
Grandville	Weston to Logan
Ionia	Leonard to Franklin
Jefferson	Fulton to Wealthy
Kalamazoo	Hall to 28th
Lafayette	Matilda to Michigan
Lafayette	State to Wealthy
Lane	2nd to Bridge
Leffingwell	Oak Industrial to Michigan (7:00 a.m. to 7:00 p.m. only)
Lexington	Seward to Butterworth
Linden	Cottage Grove to Crofton
Madison	Hall to Cottage Grove
Madison	28th to South City Limits
Market	Fulton to I-196
Monroe	Ann to Fulton
Mt. Vernon	Bridge to Fulton
Plainfield	North City Limits to Coldbrook
Plymouth	Leonard to Michigan
Ransom	Crescent to Fulton
Scribner	Richmond to Pearl
Seward	Leonard to Lexington
Sheridan	Century to Franklin
Sheridan	Hall to Shamrock
Steele	Terminus to Towner
Towner	Steele to Burton
Turner	North City Limits to Bridge
U.S. 131	North City Limits to South City Limits
Wallen	Albany to Canton

All roadways or portions of roadways in the area described as:

Beginning at the corner of Wealthy St SE and Lafayette Ave SE; thence westerly along Wealthy St to the intersection with Market Ave SW; thence northerly along Market Ave to the intersection of Fulton St W; thence West to Mt. Vernon Ave NW; thence northerly along Mt. Vernon Ave and Turner Ave to the intersection of Leonard St NW; thence east along Leonard to Plainfield Ave NE; thence southerly along Plainfield and Division to Michigan St NE; thence easterly along Michigan St to Barclay Ave; thence southerly along Barclay to the intersection of Lyon; thence West to Ransom Ave NE; thence South to Fulton St; thence easterly to Jefferson; thence South to State St; thence easterly along State St to Lafayette Ave SE; thence southerly along Lafayette Ave SE to the intersection of Wealthy St to point of beginning.

(5) The following roadways, or portions of roadways, in the City of Grand Rapids, are hereby designated as Major Streets: table below.

Street	*Location*
EAST-WEST ROADWAYS	
1st	Valley to Garfield
1st	Pine to Fremont
1st	Broadway to Turner

Street	*Location*
2nd	Pine to Fremont
2nd	Broadway to Turner
3 Mile	Monroe to East City Limits
4th	Valley to Turner
7th	Stocking to Turner
32nd	Kalamazoo to East City Limits
36th	West City Limits to Kalamazoo
Aberdeen	Plainfield to Ball
Adams	Kalamazoo to Fuller
Alger	Division to Plymouth
Ann	Monroe to Plainfield
Boston	Fuller to East City Limits
Bridge	Lake Michigan to Lane
Buckley	Ionia to Jefferson
Burton	Towner to East City Limits
Camelot	Lake Eastbrook to East Paris
Cedar	Clancy to College
Cherry	Lafayette to Lake
Crofton	Madison to College
Delaware	Division to Jefferson
Elmdale	Cheney to Plainfield
Fountain	Ransom to Fuller
Franklin	Oakland to Grandville
Franklin	Division to East City Limits
Griggs	Buchanan to Madison
Hall	Kalamazoo to East City Limits
Knapp	Monroe to Dawson
Knapp	Ball to East City Limits
Lake	Fulton to East City Limits
Lake Michigan	Fulton to Summer
Logan	Lafayette to Glenwood
Lyon	Barclay to Fuller
Michigan	Plymouth to East Beltline
North Park	Grand River to Coit
Oakdale	Madison to Kalamazoo
O'Brien	Covell to Butterworth
Olson	Ball to Plymouth
Oxford	Dorchester to Godfrey
Pearl	Summer to Mt. Vernon
Richmond	West City Limits to Alpine
Robinson	Lake to East City Limits
Rumsey	Godfrey to Oakland
Service Road	Ball to Plymouth
Sherman	Union to East City Limits
State	Lafayette to Madison
Sweet	Monroe to College
Tremont	Covell to Mt. Mercy
NORTH-SOUTH ROADWAYS	
Alpine	Leonard to Stocking
Ball	Aberdeen to Service Road
Ball	Olson to Michigan
Breton	North City limits to 28th

Street	*Location*
Breton	29th to South City Limits
Bristol	North City Limits to Walker
Broadway	Elizabeth to Bridge
Buchanan	Cottage Grove to South City Limits
Carlton	Fulton to Lake
Cheney	Elmdale to 3 Mile
Coit	4 Mile to Plainfield
College	Sweet to I-196
College	Michigan to Franklin
Collindale	Leonard to Lake Michigan
Covell	Walker to O'Brien
Diamond	Aberdeen to Fairmount
Dorchester	Oxford to Hall
Eastern	Hall to Burton
East Paris	North City Limits to South City Limits
Fuller	Plainfield to Leonard
Fuller	Fulton to Kalamazoo
Garfield	Richmond to Leonard
Garfield	Walker to Bridge
Giddings	Wealthy to Burton
Glenwood	Lake to Sherman
Grandville	Logan to South City Limits
Hynes	Franklin to US 131 North Exit 82B
Indiana	Butterworth to Wealthy
Ionia	Hall to Stevens
Jefferson	Wealthy to Burton
Kalamazoo	Franklin to Hall
Kalamazoo	28th to South City Limits
La Grave	Wealthy to Buckley
Lafayette	Plainfield to Matilda
Lafayette	Michigan to State
Lafayette	Wealthy to Hall
Lake Eastbrook	East Beltline to 28th
Lakeside	Michigan to Fulton
Lane	4th to 2nd
Leffingwell	Oak Industrial to Michigan
Lexington	Bridge to Fulton
Madison	Cherry to Hall
Madison	Cottage Grove to 28th
Maynard	Lake Michigan to South City Limits
Monroe	North Park to Ann
Mt. Mercy	Valley to Bridge
Nelson	Burton to Alger
Oakland	Pleasant to Franklin
Oakleigh	Richmond to Lake Michigan
Oakwood	3 Mile to Ann
Plymouth	Lyon to Fulton
Plymouth	Hall to Alger
Sheldon	Wealthy to Hall
Stocking	7th to Bridge
Straight	Bridge to Wealthy
Tamarack	Richmond to Leonard

Street	*Location*
Taylor	Sweet to Leonard
Union	Lyon to Franklin
Valley	Walker to Butterworth
Walker	North City Limits to Stocking
White	Leonard to Walker

(6) Motor vehicles of the restricted class as used herein are defined as all motor vehicles having a weight of ten thousand (10,000) pounds or more including the load therein, except vehicles carrying or designated to carry passengers, all governmentally owned or leased vehicles, public utility vehicles, and vehicles used for private refuse handling.

(7) *Travel into or out of the City.* Motor vehicles of the restricted class, which do not have a pickup, delivery or service within the City, are required to enter and exit the City of Grand Rapids on Truck Routes only.

(8) *Travel within the City.* Motor vehicles of the restricted class, while in the City of Grand Rapids, are required to travel on Truck Routes only, except as follows:

(a) The operation of Authorized Emergency Vehicles may occur on any roadway in the City.

(b) The operation of recreational vehicles as defined by State law, which are of the restricted class may use any roadway in the City.

(c) The operation of motor vehicles of the restricted class is permitted on any roadway in the City for pickup, delivery or service where the destination is not on a Truck Route, provided that ingress and egress thereto or therefrom is accomplished in the following manner:

1. Vehicles of the restricted class must utilize designated Truck Routes to the point closest to delivery, pickup, or service.

2. Upon leaving or returning to the Truck Route, vehicles of the restricted class must utilize the shortest route available via major streets whenever possible and then utilize local streets only when necessary for the completion of the delivery, pickup or service.

3. In making consecutive deliveries, pickups or services to points not on Truck Routes, vehicles of the restricted class may proceed on roadways other than Truck Routes only if the distance traveled on non-truck routes as a result of this routing would be less than the distance traveled on non-truck routes if the vehicle had returned to a Truck Route as in subsection 2. above and then proceeded to the next delivery point as in subsections 1. and 2. above.

4. In making one (1) or more deliveries, pickups or services only, on Walker/Stocking between Bridge and Leonard, vehicles of restricted class shall be permitted to ingress/egress on Walker/Stocking to either Leonard or Bridge without regard to the "shortest route" requirements contained herein.

(9) The roadways designated as Truck Routes in Paragraph (4) shall be posted with signs at reasonable intervals and at intersections where the truck route turns. Such signs shall consist of the words "Truck Route," below which shall be placed an appropriate type arrow indicating the direction of the route.

(10) Non-truck Route streets may be posted with signs at reasonable intervals where appropriate. Such signs shall indicate "No Trucks" or "Not a Truck Route."

(11) It shall be the duty of any person driving or in charge or control of any buses, trucks or heavy vehicles, other than vehicles carrying or designed to carry passengers upon any roadway not a designated Truck Route upon the request of a police officer to stop and answer any questions regarding the weight of the truck, its destination, and its point of origin; and such person shall also present log book, weight slips,

delivery slips and other written evidence of destination or point of origin, for the officer's examination.

(12) If any designated Truck Route or portion thereof shall be under repair or otherwise temporarily out of use, motor vehicles within the restricted class shall use such other temporary Truck Routes as may be designated by the Proper Authority.

(13) In case of emergency, a temporary permit allowing exceptions to this Section may be issued by the City Manager or designee.
(Ord. No. 79-21, 4-10-79; Ord. No. 81-11, 2-24-81; Ord. No. 81-15, 3-17-81; Ord. No. 81-82, 11-17-81; Ord. No. 2020-37, §§ 1—4, 8-25-20)

Cross reference—Trucks, prohibited streets, § 10.100.

Sec. 10.37. Vehicles Prohibited on Freeways.

No person shall operate a motorcycle with less than 125 cubic centimeter engine, moped, farm tractor, or other self-propelled farm implement, or bicycle on any freeway in the City. No persons shall operate any vehicle on any freeway in the City so as to form a funeral or other procession unless directed to do so by the Chief of Police or the Traffic Engineer.
(Ord. No. 70-81, 1-19-71; Ord. No. 78-57, 7-11-78)

Cross reference—No parking on freeway, § 10.46.

Secs. 10.38, 10.39. Reserved.

ARTICLE 4. PARKING REGULATIONS*

Sec. 10.40. Snow Routes.

Parking may be restricted because of the necessity to remove snow, along those streets where density of traffic, protection of life and property, construction and condition of the roadway, or any hazardous condition make it advisable. Such restriction shall be made by the City Manager or his or her designated representative and shall be indicated by appropriate traffic control signs. No person shall park a vehicle between the hours of 3:00 a.m. and 6:00 a.m., on any street so restricted and marked; provided, this Section shall not apply from April 2 through October 31, inclusive, of any year.
(Ord. No. 72-74, 10-10-72; Ord. No. 80-5, 1-15-80)

Sec. 10.41. Parking Restrictions.

No person shall park:

(1) In a traffic lane or in any other location where because of the density of traffic, protection of life or property, construction, the condition of roadway, or because of any other hazard or condition, parking is limited, restricted or prohibited by order of the Proper Authority and such limitation, restriction or prohibition is indicated by paint of distinguishing color or by traffic control devices or signs.

(2) At an on-street or off-street metered parking space that has been reserved and a parking meter hood been placed on the parking meter head or parking space designator to indicate prohibited parking.

(Ord. No. 2000-16, § 1, 4-11-00; Ord. No. 2024-09, 2-6-24)

Cross reference—Schedule of offenses and fines, § 1.615.

Sec. 10.42. Key Removal.

No person driving or in charge of a motor vehicle shall permit it to be parked unattended without first stopping the engine, locking the ignition, removing the key, and taking such key with him or her.

Sec. 10.43. Set Brakes; Parking on Hill.

No motor vehicle shall be parked unattended unless the brakes are effectively set, and when parked on any grade in excess of five (5) percent such motor vehicle shall also be left in gear and the front of the front wheels turned toward the near curb.

*__Cross references—__Parking Violations Bureau, Ch. 16; automobile parking system, Ch. 30; parking facilities, Ch. 97; parking or storage of motor vehicles in a front yard within a residential district, Ch. 164; solid waste transporting units, parking restrictions, § 2.11; parking and loading spaces, § 5.51 et seq.

State law reference—Authority to regulate the standing or parking of vehicles, MCL 257.606(1)(a).

Sec. 10.44. Manner of Parking.

No vehicle shall be parked except parallel to the line of the roadway and with the right sidewalls of its right-hand tires not more than twelve (12) inches from the curb or curbline, except on one-way roadways where parking is permitted on the left side of the roadway, in which case the same regulations shall apply to the left side of the vehicle; provided, that angle parking may be permitted in the space between the established roadway curb-line and sidewalk by the Proper Authority.

Sec. 10.45. Prohibited Parking.

No person shall park a vehicle except when necessary to avoid conflict with other traffic or in compliance with law or the direction of a police officer or traffic control device in any of the following places:

(1) On the sidewalk or the space between the curb and sidewalk, whether paved or unpaved, unless such Section shall be part of the existing roadway;

(2) In front of a public or private driveway or alley within three (3) feet of where the course of the curbline has been changed to start the driveway or alley approach;

(3) Within an intersection;

(4) Within fifteen (15) feet of a fire hydrant;

(5) On a crosswalk;

(6) Within twenty (20) feet of a crosswalk, or if none, then within fifteen (15) feet of the intersection, of the property lines at an intersection, unless otherwise designated by the Proper Authority;

(7) Within thirty (30) feet of the approach to any flashing signal, stop sign, or traffic control signal located at the side of a roadway. If such parking interferes with the visibility of oncoming vehicle operators, parking is prohibited;

(8) Between a safety zone and the adjacent curb or within thirty (30) feet of points on the curb immediately opposite the ends of a safety zone, unless a different length is indicated by signs or markings;

(9) Within twenty (20) feet of the nearest rail of railroad crossings;

(10) Within twenty (20) feet of the driveway entrance to any fire station and on the side of the street opposite the entrance to any fire station within seventy-five (75) feet of said entrance when posted;

(11) Alongside or opposite any roadway excavation or obstruction when stopping, standing or parking would obstruct traffic;

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(12) On the roadway side of any vehicle stopped or parked at the edge or curb of the roadway;

(13) In front of any theatre;

(14) In any place or in any manner so as to block or hamper the immediate use of any fire escape conspicuously marked as such and providing an emergency means of egress from any building;

(15) On any private property in the City of Grand Rapids without the express or implied consent, authorization or ratification of the owner, holder, occupant, lessee, agent or trustee of such property. Complaint for violation of this Section shall be made by the owner, holder, occupant, lessee, agent or trustee of such property;

(16) In a space clearly designated as a fire lane, or in a place or a manner that blocks access to a clearly designated fire lane;

(17) Within, or on, a marked bike lane;

(18) In any place or in any manner so as to block or partially block a bike lane.

(Ord. No. 66024, 4-26-66; Ord. No. 67-47, 8-1-67; Ord. No. 72-81, 11-7-72; Ord. No. 77-15, 4-5-77; Ord. No. 78-4, 1-10-78; Ord. No. 78-68, 9-12-78; Ord. No. 79-7, 1-19-79; Ord. No. 79-8, 1-23-79; Ord. No. 79-17A, 4-3-79; Ord. No. 2001-43, § 1, 10-23-01; Ord. No. 2006-33, § 1, 6-6-06; Ord. No. 2014-71, § 1, 9-23-14)

Sec. 10.46. No Parking on Freeway.

No person shall park, stand or stop a vehicle on the shoulder of any freeway except when such vehicle is disabled or involved in an accident, and then not for a period to exceed three (3) hours.

Sec. 10.47. Commercial Vehicle, Restricted Parking.

No commercial vehicle of more than one (1) ton capacity shall be parked on any public roadway for a period longer than two (2) hours, and no commercial vehicle shall be allowed to stand at an angle to the line of the roadway or alley while loading or unloading for a longer period than one (1) hour. Such angle parking where the free flow of traffic is interfered with, is prohibited, except by permission of the Proper Authority.

(Ord. No. 2016-14, § 1, 3-29-16)

Sec. 10.48. Trailers.

No unattached trailer or semi-trailer shall be parked on a roadway at any time except when it is necessary to temporarily disconnect such trailer or semi-trailer for convenience in loading or unloading.

Sec. 10.49. Alley Parking.

No vehicle shall be parked in an alley except in those portions where parking is officially permitted as indicated by signs.

Sec. 10.50. Residential Parking Permit Zones.

(1) *Program Established.* A Residential Parking Permit Program (RPP) is hereby established for the purpose of providing local residents with more frequent opportunities for on-street parking spaces in areas of the City where the demand for such parking is high, and availability limited, as demonstrated by a study of such conditions conducted at the direction of the Grand Rapids Parking Commission. The Proper Authority is authorized to administer and implement the RPP pursuant to the Rules and Regulations promulgated by the Grand Rapids Parking Commission under this section.

(2) *Zones Established.* The City Commission may establish one or more on-street RPP Zones that will require a valid permit to park issued by the Proper Authority pursuant to the Rules and Regulations.

(3) *Rules and Regulations.* The Grand Rapids Parking Commission is authorized to promulgate Rules and Regulations for the administration of the RPP.

(4) *Violations.* No person shall:

(a) Park in a RPP Zone without properly displaying a valid permit.

(b) Falsify information associated with the application for a permit.

(c) Fail to report a change of residence or vehicle ownership upon which facts a permit is issued.

(d) Alter or transfer the permit to another person or vehicle.

(Ord. No. 2013-84, § 1, 12-17-13)

Sec. 10.51. Continued Parking Same Area.

Vehicles parked in a restricted parking area which shall be moved not more than fifty (50) feet immediately following the limited parking period shall be deemed to have remained stationary and in violation of this Chapter.

Sec. 10.52. Temporary Rules.

Where temporary parking or regulatory signs are placed because of emergency or special events such signs shall take precedence over any other parking or regulatory signs and shall be complied with, accordingly.

Sec. 10.53. Night Lights.

Vehicles which are parked during the hours of darkness shall have a red light, a red reflector, or reflex mirror at the left rear thereof, which shall be visible in the lights of a motor vehicle for a distance of not less than two hundred (200) feet.

Sec. 10.54. No Parking Over Forty-Eight Hours; Vehicle Repairs.

(1) Continuous parking of a vehicle on any public roadway in one (1) place for a period of forty-eight (48) hours is hereby prohibited, and such vehicle may be impounded. All abandoned vehicles found on the street or highway or any other place, whether public or private, may be impounded. For purposes of this Section, a vehicle is deemed an abandoned vehicle when:

(a) It has remained on a public street or highway or other place open to travel by the public for a period of forty-eight (48) hours or more;

(b) It has remained on private property for a period of forty-eight (48) hours or more without the consent of the owner or lessee of the property, or for a period of forty-eight (48) hours or more after the consent has been revoked; or

(c) It has remained in a garage for more than fifteen (15) days without a contract of service, storage or repair by the registered owner.

(2) Performing of any maintenance or repairs on vehicles in the public roadway, other than emergency repairs necessary to permit immediate removal or use of the vehicle, is hereby prohibited and such vehicle may be impounded. (Ord. No. 74-59, 7-23-74; Ord. No. 78-79, 10-17-78; Ord. No. 2016-14, § 2, 3-29-16)

Cross references—Disabled motor vehicles, § 9.126; unused motor vehicles, § 9.127.

Sec. 10.55. City Employees Parking Lot.

Where protection of life and property or any hazardous condition, or the need for special parking space for officials and employees of the City of Grand Rapids while engaged in the work of the City makes it advisable, parking on property belonging to the City may be limited, restricted or prohibited by order of the proper authority; such limitation, restriction or prohibition shall be indicated by paint of distinguishing color, or signs, or devices of uniform character indicating the distance, place and space, and it shall be unlawful for any person to park a vehicle in violation of such limitation, restriction or prohibition.

Sec. 10.56. Parking Meters.

The City Commission is hereby empowered to install, regulate, control, and maintain parking meters and to enter into contracts for the purchase or installation of parking meters and parts and equipment for the maintenance of the same. The City Manager is hereby empowered to establish spaces and zones to be known as parking meter spaces and zones on any City street in the Central Business District of any other district established by the City Commission and to install parking meters therein as hereinafter provided.

Sec. 10.57. Metered Spaces.

Parking meters installed in the parking meter zones shall be placed upon the curb adjacent to each parking place. Each parking meter shall display by a signal that the parking space adjacent thereto is or is not legally in use. Each parking meter shall display, on deposit of a United States coin of the denomination mentioned on the meter, a signal indicating the period of time for parking in the space regulated by such meter. Upon the expiration of the time limit the parking meter shall indicate by a signal that the lawful parking period has expired. Where no painted lines are provided to designate the length of the parking space, the front bumper of the vehicle shall be parked opposite the parking meter post, except where dual meters are installed, in which case the front or rear bumper shall be as nearly opposite the meter post as practicable.

Cross reference—Automobile parking system, Ch. 30.

Sec. 10.58. Operation of Meters.

Whenever a vehicle is parked in the space adjacent to a parking meter, the operator of the vehicle shall immediately deposit or cause to be deposited a coin of the United States in the parking meter of a denomination specified on the parking meter, and if such meter is of the so-called "manual" type, the person depositing the coin or coins shall also place the meter in operation by turning or pressing the lever, handle, crank, or other device provided on the meter. Then, the parking space may be lawfully occupied by the vehicle during the period of parking time indicated on the meter. If the operator fails to cause a coin or coins to be deposited, or if the vehicle is or remains parked there beyond the time limit indicated for the parking space on the meter adjacent to the vehicle, the vehicle shall be considered as being parked at an expired meter.

For purposes of this Section, there shall be two (2) meter districts and the fine or penalty for an expired meter within each of these districts shall be separately established by the City Commission. The zones are:

(1) Central City District which shall be bounded by the Downtown Development Authority boundary, also known as the Downtown District or Downtown Development Area No. 1, as described in Section 1.905 of Chapter 21 of the City Code. The Central City District shall include both sides of the boundary streets and avenues as well as the entire area within the boundary streets and avenues described therein.

(2) Non-Central City District which is the remainder of the City outside the Central City District.

(Ord. No. 2000-16, § 2, 4-11-00; Ord. No. 2007-05, § 1, 1-9-07; Ord. No. 2023-16, § 1, 5-23-23)

Sec. 10.59. Offenses.

No person shall:

(a) Deposit or cause to be deposited in a parking meter a coin for the purpose of increasing or extending the parking time of any vehicle beyond the legal parking time which has been established for the parking space adjacent to such parking meter.

(b) Deposit or cause to be deposited in any parking meter any slug, device or other substitute for a United States coin.

(c) Remove, deface, injure, tamper with, open or willfully break, destroy or impair the usefulness of any parking meter.

Cross references—Use of substitute coins, tampering with meters, § 2.142; enforcement and fines, § 2.145; schedule of off-street parking violations, § 2.146.

Sec. 10.60. Collections.

It shall be the duty of the City Manager to designate some City employee or employees to make regular collections of the money deposited in said meters. It shall be the duty of such person or persons to deliver such collections to the City Treasurer.

Sec. 10.61. Electronic Payment Method for Parking.

In those areas where a parking meter could otherwise be installed, the City Manager is hereby empowered to utilize technology to accomplish the same function as a parking meter

with the added convenience to the public of multiple payment options by utilizing an Electronic Payment Method for Parking option in designated parking zones. The City Manager may cause parking spaces and zones to be designated with signage as those that must be paid only by electronic method by utilizing a webpage, smartphone application, or by telephone in lieu of a physical parking meter.

Whenever a vehicle is parked in a parking space or parking zone designated by signage for electronic payment by webpage, smartphone application, or by telephone, the operator of the vehicle shall immediately set up an account with the City-designated electronic payment provider and activate a parking transaction in the parking zone as identified by the posted signage. The operator of the vehicle shall use the parking zone number and the vehicle's license plate to activate a paid parking session. Then, the parking space may be lawfully occupied by the vehicle during the period of parking time not to exceed the maximum time purchased. If the operator fails to activate a parking session or if the vehicle is or remains parked in the parking space or parking zone beyond the time limit purchased for the parking space or parking zone, it shall be a violation of this Chapter.

When utilized, the electronic payment parking zones shall be within the bounds defined for meter parking found in Section 10.58 and all fines, penalties, and dispositions of enforcement shall be the same as if the spaces and parking zones were serviced by physical parking meters as a Meter Infraction. Such fines are set from time to time by City Commission resolution.
(Ord. No. 2016-75, § 1, 11-15-16)

Sec. 10.62. Revenue Bond Ordinances.

The provisions of this Article relative to parking meters shall be subject to the provisions of any ordinance of this City by which revenues derived from the parking meters of the City shall be pledged as security for the payment of bonds issued pursuant to said ordinance and the provisions of Act 94 of the Public Acts of Michigan of 1933, or of any other statute.

Sec. 10.63. Loading Zones.

The proper Authority is authorized to continue to establish and maintain loading zones and to omit parking devices from such loading zones, if it should find it advisable and necessary from the standpoint of traffic safety conditions, and for the conduct of business and use of property by the abutting property owner or his or her lessees or assigns. Provided, no vehicle may remain in a loading zone without the occurrence of observable loading or unloading for a period of more than twenty (20) minutes.

At locations zoned for industrial and commercial uses where parking upon the street is prohibited, an abutting owner may be authorized by the proper authority to establish a loading zone in the area between the sidewalk and the street, provided the following conditions exist and continue to exist during the duration of the loading zone:

(1) Loading and unloading vehicles will not overhang the sidewalk or paved portions of the roadway;

(2) The sign designating the area of the parkway a loading zone is appropriately placed at the cost of the abutting property owner;

(3) The location of the loading zone will not interfere with the clear vision of other vehicles which may be entering the roadway;

(4) The loading zone so designated is used in the actual loading and unloading of vehicles, and not for parking or other purposes;

(5) That the entire loading zone be placed in the parkway of its abutting user;

(6) That no such loading zone be placed upon any property having off-street parking which could be utilized for loading and unloading;

(7) That a hard surface area be clearly set aside and the entire area maintained free of ruts and debris.

(Ord. No. 78-63, 8-15-78; Ord. No. 2007-05, § 2, 1-9-07)

Cross reference—Parking and loading spaces, § 5.51 et seq.

Sec. 10.63.1. Handicapped Parking.

The City Manager is authorized to designate certain parking areas within the paved portion of the streets of the City adjacent to public buildings as "handicapped parking" and to install at such locations designated signs indicating "handicapped parking." Any person in control of private property, whether normally restricted to certain persons or offered freely to the public, may designate parking spaces "handicapped parking." No vehicle shall be parked in any parking space designated "handicapped parking" unless the same be used by a handicapped person and be identified as authorized for handicapped parking privilege by the State of Michigan.
(Ord. No. 78-31, 5-9-78; Ord. No. 94-33, § 1, 8-9-94; Ord. No. 2006-33, § 2, 6-6-06)

Cross reference—Parking for handicappers, § 2.140.

Sec. 10.64. Parking Violations.

A vehicle parked in violation of this Chapter is hereby declared to be a nuisance which may be abated by any acting or permanent Police Officer, Police Cadet, C.L.I.P. (College Level Intern Paraprofessional), Fire Lieutenant, Fire Captain, Traffic Technician, Streets and Sanitation Supervisor or Streets and Sanitation Crew Leader, or by any other authorized City employee in either of the following ways:

(1) By placing a parking violation tag on said vehicle which shall plainly state the nature of the violation, and

(2) By placing a parking violation tag on such vehicle as in the preceding paragraph, and by removing or causing said vehicle to be removed to the vehicle pound.

Whenever a parking violation tag is placed on a vehicle, a copy of such tag shall be transmitted to the Parking Violations Bureau where a file record shall be made and kept of said violation.

The owner or operator of any vehicle upon which a parking violation tag has been placed and which has been removed to the vehicle pound may have said vehicle released by paying all violation charges at the Parking Violations Bureau or Grand Rapids Police Department which are due against said vehicle and paying all costs of impoundment to the towing contractor of the City of Grand Rapids. Any lienholder may claim an impounded vehicle by entering into an indemnity agreement with the City of Grand Rapids to save harmless the City from any and all liability the City may incur at the hands of the registered owner for releasing said vehicle to said lienholder, and upon all charges due against said vehicle. The aforementioned charges shall include, but not be limited to, all parking violation penalties presently outstanding against the vehicle, and all levies and costs of towing and storage and other im-

poundment expenses. All costs of impoundment shall be paid to the towing contractor of the City of Grand Rapids.

Whenever a parking violation tag has been placed on a vehicle and where the necessary steps have been taken to have said vehicle removed but is released to the owner or operator thereof prior to such actual removal, the owner or operator thereof shall pay to the towing contractor of the City all costs and expenses by reason of the institution of those steps necessary for removal of the vehicle. The towing contractor of the City may release the vehicle without removal as above mentioned by accepting payment of all costs and expenses to which he or she would be entitled for removal of the vehicle. The violation fine shall be paid to the Parking Violations Bureau.

Whenever any person authorized by this Code to enforce this Article shall determine that a vehicle parking in violation of this Chapter shall be ticketed with a parking violation tag and removed to the vehicle pound, as provided, it shall thereafter be unlawful for any person to drive or otherwise remove said vehicle from the scene of the violation in disobedience of a direct verbal order given by such authorized person that the vehicle not be moved. A vehicle which has been impounded shall not be removed from the vehicle pound except as authorized by the Grand Rapids Police Department.

Subject to the provisions of Section 10.66, parking violation penalties shall be paid within ten (10) days after the date of the violation. If not paid within said ten-day period, the penalty for such violation shall be increased as provided in Section 1.615 hereof.
(Ord. No. 69-64, 7-29-69; Ord. No. 70-34, 6-2-70; Ord. No. 77-67, 11-29-77; Ord. No. 81-59, 7-14-81; Ord. No. 2001-43, § 2, 10-23-01)

Cross references—Parking Violations Bureau, Ch. 16; enforcement of Chapter 30, automobile parking system, § 2.145.

Sec. 10.64.1. Impoundment of Vehicles for Failure to Pay Civil Infractions or Parking Violation Notices Issued Under This Chapter.

If a vehicle is unattended and the registered owner of the vehicle has six (6) or more unpaid and outstanding civil infraction violations or parking violation notices, in any combination, all of which have been issued for a violation of a Chapter 181 provision, any Police Officer, Police Cadet, C.L.I.P., or other authorized City employee may cause that vehicle to be immediately impounded. There shall be no impoundment under this Section from any private property.
(Ord. No. 83-67, § 1, 11-8-83)

Sec. 10.64.2. Immobilization of Vehicles for Failure to Pay Civil Infractions or Parking Violation Notices Issued Under This Chapter.

If a vehicle is unattended and the registered owner of the vehicle has six (6) or more unpaid and outstanding civil infraction citations or parking violation notices, in any combination, all of which have been issued for a violation of a Chapter 181 provision, any Police Officer, Police Cadet, C.L.I.P., or other authorized City employee may, in lieu of impoundment of the vehicle as otherwise provided, attach or cause to be attached to said vehicle an immobilizing device which will prevent the vehicle from being moved or driven.

If an immobilization device is attached, there shall also be attached securely to the vehicle a notice which states:

"CAUTION! THIS VEHICLE HAS BEEN MADE IMMOBILE BY A WHEEL-LOCKING DEVICE. SERIOUS DAMAGE TO THE VEHICLE WILL RESULT IF YOU ATTEMPT TO MOVE THE VEHICLE. RELEASE CAN BE OBTAINED BY:

"(1) Paying the outstanding Civil Infraction, Citations or Parking Violation Notices, together with the fee established to cover the costs of attachment and removal of the locking device, or

"(2) Posting a bond to cover the above costs and requesting a hearing.

"PAYMENT MUST BE MADE TO EITHER THE CITY TREASURER DURING REGULAR BUSINESS HOURS OR ON WEEKENDS, EVENINGS OR HOLIDAYS TO THE GRAND RAPIDS POLICE DEPARTMENT. ARRANGEMENTS MUST BE MADE WITHIN SEVENTY-

TWO (72) HOURS AFTER INSTALLATION OF THE DEVICE OR THE VEHICLE WILL BE REMOVED BY IMPOUNDMENT AS A NUISANCE PURSUANT TO SECTION 10.64 OF CHAPTER 181 OF THE MUNICIPAL CODE."

(Ord. No. 83-67, § 1, 11-8-83)

Sec. 10.64.3. Release of Vehicle Impounded or Immobilized Under This Article.

The owner or operator of any vehicle which has been impounded or immobilized under Section 10.64.1 or 10.64.2 may obtain release of the vehicle by either of the following:

(a) By paying the total amount due on all outstanding Civil Infraction Citations and/or Parking Violation Notices and by paying the fees then being charged for towing and storage of the vehicle and the fee charged for the attachment and removal of the immobilization device; or

(b) By the posting of a bond to cover all of the costs assessed against the vehicle in (a) above and requesting a hearing.

All payments under this Section shall be made to the Grand Rapids City Treasurer during regular business hours or to the Grand Rapids Police Department during evenings, holidays and weekends.

(Ord. No. 83-67, § 1, 11-8-83)

Sec. 10.64.4. Hearings and Bond Maximum.

The registered owner of a vehicle shall have the rights afforded by State Law to contest the Civil Infraction Citations or Parking Violation Notices through either an informal hearing before a District Court Magistrate or a formal hearing before a District Court Judge. Any bond required for release of a vehicle pursuant to Section 10.64.3 shall not exceed the sum of Five Hundred Dollars ($500.00).

(Ord. No. 83-67, § 1, 11-8-83)

Sec. 10.64.5. Unauthorized Removal of Vehicle.

Whenever any person authorized by this Code to enforce Chapter 181 shall issue or have issued an order to impound or immobilize a vehicle as provided herein, it shall thereafter be unlawful for any person to drive or otherwise remove said vehicle if he or she has knowledge of its impending impoundment or immobilization. A vehicle which has been impounded or immobilized shall not be removed except as authorized by the Grand Rapids Police Department or Grand Rapids City Treasurer. Violation of this Section shall constitute a misdemeanor.

(Ord. No. 83-67, § 1, 11-8-83)

Sec. 10.65. Violation Continues.

When a traffic violation ticket is placed upon any vehicle, additional tickets may be placed thereon for each overtime parking violation, or fraction thereof, that said vehicle remains in such parking space; each separate overtime parking period, or fraction thereof, shall constitute a separate and distinct violation.

Sec. 10.66. Illegally Parked Car, Presumption of Ownership.

In all cases of parking violations, either the registered owner or the operator of such vehicle may be proceeded against by complaint and warrant in 61st District Court which shall be in addition to the right of impounding heretofore given, and in any such proceeding proof by verifying ownership of the vehicle with the Secretary of State that the defendant named in the complaint was at the time of the parking the registered owner of the vehicle, shall be accepted by the court as establishing probable cause for the issuance of a warrant for the arrest of the registered owner, and creates in evidence a presumption that the registered owner of the vehicle was the person who parked or placed the vehicle at the point where, and for the time during which, the violation occurred.

(Ord. No. 73-39, 6-5-73; Ord. No. 74-52, 7-2-74)

Sec. 10.67. Release of Impounded Vehicle by Police Department.

Any owner or operator of an impounded vehicle who shall have denied committing the offense shall have the vehicle returned by requesting the vehicle at the Grand Rapids Police Department

and posting bond or security sufficient to pay such towing and impound charges should the offense be found to have been committed. Such bond or security shall be returned should the offense be found to have not been committed.
(Ord. No. 77-67, 11-29-77)

Sec. 10.68. Parking Violations Are Civil Infractions.

Any parking violation listed in Chapter 30 or Chapter 181 of the Code of the City of Grand Rapids shall be a civil infraction, unless otherwise indicated.
(Ord. No. 81-59, 7-14-81)

Sec. 10.69. Authority to Issue Civil Infraction Citations.

(1) A civil infraction citation for any parking violation set forth in Chapter 30, Chapter 74, Chapter 113, Chapter 114, or Chapter 181 of the Code of the City of Grand Rapids may be issued by any Police Officer, Police Recruit, Police Cadet, Police Intern, or other authorized City employee.

(2) The City Manager is empowered to authorize and utilize trained persons other than City employees to issue parking violation notices and civil infraction citations for parking violations on public or private property as authorized by the Michigan Vehicle Code or by the Code of the City of Grand Rapids.

(3) In addition to the authority provided by the Motor Vehicle Code, persons authorized pursuant to subsection (2) are authorized to issue parking violation notices and civil infraction citations for the following violations of this Chapter:

(a) Manner of parking in violation of Section 10.44;

(b) Parking within, or on, a marked bike lane in violation of Section 10.45(17);

(c) Parking in any place or in any manner so as to block or partially block a bike lane in violation of Section 10.45(18);

(d) Parking an unattached trailer or semi-trailer on a roadway in violation of Section 10.48; and

(e) Seasonal parking restrictions in violation of Section 10.70.

(Ord. No. 81-59, 7-14-81; Ord. No. 2006-33, § 3, 6-6-06; Ord. No. 2017-46, § 1, 9-12-17; Ord. No. 2019-28, § 1, 7-9-19)

Sec. 10.70. Seasonal Parking.

From 12:01 a.m. on November 1 of each year until 11:59 p.m. on April 1 of the following year, the parking restrictions as set out in this Section shall be in effect.

On each even numbered day, starting at 1:00 a.m. and until 6:00 p.m. on the same even numbered day, parking is prohibited on the odd numbered side of the street.

On each odd numbered day, starting at 1:00 a.m. and until 6:00 p.m. on the same odd numbered day, parking is prohibited on the even numbered side of the street.

It is the intent of this Section that starting at 6:00 p.m. on each day and until the parking restrictions provided herein go into effect at 1:00 a.m. of the following day, parking is permitted on both sides of the streets to which this Section applies. Necessary temporary or emergency restrictions indicated by official signs or other forms of official notice may further restrict parking during these hours.

This section applies to every portion of every block of every city street that is posted with signs making this section applicable.
(Ord. No. 2001-43, § 3, 10-23-01; Ord. No. 2002-47, § 1, 8-6-02)

ARTICLE 5. EQUIPMENT*

Sec. 10.71. Inspection.

The operator of a motor vehicle shall submit to inspection of the equipment of said vehicle upon the request of a police officer and he or she shall conform to such direction as the police officer may give him or her in order to determine the adequacy of the equipment of said motor vehicle,

*__State law reference—__Similar provisions, MCL 257.683 et seq.

and if said vehicle does not comply with the equipment and standards herein established, the police

officer may arrest the driver or may order the driver to have the vehicle fixed forthwith and report to the traffic division for inspection thereof within forty-eight (48) hours.

Sec. 10.72. Brakes.

Every motor vehicle shall be equipped with adequate brakes which shall consist of a service brake capable of stopping the vehicle without deviation from direction within a distance of thirty (30) feet from a speed of twenty (20) miles an hour on a dry, smooth, hard surface road free from loose material; and an emergency brake capable of holding the vehicle on any grade which it can ascend.

Sec. 10.73. Horn.

Every motor vehicle shall be equipped with a warning device capable of producing a sound audible under normal conditions for a distance of not less than two hundred (200) feet; provided, however, that it shall be unlawful for a vehicle to be equipped with, and no person shall use, any siren, exhaust, compression or sparkplug whistle, and no person shall make any unnecessary or unreasonably loud or continued sound by means of a warning device; provided further that authorized emergency vehicles may be equipped with and use bells, sirens or exhaust whistles.

Cross reference—Prohibited motor vehicle noise, § 9.63(5)—(8), (19), (20).

Sec. 10.74. Rear View Mirror.

Every motor vehicle shall be equipped with a mirror so adjusted that the operator shall have a clear view of the highway to the rear under all conditions. In addition, all motor vehicles shall be equipped with an outside rear view mirror on the driver's side which shall be positioned to give the driver a rear viewing angle from the driver's side of the vehicle.
(Ord. No. 73-47, 6-26-73)

Sec. 10.75. Windshield Cleaning Devices.

(1) Every motor vehicle shall be equipped with a device for cleaning rain, snow or other moisture from its windshield, which device can be controlled or operated by the driver of the vehicle. Every windshield wiper on a motor vehicle shall be maintained in good working order.

(2) No motor vehicle manufactured after January 1, 1956, shall be operated on a street or roadway unless it is equipped with a windshield washer maintained in operable condition at all times capable of cleaning the windshield so as to afford the driver a clear view of the street or any intersecting street.

(3) No commercial vehicle licensed as such shall be operated on any street or roadway at any time between December 15 and March 15, both dates inclusive, unless it is equipped with a hot air windshield defroster or an electrically heated windshield or such other device designed to heat the windshield and maintained in operable condition at all times.

Sec. 10.76. Noise and Smoke.

(1) No person shall operate a motor vehicle, except fire apparatus, on a roadway or any other place open to the general public unless such motor vehicle is equipped with a muffler in good working order and in constant operation to prevent excessive or unusual noise and annoying smoke, and no person shall use a muffler cut-out, bypass or similar device on a roadway or any other place open to the general public.

(2) The engine, power mechanism, and exhaust system of every motor vehicle shall be so equipped, and/or adjusted, and/or operated as to prevent excessive fumes, smoke or noise.

(3) No muffler shall be replaced, changed or altered in any manner so as to increase the noise or smoke emitting from the exhaust system.
(Ord. No. 68-33, 5-14-68)

Cross references—Air pollution control, § 9.31 et seq.; motor vehicle noise prohibitions, § 9.63(5)—(8), (19), (20).

Sec. 10.77. Lights.

(1) *Headlights and tail lights.* Every vehicle while being operated during the hours of darkness shall be equipped with white headlights and at least one (1) red tail light clearly discernible under normal operating conditions for a distance of not less than five hundred (500) feet, the lamps or lights of which shall be on and projecting a

beam to the front or rear, respectively, subject to the following requirements.

(2) *Head lamps for motor vehicles; number, height:*

(a) Every motor vehicle other than a motorcycle or motor driven cycle, shall be equipped with at least two (2) headlamps with at least one (1) on each side of the front of the motor vehicle, which headlamps shall comply with the requirements and limitations set forth in this Section.

(b) Every motorcycle and every motor driven cycle shall be equipped with at least one (1) and not more than two (2) headlamps which shall comply with the requirements and limitations of this Section.

(c) Every headlamp upon every motor vehicle, including every motorcycle, shall be located at a height measured from the center of the headlamp of not more than fifty-four (54) inches nor less than twenty-four (24) inches above the level surface upon which said vehicle stands.

(d) Whenever a motor vehicle equipped with headlamps as herein required is also equipped with any auxiliary lamps or a spot lamp, or any other lamp on the front thereof projecting a beam of an intensity greater than three hundred (300) candle power, not more than a total of four (4) of any such lamps on the front of a vehicle shall be lighted at any one (1) time when upon a highway.

(3) (*Reserved.*)

(4) *Rear lamps:*

(a) Every motor vehicle, trailer, semi-trailer, pole-trailer and any other vehicle which is being drawn in a train of vehicles shall be equipped with at least one (1) rear lamp mounted on the rear, which, when lighted as hereinbefore required, shall emit a red light plainly visible from a distance of five hundred (500) feet to the rear.

(b) Either a tail lamp or a separate lamp shall be so constructed and placed as to illuminate with a white light the rear registration plate and render it clearly legible from a distance of fifty (50) feet to the rear. Any tail lamp or tail lamps, together with any separate lamp for illuminating the rear registration plate, shall be so wired as to be lighted whenever the headlights or auxiliary driving lamps are lighted.

(5) *Multiple beam road lighting equipment; color, intensity, indicator:*

(a) Except as hereinafter provided, the head lamps, or the auxiliary driving lamps, or combinations thereof, on motor vehicles shall be so arranged that selection may be made between distributions of light projected to different elevations, subject to the following requirements and limitations.

(b) Head lamps shall in all cases emit a white light; auxiliary lamps may emit either a white or amber light.

(c) There shall be an uppermost distribution of light, or composite beam, so aimed and of such intensity as to reveal persons and vehicles at a distance of at least three hundred fifty (350) feet ahead for all conditions of loading.

(d) There shall be a lowermost distribution of light, or composite beam, so aimed and of sufficient intensity to reveal persons and vehicles at a distance of at least one hundred (100) feet ahead; and under any condition of loading none of the high intensity portion of the beam shall be directed to strike the eyes of an approaching driver.

(e) Every motor vehicle except motorcycles and motor driven cycles registered in this State which has multiple beam road lighting equipment shall be equipped with a beam indicator, which shall be lighted whenever the uppermost distribution of light from the headlamps is in use and shall not otherwise be lighted. Said indicator shall be so designed and located that when lighted it will be readily visible without glare to the driver of the vehicle so equipped.

(6) *Reflecting discs.* Reflecting discs shall be placed on the sides of any vehicle or load thereon

if its lights are not discernible by persons approaching at right angles thereto.

(7) *Flashing lights.* Flashing lights are prohibited on motor vehicles, except on an authorized emergency vehicle or on any vehicle as a means for indicating a right or left turn.

(8) *Additional lights.* Additional lights may be placed on motor vehicles provided they are permitted by the Vehicle Code for the State of Michigan, and not prohibited in this Section.

(9) *Signal lamps.* When a vehicle is equipped with a stop lamp or other signal lamps, such lamp or lamps shall at all times be maintained in good working condition. No stop lamp or signal lamp shall project a glaring or dazzling light.
(Ord. No. 77-15, 4-5-77)

Sec. 10.78. Projecting Loads.

Whenever the load of any vehicle shall extend more than four (4) feet beyond the rear of the bed or body thereof, there shall be displayed at the end of the load in such position as to be clearly visible at all times from the rear thereof, a red cloth flag not less than twelve (12) inches, both in length and width, except that during the period of darkness, there shall be displayed at the end of any such load a red light plainly visible under normal atmospheric conditions at least five hundred (500) feet from the rear and sides of such vehicle.

Sec. 10.79. Fenders.

It shall be unlawful to operate any passenger motor vehicle on the roadway unless such motor vehicle is properly equipped with mud guards or fenders of not less than eight (8) inches in width.

Sec. 10.80. Truck Weight; Height; Length.

(1) No person shall operate or drive upon the roadway of this City a vehicle whose total weight, including load, exceeds eighteen thousand (18,000) pounds per axle unless he or she either complies with the rules and regulations set forth in Section 257.722 of the 1970 Compiled Laws of the State of Michigan, as it may be amended from time to time, or receives a permit to do so from the Proper Authority.

(2) No vehicle exceeding thirteen and one-half (13½) feet in height or fifty-five (55) feet in length shall be driven or moved on a roadway, nor shall the total outside width of any vehicle or load thereon exceed ninety-six (96) inches, unless a permit is secured from the Proper Authority; provided, that any trackless trolley, coach, gas or diesel, with a maximum outside width of not to exceed one hundred two (102) inches and a maximum overall length, inclusive of front and rear bumpers, all not to exceed forty (40) feet, may be operated within the City of Grand Rapids.

Sec. 10.81. Trailers.

Every vehicle or trailer drawn by any motor propelled vehicle must be so attached to such vehicle with such forms of coupling devices as will prevent such vehicle or trailer from being deflected more than six (6) inches from the path of the towing vehicle's wheels. Such vehicle or trailer must also be connected to the towing vehicle by suitable safety chains or devices, one (1) on each side of the coupling and at the extreme outer edge of the vehicle and each such chain or device and connection so used shall be of sufficient strength to haul the trailer when loaded.

Sec. 10.82. Operation of Unsafe Vehicle.

No person shall drive or move a vehicle nor shall the owner thereof cause or knowingly permit a vehicle which is in unsafe condition to be moved on any roadway so as to endanger any person, or which does not contain such parts or is not at all times equipped with such lamps and other equipment in proper condition and adjustment as provided in this Chapter.

Sec. 10.83. Unauthorized Operation of Motor Vehicles on the Property of Another.

No person shall drive or park a motor vehicle or trailer in any of the following areas or locations:

(a) Upon any portion of a street, highway or other public right-of-way not set aside as a roadway.

(b) Upon the sod or grass in any public park. This subsection shall not apply to persons

employed in the park, nor shall it apply to others directed to drive or park within the park by a police officer or Park Department employee.

(c) Upon the property of any other person unless the operator has the consent of the owner, tenant or other person in occupancy or possession of the property. If the property is posted as private, or with signs prohibiting trespassing, the failure of the operator of a motor vehicle that is driving or parking on the property to display to a police officer, upon request, a written authorization of the owner, tenant or other person in occupancy or possession for the vehicle or operator to be on the private property, shall constitute prima facie proof that the driving or parking was without consent.

(Ord. No. 71-38, 6-15-71; Ord. No. 77-21, 5-10-77)

Sec. 10.84. Avoidance of Traffic Control Device.

No driver of a vehicle shall attempt to avoid obedience to any traffic-control device by driving upon or through any private property.

(Ord. No. 73-16, 2-27-73)

State law reference—Similar provision, MCL 257.611(2), MSA 9.2311.

Sec. 10.85. Child Restraint System.

(1) Except as provided in this Section, or as otherwise provided by law or by a duly promulgated Federal or State regulation, each driver transporting a child in a motor vehicle shall properly secure each child in a child restraint system as follows:

(a) Any child less than one (1) year of age in a child restraint system which meets the standards prescribed in 49 C.F.R. 571.213.

(b) Any child one (1) year of age or more but less than four (4) years of age, when transported in the front seat, in a child restraint system which meets the standards prescribed in 49 C.F.R. 571.213.

(c) Any child one (1) year of age or more but less than four (4) years of age, when transported in the rear seat, in a child restraint system which meets the standards prescribed in 49 C.F.R. 571.213, unless the child is secured by a safety belt provided in the motor vehicle.

(2) This Section does not apply to a driver who is a nonresident of Michigan or to any child being nursed.

(3) This Section does not apply if the motor vehicle being driven is a bus, school bus, taxicab, moped, motorcycle, or other motor vehicle not required to be equipped with safety belts under Section 710b of the Michigan Vehicle Code (MCL 257.710b, MSA 9.2410(2)) or Federal law or Federal or State regulations.

(4) This Section shall not apply to any class of children exempted by rules promulgated by the Secretary of State pursuant to Section 710d(5) of the Michigan Vehicle Code (MCL 257.710d, MSA 9.2410(4)). However, the driver of a motor vehicle in which any such children so exempted are transported shall restrain such children by any alternate means of protection specified by the Secretary of State.

(5) A person who violates this Section is responsible for a civil infraction.

(6) Notwithstanding any other provision of this Code, a person who violates this Section may be ordered to pay a civil fine of not more than Ten Dollars ($10.00) and costs. However, the court shall waive any civil fine or cost if the person, before the appearance date on the citation, supplies the court with evidence of acquisition, purchase or rental of a child seat system meeting the requirements of this Section.

(Ord. No. 83-13, 3-15-83)

State law reference—Similar provision, MCL 257.710d, MSA 9.2410(4).

Secs. 10.86—10.92. Reserved.

ARTICLE 6. MISCELLANEOUS REGULATIONS

Sec. 10.93. Deposit in Roadway.

No person shall throw, scatter, sweep, deposit, place or leave in front or over, or in any roadway

anything or substance liable to injure any person or damage the tires or any other part of any vehicle; and no person shall sprinkle a roadway to such an extent as to leave standing water or mud thereon.

Sec. 10.94. Obstructing Driver's View.

No motor vehicle shall be operated while the windshield, sidewings, or any window thereof is so defective, obstructed or covered that the operator does not have a clear and unimpeded view through the full original surface thereof, or while the vision of the operator is obstructed in any way by any dangling ornament or other suspended object except as authorized by law. Provided, however, that official certificates in the lower right- or left-hand corner of the windshield shall be lawful.

State law reference—Similar provision, MCL 257.709.

Sec. 10.95. Load Security.

No vehicle shall be driven or moved on a roadway unless it is so constructed or loaded as to prevent its contents from shifting, dropping, leaking or sifting, or otherwise escaping therefrom, without permission from the Proper Authority.

Cross reference—Truck loads causing litter, § 9.97.

Sec. 10.96. Load Obstructing View.

No motor vehicle shall be driven, moved or operated while it is loaded in such manner that the operator does not have unimpeded vision of the full width of the roadway directly at the front of the vehicle.

Sec. 10.97. Overloaded Vehicles.

No motor vehicle shall be so loaded that it cannot be moved at a speed of at least five (5) miles per hour on any grade on which it is proceeding.

Sec. 10.98. Lugged Wheels.

No motor vehicle shall be propelled which has metal spikes, lug or corrugations projecting from any wheel nor shall any machine or vehicle having a caterpillar tread, nor shall any heavy machinery such as tractors, concrete mixers, trenching machines, or excavating machines be propelled in any manner on their wheels or treads on the roadway of this City, nor shall any vehicle, machinery or other objects be driven, moved or dragged in such manner as to tear up or damage the surface of the roadway.

State law reference—Similar provision, MCL 257.710.

Sec. 10.99. Advertising.

No vehicle used exclusively or primarily for advertising purposes shall be allowed on the roadway of this City except with the consent and under the regulations of the Proper Authority.

Sec. 10.100. Trucks, Prohibited Streets.

No commercial vehicle of over one (1) ton capacity, except passenger carrying vehicles shall be driven on Monroe Avenue between Division Avenue and the south line of Michigan Street, provided that any such vehicle may be driven not more than one (1) block in said portion of Monroe Avenue when necessary for the purpose of loading or unloading.

Cross reference—Truck routes, § 10.36.

Sec. 10.101. Loading Construction Materials.

No person engaged in the loading, unloading or storing of materials for the excavation or construction of a building which will when completed face on two (2) or more streets, shall permit such loading, unloading or storing except on the less congested of the said two (2) or more streets, unless otherwise directed by the Proper Authority.

Sec. 10.102. Unauthorized Signs.

(1) No unauthorized person shall erect, maintain, move, deface, change the wording of, or otherwise interfere with or damage any traffic signal or device.

(2) No unauthorized person shall place, maintain or display upon or in view of any highway any sign, signal, marking or device which is an imitation of or resembles an official traffic control device or railroad sign or signal or the flashing, rotating or oscillating light of any emergency vehicle or which attempts to direct the movement of traffic, or which hides from

view or interferes with the effectiveness of any official traffic device, railroad sign or signal, or the flashing, rotating or oscillating light on any emergency vehicle. This subsection shall not be deemed to prohibit the erection upon private property adjacent to highways of signs giving useful directional information, and of a type which cannot be mistaken for official signs.

Cross reference—Similar provisions prohibiting certain signs, § 8.831(5).

State law reference—Similar provision, MCL 257.615 and MCL 257.616.

Sec. 10.103. Painting Curbs.

No person shall paint or otherwise mark any curbing or other part of a roadway unless authorized to do so by the Proper Authority.

Sec. 10.104. Reserved.

Editor's note—Ord. No. 2013-61, § 1, adopted October 8, 2013, repealed § 10.104, which pertained to standing horses. See Code Comparative Table for complete derivation.

Sec. 10.105. Hitching on Vehicles.

No person shall catch onto, hitch onto, or jump on or off of any vehicle while it is in motion.

Sec. 10.106. Motorcycles, Scooters.

(1) Not more than one (1) person shall ride upon a motorcycle unless upon a proper seat provided therefor, either at the rear of the operator's seat or in an attached sidecar. Both the operator and any other person riding in any other manner shall be deemed to be violators of this Section.

(2) No motor driven cycle shall be used to carry more than one (1) person.

(3) No motorcycle or motor driven cycle shall be driven more than two (2) abreast except on paths or parts of roadways set aside for the exclusive use of such vehicles.

(4) No person operating a motor driven cycle or a motorcycle shall pass between lines of traffic, but may pass on the left of traffic moving in his or her direction in the case of a two-way street, or on the left or right of traffic in the case of a one-way street, in an unoccupied lane.

(5) No person operating a motorcycle or motor driven cycle shall carry any package, bundle or Article which prevents the driver from keeping both hands upon the handlebars of said vehicle.
(Ord. No. 67-5, 4-4-67; Ord. No. 67-25, 5-16-67; Ord. No. 70-54, 8-4-70; Ord. No. 73-12, 2-13-73; Ord. No. 2013-67, §§ 1, 2, 10-22-13)

State law reference—Similar provisions, MCL 257.656 et seq.

Sec. 10.107. Ride Within Vehicle.

No person shall ride upon any portion of a passenger vehicle except within the body of such vehicle, and no person shall ride upon the fenders or running board of any vehicle; and no driver shall permit any person to ride as prohibited aforesaid.

Sec. 10.108. Coasting on Street.

No person shall coast or slide along or upon any sidewalk or roadway except as may be designated by the City Commission.

Sec. 10.109. Bus Stops, Loading Zones.

The Proper Authority is authorized in the consideration of public safety and the regulation of traffic to designate, set aside, and mark such areas for buses to stop in for the purpose of loading and unloading passengers, the cost thereof to be borne by the company served.
(Ord. No. 71-34, 5-25-71)

State law reference—Similar provisions, MCL 257.676b.

Sec. 10.110. Through Streets.

The Proper Authority may, upon consideration of the traffic flow, designate certain roadways, or portions thereof, as main traveled or through roadways, by erecting at each entrance thereto a traffic control device.

Sec. 10.111. Opening Vehicle Doors.

No person shall open a door of a motor vehicle on the side facing the traveled portion of the roadway in such a manner as to interfere with vehicles, bicycles, or pedestrians lawfully proceeding on such public roadway.
(Ord. No. 2015-52, § 3, 9-22-15)

Sec. 10.112. Excessive Noise.

No person shall use any automobile, motorcycle or other vehicle upon any roadway or any other place open to the general public so out of repair, so loaded, or in such a manner as to create loud and unnecessary grating, rattling, squealing of tires or any other noise detrimental to the health and well being of any other person.
(Ord. No. 68-32, 5-14-68)

Sec. 10.113. Usurping Parking Space.

In any parking space where there is sufficient room for only one (1) vehicle, and an operator of a motor vehicle has stopped the said motor vehicle with the obvious intent of backing into the one (1) space available, it shall be unlawful for the operator of another motor vehicle to drive or propel or "nose" his or her motor vehicle forward into said space, or in any way usurp, or attempt to usurp, said space, or interfere with the operator of the motor vehicle backing into said space; and the operator of the motor vehicle backing shall be entitled to said parking space. Any person violating the provisions of this Section shall be guilty of a misdemeanor.

Sec. 10.114. Abetting Violation.

Every person who commits, attempts to commit, conspires to commit, or aids or abets in the Commission of, any act declared in this Chapter to be an offense, whether individually or in connection with one (1) or more persons, or as a principal, agent or accessory, shall be guilty of such offense, and every person who falsely, fraudulently, forcibly or wilfully induces, coerces, requires, permits or directs another to violate any provision of this Chapter shall likewise be guilty of such offense.

Secs. 10.115—10.120. Reserved.

ARTICLE 7. PEDESTRIANS*

Sec. 10.121. Pedestrians Regulated.

Pedestrians shall be subject to traffic control signals as heretofore declared in this Chapter, traffic control devices and the order or direction of any Police Officer, notwithstanding the provisions of the existing traffic laws, when such officer is directing or regulating traffic in the interest of public safety, but all other places pedestrians shall be granted those rights and be subject to the restrictions stated in this Chapter.

Sec. 10.122. Crosswalks.

The operator of a vehicle shall stop for a pedestrian crossing the roadway within any marked crosswalk, or within any unmarked crosswalk at an intersection, except at intersections where the movement of traffic is being regulated by a police officer or a traffic control signal; and at such regulated intersections operators of vehicles shall stop for all pedestrians crossing or who have started to cross the roadway on the "go" or "walk" signal.
(Ord. No. 2018-05, § 1, 2-6-18)

Sec. 10.123. Crossing Other Than at Crosswalk.

(1) Every pedestrian crossing a roadway at any point other than a crosswalk shall yield the right-of-way to all oncoming vehicles.

(2) Any pedestrian crossing a roadway at a point where a pedestrian tunnel or overhead pedestrian crossing has been provided shall yield the right-of-way to all oncoming vehicles.

Sec. 10.124. Prohibited Crossings.

Between adjacent intersections at which traffic control signs are in operation, pedestrians shall not cross at any place except in a crosswalk.

Sec. 10.125. Vehicle Stopped for Pedestrian.

When a vehicle has stopped to permit a pedestrian who is properly crossing the roadway to proceed, it shall be unlawful for the operator of another vehicle approaching from the rear to pass such stopped vehicle.

*__Cross references—__Stop required near crosswalk, § 10.19; blocking intersection or crosswalk prohibited, § 10.20; standing in roadway, § 10.28.

Sec. 10.126. Hitchhiking.

No person shall stand on or near the roadway and solicit a ride from the operator of any vehicle other than public carriers.

Sec. 10.127. Standing in Roadway.

No pedestrian shall leave the curb and stand in any portion of the roadway while waiting for the "go" or "walk" signal.

Sec. 10.128. Blind Persons.

Any driver of a vehicle who approaches within ten (10) feet of a person wholly or partially blind, carrying a cane or walking stick white in color, or white tipped with red, shall immediately come to a full stop and take such precautions before proceeding as may be necessary to avoid accident or injury to such person.

Sec. 10.129. Walking on Roadway.

Where sidewalks are provided, it shall be unlawful for pedestrians to walk upon the main traveled portion of the roadway. Where sidewalks are not provided, pedestrians shall, when practicable, walk on the left berm or shoulder of the roadway facing traffic which passes nearest unless otherwise directed by the proper signs or markings.

State law reference—Similar provisions, MCL 257.676b.

ARTICLE 8. BICYCLES AND MICROMOBILITY DEVICES*

Sec. 10.130. Definitions.

As used in this Article, the following words and phrases shall have the following meanings:

(1) *Bicycle* means every mechanical means of transportation having at least two (2) tandem wheels, fully operable pedals, and propelled solely by human power or with an assistive electric motor of less than seven hundred fifty (750) watts, upon which any person or persons may ride.

(2) *Bike Lane* means a portion of a roadway which has been designated by striping, signing and/or markings for the preferential or exclusive use of persons riding bicycles or micromobility devices.

(3) *Micromobility Device* means any device meant to carry one rider or operator and that is not required to be licensed or registered by the State of Michigan. Micromobility devices may be propelled either by the power of the rider or by an electric motor of less than seven hundred and fifty watts (one horsepower), whose maximum speed on a paved level surface, when powered solely by such a motor while ridden, is less than twenty miles per hour. Micromobility devices include, but are not limited to, unicycles, electric unicycles, tricycles, electric stand-up scooters, electric sit-down scooters, Segways, skateboards, motorized skateboards, rollerblades, and hoverboards.

(4) *Trail* means a section of sidewalk or other pathway which is physically separated from motorized vehicular traffic by an open space or barrier, and which is set aside for use by bicycles, micromobility devices, and pedestrians and is so designated by signs.

(5) *User* means a person fifteen (15) years of age or older who is operating or riding a bicycle or micromobility device.

(Ord. No. 2024-17, § 1, 4-9-24)

Sec. 10.131. Manner of Operation.

(1) Users on a public highway shall be granted all of the rights and shall conform to all of the rules herein established for the operation of motor vehicles including the direction and instructions of police officers, traffic control signals and devices applicable to bicycles and micromobility devices.

*__Editor's note—__Ord. No. 2024-17, § 1, adopted April 9, 2024, amended article 8 in its entirety to read as herein set out. Former article 8, §§ 10.130—10.139, pertained to bicycles, and derived from Ord. No. 2015-52, § 4, 9-22-15.

(2) *Number of riders.* Bicycles and micromobility devices shall not be ridden by more persons than the number for which it was originally designed and manufactured. Passengers are allowed when using seats, trailers, or other carrying devices designed for use in conjunction with a bicycle or a micromobility device.

(3) *Two (2) Abreast.* Persons riding bicycles or micromobility devices upon a roadway shall not ride more than two (2) abreast except on paths or parts of roadways set aside for the exclusive use of bicycles and micromobility devices, or during special events where a group of Users is otherwise permitted. Persons riding bicycles or micromobility devices two (2) abreast shall not impede the normal and reasonable movement of traffic and, on a laned street, shall ride within a single lane. Persons riding bicycles or micromobility devices upon a sidewalk shall not ride more than single file.

(4) *Erratic Driving.* No Users shall cause or permit a bicycle or micromobility device to curve to and fro.

(5) *Hands on Controls.* For bicycles and micromobility devices with handles, at least one (1) hand of the User shall be on the handle bar at all times except when he or she is in the act of signaling.
(Ord. No. 2024-17, § 1, 4-9-24)

Sec. 10.132. Sidewalks, Bike Lanes and Trails.

(1) No User, except for people with disabilities with specially equipped devices, shall operate or ride a bicycle or micromobility device upon any sidewalk within the Downtown Improvement District as described in Section 1.960 of the City Code except in that portion of the Downtown Improvement District that is north of I-196, upon any sidewalk where prohibited by appropriate signage, or through special events or areas of pedestrian activity.

(2) No User shall operate or ride a bicycle or micromobility device upon any sidewalk where traffic control devices or signs are posted or displayed prohibiting riding a bicycle or micromobility device thereon.

(3) When a User is operating or riding a bicycle or micromobility device upon a sidewalk or trail, the User shall yield the right-of-way to all other lawful users of the sidewalk or trail, and to all other persons so near to the sidewalk or trail as to constitute an immediate hazard.

(4) When a User is operating or riding a bicycle or micromobility device upon a sidewalk or trail, he or she shall give an audible warning either verbally, by bell, or other suitable warning device to pedestrians and other lawful users of the sidewalk or trail. Such signal shall be given a reasonable distance before overtaking or passing by such pedestrian or other lawful user of the sidewalk or trail.

(5) When any User is operating or riding a bicycle or micromobility device upon a designated trail, he or she shall yield right-of-way to all vehicles turning onto streets or roadways intersecting the trail.

(6) When any User operating or riding a bicycle or micromobility device upon a designated trail or sidewalk is approaching an intersecting street or roadway, he or she shall slow down to a speed which will permit him or her to stop prior to entering the intersection, and shall make such reasonable observations as will enable him or her under the existing conditions of the trail, the sidewalk, the weather, the visibility and any other conditions then existing to yield the right-of-way and he or she shall yield the right-of-way to traffic on the intersecting street or roadway prior to entering the intersecting street or roadway.

(7) When any User is operating or riding a bicycle or micromobility device upon a designated trail, he or she shall obey all traffic control devices and signs posted thereon, and all traffic control devices controlling vehicular traffic on any street adjacent or parallel to the trail.
(Ord. No. 2024-17, § 1, 4-9-24)

Sec. 10.133. Shared Micromobility Terms of Service.

User shall comply with vendor's terms of service so long as the terms do not conflict with Grand Rapids City Code.
(Ord. No. 2024-17, § 1, 4-9-24)

Sec. 10.134. Equipment.

(1) *Lights.* A bicycle or micromobility device being operated on a roadway between one-half (½) hour after sunset and one-half (½) hour before sunrise shall be equipped with a lamp on the front which shall emit a white light visible from a distance of at least five hundred (500) feet to the front and with a red reflector on the rear which shall be visible from all distances from one hundred (100) feet to six hundred (600) feet to the rear when directly in front of lawful lower beams of head lamps on a motor vehicle. A lamp emitting a red light visible from a distance of five hundred (500) feet to the rear may be used in addition to the red reflector.

(2) *Brakes.* Every bicycle or micromobility device shall be equipped with a brake which will enable the User to make the braked wheel skid on dry, level, clean pavement.
(Ord. No. 2024-17, § 1, 4-9-24)

Sec. 10.135. Hitching to Vehicles.

No User upon any bicycle or micromobility device shall attach the bicycle or micromobility device or himself or herself to any vehicle upon a roadway or sidewalk.
(Ord. No. 2024-17, § 1, 4-9-24)

Sec. 10.136. Speed.

(1) No User shall operate his or her bicycle or micromobility device in a manner or at a speed greater than is reasonable and proper under the conditions then existing, or at speed greater than will permit him or her to bring his or her bicycle or micromobility device to a stop within the assured clear distance ahead.

(2) Unless otherwise posted or authorized, no person shall ride upon a sidewalk at a speed greater than fifteen (15) miles per hour.
(Ord. No. 2024-17, § 1, 4-9-24)

Sec. 10.137. Reserved.

Sec. 10.138. Private Property.

No User shall ride a bicycle or micromobility device on private property unless the User has the permission of the owner to ride thereon.
(Ord. No. 2024-17, § 1, 4-9-24)

Sec. 10.138. Accident Reports.

When any User is riding upon a street, highway, sidewalk, bicycle path and the bicycle or micromobility device is involved in an accident resulting in injury or death to a person or damage to property, the User shall within twenty-four (24) hours report the accident to a Police Officer or personally report the accident to the Police Department at the Information Desk at Police Headquarters.
(Ord. No. 2024-17, § 1, 4-9-24)

Secs. 10.139—10.160. Reserved.

ARTICLE 9. ACCIDENTS

Sec. 10.161. Operator's Duty.

The operator of a vehicle who knows or should know that he or she has been involved in an accident upon either public or private property, when the property is open to travel by the public, resulting in injury or death to any person or damage to any property shall:

(1) Immediately stop such vehicle at the scene of the accident, and

(2) Render to any person injured in such accident reasonable assistance in securing medical aid or transportation of injured person or persons, and

(3) Give his or her name, address and the registration number of the vehicle he or she is driving, and the name and address of the owner, and exhibit his or her operator's or chauffeur's license to any person injured and the driver or occupants of any vehicle collided with or to the owner of the property damaged, and

(4) Forthwith report such accident to the nearest or most convenient police station or police officer, unless there is no personal injury and the apparent extent of the damage to all property is not more than Four Hundred Dollars ($400.00); provided, however, that if the property damaged is a parked vehicle or other stationary property, and the owner or possessor thereof is not present, the operator shall

either locate the owner or possessor of such property and notify the owner or possessor of such property of the name and address of the driver and owner of the striking vehicle or, if such owner or possessor cannot be located, shall forthwith make a report of the accident to the nearest or most convenient police officer.

(Ord. No. 79-24, 4-24-79; Ord. No. 93-8, § 1, 2-9-93)

State law reference—Similar provisions, MCL 257.617 et seq.

Sec. 10.162. Presumption.

The license plates displayed on a vehicle involved in any accident shall constitute a prima facie presumption that the owner thereof was the person who operated such vehicle at the time and place where the accident occurred.

Sec. 10.163. Garageman's Report.

A person in charge of any garage or repair shop receiving a motor vehicle which shows evidence of having been involved in an accident, collision or struck by a bullet, shall immediately make a written report to the Police Department, on forms provided for that purpose, giving the engine number, license number, and the name and address of the owner or operator of such motor vehicle.

Sec. 10.164. Examining Reports.

The reports required to be filed pursuant to Sections 10.161 and 10.163 may be examined by any person making such report or his or her attorney designated in writing and shall not be open to general public inspection nor shall copying of lists of such reports be permitted. The reports required by Section 10.161 shall not be available for use in any court action, nor shall

the information contained therein be referred to in any way as evidence of the negligence or due care of any party involved in an accident, at the trial of any action at law to recover damages.

Secs. 10.165, 10.166. Reserved.

ARTICLE 10. SNOWMOBILES

Sec. 10.167. Definitions.

As used in this Article:

(a) *Operator* means any person who operates or is in actual physical control of a snowmobile.

(b) *Owner* means any person, other than a lienholder, having the property in or title to a snowmobile and entitled to the use or possession thereof.

(c) *Operate* means to ride in or on and to control the operation of a snowmobile.

(d) *Person* means an individual, partnership, corporation, the State and any of its agencies or subdivisions, and any body of persons whether incorporated or not.

(e) *Snowmobile* means any motorized vehicle designed for travel primarily on snow or ice steered by wheels, skis or runners.

(f) *Snowmobile dealer* means any person engaged in the sale of snowmobiles.

(g) *Highway or street* means the entire width between the boundary lines of every way publicly maintained when any part thereof is open to the use of the public for purposes of vehicular travel.

(h) *Roadway* means that portion of a highway improved, designated, or ordinarily used for vehicular travel. If a highway includes two (2) or more separate roadways the term roadway refers to any such roadway separately, but not to all such roadways collectively.

(Ord. No. 68-65, 11-5-68)

State law reference—Similar provisions, MCL 257.1501 et seq.

Sec. 10.168. Operation Within City Limits.

Except as otherwise provided, no snowmobile shall be operated within this City unless registered by the owner as provided in Act No. 74 of the Michigan Public Acts of 1968, as amended. No registration is required for a snowmobile operated exclusively on lands owned or under the control of the snowmobile owner. The certificate of registration issued by the State of Michigan shall accompany the vehicle and be made available for inspection upon demand by any Peace Officer.

(Ord. No. 68-65, 11-5-68)

Sec. 10.169. Registration Numbers Displayed.

The owner of any snowmobile having been issued a certificate of registration for the snowmobile shall paint on or attach in a permanent manner to each side of the forward half of the snowmobile the identification number in block characters of good proportion, not less than three (3) inches in height, reading from left to right. The numbers shall contrast so as to be distinctly visible and legible. No number other than the number awarded to a snowmobile under the State law, or granted reciprocity under the State law, shall be painted, attached or otherwise displayed on either side of the forward half of the snowmobile.

(Ord. No. 68-65, 11-5-68)

Sec. 10.170. Change of Information on Registration.

The owner of any snowmobile shall notify the Michigan Secretary of State within fifteen (15) days if the snowmobile is destroyed or abandoned, is sold or an interest therein transferred either wholly or in part to another person, or if his or her address no longer conforms to the address appearing on the certificate of registration. The notice shall consist of a surrender of the certificate of registration on which the proper information shall be noted on a place to be provided. When the surrender of the certificate is by reason of the snowmobile being destroyed or abandoned,

the Secretary of State shall cancel the certificate and enter such fact in his or her records and the number may be then reassigned.
(Ord. No. 68-65, 11-5-68)

Sec. 10.171. Dealer's Responsibility.

A dealer shall maintain in safe operating condition all snowmobiles rented, leased or furnished by him or her. The dealer, his or her agents or employees shall explain the operation of the snowmobile being rented, leased or furnished and if such dealer, his or her agent or employee believes the person to whom the snowmobile is to be rented, leased or furnished is not competent to operate such snowmobile with competency to himself or herself and to the safety of others, he or she shall refuse to rent, lease or furnish the same.
(Ord. No. 68-65, 11-5-68)

Sec. 10.172. Dealer's Liability Insurance.

Any dealer renting, leasing or furnishing any snowmobile shall carry a policy of liability insurance subject to limits exclusive of interests and costs, with respect to such snowmobile, as follows:

Ten thousand dollars ($10,000.00) because of bodily injury or death of one (1) person in any one (1) accident and subject to said limit for one (1) person,

Twenty thousand dollars ($20,000.00) because of bodily injury or death of two (2) or more persons in any one (1) accident, and

Five thousand dollars ($5,000.00) because of injury to or destruction of property of others in any one (1) accident,

or in the alternative, demand and be shown proof that the person renting, leasing or being furnished a snowmobile carries liability policy of at least the type and coverage as specified above.
(Ord. No. 68-65, 11-5-68)

Sec. 10.173. Out of State Registration.

A snowmobile registered in another State or in a province of Canada to a nonresident of this State may be operated within the State of Michigan under authority of such registration not to exceed twenty (20) days.
(Ord. No. 68-65, 11-5-68)

Sec. 10.174. Operation on Highways, Roadways and Streets.

No person shall operate a snowmobile upon the main traveled portion of any roadway, as defined in Section 55 of Act No. 300 of the Public Acts of 1949, being Section 257.55 of the Compiled Laws of 1948 (MSA 9.1855), or on a highway or street within ten (10) feet of such roadway, with the following exceptions:

(a) Properly registered snowmobiles may cross highways, except limited access highways and freeways as defined in Act No. 300 of the Public Acts of 1949 if such crossing can be made in safety and it does not interfere with the free movement of vehicular traffic approaching from any direction on such highway. The snowmobile operator shall yield the right-of-way to all vehicular traffic upon any highway.

(b) Snowmobiles may be operated on highways in the County road systems which are not maintained for winter wheel vehicular traffic by removal of snow.

(c) Snowmobiles may be operated on a street and highway during a period of emergency, when so declared by a policy agency having jurisdiction, when travel by conventional automotive equipment is not possible.

(d) Snowmobiles may be operated on the highways within the restrictions set forth herein for the purposes of crossing bridges and culverts.

(e) Snowmobiles may be operated on County highways not having ten (10) or more feet of traversable right-of-way outside the traveled portion of the roadway as far off the highway as possible.

(f) Snowmobiles may be operated on a street or highway for a special snowmobile event

of limited duration which is conducted according to a prearranged schedule under permit from the City.

(g) Whenever it is impractical to gain immediate access to an area adjacent to a public highway where a snowmobile is to be operated, the vehicle may be operated adjacent and parallel to the highway for the purpose of gaining access to the area of operation. This subsection shall apply to the operation of a snowmobile from the point where the vehicle is unloaded from a motorized conveyance to and from the area where the snowmobile is to be operated when loading and unloading cannot be effected in the immediate vicinity of the area of operation without causing a hazard to vehicular traffic approaching from either direction on the highway. Loading or unloading must be accomplished with due regard to safety at the nearest possible point to the area of operation.

(Ord. No. 68-65, 11-5-68)

Sec. 10.175. Safety Features Necessary for Operation in City.

No snowmobile shall be operated in this City unless it has at least one (1) headlight, one (1) taillight and adequate brakes capable of producing deceleration at fourteen (14) feet a second on level ground at a speed of twenty (20) miles an hour.

(Ord. No. 68-65, 11-5-68)

Sec. 10.176. Restrictions on Operator and Snowmobile.

No person shall operate a snowmobile:

(a) At a rate of speed greater than is reasonable and proper having due regard for conditions then existing;

(b) While under the influence of intoxicating liquor or narcotic drugs, barbital or any derivative of barbital;

(c) During the hours from one-half (½) hour after sunset to one-half (½) hour before sunrise without displaying a lighted headlight and a lighted taillight;

(d) In any nursery, planting area, or natural area of forest reproduction and when growing stock may be damaged;

(e) Unless it is equipped with a muffler in good working order and in constant operation to prevent excessive or unusual noise and annoying smoke; or

(f) While transporting thereon a bow or a firearm unless the same be securely encased.

(Ord. No. 68-65, 11-5-68)

Sec. 10.177. Accident Reporting.

The operator of a snowmobile involved in an accident within the City resulting in injuries to or death of any person, or property damage in an estimated amount of one hundred dollars ($100.00) or more, or some person acting for him or her, or the owner of the snowmobile having knowledge of the accident, shall immediately by the quickest means of communication notify the Police Department of the City.

(Ord. No. 68-65, 11-5-68)

Sec. 10.178. Reserved.

Editor's note—Ord. No. 95-40, § 1, adopted July 11, 1995, repealed § 10.178, which pertained to hours of operation of snowmobiles in parks. See the Code Comparative Table.

ARTICLE 11. HIGH OCCUPANCY VEHICLE LANES

Sec. 10.179. Traffic Lane—Reserved For High Occupancy Vehicles Only.

(1) One (1) or more traffic lanes of any street or roadway may be designated by the City Commission as reserved for use by buses herein called High Occupancy Vehicles (HOVs), at such times and on such days as determined by the City Commission. All lanes so designated shall

be appropriately marked with such signs or other markers as the City Commission or its designee direct.

(2) Notwithstanding the provisions of this subsection, the designation of any lane or lanes of any street or roadway as reserved for HOVs only shall not apply to the use of such lanes by:

a. Emergency vehicles such as fire-fighting vehicles, ambulances, and rescue squad vehicles and tow trucks for purposes of providing emergency service in the HOV lane;

b. Vehicles operated by law enforcement agencies;

c. Vehicles of public utility companies operating in response to an emergency call;

d. City maintenance vehicles, such as street sweepers and snow plows, working on such lanes;

e. Private vehicles that must utilize the HOV lane to permit a right-turn movement; and

f. School buses.

(Ord. No. 2014-52, § 1, 7-22-14)

Sec. 10.180. Civil Infraction Violation.

No operator of a vehicle shall operate that vehicle in a traffic lane designated for buses as described in Section 10.179 of the Code, unless otherwise authorized herein. A violation of this section shall constitute a civil infraction, as provided for in Chapter 170 of this Code.

(Ord. No. 2014-52, § 1, 7-22-14)

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Chapter 182

ELECTRIC PATROL VEHICLES

Sec. 10.181. Incorporation of State law.
Sec. 10.182. Operation by City Employees.
Sec. 10.183. Compliance with State Law.

Sec. 10.181. Incorporation of State law.

The Electric Patrol Vehicle Act, 1997 PA 55 as amended, being MCL 257.1571 et seq., is hereby adopted and incorporated by reference as if fully set out herein.
(Ord. No. 2018-41, § 1, 7-10-18)

Sec. 10.182. Operation by City Employees.

Police, fire, emergency service, and parking enforcement employees of the City of Grand Rapids may operate an electric patrol vehicle in the course of their duties on a street, highway, or sidewalk within the boundaries of the City of Grand Rapids as authorized by this ordinance or state law.
(Ord. No. 2018-41, § 1, 7-10-18)

Sec. 10.183. Compliance with State Law.

Operation of an electric patrol vehicle shall comply with the requirements of this ordinance and state law.
(Ord. No. 2018-41, § 1, 7-10-18)

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Chapter 183

RECOVERY OF CITY COSTS AND EXPENSES

Sec. 10.200. Purpose.
Sec. 10.201. Definitions.
Sec. 10.202. Liability For Expense of an Emergency Response.
Sec. 10.203. Cost Recovery Schedule.
Sec. 10.204. Collection and Enforcement.
Secs. 10.205—10.250. Reserved.

Sec. 10.200. Purpose.

The City finds that a significant number of the traffic arrests and traffic accidents in the City involve drivers operating a motor vehicle while under the influence of intoxicants such as alcoholic beverages or a controlled substance, or a combination thereof. Furthermore, the City finds that there is a greater likelihood of personal injury or property damage in accidents involving a driver operating under the influence of intoxicants. As a result, the City finds that a greater operational and financial burden has been placed on the City's public safety services by persons operating a motor vehicle under the influence of intoxicants, and that it is necessary to recover these increased costs of enforcement activities caused by such persons, as expressly is authorized by MCL 769.1f.
(Ord. No. 2010-28, 6-15-10)

Sec. 10.201. Definitions.

For the purpose of this chapter, the terms listed below shall have the following meanings:

(1) *Emergency response* shall mean:

(a) The providing, sending, and/or utilizing police, firefighting, and/or emergency rescue services by the City to a motor vehicle accident in which one or more drivers were operating a motor vehicle under the influence of one or more intoxicants; or

(b) The making of a traffic stop and arrest by a law enforcement officer when the driver is or was operating a motor vehicle while under the influence of one or more intoxicants.

(2) *Expense of emergency response* shall mean the direct costs associated with the occurrence of an emergency response. These costs shall include, but are not limited to, the following:

(a) The salaries or wages, including overtime pay, of law enforcement personnel for time spent responding to the incident, arresting the person, processing the person after the arrest, preparing reports on the incident, investigating the incident, and collecting and analyzing evidence, including determining blood alcohol content and determining the presence of and identifying controlled substances or other intoxicants;

(b) The salaries and wages, including overtime pay, of fire department personnel in responding to and providing firefighting, rescue and/or emergency medical services in relation to the incident;

(c) The cost of medical supplies lost or expended by fire department personnel in providing services in relation to the incident;

(d) The salaries, wages and other compensation, including, but not limited to, overtime pay of prosecution personnel for time spent investigating and prosecuting the offense or offenses resulting in conviction.

(3) *Operating under the influence of one or more intoxicants* shall mean:

(a) Operating a motor vehicle while under the influence of an alcoholic beverage, controlled substance, or a combination of intoxicants; or

(b) Operating with an unlawful blood alcohol content as defined by the Michigan Vehicle Code; or

(c) Operating while visibly impaired due to the consumption of alcoholic beverages, controlled substances, or a combination of intoxicants.

(Ord. No. 2010-28, 6-15-10)

Sec. 10.202. Liability For Expense of an Emergency Response.

(1) Any person is liable for the expense of an emergency response if that person, while under the influence of intoxicating liquor or a controlled substance, or a combination of intoxicating liquor and a controlled substance, proximately causes any incident resulting in an emergency response as defined by this chapter.

(2) For the purpose of this Chapter, a person is under the influence of an intoxicating liquor or a controlled substance, or the combination of an intoxicating liquor and a controlled substance, when his or her physical or mental abilities are impaired to a degree that he or she no longer has the ability to operate a motor vehicle with the caution characteristic of a sober person of ordinary prudence, regardless whether such person is charged or convicted.

(3) It shall be presumed that a person was operating a motor vehicle while under the influence of an intoxicating liquor if a chemical analysis of his or her blood, urine or breath indicates that the amount of alcohol in his or her blood was in excess of seven one-hundredths (0.07) percent.

(4) This Chapter shall be construed to impose a responsibility and liability of a civil nature on the part of the operator of the motor vehicle and shall not be construed to conflict, contravene, enlarge or reduce any criminal liability or responsibility, including fines and cost which may be imposed by a court on a person who is convicted of any criminal offense arising from the incident that resulted in an emergency response.
(Ord. No. 2010-28, 6-15-10)

Sec. 10.203. Cost Recovery Schedule.

(1) The Police Department, Fire Department, and City Attorney shall periodically evaluate the actual costs incurred in making such emergency responses and determine an average cost during emergency responses. This amount shall be amended from time to time to reflect increases or decreases in the salaries of all personnel, along with the costs for police vehicles and other necessary equipment.

(2) The City Attorney, or his or her designee, shall forward the average cost developed in subsection (1) of this section to the district court and circuit court having jurisdiction over the City. This cost, as restitution to the City, may be imposed by the court during the imposition of any sentence upon any person liable under this section.
(Ord. No. 2010-28, 6-15-10)

Sec. 10.204. Collection and Enforcement.

(1) The amount ordered to be paid under this chapter shall be paid to the clerk of the court who shall transmit the payment amount to the City Treasurer.

(2) If not otherwise ordered by the court, the reimbursement amount ordered shall be made immediately. The court may order that reimbursement be made within a specified period or in specified installments.

(3) If the person convicted is placed on probation, any reimbursement ordered under this section shall be a condition of that probation.

(4) A court order for reimbursement under this Chapter may be enforced in the same manner as a judgment in a civil action.

(5) In the event that a person who is subject to liability under this Chapter is not charged or convicted of any criminal offense arising from the incident that resulted in an emergency response, the City Treasurer shall submit a bill for recovery of costs by first class mail to the person liable for the expenses as set forth in this Chapter.

(6) A person who receives a bill from the City Treasurer under subsection (5) of this section shall pay the bill within thirty (30) days of receipt. If payment is not received by the City within such thirty-day period, the City Treasurer may request the City Attorney to institute a civil action on behalf of the City in the same manner as in the case of an obligation under a contract, express or implied.
(Ord. No. 2010-28, 6-15-10)

Secs. 10.205—10.250. Reserved.

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CODE COMPARATIVE TABLE A

This table lists ordinances amending the 1965 Grand Rapids Code (being Ordinance No. 1688, adopted May 4, 1965), as compiled by Municipal Codification Service, through November 1, 1983.

Ordinance Number	Date	Disposition Chapter	Section
65-11	9- 7-65	8	1.321(4)
65-12	9- 7-65	51	4.2
65-18	9-14-65	10	1.423, 1.424
65-28	11- 2-65	8	1.351
66-2	1-11-66	1	1.13
66-12	3- 8-66	8	1.353—1.357
66-26	5-17-66	152	9.151—9.156
66-28	6-28-66	14	1.590
66-31	6-28-66	157	9.244, 9.246, 9.247
66-40	8-30-66	9	1.375,
		10	1.438
66-43	11- 1-66	151	9.4, 9.125—9.128
66-44	11-29-66	138	8.803(2)
66-45	11-29-66	138	8.800—8.809
67-1	1-10-67	152	9.165, 9.166
67-3	3-21-67	15	1.600
67-5	4- 4-67	181	10.106
67-8	4-18-67	155	9.210, 9.211
67-10	4-25-67	156	9.231—9.236
67-11	4-25-67	153	9.171—9.178
67-13	4-25-67	155	9.208
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67-24	6-27-67	152	9.167, 9.168
67-25	5-16-67	181	10.106
67-35	6-13-67	151	9.111—9.115
67-36	6-13-67	12	1.541—1.547
67-46	8- 1-67	157	9.244
67-51	10-17-67	151	9.31—9.47
67-53	9- 5-67	25	2.12
67-56	10-24-67	12	1.541—1.549
67-62	11- 7-67	152	9.141—9.147
67-65	12-19-67	11	1.516
68-3	1- 2-68	160	9.361—9.370
68-13	3-19-68	8	1.331
68-28	5- 6-68	8	1.358, 1.359
68-31	5-14-68	12	1.533
68-32	5-14-68	181	10.112
68-33	5-14-68	181	10.76(1)
68-34	5-21-68	7	1.231—1.270,
		Rpld	1.283
68-41	6-25-68	7	1.283, 1.284
68-48	7-23-68	4	1.71, 1.131—1.133
68-49	7-23-68	5	1.150
68-50	7-23-68	11	1.517
68-61	8-27-68	7	1.283, 1.284
68-62	9-10-68	161	9.376—9.382
68-65	11- 5-68	181	10.167—10.178
68-67	11- 5-68	10	1.433
68-79	12-23-68	16	1.610—1.615
68-80	12-30-68	9	1.410
69-5	1-21-69	5	1.148
69-11	9-19-69	153	9.177, 9.179

Ordinance Number	Date	Disposition Chapter		Section
69-32	4-15-69	5		1.151
69-40	5- 6-69	2		1.22
69-41	5-20-69	66		5.366, 5.367
69-43	6- 3-69	62		5.292
69-62	7-22-69	11		1.514
69-63	8- 5-69	67		5.371—5.375
69-64	7-29-69	181		10.64
69-72	9- 9-69	151		9.92
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82-74	10-26-82	67	Rpld	5.371–5.375
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82-82	11-30-82	21		1.912
82-83	12- 7-82	159		9.331, 9.332, 9.335, 9.336, 9.339,
			Rpld	9.333, 9.334, 9.337
82-85	12- 7-82	7		1.283
82-86	12-14-82	61		5.31(2)
82-87	12-21-82	26		2.34(2), 2.35, 2.40, 2.45,
		27		2.72(2), 2.73, 2.78, 2.87
82-88	12-21-82	3		1.41
82-89	12-21-82	17	Rpld	Ch. 17
83-1	1-18-83	61		5.4(19)
83-2	1-18-83	7		1.283
83-4	2- 1-83	9		1.415–1.417

Ordinance Number	Date	Disposition	
		Chapter	Section
83-7	2-15-83	62	5.301
83-8	2-15-83	61	5.131–5.133
83-9	2-15-83	140	8.871
83-10	2-22-83	135	8.601–8.610, 8.628, 8.665, 8.677, 8.719–8.721, 8.739, 8.741(3), 8.756
83-11	2-22-83	46	3.100–3.112
83-13	3-15-83	181	10.85
83-14	3-15-83	181	10.15(3), (4)
83-15	3-15-83	131	8.4
83-16	3-15-83	7	1.205
83-19	4- 5-83	181	10.16(1), (3), (6), (13)
83-20	4- 4-83	25	2./13
83-21	4-12-83	61	5.283(2), 5.284(17), 5.285(2)
83-22	4-12-83	61	5.72(1)d
83-26	4-26-83	51	4.71
83-28	5-10-84	61	5.23(20)
83-29	5-31-83	19	1.820,
		20	Rpld Ch. 20
83-30	5-31-83	8	1.360(2)
83-34	6-14-83	61	5.27(6), 5.51–5.60,
			Rpld 5.23(12)
83-37	6-28-83	7	1.283
83-38	7-12-83	7	1.292
83-39	7-19-83	61	5.257
83-40	7-19-83	61	5.283(2), 5.284(19)
83-42	8- 2-83	7	1.246
83-43	8- 9-83	61	5.24(15), 5.152(2)
83-47	8-30-83	46	3.109
83-55	9-27-83	61	5.4(61)–(63), 5.163(7)g
83-56	9-27-83	151	9.62(24), (25), 9.63(21)–(23)
83-57	10- 4-83	21	1.912
83-62	11- 1-83	7	1.246(3)

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CODE COMPARATIVE TABLE B

This table lists ordinances amending the 1965 Grand Rapids Code and their disposition therein, as compiled by Municipal Code Corporation, commencing with the 1990 republication. Ordinances not listed herein have been omitted as repealed, superseded, or not of a general and permanent nature.

Ordinance Number	Date	Section	Disposition		
			Chapter		Section
83-66	11- 8-83	1	7		1.247(4)
83-67	11- 8-83	1	181		10.64.1—10.64.5
83-68	11-15-83	1	133		Ch. 133 (title)
		2	133		8.407
		3	133		8.427
83-71	12- 6-83	1	7		1.247(4)
83-75	12-20-83	1	26		2.34(2)
		2	26		2.40
		3	26	Rpld	2.41
		4	26		2.45
		5	27		2.72(2)
		6, 7	27		2.78, 2.79
		8	27		2.87
83-76	12-20-83	2	21		1.905
83-77	12-20-83	1—3	21		1.912
83-79	12-20-83	1	7		1.263(6)
84-2	1-17-84	1	8	Rpld	1.331—1.335
84-5	2- 7-84	1	3		1.41
84-10	2-21-84	1	61		5.4(64)
		2	61		5.75
		3	61		5.86
84-13	2-28-84	1	132		8.51, 8.52, 8.59—8.61, 8.64—8.76
84-14	3-13-84	1	7		1.206(4)
84-15	3-13-84	1	7		1.247(4)
84-24	4-10-84	1	110		7.502(2)
84-32	5- 1-84	1	68		5.449
84-34	5-22-84	1	13	Rpld	1.561—1.583
		2	13	Added	1.561—1.588
84-35	5-29-84	1	74		6.102(2)d
		2	74		6.105(1)
84-37	5-29-84	1	92		7.48(62)
84-38	5-29-84	1	99		7.251(3)
		2—4	99		7.252—7.254
84-39	6- 5-84	1	151		9.115
84-40	6- 5-84	1	10		1.435
84-41	6- 5-84	1	135		8.678, 8.711
		2	135		8.723, 8.733
84-45	6-26-84	1	132		8.51, 8.59, 8.65(d), (o)
84-57	7-24-84	1—3	141		8.881—8.883
84-59	8- 7-84	1	182		10.181
84-63	9-11-84	1—7	52		4.81—4.87
84-64	9-11-84	1	110		7.502
84-65	9-11-84	1	61		5.92(1)
		2, 3	61		5.92(6), (7)
		4	61		5.102(1)
		5	61		5.112(1)
		6	61		5.122(1)
84-66	9-11-84	1	61		5.4(66)
		2	61		5.23(6)(c)

Ordinance Number	Date	Section	Chapter	Disposition	Section
		3	61		5.72(1)c
84-67	9-11-84	1	61		5.36
		2	61		5.72(1)e
84-68	9-11-84	1	61		5.4(65)
84-73	10-16-84	1—3	21		1.912
84-79	12- 4-84	1	7		1.292
84-84	12-11-84	1	26		2.34(2)
		2	26		2.40
		3	26		2.45
		4	27		2.72(2)
		5, 6	27		2.78, 2.79
		7	27		2.87
84-85	12-18-84	1	134		8.447—8.452, 8.454—8.456, 8.460, 8.461
84-94	12-18-84	1	7		1.258(2)
		2	7		1.263(6)
85-2	1-15-85	1	61		5.251
85-13	2-26-85	1	8	Rpld	1.352
85-15	3-12-85	1	92		7.48(4)
85-20	4- 9-85	1	157		9.250
85-21	4-16-85	1	135		8.587, 8.588, 8.709, 8.743
85-22	4-16-85	1	61		5.23(21)
85-23	4-23-85	1, 2	131		8.4
85-24	4-30-85	1	92		7.48(51)
85-25	4-30-85	1	132		8.68
		2	132		8.65(a), (b)
85-32	5-14-85	1	53		4.201—4.206
85-33	5-14-85	1	68	Rpld	5.464
85-34	5-28-85	1	16		1.615(6)
85-35	5-28-85	1	68		5.466
85-38	6-18-85	1	46		3.110
85-45	7-30-85	1	5	Rpld	1.153, 1.155
85-49	8-27-85	1	94		7.89
85-50	8-27-85	1	61		5.25
		2	61		5.27(1)
85-51	8-27-85	1	61		5.4(67)
		2	61		5.72(1)(f)
85-60	10- 8-85	1	159		9.331—9.336
85-64	10-29-85	1	5		1.147
85-65	10-29-85	1	7		1.193(3)
85-66	10-29-85	1	7		1.234(3)
85-67	10-29-85	2	22		1.925—1.933
85-68	11-12-85		131		8.1—8.5
85-69	11-12-85	1	25		2.1—2.17
85-70	11-12-85	1	135		8.585, 8.586, 8.588, 8.617, 8.668, 8.671, 8.683—8.692
		2	135		8.630
85-71	11-12-85	1	110		7.502(4)(b), (g)
85-72	11-19-85	1	151		9.107—9.113, 9.115—9.119, 9.121, 9.122, 9.124—9.129
85-77	11-26-85	1	18		1.810
85-78	12- 3-85	1	61		5.65.1—5.65.8
85-79	12-17-85	1	27	Rpld	2.61—2.70
		2	27	Rpld as	2.71—2.81 2.94—2.104,

Ordinance Number	Date	Section	Chapter	Disposition	Section
				Rnbd	2.87 as 2.105
		3	27	Added	2.61–2.93
85-80	12-17-85	1	52		4.89
		2	52	Rpld	4.90
85-81	12-17-85	1	26		2.34(2)
		2	26		2.40
		3	26		2.45
		4	27		2.72(2)
		5	27		2.78
		6	27		2.87
85-82	12-17-85	1	61		5.72(2)
		2	61		5.72(5)
85-83	12-17-85	1	61		5.281(2)
85-85	12-17-85	1	21		1.914
85-87	12-17-85	1	95		7.125, 7.126
86-4	2- 4-86	1	47		3.201–3.209
86-8	2-11-86	1	7		1.283
		2	7		1.284(a)
86-9	2-18-86	1	52		4.99
86-12	2-18-86	1, 2	61		5.152(42), (43)
86-18	3-18-86	1–3	61		5.201–5.203
86-23	4-15-86	1	98	Rpld	7.231–7.239
86-24	4-15-86	1	92	Rpld	7.48(6), (7), (16), (26), (45), (47), (58)
		2	92		7.48(9)
86-25	4-15-86	1	133		8.300–8.305, 8.310–8.318, 8.325–8.330, 8.336–8.347, 8.351, 8.352
86-29	4-22-86	1	22		1.950–1.961
86-33	5-20-86	1	61		5.72(1)(b)
		2	61		5.92(2)
		3	61		5.94(4)(b)
		4	61		5.104(5)
		5	61		5.114(5)
		6	61		5.122
		7	61		5.213(4)
		8	61		5.233(4)
		9	61	Rpld	5.83(2.5), 5.92(3)
86-37	6- 3-86	1	61		5.4(68)
		2	61		5.23(13)
86-43	7- 1-86	1	7		1.283(b)
86-49	8-26-86	1	7		1.253(2)
86-50	8-26-86	1–3	7		1.246(2)–(4)
86-57	10- 7-86	1	61		5.4(69)
		2	61		5.23(12)
		3	61		5.72(1)(g)
		4, 5	61	Rpld	5.83(3)(b), (c)
		6	61	Rpld	5.32
86-60	10-28-86	1, 2	131		8.5
86-61	11- 4-86	1	151		9.109, 9.117, 9.128
86-62	11- 4-86	1–3	11		1.504–1.506
86-64	11-18-86	1	68		5.467
86-70	12- 9-86	2	9		1.381
86-73	12-16-86	1	26		2.34(2)
		2	26		2.40
		3	26		2.45

Ordinance Number	Date	Section	Disposition		
			Chapter		Section
		4	27		2.95(2)
		5	27		2.101
		6	27		2.105
87-3	1-13-87	1	135		8.606
		2	135		8.613—8.615, 8.662, 8.709
		3	135	Rpld	8.711
		4	135		8.722, 8.727
		5	135		8.762(11a)
		6	135		8.762(16), (63)
87-4	1-20-87	1	7		1.239(3)
87-5	1-20-87	1	7		1.198(3)
87-7	1-20-87	1	61		5.202(17)
		2	61	Rpld	5.202(18)
87-18	3-24-87	1	61		5.4(11)
		2	61		5.4(71)
		3	61		5.29
87-24	3-31-87	1	51		4.21
87-28	4- 7-87	1—3	21		1.912
87-29	4-21-87	1	133		8.301, 8.302, 8.326(11)
87-37	6-16-87	1	68		5.468
87-39	6-30-87	1—3	21		1.912
87-40	6-30-87	1	30		2.135
87-47	7-14-87	1	61		5.4(70)
		2	61		5.72(1)(h)
87-50	7-28-87	1	61		5.23(2)(a)
		2	61	Rpld	5.23(2)(b)—(d)
		3	61		5.72(1)(i)—(o)
		4	61		5.122(5), (6)
87-54	8-11-87	1	136		8.765—8.794, 8.794.1—8.794.5, 8.795, 8.795.1—8.795.15, 8.796, 8.796.1, 8.796.2
87-55	8-11-87	1	131	Rpld as	8.1—8.5 8.001—8.005
87-56	8-11-87	1	132		Ch. 132 (note)
87-63	9-15-87	1	61		5.4(32)
		2	61		5.222(11)
87-79	12- 1-87	1	131		8.003
		2	131		8.005
87-80	12- 1-87	1	132		8.51.1, 8.65(e.1)
87-81	12- 1-87	1	133		8.303, 8.318
87-82	12- 187	1	134		8.450, 8.451, 8.456
87-84	12- 8-87	1	61		5.251
87-88	12-29-87	1	26		2.34(2)
		2	26		2.40
		3	26		2.45
		4	27		2.95(2)
		5, 6	27		2.101, 2.102
		7	27		2.105
88-1	1-19-88	1	61		5.76—5.79
88-13	3-15-88	1	7		1.292
88-14	3-29-88	1	46		3.100—3.115
88-16	4- 5-88	1	135		8.587, 8.588, 8.647, 8.662(4),

Ordinance Number	Date	Section	Disposition Chapter	Disposition Section
				8.722, 8.762(13), (42), (48), (49)
88-17	4- 5-88	1	151	9.107(7)
		2	151	9.120—9.123, 9.128
88-18	4- 5-88	1	131	8.005(114.3)
88-19	4- 5-88		132	8.65(b)
88-20	4- 5-88		133	8.326(2), (3), (10), 8.329
88-21	4- 5-88	1	134	8.456(5), (6)
88-22	4-12-88	1	61	5.281(2)
		2	61	5.11
88-23	4-12-88	1, 2	61	5.72(2), (3)
		3	61	5.4(22)
88-24	4-12-88	1	61	5.29.1
88-26	4-19-88	1	61	5.4(72)
		2	61	5.273(4)
88-30	5-17-88	1	7	1.283(a)
88-31	5-17-88	1	7	1.192(12)
		2	7	1.201(1)
		3	7	1.202(1)
		4—6	7	1.203—1.205
		7	7	1.209.3(1)
		8, 9	7	1.216(2), (3)
88-32	5-17-88	1	7	1.233(14)
		2	7	1.242(1)
		3	7	1.243(1)
		4, 5	7	1.245, 1.246
		6	7	1.250(1)
		7, 8	7	1.258(2), (3)
88-35	5-24-88	1—3	21	1.912
88-43	6-28-88	1	26	2.35
88-50	7-26-88	1	16	1.615(1)—(10)
88-51	7-26-88	1	14	1.590(31)
88-52	7-26-88	1	61	5.23(7)
88-53	7-26-88	1	61	5.211—5.216
88-54	7-26-88	1	61	5.59
88-59	8-23-88	1	47	3.206(1)
88-70	10-18-88	1	94	7.101
88-73	11-15-88	1	61	5.163(7)(g)
		2	61	5.166(2)(c)
88-74	12-13-88	1	61	5.11(2), 5.77
88-75	12-13-88	1(1)—(7)	24	1.975—1.981
88-76	12-20-88	1	26	2.34(2)
		2	26	2.40
		3	26	2.45
		4	26	2.41
		5	27	2.95(2)
		6	27	2.101
		7	27	2.105
88-78	12-20-88	1	61	5.4(73)
		2	61	5.142(32)
		3	61	5.152(44)
88-79	12-20-88	1	61	5.283(2)(m)
		2	61	5.284(20)
88-80	12-20-88	1	61	5.142(33)
		2	61	5.152(45)
		3	61	5.283(2)(n), (o)
		4	61	5.284(21), (22)
89-2	1- 3-89	1	20	1.850—1.860
89-3	1- 3-89	1	61	5.23(11)

Ordinance Number	Date	Section	Chapter	Disposition	Section
		2	61		5.72(6)
89-10	1-31-89	1	8	Rpld	1.322—1.329
89-12	2- 7-89	1	61		5.27(5)
		2	61		5.27(9), (10)
		3	61		5.27.1
89-17	2-28-89	1	7		1.210(2)(c)
89-20	3-21-89	1	14		1.590(11)
					Not effective
89-23	3-28-89	1	160		9.361(1)
		2	160		9.362
		3	160		9.363(6)—(8)
		4	160		9.364
		5	160		9.366(1)
		6	160		9.367
		7—9	160		9.369—9.371
89-24	4- 4-89	1	91		7.6(1)—(4)
89-25	4-11-89		46		3.100—3.115
89-30	6- 6-89	1	151		9.112
89-31	6- 6-89	1	74	Rpld	6.100—6.105
89-45	8-29-89	8.101—8.105	131		8.1—8.5
89-46	8-29-89	1—3	21		1.912
89-47	8-29-89	1—3	21		1.915
89-58	10-10-89	1	61		5.4(17)
		2	61	Rpld	5.4(44), (55), (64)
89-61	10-10-89	1	152		9.138(7)
89-70	10-24-89	1	131		8.4(112.10)
89-73	11-21-89		131		8.4(112.10)
89-74	12- 5-89	1	135		8.572, 8.583, 8.584, 8.587 8.588, 8.607 8.609, 8.610 8.616, 8.619, 8.621, 8.651(4), (5), 8.652, 8.660, 8.661, 8.662(5), (6), 8.663, 8.664, 8.677, 8.684, 8.696, 8.697, 8.709(1), 8.719, 8.722—8.732,
				Rpld	8.733 8.762(20)
		2	135		8.683(6), 8.709(11), (12), 8.757
89-83	12-19-89	1	61		5.94(2)b, c, (4)b, c
		2	61		5.102(2), (4)
		3	61		5.104(2), (4)
89-84	12-19-89	1	26		2.34(2)
		2, 3	26		2.40, 2.41
		4	26		2.45
		5	27		2.95(2)
		6, 7	27		2.101, 2.102
		8	27		2.105
89-86	12-19-89	1	9		1.412
89-87	12-19-89	1	7		1.296—1.299
89-88	12-19-89	1	7	Rpld	1.291(1)

Ordinance Number	Date	Section	Disposition Chapter	Disposition Section
90-1	1- 2-90	1	1	1.12
90-2	1- 2-90	1	7	1.283(a), (b)
90-9	1-30-90		132	8.021—8.027, 8.030, 8.031, 8.034—8.042
90-10	1-30-90		133	8.301, 8.302, 8.311, 8.326
90-16	2-20-90	1	61	5.23(22)
90-17	2-20-90	1	131	8.5(105.10)
90-20	2-20-90	1	7	1.233(13)
		2	7	1.249(3)
		3	7	1.250(1), (3)
		4	7	1.252(2), (4)
		5	7	1.258(2)
		6	7	1.258(6)
		7	7	1.271
90-29	3-20-90	1	7	1.192(12)
		2	7	1.209.1(4)
		3	7	1.209.3(2)
		4	7	1.216(2)
		5, 6	7	1.216(6), (7)
		7	7	1.228
90-30	3-20-90	1	7	1.283(a)
		2	7	1.283(d), (e)
90-31	3-27-90	1	92	7.43, 7.48
90-33	4- 3-90	1—3	11	1.504—1.506
90-34	4- 3-90	1	7	1.237
90-35	4- 3-90	1	7	1.196(2)
90-40	4-24-90	1	68	5.469
90-48	5-29-90	1	46	3.116
90-55	7-24-90		135	8.524, 8.525, 8.648.1
90-60	8- 7-90	1	61	5.4(49)
		2	61	5.23(24)
90-62	8-21-90	1	7	1.302—1.305
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		2	26	2.35
		3	26	2.40
		4	26	2.45
97-63	12-16-97	1	27	2.95
		2	27	2.101
		3	27	2.102
		4	27	2.105
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		2	26		2.35
		3	26		2.40
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98-60	12-15-98	1	27		2.95
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99-60	11- 9-99	1	68	5.482
99-62	11- 9-99	1	169	9.831—9.845
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99-65	11-23-99	1	151	9.62(8)
99-68	12- 7-99	1	61	5.92(10)
99-71	12-14-99	1	26	2.34
		2	26	2.40
		3	26	2.45
99-72	12-14-99	1	27	2.95
		2	27	2.101
		3	27	2.102
		4	27	2.105
99-75	12-21-99	1	61	5.192
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99-79	12-21-99	1	7	1.243(5)
2000-01	1- 4-00	1	181	10.14(3)
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2000-51	9- 5-00	1	68	5.483
2000-53	9- 5-00	1	7	1.297(3)
2000-63	11-14-00	1	169	9.832
		2	169	9.846
2000-64	11-14-00	1	181	10.15
2000-71	12-12-00	1	26	2.34
		2	26	2.40
		3	26	2.45
2000-72	12-12-00	1	27	2.95
		2	27	2.101
		3	27	2.102
		4	27	2.105
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2001-07	2-27-01	1	61	5.284(2)
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		2	61	6.245
2001-36	9-11-01	1	68	5.484
2001-43	10-23-01	1	181	10.45
		2	181	10.64
		3	181	10.70
2001-45	11-13-01	1	16	1.615
2001-46	11-20-01	1	61	5.35
		2	61	5.169(4)
2001-49	11-27-01	1	61	5.23(14)
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2001-51	12-11-01	1	26	2.34
		2	26	2.40
		3	26	2.45
2001-52	12-11-01	1	27	2.95
		2	27	2.101
		3	27	2.102
		4	27	2.105
2002-01	1- 8-02	1	61	5.24(13)
		2	61	5.169(9)(h)
2002-05	2-19-02	1	15	1.600
2002-06	2-19-02	1	3	1.41
2002-11	2-26-02	1	113	7.581—7.599
2002-12	2-26-02	1	7	1.202(3)
		2	7	1.201(4)
2002-16	3-19-02	1	7	1.209.4
2002-20	4- 9-02	1	92	7.48
2002-23	5- 7-02	1	25	2.18
2002-24	5- 7-02	1	21	1.912
2002-28	5-21-02	1	72	6.31—6.42
2002-31	6- 4-02	1	151	9.110
2002-39	7-23-02	1	68	5.485
2002-47	8- 6-02	1	181	10.70
2002-48	8-20-02	1	7	1.224
		2	7	1.225
2002-49	8-20-02	1	7	1.233(11)
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		7	7	1.246
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		4	135		8.211
		5—10	135		8.213—8.218
		11—14	135		8.220—8.223
		15—25	135		8.230—8.240
		26	135	Rpld	8.241
		27	135		8.242
		28—31	135		8.255—8.258
		32	135		8.260
		32A	135		8.265
		33—47	135		8.266—8.280
		48—50	135		8.285—8.287
2002-57	10- 1-02	1	26		2.35
		2	26		2.45
2002-58	10- 1-02	1	27		2.96
		2	27		2.105
2002-62	10-29-02	1	109		7.431—7.450
2002-63	10-29-02	1	112		7.550
2002-64	11- 5-02	1—11	61		5.219.1—5.219.11
2002-69	12-10-02	1	26		2.34
		2	26		2.40
		3	26		2.45
2002-70	12-10-02	1	27		2.95
		2	27		2.101
		3	27		2.102
		4	27		2.105
2003-01	1- 7-03	1	52	Rpld	4.90(12)
2003-05	1-14-03	1	61		5.4
		2	61		5.35
		3	61		5.102
		4	61		5.142
		5	61		5.152
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		7	61		5.182
		8	61		5.193
		9	61		5.202
		10	61		5.212
		11	61		5.222
		12	61		5.232
		13	61		5.242
		14	61		5.282—5.287
2003-06	1-28-03	1	155		9.191—9.194,
			155		9.201—9.213
2003-11	4- 1-03	1	91		7.6
2003-16	4-29-03	1	7		1.209.5
2003-17	5- 6-03	1	68		5.486
2003-27	7-22-03	1	61		5.181—5.200
2003-29	8- 5-03	1	7		1.192(4)(a)
		2	7		1.192(15)
		3	7		1.205
2003-34	9- 9-03	1	68		5.449
2003-35	9- 9-03	1	181		10.15

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2003-40	10-14-03	1	61	Added	Art. 26, §§ 5.300—5.307
2003-42	10-21-03	1	5		1.148
2003-44	11-18-03	1	42		3.31—3.60
2003-45	11-18-03	1	170	Added	9.857(a)(3)
		2	170	Added	9.858 J.
2003-48	11-18-03	1	7		1.221
2003-53	12-23-03	1	26		2.34
		2	26		2.40
		3	26		2.45
2003-54	12-23-03	1	27		2.101
		2	27		2.102
		3	27		2.105
2003-55	12-23-03	1	132		8.34
2003-56	12-23-03	1	133		8.71, 8.72
2003-57	12-23-03	1	134		8.159
2004-06	2-17-04	1	27		2.60—2.111
2004-07	2-17-04	1	170	Added	9.851(c)
				Rnbd	9.851(c)—(f)
				as	9.851(d)—(g)
				Added	9.851(h), (i)
				Rnbd	9.851(g)
				as	9.851(j)
		2	170	Added	9.857(a)(4)—(17)
		3	170	Added	9.858 K.
2004-12	3-23-04	1	14		1.590
2004-17	4-20-04	1	7	Added	1.250.1
2004-20	4-27-04	1	68	Added	5.487
2004-27	5-25-04	1	69	Added	5.551—5.557
2004-38	7-13-04	1	7		1.321
2004-39	7-27-04	1	131	Rpld	8.1—8.4
			131	Added	8.1—8.7
2004-43	8-10-04	1	132	Rpld	8.26—8.34
			132	Added	8.26—8.31
2004-44	8-10-04	1	133	Rpld	8.51—8.72,
			133		8.76, 8.77,
			133		8.98—8.104.
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			133	Added	8.51—8.84
2004-45	8-10-04	1	134	Rpld	8.151—8.159
			134	Added	8.151—8.160
2004-46	8-10-04	1	143	Rpld	8.851—8.865
2004-47	8-10-04	1	144	Rpld	8.876—8.883
2004-50	8-24-04	1	61		5.219.3
2004-60	9- 7-04	1	7		1.223(15)(b)
		2	7		1.233(20)
		3	7		1.233(28)
		4	7		1.239(3)
		5	7		1.243(7)
					1.243(7)(a)
		6	7		1.251(2)
		7	7		1.253(2)
		8 Added	7		1.258(4)(a)
		9	7		1.258(7)
		10	7		1.262(4)
		11	7		1.263(3)

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2004-81	12-21-04	1		26	2.34
		2		26	2.35
		3		26	2.40
		4		26	2.45
2004-82	12-21-04	1		27	2.95
		2		27	2.96
		3		27	2.101
		4		27	2.102
		5		27	2.105
2005-02	1-25-05	1		61	5.4(9), (93)
		1		61	5.102(3)
2005-08	2- 1-05	1		2	1.22
2005-10	2- 8-05	1		68	5.484
2005-11	2- 8-05	1		69	5.554
2005-19	4-19-05	1		21	1.912
2005-25	5-17-05	1		8	1.341
		2		8	1.342
		3		8	1.343(b), (h)
		4		8	1.347
2005-28	5-17-05	1		61	5.169(10)
2005-29	5-17-05	1		7	1.192(11)
		2		7	1.192(15)
		3	Added	7	1.202(8)
		4		7	1.205
		5		7	1.216(2)
		6	Added	7	1.216(6)
2005-32	6- 7-05	1	Added	61	5.219.7(4)(e), 5.219.7(5)(e)
2005-44	6-28-05	1	Added	53	4.207
2005-55	7-26-05	1	Added	61	5.23(23)
2005-56	7-26-05	1	Rpld	140	8.501—8.508
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					8.635—8.637
					8.640—8.659
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2005-59	8- 9-05	1	Added	170	9.857(a)(18)
		2	Added	170	9.858L.
2005-60	8- 9-05	1		160	9.363(9)
2005-61	8- 9-05	1	Rpld	159	9.331—9.336
			Added	159	9.331—9.334, Exhs. A, B
2005-62	8- 9-05	1		52	4.89(4)
2005-65	8-23-05	1		7	1.229(1)
2005-68	9-13-05	1		61	5.26
			Added	61	5.26(4)
				61	5.302(1)
			Added	61	5.302(4)
2005-69	9-13-05	1		61	5.152(7)
2005-73	9-13-05	1		61	5.182
		2		61	5.193
		3		61	5.165(2)(b)
		3		61	5.166(2)(c)
2005-88	11-15-05	1	Added	61	5.33(7)
		2		61	5.35
		3		61	5.254(1)
2005-89	11-15-05	1		152	9.135
2005-93	12- 6-05	1	Added	67	5.381—5.390
2005-94	12- 6-05	1	Added	32	2.213(3)
		2	Added	32	2.252(i)
		3		32	2.255
		4		32	2.256
2005-95	12- 6-05	1		61	5.21
		2		61	5.56
		3		61	5.58
		4		61	5.59(2)(a)
		5	Added	61	5.61
2005-96	12- 6-05	1	Added	170	9.857(a)(19)
		2	Added	170	9.858M.
2005-98	12-20-05	1		26	2.34
		2		26	2.35
		3		26	2.40
		4		26	2.45

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		3		27	2.101
		4		27	2.102
		5		27	2.105
2006-09	2-21-06	1		170	9.857(a)(19)
2006-15	4-11-06	1	Rpld	153	9.175(5)
		2	Rpld	153	9.176—9.179
2006-16	4-11-06	1	Rpld	63	Tit. V
2006-17	4-11-06	1	Rpld	99	7.251(2)
		2		99	7.252
2006-18	4-11-06	1	Rpld	93	7.65, 7.66 7.68
		2		93	7.67
2006-19	4-11-06	1		92	7.48
2006-22	4-25-06	1	Added	61	5.4(100)—(106)
		2	Added	61	5.24(14), (15)
2006-23	4-25-06	1	Added	152	9.140
2006-25	4-25-06	1		61	5.4(100)—(106)
		2		61	5.24(14), (15)
2006-32	6- 6-06	1		151	9.107—9.115
		2	Rpld	151	9.115—9.129
2006-33	6- 6-06	1	Added	181	10.45(16)
		2		181	10.63.1
		3		181	10.69
2006-35	6-13-06	1	Added	172	Title IX
2006-36	6-13-06	1		159	9.331
2006-37	6-13-06	1		163(tit.)	Title IX
2006-39	6-27-06	1		61	5.72(1)(d)
2006-40	6-27-06	1		61	5.74(4)
		2		61	5.79(4)
		3		61	5.81(4)
2006-41	6-27-06	1		61	5.21(2)
2006-44	6-27-06	1	Added	7	1.209.6
2006-45	6-27-06	1	Added	7	1.209.7
2006-52	7-25-06	1		64	Art. I(tit.)
				64	5.321
		2	Added	64	Art. 3, 5.346—5.356
2006-59	8-15-06	1	Added	170	9.857(a)(20)
		2	Added	170	9.858N.
2006-71	10-17-06	1	Rpld	71	6.1, 6.2, 6.4—6.8
		2	Added	71	6.1—6.14
2006-74	10-31-06	1		61	5.26(2)
2006-81	12-19-06	1		26	2.34
		2		26	2.35
		3		26	2.40
		4		26	2.45
2006-82	12-19-06	1		27	2.95
		2		27	2.96
		3		27	2.101
		4		27	2.102
		5		27	2.105
2006-84	12-19-06	1		7	1.249(3)

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		4		7	1.259(1)
		5		7	1.259(3)
		6		7	1.260
		7	Rpld	7	1.261
		8		7	1.262(4)
		9		7	1.297(2)
		10		7	1.297(3)
2007-01	1- 9-07	1		16	1.615
2007-02	1- 9-07	1		30	2.146
2007-03	1- 9-07	1		91	7.6
2007-04	1- 9-07	1		92	7.43
		2		92	7.48
2007-05	1- 9-07	1		181	10.58
		2		181	10.63
2007-08	1-23-07	1		151	9.32(8)
		2	Added	151	9.34(9)
2007-13	2-20-07	1		32	2.201—2.203, 2.211—2.225, 2.231—2.237, 2.241—2.245, 2.250—2.259, 2.261—2.265, 2.271—2.275, 2.291—2.295, 2.301
2007-14	2-20-07	1		67	5.381—5.383, 5.385—5.390
2007-20	3-27-07	1		52	4.81(title)
		2		52	4.81(2)
2007-33	6-19-07	1		94	7.82(5)
		2		94	7.95(3)
2007-34	6-19-07		Added	68	5.488
2007-38	7-10-07	1		71	6.4(title)
		2		71	6.6(title)
2007-39	7-10-07	1	Added	170	9.857(a)(21)
		2	Added	170	9.858 O.
2007-41	7-10-07	1		7	1.205
		2		7	1.211(2)
		3		7	1.215
		4		7	1.216(2)
		5		7	1.216(4)
		6		7	1.217(1)
		7		7	1.218
		8	Rpld	7	1.219
		9		7	1.220(4)
		10		7	1.221(4)
		11		7	1.303(2)
2007-49	8-28-07	1		68	5.404
		2	Added	68	5.405
2007-59	10-23-07			61	5.1.01.—5.1.12. 5.2.01.—5.2.27. 5.3.01.—5.3.08. 5.4.01.—5.4.05. 5.5.01.—5.5.09.

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2007-69	12-18-07	1	26		2.34
		2	26		2.35
		3	26		2.40
		4	26		2.45
2007-70	12-18-07	1	27		2.95
		2	27		2.96
		3, 4	27		2.101, 2.102
		5	27		2.105
2007-73	12-18-07	1	21		1.905
		2	21		1.912
2008-03	2-19-08	1	115	Added	7.620—7.632
2008-04	2-19-08	1	109	Added	7.451
2008-05	2-19-08	1	170		9.858 J.
2008-06	2-19-08	1	61		5.8.06
2008-13	5-13-08	1	101		7.291
2008-14	5-13-08	1	94		7.82
		2	94		7.95
		3	94		7.99
2008-19	6- 3-08	1	114	Added	Tit. VII, Ch. 114, 7.601—7.612
2008-22	6-24-08	1	42		3.59
2008-24	7- 8-08	1	170		9.858.O
2008-34	8-26-08	1	152		9.140(1)a, 9.140(1)b,
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			152		9.140(5)a
2008-37	9-16-08		61	Rpld	5.1.01—5.1.12, 5.2.01—5.2.27, 5.3.01—5.3.08, 5.4.01—5.4.05, 5.5.01—5.5.09, 5.6.01—5.6.08, 5.7.01—5.7.06, 5.8.01—5.8.06, 5.9.01—5.9.37, 5.10.01—5.10.07, 5.11.01—5.11.15, 5.12.01—5.12.17, 5.13.01—5.13.09,

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					Added	5.1.01—5.1.12, 5.2.01—5.2.29, 5.3.01—5.0.08, 5.4.01—5.4.05, 5.5.01—5.5.09, 5.6.01—5.6.08, 5.7.01—5.7.06, 5.8.01—5.8.06, 5.9.01—5.9.37, 5.10.01—5.10.07, 5.11.01—5.11.14, 5.12.01—5.12.17, 5.13.01—5.13.09, 5.14.01—5.14.10, 5.15.01—5.15.17, 5.16.01, 5.16.02
2008-38	10- 7-08	1—13	Added	34		2.501—2.507,
				34		2.509—2.514
2008-47	11-12-08	1		8		1.351
2008-50	11-25-08	1		170	Added	9.857(a)(22)
		2		170	Added	9.858.P
2008-54	12-23-08	1, 2		26		2.34, 2.35
		3		26		2.40
		4		26		2.45
2008-55	12-23-08	1		27		2.95
		2		27		2.96
		3, 4		27		2.101, 2.102
		5		27		2.105
2008-56	12-23-08	1		61		Ch. 61, Table 5.9.02
2008-57	12-23-08	1		7		1.192(25)
2009-02	1-27-09	1		151	Rpld	9.32, 9.33
		2		151	Added	9.32
		3		151	Added	9.33
		4		151		9.34(7)(a)(iv)d.
		5		151	Added	9.34(7)(a)(v)
2009-05	2-17-09	1		46	Rpld	3.100—3.118
		2		46	Added	3.100—3.115
2009-06	2-17-09	1		62	Rpld	5.291—5.303
		2		62	Added	5.291—5.302
2009-09	3-24-09	1		61		Ch. 61 Analysis
		2		61		5.2.01
		3		61		5.2.05

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		4	61		5.2.06 C., C.1., C.2.
		5	61		5.2.06 C.3.
		6	61		5.2.06 D., F.3.
		7	61		5.2.09 H.
		8	61		5.2.09 H.1.—3.
		9	61		Table 5.2.09 H.
		10	61		5.2.09 I.
		11	61		5.2.13 B.3.—5.
		12	61		5.2.15 I., I.1.—3.
		13	61		5.2.15 I.4, 5.
		14	61		5.2.25 C.4., 5.
		15	61		5.3.06 B.4, D.
		16	61		5.5.02 A.
		17	61		Table 5.5.05 B.
		18	61		Table 5.5.06 A.
		19	61		5.5.06 H.1.—5.
		20	61		5.5.06 H.6.
		21	61	Rpld	5.5.09
		22	61		Table 5.6.06 B.
		23	61		Table 5.6.07 A.
		24	61		5.6.07 C.4.
		25	61		5.6.07 C.5.
		26	61		5.6.07 D., H.
		27	61		5.6.08 F.4., H.1.
		28	61		5.7.03 D.
		29	61		5.7.04 A.
		30	61		Table 5.7.04 B.
		31	61		5.7.06 B.4., 5.
		32	61		5.7.06 B.6.
		33	61		5.8.02 B.
		34	61		5.8.04 D.4.
		35	61		5.9.01
		36	61		5.9.02 A.
		37	61		Table 5.9.02
		38	61		5.9.09 H.
		39	61		5.9.14 A.
		40	61		5.9.17 A., B.
		41	61		5.9.17 C.—E.
		42	61		5.9.27 B.
		43	61		Table 5.9.32 A.
		44	61		5.9.32 I., I.1.—3.
		45	61		5.9.32 I.4.—7.
		46	61		5.9.32 J.
		47	61		5.9.35 D.
		48	61		5.9.37 O., Q.
		49	61		5.10.03., L
		50	61		Table 5.10.04 C.
		51	61		5.11.02 A.
		52	61		5.11.11. C., D.
		53	61		5.11.12 A.—E.
		54	61		5.11.12 F., G.
		55	61		5.11.13 B.5.
		56	61		Table 5.12.02 C.
		57	61		5.12.06 A.
		58	61		5.12.10 B.9.

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		59	61		5.12.11 C.5.
		60	61		5.12.17 A., B.3.
		61	61		5.15.07 I., I.1.—14.
		62	61		5.15.07 I.5.
		63	61		Table 5.15.11 B.
		64	61		Table 5.15.12 B.
		65	61		Table 5.15.12. A.
		66	61		5.15.15 B., B.1.a., B.2.
		67	61		5.15.08 D.1.
		68	61		5.16.02 D.
		69	61		5.16.02 E.
		70	61		5.16.02 F.
		71	61		5.16.02 G.
		72	61		5.16.02 S.
		73	61		5.16.02 S.
		74	61		5.16.02 W.
2009-18	4-14-09	1	7		1.254(5)(c)
2009-19	4-14-09	1	7		1.212(6)(c)
2009-21	5-21-09	1	23	Rpld	1.950—1.961
		2	23	Added	1.950—1.974
2009-29	5-29-09	1	92		7.48
2009-31	5-26-09	1	7		1.233(28)
		3			1.258(4)(b)—(d)
2009-40	8-11-09	1	53		4.205
2009-48	9-15-09	1	61		5.2.02 D.
		2	61	Added	5.2.02 E.
		3	61		5.2.04 D.
		4	61		5.2.06 H.3.
		5	61		5.2.08 A., B.
		6	61		5.2.15 I.
		7	61		5.2.24
		8	61		5.3.02 B.1.
		9	61		5.3.05 D.2.
			61		5.3.05 F.2.
		10	61		5.4.04 C.
		11	61		5.5.04 B.
		12	61		5.5.05 B.
		13	61		5.5.06 B.3.a.
			61		5.5.06 H.5.
		14	61		5.5.08
		15	61		5.6.06 A.
		16	61		5.6.07 E.
			61		5.6.07 H.6.
		17	61		5.7.06 C.
		18	61		5.8.03 E.
		19	61		5.8.06 D.2.d.(ii)
		20	61		5.9.02
		21	61		5.9.04 D.
		22	61		5.9.17
		23	61		5.9.17 C.
		24	61		5.9.18 B.3.b.
		25	61		5.9.27 B.
		26	61		5.9.28 B.
		27	61		5.9.30 C.

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		28	61	Added	5.9.35 E.
		29	61		5.9.36 C.
		30	61		5.9.37 L.1.a.
			61		5.9.37 N.
		31	61		5.10.03 B.
			61		5.10.03 L.3.
			61	Added	5.10.03 N.3.
		32	61		5.10.04 E.2.
		33	61		5.10.05 A.3.
			61		5.10.05 B.3.
		34	61		5.11.06 E.
		35	61		5.11.07 D.
		36	61		5.11.14 A.
			61		5.11.14 C.
		37	61		5.12.06
		38	61		5.12.13 C.4.c.
		39	61		5.12.14 K.
		40	61		5.12.16 E.3.
			61		5.12.16 F.2.
			61		5.12.16 F.4., 5.
			61		5.12.16 M.3.
		41	61		5.13.03 I.2.
		42	61		5.14.07 B.4.
		43	61		5.15.02 B.1.
		44	61		5.15.03 B.
			61		5.15.03 C.2.
		45	61	Added	5.15.03 H.
		46	61		5.15.04 B.4.
			61		5.15.04 C.4.
			61		5.15.04 F.5.
			61		5.15.04 F.7.
					5.15.04 U.2.
		47	61	Added	5.15.04 I.6.
			61		5.15.04 N.
		48, 49	61		5.15.10 b.
		50	61		5.15.11
		51—55	61		5.15.11 B.
		56—59	61		5.15.12 A.
		60	61		5.16.02
		61	61	Rnbd	5.19.17
			61	as	5.9.17
2009-49	9-15-09	1	7		1.192(17)
		2	7		1.201(1)
		3	7		1.202(1)
		4	7		1.203
		5	7		1.284
		6	7		1.285
2009-58	11-10-09	1	61		5.15.03 B.
			61		5.15.03 G.
		2	61		5.15.11 B.
2009-59	11-10-09	1	131		8.4
		2	131		8.5
		3	131		8.6
		4	131		8.7.4
2009-60	11-10-09	1	132		8.28
		2	132		8.29

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		3	132		8.30
2009-61	11-10-09	1	133		8.54
		2	133		8.57
		3	133	Rpld	8.58—8.61
			133	Rnbd	8.62—8.84
			133	as	8.58—8.80
2009-62	11-10-09	1	134		8.154
		2	134		8.156
		3	134	Rpld	8.157(6), (7)
			134	Rnbd	8.157(8)
			134	as	8.157(6)
		4	134		8.159
2009-66	12-15-09	1	26		2.34
		2	26		2.40
		3	26		2.41
		4	26		2.45
2009-67	12-15-09	1	27		2.95
		2	27		2.101
		3	27		2.102
		4	27		2.105
2009-68	12-15-09	1	7		1.233(19)
		2	7		1.243(1)
		3	7		1.244
		4	7		1.246
		5	7		1.258(4)(b)
		6	7		1.258(4)(c)
2010-04	1-26-10	1	3		1.41
2010-07	2-16-10	1	14		1.591
2010-08	2-16-10	1	4		1.82
		2	4	Added	1.86
		3	4	Added	1.95
2010-11	3- 9-10	1	61		5.9.13
		2	61		5.16.02
2010-13	3-23-10	1	42		3.59
2010-17	4-13-10	1	110		7.502(2)
2010-20	5-11-10	1—6	61		5.6.06 B.
		7	61		5.6.07 A.
		8	61		5.6.08 B.3.
		9—11	61		5.7.04 B.
		12	61		5.8.03 E.
		13	61		5.8.06 C.
		14	61		5.8.06 D.2.d.
		15	61		5.9.02
		16	61		5.9.21 H.
		17	61		5.9.32 J.
		18	Added	61	5.9.35 F.
		19	61		5.9.37 I.
		20	61		5.10.02 A.
		21	61		5.11.14 A.
			Rnbd	61	5.11.14 C.
			as	61	5.11.14 B.
		22	Added	61	5.12.12 K.
		23	Added	61	5.12.13 E.2.e.(iii)
		24		61	5.15.03 H.4.a.
		25		61	5.15.04 S.

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		Section		Chapter	Section
		26		61	5.15.05
		27		61	5.15.08 B.
		28		61	5.15.08 D.3.
		29		61	5.15.10 B.
		30—32		61	5.15.11 B.
		33		61	5.15.12 A.
		34		61	5.15.12 A.
		35		61	5.15.14 A.
		36		61	5.15.17 E.
2010-22	5-11-10	1		14	1.590
2010-26	5-25-10	1		92	7.48
2010-28	6-15-10		Added	183	10.200—10.204
2010-30	6-22-10	1	Added	151	9.108(12)
		2		151	9.110(1)
2010-31	6-22-10	1	Added	140	8.503
		2		140	8.516
		3		140	8.517
		4	Added	140	8.518
		5		140	8.550
		6		140	8.551
		7		140	8.554
		8		140	8.560
		9		140	8.562
		10		140	8.746
		11	Added	140	8.747
2010-32	6-22-10	1	Added	116	7.640—7.651
2010-33	6-22-10	1		92	7.48
2010-38	7-13-10	1	Rpld	27	2.60—2.111
		Exh. A	Added	27	Ch. 27(note)
2010-45	8-24-10	1	Added	170	9.857(a)(23)
		2	Added	170	9.858 Q.
2010-46	8-24-10	1	Added	7	1.192
		2		7	1.205
		3		7	1.216(2)
		4		7	1.229
2010-47	8-24-10	1		7	1.213(1)
		2		7	1.255(1)
2010-48	8-24-10	1		7	1.202(8)
2010-49	8-24-10	1	Added	7	1.233(19.1)
		2		7	1.243(1)
		3		7	1.243(7)
		4		7	1.246
		5		7	1.258
2010-51	9-14-10	1	Added	27	2.112—2.125
2010-52	9-14-10	1		116	7.641(d)
		2		116	7.643
		3		116	7.644
		4		116	7.645
		5		116	7.647
2010-53	9-14-10	1		61	5.9.13 B.
				61	5.9.13 D., E.
				61	5.9.13 K., L.
				61	5.9.13 R.
		2		61	5.16.02
2010-54	9-14-10	1		61	5.2.15 A.
		2		61	5.6.06

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		3		61	5.9.05 C.
		4		61	5.9.05 E.
		5		61	5.15.07 G.
		6—8		61	5.15.11 B.
2010-64	11-30-10	1	Added	26	2.23.1
2010-65	11-30-10	1	Added	27	2.65.3
2010-66	11-30-10	1		100	7.273
		2		100	7.279
		3	Rpld	101	7.291
		4	Added	101	7.291—7.300.4
2010-72	12-21-10	1		26	2.34
		2		26	2.35
		3		26	2.40
		4		26	2.41
		5		26	2.45
2010-73	12-21-10	1		27	2.95
		2		27	2.96
		3		27	2.101
		4		27	2.102
		5		27	2.105
2010-74	12-21-10	1		7	1.192(18.1)
		2		7	1.205
		3		7	1.216(2)
		4	Added	7	1.229(2)
2011-11	3-22-11	1		7	1.205
		2		7	1.216(2)
		3	Added	7	1.229(3)
2011-26	7-12-11	1		7	1.192(13)
		2		7	1.205
		3		7	1.216(2)
		4	Added	7	1.229(4)
2011-28	8- 9-11		Added	68	5.489
2011-29	8- 9-11	1	Added	33	2.401—2.408
2011-31	8-23-11	1		47	3.204—3.208
2011-32	8-23-11	1		7	1.296—1.301
2011-40	9-27-11	1		52	4.91
		2	Added	52	4.100
		3	Added	52	4.101
2011-41	9-27-11	1	Added	170	9.857(a)(24)
		2	Added	170	9.858 R.
2011-43	10-11-11		Added	68	5.490
2011-44	10-11-11	1		151	9.1—9.10
		2		151	9.107
		3		151	9.109
		4		151	9.113, 9.114
2011-46	10-25-11	1		140	8.505(1)
		2	Added	140	8.505(15.1)
		3		140	8.550
		4		140	8.555
		5		140	8.556
		6		140	8.557
2011-47	10-25-11	1		140	8.505(35)
		2		140	8.560
		3		140	8.562
2011-54	11-29-11	1		61	5.2.03 B.3.
		2		61	5.2.06 F.3.a.

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		3	61	5.2.06 F.6.
		4	61	5.2.06 G.1.c.
		5	61	5.2.06 H.
		6	61	5.2.06 J.
		7	61	5.2.10 C.
		8 Rpld	61	5.2.11 C.
		9	61	5.2.12 B.1.
			61	5.2.12 B.6.
		10	61	5.2.13 B.
		11	61	5.2.14 B.
		12	61	5.2.15 B.2.
		13	61	5.2.18 B.
			61	5.2.18 F.
		14	61	5.2.21 A.
		15	61	5.5.05 B.
		16	61	5.5.06 A.
		17	61	5.5.06 D.2.b.
		18	61	5.5.07 B.1.
		19	61	5.5.07 C.1.
		20	61	5.5.07 C.3.
		21	61	5.5.07 G.7.
		22—35	61	5.6.06 B.
		36	61	5.6.06 C., D.
		37	61	5.6.07 A.
		39	61	5.6.08 C.
		40	61	5.6.08 H.4.
		41	61	5.7.04 B.
		42	61	5.7.04 C.
		43	61	5.7.04 E.2.
		44	61	5.7.05 C.
		45	61	5.7.06 F.3.
		46	61	5.9.02
		47	61	5.9.05(tit.)
		48	61	5.9.05 B., C.
		49	61	5.9.05 C.
		50	61	5.9.05 F.
		51 Rpld	61	5.9.11 G.
		52	61	5.9.13 P.5.
		53	61	5.9.21 G.
		54	61	5.9.28 I.
		55	61	5.9.32 A.
		56	61	5.11.11 D.
		57	61	5.15.07 A.8.
		58	61	5.15.10 B.
		59, 60	61	5.15.11 B.
		61, 62	61	5.15.12 A.
		63	61	5.15.17 B.
		64	61	5.16.02 D.
		65	61	5.16.02 E.
		66	61	5.16.02 P.
		67	61	5.16.02 S.
2011-55	11-29-11	1	181	10-132(1)
2011-56	11-29-11	1	170	9.858 C.
2011-58	12-20-11	1	26	2.34
		2	26	2.35
		3	26	2.40

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		4	26	2.45
2011-59	12-20-11	1	27	2.95
		2	27	2.96
		3	27	2.101
		4	27	2.102
		5	27	2.105
2011-62	12-20-11	1	7	1.192(13)
		2	7	1.205
		3	7	1.216(2)
		4 Added	7	1.229(5)—(9)
2011-63	12-20-11	1	7	1.243(4)
		2	7	1.258(4)(b)
		3	7	1.258(4)(c)
2012-08	1-24-12	1	7	1.192(13)
		2	7	1.205
		3	7	1.216(2)
		4 Added	7	1.229(10)
2012-01	1-10-12	1	61	5.11.09
2012-13	2-21-12	1	3	1.41
2012-18	3-27-12	1	3	1.41
2012-23	5-15-12	1	61	5.2.09 H.1.
		2	61	5.2.09 J.
		3	61	5.9.07 F.
		4	61	5.9.13 D.
			61	5.9.13 F.
		5, 6	61	5.16.02
		7	61	5.15.07 A.3.
2012-25	5-15-12	1	61	5.2.06 H.
		2 Rpld	61	5.2.06 J.
2012-32	6-19-12	1 Added	181	10.30
2012-33	6-19-12	1 Added	173	9.905—9.909
2012-34	6-19-12	1	159	9.332
2012-35	6-19-12	1 Rpld	140	8.501—8.747
		Added	140	8.501—8.503
		2 Added	140	8.504
2012-36	6-19-12	1	61	5.9.32 A.
		2	61	5.9.32 K.
		3	61	5.16.02
2012-47	8-28-12	1	25	2.1—2.16
2012-50	9-11-12	1	32	2.213(1)
2012-58	11-13-12	1	160	9.371
2012-62	12- 4-12	1	181	10.130
		2	181	10.132
		3	181	10.136
		4 Rpld	181	10.137
		5	181	10.148
2012-63	12-18-12	1	26	2.34(2)
		2	26	2.35
		3	26	2.40
		4 Added	26	2.41.1
		5 Added	26	2.41.2
		6	26	2.45

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2012-64	12-18-12	1		27	2.95(2)
		2		27	2.96
		3		27	2.101
		4		27	2.102
		5	Added	27	2.102.1
		6		27	2.105
2013-07	2-19-13		Added	68	5.491
2013-18	4-30-13	1		27	2.62
		2		27	2.66
		3		27	2.67
		4		27	2.68
		5		27	2.69
		6		27	2.76
		7		27	2.78
		8		27	2.79
		9		27	2.83
		10		27	2.102(2)
		11		27	2.107(1)
		12		27	2.109(5)
		13		27	2.111(5)
2013-20	5-28-13	1		67	5.385
		2		67	5.386
2013-21	5-28-13	1—7		32	2.252—2.258
2013-27	6-25-13	1		173	9.907
		2		173	9.909
2013-28	6-25-13	1		156	9.233
2013-31	7-23-13	1		27	2.62(52)
		2		27	2.66(2)(h)
		3		27	2.66(2)(t)
		4		27	2.81
		5		27	2.100(2)
		6		27	2.102(tit.)
		7		27	2.107(1)
2013-32	7-23-13	1	Rpld	131	8.7
		2	Added	131	8.7
2013-33	7-23-13	1	Rpld	107	7.391—7.395
		2	Added	107	7.391—7.395
2013-34	7-23-13	1	Rpld	102	7.301—7.309
		2	Added	102	7.301—7.308
2013-35	7-23-13	1		91	7.9
2013-36	8-13-13	1	Rpld	181	10.50
2013-37	8-13-13	1	Rpld	4	1.71—1.73
		2	Added	4	1.71—1.74
		3	Rpld	4	1.85
		4	Rpld	4	1.101
		5	Rpld	4	1.106—1.108
		6	Rpld	4	1.111
		7	Rpld	4	1.116
		8	Rpld	4	1.121
		9	Rpld	4	1.126—1.129
		10	Rpld	4	1.131—1.133
		11	Rpld	1.134	
2013-39	8-27-13	1		7	1.232
		2		7	1.233(11)
		3		7	1.233(15)(a)
		4		7	1.233(19)

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		5		7	1.243(1)
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		7		7	1.243(7)
		8		7	1.246
		9		7	1.258(4)(a)
		10		7	1.258(4)(b)
		11		7	1.258(4)(d)
		12		7	1.263(3)
		13		7	1.271(1)
2013-40	8-27-13	1		7	1.191
		2		7	1.192(11)
		3		7	1.192(18)
		4		7	1.228(1)
2013-41	8-27-13	1	Rpld	152	9.161, 9.162
2013-42	8-27-13	1	Rpld	2	1.21, 1.22
		2	Added	2	1.21—1.24
2013-44	9-10-13	1		151	9.107
		2, 3		151	9.108
2013-47	9-10-13	1		7	1.302—1.304
2013-48	9-24-13	1		23	1.952
		2		23	1.953
		3		23	1.954
		4		23	1.957
2013-49	9-24-13	1	Rpld	6	1.170—1.185
2013-50	9-24-13	1	Rpld	20	1.850—1.860
2013-51	9-24-13	1	Rpld	24	1.975—1.981
2013-52	9-24-13	1	Added	152	9.161
2013-57	10- 8-13	1	Rpld	19	1.820
2013-58	10- 8-13	1	Rpld	3	1.43
		2	Rpld	3	1.45—1.50
2013-59	10- 8-13	1	Rpld	182	10.181—10.184
2013-60	10- 8-13	1	Rpld	155	9.194
2013-61	10- 8-13	1	Rpld	181	10.104
2013-65	10-22-13	1		61	5.6.06 B.
2013-67	10-22-13	1	Rpld	181	10.106(4)
			Rnbd	181	10.106(5), (6)
			as	181	10.106(4), (5)
		2	Rpld	181	10.106(7)
2013-68	10-22-13	1	Rpld	5	1.149
2013-69	10-22-13	1	Rpld	65	5.361—5.363
2013-71	11-12-13	1		69	5.551—5.557
2013-72	11-12-13	1	Rpld	181	10.61
2013-74	11-19-13	1		151	9.62(8)
2013-75	11-19-13	1		116	7.640
		2		116	7.641
		3		116	7.643
		4		116	7.646
		5		116	7.648
2013-76	11-19-13	1		61	5.9.07
		2		61	5.9.13
		3		61	5.9.27
		4		61	5.16.02 G.
		5		61	5.16.02 H.
		6		61	5.16.02 L.
		7		61	5.16.02 P.
2013-77	11-19-13	1	Rpld	152	9.167—9.169

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		2	Added	152	9.167—9.169
2013-81	12- 3-13	1		7	1.296(2)(b)
2013-82	12- 3-13	1		7	1.302(2)(b)
		2		7	1.302(2)(c)
		3		7	1.302(2)(e)
2013-84	12-17-13	1	Added	181	10.50
2013-85	12-17-13	1(7a)	Added	34	2.508
2013-86	12-17-13	1		26	2.34(2)
		2		26	2.35(1)
		3		26	2.40
		4		26	2.41.1
		5		26	2.41.2
		6		26	2.45
2013-87	12-17-13	1		27	2.95(2)
		2		27	2.96(1)
		3		27	2.101
		4		27	2.102
		5		27	2.102.1
		6		27	2.105
2014-02	1-28-14	1—3		14	1.591
2014-08	3-11-14	1	Rpld	158	9.281—9.290
2014-09	3-11-14	1		94	7.100
		2	Added	94	7.106
2014-10	3-11-14	1	Rpld	15	1.600
2014-12	3-11-14	1		152	9.132
2014-13	3-11-14	1		152	9.133
2014-14	3-11-14	1		152	9.135
2014-11	3-11-14	1		3	1.41,
				3	1.46
2014-16	3-25-14	1		152	9.136
2014-17	3-25-14	1	Rpld	155	9.193
2014-18	3-25-14	1	Rpld	66	5.366, 5.367
2014-19	3-25-14	1		152	9.133
2014-24	5-13-14	1		159	9.331—9.335
2014-25	5-13-14	1	Added	170	9.857(a)(25)
		2	Added	170	9.858 S.
2014-30	6- 3-14	1		52	4.84
		2		52	4.85
		3	Rpld	52	4.90
2014-51	7-22-14	1	Added	152	9.161—9.164
		2	Added	170	9.857(a)(26)
			Added	170	9.858 T.
2014-52	7-22-14	1	Added	181	10.179, 10.180
2014-53	7-22-14	1, 2		7	1.304(1), (2)
2014-54	7-22-14	1		7	1.192(13)
		2		7	1.205
		3		7	1.216(2)
2014-55	7-22-14	1	Rpld	157	9.241(2)
2014-56	7-22-14	1		53	4.201—4.210
2014-60	7-22-14	1		1	1.13
2014-65	8-26-14	1		61	5.9.07
		2		61	5.9.13 A.—O.
		3		61	5.16.02
2014-66	8-26-14	1		116	7.640
		2		116	7.641
		3		116	7.643

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		4		116	7.644
		5		116	7.646
		6		116	7.648
2014-77	11-12-14	1		152	9.170
2014-70	9-23-14	1		61	5.2.03 B.
		2		61	5.2.06 E.6.
		3		61	5.2.06 F.1.b.
		4	Added	61	5.2.06 F.2.a.(iii)
		5		61	5.2.06 G.
		6		61	5.2.06 H.2.
		7		61	5.2.06 I.
		8		61	5.2.19 E.
		9		61	5.3.02 A.
		10		61	5.3.03
		11		61	5.3.06 D.
		12		61	5.5.06 A.
		13		61	5.5.06 B.5., 6.
		14		61	5.5.07 D.2., 3.
		15—17		61	5.6.06 B.
		18, 19		61	5.6.07 A.
		20		61	5.6.08 B.3.
		21		61	5.6.08 D.4.
		22		61	5.7.04 B.
		23		61	5.7.04 C.
		24		61	5.7.06 A.4.
		25		61	5.7.06 B.
		26, 27		61	5.7.06 D.
		28, 29		61	5.7.06 E.
		30	Added	61	5.9.05 D.3.
		31		61	5.9.05 G.1.
		32	Rpld	61	5.9.11 E.
			Rnbd	61	5.9.11 F.
			as	61	5.9.11 E.
		33		61	5.9.23 D.
		34	Added	61	5.9.36 I.
		35		61	5.10.03 K.
		36		61	5.10.03 L.
		37		61	5.12.14 J.3.
		38		61	5.15.10 B.
		39		61	5.16.02
2014-71	9-23-14	1	Added	181	10.45(17), (18)
2014-82	12- 2-14	1		170	9.857
		2	Rpld	170	9.858
2014-83	12- 2-14	1		173	9.909
2014-85	12-16-14	1		46	3.102 2.
		2		46	3.113
2014-87	12-16-14	1		26	2.34(2)
		2		26	2.35(1)
		3		26	2.40
		4		26	2.41.1
		5		26	2.41.2
		6		26	2.45
2014-88	12-16-14	1		27	2.95(2)
		2		27	2.96(1)
		3		27	2.101
		4		27	2.102

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		5		27	2.102.1
		6		27	2.105
2015-07	2-10-15	1		61	5.6.08 B.3.
		2		61	5.6.08 B.3.b.
2015-11	2-24-15	1		116	7.641
2015-13	2-24-15	1	Added	155	9.217—9.222
2015-19	4-14-15	1		170	9.857
2015-21	4-28-15	2		61	5.2.12 B.6.
		3		61	5.2.13 B.
		4	Added	61	5.2.30
		5		61	5.6.02 C.
		6		61	Table 5.7.03 B.
		7		61	Table 5.8.05 C.
		8		61	5.8.05 D.
		10		61	5.9.13 D.
		11	Added	61	5.9.38
		12		61	5.10.03 D.
		13		61	5.11.04 C.
		14		61	5.11.11 C.1.
		15		61	5.13.03 H.
		16		61	5.13.05 B.
		17		61	5.13.07 E.
		18		61	5.15.04 I.6.
		19—28		61	5.16.02
2015-24	5-12-15	1		165	9.601—9.609
2015-31	6-16-15	1		92	7.48
2015-34	7-14-15	1		61	Table 5.6.06 B.
		2	Added	61	5.6.06 D.
			Rnbd	61	5.6.06 D.
			as	61	5.6.06 E.
2015-37	7-28-15	1	Rpld	152	9.167(4)
2015-38	7-28-15	1		7	1.283
		2	Added	7	1.328.1, 1328.2
2015-52	9-22-15	1	Rpld	181	10.14(3)
		2		181	10.25
		3		181	10.111
		4	Rpld	181	10.130—10.150
			Added	181	10.130—10.139
2015-53	9-22-15	1		61	Table 5.5.06 A.
		2		61	Table 5.6.07 A.
		3		61	Table 5.7.03 C.
		4		61	Table 5.7.04 C.
		5		61	Table 5.7.05 D.
		6		61	Table 5.7.06 D.
		7		61	5.16.02 C.
		8		61	5.16.02 D.
		9		61	5.16.02 R.
		10		61	5.16.02 T.
		11		61	5.16.02 U.
		12		61	5.11.01—5.11.15
2015-60	10-13-15	1		160	9.361—9.371
2015-61	10-13-15	1	Rpld	8	1.341—1.347
			Added	8	1.341—1.347
2015-63	10-27-15	1		26	2.33
		2		26	2.34(2)

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		3		26	2.35(1)
		4		26	2.39
		5		26	2.40
		6		26	2.41
		7		26	2.41.1
		8		26	2.41.2
		9		26	2.45
2015-64	10-27-15	1		27	2.94
		2		27	2.95(2)
		3		27	2.96(1)
		4		27	2.100(1)
		5		27	2.101
		6		27	2.102(1)—(3)
		7		27	2.102.1
		8		27	2.105
2015-65	10-27-15	1		170	9.857
2015-70	12- 8-15	1		7	1.233(14)
		2	Added	7	1.233(11)(g)
		3	Added	7	1.233(15)(c)
		4		7	1.233(19)
		5		7	1.243(7)
		6		7	1.298(1),(2)
		7		7	1.241(3)
2015-74	12-15-15	1	Added	51	4.72—4.88
		2	Rpld	51	4.26
2015-75	12-15-15	1		61	Table 5.5.05 B.
		2		61	5.5.06 B.3.c.
		3	Rpld	61	5.5.06 B.6.
		4		61	5.5.06 C.2.
		5	Added	61	5.5.10
		6	Added	61	5.6.08 B.3.f.
		7		61	5.9.03 D.
		8	Rpld	61	5.9.17 E.
		9	Added	61	5.10.05 H., I.
		10		61	5.16.02 H.
2015-76	12-15-15	1		116	7.643
2016-05	2- 9-16	1		92	7.46
2016-12	3-29-16	1	Added	61	5.2.31
2016-13	3-29-16	1		26	2.26(3)(f)
2016-14	3-29-16	1		181	10.47
		2		181	10.54
2016-22	5-10-16	1		94	7.84
		2		94	7.85
		3		94	7.93
		4		94	7.95
		5		94	7.97
		6		94	7.98
		7		94	7.100
		8		94	7.101
		9		94	7.103
2016-49	7-26-16	1		155	9.217
		2		155	9.219
2016-50	7-26-16	1	Added	73	6.50, 6.51
2016-56	8-23-16	1		7	1.252
2016-57	8-23-16	1		151	9.32(15)
		2		151	9.34(7)

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		3	Added	151	9.35
2016-58	8-23-16		Added	74	6.100—6.116
2016-63	9-13-16	1		113	7.581
		2		113	7.582
			Added	113	7.582.1
		3		113	7.584
		4		113	7.586
		5		113	7.587
		6		113	7.588
		7		113	7.589
		8		113	7.590
		9		113	7.591
		10	Rpld	113	7.594, 7.595
		11		113	7.596
		12		113	7.597
		13	Rpld	113	7.599
2016-67	9-20-16	1		151	9.35(3)(c)(i)
2016-72	11- 1-16	1	Added	7	1.250.2
2016-73	11- 1-16	1		92	7.48
2016-75	11-15-16	1	Added	181	10.61
2016-76	11-15-16	1		170	9.857
			Added	170	9.857.27
			Added	170	9.857.32
			Added	170	9.857.41
			Added	170	9.857.42
			Added	170	9.857.51
			Added	170	9.857.52
			Added	170	9.857.61
			Added	170	9.857.64
			Added	170	9.857.67
			Added	170	9.857.71
			Added	170	9.857.109
			Added	170	9.857.114
			Added	170	9.857.115
			Added	170	9.857.140
			Added	170	9.857.151
			Added	170	9.857.152
			Added	170	9.857.155
			Added	170	9.857.160
			Added	170	9.857.164
			Added	170	9.857.165
			Added	170	9.857.173
			Added	170	9.857.182
2016-77	11-15-16	1		99	7.251
2016-78	11-15-16	1		46	3.102—3.115
2016-79	11-15-16	1		151	9.63(3)
2016-80	11-15-16	1	Added	52	4.82(11)
		2	Rpld	52	4.87
		3		52	4.89(4)
2016-83	12- 6-16	1	Added	7	1.285(c)
2016-84	12- 6-16	1		170	9.857.151
2016-86	12- 6-16	1		21	1.905
		2		21	1.912
2017-02	1-10-17	1		151	9.35(3)(c)
2017-03	1-10-17	1	Added	131	8.9
2017-04	1-10-17	1		133	8.55

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2017-07	1-24-17	1	Added	131	8.8
2017-08	1-24-17	1	Added	132	8.32
2017-09	1-24-17	1	Added	133	8.81
2017-10	1-24-17	1	Added	134	8.161
2017-11	2-14-17	1	Added	170	9.857.131
		2	Added	170	9.857.132
		3	Added	170	9.857.133
		4	Added	170	9.857.134
2017-20	3- 7-17	1		30	2.135
2017-21	3- 7-17	1		7.81—7.84	
2017-22	3- 7-17	1		92	7.48
2017-23	3- 7-17	1	Added	170	9.857.94
2017-27	3-28-17			61	5.1.01—5.1.12,
				61	5.2.01—5.2.23,
				61	5.3.01—5.3.08
				61	5.4.01—5.4.06,
				61	5.5.01—5.5.07,
				61	5.6.01—5.6.08,
				61	5.7.01—5.7.06,
				61	5.8.01—5.8.06,
				61	5.9.01—5.9.42,
				61	5.10.01—5.10.11,
				61	5.11.01—5.11.15,
				61	5.12.01—5.12.16,
				61	5.13.01—5.13.06,
				61	5.14.01—5.14.11,
				61	5.15.01—5.15.17,
				61	5.16.01, 5.16.02
2017-29	4-25-17	1		7	1.241(3)
		2		7	1.284(a)
2017-34	6-13-17	1		74	6.100—6.116
2017-46	9-12-17	1		181	10.69
2017-47	9-12-17	1		113	7.582
		2		113	7.585
		3		113	7.591
		4	Added	113	7.599
2017-56	10-24-17	1		61	5.5.05.B.
		2		61	5.5.05.B.
		3	Added	61	5.5.05.C., D.
		4		61	5.6.06.B.
		5	Added	61	5.6.06.E., F.
2017-61	12-12-17	1		68	5.449
2018-04	1-30-18	1		9	1.410—1.413
2018-05	2- 6-18	1		181	10.122
2018-06	2- 6-18	1		51	4.3
		2		51	4.20
		3		51	4.21
2018-16	4-24-18	1	Added	68	5.411(2)
2018-24	6- 5-18	1		103	7.321—7.325
2018-25	6- 5-18	1	Rpld	107	7.391—7.395

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2018-26	6- 5-18	1	Rpld	108	7.401—7.405
2018-27	6- 5-18	1	Rpld	105	7.361—7.367
2018-28	6- 5-18	1	Rpld	106	7.371—7.380
2018-29	6- 5-18	1—3		92	7.48
2018-30	6- 5-18	1		114	7.601—7.612
2018-32	6- 5-18	1		61	5.2.08
		2		61	5.2.11 B.1.i.iii.
		3, 4		61	5.6.06 B.
		5		61	5.6.06 G.
		6		61	5.7.06 C.7.a.
		7		61	5.9.02 A.3.
		8		61	5.15.08 A.
		9		61	5.15.08 F.2.
		10		61	5.15.10 C.3.c.iii.
		11		61	5.15.12 B.
		12		61	5.16.02
2018-33	6-12-18	1	Rpld	99	7.262
2018-36	7-10-18	1	Added	174	9.925—9.928
2018-37	7-10-18	1	Added	170	9.857.174
2018-39	7-10-18	1, 2		61	5.5.05 B.
		3		61	5.6.06 E., F.
		4—6		61	5.9.02
2018-40	7-10-18	1	Rpld	42	3.31—3.41,
				42	3.45—3.49,
				42	3.53—3.60
		2	Added	42	3.31—3.71
2018-41	7-10-18	1	Added	182	10.181—10.183
2018-44	7-24-18	1		61	5.5.05.B.
2018-45	7-24-18	1—3		61	5.6.06 B.
		4		61	5.7.04 B.
		5		61	5.9.02
		6		61	5.9.14 B.
		7	Rpld	61	5.9.14 M.
		8	Added	61	5.9.19
		9	Added	61	5.12.06 D.
		10		61	5.16.02
2018-51	8-14-18	1		151	9.35(1)(g)
		2		151	9.35(1)(h)
2018-54	9-11-18	1		170	9.857.42
2018-57	9-18-18	1		74	6.111
2018-58	9-18-18	1		159	9.331
		2		159	9.333
2018-60	10- 9-18	1		170	9.857.42
2018-62	10-23-18	1		61	5.5.07 B.
		2		61	5.6.06 E.—G.
		3		61	Table 5.6.07 A.
2018-69	12-18-18	1		61	5.2.07 C.
		2		61	Table 5.5.05 B.
		3		61	5.5.05 C.
		4, 5		61	Table 5.5.06 A.
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2019-02	1- 8-19	1		74	6.100—6.115
2019-09	3-26-19	1	Added	61	5.2.07 B.3.
		2		61	Table 5.5.05 B.
		3	Added	61	5.5.05 D.
			Rnbd	61	5.5.05 D., E.
			as	61	5.5.05 E., F.
		4		61	5.5.06 B., C.
		5		61	5.5.07 E.1.
		6	Rpld	61	5.9.06 C.
			Rnbd	61	5.9.06 D.—L.
			as	61	5.9.06 C.—K.
		7		61	Table 5.10.04 C.
2019-10	3-26-19	1		61	5.5.06 I.
		2		61	Table 5.6.06 B.
		3	Added	61	5.6.06 H.
		4		61	5.6.08 B.2.
		5	Added	61	5.10.04 G.
2019-11	3-26-19	1	Added	61	5.5.05 A.2.
			Rnbd	61	5.5.05 A.2.—A.7.
			as	61	5.5.05 A.3.—A.8.
		2		61	Table 5.5.05 B.
		3		61	Table 5.9.02
		4	Rpld	61	5.9.03 I.
			Rnbd	61	5.9.03 J.—M.
			as	61	5.9.03 I.—L.
		5		61	Table 5.12.02 A.
		6		61	5.12.16(title)
		7	Added	61	5.12.16 B.2.f.
			Rnbd	61	5.12.16 B.2.f.—j.
			as	61	5.12.16 B.2.g.—B.2.k.
		8	Added	61	5.12.16 D.
			Rnbd	61	5.12.16 D.
			as	61	5.12.16 E.
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2019-16	4-23-19	1		61	Table 5.6.06 B.
		2		61	Table 5.7.04 B.
		3		61	Table 5.9.02
		4		61	Table 5.9.05 B.
		5		61	Table 5.9.35 A.
		6	Rpld	61	5.9.35 J.
			Rnbd	61	5.9.35 K., L.
			as	61	5.9.35 J., K.
		7	Added	61	5.9.15
		8		61	5.16.02 C.
		9		61	5.16.02 M.
2019-21	6-11-19	1		173	9.907
2019-22	6-11-19	1		173	9.905
2019-23	6-11-19	1		170	9.857.173
2019-24	6-11-19	1		7	1.263

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2019-26	6-11-19	1	Added	117	7.652—7.668
2019-27	7- 9-19	1	Rpld	102	7.301—7.308
			Added	102	7.301—7.308
2019-28	7- 9-19	1		181	10.69
2019-30	7-23-19	1		61	5.2.18 A.3., 4.
		2	Added	61	5.9.24 F.
			Rnbd	61	5.9.24 F.—H.
			as	61	5.9.24 G.—I.
		3	Added	61	5.9.38 H.
		4	Added	61	5.10.03 E.1.c.
2019-31	7-23-19	1		7	1.233(11)(g)
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		6		7	1.243(7)(b)
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		9		7	1.296(2)(a)
		10		7	1.298(1), (2)
2019-32	7-23-19	1	Rpld	104	7.341—7.350
2019-34	8-13-19	1	Added	33	2.407(e), (f)
2019-35	8-13-19	1		7	1.233(15)(a)
		2		7	1.252(2)(b)
2019-43	8-27-19	1	Added	176	9.955—9.973
2019-44	8-27-19	1	Added	175	9.929—9.954
2019-64	9-24-19	1	Added	170	9.857.175
2019-66	10- 8-19	1	Added	105	7.361—7.379
2019-70	11-12-19	1		61	5.11.15 B.
2019-71	11-19-19	1	Rpld	151	9.61—9.70
		2	Added	151	9.61—9.70.1
2019-72	11-19-19	1		170	9.857.151
2019-74	12- 3-19	1		3	1.46
2019-75	12- 3-19	1	Rpld	153	9.171—9.180
		2	Added	153	9.171—9.180
2020-07	3-17-20	1		11	1.505
2020-08	3-17-20	1		105	7.379
2020-11	4-14-20	1		11	1.505
2020-13	4-28-20	1		61	Table 5.4.03 C.
		2	Rpld	61	5.5.05 E., F.
		3		61	Table 5.6.06 B.
		4		61	Table 5.6.08 A.
		5		61	5.6.06 D., E.
		6	Rpld	61	5.6.06 E.—H.
		7		61	5.6.08 I.2.
		8	Added	61	5.8.07
		9		61	5.10.03 F.
2020-18	6-16-20	1		61	5.10.04 D.
		2		61	5.10.05 B.—F.
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		7		61	5.9.02 A.3.
		8		61	Table 5.9.02
		9		61	5.9.19

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		11		61	5.12.01 C.
		12		61	5.12.06 B.—D.
		13, 14		61	5.16.02 M.
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2020-37	8-25-20	1—3		181	10.36(3)—(5)
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2020-43	9-29-20	1		61	Table 5.9.19.D
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			Added	71	6.1—6.14
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		3		61	5.6.06.D.
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		5		61	Table 5.6.08.B.
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		8		61	5.6.08.F.3.
		9		61	5.16.02
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		2	Added	61	5.15.07.J.
			Rnbd as	61	5.15.07.J. 5.15.07.K.
		3		61	5.12.14B.1.b.
		4		61	5.15.17.C.
		5		61	5.15.17.V.
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2022-07	3-29-22	1		7	1.233(19.1)
		2		7	1.246
2022-10	4-12-22		Added	61	5.2.05.D.
2022-17	6-21-22			61	5.2.05.D.
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		2		61	5.2.05.D.
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		4		61	5.12.08.F.6.c.
		5		61	5.12.14.I.
2022-35	10- 4-22	1	Rpld	133	8.51—8.81
			Added	133	8.51—8.60
2022-51	12- 6-22	1		11	1.504
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2023-03	1-24-23	1		7	1.242(3)

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			Added	32	2.261—2.264
2023-06	2-21-23	1		61	5.8.05
2023-16	5-23-23	1		181	10.58
2023-22	6-13-23	1		140	8.501
		2		140	8.502
		3		140	8.503
		4		140	8.504
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		3		61	5.6.08.B.3.
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		5	Rpld	61	5.8.02.F.—H.
		6		61	5.8.03.D.
		7		61	5.8.03.E.
		8	Added	61	5.8.03.F.
		9		61	5.16.02
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2023-29	7-25-23	1		151	9.108
		2	Added	151	9.108a
2023-30	7-25-23	1		152	9.136
2023-37	8- 8-23	1		61	5.15.03(title)
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				155	9.212—9.216
2023-48	10-10-23	1		151	9.63
2023-49	10-10-23	1		170	9.857.155
2024-01	1- 9-24	1		159	9.331
		2		159	9.333
2024-02	1- 9-24	1		42	3.40
2024-09	2- 6-24			181	10.41
2024-16	4- 9-24	1		170	9.857.181
2024-17	4- 9-24	1		181	10.130—10.138
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		10		61	Table 5.7.04.D.
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2024-40	9-24-24	1		61	5.6.01.B.3.
		2		61	5.6.06.B.
		3	Rpld	61	5.6.06.E.
		4		61	5.6.07.B.
		5		61	5.6.08.B.
		6		61	5.10.04.F.
		7	Added	61	5.10.04.H.
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		3		61	5.11.15 B.
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2025-14	7-29-25	1		61	5.2.05
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		2		151	9.70.1(5)
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